SUPPLEMENT NO. 59
VOLUMES I AND II
September 2026

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4163, adopted June 16, 2026.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	Volume I
xi—xvii	xi—xvii
(SH) 43	(SH) 43—(SH) 46
(C) 7—(C) 24	(C) 7—(C) 24.1
(1.05) 15, (1.05) 16	(1.05) 15, (1.05) 16
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(2.50) 59—(2.50) 62	(2.50) 59—(2.50) 62
(2.50) 62.9—(2.50) 62.12	(2.50) 62.9—(2.50) 62.12
(4.05) 33—(4.05) 56.16.2	(4.05) 33—(4.05) 56.16.8
(4.68) 213—(4.68) 224.2	(4.68) 213—(4.68) 224.2
(6.03) 13—(6.09) 47	(6.03) 13—(6.09) 47
(7) 1—(7.90) 89	(7) 1—(7.90) 127
(8.84) 79—(8.84) 82	(8.84) 79—(8.84) 82
(10.24) 35—(10.24) 37	(10.24) 35—(10.24) 37
(14.08) 55—(14.08) 56.5	(14.08) 55—(14.08) 56.5
(15) 1	(15) 1
(15.08) 75—(15.11) 102.2	(15.08) 75—(15.11) 84
(15.16) 155, (15.16) 156	(15.16) 155, (15.16) 156
(15.20) 165—(15.80) 235	(15.20) 165—(15.80) 251
	Volume II
xi—xvii	xi—xvii
(O) 141	(O) 141—(O) 144
(R) 141, (R) 142	(R) 141—(R) 144
(CCTO) 51, (CCTO) 52	(CCTO) 51—(CCTO) 55
CDi:1—CDi:209	CDi:1—CDi:211

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

CIVICPLUS
Municode Codification

info@civicplus.com | 888-228-2233 | www.civicplus.com

SUPPLEMENT NO. 58
VOLUMES I AND II
September 2025

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4638, adopted July 15, 2025.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 41, (SH) 42	(SH) 41—(SH) 43
(2.05) 9, (2.05) 10	(2.05) 9, (2.05) 10
(2.27) 36.1—(2.27) 36.13	(2.27) 36.1—(2.27) 36.20
(2.50) 59—(2.50) 62.12	(2.50) 59—(2.50) 62.12
(4.32) 149—(4.32) 152	(4.32) 149—(4.32) 152
(5.17) 7—(5.17) 36.4	(5.17) 7—(5.17) 36.10
(7) 1—(7.08) 36	(7) 1—(7.08) 36.8
(7.40) 56.1—(7.90) 67	(7.40) 57—(7.90) 89
(11.03) 9—(11.03) 12	(11.03) 9—(11.03) 12
(14.14) 86.5—(14.14) 86.12	(14.14) 86.5—(14.14) 86.13
(15.02) 73	(15.02) 73
	VOLUME I I
xi—xvii	xi—xvii
(O) 139, (O) 140	(O) 139—(O) 141
(R) 141	(R) 141, (R) 142
(CCTO) 49, (CCTO) 50	(CCTO) 49—(CCTO) 52
CDi:1—CDi:208	CDi:1—CDi:209

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 57
VOLUMES I AND II
April 2025

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4058 adopted February 4, 2024.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 41	(SH) 41, (SH) 42
(2.05) 9	(2.05) 9, (2.05) 10
(2.50) 59, (2.50) 60	(2.50) 59, (2.50) 60
(2.50) 62.11, (2.50) 62.12	(2.50) 62.11, (2.50) 62.12
(4) 1	(4) 1
(4.68) 213— (4.68) 223	(4.68) 213 — (4.68) 224.2
	(4.75) 232.1— (4.75) 232.9
(7.04) 19, (7.04) 20	(7.04) 19 — (7.04) 20.1
(10.06) 7	(10.06) 7— (10.06) 8.2
(10.16) 13, (10.16) 14	(10.16) 13—(10.16) 14.1
(10.60) 81—(10.60) 85	(10.60) 81— (10.60) 85
(15.70) 231	(15.70) 231
	VOLUME I I
xi—xvii	xi—xvii
(O) 139	(O) 139, (O) 140
(R) 141	(R) 141
(CCTO) 49	(CCTO) 49, (CCTO) 50
CDi:1—CDi:208	CDi:1—CDi:208

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 56
VOLUMES I AND II
September 2024

MUNICIPAL CODE

City of

HENDERSON , NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4582, adopted June 4, 2024.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 39	(SH) 39—(SH) 41
(2.08) 13, (2.08) 14	(2.08) 13, (2.08) 14
(2.47) 53— (2.50) 62.14	(2.47) 53— (2.50) 62.12
(4.05) 33— (4.05) 52.1	(4.05) 33— (4.05) 52.3
(4.05) 56.11— (4.05) 56.16.1	(4.05) 56.11— (4.05) 16.2
(4.36) 163— (4.36) 188.15	(4.36) 163— (4.36) 188.21
(6.01) 5— (6.09) 45	(6.01) 5— (6.09) 47
(7) 1— (7.01) 14	(7) 1— (7.01) 14
	(7.75) 62.1— (7.75) 62.4
(15.13) 154.1— (15.13) 154.8	(15.13) 154.1— (15.13) 154.8
	VOLUME I I
xi—xvii	xi—xvii
(O) 137, (O) 138	(O) 137—(O) 139
(R) 139	(R) 139—(R) 141
(CCTO) 47	(CCTO) 47—(CCTO) 49
CDi:1—CDi:208	CDi:1—CDi:208

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 55
VOLUMES I AND II
February 2024

CODE OF ORDINANCES

City or County of

CITY or COUNTY, STATE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4544 adopted September 19, 2023.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 37, (SH) 38	(SH) 37—(SH) 39
(4.110) 299— (4.110) 304	(4.110) 299— (4.110) 304
(10) 1	(10) 1
(10.12) 11	(10.12) 11
	VOLUME I I
xi—xvii	xi—xvii
(O) 137	(O) 137, (O) 138
(R) 139	(R) 139
(CCTO) 45, (CCTO) 46	(CCTO) 45—(CCTO) 47
CDi:1—CDi:210	CDi:1—CDi:208

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 54
VOLUMES I AND II
August 2023

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4535 adopted June 6, 2023.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 37	(SH) 37, (SH) 38
(2.50) 62.5, (2.50) 62.6	(2.50) 62.5— (2.50) 62.6.1
(4.118) 347— (4.118) 368	(4.118) 347— (4.118) 369
(8) 1	(8) 1
(8.37) 55— (8.37) 57	(8.37) 55— (8.37) 58.5
(10.02) 3	(10.02) 3
(10.16) 13— (10.16) 17	(10.16) 13— (10.16) 17
(10.24) 35— (10.24) 37	(10.24) 35— (10.24) 37
(10.36) 53, (10.36) 54	(10.36) 53
(10.48) 59	(10.48) 59
(10.58) 77, (10.58) 78	(10.58) 77
(14.14) 85— (14.14) 86.2	(14.14) 85— (14.14) 86.2.1
	VOLUME I I
xi—xvii	xi—xvii
(O) 135, (O) 136	(O) 135—(O) 137
(R) 137, (R) 138	(R) 137—(R) 139
(CCTO) 45, (CCTO) 46	(CCTO) 45, (CCTO) 46
CDi:1—CDi:211	CDi:1—CDi:210

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 53
VOLUMES I AND II
April 2023

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4521 adopted February 21, 2023.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 35, (SH) 36	(SH) 35—(SH) 37
(C) 7—(C) 12	(C) 7—(C) 12
(C) 27—(C) 32.1	(C) 27—(C) 32.1
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(2.50) 61, (2.50) 62	(2.50) 61, (2.50) 62
(2.50) 62.7— (2.50) 62.14.1	(2.50) 62.7— (2.50) 62.14
(4.05) 33— (4.05) 40	(4.05) 33— (4.05) 40.1
(4.07) 56.31— (4.07) 56.35	(4.07) 56.31— (4.07) 56.36
(14.17) 96.1— (14.21) 121	(14.17) 97— (14.21) 133
(15) 1	(15) 1
(15.24) 171, (15.24) 172	(15.24) 171— (15.24) 172.1
(15.50) 211	(15.50) 211
(17) 1— (17.03) 22	(17) 1— (17.03) 22
	VOLUME I I
xi—xvii	xi—xvii
(O) 135	(O) 135, (O) 136
(R) 137, (R) 138	(R) 137, (R) 138
(CCTO) 45	(CCTO) 45, (CCTO) 46
CDi:1—CDi:499	CDi:1—CDi:211

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 52
VOLUMES I AND II
October 2022

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4499 adopted October 4, 2022.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi—xvii	xi—xvii
(SH) 35	(SH) 35, (SH) 36
(2.27) 36.3— (2.27) 36.11	(2.27) 36.3— (2.27) 36.13
(8.10) 21— (8.10) 32	(8.10) 21— (8.10) 32.2
(14.01) 3— (14.02) 14	(14.01) 3— (14.02) 14.1
(14.03) 19— (14.03) 28	(14.03) 19— (14.03) 28
(14.04) 30.1— (14.04) 34	(14.04) 31— (14.04) 34.3
(14.14) 77— (14.14) 86.1	(14.14) 77— (14.14) 86.12
(14.18) 97, (14.18) 98	(14.18) 97— (14.18) 98.1
(14.18) 107, (14.18) 108	(14.18) 107— (14.18) 108.2
(14.21) 103— (14.21) 118	(14.21) 103— (14.21) 121
(15) 1— (15.01) 6	(15) 1— (15.01) 6
(15.01) 29— (15.01) 32	(15.01) 29— (15.01) 32
(15.01) 39— (15.01) 42	(15.01) 39— (15.01) 42.1
(15.01) 46.1— (15.01) 48.3	(15.01) 47— (15.01) 48.4
(15.08) 75— (15.09) 82	(15.08) 75— (15.09) 82
(15.12) 103, (15.12) 104	(15.12) 103— (15.12) 104.1
(15.12) 107— (15.12) 112	(15.12) 107— (15.12) 112.1
(15.12) 121, (15.12) 122	(15.12) 121— (15.12) 122.1
(15.12) 127— (15.12) 132	(15.12) 127— (15.12) 132.1
(15.12) 141, (15.12) 142	(15.12) 141— (15.12) 142.1
(15.12) 149, (15.12) 150	(15.12) 149— (15.12) 153
(15.16) 156.1, (15.16) 156.2	(15.16) 155, (15.16) 156

Remove Old Pages	*Insert New Pages*
(15.32) 173— (15.32) 175	(15.30) 173— (15.32) 178
(15.32) 178.19— (15.32) 178.22	(15.32) 178.19— (15.32) 178.34
	VOLUME I I
xi—xvii	xi—xvii
(O) 133, (O) 134	(O) 133— (O) 135
(R) 137	(R) 137, (R) 138
(CCTO) 41, (CCTO) 42	(CCTO) 41— (CCTO) 45
CDi:55, CDi:56	CDi:55— CDi:56.1
CDi:97— CDi:102	CDi:97— CDi:102.1
CDi:111, CDi:112	CDi:111, CDi:112
CDi:127— CDi:130	CDi:127—CDi:130.1
CDi:149, CDi:150	CDi:149—CDi:150.1
CDi:169, CDi:170	CDi:169, CDi:170
CDi:446.1—CDi:448	CDi:447—CDi:448.1
CDi:455, CDi:456	CDi:455, CDi:456
CDi:461—CDi:466	CDi:461— CDi:466.1
CDi:495—CDi:498	CDi:495—CDi:499

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 51
VOLUMES I AND II
September 2022

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4482 adopted June 7, 2022.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 33, (SH) 34	(SH) 33—(SH) 35
(2.24) 27— (2.24) 35	(2.24) 26.1— (2.24) 35
	VOLUME I I
(O) 133, (O) 134	(O) 133, (O) 134
(R) 135, (R) 136	(R) 135—(R) 137
(CCTO) 41, CCTO) 42	(CCTO) 41, (CCTO) 42
CDi:3, CDi:4	CDi:3, CDi:4
CDi:9, CDi:10	CDi:9, CDi:10
CDi:76.1—CDi:82	CDi:77—CDi:82.1
CDi:91— CDi:104	CDi:91—CDi:104
CDi:107, CDi:108	CDi:107, CDi:108
CDi:111—CDi:116	CDi:111—CDi:114
CDi:119, CDi:120	CDi:119—CDi:120.1
CDi:130.1— CDi:132	CDi:131—CDi:132.1
CDi:137, CDi:138	CDi:137, CDi:138
CDi:149—CDi:154	CDi:149—CDi:154
CDi:427, CDi:428	CDi:427, CDi:428
CDi:436.1—CDi:438	CDi:436.1—CDi:437
CDi:451—CDi:454	CDi:451—CDi:454
CDi:487, CDi:488	CDi:487, CDi:488

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 50
VOLUMES I AND II
May 2022

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3861 adopted March 15, 2022.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 33	(SH) 33. (SH) 34
(4.05) 33, (4.05) 34	(4.05) 33, (4.05) 34
(4.05) 41, (4.05) 42	(4.05) 41, (4.05) 42
(4.05) 56.1, (4.05) 56.2	(4.05) 56.1, (4.05) 56.2
(4.05) 56.7, (4.05) 56.8	(4.05) 56.7, (4.05) 56.8
(4.05) 56.15— (4.05) 56.16.1	(4.05) 56.15 — (4.05) 56.16.1
(4.80) 237— (4.80) 252	(4.80) 233— (4.80) 251
(4.80) 259— (4.80) 265	(4.80) 259— (4.80) 264
	VOLUME I I
(O) 133	(O) 133, (O) 134
(R) 135, (R) 136	(R) 135, (R) 136
(CCTO) 41	(CCTO) 41, (CCTO) 42
CDi:63—CDi:66	CDi:63—CDi:66
CDi:93, CDi:94	CDi:93, CDi:94
CDi:103, CDi:104	CDi:103, CDi:104
CDi:119, CDi:120	CDi:119, CDi:120
CDi:124.1—CDi:126	CDi:125—CDi:126.2
CDi:128.1—CDi:130	CDi:129—CDi:130.1
CDi:145, CDi:146	CDi:145—CDi:146.1
CDi:445—CDi:446.1	CDi:445—CDi:446.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 49
VOLUMES I AND II
March 2022

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3831 adopted January 4, 2022.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
(SH) 33	(SH) 33
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(14.09) 71— (14.09) 74	(14.09) 71— (14.09) 74
(14.18) 97— (14.18) 100	(14.18) 97— (14.18) 100.1
(14.18) 107, (14.18) 108	(14.18) 107, (14.18) 108
(15.08) 77	(15.08) 77, (15.08) 78
	VOLUME I I
Title page	Title page
(O) 131, (O) 132	(O) 131—(O) 133
(R) 135, (R) 136	(R) 135, (R) 136
(CCTO) 39, (CCTO) 40	(CCTO) 39—(CCTO) 41

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
POWERED BY CIVICPLUS
info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

SUPPLEMENT NO. 48
VOLUMES I AND II
November 2021

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3808 adopted September 21, 2021.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
(SH) 31, (SH) 32	(SH) 31—(SH) 33
VOLUME II	
(O) 131	(O) 131, (O) 132
(R) 135, (R) 136	(R) 135, (R) 136
(CCTO) 39	(CCTO) 39, (CCTO) 40

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 45
VOLUMES I AND II
January 2021

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4416 adopted December 15, 2020.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi—xvii	xi—xvii
(SH) 29, (SH) 30	(SH) 29—(SH) 31
(4.05) 33, (4.05) 34	(4.05) 33— (4.05)34.1
(4.05) 46.1, (4.05) 46.2	(4.05) 46.1, (4.05) 46.2
(4.05) 51, (4.05) 52	(4.05) 51— (4.05) 52.1
(4.05) 56.6.1— (4.05) 56.12	(4.05) 56.7— (4.05) 56.12.1
(4.05) 56.16.1	(4.05) 56.16.1
(4.36) 163— (4.36) 188.12	(4.36)163— (4.36) 188.12.6
(14.08) 51— (14.08) 55	(14.08) 51— (14.08) 56.5
(15.12) 103— (15.12) 151	(5.12) 103— (15.12) 150
VOLUME II	
xi—xvii	xi—xvii
(O) 129	(O) 129, (O) 130
(R) 133, (R) 134	(R) 133, (R) 134
(CCTO) 37	(CCTO) 37, CCTO) 38
CDi:9, CDi:10	CDi:9, CDi:10
CDi:64.1—CDi:66	CDi:65, CDi:66
CDi:445, CDi:446	CDi:445— CDi:446.1
CDi:463, CDi:464	CDi:463, CDi:464

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 44
VOLUMES I AND II
October 2020

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4406 adopted September 15, 2020.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
(SH) 29	(SH) 29, (SH) 30
(2.04) 5, (2.04) 6	(2.04) 5, (2.04) 6
(2.50) 61, (2.50) 62	(2.50) 61, (2.50) 62
(2.50) 62.11. (2.50) 62.12	(2.50) 62.11, (2.50) 62.12
VOLUME II	
(O) 129	(O) 129
(R) 133, (R) 134	(R) 133, (R) 134
(CCTO) 35, (CCTO) 36	(CCTO) 35—CCTO) 37
CDi:76.1	CDi:76.1
CDi:81, CDi:82	CDi:81, CDi:82

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 43
VOLUMES I AND II
August 2020

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4395, adopted June 16, 2020.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
(SH) 27, (SH) 28	(SH) 27—(SH) 29
(C) 3, (C) 4	(C) 3, (C) 4
(C) 11, (C) 12	(C) 11, (C) 12
(C) 23, (C) 24	(C) 23, (C) 24
(C) 27—(C) 32	(C) 27—(C) 31
(8.40) 61, (8.40) 62	(8.40) 61, (8.40) 62
VOLUME II	
(O) 127, (O) 128	(O) 127—(O) 129
(R) 133	(R) 133, (R) 134
(CCTO) 35	(CCTO) 35, CCTO) 36
(CHTi:3), CHTi:4	CHTi:3—CHTi:4

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 42
VOLUMES I AND II
April 2020

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4380, adopted March 3, 2020.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv, xvi	xv, xvi
(SH) 27, (SH) 28	(SH) 27, (SH) 28
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(15.08) 75—(15.08) 80	(15.08) 75—(15.08) 77
(15.16) 155, (15.16) 156	
(15.20) 165—(15.20) 170	(15.20) 165— (15.20) 169
(15.32) 172.1—(15.32) 178.10	(15.32) 173—(15.32) 175
(15.32) 178.19—(15.32) 178. 21	(15.32) 178.19—(15.32) 178.22
VOLUME II	
xv, xvi	xv, xvi
(O) 127	(O) 127, (O) 128
(R) 133	(R) 133
(CCTO) 35	(CCTO) 35

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 41
VOLUMES I AND II
January 2020

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4372, adopted December 17, 2019.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 27	(SH) 27, (SH) 28
(2.47) 53—(2.47) 56	(2.47) 53—(2.47) 56
(8) 1	(8) 1
(8.02) 5—(8.02) 6.2	(8.02) 5—(8.02) 6.4
(14.18) 97, (14.18) 98	(14.18) 97, (14.18) 98
(14.18) 102.1—(14.18)102.4	(14.18) 103—(14.18) 108
	VOLUME II
xi—xvii	xi—xvii
(O) 125, (O) 126	(O) 125—(O) 127
(R) 131, (R) 132	(R) 131—(R) 133
(CCTO) 33, (CCTO) 34	(CCTO) 33—(CCTO) 35
CDi:3, CDi:4	CDi:3, CDi:4
CDi:24.1	CDi:24.1
CDi:71—CDi:74	CDi:71—CDi:74
CDi:79—CDi:84	CDi:79—CDi:84
CDi:89, CDi:90	CDi:89, CDi:90
CDi:95, CDi:96	CDi:95, CDi:96
CDi:111, CDi:112	CDi:111, CDi:112
CDi:119, CDi:120	CDi:119, CDi:120
CDi:128.1	CDi:128.1
CDi:143, CDi:144	CDi:143, CDi:144
CDi:153—CDi:156	CDi:153—CDi:156
CDi:425—CDi:432	CDi:425—CDi:432.1
CDi:465—CDi:467	CDi:465—CDi:467

Remove Old Pages	*Insert New Pages*
CDi:483, CDi:484	CDi:483, CDi:484

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 40
VOLUMES I AND II
October 2019

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3625, adopted September 18, 2019.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 25	(SH) 25—(SH) 27
(4.84) 266.11, (4.84) 266.12	(4.84) 266.11, (4.84) 266.12
(4.85) 266.23—(4.85) 266.26	(4.85) 266.23—(4. 85) 266.26
(18.01) 5, (18.01) 6	(18.01) 5, (18.01) 6
	VOLUME II
(O) 125	(O) 125, (O) 126
(R) 131, (R) 132	(R) 131, (R) 132
(CCTO) 33	(CCTO) 33, (CCTO) 34

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 39
VOLUMES I AND II
July 2019

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4351, adopted June 18, 2019.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 25	(SH) 25
(2.24) 29—(2.24) 36	(2.24) 28.1—(2.24) 35
(4.05) 33, (4.05) 34	(4.05) 33, (4.05) 34
(4.05) 44.1—(4.05) 46	(4.05) 45—(4.05) 46.2
(4.05) 51—(4.05) 56.2	(4.05) 51—(4.05) 56.2.2
(4.05) 56.8.1—(4.05) 56.16	(4.05) 56.9—(4.05) 56.16.1
(4.36) 163—(4.36) 188.10	(4.36) 163—(4.36) 188.15
(15.75) 233	(15.75) 233
(17) 1	(17) 1
	(17.01) 3—(17.01) 7
	(17.02) 9—(17.02) 17
	(17.03) 19—(17.03) 22
	VOLUME II
xi—xvii	xi—xvii
(O) 123, (O) 124	(O) 123— (O) 125
(R) 131, (R) 132	(R) 131, (R) 132
(CCTO) 31, (CCTO) 32	(CCTO) 31— (CCTO) 33
CDi:9, CDi:10	CDi:9, CDi:10
CDi:65, CDi:66	CDi:65, CDi:66
CDi:141, CDi:142	CDi:141, CDi:142
CDi:435, CDi:436	CDi:435—CDi:436.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 38
VOLUMES I AND II
April 2019

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4338, adopted March 19, 2019.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 23, (SH) 24	(SH) 23—(SH) 25
(4.116) 321—(4.116) 345	(4.116) 321—(4.116) 345
(4.118) 347—(4.18) 368	(4.118) 347—(4.118) 368
(15.12) 119—(15.12) 124	(15.12) 119—(15.12) 124.1
(15.12) 129, (15.12) 130	(15.12) 129, (15.12) 130
	VOLUME II
xi—xvii	xi—xvii
(O) 123, (O) 124	(O) 123, (O) 124
(R) 131	(R) 131, (R) 132
(CCTO) 31	(CCTO) 31, (CCTO) 32
CDi:21, CDi:22	CDi:21, CDi:22
CDi:137, CDi:138	CDi:137, CDi:138
CDi:433—CDi:436	CDi:433—CDi:436

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode

Municipal Code Corporation P.O. Box 2235 Tallahassee, FL 32316
info@municode.com 800.262.2633 www.municode.com

SUPPLEMENT NO. 37
VOLUMES I AND II
February 2019

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4331, adopted December 18, 2018.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 23	(SH) 23, (SH) 24
(1.04) 13	(1.04) 13, (1.04) 14
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(2.50) 62.11—(2.50) 62.14	(2.50) 62.11—(2.50)62.14.1
	VOLUME II
(O) 123	(O) 123, (O) 124
(R) 101, (R) 102	(R) 101, (R) 102
(R) 131	(R) 131
(CCTO) 29, (CCTO) 30	(CCTO) 29—(CCTO) 31

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 36
VOLUMES I AND II
November 2018

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4320, adopted September 18, 2018.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 21, (SH) 22	(SH) 21—(SH) 23
(2.43) 50.1	(2.43) 50.1, (2,43) 50.2
(2.50) 62.5, (2.50) 62.6	(2.50) 62.5, (2.50) 62.6
(4.05) 33, (4.05) 34	(4.05) 33, (4.05) 34
(4.05) 42.1—(4.05) 44	(4.05) 43—(4.05) 44.2
(14.09) 57—(14.09) 74	(14.09) 57—(14.09) 74.39
(14.21) 103—(14.21) 106	(14.21) 103—(14.21) 118
(15) 1	(15) 1
(15.01) 5—(15.01) 10	(15.01) 5—(15.01) 10.3
(15.08) 75—(15.08) 78	(15.08) 75—(15.09) 82
	(15.11) 102.1, (15.11) 102.2
(15.16) 155, (15.16) 156	(15.16) 155—(15.16) 156.2
(15.20) 167—(15.32) 172	(15.20) 165—(15.32) 172.2
	(15.32) 178.9—(15.32) 178.21
(15.44) 205—(15.45) 208	(15.44) 205—(15.45) 210.2
	VOLUME II
xi—xvii	xi—xvii
(O) 121—(O) 122	(O) 121— (O) 123
	(R) 131
(CCTO) 29	(CCTO) 29, (CCTO) 30
CDi:19, CDi:20	CDi:19, CDi:20
CDi:57, CDi:58	CDi:57, CDi:58
CDi:63, CDi:64	CDi:63—CDi:64.1

Remove Old Pages	*Insert New Pages*
CDi:75—CDi:76.1	CDi:75—CDi:76.1
CDi:89, CDi:90	CDi:89, CDi:90
CDi:127, CDi:128	CDi:127—CDi:128.1
CDi:143, CDi:144	CDi:143, CDi:144
CDi:169, CDi:170	CDi:169, CDi:170
CDi:433, CDi:434	CDi:433, CDi:434
CDi:461—CDi:482	CDi:461—CDi:467

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 35
VOLUMES I AND II
July 2018

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4305, adopted June 19, 2018.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 21	(SH) 21, (SH) 22
(2.50) 61— (2.50) 62.14	(2.50) 61— (2.50) 62.14
(4.05) 34.1— (4.05) 36	(4.05) 35— (4.05) 36.1
(4.05) 56.3— (4.05) 56.6	(4.05) 56.3— (4.05) 56.6.1
	VOLUME II
(O) 121	(O) 121— (O) 122
(R) 129, (R) 130	(R) 129, (R) 130
(CCTO) 27, (CCTO) 28	(CCTO) 27— (CCTO) 29
CDi:65—CDi:68	CDi:65—CDi:68
CDi:75, CDi:76	CDi:75—CDi:76.1
CDi:457, CDi:458	CDi:457, CDi:458

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 34
VOLUMES I AND II
April 2018

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3476, adopted March 20, 2018.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 21	(SH) 21
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(4.05) 47, (40.05) 48	(4.05) 47—(4.05) 48.1
(4.05) 56.6.1— (4.05) 56.8	(4.05) 56.7— (4.05) 56.8.1
(4.05) 56.15, (4.05) 56.16	(4.05) 56.15, (4.05) 56.16
	VOLUME II
(O) 119—(O) 121	(O) 119—(O) 121
(R) 129, (R) 130	(R) 129, (R) 130
(CCTO) 27, (CCTO) 28	(CCTO) 27, (CCTO) 28

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 33
VOLUMES I AND II
January 2018

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4277, adopted December 19, 2017.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 19, (SH) 20	(SH) 19—(SH) 21
(2.40) 41—(2.40) 48.5	(2.40) 41—(2.40) 48.7
(2.47) 53—(2.47) 58	(2.47) 53—(2.47) 56
(2.100) 86.5, (2.100) 86.6	(2.100) 86.5, (2.100) 86.6
(8.02) 5	(8.02) 5—(8.02) 6.2
(8.08) 15	(8.08) 15
(8.10) 21, (8.10) 22	(8.10) 21, (8.10) 22
(8.10) 31, (8.10) 32	(8.10) 31, (8.10) 32
(8.11) 33, (8.11) 34	(8.11) 33, (8.11) 34
(8.11) 41, (8.11) 42	(8.11) 41, (8.11) 42
(8.11) 45, (8.11) 46	(8.11) 45, (8.11) 46
(8.32) 51, (8.32) 52	(8.32) 51, (8.32) 52
(8.40) 61, (8.40) 62	(8.40) 61, (8.40) 62
(8.60) 65, (8.60) 66	(8.60) 65, (8.60) 66
(8.60) 69, (8.60) 70	(8.60) 69
(8.98) 93—(8.98) 95	(8.98) 93—(8.98) 95
	VOLUME II
(O) 119, (O) 120	(O) 119—(O) 121
(R) 129	(R) 129, (R) 130
(CCTO) 27	(CCTO) 27, (CCTO) 28
CDi:3, CDi:4	CDi:3, CDi:4
CDi:21, CDi:22	CDi:21, CDi:22
CDi:75— CDi:78	CDi:75—CDi:78
CDi:85—CDi:94	CDi:85—CDi:94
CDi:101—CDi:106	CDi:101—CDi:106

Remove Old Pages	*Insert New Pages*
CDi:115—CDi:118	CDi:115—CDi:118
CDi:135, CDi:136	CDi:135, CDi:136
CDi:143, CDi:144	CDi:143, CDi:144
CDi:149, CDi:150	CDi:149, CDi:150
CDi:155—CDi:158	CDi:155—CDi:158
CDi:423—CDi:430	CDi:423—CDi:430.1
CDi:435—438	CDi:435—CDi:438.2
CDi:445—CDi:456	CDi:445—CDi:456

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 32
VOLUMES I AND II
October 2017

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3444, adopted September 19, 2017.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 19	(SH) 19, (SH) 20
(4) 1	(4) 1
(4.04) 7—(4.04) 12	(4.04) 7—(4.04) 12.1
(4.04) 31—(4.05) 34.1	(4.04) 31—(4.05) 34.1
(4.05) 53— (4.05) 56	(4.05) 52.1—(4.05) 56
(4.05) 56.3, (4.05) 56.4	(4.05) 56.3, (4.05) 56.4
(4.05) 56.9—(4.05) 56.15	(4.05) 56.9—(4.05) 56.16
(4.06) 56.21—(4.06) 56.24	(4.06) 56.21—(4.06) 56.24
(4.116) 321—(4.116) 343	(4.116) 321—(4.116) 345
	(4.118) 347—(4.118) 368
(14.17) 95, (14.17) 96	(14.17) 95—(14.17) 96.1
(15) 1	(15) 1
(15.18) 159—(15.18) 166	(15.18) 159—(15.18) 164
	(15.80) 235
(18.01) 3—(18.01) 6	(18.01) 3—(18.01) 6
	VOLUME II
xi—xvii	xi—xvii
(O) 119	(O) 119, (O) 120
(R) 129	(R) 129
(CCTO) 25, (CCTO) 26	(CCTO) 25—(CCTO) 27
CDi:11, CDi:12	CDi:11 CDi:12
CDi:21—CDi:24	CDi:21—CDi:24.1
CDi:57— CDi:74	CDi:57—CDi:74
CDi:83—CDi:96	CDi:83—CDi:96

Remove Old Pages	*Insert New Pages*
CDi:123, CDi:124	CDi:123, CDi:124
CDi:127, CDi:128	CDi:127, CDi:128
CDi:131—CDi:144	CDi:131—CDi:144
CDi:155, CDi:156	CDi:155, CDi:156
CDi:433—CDi:436	CDi:433—CDi:436.2
CDi:443, CDi:444	CDi:443, CDi:444
CDi:451, CDi:452	CDi:451, CDi:452
CDi:485, CDi:486	CDi:485, CDi:486
CDi:495—CDi:498	CDi:495—CDi:498

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 31
VOLUMES I AND II
July 2017

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3416, adopted June 20, 2017.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 19	(SH) 19
(2) 1	(2) 1
(2.24) 27—(2.27) 36.8	(2.24) 27—(2.27) 36.10
(2.50) 61—(2.50) 62.13	(2.50) 61—(2.50) 62.14
(4.48) 195—(4.48) 196.1	(4.48) 195—(4.48) 196.1
(6.02) 9—(6.08) 38	(6.02) 9—(6.02) 11
	(6.03) 13—(6.06) 27
	(6.07) 29—(6.07) 35
	(6.08) 37, (6.08) 38
(6.09) 43—(6.09) 45	(6.09) 43—(6.09) 45
(14.14) 77—(14.14) 86	(14.14) 77—(14.14) 86.1
	VOLUME II
xi—xvii	xi—xvii
(O) 119	(O) 119
(R) 129	(R) 129
(CCTO) 25	(CCTO) 25, (CCTO) 26
CDi:1—CDi:6	CDi:1—CDi:5
CDi:11, CDi:12	CDi:11, CDi:12
CDi:19— CDi:30	CDi:19—CDi:29
CDi:55—CDi:58	CDi:55—CDi:58
CDi:75—CDi:84	CDi:75—CDi:84
CDi:89—CDi:114.1	CDi:89—CDi:112
CDi:119—CDi:124.2	CDi:119—CDi:124.2
CDi:137—CDi:168	CDi:137—CDi:158

Remove Old Pages	*Insert New Pages*
CDi:427—CDi:440	CDi:427—CDi:440
CDi:447—CDi:452	CDi:447—CDi:452
CDi:459—CDi:464	CDi:459—CDi:464.1
CDi:487, CDi:488	CDi:487, CDi:488

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 30
VOLUMES I AND II
April 2017

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3393, adopted March 21, 2017.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 17, (SH) 18	(SH) 17— (SH) 19
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(4.36) 163, (4.36) 164	(4.36) 163, (4.36) 164
(4.36) 169, (4.36) 170	(4.36) 169—(4.36) 170.1
(4.36) 188.3, (4.36) 188.4	(4.36) 188.3— (4.36) 188.4.1
(4.48) 189—(4.48) 192	(4.48) 189—(4.48) 192.2
(4.80) 241—(4.80) 266	(4.80) 237—(4.80) 265
(11) 1—(11.30) 15	(11) 1
	(11.01) 3—(11.05) 17
	(11.06) 19—(11.06) 23
	(11.07) 25
	(11.08) 27
	(11.09) 29—(11.09) 33
	(11.10) 35, (11.10) 36
(14.18) 97—(14.18) 102	(14.18) 97—(14.18) 102.4
	VOLUME I I
xi—xvii	xi—xvii
(O) 117, (O) 118	(O) 117— (O) 119
(R) 127, (R) 128	(R) 127— (R) 129
(CCTO) 23, CCTO) 24	(CCTO) 23—(CCTO) 25
CDi:1, CDi:2	CDi:1, CDi:2
CDi:9— CDi:12	CDi:9— CDi:12
CDi:19, CDi:20	CDi:19—CDi:20.1
CDi:29, CDi:30	CDi:29, CDi:30

Remove Old Pages	*Insert New Pages*
CDi:57—CDi:62	CDi:57—CDi:62
CDi:105—CDi:114	CDi:105—CDi:114.1
CDi:121—CDi:124.2	CDi:121—CDi:124.2
CDi:129—CDi:136	CDi:129—CDi:136
CDi:147, CDi:148	CDi:147, CDi:148
CDi:169, CDi:170	CDi:169, CDi:170
CDi:427, CDi:428	CDi:427, CDi:428
CDi:432.1—CDi:434	CDi:433—CDi:434.1
CDi:443—CDi:480	CDi:443—CDi:465

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 29
VOLUMES I AND II
January 2017

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4241, adopted December 13, 2016.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi—xvii	xi—xvii
(SH) 17, (SH) 18	(SH) 17, (SH) 18
(2.04) 5—(2.04) 7	(2.04) 5—(2.04) 7
(2.50) 62.5—(2.50) 62.8	(2.50) 62.5—(2.50) 62.8
(4.36) 179—(4.36) 186	(4.36) 179—(4.36) 186
(7.20) 43, (7.20) 44	(7.20) 43, (7.20) 44
VOLUME II	
xi—xvii	xi—xvii
(O) 117	(O) 117, (O) 118
(R) 127, (R) 128	(R) 127, (R) 128
(CCTO) 23	(CCTO) 23, (CCTO) 24
CDi:3, CDi:4	CDi:3, CDi:4
CDi:23, CDi:24	CDi:23, CDi:24
CDi:75—CDi:78	CDi:75—CDi:78
CDi:137—CDi:140	CDi:137—CDi:140
CDi:429, CDi:430	CDi:429, CDi:430

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 28
VOLUMES I AND II
September 2016

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4233, adopted August 16, 2016.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
xi—xvii	xi—xvii
(SH) 17	(SH) 17, (SH) 18
(2.50) 61, (2.50) 62	(2.50) 61, (2.50) 62
(2.50) 62.3, (2.50) 62.4	(2.50) 62.3, (2.50) 62.4
(4.05) 33, (4.05) 34	(4.05) 33—(4.05) 34.1
(4.05) 41, (4.05) 42	(4.05) 41—(4.05) 42.1
(4.05) 55—(4.05) 56.2	(4.05) 55—(4.05) 56.2
(4.05) 56.5, (4.05) 56.6	(4.05) 56.5—(4.05) 56.6.1
(4.05) 56.13—(4.05) 56.15	(4.05) 56.13—(4.05) 56.15
(4.80) 247, (4.80) 248	(4.80) 247, (4.80) 248
(7.01) 3, (7.01) 4	(7.01) 3, (7.01) 4
(7.01) 9—(7.01) 14	(7.01) 9—(7.01) 14
(7.04) 19, (7.04) 20	(7.04) 19, (7.04) 20
(7.04) 23—(7.06) 30	(7.04) 23—(7.06) 30.1
(7.20) 39—(7.25) 47	(7.20) 39—(7.20) 45
	(7.25) 47—(7.25) 48.2
	VOLUME II
Title page	Title page
xi—xvii	xi—xvii
(O) 117	(O) 117
(R) 127, (R) 128	(R) 127, (R) 128
(CCTO) 21, (CCTO) 22	(CCTO) 21—(CCTO) 23
CDi:5, CDi:6	CDi:5, CDi:6
CDi:13—CDi:18	CDi:13—CDi:18
CDi:65—CDi:68	CDi:65—CDi:68

Remove Old Pages	*Insert New Pages*
CDi:87, CDi:88	CDi:87, CDi:88
CDi:93, CDi:94	CDi:93, CDi:94
CDi:493, CDi:494	CDi:493, CDi:494

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 27
VOLUMES I AND II
June 2016

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3337, adopted April 19, 2016.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 17	(SH) 17
(8.28) 49	(8.28) 49
(18.01) 3—(18.01) 6	(18.01) 3—(18.01) 6
	VOLUME II
(O) 117	(O) 117
(R) 127	(R) 127, (R) 128
(CCTO) 21, (CCTO) 22	(CCTO) 21, (CCTO) 22

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation | P.O. Box 2235 Tallahassee, FL 32316
info@municode.com | 800.262.2633
www.municode.com

SUPPLEMENT NO. 26
VOLUMES I AND II
March 2016

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3330, adopted January 19, 2016.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 15, (SH) 16	(SH) 15—(SH) 17
(C) 27—(C) 30	(C) 27—(C) 30
(1.04) 13	(1.04) 13
(4) 1	(4) 1
(4.36) 163—(4.36) 188.8	(4.36) 163—(4.36) 188.10
(4.102) 297, (4.102) 298	(4.102) 297, (4.102) 298
(4.115) 319—(4.116) 345	(4.115) 319
	(4.116) 321—(4.116) 343
(8.85) 83—(8.85) 86.1	(8.85) 83—(8.85) 86.1
(10) 1	(10) 1
(10.54) 75	(10.54) 75
(14.02) 13—(14.02) 16	(14.02) 13—(14.02) 17
(14.04) 29, (14.04) 30	(14.04) 29—(14.04) 30.1
(15.01) 13—(15.01) 16	(15.01) 13—(15.01) 16.1
(15.01) 47, (15.01) 48	(15.01) 46.1—(15.01) 47
	VOLUME II
xi—xvii	xi—xvii
(O) 115, (O) 116	(O) 115—(O) 117
(R) 127	(R) 127
(CCTO) 21	(CCTO) 21, (CCTO) 22
CDi:1, CDi:2	CDi:1, CDi:2
CDi:9—CDi:12	CDi:9—CDi:12
CDi:19—CDi:26	CDi:19—CDi:26
CDi:69—CDi:76	CDi:69—CDi:76
CDi:89—CDi:100	CDi:89—CDi:99
CDi:111, CDi:112	CDi:111, CDi:112
CDi:118.1—CDi:124	CDi:119—CDi:124.2
CDi:131, CDi:132	CDi:131, CDi:132
CDi:137—CDi:140	CDi:137—CDi:140
CDi:457—CDi:462	CDi:457—CDi:462.1

Remove Old Pages	*Insert New Pages*
CDi:489—CDi:494	CDi:489—CDi:494

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 25
VOLUMES I AND II
December 2015

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4202, adopted October 20, 2015.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 15	(SH) 15, (SH) 16
(4) 1	(4) 1
(4.03) 3—(4.07) 55	(4.03) —(4.05) 56.15 (4.06) 56.17—(4.06) 56.29 (4.07) 56.31—(4.07) 56.35
(4.80) 241—(4.85) 266.2	(4.80) 241—(4.85) 266.33
(14.18) 97, (14.18) 98	(14.18) 97—(14.18) 98.1
(14.18) 101	(14.18) 101, (14.18) 102
	VOLUME II
xi—xvii	xi—xvii
(O) 115	(O) 115, (O) 116
(R) 127	(R) 127
(CCTO) 19, (CCTO) 20	(CCTO) 19—(CCTO) 21
CDi:5—CDi:6.1	CDi:5, CDi:6
CDi:11, CDi:12	CDi:11, CDi:12
CDi:21—CDi:26	CDi:21—CDi:26
CDi:62.1—CDi:74	CDi:63—CDi:74
CDi:81—CDi:98	CDi:81— CDi:98
CDi:103—CDi:118	CDi:103—CDi:118.2
CDi:121—CDi:156	CDi:121—CDi:150
CDi:163—CDi:170	CDi:163—CDi:170
CDi:429—CDi:432	CDi:429—CDi:432.1
CDi:437, CDi:438	CDi:437, CDi:438
CDi453, CDi:454	CDi:453, CDi:454
CDi:465—CDi:468	CDi:465—CDi:468
CDi:479, CDi:480	CDi:479, CDi:480
CDi:497, CDi:498	CDi:497, CDi:498

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.


municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 24
VOLUMES I AND II
August 2015

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4195, adopted July 21, 2015.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 13, (SH) 14	(SH) 13—(SH) 15
(2.50) 62.9, (2.50) 62.10	(2.50) 62.9, (2.50) 62.10
(6) 1	(6) 1
(6.04) 3—(CH. 6.44) 31	(6.01) 3—(6.01) 7
	(6.02) 9—(6.02) 11
	(6.03) 13—(6.06) 27
	(6.07) 29—(6.07) 35
	(6.08) 37—(6.09) 45
(8.98) 93—(8.98) 96	(8.98) 93—(8.98) 95
	VOLUME II
xi—xvii	xi—xvii
(O) 115	(O) 115
(R) 125, (R) 126	(R) 125—(R) 127
(CCTO) 19, (CCTO) 20	(CCTO) 19, (CCTO) 20
CDi:1, CDi:2	CDi:1, CDi:2
CDi:19—CDi:22	CDi:19—CDi:22
CDi:27, CDi:28	CDi:27, CDi:28
CDi:77—CDi:80	CDi:77—CDi:80
CDi:85, CDi:86	CDi:85, CDi:86
CDi:93—CDi:100	CDi:93—CDi:100
CDi:107, CDi:108	CDi:107, CDi:108
CDi:113—CDi:126	CDi:113—CDi:123
CDi:131, CDi:132	CDi:131, CCDi:132
CDi:139, CDi:140	CDi:139
CDi:145, CDi:146	CDi:145, CDi:146
CDi:151—CDi:156	CDi:151—CDi:156
CDi:163—CDi:168	CDi:163—CDi:168
CDi:425, CDi:426	CDi:425, CDi:426
CDi:431—CDi:438	CDi:431—CDi:438
CDi:455, CDi:456	CDi:455, CDi:456

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 23
VOLUMES I AND II
May 2015

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4180, adopted April 14, 2015.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi, xii	xi, xii
(SH) 13, (SH) 14	(SH) 13, (SH) 14
(2) 1	(2) 1
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(2.85) 81	(2.85) 81
VOLUME II	
xi, xii	xi, xii
(O) 113, (O) 114	(O) 113—(O)115
(R) 125, (R) 126	(R) 125, (R) 126
(CCTO) 19, (CCTO) 20	(CCTO) 19, (CCTO) 20
CDi:3, CDi:4	CDi:3, CDi:4
CDi:21, CDi:22	CDi:21, CDi:22
CDi:27, CDi:28	CDi:27, CDi:28
CDi:77, CDi:78	CDi:77, CDi:78
CDi:125, CDi:126	CDi:125, CDi:126
CDi:145, CDi:146	CDi:145, CDi:146
CDi:151, CDi:152	CDi:151, CDi:152
CDi:453, CDi:454	CDi:453, CDi:454

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 22
VOLUMES I AND II
March 2015

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3251, adopted January 20, 2015.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 13	(SH) 13, (SH) 14
(2.44) 51	(2.44) 51
(4) 1	(4) 1
(4.08) 57—(4.08) 65	(4.08) 57—(4.08) 63
(4.48) 189—(4.48) 195	(4.48) 189—(4.48) 196.1
(4.98) 267, (4.98) 268	(4.98) 267, (4.98) 268
(4.101) 279—(4.101) 295	(4.101) 279
(4.110) 299—(4.110) 317	(4.110) 299—(4.110) 318.5
(7) 1	(7) 1
(7.01) 3—(7.70) 56	(7.01) 3—(7.01) 14
	(7.02) 15—(7.02) 17
	(7.04) 19—(7.04) 25
	(7.06) 27—(7.06) 33
	(7.08) 35, (7.08) 36
	(7.10) 37, (7.10) 38
	(7.20) 39—(7.20) 43
	(7.25) 45—(7.25) 47
	(7.30) 49—(7.30) 51
	(7.40) 53—(7.40) 56.1
	(7.50) 56.3—(7.50) 56.5
	(7.60) 56.7—(7.60) 56.9
	(7.70) 56.11—(7.70) 56.14
(7.90) 67	(7.90) 67
(11) 1	(11) 1
	(11.20) 11—(11.20) 13
	(11.30) 15
	VOLUME II
xi—xvii	xi—xvii
(O) 113, (O) 114	(O) 113, (O)114
(R) 125, (R) 126	(R) 125, (R) 126

Remove Old Pages	*Insert New Pages*
(CCTO) 17	(CCTO) 17—(CCTO) 20
CDi:1—CDi:6.1	CDi:1—CDi:6.1
CDi:11—CDi:30	CDi:11—CDi:30
CDi:57—CDi:62	CDi:57—CDi:62.1
CDi:67—CDi:76	CDi:67—CDi:76
CDi:87—CDi:100	CDi:87—CDi:100
CDi:107—CDi:122	CDi:107—CDi:119
CDi:127—CDi:140	CDi:127—CDi:140
CDi:145—CDi:160	CDi:145—CDi:157
CDi:165—CDi:172	CDi:165—CDi:171
CDi:423—CDi:450	CDi:423–CDi:444
CDi:457—CDi:460	CDi:457—CDi:460.1
CDi:465, CDi:466	CDi:465, CDi:466
CDi:493—CDi:498	CDi:493—CDi:498

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 21
VOLUMES I AND II
November 2014

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3228, adopted October 21, 2014.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 11, (SH) 12	(SH) 11—(SH) 13
(2) 1	(2) 1
(2.16) 17—(2.22) 26	(2.16) 17
	(2.18) 19
	(2.20) 21
	(2.21) 23
	(2.22) 25
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(2.40) 41—(2.40) 48.4	(2.40) 41—(2.40) 48.5
(2.43) 50.1, (2.43) 50.2	(2.43) 50.1
(2.47) 57—(2.50) 61	(2.47) 57—(2.48) 59
	(2.50) 61—(2.50) 62.13
(2.75) 76.1—(2.80) 80	(2..75) 75
	(2.80) 77
(2.95) 85—(2.95) 86.2	(2.95) 85
(4.115) 319—(4.115) 321	(4.115) 319—(4.115) 322
(7.04) 17 , (7.04) 18	(7.04) 17—(7.04) 18.1
(10) 1	(10) 1
(10.18) 29, (10.18) 30	(10.18) 19
(18.01) 3—(18.01) 5	(18.01) 3—(18.01) 6
	VOLUME II
xi—xvii	xi—xvii
(SR) 1—(SR) 5	(SR) 1—(SR) 5
(O) 111, (O) 112	(O) 111—(O) 114
(R) 125	(R) 125, (R) 126
(CCTO) 15, (CCTO) 16	(CCTO) 15—(CCTO) 17
CDi:3—CDi:6	CDi:3—CDi:6.1
CDi:11—CDi:33	CDi:11—CDi:32
CDi:69—CDi:114	CDi:69—CDi:112

Remove Old Pages	*Insert New Pages*
CDi:119—CDi:128	CDi:119—CDi:128
CDi:133—CDi:136	CDi:133—CDi:136
CDi:141—CDi:148	CDi:141—CDi:147
CDi:155—CDi:170	CDi:155—CDi:169
CDi:425—CDi:448	CDi:425—CDi:442
CDi:453—CDi:460	CDi:453—CDi:460
CDi:465—CDi:468	CDi:465–CDi:468
CDi:483—CDi:488	CDi:483—CDi:488
CDi:493, CDi:494	CDi:493, CDi:494

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 20
VOLUMES I AND II
September 2014

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4144, adopted July 15, 2014.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi—xvii	xi—xvii
(SH) 11	(SH) 11, (SH) 12
(1) 1	(1) 1
(1.01) 3—(1.04) 6	(1.01) 3
	(1.02) 5, (1.02) 6
	(1.03) 7—(1.03) 11
	(1.04) 13
	(1.05) 15, (1.05) 16
(2) 1	(2) 1
(2.04) 5—(2.05) 9	(2.04) 5—(2.04) 7
	(2.05) 9
(2.27) 35	(2.27) 35—(2.27) 36.8
(2.65) 71—(2.70) 76	(2.65) 71
	(2.70) 73
(2.110) 87, (2.110) 88	(2.110) 87
(4) 1	(4) 1
(4.74) 231—(4.74) 239	(4.74) 231
	(4.115) 319—(4.115) 321
	(4.116) 323—(4.116) 345
(8) 1	(8) 1
(8.40) 61, (8.40) 62	(8.40) 61, (8.40) 62
(8.85) 83—(8.85) 86	(8.85) 83—(8.85) 86.1
(8.98) 93—(8.99) 105	(8.98) 93—(8.98) 96
	(8.99) 97
(10.02) 3	(10.02) 3
(10.06) 7—(10.16) 27	(10.06) 7
	(10.08) 9
	(10.12) 11
	(10.16) 13—(10.16) 17
(10.44) 65—(10.48) 73	(10.44) 57
	(10.48) 59

Remove Old Pages	*Insert New Pages*
(10.60) 81—(10.60) 85	(10.60) 81—(10.60) 85
(10.64) 89—(10.64) 95	(10.64) 89
(15.12) 103—(15.12) 153	(15.12) 103—(15.12) 151
(15.70) 231	(15.70) 231
(18.01) 3—(18.01) 5	(18.01) 3—(18.01) 5
VOLUME II	
xi—xvii	xi—xvii
(O) 111	(O) 111, (O) 112
(R) 125	(R) 125
(CCTO) 15	(CCTO) 15, (CCTO) 16
CDi:1—CDi:37	CDi:1—CDi:33
CDi:63, CDi:64	CDi:63, CDi:64
CDi:69—CDi:416	CDi:69, CDi:175
CDi:423—CDi:430	CDi:423—CDi:430
CDi:435—CDi:444	CDi:435—CDi:441
CDi:449—CDi:452	CDi:449—CDi:452
CDi:459, CDi:460	CDi:459, CDi:460
CDi:465—CDi:478	CDi:465—CDi:470
CDi:485—CDi:503	CDi:485—CDi:498

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.



SUPPLEMENT NO. 19
VOLUMES I AND II
May 2014

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4133, adopted April 15, 2014.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 9, (SH) 10	(SH) 9—(SH) 11
(C) 1—(C) 41	(C) 1—(C) 41
(2) 1	(2) 1
	(2.10) 16.1—(2.10) 16.4
(2.34) 39—(2.40) 48.10	(2.34) 39
	(2.40) 41—(2.40) 48.4
(2.50) 61	(2.50) 61
(4) 1	(4) 1
(4.07) 55, (4.07) 56	(4.07) 55
(4.30) 141—(4.30) 145	(4.30) 141
(8.94) 91	(8.94) 91
(10) 1	(10) 1
(10.04) 5, (10.04) 6	(10.04) 5
(10.18) 29—(10.24) 44	(10.18) 29, (10.18) 30
	(10.20) 31, (10.20) 32
	(10.23) 33
	(10.24) 35—(10.24) 37
(10.32) 47—(10.40) 63	(10.32) 47
	(10.34) 49—(10.34) 52
	(10.36) 53, (10.36) 54
	(10.40) 55
(10.59) 79	(10.59) 79
(13.04) 3, (13.04) 4	(13.04) 3, (13.04) 4
(13.04) 17, (13.04) 18	(13.04) 17—(13.04) 19
(15) 1	(15) 1
(15.01) 9—(15.01) 34	(15.01) 9—(15.01) 34.1
(15.01) 39—(15.01) 48	(15.01) 39—(15.01) 48.3
(15.01) 53, (15.01) 54	(15.01) 53—(15.01) 54.1
(15.10) 101, (15.10) 102	(15.10) 101
	(15.13) 154.1—(15.13) 154.8

Remove Old Pages	*Insert New Pages*
(15.52) 213—(15.75)233	(15.52) 213
	(15.56) 215—(15.56) 225
	(15.60) 227—(15.60) 229
	(15.75) 233
	VOLUME II
xi—xvii	xi—xvii
(O) 109, (O) 110	(O) 109—(O) 111
(R) 125	(R) 125
(CCTO) 13	(CCTO) 13—(CCTO) 15
CHTi:1—CHTi:29	CHTi:1—CHTi:12
CDi:1—CDi:6	CDi:1—CDi:6
CDi:11—CDi:16	CDi:11—CDi:15
CDi:23, CDi:24	CDi:23, CDi:24
CDi:29—CDi:32	CDi:29—CDi:32
CDi:57—CDi:72	CDi:57—CDi:71
CDi:77, CDi:78	CDi:77, CDi:78
CDi:83—CDi:96	CDi:83—CDi:96
CDi:99—CDi:112	CDi:99—CDi:110
CDi:123—CDi:152	CDi:123—CDi:150
CDi:157—CDi:170	CDi:157—CDi:169
CDi:177—CDi:187	CDi:177—CDi:186
CDi:427—CDi:438	CDi:427—CDi:435
CDi:445—CDi:468	CDi:445—CDi:468
CDi:483—CDi:518	CDi:483—CDi:503

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 18
VOLUMES I AND II
February 2014

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4120, adopted January 21, 2014.

See the Resolution List and Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 7, (SH) 8	(SH) 7—(SH) 10
(2) 1	(2) 1
(2.22) 25, (2.22) 26	(2.22) 25, (2.22) 26
(2.27) 35—(2.29) 38	(2.27) 35
	(2.29) 37, (2.29) 38
(4.06) 49—(4.06) 52	(4.06) 49—(4.06) 52
(4.32) 147—(4.32) 161	(4.32) 147—(4.32) 161
(4.36) 163—(4.36) 187	(4.36) 163—(4.36) 188.8
(5.04.) 3—(5.04) 6	(5.04) 3—(5.04) 6
(5.17) 7—(5.17) 36	(5.17) 7—(5.17) 36.4
(5.28) 53, (5.28) 54	(5.28) 53, (5.28) 54
(8) 1	(8) 1
(8.04) 9, (8.04) 10	(8.04) 9, (8.04) 10
(8.08) 15—(8.08) 18	(8.08) 13—(8.08) 15
(8.38) 59—(8.84) 82	(8.38) 59
	(8.40) 61, (8.40) 62
	(8.49) 63
	(8.60) 65—(8.60) 70
	(8.64) 71
	(8.68) 73
	(8.72) 75
	(8.76) 77
	(8.84) 79—(8.84) 82
(8.90) 87	(8.90) 87
	VOLUME II
xi—xvii	xi—xvii
(SR) 1—(SR) 5	(SR) 1—(SR) 5
	(O) 109, (O) 110
(R) 123, (R) 124	(R) 123—(R) 125

Remove Old Pages	*Insert New Pages*
(CCTO) 11	(CCTO) 11—(CCTO) 13
CDi:1—CDi:14	CDi:1—CDi:13
CDi:19—CDi:28	CDi:19—CDi:28
CDi:33, CDi:34	CDi:33, CDi:34
CDi:57—CDi:62	CDi:57—CDi:62
CDi:69—CDi:100	CDi:69—CDi:99
CDi:111—CDi:122	CDi:111—CDi:122
CDi:127—CDi:130	CDi:127—CDi:130
CDi:135—CDi:172	CDi:135—CDi:170
CDi:181—CDi:189	CDi:181—CDi:187
CDi:423—CDi:430	CDi:423—CDi:427
CDi:435—CDi:456	CDi:435—CDi:455
CDi:467, CDi:468	CDi:467, CDi:468
CDi:503—CDi:510	CDi:503—CDi:510
CDi:515, CDi:516	CDi:515, CDi:516

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 17
VOLUMES I AND II
December 2013

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3075 and Resolution No. 4103, adopted October 15, 2013.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 7	(SH) 7, (SH) 8
(2) 1	(2) 1
(2.08) 13— (2.08) 15	(2.08) 13—(2.08) 15
(2.40) 47—(2.40) 48.9	(2.40) 47—(2.40) 48.10
	(2.43) 50.1, (2.43) 50.2
(2.47) 57, (2.47) 58	(2.47) 57, (2.47) 58
(2.52) 63	(2.52) 63
(2.58) 67	(2.58) 67
(2.85) 81	(2.85) 81
(2.90) 83—(2.100) 86.1	(2.90) 83
	(2.95) 85—(2.95) 86.2
	(2.100) 86.3—(2.100) 86.6
(4) 1	(4) 1
(4.12) 67—(4.12) 73	(4.12) 67—(4.12) 72
(4.85) 261—(4.85) 266.2	(4.85) 261—(4.85) 266.2
(4.100) 269—(4.100) 277	(4.100) 269
(13.04) 3—(13.04) 19	(13.04) 3—(13.04) 18
(15.08) 75—(15.09) 100	(15.08) 75—(15.08) 76
	(15.09) 77, (15.09) 78
(15.16) 155, (15.16) 156	(15.16) 155, (15.16) 156
(15.20) 167—(15.32) 178.13	(15.20) 167, (15.20) 168
	(15.24) 169, (15.24) 170
	(15.32) 171—(15.32) 178.7
(15.44) 205	(15.44) 205, (15.44) 206
(15.45) 207—(15.45) 209	(15.45) 207, (15.45) 208
(16) 1—(16.24) 30	(16) 1
	VOLUME II
xi—xvii	xi—xvii
(O) 107	(O) 107, (O) 108

Remove Old Pages	*Insert New Pages*
(R) 123, (R) 124	(R) 123, (R) 124
(CCTO) 9	(CCTO) 9—(CCTO) 11
CDi:3—CDi:8	CDi:3—CDi:8
CDi:15, CDi:16	CDi:15, CDi:16
CDi:21—CDi:40	CDi:21—CDi:37
CDi:57—CDi:62	CDi:57—CDi:62
CDi:73—CDi:84	CDi:73—CDi:84
CDi:89—CDi:124	CDi:89—CDi:123
CDi:131—CDi:156	CDi:131—CDi:156
CDi:161—CDi:186	CDi:161—CDi:185
CDi:429—CDi:476	CDi:429—CDi:469
CDi:483—CDi:489	CDi:483—CDi:489
CDi:513—CDi:518	CDi:513—CDi:518

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 16
VOLUMES I AND II
August 2013

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3039 and Resolution No. 4088, adopted July 16, 2013.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
xi—xvii	xi—xvii
(SH) 5, (SH) 6	(SH) 5—(SH) 7
(2) 1	(2) 1
(2.16) 17— (2.20) 22	(2.16) 17—(2.16) 19 (2.18) 21, (2.18) 22 (2.20) 22.1, (2.20) 22.2
(2.24) 27—(2.24) 34	(2.24) 27—(2.24) 34.1
(2.42) 49	(2.42) 49
(2.60) 69	(2.60) 69
(2.110) 87, (2.110) 88	(2.110) 87, (2.110) 88
(4) 1	(4) 1
(4.26) 89—(4.26) 140	(4.26) 89
(5) 1	(5) 1
(5.20) 37—(5.20) 50	(5.20) 37
(5.24) 51, (5.24) 52	(5.24) 51
(8) 1	(8) 1
(8.01) 3, (8.01) 4	(8.01) 3, (8.01 (4)
(8.02) 5	(8.02) 5
(8.03) 7	(8.03) 7
(8.07) 11—(8.07) 13	(8.07) 11
(8.09) 19, (8.09) 20	(8.09) 19, (8.09) 20
(8.10) 21—(8.10) 32	(8.10) 21—(8.10) 32
(8.11) 33—(8.11) 46	(8.11) 33—(8.11) 46
(8.12) 47	(8.12) 47
(8.28) 49	(8.28) 49
(8.32) 51—(8.32) 52.1	(8.32) 51, (8.32) 52
(8.36) 53	(8.36) 53
(8.37) 55—(8.37) 58	(8.37) 55—(8.37) 57
(14.08) 53—(14.08) 55	(14.08) 53—(14.08) 55
(14.14) 85, (14.14) 86	(14.14. 85, (14.14) 86

Remove Old Pages	*Insert New Pages*
(14.17) 93—(14.17) 96	(14.17) 93—(14.17) 96
(15.50) 211	(15.50) 211
(17) 1—(17.08) 23	(17) 1

VOLUME II

Title page	Title page
xi—xvii	xi—xvii
(O) 105, (O) 106	(O) 105—(O) 107
(R) 123, (R) 124	(R) 123, (R) 124
(CCTO) 7	(CCTO) 7—(CCTO) 9
CDi:1—CDi:38.1	CDi:1—CDi:35
CDi:55—CDi:412	CDi:55—CDi:189
CDi:425—CDi:500	CDi:425—CDi:489
CDi:513—CDi:518	CDi:513—CDi:518

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.



SUPPLEMENT NO. 15
VOLUMES I AND II
May 2013

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3001, adopted April 9, 2013.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi—xvii	xi—xvii
(SH) 5, (SH) 6	(SH) 5, (SH) 6
(2.29) 37, (2.29) 38	(2.29) 37, (2.29) 38
(18.01) 5	(18.01) 5
VOLUME II	
xi—xvii	xi—xvii
(O) 105, (O) 106	(O) 105, (O) 106
(R) 123	(R) 123, (R) 124
(CCTO) 7	(CCTO) 7

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 14
VOLUMES I AND II
February 2013

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4069 adopted January 8, 2013.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 5	(SH) 5, (SH) 6
(2) 1	(2) 1
	(2.75) 76.1, (2.75) 76.2
	VOLUME II
xi—xvii	xi—xvii
(O) 105	(O) 105, (O) 106
(R) 123	(R) 123
(CCTO) 5, (CCTO) 6	(CCTO) 5—(CCTO) 7
CDi:3, CDi:4	CDi:3, CDi:4
CDi:33—CDi:38	CDi:33—CDi:38.1
CDi:389, CDi:390	CDi:389, CDi:390

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 13
VOLUMES I AND II
October 2012

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4064 adopted October 16, 2012.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 5	(SH) 5
	VOLUME II
(O) 105	(O) 105
(R) 123	(R) 123
(CCTO) 5, (CCTO) 6	(CCTO) 5, (CCTO) 6

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 12
VOLUMES I AND II
September 2012

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4053 and Ordinance 2973 adopted August 21, 2012.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 5	SH) 5
	VOLUME II
(O) 105	(O) 105
(R) 121, (R) 122	(R) 121—(R) 123
(CCTO) 5, (CCTO) 6	(CCTO) 5, (CCTO) 6

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 11
VOLUMES I AND II
July 2012

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4044 and Ordinance No. 2969 adopted June 19, 2012.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi, xii	xi, xii
(SH) 3, (SH) 4	(SH) 3—(SH) 5
(2) 1	(2) 1
(2.40) 47	(2.40) 47—(2.40) 48.9
(4.05) 35, (4.05) 36	(4.05) 35, (4.05) 36
	VOLUME II
xi, xii	xi, xii
(SR) 1—(SR) 5	(SR) 1—(SR) 5
(O) 105	(O) 105
(R) 121, (R) 122	(R) 121, (R) 122
(CCTO) 5, (CCTO) 6	(CCTO) 5, (CCTO) 6
CDi:5, CDi:6	CDi:5, CDi:6
CDi:101, CDi:102	CDi:101—CDi:102.1
CDi:105, CDi:106	CDi:105—CDi:106.1
CDi:117, CDi:118	CDi:117—CDi:118.1
CDi:121, CDi:122	CDi:121—CDi:122.1
CDi:327, CDi:328	CDi:327—CDi:328.1
CDi:341, CDi:342	CDi:341—CDi:342.1
CDi:391, CDi:392	CDi:391—CDi:392.1
CDi:403—CDi:408.1	CDi:403—CDi:407
CDi:459, CDi:460	CDi:459—CDi:460.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 10
VOLUMES I AND II
June 2012

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2965 adopted May 15, 2012.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 3, (SH) 4	(SH) 3, (SH) 4
	VOLUME II
(O) 105	(O) 105
(R) 121, (R) 122	(R) 121, (R) 122
(CCTO) 5, (CCTO) 6	(CCTO) 5, (CCTO) 6

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

municode
Municipal Code Corporation • PO Box 2235 Tallahassee, FL 32316
info@municode.com • 800.262.2633
fax 850.575.8852 • www.municode.com

SUPPLEMENT NO. 9
VOLUMES I AND II
May 2012

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4034 and Ordinance No. 2961 adopted April 3, 2012.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 3, (SH) 4	(SH) 3, (SH) 4
(C) 1, (C) 2	(C) 1, (C) 2
(C) 5, (C) 6	(C) 5, (C) 6
(C) 9, (C) 10	(C) 9—(C) 10
(C) 19—(C) 28	(C) 19—(C) 28
(2.04) 5 — (2.04) 7	(2.04) 5—(2.04) 7
(8.32) 51	(8.32) 51—(8.32) 52.1
	VOLUME II
xi—xvii	xi—xvii
(O) 105	O) 105
(R) 121	(R) 121, (R) 122
(CCTO) 5, (CCTO) 6	(CCTO) 5, (CCTO) 6
CHTi:7, CHTi:8	CHTi:7, CHTi:8
CDi:3—CDi:6	CDi:3—CDi:6
CDi:15, CDi:16	CDi:15, CDi:16
CDi:31, CDi:32	CDi:31, CDi:32
CDi:37, CDi:38	CDi:37, CDi:38
CDi:87—CDi:90	CDi:87—CDi:90
CDi:101—CDi:104	CDi:101—CDi:104
CDi:109, CDi:110	CDi:109, CDi:110
CDi:337, CDi:338	CDi:337—CDi:338.1
CDi:369—CDi:374	CDi:369—CDi:374
CDi:425, CDi:426	CDi:425, CDi:426
CDi:433, CDi:434	CDi:433, CDi:434
CDi:445—CDi:448	CDi:445–CDi:448
CDi:465, CDi:466	CDi:465, CDi:466

Insert and maintain this instruction sheet in front of Volume I. File removed pages

for reference.



SUPPLEMENT NO. 8
VOLUMES I AND II
March 2012

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Resolution No. 4020 January 3, 2012 and Ordinance Nos. 2954, 2955 and 2956 adopted January 17, 2012.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 3	(SH) 3, (SH) 4
(2.47) 55—(2.47) 58	(2.47) 55—(2.47) 58
(2.100) 85, (2.100) 86	(2.100) 85—(2.100) 86.1
(4.04) 7—(4.04) 10	(4.04) 7—(4.04) 10.1
(4.04) 21—(4.04) 23	(4.04) 21—(4.04) 23
(4.05) 35, (4.05) 36	(4.05) 35, (4.05) 36
(4.06) 47—(4.06) 54	(4.06) 47—(4.06) 54.7
(4.84) 251—(4.84) 258	(4.84) 251—(4.84) 259
(4.85) 259—(4.85) 265	(4.85) 261—(4.85) 266.2
(14.01) 7—(14.01) 10	(14.01) 7—(14.01) 10
(14.02) 11—(14.02) 18.1	(14.02) 11—(14.02) 16
(14.14) 83, (14.14) 84	(14.14) 83, (14.14) 84
(14.18) 97—(14.18) 101	(14.18) 97—(14.18) 101
	VOLUME II
xi—xvii	xi—xvii
(O) 103, (O) 104	(O) 103—(O) 105
(R) 121	(R) 121
(CCTO) 5	(CCTO) 5, (CCTO) 6
CDi:5—CDi:8	CDi:5—CDi:8.1
CDi:17, CDi:18	CDi:17, CDi:18
CDi:27, CDi:28	CDi:27, CDi:28
CDi:33, CDi:34	CDi:33, CDi:34
CDi:65—CDi:74	CDi:65—CDi:74
CDi:87, CDi:88	CDi:87, CDi:88
CDi:93, CDi:94	CDi:93—CDi:94.1
CDi:101—CDi:110	CDi:101—CDi:110.1
CDi:333—CDi:336	CDi:333—CDi:336
CDi:363, CDi:364	CDi:363—CDi:364.1
CDi:383—CDi:388	CDi:383—CDi:388

Remove Old Pages	*Insert New Pages*
CDi:393, CDi:394	CDi:393, CDi:394
CDi:399, CDi:400	CDi:399, CDi:400
CDi:407, CDi:408	CDi:407–CDi:408.1
CDi:435—CDi:442	CDi:435—CDi:442.1
CDi:449—CDi:454	CDi:449—CDi:454.1
CDi:487—CDi:496	CDi:487—CDi:496
CDi:513—CDi:518	CDi:513—CDi:518

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.



SUPPLEMENT NO. 7
VOLUMES I AND II
December 2011

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2944 adopted November 15, 2011 and Resolution No. 4011, adopted November 15, 2011.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi—xvii	xi—xvii
(SH) 3	(SH) 3
(4.05) 35, (4.05) 36	(4.05) 35, (4.05) 36
(4.36) 167, (4.36) 168	(4.36) 167, (4.36) 168
(4.36) 173, (4.36) 174	(4.36) 173—(4.36) 174.1
(4.36) 179, (4.36) 180	(4.36) 179—(4.36) 180.1
(5.17) 7, (5.17) 8	(5.17) 7, (5.17) 8
(5.17) 29, (5.17) 30	(5.17) 29—(5.17) 30.1
VOLUME II	
xi—xvii	xi—xvii
(19) 1—(19.B) 679	(19) 1
	(19.01) 3
(O) 101—(O) 104	(O) 101— (O) 104
(R) 121	(R) 121
(CCTO) 1—(CCTO) 4	(CCTO) 1— (CCTO) 5
CDi:1—CDi:48	CDi:1—CDi:43
CDi:65, CDi:66	CDi:65, CDi:66
CDi:71—CDi:74	CDi:71—CDi:74
CDi:83—CDi:324	CDi:83—CDi:124
CDi:327—CDi:382	CDi:327—CDi:377
CDi:385—CDi:406	CDi:385—CDi:405
CDi:409—CDi:412	CDi:409—CDi:412
CDi:423—CDi:426	CDi:423—CDi:426
CDi:431—CDi:476	CDi:431— CDi:471
CDi:481—CDi:488	CDi:481—CDi:488
CDi:497—CDi:500	CDi:497—CDi:500
CDi:511—CDi:519	CDi:511—CDi:518

Insert and maintain this instruction sheet in front of Volume I. File removed pages

for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 6
VOLUMES I AND II
October 2011

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2932 adopted September 20, 2011 and Resolution No. 4000, adopted September 6, 2011.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 1, (SH) 2	(SH) 1—(SH) 3(following Table of Contents)
(7) 1	(7) 1
(7.04) 3—(7.08) 55	(7.01) 3—(7.01) 13
	(7.02) 15, (7.02) 16
	(7.04) 17—(7.04) 22
	(7.06) 23—(7.06) 29
	(7.08) 31, (7.08) 32
	(7.10) 33, (7.10) 34
	(7.20) 35—(7.20) 39
	(7.30) 41, (7.30) 42
	(7.40) 43—(7.40) 46
	(7.50) 47—(7.50) 49
	(7.60) 51, (7.60) 52
	(7.70) 53—(7.70) 62
	(7.80) 63—(70.80) 65
	(7.90) 67
	VOLUME II
xi—xvii	xi—xvii
(O) 103	(O) 103, (O) 104
(R) 121	(R) 121
(CCTO) 3, (CCTO) 4	(CCTO) 3, (CCTO) 4
CDi:1, CDi:2	CDi:1, CDi:2
CDi:13—CDi:34	CDi:13—CDi:32
CDi:41, CDi:42	CDi:41, CDi:42
CDi:57, CDi:58	CDi:57, CDi:58
CDi:63, CDi:64	CDi:63, CDi:64
CDi:83—CDi:86	CDi:83—CDi:86
CDi:93, CDi:94	CDi:93, CDi:94

Remove Old Pages	*Insert New Pages*
CDi:101—CDi:106	CDi:101—CDi:106
CDi:111, CDi:112	CDi:111, CDi:112
CDi:315—CDi:322	CDi:315—CDi:322
CDi:329—CDi:334	CDi:329—CDi:334
CDi:339—CDi:356	CDi:339—CDi:356
CDi:361—CDi:368	CDi:361—CDi:368
CDi:375—CDi:378	CDi:375—CDi:378
CDi:385—CDi:390	CDi:385—CDi:390
CDi:401—CDi:411	CDi:401—CDi:410
CDi:425, CDi:426	CDi:425, CDi:426
CDi:431—CDi:448	CDi:431—CDi:448
CDi:457—CDi:468	CDi:457—CDi:468
CDi:497—CDi:500	CDi:497—CDi:500
CDi:513—CDi:519	CDi:513—CDi:519

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 5
VOLUMES I AND II
August 2011

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2923, adopted July 19, 2011 and Resolution No. 3995, adopted July 19, 2011.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
(SH) 1, (SH) 2	(SH) 1, (SH) 2 (following Table of Contents)
	VOLUME II
(SR) 1—(SR) 5	(SR) 1—(SR) 5
(O) 103	(O) 103
(R) 119, (R) 120	(R) 119—(R) 121
(CCTO) 3, (CCTO) 4	(CCTO) 3, (CCTO) 4

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 4
VOLUMES I AND II
June 2011

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2917, adopted May 3, 2011 and Resolution No. 3983, adopted May 3, 2011.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi—xvii	xi—xvii
(SH) 1, (SH) 2	(SH) 1, (SH) 2 (following Table of Contents)
(4.04) 7—(4.04) 12	(4.04) 7—(4.04) 12.2
(14.18) 99, (14.18) 100	(14.18) 99, (14.18) 100
(18.01) 3—(18.01) 5	(18.01) 3—(18.01) 5
VOLUME II	
xi—xvii	xi—xvii
(O) 103	(O) 103
(R) 119, (R) 120	(R) 119, (R) 120
(CCTO) 3	(CCTO) 3, (CCTO) 4
CDi:69, CDi:70	CDi:69, CDi:70

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 3
VOLUMES I AND II
May 2011

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2910, adopted March 15, 2011 and Resolution No. 3979, adopted March 15, 2011.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xi—xvii	xi—xvii
(SH) 1	(SH) 1, (SH) 2 (following Table of Contents)
(4.32) 147, (4.32) 148	(4.32) 147, (4.32) 148
(4.32) 155—(4.32) 158	(4.32) 155—(4.32) 158.1
(4.36) 165—(4.36) 168	(4.36) 165—(4.36) 168.1
(4.36) 179, (4.36) 180	(4.36) 179, (4.36) 180
(4.68) 213—(4.68) 223	(4.68) 213—(4.68) 223
(7.04) 3—(7.04) 14	(7.04) 3—(7.04) 14
(7.04) 27—(7.04) 35	(7.04) 27—(7.04) 31
(7.08) 43—(7.08) 52	(7.08) 43—(7.08) 55
(14.02) 13—(14.02) 17	(14.02) 13—(14.02) 18.1
(14.08) 53, (14.08) 54	(14.08) 53, (14.08) 54
(14.14) 77—(14.14) 86	(14.14) 77—(14.14) 86
(14.17) 95, (14.17) 96	(14.17) 95, (14.17) 96
(14.18) 99—(14.18) 101	(14.18) 99—(14.18) 101
VOLUME II	
xi—xvii	xi—xvii
(O) 103	(O) 103
(R) 119, (R) 120	(R) 119, (R) 120
(CCTO) 1, (CCTO) 2	(CCTO) 1—(CCTO) 3
CDi:1, CDi:2	CDi:1, CDi:2
CDi:18.1—CDi:30	CDi:19—CDi:30
CDi:33, CDi:34	CDi:33, CDi:34
CDi:57, CDi:58	CDi:57, CDi:58
CDi:91—CDi:94	CDi:91—CDi:94
CDi:105, CDi:106	CDi:105, CDi:106

Remove Old Pages	*Insert New Pages*
CDi:319, CDi:320	CDi:319, CDi:320
CDi:339—CDi:342	CDi:339—CDi:342
CDi:349, CDi:350	CDi:349, CDi:350
CDi:355, CDi:356	CDi:355, CDi:356
CDi:360.1—CDi:362	CDi:361, CDi:362
CDi:367, CDi:368	CDi:367, CDi:368
CDi:387, CDi:388	CDi:387, CDi:388
CDi:407, CDi:408	CDi:407, CDi:408
CDi:437, CDi:438	CDi:437, CDi:438
CDi:463, CDi:464	CDi:463, CDi:464
CDi:469, CDi:470	CDi:469, CDi:470
CDi:489, CDi:490	CDi:489, CDi:490
CDi:515, CDi:516	CDi:515, CDi:516

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 2
VOLUMES I AND II
March 2011

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2902, adopted January 18, 2011 and Resolution No. 3976, adopted February 15, 2011.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
(SH) 1	(SH) 1 (following Table of Contents)
(15) 1	(15) 1
(15.08) 75—(15.08) 98	(15.08) 75—(15.08) 83
(15.32) 171—(15.32) 178	(15.32) 171—(15.32) 178.13
	VOLUME II
xi—xvii	xi—xvii
(O) 101, (O) 102	(O) 101—(O) 103
(R) 119, (R) 120	(R) 119, (R) 120
(CCTO) 1, (CCTO) 2	(CCTO) 1, (CCTO) 2
CDi:17—CDi:18.1	CDi:17—CDi:18.1
CDi:335, CDi:336	CDi:335—CDi:336.1
CDi:359, CDi:360	CDi:359—CDi:360

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

SUPPLEMENT NO. 1
VOLUMES I AND II
February 2011

MUNICIPAL CODE

City of

HENDERSON, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2890, adopted December 7, 2010 and Resolution No. 3969, adopted December 7, 2010.

See the Code Comparative Table and Disposition List—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xi—xvii	xi—xvii
	(SH) 1 (following Table of Contents)
(15.09) 99	(15.09) 99, (15.09) 100
(15.16) 155—(15.16) 158	(15.16) 155, (15.16) 156
(15.20) 167	(15.20) 167, (15.20) 168
(15.24) 169	(15.24) 169, (15.24) 170
(15.44) 205	(15.44) 205
(15.45) 207—(15.45) 209	(15.45) 207—(15.45) 209
	VOLUME II
xi—xvii	xi—xvii
(SR) 1—(SR 5)	(SR) 1—(SR) 5
(O) 101, (O) 102	(O) 101, (O) 102
(R) 119, (R) 120	(R) 119, (R) 120
(CCTO) 1, (CCTO) 2	(CCTO) 1, (CCTO) 2
CDi:17, CDI:18	CDi:17—CDi:18.1
CDi:29, CDi:30	CDi:29, CDi:30
CDi:41, CDi:42	CDi:41, CDi:42
CDi:65, CDi:66	CDi:65, CDi:66
CDi:103—CDi:106	CDi:103—CDi:106
CDi:323, CDi:324	CDi:323, CDi:324
CDi:333—CDi:336	CDi:333—CDi:336
CDi:359, CDi:360	CDi:359—CDi:360.1
CDi:365, CDi:366	CDi:365, CDi:366
CDi:409, CDi:410	CDi:409, CDi:410
CDi:457—CDi:464	CDi:457—CDi:464

Remove Old Pages	*Insert New Pages*
CDi:471, CDi:472	CDi:471, CDi:472
CDi:485, CDi:486	CDi:485—CDi:486.1

Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

Municipal Code Corporation
PO Box 2235 Tallahassee, FL 32316
800-262-2633 • Fax: 850-575-8852
Municode.com • info@municode.com

HENDERSON, NEVADA

MUNICIPAL CODE

VOLUME I

A Codification of the General Ordinances of Henderson, Nevada

---

**Beginning with Supp. No. 67,
Supplemented by Municipal Code Corporation**

Republished 2010

---

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com

P.O. Box 2235 Tallahassee, FL 32316

PREFACE

The Henderson, Nevada Municipal Code, originally published by Book Publishing Company, has been kept current by regular supplementation by Municipal Code Corporation, its successor in interest.

During original codification, the ordinances were compiled, edited and indexed by the editorial staff of Book Publishing Company under the direction of Monte V. Morris, City Attorney.

This 2010 republication includes all amendatory legislation through Ord. No. 2881, adopted November 2, 2010, and was accomplished under the supervision of Beth Tattershall, Editor.

The code is organized by subject matter under an expandable three-factor decimal numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the title, chapter, and section. Thus, Section 2.12.040 is Section .040, located in Chapter 2.12 of Title 2. In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

In parentheses following each section is a legislative history identifying the specific sources for the provisions of that section. This legislative history is complemented by an ordinance disposition table, following the text of the code, listing by number all ordinances, their subjects, and where they appear in the codification.

A subject-matter index, with complete cross-referencing, locates specific code provisions by individual section numbers.

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310
800-262-2633

HOW TO USE YOUR CODE

This code is organized to make the laws of the city as accessible as possible to city officials, city employees and private citizens. Please take a moment to familiarize yourself with some of the important elements of this code.

Numbering System

The numbering system is the backbone of a Code of Ordinances; Municipal Code Corporation uses a unique and versatile numbering structure that allows for easy expansion and amendment of this Code. It is based on three tiers, beginning with title, then chapter, and ending with section. Each part is represented in the code section number. For example, Section 2.04.010 is Section .010, in Chapter 2.04 of Title 2.

Title.

A title is a broad category under which ordinances on a related subject are compiled. This code contains about 15 to 20 titles. For example, the first title is Title 1, General Provisions, which may contain ordinances about the general penalty, code adoption and definitions. The titles in this code are separated by tabbed divider pages for quick reference. Some titles are **Reserved** for later use.

Chapter.

Chapters deal with more specific subjects, and are often derived from one ordinance. All of the chapters on a related subject are grouped in one title. The chapters are numbered so that new chapters which should logically be placed near certain existing chapters can be added at a later time without renumbering existing material. For example, Chapter 2.06, City Manager, can be added between 2.04, City Council, and Chapter 2.08, City Attorney.

Section.

Each section of the code contains substantive ordinance material. The sections are numbered by "tens" to allow for expansion of the code without renumbering.

Tables of Contents

There are many tables of contents in this code to assist in locating specific information. At the beginning of the code is the main table of contents listing each title. In addition, each title and chapter has its own table of contents listing the chapters and sections, respectively.

Ordinance History Note

At the end of each code section, you will find an "ordinance history note," which lists the underlying ordinances for that section. The ordinances are listed by number, section (if applicable) and year. (Example: (Ord. 272, § 1, 1992).)

Statutory References

The statutory references direct the code user to those portions of the state statutes that are applicable to the laws of the municipality. As the statutes are revised, these references will be updated.

Cross-Reference Table

When a code is based on an earlier codification, the cross-reference table will help users find older or "prior" code references in the new code. The cross-reference table is located near the end of the code, under the tabbed divider "Tables." This table lists the prior code section in the column labeled "Prior Code Section" and the new code section in the column labeled "Herein."

Ordinance List and Disposition Table

To find a specific ordinance in the code, turn to the section called "Tables" for the Ordinance List and Disposition Table. This very useful table tells you the status of every ordinance reviewed for inclusion in the code. The table is organized by ordinance number and provides a brief description and the disposition of the ordinance. If the ordinance is codified, the chapter (or chapters) will be indicated. (Example: (2.04, 6.12, 9.04).) If the ordinance is of a temporary nature or deals with subjects not normally codified, such as budgets, taxes, annexations or rezones, the disposition will be "(Special)." If the ordinance is for some reason omitted from the code, usually at the direction of the municipality, the disposition will be "(Not codified)." Other dispositions sometimes used are "(Tabled)," "(Pending)," "(Number Not Used)" or "(Missing)."

Index

If you are not certain where to look for a particular subject in this code, start with the index. This is an alphabetical multi-tier subject index which

uses section numbers as the reference, and cross-references where necessary. Look for the main heading of the subject you need, then the appropriate subheadings:

BUSINESS LICENSE

See also BUSINESS TAX
Fee 5.04.030
Required when 5.04.010

The index will be updated as necessary when the code text is amended.

Insertion Guide

Each supplement to the new code will be accompanied by an Insertion Guide. This guide will tell the code user the date of the most recent supplement and the last ordinance contained in that supplement. It will then list the pages that must be pulled from the code and the new pages that must be inserted. Following these instructions carefully will assure that the code is kept accurate and current. Removed pages should be kept for future reference.

Page Numbers

When originally published, this code was numbered with consecutive page numbers. As it is amended, new material may require the insertion of new pages that are numbered with hyphens. (Example: 31, 32, 32-1.) Backs of pages that are blank (in codes that are printed double-sided) are left unnumbered but the number is "reserved" for later use.

Electronic Submission

In the interests of accuracy and speed, we encourage you to submit your ordinances electronically if at all possible. We can accept most any file format, including Word, WordPerfect or text files. If you have a choice, we prefer Word, any version. You can send files to us as an e-mail attachment, by FTP, on a diskette or CD-ROM. Electronic files enable us not only to get you your code more quickly but also ensure that it is error-free. Our e-mail address is: **ords@municode.com**.

For hard copy, send two copies of all ordinances passed to:

Municipal Code Corporation
P.O. Box 2235
Tallahassee, FL 32316

Customer Service

If you have any questions about this code or our services, please contact Municipal Code Corporation at 1-800-262-2633 or:

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310

TABLE OF CONTENTS

Page

Preface v

How to Use Your Code vii

Supplement History Table ..... (SH) 1

VOLUME I

HENDERSON CITY CHARTER

CHAPTER 266, STATUTES OF NEVADA 1971

Charter ..... (C) 1

Art. I. Incorporation of City; General Powers; Boundaries; Wards and Annexations; City Offices ... (C) 5
Art. II. Legislative Department ..... (C) 11
Art. III. Executive Department ..... (C) 24
Art. IV. Judicial Department ..... (C) 26
Art. V. Elections ..... (C) 28
Art. VI. Local Improvements ..... (C) 32
Art. VII. Local Bonds and Franchises ..... (C) 33
Art. VIIA. Trusts for Furtherance of Public Functions (C) 34
Art. VIII. Revenue ..... (C) 39
Art. IX. Civil Service ..... (C) 39
Art. X. Miscellaneous Provisions ..... (C) 40

HENDERSON MUNICIPAL CODE

Title

1. General Provisions ..... (1) 1
1.01 Reserved ..... (1.01) 3
1.02 Establishment and Effect of Code ..... (1.02) 5
1.03 Definitions and Rules of Construction ..... (1.03) 7
1.04 Citations for Violations ..... (1.04) 13
1.05 Penalties and Remedies for Code Violations ... (1.05) 15

2. Administration and Personnel ..... (2) 1
2.01. Council Salaries ..... (2.01) 3
2.04. Council Meetings ..... (2.04) 5
2.05. Municipal Court Judge Salary ..... (2.05) 9
2.06. Municipal Court ..... (2.06) 11
2.08. Elections ..... (2.08) 13

Title Page

2.10. City Manager . . . . . (2.10) 16.1
2.16. Reserved . . . . . (2.16) 17
2.18. Reserved . . . . . (2.18) 19
2.20. Reserved . . . . . (2.20) 21
2.21. Reserved . . . . . (2.21) 23
2.22. Reserved . . . . . (2.22) 25
2.24. Emergency Management . . . . . (2.24) 27
2.27. Parks and Recreation . . . . . (2.27) 36.1
2.29. Ambulance Transportation Fees . . . . . (2.29) 37
2.34. Administrative Policies . . . . . (2.34) 39
2.40. Ethical Standards for Public Servants . . . . . (2.40) 41
2.42. Reserved . . . . . (2.42) 49
2.43. City Audit Function . . . . . (2.43) 50.1
2.44. City Clerk: Additional Duties and Authorizations (2.44) 51
2.47. Records Management . . . . . (2.47) 53
2.48. Reserved . . . . . (2.48) 57
2.50. City Boards and Commissions . . . . . (2.50) 59
2.52. Classification and Salary Schedule . . . . . (2.52) 63
2.56. Reserved . . . . . (2.56) 65
2.58. Reserved . . . . . (2.58) 67
2.60. Reserved . . . . . (2.60) 69
2.65. Insurance . . . . . (2.65) 71
2.70. Reserved . . . . . (2.70) 73
2.75. Reserved . . . . . (2.75) 75
2.80. Reserved . . . . . (2.80) 77
2.85. Reserved . . . . . (2.85) 81
2.90. Reserved . . . . . (2.90) 83
2.95. Reserved . . . . . (2.95) 85
2.100. Registration and Regulation of Lobbyists . . . . . (2.100) 86.3
2.110. Reserved . . . . . (2.110) 87

3. (Reserved) . . . . . (3) 1

4. Business Regulations and Licenses . . . . . (4) 1
4.03. Background Investigation and Fees . . . . . (4.03) 3
4.04. General Business License Provisions . . . . . (4.04) 7
4.05. Business License Fee Schedules . . . . . (4.05) 33
4.06. Policy and Procedure Show Cause, License Suspension, Limitation, Revocation . . . . . (4.06) 56.17
4.07. Alternative to Criminal Prosecution . . . . . (4.07) 56.31
4.08. Auctions and Auctioneers . . . . . (4.08) 57
4.12. Door-to-Door Solicitors, Peddlers and Canvassers . . . . . (4.12) 67
4.18. Alarm Systems . . . . . (4.18) 75
4.26. Reserved . . . . . (4.26) 89
4.30. Reserved . . . . . (4.30) 141

Title Page

4.32. Gambling—Regulations and Licenses ..... (4.32) 147
4.36. Liquor—Regulations and Licenses ..... (4.36) 163
4.48. Transient Lodging and Gaming Taxes ..... (4.48) 189
4.60. Teenage Dancehalls—Nightclubs ..... (4.60) 197
4.64. Pawnbrokers ..... (4.64) 205
4.68. Secondhand Dealers ..... (4.68) 213
4.72. Mobile Food Vendors ..... (4.72) 225
4.74. Reserved ..... (4.74) 231
4.75. Sidewalk and Open-Air Vendors.....(4.75) 232.1
4.80. Emergency Medical Services ..... (4.80) 237
4.84. Massage Establishments and Independent Massage Therapists .....(4.84) 266.1
4.85. Reflexology .....(4.85) 266.19
4.98. Sale and Display of Narcotic and Other Paraphernalia ..... (4.98) 267
4.100. Reserved ..... (4.100) 269
4.101. Reserved ..... (4.101) 279
4.102. Video Rental Stores ..... (4.102) 297
4.110. Sexually Oriented Businesses ..... (4.110) 299
4.115 Reserved ..... (4.115) 319
4.116 Medical Marijuana Regulations and Licenses.. (4.116) 321
4.118 Retail Marijuana Regulations and Licenses.... (4.118) 347

5. Health and Sanitation ..... (5) 1
5.04. Litter ..... (5.04) 3
5.17. Solid Waste Management..... (5.17) 7
5.20. Reserved ..... (5.20) 37
5.24. Reserved ..... (5.24) 39
5.28. Trees and Plants ..... (5.28) 53

6. Civil Service Rules..... (6) 1
6.01. General Provisions ..... (6.01) 3
6.02. Civil Service Board ..... (6.02) 9
6.03. Job Descriptions and Compensation ..... (6.03) 13
6.04. Recruitment, Assessment and Appointment.... (6.04) 15
6.05. Employment Actions ..... (6.05) 23
6.06. Performance Expectations ..... (6.06) 27
6.07. Disciplinary Actions ..... (6.07) 31
6.08. Appeals to the Civil Service Board..... (6.08) 39
6.09. Glossary ..... (6.09) 45

7. Animals ..... (7) 1
7.01. Definitions ..... (7.01) 3
7.02. Generally; Powers of Animal Protection Services ..... (7.02) 17
7.04. Pet Licensing and Permits; Fees; Appeal Process ..... (7.04) 21

Title Page

7.06. Pets General Welfare; Neglect . . . . . (7.06) 35
7.08. Nuisance. . . . . (7.08) 45
7.10. Mandatory Spaying and Neutering of Animals. . (7.10) 49
7.15. Managed Care of Community Cats . . . . . (7.15) 53
7.20. Dangerous Animals. . . . . (7.20) 59
7.25 Vicious Animals . . . . . (7.25) 67
7.30. Impoundment . . . . . (7.30) 71
7.40. Wild and Exotic Animals; Reptiles; Non-Domesticated Companion Animals; Animal Exhibitors . (7.40) 77
7.50. Rabies . . . . . (7.50) 83
7.60. Animal Handler. . . . . (7.60) 87
7.65 Mobile Animal Business . . . . . (7.65) 91
7.70. Animal Establishment. . . . . (7.70) 95
7.75. Commercial Animal Establishment . . . . . (7.75) 107
7.80. Retailers and Dealers. . . . . (7.80) 113
7.90. Enforcement Provisions. . . . . (7.90) 117

8. Public Peace and Safety . . . . . (8) 1
8.01. Police Services Fees . . . . . (8.01) 3
8.02. Crimes Against Public Peace. . . . . (8.02) 5
8.03. Reserved . . . . . (8.03) 7
8.04. Laser Pointers. . . . . (8.04) 9
8.07. Reserved . . . . . (8.07) 11
8.08. Restrictions and Curfew for Minors . . . . . (8.08) 13
8.09. Skating Where Prohibited . . . . . (8.09) 19
8.10. Special Events . . . . . (8.10) 21
8.11. Parade and Public Assembly . . . . . (8.11) 33
8.12. Contributing to Delinquency of Minors . . . . . (8.12) 47
8.28. Hotel Registers. . . . . (8.28) 49
8.32. Dangerous Fireworks . . . . . (8.32) 51
8.36. Fires . . . . . (8.36) 53
8.37. Camping and Similar Activities . . . . . (8.37) 55
8.38. Reserved . . . . . (8.38) 59
8.40. Liquor Violations. . . . . (8.40) 61
8.49. Reserved . . . . . (8.49) 63
8.60. Prostitution and Indecent Conduct. . . . . (8.60) 65
8.64. Reserved . . . . . (8.64) 71
8.68. Reserved . . . . . (8.68) 73
8.72. Reserved . . . . . (8.72) 75
8.76. Reserved . . . . . (8.76) 77
8.84. Noise Control . . . . . (8.84) 79
8.85. Graffiti . . . . . (8.85) 83
8.90. Stink Bombs . . . . . (8.90) 87
8.94. Aggressive Solicitation. . . . . (8.94) 89
8.98. Weapons and Missiles . . . . . (8.98) 93

Title Page

8.99. Reserved ..... (8.99) 97

9. (Reserved) ..... (9) 1

10. Vehicles and Traffic ..... (10) 1
10.02. Nevada Traffic Manual Adopted ..... (10.02) 3
10.04. Reserved ..... (10.04) 5
10.06. Parking Regulations Adopted ..... (10.06) 7
10.08. Definitions ..... (10.08) 9
10.12. Reserved ..... (10.12) 11
10.16. Enforcement, Obedience and Effect ..... (10.16) 13
10.18. Reserved ..... (10.18) 19
10.20. Traffic Control Devices ..... (10.20) 31
10.23. Reserved ..... (10.23) 33
10.24. Speed Regulations ..... (10.24) 35
10.28. Reckless and Negligent Driving ..... (10.28) 45
10.32. Reserved ..... (10.32) 47
10.34. Charitable Solicitations While Standing on Median Strip or Sidewalk ..... (10.34) 49
10.36. Intersections ..... (10.36) 53
10.40. Turning, Starting and Stopping—Signals ..... (10.40) 55
10.44. Miscellaneous Driving Rules ..... (10.44) 57
10.48. Pedestrians' Rights and Duties ..... (10.48) 59
10.54. Reserved ..... (10.54) 75
10.58. Off-Road Use of Motor Vehicles ..... (10.58) 77
10.59. Excessive Vehicle Noises ..... (10.59) 79
10.60. Truck Routes ..... (10.60) 81
10.62. Operation of Golf Carts on Streets ..... (10.62) 87
10.64. Penalties and Procedure on Arrest ..... (10.64) 89

11. Streets and Sidewalks ..... (11) 1
11.01. Standard Specifications for Public Improvements ..... (11.01) 3
11.02. Construction and Excavation Within Right-of-Way ..... (11.02) 5
11.03. Obstructions ..... (11.03) 9
11.04. Barricades ..... (11.04) 13
11.05. Sidewalks and Right-of-Way ..... (11.05) 15
11.06. Construction, Maintenance and Repair of Sidewalks, Transition Strips, and Medians ..... (11.06) 19
11.07. Fees—Authorization and Payment ..... (11.07) 25
11.08. Fees for Closure of Right-of-Way ..... (11.08) 27
11.09. Penalty for Violation of Title ..... (11.09) 29
11.10. Bonding ..... (11.10) 35

12. (Reserved) ..... (12) 1

Title Page

13. Stormwater Regulations ..... (13) 1
13.04. Stormwater Regulations ..... (13.04) 3

14. Utility Services ..... (14) 1
14.01. Definitions ..... (14.01) 3
14.02. Water Commitment and Allocation Regulations (14.02) 11
14.03. Water Regulations..... (14.03) 19
14.04. Wastewater Regulations..... (14.04) 29
14.05. Reclaimed Water Regulations..... (14.05) 39
14.06. Raw Water Regulations..... (14.06) 47
14.08. Cross-Connection Control Regulations ..... (14.08) 51
14.09. Pretreatment Regulations..... (14.09) 57
14.12. Electricity and Natural Gas Utilities..... (14.12) 75
14.14. Conservation..... (14.14) 77
14.16. Refunding Regulations ..... (14.16) 87
14.17. Billing Regulations ..... (14.17) 93
14.18. Fees, Rates and Charges ..... (14.18) 99
14.21. Compliance..... (14.21) 115

15. Buildings and Construction ..... (15) 1
15.01. Building and Fire Safety Administrative Code of Henderson, Nevada..... (15.01) 3
15.02. Development Services Schedule of Fees..... (15.02) 73
15.08. Building Code..... (15.08) 75
15.09. Residential Building Code ..... (15.09) 79
15.10. Uniform Code for Dangerous Buildings Abatement..... (15.10) 81
15.11. Existing Building Code..... (15.11) 83
15.12. Property Maintenance Code ..... (15.12) 103
15.13. Abandoned Residential Real Property Registry .....(15.13) 154.1
15.16. Electrical Code..... (15.16) 155
15.18. Undergrounding Utility Facilities..... (15.18) 159
15.20. Plumbing Code ..... (15.20) 165
15.24. Mechanical Code..... (15.24) 167
15.30. Wildland-Urban Interface Code ..... (15.30) 171
15.32. Fire Code..... (15.32) 173
15.33. Blasting Regulations ..... (15.33) 195
15.40. Fireplaces ..... (15.40) 219
15.44. Swimming Pool Code..... (15.44) 221
15.45. Energy Conservation Code ..... (15.45) 225
15.50. Flood Control and Control of Drainage ..... (15.50) 227
15.52. Uniform Standard Specifications for Public Works Construction ..... (15.52) 229
15.56. Noise Level Reduction Standards..... (15.56) 231
15.60. Temporary Dwelling Units..... (15.60) 243

Title Page

15.70. Uniform Design and Construction Standards (UDACS) for Water Distribution Systems ..... (15.70) 247
15.75. Design and Construction Standards for Wastewater Collection Systems ..... (15.75) 249
15.80 Baby Changing Tables in Buildings Accessible to the Public ..... (15.80) 251

16. Trailer Parks ..... (16) 1
16.04. Title—Penalty ..... (16.04) 3
16.08. Definitions ..... (16.08) 5
16.12. Permits ..... (16.12) 9
16.16. Operation and Maintenance ..... (16.16) 11
16.20. Trailer Parks and Sites—Cabanas and Ramadas ..... (16.20) 19
16.24. Trailer Estate On-Site Improvements ..... (16.24) 23

17. Right-of-Way Management—Communications Facilities. (17) 1
17.01 Definitions ..... (17.01) 3
17.02 General Provisions. ..... (17.02) 9
17.03 Fees ..... (17.03) 19

18. Community Development Fees ..... (18) 1
18.01. Community Development Fee Schedules. ..... (18.01) 3

VOLUME II

19. Development Code ..... (19) 1
19.01. Development Code (Zoning) ..... (19.01) 3

Statutory References ..... (SR) 1

Ordinance List ..... (O) 1

Resolution List ..... (R) 1

Code Comparative Table and Disposition List—Ordinances... (CCTO) 1

Charter Index ..... (CHTi) 1

Code Index ..... (CDi) 1

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

By adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2884	12- 7-2010	Omitted	1
2885	12- 7-2010	Included	1
2886	12- 7-2010	Included	1
2887	12- 7-2010	Included	1
2888	12- 7-2010	Included	1
2889	12- 7-2010	Included	1
2890	12- 7-2010	Included	1
3968 (Res.)	12- 7-2010	Included	1
3969 (Res.)	12- 7-2010	Included	1
2891	1- 4-2011	Omitted	2
2892	1- 4-2011	Omitted	2
2893	1- 4-2011	Omitted	2
2894	1- 4-2011	Omitted	2
2895	1- 4-2011	Omitted	2
2896	1- 4-2011	Omitted	2
2897	1- 4-2011	Omitted	2
3970 (Res.)	1- 4-2011	Included	2
3971 (Res.)	1- 4-2011	Included	2
3972 (Res.)	1- 4-2011	Included	2
2898	1-18-2011	Included	2
2899	1-18-2011	Included	2
2900	1-18-2011	Omitted	2
2901	1-18-2011	Omitted	2
2902	1-18-2011	Omitted	2
3973 (Res.)	2-15-2011	Included	2
3974 (Res.)	2-15-2011	Included	2
3975 (Res.)	2-15-2011	Included	2
3976 (Res.)	2-15-2011	Included	2

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2903	3- 1-2011	Pending	
2904	3- 1-2011	Omitted	3
2905	3- 1-2011	Omitted	3
2906	3- 1-2011	Included	3
2907	3- 1-2011	Included	3
2908	3- 1-2011	Included	3
3977 (Res.)	3- 1-2011	Included	3
2909	3-15-2011	Included	3
2910	3-15-2011	Included	3
3978 (Res.)	3-15-2011	Included	3
3979 (Res.)	3-15-2011	Included	3
2911	4-12-2011	Omitted	4
3980 (Res.)	4-19-2011	Included	4
2912	5- 3-2011	Omitted	4
2913	5- 3-2011	Omitted	4
2914	5- 3-2011	Omitted	4
2915	5- 3-2011	Included	4
2916	5- 3-2011	Included	4
2917	5- 3-2011	Included	4
3981 (Res.)	5- 3-2011	Included	4
3982 (Res.)	5- 3-2011	Included	4
3983 (Res.)	5- 3-2011	Included	4
2918	5-17-2011	Omitted	5
3984 (Res.)	6-14-2011	Included	5
3985 (Res.)	6-14-2011	Included	5
3986 (Res.)	6-14-2011	Included	5
3987 (Res.)	6-14-2011	Included	5
3988 (Res.)	6-21-2011	Included	5
3989 (Res.)	6-21-2011	Included	5
2919	7- 5-2011	Omitted	5
2920	7- 5-2011	Omitted	5
2921	7- 5-2011	Omitted	5
3990 (Res.)	7- 5-2011	Included	5
3991 (Res.)	7- 5-2011	Included	5
3992 (Res.)	7- 5-2011	Included	5
3993 (Res.)	7- 5-2011	Included	5
2922	7-19-2011	Omitted	5
2923	7-19-2011	Omitted	5
3994 (Res.)	7-19-2011	Included	5
3995 (Res.)	7-19-2011	Included	5
2924	8- 2-2011	Omitted	6
2925	8- 2-2011	Omitted	6
3996 (Res.)	8- 2-2011	Included	6
3997 (Res.)	8- 2-2011	Included	6

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2926	8-16-2011	Omitted	6
2927	8-16-2011	Omitted	6
2928	8-16-2011	Omitted	6
2929	8-16-2011	Omitted	6
3998 (Res.)	9- 6-2011	Included	6
3999 (Res.)	9- 6-2011	Included	6
4000 (Res.)	9- 6-2011	Included	6
2930	9-20-2011	Omitted	6
2931	9-20-2011	Omitted	6
2932	9-20-2011	Included	6
2933	10- 4-2011	Included	7
4001 (Res.)	10- 4-2011	Included	7
4002 (Res.)	10- 4-2011	Included	7
2934	10-18-2011	Omitted	7
2936	10-18-2011	Omitted	7
2938	10-18-2011	Omitted	7
4003 (Res.)	10-18-2011	Included	7
4004 (Res.)	10-18-2011	Included	7
4005 (Res.)	10-18-2011	Included	7
4006 (Res.)	10-18-2011	Included	7
2939	11- 2-2011	Included	7
2940	11- 2-2011	Included	7
2941	11- 2-2011	Omitted	7
4007 (Res.)	11- 2-2011	Included	7
4008 (Res.)	11- 2-2011	Included	7
4009 (Res.)	11- 2-2011	Included	7
2942	11-15-2011	Included	7
2943	11-15-2011	Omitted	7
2944	11-15-2011	Omitted	7
4010 (Res.)	11-15-2011	Included	7
4011 (Res.)	11-15-2011	Included	7
2945	12- 6-2011	Omitted	8
2946	12- 6-2011	Omitted	8
2947	12- 6-2011	Included	8
4012 (Res.)	12- 6-2011	Included	8
4013 (Res.)	12- 6-2011	Included	8
4014 (Res.)	12- 6-2011	Included	8
2948	12-20-2011	Omitted	8
2949	12-20-2011	Omitted	8
2950	12-20-2011	Included	8
2951	12-20-2011	Included	8
4015 (Res.)	12-20-2011	Included	8
2952	1- 3-2012	Included	8

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2953	1- 3-2012	Included	8
4016 (Res.)	1- 3-2012	Included	8
4017 (Res.)	1- 3-2012	Included	8
4018 (Res.)	1- 3-2012	Included	8
4019 (Res.)	1- 3-2012	Included	8
4020 (Res.)	1- 3-2012	Included	8
2954	1-17-2012	Omitted	8
2955	1-17-2012	Included	8
2956	1-17-2012	Omitted	8
2957	2- 7-2012	Omitted	9
4021 (Res.)	2- 7-2012	Included	9
4022 (Res.)	2- 7-2012	Included	9
4023 (Res.)	2- 7-2012	Included	9
4024 (Res.)	2- 7-2012	Included	9
4025 (Res.)	2- 7-2012	Included	9
2958	2-21-2012	Omitted	9
4026 (Res.)	2-21-2012	Included	9
2959	3- 6-2012	Included	9
4027 (Res.)	3- 6-2012	Included	9
4028 (Res.)	3- 6-2012	Included	9
4029 (Res.)	3- 6-2012	Included	9
4030 (Res.)	3- 6-2012	Included	9
2960	3-20-2012	Omitted	9
4031 (Res.)	3-20-2012	Included	9
4032 (Res.)	3-20-2012	Included	9
4033 (Res.)	3-20-2012	Included	9
2961	4- 3-2012	Included	9
4034 (Res.)	4- 3-2012	Included	9
2962	4-17-2012	Omitted	10
2963	4-17-2012	Omitted	10
2964	4-17-2012	Omitted	10
4035 (Res.)	4-17-2012	Included	10
4036 (Res.)	4-17-2012	Included	10
4037 (Res.)	4-17-2012	Included	10
4038 (Res.)	5- 1-2012	Included	10
4039 (Res.)	5- 1-2012	Included	10
4040 (Res.)	5- 1-2012	Included	10
4041 (Res.)	5- 1-2012	Included	10
2965	5-15-2012	Omitted	10
4043 (Res.)	5-15-2012	Included	10
4042 (Res.)	6- 5-2012	Included	11
2966	6- 5-2012	Omitted	11
2967	6-19-2012	Omitted	11
2968	6-19-2012	Included	11

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2969	6-19-2012	Included	11
4044 (Res.)	6-19-2012	Included	11
4045 (Res.)	7- 3-2012	Included	12
4046 (Res.)	7- 3-2012	Included	12
4047 (Res.)	7- 3-2012	Included	12
2970	7-17-2012	Omitted	12
2971	7-17-2012	Omitted	12
2972	7-17-2012	Omitted	12
4048 (Res.)	8- 7-2012	Included	12
4049 (Res.)	8- 7-2012	Included	12
4050 (Res.)	8- 7-2012	Included	12
4051 (Res.)	8- 7-2012	Included	12
4052 (Res.)	8- 7-2012	Included	12
2973	8-21-2012	Omitted	12
4053 (Res.)	8-21-2012	Included	12
4054 (Res.)	9- 4-2012	Included	13
4055 (Res.)	9- 4-2012	Included	13
4056 (Res.)	9- 4-2012	Included	13
4057 (Res.)	9- 4-2012	Included	13
2974	9-18-2012	Omitted	13
2975	9-18-2012	Omitted	13
2976	9-18-2012	Omitted	13
4058 (Res.)	9-18-2012	Included	13
4059 (Res.)	10- 2-2012	Included	13
4060 (Res.)	10- 2-2012	Included	13
4061 (Res.)	10- 2-2012	Included	13
4062 (Res.)	10- 2-2012	Included	13
4063 (Res.)	10- 2-2012	Included	13
2977	10-16-2012	Omitted	13
2978	10-16-2012	Omitted	13
2979	10-16-2012	Omitted	13
4064 (Res.)	10-16-2012	Included	13
2980	11- 6-2012	Omitted	14
2981	11-20-2012	Omitted	14
2982	12- 4-2012	Included	14
2983	12- 4-2012	Omitted	14
2984	12- 4-2012	Omitted	14
4065 (Res.)	12- 4-2012	Included	14
4066 (Res.)	12- 4-2012	Included	14
4067 (Res.)	12- 4-2012	Included	14
2985	12-18-2012	Omitted	14
2986	12-18-2012	Omitted	14
2987	12-18-2012	Omitted	14
4068 (Res.)	12-18-2012	Included	14

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
2988	1- 8-2013	Omitted	14
4069 (Res.)	1- 8-2013	Included	14
2989	2- 5-2013	Omitted	15
2990	2- 5-2013	Omitted	15
2991	2- 5-2013	Omitted	15
2992	2- 5-2013	Omitted	15
2993	2- 5-2013	Omitted	15
4070 (Res.)	2- 5-2013	Included	15
4071 (Res.)	2- 5-2013	Included	15
4072 (Res.)	2- 5-2013	Included	15
2994	2-19-2013	Omitted	15
2995	2-19-2013	Omitted	15
2996	2-19-2013	Omitted	15
2997	2-19-2013	Omitted	15
4073 (Res.)	2-19-2013	Included	15
4074 (Res.)	2-19-2013	Included	15
4075 (Res.)	3- 5-2013	Included	15
4076 (Res.)	3- 5-2013	Included	15
4077 (Res.)	3- 5-2013	Included	15
4078 (Res.)	3- 5-2013	Included	15
2998	3-19-2013	Omitted	15
2999	3-19-2013	Omitted	15
4079 (Res.)	3-19-2013	Included	15
3000	4- 9-2013	Omitted	15
3001	4- 9-2013	Included	15
4080 (Res.)	4- 9-2013	Included	15
4081 (Res.)	4-16-2013	Included	15
3002	5- 7-2013	Omitted	16
3003	5- 7-2013	Omitted	16
3004	5-21-2013	Omitted	16
3005	5-21-2013	Omitted	16
3006	5-21-2013	Omitted	16
3007	5-21-2013	Included	16
3008	5-21-2013	Included	16
3009	5-21-2013	Included	16
3010	5-21-2013	Included	16
3011	5-21-2013	Included	16
3012	5-21-2013	Included	16
3013	5-21-2013	Included	16
3014	5-21-2013	Included	16
3015	5-21-2013	Included	16
3016	6-11-2013	Included	16
3017	6-11-2013	Included	16
3018	6-11-2013	Included	16

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3019	6-11-2013	Included	16
3020	6-11-2013	Included	16
3021	6-11-2013	Included	16
3022	6-11-2013	Included	16
3023	6-11-2013	Included	16
3024	6-11-2013	Included	16
3025	6-11-2013	Included	16
3026	6-11-2013	Included	16
3027	6-11-2013	Omitted	16
4082 (Res.)	6-11-2013	Included	16
4083 (Res.)	6-11-2013	Included	16
4084 (Res.)	6-11-2013	Included	16
3028	6-18-2013	Omitted	16
4085 (Res.)	6-18-2013	Included	16
3029	7- 2-2013	Omitted	16
3030	7- 2-2013	Included	16
3031	7- 2-2013	Included	16
3032	7- 2-2013	Included	16
3033	7- 2-2013	Included	16
3034	7- 2-2013	Omitted	16
3035	7- 2-2013	Omitted	16
3036	7- 2-2013	Omitted	16
3037	7- 2-2013	Omitted	16
3038	7- 2-2013	Included	16
4086 (Res.)	7- 2-2013	Included	16
3039	7-16-2013	Omitted	16
4088 (Res.)	7-16-2013	Included	16
3040	8- 6-2013	Included	17
3041	8- 6-2013	Included	17
3042	8- 6-2013	Included	17
3043	8- 6-2013	Included	17
3044	8- 6-2013	Included	17
3045	8- 6-2013	Included	17
3046	8- 6-2013	Omitted	17
3047	8- 6-2013	Included	17
3048	8- 6-2013	Included	17
3049	8- 6-2013	Omitted	17
3050	8-20-2013	Included	17
3051	8-20-2013	Omitted	17
3052	8-20-2013	Omitted	17
3053	8-20-2013	Omitted	17
3054	8-20-2013	Omitted	17
3055	8-20-2013	Omitted	17
3056	9- 3-2013	Included	17

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3057	9- 3-2013	Included	17
3058	9- 3-2013	Included	17
4092 (Res.)	9- 3-2013	Included	17
3059	9-17-2013	Omitted	17
3060	9-17-2013	Included	17
3061	9-17-2013	Included	17
3062	9-17-2013	Included	17
3063	9-17-2013	Included	17
3064	9-17-2013	Included	17
3065	9-17-2013	Included	17
3066	9-17-2013	Included	17
3067	9-17-2013	Included	17
4090 (Res.)	9-17-2013	Included	17
4091 (Res.)	9-17-2013	Included	17
4093 (Res.)	9-17-2013	Included	17
4094 (Res.)	9-17-2013	Included	17
3068	10- 1-2013	Included	17
3069	10- 1-2013	Included	17
4096 (Res.)	10- 1-2013	Included	17
4097 (Res.)	10- 1-2013	Included	17
4099 (Res.)	10- 1-2013	Included	17
4100 (Res.)	10- 1-2013	Included	17
4101 (Res.)	10- 1-2013	Included	17
3070	10-15-2013	Omitted	17
3071	10-15-2013	Omitted	17
3072	10-15-2013	Omitted	17
3073	10-15-2013	Omitted	17
3074	10-15-2013	Omitted	17
3075	10-15-2013	Included	17
4095 (Res.)	10-15-2013	Included	17
4098 (Res.)	10-15-2013	Included	17
4102 (Res.)	10-15-2013	Included	17
4103 (Res.)	10-15-2013	Included	17
3076	11- 5-2013	Omitted	18
3077	11- 5-2013	Included	18
3078	11- 5-2013	Omitted	18
3079	11- 5-2013	Included	18
3080	11- 5-2013	Included	18
3081	11- 5-2013	Included	18
3082	11- 5-2013	Included	18
3083	11- 5-2013	Included	18
3084	11- 5-2013	Included	18
4104 (Res.)	11- 5-2013	Included	18
4105 (Res.)	11- 5-2013	Included	18

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4106 (Res.)	11- 5-2013	Included	18
3085	11-19-2013	Omitted	18
3086	11-19-2013	Omitted	18
3087	11-19-2013	Omitted	18
3088	11-19-2013	Omitted	18
3089	11-22-2013	Omitted	18
3090	11-19-2013	Omitted	18
3091	11-19-2013	Omitted	18
3092	11-19-2013	Omitted	18
3093	11-19-2013	Omitted	18
4107 (Res.)	11-19-2013	Included	18
4108 (Res.)	11-19-2013	Included	18
3094	12- 3-2013	Included	18
4109 (Res.)	12- 3-2013	Included	18
4110 (Res.)	12- 3-2013	Included	18
4111 (Res.)	12- 3-2013	Included	18
4112 (Res.)	12- 3-2013	Included	18
4113 (Res.)	12- 3-2013	Included	18
4114 (Res.)	12- 3-2013	Included	18
3095	12-17-2013	Omitted	18
3096	12-17-2013	Omitted	18
3097	12-17-2013	Omitted	18
3098	12-17-2013	Omitted	18
3099	12-17-2013	Omitted	18
3100	12-17-2013	Omitted	18
3101	12-17-2013	Omitted	18
3102	12-17-2013	Omitted	18
3103	12-17-2013	Omitted	18
3104	12-17-2013	Included	18
3105	12-17-2013	Included	18
3106	12-17-2013	Omitted	18
4115 (Res.)	12-17-2013	Included	18
4116 (Res.)	12-17-2013	Included	18
3107	1- 7-2014	Included	18
3108	1- 7-2014	Included	18
3109	1- 7-2014	Included	18
3110	1- 7-2014	Included	18
3111	1- 7-2014	Omitted	18
4118 (Res.)	1- 7-2014	Included	18
4119 (Res.)	1- 7-2014	Included	18
3112	1-21-2014	Omitted	18
3113	1-21-2014	Included	18
3114	1-21-2014	Included	18
3115	1-21-2014	Included	18

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3116	1-21-2014	Included	18
3117	1-21-2014	Included	18
3118	1-21-2014	Included	18
3119	1-21-2014	Included	18
3120	1-21-2014	Omitted	18
4120 (Res.)	1-21-2014	Included	18
3121	2- 4-2014	Included	19
4121 (Res.)	2- 4-2014	Included	19
3122	2-18-2014	Included	19
3123	2-18-2014	Included	19
3124	2-18-2014	Omitted	19
3125	2-18-2014	Omitted	19
3126	2-18-2014	Omitted	19
4122 (Res.)	2-18-2014	Included	19
4123 (Res.)	2-18-2014	Included	19
4124 (Res.)	2-18-2014	Included	19
3127	3- 4-2014	Included	19
4125 (Res.)	3- 4-2014	Included	19
4126 (Res.)	3- 4-2014	Included	19
3128	3-18-2014	Omitted	19
3129	3-18-2014	Omitted	19
4127 (Res.)	3-18-2014	Included	19
3130	4- 1-2014	Omitted	19
3131	4- 1-2014	Included	19
3132	4- 1-2014	Included	19
3133	4- 1-2014	Included	19
3134	4- 1-2014	Included	19
3135	4- 1-2014	Included	19
3136	4- 1-2014	Included	19
3137	4- 1-2014	Included	19
3138	4- 1-2014	Included	19
3139	4- 1-2014	Included	19
3140	4- 1-2014	Included	19
3141	4- 1-2014	Included	19
3142	4- 1-2014	Included	19
3143	4- 1-2014	Included	19
3144	4- 1-2014	Omitted	19
4128 (Res.)	4- 1-2014	Included	19
4129 (Res.)	4- 1-2014	Included	19
4130 (Res.)	4- 1-2014	Included	19
4131 (Res.)	4- 1-2014	Included	19
4132 (Res.)	4- 1-2014	Included	19
3145	4-15-2014	Included	19
3146	4-15-2014	Included	19

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3147	4-15-2014	Included	19
3148	4-15-2014	Included	19
3149	4-15-2014	Included	19
3150	4-15-2014	Included	19
3151	4-15-2014	Included	19
3152	4-15-2014	Included	19
3153	4-15-2014	Omitted	19
3154	4-15-2014	Omitted	19
4133 (Res.)	4-15-2014	Included	19
3155	5- 6-2014	Included	20
3156	5- 6-2014	Included	20
3157	5- 6-2014	Included	20
3158	5- 6-2014	Included	20
3159	5- 6-2014	Included	20
4134 (Res.)	5- 6-2014	Included	20
3160	5-20-2014	Omitted	20
3161	5-20-2014	Included	20
3162	5-20-2014	Included	20
3163	5-20-2014	Included	20
3164	5-20-2014	Included	20
3165	5-20-2014	Omitted	20
3166	5-20-2014	Omitted	20
4135 (Res.)	5-20-2014	Included	20
3167	6- 3-2014	Included	20
3168	6- 3-2014	Included	20
3169	6- 3-2014	Included	20
3170	6- 3-2014	Included	20
3171	6- 3-2014	Included	20
3172	6- 3-2014	Included	20
4136 (Res.)	6- 3-2014	Included	20
4137 (Res.)	6- 3-2014	Included	20
4138 (Res.)	6- 3-2014	Included	20
4139 (Res.)	6- 3-2014	Included	20
3173	6-17-2014	Included	20
3174	6-17-2014	Included	20
3175	6-17-2014	Included	20
3176	6-17-2014	Included	20
3177	6-17-2014	Included	20
3178	6-17-2014	Omitted	20
3179	6-17-2014	Omitted	20
3180	6-17-2014	Omitted	20
3181	6-17-2014	Omitted	20
3182	6-17-2014	Omitted	20
3183	6-17-2014	Omitted	20

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4140 (Res.)	6-17-2014	Included	20
4141 (Res.)	6-17-2014	Included	20
3184	7- 1-2014	Omitted	20
3185	7- 1-2014	Omitted	20
3186	7- 1-2014	Omitted	20
3187	7- 1-2014	Included	20
3188	7- 1-2014	Included	20
3189	7- 1-2014	Included	20
3190	7- 1-2014	Included	20
3191	7- 1-2014	Included	20
4142 (Res.)	7- 1-2014	Included	20
4143 (Res.)	7- 1-2014	Included	20
3192	7-15-2014	Omitted	20
3193	7-15-2014	Omitted	20
4144 (Res.)	7-15-2014	Included	20
4145 (Res.)	7-29-2014	Included	21
3194	8- 5-2014	Included	21
3195	8-19-2014	Included	21
3196	8-19-2014	Included	21
3197	8-19-2014	Included	21
3198	8-19-2014	Omitted	21
3199	8-19-2014	Omitted	21
3200	8-19-2014	Omitted	21
3201	8-19-2014	Omitted	21
3202	8-19-2014	Omitted	21
4146 (Res.)	8-19-2014	Included	21
4147 (Res.)	8-19-2014	Included	21
3203	9- 2-2014	Omitted	21
3204	9- 2-2014	Omitted	21
3205	9- 2-2014	Included	21
3206	9- 2-2014	Included	21
3207	9- 2-2014	Included	21
3208	9- 2-2014	Included	21
3209	9- 2-2014	Included	21
3210	9- 2-2014	Included	21
3211	9- 2-2014	Included	21
3212	9- 2-2014	Included	21
3213	9- 2-2014	Included	21
3214	9- 2-2014	Included	21
3215	9- 2-2014	Included	21
4148 (Res.)	9- 9-2014	Included	21
4149 (Res.)	9- 9-2014	Included	21
4150 (Res.)	9- 9-2014	Included	21
4151 (Res.)	9- 9-2014	Included	21

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4152 (Res.)		Skipped	
3216	10- 7-2014	Omitted	21
3217	10- 7-2014	Omitted	21
3218	10- 7-2014	Omitted	21
3219	10- 7-2014	Omitted	21
3220	10- 7-2014	Omitted	21
3221	10- 7-2014	Included	21
4153 (Res.)	10- 7-2014	Included	21
4154 (Res.)	10- 7-2014	Included	21
4155 (Res.)	10- 7-2014	Included	21
4156 (Res.)	10- 7-2014	Included	21
4157 (Res.)	10- 7-2014	Included	21
3222	10-21-2014	Omitted	21
3223	10-21-2014	Omitted	21
3224	10-21-2014	Omitted	21
3225	10-21-2014	Omitted	21
3226	10-21-2014	Omitted	21
3227	10-21-2014	Included	21
3228	10-21-2014	Included	21
3229	11- 4-2014	Included	22
4158 (Res.)	11- 4-2014	Included	22
4159 (Res.)	11- 4-2014	Included	22
4160 (Res.)	11- 4-2014	Included	22
4161 (Res.)	11- 4-2014	Included	22
3230	11-18-2014	Omitted	22
3231	11-18-2014	Omitted	22
3232	11-18-2014	Omitted	22
3233	11-18-2014	Omitted	22
3234	11-18-2014	Included	22
3235	11-18-2014	Included	22
3236	12- 2-2014	Included	22
4162 (Res.)	12- 2-2014	Included	22
4163 (Res.)	12- 2-2014	Included	22
4164 (Res.)	12- 2-2014	Included	22
4165 (Res.)	12- 2-2014	Included	22
4166 (Res.)	12- 2-2014	Included	22
4167 (Res.)	12- 2-2014	Included	22
4168 (Res.)	12- 2-2014	Included	22
4169 (Res.)	12- 2-2014	Included	22
3237	12-16-2014	Omitted	22
3238	12-16-2014	Omitted	22
3239	12-16-2014	Omitted	22
3240	12-16-2014	Omitted	22
4170 (Res.)	12-16-2014	Included	22

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4171 (Res.)	12-16-2014	Included	22
3241	1- 6-2015	Omitted	22
3242	1- 6-2015	Included	22
3243	1- 6-2015	Included	22
3244	1- 6-2015	Included	22
3245	1- 6-2015	Included	22
3246	1- 6-2015	Included	22
4172 (Res.)	1- 6-2015	Included	22
4173 (Res.)	1- 6-2015	Included	22
3247	1-20-2015	Omitted	22
3248	1-20-2015	Omitted	22
3249	1-20-2015	Omitted	22
3250	1-20-2015	Omitted	22
3251	1-20-2015	Omitted	22
3252	2- 3-2015	Omitted	23
3253	2- 3-2015	Included	23
4174 (Res.)	2- 3-2015	Included	23
4175 (Res.)	2- 3-2015	Included	23
4176 (Res.)	2- 3-2015	Included	23
3254	2-17-2015	Omitted	23
3255	2-17-2015	Omitted	23
3256	2-17-2015	Omitted	23
3257	2-17-2015	Omitted	23
3258	2-17-2015	Omitted	23
3259	2-17-2015	Omitted	23
3260	3- 3-2015	Omitted	23
4177 (Res.)	3- 3-2015	Included	23
4178 (Res.)	4-14-2015	Included	23
4179 (Res.)	4-14-2015	Included	23
4180 (Res.)	4-14-2015	Included	23
3261	5- 5-2015	Omitted	24
3262	5- 5-2015	Omitted	24
3263	5-19-2015	Omitted	24
3264	5-19-2015	Omitted	24
3265	5-19-2015	Omitted	24
3266	5-19-2015	Omitted	24
3267	5-19-2015	Included	24
3268	5-19-2015	Included	24
4181 (Res.)	5-19-2015	Included	24
4182 (Res.)	5-19-2015	Included	24
4183 (Res.)	5-19-2015	Included	24
4184 (Res.)	5-19-2015	Included	24
4185 (Res.)	5-19-2015	Included	24
4186 (Res.)	5-19-2015	Included	24

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4187 (Res.)	5-19-2015	Included	24
4188 (Res.)	5-19-2015	Included	24
4189 (Res.)	5-19-2015	Included	24
3269	6- 2-2015	Omitted	24
3270	6- 2-2015	Omitted	24
3271	6- 2-2015	Omitted	24
4190 (Res.)	6- 2-2015	Included	24
3272	6-16-2015	Omitted	24
3273	6-16-2015	Omitted	24
3274	6-16-2015	Omitted	24
4191 (Res.)	6-16-2015	Included	24
3275	7- 7-2015	Omitted	24
4192 (Res.)	7- 7-2015	Included	24
4193 (Res.)	7- 7-2015	Included	24
3276	7-21-2015	Included	24
3277	7-21-2015	Omitted	24
3278	7-21-2015	Omitted	24
4194 (Res.)	7-21-2015	Included	24
4195 (Res.)	7-21-2015	Included	24
3279	8- 4-2015	Included	25
4196 (Res.)	8- 4-2015	Included	25
4197 (Res.)	8- 4-2015	Included	25
3280	8-18-2015	Omitted	25
3281	8-18-2015	Omitted	25
3282	9- 1-2015	Omitted	25
4198 (Res.)	9- 1-2015	Included	25
4199 (Res.)	9- 1-2015	Included	25
3283	9-15-2015	Omitted	25
3284	9-15-2015	Omitted	25
3285	9-15-2015	Omitted	25
3286	9-15-2015	Omitted	25
3287	9-15-2015	Omitted	25
3288	9-15-2015	Omitted	25
3289	10- 6-2015	Included	25
3290	10- 6-2015	Included	25
3291	10- 6-2015	Included	25
3292	10- 6-2015	Included	25
4200 (Res.)	10- 6-2015	Included	25
4201 (Res.)	10- 6-2015	Included	25
3293	10-20-2015	Omitted	25
3294	10-20-2015	Omitted	25
3295	10-20-2015	Omitted	25
3296	10-20-2015	Omitted	25
3297	10-20-2015	Omitted	25

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3298	10-20-2015	Omitted	25
3299	10-20-2015	Omitted	25
3300	10-20-2015	Omitted	25
3301	10-20-2015	Included	25
3302	10-20-2015	Included	25
3303	10-20-2015	Included	25
3304	10-20-2015	Included	25
4202 (Res.)	10-20-2015	Included	25
3305	11- 3-2015	Included	26
3306	11- 3-2015	Included	26
3307	11- 3-2015	Included	26
4204 (Res.)	11- 3-2015	Included	26
4205 (Res.)	11- 3-2015	Included	26
4206 (Res.)	11- 3-2015	Included	26
3308	11-17-2015	Omitted	26
3309	11-17-2015	Omitted	26
4203 (Res.)	11-17-2015	Included	26
3310	12- 1-2015	Omitted	26
3311	12- 1-2015	Omitted	26
3312	12- 1-2015	Included	26
3313	12- 1-2015	Omitted	26
4207 (Res.)	12- 1-2015	Included	26
4208 (Res.)	12- 1-2015	Included	26
4209 (Res.)	12- 1-2015	Included	26
4210 (Res.)	12- 1-2015	Included	26
4211 (Res.)	12- 1-2015	Included	26
3314	12-15-2015	Omitted	26
3315	12-15-2015	Omitted	26
3316	12-15-2015	Omitted	26
3317	12-15-2015	Omitted	26
3318	12-15-2015	Omitted	26
3319	12-15-2015	Omitted	26
3320	12-15-2015	Included	26
3321	12-15-2015	Included	26
3322	12-15-2015	Included	26
3323	12-15-2015	Included	26
3324	12-15-2015	Included	26
4212 (Res.)	12-15-2015	Included	26
4213 (Res.)	12-15-2015	Included	26
3325	1- 5-2016	Omitted	26
4214 (Res.)	1- 5-2016	Included	26
3326	1-19-2016	Included	26
3327	1-19-2016	Omitted	26
3328	1-19-2016	Omitted	26

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3329	1-19-2016	Omitted	26
3330	1-19-2016	Omitted	26
3331	2- 2-2016	Included	27
4215 (Res.)	2- 2-2016	Included	27
3332	2-16-2016	Omitted	27
3333	2-16-2016	Omitted	27
3334	2-16-2016	Omitted	27
4216 (Res.)	2-16-2016	Included	27
3335	3- 1-2016	Omitted	27
4217 (Res.)	3- 1-2016	Included	27
4218 (Res.)	3- 1-2016	Included	27
4219 (Res.)	3- 1-2016	Included	27
4220 (Res.)	3-15-2016	Included	27
4221 (Res.)	4- 5-2016	Included	27
4222 (Res.)	4- 5-2016	Included	27
3336	4-19-2016	Omitted	27
3337	4-19-2016	Included	27
3338	5- 3-2016	Omitted	28
3339	5- 3-2016	Omitted	28
4223 (Res.)	5- 3-2016	Included	28
4224 (Res.)	5- 3-2016	Included	28
4225 (Res.)	5- 3-2016	Included	28
4226 (Res.)	5- 3-2016	Included	28
3340	5-17-2016	Omitted	28
4227 (Res.)	5-17-2016	Included	28
3341	6- 7-2016	Included	28
3342	6- 7-2016	Omitted	28
4228 (Res.)	6- 7-2016	Included	28
3343	6-21-2016	Omitted	28
3344	6-21-2016	Omitted	28
3345	6-21-2016	Omitted	28
3346	6-21-2016	Omitted	28
3347	6-21-2016	Omitted	28
3348	6-21-2016	Omitted	28
3349	6-21-2016	Omitted	28
3350	6-21-2016	Omitted	28
3351	6-21-2016	Omitted	28
4229 (Res.)	6-21-2016	Included	28
4230 (Res.)	6-21-2016	Included	28
4231 (Res.)	6-21-2016	Included	28
3352	7- 5-2016	Included	28
3353	7-19-2016	Omitted	28
3354	7-19-2016	Omitted	28
4232 (Res.)	7-19-2016	Included	28

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3355	8- 2-2016	Omitted	28
3356	8- 2-2016	Omitted	28
3357	8-16-2016	Omitted	28
4233 (Res.)	8-16-2016	Included	28
3358	9- 6-2016	Omitted	29
3359	9- 6-2016	Omitted	29
3360	9- 6-2016	Omitted	29
3361	9-20-2016	Omitted	29
3362	9-20-2016	Omitted	29
3363	9-20-2016	Omitted	29
3364	10- 4-2016	Included	29
4234 (Res.)		Skipped	
4235 (Res.)	10- 4-2016	Included	29
3365	10-18-2016	Omitted	29
3366	10-18-2016	Omitted	29
3367	10-18-2016	Omitted	29
3368	11- 1-2016	Included	29
4236 (Res.)	11- 1-2016	Included	29
4237 (Res.)	11- 1-2016	Included	29
3369	11-14-2016	Included	29
4238 (Res.)	12- 6-2016	Included	29
4239 (Res.)	12- 6-2016	Included	29
4240 (Res.)	12-13-2016	Included	29
4241 (Res.)	12-13-2016	Included	29
3370	1- 3-2017	Omitted	30
3371	1- 3-2017	Omitted	30
3372	1- 3-2017	Omitted	30
3373	1- 3-2017	Omitted	30
3374	1- 3-2017	Omitted	30
3375	1- 3-2017	Omitted	30
3376	1- 3-2017	Omitted	30
3377	1- 3-2017	Included	30
3378	1- 3-2017	Included	30
3379	1- 3-2017	Included	30
3380	1- 3-2017	Included	30
3381	1- 3-2017	Omitted	30
3382	1-17-2017	Omitted	30
3383	1-17-2017	Included	30
4242 (Res.)	1-17-2017	Included	30
3384	2- 7-2017	Omitted	30
3385	2- 7-2017	Omitted	30
3386	2- 7-2017	Omitted	30
4243 (Res.)	2- 7-2017	Included	30
4244 (Res.)	2- 7-2017	Included	30

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4245 (Res.)	2- 7-2017	Included	30
3387	2-21-2017	Omitted	30
3388	2-21-2017	Included	30
3389	2-21-2017	Omitted	30
3390	2-21-2017	Omitted	30
4246 (Res.)	2-21-2017	Included	30
4247 (Res.)	2-21-2017	Included	30
3391	3- 7-2017	Omitted	30
3392	3- 7-2017	Omitted	30
4248 (Res.)	3- 7-2017	Included	30
4249 (Res.)	3- 7-2017	Included	30
3393	3-21-2017	Omitted	30
3394	4-11-2017	Included	31
3395	4-11-2017	Included	31
3396	4-11-2017	Included	31
4250 (Res.)	4-11-2017	Included	31
3397	5- 2-2017	Included	31
3398	5- 2-2017	Omitted	31
3399	5- 2-2017	Omitted	31
3400	5- 2-2017	Omitted	31
3401	5- 2-2017	Omitted	31
3402	5- 2-2017	Omitted	31
3403	5- 2-2017	Included	31
3404	5- 2-2017	Omitted	31
3405	5- 2-2017	Omitted	31
3406	5- 2-2017	Omitted	31
3407	5- 2-2017	Omitted	31
4251 (Res.)	5- 2-2017	Included	31
3408	5-16-2017	Omitted	31
3409	5-16-2017	Omitted	31
3410	5-16-2017	Omitted	31
3411	5-16-2017	Omitted	31
3412	5-16-2017	Included	31
4252 (Res.)	5-16-2017	Included	31
4253 (Res.)	5-16-2017	Included	31
3413	6- 6-2017	Included	31
4254 (Res.)	6- 6-2017	Included	31
4255 (Res.)	6- 6-2017	Included	31
4256 (Res.)	6- 6-2017	Included	31
3414	6-20-2017	Omitted	31
3415	6-20-2017	Omitted	31
3416	6-20-2017	Omitted	31
4257 (Res.)	6-20-2017	Included	31
3417	7-11-2017	Included	32

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3418	7-11-2017	Included	32
3419	7-11-2017	Omitted	32
3420	7-11-2017	Omitted	32
4258 (Res.)	7-11-2017	Included	32
4259 (Res.)	7-11-2017	Included	32
4260 (Res.)	7-11-2017	Included	32
4261 (Res.)	7-11-2017	Included	32
4262 (Res.)	7-11-2017	Included	32
4263 (Res.)	7-18-2017	Included	32
4264 (Res.)	7-18-2017	Included	32
4265 (Res.)	7-18-2017	Included	32
3421	8- 1-2017	Omitted	32
3422	8- 1-2017	Omitted	32
3423	8- 1-2017	Omitted	32
3424	8- 1-2017	Omitted	32
3425	8- 1-2017	Omitted	32
3426	8- 1-2017	Omitted	32
4266 (Res.)	8- 1-2017	Included	32
3427	8-15-2017	Omitted	32
3428	8-15-2017	Included	32
3429	8-15-2017	Included	32
3430	8-15-2017	Omitted	32
4267 (Res.)	8-15-2017	Included	32
3431	9- 5-2017	Omitted	32
3432	9- 5-2017	Included	32
3433	9- 5-2017	Included	32
3434	9- 5-2017	Included	32
3435	9- 5-2017	Omitted	32
3436	9- 5-2017	Included	32
3437	9-19-2017	Omitted	32
3438	9-19-2017	Omitted	32
3439	9-19-2017	Omitted	32
3440	9-19-2017	Omitted	32
3441	9-19-2017	Omitted	32
3442	9-19-2017	Included	32
3443	9-19-2017	Included	32
3444	9-19-2017	Included	32
3445	10- 3-2017	Omitted	33
3446	10-17-2017	Omitted	33
3447	10-17-2017	Omitted	33
3448	10-17-2017	Included	33
3449	10-17-2017	Included	33
3450	10-17-2017	Included	33
3451	11- 7-2017	Included	33

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4268 (Res.)	11- 7-2017	Included	33
4269 (Res.)	11- 7-2017	Included	33
3452	11-21-2017	Omitted	33
3453	11-21-2017	Omitted	33
3454	11-21-2017	Omitted	33
3455	11-21-2017	Omitted	33
4270 (Res.)	11-21-2017	Included	33
3456	12- 5-2017	Omitted	33
3457	12- 5-2017	Omitted	33
3458	12- 5-2017	Omitted	33
4271 (Res.)	12- 5-2017	Included	33
4272 (Res.)	12- 5-2017	Included	33
4273 (Res.)	12- 5-2017	Included	33
4274 (Res.)	12- 5-2017	Included	33
4275 (Res.)	12- 5-2017	Included	33
3459	12-19-2017	Omitted	33
3460	12-19-2017	Omitted	33
3461	12-19-2017	Omitted	33
3462	12-19-2017	Omitted	33
3463	12-19-2017	Omitted	33
4276 (Res.)	12-19-2017	Included	33
4277 (Res.)	12-19-2017	Included	33
4278 (Res.)	1- 2-2018	Included	34
4279 (Res.)	1- 2-2018	Included	34
3464	1-16-2018	Omitted	34
3465	1-16-2018	Included	34
3466	2- 6-2018	Omitted	34
3467	2- 6-2018	Omitted	34
4280 (Res.)	2- 6-2018	Included	34
4281 (Res.)	2- 6-2018	Included	34
4282 (Res.)	2- 6-2018	Included	34
3468	2-20-2018	Omitted	34
3469	2-20-2018	Omitted	34
3470	3- 6-2018	Omitted	34
3471	3- 6-2018	Omitted	34
3472	3- 6-2018	Omitted	34
3473	3- 6-2018	Omitted	34
4283 (Res.)	3- 6-2018	Included	34
3474	3-20-2018	Omitted	34
3475	3-20-2018	Omitted	34
3476	3-20-2018	Omitted	34
4284 (Res.)	3-20-2018	Included	34
4285 (Res.)	3-20-2018	Included	34
4286 (Res.)	3-20-2018	Included	34

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4287 (Res.)	4- 3-2018	Included	35
4288 (Res.)	4- 3-2018	Included	35
4289 (Res.)	4- 3-2018	Included	35
4290 (Res.)	4- 3-2018	Included	35
3477	4-17-2018	Omitted	35
3478	4-17-2018	Omitted	35
3479	4-17-2018	Omitted	35
3480	4-17-2018	Omitted	35
3481	5- 1-2018	Omitted	35
3482	5- 1-2018	Included	35
4291 (Res.)	5- 1-2018	Included	35
3483	5-15-2018	Included	35
3484	5-15-2018	Omitted	35
3485	5-15-2018	Omitted	35
3486	5-15-2018	Omitted	35
4292 (Res.)	5-15-2018	Included	35
4293 (Res.)	5-15-2018	Included	35
4294 (Res.)	5-15-2018	Included	35
4295 (Res.)	5-15-2018	Included	35
4296 (Res.)	5-15-2018	Included	35
4297 (Res.)	5-15-2018	Included	35
3487	6- 5-2018	Omitted	35
4298 (Res.)	6- 5-2018	Included	35
4299 (Res.)	6- 5-2018	Included	35
4300 (Res.)	6- 5-2018	Included	35
4301 (Res.)	6- 5-2018	Included	35
4302 (Res.)	6- 5-2018	Included	35
3488	6-19-2018	Omitted	35
3489	6-19-2018	Omitted	35
3490	6-19-2018	Omitted	35
3491	6-19-2018	Omitted	35
3492	6-19-2018	Omitted	35
3493	6-19-2018	Omitted	35
4303 (Res.)	6-19-2018	Included	35
4304 (Res.)	6-19-2018	Included	35
4305 (Res.)	6-19-2018	Included	35
3494	7-10-2018	Omitted	36
3495	7-10-2018	Omitted	36
3496	7-10-2018	Included	36
3497	7-10-2018	Included	36
3498	7-10-2018	Included	36
3499	7-10-2018	Included	36
4306 (Res.)	7-10-2018	Included	36
3500	7-24-2018	Omitted	36

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3501	7-24-2018	Omitted	36
3502	7-24-2018	Omitted	36
4307 (Res.)	7-24-2018	Included	36
4308 (Res.)	7-24-2018	Included	36
3503	8- 7-2018	Included	36
3504	8- 7-2018	Included	36
3505	8- 7-2018	Included	36
3506	8- 7-2018	Included	36
3507	8- 7-2018	Included	36
3508	8- 7-2018	Included	36
3509	8- 7-2018	Included	36
3510	8- 7-2018	Included	36
3511	8- 7-2018	Included	36
3512	8- 7-2018	Included	36
4309 (Res.)	8- 7-2018	Included	36
3513	8-21-2018	Omitted	36
3514	8-21-2018	Omitted	36
3515	8-21-2018	Omitted	36
3516	8-21-2018	Omitted	36
3517	8-21-2018	Omitted	36
3518	8-21-2018	Omitted	36
3519	8-21-2018	Omitted	36
3520	9- 4-2018	Omitted	36
4310 (Res.)	9- 4-2018	Included	36
4311 (Res.)	9- 4-2018	Included	36
4312 (Res.)	9- 4-2018	Included	36
4313 (Res.)	9- 4-2018	Included	36
4314 (Res.)	9- 4-2018	Included	36
4315 (Res.)	9- 4-2018	Included	36
4316 (Res.)	9- 4-2018	Included	36
4317 (Res.)	9- 4-2018	Included	36
3521	9-18-2018	Included	36
3522	9-18-2018	Omitted	36
3523	9-18-2018	Omitted	36
3524	9-18-2018	Omitted	36
3525	9-18-2018	Omitted	36
3526	9-18-2018	Omitted	36
3527	9-18-2018	Omitted	36
4318 (Res.)	9-18-2018	Included	36
4319 (Res.)	9-18-2018	Included	36
4320 (Res.)	9-18-2018	Included	36
3528	10- 2-2018	Omitted	37
3529	10- 2-2018	Omitted	37
4321 (Res.)	10- 2-2018	Included	37

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4322 (Res.)	10- 2-2018	Included	37
4323 (Res.)	10- 2-2018	Included	37
3530	10-16-2018	Omitted	37
3531	10-16-2018	Omitted	37
3532	10-16-2018	Omitted	37
3533	10-16-2018	Omitted	37
3534	10-16-2018	Omitted	37
3535	10-16-2018	Omitted	37
4324 (Res.)	10-16-2018	Included	37
3536	11- 6-2018	Omitted	37
3537	11- 6-2018	Omitted	37
3538	11- 6-2018	Omitted	37
4325 (Res.)	11- 6-2018	Included	37
4326 (Res.)	11- 6-2018	Included	37
4327 (Res.)	11- 6-2018	Included	37
3539	12- 4-2018	Omitted	37
3540	12- 4-2018	Omitted	37
3541	12- 4-2018	Omitted	37
3542	12- 4-2018	Omitted	37
3543	12- 4-2018	Omitted	37
3544	12- 4-2018	Omitted	37
3545	12- 4-2018	Omitted	37
3546	12- 4-2018	Omitted	37
3547	12- 4-2018	Omitted	37
3548	12-18-2018	Omitted	37
3549	12-18-2018	Included	37
3550	12-18-2018	Included	37
3551	12-18-2018	Omitted	37
3552	12-18-2018	Omitted	37
3553	12-18-2018	Omitted	37
3554	12-18-2018	Omitted	37
3555	12-18-2018	Omitted	37
3556	12-18-2018	Omitted	37
4328 (Res.)	12-18-2018	Included	37
4329 (Res.)	12-18-2018	Included	37
4330 (Res.)	12-18-2018	Included	37
4331 (Res.)	12-18-2018	Included	37
3557	1- 8-2019	Omitted	38
4332 (Res.)	1-15-2019	Included	38
3558	2- 5-2019	Omitted	38
3559	2- 5-2019	Omitted	38
3560	2- 5-2019	Omitted	38
3561	2- 5-2019	Omitted	38
3562	2- 5-2019	Included	38

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3563	2- 5-2019	Included	38
3564	2- 5-2019	Included	38
4333 (Res.)	2- 5-2019	Included	38
4334 (Res.)	2- 5-2019	Included	38
4335 (Res.)	2-19-2019	Included	38
3565	2-19-2019	Omitted	38
3566	2-19-2019	Omitted	38
3567	2-19-2019	Omitted	38
3568	3- 5-2019	Omitted	38
4336 (Res.)	3- 5-2019	Included	38
4337 (Res.)	3-19-2019	Included	38
4338 (Res.)	3-19-2019	Included	38
4339 (Res.)	4- 9-2019	Included	39
4340 (Res.)	4- 9-2019	Included	39
4341 (Res.)	4-16-2019	Included	39
4342 (Res.)	4-16-2019	Included	39
3569	5- 7-2019	Omitted	39
3570	5- 7-2019	Omitted	39
3571	5- 7-2019	Included	39
3572	5- 7-2019	Omitted	39
3573	5- 7-2019	Omitted	39
3574	5- 7-2019	Omitted	39
3575	5- 7-2019	Omitted	39
3576	5- 7-2019	Omitted	39
4343 (Res.)	5- 7-2019	Included	39
3577	5-21-2019	Omitted	39
3578	5-21-2019	Omitted	39
3579	5-21-2019	Omitted	39
3580	5-21-2019	Included	39
4344 (Res.)	5-21-2019	Included	39
4345 (Res.)	5-21-2019	Included	39
4346 (Res.)	5-21-2019	Included	39
4347 (Res.)	5-21-2019	Included	39
3581	6- 4-2019	Included	39
3582	6- 4-2019	Included	39
3583	6- 4-2019	Included	39
4348 (Res.)	6- 4-2019	Included	39
4349 (Res.)	6- 4-2019	Included	39
4350 (Res.)	6- 4-2019	Included	39
3584	6-18-2019	Omitted	39
3585	6-18-2019	Omitted	39
3586	6-18-2019	Omitted	39
3587	6-18-2019	Omitted	39
4351 (Res.)	6-18-2019	Included	39

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4352 (Res.)	7- 2-2019	Included	40
4353 (Res.)	7- 2-2019	Included	40
3588	7-16-2019	Omitted	40
3589	7-16-2019	Omitted	40
3590	7-16-2019	Included	40
3591	7-16-2019	Omitted	40
3592	8- 6-2019	Omitted	40
3593	8- 6-2019	Omitted	40
3594	8- 6-2019	Omitted	40
4354 (Res.)	8- 6-2019	Included	40
4355 (Res.)	8- 6-2019	Included	40
3595	8-20-2019	Omitted	40
3596	8-20-2019	Omitted	40
3597	8-20-2019	Omitted	40
3598	8-20-2019	Omitted	40
3599	8-20-2019	Omitted	40
3600	8-20-2019	Omitted	40
3601	8-20-2019	Omitted	40
3602	8-20-2019	Omitted	40
3603	8-20-2019	Omitted	40
3604	8-20-2019	Omitted	40
3605	8-20-2019	Omitted	40
3606	8-20-2019	Omitted	40
3607	8-20-2019	Omitted	40
3608	8-20-2019	Omitted	40
3609	8-20-2019	Omitted	40
3610	8-20-2019	Omitted	40
3611	8-20-2019	Omitted	40
3612	8-20-2019	Omitted	40
3613	8-20-2019	Omitted	40
3614	8-20-2019	Omitted	40
3615	8-20-2019	Omitted	40
3616	8-20-2019	Omitted	40
3617	9- 3-2019	Omitted	40
4356 (Res.)	9- 3-2019	Included	40
4357 (Res.)	9- 3-2019	Included	40
4358 (Res.)	9- 3-2019	Included	40
3618	9-18-2019	Omitted	40
3619	9-18-2019	Omitted	40
3620	9-18-2019	Omitted	40
3621	9-18-2019	Omitted	40
3622	9-18-2019	Included	40
3623	9-18-2019	Included	40

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3624	9-18-2019	Omitted	40
3625	9-18-2019	Omitted	40
3626	10- 1-2019	Omitted	41
4359 (Res.)	10- 1-2019	Included	41
3627	10-15-2019	Omitted	41
3628	10-15-2019	Omitted	41
3629	10-15-2019	Omitted	41
3630	10-15-2019	Omitted	41
3631	10-15-2019	Omitted	41
3632	10-15-2019	Included	41
3633	11- 5-2019	Omitted	41
3634	11- 5-2019	Omitted	41
3635	11- 5-2019	Omitted	41
3636	11- 5-2019	Omitted	41
4360 (Res.)	11- 5-2019	Included	41
4361 (Res.)	11- 5-2019	Included	41
4362 (Res.)	11- 5-2019	Included	41
3637	11-19-2019	Included	41
3638	11-19-2019	Included	41
3639	11-19-2019	Omitted	41
3640	11-19-2019	Omitted	41
3641	11-19-2019	Omitted	41
3642	11-19-2019	Omitted	41
4363 (Res.)	11-19-2019	Included	41
3643	12- 3-2019	Omitted	41
3644	12- 3-2019	Omitted	41
3645	12- 3-2019	Omitted	41
3646	12- 3-2019	Omitted	41
3647	12- 3-2019	Omitted	41
4364 (Res.)	12- 3-2019	Included	41
4365 (Res.)	12- 3-2019	Included	41
4366 (Res.)	12- 3-2019	Included	41
4367 (Res.)	12- 3-2019	Included	41
4368 (Res.)	12- 3-2019	Included	41
4369 (Res.)	12- 3-2019	Included	41
4370 (Res.)	12- 3-2019	Included	41
4371 (Res.)	12- 3-2019	Included	41
3648	12-17-2019	Omitted	41
3649	12-17-2019	Omitted	41
3650	12-17-2019	Omitted	41
3651	12-17-2019	Omitted	41
3652	12-17-2019	Omitted	41
3653	12-17-2019	Omitted	41
3654	12-17-2019	Omitted	41

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3655	12-17-2019	Omitted	41
4372 (Res.)	12-17-2019	Included	41
3656	1- 7-2020	Omitted	42
4373 (Res.)	1- 7-2020	Included	42
4374 (Res.)	1- 7-2020	Included	42
3657	1-21-2020	Omitted	42
3658	1-21-2020	Omitted	42
3659	1-21-2020	Omitted	42
4375 (Res.)	1-21-2020	Included	42
4376 (Res.)	1-21-2020	Included	42
4377 (Res.)	1-21-2020	Included	42
3660	2- 4-2020	Omitted	42
3661	2- 4-2020	Omitted	42
3662	2- 4-2020	Omitted	42
4378 (Res.)	2- 4-2020	Included	42
3663	2-18-2020	Omitted	42
3664	2-18-2020	Omitted	42
3665	2-18-2020	Omitted	42
3666	2-18-2020	Omitted	42
3667	2-18-2020	Omitted	42
3668	3- 3-2020	Omitted	42
3669	3- 3-2020	Included	42
3670	3- 3-2020	Included	42
3671	3- 3-2020	Included	42
3672	3- 3-2020	Omitted	42
4379 (Res.)	3- 3-2020	Included	42
4380 (Res.)	3- 3-2020	Included	42
3673	4- 7-2020	Omitted	43
3674	4- 7-2020	Omitted	43
3675	4- 7-2020	Omitted	43
3676	4- 7-2020	Omitted	43
3677	4- 7-2020	Omitted	43
3678	4- 7-2020	Omitted	43
3679	4- 7-2020	Omitted	43
4381 (Res.)	4- 7-2020	Included	43
3680	4-21-2020	Omitted	43
3681	4-21-2020	Omitted	43
3682	4-21-2020	Omitted	43
4382 (Res.)	4-21-2020	Included	43
3683	5- 5-2020	Omitted	43
3684	5- 5-2020	Omitted	43
4383 (Res.)	5- 5-2020	Included	43
4384 (Res.)	5- 5-2020	Included	43
3685	5-19-2020	Omitted	43

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3686	5-19-2020	Omitted	43
3687	5-19-2020	Omitted	43
4385 (Res.)	5-19-2020	Included	43
4386 (Res.)	5-19-2020	Included	43
4387 (Res.)	5-19-2020	Included	43
4388 (Res.)	5-19-2020	Included	43
4389 (Res.)	5-19-2020	Included	43
4390 (Res.)	5-19-2020	Included	43
4391 (Res.)	5-19-2020	Included	43
4392 (Res.)	5-19-2020	Included	43
3688	6- 2-2020	Omitted	43
3689	6- 2-2020	Omitted	43
3690	6- 2-2020	Omitted	43
3691	6- 2-2020	Omitted	43
3692	6- 2-2020	Omitted	43
3693	6- 2-2020	Included	43
4393 (Res.)	6- 2-2020	Included	43
4394 (Res.)	6- 2-2020	Included	43
3694	6-16-2020	Omitted	43
3695	6-16-2020	Omitted	43
3696	6-16-2020	Omitted	43
3697	6-16-2020	Omitted	43
3698	6-16-2020	Omitted	43
3699	6-16-2020	Omitted	43
3700	6-16-2020	Omitted	43
3701	6-16-2020	Omitted	43
3702	6-16-2020	Omitted	43
3703	6-16-2020	Omitted	43
3704	6-16-2020	Omitted	43
3705	6-16-2020	Omitted	43
4395 (Res.)	6-16-2020	Included	43
3706	7- 7-2020	Omitted	44
3707	7- 7-2020	Omitted	44
3708	7- 7-2020	Omitted	44
3709	7- 7-2020	Included	44
4396 (Res.)	7- 7-2020	Included	44
3710	7-21-2020	Omitted	44
3711	7-21-2020	Omitted	44
3712	7-21-2020	Omitted	44
4397 (Res.)	7-21-2020	Included	44
4398 (Res.)	8- 4-2020	Included	44
4399 (Res.)	8- 4-2020	Included	44
3713	8-18-2020	Omitted	44
3714	8-18-2020	Omitted	44

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3715	8-18-2020	Omitted	44
3716	8-18-2020	Omitted	44
3717	9- 1-2020	Omitted	44
4400 (Res.)	9- 1-2020	Included	44
4401 (Res.)	9- 1-2020	Included	44
4402 (Res.)	9- 1-2020	Included	44
4403 (Res.)	9- 1-2020	Included	44
3718	9-15-2020	Omitted	44
3719	9-15-2020	Omitted	44
3720	9-15-2020	Omitted	44
3721	9-15-2020	Omitted	44
3722	9-15-2020	Included	44
4404 (Res.)	9-15-2020	Included	44
4405 (Res.)	9-15-2020	Included	44
4406 (Res.)	9-15-2020	Included	44
3723	10- 6-2020	Omitted	45
4407 (Res.)	10- 6-2020	Included	45
4408 (Res.)	10- 6-2020	Included	45
4409 (Res.)	10- 6-2020	Included	45
4410 (Res.)	10- 6-2020	Included	45
3724	10-20-2020	Omitted	45
3725	10-20-2020	Omitted	45
3726	10-20-2020	Omitted	45
3727	10-20-2020	Omitted	45
3728	10-20-2020	Omitted	45
3729	10-20-2020	Omitted	45
3730	10-20-2020	Omitted	45
3731	10-20-2020	Included	45
3732	10-20-2020	Included	45
3733	10-20-2020	Included	45
4411 (Res.)	10-20-2020	Included	45
4412 (Res.)	10-20-2020	Included	45
4413 (Res.)	11- 3-2020	Included	45
4414 (Res.)	11- 3-2020	Included	45
4415 (Res.)	11- 3-2020	Included	45
3734	11-17-2020	Omitted	45
3735	11-17-2020	Omitted	45
3736	11-17-2020	Omitted	45
3737	12-15-2020	Included	45
3738	12-15-2020	Omitted	45
3739	12-15-2020	Omitted	45
3740	12-15-2020	Omitted	45
3741	12-15-2020	Omitted	45
3742	12-15-2020	Omitted	45

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3743	12-15-2020	Omitted	45
4416 (Res.)	12-15-2020	Included	45
3744	1- 5-2021	Omitted	46
4417 (Res.)	1- 5-2021	Included	46
3745	1-19-2021	Omitted	46
3746	1-19-2021	Omitted	46
3747	1-19-2021	Omitted	46
3748	1-19-2021	Omitted	46
3749	1-19-2021	Omitted	46
3750	1-19-2021	Omitted	46
3751	1-19-2021	Omitted	46
3752	1-19-2021	Omitted	46
3753	1-19-2021	Included	46
4418 (Res.)	1-19-2021	Included	46
3754	2- 2-2021	Omitted	46
3755	2- 2-2021	Omitted	46
3756	2- 2-2021	Omitted	46
3757	2-16-2021	Omitted	46
3758	2-16-2021	Omitted	46
3759	2-16-2021	Omitted	46
3760	2-16-2021	Omitted	46
3761	2-16-2021	Omitted	46
3762	2-16-2021	Omitted	46
4419 (Res.)	2-16-2021	Included	46
4420 (Res.)	2-16-2021	Included	46
3763	3- 2-2021	Included	46
4421 (Res.)	3- 2-2021	Included	46
4422 (Res.)	3- 2-2021	Included	46
4423 (Res.)	3- 2-2021	Included	46
3764	3-16-2021	Omitted	46
3765	3-16-2021	Omitted	46
3766	3-16-2021	Omitted	46
3767	3-16-2021	Omitted	46
4424 (Res.)	3-16-2021	Included	46
4425 (Res.)	3-16-2021	Included	46
4426 (Res.)	3-16-2021	Included	46
3768	4- 6-2021	Omitted	47
3769	4- 6-2021	Omitted	47
4427 (Res.)	4- 6-2021	Included	47
4428 (Res.)	4- 6-2021	Included	47
3770	4- 6-2021	Omitted	47
3771	4-20-2021	Omitted	47
3772	4-20-2021	Omitted	47
4429 (Res.)	4-20-2021	Included	47
3773	5- 4-2021	Omitted	47
3774	5- 4-2021	Omitted	47
3775	5- 4-2021	Omitted	47

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4430 (Res.)	5- 4-2021	Included	47
4431 (Res.)	5- 4-2021	Included	47
4432 (Res.)	5- 4-2021	Included	47
3776	5-18-2021	Omitted	47
3777	5-18-2021	Omitted	47
3778	5-18-2021	Omitted	47
3779	5-18-2021	Omitted	47
3780	5-18-2021	Omitted	47
3781	5-18-2021	Omitted	47
3782	5-18-2021	Omitted	47
3783	5-18-2021	Omitted	47
3784	5-18-2021	Omitted	47
4433 (Res.)	5-18-2021	Included	47
4434 (Res.)	5-18-2021	Included	47
4435 (Res.)	5-18-2021	Included	47
4436 (Res.)	5-18-2021	Included	47
4437 (Res.)	5-18-2021	Included	47
4438 (Res.)	5-18-2021	Included	47
3785	6- 1-2021	Omitted	47
3786	6- 1-2021	Omitted	47
3787	6-15-2021	Omitted	47
3788	6-15-2021	Omitted	47
4439 (Res.)	6-15-2021	Included	47
4440 (Res.)	6-15-2021	Included	47
4441 (Res.)	6-15-2021	Included	47
4442 (Res.)	6-15-2021	Included	47
3789	7- 6-2021	Omitted	48
3790	7-20-2021	Omitted	48
3791	7-20-2021	Omitted	48
3792	7-20-2021	Omitted	48
4443 (Res.)	7-20-2021	Included	48
3793	8- 3-2021	Omitted	48
4444 (Res.)	8- 3-2021	Included	48
3794	8-17-2021	Omitted	48
3795	8-17-2021	Omitted	48
3796	8-17-2021	Omitted	48
3797	8-17-2021	Omitted	48
3798	8-17-2021	Omitted	48
4445 (Res.)	8-17-2021	Included	48
4446 (Res.)	8-17-2021	Included	48
4447 (Res.)	8-17-2021	Included	48
3799	9- 7-2021	Omitted	48
3800	9- 7-2021	Omitted	48
3801	9- 7-2021	Omitted	48
3802	9- 7-2021	Omitted	48
3803	9- 7-2021	Omitted	48
3804	9- 7-2021	Omitted	48

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3805	9- 7-2021	Omitted	48
4448 (Res.)	9- 7-2021	Included	48
4449 (Res.)	9- 7-2021	Included	48
3806	9-21-2021	Omitted	48
3807	9-21-2021	Omitted	48
3808	9-21-2021	Omitted	48
3809	10- 5-2021	Omitted	49
4450 (Res.)	10- 5-2021	Included	49
4451 (Res.)	10- 5-2021	Included	49
3810	10-19-2021	Omitted	49
3811	10-19-2021	Omitted	49
3812	10-19-2021	Omitted	49
3813	10-19-2021	Omitted	49
3814	11- 2-2021	Included	49
3815	11- 2-2021	Omitted	49
4452 (Res.)	11- 2-2021	Included	49
4453 (Res.)	11- 2-2021	Included	49
4454 (Res.)	11- 2-2021	Included	49
3816	11-16-2021	Omitted	49
3817	11-16-2021	Omitted	49
3818	11-16-2021	Omitted	49
3819	11-16-2021	Omitted	49
3820	11-16-2021	Omitted	49
3821	11-16-2021	Omitted	49
3822	11-16-2021	Omitted	49
3823	11-16-2021	Omitted	49
4455 (Res.)	11-16-2021	Included	49
4456 (Res.)	11-16-2021	Included	49
3824	12- 7-2021	Included	49
4457 (Res.)	12- 7-2021	Included	49
3825	12-21-2021	Omitted	49
3826	12-21-2021	Omitted	49
3827	12-21-2021	Omitted	49
3828	12-21-2021	Omitted	49
3829	12-21-2021	Omitted	49
4458 (Res.)	12-21-2021	Included	49
4459 (Res.)	12-21-2021	Included	49
3830	1- 4-2022	Omitted	49
3831	1- 4-2022	Included	49
4460 (Res.)	1- 4-2022	Included	49
4461 (Res.)	1- 4-2022	Included	49
3832	1-25-2022	Omitted	50
3833	1-25-2022	Omitted	50
3834	1-25-2022	Omitted	50

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3835	1-25-2022	Omitted	50
3836	1-25-2022	Omitted	50
3837	1-25-2022	Omitted	50
3838	1-25-2022	Omitted	50
4462 (Res.)	1-25-2022	Included	50
4463 (Res.)	2- 1-2022	Included	50
4464 (Res.)	2- 1-2022	Included	50
4465 (Res.)	2- 1-2022	Included	50
3839	2-15-2022	Omitted	50
3840	2-15-2022	Omitted	50
3841	2-15-2022	Omitted	50
3842	2-15-2022	Omitted	50
3843	2-15-2022	Omitted	50
3844	2-15-2022	Omitted	50
3845	2-15-2022	Omitted	50
3846	2-15-2022	Omitted	50
3847	2-15-2022	Omitted	50
3848	2-15-2022	Omitted	50
3849	2-15-2022	Omitted	50
3850	2-15-2022	Omitted	50
3851	2-15-2022	Omitted	50
3852	2-15-2022	Omitted	50
3853	2-15-2022	Omitted	50
3854	2-15-2022	Omitted	50
3855	3- 1-2022	Included	50
3856	3- 1-2022	Included	50
4466 (Res.)	3- 1-2022	Included	50
4467 (Res.)	3- 1-2022	Included	50
4468 (Res.)	3- 1-2022	Included	50
3857	3-15-2022	Omitted	50
3858	3-15-2022	Omitted	50
3859	3-15-2022	Omitted	50
3860	3-15-2022	Omitted	50
3861	3-15-2022	Omitted	50
4469 (Res.)	3-15-2022	Included	50
3862	4- 5-2022	Included	51
3863	4- 5-2022	Omitted	51
4470 (Res.)	4- 5-2022	Included	51
4471 (Res.)	4- 5-2022	Included	51
4472 (Res.)	4- 5-2022	Included	51
3864	4-19-2022	Omitted	51
3865	4-19-2022	Omitted	51
3866	4-19-2022	Omitted	51
4473 (Res.)	4-19-2022	Included	51

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3867	5- 3-2022	Omitted	51
4474 (Res.)	5- 3-2022	Included	51
3868	5-24-2022	Omitted	51
3869	5-24-2022	Omitted	51
3870	5-24-2022	Omitted	51
3871	5-24-2022	Omitted	51
3872	5-24-2022	Omitted	51
3873	5-24-2022	Omitted	51
3874	5-24-2022	Omitted	51
4475 (Res.)	5-24-2022	Included	51
4476 (Res.)	5-24-2022	Included	51
4477 (Res.)	5-24-2022	Included	51
4478 (Res.)	5-24-2022	Included	51
4479 (Res.)	5-24-2022	Included	51
3875	6- 7-2022	Omitted	51
3876	6- 7-2022	Omitted	51
3877	6- 7-2022	Omitted	51
3878	6- 7-2022	Omitted	51
4480 (Res.)	6- 7-2022	Included	51
4481 (Res.)	6- 7-2022	Included	51
4482 (Res.)	6- 7-2022	Included	51
3879	6-24-2022	Omitted	52
3880	6-24-2022	Omitted	52
3881	6-24-2022	Omitted	52
3882	6-24-2022	Omitted	52
3883	6-24-2022	Omitted	52
3884	6-24-2022	Omitted	52
4483 (Res.)	6-24-2022	Included	52
4484 (Res.)	6-24-2022	Included	52
3885	7-12-2022	Omitted	52
3886	7-12-2022	Omitted	52
3887	7-12-2022	Omitted	52
4485 (Res.)	7-12-2022	Included	52
4486 (Res.)	7-12-2022	Included	52
3888	8- 2-2022	Omitted	52
3889	8- 2-2022	Omitted	52
3890	8- 2-2022	Omitted	52
3891	8- 2-2022	Omitted	52
3892	8- 2-2022	Omitted	52
3893	8- 2-2022	Omitted	52
3894	8- 2-2022	Omitted	52
3895	8- 2-2022	Omitted	52
3896	8- 2-2022	Omitted	52
3897	8- 2-2022	Included	52

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3898	8- 2-2022	Included	52
4487 (Res.)	8- 2-2022	Included	52
4488 (Res.)	8- 2-2022	Included	52
3899	8-23-2022	Omitted	52
3900	8-23-2022	Included	52
3901	8-23-2022	Omitted	52
3902	8-23-2022	Omitted	52
3903	8-23-2022	Omitted	52
4489 (Res.)	8-23-2022	Included	52
4490 (Res.)	8-23-2022	Included	52
4491 (Res.)	8-23-2022	Included	52
4492 (Res.)	8-23-2022	Included	52
3904	9-13-2022	Included	52
3905	9-13-2022	Included	52
3906	9-13-2022	Included	52
3907	9-13-2022	Included	52
3908	9-13-2022	Included	52
3909	9-13-2022	Included	52
4493 (Res.)	9-13-2022	Included	52
4494 (Res.)	9-13-2022	Included	52
3910	10- 4-2022	Included	52
3911	10- 4-2022	Omitted	52
4495 (Res.)	10- 4-2022	Included	52
4496 (Res.)	10- 4-2022	Included	52
4497 (Res.)	10- 4-2022	Included	52
4498 (Res.)	10- 4-2022	Included	52
4499 (Res.)	10- 4-2022	Included	52
3912	10-18-2022	Included	53
3913	10-18-2022	Omitted	53
3914	10-18-2022	Omitted	53
3915	10-18-2022	Omitted	53
4500 (Res.)	10-18-2022	Included	53
4501 (Res.)	11- 1-2022	Included	53
4502 (Res.)	11- 1-2022	Included	53
4503 (Res.)	11- 1-2022	Included	53
4504 (Res.)	11- 1-2022	Included	53
4505 (Res.)	11- 1-2022	Included	53
4506 (Res.)	11- 1-2022	Included	53
4507 (Res.)	11- 1-2022	Included	53
3916	11-15-2022	Omitted	53
3917	11-15-2022	Omitted	53
3918	11-15-2022	Omitted	53
3919	11-15-2022	Omitted	53
3920	11-15-2022	Omitted	53

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3921	11-15-2022	Omitted	53
3922	11-15-2022	Omitted	53
3923	11-15-2022	Omitted	53
3924	11-15-2022	Omitted	53
4508 (Res.)	11-15-2022	Included	53
3925	12- 6-2022	Omitted	53
3926	12- 6-2022	Included	53
3927	12- 6-2022	Included	53
3928	12- 6-2022	Included	53
4509 (Res.)	12- 6-2022	Included	53
4510 (Res.)	12- 6-2022	Included	53
4511 (Res.)	12- 6-2022	Included	53
4512 (Res.)	12- 6-2022	Included	53
4513 (Res.)	12-13-2022	Included	53
4514 (Res.)	12-13-2022	Included	53
3929	1- 3-2023	Omitted	53
3930	1- 3-2023	Omitted	53
3931	1- 3-2023	Omitted	53
3932	1- 3-2023	Omitted	53
3933	1- 3-2023	Omitted	53
3934	1- 3-2023	Omitted	53
3935	1- 3-2023	Omitted	53
3936	1- 3-2023	Included	53
4515 (Res.)	1- 3-2023	Included	53
3937	1-17-2023	Omitted	53
3938	1-17-2023	Omitted	53
4516 (Res.)	1-17-2023	Included	53
4517 (Res.)	1-17-2023	Included	53
3939	2- 7-2023	Included	53
3940	2- 7-2023	Included	53
4518 (Res.)	2- 7-2023	Included	53
3941	2-21-2023	Omitted	53
3942	2-21-2023	Omitted	53
3943	2-21-2023	Included	53
4519 (Res.)	2-21-2023	Included	53
4520 (Res.)	2-21-2023	Included	53
4521 (Res.)	2-21-2023	Included	53
3944	3- 7-2023	Omitted	54
3945	3- 7-2023	Included	54
3946	3- 7-2023	Included	54
4522 (Res.)	3- 7-2023	Included	54
4523 (Res.)	3- 7-2023	Included	54
3947	3-21-2023	Omitted	54
3948	3-21-2023	Omitted	54

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3949	3-21-2023	Omitted	54
3950	4-18-2023	Omitted	54
3951	4-18-2023	Omitted	54
3952	4-18-2023	Omitted	54
3953	4-18-2023	Omitted	54
3954	4-18-2023	Omitted	54
4524 (Res.)	4-18-2023	Included	54
4525 (Res.)	4-18-2023	Included	54
3955	5- 2-2023	Omitted	54
3956	5- 2-2023	Omitted	54
4526 (Res.)	5- 2-2023	Included	54
4527 (Res.)	5- 2-2023	Included	54
4528 (Res.)	5- 2-2023	Included	54
4529 (Res.)	5- 2-2023	Included	54
4530 (Res.)	5- 2-2023	Included	54
3957	5-16-2023	Omitted	54
3958	5-16-2023	Omitted	54
3959	5-16-2023	Omitted	54
3960	5-16-2023	Omitted	54
3961	5-16-2023	Omitted	54
3962	5-16-2023	Omitted	54
3963	5-16-2023	Included	54
3964	5-16-2023	Omitted	54
3965	5-16-2023	Omitted	54
3966	5-16-2023	Omitted	54
4531 (Res.)	5-16-2023	Included	54
4532 (Res.)	5-16-2023	Included	54
4533 (Res.)	5-16-2023	Included	54
4534 (Res.)	5-16-2023	Included	54
3967	6- 6-2023	Included	54
3968	6- 6-2023	Included	54
4535 (Res.)	6- 6-2023	Included	54
3969	6-20-2023	Omitted	55
4536 (Res.)	6-20-2023	Included	55
3970	7-11-2023	Omitted	55
3971	7-11-2023	Omitted	55
3972	7-11-2023	Omitted	55
3973	7-11-2023	Omitted	55
4537 (Res.)	7-11-2023	Included	55
4538 (Res.)	7-11-2023	Included	55
4539 (Res.)	7-18-2023	Included	55
3974	8- 1-2023	Omitted	55
3975	8- 1-2023	Omitted	55
3976	8- 1-2023	Omitted	55

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
3977	8- 1-2023	Omitted	55
3978	8- 1-2023	Omitted	55
3979	8- 1-2023	Omitted	55
4540 (Res.)	8- 1-2023	Included	55
4541 (Res.)	8- 1-2023	Included	55
3980	8-15-2023	Omitted	55
3981	8-15-2023	Omitted	55
3982	8-15-2023	Omitted	55
3983	8-15-2023	Omitted	55
3984	8-15-2023	Included	55
4542 (Res.)	8-15-2023	Included	55
4543 (Res.)	8-15-2023	Included	55
3985	9- 5-2023	Omitted	55
3986	9- 5-2023	Included	55
3987	9- 5-2023	Omitted	55
3988	9- 5-2023	Omitted	55
4544 (Res.)	9-19-2023	Included	55
3989	10- 3-2023	Omitted	56
4545 (Res.)	10- 3-2023	Included	56
4546 (Res.)	10- 3-2023	Included	56
3990	10-17-2023	Omitted	56
3991	10-17-2023	Omitted	56
3992	10-17-2023	Included	56
4547 (Res.)	10-17-2023	Included	56
4548 (Res.)	10-17-2023	Included	56
4549 (Res.)	11- 7-2023	Included	56
4550 (Res.)	11- 7-2023	Included	56
3993	11-21-2023	Omitted	56
3994	12- 5-2023	Omitted	56
3995	12- 5-2023	Omitted	56
3996	12- 5-2023	Omitted	56
3997	12- 5-2023	Omitted	56
4551 (Res.)	12- 5-2023	Included	56
4552 (Res.)	12- 5-2023	Included	56
4553 (Res.)	12- 5-2023	Included	56
3998	12-19-2023	Omitted	56
3999	12-19-2023	Omitted	56
4000	12-19-2023	Omitted	56
4001	12-19-2023	Omitted	56
4002	12-19-2023	Omitted	56
4003	12-19-2023	Omitted	56
4004	12-19-2023	Omitted	56
4005	12-19-2023	Omitted	56
4006	12-19-2023	Omitted	56

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4554 (Res.)	12-19-2023	Included	56
4555 (Res.)	12-19-2023	Included	56
4556 (Res.)	12-19-2023	Included	56
4557 (Res.)	12-19-2023	Included	56
4558 (Res.)	12-19-2023	Included	56
4559 (Res.)	12-19-2023	Included	56
4007	2- 6-2024	Omitted	56
4008	2- 6-2024	Omitted	56
4560 (Res.)	2- 6-2024	Included	56
4561 (Res.)	2- 6-2024	Included	56
4009	2-20-2024	Omitted	56
4562 (Res.)	2-20-2024	Included	56
4563 (Res.)	2-20-2024	Included	56
4564 (Res.)	2-20-2024	Included	56
4565 (Res.)	2-20-2024	Included	56
4566 (Res.)	2-20-2024	Included	56
4567 (Res.)	2-20-2024	Included	56
4010	3- 5-2024	Omitted	56
4011	3- 5-2024	Included	56
4568 (Res.)	3- 5-2024	Included	56
4569 (Res.)	3- 5-2024	Included	56
4012	3-19-2024	Omitted	56
4013	3-19-2024	Omitted	56
4014	3-19-2024	Omitted	56
4015	3-19-2024	Omitted	56
4016	3-19-2024	Omitted	56
4017	3-19-2024	Omitted	56
4570 (Res.)	3-19-2024	Included	56
4571 (Res.)	3-19-2024	Included	56
158 (Redev. Res.)	3-19-2024	Included	56
4018	4- 2-2024	Included	56
4019	4- 2-2024	Included	56
4020	4-16-2024	Omitted	56
4021	4-16-2024	Included	56
4572 (Res.)	4-16-2024	Included	56
4573 (Res.)	5- 7-2024	Included	56
4022	5-21-2024	Included	56
4023	5-21-2024	Included	56
4024	5-21-2024	Omitted	56
4574 (Res.)	5-21-2024	Included	56
4575 (Res.)	5-21-2024	Included	56
4576 (Res.)	5-21-2024	Included	56
4577 (Res.)	5-21-2024	Included	56
4025	6- 4-2024	Omitted	56

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4026	6- 4-2024	Omitted	56
4027	6- 4-2024	Omitted	56
4578 (Res.)	6- 4-2024	Included	56
4579 (Res.)	6- 4-2024	Included	56
4580 (Res.)	6- 4-2024	Included	56
4581 (Res.)	6- 4-2024	Included	56
4582 (Res.)	6- 4-2024	Included	56
4028	6- 4-2024	Included	57
4029	6-18-2024	Omitted	57
4030	6-18-2024	Omitted	57
4031	6-18-2024	Omitted	57
4032	6-18-2024	Omitted	57
4033	6-18-2024	Included	57
159 (Res.)	6-18-2024	Included	57
4583 (Res.)	6-18-2024	Included	57
4584 (Res.)	6-18-2024	Included	57
4585 (Res.)	6-18-2024	Included	57
4586 (Res.)	6-18-2024	Included	57
4587 (Res.)	6-18-2024	Included	57
4034	7- 2-2024	Omitted	57
4035	7- 2-2024	Omitted	57
4588 (Res.)	7- 2-2024	Included	57
4589 (Res.)	7- 2-2024	Included	57
4590 (Res.)	7- 2-2024	Included	57
4036	7-16-2024	Omitted	57
4037	7-16-2024	Omitted	57
4591 (Res.)	8- 6-2024	Included	57
4038	9- 3-2024	Included	57
4039	9- 3-2024	Omitted	57
4593 (Res.)	9-17-2024	Included	57
4594 (Res.)	9-17-2024	Included	57
4595 (Res.)	9-17-2024	Included	57
4596 (Res.)	9-17-2024	Included	57
4040	10- 1-2024	Included	57
4597 (Res.)	10- 1-2024	Included	57
4041	10-15-2024	Included	57
4043	11- 6-2024	Included	57
4047	12- 3-2024	Omitted	57
4048	12- 3-2024	Omitted	57
4600 (Res.)	12- 3-2024	Included	57
4601 (Res.)	12- 3-2024	Included	57
4602 (Res.)	12- 3-2024	Included	57
4603 (Res.)	12- 3-2024	Included	57
4053	1- 7-2025	Included	57

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4606 (Res.)	1- 7-2025	Included	57
4056	2- 4-2025	Omitted	57
4057	2- 4-2025	Included	57
4058	2- 4-2025	Included	57
4610 (Res.)	2- 4-2025	Included	57
4611 (Res.)	2- 4-2025	Included	57
4612 (Res.)	2- 4-2025	Included	57
4613 (Res.)	2- 4-2025	Included	57
4042	11- 6-2024	Included	58
4044	11- 6-2024	Included	58
4598 (Res.)	11- 6-2024	Included	58
4045	11-19-2024	Omitted	58
4046	11-19-2024	Included	58
4599 (Res.)	11-19-2024	Included	58
4049	12-17-2024	Included	58
4050	12-17-2024	Omitted	58
4051	12-17-2024	Omitted	58
4052	12-17-2024	Omitted	58
4604 (Res.)	12-17-2024	Included	58
4605 (Res.)	12-17-2024	Included	58
4054	1-21-2025	Omitted	58
4055	1-21-2025	Omitted	58
4607 (Res.)	1-21-2025	Included	58
4608 (Res.)	1-21-2025	Included	58
4609 (Res.)	1-21-2025	Included	58
4059	2-18-2025	Omitted	58
4060	2-18-2025	Omitted	58
4061	2-18-2025	Omitted	58
4062	3- 4-2025	Included	58
4063	3- 4-2025	Omitted	58
4614 (Res.)	3- 4-2025	Included	58
4615 (Res.)	3- 4-2025	Included	58
4616 (Res.)	3- 4-2025	Included	58
4617 (Res.)	3- 4-2025	Included	58
4064	3-18-2025	Omitted	58
4065	3-18-2025	Omitted	58
4066	3-18-2025	Omitted	58
4618 (Res.)	3-18-2025	Included	58
4619 (Res.)	3-18-2025	Included	58
4067	4- 1-2025	Omitted	58
4620 (Res.)	4- 1-2025	Included	58
4621 (Res.)	4- 1-2025	Included	58
4622 (Res.)	4- 1-2025	Included	58
4068	4-15-2025	Omitted	58

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4069	4-15-2025	Omitted	58
4070	4-15-2025	Omitted	58
4071	4-15-2025	Omitted	58
4072	4-15-2025	Omitted	58
4073	4-15-2025	Omitted	58
4074	4-15-2025	Included	58
4623 (Res.)	4-15-2025	Included	58
4624 (Res.)	4-15-2025	Included	58
4075	5-20-2025	Included	58
4628 (Res.)	5-20-2025	Included	58
4629 (Res.)	5-20-2025	Included	58
4630 (Res.)	5-20-2025	Included	58
4631 (Res.)	6- 3-2025	Included	58
4632 (Res.)	6- 3-2025	Included	58
4076	6-17-2025	Omitted	58
4077	6-17-2025	Omitted	58
4078	6-17-2025	Omitted	58
4079	6-17-2025	Omitted	58
4080	6-17-2025	Included	58
4081	6-17-2025	Omitted	58
4082	6-17-2025	Included	58
4633 (Res.)	6-17-2025	Included	58
4634 (Res.)	6-17-2025	Included	58
4635 (Res.)	7-15-2025	Included	58
4637 (Res.)	7-15-2025	Included	58
4638 (Res.)	7-15-2025	Included	58
4083	7-15-2025	Included	59
4084	7-15-2025	Included	59
4085	7-15-2025	Included	59
4086	7-15-2025	Included	59
4087	7-15-2025	Included	59
4088	7-15-2025	Included	59
4089	7-15-2025	Included	59
4090	7-15-2025	Included	59
4091	7-15-2025	Included	59
4092	7-15-2025	Included	59
4093	8- 5-2025	Omitted	59
4094	8- 5-2025	Omitted	59
4095	8- 5-2025	Omitted	59
4096	8- 5-2025	Omitted	59
4097	8- 5-2025	Omitted	59
4639 (Res.)	8- 5-2025	Included	59
4641 (Res.)	8- 5-2025	Included	59
4098	8-19-2025	Omitted	59

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4099	8-19-2025	Omitted	59
4636 (Res.)	8-19-2025	Included	59
4642 (Res.)	8-19-2025	Included	59
4643 (Res.)	8-19-2025	Included	59
4100	9- 2-2025	Omitted	59
4101	9- 2-2025	Included	59
4644 (Res.)	9- 2-2025	Included	59
4645 (Res.)	9- 2-2025	Included	59
4102	9-16-2025	Omitted	59
4103	9-16-2025	Omitted	59
4104	9-16-2025	Omitted	59
4105	9-16-2025	Omitted	59
4106	9-16-2025	Omitted	59
4107	9-16-2025	Omitted	59
4640 (Res.)	9-16-2025	Included	59
4108	10- 7-2025	Omitted	59
4109	10- 7-2025	Omitted	59
4646 (Res.)	10- 7-2025	Included	59
4647 (Res.)	10- 7-2025	Included	59
4110	10-21-2025	Omitted	59
4111	10-21-2025	Omitted	59
4112	10-21-2025	Omitted	59
4113	10-21-2025	Included	59
4114	10-21-2025	Omitted	59
4115	10-21-2025	Included	59
4116	10-21-2025	Omitted	59
4648 (Res.)	10-21-2025	Included	59
4650 (Res.)	10-21-2025	Included	59
4652 (Res.)	11- 4-2025	Included	59
4653 (Res.)	11- 4-2025	Included	59
4654 (Res.)	11- 4-2025	Included	59
4666 (Res.)	11-24-2025	Included	59
4121	12- 2-2025	Omitted	59
4122	12- 2-2025	Omitted	59
4123	12- 2-2025	Omitted	59
4124	12- 2-2025	Omitted	59
4125	12- 2-2025	Omitted	59
4126	12- 2-2025	Omitted	59
4127	12- 2-2025	Omitted	59
4128	12- 2-2025	Omitted	59
4129	12- 2-2025	Omitted	59
4130	12- 2-2025	Omitted	59
4131	12- 2-2025	Omitted	59
4132	12- 2-2025	Included	59

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4667 (Res.)	12- 2-2025	Included	59
4133	12-16-2025	Omitted	59
4134	12-16-2025	Omitted	59
4135	12-16-2025	Omitted	59
4136	12-16-2025	Omitted	59
4137	12-16-2025	Included	59
4138	12-16-2025	Included	59
4139	12-16-2025	Included	59
4668 (Res.)	12-16-2025	Included	59
4140	1- 6-2026	Omitted	59
4141	1- 6-2026	Omitted	59
4142	1- 6-2026	Included	59
4669 (Res.)	1- 6-2026	Included	59
4670 (Res.)	1- 6-2026	Included	59
4671 (Res.)	1- 6-2026	Included	59
4143	1-20-2026	Omitted	59
4144	1-20-2026	Omitted	59
161 (Res.)	1-20-2026	Included	59
4672 (Res.)	2- 3-2026	Included	59
4673 (Res.)	2- 3-2026	Included	59
4145	2-17-2026	Omitted	59
4146	2-17-2026	Omitted	59
4674 (Res.)	2-17-2026	Included	59
4150	3-17-2026	Omitted	59
4151	3-17-2026	Omitted	59
4152	3-17-2026	Included	59
4676 (Res.)	3-17-2026	Included	59
4153	4- 7-2026	Omitted	59
4154	4- 7-2026	Included	59
4677 (Res.)	4- 7-2026	Included	59
4678 (Res.)	4- 7-2026	Included	59
4155	4-21-2026	Omitted	59
4679 (Res.)	4-21-2026	Included	59
4680 (Res.)	4-21-2026	Included	59
4681 (Res.)	4-21-2026	Included	59
4156	5- 5-2026	Omitted	59
4157	5- 5-2026	Included	59
4158	5- 5-2026	Omitted	59
4159	5- 5-2026	Omitted	59
4160	5- 5-2026	Omitted	59
4682 (Res.)	5- 5-2026	Included	59
4683 (Res.)	5- 5-2026	Included	59
4161	5-19-2026	Omitted	59
4162	5-19-2026	Omitted	59

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
4684 (Res.)	5-19-2026	Included	59
4685 (Res.)	5-19-2026	Included	59
4163	6-16-2026	Included	59
4687 (Res.)	6-16-2026	Included	59
4688 (Res.)	6-16-2026	Included	59
162 (Res.)	6-16-2026	Included	59

HENDERSON CITY CHARTER

CHAPTER 266, STATUTES OF NEVADA 1971

Article I. Incorporation of City; General Powers; Boundaries; Wards and Annexations; City Offices

Sec. 1.010 Preamble: Legislative intent.
Sec. 1.020 Incorporation of City.
Sec. 1.030 Description of territory.
Sec. 1.040 Wards: Creation; boundaries.
Sec. 1.050 Annexations.
Sec. 1.060 Elective offices.
Sec. 1.070 Elective offices: Vacancies.
Sec. 1.080 Mayor and Council Members not to hold other office.
Sec. 1.090 Executive Officers.
Sec. 1.100 Executive Officers: Duties; salary.
Sec. 1.110 Oath of office.
Sec. 1.120 Charter Committee: Appointment; qualifications; compensation; terms; vacancies.
Sec. 1.130 Charter Committee: Officers; meetings; duties.
Sec. 1.140 Charter Committee: Removal of member.

Article II. Legislative Department

Sec. 2.010 City Council: Qualifications; election; term of office; salary.
Sec. 2.020 City Council: Contracts.
Sec. 2.030 City Council: Discipline of members, other persons, subpoena power.
Sec. 2.040 Meetings: Quorum.
Sec. 2.050 Meetings: Special.
Sec. 2.060 Meetings: Time and place; rules.
Sec. 2.070 Oaths and affirmations.
Sec. 2.080 Powers of City Council: Ordinances, resolutions and orders.
Sec. 2.090 Ordinances: Passage by bill; amendments; subject matter; title requirements.
Sec. 2.100 Ordinances: Enactment procedure; emergency ordinances.
Sec. 2.110 Powers of City Council: Public property, buildings.
Sec. 2.120 Powers of City Council: Eminent domain.
Sec. 2.130 Powers of City Council: Licensing, regulation and prohibition of businesses, trades and professions.
Sec. 2.140 Powers of City Council: Police ordinances.
Sec. 2.160 Powers of City Council: Fire protection; regulation of explosives, inflammable materials; fire codes and regulations.
Sec. 2.170 Powers of City Council: Public health; Board of Health; regulations.
Sec. 2.180 Powers of City Council: Buildings; construction and maintenance regulations; building and safety codes.

Sec. 2.190 Powers of City Council: Zoning and planning.
Sec. 2.200 Powers of City Council: Rights-of-way, parks, public buildings and grounds and other public places.
Sec. 2.210 Powers of City Council: Traffic control.
Sec. 2.220 Powers of City Council: Parking meters; off-street public parking facilities.
Sec. 2.225 Powers of City Council: Airports.
Sec. 2.230 Powers of City Council: Railroads.
Sec. 2.240 Powers of City Council: Nuisances.
Sec. 2.250 Powers of City Council: Animals.
Sec. 2.260 Powers of City Council: Abatement of noxious insects, rats and disease-bearing organisms.
Sec. 2.270 Powers of City Council: Sanitary sewer facilities.
Sec. 2.280 Powers of City Council: Provision of utilities.
Sec. 2.285 Franchises for the provision of telecommunication service.
Sec. 2.310 Apportionment of County General Road Fund; use of money by City Council.
Sec. 2.320 Sale or lease of real property owned by the City: Procedure; disposition of proceeds.

Article III. Executive Department

Sec. 3.010 Mayor: Duties; mayor pro tempore.
Sec. 3.020 City Manager: Duties.
Sec. 3.030 City Manager: Removal.
Sec. 3.040 City Clerk: Duties.
Sec. 3.060 City Attorney: Qualifications; duties.
Sec. 3.070 County assessor to be ex officio City Assessor; duties.
Sec. 3.110 Executive Officers: Residence.
Sec. 3.130 Collection and disposition of money.
Sec. 3.140 Interference by City Council.
Sec. 3.150 Removal of certain Executive Officers.

Article IV. Judicial Department

Sec. 4.015 Municipal Court.
Sec. 4.020 Municipal Court: Qualifications of Municipal Judge; salary.
Sec. 4.030 Disposition of fines.

Article V. Elections

Sec. 5.010 Primary municipal election.
Sec. 5.020 General municipal election.
Sec. 5.030 Applicability of state election laws; elections under City Council control.
Sec. 5.040 Qualifications, registration of voters.
Sec. 5.050 Names on ballots.
Sec. 5.060 Ballots for ordinances and charter amendments.
Sec. 5.070 Availability of lists of registered voters.

Sec. 5.090 Voting machines.
Sec. 5.100 Election returns; canvass; certificates of election; entry of officers upon duties; tie vote procedure.
Sec. 5.110 Contest of election.
Sec. 5.120 Continuation of certain officers.

Article VI. Local Improvements

Sec. 6.010 Local improvement law.
Sec. 6.020 Local improvement law: Collateral powers.

Article VII. Local Bonds and Franchises

Sec. 7.010 Debt limit.
Sec. 7.020 Acquisition, operation of municipal utilities.
Sec. 7.040 Borrowing money.

Article VIIA. Trusts for Furtherance of Public Functions

Sec. 7A.010 Trusts for furtherance of public functions: Authorization to create; purposes; eligible beneficiaries; power of beneficiary to lease trust property.
Sec. 7A.020 Creation by written instrument; execution, recording of trust instrument; acceptance by beneficiary creates contract between State, grantor; duration of trust.
Sec. 7A.030 Trustees: Appointment; succession, powers; duties, terms, compensation controlled by trust instrument.
Sec. 7A.040 Trustees: Eligibility and status; standard of care; exemption from personal liability.
Sec. 7A.050 Annual audit of trust funds, accounts, fiscal affairs: Requirements; distribution of copies; expenses.
Sec. 7A.060 Franchise not required for acquisition, ownership or operation of trust property.
Sec. 7A.070 Approval of certain contracts and resolutions required.
Sec. 7A.080 Approval of financing method, underwriters by state board of finance.
Sec. 7A.090 Exemption from securities laws.
Sec. 7A.100 Competitive bidding not required.
Sec. 7A.110 Termination of trust.

Article VIII. Revenue

Sec. 8.010 Municipal taxes.
Sec. 8.020 Revenue ordinances.

Article IX. Civil Service

Sec. 9.010 System of Civil Service.

Article X. Miscellaneous Provisions

Sec. 10.010 Severability of provisions.
Sec. 10.020 Effect of enactment of charter.

AN ACT incorporating the City of Henderson, in Clark County, Nevada, and defining the boundaries thereof, under a new charter; and providing other matters properly relating thereto.

[Approved April 13, 1971]

ARTICLE I. INCORPORATION OF CITY; GENERAL POWERS; BOUNDARIES; WARDS AND ANNEXATIONS; CITY OFFICES

Section 1.010 Preamble: Legislative intent.

1. In order to provide for the orderly government of the City of Henderson and the general welfare of its citizens the legislature hereby establishes this charter for the government of the City of Henderson. It is expressly declared as the intent of the legislature that all provisions of this charter be liberally construed to carry out the express purposes of the charter and that the specific mention of particular powers shall not be construed as limiting in any way the general powers necessary to carry out the purposes of the charter.

2. Any powers expressly granted by this charter are in addition to any powers granted to a city by the general law of this state. All provisions of Nevada Revised Statutes which are applicable generally to cities (not including, unless otherwise expressly mentioned in this charter, chapter 265, 266 or 267 of NRS) which are not in conflict with the provisions of this charter apply to the City of Henderson.

3. Except as otherwise expressly provided in a particular section or required by the context:

(a) The masculine gender includes the feminine and neuter genders.

(b) The singular number includes the plural number and the plural includes the singular.

(c) The present tense includes the future tense.

The use of a masculine noun or pronoun in conferring a benefit or imposing a duty does not exclude a female person from that benefit or duty. The use of a feminine noun or pronoun in conferring a benefit or imposing a duty does not exclude a male person from that benefit or duty.
(Ch. 266, Stats. 1971 p. 402; A—Ch. 596, Stats. 1995, p. 2205)

Section 1.020 Incorporation of City.

1. All persons who are inhabitants of that portion of the State of Nevada embraced within the limits set forth in section 1.030 shall constitute a political and corporate body by the name of "City of Henderson" and by that name they and their successors shall be known in law, have perpetual succession and may sue or be sued in all courts.

2. Whenever used throughout this charter, "City" means the City of Henderson.
(Ch. 266, Stats. 1971 p. 402)

Section 1.030 Description of territory.

The territory embraced in the City is that certain land described in the official plat required by NRS 234.250 to be filed with the County Recorder and County Assessor of Clark County, as such plat is revised from time to time.
(Ch. 266, Stats. 1971 p. 403)

Section 1.040 Wards: Creation; boundaries.

1. The City must be divided into four wards, which must be as nearly equal in population as can be conveniently provided, and the territory comprising each ward must be contiguous.

2. The boundaries of wards must be established and changed by ordinance. Except as provided in subsection 3, the boundaries of wards must be changed whenever the population, as determined by the City's demographer and as revised figures are provided by the planning department of the city, in any ward exceeds the population in any other ward by more than 5 percent.

3. The boundaries of wards must not be changed, except to accommodate an annexation of territory to the City, during any year in which a general election is held.
(Ch. 266, Stats. 1971 p. 403; A—Ch. 34, Stats. 1973 p. 35; Ch. 89, Stats. 1981 p. 188; Ch. 596, Stats. 1995 p. 2205; Ch. 266, Stats. 2013 p. 1206)

Section 1.050 Annexations.

The City may annex territory by following the procedure provided for the annexation of cities in those sections of chapter 268 of NRS, as amended from time to time, which apply to a county whose population is 700,000 or more.
(Ch. 266, Stats. 1971 p. 403; A—Ch. 796, Stats. 1989 p. 1935; Ch. 253, Stats. 2011 p. 1317)

Section 1.060 Elective offices.

1. The elective officers of the City consist of:

(a) A Mayor.

(b) One Council Member from each ward.

(c) Municipal Judges.

2. Such officers shall be elected as provided by this Charter.

(Ch. 266, Stats. 1971 p. 403; A—Ch. 231, Stats. 1991 p. 511; Ch. 350, Stats. 2019 p. 2176)

Section 1.070 Elective offices: Vacancies.

1. Subject to the limitations set forth in this section, a vacancy in the City Council or in the office of Mayor or Municipal Judge must be filled for the remainder of the unexpired term by:

(a) A majority vote of the members of the City Council, or the remaining members in the case of a vacancy in the City Council, within 60 days after the occurrence of the vacancy appointing a person who has the same qualifications as are required of the elective official; or

(b) A special election called by resolution of the City Council. The City Council shall adopt the resolution within 60 days after the occurrence of the vacancy and specify the date of the special election in the resolution. The resolution must call for the special election to be held not later than 90 days after the date on which the City Council adopts the resolution, but no special election to fill a vacancy pursuant to this paragraph may be held during the period starting on the date immediately following a municipal primary election and ending 120 days after the date of a municipal general election. Every candidate at a special election held pursuant to this paragraph must have the same qualifications as are required of the elective official.

2. If a special election is held pursuant to this section:

(a) The City Council shall meet to canvass the election returns and declare the result pursuant to section 5.100; and

(b) The person elected to fill the remainder of an unexpired term shall enter upon the discharge of his or her respective duties at the first meeting of the City Council held after the canvass of returns is made.

3. A person appointed or elected to fill a vacancy pursuant to this section serves until his or her successor has been elected and qualified.

(Ch. 266, Stats. 1971 p. 403; A—Ch. 596, Stats. 1995 p. 2206; Ch. 515, Stats. 1997 p. 2450; Ch. 266, Stats. 2013 p. 1206; Ch. 49, Stats. 2025 p. 260)

Section 1.080 Mayor and Council Members not to hold other office.

1. The Mayor and Council Members shall not:

(a) Hold any other elective office with the State of Nevada or any of its political subdivisions or any other employment with the City, except as provided by law, as a member of a board or commission which is ancillary to the office which he holds or as a member of the board of trustees of a county school district.

(b) Be elected or appointed to any office created by or the compensation for which was increased or fixed by the City Council until one year after the expiration of the term for which he was elected.

2. Any person holding any office proscribed by subsection 1 automatically forfeits his office as Mayor or Council member.
(Ch. 266, Stats. 1971 p. 403; A—Ch. 231, Stats. 1991 p. 511)

Section 1.090 Executive Officers.

1. The City Council of the City shall appoint the following Executive Officers:

(a) City Manager.

(b) City Attorney.

(c) City Clerk.

2. The City Council may establish such other Executive Officers as it may deem necessary for the operation of the City. Appointment of such Executive Officers must be made by the City Manager.

3. The appointments of the following Executive Officers are subject to ratification of the City Council:

(a) Chief of Police.

(b) Assistant City Manager.

(c) Fire Chief.

(d) Chief Financial Officer.
(Ch. 266, Stats. 1971 p. 403; A—Ch. 596, Stats. 1995 p. 2206; Ch. 266, Stats. 2013 p. 1207)

Section 1.100 Executive Officers: Duties; salary.

1. All Executive Officers other than the City Attorney and City Clerk shall perform such duties as may be designated by the City Manager.

2. All Executive Officers of the City shall receive such salary as may be designated by the City Council.
(Ch. 266, Stats. 1971 p. 404; A—Chapter 266, Stats. 2013 p. 1207)

Section 1.110 Oath of office.

Every person elected or appointed to fill any elective office shall subscribe to the official oath as provided by the City Council. Every such person shall swear or affirm that he is not under any direct or indirect obligation to vote for, appoint or elect any person to any office, position or employment in the City government.
(Ch. 266, Stats. 1971 p. 404)

Section 1.120 Charter Committee: Appointment; qualifications; compensation; terms; vacancies.

1. The Charter Committee must be appointed as follows:

(a) The Mayor shall appoint two members;

(b) The Mayor pro tempore shall appoint two members;

(c) The remaining members of the City Council shall each appoint one member;

(d) The members of the Senate delegation representing the residents of the City and belonging to the majority party of the Senate shall appoint two members;

(e) The members of the Senate delegation representing the residents of the City and belonging to the minority party of the Senate shall appoint one member;

(f) The members of the Assembly delegation representing the residents of the City and belonging to the majority party of the Assembly shall appoint two members; and

(g) The members of the Assembly delegation representing the residents of the City and belonging to the minority party of the Assembly shall appoint one member.

2. Each member of the Charter Committee:

(a) Must be a registered voter of the City;

(b) Must reside in the City during his or her term of office; and

(c) Serves without compensation.

3. The term of office of a member of the Charter Committee is concurrent with the term of the person or persons, as applicable, by whom the member was appointed. If the term of office of any person making an appointment ends by resignation or otherwise, the term of office of a member of the Charter Committee appointed by that person ends on the day that the person resigns or otherwise leaves office.

4. If a vacancy occurs on the Charter Committee, the vacancy must be filled in the same manner as the original appointment for the remainder of the unexpired term.
(Added—Ch. 266, Stats. 2013 p. 1205)

Section 1.130 Charter Committee: Officers; meetings; duties.

The Charter Committee shall:

1. Elect a Chair and Vice Chair from among its members, who each serve for a term of 2 years;

2. Meet at least once every 2 years before the beginning of each regular session of the Legislature and when requested by the City Council or the Chair of the Committee; and

3. Appear before the City Council on a date to be set after the final biennial meeting of the Charter Committee is conducted pursuant to subsection 2 and before the beginning of the next regular session of the Legislature to advise the City Council with regard to the recommendations of the Charter Committee concerning necessary amendments to this Charter.
(Added—Ch. 266, Stats. 2013 p. 1205)

Section 1.140 Charter Committee: Removal of member.

1. Any member of the Charter Committee may be removed by a majority of the remaining members of the Charter Committee for cause, including, without limitation:

(a) Failure or refusal to perform the duties of office;

(b) Absence from three consecutive regular meetings; or

(c) Ceasing to meet any qualification for appointment to the Charter Committee.

2. Any vacancy resulting from the removal of a member pursuant to this section must be filled pursuant to subsection 4 of section 1.120.
(Added—Ch. 266, Stats. 2013 p. 1205)

ARTICLE II. LEGISLATIVE DEPARTMENT

Section 2.010 City Council: Qualifications; election; term of office; salary.

1. The legislative power of the City is vested in a City Council consisting of one Council Member from each ward and the Mayor.

2. The Mayor must be:

(a) A bona fide resident of the territory which is established by the boundaries of the City for the 12 months immediately preceding the last day for filing a declaration of candidacy for the office.

(b) A qualified elector within the City.

3. Each Council Member must be:

(a) A bona fide resident of the territory which is established by the boundaries of the City for the 12 months immediately preceding the last day for filing a declaration of candidacy for the office.

(b) A qualified elector within the ward which he represents.

(c) A resident of the ward which he represents for at least 30 days immediately preceding the last day for filing a declaration of candidacy for the office, except that changes in ward boundaries pursuant to the provisions of section 1.040 do not affect the right of any elected Council Member to continue in office for the term for which he or she was elected.

4. All Council Members, including the Mayor, except as otherwise provided in sections 5.020 and 5.120, shall serve for terms of 4 years.

5. The Mayor and Council Members are entitled to receive a salary in an amount fixed by the City Council. The City Council shall not adopt an ordinance which increases or decreases the salary of the Mayor or the Council Members during the term for which they have been elected or appointed.
(Ch. 266, Stats. 1971 p. 404; A—Ch. 98, Stats. 1977 p. 206; Ch. 23, Stats. 1993 p. 45; Ch. 596, Stats. 1995 p. 2206; Ch. 218, Stats. 2011 p. 955; Ch. 558, Stats. 2019 p. 3551; Ch. 350, Stats. 2019 p. 2177)

Section 2.020 City Council: Contracts.

Members of the City Council may vote on any lease, contract or other agreement which extends beyond their terms of office.
(Ch. 266, Stats. 1971 p. 405)

Section 2.030 City Council: Discipline of members, other persons, subpoena power.

1. The City Council may:

(a) Provide for the punishment of any member for disorderly conduct committed in its presence.

(b) Order the attendance of witnesses and the production of all documents and data relating to any business before the City Council.

2. If any person ordered to appear before the City Council or to produce documents or data fails to obey such order:

(a) The City Council or any member thereof may direct the City Attorney to apply to the Municipal Court for a subpoena commanding the attendance of the person before the City Council or production of the documents or data to the City Council.

(b) A Municipal Judge may issue the subpoena, and any peace officer may serve it.

(c) If the person upon whom the subpoena is served fails to obey it, the Municipal Court may issue an order to show cause why such person should not be held in contempt of the Municipal Court and upon hearing of the matter may adjudge such person guilty of contempt and punish him accordingly.

(Ch. 266, Stats. 1971 p. 405; A—Ch. 266, Stats. 2013 p. 1208)

Section 2.040 Meetings: Quorum.

1. The City Council shall hold at least two regular meetings each month, and by ordinance may provide for additional regular meetings.

2. Except as otherwise provided in NRS 241.0355, a majority of all members of the City Council constitutes a quorum to do business, but a lesser number may meet and recess from time to time, and compel the attendance of the absent members.

3. Except as otherwise provided by law, all sessions and all proceedings of the City Council must be public.

(Ch. 266, Stats. 1971 p. 405; A—Ch. 255, Stats. 2001 p.1130)

Section 2.050 Meetings: Special.

1. Special meetings may be held on call of the Mayor or by a majority of the City Council, by giving notice of the special meeting pursuant to NRS 241.020.

2. At a special meeting no contract involving the expenditure of money may be made or claim allowed unless notice of the meeting called to consider the action is given pursuant to the provisions of NRS 241.020.
(Ch. 266, Stats. 1971 p. 405; A—Ch. 596, Stats. 1995 p. 2207)

Section 2.060 Meetings: Time and place; rules.

The City Council may:

1. Fix the time and place of its meetings and judge the qualifications and election of its own members.

2. Adopt rules for the government of its members and proceedings.
(Ch. 266, Stats. 1971 p. 405)

Section 2.070 Oaths and affirmations.

The Mayor, the Mayor pro tempore while acting for the Mayor and the City Clerk may administer oaths and affirmations relating to any business pertaining to the City before the City Council or to be considered by the City Council.
(Ch. 266, Stats. 1971 p. 405)

Section 2.080 Powers of City Council: Ordinances, resolutions and orders.

1. The City Council may make and pass all ordinances, resolutions and orders not repugnant to the Constitution of the United States or the State of Nevada, or to the provisions of Nevada Revised Statutes or of this charter, necessary for the municipal government and the management of the affairs of the City, and for the execution of all the powers vested in the City.

2. When power is conferred upon the City Council to do and perform anything, and the manner of exercising such power is not specifically provided for, the City Council may provide by ordinance the manner and details necessary for the full exercise of such power.

3. The City Council may enforce ordinances by providing penalties not to exceed those established by the legislature for misdemeanors.

4. The City Council has such powers, not in conflict with the express or implied provisions of this charter, as are conferred generally by statute upon the governing bodies of cities organized under a special charter.
(Ch. 266, Stats. 1971 p. 406; A—Ch. 596, Stats. 1995 p. 2207)

Section 2.090 Ordinances: Passage by bill; amendments; subject matter; title requirements.

1. No ordinance may be passed except by bill and by a majority vote of the whole City Council. The style of all ordinances shall be as follows: "The City Council of the City of Henderson does ordain:".

2. No ordinance shall contain more than one subject, which shall be briefly indicated in the title. Where the subject of the ordinance is not so expressed in the title, the ordinance is void as to the matter not expressed in the title.

3. Any ordinance which amends an existing ordinance shall set out in full the ordinance or sections thereof to be amended, and shall indicate matter to be omitted by enclosing it in brackets and shall indicate new matter by underscoring or by italics.
(Ch. 266, Stats. 1971 p. 406)

Section 2.100 Ordinances: Enactment procedure; emergency ordinances.

1. All proposed ordinances when first proposed must be read to the City Council by title and may be referred to a committee for consideration, after which an adequate number of copies of the proposed ordinance must be filed with the City Clerk for public distribution. Except as otherwise provided in subsection 4, notice of the filing must be published once in a newspaper qualified pursuant to the provisions of chapter 238 of NRS, and published in the City at least 10 days before the adoption of the ordinance. The City Council must adopt or reject the ordinance or an amendment thereto, within 60 days after the date of publication.

2. If a proposed ordinance is referred to a committee, at a regular meeting or special meeting of the City Council following the proposal of an ordinance and its reference to committee, the committee shall consider the ordinance and report its recommendations back to the City Council. If a proposed ordinance is not referred to a committee, the City Council shall consider the ordinance in substantially the same form as proposed.

3. Regardless of whether a proposed ordinance is referred to a committee, at a regular meeting or special meeting of the City Council, the title of the proposed ordinance must be read and the City Council must vote to adopt, revise or postpone consideration of the proposed ordinance.

4. In cases of emergency or where the ordinance is of a kind specified in section 7.040, by unanimous consent of the City Council, final action may be taken immediately or at a special meeting called for that purpose, and no notice of the filing of the copies of the proposed ordinance with the City Clerk need be published.

5. All ordinances must be signed by the Mayor, attested by the City Clerk and published at least once by title, together with the names of the Council Members voting for or against passage, in a newspaper qualified pursuant to the provisions of chapter 238 of NRS and published in the City, before the ordinance becomes effective. The City Council may, by majority vote, order the publication of the ordinance in full in lieu of publication by title only.

6. The City Clerk shall keep a record of all ordinances together with the affidavits of publication.
(Ch. 266, Stats. 1971 p. 406; A—Ch. 149, Stats. 1973 p. 204; Ch. 160, Stats. 1983 p. 370; Ch. 596, Stats. 1995 p. 2208; Ch. 266, Stats. 2013 p. 1208; Ch. 49, Stats. 2025 p. 261)

Section 2.110 Powers of City Council: Public property, buildings.

The City Council may:

1. Control the property of the corporation.

2. Erect and maintain all buildings necessary for the use of the City.

3. Purchase, receive, hold, sell, lease, convey and dispose of property, wherever situated, for the benefit of the City, improve and protect such property, and do all other things in relation thereto which natural persons might do.
(Ch. 266, Stats. 1971 p. 407; A—Ch. 596, Stats. 1995 p. 2209)

Section 2.120 Powers of City Council: Eminent domain.

The City Council may condemn property for the public use in the manner prescribed by chapter 37 of NRS, as amended from time to time.
(Ch. 266, Stats. 1971 p. 407)

Section 2.130 Powers of City Council: Licensing, regulation and prohibition of businesses, trades and professions.

1. The City Council may:

(a) Except as otherwise provided in NRS 598D.150 and NRS 640C.100, regulate all businesses, trades and professions.

(b) Fix, impose and collect a license tax for revenue upon all businesses, trades and professions.

2. The City Council may establish any equitable standard to be used in fixing license taxes required to be collected pursuant to this section.
(Ch. 266, Stats. 1971 p. 407; A - Ch. 465, Stats. 2003 p. 2898; Ch. 325, Stats. 2005 p.1120)

Section 2.140 Powers of City Council: Police ordinances.

1. The City Council may enact and enforce such local police ordinances as are not in conflict with the general laws of the State of Nevada.

2. Any offense made a misdemeanor by the laws of the State of Nevada shall also be deemed to be a misdemeanor in the City whenever such offense is committed within the City.
(Ch. 266, Stats. 1971 p. 407)

Section 2.160 Powers of City Council: Fire protection; regulation of explosives, inflammable materials; fire codes and regulations.

The City Council may:

1. Organize, regulate and maintain a Fire Department.

2. Regulate or prohibit the storage of any explosive, combustible or inflammable material in or transported through the City, and prescribe the distance from any residential or commercial area where it may be kept. Any ordinance adopted pursuant to this subsection that regulates places of employment where explosives are stored must be at least as stringent as the standards and procedures adopted by the Division of Industrial Relations of the Department of Business and Industry pursuant to NRS 618.890

3. Establish, by ordinance, a fire code and other regulations necessary to carry out the purposes of this section.
(Ch. 266, Stats. 1971 p. 407; A—Ch. 391, Stats. 1999 p. 1862)

Section 2.170 Powers of City Council: Public health; Board of Health; regulations.

The City Council may:

1. Provide for safeguarding public health in the City.

2. Provide for the enforcement of all regulations and quarantines established by the County Board of Health by imposing adequate penalties for violations thereof.

(Ch. 266, Stats. 1971 p. 408; A—Ch. 596, Stats. 1995 p. 2209)

Section 2.180 Powers of City Council: Buildings; construction and maintenance regulations; building and safety codes.

The City Council may:

1. Regulate all matters relating to the construction, maintenance and safety of buildings, structures and property within the City.

2. Adopt any building or safety code necessary to carry out the provisions of this section and establish such fees as may be necessary.

(Ch. 266, Stats. 1971 p. 408)

Section 2.190 Powers of City Council: Zoning and planning.

The City Council may adopt ordinances and regulations relating to zoning and planning pursuant to the provisions of chapter 278 of NRS.

(Ch. 266, Stats. 1971 p. 408; A—Ch. 596, Stats. 1995 p. 2209)

Section 2.200 Powers of City Council: Rights-of-way, parks, public buildings and grounds and other public places.

The City Council may:

1. Lay out, maintain, alter, improve or vacate all public rights-of-way in the City.

2. Regulate the use of public parks, buildings, grounds and rights-of-way and prevent the unlawful use thereof.

3. Require landowners to keep the adjacent streets, sidewalks and public parks, buildings and grounds free from encroachments or obstructions.

4. Regulate and prevent in all public places:

(a) The distribution and exhibition of handbills or signs.

(b) Any practice tending to annoy persons passing or being in such public places.

(c) Public demonstrations and processions.

5. Prevent riots or any act tending to promote riots in any public place.
(Ch. 266, Stats. 1971 p. 408)

Section 2.210 Powers of City Council: Traffic control.

The City Council may, by ordinance, regulate:

1. Except as otherwise provided in section 1 of NRS 269.185, all vehicular, pedestrian and other traffic within the City and provide generally for the public safety on public streets and rights-of-way.

2. The length of time for which vehicles may be parked upon the public streets and publicly owned parking lots.
(Ch. 266, Stats. 1971 p. 408; A - Ch. 465, Stats. 2003, p. 1253)

Section 2.220 Powers of City Council: Parking meters; off-street public parking facilities.

1. The City Council may acquire, install, maintain, operate and regulate parking meters at the curbs of the streets or upon publicly owned property made available for public parking. The parking fees to be charged for the use of the parking facilities regulated by parking meters must be fixed by the City Council.

2. Except as otherwise provided by this charter, the City Council may acquire property within the City by any lawful means, including eminent domain, for the purpose of establishing off-street public parking facilities for vehicles. The City Council may, in bonds issued to acquire property for this purpose, pledge the on-street parking revenues, the general credit of the City, or both, to secure the payment of the principal and interest thereon.
(Ch. 266, Stats. 1971 p. 409; A—Ch. 482, Stats. 1981 p. 972; Ch. 91, Stats 1995, p. 110)

Section 2.225 Powers of City Council: Airports.

The City Council may acquire, provide for, operate and maintain an airport for public use.
(Added—Ch. 67, Stats. 1987 p. 132)

Section 2.230 Powers of City Council: Railroads.

The City Council may:

1. License, regulate or prohibit the location, construction or laying of tracks of any railroad or streetcar in any public right-of-way.

2. Grant franchises to any person or corporation to operate a railroad, streetcar or other public transit system upon public rights-of-way and adjacent property.
3. Declare a nuisance and require the removal of the tracks of any railroad or streetcar in any public right-of-way.
4. Condemn rights of way for any public purpose across any railroad right-of-way.
5. Prescribe the length of time any public right-of-way may be obstructed by trains standing thereon.
6. Require railroad companies to fence their tracks and to construct cattle guards and crossings and to keep them in repair.
7. Acquire, provide for, operate and maintain a railroad for public use.

(Ch. 266, Stats. 1971 p. 409; A—Ch. 67, Stats. 1987 p. 132)

Section 2.240 Powers of City Council: Nuisances.

The City Council may:

1. Determine by ordinance what shall be deemed nuisances.
2. Provide for the abatement, prevention and removal of such nuisances at the expense of the person creating, causing or committing such nuisances.
3. Provide that such expense of removal shall be a lien upon the property upon which the nuisance is located. Such lien shall:
   - **(a)** Be perfected by filing with the county recorder a statement by the City Clerk of the amount of expenses due and unpaid and describing the property subject to the lien.
   - **(b)** Be coequal with the latest lien thereon to secure the payment of general taxes.
   - **(c)** Not be subject to extinguishment by the sale of any property on account of the nonpayment of general taxes.
   - **(d)** Be prior and superior to all liens, claims, encumbrances and titles other than the liens of assessments and general taxes.
4. Provide any other penalty or punishment of persons responsible for such nuisances.

(Ch. 266, Stats. 1971 p. 409)

Section 2.250 Powers of City Council: Animals.

The City Council may regulate and control animals in the City and may construct facilities for this purpose.

(Ch. 266, Stats. 1971 p. 410; A—Ch. 596, Stats. 1995 p. 2210; Ch. 266, Stats. 2013 p. 1209)

Section 2.260 Powers of City Council: Abatement of noxious insects, rats and disease-bearing organisms.

The City Council may take all steps necessary and proper for the extermination of noxious insects, rats and other disease-bearing organisms, either in the City or in territory outside the City but so situated that such insects, rats and disease-bearing organisms migrate or are carried into the City.
(Ch. 266, Stats. 1971 p. 410)

Section 2.270 Powers of City Council: Sanitary sewer facilities.

The City Council may:

1. Provide for a sanitary sewer system or any part thereof, and obtain property therefore either within or without the City.

2. Sell any product or byproduct thereof and acquire the appropriate outlets within or without the City and extend the sewer lines thereto.

3. Establish sewer fees and provide for the enforcement and collection thereof.
(Ch. 266, Stats. 1971 p. 410)

Section 2.280 Powers of City Council: Provision of utilities.

1. Except as otherwise provided in subsection 2 and section 2.285, the City Council may:

(a) Provide, by contract, franchise or public enterprise, for any utility to be furnished to the City for the residents thereof.

(b) Provide for the construction of any facility necessary for the provision of such utilities.

(c) Fix the rate to be paid for any utility provided by public enterprise. Any charges due for services, facilities or commodities furnished by any utility owned by the City is a lien upon the property to which the service is rendered and must be perfected by filing with the County Recorder of Clark County a statement by the City Clerk of the amount due and unpaid and describing the property subject to the lien. Each such lien must:

(1) Be coequal with the latest lien thereon to secure the payment of general taxes.

(2) Not be subject to extinguishment by the sale of any property on account of the nonpayment of general taxes.

(3) Be prior and superior to all liens, claims, encumbrances and titles other than the liens of assessments and general taxes.

2. The City Council:

(a) Shall not sell telecommunication service to the general public.

(b) May purchase or construct facilities for providing telecommunication that intersect with public rights-of-way if the governing body:

(1) Conducts a study to evaluate the costs and benefits associated with purchasing or constructing the facilities; and

(2) Determines from the results of the study that the purchase or construction is in the interest of the general public.

3. Any information relating to the study conducted pursuant to subsection 2 must be maintained by the City Clerk and made available for public inspection during the business hours of the Office of the City Clerk.

4. Notwithstanding the provisions of paragraph (a) of subsection 2, an airport may sell telecommunication service to the general public.

5. As used in this section:

(a) "Telecommunication" has the meaning ascribed to it in NRS 704.025.

(b) "Telecommunications service" has the meaning ascribed to it in NRS 704.028.
(Ch. 266, Stats. 1971 p. 410; A—Ch. 565, Stats. 1997 p. 2752; Ch. 416, Stats. 2001 p. 2098; Ch. 216, Stats. 2007 p. 686)

Section 2.285 Franchises for the provision of telecommunication service.

1. The City Council shall not:

(a) Impose any terms or conditions on a franchise for the provision of telecommunication service or interactive computer service other than terms or conditions concerning the placement and location of the telephone or telegraph lines and fees imposed for a business license or the franchise, right or privilege to construct, install or operate such lines.

(b) Require a company that provides telecommunication service or interactive computer service to obtain a franchise if it provides telecommunication service over the telephone or telegraph lines owned by another company.

(c) Require a person who holds a franchise for the provision of telecommunication service or interactive computer service to place its facilities in ducts or conduits or on poles owned or leased by the City.

2. As used in this section:

(a) "Interactive computer service" has the meaning ascribed to it in 47 U.S.C. § 230(f)(2), as that section existed on January 1, 2007.

(b) "Telecommunication service" has the meaning ascribed to it in NRS 704.028.
(Added—Ch. 565, Stats. 1997 p. 2752; Ch. 216, Stats. 2007 p. 686)

Section 2.310 Apportionment of County General Road Fund; use of money by City Council.

1. The Board of County Commissioners of Clark County shall, from time to time, upon the request of the City Council, apportion to the City such proportion of the General Fund of Clark County as the value of the whole property within the corporate limits of the City, as shown by the latest assessment roll, bears to the whole property of the County, inclusive of the property within the limits of the City.

2. All such moneys so apportioned and received by the City shall be expended upon the streets, alleys and public highways of the City under the direction and control of the City Council.
(Ch. 266, Stats. 1971 p. 411)

Section 2.320 Sale or lease of real property owned by the City: Procedure; disposition of proceeds.

1. Subject to the provisions of this section and any applicable provisions of chapter 268 of NRS, the City may sell or lease real property in Clark County, Nevada, acquired by the City pursuant to federal law from the United States of America.

2. The City may sell, lease or exchange real property only by resolution. Following the adoption of a resolution to sell, lease or exchange, the City Council shall cause a notice of its intention to sell, lease or exchange the real property to be published once in a newspaper qualified pursuant to the provisions of chapter 238 of NRS and published in the City. The notice must be published at least 30 days before the date set by the City Council for the sale, lease or exchange, and must state:

(a) The date, time and place of the proposed sale, lease or exchange.

(b) The place where and the time within which applications and deposits may be made by prospective purchasers or lessees.

3. It must be the policy of the City Council to sell, lease and exchange real property in a manner that will result in the maximum benefit accruing to the City from the sales, leases and exchanges. The City Council may attach any condition to the sale, lease or exchange as appears to the City Council to be in the best interests of the City.

4. The City Council may sell real property owned by the City on a time payment basis. The down payment must be in an amount determined by the City Council, and the interest rate must be in an amount determined by the City Council, but must not be less than 6 percent per annum on the declining balance.

5. Subject to the provisions of this section and any applicable provisions of chapter 268 of NRS, the City Council may dispose of any real property belonging to the City to the United States of America, the State of Nevada, Clark County, any other political subdivision of the State, or any quasi-public or nonprofit entity for a nominal consideration whenever the public interest requires such a disposition.

6. The City Council may sell, lease or exchange real property for less than its appraised value to any person who maintains or intends to maintain a business within the boundaries of the City which is eligible pursuant to NRS 374.357 for an abatement from the sales and use taxes imposed pursuant to chapter 374 of NRS.

7. Proceeds from all sales of real property owned by the City, after deduction of the cost of the real property, legal fees, reasonable costs of publication, title insurance, escrow and normal costs of sale, must be placed in the land fund previously created by the city in the city treasury and hereby continued. Except as otherwise provided in subsection 8, money in the land fund may be expended only for:

(a) Acquisition of assets of a long-term character which are intended to continue to be held or used, such as land, buildings, machinery, furniture, computer software and other equipment.

(b) Capital improvements of improvements thereon.

(c) Expenses incurred in the preparation of a long-term comprehensive master planning study and any expenses incurred in the master planning of the City.

(d) All costs, including salaries, for administration of the land fund, and the land within the City.

(e) Expenses incurred in making major improvements and repairs to the water, sewer and street systems as differentiated from normal maintenance costs.

(f) Legal fees relating to the purchase, sale, lease, or maintenance of real property.

Money received from leases of real property owned by the City must be placed in the land fund if the term of lease is 20 years or longer, whether the 20 years is for an initial term of lease or for an initial term and an option for renewal.

8. If available, money in the Land Fund may be borrowed by the City.
(Ch. 266, Stats. 1971 p. 411; A—Ch. 682, Stats. 1989 p. 1585; Ch. 231, Stats. 1991 p. 511; Ch. 596, Stats. 1995 p. 2210; Ch. 48, Stats. 1997 p. 89; Ch. 489, Stats. 2007 p. 2832; Ch. 266, Stats. 2013 p. 1209; Ch. 49, Stats. 2025 p. 262)

ARTICLE III. EXECUTIVE DEPARTMENT

Section 3.010 Mayor: Duties; mayor pro tempore.

1. The Mayor shall:

(a) Serve as a member of the City Council and preside over its meetings.

(b) Have no administrative duties.

(c) Be recognized as the head of the City government for all ceremonial purposes.

(d) Perform such emergency duties as may be necessary for the general health, welfare and safety of the City.

(e) Perform such other duties, except administrative duties, as may be prescribed by ordinance or by the provisions of Nevada Revised Statutes which apply to a mayor of a city organized under the provisions of a special charter.

2. The City Council shall elect one of its members to be Mayor pro tempore. Such person shall:

(a) Hold such office and title, without additional compensation, during the term for which he was elected.

(b) Perform the duties of Mayor during the absence or disability of the Mayor.

(c) Act as Mayor until the vacancy is filled pursuant to section 1.070.
(Ch. 266, Stats. 1971 p. 412; A—Ch. 558, Stats. 2019 p. 3552)

Section 3.020 City Manager: Duties.

1. The City Manager is the Chief Executive Officer of the City and shall perform such administrative and executive duties as the City Council may designate. His duties and salary must be set by the City Council.

2. The City Manager may appoint such clerical and administrative assistants as he may deem necessary, subject to the approval of the City Council.

3. The Mayor or a Councilman may not be appointed as City Manager during the term for which he was elected or within 1 year after the expiration of his term.
(Ch. 266, Stats. 1971 p. 413; A—Ch. 596, Stats. 1995 p. 2212; Ch. 266, Stats. 2013 p. 1211)

Section 3.030 City Manager: Removal.

The City Council may remove the City Manager for cause in accordance with the terms of the City Manager's employment agreement.
(Ch. 266, Stats. 1971 p. 413; A—Ch. 266, Stats. 2013 p. 1212)

Section 3.040 City Clerk: Duties.

The City Clerk shall:

1. Keep the corporate seal and all books, records and historical papers belonging to the City.

2. Attend all meetings of the City Council and keep an accurate journal of its proceedings, including a record of all ordinances, bylaws and resolutions passed or adopted by it. After approval at each meeting of the City Council, the City Clerk shall attest the journal after it has been signed by the Mayor.

3. Enter upon the journal the result of the vote of the City Council upon the passage of all ordinances and resolutions.

4. Perform such other duties as may be required by the City Council.

(Ch. 266, Stats. 1971 p. 413; A—Ch. 149, Stats. 1973 p. 205; Ch. 596, Stats. 1995 p. 2212; Ch. 266, Stats. 2013 p. 1212)

Section 3.060 City Attorney: Qualifications; duties.

1. The City Attorney must be a duly licensed member of the State Bar of Nevada.

2. The City Attorney is the Chief Legal Officer of the City and shall:

(a) Advise the City Council and all of the offices, departments and divisions of the City in all matters with respect to the affairs of the City;

(b) Determine whether the City should initiate any judicial or administrative proceeding; and

(c) Perform such other duties as may be designated by the City Council or prescribed by ordinance.

(Ch. 266, Stats. 1971 p. 414; A—Ch. 596, Stats. 1995 p. 2213; Ch. 266, Stats. 2013 p. 1212)

Section 3.070 County assessor to be ex officio City Assessor; duties.

1. The County Assessor of Clark County shall be ex officio City Assessor of the City. The County Assessor shall perform such duties for the City without additional compensation.

2. Upon request of the ex officio City Assessor, the City Council may appoint and set the salary of a Deputy City Assessor to perform such duties relative to city assessments as may be deemed necessary.

(Ch. 266, Stats. 1971 p. 414)

Section 3.110 Executive Officers: Residence.

All Executive Officers must reside within the City during the term of their employment unless the City Council waives this requirement because of hardship or other extenuating circumstances.

(Ch. 266, Stats. 1971 p. 414; A—Ch. 596, Stats. 1995 p. 2213; Ch. 266, Stats. 2013 p. 1212)

Section 3.130 Collection and disposition of money.

1. All fines, forfeitures or other money except taxes collected or recovered by any employee of the City or other person pursuant to the provisions of this Charter or of any valid ordinance of the City must be paid by the employee or person collecting or receiving them to the Chief Financial Officer, who shall dispose of them in accordance with the ordinances, regulations and procedures established by the City Council.

2. The City Council, City Manager, or City Attorney may by proper legal action collect all money, including taxes, which are due and unpaid to the City or any office thereof, and the City Council may pay from the general fund all fees and expenses necessarily incurred by it in connection with the collection of such money.
(Ch. 266, Stats. 1971 p. 414; A—Ch. 596, Stats. 1995 p. 2213; Ch. 266, Stats. 2013 p. 1213)

Section 3.140 Interference by City Council.

1. No Council Member or the Mayor may direct or request the appointment of any person to, or his removal from, office by the City Manager or by any of his subordinates, or, except as otherwise provided in section 1.090, in any manner take part in the appointment or removal of Executive Officers and employees unless the removal is authorized pursuant to section 3.150.

2. Except for the purpose of inquiry, the Council and its members shall deal with employees solely through the City Manager, City Attorney or City Clerk, as applicable, or their designees. Neither the Council nor any member thereof may give orders to any subordinate of the City Manager, City Attorney or City Clerk, either publicly or privately.
(Ch. 266, Stats. 1971 p. 414; A—Ch. 266, Stats. 2013 p. 1213)

Section 3.150 Removal of certain Executive Officers.

If the City Manager, City Attorney or City Clerk is adjudged guilty of nonfeasance, misfeasance or malfeasance in office, the City Council may terminate the City Manager, City Attorney or City Clerk, as applicable, pursuant to the terms of his or her employment agreement, if there is an employment agreement between the City and the City Manager, City Attorney or City Clerk, as applicable. The City Council may fill the vacancy so caused as provided by law.
(Ch. 266, Stats. 1971 p. 415; A—Ch. 266, Stats. 2013 p.1213)

ARTICLE IV. JUDICIAL DEPARTMENT

Section 4.015 Municipal Court.

1. There is a Municipal Court of the City which consists of at least one department. Each department must be presided over by a Municipal Judge and has such power and jurisdiction as is prescribed in, and is, in all respects which are not inconsistent with this Charter, governed by, the provisions of chapters 5 and 266 of NRS which relate to municipal courts.

2. The City Council may from time to time establish additional departments of the Municipal Court and shall appoint an additional Municipal Judge for each.

3. At the first primary or general municipal election which follows the appointment of an additional Municipal Judge to a newly created department of the Municipal Court, the successor to that Municipal Judge must be elected for a term of not more than 5 years, as determined by the City Council, in order that, as nearly as practicable, one-third of the number of Municipal Judges be elected every 2 years.

4. Except as otherwise provided in subsection 3, each Municipal Judge must be voted upon by the registered voters of the City at large and, except as otherwise provided in subsection 3 and sections 5.020 and 5.120, shall serve for a term of 6 years.

5. The respective departments of the Municipal Court must be numbered 1 through the appropriate Arabic number, as additional departments are approved by the City Council. A Municipal Judge must be elected for each department by number.

6. The Senior Municipal Judge is selected by a majority of the sitting judges for a term of 2 years. If no Municipal Judge receives a majority of the votes, the Senior Municipal Judge is the Municipal Judge who has continuously served as a Municipal Judge for the longest period.
(Added—Ch. 231, Stats. 1991 p. 513; A—Ch. 596, Stats. 1995, p. 2213; Ch. 209, Stats. 2001 p. 970; Ch. 218, Stats. 2011 p. 955; Ch. 558, Stats. 2019 p. 3552)

Section 4.020 Municipal Court: Qualifications of Municipal Judge; salary.

1. Each Municipal Judge must have been a resident of the territory which is established by the boundaries of the City for the 12 months immediately preceding the last day for filing a declaration of candidacy for the office.

2. Each Municipal Judge shall devote his or her full time to the duties of his or her office and must be a duly licensed member, in good standing, of the State Bar of Nevada.

3. The salary of each Municipal Judge must be fixed by the City Council and be uniform for all departments of the Municipal Court. The salary may be increased during the terms for which the Judges are elected or appointed.
(Ch. 266, Stats. 1971 p. 415; A—Ch. 98, Stats. 1977 p. 207; Ch. 208, Stats. 1985 p. 674; Ch. 231, Stats. 1991 p. 513; Ch. 23, Stats. 1993 p. 46; Ch. 209, Stats. 2001 p. 971; Ch. 266, Stats. 2013 p. 1214)

Section 4.030 Disposition of fines.

All fines and forfeitures for the violation of ordinances must be paid to the Chief Financial Officer.

(Ch. 266, Stats. 1971 p. 415; A—Ch. 596, Stats. 1995 p. 2214; Ch. 266, Stats. 2013 p. 1214)

ARTICLE V. ELECTIONS

Section 5.010 Primary municipal election.

1. A primary municipal election must be held:

(a) On the first Tuesday after the first Monday in April 2019; and

(b) Beginning in 2022, on the second Tuesday in June of each even-numbered year, at which time there must be nominated candidates for offices to be voted for at the next general municipal election.

2. A candidate for any office to be voted for at any primary municipal election must file a declaration of candidacy as provided by the election laws of this State.

3. All candidates for elective office, other than candidates for the office of Council Member, must be voted upon by the registered voters of the City at large.

4. A candidate for the office of Council Member must be voted upon only by the registered voters of the ward that he or she seeks to represent.

5. If in the primary municipal election no candidate receives a majority of votes cast in that election for the office for which he or she is a candidate, the names of the two candidates receiving the highest number of votes must be placed on the ballot for the general municipal election. If in the primary municipal election, regardless of the number of candidates for an office, one candidate receives a majority of votes cast in that election for the office for which he or she is a candidate, he or she must be declared elected and no general municipal election need be held for that office. Such candidate shall enter upon his or her respective duties at:

(a) If the primary municipal election was held in 2019, the second regular meeting of the City Council held in June 2019.

(b) If the primary municipal election was held on the second Tuesday of June of an even-numbered year, the first regular meeting of the City Council held in January of the year following the primary municipal election.

(Ch. 266, Stats. 1971 p. 415; A—Ch. 12, Stats. 1979 p. 16; Ch. 596, Stats. 1995 p. 2214; Ch. 686, Stats. 1997 p. 3480; Ch. 100, Stats. 1999 p. 272; Ch. 637, Stats. 1999 p. 3565; Ch. 218, Stats. 2011 p. 956; Ch. 266, Stats. 2013 p. 1214; Ch. 558, Stats. 2019 p. 3553; Ch. 350, Stats. 2019 p. 2179)

Section 5.020 General municipal election.

1. Notwithstanding the provisions of subsections 7 and 8, on the second Tuesday after the first Monday in June 2019, there must be elected by the qualified voters of the City pursuant to the provisions of this Charter in effect at the general municipal election held for that purpose:

(a) Three Council Members who shall hold office until their successors have been elected and qualified pursuant to subsection 4; and

(b) A Municipal Judge for Department 1 who shall hold office until his or her successor has been elected and qualified pursuant to subsection 6.

2. On the first Tuesday after the first Monday in November 2022, and at each successive interval of 4 years, there must be elected at a general municipal election to be held for that purpose, a Mayor and one Council Member who shall hold office for a period of 4 years and until their successors have been elected and qualified.

3. On the first Tuesday after the first Monday in November 2022, and at each successive interval of 6 years, there must be elected at a general municipal election to be held for that purpose, a Municipal Judge for Department 2 who shall hold office for a period of 6 years and until his or her successor has been elected and qualified.

4. On the first Tuesday after the first Monday in November 2024, and at each successive interval of 4 years, there must be elected at a general municipal election to be held for that purpose, three Council Members who shall hold office for a period of 4 years and until their successors have been elected and qualified.

5. On the first Tuesday after the first Monday in November 2024, and at each successive interval of 6 years, there must be elected at a general municipal election to be held for that purpose, a Municipal Judge for Department 3 who shall hold office for a period of 6 years and until his or her successor has been elected and qualified.

6. On the first Tuesday after the first Monday in November 2026, and at each successive interval of 6 years, there must be elected at a general municipal election held for that purpose, a Municipal Judge for Department 1 who shall hold office for a period of 6 years and until his or her successor has been elected and qualified.

7. All candidates for elective office, other than candidates for the office of Council Member, must be voted upon by the registered voters of the City at large.

8. A candidate for the office of Council Member must be voted upon only by the registered voters of the ward that he or she seeks to represent.

(Ch. 266, Stats. 1971 p. 416; A—Ch. 67, Stats. 1987 p. 133; Ch. 209, Stats. 2001 p. 971; Ch. 218, Stats. 2011 p. 957; Ch. 263, Stats. 2013 p. 1182; Ch. 266, Stats. 2013 p. 1215; Ch. 336, Stats. 2015, p. 1890; Ch. 558, Stats. 2019 p. 3554; Ch. 350, Stats. 2019 p. 2180)

Section 5.030 Applicability of state election laws; elections under City Council control.

1. All elections held under this Charter must be governed by:

(a) The provisions of sections 5.1 to 9.8, inclusive, of this act, which supersede and preempt any conflicting provisions of this Charter; and

(b) All other provisions of the election laws of this State, so far as those laws can be made applicable and are not inconsistent with the provisions of this Charter.

2. The conduct of all municipal elections is under the control of the City Council. The City Council shall by ordinance provide for the holding of the election, appoint the necessary officers thereof and do all the things required to carry the election into effect as it considers desirable and consistent with law and this Charter.
(Ch. 266, Stats. 1971 p. 416; A—Ch. 596, Stats. 1995 p. 2215; Ch. 619, Stats. 2019 p. 4135)

Section 5.040 Qualifications, registration of voters.

1. Every person who resides within the City at the time of holding any municipal election, and whose name appears upon the official register of voters in and for the City, is entitled to vote at each municipal election, whether special, primary or general, and for all officers to be voted for and on all questions that may be submitted to the people at any such primary, general or special City elections, except as otherwise provided in this article.

2. Nothing in this Charter shall be so construed as to deny or abridge the power of the City Council to provide for supplemental registration.
(Ch. 266, Stats. 1971 p. 416)

Section 5.050 Names on ballots.

1. The full names of all candidates, except those who have withdrawn, died or become ineligible, must be printed on the official ballots without party designation or symbol. If two or more candidates have the same surname or surnames so similar as to be likely to cause and:

(a) None of them is an incumbent, their middle names or middle initials, if any, must be included in their names as printed on the ballot or;

(b) One of them is an incumbent, the name of the incumbent must be listed first and must be printed in bold type.
(Ch. 266, Stats. 1971 p. 416; A—Ch. 596, Stats. 1995 p. 2215; Ch. 312, Stats 2003 p. 1729)

Section 5.060 Ballots for ordinances and charter amendments.

An ordinance or Charter amendment to be voted on in the City shall be presented for voting by ballot title. The ballot title of a measure may differ from its legal title and shall be a clear, concise statement describing the substance of the measure without argument or prejudice. Below the ballot title shall appear the following question: "Shall the above described (ordinance) (amendment) be adopted?" The ballot or voting machine or device shall be so marked as to indicate clearly in what manner the voter may cast his vote, either for or against the ordinance or amendment.
(Ch. 266, Stats. 1971 p. 417; A—Ch. 669, Stats. 1971 p. 2053)

Section 5.070 Availability of lists of registered voters.

Any person who desires a copy of a list of registered voters in the City may obtain a copy pursuant to the provisions of NRS 293.440.
(Ch. 266, Stats. 1971 p. 417; Ch. 596, Stats. 1995 p. 2215)

Section 5.090 Voting machines.

The City Council may provide for the use of mechanical or other devices for voting or counting the votes not inconsistent with law or regulations of the Secretary of State.
(Ch. 266, Stats. 1971 p. 417)

Section 5.100 Election returns; canvass; certificates of election; entry of officers upon duties; tie vote procedure.

1. The election returns from any special, primary or general municipal election must be filed with the City Clerk, who shall immediately place the returns in a safe or vault, and no person may handle, inspect or in any manner interfere with the returns until canvassed by the City Council.

2. The City Council shall meet within the time set forth in NRS 293C.387 after any election and canvass the returns and declare the result. The election returns must then be sealed and kept by the City Clerk for 6 months. No person may have access to the returns except on order of a court of competent jurisdiction or by order of the City Council.

3. The City Clerk, under his or her hand and official seal, shall issue to each person elected a certificate of election. Except as otherwise provided in section 1.070, an officer so elected shall qualify and enter upon the discharge of his or her respective duties at:

(a) If the officer is elected pursuant to subsection 1 of section 5.020, the second regular meeting of the City Council held in June of the year of the general municipal election.

(b) If the officer is elected pursuant to subsection 2, 3, 4, 5 or 6 of section 5.020, the first regular meeting of the City Council held in January of the year following the general municipal election.

4. If any election results in a tie, the City Council shall summon the candidates who received the tie vote and determine the tie by lot. The City Clerk shall then issue to the winner a certificate of election.
(Ch. 266, Stats. 1971 p. 417; A—Ch. 149, Stats. 1973 p. 205; Ch. 504, Stats. 1985 p. 1551; Ch. 596, Stats. 1995 p. 2216; Ch. 266, Stats. 2013 p. 1216; Ch. 619, Stats. 2019 p. 4136)

Section 5.110 Contest of election.

A contested election for any municipal office shall be determined according to the law of the state regulating proceedings in contested elections in political subdivisions.
(Ch. 266, Stats. 1971 p. 418)

Section 5.120 Continuation of certain officers.

1. The Municipal Judge for Department 2 elected at the general municipal election held in June 2015 shall continue in office until the election, and qualification thereafter, of his or her successor pursuant to subsection 3 of section 5.020.

2. The Municipal Judge for Department 3 elected at the general municipal election held in June 2017 shall continue in office until the election, and qualification thereafter, of his or her successor pursuant to subsection 5 of section 5.020.

3. The Mayor and one Council Member elected at the general municipal election held in June 2017 shall continue in office until the election, and qualification thereafter, of his or her successor pursuant to subsection 2 of section 5.020.
(Added - Ch. 558, Stats. 2019 p. 3551)

ARTICLE VI. LOCAL IMPROVEMENTS

Section 6.010 Local improvement law.

Except as otherwise provided in subsection 2 of section 2.280, and section 2.285, the City Council, on behalf of the City and in its name, without any election, may from time to time acquire, improve, equip, operate and maintain, convert to or authorize:

1. Curb and gutter projects;

2. Drainage projects;

3. Off-street parking projects;

4. Overpass projects;

5. Park or recreation projects;

6. Sanitary sewer projects;

7. Security walls;

8. Sidewalk projects;

9. Storm sewer projects;

10. Street projects;

11. Telephone projects;

12. Transportation projects;

13. Underground and aboveground electric and communication facilities;

14. Underpass projects;

15. Water projects;

16. Upon petition by a person or business authorized to provide the service, such other utility projects as are deemed necessary by the Council; and

17. Any combination thereof.

(Ch. 266, Stats. 1971 p. 418; A—Ch. 306, Stats. 1973 p. 380; Ch. 361, Stats. 1983 p. 874; Ch. 67, Stats. 1987 p. 133; Ch. 565, Stats. 1997 p. 2753; Ch. 416 Stats. 2001 p. 2099, effective July 1, 2003; Ch. 266, Stats. 2013 p. 1216)

Section 6.020 Local improvement law: Collateral powers.

The City Council on behalf of the City for the purpose of defraying all the costs of acquiring, improving or converting to any project authorized by section 6.010, or any portion

of the cost thereof not to be defrayed with money otherwise available therefore, is vested with the powers granted to municipalities by chapters 271 and 704A of NRS, as amended from time to time, but not subject to the procedural limitations contained therein.
(Ch. 266, Stats. 1971 p. 418; A—Ch. 306, Stats. 1973 p. 380; Ch. 67, Stats. 1987 p. 134)

ARTICLE VII. LOCAL BONDS AND FRANCHISES

Section 7.010 Debt limit.

1. The City shall not incur an indebtedness in excess of 15 percent of the total assessed valuation of the taxable property within the boundaries of the City.

2. In determining any debt limitation under this section, there shall not be counted as indebtedness:

(a) Any revenue bonds, unless the full faith and credit of the City is also pledged to their payment.

(b) Any special assessment bonds, although a deficiency in the proceeds of the assessments is required to be paid from the General Fund to the City.

(c) Any short-term securities issued in anticipation of and payable from property taxes levied for the current fiscal year.

(Ch. 266, Stats. 1971 p. 418)

Section 7.020 Acquisition, operation of municipal utilities.

Except as otherwise provided in subsection 2 of section 2.280, and section 2.285, the City may in the manner and for the purposes provided in this Charter and Nevada Revised Statutes as they apply to cities, grant franchises and acquire in any manner any public utility, and hold, manage and operate it either alone or jointly, with any level of government or instrumentality or subdivision thereof.
(Ch. 266, Stats. 1971 p. 419; A—Ch. 565, Stats. 1997 p. 2754; Ch. 416, Stats. 2001 p. 2100, effective July 1, 2003)

Section 7.040 Borrowing money.

1. Subject to the limitations imposed by this article, the City may borrow money for any corporate purpose, including without limitation any purpose authorized by this Charter or by Nevada Revised Statutes for a city, and for such purpose may issue bonds or other securities. The Local Government Securities Law, as amended from time to time, applies to all securities so issued except for securities issued under section 6.020.

2. Any property tax levied to pay the principal of or interest on such indebtedness must be levied upon all taxable property within the City as provided in NRS 350.590 to 350.602, inclusive.

3. Any ordinance pertaining to the sale or issuance of bonds or other securities, including without limitation securities issued under section 6.020, may be adopted in the same manner as is provided for cases of emergency. A declaration by the City Council in any ordinance that it is of this kind is conclusive in the absence of fraud or gross abuse of discretion.
(Ch. 266, Stats. 1971 p. 419; A—Ch. 482, Stats. 1981 p. 973)

ARTICLE VIIA. TRUSTS FOR FURTHERANCE OF PUBLIC FUNCTIONS

Section 7A.010 Trusts for furtherance of public functions: Authorization to create; purposes; eligible beneficiaries; power of beneficiary to lease trust property.

1. Express trusts may be created in real or personal property, or either or both, or in any estate or interest in either or both, with the City as the beneficiary thereof, and the purpose thereof may be the furtherance, or the providing of funds for the furtherance, of any authorized or proper function of the beneficiary; but no funds of the beneficiary derived from sources other than the trust property, or the operation thereof, shall be charged with or expended for the execution of the trust, except by express action of the legislative authority of the beneficiary first had.

2. The officers or any other governmental agencies or authorities having the custody, management or control of any property, real or personal or both, of the beneficiary of such trust, or of such a proposed trust, which property is necessary for the execution of the trust purposes, are hereby authorized and empowered to lease such property for such purposes, after the acceptance of the beneficial interest therein by the beneficiary as provided in this chapter, or conditioned upon such acceptance.
(Added—Ch. 694, Stats. 1975 p. 1409)

Section 7A.020 Creation by written instrument; execution, recording of trust instrument; acceptance by beneficiary creates contract between State, grantor; duration of trust.

1. Such trusts may be created by written instruments, or by will. A written instrument shall be subscribed by the grantor or grantors and duly acknowledged as conveyances of real property are acknowledged. Before the same shall become effective the beneficial interest therein shall be accepted by the governing body of the beneficiary, which power and authority of acceptance is hereby conferred upon the City Council. Thereupon the instrument or will, together with the written acceptance of the beneficial interest endorsed thereon, shall be recorded in the Office of the County Recorder of each county in which is situated any real property, or any interest therein, belonging to the trust, as well as in the county where the trust property is located or its principal operations are conducted.

2. Upon the acceptance of the beneficial interest by the beneficiary as authorized in subsection 1, the same shall be and constitute a binding contract between the State of Nevada and the grantor or grantors, or the executor of the estate of the testator, for the acceptance of the beneficial interest in the trust property by the designated beneficiary and the application of the proceeds of the trust property and its operation for the purposes and in accordance with the stipulations specified by the trustor or trustors.

3. Such trusts shall have duration for the term of duration of the beneficiary, or such shorter length of time as is specified in the instrument or will creating the trust.
(Added—Ch. 694, Stats. 1975 p. 1410)

Section 7A.030 Trustees: Appointment; succession, powers; duties, terms, compensation controlled by trust instrument.

1. The instrument or will creating such trust may provide for the appointment, succession, powers, duties, term and compensation of the trustee or trustees; and in all such respects the terms of the instrument or will shall be controlling, except as otherwise provided in subsections 2 and 3. If the instrument or will makes no provision in regard to any of the foregoing, then the general laws of the State shall control as to such omission or omissions.

2. All meetings of the trustees shall be open to the public to the same extent as required by chapter 241 of NRS for state and local agencies. If the trustee is a partnership, corporation or banking association, this requirement applies to that part of every meeting of the partners or directors at which trust affairs are discussed.

3. All records of the trust are public records and shall be kept in a place which is identified by documents recorded in the Office of the County Recorder of each county in which the instrument creating the trust is recorded.
(Added—Ch. 694, Stats. 1975 p. 1410)

Section 7A.040 Trustees: Eligibility and status; standard of care; exemption from personal liability.

1. The trustee or trustees under such an instrument or will may be two or more natural persons or a partnership, corporation, national banking association or state banking association, and such trustee or trustees shall be an agency of the State and the regularly constituted authority of the beneficiary for the performance of the functions for which the trust has been created.

2. The provisions of NRS 164.050 relating to the standard of care for a trustee in investing and managing trust property apply to the trustee or trustees of a trust created by a written instrument or will pursuant to this chapter.

3. No trustee or beneficiary shall be charged personally with any liability whatsoever by reason of any act or omission committed or suffered in the performance of such trust or in the operation of the trust property; but any act, liability for any omission or obligation of a trustee or trustees, in the execution of such trust, or in the operation of the trust property, shall extend to the whole of the trust estate, or so much thereof as may be necessary to discharge such liability or obligation, and not otherwise.
(Added—Ch. 694, Stats. 1975 p. 1410)

Section 7A.050 Annual audit of trust funds, accounts, fiscal affairs: Requirements; distribution of copies; expenses.

1. The trustee or trustees of every trust created for the benefit and furtherance of any public function with the City as the beneficiary thereof shall cause an audit to be made of the funds, accounts and fiscal affairs of such trust, such audit to be ordered within 30 days of the close of each fiscal year of the trust.

2. The audits required by subsection 1 shall be certified with the unqualified opinion of a certified public accountant or a public accountant notwithstanding any lesser requirement by any instrument under which the trust may have covenanted for an audit to be made or furnished. One copy of the annual audit shall be filed with the Legislative Auditor of the Legislative Counsel Bureau and one copy with each beneficiary of the trust not later than 90 days following the close of each fiscal year of the trust.

3. If a copy of the required audit is not filed with the Legislative Auditor of the Legislative Counsel Bureau within the time provided, the Legislative Auditor is authorized to employ, at the cost and expense of the trust, a certified public accountant or a public accountant to make the required audit.

4. The necessary expense of such audits, including the cost of typing, printing and binding, shall be paid from funds of the trust.
(Added—Ch. 694, Stats. 1975 p. 1411)

Section 7A.060 Franchise not required for acquisition, ownership or operation of trust property.

No franchise is required for the acquisition, ownership or operation of any properties of a trust created for the benefit and furtherance of any public function.
(Added—Ch. 694, Stats. 1975 p. 1411)

Section 7A.070 Approval of certain contracts and resolutions required.

The trustees shall not enter into contracts for the acquisition or construction of buildings or public improvements or for the acquisition or disposal of trust properties by purchase, lease, gift, bequest or devise or any other lawful means until such contract is first approved by the City Council by ordinance. The City Council shall so approve the resolution providing for the issuance of bonds or other securities to be issued by the trustees and proposed terms of sale thereof but is not required to approve the award of such bonds to the purchaser thereof if such bonds are sold in compliance with the resolution of issuance and terms of sale.
(Added—Ch. 694, Stats. 1975 p. 1411)

Section 7A.080 Approval of financing method, underwriters by state board of finance.

The State Board of Finance shall first review and approve the method of finance proposed by any trust created pursuant to the former provisions of NRS 242B.010 to 242B.100, inclusive, or the provisions of this article, and must approve the underwriter or financial institution preparing and offering the proposed issue for sale, as to the financial responsibility of such underwriter or financial institution, before such issue may be offered or sold.
(Added—Ch. 694, Stats. 1975 p. 1411)

Section 7A.090 Exemption from securities laws.

1. The provisions of the State Securities Law, the Local Government Securities Law, the University Securities Law, or of any other general, special or local statute relating to the issuance of public securities or other debt obligations do not apply to a trust created for the benefit and furtherance of any public function.

2. All bonds issued by any trust created for the benefit and furtherance of any public function must:

(a) Be sold at public or private sale, as determined by the trustees and approved by the City Council. If the bonds are offered at public sale, but no satisfactory bids are received from responsible bidders at the public sale, the bonds may be sold at private sale.

(b) Be secured:

(1) By property, real or personal or both, having a market value equal to at least twice the principal amount of the bonds sold; or

(2) By gross revenues from an existing revenue producing facility equal to at least one and one-half times the average annual debt service payable on the bonds.

(Added—Ch. 694, Stats. 1975 p. 1412; A—Ch. 596, Stats. 1995 p. 2216)

Section 7A.100 Competitive bidding not required.

Except as otherwise provided in section 7A.090, no statute, general, special or local, requiring competitive bidding applies to a trust created for the benefit and furtherance of a public function.

(Added—Ch. 694, Stats. 1975 p. 1412)

Section 7A.110 Termination of trust.

Any trust created for the benefit and furtherance of a public function may be terminated by agreement of the trustee, or if there is more than one, then all of the trustees, and the governing body of the beneficiary, with the approval of the Governor of the State of Nevada; but such trust shall not be terminated while there exists outstanding any contractual obligations chargeable against the trust property, which, by reason of such termination, might become an obligation of the beneficiary of such trust.

(Added—Ch. 694, Stats. 1975 p. 1412)

ARTICLE VIII. REVENUE

Section 8.010 Municipal taxes.

1. The City Council shall annually, at the time prescribed by law for levying taxes for State and County purposes, levy a tax at a rate allowable under applicable provisions of the Nevada Revised Statutes upon the assessed value of all real and personal property within the City except as provided in the Local Government Securities Law and the Consolidated Local Improvements Law, as amended from time to time. The taxes so levied shall be collected at the same time and in the same manner and by the same officers, exercising the same functions, as prescribed in the laws of the State of Nevada for collection of state and county taxes. The revenue laws of the State shall, in every respect not inconsistent with the provisions of this Charter, be applicable to the levying, assessing and collecting of the municipal taxes.

2. In the matter of equalization of assessments, the rights of the City and the inhabitants thereof shall be protected in the same manner and to the same extent by the action of the County Board of Equalization as are the State and County.

3. All forms and blanks used in levying, assessing and collecting the revenues of the State and counties shall, with such alterations or additions as may be necessary, be used in levying, assessing and collecting the revenues of the City. The City Council shall enact all such ordinances as it may deem necessary and not inconsistent with this Charter and the laws of the State for the prompt, convenient and economical collecting of the revenue.
(Ch. 266, Stats. 1971 p. 420; A—Ch. 266, Stats. 2013 p. 1217)

Section 8.020 Revenue ordinances.

The City Council may pass and enact all ordinances necessary to carry into effect the revenue laws in the City and to enlarge, fix and determine the powers and duties of all officers in relation thereto.
(Ch. 266, Stats. 1971 p. 420)

ARTICLE IX. CIVIL SERVICE

Section 9.010 System of Civil Service.

1. There is hereby created a System of Civil Service, applicable to and governing the employment of all employees of the City except Executive Officers, department directors, senior department directors, division heads, assistant city attorneys, any other attorney employed by the Office of the City Attorney, assistants to the City Manager, the Municipal

Court Administrator, any elected officer, any employee that reports directly to an elected officer, any probationary employee, any temporary employee, and any other employee excluded from the System by ordinance.

2. The System of Civil Service must be administered by a Civil Service Board composed of five persons appointed by the City Council.

3. The Board shall prepare regulations governing the System of Civil Service to be adopted by the City Council. The regulations must provide for:

(a) Examination of potential employees.

(b) Procedures for recruitment and placement.

(c) Classification of positions.

(d) Procedures for promotion, disciplinary actions and removal of employees.

(e) Such other matters as the Board may deem necessary.

4. Copies of the regulations governing the System of Civil Service must be distributed to all employees of the City.

5. An employee of the City who is included in the System of Civil Service and accepts a position that is excluded from the System pursuant to subsection 1 does not retain any rights or privileges within the System.
(Ch. 266, Stats. 1971 p. 421; A—Ch. 334, Stats. 1977 p. 630; Ch. 596, Stats. 1995 p. 2218; Ch. 108, Stats. 2003 p. 604; Ch. 266, Stats. 2013 p. 1217)

ARTICLE X. MISCELLANEOUS PROVISIONS

Section 10.010 Severability of provisions.

If any portion of this Charter is held to be unconstitutional or invalid for any reason by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this Charter. The Legislature hereby declares that it would have passed the Charter and each portion thereof, irrespective of the portion which may be deemed unconstitutional or otherwise invalid.
(Ch. 266, Stats. 1971 p. 422)

Section 10.020 Effect of enactment of charter.

1. All rights and property of every kind and description which were vested in the City prior to the enactment of this Charter shall be vested in the same municipal corporation on the effective date of this Charter. No right or liability, either in favor of or against such

corporation existing at the time of becoming incorporated under this Charter, and no action or prosecution shall be affected by such change, but it shall stand and progress as if no change had been made.

2. Whenever a different remedy is given by this Charter, which may properly be made applicable to any right existing at the time of such City so becoming incorporated under this Charter, such remedy shall be cumulative to the remedy before provided, and used accordingly.

3. All ordinances and resolutions in effect in the City prior to the effective date of this Charter shall, unless in conflict with the provisions of this Charter, continue in full force and effect until amended or repealed.

4. The enactment of this Charter shall not effect any change in the legal identity of the City.

5. The enactment of this Charter shall not be construed to repeal or in any way affect or modify:

(a) Any special, local or temporary law.

(b) Any law or ordinance making an appropriation.

(c) Any ordinance affecting any bond issue or by which any bond issue may have been authorized.

(d) The running of the statute of limitations in force at the time this Charter becomes effective.

(e) Any bond of any public officer.

(Ch. 266, Stats. 1971 p. 422)

Title 1

GENERAL PROVISIONS

Chapters:

1.01 Reserved
1.02 Establishment and Effect of Code
1.03 Definitions and Rules of Construction
1.04 Citations for Violations
1.05 Penalties and Remedies for Code Violations

Chapter 1.01 RESERVED*

***Editor's note—**Ord. No. 3173, § 1, adopted June 17, 2014, repealed the former chapter 1.01, §§ 1.01.010—1.01.030 in its entirety, which pertained to code adoption, and derived from Ord. No. 555, §§ 1—3, adopted in 1976.

Chapter 1.02 ESTABLISHMENT AND EFFECT OF CODE

Sections:

1.02.010 Title.
1.02.020 Provisions deemed as continuations of existing ordinances.
1.02.030 Code does not affect prior offenses or rights.
1.02.040 Repealed ordinances not revived.
1.02.050 Certain ordinances not affected by Code.
1.02.060 Supplementation of Code.

1.02.010 Title.

This Code shall be known as the "Henderson Municipal Code."
(Ord. No. 3173, § 1, 6-17-2014)

1.02.020 Provisions deemed as continuations of existing ordinances.

The provisions of this Code, insofar as they are substantially the same as legislation previously adopted by the city relating to the same subject matter, shall be construed as restatements and continuations thereof and not as new enactments.
(Ord. No. 3173, § 1, 6-17-2014)

1.02.030 Code does not affect prior offenses or rights.

(a) Nothing in this Code or the ordinance adopting this Code affects any offense or act committed or done, any penalty or forfeiture incurred, or any contract or right established before the effective date of this Code.

(b) The adoption of this Code does not authorize any use or the continuation of any use of a structure or premises in violation of any city ordinance on the effective date of this Code.
(Ord. No. 3173, § 1, 6-17-2014)

1.02.040 Repealed ordinances not revived.

Nothing in this Code or the ordinance adopting this Code shall revive, reordain, or reinstate any ordinance that has been repealed.
(Ord. No. 3173, § 1, 6-17-2014)

1.02.050 Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code affects the validity of the city ordinances or any portion of a city ordinance not codified in this Code. Such ordinances or portions of an ordinance continue in full force and effect to the same extent as if published at length in this Code.
(Ord. No. 3173, § 1, 6-17-2014)

1.02.060 Supplementation of Code.

Supplements to this Code shall be prepared and printed in the time and manner authorized or directed by the city council.
(Ord. No. 3173, § 1, 6-17-2014)

Chapter 1.03 DEFINITIONS AND RULES OF CONSTRUCTION

Sections:

1.03.010 General definitions and rules of construction.
1.03.020 Title, chapter and section headings.
1.03.030 History notes, state law references and other footnote material.
1.03.040 References to Code.
1.03.050 Effect of repeal of ordinances.
1.03.060 Severability.

1.03.010 General definitions and rules of construction.

The following definitions and rules of construction shall apply to this Code and to all ordinances unless the context requires otherwise.

Generally.

(1) When provisions conflict, the specific shall prevail over the general. All provisions shall be liberally construed so that the intent of the city council may be effectuated. The provisions of this Code and all proceedings under it are to be liberally construed to affect its purposes and to promote justice.

(2) Words and phrases shall be construed according to the common and approved usage of the language, but technical words, technical phrases and words and phrases that have acquired peculiar and appropriate meanings in law shall be construed according to such meanings.

(3) Grammatical errors shall not vitiate, and a transposition of words and clauses may be resorted to when the sentence or clause is without meaning as it stands.

(4) Scrivener's errors shall be ignored.

Charter. The term "charter" means the charter of the City of Henderson, Nevada.

City. The term "city" means the City of Henderson, Clark County, Nevada.

City council. The terms "city council" and "council" mean the City Council of the City of Henderson, Nevada.

Code, ordinance. The term "ordinance" means city ordinance. The term "Code" means the Henderson Municipal Code, as designated in this section. References to the Code are to the Code, as amended. References to ordinances are to ordinances as amended.

Computation of time. In computing any period of time prescribed or allowed the day of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included, unless it is a Friday, a

Saturday, a Sunday, or a legal holiday day, in which event the period runs until the end of the next day which is not a Friday, Saturday, a Sunday, or legal holiday, or, when the act to be done is the filing of a paper with the city, a day on which weather or other conditions have made the city office in which the paper is to be filed inaccessible, in which event the period runs until the end of the next day which is not one of the aforementioned days. When the period of time prescribed or allowed is less than 11 days, intermediate Fridays, Saturdays, Sundays, and legal holidays shall be excluded in the computation.

Conjunctions. In a provision involving two or more items, conditions, provisions or events, which items, conditions, provisions or events are connected by the conjunction "and," "or" or "either….or," the conjunction shall be interpreted as follows unless the context clearly required that the words "and" and "or" be interchangeable:

(1) "And" indicates that all the connected terms, conditions, provisions or events apply.

(2) "Or" indicates that the connected terms, conditions, provisions or events apply singly or in any combination.

(3) "Either...or" indicates that the connected terms, conditions, provisions or events apply singly but not in combination.

County. The term "county" means Clark County, Nevada.

Delegation of authority. A provision that authorizes or requires a city officer or a city employee to perform an act or make a decision authorizes such officer or employee to act or make a decision through subordinates.

Gender. The masculine gender includes the feminine and neuter genders.

Health department. The term "health department" means the Southern Nevada Health District.

Includes. The term "includes" does not limit a term to a specified example.

Joint authority. Words giving a joint authority to three or more persons give such authority to a majority of all such persons.

May. The term "may" confers a right, privilege or power.

May not. The term "may not" states a prohibition and has a prohibitory effect and abridges or removes a right, privilege or power.

Must. The term "must" is to be construed as imposing a requirement.

NRS. The abbreviation "NRS" refers to the Nevada Revised Statutes, as now or hereafter amended.

Number. Words in the singular include the plural. Words in the plural include the singular.

Oath. A solemn affirmation is the equivalent to an oath and a person shall be deemed to have sworn if such person makes such an affirmation.

Officers, departments, etc. References to officers, departments, boards, commissions, committees or employees are to city officers, city departments, city boards, city commissions, city committees and city employees.

Owner. The term "owner," as applied to property, includes any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety of the whole or part of such property.

Person. The term "person" means any natural person, any form of business or social organization and any other nongovernmental legal entity including, but not limited to, a corporation, partnership, association, trust or unincorporated organization. The term does not includes a government, governmental agency or political subdivision of a government to the maximum extent permitted by law.

Personal property. The term "personal property" means any property other than real property.

Premises. The term "premises," as applied to real property, includes land and structures.

Property. The term "property" includes real property, personal property and mixed property.

Public place. The term "public place" includes any street, sidewalk, park, cemetery, school yard, body or water or watercourse, public conveyance, or any place for the sale of merchandise, public accommodation or amusement.

Real property. The term "real property" or "real estate" means property consisting of land and all appurtenances to the land, including buildings and other improvements, fixtures and vegetation erected upon, affixed to, planted in or growing upon the land, and any interest, estate, benefit, right or privilege in such property.

Sale. The term "sale" includes any sale, exchange, barter, or offer for sale.

Shall. The term "shall" imposes a duty to act.

Shall not. The term "shall not" imposes a prohibition against acting.

Sidewalk. The term "sidewalk" means that portion of the street between the curb line and the adjacent property line intended for the use of pedestrians.

Signature of subscription by mark. The term "signature" or "subscription by mark" include a mark when the signer or subscriber cannot write, such signer's or subscriber's name being written near the mark by a witness who writes his own name near the signer's or

subscriber's name; but a signature or subscription by mark can be acknowledged or can serve as a signature or subscription to a sworn statement only when two witnesses so sign their own names thereto.

State. The term "State" means the State of Nevada.

Street. The term "street" shall mean the entire width between the boundary line of every way publicly maintained when any part thereof is open to the use of the public for vehicular traffic.

Tenant or *occupant.* The terms "tenant" and "occupant," as applied to premises, include any person holding a written or oral lease, or who actually occupies the whole or any part of such premises, alone or with others.

Tenses. The present tense includes the past and future tenses. The future tense includes the present tense.

Week. The term "week" means a period of seven consecutive days.

Will. The term "will" imposes a duty to act.

Writing. The term "writing" includes any form of recorded message capable of comprehension by ordinary visual means.

Year. The term "year" means a calendar year.
(Ord. No. 3173, § 1, 6-17-2014)

1.03.020 Title, chapter and section headings.

Title, chapter and sections headings contained in this Code shall not be deemed to govern, limit, modify or in any manner affect the scope, meaning or intent of the provisions of any title, chapter or section.
(Ord. No. 3173, § 1, 6-17-2014)

1.03.030 History notes, state law references and other footnote material.

(a) The history of source notes appearing in parentheses after sections in this Code are not intended to have any legal effect but are merely intended to indicate the source of matter contained in the section. State law references that appear after sections or subsections of this Code or which otherwise appear in footnote form are provided for the convenience of the user of this Code and have no legal effect.

(b) Editor's notes, charter references, cross references and state law references that appear in this Code after sections or subsections or that otherwise appear in footnote form are provided for the convenience of the user of the Code and have no legal effect.
(Ord. No. 3173, § 1, 6-17-2014)

1.03.040 References to Code.

Unless otherwise specified:

(1) All references in this Code to titles, chapters, sections or subsections are to titles, chapters, sections or subsections of this Code.

(2) All references in this Code to titles, chapters, sections or subsections of this Code are to titles, chapters, sections or subsections of this Code, as amended.
(Ord. No. 3173, § 1, 6-17-2014)

1.03.050 Effect of repeal of ordinances.

(a) Unless specifically provided otherwise, the repeal of an ordinance does not revive any previously repealed ordinance.

(b) The repeal or amendment of an ordinance does not affect any punishment or penalty incurred before the repeal took effect, nor does such repeal or amendment affect any suit, prosecution or proceeding pending at the time of the amendment or repeal.
(Ord. No. 3173, § 1, 6-17-2014)

1.03.060 Severability.

If any section, subsection, sentence, clause, phrase, provision or portion of this Code, or the application thereof to any person or circumstances, is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions or provisions of this Code or their applicability to distinguishable situations or circumstances. In enacting this Code, it is the desire of the city council to validly regulate to the full measure of its legal authority in the public interest, and to that end, the city council declares that it would have adopted this Code and each section, subsection, sentence, clause, phrase, provision, or portion thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases or portions thereof might be declared invalid or unconstitutional in whole or in part, as applied to any particular situation or circumstances, and to this end the provisions of this Code are intended to be severable.
(Ord. No. 3173, § 1, 6-17-2014)

Chapter 1.04 CITATIONS FOR VIOLATIONS

Sections:

1.04.010 Authorized—Service.
1.04.020 Form.
1.04.030 Time for appearance.
1.04.040 Failure to appear.

1.04.010 Authorized—Service.

Except when otherwise expressly directed by law or ordinance, upon any violation of any ordinance of the City of Henderson, the city manager, the police chief, the fire chief and authorized assistants, the managing inspector and authorized assistants, and all other authorized officers, inspectors and employees charged with the enforcement of city ordinances may prepare, sign and serve on the accused person a written citation to appear in the municipal court to answer such charge or complaint. For criminal matters, a citation may be served in lieu of arresting the person committing the violation. All such citations shall be personally served on the person accused or his representative.
(Ord. No. 3173, § 1, 6-17-2014; Code 1976, § 1.04.010; Ord. 236 § 1, 1958)

1.04.020 Form.

The citation provided for in the preceding section shall be substantially, in form and content, as set forth in NRS 171.1774. When the issuance of a citation is appropriate, a single citation that includes all charges arising out of the same incident shall be issued unless, due to the high number of offenses charged, it is not possible to include all such charges on a single citation, in which case more than one citation may be issued.
(Ord. No. 3326, § 1, 1-19-2016; Ord. No. 3173, § 1, 6-17-2014; Code 1976, § 1.04.020; Ord. 236 § 2, August 18, 1958)

1.04.030 Time for appearance.

The time specified in such citation for the accused to appear must be not less than five days after service, unless an earlier hearing is demanded by the accused. If more than one offense is charged in connection with the same incident, all such charged offenses shall be heard at the same time and as part of the same case.
(Ord. No. 3326, § 1, 1-19-2016; Code 1976, § 1.04.030; Ord. 236 § 3, August 18, 1958)

1.04.040 Failure to appear.

In the event any person willfully fails to appear in court as required by such citation, the court shall issue a bench warrant and may deem the person in contempt of court, which is punishable by a fine not exceeding $500.00 or term of imprisonment not exceeding 25 days, or both.

(Ord. No. 3549, § 1, 12-8-2018; Ord. No. 3173, § 1, 6-17-2014; Code 1976 § 1.04.040; Ord. 236 § 4, August 18, 1958)

Chapter 1.05 PENALTIES AND REMEDIES FOR CODE VIOLATIONS

Sections:

1.05.010 Definition.
1.05.020 Authorized punishment; penalties.
1.05.030 Separate offenses.
1.05.040 Injunctive relief.
1.05.050 Other remedies.

1.05.010 Definition.

(a) In this chapter "violation of this Code" means any of the following:

(1) Doing an act that is prohibited or made or declared unlawful, an offense, a violation or a misdemeanor by ordinance or by rule or regulation authorized by ordinance.

(2) Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance.

(3) Failure to perform an act if the failure is prohibited or is made or declared unlawful, an offense, a violation, or a misdemeanor by ordinance or by rule or regulation authorized by ordinance.

(b) In this chapter "violation of this Code" does not include the failure of a city officer or city employee to perform an official duty unless it is specifically provided that the failure to perform the duty is to be punished as provided in this chapter.
(Ord. No. 3173, § 1, 6-17-2014)

1.05.020 Authorized punishment; penalties.

(a) Except as otherwise provided by law or ordinance, a person convicted of a violation of this Code shall be guilty of a misdemeanor punishable by imprisonment in the Henderson Detention Center for not more than six months, and/or by a fine of not more than $1,000.00.

(b) In lieu of all or part of the punishment which may be imposed pursuant to subsection (a), the convicted person may be sentenced to perform a fixed period of community service pursuant to the conditions prescribed in NRS 176.087.

(c) In all cases where a corporation is convicted of a violation of this Code, the corporation is punishable by a fine not exceeding $1,000.00 unless otherwise provided by law or ordinance.

(d) A person violating any administrative provision of any chapter of this Code may be assessed a civil penalty not exceeding $500.00, or as otherwise provided in such chapter.

(e) The commission of any act within the corporate limits of the city or the failure to perform any act within such corporate limits which is made a civil infraction by the laws of the state of Nevada is declared to be and shall constitute a civil infraction under this Code. Furthermore, all procedures and administrative protocol provided by specific statute as it relates to civil infractions is hereby enacted and in effect.

(f) A person who is found to have committed a civil infraction shall be punished by a civil penalty of not more than $500.00 per violation unless a greater or lesser civil penalty is authorized by specific statute.

(Ord. No. 4152, § 1, 3-17-2026; Ord. No. 3173, § 1, 6-17-2014)

1.05.030 Separate offenses.

Except as otherwise provided by law or ordinance:

(1) With respect to violations of this Code that are continuous with respect to time, each day that the violation continues is a separate offense.

(2) With respect to violations of this Code that are not continuous with respect to time, each act is a separate offense.

(Ord. No. 3173, § 1, 6-17-2014)

1.05.040 Injunctive relief.

Violations of this Code that are continuous with respect to time are a public nuisance and may be abated by injunctive or other equitable relief. The imposition of a civil penalty does not prevent equitable relief.

(Ord. No. 3173, § 1, 6-17-2014)

1.05.050 Other remedies.

The imposition of a civil penalty or equitable relief does not prevent suspension or revocation of a license, permit or franchise or other administrative remedies.

(Ord. No. 3173, § 1, 6-17-2014)

Title 2

ADMINISTRATION AND PERSONNEL

Chapters:

2.01	Council Salaries
2.04	Council Meetings
2.05	Municipal Court Judge Salary
2.06	Municipal Court
2.08	Elections
2.10	City Manager
2.16	Reserved
2.18	Reserved
2.20	Reserved
2.21	Reserved
2.22	Reserved
2.24	Emergency Management
2.27	Parks and Recreation
2.29	Ambulance Transportation Fees
2.34	Administrative Policies
2.40	Ethical Standards for Public Servants
2.42	Reserved
2.43	City Audit Function
2.44	City Clerk: Additional Duties and Authorizations
2.47	Records Management
2.48	Reserved
2.50	City Boards and Commissions
2.52	Reserved
2.56	Bond Issuance for Project Assistance
2.58	Reserved
2.60	Reserved
2.65	Insurance
2.70	Reserved
2.75	Reserved
2.80	Reserved
2.85	Reserved
2.90	Reserved
2.95	Reserved
2.100	Registration and Regulation of Lobbyists
2.110	Reserved

Chapter 2.01 COUNCIL SALARIES

Sections:

2.01.010 Salary for councilmembers from Wards I, II, III and IV.
2.01.020 Salary for mayor.
2.01.030 Salary for councilmen and mayor—Automatic increase.
2.01.040 Vehicle allowance.
2.01.050 Benefits.

2.01.010 Salary for councilmembers from Wards I, II, III and IV.

Commencing on July 1, 1999, the councilmembers representing Wards I, II and IV shall receive as compensation for their services an annual salary of $34,250.00.

Commencing on July 1, 2001, the councilmember representing Ward III shall receive as his/her compensation for his/her services an annual salary of $34,250.00 plus the proportion that the index figure of the National Consumer Price Index for all Urban Consumers for All Items, U.S. City Average (1967 = 100) that is published by the Bureau of Labor Statistics, United States Department of Labor, (hereafter "CPI Index") for March 2001 has increased above the CPI Index for March of 2000.
(Ord. 2054, § 1, 2001; Ord. 1831, § 1 (part), 1998)

2.01.020 Salary for mayor.

Commencing on July 1, 2001, the mayor of the City of Henderson shall receive as compensation for his/her services an annual salary of $42,250.00.
(Ord. 1831, § 1 (part), 1998)

2.01.030 Salary for councilmen and mayor—Automatic increase.

The salaries of the mayor and members of the city council that are provided for in sections 2.01.010 and 2.01.020 of this chapter shall automatically be increased:

A. On July 1, 2000, in the same proportion that the CPI for March of 2000 has increased above such index figure for March of 1999; and

B. On July 1 in each year thereafter, in the same proportion that such index figure for March of that year has increased above such index figure for March of the previous year.

(Ord. 2054, § 2, 2001; Ord. 1831, § 1 (part), 1998)

2.01.040 Vehicle allowance.

Inasmuch as the mayor and members of the city council are required to use their personal vehicles for the conduct of city business and travel within the State of Nevada, a

monthly reimbursement in the amount of $900.00 for mayor and $600.00 for each member of the city council shall be paid as follows: Effective on July 1, 1999, for Wards I, II and IV; effective on July 1, 2001, for the mayor and Ward III. This amount is to be considered total reimbursement for vehicle fuel, maintenance, repair, wear and tear, and liability insurance for vehicles used.
(Ord. 1831, § 1 (part), 1998)

2.01.050 Benefits.

In addition to the salaries set forth in sections 2.01.010 and 2.01.020, the mayor and each member of the city council shall receive all benefits for which he/she is eligible under the elected officials benefit package.
(Ord. 1831, § 1 (part), 1998)

Chapter 2.04 COUNCIL MEETINGS*

Sections:

2.04.010 Date and time of meetings.
2.04.020 Place of meetings.
2.04.030 Special meetings.
2.04.040 Reserved.
2.04.050 Reserved.
2.04.060 Executive sessions and closed meetings.
2.04.070 Legal record of meeting.
2.04.080 City council rules of procedure.
2.04.090 Recordings or transcripts of meetings held by order of city attorney.
2.04.100 Recordings or transcripts of meetings.

2.04.010 Date and time of meetings.

The city council shall meet in regular session on the first and third Tuesday of each month at a time to be determined and published consistent with NRS chapter 241. The city council may, as it deems necessary, schedule a regular meeting on a date other than the first or third Tuesday of each month, in accordance with sections 2.040 through 2.060 of the City of Henderson Charter and the provisions of NRS chapter 241.
(Ord. No. 3174, § 1, 6-17-2014; Ord. No. 3368, § 1, 11-1-2016; Ord. No. 3709, § 1, 7-7-2020)

2.04.020 Place of meetings.

The city council herewith designates as its council chambers, for the conduct of all regular meetings, the council chambers in city hall located at 240 Water Street, Henderson, Nevada, or such other place as the city council may from time to time determine.
(Ord. No. 3174, § 1, 6-17-2014)

2.04.030 Special meetings.

Special meetings of the city council may be called by the mayor or a majority of the council in compliance with section 2.050 of the City of Henderson City Charter and the provisions of NRS chapter 241.
(Ord. No. 3174, § 1, 6-17-2014; Ord. No. 3368, § 1, 11-1-2016)

***Editor's note—**Ord. No. 3174, § 1, adopted June 17, 2014, amended chapter 2.04 in its entirety to read as herein set out. Formerly, chapter 2.04, §§ 2.04.010—2.04.110, pertained to similar subject matter, and derived from Res. No. 734, adopted in 1980; Res. No. 1104, adopted in 1985; Ord. No. 1415, §§ 2—6, adopted in 1993, and Ord. No. 2961, § 1, adopted April 3, 2012.

2.04.040 Reserved.

Editor's note—Ord. No. 3368, § 1, adopted November 1, 2016, repealed the former section 2.04.040 in its entirety, which pertained to reconvening after recess, and derived from Ord. No. 3174, § 1, adopted June 17, 2014.

2.04.050 Reserved.

Editor's note—Ord. No. 3368, § 1, adopted November 1, 2016, repealed the former section 2.04.050 in its entirety, which pertained to postponed meetings, and derived from Ord. No. 3174, § 1, adopted June 17, 2014.

2.04.060 Executive sessions and closed meetings.

Executive sessions, closed meetings or non-public meetings may be held in accordance with the provisions of NRS chapters 241 and 288.220.
(Ord. No. 3174, § 1, 6-17-2014; Ord. No. 3368, § 1, 11-1-2016)

2.04.070 Legal record of meeting.

The written minutes approved by the city council shall act as the permanent record of a city council meeting and shall be prepared and retained in accordance with the provisions of NRS chapter 241.
(Ord. No. 3174, § 1, 6-17-2014; Ord. No. 3368, § 1, 11-1-2016)

2.04.080 City council rules of procedure.

Pursuant to section 2.060 of the City of Henderson charter, the city council shall adopt rules of procedure that shall apply to city council meetings. The city council rules of procedure and any amendments thereto shall be adopted by city council resolution. A current copy of the city council rules of procedure shall be held by the city clerk's office.
(Ord. No. 3174, § 1, 6-17-2014; Ord. No. 3368, § 1, 11-1-2016)

2.04.090 Recordings or transcripts of meetings held by order of city attorney.

Upon order of the city attorney, any audio or video recordings or transcripts of city council meetings subject to a legal hold shall be held until released by the city attorney, and then held or destroyed in accordance with the City of Henderson Records Retention Schedule, provided that all retention requirements of NRS chapter 241 have been met.

(Ord. No. 3174, § 1, 6-17-2014; Ord. No. 3368, § 1, 11-1-2016)

Editor's note—Ord. No. 3368, § 1, adopted November 1, 2016, changed the title of section 2.04.090 from "Recordings held by order of city attorney" to "Recordings or transcripts of meetings held by order of city attorney." The historical notation has been preserved for reference purposes.

2.04.100 Recordings or transcripts of meetings.

Any audio or video recordings or transcripts of city council meetings held as records of the city may be destroyed in accordance with the City of Henderson Records Retention Schedule, provided that all retention requirements of NRS chapter 241 have been met.

(Ord. No. 3174, § 1, 6-17-2014; Ord. No. 3368, § 1, 11-1-2016)

Editor's note—Ord. No. 3368, § 1, adopted November 1, 2016, changed the title of section 2.04.100 from "Recordings presently being held" to "Recordings or transcripts of meetings." The historical notation has been preserved for reference purposes.

Chapter 2.05 MUNICIPAL COURT JUDGE SALARY

Sections:

2.05.010 Salary for municipal court judge.
2.05.020 Salary increase for municipal court judge—Automatic increase.
2.05.030 Benefits.
2.05.031 Professional allowance for municipal court judge.

2.05.010 Salary for municipal court judge.

Each elected municipal court judge shall, as of the first pay period that includes July 1, 2025, receive as compensation for his/her services an annual salary of $209,818.91. All elected municipal court judges thereafter shall receive as compensation for their services an annual salary equal to the annual salary of the incumbents within this classification.
(Ord. No. 4082, § 1, 6-17-2025; Ord. No. 4057, § 1, 2-4-2025; Ord. No. 3161, § 1, 5-20-2014; Ord. 2505, § 1, 2006; Ord. 2055, § 1, 2001; Ord. 1835, § 1 (part), 1998)

Editor's note—Ord. No. 4082, § 1, adopted June 17, 2025, changed the title of section 2.05.010 from "Salary for municipal court judge—Automatic increase" to "Salary for municipal court judge." The historical notation has been preserved for reference purposes.

2.05.020 Salary increase for municipal court judge—Automatic increase.

A. Effective the first pay period of fiscal year 2016 by an additional three percent; and

B. On July 1, 2017, in the same proportion that the CPI for March of 2017 has increased above such index figure for March of 2016; and

C. On July 1 in each year thereafter, in the same proportion that such index figure for March of that year has increased above such index figure for March of the previous year.
(Ord. No. 4057, § 1, 2-4-2025; Ord. No. 3161, § 1, 5-20-2014; Ord. 2128, § 1, 2002; Ord. 2055, § 2, 2001; Ord. 1835, § 1 (part), 1998)

Editor's note—Ord. No. 4057, § 1, adopted February 4, 2025, changed the title of section 2.05.020 from "Salary increase for municipal court judge" to "Salary increase for municipal court judge—Automatic increase." The historical notation has been preserved for reference purposes.

2.05.030 Benefits.

In addition to the salary set forth in section 2.05.010, the elected municipal court judges shall receive all benefits for which he/she is eligible under the elected officials benefit package.
(Ord. 1835, § 1 (part), 1998)

2.05.031 Professional allowance for municipal court judge.

In addition to the salary set forth in section 2.05.010, 2.05.020, and 2.05.030, the elected municipal court judges shall receive a professional allowance of $600.00 per month, effective on July 1, 2024.
(Ord. No. 4057, § 1, 2-4-2025)

Chapter 2.06 MUNICIPAL COURT

Sections:

2.06.010 Court of record.
2.06.020 Administrative fee exceptions.

2.06.010 Court of record.

Effective January 2, 1996, the Henderson Municipal Court shall be a court of record. (Ord. 1609, § 1, 1995)

2.06.020 Administrative fee exceptions.

A. When a defendant pleads guilty, guilty but mentally ill or is found guilty of a misdemeanor, including the violation of any municipal ordinance, the municipal judge shall include in the sentence the sum of $10.00 as an administrative assessment for the provision of court facilities and render a judgment against the defendant for the assessment.

B. This section does not apply to an ordinance regulating metered parking or an ordinance which is specifically designated as imposing a civil penalty or liability pursuant to NRS 268.019.

C. The money collected for an administrative assessment for the provision of court facilities must not be deducted from the fine imposed by the municipal judge but such must be taxed against the defendant in addition to the fine. The money collected for such an administrative assessment must be stated separately on the court's docket and must be included in the amount posted for bail. If the defendant is found not guilty or the charges are dismissed, the money deposited with the court must be returned to the defendant. If the judge cancels a fine because the fine has been determined to be uncollectible, any balance of the fine and the administrative assessment remaining unpaid shall be deemed to be uncollectible and the defendant is not required to pay it. If a fine is determined to be uncollectible, the defendant is not entitled to a refund of the fine or administrative assessment he has paid and the municipal judge shall not recalculate the administrative assessment.

D. If the municipal judge permits the fine and administrative assessment for the provision of court facilities to be paid in installments, the payments must be applied in the following order:

1. To pay the unpaid balance of an administrative assessment imposed pursuant to NRS 176.059;

2. To pay the unpaid balance of an administrative assessment for the provision of court facilities pursuant to this section; and

3. To pay the fine.

E. The money collected for administrative assessments for the provision of court facilities in municipal courts must be paid by the clerk of the court to the director of finance on or before the fifth day of each month for the preceding month. The director of finance shall deposit the money received in a special revenue fund. The city may use the money in the special revenue fund only to:

1. Acquire land on which to construct additional facilities for the municipal court;

2. Construct or acquire additional facilities for the municipal court;

3. Renovate or remodel existing facilities for the municipal court;

4. Acquire furniture, fixtures and equipment necessitated by the construction or acquisition of additional facilities or the renovation of an existing facility for the municipal court. This paragraph does not authorize the expenditure of money from the fund for furniture, fixtures or equipment for judicial chambers;

5. Acquire advanced technology for use in the additional or renovated facilities;

6. Pay debt service on any bonds issued pursuant to subsection 3 of NRS 350.020 for the acquisition of land or facilities or the construction or renovation of facilities for the municipal court.

Any money remaining in the special revenue fund after five fiscal years must be deposited in the municipal general fund for the continued maintenance of court facilities if it has not been committed for expenditure pursuant to a plan for the construction or acquisition of court facilities or improvements to court facilities. The finance director shall provide, upon request by a municipal court, monthly reports of the revenue credited to and expenditures made from the special revenue fund.
(Ord. 1723, § 1, 1997)

Chapter 2.08 ELECTIONS

Sections:

2.08.010 Elective officers.
2.08.020 Terms of office of mayor, councilmen and municipal judges elected by voters.
2.08.030 Vacancies in elective offices.
2.08.040 Date of entry upon duties.
2.08.050 Qualifications for elective offices—Filing and fees.
2.08.060 Vote centers.
2.08.070 Ward boundaries.

2.08.010 Elective officers.

The following officers shall be elected: mayor, four councilmen, and three municipal judges.
(Ord. 2513, § 2, 2006)

2.08.020 Terms of office of mayor, councilmen and municipal judges elected by voters.

For term of office of councilmen and the mayor see City Charter section 2.010 subsection 4 and section 5.020 subsection 1.

For term of office of municipal judge see City Charter section 5.020 subsection 1.
(Ord. No. 3060, § 1, 9-17-2013; Ord. 2513, § 2, 2006)

2.08.030 Vacancies in elective offices.

Upon the occurrence of a vacancy in the offices of mayor, councilmen or municipal judge, the city council may, by majority vote, appoint a qualified person to fill the vacancy within 60 days after the occurrence of the vacancy. In lieu of appointment, the city council may, by resolution, order a special election to be held no later than 90 days after the occurrence of the vacancy.
(Ord. No. 3060, § 1, 9-17-2013; Ord. 2513, § 2, 2006)

Editor's note—Ord. No. 3060, § 1, adopted September 17, 2013, changed the title of section 2.08.030 from "Special elections" to "Vacancies in elective offices." The historical notation has been preserved for reference purposes.

2.08.040 Date of entry upon duties.

A councilman, mayor, or municipal judge elected into office during the primary or general municipal election shall take office at the second regular meeting of the city council held in June of the year of the general municipal election. See City Charter section 5.100.
(Ord. No. 3060, § 1, 9-17-2013; Ord. 2513, § 2, 2006)

2.08.050 Qualifications for elective offices—Filing and fees.

All candidates for the office of mayor or municipal judge must be qualified electors within the City of Henderson and must have been bona fide residents thereof for a period of at least 12 months immediately preceding the last day for filing a declaration of candidacy for the office.

All candidates for councilmen must be qualified electors within the respective ward for which they seek the office of councilman, must have been a resident of that ward for at least 30 days immediately preceding the last day for filing a declaration of candidacy for the office (except that changes in ward boundaries pursuant to City Charter section 1.040 do not affect the rights of any elected councilmen to continue in office for the term for which they were elected), and must have been a bona fide resident of the City of Henderson for a period of at least 12 months immediately preceding the last day for filing a declaration of candidacy for the office.

At the time for filing as a candidate for office, all candidates for the office of mayor, councilman or municipal judge shall pay to the city clerk a filing fee of $100.00.
(Ord. 2513, § 2, 2006)

2.08.060 Vote centers.

A. The city clerk may propose to the city council a plan for the establishment of vote centers. The plan must include the following:

1. The total number of vote centers to be established.

2. The location by street address of each vote center and the ward in which the vote center is located. The locations may be presented by map or other graphic depiction.

3. A description of hardware, firmware or software that will be used:

a. To create an electronic poll list of voters and precincts that can vote at the vote center.

b. To establish a secure connection between the county election board and the vote centers.

4. A certification that the proposed vote centers comply with the accessibility requirements applicable to polling places under NRS 293C.281.

5. A proposed layout for each vote center indicating how the vote center will be set up for use by election officials and voters for early voting periods and on election day.

6. Whether the vote centers will also be designated as polling places for early voting pursuant to NRS 293C.355 to 361.

B. The vote center locations must be approved by ordinance of the city council to be enacted at least 60 days prior to the time established for early voting in any municipal election.

C. The city clerk upon approval shall publish the location of each vote center.

D. The city clerk shall administer an election conducted at vote centers in accordance with applicable federal, state and local laws and the plan submitted to the city council under HMC [section] 2.08.060A.

E. Notwithstanding any other law, a registered voter who resides in the city is entitled to cast a ballot at any vote center established in the city without regard to the precinct or ward in which the voter resides.
(Ord. 2513, § 2, 2006)

2.08.070 Ward boundaries.

The city council may modify the boundaries of wards pursuant to Section 1.040 of the Henderson City Charter. However, modification shall not take place, except to accommodate an annexation of territory to the city, during any year in which a general election is held and within the six months prior to the deadline for a candidate to file a declaration of his or her candidacy.
(Ord. No. 3060, § 1, 9-17-2013)

Chapter 2.10 CITY MANAGER

Sections:

2.10.010 City manager authority.
2.10.020 City manager organizational duties.
2.10.030 City manager financial duties.
2.10.040 City manager human resources and benefits duties.

2.10.010 City manager authority.

A. Pursuant to Section 3.020 of the City of Henderson Charter, the city manager is the chief executive officer of the city and shall be responsible for administering the government of the city. The city manager shall have general supervision and oversight over all departments and offices of the city, excluding the municipal court and the offices of executive officers appointed by the city council pursuant to the Henderson City Charter.

B. The city manager shall also perform such administrative and executive duties as the city council may designate through the Henderson City Charter, this chapter, other ordinances or resolutions, a city manager's employment agreement and other city council action.

C. The city manager shall also perform such duties required by a city manager or chief executive officer of a city as may be set forth in the Nevada Revised Statutes.
(Ord. No. 3123, § 1, 2-18-2014)

2.10.020 City manager organizational duties.

A. The city manager shall have general supervision and oversight over all departments and offices of the city, excluding the municipal court and the offices of executive officers appointed by the city council pursuant to the Henderson City Charter.

B. From time to time the city manager may:

(1) Establish new departments, combine existing departments, or make other adjustments to the departments. Any such action by the city manager shall be effective immediately or when directed by the city manager.

(2) Establish and adjust divisions, offices or other units within the various departments of the city, as well as offices and other units that are independent of those departments.

C. Pursuant to Henderson City Charter, Section 1.090(3), the city manager shall appoint the following executive officers, subject to ratification of the city council:

(1) Chief of police.

(2) Assistant city manager.

(3) Fire chief.

(4) Chief financial officer.

D. Pursuant to Henderson City Charter, Section 1.090(2), the city manager must appoint any newly established executive officer not otherwise listed in the Henderson City Charter that the city council may establish as it deems necessary for the operation of the city.

E. The city manager shall appoint all department directors and senior directors. All appointed executive officers set forth in subsections (C), (D), and all department directors and senior directors serve at the pleasure of the city manager.
(Ord. No. 3123, § 1, 2-18-2014)

2.10.030 City manager financial duties.

A. The city manager shall have charge and supervision over all accounts and records of the city, and may inspect, or cause to be inspected, all financial records or accounts required to be kept in any of the offices or departments of the city. The city manager, or his designee, shall examine or cause to be examined, and report to the city council upon, all bills, accounts and payrolls of the city.

B. The city manager shall direct the department of finance to develop a city financial management policy that is approved by the city council. The financial management policy shall include the elements to design, maintain and administer a reliable revenue system to support desired city services pursuant to state and federal laws.

C. In coordination with the city attorney, the city manager shall submit to the city council for approval a city fiscal signature policy. The city fiscal signature policy shall include the signatory requirements for agreements and payments approved and executed by either the city council, the city manager, department directors or other city employees depending on the type of agreement or payment.

D. The city manager shall direct the department of finance to develop an annual budget for the city each fiscal year, pursuant to state law.

(1) Once the annual budget is approved and appropriated by the city council, the city manager has the authority to manage the city budget within the appropriated amounts approved by the city council.

(2) The city manager has the ability to re-direct funds within the appropriated budget unless the re-direction would require the appropriated budget to be augmented with

additional funds outside the appropriated budget. The city manager shall manage all city funds pursuant to all state and federal laws and any rules or ordinances applicable to a particular city fund.

(3) Any augmentation to the approved annual budget requires city council approval.
(Ord. No. 3123, § 1, 2-18-2014)

2.10.040 City manager human resources and benefits duties.

A. The city manager shall develop and maintain an administrative personnel policy manual that includes certain city personnel policies that establish an orderly system of personnel administration within the city.

(1) The city manager may issue administrative personnel policies and directives in consultation with the director of human resources and the city attorney.

(2) All city administrative personnel policies and directives shall comply with state and federal employment laws, the City of Henderson Charter, and where applicable, Henderson civil service rules or the terms of any collective bargaining agreement entered into by the city.

B. The city manager or their designee shall act as the city's management representative for any collective bargaining units recognized by the city pursuant to NRS Chapter 288.

C. The city manager shall manage and administer the benefit plans and programs of the city including, but not limited to, any: city funded health plans; paid time off and or sick leave programs for employees; disability and life insurance benefits for employees, and; any other benefits that city may provide. The city manager shall administer the benefit plans and programs of the city in compliance with state and federal employment laws, the City of Henderson Charter, and where applicable, Henderson civil service rules or the terms of any collective bargaining agreement entered into by the city.

(1) The city manager may make additions or modifications to city benefit plans if the costs of such additions or modifications do not require augmentation of the city council approved annual budget.

(2) If a city manager addition or modification to city benefit plans require an augmentation to the city council approved annual budget the augmentation must be approved by the city council before the addition or modification becomes effective.

D. The city manager, in consultation with the director of human resources, may make modifications to city job descriptions.

E. The city manager, in consultation with the director of human resources, may make modifications to the salary ranges or classification of city job positions pursuant to state and federal law.

F. The city manager, in consultation with the director of human resources, the chief financial officer and the city attorney, may approve any change in salary, compensation or benefits for any city employee.

G. The city manager, with the approval of the city attorney, may approve and execute any employment related settlement or severance agreement, including any agreement related to a city council approved reduction-in-force, early retirement or enhanced severance program.

H. The city manager may approve any new positions within the city, or other modifications to the city employee staff compliment, if such changes do not require augmentation of the city council approved annual budget.
(Ord. No. 3123, § 1, 2-18-2014)

Chapter 2.16 RESERVED*

*__Editor's note—__Ord. No. 3205, § 1, adopted September 2, 2014, repealed the former chapter 2.16, §§ 2.16.010—2.16.070 in its entirety, which pertained to the parks and recreation board, and derived from Ord. No. 1917, §§ 2—6, adopted in 1999; Ord. No. 2828, § 1, adopted August 4, 2009, and Ord. No. 3030, § 1, adopted July 2, 2013.

Chapter 2.18 RESERVED*

*__Editor's note—__Ord. No. 3206, § 1, adopted September 2, 2014, repealed the former chapter 2.18, §§ 2.18-010—2.18.070, which pertained to the commemorative beautification commission, and derived from Ord. No. 1916, §§ 1—6, adopted in 1999, and Ord. No. 3031, § 1, adopted July 2, 2013.

Chapter 2.20 RESERVED*

***Editor's note—**Ord. No. 3207, § 1, adopted September 2, 2014, § 1, adopted September 2, 2014, repealed the former chapter 2.20, §§ 2.20.010—2.20.040 in its entirety, which pertained to the blue ribbon commission on educational excellence and youth opportunity, and derived from Ord. No. 1398, §§ 1—4, adopted in 1993; Ord. No. 1464, § 1, adopted in 1994; Ord. No. 1990, § 1, adopted in 2000, and Ord. No. 3032, § 1, adopted July 2, 2013.

Chapter 2.21 RESERVED*

*__Editor's note—__Ord. No. 3208, § 1, adopted September 2, 2014, repealed the former chapter 2.21, §§ 2.21.010—2.21.080 in its entirety, which pertained to the citizens' advisory committee, and derived from Ord. No. 1504, §§ 1—8, adopted in 1994.

Chapter 2.22 RESERVED*

*__Editor's note—__Ord. No. 3209, § 1, adopted September 2, 2014, repealed the former chapter 2.22, §§ 2.22.010—2.22.070 in its entirety, which pertained to the senior citizens advisory commission, and derived from Ord. No. 1915, §§ 1—6, adopted in 1999, and Ord. No. 3094, § 1, adopted December 3, 2013.

Chapter 2.24 EMERGENCY MANAGEMENT*

Sections:

2.24.010 Definitions.
2.24.020 Emergency management coordinator—Appointment and authority.
2.24.030 Emergency management coordinator—Duties and responsibilities.
2.24.040 Emergency management council—Created—Members.
2.24.050 Emergency management council—Powers and duties.
2.24.060 Declaration of state of emergency.
2.24.070 Operational emergency management organization.
2.24.080 Emergency powers of city manager and emergency management coordinator.
2.24.090 Measures to maintain peace and order.
2.24.100 Public works director—Duties and responsibilities.
2.24.110 Continuity of government.

2.24.010 Definitions.

As used in this chapter:

Coordinator means the emergency management coordinator for the city.

Disaster means a severe or prolonged emergency for which assistance is, or may be, needed to supplement the efforts and capabilities of the city to protect or avert the threat of damage to life, property, the environment, critical systems, and/or infrastructure.

Emergency means a natural or human-caused incident or set of incidents, occurring or threatened to occur, that requires responsive action by the city to protect or avert the threat of damage to life, property, the environment, critical systems, and/or infrastructure. An emergency includes, but is not limited to, an incident involving a(n) active assailant, air quality issue, chemical, biological, radiological, nuclear, or explosives hazard, oil spill, civil disturbance, cybersecurity, drought, fire, flood, landslide, debris flow, geohazard, infectious disease, impact on infrastructure, severe weather, terrorism, and/or impact on transportation.

Emergency management means the management and coordination of prevention, mitigation, preparedness, response, and recovery activities for emergencies and disasters, other than functions for which military forces are primarily responsible.

Emergency operations plan means the emergency response plan for the city that complies with any applicable requirements in NRS 239C.250 and NRS chapter 414, is prepared at the direction of the city manager, with input from the Henderson emergency management council in accordance with section 2.24.040, and is adopted by city council.

***Prior ordinance history:** Ord. 1144.

Human-caused means caused by human activity, including but not limited to incidents of a chemical, biological, radiological, nuclear, explosive, or technological (including cyber) nature, whether accidental or intentional.

Local organization for emergency management has the same meaning as the term "local organization for emergency management" in NRS chapter 414.

Mitigation means activities designed to reduce or eliminate risks to persons, property, the environment, critical systems, and/or infrastructure or to lessen the actual or potential effects or consequences of an emergency or disaster.

Next lawful meeting means the first regular or special meeting of the city council at which the desired action may be duly noticed and taken in accordance with NRS chapter 241, without utilizing the emergency provisions under such chapter.

Preparedness means the range of deliberate, critical tasks and activities necessary to build, sustain, and improve the operational capability to prevent, protect against, mitigate against, respond to, and recover from emergencies and disasters.

Prevention means actions to avoid an incident or to intervene to stop an incident from occurring, including but not limited to actions to protect lives, property, the environment, critical systems, and infrastructure.

Recovery means the development, coordination, and execution of plans or strategies to restore impacted communities and city operations and services.

Response means efforts to minimize the short-term direct effects of an incident threatening or harming life, property, the environment, critical systems, and/or infrastructure.
(Ord. No. 3862, § 1, 4-5-2022; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 2, 1993)

2.24.020 Emergency management coordinator—Appointment and authority.

The emergency management coordinator for the city shall be appointed by the city manager and shall be responsible for emergency management in accordance with the state's plan and program for emergency management and for the organization, administration and operation of the local plan for emergency management subject to the direction and control of the city manager. Under that direction and control, the coordinator shall be empowered to function with the duties and responsibilities described in section 2.24.030.
(Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 3, 1993)

2.24.030 Emergency management coordinator—Duties and responsibilities.

A. The emergency management coordinator shall be the "director" of the local organization for emergency management established by the city pursuant to NRS 414.090 and shall take the oath required pursuant to NRS 414.150 upon assuming the duties of emergency management coordinator. In the absence of the emergency management coordinator or vacancy in that position, each person designated under section 2.24.110 to fill the position of emergency management coordinator shall take the oath required pursuant to NRS 414.150 before that person assumes the duties of emergency management coordinator.

B. The emergency management coordinator is authorized to petition, acquire and accept funds from the United States Government or any agency or office thereof, or from the State of Nevada, for emergency management purposes, as provided in the provisions of NRS 414.130.

C. The emergency management coordinator, in collaboration with other public and private agencies within the state, may develop or cause to be developed, agreements for mutual aid or assistance in case of emergency or disaster for which the city requires such assistance. Those agreements shall be approved by the city council, shall be consistent with the state's plan and program for emergency management, and shall provide that in time of emergency or disaster each local organization for emergency management shall render assistance in accordance with the provisions of such agreements.

D. The emergency management coordinator shall perform and exercise other such functions, powers and duties as are necessary to promote and secure public safety and protection within the territorial limits of the city and, in addition, shall conduct such functions outside the territorial limits of the city as may be required pursuant to the provisions of NRS chapter 414.

E. The emergency management coordinator is responsible for responding to emergencies and disasters as they may occur at any time. The police communications dispatch center will be advised when the emergency management coordinator will not be available during off hours, annual leave and holidays. In order to relieve the emergency management coordinator and to temporarily assume the continuous coverage of responsibility, qualified back up employees are designated by title in section 2.24.110, Continuity of government. In order for the emergency management coordinator to respond at all hours, the emergency management coordinator shall be assigned a city take-home vehicle, in which all necessary emergency equipment, radios, publications, check lists, marked clothing, etc., will be available and ready for use. The vehicle will be used solely by the emergency management

coordinator and operated in accordance with the applicable city directive. The vehicle will be used solely by the emergency management coordinator and operated in accordance with all applicable city policies and directives.
(Ord. No. 3862, § 2, 4-5-2022; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, §§ 4—7, 1993)

2.24.040 Emergency management council—Created—Members.

A. There is created the Henderson emergency management council ("EMC") which shall consist of the following:

1. The emergency management coordinator, or their designee, who shall serve as chair of the EMC;

2. The emergency management officer, who shall serve as vice chair of the EMC and act as chair in the absence of the emergency management coordinator; and

3. Department heads of various departments, as appointed by the city manager, who may have key emergency responsibilities to the city government.

B. The emergency management coordinator may invite organizations that may provide support or information during an emergency to be members of the EMC. That organization shall designate one or more people to represent it on the EMC. Those organizations and representatives shall keep all confidential information disclosed to them confidential, shall not disclose confidential information in any manner to any individual or business entity without prior written authorization from the emergency management coordinator, and are presumed to agree to these confidentiality obligations by virtue of the organization being a member of the EMC. "Confidential information" means oral or written information concerning (1) the city's emergency planning, operations or preparedness provided to the EMC, (2) the emergency operations plan, other confidential emergency response plan(s), and any confidential incident response plan(s), and/or (3) drafts of those plans.
(Ord. No. 3862, § 3, 4-5-2022; Ord. No. 3580, § 1, 5-21-2019; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 8, 1993)

2.24.050 Emergency management council—Powers and duties.

The EMC is established for the purpose of making recommendations to the city manager with respect to matters involving emergency management. The EMC shall make recommendations for the adoption of an emergency operations plan in compliance with the requirements of NRS chapters 239C and 414 and the adoption or approval of any and all mutual aid plans and agreements that are deemed necessary for the implementation of

such emergency operations plan. The duties of such EMC shall also include a continuing study of the need for revisions to the emergency operations plan. The EMC shall meet upon the call of the chair.
(Ord. No. 3862, § 4, 4-5-2022; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 9, 1993)

2.24.060 Declaration of state of emergency.

A. In accordance with NRS 241.020(2) and (5), charter sections 2.050 and 3.010, and the emergency operations plan, the mayor, mayor pro tempore, or a majority of the members of the city council may call an emergency meeting. If it is determined that an emergency or disaster exists, the city council shall declare in writing that a state of emergency exists and shall publicize, by a method deemed appropriate by city council, the existence of the emergency or disaster. If circumstances prohibit timely action by the city council, then the mayor, mayor pro tempore, city manager, or emergency management coordinator may issue a declaration of state of emergency and seek the ratification of that declaration by a majority of a quorum of the city council at the next lawful meeting. If the city council fails to ratify that declaration of state of emergency at the next lawful meeting, then that declaration shall automatically terminate when that next lawful meeting adjourns.

B. The city council or city manager shall terminate the declaration of state of emergency when the emergency or disaster no longer exists or the threat of an emergency has passed.
(Ord. No. 3862, § 5, 4-5-2022; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 10, 1993)

2.24.070 Operational emergency management organization.

The operational emergency management organization of the city shall consist of officers and employees of the city designated by the emergency management coordinator, as well as all volunteer workers. The functions and duties of this organization shall be distributed among such divisions, services and special staff as the city manager shall prescribe. The operational emergency management organization is the "local organization for emergency management" established pursuant to NRS 414.090.

The emergency management coordinator, with the approval of city manager, shall set forth the form of organization, establish and designate divisions and services, assign functions, duties and powers, and designate officers and employees to carry out the provisions of this chapter. Insofar as possible, the form of organization, titles and terminology shall conform to the recommendations of the federal government and the recommendations of the emergency management agency of the State of Nevada. A specific directive

creating this organization by name will be developed by the emergency management coordinator, approved by the city manager, and updated periodically in the emergency operations plan as necessary.
(Ord. No. 3862, § 6, 4-5-2022; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 11, 1993)

2.24.080 Emergency powers of city manager and emergency management coordinator.

A. At the inception of and during a disaster or emergency, the city manager or the emergency management coordinator:

1. Shall implement the city's emergency operations plan and may direct and control such other city employees as are required to implement the plan from the emergency operations center (EOC) or other designated location(s);

2. May, through requisition or contract with private parties or other government entities, obtain necessary services, supplies and equipment needed to protect life and property and implement the plan; and may bind the city for the value thereof without being required to comply with the normal purchasing procedures, if compliance with those procedures would unreasonably hamper or impair the implementation the plan; and

3. May suspend the licensing requirements for persons whose services are required for implementation of the emergency operations plan.

B. The emergency powers granted the city manager and emergency management coordinator under this section may be revoked, limited or restricted by order of the city council.
(Ord. No. 3862, § 7, 4-5-2022; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 12, 1993)

Editor's note—Ord. No. 3862, § 7, adopted April 5, 2022, changed the title of section 2.24.080 from "Emergency powers of city manager" to "Emergency powers of city manager and emergency management coordinator." The historical notation has been preserved for reference purposes.

2.24.090 Measures to maintain peace and order.

If a declared state of emergency exists within the city, the city council may, if it deems it necessary to maintain peace and protect the public, take action and order and enforce the measures listed in this section. If circumstances prohibit the timely action of the city council, the city manager, mayor, mayor pro tempore, or emergency management coordinator may, under the same circumstances, order measures and take actions consistent with the items

listed below and shall report their actions to the city council at its next lawful meeting. During the existence of a state of emergency, to the full extent permitted by law, including in the exercise of any delegation of authority by the Governor of the State of Nevada, the city council or, if authorized by the city council or in the event that circumstances prohibit the timely action of city council, the city manager, mayor, mayor pro tempore, or emergency management coordinator may:

A. Establish a curfew for the area designated as an emergency area which fixes the hours during which persons other than officially authorized personnel may be upon the public streets or other public places;

B. Prohibit or limit the number of persons who may gather or congregate upon any public street, public place or any outdoor place within the area designated as an emergency area;

C. Barricade streets and roads, as well as access points onto streets and roads, and prohibit or restrict vehicular or pedestrian traffic in the area;

D. Enter into contracts and incur obligations necessary to combat such an emergency or disaster, protect the health and safety of persons and property and provide emergency assistance to the victims of such an emergency or disaster to the full extent permitted under NRS chapter 332, NRS chapter 414, or other applicable law;

E. Redirect funds for emergency use to the full extent permitted under NRS chapter 414 or other applicable law;

F. Suspend standard procurement procedures to obtain necessary services or equipment to the full extent permitted under NRS chapter 332, NRS chapter 414, or other applicable law;

G. Commit to mutual aid agreements; and

H. Take such other actions and perform and exercise such other functions, powers and duties as are necessary to promote and secure the safety and protection of the civilian population.

(Ord. No. 3862, § 8, 4-5-2022; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 13, 1993)

Editor's note—Ord. No. 3862, § 8, adopted April 5, 2022, changed the title of section 2.24.090 from "Emergency measures to maintain peace and order" to "Measures to maintain peace and order." The historical notation has been preserved for reference purposes.

2.24.100 Public works director—Duties and responsibilities.

A. To the extent necessary during or after the existence of a declared emergency or disaster and under the direction of the city manager, the director of the city's public works department may remove debris which threatens the public health or safety. Any action

taken by the director under this section shall be reported by the city manager to the city council at its next lawful meeting. Under the direction and control of the city manager, the director may:

1. Use the city departments, mutual aid agreements with other governmental entities or, if necessary, private resources; and

2. Accept funds from the federal government or the state and utilize those funds for the purpose of removing such debris.

B. Debris which exists on city-owned property may be removed at city expense, provided that the expense of removing any debris caused by the negligent or intentional act of any person may be recovered from that person.

C. The public works director may order that debris which exists on privately owned property be removed by the owner of the property or the person responsible for the property at the owner's or other person's expense. Each order must specify the nature of the threat to the public and the minimum quantity of debris which must be removed to eliminate the threat. During an emergency, the order is effective when orally conveyed to the owner or other person responsible for the property.

D. Upon the failure of a person to comply with an order described in this section, the public works director may remove or cause the removal of the debris. The owner of the property or the person responsible for the property is liable to the city for the costs incurred.

E. When immediate emergency measures are determined necessary for protection of public health and safety, or public or private property, and oral or written authorization cannot be obtained from the owner or other person responsible for the property, the public works director may authorize the entry upon the public or private lands or waters and perform such tasks necessary to the emergency removal or clearance operations.
(Ord. No. 3862, § 9, 4-5-2022; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 1431, § 14, 1993)

Editor's note—Ord. No. 3862, § 9, adopted April 5, 2022, changed the title of section 2.24.100 from "Public works, parks and recreation director—Duties and responsibilities" to "Public works director—Duties and responsibilities." The historical notation has been preserved for reference purposes.

2.24.110 Continuity of government.

A. Catastrophic events can interrupt, paralyze and/or destroy the ability of local governments to carry out their legislative, executive and judicial functions. Therefore, it is imperative that a "continuity of government" (COG) be structured with the capability to preserve, maintain, and/or reconstitute its ability to function under the threat or occurrence of any emergency that could disrupt local government and public services.

B. In order to continue governmental functions, it is necessary to establish replacements for key positions through three levels where possible. The following positions are considered key positions in emergency management, and any absences and vacancies will be filled by the person holding the title indicated or, if the title indicated does not correspond with an existing position, by the person holding the functionally equivalent position under a different title, in order as follows:

1. *City manager.* Absence or vacancy filled by:

- **a.** Chief operating officer/Deputy city manager;
- **b.** Chief infrastructure officer/Assistant city manager;
- **c.** Chief strategy officer/Assistant city manager;
- **d.** Chief of police.

2. *Mayor.* In accordance with the charter section 3.010, mayor pro tempore performs the duties of mayor during the absence or disability of the mayor and acts as mayor until the vacancy is filled pursuant to charter section 1.070. Absence or vacancy of mayor or mayor pro tempore filled by:

- **a.** Most senior member of the city council, as shown by the city clerk's records.

3. *City council.* Absence not filled. Vacancy filled in accordance with charter sections 1.060 and 1.070.

4. *Chief of police.* Absence or vacancy filled by:

- **a.** Deputy chief of police (operations);
- **b.** Deputy chief of police (support);
- **c.** Most senior captain.

5. *Fire chief.* Absence or vacancy filled by:

- **a.** Deputy fire chief (operations);
- **b.** Deputy fire chief (support);
- **c.** Most senior battalion chief.

6. *Director of public works.* Absence or vacancy filled by:

- **a.** Assistant director;
- **b.** City engineer;
- **c.** Facilities maintenance manager.

7. *Emergency management coordinator.* Absence or vacancy filled by:

- **a.** Emergency manager;
- **b.** Emergency management officer;

c. Emergency management specialist;

d. Safety manager;

e. Environmental manager.

8. *City attorney.* Absence or vacancy filled by:

a. Senior assistant city attorney (civil division);

b. Senior assistant city attorney (criminal division);

c. Assistant city attorney who primarily supports city's emergency management division.

9. *Chief financial officer.* Absence or vacancy filled by:

a. Assistant director;

b. Business operations manager;

c. Budget manager.

10. *Director of economic development and tourism.* Absence or vacancy filled by:

a. Manager of business operations and tourism;

b. Most senior economic development officer;

c. Economic development officer.

11. *Assistant director—Building and fire safety.* Absence or vacancy filled by:

a. Manager of inspection services;

b. Manager of plans examining services;

c. Assistant manager of inspection services.

12. *City clerk.* Absence or vacancy filled by:

a. Archives and records manager;

b. Manager of council and commission services.

13. *Municipal court judge.* Absence not filled. Vacancy filled in accordance with charter sections 1.060 and 1.070.

14. *Director of government and public affairs.* Absence or vacancy filled by:

a. Government affairs manager;

b. Marketing and public relations manager.

15. *Utility services director.* Absence or vacancy filled by:

a. Most senior deputy director;

b. Deputy director;

c. Most senior manager of water/wastewater operations.

16. *Director of information technology.* Absence or vacancy filled by:

a. Assistant director of information technology;

b. Information technology manager (information systems);

c. Information technology manager (infrastructure);

d. Information technology manager (service center).

17. *Director of community development and services.* Absence or vacancy filled by:

a. Assistant director community development and services;

b. Assistant director building and fire safety;

c. Planning manager.

18. *Human resources director.* Absence or vacancy filled by:

a. Assistant director;

b. Chief labor negotiator;

c. Manager of organizational effectiveness.

19. *Director of parks and recreation.* Absence or vacancy filled by:

a. Assistant director;

b. Administrative manager;

c. Recreation superintendent.

20. *Other departments.* Vacancies to be filled by appointment as necessary.

When not part of a person's official title, "senior" refers to the person who has held the applicable position for the longest period of time, and information in parenthesis refers to the division or operations the referenced person manages or oversees. Any person filling a vacancy pursuant to this section shall hold such position as "acting [title]" until the position is duly filled in accordance with any applicable law.

(Ord. No. 3862, § 10, 4-5-2022; Ord. No. 3580, § 2, 5-21-2019; Ord. No. 3403, § 1, 5-2-2017; Ord. No. 3021, § 1, 6-11-2013; Ord. No. 1431, § 15, 1993)

Chapter 2.27 PARKS AND RECREATION*

Sections:

2.27.010 Purpose.
2.27.020 Definitions and interpretation.
2.27.030 Rules and regulations regarding use of parks, recreation facilities and trails.
2.27.035 Rules and regulations for the use of public plazas.
2.27.040 Suspension from parks, recreation facilities and trails.
2.27.050 Establishment and modification of rules and regulations.
2.27.060 Penalty for violation; appeal.

2.27.010 Purpose.

To regulate the use of city-owned and/or operated parks, trails, recreation facilities and public plazas hosting cultural activities in order that all persons may enjoy and make use of the parks, trail, recreation facilities and public plazas to protect the assets and resources of these community properties.
(Ord. No. 3753, § 1, 1-19-2021; Ord. No. 3396, § 1, 4-11-2017; Ord. No. 3190, § 2, 7-1-2014)

2.27.020 Definitions and interpretation.

As used in this chapter, the following definitions shall apply. Words and phrases shall be construed according to the common and approved usage of the language, but technical words, technical phrases and words and phrases that have acquired peculiar and appropriate meanings in law shall be construed according to such meanings. A park event permit shall be requested in writing.

Amplified sound means speech, music, or other sound projected or transmitted by electronic equipment (including, but not limited to, amplifiers, loud speakers, bull horns or similar devices), which is intended to increase the volume or range of the sound.

Applicant means any person or entity who submits a request to the director under this chapter in order to obtain the necessary permission to conduct certain activities as described in HMC 2.27.030 at or within a park, recreation facility or trail.

Cultural activity means an activity dedicated to performing arts, history or education, or the promotion of activities related to sporting events.

***Editor's note—**Prior to the reenactment of chapter 2.27 by Ord. No. 3190, § 2, adopted July 1, 2014, Ord. No. 3077, § 1, adopted November 5, 2013, repealed the former chapter 2.27, §§ 2.27.010—2.27.070 in its entirety, which pertained to the Henderson emergency medical services advisory board, and derived from Ord. No. 1914, §§ 1—7, adopted in 1999.

Director means the director of the city's parks and recreation department or his or her authorized representative or designee.

Electric bicycle has the meaning as described in NRS 484B.017 and means a device upon which a person may ride, having two or three wheels, or every such device generally recognized as a bicycle equipped with fully operable pedals and an electric motor of less than 750 watts, and is categorized by the following:

Class 1 electric bicycle is equipped with a motor that provides assistance only when the rider is pedaling, and that ceases to provide assistance when the bicycle reaches a speed of 20 miles per hour;

Class 2 electric bicycle is equipped with a motor that may be used exclusively to propel the bicycle, and that is not capable of providing assistance when the bicycle reaches a speed of 20 miles per hour; and

Class 3 electric bicycle is equipped with a motor that provides assistance only when the rider is pedaling, and that ceases to provide assistance when the bicycle reaches a speed of 28 miles per hour. This bicycle is equipped with a speedometer.

Electric motorcycle means device upon which a person may ride, having two or three wheels which is not covered by Nevada Revised Statute as a motor vehicle and is not defined as an electric bicycle in this Code which is propelled by one or more electric motors.

Electric scooter has the meaning described in NRS 484B.018 and means that it has a maximum speed of not more than 20 miles per hour.

HMC means the Henderson Municipal Code, as the same may be amended or modified from time-to-time.

Off-road vehicle or *off-highway vehicles* has the meaning as described in NRS 480.420. This term is inclusive of all internal combustion motor vehicles and electric motor driven vehicles.

Park means a parcel of land owned, operated or maintained by the city and specifically set apart for the recreational use of the public, either temporarily or permanently. This term also includes any land identified as a trail.

Participate means, for purposes of HMC 2.27.030(N), to take a direct role or part in communicating the permittee's message, as opposed to merely being present at the permittee's use. By way of illustration, every person marching in a parade is an expressive unit, the sum of which constitutes the expressive message attributed to the parade's organizer, whereas a spectator who is merely present along the parade's route and who expresses his or her own contrary message is not a "participant" because his or her message could not reasonably be perceived as part of the message he or she protests.

Permittee means any person who received the necessary permission to conduct certain activities as described in HMC 2.27.030 at or within a park, recreation facility or trail.

Public plaza means an open outdoor area that is:

A. Water Street Events Plaza, located on Water Street and Atlantic Avenue;

B. Any other outdoor area that is:

1. Owned and operated by or on behalf of the city;

2. Designed for use as a gathering place for the public or the public enjoyment of cultural activities; and

3. Designated as a public plaza by resolution of the city council.

Recreation facility means those structures, amenities, or apparatus located in a park or trail which aid or make easier the recreational use of the park or trail, including, but not limited to, recreation centers.

Trail means an improved or unimproved pathway designed primarily for outdoor recreational purposes that generally connects elements, spaces, or facilities.

Trailhead means a location having an information kiosk for a trail.
(Ord. No. 4049, § 1, 12-17-2024; Ord. No. 3753, § 1, 1-19-2021; Ord. No. 3396, § 1, 4-11-2017; Ord. No. 3190, § 2, 7-1-2014)

2.27.030 Rules and regulations regarding use of parks, recreation facilities and trails.

A. *Hours.* The following rules and regulations shall apply to all city-owned parks, recreation facilities and trails within the city. All parks shall be open from 6:00 a.m. to 10:00 p.m. daily, unless otherwise posted or approved through the issuance of a park event permit pursuant to subsection C of this section. Lit trails shall be open from 5:00 a.m. to 11:00 p.m. daily, unless otherwise posted or approved through the issuance of a park event permit pursuant to subsection C of this chapter. Unlit trails shall be open from dawn to dusk daily, unless otherwise posted.

B. *Park event permit(s) and special events permits requirements.*

1. A park event permit, as described in subsection C, is required for the following:

a. Any event that involves the use of or placement of equipment or facilities associated therewith, including but not limited to: carnivals, inflatable bounce houses, catering services, festivals, amusement ride ticket sales or other charges, or activities which require the use of canopy pop-up tents larger than

ten feet by ten feet by ten feet, trailers, sandbags, awnings, portable shelters, amplified sound or other equipment, stages, or the use of slack lines and/or ropes while attached to park trees or shrubs;

b. Any event that is open to the public that is publicly or privately advertised through the use of social media, traditional forms of media, or through any temporary signage;

c. Any gathering that exceeds, or is reasonably likely to exceed, 50 persons; or

d. Any gathering or event that is designed for the purpose of and includes the distribution, sale, and/or gifting of any alcoholic beverages, food, and/or non-alcoholic beverages.

e. All equipment, recreational areas, sporting courts, playgrounds, and any other park area designed and or designated for a specific use must be used for their manufacturer's or designers intended use.

2. Special event permits. A special event permit may also be required as described in HMC 8.10.

C. *Park event permits—Conditions, application, denial.* When a park event permit is required by subsection B, the following conditions and requirements apply:

1. The director may deny or condition the issuance of any permit applied for in order to:

a. Protect the use and enjoyment of the park or facility for other members of the public;

b. Protect the health and safety of all park patrons;

c. Ensure adequate parking and restroom facilities are provided for members of the public and event participants;

d. Protect all park property, landscaping, and other park amenities;

e. Provide that the park is kept clean and free of litter, debris, garbage, and other solid or putrescible waste;

f. Ensure that the event is compatible with neighboring land uses and that the event will not significantly disturb the quiet use and enjoyment of the adjoining property;

g. Ensure that the issuance of the permit will not create a public nuisance;

h. Ensure that the issuance of the permit complies will all Henderson Municipal Codes including, but not limited to titles 2, 5, 8, 15 and 19; or

i. In making the determination whether to grant said permit or add additional conditions, the director shall consider the impact on the surrounding neighbor-

hood, other uses of the park, trail or recreation facilities, and traffic, given the applicant's plans, size of the anticipated group, and the predictable conditions at the location at the time the applicant desires.

2. The director may deny the issuance of a permit if:

a. The permit application is not complete;

b. The permit application does not contain all required licensing as required by another City of Henderson Department, or other regulatory body, or other documents;

c. The permit application is not submitted at least 14 days prior to the event;

d. The capacity of the park, trail or recreation facilities would be exceeded in granting the permit; or

e. Due to the applicant's past history, if any, in complying with all park, trail and recreation facility rules and regulations.

3. Contents of a permit application.

a. Written application on a form supplied by the city that includes details to sufficiently describe the event including but not limited to:

i. The number of anticipated attendees;

ii. Map showing route and layout of items/equipment including but not limited to starting area, ending area, aid stations, spectator areas, and any additional staging areas;

iii. Time, location, and manner of set up/tear down and access needed;

iv. Parking and traffic management plan for the event as required;

v. Solid waste management plan (dumpsters & trash can liners) and sanitation plan (portable toilets and other sanitation products) for events exceeding an anticipated attendance of 400 or more attendees;

vi. Private security plan for events with an anticipated attendance of 800 or more attendees;

vii. Temporary signage plan including the location of the proposed signs; or

viii. Advertising and/or promotion plan including any forms of public or private media used to advertise the event.

b. A special event application, when required by HMC title 8;

c. Payment of associated fees in accordance with City of Henderson Parks and Recreation Department Fee schedule;

d. Zoning approval, when required by HMC title 19, related to food distribution;

e. Other applicable forms, fees, and items as required through agreement with any federal, state, or local government entities;

f. Evidence of liability insurance naming the City of Henderson as an additional insured, workman's compensation insurance, and any other insurance as may be required by the director; or

g. Evidence of a current business license from the State of Nevada and City of Henderson as required by HMC title 4.

4. Park event permit terms and conditions.

a. All terms and conditions as agreed to by the applicant and as approved by a park event permit must be complied with at all time by the applicant and their attendees. Any violation of any park rule contained in HMC 2.27.030 and/or any violation of any permit condition may result in the immediate cancellation of the park event permit;

b. An applicant who is granted a permit will bear all responsibility for the costs associated with any damage, vandalism, or clean-up incurred as part of the activities of the permit holder, and such permit holder shall agree to indemnify the city against any claims for such damages; and

c. An applicant who is granted a permit where actual physical damage results from a violation of a park rule and/or park permit condition will be responsible for a minimum fee of $500.00 in addition to any civil penalties.

D. *Motor vehicles, motorized skateboards, motorized bicycles, motorized scooters, electric scooters, electric bicycles, electric motorcycles, golf carts, and other similar motorized forms of transportation (inclusive of all motor propelled forms of transportation whether propelled by an internal combustion engine or electric motor).*

1. All motor vehicles, motorized skateboards, motorized bicycles, motorized scooters, electric scooters, electric bicycles, electric motorcycles, golf carts and other similar motorized forms of transportation shall comply with the following while in any park, trail, trailhead, or recreation center parking area:

a. Motor vehicles and golf carts shall be parked or operated only in designated areas;

b. No motor vehicle nor golf cart shall be parked in any parking lot between the hours of 10:00 p.m. and 5:00 a.m. unless otherwise posted or approved through the issuance of a park event permit;

c. No maintenance of a private motor vehicle, golf cart, motorized scooter, electric scooters, electric motorcycle, nor electric bicycle is allowed in the park or parking lot other than in the event of an objective emergency;

d. Only authorized motorized vehicles and electric personal assistive mobility devices are allowed at any time in any park, on park trails, pathways, or non-designated motor vehicle areas;

e. The use of motor vehicles or electric personal assistive mobility devices may not interfere with safe operation of services, programs, or activities or create a substantial risk of serious harm to persons or to the immediate environment or natural or cultural resources in the park, trail or recreation facility;

f. No event attendee, park event permittee (or their sub-contractor), nor park visitor shall be permitted to park nor operate a motor vehicle in areas, where posted, prohibiting parking by event attendees. Use of a motor vehicle on all turf (natural or synthetic), closed areas, park pathways, or trails is prohibited; and

g. No motor vehicles, motorized bicycles, motorized scooters, motorized skateboards, nor any other similar motorized forms of transportation shall exceed a speed of 15 miles per hour in any park, trail or recreation facility, unless otherwise posted.

2. Motorized bicycles, motorized scooters, motorized skateboards, motorcycles, go-karts, electric scooters, electric bicycles, and electric motorcycles and other similar motorized forms of transportation must follow the following in addition to the requirements contained in subsection 1:

a. Motorized bicycles, motorized scooters, motorized skateboards, motorcycles, electric scooters, electric motorcycles (non-pedal assist), go-karts, motor and other similar motorized forms of transportation are prohibited on any park pathways (not including officially designated paved trails), in skateparks, in bicycle parks, and all other posted locations;

b. Electric motorcycles (non-pedal assist) are prohibited from operation on all trails (paved and unpaved), park pathways, and parks. Electric motorcycles are also prohibited from all parking lots unless licensed by the Nevada Department of Motor Vehicles as a motor vehicle; and

c. Motorized bicycles, motorized scooters, motorized skateboards, motorcycles, go-karts, electric scooters, electric bicycles, and similar forms of motorized (electric or internal combustion motor) transportation shall, at all times, be operated in a safe manner. These forms of transportation may not interfere with safe operation of services, programs, or activities or create a substantial risk of serious harm to persons or to the immediate environment or natural or cultural resources in the park, trail or recreation facility.

E. *Golfing.* No golfing shall be allowed in a park, recreation facility or trail unless otherwise posted.

F. *Containers.* No glass or breakable containers of any kind shall be permitted in a park, or recreation facility or trail at any time.

G. *Food, non-alcoholic beverages, alcoholic beverages.*

1. Alcoholic beverages, rules. A person shall not: at any time sell, offer to sell, trade, provide, distribute, gift, consume, or possess any alcoholic beverage in any park, recreation facility, or trail without obtaining the required park event permit and/or reservation as described in subsection C of this section that as a condition of the permit/reservation allows for alcoholic beverages:

a. A person who is granted a permit to consume alcohol under this subsection shall not also be required to obtain a special event permit under HMC 4.36.270;

b. Permission shall not be granted to consume any alcoholic beverage within the safety surfacing of a children's play area, within the enclosed area of a swimming pool, the playing area of an athletic field, court, or parking lot;

c. Mobile food vendors are not permitted to obtain approval to sell, distribute, and/or possess alcoholic beverages; and

d. Glass containers described in subsection F are prohibited regardless of permit approval.

2. Alcoholic beverages—Approval for consumption, park event permit approval. Approval for the sale and/or consumption of alcohol shall not be granted unless the following are met:

a. The applicant is at least 21 years of age and has obtained a park event permit as required in subsection C of this section, or, if not required, has obtained a park reservation;

b. The applicant agrees in writing to be present at all times when any alcoholic beverage is sold, provided, distributed, or consumed;

c. The applicant agrees in writing to be responsible for verifying the ages of all persons by whom alcoholic beverages are consumed;

d. The applicant pays in advance for any additional police officers or park code compliance officers the chief of the city police department or his or her designee reasonably deems appropriate considering that alcoholic beverages will be consumed;

e. If a permit is obtained or is required by chapters 8.10 or 8.11 of the HMC, all requirements set forth therein are met;

f. An applicant who is granted a permit will bear all responsibility for the costs associated with any damage, vandalism, or clean-up incurred as part of the activities of the permit holder, and such permit holder shall agree to indemnify the city against any claims for such damages; and

g. The applicant, if providing any food or non-alcoholic beverage, at no cost to the recipient, shall comply with all state and local safety and sanitation requirements for the distribution of such food or beverages.

3. [Reserved.]

4. [Reserved.]

5. Permission shall not be granted to consume any alcoholic beverage within the safety surfacing of a children's play area, within the enclosed area of a swimming pool, the playing area of an athletic field, court, or parking lot.

6. In granting a food, non-alcoholic beverage, or alcohol permit, the director may impose reasonable time, place, and manner restrictions in order to minimize the impact on the surrounding neighborhood, other uses of the park, trail or recreation facilities, and traffic.

7. A mobile food vendor who obtains a food or non-alcoholic beverage permit may only sell food or beverages (but not alcoholic beverages) in a park, trail or recreation facility parking lot subject to the time and distance restrictions applicable to schools set forth in HMC 4.72.090(E), and may only use amplified sound equipment to draw attention to himself or herself if specifically permitted by the director, who shall, in considering whether to grant such permission, consider the factors specified in HMC 2.27.030(G)(1).

8. A person(s) who is granted a permit will bear all responsibility for the costs associated with any damage, vandalism, or clean-up incurred as part of the activities of the permit holder, and such permit holder shall agree to indemnify the city against any claims for such damages.

9. Any applicant seeking to distribute or provide any food or non-alcoholic beverage, at no cost to the recipient, may have their permit fee waived upon approval.

H. *Bathing, laundering.* The laundering of personal items including, but not limited to, clothing, is prohibited in any portion of a park, recreation facility or trail, including the parking lots, locker rooms, showers, and restroom facilities. Bathing is prohibited in a park, trail or recreation facility unless in an area specifically designated for that purpose such as locker rooms.

I. *General safety.* No person shall commit any act in a park, recreation facility or on a trail that would endanger the health, safety or welfare of any person or lawfully present animal.

J. *Climbing, swinging.* Climbing on or swinging from branches of trees or landscaping is prohibited. Climbing on bathroom structures, park buildings, concession stands, ramadas, shade structures, and any other parks and recreation building is prohibited. This provision does not prohibit the maintenance of any aforementioned structure by city staff or city contractor.

K. *Pets.* Pets are not allowed in city parks except as indicated on posted signs. Where allowed, all pets in a park, recreation facility or on a trail shall be restrained and controlled by a leash no longer than six feet, unless in a designated dog park. Pet waste must be cleaned up by the pet owner or person in control of the pet and disposed of properly (HMC 7.08.010; HMC 7.08.020). Pet bathing in a park, trail or recreation facility is prohibited.

L. *Vandalism.* No person other than a duly authorized city employee in the performance of his or her duty shall dig, break, cut, deface, injure, or burn any structure or feature (including landscape feature) of a park, recreation facility or trail, or remove any equipment from a park, recreation facility, or trail. It shall be unlawful for any person to cut, break, remove, injure, deface, or disturb any tree, shrub, plant, rock, building, monument, fence, bench or other structure, or property; or to mark or write upon, paint, or deface in any manner any building, monument, fence, bench, grill, playground equipment, playing surface, or other structure.

M. *Weapons.* No knives, archery, paint ball weapons, air guns, BB guns, or like devices shall be allowed in a park or recreation facility or on a trail, unless in a specifically designated area, as part of a city-sponsored program or allowed through a park reservation pursuant to HMC 2.27.030(C).

N. *Rights of permittees and attendees.* Where a park, recreation facility, trail or an area within a park, recreation facility or trail has been properly reserved for a particular use, and the permittee has not opened the use to members of the general public, no uninvited person shall remain at the reserved area after being directed by the permittee or his or her agent to leave. Regardless of whether the permittee has opened the use to the general public, no person shall substantially prevent any other person from viewing, hearing, or otherwise participating in the message the permittee wishes to convey, nor shall any person himself participate in the use and convey a message opposed to that of the permittee without the permittee's permission.

O. *Garbage.* No person shall release, discharge, drop or spread upon or in any park, recreation facility or trail any litter, trash, rubbish, waste, garbage, refuse, chemicals, or ashes, other than by placing the same in trash containers or receptacles provided by the parks and recreation department.

P. *Horses.* Other than as approved and documented support animals, horses are only permitted in or on designated trails, parks or park pathways.

Q. *Fires, cooking.* No private or personal cooking apparatus may be used without prior written approval from the director. Fires for cooking only are restricted to permanent charcoal grills previously approved and provided by the parks and recreation department. The burning of wood, paper, and/or any other combustible materials in permanent charcoal grills is prohibited. All other fires are prohibited unless in a designated area and approved as part of a reservation, permit or agreement by the director.

R. *Fireworks.* Fireworks, sky lanterns, any ceremonial device that uses an open flame, and other explosives are prohibited except as a part of an approved fireworks display permitted by the director.

S. *Dumpsters.* Use of city dumpsters for disposing of residential or commercial refuse is prohibited other than as provided in subsection O.

T. *Skateboarding.* Skateboarding, scooters and similar devices, or skating is permitted on sidewalks, designated skate parks, and designated trails only. Skateboarding or in-line skating is prohibited on handrails, sports courts, benches, tables, bleachers, or other park, trail or recreation facility equipment. Speeds must be as posted or as reasonable and prudent under the circumstances so as to avoid creating an unreasonable risk of harm both to the person skating and others.

U. *Smoking, including the use of electronic or vaporized smoking devices, and tobacco use.* Smoking and tobacco use of any kind, including, but not limited to, the use of electronic or vaporized smoking devices, are prohibited in any park, trail or recreation facility or within 100 feet of sporting fields, spectator area, the entrances to all recreation facilities, and all sport and play areas unless within a designated smoking area.

V. *Sale of merchandise.*

1. Except as provided in subsections (V)(2) and (V)(3) below, no person shall sell, offer to sell, or solicit donations for, any service or merchandise in a park, recreation facility or trail.

2. The prohibition in subsection (V)(1) above does not apply when the predominant purpose of the sale is to engage in expressive speech protected by the First Amendment, as opposed to a merely commercial transaction.

3. The prohibition in subsection (V)(1) above also does not apply to:

a. A person having all applicable city, county, state and federal licenses and the right to vend pursuant to a contract entered into between the city and the vendor, subject to the terms of said contract.

b. A person having all applicable city, county, state and federal licenses and the right to vend pursuant to the terms of a permit issued pursuant to chapter 8.10 or 8.11 of the HMC, subject to the terms of said permit.

4. Any person exempted pursuant to subsection (V)(2) shall conform to the following time, place, and manner restrictions:

a. A person may designate and use any area of not more than ten feet by ten feet within a park, trail or recreation facility, provided it is not within 25 feet of a reserved area, children's playground or play area, or the playing area of an athletic field or court, and does not unreasonably interfere with others' recreational activities or free passage. A group larger than ten people needing an area larger than ten feet by ten feet or more than one site must obtain approval from the director, who shall designate such larger area or additional site(s) to the extent necessary given the size of the group but not to the extent that it would unreasonably interfere with other recreational uses of the park, recreation facility or trail. Sites may be reserved in advance on a first come, first serve basis.

b. No person or group may use an area designated pursuant to subsection 4(a) above:

(i) For more than two consecutive days, if the site is on turf; and

(ii) For more than four consecutive days, if the site is not on turf.

c. Chairs, tables and the like are permitted, provided they are weighted (e.g. sandbags) or otherwise secured so that they cannot be blown away by the wind. However, no canopy, tent, or other structure may be erected, nor may any item be secured into the ground by stakes, rods, or other similar item, or attached to any fence, post, tree or other fixture or landscaping.

W. *Conducting business.* Except as otherwise provided in this chapter, it is unlawful for a person to use a park, recreation facility, park amenity or trail to provide private lessons or classes for commercial gain or to otherwise use a park, or recreation facility or trail as a place for conducting business unless that person has an agreement with the city pursuant to HMC chapters 8.10 or 8.11 allowing such enterprise incidental to the permitted activity or activities, or has obtained the appropriate permit from the director to use the park, recreation facility or trail for commercial purposes.

X. *Park, trail, and recreation facility fee schedule.*

1. The fee schedule established by the city council associated with the use of parks, trails, and recreation facilities shall be kept by the city clerk. The fee schedule shall contain approved, maximum fees which may be charged for categories of such use.

2. The director shall have the authority to approve any recommended fee increase or decrease at or below the approved, maximum fee for the category of use without requesting city council approval.

3. The director shall not alter the fee schedule to increase any of such maximum fees without the prior approval of the city council.

Y. *Regulation of unmanned aircraft in designated parks.*

1. An "unmanned aircraft" shall mean an aircraft operated without the possibility of direct human intervention from within or on the aircraft. This definition includes, but is not limited to, devices commonly referred to as drones, remote controlled aircraft and model aircraft.

2. Unmanned aircraft may only be operated in designated parks, as posted, during the hours of normal operation, unless the director makes an exception in writing, in his or her discretion, considering the factors contained in subsection 2.27.030(G)(1)(a)—(c). All unmanned aircraft must be operated in accordance with all applicable State of Nevada, city and federal laws and regulations.

3. No person may operate an unmanned aircraft in a reckless manner so as to create (a) a substantial risk of serious physical injury to another, or (b) a substantial risk of damage to the property of another. No person may operate an unmanned aircraft in a manner so as to unreasonably violate the privacy of another.

4. If the unmanned aerial vehicle is being used as a part of an event of ten or more persons or as part of a commercial activity, the user must notify the director at least two weeks in advance of the event and may be required to enter into an agreement with, or obtain a permit from, the director, which permit may be granted in his or her discretion, considering the factors contained in subsection 2.27.030(G)(1)(a)—(c).

5. In addition to the specific requirements set forth in this section, the director may develop a written policy governing the operation of unmanned aircraft within designated parks which shall be made publicly available. Such policy shall be consistent with the following:

i. The policy may include reasonable restrictions on the time, place and manner in which a person may land, launch or otherwise operate an unmanned aircraft so as not to interfere with the health, safety and welfare of city residents.

ii. The director may require certain conditions be fulfilled prior to the take-off, landing or operation of an unmanned aircraft from the designated parks.

6. This section does not apply to an unmanned aircraft that is operated by the city, or by any other public agency for governmental purposes in compliance with all State of Nevada and federal laws and regulations and operated in compliance with all applicable city policies.

Z. *Rules specific to Cornerstone Park.*

1. The water feature at Cornerstone Park, located at 1600 Wigwam Way, was constructed for aesthetic purposes only and was not developed for recreational use. It is the policy of the city's parks and recreation department to maintain the water feature at Cornerstone Park consistent with this original intent.

2. No person shall dispense or distribute feed to, or otherwise feed any bird, fowl or other animal present at Cornerstone Park, or throw or place on the ground any bread, breadcrumbs, seed, bird food, popcorn or other food.

3. No person shall use boats or canoes, including radio-controlled models (boats, airplanes, etc.), in any water feature at Cornerstone Park. This prohibition includes, but is not limited to, kayaking, canoeing, fishing and other recreational uses of any water feature therein.

AA. *Children's play areas.* No person over the age of 12 other than a parent or guardian, or the designee of a parent or guardian having sole or joint supervisory responsibility over a child, shall use or be present within 50 feet of a designated and posted children's play area, unless accompanying that child, without a park permit. A children's play area shall include the designated area, including the area covered by safety surfacing.

BB. *Patron conduct.* No person shall act in a loud, boisterous, or disorderly manner so as to disturb the peace and quiet of other park patrons by loud or unusual noise, or tumultuous or offensive behavior, or engage in or promote, instigate, encourage, aide, or abet fighting or any similar violent, threatening, or tumultuous behavior while in any park, trail, recreation facility, parking lot, and other designated city recreation areas.

CC. *Unlawful drug paraphernalia.* No person shall possess any unlawful drug paraphernalia as described in HMC 8.02.120 or any controlled substance as defined by NRS 453 unless pursuant to a prescription while in any park, trail, recreation facility, and other designated city recreation areas.

DD. *Storage of personal property.* No person shall store, keep, or maintain an amount of personal property that interferes with the rights of others to use a particular area of the park, trail, recreation facility, and other designated city recreation area for which they were intended for more than four hours without the express permission of the director pursuant to a permit issued pursuant to HMC 2.27.030.B.

EE. *Affixing of temporary structures.* No person shall attach and/or affix any temporary structures to any park property, including but not limited to: shelters, tarps, hammocks, or other temporary lodging materials at any time without prior written permission of the director pursuant to HMC 2.27.030.B.

FF. *Prohibited abandonment of property.* No person shall deposit, abandon, store, drop-off, leave unattended, or otherwise cause to be abandoned any clothing, perishable and/or non-perishable food, toiletries, beverages, papers, cigarettes, magazines, or newspapers without first obtaining a park event permit Factors contained in HMC 2.27.030(C) will be used in the determination of granting the permit.

GG. *Prohibited activities.* The following activities are prohibited, at all times, within any park or trail, except for activities specifically allowed in section HH.

1. Release of helium filled ballons.

2. Release of lanterns on any body of water or any aerial lanterns.

3. Use of hot air balloons.

4. Dunk tanks.

5. Ziplines.

6. Petting zoos and/or pony rides.

7. Digging of holes.

8. Installing any ground cover including, but not limited to: tarps, water slides, wetted surface coverings.

HH. *Additional park specific rules.* Certain park amenities require specific rules and restrictions. All rules posted on park signs and/or in permit approvals must be followed in addition to the following park specific rules:

1. *Equestrian Park North*—Petting zoos and/or horseback riding are permitted subject to a permit issued in accordance with this chapter.

2. *Whitney Mesa Neighborhood Park*—Petting zoos are permitted subject to a permit issued in accordance with this chapter.

3. *Silver Springs Park*—Petting zoos are permitted subject to a permit issued in accordance with this chapter.

4. *Esslemont Park*—Petting zoos are permitted subject to a permit issued in accordance with this chapter.

II. *Racquet Sport Courts.*

1. *Tennis courts.* The intended use of the tennis courts is to play tennis or pickleball. All other activities within the tennis courts are prohibited.

2. *Pickleball courts.* The sole intended use of the pickleball courts is to play pickleball. All other activities within the pickleball courts are prohibited.

(Ord. No. 4049, § 1, 12-17-2024; Ord. No. 3904, § 1, 9-13-2022; Ord. No. 3753, § 2, 1-19-2021; Ord. No. 3396, § 1, 4-11-2017; Ord. No. 3190, § 2, 7-1-2014)

2.27.035 Rules and regulations for the use of public plazas.

A. The rules governing parks, recreation facilities and trails set forth in section 2.27.030 apply to public plazas with the exception of subsection Z and GG. Activities contained in subsection GG require prior written approval.

B. Consumption of alcoholic beverages purchased from a sport venue establishment or portable bar unit or other authorized provider. Authorized alcoholic beverages must remain in the original container bearing the city hall special event district logo. Consumption of all alcoholic beverages must conclude 30 minutes after the closing time of the sport venue establishment or portable bar unit.

C. Special events. Any person who desires to use a public plaza for a special event pursuant to HMC Chapter 8.10 shall first apply and obtain a permit from the director. This section does not apply to events sponsored by the city at the public plaza or Water Street District special events. Where a public plaza has been properly reserved for a particular use, and the permittee has not opened the use to members of the general public, no uninvited person shall remain at the reserved area after being directed by the permittee or his or her agent to leave. Regardless of whether the permittee has opened the use to the general public, no person shall substantially prevent any other person from viewing, hearing, or otherwise participating in the message the permittee wishes to convey, nor shall any person himself participate in the use and convey a message opposed to that of the permittee without the permittee's permission.

D. In addition to the park permit requirements contained in HMC 2.27.030.C, any gathering that exceeds, or is reasonably likely to exceed, ten persons shall require a park event permit.
(Ord. No. 4049, § 1, 12-17-2024; Ord. No. 3753, § 3, 1-19-2021)

2.27.040 Suspension from parks, recreation facilities and trails.

1. In addition to the laws and remedies provided for violation of the HMC or any of the laws of the State of Nevada, the director, a police officer, security officer, code enforcement officer, park ranger, park code compliance officer or other authorized official may suspend access to a park, trail, or recreation facility by any person who, while present in a park, a recreation facility, or trail:

a. Violates any ordinance, statute, patron code of conduct, player or spectator code of conduct any posted rules or regulations, or parks and recreation department policy after being put on notice of same; or

b. Poses an immediate threat of harm to, or sexually harasses, any other person peaceably and lawfully using a park, or recreation facility or trail for its intended purpose or any city employee acting in the course and scope of his or her duties.

2. Any suspension may, at the discretion of the director, police officer, code enforcement officer, park ranger, park code compliance officer or other authorized official if the director is not available, apply to a specific park, recreation facility or trail, or to some or all parks and recreation facilities or trails, depending on the nature and severity of the violation.

3. Any suspension issued under this section may vary according to the established codes of conduct.

4. No person shall enter or remain in any park, a recreation facility or on a trail at any time during a period of suspension issued under this section that excludes such person from that park, recreation facility or trail. Any person violating an order of suspension may, in addition to any criminal penalty, be excluded for an additional period from any or all parks, trails and/or recreation facilities as determined by the municipal court.
(Ord. No. 4049, § 1, 12-17-2024; Ord. No. 3904, § 1, 9-13-2022; Ord. No. 3396, § 1, 4-11-2017; Ord. No. 3190, § 2, 7-1-2014)

2.27.050 Establishment and modification of rules and regulations.

The director shall have the authority to establish procedures and regulations for the safe and effective operation of specific parks, trails and recreation facilities. Signs containing these rules, regulations or modifications thereof, shall be in all parks, recreation facilities and at trailheads to which they are applicable.
(Ord. No. 3396, § 1, 4-11-2017; Ord. No. 3190, § 2, 7-1-2014)

2.27.060 Penalty for violation; appeal.

A violation of any provision of this chapter is subject to punishment and penalties as provided in HMC 1.05.020.

Administrative citations and fines. Administrative fines may be imposed for violations of any of the provisions of this Code, including failure to comply with any park rule, park suspension as described in HMC 2.27.040, or law or ordinance. Administrative fines shall be assessed by means of an administrative citation issued on behalf of the director as designated in HMC 2.27.040 and shall be payable directly to the city:

A. An administrative citation shall contain:

1. The name and address of the responsible party and any other responsible party and the address or legal description of the property where the violation is occurring;

2. A statement of the provisions of this Code that have been violated and the date of the violation(s);

3. The amount of administrative fines and fees imposed for the violation(s);

4. A statement that the owner or responsible party may appeal the fine and request a hearing within ten calendar days of the date the administrative citation is served; and

5. An address and telephone number of an official with whom contact regarding the violation can be made.

B. Appeal of an administrative citation, fines, and fees. Appeal of an administrative citation, fines, and fees shall be made in accordance with the procedures of subsection 15.12.060.B.6;

1. Failure to pay administrative fines and fees:

a. If not appealed, administrative fines and fees are immediately due and payable. Failure to issue payment shall constitute a violation of this Code. The city may take any lawful collection action deemed necessary and appropriate to recover the administrative fine amounts owed, including but not limited to the city attorney filing a petition in a court of competent jurisdiction for the entry of a civil judgment against the responsible party in an amount equal to the unpaid fine and/or fee amounts owed, or referral of the unpaid amounts to a collection agency for recovery.

C. Administrative fine schedule. Administrative fines shall be issued in accordance with the following schedule of fines:

Fine Name/Description	Fine Amount
Administrative citations and fines for non-commercial violators or non-profit organizations:	
1st citation within rolling 12 calendar months	$100.00
2nd citation within rolling 12 calendar months	$300.00
3rd and/or subsequent citation(s) within rolling 12 calendar months	$500.00
Administrative citations and fines for commercial:	
1st citation within rolling 12 calendar months	$250.00
2nd citation within rolling 12 calendar months	$500.00
3rd and/or subsequent citation(s) within rolling 12 calendar months	$1,000.00

D. Appeal procedures. This section establishes the procedures for appealing administrative enforcement actions under this Code, including procedures for administrative appeal hearings. All appeals are limited by the provisions of this section:

1. Procedures for requesting and setting an appeal hearing:

a. Any party against whom a civil penalty or suspension is assessed (referred to herein as the "appellant") may request an appeal hearing by submitting a written request to the director that:

b. Identifies the enforcement action that the person is contesting;

c. Sets forth the facts supporting the appeal;

d. Identifies the requested relief;

e. Is delivered to and received by the director personally or by mail (as postmarked) no later than the tenth day following the date of the notice, order or citation being appealed.

f. A timely request for hearing shall stay the enforcement of the appealed action and toll the deadline for compliance, accrual of fines and fees, and payment of fines and fees. An untimely request for appeal shall not be considered and instead shall be dismissed;

E. The director, or his/her designee, shall respond to the appellant in writing with:

1. Notice that a hearing date will be set no later than ten days prior to a hearing and shall issue notice of the hearing date no later than ten days prior to the date set for the hearing, unless a shorter time period is agreed to in writing by the appellant. The notice shall state the date, time, and location of the hearing, and shall include a short explanation of the hearing process; or

2. A written decision of appeal within ten business days of the date of receipt of the request to appeal. Such decision shall be deemed to be final action on such appeal.

3. If the director sets a hearing, the Hearing procedures contained in HMC 15.12.060.B.6.b will be followed.

F. Criminal proceedings. Any person who violates this Code shall be deemed guilty of a misdemeanor, and the violation shall be deemed a strict liability offense. Each day such a violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder:

1. Contents of criminal citation. An issued criminal citation shall contain:

a. The name and address of the owner or other responsible party in violation, as well as the address of the property where the violation has occurred or is occurring;

b. A statement of the provisions of this Code that have been violated;

c. The amount of the criminal citation fees and administrative fines requested to be imposed for the violations; and

d. The date of appearance for the owner, responsible person, firm, or corporation to appear in the Henderson municipal court.

G. Penalty. Any person, firm, or corporation that violates any of the provisions of this Code is guilty of a misdemeanor punishable by a fine not exceeding $1,000.00 or by imprisonment not exceeding six months, or by both such fine and imprisonment. Each day that a violation of this chapter continues, whether pursued criminally or

civilly, constitutes a separate violation for purposes of criminal prosecution or civil proceedings. In addition to this fine, administrative fees and court administrative fees will be assessed; or

H. Subsequent violations. Any person who is convicted of a violation of this Code for a third time for the same violation within a two-year period shall be guilty of a misdemeanor punishable by a minimum fine of not less than $500.00 or by imprisonment not to exceed six months in the city jail or by both such fine and imprisonment. Each day that a violation of this chapter continues, whether pursued criminally or civilly, constitutes a separate violation for purposes of criminal prosecution or civil proceedings.

(Ord. No. 4049, § 1, 12-17-2024; Ord. No. 3396, § 1, 4-11-2017; Ord. No. 3190, § 2, 7-1-2014)

Chapter 2.29 AMBULANCE TRANSPORTATION FEES

Sections:

2.29.010 Emergency services providers.
2.29.020 Ambulance service rates.
2.29.030 Rate increases.
2.29.040 Reserved.

2.29.010 Emergency services providers.

A. The City of Henderson fire department shall be the primary provider of emergency medical care and transport services for the City of Henderson.

B. Any ambulance service providers doing business in the City of Henderson shall be subject to the requirements set forth in chapter 4.80, Emergency Medical Services.
(Ord. No. 3377, § 1, 1-3-2017; Ord. 1751, § 2 (part), 1997)

2.29.020 Ambulance service rates.

Effective September 1, 2014, for the period ending January 31, 2015, and as adjusted annually thereafter by the consumer price index formula described in section 2.29.030, the maximum rates (or the maximum rates established by applicable federal law, whichever is higher) for ambulance services, including medical supplies, that may be charged by the City of Henderson fire department and private ambulance service providers licensed under chapter 4.80, are as follows:

1. Non-emergency basic life support: $1,154.08

2. Non-emergency advanced life support: $1,209.06

3. Emergency basic life support: $1,288.63

4. Emergency advanced life support 1: $1,355.91

5. Emergency advanced life support 2: $1,484.39

6. Critical care transport: $1,610.79

7. Loaded mileage: $38.55
(Administrative Memorandum, 1-14-2026; Administrative Memorandum, 1-22-2025; Administrative Memorandum, 1-11-2024; Administrative Memorandum, 1-12-2023; Administrative Memorandum, 1-12-2022; Administrative Memorandum, 1-28-2021; Administrative Memorandum, 1-23-2020; Administrative Memorandum, 1-29-2019; Administrative Memorandum, 1-29-2018; Administrative Memorandum, 4-10-2017; Administrative Memorandum, 3-5-2015; Ord. No. 3197, § 1, 8-19-2014; Administrative Memorandum, 2-26-2013;

Administrative Memorandum, 3-9-2009; Administrative Memorandum, 3-20-2008; Administrative Memorandum, 3-21-2007; Ord. 2500, § 1, 2006; Administrative Memorandum, 6-6-2005; Ord. 2101, § 1, 2002; Ord. 1751, § 2 (part), 1997)

Editor's note—Ord. No. 3197, § 1, adopted August 19, 2014, changed the title of section 2.29.020 from "Fee schedule" to "Ambulance service rates." The historical notation has been preserved for reference purposes.

2.29.030 Rate increases.

A. The rates established pursuant to this chapter shall be adjusted annually on February 1 based upon the percentage of change, rounded to the nearest hundredth of a percent, in the annual average of the CPI-MCS (Consumer Price Index for Medical Care Services) between the most recent 12-month period ending on December 31 as compared with the prior 12-month period ending on December 31; in no case, however, shall the adjustment in rates be greater than ten percent of the then current ambulance service rates unless the city council, in its sole discretion, approves an adjustment.

B. When an unforeseen economic circumstance has occurred during a given 12-month period, the city council may consider and may approve a method for adjusting rates which is not based on changes to the CPI-MCS. In any year following a period when the adjustment to rates was based on some other method, rate adjustments shall again be based on changes in the CPI-MCS. A minimum of one annual rate adjustment based on the CPI-MCS method must occur between annual rate adjustments based on methods other than the CPI-MCS method. "Unforeseen economic circumstance" means (i) a percentage change in the CPI- MCS for a given consecutive 12-month period that is greater than ten percent or below zero (a decrease), or (ii) a finding by the city council or other governmental jurisdiction that there have been economic occurrences during that period that have caused specific additional economic costs in ambulance services which are not reflected in changes to the CPI-MCS during that same period.

C. A written record of the rates, as adjusted pursuant to subsection A., shall be maintained on file with the city clerk for public inspection.

(Ord. No. 3197, § 1, 8-19-2014; Ord. No. 3081, § 1, 11-5-2013; Ord. 2500, § 2, 2006; Ord. 2101, § 2, 2002; Ord. 1751, § 2 (part), 1997)

2.29.040 Reserved.

Editor's note—Ord. No. 3081, § 1, adopted November 5, 2013, repealed the former section 2.29.040 in its entirety, which pertained to the effective date of rates, and derived from Ord. No. 1751, § 2(part), adopted in 1997; Ord. No. 2101, § 3, adopted in 2002; an administrative memorandum dated June 6, 2005; an administrative memorandum dated March 9, 2009, and an administrative memorandum dated February 26, 2013.

Chapter 2.34 ADMINISTRATIVE POLICIES*

Sections:

2.34.010 Adoption by reference of Administrative Policy Manual.

2.34.010 Adoption by reference of Administrative Policy Manual.

That the City of Henderson's "Administrative Policy Manual", three copies of which are on file in the office of the city clerk, is hereby adopted and by this reference is made a part of this Code, to the same effect as if set out in full herein. The city manager is authorized to revise the "Administrative Policy Manual", in whole or in part and from time to time as the need arises. Any revision shall indicate the fact of city manager approval and the approval date or effective date, and shall be filed in the office of the city clerk.
(Ord. No. 3122, § 1, 2-18-2014)

***Editor's note—**Ord. No. 3122, § 1, adopted February 18, 2014, repealed and reenacted chapter 2.34 in its entirety to read as herein set out. Formerly, chapter 2.34, §§ 2.34.010—2.34.140, pertained to unclassified employees, and derived from Res. No. 119, adopted in 1963; Res. No. 409, adopted March 18, 1974; Res. No. 729, §§ 1—10, 12, 13, adopted in 1980; Res. No. 1271, adopted January 1, 1988, and Res. No. 1504, adopted May 14, 1991.

Chapter 2.40 ETHICAL STANDARDS FOR PUBLIC SERVANTS*

Sections:

2.40.010 Purpose.
2.40.020 Coverage.
2.40.030 Policy of the city.
2.40.035 Commitments in a private capacity.
2.40.040 Prohibited conduct.
2.40.045 Gifts.
2.40.050 City contracts.
2.40.060 Conflicts of interest.
2.40.070 Disclosure of confidential information.
2.40.080 Outside employment of city employees.
2.40.090 Political activity of city employees.
2.40.100 Advisory opinions.
2.40.110 Enforcement.
2.40.120 Violations.
2.40.130 Retaliation prohibited.
2.40.140 Cooling-off period, lobbying and former attorneys.
2.40.150 Ethics orientation.
2.40.160 Severability.

2.40.010 Purpose.

A. The purpose of this chapter is to:

1. Create a city ethics committee that consists of the mayor-pro tem, the city manager, the city attorney and the director of human resources.

2. State ethical standards that are to be applied in public service to the city;

3. To provide a process by which public servants may identify and resolve ethical issues; and

4. To promote public confidence and trust in the integrity of public servants.

(Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3131, § 1, 4-1-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.020 Coverage.

A. This chapter applies to all public servants of the city. Public servants include:

1. Elected officials—Mayor and members of city council;

***Editor's note—**Prior to the reenactment of chapter 2.40 by Ord. No. 2968, Ord. 2854, § 1, adopted April 20, 2010, repealed the former chapter 2.40, § 2.40.010, which pertained to lost or abandoned property and derived from Ord. No. 620, 1978.

2. Public appointees—All persons appointed by the city council to a city board, commission, or committee that makes decisions, sets policy, or advises or makes recommendations to the city;

3. All city employees.

4. Contracted employees—All persons who are not city employees but meet all of the following criteria: (a) Enter into a contract with the city; (b) Are paid compensation with public money; (c) Serve in a position that involves the performance of public duties under the substantial and continuing direction and control of a city executive or supervisory employee; (d) The position ordinarily would be held or filled by a city employee and would require the city employee to hold a valid professional or occupational license or similar type of authorization issued by a state or local agency to perform the public duties of the position, other than a general business license or similar type of authorization; (e) The position is entrusted with public duties of a substantial and continuing nature which ordinarily would require a city employee to avoid conflicts between the private interests of the city employee and those of the city whom the city employee serves; and (f) The person occupies the position on a full-time basis or its equivalent for a substantial and continuing period of time.

B. The provisions of this chapter may not be the exclusive source of guidance, rules, regulations or other requirements addressing the ethical behavior of public servants.

1. The ethical standards found in NRS 281A apply to all elected officials, city employees, certain public appointees, and contracted employees.

2. The city manager may make rules regarding the ethical conduct of city employees in addition to, or stricter than, those found in this chapter.

3. If there is a conflict between this chapter and a more specific provision found in the Henderson Municipal Code, a city manager directive or the city administrative policies, the two will be interpreted together if possible, but if not, the more stringent provision will govern.

(Ord. No. 3449, § 1, 10-17-2017; Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3131, § 1, 4-1-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.030 Policy of the city.

A. The proper operation of democratic government requires that public servants:

1. Are independent, impartial and responsible to the public;

2. Are agents of the public and hold their position for the benefit of the public;

3. Do not use public office or employment for personal gain;

4. Are bound to discharge faithfully the duties of their public position, regardless of personal considerations, recognizing that the public interest must be their primary concern and shall be loyal to the objectives expressed by the public and the programs developed to attain those objectives;
5. Shall uphold the Constitution of the United States, the Constitution of the State of Nevada and the Charter of the City of Henderson, and carry out impartially the laws of the United States, the State of Nevada and the Henderson Municipal Code, and thus foster respect for all government;
6. Shall not exceed their authority or breach the law or ask others to do so;
7. Shall work in full cooperation with other public servants in the City of Henderson unless prohibited from so doing by law or by the officially recognized confidential nature of their work; and
8. As representatives of the public, their conduct in both official and private affairs should be above reproach.

(Ord. No. 2968, § 1, 6-19-2012)

2.40.035 Commitments in a private capacity.

A. "Commitment in a private capacity," means a commitment, interest or relationship of a public servant with a person or entity:

1. Who is the spouse or domestic partner of the public servant;
2. Who is a member of the household of the public servant;
3. Who is related to the public servant, or to the spouse or domestic partner of the public servant, by blood, adoption, marriage or domestic partnership within the third degree of consanguinity or affinity;
4. Who employs the public servant, the spouse or domestic partner of the public servant or a member of the household of the public servant;
5. With whom the public servant has a substantial and continuing business relationship; or
6. With whom the public servant has any other commitment, interest or relationship that is substantially similar to a commitment, interest or relationship described in subsections 1. to 5., inclusive.

(Ord. No. 3449, § 1, 10-17-2017)

2.40.040 Prohibited conduct.

A. A public servant shall not use the public servant's position to secure or grant unwarranted privileges, preferences, exemptions, or advantages for the public servant or any other person or business entity. "Unwarranted" means without justification or adequate reason.

B. A public servant shall not participate as an agent for the city in the negotiation or execution of a contract between the city and a business entity in which the public servant has any significant pecuniary interest.

C. A public servant shall not accept any salary, retainer, augmentation, expense allowance, or other compensation for themselves, or for any other person to whom the public servant has a commitment in a private capacity, from any private source for the performance of the public servant's public duties.

D. A public servant shall not use any information acquired through the public servant's public duties that is not available at the time to the general public to further the pecuniary interests of that public servant or any other person or business entity.

E. A public servant shall not suppress or revise any city report or document because it might unfavorably affect the public servant's pecuniary interest, or those of any other person or entity to whom the public servant has a commitment in a private capacity.

F. A public servant shall not use city property, money, time, equipment, or other facility for non-city use or to benefit the public servant's pecuniary interest, or the interests of a person or entity to whom the public servant has a commitment in a private capacity, unless specifically permitted by and in compliance with a city administrative policy and the provisions of this chapter.

G. A public servant shall not attempt to benefit the public servant's personal or pecuniary interest, or any person or entity to whom the public servant has a commitment in a private capacity, through the influence of a subordinate or other public servant.

H. A public servant shall not seek concurrent employment or contracts for themselves, or any person or entity to whom the public servant has a commitment in a private capacity, through the use of the public servant's official position.

(Ord. No. 3449, § 1, 10-17-2017)

Editor's note—Ord. No. 3449, § 1, adopted October 17, 2017, amended section 2.40.040 in its entirety to read as herein set out. Formerly, section 2.40.040 pertained to prohibited conduct and gifts, and derived from Ord. No. 2968, § 1, adopted June 19, 2012; Ord. No. 3056, § 1, adopted September 3, 2013; Ord. No. 3131, § 1, adopted April 1, 2014, and Ord. No. 3228, § 1, adopted October 21, 2014. For current provisions pertaining to gifts, the user's attention is directed to section 2.40.045.

2.40.045 Gifts.

A. A public servant shall not seek or accept any gift, service, favor, employment, emolument or economic opportunity that would tend to improperly influence a reasonable person in the public servant's position to depart from the faithful and impartial discharge of the public servant's public duties.

B. A public servant, on behalf of their city office or department, may accept unsolicited gifts of food items of nominal value if they are shared with all of the public servants within that office or department.

C. All city employees, contracted employees, and public appointees shall report in writing all meals and/or gifts with an annual aggregate value in excess of $200.00 from any one person or business entity conducting business, including any lobbyist registered pursuant to chapter 2.100, with or within the city to the city attorney within 30 days of the receipt of the meal and/or gift.

1. The city attorney may direct a city employee, contracted employee, or public appointee to return a gift, or reimburse the cost of the meal and/or gift if it determines that the gift and/or meal violates subsection 2.40.040(A) of this chapter.

2. Acceptance of tickets or admission by city employees to charitable events or fundraisers is acceptable and is not subject to the meal and/or gift reporting requirements under this chapter if the acceptance is approved by the city attorney.

D. Elected officials and public appointees shall comply with the provisions of NRS 281, as applicable, and make all required financial disclosures of gifts covered under state law.

E. A city employee or contracted employee may accept gifts from charitable, community or professional organizations, other than an honorarium, if such gifts are a bona fide award or incident to a bona fide award that is given for meritorious public service or achievement by that city employee or contracted employee, and the gift, if valued over $200.00, is reported to the city attorney within 30 days of the receipt of the gift.

1. The city attorney may direct a city employee or contracted employee to return a gift, or reimburse the cost of the gift if it determines that the gift violates subsection 2.40.040(A) of this chapter.

F. When a public servant is assigned to participate as a speaker or panel participant or otherwise to present information on behalf of a city office or department at a conference or other event, their acceptance of an offer of free attendance, including meals, lodging and travel expenses, is permissible when provided by the sponsor of the event if their participation in the event on that day is viewed as a customary and necessary part of their performance of the assignment.

G. A gift for the purposes of this chapter does not include:

1. Any item given from a "family member," which includes anyone living in the same home or dwelling, including the spouse or domestic partner of the public servant, or who is related to the public servant by blood, adoption, marriage or domestic partnership within the third degree of consanguinity or affinity; and

2. Campaign contributions made legally under state law.

(Ord. No. 3449, § 1, 10-17-2017)

Note—See editor's note at section 2.40.040.

2.40.050 City contracts.

A. A public servant shall not participate as an agent for the city in the negotiation of a contract between the city and the public servant, or between the city and any person or entity to whom the public servant has a commitment in a private capacity.

B. Except as otherwise provided in this section and NRS 332.800, an elected official, city employee, or a contracted employee, or a family member of an elected official, city employee, or contracted employee, shall not bid on or enter into a contract between the city and any business entity in which the elected official, city employee, or contracted employee, or a family member of an elected official, city employee, or contracted employee, has a significant pecuniary interest unless:

1. The contracting process is controlled by the rules of open competitive bidding or the rules of open competitive bidding are not employed as a result of the applicability of NRS 332.112 or 332.148;

2. The sources of supply are limited;

3. The elected official, city employee, or contracted employee has not taken part in developing the contract plans or specifications; and

4. The elected official, city employee, or contracted employee will not be personally involved in opening, considering or accepting offers.

C. An elected official shall not, either individually or through any business entity in which the elected official, or a family member of the elected official, has a significant pecuniary interest, sell goods or services to the city unless:

1. The elected official, or the business entity in which the elected official, or a family member of the elected official has a significant pecuniary interest, offers the sole source of supply of the goods or services within the city;

2. The public notice and agenda for the meeting at which the city council will consider the purchase of such goods or services contains a clear and conspicuous statement that it is considering purchasing such goods or services from an elected official, or from a business entity in which the elected official, or a family member of an elected official, has a significant pecuniary interest;

3. At the meeting, the elected official discloses his or her significant pecuniary interest, or that of their family member, in the purchase of such goods or services and does not vote upon or advocate the approval of the matter pursuant to the requirements of NRS 281A.420; and

4. The city council approves the purchase of such goods or services in accordance with all other applicable provisions of law.

D. If an elected official, or a family member of an elected official, is authorized to bid on or enter into a contract with the city pursuant to subsections B. or C., pursuant to the requirements of NRS 281A.420 and 281A.430(4), the elected official shall disclose either their interest, or the interest of their family member, in the contract and shall not vote on or advocate the approval of the contract.

E. For purposes of this section, the term "family member" includes anyone living in the same home or dwelling, including the spouse or domestic partner of the elected official, city employee, or contracted employee, or who is related to the elected official, city employee, or contracted employee by blood, adoption, marriage or domestic partnership within the third degree of consanguinity or affinity.

F. The city ethics committee may relieve an elected official, city employee, or contracted employee from the strict application of the provisions of this section if:

1. The elected official, city employee, or contracted employee requests an advisory opinion pursuant to section 2.40.100; and

2. The city ethics committee determines that such relief is not contrary to:

a. The best interests of the public;

b. The continued ethical integrity of the city; and

c. The provisions of NRS 281A.

(Ord. No. 3449, § 1, 10-17-2017; Ord. No. 3131, § 1, 4-1-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.060 Conflicts of interest.

A. A conflict of interest exists when the personal interest of a public servant affects or could affect the public servant's ability to perform public duties in an impartial manner and in the best interests of the city.

B. Conflicts of interest arise when a public servant has the power or duty to take or participate in the taking of any action or make or participate in the making of any decision on a particular matter. Conflicts of interest include, without limitation:

1. The public servant, or a person or entity to whom the public servant has a commitment in a private capacity, has or acquires any economic interest that the public servant knows or has reason to know is likely to be affected, directly or indirectly, by a city action or decision in regard to the particular matter;

2. The public servant, or a person or entity to whom the public servant has a commitment in a private capacity, has or acquires any interest in any business entity representing, advising, or appearing on behalf of any party in regard to the particular matter;

3. The public servant seeks, accepts, or negotiates employment with an outside business entity that is a party to, or has an interest in, the particular matter;

4. A city action or decision that is reasonably related to the nature of any representation or counseling that the public servant provided to a private person or entity for compensation before another government agency within the immediately preceding year;

5. A city action or decision involving and affecting a person or entity from whom a public servant has received one or more gifts or loans with an annual aggregate value in excess of $200.00;

6. A city action or decision regarding the particular matter is likely to affect, directly or indirectly, the economic interests of any person or entity to whom the public servant has a commitment in a private capacity; or

7. Other circumstances that would cause a reasonable person to believe that the public servant may be improperly influenced in performing public duties in regard to the particular matter.

C. Generally, a city employee or a contracted employee who has a conflict of interest in regard to a particular matter shall not take or participate in the taking of any action or make or participate in the making of any decision relating to that matter unless the conflict of interest has first been disclosed to the city attorney and the city manager.

1. If the conflict of interest affects the city employee's or a contracted employee's own pecuniary interests the city employee or a contracted employee shall not be involved in the approval, disapproval, review or action by the city relating to that matter.

2. After the conflict of interest is disclosed by the city employee or a contracted employee, and depending on the nature of the conflict of interest, the city attorney and the city manager may direct the city employee or a contracted employee to not take or participate in the taking of any action or make or participate in the making of any decision relating to that matter.

3. The city employee or a contracted employee may also seek a written advisory opinion from the city attorney as provided in section 2.40.100 of this chapter.

D. Except as provided in subsection 2.40.060(E), an elected official, member of a city board, commission or committee who has a conflict of interest in regard to a particular matter is not prohibited from voting or otherwise acting on the matter if the elected official

discloses the conflict of interest to the chair and other members of the body at the time it is considered. The disclosure shall be sufficient to inform the public of the potential effect of the passage or failure of the matter on the interests of the elected official or the interests of any other person or business entity implicated in the conflict of interest.

1. If an elected official has received a campaign contribution by a person or entity that has a matter before the city council the elected official is not required to make a public disclosure of that contribution if it has been reported, or will be reported by the next reporting deadline, pursuant to NRS Chapter 294.

2. A campaign contribution received by an elected official does not create a conflict of interest under this chapter that would require the elected official to be disqualified from voting or taking action on a matter.

E. An elected official, member of a city board, commission or committee who has a conflict of interest in regard to a particular matter that would materially affect the independence or judgment of a reasonable person in their situation shall recuse and not vote on the matter. The elected official, member of a city board, commission or committee shall disclose the conflict of interest to the chair and other members of the body at the time the matter is being considered. The elected official, member of a city board, commission or committee may not advocate the passage or failure of the matter or otherwise participate in the consideration of the matter after they have recused themselves from the matter.

F. An elected official, member or a city board, commission or committee should not recuse pursuant to 2.40.060(E), if the conflict of interest does not materially affect the independence or judgment of a reasonable person in the public servant's situation where the benefit or detriment to the interests of the public servant's or any other person or business entity implicated in the conflict of interest is no different than that accruing to any other member of the general business, profession, occupation, or group that is affected by the action or decision on the matter.

(Ord. No. 3449, § 1, 10-17-2017; Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3131, § 1, 4-1-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.070 Disclosure of confidential information.

A. Except as necessary to perform the duties of the public servant's position, a public servant shall not disclose confidential information in any manner to any individual or business entity without prior written authorization from the city attorney. This section does not prohibit a city employee from disclosing such information for purposes of reporting improper action by a public servant under NRS 281.621 or as otherwise required by law.

B. The term "confidential information" shall mean all information that relates to any matter that is or may be the subject of any action or decision by the city and at the time of disclosure is not a part of the public record or public information. The term includes, without

limitation, information relating to litigation, potential litigation, investigations, transactions, administrative determinations, personnel decisions, development agreements, contract negotiations, legal communications from the city attorney's office and records and data that are privileged or confidential by law.
(Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.080 Outside employment of city employees.

A. All full-time city employees must receive prior approval from their department director and the director of human resources before they engage in employment outside the city. Any outside employment must comply with any city or departmental policy relating to outside employment.

B. Attorneys who are full-time employees of the city, whether as an attorney or in any other capacity, may not engage in the practice of law for compensation outside of their assigned duties for the city. An attorney may, with prior approval of the city attorney, represent clients on a pro bono basis. An attorney may engage in other outside employment that is approved pursuant to city policy.
(Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3131, § 1, 4-1-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

Editor's note—Ord. No. 3056, § 1, adopted September 3, 2013, changed the title of section 2.40.080 from "Outside employment by attorneys" to "Outside employment of city employees." The historical notation has been preserved for reference purposes.

2.40.090 Political activity of city employees.

A. A city employee may make contributions of personal funds to federal, state, and local candidates, committees and other entities authorized by law to accept contributions for political purposes.

B. A city employee may run for political office.

C. While pursuant to section 1.080 of the City Charter a city employee may not hold the office of mayor or councilmember, a city employee may hold political office outside of the city so long as that office is not inconsistent with the employee's job duties, or would violate a provision of state or federal law.

D. A city employee may participate in an election campaign including attendance at political rallies and fund raising events.

1. A city employee may do nothing to imply that the employee is acting with the approval or disapproval of the city.

2. A city employee must make an appropriate effort to indicate that participation in a political campaign is one in a personal capacity.

(Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.100 Advisory opinions.

A. A public servant may request a written advisory opinion from the city attorney regarding the interpretation and application of the provisions of this chapter to a particular set of facts and circumstances relating to the past, present or future conduct of the public servant. The request must be in writing to the city attorney and include the public servant's presentation and interpretation of the facts and the applicability of the relevant provisions. The city attorney may, as warranted, refer the request to the state ethics commission, the attorney general's office, or any other appropriate entity. If a public servant requests an advisory opinion from the city attorney regarding the interpretation of the ethics provisions found in NRS 281A, the request may be referred to the state ethics commission.

B. The city attorney's written opinion shall be reviewed and approved by the city ethics committee and, until amended or revoked, shall be binding in any subsequent actions concerning the public servant if the public servant acted in good faith in reliance on the opinion. The opinion shall not be binding if the public servant omitted or misstated material facts in making the request for the opinion.

C. The request for the written advisory opinion, all information submitted or acquired relating to the request, and the opinion shall be confidential unless:

1. The public servant acts in contravention of the opinion;

2. The requesting public servant discloses the contents of the opinion or any portion thereof; or

3. The requesting public servant requests the city attorney to disclose the opinion.

D. The city attorney may make public abstracts of its written advisory opinions that do not include the name and position of the public servant who requested the advisory opinion for ethics training purposes.

E. Public servants may obtain informal legal advice from the city attorney or its designee regarding the provisions of this chapter or the provisions of NRS 281A to a particular set of facts and circumstances relating to the past, present or future conduct of the public servant. Nevertheless, this legal advice is not binding unless the public servant establishes by sufficient evidence that: (1) the public servant sought legal advice from the city attorney or its designee; (2) the public servant relied in good faith upon the advice; (3) the act or failure

to act by the public servant was not contrary to a prior published city administrative policy or the provisions of NRS 281A; and (4) the public servant did not omit or misstate any material facts in making the request for legal advice.
(Ord. No. 3449, § 1, 10-17-2017; Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.110 Enforcement.

A. The city attorney shall have the primary responsibility for the enforcement of this chapter. The city attorney, in coordination with the director of human resources, shall have the authority to review and investigate complaints and recommend corrective or other action to the city manager.

1. If a complaint is made against a city employee covered under NRS chapter 289 the city attorney shall coordinate its investigation with the proper city investigative body or agency.

2. If a complaint is made against a city employee any discipline issued by the city manager shall comply with any applicable civil service rules or the terms of a collective bargaining agreement.

B. Any person who believes that a provision of this chapter has been violated by a public servant may file a complaint with the city attorney in writing. The city attorney may, as warranted, refer the complaint to the state ethics commission or other appropriate entity. The city council or city manager may also direct the city attorney to investigate an apparent violation of a provision of this chapter. The city attorney, in coordination with the director of human resources, shall have the authority to review and investigate complaints and recommend corrective or other action to the city manager.

C. City employees, contracted employees, and public appointees shall comply with a request from the city attorney or his designee to appear and provide testimony, information or documents pursuant to an investigation pursuant to this chapter. If a city employee fails to comply with a request to provide testimony, information or documents under this chapter they shall be subject to discipline up to and including termination of employment.
(Ord. No. 3449, § 1, 10-17-2017; Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.120 Violations.

A. Willful violations of a provision of this chapter may result in the following sanctions:

1. For a city employee, upon a recommendation from the city attorney, discipline issued by the city manager, up to and including termination of employment;

2. For a public appointee, upon a recommendation from the city attorney, discipline as imposed by the city ethics committee up to and including removal from the city board, commission or committee;

3. For an elected official, upon a recommendation from the city ethics committee, discipline as imposed by the city council, which may include a referral to the state ethics commission; and

4. For a contracted employee, upon a recommendation from the city attorney and the city manager, termination of their city contract.

B. A public servant may also be referred by the city attorney to the appropriate agency for criminal prosecution for conduct violating a provision of this chapter.

C. A public servant shall not be considered to have made a willful violation of this chapter if: (1) the public servant sought legal advice from the city attorney or its designee; (2) the public servant relied in good faith upon the advice; (3) the act or failure to act by the public servant was not contrary to a prior published city policy or the provisions of NRS 281A; and (4) the public servant did not omit or misstate any material facts in making the request for legal advice.
(Ord. No. 3449, § 1, 10-17-2017; Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3131, § 1, 4-1-2014; Ord. No. 2968, § 1, 6-19-2012)

2.40.130 Retaliation prohibited.

A. No public servant, or body comprised of public servants, shall retaliate against a city employee who files a written complaint with the city attorney under section 2.40.110 of this chapter. The term "improper governmental action" includes violation of law, violation of this chapter, abuse of authority, gross waste of public money, or an action that results in a substantial and specific danger to the public health or safety.

B. A city employee who has disclosed improper governmental action and believes that as a result of the disclosure a retaliatory action has been taken against the city employee may appeal such action.

C. The appeal must be filed with the director of human resources no later than six months after the date of the disclosure of improper governmental action and within 30 days from the date of the alleged retaliatory action. The appeal shall be made in writing to the city attorney and contain:

1. The type of improper governmental action alleged, the date of the disclosure, and to whom or what entity the information was disclosed; and

2. All facts regarding each alleged instance of retaliatory action, including, the nature of the action, the date of the action and the individual(s) initiating or taking the action.

D. The city attorney shall appoint a hearing officer to hear the appeal. The hearing officer shall be an attorney licensed to practice in Nevada.

E. The hearing officer shall set the date and time for the hearing and provide not less than ten calendar days notice thereof. The hearing shall be conducted as an administrative hearing and the technical rules of evidence shall not apply.

F. The hearing officer shall issue a written decision that includes findings of fact and conclusions of law. If the hearing officer determines that the action taken was retaliatory, the hearing officer may issue an order directing the appropriate person(s) to desist and refrain from engaging in such action. The hearing officer may also recommend other relief to the city attorney and the city manager to remedy any harm to the city employee resulting from the retaliatory action.

G. "Retaliatory action" includes disciplinary action, denial of promotion, reduction in pay, demotion, transfer, poor evaluation, and unfavorable changes in work assignment, work time and location, and in staff or other personnel necessary to perform duties.

H. This section does not prohibit disciplinary action against a public servant who in filing a complaint or disclosing improper governmental action knowingly makes false or untruthful statements.
(Ord. No. 3449, § 1, 10-17-2017; Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.140 Cooling-off period, lobbying and former attorneys.

A. Elected officials, city employees, and planning commission members shall comply with the cooling-off period found in section 2.100.030.

1. Members of the planning commission shall not act as lobbyists pursuant to chapter 2.100 during their term as a member of the planning commission.

B. Representation or counseling by a former assistant city attorney of an individual or business entity on a criminal case in municipal court is not prohibited by this section, provided that the case arose after the termination of service or separation from employment.

C. Any former city attorney, senior assistant city attorney or assistant city attorney shall not represent a client in connection with a matter in which they participated as an attorney for the city unless they receive approval and a written waiver by city attorney.

D. For the purposes of this section, the term "matter" is to be construed broadly and includes, without limitation, requests, proceedings, litigation, applications, appeals, bids, contracts, and investigations.

E. Violations of this section by a former public servant may include:

1. A civil penalty of up to $500.00 per occurrence issued by the city attorney; and

2. Referral to the state ethics commission.

(Ord. No. 3449, § 1, 10-17-2017; Ord. No. 3228, § 1, 10-21-2014; Ord. No. 3131, § 1, 4-1-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

2.40.150 Ethics orientation.

A. The city attorney shall maintain a City Ethics Web Portal on the city website that contains a current copy of this chapter as well as a copy of the state ethical standards.

B. All public servants shall, either on the day they take their oath of office or on their first day of employment, receive a written ethics notice that provides notice of the existence of this chapter and the state ethical standards found in NRS Chapter 281A. This notice shall contain the website address of the City Ethics Web Portal.

1. The city clerk shall obtain and keep a written acknowledgment from each elected official or public appointee of their receipt of the ethics notice on the day they take their oath of office.

2. The human resources department shall obtain and keep a written acknowledgement from city employees of their receipt of the ethics notice on their first day of employment.

(Ord. No. 3131, § 1, 4-1-2014; Ord. No. 3056, § 1, 9-3-2013; Ord. No. 2968, § 1, 6-19-2012)

Editor's note—Ord. No. 3056, § 1, adopted September 3, 2013, changed the title of section 2.40.150 from "Ethics orientation and training" to "Ethics orientation." The historical notation has been preserved for reference purposes.

2.40.160 Severability.

A. If any part of this chapter is for any reason held to be invalid or unenforceable by any court of competent jurisdiction, such decision shall not affect the validity or enforceability of the remaining portions of this chapter.

(Ord. No. 2968, § 1, 6-19-2012)

Chapter 2.42 RESERVED*

*__Editor's note—__Ord. No. 3025, § 1, adopted June 11, 2013, repealed the former chapter 2.42, §§ 2.42.010—2.42.050 in its entirety, which pertained to delinquent land contracts, and derived from Res. No. 243, §§ 1—5, adopted in 1969.

Chapter 2.43 CITY AUDIT FUNCTION*

Sections:

2.43.010 Internal audit function—Standards.
2.43.020 Internal audit department—Independence.
2.43.030 Internal audit department—Powers and duties; scope of audits.

2.43.010 Internal audit function—Standards.

Audits performed by the city's internal audit function shall be conducted in accordance with the Government Auditing Standards promulgated by the U.S. Government Accountability Office's Comptroller General.
(Ord. No. 3499, § 1, 7-10-2018)

2.43.020 Internal audit department—Independence.

A. The city's internal audit function shall be an independent department within the city's organizational structure, with the city auditor as its department director.

B. The city auditor shall report directly to the city manager for administrative matters.

C. In accordance with section 2.50.305 of this Code, the city auditor shall report to the audit committee for all functional matters.
(Ord. No. 3499, § 1, 7-10-2018)

2.43.030 Internal audit department—Powers and duties; scope of audits.

A. The internal audit department is authorized to conduct financial and performance audits of all departments, offices, boards, activities, agencies and programs of the city.

B. The internal audit department is authorized to investigate fraud, waste or abuse complaints reported through the city's fraud hotline.

C. The purpose of internal audits is to independently and objectively determine whether:

1. City activities and programs have been authorized by applicable law and are being conducted, and funds expended, in compliance with applicable law and city policies;

***Editor's note—**Ord. No. 3499, § 1, adopted July 10, 2018, amended chapter 2.43 in its entirety to read as herein set out. Formerly, chapter 2.43, sections 2.43.010 and 2.43.020, pertained to similar subject matter, and derived from Ord. No. 3050, § 1, adopted August 20, 2013.

2. A city entity being audited is acquiring, managing, and using its resources economically, efficiently, equitably, effectively and in a manner consistent with intended objectives;

3. The entity, activities, programs, functions or policies are effective and efficient;

4. Desired benefits or results are being achieved;

5. The city has established adequate operating and administrative procedures and practices, systems or accounting internal controls systems and internal management controls;

6. Indications of fraud, abuse or illegal acts are valid and need further investigation; and

7. Financial and other reports are being provided that disclose fairly, accurately, and fully all information required by law, to ascertain the nature and scope of programs and activities, and to establish a proper basis for evaluating programs and activities including the collection of, accounting for, and depositing of, revenues and other resources.

(Ord. No. 3499, § 1, 7-10-2018)

Chapter 2.44 CITY CLERK: ADDITIONAL DUTIES AND AUTHORIZATIONS

Sections:

2.44.010 City clerk: Additional duties and authorizations.

2.44.010 City clerk: Additional duties and authorizations.

In addition to those duties set forth in the Charter of the City of Henderson section 3.040, the city clerk or their designee shall:

A. Attest the signatures of the city manager and mayor or mayor pro tempore on bonds, real estate transactions, and when necessary, on other official city documents;

B. Attest the signatures of the city manager and city council members on contracts, and agreements, including Interlocal Agreements authorized, approved or sanctioned by the city council of the City of Henderson; and attest the signature of the mayor or mayor pro tempore on all instruments signed in the name of the city and other official acts of the mayor;

C. At the direction of the mayor or council make arrangements for special or informal meetings other than the regular meetings of the city council;

D. Supervise and conduct the municipal elections and serve as custodian of official election records for all municipal elections; and

E. Administer official oaths for the city.

For purposes of this chapter, the term "attest" shall mean to certify to be correct, true or genuine, each signature on any document calling for such formality.
(Ord. No. 3236, § 1, 12-2-2014; Ord. 984, § 2, 1985; Ord. 792, § 1, 1981)

Chapter 2.47 RECORDS MANAGEMENT*

Sections:

2.47.010 Reserved.
2.47.015 Policy of the city.
2.47.020 City archives and records division.
2.47.030 Reserved.
2.47.035 Reserved.
2.47.040 Records committee.
2.47.050 Reserved.
2.47.060 Reserved.
2.47.070 Records disposition.
2.47.085 Citywide fee schedule for public records and document services.

2.47.010 Reserved.

2.47.015 Policy of the city.

A. It is the policy of the City of Henderson to operate an effective and efficient records management program that:

1. Encourages transparency and public participation in government;

2. Complies with all applicable state and federal laws;

3. Includes processes and procedures that protect confidential records from disclosure; and

4. Promotes innovation and collaboration.

(Ord. No. 3450, § 1, 10-17-2017)

2.47.020 City archives and records division.

A. Pursuant to the provisions of NRS 239.125(1) the city archives and records division is a division of the city administered by the city clerk.

B. The division shall:

1. Follow accepted procedures for the management of records to increase the efficiency of the recordkeeping system and reduce the administrative costs associated with the creation, maintenance, use, retention and disposition of records;

***Editor's note—**Ord. No. 3450, § 1, adopted October 17, 2017, amended chapter 2.47 in its entirety to read as herein set out. Formerly, chapter 2.47 pertained to similar subject matter, and derived from Ord. No. 926, §§ 1—15, adopted in 1984; Ord. No. 1986, §§ 1—8, adopted in 2000; Ord. No. 2955, §§ 1—3, adopted January 17, 2012; Ord. No. 2729, § 2, adopted in 2008; Ord. No. 2955, §§ 1—3, adopted January 17, 2012; Ord. No. 3075, § 1, adopted October 15, 2013, and Ord. No. 3195, § 1, adopted August 19, 2014.

2. Follow accepted standards of archival practice to ensure the preservation of records with permanent value and maximum accessibility to records for the general public;

3. Establish standards, procedures and techniques for the effective management of records;

4. Make continuing surveys of current practices for the management of records and recommend improvements in those practices, including the use of space, equipment and supplies to create, maintain and store records;

5. Establish standards for the preparation of schedules providing for the retention and disposition of records;

6. Establish, maintain and operate a records center (the "records center") for storing and receiving records of the several city offices pending their disposition in a manner prescribed by law;

7. Establish a unit to provide analog and digital reformatting services to the several offices of the city;

8. Establish a program for the management of forms and files;

9. Establish a program for the protection of records essential for the continuation or reestablishment of governmental operations in the event of natural or other disaster; and

10. Establish a program for the preservation and conservation of records designated by the state or the division as having a permanent retention value.

11. Manage all requests for access to or copies of City of Henderson public records.

C. The division may employ separately or cooperatively with another local governmental entity an archives and records manager to carry out the duties of the division.
(Ord. No. 4021, § 1, 4-16-2024; Ord. No. 3450, § 1, 10-17-2017)

2.47.030 Reserved.

2.47.035 Reserved.

2.47.040 Records committee.

A. A records committee is established to be known as the City of Henderson records committee (the "records committee").

B. The records committee shall be composed of:

1. The city attorney;

2. The city clerk;

3. The city manager;

4. The police chief; and

5. The chief financial officer.

C. The records committee shall:

1. Approve all records retention and disposition schedules, requests for new records management systems both in the physical and electronic environment, or applications for conversion of records to alternative media where no approved standard exists;

2. Approve citywide records policies and procedures applicable to all city departments and divisions of the city in compliance with state and federal law and the policy goals of the city;

3. Review all proposals for the expansion or modification of the records management program; and

4. Approve the citywide fee schedule for public records and document services applicable to all city departments and divisions of the city.

(Ord. No. 3637, § 1, 11-19-2019; Ord. No. 3450, § 1, 10-17-2017)

2.47.050 Reserved.

2.47.060 Reserved.

2.47.070 Records disposition.

Records may be disposed of only in accordance with the schedules and procedures for the retention and disposition of records prepared by the division and approved by the records committee.

(Ord. No. 3450, § 1, 10-17-2017)

2.47.085 Citywide fee schedule for public records and document services.

A. The records committee shall approve and update a citywide fee schedule for public records and document services applicable to all city departments and divisions of the city in compliance with state and federal law and the policy goals of the city.

B. The citywide fee schedule for public records and document services shall provide for a mechanism whereby city officials may waive some or all of a fee to provide copies of public records.

C. The citywide fee schedule for public records and document services may establish fees for the actual cost of providing a copy of the record or document pursuant to NRS 239.052, including, without limitation, a fee for personnel time to search for, compile, segregate, redact, remove, scan and/or reproduce records responsive to the records request.

D. The citywide fee schedule for public records and document services shall be posted on the city website and in all other locations required by NRS chapter 239.
(Ord. No. 4021, § 1, 4-16-2024; Ord. No. 3637, § 1, 11-19-2019; Ord. No. 3450, § 1, 10-17-2017)

Chapter 2.48 RESERVED*

*__Editor's note—__Ord. No. 3194, § 1, adopted August 5, 2014, repealed the former chapter 2.48, §§ 2.48.010—2.48.040 in its entirety, which pertained to microfilming of records, and derived from Res. No. 547, adopted in 1977, and Res. No. 566, adopted in 1978.

Chapter 2.50 CITY BOARDS AND COMMISSIONS*

Sections:

2.50.010 Definition; establishment of boards; interpretation.
2.50.015 Applicability of general provisions.
2.50.020 Eligibility requirements.
2.50.030 Appointments of board members.
2.50.040 Terms of office and expirations.
2.50.050 Standards of conduct.
2.50.060 Attendance.
2.50.070 Bylaws and amendments.
2.50.080 Officers.
2.50.090 Powers and duties.
2.50.100 Meetings.
2.50.110 Parliamentary procedures.
2.50.120 Compensation.
2.50.130 Business cards.
2.50.300 Boards.
2.50.301 Reserved.
2.50.305 Audit committee.
2.50.310 Reserved.
2.50.315 Blue ribbon commission on educational excellence and youth opportunity.
2.50.320 Board of appeals.
2.50.325 Reserved.
2.50.330 Charter committee.
2.50.335 Reserved.
2.50.340 Citizens transportation advisory board.
2.50.345 Civil service board.
2.50.350 Reserved.
2.50.355 Reserved.
2.50.357 Henderson community education advisory board.
2.50.360 Development services center advisory committee.
2.50.365 Parks and recreation board.
2.50.370 Planning commission.
2.50.375 Reserved.
2.50.380 Redevelopment agency advisory commission.
2.50.390 Senior citizens advisory commission.
2.50.395 Arts advisory commission.

***Editor's note—**Ord. No. 3397, § 1, adopted May 2, 2017, changed the title of chapter 2.50 from "Advisory boards" to "City boards and commissions."

Prior to the reenactment of chapter 2.50 by Ord. No. 3211, § 1, adopted September 2, 2014, Ord. No. 3148, § 1, adopted April 15, 2014, repealed the former chapter 2.50, §§ 2.50.010—2.50.030 in its entirety, which pertained to public works department—determination of flood hazards, and derived from Res. No. 438, §§ 1—3, adopted in 1974.

2.50.010 Definition; establishment of boards; interpretation.

A. For the purposes of this chapter, "board" includes any permanent or temporary commission, board, committee, council, or trust created pursuant to state law, city ordinance, or city resolution.

B. The city council may establish permanent or temporary boards to advise and make recommendations to the city council on various programs and issues and to perform duties and exercise authority as authorized by the city council. Permanent boards shall be established by ordinance. Temporary boards are special ad hoc boards and may be established from time to time by resolution of the city council.

C. The provisions of this chapter apply to all permanent boards and temporary boards established by city council unless otherwise provided by ordinance or unless the resolution governing the board specifically exempts the board from the provisions of all or any part of this chapter.

D. Except when otherwise required by applicable law, any question regarding the powers and duties of any board or the interpretation of this chapter shall be determined by the city attorney.

(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.015 Applicability of general provisions.

Each of the provisions of sections 2.50.020 through 2.50.130, inclusive, of this chapter applies to all boards unless the provision is in direct conflict with any provision of the Nevada Revised Statutes, the city charter, or a city ordinance or city resolution governing a specific board.

(Ord. No. 3397, § 1, 5-2-2017)

2.50.020 Eligibility requirements.

A. A board member must be a resident of the city of Henderson unless the statute, city ordinance or city resolution providing for the creation of the board to which the member is appointed, or a provision in this chapter, expressly permits a non-resident to be appointed.

B. Permanent board members are only eligible for service on one permanent board at any given time. If appointed to a second permanent board, the member has the option of either (i) resigning from the first board by written notice prior to accepting the new appointment, or (ii) declining the second appointment.

C. The city council may establish temporary boards by resolution from time to time to give special consideration on a pending city issue. The city council shall determine the number of board members needed to perform the duties of the temporary board. Temporary board members shall have the same eligibility requirements and be appointed in the same manner as permanent board members.

D. All board appointees are required to take an oath of office to be administered by the city clerk or her designee, prior to the appointee's first meeting attendance.
(Ord. No. 4154, § 1, 4-7-2026; Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.030 Appointments of board members.

A. Unless otherwise provided in this section or the statute, city ordinance or resolution governing a specific board, councilmembers shall nominate an equal number of appointees for each board and may nominate a member from any ward. In those instances where there are fewer than five seats on a board, all nominations shall be made by the mayor. In those other instances where the number of seats on a board is not a multiple of five, the mayor shall nominate each of the appointees in excess of a multiple of five. All nominations shall be voted on by the city council as a whole.

Should a nominee fail to secure a majority vote of the city council, the nominating councilmember shall make further nominations until a successful nominee is selected.

B. All appointed board members are voting members.

C. The city council shall appoint new members to fill board vacancies as soon as feasible.
(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.040 Terms of office and expirations.

A. Terms of office are concurrent with the term of the nominating councilmember unless otherwise stated by Nevada Revised Statutes, city ordinance, or city resolution.

B. If a member is appointed to replace a resigning, replaced or removed member or to fill a newly created position, the replacement member will serve out the remainder of the unexpired term of the resigning, replaced or removed member.

C. If the term of a current member of a board expires before a replacement member is appointed, the current member may continue to serve until the city council appoints a replacement.

D. If an appointed board member moves outside of the jurisdictional limits of the city, the member shall notify the board by written notice to the chair and board secretary within 30 days of moving so that a new member may be timely appointed by the city council. A relocated member may continue to serve on the board until his or her successor is appointed. This section D does not apply to a board member that was not required to be a resident of the city of Henderson as a condition of appointment to the board if the member is qualified to serve on the board following the move.

E. A councilmember may, at his or her discretion, nominate a replacement of such councilmember's appointee(s) at any time or move for the removal of any board member appointed by the councilmember. A replacement member assumes the seat of the member he or she is replacing effective upon approval of the replacement member's appointment by city council. A removal is effective upon approval by city council, regardless of whether a successor member has been appointed.
(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.050 Standards of conduct.

A. Board members are public appointees subject to the standards and provisions of chapter 2.40 of the Henderson Municipal Code, Ethical Standards for Public Servants. Board members shall acknowledge the same within 30 days of appointment by filing a written acknowledgement with the city clerk.

B. No board member is authorized to speak on behalf of a board or the city, and no board member shall make any announcement of, or give any information about, any pending matter before the board, or action taken by the board, to the press or other news media indicating that her/his statement is endorsed by or has the approval of the board or the city or otherwise indicating that the member is speaking on behalf of a board or the city.

C. Board members shall comply with all city administrative policies applicable to board and commission members, including but not limited to the city's Harassment Free Workplace Policy, Workplace Violence Policy, Workplace Professionalism Policy and Social Media Policy. The city manager may remove any board member appointed by the city council, except a member of the audit committee, for a violation of a city administrative policy.
(Ord. No. 3482, § 1, 5-1-2018; Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.060 Attendance.

Board members are asked to make a commitment of time and expertise commensurate with the responsibility given to them. The city council encourages good attendance and participation for all board members. Members are to notify the chair or board secretary of an anticipated absence prior to the meeting whenever circumstances reasonably permit prior notice.

A. Excused absences are defined as absences due to illness of a member or a member's family, employment related activities, or other instances as approved by the chair on a case-by-case basis. Excused absences shall be noted on the record of the meeting at which the absence occurs or the immediately following meeting.

B. If a member has three consecutive unexcused absences, or fails during any 12-month period to attend at least 50 percent of the scheduled meetings of a board that met at least twice during the period, without regard to whether the absences are excused or unexcused, the member may be removed by the city manager, at the discretion of the city manager.

C. An extended leave of excused absence may be granted to a member by the chair on a case-by-case basis, depending upon the circumstances and the needs of the board.

D. Any member who chooses to resign from a board shall submit a written notice of resignation to both the chair and the city clerk, and include the effective date of resignation.

(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.070 Bylaws and amendments.

A. Individual boards shall adopt bylaws to govern their operation, including establishing the frequency, day, time, and location of meetings. No bylaws shall be approved which conflict with federal, state, or local laws. Bylaws may not expand the powers or the scope of duties of any board. In the event of a conflict, the following order of priority shall prevail: federal law, state law, local laws, a city ordinance governing a specific board, a city resolution governing a specific board, sections 2.50.010 through 2.50.130, inclusive, of this chapter, special rules adopted by city council, and bylaws adopted by the board.

B. Proposed bylaws and proposed amendments to bylaws shall be presented to the board through the regular agenda process prior to adoption. A two-thirds affirmative vote of the full board membership shall be required for adoption.

C. The board secretary shall file the executed original of the bylaws with the city clerk within 30 calendar days of adoption by the board.

(Ord. No. 3482, § 1, 5-1-2018; Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.080 Officers.

A. Each board shall have a chair and vice-chair. The process for selecting the chair and vice-chair and their terms shall be set forth in the bylaws.

B. The director of the supporting city department, or his/her designee, shall serve as the board secretary.

(Ord. No. 3482, § 1, 5-1-2018; Ord. No. 3211, § 1, 9-2-2014)

2.50.090 Powers and duties.

A. The chair shall preside at all meetings, review meeting agendas, and present reports and recommendations to the mayor and council as necessary.

B. The vice-chair shall act as chair and perform those duties in the absence of the chair.

C. The board secretary shall maintain the meeting minutes and prepare and post agendas in compliance with the Nevada Open Meeting Law and any applicable City of Henderson Public Meeting Directives on file at the city clerk's office.

D. The purpose of each board shall be as set forth in the statute, city ordinance or city resolution authorizing the creation of the board. The powers and duties of a board in the furtherance of the board's purpose shall be as follows:

1. Hold public meetings or forums as are necessary to promote the exchange of information as related to their purpose.

2. Obtain public input as necessary.

3. Review and compile information and prepare reports and recommendations as appropriate.

4. Adopt additional procedural rules as it deems necessary for the efficient conduct of its business.

5. Request through a city staff liaison that staff members attend meetings as necessary.

(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.100 Meetings.

A. All meetings shall be open to the public, held in an accessible public place, and comply with the Nevada Open Meeting Law and applicable City of Henderson Public Meeting Directives. No provision of this chapter shall prohibit a board from holding a closed meeting or session if the city attorney determines that the meeting or session is permitted to be closed to the public pursuant to the Nevada Open Meeting Law and any other applicable statute.

B. All boards shall keep written minutes of all meetings in accordance with the Nevada Open Meeting Law. The board secretary shall prepare the minutes as soon as practicable and all final minutes shall be filed at the city clerk's office and made available for public inspection during ordinary business hours. The city clerk's office may provide staff to assist with recording and preparing the minutes.

C. In the absence of the chair and vice-chair, the board secretary or, at the discretion of the board secretary, the most senior member of the board present shall call the meeting to order, and if a quorum is established, shall preside as chair pro tem.

(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.110 Parliamentary procedures.

A. Board meetings shall be held in accordance with the Nevada Open Meeting Law, this chapter, all resolutions or special rules adopted by city council applicable to the board and the board bylaws. The rules contained in the current edition of Robert's Rules of Order Newly Revised may be utilized as a guide in all cases where applicable and in which they are not inconsistent with the Nevada Open Meeting Law, this chapter, all resolutions or special rules adopted by city council, and board bylaws.

B. Motions require a majority vote of a quorum of the members unless the Nevada Revised Statutes, city ordinance or city resolution require otherwise.

C. Seconds to motions are not required.
(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.120 Compensation.

Board members shall serve without compensation for their services, or reimbursement for their expenses, unless otherwise mandated by this chapter, Nevada Revised Statutes, city ordinance, or city resolution.
(Ord. No. 3211, § 1, 9-2-2014)

2.50.130 Business cards.

Board members shall not be issued city of Henderson business cards.
(Ord. No. 3211, § 1, 9-2-2014)

2.50.300 Boards.

There are established those permanent boards set forth in sections 2.50.305 through 2.50.390, inclusive.
(Ord. No. 3397, § 1, 5-2-2017)

2.50.301 Reserved.

Editor's note—Ord. No. 3341, § 1, adopted June 7, 2016, repealed the former section 2.50.301 in its entirety, which pertained to the animal advisory committee, and derived from Ord. No. 3211, § 1, adopted September 2, 2014.

2.50.305 Audit committee.

A. *Establishment.* There is established the audit committee.

B. *Purpose.* The audit committee is established for the purpose of assisting the city council in fulfilling its oversight responsibilities for the system of internal controls, the audit process, and the process for monitoring compliance with laws and regulations. The committee shall review with city management and the city auditor the policies, staffing, and organizational structure of the internal audit function and:

1. Have final authority to review and approve the annual audit plan and any major changes to the plan;

2. Review and approve audit reports;

3. On a regular basis the chairman shall meet separately with the city auditor to discuss any matters that the auditor believes are necessary;

4. Assure that the audit department is sufficiently funded in order to perform its duties;

5. Monitor follow-up on reported findings to assure appropriate action is taken; and

6. Provide such other guidance as necessary in promoting the effectiveness of the audit function.

C. *Membership.* The audit committee of the city shall consist of five voting members appointed by the mayor, three of which are city council members, and two are at-large members from the public. The term of office for voting members shall be two years. The committee shall annually elect a chair from within its membership.

D. *Meetings; bylaws.* The committee shall meet not less than once per quarter. The committee shall adopt bylaws establishing procedural rules as it deems necessary for the conduct of its business.
(Ord. No. 3945, § 1, 3-7-2023; Ord. No. 3498, § 1, 7-10-2018; Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.310 Reserved.

Editor's note—Ord. No. 4046, § 1, adopted November 19, 2024, repealed the former section 2.50.310 in its entirety, which pertained to the bicycle advisory committee and derived from Ord. No. 3397, § 1, adopted May 2, 2017, and Ord. No. 3211, § 1, adopted September 2, 2014.

2.50.315 Blue ribbon commission on educational excellence and youth opportunity.

A. *Establishment.* There is established the blue ribbon commission on educational excellence and youth opportunity (blue ribbon commission).

B. *Purpose.* The blue ribbon commission is established for the purpose of (i) reviewing local, regional and national issues concerning excellence in education and opportunities for the development of youth in local communities, and (ii) recommending the implementation and/or promotion of those approaches that show the greatest promise for the enhancement of the quality of life for all youth within the city of Henderson. The duties of the commission shall include the following:

1. Review city involvement in supporting education and the development of youth;

2. Assist the Clark County School District in efforts to develop constructive working relationships with those organizations and sectors of the community that are concerned with promoting quality education; and

3. Submit a report to the city council for consideration at the second city council meeting in May, setting forth the commission's efforts, results and future plans.

C. *Membership.* The Henderson blue ribbon commission on educational excellence and youth opportunity shall consist of a minimum of 15 but no more than 21 members to be nominated by the mayor and confirmed by a vote of the city council to serve for such terms as the council may subscribe at the time of appointment. The blue ribbon commission members shall reside, work, or attend school within the city of Henderson, except for members who represent a specific group or organization, and shall consist of:

1. At least half plus one of the membership shall be students from area high schools.

2. At least one representative from each participating high school (public or private) serving the Henderson area.

3. At least one adult representative of the Clark County School District.

4. At least one adult representative from the Henderson area business community.

5. At least one adult representative from a Henderson area community organization.

Terms of office for adult members shall run concurrent with the mayor's term of office. Term of office for student members shall be for all years that such students attend high school, expiring July 31 after their final year in high school.

D. *Meetings; bylaws.* The blue ribbon commission shall adopt bylaws establishing meeting times and procedural rules necessary for the efficient conduct of its business.
(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014; Ord. No. 3364, § 1, 10-4-2016)

2.50.320 Board of appeals.

The board of appeals, its establishment, purpose, membership, and powers, are set forth in HMC 15.01.115 and 15.12.060.
(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.325 Reserved.

Editor's note—Ord. No. 3940, § 2, adopted February 7, 2023, repealed the former section 2.50.325 in its entirety, which pertained to the Community Development Block Grant (CDBG) program advisory committee, and derived from Ord. No. 3482, § 1, adopted May 1, 2018; Ord. No. 3397, § 1, adopted May 2, 2017, and Ord. No. 3211, § 1, September 2, 2014.

2.50.330 Charter committee.

A. *Establishment.* There is established, pursuant to section 1.120 of the city charter, the charter committee.

B. *Purpose.* The purpose of the charter committee is to review the Henderson city charter and make recommendations to the city council regarding necessary amendments to the charter. The charter committee shall appear before the city council on a date to be set after the final biennial meeting is conducted and before the beginning of the next regular session of the state legislature to make such recommendations.

C. *Membership.* The charter committee consists of 13 members, each of whom must be a registered voter and resident of the city while serving, and shall be appointed as follows:

1. The mayor shall appoint two members;

2. The mayor pro tempore shall appoint two members;

3. The remaining members of the city council shall each appoint one member;

4. The members of the senate delegation of the state legislature representing the residents of the city of Henderson and belonging to the majority party of the senate shall appoint two members;

5. The members of the senate delegation of the state legislature representing the residents of the city of Henderson and belonging to the minority party of the senate shall appoint one member;

6. The members of the assembly delegation of the state legislature representing the residents of the city of Henderson and belonging to the majority party of the assembly shall appoint two members; and

7. The members of the assembly delegation of the state legislature representing the residents of the city of Henderson and belonging to the minority party of the assembly shall appoint one member.

D. The term of office of each member shall commence at the first charter committee meeting following appointment and is concurrent with the term of the person or persons, as applicable, by whom the member was appointed.

E. *Meetings; bylaws.* The charter committee shall adopt bylaws establishing meeting times and procedural rules necessary for the efficient conduct of its business. The charter committee shall, at a minimum, meet in March of every even year and when requested by the city council or the chair.

F. *Officers.* The charter committee shall elect a chair and vice chair from among its members, who each shall serve for a term of two years.

(Ord. No. 3482, § 1, 5-1-2018; Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

Editor's note—Ord. No. 3482, § 1, adopted May 1, 2018, changed the title of section 2.50.330 from "Charter review committee" to "Charter committee." The historical notation has been preserved for reference purposes.

2.50.335 Reserved.

Editor's note—Ord. No. 3397, § 1, adopted May 2, 2017, repealed the former section 2.50.335 in its entirety, which pertained to the citizens advisory committee, and derived from Ord. No. 3211, § 1, adopted September 2, 2014.

2.50.340 Citizens transportation advisory board.

A. *Establishment.* There is established the citizens transportation advisory board.

B. *Purpose.* The purpose of the citizens transportation advisory board is to receive public input concerning traffic matters, to promote bicycling as a mode of commuter and recreational transportation and to make recommendations to the city council or planning commission regarding measures for improving traffic conditions or proposals to restrict access to an existing street, driveway or alley. The citizens transportation advisory board may also make recommendations to the city's traffic engineer, director of public works, director of parks and recreation or fire chief regarding proposals for traffic control that require their review or approval pursuant to title 10, title 11 or title 19 of the Code.

C. *Membership.* The board shall consist of seven members residing in any ward within the City of Henderson. The mayor shall appoint three members to the board, and each other councilmember shall appoint one member.

D. *Meetings; bylaws.* The board shall adopt bylaws establishing meeting times and procedural rules necessary for the efficient conduct of its business.

(Ord. No. 4046, § 1, 11-19-2024; Ord. No. 3482, § 1, 5-1-2018; Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

Editor's note—Ord. No. 4046, § 1, adopted November 19, 2024, changed the title of section 2.50.340 from "Citizens transportation advisory board" to "Citizens traffic advisory board." The historical notation has been preserved for reference purposes.

2.50.345 Civil service board.

The civil service board, its establishment, powers, composition, and procedures, are set forth in the provisions of HMC title 6.
(Ord. No. 3268, § 1, 5-19-2015; Ord. No. 3211, § 1, 9-2-2014)

2.50.350 Reserved.

Editor's note—Ord. No. 3992, § 2, adopted October 17, 2023, repealed the former section 2.50.350 in its entirety, which pertained to the commemorative beautification commission, and derived from Ord. No. 3211, § 1, adopted September 2, 2014; Ord. No. 3397, § 1, adopted May 2, 2017, and Ord. No. 3482, § 1, adopted May 1, 2018.

2.50.355 Reserved.

Editor's note—Ord. No. 3722, § 2, adopted September 15, 2020, repealed the former section 2.50.355 in its entirety, which pertained to the commission on tourism and derived from Ord. No. 3397, § 1, adopted May 2, 2017, and Ord. No. 3211, § 1, adopted September 2, 2014.

2.50.357 Henderson community education advisory board.

A. *Establishment.* There is established the Henderson community education advisory board.

B. *Purpose.* The purpose of the Henderson community education advisory board is to: i) assess and monitor the needs of Henderson public school students and public schools, including funding needs, using information compiled by city staff; and ii) provide to the city council information regarding those needs and recommendations for strategies to meet those needs, including fundraising strategies in cooperation with philanthropic organizations. For the purposes of this section, "public school" has the meaning ascribed to "public school" in NRS 385.007.

C. *Membership.* The Henderson community education advisory board shall consist of no more than 15 members. Each member shall have demonstrated leadership experience in business, education, public administration or the nonprofit sector. Members may reside outside the City of Henderson if their work in a professional or volunteer capacity influences public education in Henderson. Each councilmember shall appoint no more than three board members, and one appointment made by the mayor shall be a representative of the city manager's office. The term of office for each board member shall be concurrent with the term of the councilmember who appointed that board member.

D. *Meetings; bylaws.* The community education advisory board shall meet not less than once per quarter. The board shall adopt bylaws establishing meeting times and procedural rules necessary for the conduct of its business.
(Ord. No. 3943, § 1, 2-21-2023; Ord. No. 3482, § 1, 5-1-2018; Ord. No. 3394, § 1, 4-11-2017)

2.50.360 Development services center advisory committee.

A. *Establishment.* There is established the development services center advisory committee.

B. *Reference.* NRS 354.59893 requires the establishment of the development services center advisory committee.

C. *Purpose.* The purpose of the development services center advisory committee is to review the operations of and make advisory recommendations to the city council regarding the development services center enterprise fund. This board shall periodically be briefed on the operations of the development services center (the "center") and provide feedback to the city employee who manages the center regarding the services offered by the center. This board shall provide an annual written report of its recommendations to the city council. That report shall be made in conjunction with the annual enterprise fund report provided to city council pursuant to section 15.02.020 and shall be submitted to the city council between the close of the fiscal year and September 30th. This committee may issue opinions and make recommendations to the city council regarding:

1. The adequacy of fees charged by the enterprise fund;

2. The financial objectives and overall annual budget of the enterprise fund; and

3. Other relevant issues related to the operation of the enterprise fund.

D. *Membership.* The development services center advisory committee shall consist of at least seven and not more than nine members appointed by the city council. A member may reside outside the city of Henderson. Five of the members must represent specific groups or functions pursuant to NRS 354.59893 and shall include:

1. One member who is a representative of the residential construction industry;

2. One member who is a representative of the commercial development industry;

3. One member who is a representative of the construction industry;

4. One member who is a public officer or employee of the city and manages the fiscal affairs of the city;

5. One member who is a public officer or employee of the city and oversees directly the operation of the enterprise fund.

The remaining two to four of the members shall be at-large members. The term of office for members shall be two years.

E. *Meetings; bylaws.* The development services center advisory committee shall adopt bylaws establishing meeting times and procedural rules necessary for the efficient conduct of its business.
(Ord. No. 4154, § 2, 4-7-2026; Ord. No. 3550, § 1, 12-8-2018; Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.365 Parks and recreation board.

A. *Establishment.* There is established the parks and recreation board.

B. *Purpose.* The board serves as an advisory board to the public works, parks and recreation director, city manager, and city council for all public park plans to determine compliance with the adopted elements of the Henderson comprehensive plan and to make recommendations for compliance with the intent of the parks and recreations master plan; and recommends park development standards and amendments, for adoption by the city council, which address the needs of the city's residents.

C. *Membership.* The Henderson parks and recreation board consists of 11 members. The mayor shall make three appointments, and each other councilmember shall appoint two members.

D. *Meeting; bylaws.* The Henderson parks and recreation board shall adopt bylaws establishing meeting times and procedural rules necessary for the efficient conduct of its business.
(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.370 Planning commission.

The planning commission, its establishment, purpose, membership, and powers, are set forth in HMC 19.6.2.B and related provisions of the Nevada Revised Statutes.
(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.375 Reserved.

Editor's note—Ord. No. 4046, § 1, adopted November 19, 2024, repealed the former section 2.50.375 in its entirety, which pertained to the public improvement trust and derived from Ord. No. 3397, § 1, adopted May 2, 2017, and Ord. No. 3211, § 1, adopted September 2, 2014.

2.50.380 Redevelopment agency advisory commission.

A. *Establishment.* There is established the redevelopment agency advisory commission.

B. *Purpose.* The purpose of the commission shall be to make recommendations to the redevelopment agency on the making of grants and loans and other issues of concern, as assigned by the agency, to promote and support redevelopment plans, and to provide community input.

C. *Membership.* The commission shall consist of seven members. The chair shall appoint three commission members, and the other members of the redevelopment agency board shall each appoint one commission member.

D. *Meetings; bylaws.* The commission shall adopt bylaws establishing meeting times and procedural rules necessary for the efficient conduct of its business.
(Ord. No. 3482, § 1, 5-1-2018; Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.390 Senior citizens advisory commission.

A. *Establishment.* There is established the senior citizens advisory commission.

B. *Purpose.* The purpose of the senior citizens advisory commission shall be to advise and make recommendations or reports to the city council on subjects of particular interest to senior citizens. Such subjects may include, but not be limited to, transportation, housing, utility rates, recreation and cultural arts, employment, and other matters concerning the health, safety and welfare of senior citizens, encouraging a physically active and healthy lifestyle.

C. *Membership.* The commission shall consist of 11 members. The mayor shall make three appointments, and each other councilmember shall appoint two members.

D. *Meetings; bylaws.* The commission shall adopt bylaws establishing meeting times and procedural rules necessary for the efficient conduct of its business.
(Ord. No. 3397, § 1, 5-2-2017; Ord. No. 3211, § 1, 9-2-2014)

2.50.395 Arts advisory commission.

A. *Board established.* The city council establishes the Henderson Arts Advisory Commission (the "HAAC").

B. *Purpose.* The purpose of the HAAC shall be to advise and make recommendations to the parks and recreation department and city council for the promotion, creation, and support of city arts programs, including performing arts, literary arts, visual arts, and public arts education.

C. *Membership.* The HAAC shall consist of 11 members, all of whom shall be appointed by the city council pursuant to the requirements of Municipal Code of Ordinances of Henderson section 2.50.030. Each member shall have one vote. Each member shall reside within the City of Henderson.

The term of each member shall commence at the next HAAC meeting following appointment by the mayor and city council. The term of office of each member shall be when that member is successfully appointed in accordance with section 2.50.030 of the Henderson Municipal Code and shall automatically end concurrently with the term of the nominating member of the city council unless otherwise stated by the Nevada Revised Statutes, city ordinance, code or city resolution. City council shall appoint new members to fill the board seats vacated by members whose terms have expired. Members serve as commissioners for concurrent to the term of their councilmember. No member of the Henderson Arts Advisory Commission may serve concurrently on any other permanent board.

D. *Officers and bylaws.* The HAAC shall elect officers and adopt bylaws consistent with the terms of the relevant requirements of Municipal Code of Ordinances of Henderson sections 2.50.010 et seq.

(Ord. No. 4040, § 1, 10-1-2024; Ord. No. 4028, §§ 1—4, 6-4-2024)

Chapter 2.52 RESERVED*

***Editor's note—**Ord. No. 3064, § 1, adopted September 17, 2013, repealed the former chapter 2.52, § 2.52.010 in its entirety, which pertained to the classification and salary schedule, and derived from Res. No. 1112, adopted November 5, 1985.

Chapter 2.56 BOND ISSUANCE FOR PROJECT ASSISTANCE

Sections:

2.56.010 Declaration of purpose.
2.56.020 Application approval—Requirements.
2.56.030 Rights reserved to the city council.

2.56.010 Declaration of purpose.

(a) It is the desire of the City of Henderson, Nevada, to assist projects in locating in the City of Henderson, Nevada, through the issuance of industrial revenue bonds when the projects will have effect of increasing employment, increasing the tax base, generating revenues for the local economy and diversifying the local economy.

(b) To that end, industrial warehousing, research and development, manufacturing, and commercial enterprise shall receive preferential treatment over other projects due to their ability to satisfy the above criteria. Projects of a speculative nature, without economic substance, shall be strongly disfavored.

(c) The burden shall be upon the applicant to demonstrate the need for its project and to establish to the satisfaction of the city council that the above-referenced criteria will be met through the approval of their respective projects.
(Res. 759, § 1, 1981)

2.56.020 Application approval—Requirements.

(a) At the time of initial application to the city council for approval of an inducement resolution or ordinance, the applicant shall be required to provide preliminary evidence of its ability to meet the security requirements as established by the Henderson City Charter.

(b) In the event the city council, in the exercise of its sole discretion, determines to grant preliminary approval of the project, the applicant shall be required to execute an agreement to repay the city for the reasonable costs incurred in approval of the issue, including advertising and staff time.

(c) The applicant shall also be required to execute a hold harmless and indemnification agreement whereby the applicant agrees to protect the city from any costs involved in defending the subject issue, including litigation and expenses incurred by the city through the issuance of the industrial revenue bonds throughout the life of the issue.
(Res. 759, § 2, 1981)

2.56.030 Rights reserved to the city council.

(a) The city council shall reserve the right to approve bond counsel, underwriter and/or financial institutions involved in the subject issue.

(b) The city may employ independent bond counsel and fiscal agents at the expense of the applicant in the event that it is not satisfied with the bond counsel, underwriter and/or financial institution selected by the applicant.

(c) The city also reserves the right to require sale to institutional investors in the event that the city council, in the exercise of its sole discretion, determines the subject issue to be speculative in nature.

(d) The city council reserves the right to approve the final form of all documents, including leases, mortgages, indentures, deeds of trust and all other agreements and documentation necessary to close an issue. This will also include the right to approve the terms, rates and method of repayment of the bonds.

(e) The city council may also require the completion of an application form to be developed by city staff in cooperation with the staff of the City of Henderson, Nevada Public Improvement Trust. The city council additionally reserves the right to approve the form and substance of any security offered in support of the project, including approval of appraisals or appraisers submitted in connection with the tender of security as required by the City Charter of the City of Henderson.
(Res. 759, § 3, 1981)

Chapter 2.58 RESERVED*

*__Editor's note—__Ord. No. 3065, § 1, adopted September 17, 2013, repealed the former chapter 2.58, § 2.58.010 in its entirety, which pertained to the affirmative action plan, and derived from Res. No. 1650, adopted in 1993.

Chapter 2.60 RESERVED*

***Editor's note—**Ord. No. 3017, § 1, adopted June 11, 2013, repealed the former chapter 2.60, §§ 2.60.010—2.60.030 in its entirety, which pertained to utilities, and derived from Res. No. 1141, adopted April 15, 1986.

Chapter 2.65 INSURANCE*

Sections:

2.65.010 Internal service fund.
2.65.020 Purpose of account.

2.65.010 Internal service fund.

The self-insurance internal service fund will be periodically replenished as needed in order to maintain sufficient reserves to cover all pending claims, the associated investigation and processing expenses and for future claims.

The finance department will control the expenditures made from the fund using its internal audit and budget monitoring controls.
(Ord. No. 3167, § 1, 6-3-2014)

2.65.020 Purpose of account.

The purpose of said account shall be to pay all self-assumed losses under this program and all other costs properly relating thereto, including but not limited to attorney fees, adjusting services and administration.
(Ord. No. 3167, § 1, 6-3-2014)

***Editor's note—**Ord. No. 3167, § 1, adopted June 3, 2014, amended chapter 2.65 in its entirety to read as herein set out. Formerly, chapter 2.65, §§ 2.65.010—2.65.090, pertained to similar subject matter, and derived from Res. No. 1094, §§ 1—8, adopted in 1985.

Chapter 2.70 RESERVED*

*__Editor's note—__Ord. No. 3191, § 1, adopted July 1, 2014, repealed the former chapter 2.70, §§ 2.70.010—2.70.100 in its entirety, which pertained to administrative provisions, and derived from Res. No. 315, adopted November 15, 1971; Res. No. 624, adopted April 9, 1979; Res. No. 643, adopted June 18, 1979; Res. No. 808, adopted September 8, 1981; Res. No. 813, adopted September 28, 1981; Res. No. 879, §§ 2—6, adopted April 5, 1982; Res. No. 909, §§ 2, 3, adopted August 16, 1982; Res. No. 948, adopted April 4, 1983; Res. No. 962, §§ 2, 3, adopted June 6, 1983; Res. No. 986, adopted September 28, 1983, and Res. No. 990, adopted October 17, 1983.

Chapter 2.75 RESERVED*

*__Editor's note—__Ord. No. 3212, § 1, adopted September 2, 2014, repealed the former chapter 2.75, §§ 2.75.010—2.75.050 in its entirety, which pertained to the bicycle advisory committee, and derived from Ord. No. 2982, §§ 1—5, adopted December 4, 2012.

Chapter 2.80 RESERVED*

*__Editor's note—__Ord. No. 3213, § 1, adopted September 2, 2014, repealed the former chapter 2.80, §§ 2.80.010—2.80.030 in its entirety, which pertained to the commission on cultural arts and tourism, and derived from Ord. No. 2743, § 1, adopted in 2008.

Chapter 2.85 RESERVED*

***Editor's note—**Ord. No. 3253, § 1, adopted February 3, 2015, repealed the former Chapter 2.85, § 2.85.010 in its entirety, which pertained to the Henderson museum/space and science center board, and derived from Ord. No. 2807, § 1, adopted March 17, 2009; Ord. No. 2830, § 1, adopted October 6, 2009, and Ord. No. 3061, § 1, adopted September 17, 2013.

Chapter 2.90 RESERVED*

*__Editor's note—__Ord. No. 3062, § 1, adopted September 17, 2013, repealed the former chapter 2.90, §§ 2.90.010—2.90.040 in its entirety, which pertained to tobacco pollution control, and derived from Ord. No. 1139, adopted in 1989, and Ord. No. 1780, § 3, adopted in 1997.

Chapter 2.95 RESERVED*

***Editor's note—**Ord. No. 3214, § 1, adopted September 2, 2014, repealed the former chapter 2.95, §§ 2.95.010—2.95.120 in its entirety, which pertained to the charter review committee, and derived from Ord. No. 3063, § 1, adopted September 17, 2013.

Chapter 2.100 REGISTRATION AND REGULATION OF LOBBYISTS*

Sections:

2.100.010 Definitions.
2.100.020 Lobbying.
2.100.030 Cooling off period.
2.100.040 Licensed attorneys.
2.100.050 Violations and penalties.

2.100.010 Definitions.

A. "Lobbyist" means, except as limited by subsection B., a person who:

1. Appears in city hall including the city council chambers or any other building in which the city council or the planning commission, or any of their standing committees, hold meetings or any other location an appointment to meet has been set; and

2. Communicates directly with a member of the city council, the planning commission and/or city staff on behalf of an individual, group or entity and will lobby for their interests or benefit to influence staff, legislative or council action; and

3. Receives a salary from an employer or compensation from that individual, group or entity and will lobby for their interests or benefit to influence legislative action or decisions made by city staff, the city council or the planning commission.

B. "Lobbyist" does not include:

1. Persons who confine their activities to formal appearances before the city council, the planning commission and/or city staff and who clearly identify themselves and the interest or interests for whom they are testifying; or

2. Employees of bona fide news medium who meet the definition of "lobbyist" only in the course of their professional duties and who contact members of the city council, the planning commission and/or city staff for the sole purpose of carrying out their news-gathering function; or

3. Employees of departments or divisions of municipal government who appear before the city council, planning commission and/or city staff only to explain the effect of legislation related to their departments or divisions; or

---

***Editor's note—**Ord. No. 2952, § 1, adopted January 13, 2012, amended chapter 2.100 in its entirety to read as herein set out. Formerly, chapter 2.100, §§ 2.100.010—2.100.030 pertained to similar subject matter and derived from Ord. No. 1711, § 1(part), adopted in 1996.

4. Representatives of other municipal governments, the State of Nevada or the federal government who confine their lobbying activities to issues directly related to the scope of the office to which they were elected and who are not receiving compensation from another source for those lobbying activities; or

5. Representatives of employee bargaining units engaged in negotiation with city staff; or

6. Persons who contact the mayor or members of the city council who are elected for the ward in which they reside; or

7. Attorneys licensed by the State Bar of Nevada communicating with attorneys in the city attorney's office on criminal or civil matters in litigation or on agreements between the city and the person or entity they represent as an attorney.

(Ord. No. 3057, § 1, 9-3-2013; Ord. No. 2952, § 1, 1-3-2012)

2.100.020 Lobbying.

A. *Registration—Time for filing.* Every person who acts as a lobbyist shall complete a registration form with the city clerk prior to personal communication with city council, planning commission and/or city staff at the beginning of every calendar year, or if they have not registered as a lobbyist in the city for the preceding two calendar years, within five days of their first communication as a lobbyist. Registration may be accomplished by electronic mail, fax machine, or hard copy; and

B. *Registration—Form for filing.* The registration form shall contain the following information:

1. The lobbyists full name, permanent address, place of business and business address while lobbying; and

2. The full name and complete address of each person, if any, by whom the lobbyist is retained or employed or on whose behalf the registrant appears; and

3. A description of the principal areas of interest on which the lobbyist expects to lobby, including the names and addresses of any employer, individual or entity from which the lobbyist will receive a salary or compensation to influence legislative action or decisions made by city staff, the city council or the planning commission.

The registration form shall be a public document and shall be maintained by the city clerk.

C. *Identification Badge*—The city clerk shall furnish an appropriate identification badge to each lobbyist who files a registration form under this subsection. The identification badge must be worn by the lobbyist whenever he or she is engaged in lobbying activity with city council, planning commission and/or city staff.

Persons who engage in lobbying activity on a regular basis may obtain an annual badge from the city clerk who shall register the lobbyist's full name, permanent address, place of business and business address while lobbying.

D. *Disclosure form for city council or planning commission communication—Time for filing.* Within five working days of a lobbyist's communication with city council or the planning commission, a lobbyist shall complete a disclosure form for each individual contact and communication item. The disclosure form must be filed with the city clerk by electronic mail, fax machine, Contact Henderson, or hard copy.

1. *Disclosure form for filing.* The disclosure form must contain the name of the lobbyist, the name of the individual or entity the lobbyist is appearing on behalf of, the name of the member of city council or the planning commission with whom the communication was had, a brief description of the communication item and the date of the communication.

E. *Disclosure form for city staff communication—Time for filing.* Within five working days of the end of every month during which a lobbyist communicated with city staff, a lobbyist shall complete one disclosure form containing the names of all city staff the lobbyist communicated with during the month for each communicated item. The disclosure form must be filed with the city clerk by electronic mail, fax machine, Contact Henderson, or hard copy.

1. *Disclosure form for filing.* The disclosure form must contain the name of the lobbyist, the name of the individual or entity the lobbyist is appearing on behalf of, the names of all city staff with whom the lobbyist communicated for the month, a brief description of the communicated item and the month and year of the communication.

2. *Non-reportable communications.* Communications which are administrative or clerical and are not intended to influence legislative action or decisions made by city staff, the city council or the planning commission, or legal discussions between attorneys as described in subsection 2.100.010(B)7 are not subject to this disclosure form requirement.

(Ord. No. 3057, § 1, 9-3-2013; Ord. No. 2952, § 1, 1-3-2012)

2.100.030 Cooling off period.

A. For a period of 12 months following termination of service or period of employment with the city, no public servant shall:

1. Act as a lobbyist for a private person or business entity before the city council or the planning commission or any agency or department of the city.

2. Represent or counsel for compensation a private person upon any matter that was under consideration by the city during the public servant's service with the city. As used in this paragraph, "matter" includes a case, agenda item, proceeding, application, contract or approval, but does not include the proposal or consideration of an ordinance or resolution.

B. For the purposes of this section, "public servant" means a member of the city council, a city employee or a member of the planning commission.
(Ord. No. 3448, § 1, 10-17-2017; Ord. No. 3057, § 1, 9-3-2013; Ord. No. 2952, § 1, 1-3-2012)

2.100.040 Licensed attorneys.

A lobbyist who is also a licensed attorney in the State of Nevada may not make communications subject to disclosure in subsections 2.100.020(D) and (E) of this chapter without an attorney from the city attorney's office present if the lobbyist has received instruction from the city attorney's office not to do so on a particular matter.
(Ord. No. 3057, § 1, 9-3-2013)

2.100.050 Violations and penalties.

A. Any person who knowingly violates any of the provisions of this chapter may be assessed a civil penalty in the amount of $500.00 for each occurrence by the city attorney.

B. Any person who has been assessed a civil penalty under this chapter may appeal their civil penalty to the municipal court if an appeal is filed within ten days after the civil penalty has been assessed.
(Ord. No. 3057, § 1, 9-3-2013; Ord. No. 2952, § 1, 1-3-2012)

Editor's note—Ord. No. 3057, § 1, adopted September 3, 2013, redesignated the former section 2.100.040 as section 2.100.050. The historical notation has been preserved for reference purposes.

Chapter 2.110 RESERVED*

*__Editor's note—__Ord. No. 3168, § 1, adopted June 3, 2014, repealed the former chapter 2.110, §§ 2.110.010—2.110.050 in its entirety, which pertained to the department of information technology, and derived from Ord. No. 1714, §§ 1—5, adopted in 1997; Ord. No. 1868, §§ 2—6, adopted in 1998, and Ord. No. 3018, § 1, adopted June 11, 2013.

Title 3

(RESERVED)

Title 4

BUSINESS REGULATIONS AND LICENSES*

Chapters:

4.03	Background Investigation and Fees
4.04	General Business License Provisions
4.05	Business License Fee Schedules
4.06	Policy and Procedure Show Cause, License Suspension, Limitation, Revocation
4.07	Alternative to Criminal Prosecution
4.08	Auctions and Auctioneers
4.12	Door-To-Door Solicitors, Peddlers and Canvassers
4.18	Alarm Systems
4.26	Reserved
4.30	Reserved
4.32	Gambling—Regulations and Licenses
4.36	Liquor—Regulations and Licenses
4.48	Transient Lodging and Gaming Taxes
4.60	Teenage Dancehalls—Nightclubs
4.64	Pawnbrokers
4.68	Secondhand Dealers
4.72	Mobile Food Vendors
4.74	Reserved
4.75	Sidewalk and Open-Air Vendors
4.80	Emergency Medical Services
4.84	Massage Establishments and Independent Massage Therapists
4.85	Reflexology
4.98	Sale and Display of Narcotic and Other Paraphernalia
4.100	Reserved
4.101	Reserved
4.102	Video Rental Stores
4.110	Sexually Oriented Businesses
4.115	Reserved
4.116	Medical Marijuana Regulations and Licenses
4.118	Retail Marijuana Regulations and Licenses

***Note—**Duties performed by the city clerk are transferred to the city license clerk. Reference in this title to the "city clerk" means "city license clerk."

Chapter 4.03 BACKGROUND INVESTIGATION AND FEES*

Sections:

4.03.010 Investigation, suitability conditioned on—Authorization for fingerprinting.
4.03.020 Levels of background investigations.
4.03.025 Finding of suitability—Final determination by director.
4.03.027 Background investigation waived—When.
4.03.030 Reserved.
4.03.040 Investigation fee schedule.
4.03.045 No refund of investigation fee.
4.03.047 Providing false or misleading information—Misdemeanor violation.
4.03.050 Reserved.
4.03.060 Reserved.

4.03.010 Investigation, suitability conditioned on—Authorization for fingerprinting.

Every person submitting an application for a license and/or a finding of suitability pursuant to this chapter is subject to a background investigation. An FBI fingerprint-based investigation must be conducted prior to the issuance of any license or a finding of suitability.

Pursuant to NRS 239B.010(1)(a) and Federal Public Law 92-544, each applicant for a city business license and/or a finding of suitability shall provide to the police department a full set of his or her fingerprints and all other information required by the FBI or the police department for an FBI background check.

The police department is authorized to submit the fingerprints of an applicant for a business license and/or a finding of suitability, plus any required fees and any other information required for the background check and for submission by the central repository, to the FBI to obtain the FBI nationwide background check of the applicant. The Nevada Department of Public Safety is authorized by the applicant by virtue of submission of an application pursuant to this chapter, to exchange such fingerprint data with the FBI for purposes of the background check.

***Editor's note—**Ord. No. 3289, § 1, adopted October 6, 2015, amended chapter 4.03 in its entirety to read as herein set out. Formerly, chapter 4.03, §§ 4.03.010—4.03.060, pertained to similar subject matter, and derived from Ord. No. 1301, § 21, adopted in 1992; Ord. No. 2057, §§ 2, 4, 7, adopted in 2001; Ord. No. 2382, § 4, adopted in 2005; Ord. No. 2744, §§ 1, 2, adopted in 2008; Ord. No. 2800, § 3, adopted January 20, 2009, and Ord. No. 2845, § 1, adopted January 19, 2010.

Failure of an applicant for a business license and/or a finding of suitability to submit to full fingerprinting or to provide information required by this section constitutes grounds for denial of the application and/or finding of suitability.
(Ord. No. 3289, § 1, 10-6-2015)

4.03.020 Levels of background investigations.

A. *Full investigation.* Unless otherwise specified, all applicants for a business license and/or a finding of suitability must undergo a full investigation. The full investigation may include, but is not limited to, the following:

1. Criminal history check;

2. Reference check;

3. Verification of other similar business licenses of applicant regardless of jurisdiction;

4. Credit history check;

5. Confirmation of funding for startup investment; and

6. Verification of background investigation questionnaires.

B. *Limited investigation.* The limited investigation is applicable only to:

1. Employees of businesses licensed pursuant to chapter 4.60—Teenage dancehalls—Nightclubs;

2. Employees of businesses licensed pursuant to chapter 4.72—Mobile food vendors; and

3. Employees of businesses licensed pursuant to chapter 4.110—Sexually oriented businesses, other than escorts and outcall entertainers.

The limited investigation may include, but is not limited to, a state criminal history check.
(Ord. No. 3289, § 1, 10-6-2015)

4.03.025 Finding of suitability—Final determination by director.

Upon completion of the full or limited investigation, the police department will provide a report of the department's findings to the director. The director is authorized to utilize the report in issuing the final determination for the finding of suitability for the applicant.
(Ord. No. 3289, § 1, 10-6-2015)

4.03.027 Background investigation waived—When.

A. No investigation fee or new background investigation will be required of any applicant who has been previously investigated by the city provided that:

1. The previous investigation was done at the same level as is required for the new business license application and/or finding of suitability; and

2. The applicant has held an active privileged city license within one year immediately preceding the submission date of the present application.

B. A new investigation fee and background investigation will be required of any applicant who may have been previously investigated by the city but has not held an active privileged city license within one year preceding the submission date of the present application.

C. In each case, the applicant must obtain council approval prior to issuance of any privileged license.
(Ord. No. 3289, § 1, 10-6-2015)

4.03.030 Reserved.

4.03.040 Investigation fee schedule.

A. The full investigation fee shall be $250.00.

B. The limited investigation fee shall be $50.00.
(Ord. No. 3289, § 1, 10-6-2015)

4.03.045 No refund of investigation fee.

If an applicant is denied a license after investigation, the investigation fees shall not be refunded to the applicant.
(Ord. No. 3289, § 1, 10-6-2015)

4.03.047 Providing false or misleading information—Misdemeanor violation.

Failure to provide all required information or providing false or misleading information in the background investigation questionnaire or during the course of an investigation shall

constitute grounds for denial of the application or revocation of an existing permit or license, and shall constitute a misdemeanor, if done purposely with the intent to mislead the city.
(Ord. No. 3289, § 1, 10-6-2015)

4.03.050 Reserved.

4.03.060 Reserved.

Chapter 4.04 GENERAL BUSINESS LICENSE PROVISIONS*

Sections:

4.04.010 Definitions.
4.04.013 Licensee's or permittee's agreement to conform to law.
4.04.015 Reserved.
4.04.017 Application of other ordinances.
4.04.020 License required.
4.04.021 License—Permit—Transfer or assignment unlawful.
4.04.022 Advertising to be considered prima facie evidence of engaging in business.
4.04.023 False, deceptive or misleading advertising prohibited.
4.04.025 Temporary license—Privileged business.
4.04.030 Persons exempt.
4.04.040 Director of business license—License register—Investigations.
4.04.050 Federal, state, or county regulation compliance.
4.04.060 Contents of application forms.
4.04.062 Adoption of additional regulations.
4.04.065 Application fee.
4.04.070 Separate license required for each place of business.
4.04.075 Remittance of fees and taxes.
4.04.080 Semiannual license.
4.04.085 License fees—When refundable.
4.04.086 Origination fee—Waiver.
4.04.087 Withdrawal of application—Refund.
4.04.090 Businesses paying license fee on the basis of semiannual gross revenues—Penalty for underreporting—Violation of provisions of this title to underreport—Audits.
4.04.100 Renewal of licenses.
4.04.110 Delinquent license—Expired license.
4.04.115 Penalties—Revocation—Reinstatement.
4.04.120 Change of location—Change of business name.
4.04.125 Changes in officers or membership of licensees—Corporations—Limited partnerships—Limited liability companies.
4.04.130 Display of license.
4.04.140 License fee as debt.
4.04.150. Denial, nonrenewal, suspension, limitation and revocation of licenses.
4.04.160 Reserved.

***Editor's note—**Ord. No. 3290, § 1, adopted October 6, 2015, amended chapter 4.04 in its entirety to read as herein set out. Formerly, chapter 4.04, §§ 4.04.010—4.04.230, pertained to similar subject matter, and derived from Ord. No. 1112, adopted March 7, 1989; Ord. No. 2002, § 1, adopted in 2000; Ord. No. 2370, § 1, adopted in 2005; Ord. No. 2883, adopted November 16, 2010; Ord. No. 2916, §§ 1, 2, adopted May 3, 2011, and Ord. No. 2953, §§ 1, 2, adopted January 3, 2012.

4.04.170 Reserved.
4.04.180 License, key employees.
4.04.190 Provisions related to multi-jurisdictional licenses.
4.04.200 Enforcement authority.
4.04.205 Emergency actions.
4.04.210 Appeal of license denial.
4.04.220 Reserved.
4.04.230 Penalty for violation of title.
4.04.235 Reserved.

4.04.010 Definitions.

The following words and terms whenever used in this title have the meanings ascribed to them below unless the context clearly indicates a different meaning, or unless such words and terms are specifically given a different meaning in any other chapter of this title:

Advertising means any writing, printing, display, emblem, drawing, sign, card, or other device placed on a motor vehicle, published in a newspaper, magazine or other periodical, broadcast by any means, posted on the Internet, or printed on circulars or flyers with the intent to promote the sale of products, services, or objects, or to attract attention to a place or an event.

Antique means a unique object of personal property that is not less than 60 years old and has special value primarily because of its age.

Applicant means any person who has requested or is about to request a city business license or permit.

Auditor means an employee of the finance department of the city acting for, or at, the direction of the director of business license.

Building official shall have the same meaning as set forth in HMC 15.01.040.

Business means any business, commercial enterprise, trade, occupation, calling, profession, vocation, or activity engaged in, conducted, carried on, advertised, or held out to the public to be a business by any person, his agent, or employee for the purpose of gain, benefit or advantage, either direct or indirect, with the principal objective of livelihood and/or profit through repetitive means.

Chief financial officer means the chief financial officer of the city, or his or her designee.

City means the City of Henderson, Nevada, a municipal corporation.

City manager means the city manager appointed by the city council to perform such administrative functions of the city government as may be required of him or her by the city council, or his or her designee.

Commercial mail receiving agency (CMRA) means a commercial business that acts as an agent for the receipt of another's mail. Said mail may be held at the location for pickup by the addressee or the addressee's designee or forwarded to the addressee or the addressee's designee.

Council means the city council of the city.

County means Clark County, Nevada.

Development Code means title 19 of the Code.

Delinquent or delinquency means failure to remit fees or taxes or other required submissions as required.

Director means the business license supervisor of the division of the finance department of the city or his/her designee.

Division means the business operations division of the finance department of the city.

Employee means any person who performs service for another for hire, salary, wages, or any other kind of compensation, whether or not the services are casual, temporary or permanent, and whether or not the contract of service is expressed or implied, oral or written. For purposes of this title, an individual shall be considered an employee only when the usual documentation and filing with the proper state and federal agencies governing employee/employer relationship has been complied with.

Establishment means any real property including any buildings, improvements, equipment, facilities, outdoor seating areas authorized through this code, and parking lots used or maintained in connection with the operation of a business.

Executive suites or shared office business means one whose primary business is to maintain a number of individual rooms, cubicles, or offices for use by other businesses and to provide personalized telephone answering and mail service and one or more of the following: a separate business listing in a public area; a reception area with receptionist; a definite number of hours of use of an office; use of a conference or meeting room; exclusive use of an office; availability of secretarial, clerical, and/or data processing staff; availability and use of office equipment.

Finding of suitability means that, after investigation, a person is found to comply with the requirements of this title that are prerequisite to involvement with a privileged business. This title authorizes the city council to require that certain persons who are directly or indirectly involved with privileged businesses be found suitable for such involvement so long as that relationship continues. A finding of suitability relates only to the specific license classification for which it is made. If the applicant or licensee seeks a license type that is

different from that for which the applicant is found suitable, or if, in the judgment of the director or city council, new information concerning the applicant's suitability has become available, the applicant may be made to submit to a new determination of suitability.

Gross revenues, as used in connection with the determination of license fees, means:

1. The total amount of the sale price of all goods sold, originating in the city and regardless of destination.

2. The total amount charged or received for the performance of any act, service, or employment, of whatever nature it may be, whether or not such service, act, or employment is performed as part of or in connection with the sale of goods, wares, or merchandise, for which a charge is made or credit allowed, including all receipts, cash, credits, bartered products or services of any kind.

3. The total amount charged or received for manufactured goods originating in the city and regardless of destination; includes the cost of goods sold, plus the value added during manufacturing as it would reflect in the price or fair market value of the finished goods.

All such totals are to be calculated without any deduction for the cost of the property sold, cost of materials used, labor or service costs, interest paid or payable, or any other expense whatsoever.

"Gross revenues," as used in connection with the determination of license fees shall not include:

Properly documented cash discounts allowed or taken on sales or services; all taxes; all allowances for bad debts; and all revenues derived from business operations covered by another city business license or licenses.

Health department means the Southern Nevada Health District.

Key employee means any executive, manager, employee, agent, officer or director of a privileged licensee or applicant having the power to exercise significant influence or control over decisions concerning any part of the operation of the business or a person charged with the day-to-day operations of the privileged business.

License means permission granted by the licensing authority to engage in the business for which the license is issued.

Licensee means any person to whom a valid business license has been issued.

License fee means any monies required by law to be paid to obtain or renew a license.

Moral turpitude means any crime, including conspiracy to commit the crime which:

1. Involves an overt act of intentional dishonesty or fraud for the purpose of personal gain, or

2. Involves an act of baseness, vileness, or depravity in private and social duties that a person owes to his or her fellow human beings or to society in general, contrary to the accepted rule of right and duty between two human beings.

Multi-jurisdictional license means a business license issued by a primary jurisdiction authorizing a business to also operate in participating jurisdictions within the county as selected by the applicant/licensee.

Non-primary jurisdiction means a participating jurisdiction within the county wherein a business does not have a fixed location, but in which the applicant/licensee has identified it intends to conduct business. The non-primary jurisdiction is not responsible for maintaining the records, the issuance of a license or the renewals for a multi-jurisdictional business license.

Officer means an employee of the division in an investigative and/or enforcement capacity acting for or at the direction of the director.

Origination fee is a one-time fee, if required, which is due and payable prior to issuance of a new privileged license pursuant to this title.

Participating jurisdiction means a jurisdiction within the county that is a party to the agreement that allows a business to operate in one or more jurisdictions pursuant to such agreement.

Permit means a written document granted by the business operations division for a given location and at a given time within the city.

Person includes any individual, association, corporation, firm, partnership, trust, or other form of business association.

Police department means the Henderson Police Department.

Premises shall have the same meaning as "Establishment".

Primary jurisdiction means a participating jurisdiction within the county wherein a business has its fixed location, or, if a business does not have a fixed location in any participating jurisdiction, the primary jurisdiction shall be the first participating jurisdiction in which such business intends to conduct business. The primary jurisdiction shall be responsible for maintaining the records, the issuance of a license and the renewals for a multi-jurisdictional license.

Privileged business means a business in which a person may engage only by grant of a privileged license.

Privileged license means a license granted by special permission from local, state, or federal authorities or any combination thereof and not as a matter of right.

Professional means:

1. Any person that:

a. Holds a license, certificate, registration, permit or similar type of authorization issued by a regulatory body as defined in NRS 622.060 or regulated pursuant to the Nevada Supreme Court rules;

b. Has obtained a bachelor's or higher degree in the particular field of study from an accredited institution as specified by the regulatory body or Nevada Supreme Court rules; and

c. Practices such profession for any type of compensation, whether as a sole practitioner, owner, partner, associate or employee; or

2. Any person that holds a license recognized by the State of Nevada pursuant to an interjurisdictional compact that is in force and effect and that the State of Nevada joined.

Public park shall have the same meaning as set forth in section 19.12.4 of the Development Code.

School shall have the same meaning as school site as set forth in section 19.12.4 of the Development Code.

State means State of Nevada.
(Ord. No. 3444, § 1, 9-19-2017; Ord. No. 3418, § 1, 7-11-2017; Ord. No. 3290, § 1, 10-6-2015)

4.04.013 Licensee's or permittee's agreement to conform to law.

Acceptance of a city business license by a licensee or permit by a permittee constitutes an agreement on the part of such licensee or permittee to be bound by all of the regulations of the city as the same are now, or may hereafter be amended or promulgated. It is the sole responsibility of the licensee or permittee to keep himself informed of the content of all such rules and regulations, and ignorance thereof shall not excuse violations.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.015 Reserved.

4.04.017 Application of other ordinances.

The terms, conditions and policies of other applicable statutes and ordinances applicable to specific businesses as well as all ordinances of the city designed for the protection of the health, safety, morals, and welfare of the public are intended to be applied in conjunc-

tion with this title. The fact that such statutes or ordinances may not specifically be referred to in any section of this title shall in no manner preclude their application to any licensee or permittee in any section of this title.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.020 License required.

A. It shall be a violation of the provisions of this title and unlawful for any person to commence, carry on, engage in or continue in the city any business without first obtaining a license and paying the appropriate license fee as provided by terms and provisions of this title.

B. A license shall only be issued if the applicant has a fixed place of business from which the business will be conducted, unless this title specifically states otherwise. Once issued a license, the licensee shall not engage in business from any other premises other than the premises for which the license was issued.

C. No licensee engaged in business within the city limits of the city shall allow the license of any other business to be displayed, i.e., "hang," at the licensee's premises. For purposes of this subsection, a license "hang" is defined as using the address of a licensed business as the business address of another business not actually licensed to operate at the licensed location.

D. Upon the filing of a complete and accurate business license application and the payment of all required fees, the applicant may be issued either a permanent or a temporary business license by the division. A permanent license will be issued provided that the requirements of all appropriate federal, state, county and municipal laws and regulations have been met and that all specific requirements of all departments of the city have been met and properly approved. A temporary business license for a business license type not subject to the provisions of chapter 4.03 may be issued and if issued shall permit the applicant to engage in business at the location designated on the license for a period of up to, but not to exceed, 60 days, within which all inspections and requirements imposed upon the applicant by the various departments or divisions of the city are to be complied with. Upon the recommendation by the various departments or divisions within the city, the division shall have the discretion to extend such temporary business license for a period of an additional 60 days. It shall be the sole responsibility of the applicant to schedule all follow-up inspections necessary to comply with all the requirements and corrections. Should the applicant fail to meet the requirements as set forth by the departments or divisions of the city within the maximum prescribed time limit of 120 days (or 60 days if no extension was granted), the temporary license shall no longer be valid. Continued operation of the business, once the temporary business license is invalid, shall constitute a violation of this title, and the business shall be subject to legal action as prescribed by this title, the penalties for which are described in section 4.04.230. A license that is deemed invalid may not be reinstated.

E. The address of a commercial mail receiving agency ("CMRA") may be used for the mailing address of a business not owned and operated by the owner(s) of said CMRA, but must not be represented or held out to be the physical location of such business. A designation of "suite," "number," "room," "apartment (apt.)" or any similar designation so as to lead a reasonable and prudent person to believe that the address is the physical location of the business shall not be used. The owner or operator of a CMRA shall keep on file the Form 1583 as required by the United States Postal Service and shall make the same available to the director, his designee or an officer of the business operations division upon request.

F. It shall be the responsibility of the owner or operator of the CMRA to inform any and all clients of the above requirement.

G. Licenses may be issued to businesses proposed to be located in properly licensed executive suites or shared office establishments. It shall be the responsibility of the owner/operator of the executive suites or shared office establishment to obtain, maintain, and produce upon request by the city the records on each tenant of said business, including but not limited to a credit application, an application that includes identifying information regarding the names and residential addresses of each owner or corporate officer, a completed postal service Form 1583 (if mail service is part of the services provided), and a completed and signed service contract or service agreement between the licensed executive suites or shared office business and the proposed business. Failure to provide the requested business information as required in this subsection constitutes a violation of the provisions of this title.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.021 License—Permit—Transfer or assignment unlawful.

It shall be a violation of the provisions of this title, and unlawful, for any person issued a business license or permit to transfer said license or permit issued by the city to any other person.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.022 Advertising to be considered prima facie evidence of engaging in business.

Advertising (as defined in section 4.04.010) by any person shall be prima facie evidence that such person is engaged in business and is subject to the provisions of this title.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.023 False, deceptive or misleading advertising prohibited.

A. It is unlawful for any licensee, or any independent contractor, agent or employee thereof, to publish, disseminate, display, or cause to be displayed by any advertising medium, any statement that would suggest to a reasonably prudent person that any service other than that specified on the business license and defined in this chapter is available to the public. Such an act is grounds for revocation of the license.

B. It is unlawful for a person to offer directly or indirectly by any advertising medium, device or declaration, or by any other manner or means any unlicensed or unpermitted activity when such license or permit is required and has not been issued or granted.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.025 Temporary license—Privileged business.

A. An applicant for a privileged license may request a temporary business license, pending final action regarding a license application to determine the applicant's suitability for a license as provided under section 4.04.040 of this chapter. The director is authorized to issue a temporary license under the following conditions:

1. The applicant has filed a temporary license request with the division;

2. The applicant has filed a complete and accurate business license application with the division;

3. The applicant has submitted a complete and accurate background investigation questionnaire, and provided a full set of the applicant's fingerprints, to the police department;

4. The applicant has paid a non-refundable temporary license processing fee in the amount of $400.00, in addition to all other required application and investigation fees;

5. The premises within or the location at which the applicant's business is to be conducted has been inspected and city departments have been consulted with respect to all applicable zoning, building and construction requirements;

6. All health and safety requirements of concurrent government regulatory agencies have been met; and

7. The director makes a preliminary finding that the applicant, including all of the principals of the business, is suitable.

B. A temporary business license may be issued to an applicant to engage in the specific business activity described in the application, at the location identified in the application, for a period not to exceed 120 days or until a final decision has been made by the director granting or denying a business license, whichever comes first. During the temporary business license period, an applicant, principal, licensee, and their employees and other persons acting on their behalf, shall comply with all of the requirements or conditions imposed upon the license by this Code or by agencies of the state or county, as the case may be, or resulting from inspections by departments of the city.

C. Prior to the expiration of the temporary license period under subsection 4.04.025(B), the temporary license may be extended by the city council for an additional period not to exceed 120 days. When granting an extension on a temporary license, the council may impose any special conditions and restrictions on the applicant it deems appropriate.

D. During any period in which a temporary license is in effect or extended, the director will suspend a temporary license if it is discovered that there is reasonable cause to believe one or more of the grounds for denial identified in subsection 4.04.150(A), including a determination of a lack of suitability for the license, is found to exist. The director may issue a stop work order to stop the continued operation of the business.

E. In the event the director suspends a temporary license, the applicant may appeal the director's decision to the chief financial officer of the city as provided under section 4.04.210 of this chapter.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.030 Persons exempt.

A. *Employees.* Nothing in this title, including the imposition of any license fee, shall be deemed or construed to apply to any person engaged in any of the professions or occupations hereinafter enumerated solely as an employee of any other person conducting, managing, or carrying on any such business unless specifically provided otherwise by this title.

B. *Community theaters.* Nothing in this title, including the imposition of any license fee, shall be construed to apply to any community theater as defined in NRS 364.130.

C. *Nonprofit organizations.* Any nonprofit organization, so registered with the Internal Revenue Service, is exempt from the imposition of any license fee, except as provided for elsewhere in this title; provided, however, that such organization shall register with the division and if operating at a commercial location in the city, shall be required to have said location inspected by the city for conformance with building, safety, fire, and other regulations, as if a license were required of the establishment.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.040 Director of business license—License register—Investigations.

A. It shall be the duty of the director to keep a register of all licenses issued, and to administer the provisions of this title unless provided otherwise herein.

B. Whenever, in the administration of this title, it is advisable for investigations to be made of persons engaged in or connected to a present or a proposed business activity, the investigators and supervisory personnel of the police department, and on behalf of, and for the city council, city manager, and city attorney are authorized and empowered to obtain records of criminal history from various criminal justice agencies, financial information, and

any other information necessary to conduct a background investigation. In addition, the department is authorized to obtain other records and information from various agencies and sources which are outside the term "records of criminal history."

C. The information obtained pursuant to subsections A and B of this section shall not be disseminated beyond that which is permitted by federal or state law and is to be used only for the purposes of:

1. Determining the suitability of any licensee, or person who may be required to have, or apply for a business license or other permit as required by this Code; and

2. Determining whether there has been any violation of this Code or other business regulations enforced by the city.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.050 Federal, state, or county regulation compliance.

A. Nothing in this title shall be construed to preclude the city from requiring a license or license fee for any business specified herein that may now or in the future be required to obtain a license or permit from or to pay a license or permit fee to a federal, state, or county agency.

B. When a business license or permit is required by a federal, state, or county agency, the applicant for a city business license or permit may be required to submit evidence to the division that the federal, state, or county license or permit has been obtained prior to the issuance of the city license or permit.

C. Failure to maintain required federal, state, or county licenses or permits is cause for immediate revocation of the license or permit.

D. Each business shall be in compliance with all applicable federal, state, and county statutes and/or regulations.

E. Businesses required by a federal, state, or county agency to obtain a local business license prior to the issuance of the federal, state, or county license or permit must provide proof of the federal, state, or county license or permit within ten working days of receipt thereof.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.060 Contents of application forms.

A. The application forms supplied by the division shall include, but not be limited to, the following questions:

1. The name of the person to whom the license is to be issued, and the location for which the license is sought;

2. The kind of business to be conducted under the license;

3. The anticipated date of opening;

4. If the applicant is a partnership, association, or other similar form of business entity, other than a corporation, limited partnership or limited liability company, the application shall contain the names, and other information specified, of all persons owning an interest in the business, together with a copy of any partnership agreements;

5. If the applicant is a corporation, limited partnership or limited liability company, the application shall contain the names, and other information specified, of all corporate officers registered with the Nevada Secretary of State and owning an interest in the business, together with a copy of the articles of incorporation;

6. Any forms, certificates or evidence of compliance as required by federal, state, county, or municipal laws or regulations.

B. Whenever this title specifies that a background investigation is a prerequisite to the licensing procedure, the following shall apply:

1. In the case of a corporation, limited partnership or limited liability company, the director or the chief of police, or their designee, shall determine who, if any, of the principal officers, managers, or members shall be required to submit to background investigations.

2. In the case of a publicly traded corporation with corporate officers who will not be involved in the day-to-day operations of the business in which a license is sought, the corporate officers will not be required to undergo a background investigation. In any such case, the manager for the business involved in the day-to-day operations of the business will be required to undergo a background investigation for a finding of suitability.

3. An investigation fee, as set forth in chapter 4.03, is required for each person seeking to be licensed and/or required to obtain a finding of suitability and shall accompany every application. The investigation of a person who has held a privileged license or obtained a finding of suitability within one year immediately preceding the present application may be waived by the director. The director may require prepayment of additional investigation fees if he or she determines that the circumstances so warrant. The fees are minimum fees, and no portion of the minimum fee shall be refundable unless the application is withdrawn prior to the beginning of the investigation.

4. If any applicant withdraws his application prior to the background packet being submitted to the police department, all investigation fees may be refunded to the applicant.

5. The results of said investigation shall be given to the director upon completion. A copy of negative investigation results will be made available to the applicant or the applicant's authorized representative upon request.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.062 Adoption of additional regulations.

The council may adopt reasonable rules and regulations, requiring additional information upon application for licenses, permits, additional records, or prescribing additional rules and regulations addressing matters incidental to any and all sections of this title when, after investigation, it finds that such rules and regulations are reasonably necessary in the public interest.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.065 Application fee.

Each application for a new business license shall be accompanied by a nonrefundable application fee of $50.00 per license classification subject to council approval. All other applications filed for a new business license shall be subject to a non-refundable application fee of $25.00 per license classification. Processing of the application shall not commence until the division has received the applicable application fee(s).

(Ord. No. 3290, § 1, 10-6-2015)

4.04.070 Separate license required for each place of business.

A. A license shall authorize the licensee to transact the business described in the license at the location specified in the license.

B. Separate licenses must be obtained for:

1. Each branch, establishment, or separate location of a business;

2. Each name under which an applicant intends to do business or under which a licensee does or is doing business; and

3. Each and every class and type of business specified in this title even though several classes or types of business may be operated by the same person and at the same place of business.

a. Notwithstanding the foregoing, if the licensee operates multiple business types that are all required by this title to pay a gross revenue license fee and are in the same location and under the same business name, the licensee shall be required to apply for and obtain only one gross revenue license.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.075 Remittance of fees and taxes.

If the due date for the remittance of fees and/or taxes falls on a weekend, holiday, or any other day the city offices are closed, the payment must be received by the close of business on the first business day thereafter.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.080 Semiannual license.

Except as noted in this title, all business licenses issued by the division shall be semiannual. Further, unless otherwise specified in this title, for purposes of determining the semiannual license period, a license issued by the division shall be deemed active on the issued date, but with the start date, for renewal purposes, to be on the first day of the following month.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.085 License fees—When refundable.

A. License fees must be paid in advance for the license periods set forth in this title.

B. Initial license fees are due at the time of application and will be applied to the first license period. Notwithstanding the foregoing, if a business has been in operation prior to obtaining the appropriate license(s) for their business operations, the business must pay the fees applicable to the unlicensed renewal periods for their business operations prior to the issuance of their license. No license will be issued until appropriate fees are paid.

C. No license fees paid under this title shall be refunded after the start of the license period for which the fee has been paid, regardless of whether the operation of the business has been voluntarily terminated or the license has been revoked under the provisions of this title or for any other reason, except in the case of a clerical error or duplicate payment.

D. License fees paid for applications that are denied by the council may be refunded at the discretion of the director.

E. No license fee may be prorated unless specifically stated elsewhere in this title.

F. If the division determines that a refund of license fees is warranted pursuant to the provisions of this title, only those fees paid by the licensee within one calendar year immediately preceding the date the refund was requested shall be eligible for a refund.

G. No interest shall accrue or be paid on any refunded license fees.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.086 Origination fee—Waiver.

A. The origination fee shall not be assessed when a change of ownership of a currently licensed business occurs.

B. The liquor license origination fee may be waived at the discretion of the city manager, or his designee, for any liquor license issued in relation to management or operation of a city owned property.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.087 Withdrawal of application—Refund.

A. If an applicant withdraws his application prior to the issuance of the license or permit, and business activities related to the application have not commenced or been conducted without the license or permit, license fees other than the application fee may be returned to the applicant.

B. For license applications subject to background investigation, if any applicant withdraws his application prior to the background packet being submitted to the police department, all investigation fees deposited shall be returned to the applicant.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.090 Businesses paying license fee on the basis of semiannual gross revenues—Penalty for underreporting—Violation of provisions of this title to underreport—Audits.

A. When first securing a license to commence operations of a business required to pay the license fee on the basis of semiannual revenues, the applicant shall be required to declare a true estimate of the anticipated, or the actual amount of the semiannual gross revenues, upon which the license fee shall be paid. In no event shall the license fee be less than the minimum prescribed by Code. In the event the business gross revenues for the first period exceeds the amount of gross revenues for the payment of the declared fee, the balance due shall be added to the fee for the second semiannual period. With respect to calculating the fee for the second semiannual period only, the fee shall be based on the gross revenues for the first five full months plus any gross revenues recognized between the date of issuance and the first date of the following month in accordance with section 4.04.080. For each subsequent period the fee shall be based on the gross revenues for the full six-month period ending on the last day of the month preceding the month of renewal. In any case, each licensee shall declare under oath report and attest to the accuracy of the amount of gross revenues during the last preceding period which shall be used as the basis of payment for the next licensing period.

If an audit during the first period of operation or the nature of the business indicates that the gross revenues of the business will substantially exceed the amount required for the payment of the minimum fee, the division may require the immediate payment of the balance of the fee for such period.

B. It shall be a violation of the provisions of this title for any licensee required to pay a license fee on the basis of gross revenues to make a material and intentional underdeclaration of the licensee's gross revenues for any licensing period. In determining materiality, the fact that the underdeclaration places the licensee in a lower fee bracket shall be considered. It may be grounds for nonrenewal, suspension, limitation or revocation of a license, for any licensee to make a material and intentional underdeclaration of the licensee's gross revenues for any licensing period.

C. The director, the auditor, or the director's designee shall be provided access to the books and business premises of such business for the purpose of performing an audit to verify the accuracy of the calculation of business license fees paid and for assurance of compliance with other sections of this title. It shall be a violation of the provisions of this title for a licensee to fail to keep adequate records of gross revenues. It shall also be a violation for a licensee to fail to produce adequate records for the review of the director, the auditor or the director's designee within 96 hours after receipt of written notice of the demand or such other reasonable period as agreed upon by the director or his designee. Said notice shall be by certified mail, return receipt requested, to the last address properly filed with the division. Adequate records shall include but not be limited to the following: original copies of all sales invoices and credit card slips for a period of one year preceding the date of the audit and all cash receipts journals, income and sales tax returns, financial statements, ledgers, copies of business license renewal forms and related supporting documentation for calculations thereon and any other documentation kept in the ordinary course of business for a period of three years preceding the date of the audit. The information received from the licensee under this section shall be confidential and available only to those city officials concerned with such matters.

D. The director shall have the authority to secure additional consulting or third-party auditing services necessary to perform the auditing process. In the event the audit findings reveal that any business failed to accurately declare or pay gross revenue to the city by ten percent or more, the audited business shall be required to reimburse the city for all expenses incurred for the audit, including, without limitation, consultants and other third-parties hired by the city to assist in the audit process.

E. If, as a result of an audit, it is determined that there has been an underdeclaration of the gross revenues for the period being audited, a penalty of ten percent and interest on the amount of underpayment of one percent per month or fraction thereof, in addition to the amount due, shall be assessed.

F. If it is discovered that a business has been in operation without first obtaining a business license, the business shall pay all license fees due from date of commencement of operations to the current license period plus a ten percent penalty of each fee due and interest on the licensee fee at the rate of one percent per month or fraction thereof.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.100 Renewal of licenses.

A. A licensee shall not be required to complete an application to renew a license, but is required to pay the appropriate license fee and submit the renewal either online, in person or via mail to the city with the payment. Renewal of the license certifies by the licensee current compliance with provisions of the title and agreement for continue compliance.

B. A renewal notice will be prepared for all businesses licensed under this title before the due date of the next licensing period; provided, however, that the failure to notify any licensed business of the approaching license expiration shall not be held to waive the payment of the license fee, and, that the actual receipt of such notice is in no case required. The due date shall be the last day of the month of a licensing period.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.110 Delinquent license—Expired license.

There shall be no grace period. All license fees must be received in the business license office by the due date, which is the expiration date of the current license period. A postmark shall not be recognized as meeting the receipt requirement. All licenses for which fees have not been paid on or before the due date shall be deemed to have expired.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.115 Penalties—Revocation—Reinstatement.

A. Any quarterly license fee which is not received by the division on or before the quarterly due date shall be assessed a delinquent penalty in an amount equal to ten percent of the amount of the unpaid license fee. If the quarterly license fee and penalties are not received by the division within one month immediately following the due date, the license shall be automatically revoked on the first day of the second month.

B. Any semiannual license fee which is not received by the division on or before the semiannual due date shall be assessed a delinquent penalty in an amount equal to ten percent of the amount of the unpaid license fee. If the semiannual license fee and penalties are not received by the division within four months immediately following the due date, the license shall be automatically revoked on the first day of the fifth month.

C. Reinstatement:

1. A license which has been automatically revoked because a licensee has not complied with the semiannual license fee provisions of this section may be reinstated by the director if, not later than 60 calendar days immediately following the date the license was automatically revoked, the licensee pays to the city:

a. The delinquent and un-paid quarterly or semiannual license fee;

b. All penalties pursuant to subsection A or B of the section; and

c. A license reinstatement fee of $250.00 for any privileged license as set forth in this title and $25.00 for any other license within this title.

2. A license which has been revoked as a result of violation(s) of this title shall not be reinstated unless the licensee pays to the city a reinstatement fee of $250.00 for any privileged license and $25.00 for any other license. Payment of such fee shall be in addition to any requirements of reinstatement made by the division or city council.

3. A license may not be reinstated if the business is no longer in compliance with the provisions of this title.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.120 Change of location—Change of business name.

A. A licensee may change the location of the licensed business by filing a form provided by the division. The division may approve the location change if the new location meets all the requirements of this Code, and such applicant pays a $10.00 administrative fee per license upon filing of such application. The application to change location must be filed and approved prior to the commencement of business at the new location. Commercial premises will be subject to inspection prior to approval of the change of location.

B. All persons licensed to do business under this title shall report to the division, on a form to be provided by the division, any change in business name from that designated in the original business license application within 30 calendar days after such change occurs and pay a $10.00 administrative fee per license for such change.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.125 Changes in officers or membership of licensees—Corporations—Limited partnerships—Limited liability companies.

A. In the case of a corporate licensee, any and all changes in the officers and directors of such corporation shall be reported to the division within 30 calendar days of the appointment or election of such officers and directors. For privileged licensees, any new

corporate officer(s) or director(s) shall be required to undergo a background investigation as required by this chapter, and if recommended by the division, shall be required to appear before the council for approval of any such change.

B. In the case of a limited partnership or limited liability company, any change in ownership of the partnership or limited liability company must be reported to the division within 30 calendar days of such change. For privileged licenses, any new partners, managers or members shall be required to undergo a background investigation as required by this chapter, and if recommended by the division, shall be required to appear before the council for approval of any such change.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.130 Display of license.

A. Any person having a license under the provisions of this title, and carrying on a business at a fixed place of business, must display the license in said place of business and to show it upon request.

B. Any person who is not required to have a fixed place of business, and who was issued a license under the provisions of this title, must carry such license, or a photocopy thereof, either upon his person or in any vehicle or other conveyance which is used in such business and to show it upon request.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.140 License fee as debt.

The license fee imposed by this title shall be deemed a debt due the city, from and against any person who engages in any business for which a license is required, without first having paid such license fee and obtaining a license according to the terms and provision of this title, and such person shall be liable in civil action to the city in any court of competent jurisdiction for the recovery of the amount of license fee, or any portion thereof, including penalties imposed by this title, and for the cost of the suit.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.150. Denial, nonrenewal, suspension, limitation and revocation of licenses.

It is expressly declared that the provisions of this section are applicable to any license or permit issued or applied for, or pursuant to any chapter of this Code. Thus, the provisions

of this section are in addition to any grounds for denial, nonrenewal, suspension, limitation and revocation set forth for specific businesses or trades in chapter 4.06, or any other chapters of this title.

A. Any license or permit application made pursuant to the provisions of this title may be denied for good cause by the division or by the council. Good cause for denial of a license or permit shall include, but not be limited to:

1. The license application is incomplete so as to not contain all information required by this title;

2. All license or investigation fees are not paid;

3. False, fraudulent or misleading statements in the application for the license or permit;

4. Past failure to obtain a license or permit as required by this title; and failure to comply with the requirements of other city departments or divisions prior to engaging in business;

5. The applicant does not beneficially own the premises for which the license is sought or does not have a lease thereon for the full period for which the license is to be used;

6. A finding by the division or by the council that said business will not comport with the peace, health, safety, convenience, good morals or the general welfare of the public;

7. Lack of suitability of the applicant to engage in the particular occupation or business. For the purpose of this section, lack of suitability shall be defined as that quality or character of the license applicant which tends to establish that the applicant will not perform the services to be provided under his license or permit in a reasonable manner to the public. Particular factors to be taken into consideration by the division or by the council in determining whether the applicant is not suitable, are whether the applicant has a bad moral character has a bad reputation for truth, honesty or integrity, or has a prior criminal conviction and/or a prior license denial, suspension, limitation or revocation, either locally or in another state or community, to the extent that it is possible that the acts which formed the basis of that conviction, denial, suspension, limitation or revocation may be committed by the applicant under the license or permit being applied for. In the event the applicant is a company, partnership, association, corporation, or other business entity, the division or the council may consider the suitability of each of the applicant's owners, partners or directors;

8. False, fraudulent or misleading statements made to the city council;

9. For any other cause deemed by the city through its division or council to be a just or equitable reason.

B. Nonrenewal. The division may refuse to renew any business license or permit for any reason which would have justified a denial of the original application for a license or permit. Refusal to renew shall also include, but not be limited to, the following:

1. The conduct of the business in an unlawful or improper manner or in a manner that exceeds the scope of the business license;

2. Failure to comply with all applicable city, county, state or federal laws;

3. Upon the recommendation of a department or division within the city because of noncompliance to city ordinances or business activities not in the best interest of the city;

4. The existence of unsanitary conditions at, near, or in the premises which causes or tends to create a public nuisance or which injuriously affects the public health, safety or general welfare;

5. Failure to truthfully disclose any of the information required by the division or the failure to make full disclosure of all the facts required by this Code;

6. The commission of, or permitting or causing the commission of any act in the operation of the business which act is made unlawful or is prohibited by any ordinance or statute of the city, county, state or federal government;

7. False, fraudulent or misleading statements made to the city council;

8. The licensee makes a material and intentional under-declaration of his gross revenue for any licensing period.

9. Any other cause that the city through its division or its council finds to be a just or equitable reason.

C. All business licenses issued under this title shall be subject to suspension, limitation or revocation for failure of such licensee, its agents, or employees, while engaged in the conduct of business, to comply with any of the provisions of this Code. Without limiting the foregoing, and without being subject to the administrative hearing process set forth in chapter 4.06, the council may suspend a license if the licensee or its agents or employees, violate any subdivision of subsection A or B of this section. The council may, upon complaint, or upon its own motion, cause any licensee to appear before it at any time to show cause why the license of any licensee shall not be suspended, limited or revoked in accordance with this chapter.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.160 Reserved.

4.04.170 Reserved.

4.04.180 License, key employees.

A. Whenever it is the judgment of the director, the council, the chief of police or a designee of the director or chief of police, that the public interest will be served by requiring an employee of the licensee to obtain a finding of suitability to hold key employee status, the division shall serve notice upon the licensee to make application for the finding of suitability for the key employee.

B. Grounds for requiring a finding of suitability of a key employee which are deemed in the public interest include, but are not limited to, situations where the employee is new to the industry, to a particular business establishment, or to the position or the level of influence or responsibility which he holds, or when the division, for reasons concerning the employee's character, background, reputation or associations deems it in the public interest to require such finding of suitability.

C. The licensee shall, within 30 calendar days following receipt of the notice of determination to require a finding of suitability of any key employee, present the application for the key employee to the division, or provide documentary evidence to the director that such key employee is either no longer employed by the licensee or no longer employed in the position for which the finding of suitability is being required. Application, investigation, and payment of fees shall be made in accordance with requirements of the appropriate section of title 4.

D. Any person notified by the division to make application pursuant to this regulation, may request the chief financial officer of the city to review the determination of that person's status within the licensee's organization anytime within ten days following the filing of a completed application as required by this regulation. In the event the chief financial officer determines that the applicant is not a key employee, or that the public interest and policies of the city do not require the approval of the key employee at that time, then the key employee applicant shall be allowed to withdraw his application and he may continue in his employment. In no event shall the request for review, stay the obligation of the licensee to present the key employee's application within the 30-day period set forth in subsection C.

E. The licensee by whom the key employee is employed, may be subject to disciplinary action for employment of an employee in a key position after disapproval by the director or chief financial officer, or for employment of an employee in a key position if said employee refuses to make application when notified to do so as set forth.

F. Continued employment in a key position after disapproval by the director or chief financial officer shall be a violation of the provisions of this title. Further, the individual may not apply for a new finding of suitability until the completion of a minimum of one year. (Ord. No. 3290, § 1, 10-6-2015)

4.04.190 Provisions related to multi-jurisdictional licenses.

A. The license fee for the multi-jurisdictional license shall be the congregate of the applicable license fees of the primary jurisdiction and non-primary jurisdictions that have been selected by the applicant/licensee.

B. Licenses in categories that have been identified by the Director as eligible for the multi-jurisdictional program may be issued for fixed renewal cycles.

C. Licenses in categories that the director may identify as being eligible for the multi-jurisdictional program may have the appropriate change of fee, associated with the transition, implemented at such time as determined by the director.

D. Notwithstanding provisions stated elsewhere in this title, the initial license period may be modified from a semiannual period and the associated license fees prorated on a monthly basis to transition a non-multi-jurisdictional license to a multi-jurisdictional license.

E. Notwithstanding provisions stated elsewhere in this title, multi-jurisdictional license fees may be prorated on a quarterly basis in the following circumstances:

1. Upon first time issuance of a new license; or

2. Upon addition of a non-primary jurisdiction to an existing multi-jurisdictional license. (Ord. No. 3290, § 1, 10-6-2015)

4.04.200 Enforcement authority.

A. It shall be the duty of the director, his officers, and all officials charged with the issuance of licenses, and/or those with police powers, and the city attorney as set forth in this title, to enforce the provisions of this title.

B. Such enforcement power shall include, but not be limited to, the power to issue citations, serve notices of correction, issue orders of suspension or limitation, prohibit unlawful business activities, prevent activities in contravention of the licensing ordinances, require findings of suitability, and all other duties relating to licensing enforcement as provided in this title. In addition, the business license officers shall have the authority to prepare, sign and serve misdemeanor citations pursuant to NRS Chapter 171 to enforce the provisions of this title.

C. The director and his officers shall have the authority to issue a "red tag/stop work order." Said order shall direct the unlicensed person or the licensee, his officers, servants, or employees to cease and desist from the activity, or activities, so designated in the order. The "red tag/stop work order" shall be given by the director or his officers in writing, to the licensee, his agents, servants, or employees, clearly stating in writing, the violation(s) being committed. The city attorney may direct the issuance of a "red tag/stop work order."

D. Any violation of a "red tag/stop work order," in subsection C of this section, shall be deemed a separate violation of this title; and, a citation may be issued for each violation, for each and every day of continued violation.

E. The director, the business license officers and auditors shall have access to any business during normal business hours for any purpose related to license administration or enforcement. Any person who willfully hinders, delays, or obstructs any business license officer, compliance agent, or auditor in the discharge of his or her official powers or duties shall be in violation of this title and may be subject to the penalties set forth in section 4.04.230.

F. When, in the course of enforcing the provisions of this title relative to emergency suspension or a "red tag/stop work order," the division shall have the authority to lock and seal the premises wherein or whereon the business is operating.

G. This section is supplemental to, and not exclusive of, enforcement duties imposed upon other officials regarding this title.
(Ord. No. 3290, § 1, 10-6-2015)

4.04.205 Emergency actions.

In the event emergency actions on a business license or license holder are necessary, the following procedures will apply:

A. *Emergency orders—Grounds.* The director or the chief of police may issue an emergency order which suspends or conditions a license upon a determination that:

1. There has been a violation of the provisions of this title, title 8 or title 19; and

2. Such order is necessary for the immediate preservation of the public peace, health, safety, morals, good order or general welfare within the city.

B. *Emergency orders—Content and effective date.* Any emergency order issued shall:

1. Set forth the grounds upon which it is issued, including a statement of facts constituting the emergency which necessitates such order;

2. Be effective immediately upon the issuance and service thereof on the licensee or its representative or upon the licensed premises; and

3. Indicate the period of time for which it is effective, which shall be based upon the severity of the violation and the nature of the emergency as determined by the director or the chief of police.

C. *Emergency orders—Appeal.* A licensee who is affected by an emergency order may appeal the order by filing an appropriate action in the State of Nevada District Court to challenge or seek review of the order. Such action to appeal must be filed within ten days after the effective date of the emergency order, or the right to appeal is deemed waived. Nothing in this section shall be construed to limit any statutory right of the licensee to file an ordinary or emergency petition for extraordinary writ under NRS Chapter 34.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.210 Appeal of license denial.

Except with respect to disciplinary action against a licensee that is initiated pursuant to section 4.04.205 and chapter 4.06, an applicant denied a license, permit or application for finding of suitability by the director may appeal that decision within ten calendar days to the chief financial officer by filing written notice of appeal with the division. Unless the chief financial officer finds good cause for a delay of up to ten additional business days, the chief financial officer shall hear the appeal and render a decision within ten business days after receipt of the appeal. It is the appellant's burden to present the chief financial officer any and all facts and mitigating circumstances in support of the appeal.

(Ord. No. 3418, § 1, 7-11-2017; Ord. No. 3290, § 1, 10-6-2015)

4.04.220 Reserved.

4.04.230 Penalty for violation of title.

Except where an alternative civil violation proceeding is commenced by the city under chapter 4.07, any person violating any of the provisions of this title shall be guilty of a misdemeanor; and, upon conviction thereof, shall be subject to the misdemeanor penalties set forth in NRS 193.150. Whenever in this title any act is prohibited, or is made or declared to be unlawful, or an offense or a misdemeanor, or whenever in such title the doing of any act is required, or the failure to do any act is made or declared to be unlawful, or an offense or misdemeanor, the doing of any such prohibited act, or the failure to do any such required act, shall constitute a violation of this title and may also subject the license or permit issued to such person to be suspended, revoked, or cancelled. Every day of violation of this title constitutes a separate offense.

(Ord. No. 3290, § 1, 10-6-2015)

4.04.235 Reserved.

Chapter 4.05 BUSINESS LICENSE FEE SCHEDULES*

Sections:

4.05.010 Gross revenues licenses.
4.05.020 Public utility and related services licenses.
4.05.025 Utility fee—Exemption—Non-compliance.
4.05.030 Reserved.
4.05.040 Reserved.
4.05.050 Reserved.
4.05.060 Reserved.
4.05.070 Professional businesses—Fees.
4.05.080 Reserved.
4.05.090 Reserved.
4.05.100 Fixed fee licenses.
4.05.105 Accounting firm.
4.05.110 Advertising business.
4.05.115 Advertising space—Leasing or selling.
4.05.117 Reserved.
4.05.120 Airline.
4.05.123 Alarm systems.
4.05.124 Ambulance service.
4.05.125 Antique dealer.
4.05.130 Apartment house.
4.05.135 Architectural firm.
4.05.140 Astrologer.
4.05.145 Auctioneer.
4.05.150 Automobile leasing.
4.05.153 Automobile pawnbroker.
4.05.155 Automobile rental agency.
4.05.160 Automobile towing.
4.05.165 Bail bond agency, bail enforcement agency.
4.05.170 Bank, savings and loan, thrift, trust company.
4.05.175 Barbershop and cosmetology establishment.
4.05.180 Bookkeeping.
4.05.185 Bowling alley.
4.05.190 Broadcasting facility.

***Editor's note—**Ord. No. 3291, § 1, adopted October 6, 2015, amended chapter 4.05 in its entirety to read as herein set out. Formerly, chapter 4.05, §§ 5.05.010—4.05.415, pertained to similar subject matter, and derived from Ord. No. 1709, §§ 1—5, adopted in 1997; Ord. No. 1961, § 1, adopted in 1999; Ord. No. 2370, §§ 2—10, 13, 15—21, 23—27, 31—34, 40—42, 44, 45, 47, 48, 50, 51, 53, 57—61, 63—65, 68—70, 75, 78—80, 82, 83, 88, 90, 93, 95, 97, 99, 102, 103, 105, 106, 108, 109; adopted in 2005; Ord. No. 2734, § 2, adopted in 2008; Ord. No. 2862, adopted July 8, 2010; Ord. No. 2933, § 1, adopted October 4, 2011; Ord. No. 2953, § 3, adopted January 3, 2012, and Ord. No. 2969, § 1, adopted June 19, 2012.

4.05.195 Broker.
4.05.197 Cannabis delivery business.
4.05.200 Car/automobile dealership—New.
4.05.203 Check cashing and financial services.
4.05.205 Collection agency.
4.05.210 Commodities, securities, or mutual funds.
4.05.215 Contract labor service.
4.05.220 Contractor.
4.05.225 Dental office.
4.05.230 Designer or decorator.
4.05.235 Distribution center.
4.05.237 Door-to-door solicitor and peddler.
4.05.240 Employment agency.
4.05.245 Engineering firm.
4.05.250 Finance company.
4.05.253 Gaming.
4.05.255 Gasoline, diesel, or motor vehicle fuel sales.
4.05.257 Group care facility.
4.05.260 Hotel—Motel.
4.05.265 Hypnotist.
4.05.270 Insurance agency or company, insurance adjusting firm.
4.05.273 Inter-jurisdictional business.
4.05.275 Law firm or law office.
4.05.278 Liquor license origination fees and license fees.
4.05.280 Locksmith and safe mechanic.
4.05.285 Management, marketing, or consulting service.
4.05.287 Massage establishment and independent massage therapist.
4.05.288 Marijuana—Medical marijuana fees.
4.05.289 Marijuana—Retail marijuana fees.
4.05.289.01 Marijuana distributor.
4.05.289.02 Marijuana management company.
4.05.290 Medical office.
4.05.295 Motion picture or television production.
4.05.297 Mobile food vendor.
4.05.300 Mobile home park and/or recreational vehicle park.
4.05.305 Manufactured housing setup and repair.
4.05.310 Mortgage lending.
4.05.313 Novelty food vendor.
4.05.315 Nurse.
4.05.320 Reserved.
4.05.325 Office only.
4.05.330 Pawnbroker.
4.05.333 Photography and videography sales/service.
4.05.335 Private investigators and related occupations.
4.05.340 Property maintenance.
4.05.345 Psychic arts practitioner.

4.05.350 Publisher.
4.05.355 Real estate business.
4.05.357 Reflexology.
4.05.360 School.
4.05.363 Secondhand dealer.
4.05.364 Sexually oriented business.
4.05.365 Social work, behavioral therapy business.
4.05.367 Special event medical service.
4.05.370 Surveying firm.
4.05.373 Teenage dancehall—Nightclub.
4.05.375 Temporary sales or service permit.
4.05.380 Title insurance company.
4.05.385 Travel or ticket agency.
4.05.390 Reserved.
4.05.395 Reserved.
4.05.400 Veterinary office.
4.05.405 Warehouse, storage, or self-storage business.
4.05.410 Businesses not enumerated in schedule.
4.05.415 Reserved.
4.05.420 Business license summary of fees.

4.05.010 Gross revenues licenses.

The following shall pay, prior to the issuance of the license, a semiannual license fee based on the gross revenues of the business per the schedule in subsection (C):

A. Every person who, at a fixed place of business in the city, manufactures or sells either at retail or wholesale, whether on commission or otherwise, any goods, wares, merchandise or services, unless specifically required to pay a fixed license fee under any section of this title; or

B. Every person, operating at a fixed place of business in the city, or from a location outside the city and providing services within the city, whose business is not identified elsewhere within this title shall pay based on the provisions of section 4.05.010.

C. Gross revenue license fee schedule:

Semiannual Gross: From	*Semiannual Gross: To*	*Semiannual Fee*
$0.00	$12,000.99	$25.00
$12,001.00	$18,000.99	$35.00
$18,001.00	$24,000.99	$42.00
$24,001.00	$30,000.99	$54.00
$30,001.00	$45,000.99	$66.00
$45,001.00	$90,000.99	$78.00

Semiannual Gross: From	*Semiannual Gross: To*	*Semiannual Fee*
$90,001.00	$135,000.99	$90.00
$135,001.00	$180,000.99	$100.00
$180,001.00	$240,000.99	$120.00
$240,001.00	$300,000.99	$167.00
$300,001.00	$360,000.99	$200.00
$360,001.00	$420,000.99	$230.00
$420,001.00	$480,000.99	$270.00
$480,001.00	$540,000.99	$300.00
$540,001.00	$600,000.99	$350.00
$600,001.00	$660,000.99	$370.00
$660,001.00	$720,000.99	$400.00
$720,001.00	$780,000.99	$440.00
$780,001.00	$840,000.99	$470.00
$840,001.00	$900,000.99	$500.00
$900,001.00	$960,000.99	$540.00
$960,001.00	$1,020,000.99	$570.00
$1,020,001.00	$1,080,000.99	$600.00
$1,080,001.00	$1,140,000.99	$640.00
$1,140,001.00	$1,200,000.99	$670.00
$1,200,001.00 and over multiply the full total by 0.00056		

(Ord. No. 3291, § 1, 10-6-2015)

4.05.020 Public utility and related services licenses.

A. As used in section 4.05.020, the following words have the following meanings:

Broadband infrastructure access has the meaning given to the term in Chapter 709 of the Nevada Revised Statutes.

Broadband provider has the meaning given to the term in Chapter 709 of the Nevada Revised Statutes.

Broadband service has the meaning given to the term in Chapter 709 of the Nevada Revised Statutes. In the case of a broadband provider, "gross revenue" means the revenue derived from providing broadband service, broadband infrastructure access, or both within the jurisdiction of the city.

Cellular phone service means a commercial mobile radio service as that term is defined in 47 CFR § 20.3 on the effective date of the ordinance codified in this section, or as may be amended. It is one type of telecommunications service.

Customer does not include any customer of a provider of a telecommunication service other than a retail customer.

Fee means a charge imposed upon a public utility for a business license, a franchise or a right-of-way over streets or other public areas, except any paid pursuant to the provisions of NRS 709.110, 709.230 or 709.270.

Public utility means a business that provides:

1. Electric or gas service, whether or not the business is subject to regulation by the Public Utilities Commission of Nevada;

2. A telecommunication service, if the business holds a certificate of public convenience and necessity issued by the Public Utilities Commission of Nevada and derives intrastate revenue from the provision of that service to retail customers; or

3. A commercial mobile radio service as that term is defined in 47 CFR § 20.3 on the effective date of the ordinance codified in this section, or as may be amended.

Revenue, total operating revenue, or *gross revenue* as used in section 4.05.020 means, in the case of a public utility that provides commercial mobile radio service, all revenue received from the first $15.00 charged monthly for each line of access for each of its customers located within the city. For purposes of calculating revenue received within the city, the customer's billing address shall be determinative. In the case of electric or natural gas service, all revenue received from customers located within the city for electric or natural gas services. Revenue includes proceeds from the sale of natural gas to retail customers located within the city, but does not include any proceeds from the sale of natural gas to a provider of electric energy which holds a certificate of public convenience and necessity issued by the Public Utilities Commission of Nevada.

"Revenue, total operating revenues" or "gross revenue" as used in section 4.05.020 does not include revenues earned from sales to the following:

1. Governmental agencies of the United States;

2. Agencies and subdivisions of the state of Nevada;

3. City inter-utility sales; or

4. Sales made to industrial plants to the extent exempted under section 4.05.025.

Video service has the same meaning as that term is defined in NRS 711.141, as may be amended or renumbered.

Video service provider has the same meaning as that term is defined in NRS 711.151, as may be amended or renumbered. In the case of a video service provider, "gross revenue" has the same meaning as that term is defined in NRS 711.066, as amended.

B. Every person engaged in the business of furnishing to the public telecommunications service, commercial mobile radio service, gas, electricity, water, sewer services, video service, or broadband service shall pay a quarterly license fee to carry on each of such businesses as follows:

1. *Telecommunications and commercial mobile radio service.*

a. The fee for a license to engage in a telecommunications or commercial mobile radio service business is payable not later than 30 calendar days after the end of each calendar quarter and shall be five percent of its total revenue.

b. A license fee not received or postmarked within 30 calendar days after the end of each calendar quarter shall be delinquent and the licensee shall pay, in addition to the license fee, a penalty of one percent of the delinquent amount per month and interest of one percent of the delinquent amount per month.

c. Each telecommunications or commercial mobile radio service provider which derives or intends to derive intrastate revenue from customers located within the city shall, not later than 60 calendar days after the effective date of the ordinance codified in this section or 30 calendar days before the company begins to provide intrastate telecommunications or commercial mobile radio service to those customers, whichever occurs later, provide to the city:

i. An acknowledgement that the company is operating or intends to operate within the city; and

ii. The date that the company began or intends to begin to derive revenue from customers located within the city.

d. Each company that is subject to this section shall, not later than 30 calendar days after the end of each calendar quarter, provide to the city a statement of the amount of revenue the telecommunications or commercial mobile radio service company derived during that calendar quarter from the sale of all intrastate telecommunication or commercial mobile radio services to each of its customers located within the city.

2. *Natural gas service.*

a. The fee for a license to provide gas service within the city is payable not later than 30 calendar days after the end of each calendar quarter and shall be five percent of the business entity's total revenue.

b. A license fee not received or postmarked within 30 calendar days after the end of each calendar quarter shall be delinquent and the licensee shall pay, in addition to the license fee, a penalty of one percent of the delinquent fee amount per month and interest of one percent of the delinquent amount per month.

c. Each natural gas provider which derives or intends to derive revenue from customers located within the city shall, not later than 60 calendar days after the effective date of the ordinance codified in this section or 30 calendar days before the company begins to provide natural gas service to those customers, whichever occurs later, provide to the city:

i. An acknowledgement that the company is operating or intends to operate within the city; and

ii. The date that the company began or intends to begin to derive revenue from customers located within the city.

d. Each company that is subject to this section shall, not later than 30 calendar days after the end of each calendar quarter, provide to the city a statement of the amount of revenue the natural gas company derived during that calendar quarter from the sale of natural gas services to all customers located within the city.

3. *Water and sewer.* Every water or sewer company shall pay a fee for a license equal to five percent of its total operating revenues from water or sewer services furnished by such business within the corporate limits of the city.

4. *Electric service.*

a. The fee for a license to provide electric service within the city is payable not later than 30 calendar days after the end of each calendar quarter and shall be five percent of the business entities' total revenue.

b. A license fee not received or postmarked within 30 calendar days after the end of each calendar quarter shall be delinquent and the licensee shall pay, in addition to the license fee, a penalty of one percent of the delinquent fee amount per month and interest of one percent of the delinquent fee amount per month.

c. Each electric energy provider which derives or intends to derive revenue from customers located within the city shall, not later than 60 calendar days after the effective date of the ordinance codified in this section or 30 calendar days before the company begins to provide electric energy service to those customers, whichever occurs later, provide to the city:

i. An acknowledgement that the company is operating or intends to operate within the city; and

ii. The date that the company began or intends to begin to derive revenue from customers located within the city.

d. Each company that is subject to this section shall, not later than 30 calendar days after the end of each calendar quarter, provide to the city a statement of

the amount of revenue the electric energy company derived during that calendar quarter from the sale of electric energy services to all customers located within the city.

5. *Video service.*

a. A video service provider shall pay, on a quarterly basis, a license fee of five percent of the provider's gross revenue from its video service subscribers within the city, payable within 30 calendar days after the end of each calendar quarter.

b. A license fee not received or postmarked within 30 calendar days after the end of each calendar quarter shall be delinquent and the licensee shall pay, in addition to the license fee, a penalty of one percent of the delinquent fee amount per month and interest of one percent of the delinquent amount per month.

c. It is unlawful for any video service provider to construct or operate a video service network within the city or to provide video service to subscribers within the city unless the provider is a holder of a certificate of authority issued by the Nevada Secretary of State that includes service areas within the city.

6. *Broadband service.*

a. A broadband provider shall pay a license fee of two percent of the gross revenue it derives from providing broadband service, broadband infrastructure access, or both within the jurisdiction of the city.

b. Each company subject to this section shall, not later than 30 calendar days after the end of each calendar quarter, provide to the city a statement of the amount of revenue the broadband provider derived during that calendar quarter from providing broadband service, broadband infrastructure access, or both within the jurisdiction of the city.

C. The quarterly license fees specified in subsection 4.05.020(B) will be due the 30th day of the first month following the end of each calendar quarter.

(Ord. No. 4157, § 1, 5-5-2026; Ord. No. 3926, § 1, 12-6-2022; Ord. No. 3291, § 1, 10-6-2015)

Editor's note—Ord. No. 4157, § 1, adopted May 5, 2026, changed the title of section 4.05.020 from "Public utility licenses" to "Public utility and related services licenses." The historical notation has been preserved for reference purposes.

4.05.025 Utility fee—Exemption—Non-compliance.

A. Industrial plants may request that the council grant an exemption as herein provided. A utility customer claiming an exempt status as an industrial plant must submit on forms to be approved by the division information to establish before the council the following facts:

1. That it operates on a site(s) zoned for industrial use, or on a site(s) pursuant to a variance authorizing industrial use of property otherwise zoned;

2. That it consumes electrical energy or natural gas for the manufacture or processing of goods;

3. That the aggregate cost of the energy or service so consumed or used to such customer is at least $5,000.00 each month;

4. That it markets at least 50 percent of its products in interstate commerce.

B. A customer that has been granted an exemption by the council shall be subject to electric and natural gas utility license fees set forth in section 4.05.020 at the abatement rates set forth below. Total abatement is equal to the five percent franchise fee:

1. From January 1, 2023, until December 31, 2023: Five percent;

2. From January 1, 2024, until December 31, 2024: Four percent;

3. From January 1, 2025, until December 31, 2025: Three percent;

4. From January 1, 2026, until December 31, 2026: Two percent;

5. From January 1, 2027, until December 31, 2027: One percent; and

6. Beginning January 1, 2028: Zero percent.

C. When granted, an exemption is valid only when the provisions of this section are maintained. It is the responsibility of the utility customer to immediately notify the city and the utility providers if the business no longer complies with the requirements for the exemption. Further, if the business no longer complies with the provisions of this section, the business is responsible for the utility license fees set forth in this chapter.

D. Nothing in this section will be deemed to alter the terms of any existing franchise agreement between the city and a public utility.

E. Requests for exemption will not be considered after July 1, 2022. The program will be terminated on January 1, 2028, after all current recipients of the abatement have been reduced to zero abatement per the schedule in subsection 4.05.025(B).
(Ord. No. 3926, § 2, 12-6-2022; Ord. No. 3291, § 1, 10-6-2015)

4.05.030 Reserved.

4.05.040 Reserved.

4.05.050 Reserved.

4.05.060 Reserved.

4.05.070 Professional businesses—Fees.

A. Each professional business located in the city shall pay a semiannual business license fee based on the number of professionals at the rate of $100.00 for the first professional and $75.00 for each additional professional.

B. Each professional business located outside of the city and which does business within the city shall pay a semiannual business license fee of $100.00.

C. Nothing in this section shall prohibit the requirement for a gross revenue business license for the sale of any products or services not specifically related to or required for the performance of the profession.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.080 Reserved.

4.05.090 Reserved.

4.05.100 Fixed fee licenses.

Persons conducting, carrying on or engaging in any of the business, trades, professions or occupations named below shall pay a license fee therefor at the following fixed rates.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.105 Accounting firm.

Each accounting firm shall pay a license fee in accordance with section 4.05.070.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.110 Advertising business.

For each advertising business, the license fee shall be $75.00 semiannually. "Advertising business" means any business engaged in the act of designing, producing, and

disseminating information to the general public with the intent of promoting the sale of products, services, or objects or to attract attention to a place or event. "Advertising business" also includes public relations activities on behalf of persons or businesses.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.115 Advertising space—Leasing or selling.

For each business leasing or selling outdoor advertising space whether on billboard, including mobile billboards or electrical signs, the license fee shall be $290.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.117 Reserved.

Editor's note—Ord. No. 3855, § 1, adopted March 1, 2022, repealed the former section 4.05.117 in its entirety, which pertained to air ambulance service and derived from Ord. No. 3291, § 1, adopted October 6, 2015.

4.05.120 Airline.

For each person engaged in the business of operating an airline, or otherwise deriving income from air commerce or sale of air transportation as those terms are used in 49 U.S.C. 40116(b), the license fee shall be $250.00 semiannually for the principal location and $100.00 semiannually for each additional location, ticket office or counter.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.123 Alarm systems.

For each alarm systems business the license fee shall be $65.00 semiannually. See chapter 4.18 for licensing requirements.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.124 Ambulance service.

Each ambulance service provider shall:

A. Submit a nonrefundable ambulance service franchise application fee of $1,000.00 as set forth in HMC subsection 4.80.130(A);

B. Pay a semiannual license fee of $50.00; and

C. Be subject to licensing requirements as set forth in chapter 4.80.

(Ord. No. 3352, § 1, 7-5-2016)

4.05.125 Antique dealer.

Each person engaged in the business of operating as an antique dealer or operating an antique shop shall pay a license fee of $150.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.130 Apartment house.

A. For the purposes of this section, the following definitions shall apply:

1. "Apartment house" is defined as a building, or group of buildings, which contains multiple dwelling units designed for residential purposes and occupied by multiple households. This definition excludes multi-family dwelling units which qualify as a townhouse, residence hotel, or condominium.

2. "Manager" is defined as a licensee, an employee of a licensee, a property manager, or an employee of a property manager or any other person designated by a licensee who has primary responsibility for the day to day operations of an apartment house, including such activities as negotiating lease and rental terms, managing lease and rental transactions, maintaining accounting records, and overseeing building and grounds maintenance.

3. "Landlord training program" is defined as the training program provided to apartment managers by the police department or the Las Vegas Metropolitan Police Department in connection with the Henderson Crime Free Multi-Housing Program.

4. "Property manager" is defined as an individual or a property management company that is licensed by the Nevada Department of Business and Industry Real Estate Division to operate as a property manager.

B. Every person operating an apartment house with five or more units must obtain, and thereafter maintain, an apartment house business license and shall pay a semiannual license fee as set forth in the following schedule:

Less than five apartments	No license required
Five to ten apartments	$35.00
Excess of ten	$35.00 plus $2.50 for each additional apartment in excess of ten

C. For purposes of this section, units located on contiguous sites or on the same street or adjacent streets may, at the discretion of the city, be combined to determine total units for a license.

D. In addition to the semiannual fees set forth in subsection 4.05.130(B), an apartment house renting to transient guests, as that term is defined in chapter 4.48, is also subject to the transient lodging taxes as set forth in chapter 4.48.

E. To obtain and maintain a valid apartment house business license, the licensee must identify its designated manager(s), as defined in this section, and provide proof to the department and the police department that said manager(s) has completed the landlord training program within 90 days of the issuance of the license.

F. A person licensed as the operator of an apartment house shall notify the department of any change to the designated manager of the apartment house within 30 days of when the change occurs. Newly hired or designated managers must complete the landlord training program within 90 days of the date of hire.

G. A certificate of completion of the landlord training program shall be maintained on the premises of each apartment house containing proof that the current manager has completed a landlord training program or evidence that the current manager has been employed in that capacity for fewer than 90 days.

H. All apartment house licensees and applicants with applications currently on file with the city as of the effective date of the ordinance codified in this section shall have until 180 days from the effective date of the ordinance to provide proof to the division that they are in compliance with the landlord training program requirement.

I. The division, at its sole discretion, may extend any compliance period set forth in this section up to an additional 90 days upon a showing of good cause as to why the licensee was unable to satisfy the compliance period; or upon notification from the police department that the available landlord training programs offered could not accommodate the number of managers requiring certification within the time period for compliance.

J. Failure to comply with any provision of this subsection constitutes a violation of this title and shall subject the licensee to the penalties available under this title.
(Ord. No. 3521, § 1, 9-18-2018; Ord. No. 3291, § 1, 10-6-2015)

4.05.135 Architectural firm.

Each architectural firm shall pay a license fee in accordance with section 4.05.070.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.140 Astrologer.

A. For every person who carries on the practice of astrology and demands or receives a fee for the exercise of said business, directly or indirectly, or incidental to the conduct of any other business, either as a gift, donation or otherwise, or gives an exhibition thereof at any place where an admission fee is charged, the license fee shall be $100.00 semiannually. The license must be approved by the council prior to issuance.

B. Application for a license to practice astrology shall be made to the division accompanied by a nonrefundable investigation fee deposit, as set forth in chapter 4.03, to conduct a police department criminal background investigation of the applicant. (See subsection 4.04.060(B)). No person shall be issued a license to practice astrology unless such person meets all the qualifications provided for below:

1. A license issued for the practice of astrology shall be limited to areas permitting professional offices or any commercial or industrial use, and provided that the use is operated in compliance with title 19;

2. A background investigation shall be conducted and the results shall be furnished to the director who will make a determination on the finding of suitably of the applicant; and

3. The division shall forward a recommendation to the council to approve or deny the license based on the finding of suitability and the application submitted; and

4. The applicant shall be at least 18 years of age.

C. Nothing in this section shall prevent a newspaper or other periodical from publishing astrological columns.

D. Any license issued to practice astrology is a privileged license and may be suspended, limited or revoked, or other disciplinary action taken with respect thereto for the failure of the licensee to comply with the requirements of this section.

E. Every licensee shall be responsible for the acts of his employees and agents committed during the course and scope of employment. Every licensee shall accordingly use adequate care in the selection of his employees and agents. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense and every licensee accepts his or her license subject to said condition.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.145 Auctioneer.

For each auctioneer the license fee shall be $250.00 semiannually. See chapter 4.08 for licensing requirements.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.150 Automobile leasing.

For each business leasing automobiles or any kind of motor vehicle the license fee shall be $75.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.153 Automobile pawnbroker.

For each automobile pawnbroker the license fee shall be $100.00 semiannually. See chapter 4.64 for licensing requirements.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.155 Automobile rental agency.

For each automobile rental agency the license fee shall be $125.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.160 Automobile towing.

For each automobile towing service which has been issued a certificate in compliance with the state Transportation Services Authority the license fee shall be $75.00 semiannually. This subsection shall not apply to service stations and garages which, as an incident to providing repairs, tow automobiles to their places of business to make such repairs.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.165 Bail bond agency, bail enforcement agency.

For each bail bond agency or bail enforcement agency, licensed under NRS Chapter 697 as may be amended or renumbered, the license fee shall be $100.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.170 Bank, savings and loan, thrift, trust company.

For each bank, savings and loan, thrift, or trust company the license fee shall be $500.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.175 Barbershop and cosmetology establishment.

Each barbershop or cosmetology establishment shall pay a semiannual license fee as follows:

A. For the first barber or cosmetologist licensed under NRS Chapter 643 or NRS Chapter 644A respectively, the license fee shall be $50.00.

B. For each additional barber or cosmetologist licensed under NRS Chapter 643 or NRS Chapter 644A respectively, the license fee shall be $25.00.

(Ord. No. 3583, § 1, 6-4-2019; Ord. No. 3291, § 1, 10-6-2015)

4.05.180 Bookkeeping.

For each bookkeeping business the license fee shall be $75.00 semiannually. Also included in this classification are income tax preparation businesses. This classification does not include accounting services by accounting firms. See section 4.05.105 for the fee for an accounting firm.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.185 Bowling alley.

For each bowling alley the license fee shall be $25.00 semiannually for the first alley and $12.50 semiannually for each additional alley.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.190 Broadcasting facility.

For each radio or television broadcasting facility the license fee shall be $75.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.195 Broker.

For each person acting as a broker and not required to be licensed by the state, the license fee shall be $50.00 semiannually. For purposes of this section a broker is defined as one who acts as an intermediary or agent with respect to negotiations of contracts, commodities, services and other matters.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.197 Cannabis delivery business.

A. For each cannabis delivery business delivering medical or retail cannabis to natural persons within the city, the semiannual license fee shall be $50.00 per vehicle used in the delivery or transportation of cannabis or cannabis related products to individuals within the city.

B. Deliveries must comply with all applicable provisions of NRS and NAC.
(Ord. No. 3731, § 1, 10-20-2020)

4.05.200 Car/automobile dealership—New.

A. Each car/automobile dealership—new shall pay a semiannual license fee based on the number of vehicles sold in the preceding six-month period, according to the following schedule:

$4.00 per new vehicle;

$2.00 per used vehicle;

$1.00 per new vehicle—wholesale;

$1.00 per used vehicle—wholesale.

B. However, the minimum license fee under this section shall be $400.00 semiannually.

C. In the event that the number of vehicles sold for the first period exceeds the amount declared at the time of licensure, the balance due is to be added to the renewal fee for the second semiannual license period.

D. A car/automobile dealership-new may conduct a used car department solely in connection with such new car dealership for the sale of used cars and the fee schedule contained in this section shall apply. Used car sales conducted and reported pursuant to this section are exempt from chapter 4.68.

E. Nothing in this section shall exempt a car/automobile dealership-new from paying a license fee based on gross sales, per section 4.05.010, for items and services including but not limited to dealer holdback warranty contracts, repairs, services, parts, accessories and factory warranty work, parts and accessories.

F. No car/automobile dealership-new licensed under this title may be open for business on Sunday.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.203 Check cashing and financial services.

For each check cashing and financial services business the license fee shall be $100.00 semiannually. For purposes of this section, check cashing and financial services business is defined as a business licensed pursuant to NRS Chapter 604A, as may be amended or renumbered.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.205 Collection agency.

For each collection agency holding a state license under NRS Chapter 649, as may be amended or renumbered, the license fee shall be $125.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.210 Commodities, securities, or mutual funds.

For each business engaged in effecting transactions in commodity options as defined by NRS Chapter 91 as may be amended or renumbered; the sale or transfer of securities per NRS Chapter 90, as may be amended or renumbered; or the sale or transfer of mutual funds, the license fee shall be $330.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.215 Contract labor service.

For each person who by contract supplies his own employees to perform only temporary labor services for another under circumstances in which the individuals performing the labor do not become employees of the recipient of the service the license fee shall be $150.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.220 Contractor.

For each person required to have a state contractor license pursuant to NRS Chapter 624 as may be amended or renumbered, the license fee shall be $100.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.225 Dental office.

Each dental office shall pay a license fee in accordance with section 4.05.070.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.230 Designer or decorator.

A. For each designer or decorator the license fee shall be $75.00 semiannually.

B. Nothing in this section shall prohibit the requirement for a gross revenue license pursuant to section 4.05.010 if the designer/decorator also sells or provides merchandise.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.235 Distribution center.

For purposes of this section, a distribution center is defined as an intermediate shipping location in the distribution of goods and merchandise regardless of whether said goods or merchandise are to be redistributed to retailers, to wholesalers, or directly to consumers or other end users.

A. For each distribution center licensed prior to December 31, 2017, the license fee shall be $225.00 semiannually.

B. For each distribution center licensed after December 31, 2017, the license fee shall be paid semiannually based on the gross revenue of the business pursuant to the schedule in subsection 4.05.010(C).

C. A change of ownership of any distribution center holding a valid license originally obtained prior to December 31, 2017 will remain subject to the semiannual license fee set forth in subsection A of this section.

(Ord. No. 3465, § 1, 1-16-2018; Ord. No. 3291, § 1, 10-6-2015)

4.05.237 Door-to-door solicitor and peddler.

For each door-to-door solicitor or peddler the license fee shall be $25.00 semiannually. See chapter 4.12 for licensing requirements.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.240 Employment agency.

For each employment agency issued a state license under NRS Chapter 611, as may be amended or renumbered, the license fee shall be $150.00 semiannually.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.245 Engineering firm.

Each engineering firm shall pay a license fee in accordance with section 4.05.070.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.250 Finance company.

For each finance company or branch thereof licensed pursuant to NRS Chapter 675, as may be amended or renumbered, the license fee shall be $400.00 semiannually.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.253 Gaming.

The following city license fees for both regulation and revenue are assessed as follows:

A. Bingo shall be licensed at the rate of $250.00 per quarter.

B. Keno shall be licensed at the rate of $200.00 per quarter.

C. Sports pool shall be licensed at the rate of $300.00 per quarter.

D. Race book shall be licensed at the rate of $300.00 per quarter.

E. All other live games shall be licensed at the rate of $100.00 per quarter.

F. Slot machines or gaming devices shall be licensed at the rate of $35.00 per slot machine or gaming device per quarter.

G. Slot route operator shall be licensed at the rate of $200.00 per quarter.

H. For deemed transfers under section 4.32.160(A) and (B), transferees will be credited for prepaid quarterly gaming license fees paid by transferors.

I. Gaming licensees are also subject to the appropriate gaming tax as set forth in chapter 4.48.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.255 Gasoline, diesel, or motor vehicle fuel sales.

A. Each business engaged in the sale of gasoline, diesel, or motor vehicle fuel shall pay semi-annually a license fee of $0.55 per 1,000 gallons of fuel sales made during the previous semiannual period.

B. The minimum license fee for a license under this section shall be $200.00.

C. Nothing in this section shall exempt any business engaged in the sale of gasoline, diesel, or motor vehicle fuel from paying a license fee based on gross sales per section 4.05.010 for sales of any goods or services, including labor, but excluding revenue from fuel sales.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.257 Group care facility.

A. For each group care facility the license fee shall be $100.00 semiannually.

B. For the purposes of this section, group care facility may include, but is not limited to, the following facilities regulated by the State of Nevada Department of Health and Human Services: residential facility for groups, facility for intermediate care, and facility for skilled nursing.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.260 Hotel—Motel.

The following semiannual license fees shall be paid by each hotel, resort hotel, motel, residential motel, or residential hotel, per the following schedule:

0 to 4 rooms	$0.00 (No license required)
5 to 10 rooms	$35.00

Excess of 10 rooms	$35.00 plus $2.50 for each additional room in excess of 10

(Ord. No. 3291, § 1, 10-6-2015)

4.05.265 Hypnotist.

A. For every person who carries on, practices, or professes to practice the business of hypnotism and who is not required to have a certificate of registration under NRS Chapter 641, as may be amended or renumbered, and demands or receives a fee for the practice of hypnotism, directly or indirectly, or incidental to the conduct of any other business, either as a gift, donation, or otherwise, or who gives an exhibition thereof at any place where an admission fee is charged, the license fee shall be $100.00 semiannually.

B. Each applicant for a hypnotist license shall pay to the city an investigation fee as set forth in chapter 4.03. After completion of the investigation, the director shall make a determination of the applicant's suitability and prepare a report of the findings and recommendation of approval or disapproval of the license application. The recommendation shall be submitted to the council which shall approve the application based on the finding of suitability and if the applicant meets the other requirements of this title.

C. A hypnotist license is a privileged license and may be suspended, limited or revoked, or other disciplinary action taken with respect thereto for the failure of the licensee to comply with the requirements of this section.

D. Each licensee shall be responsible for the acts of his employees and agents committed during the course and scope of employment. Each licensee shall accordingly use adequate care in the selection of his employees and agents. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense and every licensee accepts his license subject to said condition.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.270 Insurance agency or company, insurance adjusting firm.

Each insurance agency, insurance company or insurance adjusting firm shall pay a semiannual license fee as follows:

A. $75.00 for the first agent, broker, or insurance adjuster.

B. $50.00 for each additional agent, broker, or insurance adjuster.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.273 Inter-jurisdictional business.

Each person who has a business located outside the city, and who comes into the city to perform services or deliver product in relation to the said business, and for which the services or delivery of the products of the business are not otherwise classified under this title, shall pay a license fee of $25.00 semiannually for each vehicle used in the pursuit of the aforementioned business within the city.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.275 Law firm or law office.

Each law firm or law office shall pay a license fee in accordance with section 4.05.070.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.278 Liquor license origination fees and license fees.

See chapter 4.36 for licensing requirements.

Origination fees, in addition to the semiannual license fees listed in this section, are imposed for the following and are payable prior to issuance of license:

Beer, wine, and spirit-based products off-sale	$1,000.00
Beer, wine, and spirit-based products on-sale	$1,000.00
Beer, wine, spirit-based products, and liqueur tasting	$500.00
Brew pub	$10,000.00
Brew pub—Combo	$60,000.00
Artisan's beer and wine room establishment	$2,000.00
Catering liquor	$1,250.00
Craft distillery	$15,000.00
Craft distillery—Combo	$60,000.00
Estate distillery	$15,000.00
Full liquor off-sale	$10,000.00
Full liquor on-sale	$20,000.00
Gift basket liquor	$500.00
Golf course liquor	$20,000.00
Instructional wine-making facility	$1,000.00
Liquor manufacturer	$5,000.00
Nonprofit liquor	$500.00
Nonrestricted/limited gaming liquor	$90,000.00
Portable bar operator	$500.00
Restaurant with bar	$30,000.00
Sport venue liquor establishment	$10,000.00

Tavern	$60,000.00
Winery	$10,000.00
Wholesale/import liquor	$5,000.00

The licenses provided for in chapter 4.36 are issued on a semiannual basis, are not prorated, are fixed and established, and must be paid in advance by all persons receiving such licenses, respectively as follows:

Beer, wine, and spirit-based products off-sale	$350.00
Beer, wine, and spirit-based products on-sale	$350.00
Beer, wine, spirit-based products, and liqueur tasting	$200.00
Brew pub	$1,000.00
Brew pub—Combo	$1,200.00
Artisan's beer and wine room establishment	$700.00
Catering liquor	$400.00
Craft distillery	$1,000.00
Craft distillery—Combo	$1,200.00
Estate distillery	$1,000.00
Full liquor off-sale	$750.00
Full liquor on-sale	$750.00
Gift basket liquor	$200.00
Golf course liquor	$750.00
Grocery store internet and telephone liquor sales	$500.00
Instructional wine-making facility	$350.00
Liquor delivery support service	$500.00
Liquor manufacturer	$1,000.00
Nonprofit liquor	$200.00
Nonrestricted/limited gaming liquor	$1,500.00
Portable bar operator	$200.00
Restaurant with bar	$1,000.00
Sport venue liquor establishment	$1,000.00
Tavern	$1,200.00
Urban lounge	$1,200.00
Winery	$1,000.00
Wholesale/import liquor	$1,000.00

(Ord. No. 4022, § 1, 5-21-2024; Ord. No. 3731, § 1, 10-20-2020; Ord. No. 3583, § 2, 6-4-2019; Ord. No. 3291, § 1, 10-6-2015)

4.05.280 Locksmith and safe mechanic.

A. For each locksmith and safe mechanic as defined by NRS Chapter 655 as may be amended or renumbered the license fee shall be $100.00 semiannually. In addition to completing a regular application, each applicant for a locksmith or safe mechanic's license

shall present himself to the police department for fingerprinting and furnish the police department any other information necessary to conduct an investigation pursuant to chapter 4.03. Upon completion of the investigation, the director shall prepare and submit to the council a report containing the finding of suitability and a recommendation of approval or disapproval of the license.

B. If it shall appear to the council that the applicant is of such character and reputation that the issuance of a locksmith's or safe mechanic's license to him will not prejudice or be detrimental to the public safety or welfare, the council shall approve the application, and the division shall therefor issue the license upon payment of the required fee.

C. In the event the applicant is a firm, partnership, or corporation, the director shall identify the responsible party(ies) who shall complete an application. Upon completion of the investigation(s), the director shall prepare and submit to the council a report containing the finding(s) of suitability and a recommendation of approval or disapproval of the license.

D. A locksmith and safe mechanic license is a privileged license and may be suspended, limited or revoked, or other disciplinary action taken with respect thereto for the failure of the licensee to comply with the requirements of this section.

E. Each licensee shall be responsible for the acts of his employees and agents committed during the course and scope of employment. Each licensee shall accordingly use adequate care in the selection of his employees and agents. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense and every licensee accepts his license subject to said condition.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.285 Management, marketing, or consulting service.

Any person or firm which is conducting marketing, management, or consulting services for an individual or business firm shall pay a fee of $75.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.287 Massage establishment and independent massage therapist.

A. For each massage establishment at a fixed business location, the license fee shall be $100.00 semiannually and $25.00 semiannually for each massage therapist employed by the massage establishment.

B. For each independent massage therapist, the license fee shall be $75.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.288 Marijuana—Medical marijuana fees.

See chapter 4.116 for licensing requirements.

A. Each applicant for any medical marijuana establishment license as identified in this chapter shall pay to the city at the time of application for preliminary finding of suitability for a medical marijuana establishment, a non-refundable application fee in the amount of $10,000.

B. Origination fees, in addition to the semiannual license fees listed in this section, are imposed for the following and are payable prior to issuance of the license:

Class I medical marijuana establishment	$60,000.00
Class II medical marijuana establishment	$80,000.00
Class III medical marijuana establishment	$100,000.00
Class IV medical marijuana establishment	$60,000.00
Class V medical marijuana establishment	$60,000.00
Class VI medical marijuana establishment	$60,000.00
Independent testing laboratory	$15,000.00

C. Medical marijuana establishment licenses are not prorated, are fixed and established, and the semiannual fees must be paid in advance beginning with the second semiannual license period from the date of issuance by all persons receiving such licenses, respectively as follows:

Class I medical marijuana establishment	3% of Gross Revenue[1]
Class II medical marijuana establishment	3% of Gross Revenue[1]
Class III medical marijuana establishment	3% of Gross Revenue[1]
Class IV medical marijuana establishment	3% of Gross Revenue[1]
Class V medical marijuana establishment	3% of Gross Revenue[1]
Class VI medical marijuana establishment	3% of Gross Revenue[1]
Independent testing laboratory	Gross Revenue[2]

[1] A portion of gross revenue collections will be used for antidrug education programs to be administered by the police department.

[2] Each independent testing laboratory shall pay semiannual license fees in accordance with section 4.05.010 beginning with the second semiannual license period from the date of issuance.

D. The minimum semiannual fee for the license classifications set forth in subsection C of this section shall be $25.00.

E. Prior to the issuance of a medical marijuana establishment license, all receiving such licenses, and all owners as defined in section 4.116.010, officers, board members and directors, shall execute an indemnification and release agreement with the city on a form approved by the city. All persons receiving such licenses shall pay an indemnification fee in the amount of $25,000.00.

(Ord. No. 3583, § 3, 6-4-2019; Ord. No. 3434, § 1, 9-5-2017; Ord. No. 3291, § 1, 10-6-2015)

4.05.289 Marijuana—Retail marijuana fees.

See chapter 4.118 for licensing requirements.

A. Each applicant for any retail marijuana establishment license as identified in this title shall pay to the city at the time of application for a retail marijuana establishment, a non-refundable application fee in the amount of $1,000.00.

B. Origination fees, in addition to the semiannual license fees listed in this section, are imposed for the following and are payable prior to issuance of the license:

Retail marijuana cultivation facility	$60,000.00
Retail marijuana product manufacturing facility	$60,000.00
Retail marijuana testing facility	$15,000.00
Retail marijuana store	$60,000.00

C. Retail marijuana establishment licenses are not prorated, are fixed and established, and the semiannual fees must be paid in advance beginning with the second semiannual license period by all persons receiving such licenses, respectively as follows:

Retail marijuana cultivation facility	3% of Gross Revenue[1]
Retail marijuana product manufacturing facility	3% of Gross Revenue[1]
Retail marijuana testing facility	Gross Revenue[2]
Retail marijuana store	3% of Gross Revenue[1]

[1] A portion of gross revenue collections will be used for antidrug education programs to be administered by the police department.

[2] Each retail marijuana testing facility shall pay semiannual license fees in accordance with section 4.05.010 beginning with the second semiannual license period.

D. The minimum semiannual fee for the license classifications set forth in subsection C of this section shall be $25.00.

E. Prior to the issuance of a marijuana establishment license, all applicants receiving such licenses, and all owners as defined in section 4.118.010, officers, board members and directors, shall execute an indemnification and release agreement with the city on a form approved by the city. All persons receiving such licenses shall pay an indemnification fee in the amount of $25,000.00. If a marijuana establishment is co-located with a medical

marijuana facility licensed pursuant to chapter 4.116 and has previously paid the indemnification fee required under subsection 4.05.288(E), then no additional payment shall be required.
(Ord. No. 3583, § 4, 6-4-2019; Ord. No. 3434, § 2, 9-5-2017)

4.05.289.01 Marijuana distributor.

For purposes of this title, marijuana distributor shall have the same meaning as NRS 453D.030 as may be amended or renumbered.

A. Each marijuana distributor must obtain and thereafter maintain the appropriate license pursuant to NRS Chapter 453D;

B. Each marijuana distributor must comply with all applicable Nevada Revised Statues and provisions of this title; and

C. For each marijuana distributor the semiannual license fee shall be $50.00 per vehicle used in the delivery or transportation of marijuana or marijuana related products within the city.
(Ord. No. 3434, § 3, 9-5-2017)

4.05.289.02 Marijuana management company.

For purposes of this title, marijuana management company means a business providing a marijuana establishment with any operations or management services, including but not limited to contract labor, marketing services, consulting services or facility management expertise.

A. Each marijuana management company must comply with subsection 4.116.070(F) or 4.118.070(F), as applicable;

B. Each marijuana management company must comply with all applicable Nevada Revised Statues and provisions of this title; and

C. For each marijuana management company the license fee shall be $75.00 semiannually.
(Ord. No. 3434, § 4, 9-5-2017)

4.05.290 Medical office.

Each medical office shall pay a license fee in accordance with section 4.05.070.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.295 Motion picture or television production.

For each motion picture or television production business operating from a fixed place of business in the city, the license fee shall be $250.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.297 Mobile food vendor.

Each mobile food vendor shall pay an annual license fee of $150.00. See chapter 4.72 for licensing requirements.
(Ord. No. 4163, § 1, 6-16-2026; Ord. No. 3291, § 1, 10-6-2015)

4.05.300 Mobile home park and/or recreational vehicle park.

For the purposes of this section "recreational vehicle" means a vehicular structure primarily designed as a temporary living quarters for travel, recreational or camping use, which may be self-propelled or mounted upon or drawn by a motor vehicle.

A. Every person operating a mobile home park and/or recreational vehicle park shall pay a semiannual fee according to the following schedule:

1 to 20 spaces	$50.00
Excess of 20	$50.00 plus $1.50 for each additional space in excess of 20

B. Each space rented for transient lodging shall be subject to transient lodging tax as set forth in chapter 4.48.

(Ord. No. 3583, § 5, 6-4-2019; Ord. No. 3291, § 1, 10-6-2015)

Editor's note—Ord. No. 3583, § 5, adopted June 4, 2019, changed the title of section 4.05.300 from "Mobile home park" to "Mobile home park and/or recreational vehicle park." The historical notation has been preserved for reference purposes.

4.05.305 Manufactured housing setup and repair.

For each manufactured housing setup and repair business licensed pursuant to NRS Chapter 489, as may be amended or renumbered, the license fee shall be $65.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.310 Mortgage lending.

For each mortgage banker holding a state license issued under NRS Chapter 645E, as may be amended or renumbered and each mortgage broker holding a state license issued under NRS 645B, as may be amended or renumbered, the license fee shall be $330.00 semiannually. Mortgage agents are exempt from licensing.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.313 Novelty food vendor.

Each novelty food vendor shall pay an annual license fee of $150.00. See chapter 4.72 for licensing requirements.
(Ord. No. 4163, § 2, 6-16-2026)

Editor's note—Prior to the reenactment of section 4.05.313 by Ord. No. 4163, § 2, adopted June 16, 2026, Ord. No. 3855, § 2, adopted March 1, 2022, repealed the former section 4.05.313 in its entirety, which pertained to non-medically supervised patient transfer service and derived from Ord. No. 3291, § 1, adopted October 6, 2015.

4.05.315 Nurse.

For each independently contracted nurse, required to be licensed under NRS 632, as may be amended or renumbered, the license fee shall be $50.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.320 Reserved.

4.05.325 Office only.

Any person, firm, association, partnership, or corporation that maintains an office in the city which does not conduct a business as described elsewhere in title 4, shall pay a license fee of $50.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.330 Pawnbroker.

For each pawnbroker the license fee shall be $400.00 semiannually. See chapter 4.64 for licensing requirements.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.333 Photography and videography sales/service.

For purposes of this title, photography and videography sales/service means any business that takes photographs, videos, or offers videography services for eventual sale to a client or customer of the business.
(Ord. No. 4163, § 3, 6-16-2026)

Editor's note—Prior to the reenactment of section 4.05.333 by Ord. No. 4163, § 3, adopted June 16, 2026, Ord. No. 3352, § 1, adopted July 5, 2016, repealed the former section 4.05.333 in its entirety, which pertained to private ambulance service, and derived from Ord. No. 3291, § 1, adopted October 6, 2015.

4.05.335 Private investigators and related occupations.

For each person or entity holding a state license under NRS Chapter 648, as may be amended or renumbered, the license fee shall be $100.00 semiannually. For purposes of this section private investigators and related occupations includes but is not limited to the following: private investigators, private patrolmen, polygraph examiners, process servers, repossessors, dog handlers, security consultants, security guards, and mystery shoppers.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.340 Property maintenance.

For each property maintenance business the license fee shall be $75.00 semiannually. For the purposes of this section property maintenance includes but is not limited to the following types of businesses: construction cleanup, handyman, janitorial or maid services, landscape gardening, pest control, pool or spa cleaning, power washing, tree trimming, or window cleaning.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.345 Psychic arts practitioner.

A. For every person who carries on, practices, or professes to practice the business of palmistry, phrenology, life reading, fortunetelling, cartomancy, clairvoyance, clairaudience, crystal gazing, mediumship, prophecy, augury, divination or necromancy, and demands or receives a fee for the exercise or exhibition of his respective arts, directly or indirectly, or incidental to the conduct of any other business, either as a gift, donation, or otherwise, or who gives an exhibition thereof at any place where an admission fee is charged the license fee shall be $100.00 semiannually.

B. Application for a psychic arts practitioner license shall be made to the division accompanied by a nonrefundable investigation fee deposit, as set forth in chapter 4.03, to conduct a police department criminal background investigation of the applicant. (See subsection 4.04.060(B)). No person shall be issued a psychic arts practitioner license unless such person meets all the qualifications provided for below:

1. A psychic arts practitioner license shall be limited to areas permitting professional offices or any commercial or industrial use, and provided that the use is operated in compliance with title 19;

2. A background investigation shall be conducted; and the results shall be furnished to the director who will make a determination on the finding of suitably of the applicant; and

3. The division shall forward a recommendation to the council to approve or deny the license based on the finding of suitability and the application submitted; and

4. The applicant shall be at least 18 years of age.

C. No employee or other person shall assist the licensee in any audience or reading, except psychic healings, nor shall any mechanical device of any description whatsoever be used by the licensee in the conduct of any interview, audience or reading.

D. A psychic arts practitioner license is a privileged license and may be suspended, limited or revoked, or other disciplinary action taken with respect thereto for the failure of the licensee to comply with the requirements of this section.

E. Each licensee shall be responsible for the acts of their employees and agents committed during the course and scope of employment. Each licensee shall accordingly use adequate care in the selection of their employees and agents. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense and every licensee accepts their license subject to said condition.

F. This section shall not be construed to apply to doctors, dentists, or other medical practitioners licensed by the appropriate board under Nevada Revised Statutes or to a person employed by such doctors, dentists, or other medical practitioners acting under their direction and control, who use any psychic arts as an aid in the treatment or as a supplementary form of treatment in the course of their profession.

G. This section shall not be construed to apply to astrologers licensed under section 4.05.140.

(Ord. No. 3583, § 6, 6-4-2019; Ord. No. 3291, § 1, 10-6-2015)

4.05.350 Publisher.

A. For each publisher the license fee shall be $100.00 semiannually. For the purposes of this section, publisher means any person who commercially issues or produces literary works or other original compositions, magazines, periodicals, or newspapers or the distribution of the same.

B. Nothing is this section shall prohibit the requirement for a gross revenue business license pursuant to section 4.05.010 for the sale of any products or services, including advertising.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.355 Real estate business.

Each real estate business shall pay a semiannual license fee as follows:

A. $75.00 for the first individual required to be licensed by the State of Nevada Real Estate Division.

B. $50.00 for each additional individual required to be licensed by the State of Nevada Real Estate Division.

C. Each real estate business located outside of the city that does business within the city shall pay a license fee of $50.00.

D. For purposes of this section those required to be licensed by the State of Nevada Real Estate Division shall include, but not be limited to, real estate brokers, real estate broker-salesmen, real estate salesmen, real estate appraisers, property managers and inspectors of structures.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.357 Reflexology.

A. For each reflexology establishment the license fee shall be $100.00 semiannually.

B. For each reflexologist the license fee shall be $100.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.360 School.

For each private school, college or trade school the license fee shall be $65.00 semiannually. An applicant for a license to conduct a school must have a state license therefor or present proof that a state license is not required.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.363 Secondhand dealer.

For each secondhand dealer the license fee shall be $125.00 semiannually. See chapter 4.68 for licensing requirements.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.364 Sexually oriented business.

A. For each sexually oriented business, except for escorts and outcall entertainers, the license fee shall be one percent of the gross revenue as set forth in section 4.04.010.

B. For escorts and outcall entertainers, the license fee shall be $100.00 semiannually.

See chapter 4.110 for licensing requirements.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.365 Social work, behavioral therapy business.

Each social work or behavioral therapy business shall pay a license fee in accordance with section 4.05.070. For purposes of this section a social work and behavioral therapy business includes but is not limited to the following: marriage or family counseling, substance or alcohol abuse counseling, the practice of social work, the practice of interjurisdictional telepsychology, and the practice of psychology.
(Ord. No. 3443, § 1, 9-19-2017; Ord. No. 3291, § 1, 10-6-2015)

4.05.367 Special event medical service.

For each special event medical service provider the license fee shall be $100.00 semiannually. See chapter 4.80 for licensing requirements.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.370 Surveying firm.

Each surveying firm shall pay a semiannual license fee as follows:

A. $75.00 for the first professional land surveyor.

B. $50.00 for each additional professional land surveyor.

C. Each surveying firm located outside of the city that does business within the city shall pay a license fee of $50.00.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.373 Teenage dancehall—Nightclub.

Each teenage dancehall and teenage nightclub shall be subject to the fees set forth in section 4.05.010.

See chapter 4.60 for licensing requirements.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.375 Temporary sales or service permit.

Each applicant for a temporary sales or service permit shall pay a permit fee of $50.00. The permit shall be for a period not to exceed 14 calendar days and must be for one location. Further, except as otherwise provided herein, an applicant is limited to one temporary sales or service permit per calendar quarter.

A. Each applicant shall furnish the following to the division no later than ten calendar days prior to the event:

1. Written permission of the property owner or, in the case of a retail location, the written authorization of the store management;

2. Proof of a State of Nevada sales tax permit, if applicable;

3. Approval of the community development and services department; and

4. Any other license or permit as may be required by any department of the city, the state, or the federal government.

B. The requirement to submit applications for temporary sales or service permits ten calendar days prior to the scheduled event may be waived at the director's discretion.

C. Notwithstanding the foregoing, the director may issue temporary sales or service permits to an applicant in excess of the one permit per calendar quarter limit, in the following instances:

1. For pumpkin sales lots, haunted houses, and Christmas tree sales lots.

a. The temporary sales or service permit for these activities may exceed 14 days.

b. In no case shall the sales or service permit exceed a period of 45 calendar days.

2. For arts, crafts and business trade shows.

a. For purposes of this chapter an arts, crafts and business trade show is an event with a minimum of 20 vendors wherein at least 50 percent of the

vendors provide only handmade items, including, but not limited to, decorative items, clothing and food that has been created for sale by the craftsman.

b. In no case may an applicant exempt from the restriction of one temporary sales or service permit per calendar quarter pursuant to subsection 4.05.375(C)(2) be granted more than 16 temporary sales or service permits in a single calendar year, and no more than two temporary sales or service permits in any single month.

3. If a conditional use permit has been approved by the planning commission or council in excess of the stated limit of one per calendar quarter, but in no case shall an applicant be granted more than eight temporary sales or service permits in a single calendar year.

(Ord. No. 3483, § 1, 5-15-2018; Ord. No. 3291, § 1, 10-6-2015)

Editor's note—Ord. No. 3483, § 1, adopted May 15, 2018, changed the title of section 4.05.375 from "Temporary sales permit" to "Temporary sales or service permit." The historical notation has been preserved for reference purposes.

4.05.380 Title insurance company.

For each person conducting the business of a title insurance company required to be licensed pursuant to NRS Chapter 692A, as may be amended or renumbered, the license fee shall be $300.00 semiannually.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.385 Travel or ticket agency.

For each person in the business of purchasing and reserving hotel accommodations, transportation, show tickets, entertainment or other vacation incidentals for tourists or other persons the license fee shall be $50.00 semiannually. This section shall not apply to persons only furnishing reservations and tickets for services in establishments owned by them.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.390 Reserved.

4.05.395 Reserved.

4.05.400 Veterinary office.

Each veterinary office shall pay a license fee in accordance with section 4.05.070.

(Ord. No. 3291, § 1, 10-6-2015)

4.05.405 Warehouse, storage, or self-storage business.

For each storage, self-storage or warehouse business the license fee shall be $100.00 semiannually.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.410 Businesses not enumerated in schedule.

Any business not enumerated in the fixed fee schedule of this chapter or for which a license fee is not set forth elsewhere in this title shall pay a semiannual license fee based on the gross revenues of the business pursuant to the provisions of section 4.05.010.
(Ord. No. 3291, § 1, 10-6-2015)

4.05.415 Reserved.

4.05.420 Business license summary of fees.

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
4.05.105	Accounting firm	$100.00 for the 1st professional and $75.00 for each additional professional. $100.00 for each professional business located outside the city. (See section 4.05.070 for full details.)
4.05.110	Advertising business	$75.00
4.05.115	Advertising space—Leasing or selling	$290.00
4.05.120	Airline	$250.00 for the principal location and $100.00 for each ticket office or counter.
4.05.123	Alarm systems	$65.00
4.05.124	Ambulance service	Nonrefundable ambulance service franchise application fee of $1,000.00 as set forth in HMC subsection 4.80.130(A); and a semiannual fee of $50.00.

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
4.05.125	Antique dealer	$150.00
4.05.130	Apartment house or apartment complex	Less than 5 apartments—No license required. 5 to 10 apartments—$35.00 Excess of 10—$35.00 plus $2.50 for each additional apartment in excess of 10.
4.05.135	Architectural firm	$100.00 for the 1st professional and $75.00 for each additional professional. $100.00 for each professional business located outside the city. (See section 4.05.070 for full details.)
4.05.140	Astrologer	$100.00
4.05.145	Auctioneer	$250.00 Auction permit—$50.00 (See section 4.08.080.)
4.05.150	Automobile leasing	$75.00
4.05.153	Automobile pawnbroker	$100.00
4.05.155	Automobile rental agency	$125.00
4.05.160	Automobile towing	$75.00
4.05.165	Bail bond agency, bail enforcement agency	$100.00
4.05.170	Bank, savings and loan, thrift, trust company	$500.00
4.05.175	Barbershop and cosmetology establishment	$50.00 for the 1st barber or cosmetologist; and $25.00 for each additional barber or cosmetologist.
4.05.180	Bookkeeping	$75.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
4.05.185	Bowling alley	$25.00 for the 1st alley and $12.50 for each additional alley.
4.05.190	Broadcasting facility	$75.00
4.05.195	Broker	$50.00
4.05.197	Cannabis delivery business	$50.00 per vehicle used in the delivery or transportation of cannabis or cannabis related products to individuals within the city
4.05.200	Car—Automobile dealership—New	$4.00 per new vehicle $2.00 per used vehicle $1.00 per new vehicle—wholesale $1.00 per used vehicle—wholesale Minimum fee is $400.00
4.05.203	Check cashing and financial services	$100.00
4.05.205	Collection agency	$125.00
4.05.210	Commodities, securities, or mutual funds	$330.00
4.05.215	Contract labor service	$150.00
4.05.220	Contractor	$100.00
4.05.225	Dental office	$100.00 for the 1st professional and $75.00 for each additional professional. $100.00 for each professional business located outside the city. (See section 4.05.070 for full details.)
4.05.230	Designer or decorator	$75.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
4.05.235	Distribution center	$225.00 For each distribution center licensed prior to December 31, 2017. For each distribution center licensed after December 31, 2017 the license fee shall be paid semiannually based on the gross revenue of the business pursuant to the schedule in subsection 4.05.010(C).
4.05.237	Door-to-door solicitor and peddler	$25.00
4.05.240	Employment agency	$150.00
4.05.245	Engineering firm	$100.00 for the 1st professional and $75.00 for each additional professional. $100.00 for each professional business located outside the city. (See section 4.05.070 for full details.)
4.05.250	Finance company	$400.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
4.05.253	Gaming	Bingo—$250.00 Keno—$200.00 Sports pool—$300.00 Race book—$300.00 All other live games—$100.00 ea. Slots/gaming devices—$35.00 per machines Slot Route Operator—$200.00 Gaming fees are due quarterly. Licensees are also subject to gaming tax as set forth in chapter 4.48.
4.05.255	Gasoline, diesel, or motor vehicle fuel sales	$0.55 per 1,000 gallons—Minimum fee $200.00
4.05.257	Group care facility	$100.00
4.05.010	Gross Revenue	See fee chart in section 4.05.010.
4.05.260	Hotel—Motel	0 to 4 rooms—No license required. 5 to 10 rooms—$35.00 Excess of 10 rooms—$35.00 plus $2.50 for each additional room in excess of 10. Licensees are also subject to transient lodging tax as set forth in chapter 4.48.
4.05.265	Hypnotist	$100.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
4.05.270	Insurance agency or company, insurance adjusting firm	$75.00 for the 1st agent, broker, or insurance adjuster and $50.00 for each additional agent, broker or insurance adjuster.
4.05.273	Inter-jurisdictional business	$25.00 for each vehicle used within the city in pursuit of the business.
4.05.275	Law firm or law office	$100.00 for the 1st professional and $75.00 for each additional professional. $100.00 for each professional business located outside the city. (See section 4.05.070 for full details.)
4.05.278	Liquor license origination fees and license fees *Origination fees:* (In addition to the semiannual license fees listed in this section, origination fees are imposed for the following and are payable prior to issuance of license.)	
	Beer, wine, and spirit-based products off-sale	$1,000.00
	Beer, wine, and spirit-based products on-sale	$1,000.00
	Beer, wine, spirit-based products, and liqueur tasting	$500.00
	Brew pub	$10,000.00
	Brew pub—Combo	$60,000.00
	Artisan's beer and wine room establishment	$2,000.00
	Catering liquor	$1,250.00
	Craft distillery	$15,000.00
	Craft distillery—Combo	$60,000.00
	Estate distillery	$15,000.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
	Full liquor off-sale	$10,000.00
	Full liquor on-sale	$20,000.00
	Gift basket liquor	$500.00
	Golf course liquor	$20,000.00
	Instructional wine-making facility	$1,000.00
	Liquor manufacturer	$5,000.00
	Nonprofit liquor	$500.00
	Nonrestricted/limited gaming liquor	$90,000.00
	Portable bar	$500.00
	Restaurant with bar	$30,000.00
	Sport venue liquor establishment	$1,000.00
	Tavern	$60,000.00
	Winery	$10,000.00
	Wholesale/import liquor	$5,000.00
	License fees:	
	Beer, wine, and spirit-based products off-sale	$350.00
	Beer, wine, and spirit-based products on-sale	$350.00
	Beer, wine, spirit-based products, and liqueur tasting	$200.00
	Brew pub	$1,000.00
	Brew pub—Combo	$1,200.00
	Artisan's beer and wine room establishment	$700.00
	Catering liquor	$400.00
	Craft distillery	$1,000.00
	Craft distillery—Combo	$1,200.00
	Estate distillery	$1,000.00
	Full liquor off-sale	$750.00
	Full liquor on-sale	$750.00
	Gift basket liquor	$200.00
	Golf course liquor	$750.00
	Grocery store internet liquor sales	$500.00
	Instructional wine-making facility	$350.00
	Liquor delivery support service	$500.00
	Liquor manufacturer	$1,000.00
	Nonprofit liquor	$200.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
	Nonrestricted/limited gaming liquor	$1,500.00
	Portable bar	$200.00
	Restaurant with bar	$1,000.00
	Sport venue liquor establishment	$100.00
	Tavern	$1,200.00
	Urban lounge	$1,200.00
	Winery	$1,000.00
	Wholesale/import liquor	$1,000.00
4.05.280	Locksmith and safe mechanic	$100.00
4.05.285	Management, marketing, or consulting service	$75.00
4.05.305	Manufactured housing setup and repair	$65.00
4.05.287	Massage establishment and independent massage therapist	Massage establishment—$100.00 plus $25.00 for each massage therapist employed by the establishment. This does not include independent massage therapists. Independent massage therapist—$75.00
4.05.288	Marijuana—Medical marijuana fees	
	Application fee	$10,000.00
	Origination fees: (In addition to the semiannual license fees listed in this section, origination fees are imposed for the following and are payable prior to issuance of license.)	
	Class I medical marijuana establishment	$60,000.00
	Class II medical marijuana establishment	$80,000.00
	Class III medical marijuana establishment	$100,000.00
	Class IV medical marijuana establishment	$60,000.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
	Class V medical marijuana establishment	$60,000.00
	Class VI medical marijuana establishment	$60,000.00
	Independent testing laboratory	$15,000.00
	License fees:	
	Class I medical marijuana establishment	3% of Gross Revenue[1]/Min. $25.00
	Class II medical marijuana establishment	3% of Gross Revenue[1]/Min. $25.00
	Class III medical marijuana establishment	3% of Gross Revenue[1]/Min. $25.00
	Class IV medical marijuana establishment	3% of Gross Revenue[1]/Min. $25.00
	Class V medical marijuana establishment	3% of Gross Revenue[1]/Min. $25.00
	Class VI medical marijuana establishment	3% of Gross Revenue[1]/Min. $25.00
	Independent testing laboratory	Gross Revenue[2]/Min. $25.00 See 4.05.288(C) for details.
	Indemnification fee:	$25,000.00
4.05.289	Marijuana—Retail marijuana fees	
	Application fee:	$1,000.00
	Origination fees: (In addition to the semiannual license fees listed in this section, origination fees are imposed for the following and are payable prior to issuance of license.)	
	Retail marijuana cultivation facility	$60,000.00
	Retail marijuana production manufacturing facility	$60,000.00
	Retail marijuana testing facility	$15,000.00
	Retail marijuana store	$60,000.00
	License fees:	
	Retail marijuana cultivation facility	3% of Gross Revenue[1]/Min. $25.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
	Retail marijuana production manufacturing facility	3% of Gross Revenue[1]/Min. $25.00
	Retail marijuana testing facility	Gross Revenue[2]/Min. $25.00 See 4.05.289(C) for details.
	Retail marijuana store	3% of Gross Revenue[1]/Min. $25.00
	Indemnification fee:	$25,000.00
4.05.289.01	Marijuana distributor	$50.00 per vehicle used in the delivery or transportation of marijuana or marijuana related products within the city
4.05.289.02	Marijuana management company	$75.00
	Indemnification fee	$25,000.00
4.05.290	Medical office	$100.00 for the 1st professional and $75.00 for ea. additional professional. $100.00 for each professional business located outside the city. (See section 4.05.070 for full details.)
4.05.297	Mobile food vendor	Annual license fee of $150.00
4.05.300	Mobile home park and/or recreational vehicle park	1 to 20 spaces—$50.00 Excess of 20 spaces—$50.00 plus $1.50 for each additional space in excess of 20. Each space rented for transient lodging shall also be subject to transient lodging tax as set forth in chapter 4.48.
4.05.310	Mortgage lending	$330.00
4.05.295	Motion picture or television production	$250.00
4.05.313	Novelty food vendor	Annual license fee of $150.00

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
4.05.315	Nurse	$50.00
4.05.325	Office only	$50.00
4.05.330	Pawnbroker	$400.00
4.05.333	Photography and videography sales/service	Annual license fee of $150.00
4.05.335	Private investigators and related occupations	$100.00
4.05.340	Property maintenance	$75.00
4.05.345	Psychic arts practitioner	$100.00
4.05.020	Public utility licenses	
	Commercial mobile radio service	All revenue received from the first $15.00 charged monthly for each line of access.
	Electric service	5% of Gross Revenue
	Natural gas service	5% of Gross Revenue
	Sewer company	4% of Total Operating Revenue
	Telecommunications service	5% of Gross Revenue
	Video service	5% of Gross Revenue
	Water company	4% of Total Operating Revenue
4.05.350	Publisher	$100.00
4.05.355	Real estate business	$75.00 for the 1st individual required to be license by the State of Nevada Real Estate Division and $50.00 for each additional state license. (See section 4.05.355.)
4.05.357	Reflexology	Establishment—$100.00 Reflexologist—$100.00 each.
4.05.360	School	$65.00
4.05.363	Secondhand dealer	$125.00
4.05.364	Sexually oriented business	1% of Gross Revenue, except for escorts and outcall entertainers. Escorts and outcall entertainers—$100.00.

HMC	*License Classification/Description (See specific code section for details related to license classification.)*	*Semiannual Fee (Unless otherwise denoted)*
4.05.365	Social work, behavioral therapy business	$100.00 for the 1st professional and $75.00 for each additional professional. $100.00 for each professional business located outside the city. (See section 4.05.070 for full details.)
4.05.367	Special event medical service	$100.00
4.05.370	Surveying firm	$75.00 for the 1st professional land surveyor and $50.00 for ea. additional professional land surveyor.
4.05.373	Teenage dancehall—Nightclub	Fee based on gross revenue—See fee chart in section 4.05.010.
4.05.375	Temporary sales or service permit	$50.00
4.05.380	Title insurance company	$300.00
4.05.385	Travel or ticket agency	$50.00
4.05.400	Veterinary office	$100.00 for the 1st professional and $75.00 for each additional professional. $100.00 for each professional business located outside the city. (See section 4.05.070 for full details.)
4.05.405	Warehouse, storage, or self-storage business.	$100.00
4.05.410	Businesses not enumerated in schedule	Fee based on gross revenue—See fee chart in section 4.05.010.

[1]A portion of gross revenue collections will be used for antidrug education programs to be administered by the police department.

[2] Each independent testing laboratory shall pay semiannual license fees in accordance with section 4.05.010 beginning with the second semiannual license period from the date of issuance.

(Ord. No. 4163, § 4, 6-16-2026; Ord. No. 4022, § 2, 5-21-2024; Ord. No. 3855, § 3, 3-1-2022; Ord. No. 3731, § 2, 10-20-2020; Ord. No. 3583, § 7, 6-4-2019; Ord. No. 3465, § 2, 1-16-2018; Ord. No. 3434, § 5, 9-5-2017; Ord. No. 3352, § 1, 7-5-2016; Ord. No. 3291, § 1, 10-6-2015)

Chapter 4.06 POLICY AND PROCEDURE SHOW CAUSE, LICENSE SUSPENSION, LIMITATION, REVOCATION*

Sections:

4.06.010 Definitions.
4.06.020 Investigation and reporting of violations.
4.06.030 Division to cooperate with other regulatory agencies.
4.06.040 Complaint against license—Determination by city attorney.
4.06.041 Administrative action.
4.06.042 Hearing notice.
4.06.050 Complaint.
4.06.060 Form of answer—Filing deadline.
4.06.070 Representation.
4.06.080 Failure of respondent to answer charges deemed admission of guilt.
4.06.090 Hearing officers.
4.06.100 Hearing officers—Appointment, qualifications, conflict of interest, disqualification.
4.06.110 Hearing officers—Appointment to list and compensation.
4.06.120 Hearing officers—Assignment to matter.
4.06.130 Hearing officers—Powers and duties.
4.06.140 Hearing—Time, date and place.
4.06.150 Subpoena and compensation of witnesses.
4.06.160 Discovery.
4.06.170 Witness—Affidavit or declaration—Service.
4.06.180 Restriction on communications.
4.06.190 Hearing procedure.
4.06.200 Hearing—Admission of evidence.
4.06.210 Hearing—Order of hearing.
4.06.211 Record of the hearing.
4.06.220 Burden of proof.
4.06.230 Failure of respondent to appear at hearing.
4.06.240 Amendment—Filing of amended pleadings.
4.06.250 Hearing security.
4.06.260 Written decision of hearing officer.
4.06.270 Attorney's fees and costs incurred by city.
4.06.280 Aggrieved party—Petition for reconsideration.

4.06.010 Definitions.

As used in this chapter, words and terms shall have the meaning ascribed to them pursuant to title 4, unless the context clearly indicates a different meaning.

***Editor's note—**Ord. No. 3302, §§ 1, 2, adopted October 20, 2015, repealed and reenacted chapter 4.06 in its entirety to read as herein set out. Formerly, chapter 4.06, §§ 4.06.010—4.06.300, pertained to similar subject matter, and derived from Ord. No. 2950, § 2, adopted December 20, 2011, and Ord. No. 3084, § 1, adopted November 5, 2013;

References to days in this chapter shall refer to calendar days and time shall be computed pursuant to Rule 6 of the Nevada Rules of Civil Procedure.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.020 Investigation and reporting of violations.

The director is responsible for the enforcement of business license regulations and ordinances and the investigations thereof. Those violations that the director deems necessary for additional disciplinary action, in addition to the action taken by the division, shall be referred to the city attorney for appropriate action.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.030 Division to cooperate with other regulatory agencies.

A. The division shall cooperate with other public agencies concerned with the regulation and control of business licenses, and to that end may exchange with such agencies any and all types of confidential information, including, without limitation, information regarding licensees, their independent contractors, operations, agents and employees. When dealing with any gaming matter, the division may immediately inform the state gaming agencies of any investigation, hearing or other actions that the division, its officers or the director intends to take or is considering taking against a licensee.

B. The division may enter into one or more agreements with the state gaming agencies such that duplication of effort shall be kept to a minimum; provided, however, that if the apparent violation is of such a character that action should be taken and if the state gaming agencies fail, refuse or decline to assume control of the investigation and hearing, then the division shall promptly investigate.

C. The division may enter into one or more agreements with liquor and gaming boards in the incorporated and unincorporated cities and towns of Clark County so that overall regulation and control may be more effectively maintained.

D. The division may enter into one or more agreements with state professional and/or occupational licensing boards so that overall regulation and control may be more effectively maintained.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.040 Complaint against license—Determination by city attorney.

In addition to any action taken by the division for a violation of this title, the city attorney, or his designee, may investigate the violation(s) to determine whether there is cause for additional disciplinary action, such as suspension or revocation of the license, or suspension or revocation of a conditional use permit pursuant to title 19.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.041 Administrative action.

If the city attorney is satisfied that based upon the requirements of title 4 grounds exist for the revocation or suspension of a license or permit or for discipline of a licensee or permittee, the city attorney shall draft a complaint and notice of hearing, both of which shall be filed with the city clerk and served on the licensee, permittee, or registered agent either personally or by registered or certified mail, return receipt requested, at the address on file with the division. The complaint and notice of hearing shall be served at least 20 days prior to the hearing.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.042 Hearing notice.

The notice of hearing shall be in substantially the following form, but may include other information:

> YOU ARE HEREBY NOTIFIED that a hearing will be held before a duly appointed hearing officer at (insert place of hearing) on the (insert day) of (insert month), (insert year) at (insert time), upon the charges made in the complaint served upon you herewith. You may be present at the hearing and may be represented by counsel. You may present any relevant evidence, call witnesses and cross-examine all witnesses testifying against you.

(Ord. No. 3302, § 2, 10-20-2015)

4.06.050 Complaint.

The complaint shall be a written statement of charges that shall set forth the facts and/or omissions with which the licensee or permittee is charged. The complaint shall specify the code sections, regulations and/or provisions of law that the licensee or permittee is alleged to have violated or the hazard or threat to the public health, safety or welfare allegedly attributable to the licensee or permittee and the facts supporting such allegations.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.060 Form of answer—Filing deadline.

A. The licensee or permittee must, at least ten days prior to the scheduled hearing, file with the city clerk its answer responding to the charges made in the complaint and set forth any defenses it intends to raise, and serve a copy of the answer upon the city attorney and the appointed hearing officer.

B. The answer to the complaint shall be signed and verified by the licensee or permittee, or his agent. The complaint and answer shall form the pleadings for the hearing. In connection with the complaint and hearing process, the licensee or permittee is the "respondent".

C. The answer shall include the following:

To the hearing officer for the city council:

1. The respondent admits the following facts set forth in the complaint.

2. The respondent denies the following facts set forth in the complaint.

3. The respondent believes the following defenses and explanations should be considered by the hearing officer for the city council.

4. The respondent raises the following legal defenses.

5. Upon the filing of an answer, the respondent shall be entitled to a hearing on the merits upon the issues denied by the answer.

(Ord. No. 3302, § 2, 10-20-2015)

4.06.070 Representation.

In any case pursuant to this title, the respondent may appear on his or her own behalf or the respondent may be represented by an attorney licensed to practice law in this state. A respondent is responsible for all costs, including, without limitation, attorneys' fees, related to the presentation of his or her defense.

(Ord. No. 3302, § 2, 10-20-2015)

4.06.080 Failure of respondent to answer charges deemed admission of guilt.

A. Failure of the respondent to answer within the time specified shall be deemed an admission of the allegations in the complaint. Thereupon, the hearing officer shall impose such disciplinary action as requested in the complaint, and shall give notice of such

disciplinary action by mailing a true copy thereof by United States certified mail in a sealed envelope with postage thereon fully prepaid, addressed to the respondent at respondent's latest address of record.

B. Failure to file an answer within the time designated shall further constitute a waiver of respondent's right to a hearing.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.090 Hearing officers.

The city council may appoint hearing officers to act on its behalf in conducting hearings under this title.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.100 Hearing officers—Appointment, qualifications, conflict of interest, disqualification.

A. A hearing officer shall be appointed with regard to his or her qualifications to conduct administrative or quasi-judicial hearings and must:

1. Be a resident of the State of Nevada;

2. Be licensed to practice law in the State of Nevada and have at least ten years of experience practicing law;

3. Have significant experience in the practice of administrative law or as a hearing officer or administrative law judge in contested cases;

4. Not be affiliated or associated with the city in any other manner, such as for example, as agent, employee, fiduciary officer, or any other type of representative of the city.

B. No person may act as a hearing officer in a matter in which he or she has a direct or substantial financial interest or other conflict of interest. For purposes of this chapter, "conflict of interest" means a pecuniary or personal interest sufficient to affect his or her independent judgment and the objective exercise of his or her public duty.

C. Either the city or the respondent may move to disqualify a hearing officer prior to any hearing by filing a written motion and supporting affidavits of conflict of interest. Such a motion shall be served upon the city clerk, the non-moving party, and the city manager's office. The city manager or his designee shall rule upon the motion.
(Ord. No. 3417, § 1, 7-11-2017; Ord. No. 3302, § 2, 10-20-2015)

4.06.110 Hearing officers—Appointment to list and compensation.

The city council may appoint individuals to a list of hearing officers based on their qualifications. Hearing officers shall be entitled to compensation from the city for the time reasonably expended in the process of preparing for, hearing and deciding the case at a rate to be set by the city manager with a maximum chargeable time of 20 hours per hearing. In the event that a hearing officer serves more than 20 hours on any given hearing, he may submit to the city manager a written statement requesting additional compensation and setting forth reasons therefor. The city manager may authorize such additional compensation at the set rate if the city manager is satisfied that the additional hours of service were justified and necessary. As a condition to receiving payment, the hearing officer must submit an itemized invoice for services rendered to the city manager within 30 days after the hearing officer's decision is served upon the parties.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.120 Hearing officers—Assignment to matter.

Upon the filing of a complaint by the city attorney:

A. The city manager or designee on behalf of the city council shall select a hearing officer from the appointed list, or engage an attorney to act as a hearing officer if there is not a current list or the number of attorneys on the list is insufficient for any reason, and provide the selected hearing officer with a copy of the complaint.

B. The city manager or designee shall obtain written verification from the selected hearing officer that there is no conflict of interest or other reason precluding the hearing officer from serving on the particular matter assigned.

C. If a hearing officer is able to serve on the case, the city manager or designee shall obtain a hearing date and other information to be included in the notice of hearing pursuant to section 4.06.140. If the selected hearing officer cannot hear the case within the time parameters set forth in section 4.06.140, the city manager shall select another hearing officer and follow the procedure set forth in subsections (1) and (2) of this section.

D. If a hearing officer does not accept the appointment within five days of his selection, the hearing officer shall be discharged and another hearing officer selected pursuant to the provisions of this section. A hearing officer discharged pursuant to this section will not be entitled to be compensated for any costs or fees associated with the case from which the hearing officer was discharged.

(Ord. No. 3417, § 1, 7-11-2017; Ord. No. 3302, § 2, 10-20-2015)

4.06.130 Hearing officers—Powers and duties.

The hearing officer shall preside over hearings determining allegations of violations of title 4 and possess all the powers of the city council in determining such matters including but not limited to:

A. Coordinating with the city manager's office to set the time and date of the hearing.

B. Hearing any motions, stipulations or orders upon which the parties agree and addressing any administrative details.

C. Continuing a hearing based on good cause shown by one of the parties to the hearing or if the hearing officer independently determines that good cause exists.

D. Issuing a subpoena for witnesses, documents, and other evidence as requested by the parties and in accordance with chapter 4.06.

E. Imposing disciplinary action, including but not limited to suspension or revocation of the business license or permit.

(Ord. No. 3417, § 1, 7-11-2017; Ord. No. 3302, § 2, 10-20-2015)

4.06.140 Hearing—Time, date and place.

A. All hearings shall be held at city hall or other city-owned facility within the city of Henderson.

B. Upon the appointment of a hearing officer to hear the case, the hearing officer shall coordinate with the city manager's office to set the time and date for the hearing which will be included in the notice of hearing to be served upon the respondent with the complaint. The hearing date set by the hearing officer shall not be set later than 45 days from the date of the hearing officer's appointment.

(Ord. No. 3417, § 1, 7-11-2017; Ord. No. 3302, § 2, 10-20-2015)

4.06.150 Subpoena and compensation of witnesses.

The hearing officer shall issue subpoenas upon receipt of a written request from a party that is submitted a minimum of ten business days before the hearing. All witnesses appearing pursuant to subpoena, other than parties, officers or employees of the city, shall receive fees and mileage in the same amounts and under the same circumstances as provided by law for witnesses in civil actions in the district court. Such fees shall be paid by the party at whose request the witness is subpoenaed.

(Ord. No. 3302, § 2, 10-20-2015)

4.06.160 Discovery.

No discovery may be conducted in the case. A party may not serve any interrogatories or other written discovery or take any depositions relating to the case.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.170 Witness—Affidavit or declaration—Service.

Affidavits or declarations made under penalty of perjury may be received in evidence at any hearing. The party wishing to use such affidavit or declaration shall, not less than ten days prior to the day set for the hearing, serve upon the opposing party or counsel, either personally or by mail, a copy of the affidavit or declaration which that party proposes to introduce in evidence.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.180 Restriction on communications.

Neither the city nor the respondent (nor their respective counsel) may communicate with the hearing officer regarding the merits of the case, except in the presence of the other party or their counsel.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.190 Hearing procedure.

The following procedures shall apply at all hearings conducted pursuant to this title:

A. The proceedings at the hearing shall be reported either stenographically and/or by audio recorder.

B. Oral evidence shall be taken upon oath or affirmation administered by the hearing officer.

C. Each party to a hearing shall have the right:

1. To call and examine witnesses;

2. To introduce exhibits relevant to the issues of the case;

3. To cross-examine opposing witnesses on matters relative to the issues of the case;

4. To impeach any witness regardless of which party called the witness to testify; and

5. To offer rebuttal evidence.

D. If the respondent does not testify on respondent's own behalf, respondent may be called and examined as if under cross-examination.

(Ord. No. 3302, § 2, 10-20-2015)

4.06.200 Hearing—Admission of evidence.

A. The hearing need not be conducted according to technical rules relating to evidence and witnesses. Any relevant evidence may be admitted, subject to the provisions of this section.

B. Irrelevant, immaterial or unduly repetitious evidence must be excluded. Effect shall be given to the rules of privilege recognized by law. Objections to evidentiary offers may be made and must be noted in the record. Subject to the requirements of this subsection, when a hearing will be expedited and the interests of the parties will not be prejudiced substantially, any part of the evidence may be received in written form.

C. Every witness shall declare, by oath or affirmation, that he or she will testify truthfully.

D. Notice may be taken of judicially cognizable facts and of generally recognized technical or scientific facts within the specialized knowledge of the city's departments and divisions. Parties must be notified of the material noticed and afforded an opportunity to contest the material so noticed. The experience, technical competence and specialized knowledge of the city's departments and divisions may be utilized in the evaluation of the evidence.

E. The hearing officer shall have the authority to regulate the course of the hearing, hold conferences for the settlement or simplification of issues, dispose of procedural requests, and rule upon offers of proof and questions of relevance.

(Ord. No. 3302, § 2, 10-20-2015)

4.06.210 Hearing—Order of hearing.

A. Except as otherwise provided in this section, in any hearing pursuant to this title, the hearing must proceed as follows:

1. The hearing officer shall call the hearing to order.

2. The parties and their representatives shall be introduced for the record.

3. The hearing officer shall consider any preliminary motions, offers of settlement, stipulations or orders and shall address any administrative details regarding the hearing.

4. The hearing officer:

a. Shall ask the parties if they want any witness excluded from the hearing.

b. Shall instruct any witness who is excluded from the hearing not to discuss the case during the course of the hearing.

c. Shall allow the respondent to remain in the hearing.

d. May, on its own motion, exclude any witness from the hearing.

5. The city may present a brief opening statement of the charges, explaining the theory of the case and what the evidence will show;

6. The respondent or respondent's attorney may present a brief opening statement;

7. The city will present evidence, subject to cross-examination by the respondent's counsel and the hearing officer;

8. The respondent or respondent's counsel may present evidence, subject to cross-examination by the city and the hearing officer;

9. The hearing officer may question a witness at any time during the hearing. If a witness is questioned by the hearing officer, the party who called the witness may request permission to ask further questions, limited to the area addressed by the hearing officer. When the party who called the witness has asked those questions, the other party may request permission to ask further questions, limited to the area addressed by the hearing officer.

10. After the city and respondent have presented their cases, the hearing officer may allow the city and respondent to call rebuttal witnesses. If the city or respondent, or both, call one or more rebuttal witnesses, each rebuttal witness must be sworn in and questioned in the same manner as other witnesses.

11. Closing statements may be made at the conclusion of the evidence by both parties. These statements may include summaries of the evidence and legal arguments. The city will present its closing statement first, and then the respondent may present its closing argument. If the respondent makes a closing statement, the city may make a final closing argument.

12. Either party may recommend specific disciplinary action to the hearing officer at the appropriate time.

B. The hearing officer may deviate from the order of the hearing set forth in subsection (1) if the hearing officer:

1. Upon a showing of good cause, deems it appropriate; or

2. Deems it necessary to expedite or ensure the fairness of the hearing.

(Ord. No. 3302, § 2, 10-20-2015)

4.06.211 Record of the hearing.

The hearing shall be reported and/or recorded by any means determined appropriate by the hearing officer. If any party desires the hearing transcribed by a certified court reporter, that party must make the necessary arrangements and bear the costs thereof.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.220 Burden of proof.

The city has the burden of proof in any hearing pursuant to this title. The standard of proof in such a hearing is substantial evidence.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.230 Failure of respondent to appear at hearing.

If the respondent fails to appear at a scheduled hearing, and a continuance has not been scheduled or granted, the city may make an offer of proof that the absent respondent was given sufficient legal notice of the hearing. Upon a determination by the hearing officer that the respondent was given sufficient legal notice, the hearing officer may proceed to consider and dispose of the case without the participation of the respondent and may accept the allegations against the respondent in the charging document as true, deem the violations proven and impose discipline.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.240 Amendment—Filing of amended pleadings.

The hearing officer may, in the hearing officer's discretion, before submission of the case for decision, permit the filing of amended or supplemental pleadings and shall notify all parties thereof, and provide a reasonable opportunity for objections thereto.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.250 Hearing security.

At the request of either the hearing officer, city, or respondent, a city police officer or marshal shall be present at the hearing to provide security and help maintain order.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.260 Written decision of hearing officer.

The hearing officer shall render a written decision within ten calendar days from the last day of the hearing. The hearing officer is empowered to extend the time period for rendering a decision up to 30 days when additional information is required for the hearing officer to

render a decision or due to the complexity of the issues presented. The written decision shall contain findings of fact, conclusions of law, a determination of the alleged violations presented and the disciplinary action to be imposed. Copies of such order shall be served on the parties or their counsel either personally or by registered or certified mail, return receipt requested. The decision shall take effect upon service of the order and shall be a final decision.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.270 Attorney's fees and costs incurred by city.

A. The hearing officer may order respondent to pay reasonable attorney's fees and costs that are incurred by the city as part of its investigative, administrative and disciplinary proceedings against the respondent if the hearing officer enters a final order in which it finds that the respondent has violated any provision of this title.

B. As used in this section, "costs" means:

1. Costs of an investigation.

2. Costs for photocopies, facsimiles, long distance telephone calls and postage and delivery.

3. Fees for court reporters at the hearing.

4. Fees for expert witnesses and other witnesses at the hearing.

5. Fees for necessary interpreters at the hearing.

6. Fees for service and delivery of process and subpoenas.

7. Expenses for research, including, without limitation, reasonable and necessary expenses for computerized services for legal research.
(Ord. No. 3302, § 2, 10-20-2015)

4.06.280 Aggrieved party—Petition for reconsideration.

A. Within ten days after service of an order of the hearing officer, any party aggrieved may petition for reconsideration. Such petition shall not be granted except upon a showing that:

1. There is additional evidence that is material, unavailable at the time of the original hearing, necessary and reasonably calculated to change the decision of the hearing officer; or

2. Granting the petition is necessary to correct a manifest error of law or fact; or

3. Granting the petition is necessary to prevent manifest injustice.

Any petition based on the unavailability of evidence shall be supported by an affidavit or declaration of the moving party or the moving party's counsel showing with particularity the materiality and necessity of the additional evidence and the reason why it was not introduced at the hearing.

B. The petition shall be served upon the non-moving party and the hearing officer. The hearing officer shall provide the non-moving party an opportunity to respond to the petition either in writing or at a hearing scheduled by the hearing officer.

C. After the granting of a petition, the hearing officer may modify his or her decision and order. Any such modification must be made in writing within 30 days of the filing of the petition for rehearing and must be served on the parties, either personally or by registered or certified mail, return receipt requested.
(Ord. No. 3302, § 2, 10-20-2015)

Chapter 4.07 ALTERNATIVE TO CRIMINAL PROSECUTION*

Sections:

4.07.010 Generally.
4.07.020 Notice of violation—Required information.
4.07.030 Notice of violation—Issuance.
4.07.040 Notice of violation—Filing.
4.07.050 Notice of violation—Response—Hearings.
4.07.060 Notice of violation—Response period.
4.07.070 Collection fees.
4.07.080 Public nuisance abatement.

4.07.010 Generally.

As an alternative to criminal prosecution for a violation of any provision of title 4, the city may impose a civil penalty in accordance with the provision of this chapter.
(Ord. No. 3303, § 1, 10-20-2015)

4.07.020 Notice of violation—Required information.

A. A civil penalty under this chapter shall be imposed by the issuance of a notice of violation by the city. The notice of violation must contain, at a minimum, the following information:

1. The name and address (if known) of the person or entity responsible for the violation;

2. A brief description of the violation and a reference to the applicable ordinance or code citation(s);

3. The location, date and time of the violation;

4. The name of the person issuing the notice of violation;

5. The amount of the civil penalty; and

6. Information advising of the manner and time for responding to the notice of violation.

***Editor's note—**Prior to the reenactment of chapter 4.07 by Ord. No. 3303, § 1, adopted October 20, 2015, Ord. No. 3132, § 1, adopted April 1, 2014, repealed the former chapter 4.07, §§ 4.07.010—4.07.030 in its entirety, which pertained to business impact consideration, and derived from Ord. No. 1978, § 1, adopted in 2000.

B. No error concerning, or omission of, any of the above-described information is grounds for the dismissal of a proceeding relating to a notice of violation unless the person requesting the dismissal demonstrates substantial prejudice from the error and/or omission.

C. Where the notice of violation data is entered into and stored in a computer or similar device, any printout or other output readable by sight that accurately reflects such data is an original notice of violation for purposes of a proceeding under this chapter. Any such data entry that is moved or copied into another computer or similar device is intended to constitute an additional or replacement of the record of the data by the issuing officer or employee and is also an original notice of violation for purposes of a proceeding under this chapter.

D. Any notice of violation issued pursuant to this chapter shall constitute a declaration which is subject to the penalty of perjury.
(Ord. No. 3303, § 1, 10-20-2015)

4.07.030 Notice of violation—Issuance.

The notice of violation may be issued by any peace officer or by any authorized officer or employee of the division.
(Ord. No. 3303, § 1, 10-20-2015)

4.07.040 Notice of violation—Filing.

An original notice of violation, or a facsimile thereof, must be filed with and retained by the business operations division. A notice of violation is prima facie evidence of the facts which are alleged therein. The notice of violation must be served on the person responsible for the violation or, in the case of an entity, an officer, key employee, manager in charge, or registered agent of that entity. A notice of violation may be served on the person responsible for the violation either personally or by registered or certified mail, return receipt requested, at the address on file with the division.
(Ord. No. 3303, § 1, 10-20-2015)

4.07.050 Notice of violation—Response—Hearings.

A. The individual or licensee, referred to herein as the "person" per section 4.04.010, cited must respond to a notice of violation within the time prescribed by section 4.07.060 of this chapter in one of the following ways:

1. Admit responsibility for the commission of the violation and liability by paying the amount of the civil penalty; or

2. Appeal the notice of violation, or civil penalty by submitting a written request for an administrative hearing to the division. The request for hearing must contain the following information:

a. The name of the person on the notice of violation;

b. The current address and contact telephone number of the person;

c. The notice(s) of violation(s) which the person wishes to dispute at the hearing;

d. The basis or facts supporting the appeal; and

e. The requested relief.

B. After receipt of a person's written request for a hearing, the division shall set a hearing date and provide notice of the hearing to the person requesting it at least 14 days before the date of the hearing, unless a shorter time period is agreed to in writing by the division and the individual. The notice shall state the date, time, and location of the hearing, and shall include a short explanation of the hearing process.

C. The business operations manager of the department, or authorized designee (the "presiding officer"), shall preside over hearings conducted pursuant to this chapter except under the following circumstances:

1. If the city attorney initiates a disciplinary action for suspension or revocation of a business license, an appeal hearing under this chapter may be held in conjunction with the disciplinary action hearing, presided over by a hearing officer appointed pursuant to chapter 4.06;

2. If the business operations manager determines that the circumstances so warrant, the business operations manager may refer an appeal under this chapter to the city manager's office. Upon receiving a referral, the city manager may appoint an assistant city manager or the director (or designee) of another city department as the presiding officer for the referred appeal hearing.

D. The presiding officer shall conduct the hearing, direct the order of the proceedings, and hear all evidence presented relevant to the subject notice of violation and appeal. The hearing shall be conducted informally and shall not be constrained by evidentiary or procedural rules applicable to public hearings or judicial proceedings. The hearing shall provide an opportunity for the parties to present witness statements or testimony and other evidence regarding the subject notice of violation for the purpose of dispensing a fair and speedy resolution. The presiding officer may question witnesses, allow rebuttal testimony, limit the time of the hearing to a reasonable length, limit the presentation of immaterial or unduly repetitious evidence, and record the hearing.

E. If the person requesting a hearing fails to appear at the hearing without having first sought and obtained a continuance of the hearing, the presiding officer may enter a decision upholding the violation and the full amount of the civil penalty scheduled to be reviewed. The burden of proving any defense shall be upon the person raising such defense.

F. Upon the conclusion of the hearing, the presiding officer shall consider all evidence presented and shall issue a decision to uphold, reverse, or modify the disputed violation and/or citation. Written notice of the decision shall be issued no later than 30 days following the conclusion of the hearing. The decision shall clearly state one of the following:

1. That the notice of violation is upheld, including a short statement of findings explaining the basis for the decision, and providing a deadline and any conditions for the payment of any civil penalty;

2. That the notice of violation is reversed, including a short statement of findings explaining the basis for the decision; or

3. That the notice of violation and/or penalties are modified, including a short statement of findings explaining the basis for the decision, and providing a deadline and any conditions for any modified compliance obligations and payments of any civil penalty.

G. Any decision by the presiding officer pursuant to this chapter shall be a final determination.

H. The city attorney may file a petition in a court of competent jurisdiction, including the Henderson municipal court for the entry of a civil judgment against the person in an amount equal to that stated in the written decision if the city attorney determines this action to be necessary to enforce the decision. Service of such petition on the defendant must be made by certified mail, return receipt requested, restricted delivery, addressed to the defendant at the defendant's last known address, or in any other manner which is authorized by law. An affidavit or declaration of mailing, a signed, returned receipt, or other evidence of service of the civil judgment shall be filed upon such service of the petition.
(Ord. No. 3936, § 1, 1-3-2022; Ord. No. 3303, § 1, 10-20-2015)

4.07.060 Notice of violation—Response period.

A. A response to a notice of violation, as provided in section 4.07.050, must be made within 30 calendar days after the date on which the notice of violation is served. If no response is received during such 30-day period, an additional civil penalty which is equal to the amount of the original civil fine may be assessed.

B. If a person does not respond to a notice of violation within the 30-day response period, the director, or an authorized designee, shall send a notice of delinquency by mail to the person responsible for the violation or, in the case of an entity, an officer, key employee, manager in charge, or registered agent of that entity at the address on file with the division.

C. The notice of delinquency shall contain the original date of the violation, the amount of the civil fine and the amount of any late penalty which is associated therewith. The person responsible for the violation or, in the case of an entity, an officer, key employee, manager in charge, or registered agent of that entity has 15 calendar days after the date of the notice of delinquency in which to respond to the division. If no response is made to the notice of delinquency within such additional 15-day period, an additional civil penalty may be assessed equal to the original civil penalty imposed and the matter may be referred to the city attorney's office to initiate proceedings to suspend and/or revoke the business license or permit.

D. If a person fails to respond to a notice of violation or a notice of delinquency in accordance with this chapter, the city is entitled to collect the amount of any fines and penalties by means of any remedy available under applicable law, including without limitation referring the matter to a collection agency and initiating proceedings to suspend and/or revoke the person's business license or permit.

E. If a person fails to respond to the notice of violation or a notice of delinquency and the violation continues to exist, said action shall be considered a public nuisance as described in section 4.07.080 and the city may seek injunctive relief pursuant to section 1.05.040.
(Ord. No. 3303, § 1, 10-20-2015)

4.07.070 Collection fees.

In addition to the civil penalties assessed pursuant to this chapter, the person responsible for any violation shall be liable for an additional collection fee where the collection of the penalties provided for herein is referred for collection. The amount of such fee shall be 25 percent of the outstanding indebtedness or $250.00, whichever is less. The amount of any such collection fee shall accrue and become due and payable at the time the indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency to the amount sought to be collected. Any judgment or amended judgment entered under this chapter may include the amount of the collection fee authorized herein.
(Ord. No. 3303, § 1, 10-20-2015)

4.07.080 Public nuisance abatement.

Any continuous violation of title 4 is a threat to the public health, safety, and morals and constitutes a public nuisance to the general public. In addition to any civil penalties provided herein, the city may abate the nuisance or apply for other equitable relief pursuant to HMC 1.05.040.

(Ord. No. 3303, § 1, 10-20-2015)

Chapter 4.08 AUCTIONS AND AUCTIONEERS*

Sections:

4.08.010 Definitions.
4.08.020 License required—Exceptions.
4.08.030 Permit required.
4.08.040 Investigation fees—Required—Fees charged.
4.08.050 License—Application.
4.08.060 Permit—Application—Conditions.
4.08.070 Permit—Exception.
4.08.080 Permit—Fee.
4.08.090 Bond required.
4.08.100 Restriction to private places.
4.08.110 Consignment and auction records.
4.08.120 No private sale during auction.
4.08.130 Conditions for auction sale.
4.08.140 Licensee and permittee responsible for the acts of employees.
4.08.150 Jewelry—Special conditions.
4.08.160 Exempted sales—Conditions.
4.08.170 Reserved.

4.08.010 Definitions.

For the purpose of this chapter, the following words and terms, when used in this chapter, shall have the meanings ascribed to them in this section, unless the context clearly indicates otherwise:

Auction sale. The term "auction sale" shall mean a sale of property by public outcry to the highest bidder.

Auctioneer. The term "auctioneer" shall mean any person who shall, by public outcry, sell or offer to sell to the highest bidder at public offering, when bids are called for, any goods, wares, merchandise, livestock, vehicles, fruits, stocks, bonds and other securities, or any personal property of whatever nature, or any real estate or interest therein, at any store, stand or other place within the city where any and all persons who choose so to do are permitted to attend and offer bids, or any person who shall advertise or in any other manner hold himself out as an auctioneer for public patronage, or receive fees or compensation for service as such.

***Editor's note—**Ord. No. 3242, § 1, adopted January 6, 2015, amended chapter 4.08 in its entirety to read as herein set out. Formerly, chapter 4.08, §§ 4.08.010—4.08.210 pertained to similar subject matter, and derived from Ord. No. 838, § 2, adopted in 1982, and Ord. No. 1301, § 6, adopted in 1992.

Jewelry. The term "jewelry" shall mean any goods, ware and merchandise customarily kept in retail jewelry stores for sale, including, but not limited to, precious and semiprecious stones and imitations thereof, whether sold or offered for sale with or without settings, rings, bracelets, articles made in whole or in part of gold, silver, platinum or other precious or semiprecious metal whether solid, plated or overlaid.

Property. The term "property" shall mean real property and personal property of whatever nature.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.020 License required—Exceptions.

A. An auctioneer license is a privileged license. It shall be unlawful for any person or firm to act as an auctioneer or to hold or carry on any auction within the city without first obtaining a license as herein required and paying the license fee as set forth in chapter 4.05.

B. No license shall be required of any individual who furnishes proof of holding a valid license as an auctioneer in any political subdivision or entity of Clark County, Nevada. Each such auctioneer shall be required to obtain a permit according to section 4.08.030 prior to each auction sale.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.030 Permit required.

It shall be unlawful for any person to advertise for disposal, offer for sale, dispose of, sell, cause or permit to be advertised for disposal, offered for sale, disposed of or sold at public auction within the city, or in any manner carry on or conduct, or cause or permit to be carried on or conducted, within the city a public auction of any property, whether the same shall be his own property or the property of others, without first complying with the provisions of this chapter and obtaining a permit to do so as herein required.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.040 Investigation fees—Required—Fees charged.

Any person applying for an auctioneer license is required to submit to the city an investigation fee as set forth in chapter 4.03, for each person required to be investigated.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.050 License—Application.

All applications for licenses required by section 4.08.020 shall be filed by the person(s) who as auctioneer(s) will carry on or conduct any auction sale and shall be on forms as provided by the division. All applications shall set forth at least the following information:

A. Name and address of the applicant.

B. Whether applicant is the holder of a valid license as an auctioneer in any jurisdiction in the State of Nevada.

C. Whether applicant has ever made an application for an auctioneer's license and has been refused same.

D. Whether applicant has ever been convicted of a felony.

E. Any other information as needed by the division to determine the license suitability of the applicant.

(Ord. No. 3242, § 1, 1-6-2015)

4.08.060 Permit—Application—Conditions.

All applications for permits required by section 4.08.030 shall be filed with the division by the person(s) who, as auctioneer(s), will carry on or conduct any auction sale. Such application shall be submitted not less than 20 nor more than 40 calendar days before the date of commencement of any auction sale. Applications shall be on forms as provided by the division. No application for a permit shall be acted on until the applicant has complied with section 4.08.020. All applications shall set forth at least the following information:

A. Name and address of the applicant.

B. Whether applicant is the holder of a valid and subsisting license as an auctioneer in any jurisdiction in the State of Nevada.

C. The location of the place where the auction sale will be conducted.

D. The length of time for which the permit is desired and the date when the applicant desires to commence such auction.

E. The name and address of the owner of the property proposed to be sold at such auction.

F. A list of all items to be auctioned, including a description and quantities of each item so listed.

(Ord. No. 3242, § 1, 1-6-2015)

4.08.070 Permit—Exception.

No permit will be required for any auction sale carried on or conducted in the city by an auctioneer licensed pursuant to section 4.08.020 and whose principal place of business is located within the city limits when the auction is conducted at the licensed business establishment. Auctions held within the city but away from the licensed premises are subject to the permit requirements set forth in section 4.08.030.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.080 Permit—Fee.

A fee of $50.00 shall be paid for each permit required by section 4.08.030. Such fee shall be paid at the time of filing of application.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.090 Bond required.

As a condition precedent to the issuance or renewal of an auctioneer's license, the applicant shall file a two-year non-revocable surety bond with the division in the sum of $20,000.00 from a company authorized to do business in the State as a surety. Such bond must be conditioned to be paid to the city or to any person who suffers any damage by reason of any fraud, dishonesty, misstatement, misrepresentation, deceit, unlawful acts or omissions, or violation of the provisions of this Code by the licensee, his agents and employees. Such bond shall not be void upon the first recovery, but may be sued and recovered upon from time to time by any person aggrieved, in his own name, until the whole penalty is exhausted.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.100 Restriction to private places.

It shall be unlawful for any auctioneer or other person to offer for sale or sell at public auction or public outcry any property upon any street or public place in the city.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.110 Consignment and auction records.

Each licensee or permittee shall keep a permanent record of all items taken for sale or consignment for sale and shall contain the following information:

A. An accurate description of each item including any model number, style, and serial number(s);

B. The name, age, sex, residence address (not a post office box), and telephone number of the person consigning said items;

C. Each licensee or permittee shall keep a permanent record of all sales, the name and address of the purchaser, the amount paid, and the date of each sale. Each permanent record, as herein described, shall be open at all times for inspection by the police department and the division.

D. Any other information as the division may deem necessary.

(Ord. No. 3242, § 1, 1-6-2015)

4.08.120 No private sale during auction.

No property shall be sold at private sale at the place for which a permit has been granted for the conduct of an auction sale during the progress of such auction or on any day when such property is advertised for sale at public auction, other than by public outcry and to the highest bidder.

(Ord. No. 3242, § 1, 1-6-2015)

4.08.130 Conditions for auction sale.

All auction sales shall be conducted as follows:

A. Each day before the commencement of the auction, the licensee or permittee shall announce the terms of the sale.

B. The licensee or permittee, at each time a bid is announced or accepted, shall give some description of the person making the bid, and also point out or designate the location of the bidder on the premises.

C. No licensee or permittee, his agents, employees, or the owner, or other person on his behalf, shall make any false or misleading statement concerning the ownership kind, character, quality, condition, make, size, price, or other fact pertaining to any article sold or offered for sale.

D. No licensee or permittee, his employee, or the owner, or other person on his behalf, shall act as a by-bidder, or what is commonly known as a "capper" or "booster," or make or accept any false or misleading bid, or falsely pretend to buy or sell any article, or conspire with any person to make a false or fictitious bid; and no licensee or permittee, his employee, or the owner of the articles, or other person acting on his behalf, shall bid or purchase at such sale, unless, at the time such bid is made, the permittee shall announce, in such tone and manner as to be plainly heard and understood in all parts of the room in which the sale is being conducted, that such bid is for the benefit of the permittee, his employee or owner, as the case may be.

E. Each article offered for sale shall be sold as offered, if a bid be made by more than one bona fide bidder, before another article is offered for sale, and without any unreasonable delay. There shall be no reserved price on any article unless, at the time the article is offered for sale, the licensee or permittee shall announce the reserved price in such tone and manner as to be plainly heard and understood in all parts of the room in which the sale is being conducted. If any article is offered for sale and two or more bids are made thereon, and such article is afterwards withdrawn from sale for the reason that the highest bidder did not equal the reserved price as announced, there shall not be the same or another article of the same kind or class offered for sale until four other sales have been made, or for one hour, whichever is the longer time.

F. No free drawing shall be conducted, nor gifts be given, nor any form of entertainment be given for the encouragement of attendance at such sale, or for any other purpose.

G. Upon request of any person who has bid upon an article offered for sale, the licensee or permittee shall allow such bidder a reasonable opportunity to examine such article, and such bidder may thereafter withdraw his bid at any time before the licensee or permittee declares the article sold.

H. The licensee or permittee shall allow any police officer, the director or his designee, during regular business hours, to examine any article held for sale by auction or offered for sale, at any time before such article is delivered to the purchaser.

I. No person other than the licensee or permittee shall cry the sale of any article at said auction sale.

(Ord. No. 3242, § 1, 1-6-2015)

4.08.140 Licensee and permittee responsible for the acts of employees.

Every licensee and permittee shall be responsible for the acts of his employees and agents committed during the course and scope of employment. Every licensee shall accordingly use adequate care in the selection of his employees and agents. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense and every licensee accepts his license subject to said condition.

(Ord. No. 3242, § 1, 1-6-2015)

4.08.150 Jewelry—Special conditions.

No licensee or permittee shall make at any time prior to or during any auction sale any statement in regards to the quality, content, construction, plating, size or weight of any

precious or semiprecious stones or imitations thereof, type of metal, the grade of fineness thereof, of any item of jewelry, as herein defined, unless the licensee or permittee has a notarized authentication of such claim by a jeweler or appraiser licensed to do business in any political subdivision or entity located in Clark County, Nevada.
(Ord. No. 3242, § 1, 1-6-2015)

4.08.160 Exempted sales—Conditions.

The provisions of this chapter shall not apply to auctions of the following:

A. Property owned by, or in the lawful possession, custody or control of banks, trust companies, trustees in bankruptcy, assignees for the benefit of creditors, executors and administrators, selling or disposing of such property under the laws of the United States or the State of Nevada;

B. Property sold at judicial sales;

C. Unclaimed or undelivered property held by common carriers or public warehousemen, selling or disposing of the same for freight or storage charges;

D. Property being sold solely for charitable or benevolent purposes or for any church, fair, festival or bazaar; and

E. Property held by licensed pawnbrokers, selling or disposing of the same as unredeemed pledges in the manner provided by NRS Chapter 646 and HMC chapter 4.64.

(Ord. No. 3242, § 1, 1-6-2015)

4.08.170 Reserved.

Chapter 4.12 DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS*

Sections:

4.12.010 Definitions.
4.12.020 License requirements.
4.12.030 License fee.
4.12.040 License application.
4.12.050 Application review and license issuance.
4.12.060 Denial of license.
4.12.070 License exhibition.
4.12.080 Transfer prohibited.
4.12.090 Licensee responsible for acts of employees and agents.
4.12.100 Entry upon posted premises unlawful.
4.12.110 Hours of solicitation.
4.12.120 Posting on public ways, structures, vehicles, vacant premises.
4.12.130 Handbills and flyers must be securely fastened without causing damage.
4.12.140 License denial or revocation.
4.12.150 Appeals—Judicial review.

4.12.010 Definitions.

The following words, terms, and phrases, and their derivations, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

A. *Canvasser* means any natural person who is not in the business of selling goods and who makes or attempts to make personal contact with a resident at his residence, without prior specific invitation or appointment from the resident, for the primary purpose of (1) distributing or attempting to distribute a handbill or flyer advertising a noncommercial item, cause, event or service or (2) making or attempting to make noncommercial surveys for research purposes, analysis, opinion polls and any similar work.

B. *Charitable purpose* is defined to mean any benevolent, philanthropic, patriotic, religious or eleemosynary group, partnership, association or corporation which solicits and collects funds for charitable purposes and is classified in one of the categories defined in Section 501 of the United States Internal Revenue Code as

***Editor's note—**Ord. No. 3067, § 1, adopted September 17, 2013, amended chapter 4.12 in its entirety to read as herein set out. Formerly, chapter 4.12, §§ 4.12.010—4.12.180 pertained to similar subject matter, and derived from Ord. No. 2382, § 1, adopted in 2005, and Ord. No. 2855, § 1, adopted June 1, 2010.

being exempt from payment of federal income tax as evidenced by the organization's 501 registration number or is duly organized pursuant to Nevada Revised Statutes Chapters 81, 82, 84 or 86.

C. *Peddler* means any natural person other than a mobile food vendor who goes upon the premises of any private residence in the city, not having been invited by the resident or occupant thereof, carrying or transporting goods, wares, merchandise or personal property of any nature and offering or attempting to offer the same for sale. "Peddler" does not include a natural person who distributes handbills or flyers for a commercial purpose, advertising an event, activity, good, or service that is offered to a resident for purchase at a location away from his residence or at a time different from the time of visit.

D. *Solicitor* means any natural person other than a mobile food vendor who goes upon the premises of any private residence in the city, not having been invited by the resident or occupant thereof, for the primary purpose of taking or attempting to take orders for the sale of goods, merchandise, wares or other personal property of any nature for future delivery, or for services to be performed in the future. "Solicitor" includes any natural person who distributes a handbill or flyer advertising a commercial event, good, or service. This definition also includes any natural person who, without invitation, goes upon private residential property for the primary purpose of requesting a donation for political, charitable, religious purposes or other noncommercial purpose, even if incidental to such purpose the solicitor offers or provides goods or services.

(Ord. No. 3067, § 1, 9-17-2013)

4.12.020 License requirements.

It shall be unlawful for any natural person 18 years of age or older to engage in any peddling or solicitation activities within the city without first obtaining a license issued by the division.

(Ord. No. 3067, § 1, 9-17-2013)

4.12.030 License fee.

At the time the application is filed, the applicant shall pay a license fee of $25.00. The application fee in section 4.04.065 shall not be required.

(Ord. No. 3067, § 1, 9-17-2013)

4.12.040 License application.

Every natural person required to obtain a license pursuant to section 4.12.020 shall, in person, file with the director an application in writing on a form to be furnished by the division, which shall provide the following information:

A. Proof of age, address and identification of the applicant;

B. A brief description of the business or activity to be conducted;

C. If employed, contracted, or otherwise engaged by another person to engage in the activities regulated in this chapter, the name, address and telephone number of such person;

D. A statement as to whether or not the applicant has been convicted of a crime within the past ten years, and, if so, the nature of the offense or violation, the penalty or punishment imposed, and the date when and place where such conviction occurred;

E. Proof of possession of any license which, under federal, state or local laws or regulations, the applicant is required to have in order to conduct the proposed business or activity, or which, under any such law or regulation, would exempt the applicant from the licensing requirements of this chapter; and

F. One passport photograph of the applicant's face which shall have been taken within 12 months immediately prior to the date of filing of the application. The photograph shall measure approximately two inches by two inches and be on a white background.

(Ord. No. 3067, § 1, 9-17-2013)

4.12.050 Application review and license issuance.

A. Unless there is, pursuant to section 4.12.060, a reason to deny the license, the director shall approve the license.

B. The license shall show the name and address of the licensee and the licensee's employer, if applicable, and the date of issuance.

C. Licenses shall be issued promptly, but in all cases within three business days of personal hand-delivery of the application, unless the application is not complete or the license is denied for any of the reasons set forth in section 4.12.060. Failure to approve or deny the license within the time periods referenced in this chapter shall result in the license being granted.

(Ord. No. 3067, § 1, 9-17-2013)

4.12.060 Denial of license.

A. Upon the director's review of the application, the director shall refuse to issue a license to the applicant for any of the following reasons:

1. The applicant has been convicted of any felony, gross misdemeanor, or a misdemeanor involving a sex offense, trafficking in controlled substances, or any violent act against a person or property, such conviction having being entered within the ten years preceding the date of application;

2. The applicant is a person against whom a judgment based upon, or conviction for, fraud, deceit or misrepresentation has been entered within the ten years immediately preceding the date of application.

B. The license application may also be denied for good cause as set forth in subsection 4.04.150(A).

C. The director's disapproval and the reasons for disapproval shall be noted on the application, and the applicant shall be notified that his application is disapproved and that no license will be issued. Notice shall be delivered personally or mailed to the applicant at the address shown on the application form, or at the applicant's last known address.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.070 License exhibition.

Every natural person required to obtain a license under the provisions of this chapter shall keep the license in his possession at all times while the licensee is soliciting or peddling in the city, and shall allow inspection of the license upon request by any prospective customer, business license officer in the division or police officer.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.080 Transfer prohibited.

It shall be unlawful for any person other than the licensee to use any license issued under the provisions of this chapter.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.090 Licensee responsible for acts of employees and agents.

Any person or entity who employs, contracts, or otherwise engages another to conduct soliciting, peddling, or canvassing activities, is responsible for the acts or omissions of his employees or agents committed during the course of employment or performance of

activities governed by this chapter. In any suspension, limitation, or revocation proceeding, the fact that the distributing service or person who employed, contracted, or engaged another did not have actual knowledge of the violation shall be no defense.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.100 Entry upon posted premises unlawful.

It shall be unlawful for any natural person, while canvassing, peddling or soliciting, to enter upon any residential premises or to knock on the door, window or any other part of the residential structure, or ring the bell of any residential premises, or to do any other act calculated to attract the attention of anyone inside of the premises, where the owner, resident, occupant or person legally in charge of the premises has posted, at the entry, or any of the points of ingress to the premises, a sign with visible and legible letters at least three-fourths of an inch in height bearing the words "No Trespassers," "No Canvassers," "No Peddlers," "No Solicitors," or words of similar import. A sign containing any of these or similar phrases is deemed to prohibit all activities governed by this chapter. This regulation shall apply to all groups of structures or complexes such as apartments, condominiums or private gated communities, which have posted such a sign or signs with letters at least one and one-half inches in height at the entrance(s) or other point(s) of ingress regardless of whether any individual particular residence is posted.

This section shall not apply, however, when the solicitor, peddler or canvasser has, despite the signage, been specifically invited by the owner, resident, occupant or person legally in charge of the premises.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.110 Hours of solicitation.

No person, while conducting the activities of a canvasser, peddler or solicitor, shall enter upon any private property, knock on doors, ring any bells, or otherwise disturb persons in their residences between the hours of 9:00 p.m. and 8:00 a.m.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.120 Posting on public ways, structures, vehicles, vacant premises.

No peddler, solicitor or canvasser shall post or cause any other person to post any handbill, flyer, or any other similar poster, paper or device calculated to attract the attention of the public or any member thereof, on any public property or on anything situated on public property, or upon premises which are vacant.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.130 Handbills and flyers must be securely fastened without causing damage.

A handbill, flyer, or similar item left at a residence must be placed on the doorknob or similar place with a rubber band or similar means so as to secure it as far as practicable from being blown away. No handbill, flyer or similar item shall be left at, or attached to, any property in a manner that causes damage to such property.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.140 License denial or revocation.

Any license issued under this chapter may be revoked, limited or suspended by the director, for any of the reasons set forth in sections 4.12.060 or 4.04.150 and may be subject to sections 4.06.040 et seq.
(Ord. No. 3067, § 1, 9-17-2013)

4.12.150 Appeals—Judicial review.

Appeal rights are the same as those set forth in section 4.04.210. Procedures for judicial review of final decisions are the same as those set forth in section 4.06.300.
(Ord. No. 3067, § 1, 9-17-2013)

Chapter 4.18 ALARM SYSTEMS

Sections:

4.18.010 Definitions.
4.18.020 Legislative intent.
4.18.030 Regulation.
4.18.040 Unlawful to operate without license.
4.18.050 License—Application—Contents—General.
4.18.060 License—Application—Contents—Additional.
4.18.070 License—Applicant—Personal information required.
4.18.080 Application fee required.
4.18.090 Investigation fees—Required fees charged.
4.18.100 No refund on investigation fee.
4.18.110 Withdrawal of application—Refund.
4.18.120 License—Corporation—Partnerships—Associations—Changes in membership.
4.18.130 License—Issuance—Fee—Renewal.
4.18.140 Bond required, new business—Alternative of certificate of deposit, requirements based on actual false alarms of business—Exemptions.
4.18.150 Licensee responsible for the acts of employees.
4.18.160 Provisions for compliance—Time.
4.18.170 License—Suspension—Revocation—Limitation.
4.18.180 Alarm systems business located out of local area—Requirement of a resident agent.
4.18.200 Application for electrical permit required—Permit not assignable or transferable.
4.18.210 Inspections.
4.18.220 Sirens not to be audible outside premises.
4.18.230 Instructions as to the operation of the system—User responsibility for maintenance.
4.18.240 Response alarms condition—False alarms—Exceptions.
4.18.250 Audible alarm system cutoff—Automatic dialing systems.
4.18.260 Operational defects to be remedied.
4.18.270 Fee for false alarms—Accounting, method of billing and collection.
4.18.280 Notices.
4.18.290 Excessive False alarms.
4.18.300 Violation—Penalty—Alarm system user.
4.18.310 Violation—Penalty—Alarm systems businesses—Licensed security and/or private patrol businesses.

4.18.010 Definitions.

Whenever used in this chapter, the words and terms shall have the meaning ascribed to them pursuant to title 4, unless a different meaning clearly appears in the definitions or context:

Activated alarm system means an alarm system which has been set, or turned on; in which condition it will emit a noise, turn on lights, dial a telephone or send a signal to a monitoring station, or any other means of signaling, when the alarm has been activated.

Alarm condition means that a situation exists, determined by an alarm monitoring business, or other means, which is used to summon emergency response personnel.

Alarm system means any mechanism, equipment or device which is designed to detect an unauthorized entry into any building or onto any property, or to direct attention to a crime in progress, or to signal an emergency of any kind, and to signal the above occurrence either by a local or audible alarm or by a silent or remote alarm. Alarm systems shall not include alarms installed in motor vehicles.

Alarm systems business means any person engaging in the business of planning, installing, servicing, maintaining, repairing or replacing, or monitoring alarm systems in the city. "Alarm systems business" shall also mean any person acting as a contractor or subcontractor for or with an alarm systems business as described.

Applicant means any person who has requested, or is about to request, licensing as an alarm systems business, or any person who has requested, or is about to request, a building permit to install an alarm system at a particular location in the city.

Building director means the director of the building department of the city or his designee.

Emergency response personnel means, but is not limited to, the police and fire departments and ambulance services.

Employee means a person who is employed by an alarm systems business and who plans, sells, installs, services, maintains, repairs, monitors or replaces alarm systems in the city. (See [section] 4.18.190.)

False alarm means an actual alarm signal transmitted in the absence of an alarm condition which results in emergency response personnel being dispatched to the location of the alarm.

Local or audible alarm means an alarm, which, when activated, emits a loud noise at or near the protected area without notifying an alarm monitoring station.

Manually activated alarm means an alarm system which is activated manually, and which transmits a signal to an alarm monitoring station indicating an emergency or a crime in progress.

Responder means a private patrol business, licensed in accordance with the provisions of NRS and the city, or the owner of the home, business, structure or facility experiencing an alarm condition.

User means a person, who owns, or is in control of the premises protected or intended to be protected by an alarm system.
(Ord. 1343, § 1 (part), 1992)

4.18.020 Legislative intent.

As the city's population has grown, more residential and commercial property owners are turning to privately monitored security alarm systems to provide additional protection for their properties. Commensurate with the growth in the number of private alarm systems installed within the City of Henderson there has been a corresponding increase in the number of false alarm reports received by the police department. In response to the proliferation of alarm systems and the city council's concern for the public's best interest from a safety standpoint as it relates to the increased incidents of false alarms, it is necessary that rules and regulations be adopted to control the licensing and operation of alarm systems businesses and the establishment of a process whereby the city can recoup the expenses incurred in responding to the ever increasing number of false alarms.
(Ord. 1343, § 1 (part), 1992)

4.18.030 Regulation.

All persons, except an alarm user as defined in this chapter, shall be licensed and subject to regulation, and the license may be suspended, limited, or revoked for violation of the provisions of this chapter, the laws of the State of Nevada, other ordinances of the city, or for any other cause deemed sufficient by the council in the exercise of its sole discretion. In conformity with the policy of this chapter, the following persons are declared not to be qualified to hold a license under the provisions of this chapter:

(1) A person who has been convicted of a crime involving theft, fraud, dishonesty, receiving or possessing stolen property, any narcotics violation whatsoever or any sex offense;

(2) A person whose license, whether issued under the provisions of this chapter, or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of alarm systems businesses, has been revoked for cause;

(3) A person who, at the time of renewal of any license issued under this chapter, would not be eligible for such license upon a first application;

(4) A partnership, limited partnership or association, unless all of the members of such partnership, limited partnership or association are qualified to obtain a license;

(5) A corporation, unless it is incorporated in the State of Nevada, or unless it is a foreign corporation which is qualified under Nevada law to transact business in Nevada;

(6) A corporation, if an officer or director thereof would not be eligible to receive a license for any reason which would disqualify an individual applicant.

(Ord. 1343, § 1 (part), 1992)

4.18.040 Unlawful to operate without license.

It is unlawful for any person to conduct any alarm systems business as described in this chapter without first having obtained a license therefor.

(Ord. 1343, § 1 (part), 1992)

4.18.050 License—Application—Contents—General.

Whenever a person desires to conduct any alarm systems business in the city, such person shall make application in writing to the division to obtain a license therefor; and, such application shall contain the following:

(a) The name and residence address of the applicant; and

(b) The classification of the license sought, the business address for which the license is sought where the operation will be conducted; and

(c) The names and residential addresses of all persons owning an interest in and managing the business, together with a statement as to the percentage of the business owned by each individual. Each license applicant shall designate on the application form the name of an agent residing within the county who is responsible for the conduct of the business and authorized to immediately answer to the council or its agents should inquiry or action be deemed necessary; and

(d) A consent for police department and division investigation of the applicant's background, including, but not limited to, financial background, employment history, and criminal record. In all cases where the applicant for an alarm systems license, is a corporation, the names and residential addresses of the officers or directors of the corporation shall be listed on the application. In all such cases, the director or the chief of police shall determine who of the principal officers and directors of such corporation shall require background investigations.

(e) All applicants for an alarm systems license shall state for each person interested in the business, his name, and place of residence, whether or not he is a legal resident of the United States, whether or not he has been convicted of a crime which would be considered a felony under the laws of the State of Nevada, or any misdemeanor crime, other than minor traffic offenses, and any other information the division may required.

(Ord. 1343, § 1 (part), 1992)

4.18.060 License—Application—Contents—Additional.

All applications shall contain such information as the council or its authorized officers by rule or regulation not inconsistent with law prescribe. Each licensee shall designate on the application form the agent residing within the county who is responsible for the conduct of the business and authorized to immediately answer to the council or its agents should inquiry or action be deemed necessary.

(Ord. 1343, § 1 (part), 1992)

4.18.070 License—Applicant—Personal information required.

All applicants for an alarm systems license shall state for each person interested in the business, his name and place of residence, whether or not he is a legal resident of the United States, whether or not he has been convicted of a crime which would be considered a felony under the laws of the State of Nevada, or any misdemeanor crime, other than minor traffic offenses, and any other information the division may require, all to be set forth in the application.

(Ord. 1343, § 1 (part), 1992)

4.18.080 Application fee required.

No investigation shall be made of any applicant for an alarm systems license prior to the payment by the applicant, and receipt of such fee, by the division, and no license shall be issued until all appropriate fees are paid.

(Ord. 1343, § 1 (part), 1992)

4.18.090 Investigation fees—Required fees charged.

Any person applying for an alarm systems license is required to deposit with the division an investigation fee as determined by the police department fees schedule for each person required to be licensed. (See chapter 4.03).

(Ord. 1343, § 1 (part), 1992)

4.18.100 No refund on investigation fee.

Even though an applicant is denied a license after investigation, no part of the investigation fees deposited shall be returned to the applicant.
(Ord. 1343, § 1 (part), 1992)

4.18.110 Withdrawal of application—Refund.

If any applicant withdraws his application prior to the beginning of an investigation, all fees deposited shall be returned to the applicant.
(Ord. 1343, § 1 (part), 1992)

4.18.120 License—Corporation—Partnerships—Associations—Changes in membership.

In the case of a corporate licensee, any and all changes in the officers or directors of such corporation shall be reported to the division within 30 days of the appointment or election of such officers and directors. Such officers or directors shall be required to qualify for a license as required by this chapter.
(Ord. 1343, § 1 (part), 1992)

4.18.130 License—Issuance—Fee—Renewal.

(a) Upon receipt of the results of the background investigation from the police department, the director will approve or deny the application. If the application is denied, the applicant may appeal such denial to the council. (See section 4.04.210.)

(b) The license fee for an alarm systems business shall be $65.00 semiannually, payable in advance, and shall be renewed semiannually.
(Ord. 1961, § 3, 1999; Ord. 1343, § 1 (part), 1992)

4.18.140 Bond required, new business—Alternative of certificate of deposit, requirements based on actual false alarms of business—Exemptions.

The bond required by this chapter is conditioned upon the licensee to fully comply with the requirements of payment of all license fees, and fees for false alarms, due the city.

A. No new license shall be issued to conduct any alarm systems business until the applicant files a surety bond with the division in the amount of $10,000.00, with

surety from a company licensed to do business in the State of Nevada. The bond shall be taken in the name of the city, and legal action on the bond may be brought by the city to recover delinquent license fees and/or fees for false alarms.

B. Every new alarm systems business shall maintain such surety bond in full force and effect during the first year of licensure under this chapter, and upon failure to do so, its license shall be suspended until such bond is renewed; and

C. After one year of licensure, in lieu of the bond described in A above, the licensee may deposit with the division, a certificate of deposit in the amount of $3,500.00. The certificate of deposit shall be made payable to the licensee and the city jointly, shall be non-negotiable by the licensee without the signature of the city, but shall be negotiable by the city individually.

All alarm systems businesses which participated in the council-directed computerized alarm tracking system for a period of three months prior to the passage of this ordinance may submit a certificate of deposit in lieu of the bond requirement.
(Ord. 1343, § 1 (part), 1992)

4.18.150 Licensee responsible for the acts of employees.

Every licensee shall be responsible for the acts of his employees committed during the course and scope of employment. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense, and every licensee hereunder accepts his license subject to said condition.
(Ord. 1343, § 1 (part), 1992)

4.18.160 Provisions for compliance—Time.

A. Those licensees, responders and users not in conformity with the provisions of this chapter at the date of adoption of the ordinance codified in this chapter, shall have a period of 90 days from the effective date of the ordinance to conform to the requirements thereof.

B. Any alarm systems business which is unable to comply with any debt due the city for false alarms as imposed by this chapter within the 90-day period, may apply for an additional 90-day extension. Such request shall be made in writing to the division prior to the end of the first 75-day period, shall be signed by the licensee, and shall include a detailed explanation of the reasons for requesting an extension.
(Ord. 1343, § 1 (part), 1992)

4.18.170 License—Suspension—Revocation—Limitation.

The council may deem that any activity on the part of the licensee or employees, or a person previously found suitable, which is contrary to the public health, safety, morals, good

order, or general welfare of the residents of the city or which violates any ordinance or regulation of the city or the State of Nevada is grounds for disciplinary action which may result in a suspension, limitation or revocation of the alarm systems license. Without limiting the generality of the foregoing, each of the following reasons are declared to be a basis for disciplinary action:

A. Conviction of the licensee of any crime involving theft, fraud, dishonesty, receiving or possessing stolen property, any narcotics violation or any sex offense; or

B. Conducting an alarm systems business in an unlawful manner or in a manner detrimental to the public health, safety or welfare; or

C. Each licensee who violates any provision of title 4 of the Henderson Municipal Code; or

D. Each licensee who knowingly fails to report or conceals from the council a full disclosure of the names of all persons having an interest in the ownership of, or receiving any remuneration whatsoever under a license in which he has an interest; or

E. Each licensee who knowingly fails to report or conceals from proper authority any information which it is his duty to supply under any statute, ordinance or regulation of the state or the city; or

F. Each licensee who, for conduct subsequent to the issuance of a license, becomes ineligible to hold an alarm systems license as set out in the statutes, ordinances and regulations of the state or city; or

G. Each licensee who made a misrepresentation of a material fact in his application to obtain a license; or

H. Each licensee whose alarm systems license in any place in the State of Nevada has been revoked for cause; or

I. Each licensee who employs a person without a registration card as required by this chapter.

(Ord. 1343, § 1 (part), 1992)

4.18.180 Alarm systems business located out of local area—Requirement of a resident agent.

Any alarm systems business not physically located in the County of Clark shall conform to the following provisions:

A. The resident agent shall be a full-time employee, not a subcontractor, of the alarm systems business; and

B. The resident shall reside within a 50-mile radius of the city. For purposes of this subsection, the point from which the 50-mile radius shall be measured, is from the city hall of the city; and

C. The resident agent shall possess a master technician's card in accordance with NRS, or have two years of electronics schooling or work experience, and four years experience in the alarm systems business; and

D. The resident agent shall physically sign the monthly false alarm billing statement received from the city.

(Ord. 1343, § 1 (part), 1992)

4.18.200 Application for electrical permit required—Permit not assignable or transferable.

(a) No person shall install, operate, maintain or engage another person to install, operate or maintain an alarm system at a particular location unless a building permit (electric) as required by city ordinance, or the Uniform Building Code, has been applied for and issued.

(b) No permit issued under this section shall be assignable or transferable.

(Ord. 1343, § 1 (part), 1992)

4.18.210 Inspections.

The building director is authorized to make inspections of alarm systems that have been installed within the city for the purpose of determining whether said systems are being maintained in conformity with the provisions of this chapter. The building director shall request the owner or lessee of the premises on which the alarm system is installed, or any other person who may lawfully give his consent, to admit the building director onto the premises for the purpose of making an inspection of the alarm system.

4.18.220 Sirens not to be audible outside premises.

It is unlawful to install or maintain any alarm system which, upon activation, emits an audible sound, that could reasonably be confused with the siren emitted by an emergency vehicle. The audible warning system of an emergency vehicle is not a siren by this definition.

(Ord. 1343, § 1 (part), 1992)

4.18.230 Instructions as to the operation of the system—User responsibility for maintenance.

(a) It shall be the responsibility of all alarm systems users to see that all employees and persons regularly using the premises on which the alarm is installed be instructed in the proper operating procedures to avoid false alarm signals.

(b) No alarm system business licensed under this chapter shall sell or refer to any interior alarm button, intended to be depressed manually, as a "panic alarm." Any button installed in an alarm system, intended to be depressed manually for the purpose of summoning emergency personnel, shall be referred to as a "manually activated alarm" and instructions shall be given that it is not to be used unless there is an actual emergency.

(c) It shall be the responsibility of the alarm system user to cause the system to be maintained in reliable operating condition.
(Ord. 1343, § 1 (part), 1992)

4.18.240 Response alarms condition — False alarms — Exceptions.

(a) When the alarms systems business, or responder, notifies emergency personnel of an actual alarm condition, it shall provide the following information:

(1) The name of the party reporting the alarm condition; and

(2) The time, address and phone number of the alarm condition, and the type of alarm; and

(3) The precise location of the alarm (if there is more than one floor), the type of alarm; and

(4) The name and description of the responder (uniformed, armed or not armed) at the location and a description of the vehicle driven by the responder, if known; and

(5) The type of instrumentation, or verification, used to determine that an alarm condition exists, if any.

(b) In the event that a false alarm condition exists, it shall be the responsibility of the alarm system user to comply with the requirements regarding the notification of responsible persons who will render all necessary service and assistance to restore the alarm to normal condition or to reset the alarm.

(c) For purposes of this subsection, the alarm systems business, and/or user, may contract with a licensed security or private patrol business to perform the function of the responder. Such responder business shall be required to conform to the provisions of this chapter as if an actual licensee when engaged in the alarm responder business.

(d) Alarm systems businesses that request police response to an alarm condition shall maintain a record of all emergency personnel calls stating the time, date, and location of the alarm, and if the alarm is not caused by an actual crime in progress, shall state the corrective action taken to prevent the reoccurrence of the false alarm. This record shall be maintained for a period of six months, and shall be made available for inspection by the police department or division at any time during normal business hours.

(e) All alarm systems maintained by any licensed alarm systems business shall terminate in an office of a licensed alarm system business. The alarm systems business, having reason to believe there is an alarm condition, will immediately notify emergency personnel. For purposes of notifying the emergency personnel, the maximum equipment allowed shall be a telephone line to the emergency services personnel switchboard.
(Ord. 1343, § 1 (part), 1992)

4.18.250 Audible alarm system cutoff — Automatic dialing systems.

(a) Every alarm system which uses an audible alarm device to attract the attention of the public shall be equipped with an automatic 20 minute cutoff device, or shall be silenced manually by the user or his representative within 20 minutes after activation.

(b) This section shall also apply to all alarm systems currently installed or being installed.

(c) This section does not preempt section 4.18.230 which makes it unlawful for siren type alarms to be audible outside the premises wherein the alarm is installed.

(d) Alarm devices which automatically dial telephone numbers must be monitored at an interim monitoring station, unless authorized by the director.
(Ord. 1343, § 1 (part), 1992)

4.18.260 Operational defects to be remedied.

The sensory mechanisms used in connection with alarm systems shall be adjusted to suppress false alarms so that the device will not be activated by impulses due to transient pressure changes in water pipes, short flashes of light, wind noises such as rattling or

vibrating of doors and windows, vehicular noises adjacent to the installation or other forces unrelated to genuine alarms. This section shall also apply to all alarm systems currently installed or being installed.
(Ord. 1343, § 1 (part), 1992)

4.18.270 Fee for false alarms—Accounting, method of billing and collection.

All false alarms shall be billed monthly to the alarm systems business, or, in the absence of an alarm systems business, the user, at a rate determined by council resolution.

(a) The emergency services personnel shall maintain a monthly, computer-generated record of all alarms occurring in the city. Said record shall be available for review by an alarm systems business, or a user, by appointment, through the appropriate emergency services office; and

(b) False alarms, which are attributed to an alarm systems business, shall be invoiced to said business monthly, and payment shall be made to the City within 30 days of the invoice date; and

(c) False alarms, which are attributed to a user, shall be invoiced by notice of the total monthly charges due on the users monthly city utility bill;

(d) False alarms occurring in multi-family dwelling units, not monitored by an alarm systems business, shall be invoiced through the multi-family dwelling city utility bill.

(Ord. 1343, § 1 (part), 1992)

4.18.280 Notices.

(a) Notice or billing from the city to any alarm system business or alarm user shall be deemed to have been given or rendered on the date such notice or billing is deposited in the United States mail, first class postage, prepaid, addressed to the alarm system business at its place of operation on file with the division or to the alarm user's residence address. A certificate of mailing signed by the person who mailed the notice shall be prima facie evidence of the fact that the notice was mailed.
(Ord. 1343, § 1 (part), 1992)

4.18.290 Excessive false alarms.

(a) If an excessive number of false alarms occur at any alarm location, written notice shall be given by the police department to the alarm systems user responsible for the system to take corrective action within 14 calendar days to prevent future false alarms. An excessive number of false alarms shall be deemed to be:

(1) More than three false alarms in any 30-day period; or

(2) More than six false alarms in any 90-day period; or

(3) More than eight false alarms in any 180-day period; or

(4) More than 12 false alarms in any 360-day period.

(b) If the corrective action is not accomplished and communicated in writing to the police department within 14 days by the alarm systems user, a duly authorized representative of the city may issue a misdemeanor citation to the alarm system user. Corrective action shall require written certification by the alarm systems user, that an inspection has been conducted and that the alarm system is safe and reliable.
(Ord. 1343, § 1 (part), 1992)

4.18.300 Violation—Penalty—Alarm system user.

A. Any alarm system user violating any of the terms and provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished, not to exceed the maximum allowable fine under NRS, or by imprisonment not to exceed six months, or by both such fine and imprisonment.

B. The minimum fine permissible under subsection A of this section shall be $250.00 plus court costs, but not to exceed the maximum allowable fine under NRS, or by imprisonment or both.
(Ord. 1343, § 1 (part), 1992)

4.18.310 Violation—Penalty—Alarm systems businesses—Licensed security and/or private patrol businesses.

Any person violating any of the terms and provisions of this chapter shall be deemed guilty of misdemeanor and upon conviction thereof shall be punished by a fine, not to exceed the maximum allowable fine under NRS, or by imprisonment in the city jail for a term not to exceed six months, or by both such fine and imprisonment; and shall subject the licensee to suspension, limitation or revocation of his license. Any person being adjudged guilty of a violation of this chapter, or any of the provisions or prohibitions thereof, may, in the discretion of the council, be denied a license thereafter.
(Ord. 1343, § 1 (part), 1992)

Chapter 4.26 RESERVED*

***Editor's note—**Ord. No. 3026, § 1, adopted June 11, 2013, repealed the former chapter 4.26, §§ 4.26.010—4.26.170 in its entirety, which pertained to cable television, and derived from Ord. No. 1867, adopted in 1998, and Ord. No. 2251, § 1, adopted in 2004.

Chapter 4.30 RESERVED*

*__Editor's note—__Ord. No. 3147, § 1, adopted April 15, 2014, repealed the former chapter 4.30, §§ 4.30.010—4.30.060 in its entirety, which pertained to right-of-way use applications, and derived from Ord. No. 2024, §§ 1—6, adopted in 2000.

Chapter 4.32 GAMBLING—REGULATIONS AND LICENSES*

Sections:

4.32.010 Definitions.
4.32.020 Declaration of policy.
4.32.030 License required.
4.32.040 Conditions applying to certain types of gaming.
4.32.050 License issuance prohibited to certain persons.
4.32.060 Licenses subject to limit.
4.32.070 Background investigation waived when—Burden of proof.
4.32.080 Background investigation required when.
4.32.090—4.32.110 Reserved.
4.32.120 Withdrawal of application—Refund.
4.32.130 Previously investigated—No fee.
4.32.140 License—Corporation—Limited liability company—Limited partnership—Changes in membership.
4.32.150 Reserved.
4.32.160 License—Permit—Transfer or lease—Council approval required.
4.32.170 Reserved.
4.32.180 License denial authority.
4.32.190—4.32.210 Reserved.
4.32.220 License classification—Requirements and restrictions.
4.32.230 Private games excluded.
4.32.240—4.32.270 Reserved.
4.32.280 Licensee's agreement to conform to law.
4.32.290 Fees—In addition to state and county fees.
4.32.300 License fees—Non-refundable.
4.32.310 City license fees—No proration.
4.32.315 Penalties—Revocation—Reinstatement.
4.32.320 Reserved.
4.32.330 Grounds for disciplinary action.
4.32.340 Requirements of confidentiality.
4.32.350 License issuance—Nonconforming uses.
4.32.360 License issuance—Non-operational status—Responsibility of licensee to maintain use.
4.32.370 Reserved.
4.32.380 Appeals—Judicial review.

***Editor's note—**Ord. No. 3104, § 1, adopted December 17, 2013, amended chapter 4.32 in its entirety to read as herein set out. Formerly, chapter 4.32, §§ 4.32.010—4.32.370, pertained to similar subject matter, and derived from Ord. No. 1691, § 2(part), adopted in 1996; Ord. No. 1824, § 1, adopted in 1998; Ord. No. 1836, §§ 1, 2, adopted in 1998; Ord. No. 2268, §§ 1—10, 13—19, 22—25, 29—32, 34—38, adopted in 2004, and Ord. No. 2906, §§ 1, 2, adopted March 1, 2011.

4.32.010 Definitions.

As used in the gaming regulations contained herein, the words and terms defined in this section have the meanings ascribed to them unless a different meaning clearly appears in the context. Any word or term not defined in this section which appears in the regulation shall have the definition ascribed by the Nevada Gaming Control Act and statutes ancillary thereto, and as defined by the regulations of the Nevada Gaming Commission unless a different meaning clearly appears in the context.

Condition means the action of the council relating to the issuance of a license or resulting from a disciplinary hearing whereby terms are imposed upon the licensee with which it must comply in order to avoid a license revocation or suspension.

Control means the direct or indirect possession of the power to direct or cause the direction of the management or policies of an entity whether through the ownership of voting securities, by contract, or otherwise.

Game or *gambling game* shall have the same meaning as contained in NRS 463.0152.

Gaming device shall have the same meaning as contained in NRS 463.0155 as may be amended or renumbered.

Limited gaming means an establishment which maintains a minimum of 75 to a maximum of 199 slot machines or gaming devices licensed and available for play, and which may have a maximum of nine live games. This category of gaming is only available for issue to applicants for a change of ownership of an existing limited gaming location.

Live game means any game or gambling game as defined in NRS 463.0152, as may be amended or renumbered, save [and] except for slot machines.

Nonrestricted gaming shall have the same meaning as "nonrestricted license" and "nonrestricted operation" as contained in NRS 463.0177 as may be amended or renumbered. This license is limited to a resort hotel or other specific nonconforming establishments as defined in section 4.32.350.

Premises means a tract of land, on which a gaming establishment is located and all buildings, improvements, parking lots, and personal property located thereon, which are connected and operated in such an integral manner as to form a part of the same operation or complex as the gaming establishment, whether or not under separate ownership or lease.

Quarter or *calendar quarter* means a period of three consecutive months commencing on the first day of January, April, July, or October, in any year.

Race book shall have the same meaning as contained in NRS 463.01855, as may be amended or renumbered.

Resort hotel means a building or group of buildings kept, used, maintained, advertised, and held out to the public to be a hotel where sleeping accommodations are offered to transient guests, which has a minimum of 200 rooms used for sleeping accommodations, and which has a minimum of the following amenities, all of which are directly connected to the building or group of buildings upon the premises:

1. One main bar with more than 30 permanent seats wherein alcoholic liquors are dispensed by the drink to customers at such bar; and

2. One service bar wherein alcoholic liquors are prepared for service only at tables and not direct to customers at such bar; and

3. Entertainment which includes at least one of the following:

a. One facility with at least 25 seats wherein live entertainment is provided by at least one professional entertainer (musician or variety artist) on a regularly scheduled basis; or

b. One facility with at least 300 seats wherein live entertainment is provided by at least one professional entertainer (musician or variety artists) on a semi-regular basis (at least six times per year).

4. One restaurant with permanent seating capacity for more than 60 patrons that is open to the public 24 hours a day, seven days per week; and

5. Room service to all rooms, including, without limitation, service of meals; and

6. A recreational facility which includes at least one of the following:

a. Four regulation tennis courts with locker rooms and attendant facilities;

b. One swimming pool that is swimmable and adequate in relationship to the size of the resort hotel as approved by the city council;

c. One regular golf course consisting of at least nine holes comprising at least 50 acres;

d. One gymnasium with dimensions of at least 40 feet in width, 60 feet in length, and 20 feet in height and equipped with exercise equipment; or

e. Any other type of recreational facility as approved by the city council.

7. A gaming area within the building or group of buildings.

When determining whether a particular applicant complies with the resort hotel definition, the city council may consider:

1. The physical layout of buildings and facilities; and

2. The unity of title and ownership of the buildings or group of buildings; and

3. The operation and management relationship of gaming to hotel administration; and

4. The proximity of the proposed resort hotel to residential development.

Restrict, in regard to council action or for violation of law, means to limit the number and/or types of games, and/or slot machines or gaming devices, which may be operated, the hours and days games may be operated, and any other limitation or confinement placed upon a licensee's operation.

Restricted gaming shall have the same meaning as "restricted license" and "restricted operation" as contained in NRS 463.0189 as may be amended or renumbered.

Slot machine shall have the same meaning as contained in NRS 463.0191 as may be amended or renumbered.

Slot route operator or *slot operator* shall have the same meaning as contained in NRS 463.018 as may be amended or renumbered.

Sports pool shall have the same meaning as contained in NRS 463.0193 as may be amended or renumbered.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.020 Declaration of policy.

A. It is found and declared that the public health, safety, morals and welfare of the inhabitants of the city require the regulation and control of all persons engaged in, associated with, or in control of the profits of the business of gaming. All such persons, as hereafter defined in this chapter, shall be licensed and controlled so as to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to assist the gaming industry to foster its stability and growth. It is further found and declared that the right to obtain such license is a privilege and that the operation of such gaming facility, when authorized by such license, is a privileged business subject to regulations, and that the license may be suspended, limited, or revoked for cause. The burden of proving qualification to receive or retain any license or finding of suitability is on the applicant.

B. The council believes that the gaming industry is vitally important to the economy of the city and the general inhabitants thereof and that the continued growth and success of the gaming industry is dependent upon public confidence and trust that licensed gaming is conducted honestly and competitively and that the gaming industry is free from criminal and corruptive elements.

C. These regulations define division procedure and regulate gaming operations within the jurisdiction of the council, but do not in any degree limit the general power of the council to grant or deny applications for licenses and to impose conditions, limitations and

restrictions upon a license for cause after hearing, or to immediately suspend or limit a license in an emergency. These regulations are to be liberally interpreted so as to grant the council final discretion in all licensing matters.
(Ord. No. 4074, § 1, 4-15-2025; Ord. No. 3104, § 1, 12-17-2013)

4.32.030 License required.

It is unlawful for any person to deal, operate, carry on, conduct, maintain, or expose for play within the city any gaming, slot machine or gaming device, race book or sports pool, without first having procured a license as herein provided.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.040 Conditions applying to certain types of gaming.

A. The city council, in its sole discretion, shall determine whether to permit a sports pool in a limited gaming establishment.

B. Any proposed increase in the gaming operation which would exceed the limits placed on a limited gaming establishment shall require the construction of a resort hotel.

C. The city council, in its sole discretion, shall have the right to eliminate the City of Henderson requirement for a resort hotel as set forth above in addition to any use permit requirement as set forth in this Code. Such waiver shall pertain to only the City of Henderson requirement and has no effect on the state's room requirement for nonrestricted gaming. The council's discretion shall be based upon an evaluation of the following factors:

1. An approved master plan; and

2. Whether the economic value to the city is of a commercial nature; and

3. Whether the project will provide permanent jobs to the Henderson economy; and

4. Whether the project will provide the construction of specific public facilities that will benefit the City of Henderson as determined solely by the Henderson city council; and

5. Would only apply to those applicants who have either an existing nonrestricted or limited gaming license at the subject premises as of the effective date of the ordinance codified in this chapter.

D. A restaurant with bar, as defined in chapter 4.36 may be allowed up to five slot machines but shall be governed by all the requirements of chapter 4.36 with respect to maintaining the restaurant with bar liquor license and may be required to obtain a use permit in accordance with title 19.

E. A restaurant with bar holding a valid restricted gaming license prior to the passage of the ordinance codified in this chapter for the operation of slot machines in excess of the limit stated in subsection D shall be deemed nonconforming. Notwithstanding the nonconforming status, the establishment shall not be permitted to expand the number of machines beyond the number in play on the effective date of the ordinance.

F. A brew pub - combo, craft distillery - combo, tavern and urban lounge as defined in chapter 4.36 may be allowed up to 15 slot machines but shall be governed by all the requirements of chapter 4.36 with respect to maintaining the appropriate liquor license and may be required to obtain a use permit in accordance with title 19.

G. A slot route operator is required to apply for and obtain a separate license for each location prior to operation.

H. A license will not be required of a location owner or lessor who rents or leases out space for 15 or fewer slot machines or gaming devices on a flat rental basis, or exercise control over the operation of the slot machines or gaming devices.

I. A license to operate bingo shall only be issued to a nonrestricted gaming location and such game shall be considered a live game.

J. A sports pool license shall only be issued to a limited or nonrestricted gaming location and such game shall be considered a live game.

K. A race book license shall only be issued to a nonrestricted gaming location and such game shall be considered a live game.
(Ord. No. 4074, § 1, 4-15-2025; Ord. No. 3104, § 1, 12-17-2013)

4.32.050 License issuance prohibited to certain persons.

The following persons are declared not qualified to hold a license under the provisions of this chapter:

1. A person who is under the age of 21 years;

2. A person who has been convicted of a crime of moral turpitude as may be further defined in chapter 4.04;

3. A person who the council determines is not a suitable person to receive or hold a license, after due consideration for the protection of the public health, safety, morals, good order and general welfare of the inhabitants of the city;

4. A person who illegally resides in the United States;

5. A person whose license, issued under the provisions of this chapter, or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of gaming operations, has been revoked for cause;

6. A person who, at the time of renewal of any license issued under this chapter, would not be eligible for such license upon a first application;

7. A partnership, limited partnership, association, or limited liability company, unless all of the partners, managers and members of such partnership, limited partnership, association or limited liability company required to submit to a background investigation have been found suitable;

8. A corporation, if any principal officer required to submit to a background investigation is not found suitable for any reason other than citizenship and residency;

9. A person whose business is controlled by a manager or agent unless that manager or agent possesses the same qualifications required of an individual licensee;

10. A person who does not beneficially own the premises for which a license is sought or does not have a lease thereon for the full period for which the license is to be used;

11. A person who is not a beneficial owner of the business to be operated by the licensee.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.060 Licenses subject to limit.

The council, in the exercise of its discretion, may limit the number of any classification of license provided for in this chapter.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.070 Background investigation waived when—Burden of proof.

A. Except as provided in section 4.32.080, an applicant, its principals or key employee(s) for a gaming license will not be required to submit to a background investigation by the City of Henderson and the city council shall determine that the applicant, its principals, or key employee(s) are suitable if the Nevada Gaming Commission has granted a license to the applicant, its principals, or key employee(s) or found the applicant, its principals or key employee(s) suitable.

B. The burden of proving receipt of the required State of Nevada gaming license or finding of suitability by the Nevada Gaming Commission is on the applicant, its principals, or key employee(s).

(Ord. No. 3104, § 1, 12-17-2013)

4.32.080 Background investigation required when.

The city council may, at any time before a city gaming license is finally approved, determine that the public health, safety, morals or welfare of the city require that a background investigation be conducted of the applicant, principals, or key employee(s) thereof notwithstanding the fact that the applicant, principal, or key employee(s) is being, or has been investigated by the Nevada Gaming Control Board or approved by the Nevada Gaming Commission.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.090—4.32.110 Reserved.

4.32.120 Withdrawal of application—Refund.

If any applicant withdraws his application prior to the background packet being submitted to the police department, all investigation fees and applicable license fees deposited with the division shall be returned to the applicant. The nonrefundable application fee shall not be returned.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.130 Previously investigated—No fee.

No investigation fee shall be required of any applicant who has been previously investigated by the City of Henderson, provided the applicant has held a privileged City of Henderson license within one year preceding the present application; however, the division may require the applicant to undergo an additional background investigation and receive council approval prior to issuance of a new license.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.140 License—Corporation—Limited liability company—Limited partnership—Changes in membership.

A. In the case of a corporate licensee, any and all changes in the officers and directors of such corporation shall be reported to the division within 30 calendar days of the appointment or election of such officers and directors. Any new corporate officer(s) or director(s) shall be required to undergo a background investigation as required by this chapter, and if recommended by the division, shall be required to appear before the council for approval of any such change.

B. In the case of a limited partnership or limited liability company, any change in ownership of the partnership or limited liability company must be reported to the division within 30 calendar days of such change. Any new partners, managers or members shall be

required to undergo a background investigation as required by this chapter, and if recommended by the division, shall be required to appear before the council for approval of any such change. Any new partners or managers may be required to qualify for a license as required in this chapter.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.150 Reserved.

4.32.160 License—Permit—Transfer or lease—Council approval required.

A. No permit granted or license issued under this chapter can be transferred except with the approval of the council. A transferee must apply to the division for the transfer of a gaming license consistent with the qualification requirements and conditions specified in this chapter.

B. If the council approves the issuance of a gaming license at a business location licensed under this chapter to a trustee, receiver, or assignee approved by a court to continue the operation of the business at the same location for the benefit of a creditor or a fiduciary, the gaming license shall be deemed transferred.

C. If the council approves the issuance of a gaming license at a business location currently licensed under this chapter to the surviving business entity of such licensee, reorganized pursuant to a plan of reorganization approved by a court, the gaming license for the same location shall be deemed transferred.

D. Any lessee of a gaming licensee shall be required to obtain a separate license prior to engaging in the business of gaming. It is unlawful for any gaming licensee to permit the licensed premises to be managed or utilized by a lessee who has not first obtained a separate gaming license.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.170 Reserved.

4.32.180 License denial authority.

In conformity with the policy of this chapter, the council may deny a license upon its discretion when:

A. In the judgment of the council, the granting of such license may tend to create or constitute a public nuisance; or

B. By the granting of such license, a disorderly establishment or place may be maintained; or

C. The granting of such license may seriously and adversely affect the valuation of neighboring, adjoining and contiguous properties; or

D. The council is satisfied that the applicant is not a fit and proper person to operate the business contemplated by his application; or

E. In the judgment of council there are ample and sufficient licensees and establishments in the area or place for which the license is to be used to properly serve such area or place.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.190—4.32.210 Reserved.

4.32.220 License classification—Requirements and restrictions.

A. An applicant may apply for any one or more gaming licenses consistent with the requirements and conditions of this chapter. The applicant shall provide on the initial application a complete description of the games and/or slot machines or gaming devices which the applicant desires to operate, and the location of the establishment wherein the gaming will take place. The license authorized by the council and issued by the division shall entitle the licensee and employees thereof to carry on, conduct, and operate only the specific type of games and number of slot machines or gaming devices for which the license is issued, and at the location stated.

B. The division shall not issue any licenses to a business without proof of the proper State of Nevada Gaming Commission license or licenses.

C. Gaming licenses for which gaming applications may be made are:

1. Restricted;

2. Nonrestricted;

3. Slot route operator.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.230 Private games excluded.

Nothing in this chapter shall be construed to prohibit social games played in private homes or residences.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.240—4.32.270 Reserved.

4.32.280 Licensee's agreement to conform to law.

Acceptance of a city gaming license by a licensee constitutes an agreement on the part of such licensee to be bound by all of the regulations of the council as the same are now set forth herein or as they may hereafter be amended or promulgated. It is the responsibility of the licensee to keep himself informed of the content of all such rules and regulations. Ignorance thereof will not excuse violations.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.290 Fees—In addition to state and county fees.

The licensee fees herein provided shall be in addition to those collected by the State of Nevada or of Clark County, Nevada.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.300 License fees—Non-refundable.

A. No license fees paid under this chapter shall be refunded after the start of the license period for which the fee has been paid, regardless of whether the operation of the business has been voluntarily terminated or the license has been revoked under the provisions of this title or for any other reason, except in the case of a clerical error or duplicate payment.

B. License fees paid for applications that are denied by the council, may be refunded.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.310 City license fees—No proration.

No gaming license fee or tax may be prorated. The following city license taxes for both regulation and revenue are assessed as follows:

A. Bingo shall be licensed at the rate of $250.00 per quarter.

B. Keno shall be licensed at the rate of $200.00 per quarter.

C. Sports pool shall be licensed at the rate of $300.00 per quarter.

D. Race book shall be licensed at the rate of $300.00 per quarter.

E. All other live games shall be licensed at the rate of $100.00 per quarter.

F. Slot machines or gaming devices shall be licensed at the rate of $35.00 per slot machine or gaming device per quarter.

G. Slot route operator shall be licensed at the rate of $200.00 per quarter.

H. For deemed transfers under HMC 4.32.160 A and B, transferees will be credited for prepaid quarterly gaming license fees paid by transferors.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.315 Penalties—Revocation—Reinstatement.

A. Any gaming license fee which is not received by the division on or before the quarterly due date shall be assessed a delinquent penalty in an amount equal to ten percent of the amount of the gaming license fee. If the quarterly license fee and penalties are not received by the division within one month of the due date, the license shall be automatically revoked on the first day of the second month.

B. Reinstatement:

1. A license which has been automatically revoked because a licensee has not complied with the quarterly license fee provisions of this section or because of non-operational status may be reinstated by the director if, not later than 60 calendar days following the date the license was automatically revoked, the licensee pays to the division:

a. The delinquent and un-paid quarterly license fee;

b. All penalties pursuant to subsection A of the section; and

c. A license reinstatement fee equal to one-half the quarterly license fee set forth in [section] 4.32.310.

2. Upon reinstatement of the license, the licensee shall be allowed to re-engage in gaming operations at the location to which the license applies. A license may not be reinstated if the business is no longer in compliance with the provisions of this title.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.320 Reserved.

4.32.330 Grounds for disciplinary action.

The council may deem that any activity on the part of a licensee, his agents, or employees, which is detrimental to the public health, safety, morals, good order, and general welfare of the people of the city, or which would reflect discredit upon the city or the gaming industry, or which violates any provision of the Nevada Gaming Control Act (NRS 463, 464, 465, 466) or any regulation of either the Nevada Gaming Commission or the council is grounds for disciplinary action in accordance with chapter 4.06. Without limiting the generality of the foregoing, each of the following are declared to be subject to disciplinary action:

A. Each licensee who violates any provision of chapter 4.32 or 4.36, or other provisions of this title; or

B. Each licensee who knowingly fails to report or conceals from the proper authorities any information which it is his duty to supply under any statute or regulation by the state gaming commission or by any regulation of the council; or

C. Each licensee who for conduct subsequent to the issuance of a license, becomes ineligible to hold a gaming license as set out in the statutes and regulations of the state gaming commission or by any regulation of the council; or

D. Each licensee who made a misrepresentation of a material fact in his application to obtain a gaming license; or

E. Each licensee who fails to correct any objectionable condition which constitutes a nuisance, or who fails to correct a hazardous condition which violates the building, planning, public works, fire, or health department codes within ten calendar days of the receipt of notice to make such correction from the proper authorities; provided, however, that the notice to correct such condition must be given in writing and must clearly state that a licensee may be disciplined if he fails to comply with the notice; or

F. Each licensee who either personally, or by his employees, knowingly conducts, carries on, operates, deals, or allows to be conducted, carried on, operated, or dealt, any cheating or thieving game or device, or deals, conducts, carries on, operates, or exposes for play any game, or games, played with cards, dice, or any mechanical device, or combination of the same, which have in any manner been marked or tampered with to deceive the public or equipped with electrical or any other device whatever, which renders the game more liable to win or lose; or

G. Each licensee who knowingly allows gambling by a minor; or

H. Each licensee, except for restricted gaming licensees, who employs a minor in the same room of the premises where gambling is being conducted; or

I. Each licensee who knowingly allows any male or female person to appear in the nude in any public area on its premises. For the purpose of this subsection the following words are defined as follows:

1. "Male or female person" means a licensee, his agents and servants, employees, or his independent contractors and their agents or employees;

2. "Nude" means the showing of the human male or female genitals, or pubic region or buttocks, while not fully covered by an opaque material; or

J. Each licensee who, subsequent to licensing, is convicted of a felony or a crime involving moral turpitude which crime is considered by the council to be a threat or hazard to the proper control of gaming, or to the public health, prosperity, safety, morals and welfare of the inhabitants of the city; or

K. Each licensee who does not take immediate steps to discharge from involvement with his gaming license any key employee who is convicted of a felony or crime of moral turpitude, or involving a violation of the gaming laws or regulations of this or any other state.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.340 Requirements of confidentiality.

It is unlawful for any person to disclose any item of personal history, financial records, audits, criminal history, or any other item contained in the investigation file to any person except in the course of the necessary administration of this chapter, or upon lawful order of a court of competent jurisdiction, or to officials of the Nevada Gaming Commission or Nevada Gaming Control Board.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.350 License issuance—Nonconforming uses.

A. The establishments licensed as nonrestricted on the date of the enactment of the ordinance codified in this chapter and which have not had a previously imposed room requirement shall be deemed nonconforming, and shall continue to be subject to license renewal so long as the licensee or approved assignee remains suitable.

B. Establishments licensed as limited gaming shall be nonconforming. Those premises currently licensed as limited may request alteration or expansion pursuant to all applicable laws and ordinances, subject to the limitations of the limited gaming category, as defined herein, and any additional limitations imposed by the city council.

C. If any nonconforming premises cease operations or become unlicensed for a period in excess of that established in title 19, the premises shall no longer be deemed nonconforming and may not be reestablished or restored unless in full compliance with all provisions of the resort hotel requirements as codified in this chapter, unless approval of closure is obtained pursuant to HMC [section] 4.32.360A and B.

(Ord. No. 3104, § 1, 12-17-2013)

4.32.360 License issuance—Non-operational status—Responsibility of licensee to maintain use.

A. In the event a gaming licensee does not commence business within one year after the approval of his license by the council, such approval or license is canceled unless he has received specific approval of the council extending the period of time in which to open.

B. In the event a gaming licensee desires to close or discontinue operations for any period of time in excess of one month, he must submit written notification to the division within 15 calendar days of the closure or discontinuance requesting approval for the non-operational status beyond the initial one-month period. The licensee may not discontinue the gaming operation for more than a one-month period and maintain a valid license without council approval. The council may approve non-operational status of the gaming operation beyond the initial one-month period in time increments not to exceed one year but in no event shall the council approve any non-operational status beyond a maximum of two years. A license shall be automatically revoked at the expiration of the time periods provided by this section unless council approval has been granted pursuant to this section. All quarterly license fees must be paid notwithstanding the licensee's non-operational status. Failure to maintain the fees will result in automatic revocation of the license and termination of the established use.

C. It shall be the responsibility of the licensee to maintain, extend, or renew any necessary land use approvals.
(Ord. No. 3104, § 1, 12-17-2013)

4.32.370 Reserved.

4.32.380 Appeals—Judicial review.

Appeal rights are the same as those set forth in section 4.04.210. Procedures for judicial review of final decisions are the same as those set forth in section 4.06.300.
(Ord. No. 3104, § 1, 12-17-2013)

Chapter 4.36 LIQUOR—REGULATIONS AND LICENSES*

Sections:

4.36.010 Definitions.
4.36.020 Purpose and intent—License required—Issuance prohibited to designated persons.
4.36.030 Unlawful to operate without license.
4.36.040 Conditions applying to specific license classifications.
4.36.045 Nonprofit—License requirements.
4.36.050 License—Application—Contents—General.
4.36.055 Certain license classifications must submit State of Nevada Department of Taxation application to city.
4.36.060 License—Applicant—Business premises required.
4.36.070 Reserved.
4.36.080 Reserved.
4.36.090 Reserved.
4.36.100 Investigation fees—Required—Fees charged.
4.36.110 Reserved.
4.36.120 Reserved.
4.36.130 Background investigation waived, when.
4.36.140 Reserved.
4.36.150 Reserved.
4.36.160 Reserved.
4.36.170 Reserved.
4.36.180 Reserved.
4.36.190 License—Issuance restrictions—Proximity of taverns specified.
4.36.200 Reserved.
4.36.210 License—Conversion of license type—Restrictions—Origination fee.
4.36.215 License—Change of location—Restrictions—Origination fee.
4.36.220 License—Permit—Transfer or assignment—Council approval required.
4.36.230 Closure or non-operational status—Responsibility of licensee to maintain use.
4.36.240 Delivery regulations.
4.36.250 Reserved.
4.36.253 Reserved.
4.36.255 Reserved.
4.36.257 Reserved.
4.36.260 City hall special event district.
4.36.270 Special events liquor permits; Water Street District special events.
4.36.280 License—Issuance moratorium.
4.36.290 Reserved.

***Editor's note—**Ord. No. 3312, § 1, adopted December 1, 2015, amended chapter 4.36 in its entirety to read as herein set out. Formerly, chapter 4.36, §§ 4.36.010—4.36.460, pertained to similar subject matter, and derived from Ord. No. 3105, § 1, adopted December 17, 2013.

4.36.300 Land use and location requirements—Compliance with title 19.
4.36.305 Establishments—Interconnectivity permitted, when.
4.36.310 Distributing off premises prohibited.
4.36.315 Distributing off premises prohibited—Exception for Water Street District.
4.36.320 Intoxication of licensee or employees on premises.
4.36.330 Providing to intoxicated person—Prohibited.
4.36.340 Distributing to minor—Establishment of policy—Copy on premises—Requirement to show.
4.36.350 Reserved.
4.36.360 Minor—Employment in licensed establishments.
4.36.370 Reserved.
4.36.380 Nevada System of Higher Education—Alcoholic beverage permit.
4.36.390 Licensed premises—Entertainment.
4.36.400 Licensed premises—Costumes of male and female employees.
4.36.410 Licensed premises—Entertainment restrictions—Pictures featuring nudity.
4.36.420 Licensed premises—Entertainment restrictions—Application.
4.36.430 License—Suspension—Revocation—Limitation.
4.36.440 Licensee responsible for the acts of employees.
4.36.450 Reserved.
4.36.460 Reserved.

4.36.010 Definitions.

The following definitions are in addition to the definitions set forth in chapter 4.04 of this title. Unless the context clearly indicates a different meaning, the definitions below shall govern the construction, meaning, and application of words and phrases used in this chapter:

Alcohol means a product of distillation of any fermented liquor, rectified either once or more often, whatever may be the origin thereof, and includes synthetic ethyl alcohol.

Alcoholic beverage, liquor or *spirits* means:

A. Beer, ale, porter, stout and other similar fermented beverages, including sake and similar products, of any name or description containing one-half of one percent or more alcohol by volume, brewed or produced from malt, wholly or in part, or from any substitute therefor.

B. Any beverage obtained by the fermentation of the natural content of fruits or other agricultural products containing sugar, of not less than one-half of one percent of alcohol by volume.

C. Any distilled spirits commonly referred to as ethyl alcohol, ethanol or spirits of wine in any form, including all dilutions and mixtures thereof from whatever process produced.

Brew pub means an establishment which manufactures malt beverages and sells those malt beverages at retail pursuant to the provisions of NRS 597.230 as may be amended or renumbered.

Brew pub - combo means a brew pub as defined herein which is also permitted to sell or serve all alcoholic beverages at retail by the drink for on-premises consumption. Gaming shall only be permitted within a brew pub establishment holding a valid brew pub - combo license and which is properly licensed pursuant to chapter 4.32 of this title.

Catering liquor means a business which:

A. Prepares food at a licensed location for delivery or service to consumers in the city, and may, in conjunction therewith, provide the service of alcoholic beverages; or

B. Delivers or serves alcoholic beverages from a licensed location to consumers in the city or at a banquet-reception hall located in the city which is operated by the catering liquor business.

Cider means an alcoholic beverage made from the fermentation of fruit juice that contains not less than one-half of one percent and not more than 14 percent of alcohol by volume.

City hall special event district means the area specified in the city hall special event district map on file electronically or in person with the city clerk's office.

Convenience store means a small retail self-service store selling a limited line of fast-moving food and nonfood items, usually with extended hours of operation and usually with a high volume of customer traffic comprised of quick transactions of a small number of items. Examples of regional convenience stores for comparison of operation are 7-Eleven, Circle K, Speedee Mart, and Green Valley Grocery.

Craft distillery means an establishment which manufactures distilled spirits from agricultural raw materials through distillation and sells those distilled spirits pursuant to the provisions of NRS Chapter 597.

Craft distillery - combo means a craft distillery as defined herein which is also permitted to sell or serve all alcoholic beverages at retail by the drink for on-premises consumption. Gaming shall only be permitted within a craft distillery establishment holding a valid craft distillery - combo license and which is properly licensed pursuant to chapter 4.32 of this title.

Demonstration meal event means an event held at a restaurant with bar or resort hotel wherein a special meal is prepared and served, with or without a fee, to invited guests only, is not open to the public and wherein beers, wines, or spirit-based products are sampled at various stages of the meal and made available for sale for off-premises consumption at the time of the event.

Estate distillery means a distillery where at least 85 percent of the agricultural raw materials from which distilled spirits are manufactured, in the aggregate, were grown on land within this state which is owned or controlled by the owner of the distillery pursuant to the provisions of NRS Chapter 597.

Full as used in full liquor on-sale or full liquor off-sale means the sale or serving of any or all of the alcoholic beverages.

Golf course means:

A. A tract of land, either public or private, laid out for at least nine holes for playing the game of golf and improved with tee boxes, greens, fairways, and hazards; and/or

B. A driving range, which is a limited area on which golf players drive golf balls from a central driving tee.

Golf courses as defined herein may include related amenities such as clubhouses, golf schools, restaurants, and pro shops. Miniature golf and/or putting course facilities and electronically simulated golf courses are not to be considered golf courses for purposes of this definition.

Grocery store means a store which is principally devoted to the sale of food for human consumption off the premises or which derives a substantial amount of its gross revenue from the sale of food for human consumption off the premises, regardless of whether the store is also devoted to or derives gross revenue from the sale of nonfood items. The store must provide canned goods, frozen foods, and areas/sections for at least two of the following: fresh fruits, fresh vegetables, fresh meat and/or dairy products. The store is not restricted from providing other food and nonfood products if they are offered in compliance with this title. The term does not include:

A. A convenience store.

B. A store at which the sale of food for human consumption off the premises is incidental to the principal purpose of the store.

Hotel means every building or other structure kept, maintained, advertised or held out to the public to be a place where sleeping accommodations are offered at daily rates to transient guests. Hotels must have a minimum of 90 rooms used for sleeping accommodations in a single or connected structure where access to the sleeping rooms is through a foyer and hallways.

Instructional wine-making facility means any facility that, for a fee, provides a person of legal age with instruction and the opportunity to participate directly in the process of wine making on the premises of the facility. The term does not include:

A. A wine maker or winery that is licensed pursuant to NRS Chapter 369, as may be amended or renumbered.

B. A university, state college or community college that is part of the Nevada System of Higher Education or any other postsecondary educational institution that is licensed by a federal or state agency and is accredited by a nationally recognized educational accrediting association.

Limited gaming shall have the same meaning as given in section 4.32.010 of this title.

Liqueur means distilled liquor produced by combining a base spirit with fruits or herbs and sweetened with sugar syrup; usually considered an after-meal drink.

Liquor delivery support service means a courier service in which an independent contractor or employee driver delivers alcoholic beverages to a customer. An order for an alcoholic beverage delivery is typically made through a website or mobile app of a full-liquor off-sale establishment, grocery store, or liquor delivery support service.

Liquor manufacturer means an establishment where the primary business is the manufacture, production, and bottling of alcoholic liquor and spirit-based products of all kinds, including brewing, distilling, and rectifying activities. A liquor manufacturer licensee is subject to all federal and state laws and regulations applicable to such business activities.

Meals means an assortment of food ordered from a pre-printed menu; the majority of the food having been prepared onsite. Menus must list a course, or courses, of food appropriate to the establishment's business model and may include items such as entrees, appetizers, side items and desserts available for purchase at various hours of the day. Menus shall always be available at the business location for review upon request of the division. In determining if proposed menus meet meal requirements as set forth in this chapter, the director, or his designee, shall, when necessary, make final determinations.

Motel means every building or other structure kept, maintained, advertised, or held out to the public to be a place that provides five or more rooms as sleeping accommodations offered at a daily rate to transient guests where access to the rooms is gained from the outside.

Nonrestricted gaming shall have the same meaning as "nonrestricted license" and "nonrestricted operation" as contained in NRS 463.0177, as may be amended or renumbered.

Nude or *nudity,* when occurring within the city, means:

A. The showing of the male or female genitals, or pubic region or buttocks, while not covered by an opaque material;

B. The showing of the human female breasts below a point immediately above the areola while not covered by an opaque material; or

C. The display of the human male genitals in a discernibly turgid state, even if completely covered.

D. In determining compliance with subsections A and B of this section:

1. The requirement of covering the genitals or pubic region or buttocks is to include complete opaque covering of the entire pelvis with either pants, shorts, skirts, or some other similar attire.

2. The covering of the human female breasts with an opaque material must not expose any of the breast below the point at which the top of the areola becomes visible.

Off-sale means the sale of alcoholic beverages in original sealed or corked containers for consumption off the premises where the same are sold or provided free of charge.

On-sale means the sale or serving of alcoholic beverages for consumption on the premises where the same are sold or provided free of charge.

Operation means the conduct of any business regulated or licensed by this chapter.

Portable bar unit means a bar, owned by the city, which may be moved at will, or operated intermittently, from which alcoholic liquor may be served or sold at retail directly or by waitresses or waiters to customers or patrons.

Process of wine making means the usual and customary steps taken to produce wine, which may include, without limitation:

A. Growing, buying and importing agricultural products and ingredients.

B. Selecting, preparing and processing agricultural products and ingredients.

C. Barreling, fermenting, aging, filtering, bottling, labeling, racking, warehousing and storing.

D. Importing bulk wine or juice from a bonded winery in another state, to be fermented into wine or, if already fermented, to be blended with other wine and aged in a suitable cellar.

Resort hotel shall have the same meaning as given in section 4.32.010 of this title.

Resort village means a pedestrian-oriented, mixed-use project of at least five acres located in a CM or CT zoning district and within a master-planned development which also contains a resort hotel. The resort village must be adjacent to the resort hotel and developed in accordance with the purposes and intent of the CM or CT district as set forth in title 19. A resort village located outside of the Las Vegas Boulevard gaming corridor or the rural Clark County gaming zone, as such terms are defined in Nevada Revised Statutes Chapter 463, shall not contain more than three taverns. Each of such taverns may be licensed to operate a maximum of 15 slot machines. Parking is to be located predominantly at the perimeter of the resort village with no more than one percent of the parking located

in the interior of the resort village. These restrictions do not include any parking reserved for the exclusive use of residents of the resort village. Such resident parking must be restricted from public use.

Restaurant means a place or space in a suitable building kept, used, maintained, advertised and/or held out to the public to be a place in which the primary business is to serve meals for onsite or offsite consumption and where only a service bar is allowed.

Restaurant with bar means a place or space in a suitable building kept, used, maintained, advertised and/or held out to the public to be a place in which the primary business is to serve meals for onsite or offsite consumption and has food available for service during all times that alcoholic beverages are sold and wherein there is a fixed or permanent barrier to ensure separation between the bar/lounge area and the dining area sufficient to exclude minors from the bar/lounge area.

Sale means the act of selling and, in connection therewith, "sell" means, for compensation or any other private or public business purpose at a commercial location, to sell, serve, give away, or distribute; or to cause or permit to be sold, served, given away or distributed or to possess with the intent to sell, serve, permit consumption, give away or distribute; or to solicit or receive orders to sell, serve, give away or distribute.

Service bar means a place at which drinks are prepared for service by employees to patrons away from the service bar area. A service bar does not permit sales directly to customers and must not include any sit-down bar/lounge area.

Special events liquor permit means a permit which authorizes the permittee to sell, serve, or give away alcoholic beverages for consumption only on the premises for which the permit is issued and only for such time as specified on the permit.

Spirit-based products means a distillate obtained from the fermentation of the natural contents of fruits or other agricultural products containing natural or added sugar and which contains not more than 14 percent of alcohol by volume. For purposes of this chapter, spirit-based products must be in the same classification as beer and wine.

Sport venue establishment, for purposes of this chapter, means an establishment that may combine retail, restaurant, and recreational uses on one or more adjacent parcels of land under the same ownership that:

A. Is affiliated with a professional sports team;

B. Contains one or more playing areas for use by the affiliated professional sports team; and

C. Contains at least two of the following:

1. Minimum of 2,500 square feet of retail space;

2. Playing area (field, court, rink, etc.) available for public recreational opportunities, including practice, tournaments, league play, etc., or other uses available to the general public;

3. Restaurant/food venue;

4. Restaurant with bar;

5. Conference/event space; or

6. Administrative/professional office space for use by the affiliated professional sports team.

Tavern means an establishment primarily engaged in selling or serving alcoholic beverages at retail by the drink to the general public for on-premises consumption, with the ability to request approval for the following ancillary activities: a dance hall, live entertainment, food service, and restricted gaming.

Title 19 means title 19 of the Henderson Municipal Code.

Travel center means an establishment covering at least five acres which sells fuel, lubricating oil, and other vehicular merchandise such as batteries, tires, or vehicle parts for 18-wheel tractor-trailers, and which also meets all the following criteria:

A. It must be located adjacent to a major state or interstate highway.

B. It must have an on-site restaurant which shall provide the following:

a. Seating for at least 25 patrons.

b. Must be open at least 12 hours per day.

c. Offer meals as defined in the section.

C. It must have a parking area which complies with title 19 which shall accommodate a minimum of 25 18-wheel tractor trailer motor vehicles.

D. It must provide gasoline and diesel fuel facilities. The fuel facility shall offer, in the regular course of business, fuel sales for individual vehicle consumption.

E. It must have at least three of the following amenities:

a. A separate truckers' television lounge.

b. A full-service laundry facility located in a convenient area for truckers' use.

c. Private showers for men and women and not in an area open to general public restroom facilities.

d. A travel store with items commonly referred to as truckers' supplies (items commonly used only by commercial motor vehicles).

e. Truck scales.

Urban lounge means an establishment, primarily engaged in selling or serving alcoholic beverages at retail by the drink to the general public for on-premises consumption, which includes a live entertainment component in compliance with the provisions of title 19 and chapter 4.3 of the Downtown Henderson Master Plan.

Water Street District means the area designated as the Water Street District in the City of Henderson Downtown Master Plan. The Water Street District is generally described as being bounded as follows:

The Water Street District is bounded by Lake Mead Parkway to the north, Ocean Avenue to the south, Lead Street and Magnesium Street and residential properties along West Pacific Avenue to the west, South Texas Avenue and East Atlantic/Pacific Avenue and Arkansas Avenue to the east.

Water Street District special event means an event approved by the city that includes a partial or complete road closure to through traffic on Water Street between Ocean Street to the South and Lake Mead Parkway to the North.

Water Street District special events corridor means the area of Water Street bordered by Ocean Street to the South and Lake Mead Parkway to the North, including Purple Heart Street, Market Street and West Army Street between Water Street and Market Street.

Wholesale/import means a business in which the owner is authorized to sell liquor as it is originally packaged to retail establishments or other wholesalers or is authorized to be the first person in possession of alcoholic beverages within the state after completion of the act of importation into the state.

Wine means any alcoholic beverage obtained by the fermentation of the natural content of fruits or other agricultural products containing sugar.

Winery means a business which produces, bottles, blends or ages wine, or that imports wine or juice from a winery located in another state to be fermented into wine, and that:

A. Has been issued a winemaker's license in accordance with NRS 369.200; and

B. Is bonded and permitted in accordance with NRS 597.240.

(Ord. No. 4023, § 1, 5-21-2024; Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3388, § 1, 2-21-2017; Ord. No. 3312, § 1, 12-1-2015)

4.36.020 Purpose and intent—License required—Issuance prohibited to designated persons.

A. The public health, safety, morals and welfare of the inhabitants of the city require the regulation and control of all persons engaged in the business of alcoholic beverage sales. All such persons as defined in this chapter shall be licensed and controlled to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public.

B. The right to obtain such license is a privilege and the operation of such alcoholic beverage sales facilities, when authorized by such license, is a privileged business subject to regulations. The license may be revoked for violation of the conditions of this chapter, the laws of the state, other ordinances of the city, or for any other cause deemed sufficient by the council in the exercise of its sole discretion.

C. In conformity with the policy of this chapter, the following persons are declared not to be qualified to hold a license under the provisions of this chapter:

1. A person who is under the age of 21 years;

2. A person who has been convicted of a crime of moral turpitude as may be further defined in chapter 4.04;

3. A person who the director, after investigation, determines is not a suitable person to receive or hold a license, after due consideration for the protection of the public health, safety, morals, good order and general welfare of the inhabitants of the city;

4. A person who illegally resides in the United States;

5. A person whose license, issued under the provisions of this chapter or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of liquor sales, has been suspended or revoked for cause;

6. A person, who at the time of renewal of any license issued under this chapter, would not be eligible for such license upon a first application;

7. A partnership, limited partnership, association or limited liability company, unless all the partners, managers and members of such partnership, limited partnership, association or limited liability company required to submit to a background investigation have been found suitable;

8. A corporation, if any principal officer required to submit to a background investigation is not found suitable for any reason other than citizenship and/or residency;

9. A person whose place of business is controlled by a manager or agent unless such manager or agent possesses the same qualifications required of an individual licensee;

10. A person who does not beneficially own the premises for which a license is sought or does not have a lease thereon for the full period for which the license is to be used; or

11. A person who is not a beneficial owner of the business to be operated by the licensee.

D. In conformity with the policy of this chapter, the council may deny a license upon its discretion when:

1. In the judgment of the council the granting of such license may tend to create or constitute a public nuisance;
2. By the granting of such license, a disorderly establishment or place may be maintained;
3. The granting of such license may seriously and adversely affect the valuation of neighboring, adjoining, and/or contiguous property;
4. The council, after investigation, is satisfied that the applicant is not a fit and proper person to operate the business contemplated by his application;
5. In the judgment of the council there are ample and sufficient licensees and establishments in the area or place for which the license is to be used to properly serve such area or place; or
6. For any other good and sufficient reason.

E. Any business in existence on the effective date of the ordinance codified in this chapter which does not conform to the provisions of this chapter shall be deemed a nonconforming use and shall be subject to title 19.
(Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.030 Unlawful to operate without license.

It is unlawful for any person to operate, conduct, carry on, or maintain any alcoholic beverage business, as described in this chapter, without first obtaining a license and thereafter maintaining the license as herein required and paying the license fee as set forth in chapter 4.05.
(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.040 Conditions applying to specific license classifications.

A. Beer, wine, spirit-based products, liquor and liqueur tasting licenses are subject to the following:

1. The beer, wine, spirit-based products, liquor and liqueur tasting license may only be issued to a business that has a valid beer, wine, and spirit-based products off-sale license, a full liquor off-sale license or to a wholesale liquor distributor holding a valid wholesale/import liquor license.
2. The beer, wine, spirit-based products, liquor and liqueur tasting license allows for any number of tastings on the premises of any such beer, wine, and spirit-based

products off-sale business or full liquor off-sale business whether conducted by employees of such business or employees or representatives of a wholesale liquor distributor holding a valid wholesale/import liquor license.

3. The samples provided must be the same classification of alcohol permitted to be sold in relation to the active license held by the licensee as required pursuant to subsection 4.36.040(A)(1).

4. The beer, wine, spirit-based products, liquor and liqueur tasting license allows the free distribution of samples of beer, wine, spirit-based products not to exceed one ounce per sample and such samples shall not exceed four per day.

5. The beer, wine, spirit-based products, liquor and liqueur tasting license allows the free distribution of samples of liquor or liqueur not to exceed one-quarter ounce per sample and such samples shall not exceed four per day.

6. The beer, wine, spirit-based products, liquor and liqueur tasting license allows the distribution of samples at more than one location at one time by wholesale liquor distributors holding a valid wholesale/import liquor license.

B. Brew pubs are subject to the following:

1. Brew pubs shall conform to the requirements of title 19 as it relates to regulations for brew pubs/microbreweries/craft distilleries.

2. Brew pubs are permitted to:

a. Manufacture and store malt beverages on the premises of the business subject to limitations imposed by NRS Chapter 597 as may be amended or renumbered;

b. Sell at retail, malt beverages manufactured on or off the premises of the business for consumption on the premises;

c. Sell at retail, malt beverages manufactured, packaged, and sealed on the premises of the business for off-premises consumption;

d. Sell and transport the malt beverages manufactured on the premises in accordance with NRS Chapter 597 as may be amended or renumbered;

e. Sell at retail, wine, manufactured off the premises, for consumption on the premises; and

f. Allow minors to be present in the establishment:

I. If compliance with NRS 202.030 through NRS 202.060 is maintained; and

II. Only when the minor is accompanied by an individual 21 years of age or older.

III. A menu demonstrating compliance must be submitted for review and approval by the division prior to issuance of the license and upon request by the division thereafter.

3. Brew pubs must comply with all requirements of NRS Chapter 597 as may be amended or renumbered.

4. Brew pubs must conspicuously identify the premises as a "brew pub."

5. Brew pub establishments may sell at retail or serve cider produced manufactured on the premises with no additional origination fee subject to the following:

a. The licensee must obtain a city-issued winery license as set forth in section 4.36.040(V) and paying the license fee as set forth in chapter 4.05;

b. The licensee must obtain wine-maker's license from the state issued pursuant to NRS chapter 369; and

c. The establishment must maintain compliance with all relevant city, state and federal laws, including but not limited to the applicable provisions of Title 4, NRS Chapters 369 and 597, and the requirements of the Alcohol and Tobacco Tax and Trade Bureau.

C. Brew pub - combo establishments are subject to the following:

1. Brew pub - combo establishments located in and owned or operated by a nonrestricted or limited gaming licensee shall not be required to obtain a brew pub - combo license. Operations shall be covered under the licensee's nonrestricted/limited gaming liquor license. Notwithstanding the forgoing, the licensee must comply with provisions of this section.

2. Brew pub - combo licensees not identified in subsection C(1) shall conform to the requirements of title 19 as it relates to regulations for brew pubs/microbreweries/craft distilleries.

3. Brew pub - combo establishments are permitted to:

a. Manufacture and store malt beverages on the premises of the business subject to limitations imposed by NRS Chapter 597 as may be amended or renumbered;

b. Sell at retail, malt beverages manufactured on or off the premises of the business for consumption on the premises;

c. Sell at retail, malt beverages manufactured, packaged, and sealed on the premises of the business for off-premises consumption;

d. Sell and transport the malt beverages manufactured on the premises in accordance with NRS Chapter 597 as may be amended or renumbered; and

e. Sell or serve all alcoholic beverages at retail by the drink for on-premises consumption.

4. Brew pub - combo establishments must comply with all requirements of NRS Chapter 597 as may be amended or renumbered.

5. Brew pubs must conspicuously identify the premises as a "brew pub."

6. Brew pub - combo establishments providing restricted gaming operations with one to five machines, regardless of the ownership of the slot machines, are subject to the following:

a. The establishment shall comply with NRS 463.161, as may be amended or renumbered; and

b. All machines must be embedded in the bar top.

7. Brew pub - combo establishments providing restricted gaming operations with six to 15 machines, regardless of the ownership of the slot machines, are subject to the following:

a. The establishment shall contain a permanent bar as defined in NRS 463.161, as may be amended or renumbered;

b. The establishment shall conform to the requirements of title 19 as it relates to regulations for restricted gaming use standards;

c. Meals are to be served during all hours that the restaurant, as required pursuant to title 19, is open for business;

d. The establishment shall always maintain a minimum of two staff members on duty; and

e. A minimum of eight slot machines must be embedded in the bar top for locations with eight to 15 machines. Locations with six to seven slot machines must embed all machines.

8. Brew pub establishments may sell at retail or serve cider produced manufactured on the premises with no additional origination fee subject to the following:

a. The licensee must obtain a city-issued winery license as set forth in section 4.36.040(V) and paying the license fee as set forth in chapter 4.05;

b. The licensee must obtain wine-maker's license from the state issued pursuant to NRS chapter 369; and

c. The establishment must maintain compliance with all relevant city, state and federal laws, including but not limited to the applicable provisions of Title 4, NRS Chapters 369 and 597, and the requirements of the Alcohol and Tobacco Tax and Trade Bureau.

D. Artisan's beer and wine room establishments are subject to the following:

1. An artisan's beer and wine room establishment license shall only be issued to an establishment holding a current brew pub or winery license issued by the State of Nevada Department of Taxation and an associated valid license from the jurisdiction in which the brew pub or winery is located.

2. Such license authorizes the sale of beer, wine and cider by the licensee for on-premises consumption.

3. Seventy-five percent of the product offered at the establishment must be manufactured by the licensee.

4. Service of alcohol may be from a bar or service bar.

5. Minors are permitted to be present in the establishment if compliance with NRS 202.030 through NRS 202.060 is maintained but only when the minor is accompanied by an individual 21 years of age or older; and a menu demonstrating compliance must be submitted for review and approval by the division prior to issuance of the license and upon request by the division thereafter.

6. Off-sale activity at artisan's beer and wine rooms shall be limited to only that listed in subsection 4.36.040(W); and prepacked items manufactured by the licensee which shall not exceed 32 ounces in a single container.

7. The purchase at wholesale and sale for consumption of beer, wine and cider shall comply with all relevant state and federal laws regarding the manufacture and sale of the alcoholic beverages, including but not limited to NRS Chapters 369 and 597.

8. Gaming is prohibited.

E. Wine lounge establishments are subject to the following:

1. Such license authorizes the sale of wine by the licensee for on-premises or off-sale consumption.

2. Service of wine may be from a bar or service bar.

3. Minors are permitted to be present in the establishment if compliance with NRS 202.030 through NRS 202.060 is maintained but only when the minor is accompanied by an individual 21 years of age or older; and a menu demonstrating compliance must be submitted for review and approval by the division prior to issuance of the license and upon request by the division thereafter.

4. Gaming is prohibited.

5. The purchase at wholesale and sale for consumption of wine shall comply with all relevant state and federal laws regarding the manufacture and sale of alcoholic beverages, including but not limited to NRS Chapters 369 and 597.

F. Craft distilleries are subject to the following:

1. All craft distilleries shall conform to the requirements of title 19 as it relates to regulations for brew pubs/microbreweries/craft distilleries.

2. Craft distilleries are permitted to:

a. Manufacture spirits through distillation, blend, age, store and bottle the spirits so manufactured on the premises of the business subject to the limitations imposed by NRS Chapter 597 as may be amended or renumbered.

b. Manufacture spirits for export pursuant to NRS Chapter 597 as may be amended or renumbered.

c. Serve samples of the spirits manufactured at the establishment. However, such served samples must not exceed a sample size of one-quarter ounce and shall be limited to four fluid ounces in volume, per person, per day.

d. On the premises of the craft distillery, sell the spirits manufactured at the craft distillery at retail for consumption on or off the premises.

i. Such spirits sold at retail for off-premises consumption must not exceed one case of spirits, per person, per month and may not exceed, per person, per year, six cases of spirits.

ii. Spirits purchased on the premises of a craft distillery must not be resold by the purchaser or any retail liquor store.

iii. For purposes of this section, "case of spirits" means 12 bottles, each containing 750 milliliters of distilled spirits.

e. Sell and transport the spirits manufactured on the premises in accordance with NRS Chapter 597 as may be amended or renumbered.

f. Donate for charitable or nonprofit purposes and transport neutral or distilled spirits manufactured at the craft distillery in accordance with the terms and conditions of a special permit for the transportation of the neutral or distilled spirits obtained from the department of taxation pursuant to subsection 4 of NRS 369.450.

g. Transfer in bulk neutral or distilled spirits manufactured at the craft distillery to a supplier. Any such transfer:

i. Is taxable only when the neutral or distilled spirits are rectified and bottled in original packages for sale within this state; and

ii. Is not a sale for the purposes of NRS 597.235(2)(b) or manufacturing for exportation for the purposes of NRS 597.235(2)(c).

h. Allow minors to be present in the establishment:

i. If compliance with NRS 202.030 through NRS 202.060 is maintained; and

ii. Only when the minor is accompanied by an individual 21 years of age or older.

iii. A menu demonstrating compliance must be submitted for review and approval by the division prior to issuance of the license and upon request by the division thereafter.

3. Craft distilleries must comply with all requirements of NRS Chapter 597 as may be amended or renumbered.

G. Craft distillery - combo establishments and licensees are subject to the following:

1. Craft distillery - combo establishments located in and owned or operated by a nonrestricted or limited gaming licensee shall not be required to obtain a craft distillery - combo license. Operations shall be covered under the licensee's nonrestricted/limited gaming liquor license. Notwithstanding the foregoing, the licensee must comply with provisions of this section.

2. Craft distillery - combo establishments not identified in subsection G(1) shall conform to the requirements of title 19 as it relates to regulations for brew pubs/microbreweries/craft distilleries.

3. Craft distillery - combo licensees are permitted to sell or serve all alcoholic beverages at retail by the drink for on-premises consumption.

4. Craft distillery - combo establishments must comply with the requirements of NRS Chapter 597 as may be amended or renumbered.

5. Craft distillery - combo establishments are permitted to:

a. Manufacture spirits through distillation, blend, age, store and bottle the spirits so manufactured on the premises of the business subject to the limitations imposed by NRS Chapter 597 as may be amended or renumbered.

b. Manufacture spirits for export pursuant to NRS Chapter 597 as may be amended or renumbered.

c. Serve samples of the spirits manufactured at the establishment. However, such served samples must not exceed a sample size of one-quarter ounce and shall be limited to four fluid ounces in volume, per person, per day.

d. On the premises of the craft distillery - combo establishment, sell the spirits manufactured at the establishment at retail for consumption on or off the premises.

i. Such spirits sold at retail for off-premises consumption must not exceed one case of spirits, per person, per month and may not exceed, per person, per year, six cases of spirits. The licensee is responsible to keep

records sufficient to ensure compliance with this requirement. The records must be always available for inspection by an officer of the division during the ordinary hours of business.

ii. Spirits purchased on the premises of a craft distillery - combo establishment must not be resold by the purchaser or any retail liquor store.

iii. For purposes of this section, "case of spirits" means 12 bottles, each containing 750 milliliters of distilled spirits.

e. Sell and transport the spirits manufactured on the premises in accordance with NRS Chapter 597 as may be amended or renumbered.

f. Donate for charitable or nonprofit purposes and transport neutral or distilled spirits manufactured at the craft distillery-combo establishment in accordance with the terms and conditions of a special permit for the transportation of the neutral or distilled spirits obtained from the Department of Taxation pursuant to subsection 4 of NRS 369.450.

g. Transfer in bulk neutral or distilled spirits manufactured at the craft distillery-combo establishment to a supplier. Any such transfer:

i. Is taxable only when the neutral or distilled spirits are rectified and bottled in original packages for sale within this state; and

ii. Is not a sale for the purposes of NRS 597.235(2)(b) or manufacturing for exportation for the purposes of NRS 597.235(2)(c).

h. Allow minors to be present in the establishment:

i. If compliance with NRS 202.030 through NRS 202.060 is maintained; and

ii. Only when the minor is accompanied by an individual 21 years of age or older.

iii. A menu demonstrating compliance must be submitted for review and approval by the division prior to issuance of the license and upon request by the division thereafter.

6. Craft distillery - combo establishments providing restricted gaming operations with one to five machines, regardless of the ownership of the slot machines, are subject to the following:

a. The establishment shall comply with NRS 463.161, as may be amended or renumbered; and

b. All machines must be embedded in the bar top.

7. Craft distillery - combo establishments providing restricted gaming operations with six to 15 machines, regardless of the ownership of the slot machines, are subject to the following:

a. The establishment shall contain a permanent bar as defined in NRS 463.161 3(a), as may be amended or renumbered.

b. The establishment shall conform to the requirements of title 19 as it relates to regulations for restricted gaming use standards.

c. Meals are to be served during all hours that the restaurant, required pursuant to title 19, is open for business.

d. The establishment shall always maintain a minimum of two staff members on duty.

e. A minimum of eight slot machines must be embedded in the bar top for locations with eight to 15 machines. Locations with six to seven slot machines must embed all machines.

H. Estate distilleries are subject to the following:

1. All estate distilleries shall conform to the applicable requirements of title 19.

2. Estate distilleries are permitted to:

a. Manufacture spirits from agricultural raw materials, provided that 85 percent of such agricultural raw materials, in the aggregate, were grown on land within this state which is owned or controlled by the owner of the distillery, through distillation, blend, age, store and bottle the spirits so manufactured on the premises of the business subject to the limitations imposed by NRS Chapter 597 as may be amended or renumbered.

b. Manufacture spirits for export pursuant to NRS Chapter 597 as may be amended or renumbered.

c. Serve samples of the spirits manufactured at the establishment. However, such served samples must not exceed a sample size of one-quarter ounce and shall be limited to four fluid ounces in volume, per person, per day.

d. On the premises of the estate distillery, sell the spirits manufactured at the estate distillery at retail for consumption on or off the premises.

i. Such spirits sold at retail for off-premises consumption must not exceed one case of spirits, per person, per month and may not exceed six cases of spirits, per person, per year. The total amount of such spirits sold at retail for off-premises consumption must not exceed 7,500 cases per

year. The operator of an estate distillery shall prominently display on the premises a notice that the resale of spirits purchased on the premises is prohibited.

ii. Spirits purchased on the premises of an estate distillery must not be resold by the purchaser or any retail liquor store.

iii. For purposes of this section, "case of spirits" means 12 bottles, each containing 750 milliliters of distilled spirits.

e. Sell and transport the spirits manufactured on the premises in accordance with NRS Chapter 597 as may be amended or renumbered.

i. Except as otherwise provided in paragraphs (f) and (g) below, in any calendar year, an estate distillery may sell and transport in Nevada not more than a combined total of 75,000 cases of spirits at the estate distillery to a person who holds a license to engage in business as a wholesale dealer of liquor pursuant to NRS Chapter 369.

ii. In any calendar year, a person who operates an estate distillery may manufacture for exportation to another state, not more than a combined total of 400,000 cases of spirits at all the estate distilleries the person operates.

f. Donate for charitable or nonprofit purposes and transport neutral or distilled spirits manufactured at the estate distillery in accordance with the terms and conditions of a special permit for the transportation of the neutral or distilled spirits obtained from the department of taxation pursuant to subsection 4 of NRS 369.450.

g. Transfer in bulk neutral or distilled spirits manufactured at the estate distillery to a supplier. Any such transfer:

i. Is taxable only when the neutral or distilled spirits are rectified and bottled in original packages for sale within this state; and

ii. Is not a sale for the purposes of section (e)(i) or manufacturing for exportation for the purposes of section (e)(ii) above.

h. Allow minors to be present in the establishment:

i. If compliance with NRS 202.030 through NRS 202.060 is maintained; and

ii. Only when the minor is accompanied by an individual 21 years of age or older.

iii. A menu demonstrating compliance must be submitted for review and approval by the division prior to issuance of the license and upon request by the division thereafter.

3. Estate distilleries must comply with all requirements of NRS Chapter 597 as may be amended or renumbered.

I. Gift basket liquor licenses are subject to the following:

1. The licensee is only permitted to sell or give away alcoholic beverages in original sealed containers and only in conjunction with the sale or gift of any gift basket containing items of a non-alcoholic nature.

2. Any deliveries shall be done in accordance with section 4.36.240.

J. Golf course liquor licenses are subject to the following:

1. A golf course liquor license may only be issued to a golf course holding a valid gross sales license.

2. The licensee is permitted to sell, serve, give away or distribute alcohol on the golf course, within the clubhouse and within any restaurant or bar licensed as part of the golf course operation; and operated using the same business name and by the same licensee.

3. The golf course liquor license does not permit the sale of alcohol for off-premises consumption.

4. The sale of alcohol for off-premises consumption is prohibited.

5. Golf courses which have been granted a license for the sale of off-premises alcohol consumption prior to March 11, 2013, are exempt from the provisions of subsection J(4) of this section until such time as there is any change in ownership or change in location.

6. It is the intent of this section that gaming is merely ancillary to golf, food, and beverage services offered by the golf establishment. Therefore, a golf course establishment with a restaurant and bar may be permitted to have a maximum of five slot machines subject to the following conditions:

a. Meals are to be served during all hours that the bar/lounge is open for business.

b. There shall be no freestanding for-play slot machines.

c. All for-play slot machines must be embedded in the bar top of the restaurant with bar.

d. The restaurant must not be advertised or otherwise held out to be a liquor or gaming establishment.

K. Grocery store internet and telephone liquor sales licenses are subject to the following:

1. A grocery store internet and telephone liquor sales license may only be issued to a grocery store holding a valid full liquor off-sale license.

2. An online or telephonic order of alcoholic beverages must be placed by an individual of legal age, in conjunction with an order of groceries ordered in the same purchase.

3. An order placed under this subsection may be picked up by the purchaser at the licensee's premises or delivered subject section 4.36.240.

L. Instructional wine-making facilities shall be subject to the following:

1. Instructional wine-making facilities must comply with the requirements of NRS Chapter 597 as may be amended or renumbered.

2. Instructional wine-making facilities are permitted to:

a. Engage in the process of wine making on the premises of the facility.

b. Charge a fee to persons of legal age for the purpose of providing to those persons instruction and the opportunity to participate directly in the process of wine making on the premises.

c. Serve wine produced on the premises of the facility by the glass for consumption on the premises of the facility.

3. Wine produced on the premises of the instructional wine-making facility must be:

a. Used, consumed or disposed of on the premises of the facility; or

b. Distributed from the facility to a person of legal age who has participated directly in the process of the wine making at the facility for the person's own household or personal use.

4. Persons who have directly participated in the wine-making process and removed wine from the facility in compliance with all applicable governmental requirements may distribute the wine to any other person of legal age as a gift.

M. Nonrestricted/limited gaming liquor licenses are subject to the following:

1. A nonrestricted/limited gaming liquor license is only available to an establishment holding a nonrestricted gaming license or limited gaming license pursuant to chapter 4.32.

2. Such license authorizes the sale of alcohol by the licensee for on-premises consumption.

3. All on-sale alcoholic beverage activity conducted by the licensee at the business establishment shall be covered under the nonrestricted/limited gaming liquor license.

4. Off-sale activity, other than that listed in subsection 4.36.040(L)(6), and all liquor activity conducted by independent owners/operators within the establishment is not authorized under the nonrestricted/limited gaming liquor license.

5. Appropriate application must be made for off-sale activity or for independently owned operations within the nonrestricted gaming establishment.

6. The off-sale of beer, wine and spirit-based products may be permitted with no additional origination fee or license fee when the sale is done as part of, and at the time of, a demonstration meal event at a resort hotel. Meals and meal service for the demonstration event must be provided in compliance with this title.

N. Off-sale licenses are subject to the following:

1. The sale or purchase of liquor and/or beer, wine and spirit-based products through a drive-up or drive-through window is prohibited unless authorized under section 4.36.240.

2. The sale of liquor other than beer, wine, and spirit-based products, in a convenience store, travel center, gasoline sales establishment, or other similar business, is prohibited.

a. Convenience stores which have been granted a valid full liquor off-sale license as of February 3, 2013 are exempt from the provisions of this subsection until such time as there is any change in ownership or location of such business.

b. Convenience stores located in a resort village are exempt from this prohibition.

3. The off-sale of beer, wine, and spirit-based products is permitted at a restaurant with bar or resort hotel with no additional origination fee or license fee if the sale is done as part, of and at the time of, a demonstration meal event. Meals and meal service for the demonstration event must be provided in compliance with this title.

4. Grocery stores holding a valid beer, wine, and spirit-based products off-sale or full liquor off-sale license are permitted to conduct alcoholic beverage tasting or oversee alcoholic beverage tasting on the business premises upon receipt of written approval from the division.

a. The licensee is responsible to request the written approval from the division to conduct the events and must do so by submitting a written request to the division. Once approval is obtained from the division to provide said events, approval may be continued without further written requests based on the establishment maintaining valid licensing for the location.

b. The licensee is not required to obtain an additional license or permit to conduct tasting events.

c. The classification of alcoholic beverages being provided during the tasting event must be covered under the license the business currently holds.

5. Only beer, wine, and spirit-based products off-sale licenses may be issued to motels.

6. Off-sale activity at taverns shall be limited to only that listed in subsection 4.36.040(W).

a. Taverns which have been granted a valid full liquor off-sale license as of February 6, 2003 are exempt from the provisions of this subsection until such time as there is any change in ownership or location of such business.

b. Taverns which have been granted a valid beer, wine, and spirit-based products off-sale license as of July 9, 2013 are exempt from the provisions of this subsection until such time as there is any change in ownership or location of such business.

7. With the exception of the activity listed in subsection 4.36.040(M)(3), off-sale activity at restaurants with bar and restaurants with a service bar shall be limited to only that listed in subsection 4.36.040(W).

a. Locations which have been granted a valid Restaurant with bar license as of November 18, 2015, or restaurants with a service bar which have been granted a valid beer, wine, and spirit-based products off-sale license as of December 2, 2015, are exempt from the provisions of this subsection until such time as there is any change in ownership or location of such business.

8. Grocery stores with a minimum of 40,000 square feet may obtain a beer, wine and spirit-based products on-sale license; restaurant with bar license; beer, wine, and spirit-based products off-sale license and/or full liquor off-sale license or any combination of licenses thereof.

O. Portable bar operator licenses are subject to the following:

1. This license may only be issued to liquor licensees located within a sport venue establishment; to brew pubs and wineries holding a valid license issued by the State of Nevada Department of Taxation, and a jurisdictional license from the jurisdiction in which the business is located; and to current on-sale liquor licensees within the Water Street District.

2. Portable bar units shall be owned by the city.

3. Portable bar units shall only be operated on city property during approved events.

4. Participation in events shall be at the sole discretion of the city.

5. Alcohol distributed by the licensee shall be limited to the same classification of alcohol as the liquor license held by the licensee.

6. Alcoholic beverages shall be provided in paper or plastic cups, not to exceed 16 ounces, and must include the city hall special event district logo.

7. Licensee shall limit sales of alcohol to a maximum of two single servings per person per purchase/transaction.

8. Licensee shall not sell or otherwise distribute any single-serving products containing alcohol for immediate consumption by a patron, including, but not limited to, candy, gelatin shots, or other products containing alcohol that are not considered alcoholic beverages; and

9. Licensee shall not sell alcohol to an individual who is intoxicated.

P. Restaurants are subject to the following conditions:

1. All alcoholic beverages must be served with meals at tables or booths in the dining area from a service bar only. A lounge or bar area where alcoholic beverages are sold, served or given away to patrons or the general public by the drink is prohibited.

2. It is the intent of this section that the service of alcoholic beverages is merely an adjunct to the meals offered and that the restaurant must not be advertised or otherwise held out to be a liquor establishment, or any other type of establishment.

3. All existing restaurants that serve liquor and/or beer, wine and spirit-based products and do not have a bar/lounge area, shall be considered a restaurant as defined in section 4.36.010.

4. Restaurants with no alcoholic beverage service or those limited to service of alcoholic beverages from a service bar shall not be permitted to operate slot machines at the establishment.

5. Restaurants licensed prior to December 17, 2013, with a beer, wine, and spirit-based products on-sale or full liquor on-sale license and with a valid license for the operation of gaming shall be deemed nonconforming and shall be subject to license renewal as long as the licensee remains suitable. Such nonconforming licenses may not be expanded or enlarged beyond the number of slot machines licensed on December 17, 2013.

Q. Restaurants with bar are subject to the following:

1. Meals are to be served during all hours that the bar/lounge is open for business and must maintain a minimum of three staff members on duty at all such times. Notwithstanding the foregoing, preexisting nonconforming restaurants with bar with a minimum of 15 slot machines that were permitted to operate 24 hours as of December 17, 2013, may reduce staffing to a minimum of two personnel on the premises between 2:00 a.m. and 6:00 a.m.

2. The restaurant with bar shall conform to the requirements of title 19 as it relates to regulations for restaurants with bar.

3. It is the intent of this section that gaming or the service of alcoholic beverages is merely an adjunct to the meals offered and that the restaurant must not be advertised or otherwise held out to be a liquor, gaming, or any other type of establishment.

4. A restaurant with bar shall be permitted to have a maximum of five slot machines subject to the following conditions:

a. There shall be no freestanding for-play slot machines.

b. All for-play slot machines must be embedded in the bar top or a table top located in the bar/lounge area.

c. Any increase in the number of slot machines up to the maximum of five shall comply with the requirements of title 19 as it relates to regulations for restaurants with bar.

d. Restaurants with bar that have been granted a restricted gaming license for the operation of slot machines in excess of five machines prior to December 17, 2013, are exempt from the provisions of this section until there is either:

i. A change of location of such business; or

ii. The gaming activity becomes unlicensed for more than 60 calendar days. Notwithstanding the foregoing, a restaurant with bar that has been granted a restricted gaming license for the operation of slot machines in excess of five machines may cease gaming operations in conjunction with an approved request for non-operational status granted pursuant to section 4.36.230 and preserve the ability to operate the number of machines in operation at the time of approval of the non-operational status. Failure of the licensee to comply with all provisions of the non-operational status will require the establishment to meet current code requirements in regard to the number of slot machines permitted within a restaurant with bar.

5. Restaurants with bar which do not comply with the provisions of title 19 as it relates to regulations for restaurants with bar shall be deemed nonconforming and shall be subject to license renewal if the licensee remains suitable. Such nonconforming licenses may not be modified unless the floorplan is in conformance with the provisions and requirements of title 19.

R. Sport venue establishment liquor licenses are subject to the following:

1. A sport venue establishment liquor license is only available at a sport venue establishment as herein defined.

2. A sport venue establishment liquor license allows the licensee to operate one bar in conjunction with a restaurant and an unlimited number of beer and wine stations in the enclosed area of the premises.

3. Businesses operated on the premises which are owned by persons other than the sport venue establishment liquor licensee may sell, serve, or deliver alcohol from within the premises only if the business has a valid city-issued: Beer, wine, and spirit-based products license; Catering liquor license; Full liquor on-sale license; Restaurant with bar license; and/or a special event liquor permit.

4. Alcohol sales or service at the venue are subject to the following:

a. Consumption of alcohol on the premises is authorized only when the alcohol is purchased from either the sport venue establishment liquor licensee, or a licensee or permittee identified in paragraph 3. above, as authorized by its city-issued liquor license or permit.

b. A sport venue establishment liquor licensee may sell, serve, or distribute alcohol for consumption throughout the venue, except as limited by council or the division. Alcohol sales for consumption outside the sport venue establishment must comply with the provisions of paragraph 5. below.

c. Bottled wine sold pursuant to an off-sale liquor license must remain sealed, in its original container, and may not be consumed at the sport venue establishment.

5. Sales for consumption outside the sport venue establishment, when authorized for a special event under HMC 4.36.260 or 4.36.270, must comply with the following:

a. Alcoholic beverages shall be provided in paper or plastic cups, not to exceed 16 ounces, and must include the city hall special event district logo;

b. Licensee or permittee shall limit sales of alcohol to a maximum of two single servings per person per purchase/transaction;

c. Licensee or permittee shall not sell or otherwise distribute any single serving products containing alcohol for immediate consumption by a patron, including, but not limited to, candy, gelatin shots, or other products containing alcohol that are not considered alcoholic beverages; and

d. Alcohol may not be sold to an individual who is intoxicated.

6. Any alcohol consumed outside the sport venue establishment must comply with sections 4.36.260 and 4.36.270 of this chapter, as applicable.

7. Gaming is prohibited in all establishments located within a sport venue establishment.

S. Taverns are subject to the following:

1. A restaurant may be operated on the same premises.

2. Minors are allowed in the restaurant area of the tavern if there is a separation between the bar area and the restaurant area by a barrier sufficient to exclude minors from the bar area.

3. Taverns providing restricted gaming operations with one to five machines, regardless of the ownership of the slot machines, are subject to the following:

a. The establishment shall comply with NRS 463.161, as may be amended or renumbered; and

b. All machines must be embedded in the bar top.

4. Taverns providing restricted gaming operations with six to 15 machines, regardless of the ownership of the slot machines, are subject to the following:

a. The establishment shall contain a permanent bar as defined in NRS 463.161, as may be amended or renumbered.

b. The establishment shall conform to the requirements of title 19 as it relates to regulations for taverns with restricted gaming operations with six to 15 slot machines.

c. Meals are to be served during all hours that the restaurant is open for business, as required pursuant to title 19.

d. The establishment shall maintain a minimum of two staff members on duty at all times that meals are required to be served.

e. A minimum of eight slot machines must be embedded in the bar top for locations with eight to 15 machines. Locations with six to seven slot machines must embed all machines in the bar top.

T. Urban lounge licenses are subject to the following:

1. The business must conform to all the requirements pertaining to urban lounges in this Code.

2. Minors are allowed in the restaurant area of an urban lounge if there is a separation between the bar area and the restaurant area by a barrier sufficient to exclude minors from the bar area.

3. Urban lounges providing restricted gaming operations with one to 15 machines, regardless of the ownership of the slot machines, are subject to the following:

a. The establishment shall comply with NRS 463.161, as may be amended or renumbered; and

b. A minimum of eight slot machines must be embedded in the bar top for locations with eight to 15 machines. Locations with one to seven slot machines must embed all machines in the bar top.

U. Wholesale/import liquor licenses are subject to the following:

1. The business may not be located in a residential neighborhood.

2. The business must maintain a warehouse and office space sufficient to store at one time either:

a. A stock of alcohol equal to ten percent or more of his annual gross volume of alcohol sales to retailers within this state;

b. A stock of beer, wine or spirit-based products equal to ten percent or more of his annual gross volume of beer, wine, or spirit-based products sales to retailers within this state;

c. A stock of alcohol whose cost of acquisition is $50,000.00 or more; or

d. A stock of beer, wine, and spirit-based products whose acquisition is $10,000.00 or more.

V. Wineries are subject to the following:

1. Wineries shall conform to the requirements of title 19.

2. Sales must comply with all limitations set forth in NRS 597.240.

3. The owner or operator of the winery shall not produce, blend or age wine at any location other than the premises listed on the license.

4. The owner or operator of the winery shall comply with all regulations adopted by the state board of agriculture.

5. Wineries may sell wine at retail or serve wine by the glass on its premises as set forth in NRS 597.240.

W. Sale or service of beer, cider or wine from a tap or spigot into sealable containers for off-site consumption shall be subject to the following:

1. Sale or service shall be limited to the following license classifications:

a. Brew pub;

b. Brew pub - combo;

c. Artisan's beer and wine room establishment;

d. Craft distillery - combo;

e. Restaurant with bar in conjunction with a Beer, wine, and spirit-based products off-sale;

f. Restaurant with bar in conjunction with a Full liquor off-sale;

g. Tavern in conjunction with a Beer, wine, and spirit-based products off-sale license obtained before November 14, 2016, will be permitted until such time as there is any change in ownership or location of such business;

h. Tavern in conjunction with a Full liquor off-sale license obtained before November 14, 2016, will be permitted until such time as there is any change in ownership or location of such business;

i. Full liquor off-sale; or

j. Nonrestricted/limited gaming liquor license in conjunction with a Beer, wine, and spirit-based products off-sale license or Full liquor off-sale license.

2. Only the licensee or an employee of the licensee shall dispense alcohol pursuant to this section.

3. All alcohol must be dispensed into aluminum, ceramic, glass, plastic or stainless-steel containers not to exceed one gallon (128 ounces).

4. Containers may be refillable subject to health department regulations.

5. All containers must be capped in accordance with health department regulations.

6. Each container must have a label, a minimum of ½" x 3", containing the establishment name and applicable liquor license number affixed to the container. Said label shall be required to extend across the bottle cap top and on to the container.

X. Regulations for on premise consumption and re-corking of alcohol—With meals.

1. Notwithstanding any provision in this chapter to the contrary, establishments which have been granted a valid license under this chapter for the service of wine for on-premises consumption may permit a customer to bring a sealed bottle of wine into the establishment for purposes of having the establishment pour and serve the wine in connection with a meal served to the customer.

2. An establishment licensed under this chapter that serves wine for on-premises consumption, or that otherwise provides the service referred to in subsection 1 of this section, may permit a customer to remove unconsumed wine from the premises provided that the wine bottle is properly re-corked, sealed with tamper evident tape, and placed in an approved exit bag before it is returned to the customer to be taken off the premises.

3. An establishment that provides the services referred to in subsection 1 or 2 of this section may charge a fee for the service (a "corking fee"). Any such corking fee shall be reported to the division pursuant to section 4.05.010.

Y. Storage of alcoholic beverages—Unlicensed commercial establishments.

1. Except as otherwise provided in subsection 2 of this section, it is unlawful for any person to store alcoholic beverages on the premises of any commercial establishment subject to this title unless the person operating the establishment has obtained and thereafter maintains a valid alcoholic beverage license that pertains to, and authorizes, such storage.

2. The prohibition contained in subsection 1 does not apply to the storage of alcoholic beverages in preparation for an occasional company party, but only if:

a. The party is limited to employees and their guests; and

b. The alcoholic beverages are removed from the premises before the next regularly scheduled business day.

(Ord. No. 4023, § 2, 5-21-2024; Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015; Ord. No. 3369, § 1, 11-14-2016)

4.36.045 Nonprofit—License requirements.

A. Only a nonprofit organization registered with the city pursuant to subsection 4.04.030(C) may be considered for a nonprofit liquor license.

B. Nonprofit liquor license establishments are subject to the following:

1. The organization shall designate a key employee responsible for the day-to-day operations of the establishment.

2. The key employee shall be subject to a limited investigation as set forth in chapter 4.03.

3. Applicants for this class of liquor license must present written proof of the organization's nonprofit status at the time of submission of the application.

4. To maintain this license, the organization must maintain nonprofit status for the duration of use. Proof of such status must be shown to the director or his designee upon request.

5. Council approval is required prior to the issuance of the license.

6. Gaming is not permitted in conjunction with a nonprofit liquor license.

C. In addition to a nonprofit liquor license, any nonprofit organization engaged in the business of catering alcoholic beverages must also obtain a catering liquor license.
(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.050 License—Application—Contents—General.

Whenever a person desires to open, keep, carry on or conduct any alcoholic beverage establishment in the city, or engage in the business thereof, such person must make application in writing to the division to obtain a license therefor.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.055 Certain license classifications must submit State of Nevada Department of Taxation application to city.

A. The city performs the initial investigative process for the State of Nevada Department of Taxation under NRS Chapter 369 for the license classifications listed below:

1. Brew pub;

2. Brew pub - combo;

3. Craft distillery;

4. Craft distillery - combo;

5. Estate distillery;

6. Instructional wine-making facility;

7. Liquor manufacturer;

8. Wholesale/import liquor; or

9. Winery.

B. If an applicant submits an application to the city for a classification type listed in subsection 4.36.055(A), the applicant must also submit to the city, at the time of application, a complete Nevada State Liquor License Application.
(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.060 License—Applicant—Business premises required.

Except for a catering liquor license or a beer, wine, spirit-based products, and liqueur tasting license, no license under this chapter shall be issued to any applicant unless the applicant has an established place of business in a properly zoned area in accordance with title 19. The premises of each business licensed under this chapter shall be open to entry and inspection, without advance notice, by any agents or officers of the division, code enforcement, police department or state or county regulatory agencies, during operating hours, to conduct administrative inspections to verify compliance with the provisions of this chapter.
(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.070 Reserved.

4.36.080 Reserved.

4.36.090 Reserved.

4.36.100 Investigation fees—Required—Fees charged.

Any person applying for an alcoholic beverage license of any of the several types enumerated herein is required to submit to the city an investigation fee as set forth in chapter 4.03, for each per person required to be investigated.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.110 Reserved.

4.36.120 Reserved.

4.36.130 Background investigation waived, when.

A. Applicants, principals, or key employee(s) for a liquor license under this chapter who have also applied for a gaming license at the subject location will not be required to submit to a background investigation and the city council shall determine that the applicant, its principals, or key employee(s) are suitable if the Nevada Gaming Commission has granted a license to the applicant, principals, key employee(s) or found the applicant and its principals or key employee(s) suitable.

B. Applicants, principals, or key employee(s) for a liquor license under this chapter who have also applied for a gaming license at the subject location will not be required to submit to a background investigation and the city council may determine that the applicant, its principals, or key employee(s) are suitable pending the Nevada Gaming Commission approval of the license to the applicant, principals, key employee(s) or finding the applicant and its principals or key employee(s) suitable. The council will not consider the application or suitability of applicant, its principals, or key employee(s) until the subject location has been scheduled before the Nevada Gaming Control Board or Commission.

C. The burden of proving receipt of the required State of Nevada gaming license or finding of suitability by the Nevada Gaming Commission is on the applicant, its principals, or key employee(s).
(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.140 Reserved.

4.36.150 Reserved.

4.36.160 Reserved.

4.36.170 Reserved.

4.36.180 Reserved.

4.36.190 License—Issuance restrictions—Proximity of taverns specified.

Pursuant to its general regulatory authority to regulate the sale of alcoholic beverages, the city council declares that the health, safety, morals and welfare of the inhabitants of the city are best promoted and protected by requiring a separation between certain liquor license uses. All distance requirements between taverns, and between taverns and any developed residential zoning district with an "R" designation, are as set forth in title 19. The council retains all discretion to approve or disapprove tavern liquor license applications.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.200 Reserved.

4.36.210 License—Conversion of license type—Restrictions—Origination fee.

No alcoholic beverage license is convertible into a different type of license unless such proposed conversion complies with and meets all the requirements of this chapter. The council may authorize such conversion, which authorization may be withheld for any reason deemed sufficient by the council. The director may authorize a conversion which results in a downgrade, or a less restrictive license, such as from full liquor off-sale to beer, wine and spirit-based products off-sale. If the licensee has paid the origination fee for the category being converted, he shall be required to pay the difference between that fee and the origination fee for the category to which it is being converted. If the licensee has not paid an origination fee for the category being converted, he shall be required to pay the origination fee for the category to which it is being converted. There shall be no refund of any origination fee paid if the license is downgraded.
(Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3312, § 1, 12-1-2015)

4.36.215 License—Change of location—Restrictions—Origination fee.

No alcoholic beverage license is transferable to a new location unless such proposed change of location complies with and meets all requirements of this title and title 19 and is authorized by council, which authorization may be withheld for any reason deemed sufficient by the council. Location changes are subject to an administrative fee as set forth in chapter 4.04. There shall be no origination fee required for a change of location.
(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.220 License—Permit—Transfer or assignment—Council approval required.

A. No permit granted or license issued under this chapter can be assigned or transferred except with the approval of the council.

B. Any assignee or transferee of a valid alcoholic beverage license is required to obtain a separate liquor license prior to engaging in the sale or distribution of liquor.

C. It is unlawful for any licensee to permit the licensed premises to be managed or utilized by a lessee or other transferee who has not first obtained a separate alcoholic beverage license.

D. A new liquor license obtained by assignment or transfer pursuant to subsection B of this section shall not be subject to an origination fee as set forth in section 4.05.278 of this title when the type of license is the same as the original license held by the assignee or transferee. If the new liquor license is different type from the original license the conversion of license is subject to section 4.36.210.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.230 Closure or non-operational status—Responsibility of licensee to maintain use.

A. In the event an alcoholic beverage licensee desires to close or discontinue his business operations for any period of time in excess of three months, he must submit a written notification to the division within 30 calendar days of the closure or discontinuance requesting approval for non-operational status beyond the initial three-month period. The notification must include a closure plan detailing the length of closure or period of non-operational status and the licensee's plans for reopening, relocating, selling, or otherwise divesting themselves of the business. The licensee may not discontinue operation of the business for more than a three-month period and maintain a valid license without

council approval. The council may approve non-operational status of the business beyond the initial three-month period, in time increments not to exceed one year but in no event shall the council approve any non-operational status beyond a maximum of two years. A license shall be automatically revoked at the expiration of the time periods provided by this section unless council approval has been granted pursuant to this section. All semiannual license fees must be paid notwithstanding the licensee's non-operational status. Failure to maintain the fees will result in automatic revocation of the license and termination of the established use.

B. In the event a sale or other transfer of the property is part of the closure plan, no extension of the initial or subsequent non-operational status may be granted once the property has been sold or otherwise transferred if the new property owner has not submitted all required license applications and fees to the city and filed any applicable applications to the state as required for gaming prior to the current licensee applying for the extension of non-operational status. If the new property owner complies with the requirements set forth herein, council may grant an extension of non-operational status to the current licensee not to exceed two years from the original date of closure or discontinued operation.

C. A license shall be automatically revoked at the expiration of the time periods provided by this section unless council approval has been granted pursuant to this section. All semiannual license fees must be paid notwithstanding the licensee's non-operational status. Failure to maintain the fees will result in automatic revocation of the license and termination of the established use.

D. It shall be the responsibility of the licensee to maintain, extend, or renew any necessary land use approvals.

(Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3312, § 1, 12-1-2015)

4.36.240 Delivery regulations.

Delivery of alcohol within in the city is permitted only by the following valid licensees and is subject to all state and local license conditions and regulations:

A. Retail delivery license classifications:

1. Full-liquor off-sale, including grocery store internet and telephone liquor sales;

2. Gift basket liquor; or

3. Liquor delivery support service.

B. Licensees identified in subsection A. above, engaged in retail delivery, may accept orders for and deliver liquor in its original package to a consumer subject to the following:

1. An order under this subsection must originate from the premises of the retail liquor store making the sale.

2. Deliveries are restricted to the purchaser's address specified in the order for delivery, that includes a street name and number.

3. All deliveries must be made by the licensee or an employee or independent contractor of the licensee.

4. The person placing the order must be of legal age to purchase alcoholic beverages.

5. Delivery of the alcoholic beverage shall only be made to a person of legal age to purchase alcoholic beverages.

6. Each sales transaction for delivery shall have written documentation of the sale and shall include at a minimum the following:

a. The business name and business address;

b. A detailed list of the alcoholic beverages and non-alcoholic items purchased in each sales transaction;

c. The name of the purchaser and delivery address;

d. The name and date of birth of the person who accepts delivery as shown on the person's acceptable form of identification (a valid driver's license, permanent resident card, tribal identification card or other government issued identification card indicating the person's age);

e. The time and date of the purchase and delivery;

f. The signature or other verification of the identity of the person who accepts the delivery; and

g. The records as set forth must be retained for a minimum of four years for audit purposes and shall be required to be in a format acceptable by the director.

7. The retail delivery of alcoholic beverages to consumers on the premises of any Resort hotel is prohibited.

8. Compliance with the city's alcohol regulations set forth in titles 2, 4, and 8 of the Code, including section 4.36.040.Y, Storage of alcoholic beverages—Unlicensed commercial establishments.

8.[9.] Compliance with all provisions of Chapter 369 of the NRS and Chapter 369 of the Nevada Administrative Code.

9.[10.] The delivery provisions set forth in this section do not prohibit alcohol orders made online or by telephone from being picked up at the licensee's premises (including curbside pickup where available).

C. The licensee must develop and maintain a delivery policy that ensures delivery and age requirements are met pursuant to this title and Nevada Revised Statutes. The policy must be submitted to the division prior to the license being issued and at any time requested by the division.

D. The retail delivery provisions of this section do not apply to commercial deliveries made by the following liquor license classifications:

1. Wholesale/import liquor (Henderson-based wholesale/import liquor business conducting delivery within the city).

2. Inter-jurisdictional licensee licensed pursuant to section 4.05.273 (Liquor wholesaler based outside city holding valid inter-jurisdictional license conducting wholesale deliveries within the city).

(Ord. No. 4023, § 3, 5-21-2024)

Editor's note—Ord. No. 4023, § 3, adopted May 21, 2024, amended section 4.36.240 in its entirety to read as herein set out. Formerly, section 4.36.240 pertained to delivery prohibition—exceptions, and derived from Ord. No. 3582, § 1, adopted June 4, 2019.

4.36.250 Reserved.

4.36.253 Reserved.

4.36.255 Reserved.

4.36.257 Reserved.

4.36.260 City hall special event district.

1. The service and possession of alcohol within the city hall special event district as defined in section 4.36.010 shall only be allowed:

a. During the business hours of the adjacent sport venue establishment or by licensed alcohol businesses located therein;

b. In conjunction with city sponsored events; or

c. With authorization of the city manager or his designee.

2. Alcohol for consumption within the city hall special event district must be obtained from one of the following licensed/authorized providers:

a. A licensed alcohol establishment within the adjacent sport venue establishment;

b. A special event liquor permittee authorized pursuant to section 4.36.270; or

c. A catering liquor licensee licensed pursuant to this chapter.

3. Alcohol service in conjunction with city sponsored events or with authorization of the city manager within the city hall special event district:

a. May begin one hour prior to the start of the event and must cease no later than one hour after the specified event; and

b. Requires issuance of a special event liquor permit pursuant to section 4.26.270; or

c. Service of alcohol by a catering liquor licensee pursuant to this chapter.

4. Sales or service for consumption within the city hall special event district must comply with the following:

a. Licensee shall not distribute alcohol outside the city hall special event district and is responsible to ensure patrons do not exit the city hall special event district with alcohol in their possession.

b. Alcohol distributed by the licensee or permittee shall be limited to the same classification of alcohol as authorized by the liquor license or permit held by the licensee or permittee.

c. Alcoholic beverages shall be provided in paper or plastic cups, not to exceed 16 ounces, and must include the city hall special event district logo.

d. Licensee or permittee shall limit sales of alcohol to a maximum of two single servings per person per purchase/transaction.

e. Licensee or permittee shall not sell or otherwise distribute any single serving products containing alcohol for immediate consumption by a patron, including, but not limited to, candy, gelatin shots, or other products containing alcohol that are not considered alcoholic beverages; and

f. Licensee or permittee shall not sell alcohol to an individual who is intoxicated.

(Ord. No. 3732, § 1, 10-20-2020)

4.36.270 Special events liquor permits; Water Street District special events.

The director, or his designee, may authorize the issuance of a special events liquor permit. A special events liquor permit authorizes the holder thereof to sell, serve, give away or otherwise dispense alcoholic liquor or beer, wine and spirit-based products for consumption only and not for resale in any form at a specific location. An organization or licensee must make application for a permit at least ten calendar days prior to the event, and such application must be approved by the director prior to the event. The director may waive the requirement to file ten calendar days prior to the event. Such permit is limited to one per

applicant per calendar quarter and is valid only for the period specified in the request which in any case may not exceed nine consecutive calendar days. The director may issue special events liquor permits to an applicant in excess of the limited, once per calendar quarter, if a conditional use permit has been approved by the planning commission or council in excess of the previously stated limit. However, in no case may an applicant, other than a business holding a valid liquor license, be granted more than eight special events liquor permits in a single calendar year. Special events liquor permits may be conditioned as seems appropriate by the director in the interest of public safety, health and welfare. The permittee is responsible to ensure compliance with all laws pertaining to the sale, service and distribution of alcoholic beverages. The permit fees for a special events liquor permit are as follows and must be submitted at the time of application:

A. For nonprofit organizations, $50.00 per day for alcoholic liquor, or $25.00 per day for beer, wine and spirit-based products only;

B. All others, $100.00 per day for alcoholic liquor, or $50.00 per day for beer, wine and spirit-based products only.

C. Notwithstanding any provision in this chapter to the contrary, the owner of an establishment within the boundaries of the Water Street District special events corridor as defined in section 4.36.010 that holds an active artisan's beer and wine room establishment; beer, wine, and spirit-based products on-sale; brew pub; brew pub-combo; craft distillery; craft distillery-combo; full liquor on-sale; nonrestricted/limited gaming liquor; restaurant with bar; sport venue establishment; tavern; urban lounge or winery license is authorized to sell alcoholic beverages within the licensed establishment for consumption off its premises during the times and days of approved Water Street District special events as defined in section 4.36.010. Off-premises consumption is limited to the area of the Water Street District special events corridor and to those areas authorized pursuant to section 4.36.315 without obtaining a special event liquor permit as set forth in this section.

1. During the special events, the licensee or permittee is subject to the following requirements:

a. Licensee must locate any display of alcoholic beverages inside the establishment at least ten feet from any entrance or exit;

b. Alcohol distributed by the licensee or permittee shall be limited to the same classification of alcohol as authorized by the liquor license or permit held by the licensee or permittee;

c. Alcoholic beverages shall be provided in paper or plastic cups, not to exceed 16 ounces;

d. Licensee or permittee shall limit sales of alcohol to a maximum of two single servings per person per purchase/transaction;

e. Licensee or permittee shall not sell or otherwise distribute any single serving products containing alcohol for immediate consumption by a patron, including, but not limited to, candy, gelatin shots, or other products containing alcohol that are not considered alcoholic beverages; and

f. Licensee shall not sell alcohol to an individual who is intoxicated.

(Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3388, § 2, 2-21-2017; Ord. No. 3312, § 1, 12-1-2015)

4.36.280 License—Issuance moratorium.

The council may declare a moratorium by resolution on any or all alcoholic beverage applications or licenses if, in its discretion, it is found to be in the best interests of the city. (Ord. No. 3312, § 1, 12-1-2015)

4.36.290 Reserved.

4.36.300 Land use and location requirements—Compliance with title 19.

A. Locations for certain alcoholic beverage licenses are subject to distance restrictions as set forth in title 19.

B. The floorplan of an establishment to be licensed under this chapter must be approved pursuant to the requirements of title 19.

C. A liquor license will not be issued unless the location is in accordance with title 19.

D. Approval of a location or of a use permit pursuant to title 19 does not guarantee or constitute approval of any liquor license.

E. Licensees shall maintain compliance with the requirements set forth in title 19 related to the operation of their establishment.

(Ord. No. 3312, § 1, 12-1-2015)

4.36.305 Establishments—Interconnectivity permitted, when.

Establishments required to be licensed pursuant to this chapter may be interconnected in the interior subject to the following:

A. Connectivity of the establishments is limited to common kitchen facilities;

B. The kitchens shall not be open or available for public ingress or egress except in an emergency;

C. The establishments shall be subject to the provisions of title 19;

D. The establishments shall comply with all applicable regulations of the health department; and

E. Operations of interconnected businesses may be impacted due to enforcement actions related to the common kitchen facilities.

(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.310 Distributing off premises prohibited.

A. It is unlawful for any holder of an alcoholic beverage license, or any agents or employees of such licensee to sell, serve, give away or otherwise distribute any alcoholic beverage off the approved premises.

B. Any licensee who desires to sell, serve, give away, or otherwise distribute any alcoholic beverage in the parking lot, or other area off the approved premises for a specific event shall apply for and obtain a special events liquor permit pursuant to section 4.36.270.

C. The provisions of this section are not applicable to holders of an alcoholic beverage license that provides for on-premises consumption for an establishment located within the Water Street District as set forth in section 4.36.315.

(Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3312, § 1, 12-1-2015)

4.36.315 Distributing off premises prohibited—Exception for Water Street District.

A. The holder of an alcoholic beverage license for an establishment located within the Water Street District may sell, serve, give away, or otherwise distribute any alcoholic beverage permitted by the license type in areas immediately outside of the establishment, so long as such outside areas have been authorized in advance by the city and subject to the following requirements:

1. The establishment must submit a "footprint" rendering or other detailed drawing showing the area in which establishment intends to sell, serve or otherwise distribute alcoholic beverages.

2. If the sale, service, or other distribution occurs in a public right- of-way, such as a sidewalk or parklet in a public roadway adjacent to the establishment, an appropriate corridor must be maintained that complies with the Americans With Disabilities Act.

3. The establishment must install a semi-permanent barrier setting forth the boundary within which the sale, service, or other distribution will occur and must provide a deposit (or other security reasonably acceptable to city, such as a bond) to the city,

in an amount to be determined by the city, to repair any sidewalk or other area that will need to be returned to the condition it was in prior to installation of the semi-permanent barrier. The barrier must define the perimeter of the footprint required by subsection 1 of this section.

4. The establishment shall provide an indemnification acceptable to the city, indemnifying the city from lawsuits or other actions, including legal fees, arising as a result of the establishment's activities within any public right-of-way, regardless of whether such lawsuit or action resulted from the establishment's sale of alcohol.

5. The establishment shall procure commercial general liability insurance covering the full area in which the city approves the sale, service or other distribution of alcohol pursuant to this section and such insurance shall name the city as an additional insured through an endorsement by the insurance carrier.

B. The holder of an alcoholic beverage license for an establishment located within the Water Street District may not sell, serve, give away, or otherwise distribute any alcoholic beverage permitted by the license type in areas not authorized by the city unless the holder obtains a special events liquor permit in accordance with section 4.36.270.
(Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.320 Intoxication of licensee or employees on premises.

It is unlawful for any licensee or any of his agents or employees, while engaged in the performance of his duties, to be in an intoxicated condition, in or about the premises where the business of dispensing alcoholic beverages is being conducted and while such licensee, agent or employee is engaged in the performance of his ownership or employment duties.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.330 Providing to intoxicated person—Prohibited.

It is unlawful for any licensee or any of his agents or employees to sell, serve or give away alcoholic beverages to any intoxicated person.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.340 Distributing to minor—Establishment of policy—Copy on premises—Requirement to show.

A. Every liquor licensee or permittee who sells, serves, gives, or otherwise furnishes alcoholic beverages shall adopt a policy to prevent a person under 21 years of age from obtaining an alcoholic beverage from that person.

B. A copy of the policy shall always be kept on the premises and shall be made known to and available to all employees.

C. The policy shall be available upon request by the division or police department.

D. It is unlawful to sell, serve or give away alcoholic beverages to a minor.
(Ord. No. 3732, § 1, 10-20-2020; Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.350 Reserved.

4.36.360 Minor—Employment in licensed establishments.

Except as otherwise provided by state law, it is unlawful for any permittee or licensee to employ or to permit a person under the age of 21 years to sell or handle alcoholic liquor. However, a person who is at least 18 years of age, while working in his/her capacity as an employee of a supermarket, grocery store, convenience store, travel center, drugstore or department store may handle or sell at off-sale any alcoholic liquor when he/she is being directly supervised by another employee or owner who is at least 21 years of age.
(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.370 Reserved.

4.36.380 Nevada System of Higher Education—Alcoholic beverage permit.

An authorized official of an institution governed by the Nevada System of Higher Education (NSHE), may, in his sole discretion, allow the sale, service, gift or distribution of alcoholic beverages at events upon the campus or property of the college; provided, that said alcoholic beverages are consumed only at the site of said sale or distribution. There shall be no license fee or tax assessed against this permit, nor background investigation or council approval. The permit authorizes such distribution or sale only for infrequent, special events and does not authorize the establishment of a permanent tavern or bar on the college premises from which a business may be operated, as it is contrary to the intent of this regulation to permit or encourage the college to compete with licensed community businesses.

The college shall give written notice of the event to the director at least five calendar days prior to the event. The notice must contain a description of the event including, but not limited to, the date, time, location and purpose of the event, and the name, telephone number and college title or position of the responsible person. The responsible person must

be a member of the college classified staff or faculty. The responsible person must oversee the sale or distribution of the alcoholic beverages and ensure strict compliance with all the provisions of this chapter and Nevada Revised Statutes regarding alcoholic beverages, especially the prohibition of service to minors. The responsible person must be considered the "licensee" or "employee" within the meaning of this chapter. The responsible person must also sign the notice as his assumption of his responsibility under the provisions of this chapter. This power of discretion so granted to the authorized official of the college is not a license, nor does it vest any form of property right to the college or student body. The power is a mere administrative privilege and may be summarily revoked or suspended without notice, without cause, and without hearing, within the absolute discretion of the council by a majority vote of a quorum of the council present when a motion to do so is made.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.390 Licensed premises—Entertainment.

Entertainment in any licensed premises featuring nudity, consisting of any act, show, performance or display which is presented to amuse, attract, interest or influence the public is prohibited except in a production show in a resort hotel.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.400 Licensed premises—Costumes of male and female employees.

Employees offering or rendering any service to the public in an area where alcoholic beverages are distributed must be clothed to the extent that the minimum requirements of section 4.36.010, Nude or nudity, subsection D are met.
(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.410 Licensed premises—Entertainment restrictions—Pictures featuring nudity.

Photographs or pictures depicting nudity or partial nudity must not be displayed in any area of the establishment which can be viewed from the exterior of the premises through any windows, entrances or exits.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.420 Licensed premises—Entertainment restrictions—Application.

Sections 4.36.390 through 4.36.410 shall apply to all establishments defined in this chapter which sell, serve or give away alcoholic beverages.
(Ord. No. 3312, § 1, 12-1-2015)

4.36.430 License—Suspension—Revocation—Limitation.

The council, its designee, or the director may deem that any activity on the part of the licensee, his agents or employees, or a person previously found suitable, which is contrary to the purpose and intent of this chapter, or which violates any ordinance or regulation of the city or the state is grounds for disciplinary action which may result in a revocation, suspension, or limitation of the alcoholic beverage license pursuant to chapter 4.06. Without limiting the generality of the foregoing, each of the following licensees is declared to be subject to disciplinary action:

A. Each licensee who violates any provision of title 4 of this Code;

B. Each licensee who knowingly does any act to sell, lease or purchase an alcoholic beverage business operation or any portion thereof without taking immediate and affirmative steps to obtain approval;

C. Each licensee who knowingly fails to report or conceals a full disclosure of the names of persons having an interest in the ownership of or having an equitable or beneficial right to the profits under a license in which he has an interest;

D. Each licensee who knowingly fails to report or conceals from proper authority any information which it is his duty to supply under any statute, ordinance, and/or regulation of the state or city;

E. Each licensee who, for conduct subsequent to the issuance of a license, becomes ineligible to hold an alcoholic beverage license as set out in the statues, ordinances, and/or regulations of the state or city;

F. Each licensee who permits his licensed premises to be frequented by, or become the meeting place, hangout or rendezvous for prostitutes, or those who engage in sexual conduct on the premises, vagrants, intoxicated persons, or those who engage in the use or distribution of controlled substances, or in any other illegal occupation or business and is subject to provisional suspension of his license and possible disciplinary action as prescribed herein. The provisional suspension must be in writing describing the violations present, or committed, and must not be rescinded until the violation(s) are corrected, or by order in accordance with chapter 4.04. Note: Any inaction or correction by the licensee of any violations or conditions

in accordance with this subsection, which resulted in a correction notice, or a provisional suspension of a license, does not preclude further disciplinary action in accordance with this chapter and chapter 4.06;

G. Each licensee who makes a misrepresentation of a material fact in his application to obtain a license;

H. Each licensee whose alcoholic beverage license in any place in the state has been revoked for cause;

I. Each licensee who knowingly allows any male or female person to appear nude in any public area on its premises including but not limited to theaters, lounges, and showrooms.

1. "Knowingly" means having a general knowledge of or reason to know or a belief or ground for belief which warrants further inspection or inquiry of the character of any exposure of the male or female body.

2. "Male or female person" means a licensee, his agents, employees, independent contractors and their agents and employees, and patrons; and

J. Each licensee who employs a person in a key employee position, if said employee refuses to make application as a key employee when notified to do so as set forth in this chapter.

(Ord. No. 3582, § 1, 6-4-2019; Ord. No. 3312, § 1, 12-1-2015)

4.36.440 Licensee responsible for the acts of employees.

Every licensee and permittee shall be responsible for the acts of his employees and agents committed during the course and scope of employment. Every licensee shall accordingly use adequate care in the selection of his employees and agents. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense and every licensee accepts his license subject to said condition.

(Ord. No. 3312, § 1, 12-1-2015)

4.36.450 Reserved.

4.36.460 Reserved.

Chapter 4.48 TRANSIENT LODGING AND GAMING TAXES

Sections:

4.48.010 Definitions.
4.48.020 Transient lodging taxes to be collected (effective through January 14, 2017).
4.48.020-01 Transient lodging taxes to be collected (effective beginning January 15, 2017 through February 28, 2017).
4.48.020-02 Transient lodging taxes to be collected (effective beginning March 1, 2017).
4.48.030 Time-share tax calculation.
4.48.040 Transient lodging tax—Exemptions.
4.48.050 Discount for prompt payment of convention and visitors authority transient lodging tax.
4.48.060 Payments—Transient lodging tax.
4.48.062 Deposit required for significantly delinquent accounts.
4.48.065 Tax collection on sale of business.
4.48.070 Records to be kept by operator of transient lodging.
4.48.080 Records to be kept by director—Confidential.
4.48.090 Gaming tax.
4.48.100 Gaming tax payment—Initial activation period.
4.48.110 Late-payment penalty—Interest.
4.48.120 Enforcement.
4.48.125 Delinquency collection.
4.48.130 Reserved.

4.48.010 Definitions.

Attrition means the use or occupancy of less than an agreed upon number of sleeping rooms/spaces by a group of persons.

Occupancy means the use or possession, or the right to the use or possession of any sleeping room/space or portion thereof, in transient lodging for dwelling, lodging, or sleeping purposes.

Occupant means any person who, for rent, uses, possesses or has the right to possess any sleeping room/space in transient lodging.

Operator means the gaming licensee or the person who is the proprietor of transient lodging, whether in the capacity of owner, lessee, sub lessee, mortgagee, licensee, or any other capacity. Where the operator performs his or her functions through a managing agent of any type or character other than an employee, the managing agent shall also be deemed an operator for the purposes of this chapter and shall have the same duties, responsibilities, and liabilities as his or her principal. Compliance with the provisions of this chapter by either the principal or the managing agent shall be considered to be compliance by both.

Package means any aggregation of rights to room(s), food, refreshments, merchandise, entertainment, services, and/or other items grouped as a single unit and sold for a single price.

Permanent resident means any individual occupant who has or shall have the right of occupancy for the same sleeping room/space in transient lodging for 31 consecutive days or more.

Person means an individual human being.

Rent means the amount charged for a sleeping room/space in transient lodging valued in money, barter or trade, but does not include the amount charged for any food or beverage service or for personal services rendered to the occupant, such as but not limited to concierge services, clothes cleaning services, massage, or physician services.

Resort hotel shall have the same meaning as in chapter 4.32.

Significant delinquency means an operator failed to pay the transient lodging tax imposed by this chapter by the close of business on the first day of the month subsequent to the month that the payment was initially due.

Stadium district means the district created by Section 21 of Senate Bill 1 of the 30th Special Session (2016) of the Nevada State Legislature, which consists of all property located within (a) the county, including, without limitation, all property located within an incorporated city in the county; and (b) a radius of 25 miles from the location at which the board of county commissioners holds its regular meetings as of the date of the passage and approval of SB 1. Any parcel, building or other structure located partially within the stadium district is deemed to be wholly within the stadium district.

Total rental revenue means the total of all monies received by operators of transient lodging for the rental of sleeping rooms/spaces, including forfeited deposits, the value associated with the rental of the sleeping room/space when included as part of a package, resort fees, amenity fees, energy fees or surcharges, or any other fees, charges, or surcharges attributable to the rental of the room/space, charges for furnishings or appliances, charges for pets, charges associated with attrition cancellation fees, late arrival fees, no-show fees, amounts received as reimbursement for use of a sleeping room/space under an incentive program, and any amount received from room brokers, consolidators, discounters, travel agencies, or on-line travel operators or reservation companies, recoveries of rent previously written off as bad debt. Total rental revenue does not include the taxes imposed by this chapter, refunds, discounts, or uncollected rent that is written off as bad debt. Total rental revenue shall include recoveries of rent previously written off as bad debt.

Transient guest means any person who has or shall have the right of occupancy to any sleeping room/space in transient lodging for 30 consecutive days or less.

Transient lodging means any facility, structure, or portion of any structure which is occupied or intended or designed for occupancy primarily by transient guests who pay rent for dwelling, lodging, or sleeping purposes, and includes any hotel, resort hotel, condo hotel, motel, residential hotel or motel, time-share project, vacation trailer park, campground, park for recreational vehicles, and any other similar structure, facility, or portion thereof.

Transient lodging tax is also known as "room tax."

(Ord. No. 3378, § 1, 1-3-2017; Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.020 Transient lodging taxes to be collected (effective through January 14, 2017).

The operator is liable to the city for transient lodging taxes whether or not such taxes are actually collected from the paying transient guest. Every operator of transient lodging shall, in addition to all other taxes of every kind now or hereafter imposed by law, pay the following transient lodging taxes, in an amount equal to a percentage specified below of the rent charged by the operator to a transient guest or to a room broker, consolidator, discounter, travel agency, or on-line travel operator or reservation company:

A. Convention and visitors authority transient lodging tax:

1. Five percent of total rental revenue received from sleeping room/space rentals to transient guests by resort hotels; or

2. Four percent of total rental revenue received from sleeping room/space rentals to transient guests by all other transient lodging locations; and

B. City of Henderson transient lodging tax of two percent of total rental revenue received from sleeping room/space rentals to transient guests; and

C. Tourism and school district fund transient lodging tax of two percent of total rental revenue received from sleeping room/space rentals to transient guests; and

D. Transportation district transient lodging tax of one percent of total rental revenue received from sleeping room/space rentals to transient guests; and

E. State education transient lodging tax of three percent of total rental revenue received from sleeping room/space rentals to transient guests.

(Ord. No. 3378, § 1, 1-3-2017; Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.020-01 Transient lodging taxes to be collected (effective beginning January 15, 2017 through February 28, 2017).

The operator is liable to the city for transient lodging taxes whether or not such taxes are actually collected from the paying transient guest. Every operator of transient lodging shall,

in addition to all other taxes of every kind now or hereafter imposed by law, pay the following transient lodging taxes, in an amount equal to a percentage specified below of the rent charged by the operator to a transient guest or to a room broker, consolidator, discounter, travel agency, or on-line travel operator or reservation company:

A. Convention and visitors authority transient lodging tax:

1. One-half of one percent of the total rental revenue from the rental of transient lodging for the expansion of the Las Vegas Convention Center; and

2. Five percent of total rental revenue received from sleeping room/space rentals to transient guests by resort hotels; or

3. Four percent of total rental revenue received from sleeping room/space rentals to transient guests by all other transient lodging locations;

B. City of Henderson transient lodging tax of two percent of total rental revenue received from sleeping room/space rentals to transient guests; and

C. Tourism and school district fund transient lodging tax of two percent of total rental revenue received from sleeping room/space rentals to transient guests; and

D. Transportation district transient lodging tax of one percent of total rental revenue received from sleeping room/space rentals to transient guests; and

E. State education transient lodging tax of three percent of total rental revenue received from sleeping room/space rentals to transient guests.

(Ord. No. 3378, § 1, 1-3-2017)

4.48.020-02 Transient lodging taxes to be collected (effective beginning March 1, 2017).

The operator is liable to the city for transient lodging taxes whether or not such taxes are actually collected from the paying transient guest. Every operator of transient lodging shall, in addition to all other taxes of every kind now or hereafter imposed by law, pay the following transient lodging taxes, in an amount equal to a percentage specified below of the rent charged by the operator to a transient guest or to a room broker, consolidator, discounter, travel agency, or on-line travel operator or reservation company:

A. Convention and visitors authority transient lodging tax:

1. One-half of one percent of the total rental revenue from the rental of transient lodging pursuant for the expansion of the Las Vegas Convention Center; and

2. Five percent of total rental revenue received from sleeping room/space rentals to transient guests by resort hotels; or

3. Four percent of total rental revenue received from sleeping room/space rentals to transient guests by all other transient lodging locations;

B. City of Henderson transient lodging tax of two percent of total rental revenue received from sleeping room/space rentals to transient guests; and

C. Tourism and school district fund transient lodging tax of two percent of total rental revenue received from sleeping room/space rentals to transient guests; and

D. Transportation district transient lodging tax of one percent of total rental revenue received from sleeping room/space rentals to transient guests; and

E. State education transient lodging tax of three percent of total rental revenue received from sleeping room/space rentals to transient guests; and

F. One-half of one percent of the total rental revenue from the rental of transient lodging for the Clark County stadium district.

(Ord. No. 3378, § 1, 1-3-2017)

4.48.030 Time-share tax calculation.

For time-share projects, the transient lodging taxes imposed by this chapter shall be calculated as follows:

A. For transient guests, the applicable percentages as specified in section 4.48.020 of the total rental revenue received from sleeping room/space rent shall apply.

B. For time-share members, exchange patrons, or other participants other than fee interest owners, the applicable percentages as specified in section 4.48.020 shall be applied to a base sum of $50.00 per day. The base sum of $50.00 per day will be adjusted annually on a calendar-year basis to reflect the percentage of change in the Consumer Price Index for All Urban Consumers published by the United States Department of Labor.

(Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.040 Transient lodging tax—Exemptions.

No transient lodging tax will be imposed under the provisions of this chapter on:

A. Rent paid for the use or occupancy of the same sleeping room/space by the same person after the thirtieth consecutive day of occupancy. Such persons are deemed to be permanent residents after the 30th consecutive day of occupancy;

B. Rent paid directly by the federal government of the United States, the state, a federally-chartered credit union, the American Red Cross, or foreign diplomats properly registered with the State Department of the United States;

C. Complimentary rooms wherein there is no rent paid to the operator in conjunction with the occupancy;

D. The cost of or rent paid for a room in transient lodging that is not used for sleeping, such as a meeting or storage room.

(Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.050 Discount for prompt payment of convention and visitors authority transient lodging tax.

There shall be allowed a discount of two percent of the amount of the tax being paid for the convention and visitors authority portion only of the total transient lodging tax due. This discount is allowable only if the transient lodging tax is paid on or before the 15th day of the month following the month for which the tax is due and is not allowed thereafter. Payment is deemed to have been made if it is received by the city on or before the time noted above. If the 15th of the month falls on a weekend or holiday, the payment must be received by close of business the first business day thereafter.

(Ord. 2734, § 1 (part), 2008)

4.48.060 Payments—Transient lodging tax.

Payment of the transient lodging tax imposed by this chapter shall be due from the operator on the first day of each month for the preceding month and become delinquent after the 15th day of the month. If the 15th of the month falls on a weekend or holiday, the payment must be received by close of business the first business day thereafter. These transient lodging taxes are payable to the city and are to be made to the business operations division of the finance department of the city. Whenever any operator quits or otherwise terminates his transient lodging, any amount due under the provisions of this chapter shall be due and payable immediately upon such occasion, rather than as otherwise required by this section. Whenever any operator sells their transient lodging establishment, section 4.48.065 shall apply.

(Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.062 Deposit required for significantly delinquent accounts.

A. If any operator fails to pay the transient lodging tax imposed by this chapter by the close of business on the first day of the month subsequent to the month that the payment was initially due, the payment will be deemed significantly delinquent. If any operator becomes significantly delinquent more than two times in any 12-month period, the operator may be required to provide the city with a cash payment or certified funds within 30 days of such operator becoming significantly delinquent more than twice in one 12-month period. The cash payment or certified funds shall not be less than the value of the transient lodging tax owed by the delinquent operator for the three highest months within the preceding 12-month period.

B. If any operator becomes significantly delinquent more than two times in any 12-month period, and does not timely remit to the city the funds described in subsection A., the operator's underlying business license shall upon written notice from the division, be automatically suspended and business operations must cease until such time as all outstanding transient lodging taxes and penalties are paid and the required certificate of deposit is filed with the city.

C. Upon any operator's timely payment of the transient lodging tax for any consecutive 24-month period following correction of significant delinquency status, and payment of the deposit set forth in subsection A., the operator may request a release of the deposit from the city. Administrative fees, not to exceed ten percent of the total amount of the underlying deposit may be assessed and retained by the city against such funds.
(Ord. No. 3243, § 1, 1-6-2015)

4.48.065 Tax collection on sale of business.

A. At least 45 days prior to the sale of any transient lodging establishment, the seller must notify the division in writing of the intended sale so the division can confirm that all outstanding transient lodging taxes, and any related fees, interest, and penalties owed by the seller have been paid prior to the closing of escrow with respect to the sale.

1. No later than ten Henderson business days after receiving written notification of the sale, the division shall provide written notice to the purchaser of the requirements of this chapter.

B. In the event that all outstanding transient lodging taxes, or any other related fees, interests or penalties have not been paid prior to the closure of the sale, in order to establish the total transient lodging tax obligation, the seller or purchaser of a transient lodging establishment may request that the division provide a written statement of any transient lodging taxes, fees, interest, and penalties due from the seller.

Concurrent with this request, sellers must make available to the division any relevant records supporting their reported combined transient lodging tax liability for at least the past three years (or since the date the establishment was last purchased, if such information is readily available). Failure to provide the required records or providing incomplete records to the division within 15 business days of notification by the division, will result in an estimate of taxes due. Methods to calculate the estimate may include, but are not limited to: average rental revenue from previous documentable periods; room rate analysis; industry standards using similar size and operation of the establishment.

The division shall provide such statement of outstanding transient lodging taxes as set forth herein within 30 business days after receiving the request or within 30 business days after the records of the transient lodging establishment are received by the division, whichever is later. If no records are provided to the division, the written statement will be created by the division, using the best information available at the time. In any event, the division shall issue its written statement no later than 45 business days after it received the request.

C. The purchaser or the purchaser's assignee, at closing, shall withhold, in an escrow account, an amount from the purchase price sufficient to pay the transient lodging taxes due, as well as all related fees, interest, and penalties due unless or until the seller provides written documentation from the division stating that the transient lodging tax has been paid and that no amount is due.

D. In the event the seller fails to pay the amount due to the division within 45 days after sale of the transient lodging establishment, the transient lodging tax and any related fees, interest, and penalties owed by the seller shall be paid from the funds withheld by the purchaser in escrow.

E. The purchaser of a transient lodging establishment who does not withhold from the purchase price an amount sufficient to satisfy the seller's outstanding transient lodging tax obligation, as required in subsection C., shall be liable for any unpaid portion of the seller's outstanding transient lodging tax and all related fees, interest and penalties.

F. The period of limitation during which the division may assess taxes, fees, interest, and penalties against the purchaser under this section is five years from the date the transient lodging establishment is sold or from the date the written statement is issued by the division, whichever event occurs later.

(Ord. No. 3243, § 1, 1-6-2015)

4.48.070 Records to be kept by operator of transient lodging.

A. Each operator shall maintain for a period of at least four years, daily records and monthly summaries that properly reflect the following minimum information:

1. Total rooms available and occupied;

2. Total rental revenue;

3. Total rental revenue that is not subject to the taxes and documentation to support such exemptions;

4. Guest folios or registration cards, including at a minimum, the occupant's name, room number, dates of occupancy; rent and taxes collected;

5. Total taxes collected as imposed by this chapter;

6. The number and dollar value of nonrevenue or complimentary rooms; and

7. The number of rooms included in package or promotional offerings, the total dollar value of the package, and the total dollar value allocated to room charges.

B. Acceptable methods of maintaining the above required information include guest folios or registration cards, daily transaction reports, general ledgers, cash journals, and similarly accepted books of accounting maintained by a reasonable business person. In addition, operators may be required to provide copies of bank statements, financial statements (audited, if available) prepared by their independent accountant, tax returns and similar documents that can be used to support rental revenue and exemptions.

C. The calculation used to determine the cost of any package offered to include the value assigned to each component of the package.

D. Each and every operator shall make the records noted in this section available during business hours for audit by the director for the collection of the taxes imposed by this chapter.
(Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.080 Records to be kept by director—Confidential.

The director will keep proper records of the transient lodging taxes herein fixed and imposed which become due and which are collected, including, without limiting the generality of the foregoing, records of delinquent taxes, interest thereon and penalties therefrom. These records shall be deemed confidential and shall not be revealed in whole or in part to anyone except in the necessary administration of this chapter or as otherwise provided by law.
(Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

Editor's note—Ord. No. 3243, § 1, adopted January 6, 2015, changed the title of section 4.48.080 from "Records to be kept by administrator—Confidential" to "Records to be kept by director—Confidential." The historical notation has been preserved for reference purposes.

4.48.090 Gaming tax.

There are hereby fixed and imposed license taxes for revenue on gaming licensees within the city, in addition to any license taxes that may be fixed or imposed elsewhere in this Code or by the state or the county, according to the following schedule:

A. Licensees having six or more games; per game, per quarter—$40.00;

B. Licensees having two to 5½ games; per game, per quarter—$25.00;

C. Casinos having less than two games: per game, per quarter—$10.00; (In determining the number of games, craps, roulette, black jack, bingo games, race book, sports pool, and wire betting service each shall be considered a full game. All other games shall be considered one-half game each at one-half of the game charge.)

D. Slot machines or gaming devices, if more than 12 within one establishment; each slot machine or gaming device, per quarter—$2.50;

E. Slot machines or gaming devices, if 12 or less within one establishment; each slot machine or gaming device, per quarter—$1.00.

(Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.100 Gaming tax payment—Initial activation period.

A. The gaming taxes imposed in section 4.48.090 shall be paid quarterly on a calendar year basis and shall be paid in advance for the succeeding calendar quarter on or before the last day of the preceding calendar quarter.

B. If the initial activation period of the games and/or slot machines or gaming devices is not at the start of a calendar quarter, the tax shall be collected at the start date and shall be payment only for the remainder of the calendar quarter in which received.

4.48.110 Late-payment penalty—Interest.

Any operator or licensee failing to pay the taxes imposed by section 4.48.020 and section 4.48.090 by the due dates noted in this chapter shall pay, in addition to such tax, a penalty of ten percent of the amount due plus interest on the amount due as follows:

A. One percent per month or fraction thereof of the amount due for the convention and visitors authority transient lodging tax per subsection 4.48.020(A);

B. One percent per month or fraction thereof of the amount due for the gaming tax per section 4.48.090;

C. One and one-half percent per month or fraction thereof of the amounts due for the transient lodging taxes per subsections 4.48.020 (B), (C), (D), (E) and (F);

D. All interests shall be calculated from the date the taxes became due and payable until the date of collection.

(Ord. No. 3395, § 1, 4-11-2017; Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.120 Enforcement.

The director is charged with the enforcement of the provisions of this chapter and may employ such accountants, auditors, investigators, assistants and clerks as he or she may deem necessary for the efficient administration of this chapter.

(Ord. No. 3243, § 1, 1-6-2015; Ord. 2734, § 1 (part), 2008)

4.48.125 Delinquency collection.

A. Whenever any operator, licensee or other responsible person surpasses 45 days of delinquency in the payment of any obligation imposed by this chapter, the director may transmit notice of such delinquency to the city attorney's office and such office may proceed to collect all sums due to the city by appropriate legal action. In any suit brought to enforce the rights of the city hereunder, a verified affidavit by the director, setting forth the delinquency and amount due shall be prima facie evidence of the amount of such delinquency and of compliance by the city with all provisions of this chapter relating to such obligation. In such action a writ of attachment may be issued as provided by law.

1. The licensee or other responsible person shall also be responsible for paying any attorney's fees and costs incurred by the city for the collection of the delinquent accounts.

B. The foregoing remedies of the city shall be cumulative, and no action by the city, nor any of its officers, shall be construed to be an election on the part of the city, or of the officers thereof, to pursue any remedy to the execution of any other remedy which is provided by law for the collection of delinquent taxes or of a debt.

(Ord. No. 3243, § 1, 1-6-2015)

4.48.130 Reserved.

Editor's note—Ord. No. 3243, § 1, adopted January 6, 2015, repealed the former section 4.48.130 in its entirety, which pertained to penalty for violation, and derived from Ord. No. 2734, § 1(part), adopted in 2008.

Chapter 4.60 TEENAGE DANCEHALLS—NIGHTCLUBS*

Sections:

4.60.010 Definitions.
4.60.020 Statement of purpose and intent—Lack of qualifications to hold license.
4.60.030 Unlawful to operate without license.
4.60.040 License—Application—Consent to investigation.
4.60.050 Investigation fees—Employees or agents to qualify the same as the applicant.
4.60.060 No refund on investigation fee.
4.60.070 Withdrawal of application—Refund.
4.60.080 Investigation and issuance.
4.60.090 Fees—Further regulations.
4.60.100 Transfer prohibited.
4.60.110 License—Suspension—Revocation—Limitation.
4.60.120 Licensee responsible for the acts of employees.
4.60.130 Licensee's agreement to conform to law.
4.60.140 Right of appeal.
4.60.150 Judicial review.
4.60.160 Emergency police order.
4.60.170 Penalty for violation of chapter.

4.60.010 Definitions.

As used in this chapter, unless the context otherwise requires, or the words are otherwise defined below, the words and terms used in this chapter have the following meanings:

Department means the department of finance business license division.

Director means the business license supervisor or his designee in the business license division of the department of finance.

Social dance means recreational dancing by persons who congregate together as a part of a social encounter in a dancehall, not a dance which is an integral part of an effort to express a position on a public matter or other expressive message.

Teenage dancehall means an establishment in which social dances, attended by teenagers, are regularly held or conducted as a substantial part of the business, whether admission is by a set admission charge, the donation of money, or at no charge. Teenage dancehall does not include dance schools, places operated by government entities,

***Editor's note—**Ord. 2800, §§ 1, 2, adopted January 20, 2009, repealed the former chapter 4.60, §§ 4.60.010—4.60.050, and enacted a new chapter 4.60 as set out herein. The former chapter 4.60 pertained to similar subject matter and derived from Ord. 2718, § 1, 2008.

schools, religious institutions, or any other place used by an establishment, association or organization which might occasionally host or sponsor a social dance for teenagers incidental to the entity's purpose.

Teenage nightclub means an establishment providing live entertainment as a substantial part of the business in which teenagers regularly gather, whether admission is by a set admission charge, the donation of money, or at no charge. Teenage nightclub does not include places operated by government entities, schools, religious institutions, or any other place used by an establishment, association or organization which might occasionally host or sponsor live entertainment for teenagers incidental to the entity's purpose.

Teenager means a person between the ages of 14 and 20 years old, inclusive.
(Ord. 2800, § 2, 1-20-2009)

4.60.020 Statement of purpose and intent—Lack of qualifications to hold license.

It is found and declared that the public health, safety, morals, good order and general welfare of the residents of the city require the regulation and control of all teenage dancehalls and teenage nightclubs. All teenage dancehalls and teenage nightclubs shall be licensed and regulated so as to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public. It is further found and declared that the right to obtain such a license is a privilege and that the license may be suspended, limited or revoked for violation of the conditions of this chapter. In conformity with the policy of this chapter, the following persons are declared not to be qualified to hold a license under the provisions of this chapter:

A. A person who violates, or has violated, the provisions of this chapter despite notice by the city;

B. A person who has been convicted of a crime involving theft, fraud, dishonesty, receiving or possessing stolen property, any controlled substance violation or any sex offense;

C. A person whose license, issued under the provisions of this chapter, or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of businesses as defined in this chapter, has been denied, suspended or revoked for cause;

D. A person who, at the time of renewal of any license issued under this chapter, would not be eligible for such license upon a first application;

E. A partnership, limited partnership association, limited liability company, or other business entity unless all of the members of such partnership, limited partnership association, limited liability company, or business entity are qualified to obtain a license;

F. A corporation, unless it is incorporated in the State of Nevada, or unless it is a foreign corporation which is qualified under Nevada law to transact business in Nevada; or

G. A corporation, if an officer or director thereof would not be eligible to receive a license for any reason which would disqualify an individual applicant.

(Ord. 2800, § 2, 1-20-2009)

4.60.030 Unlawful to operate without license.

It is unlawful to commence, carry on or engage in the business of operating a teenage dancehall or teenage nightclub without first having procured a license to do so in accordance with this chapter.

(Ord. 2800, § 2, 1-20-2009)

4.60.040 License—Application—Consent to investigation.

Whenever a person desires to conduct any of the activities of a teenage dancehall or teenage nightclub in the city, such person shall completely execute the following:

A. The application specified in section 4.04.060(A);

B. Applicant's request to release information (HPD INV 40 [Rev. 1/01] or as may be amended) the contents of which are incorporated herein by reference; and

C. Henderson police department personal history questionnaire (HPD INV 41 [2/01], or as may be amended) the contents of which are incorporated herein by reference and any other pertinent documents or information which the department may require in order to corroborate the information provided in the form.

(Ord. 2800, § 2, 1-20-2009)

4.60.050 Investigation fees—Employees or agents to qualify the same as the applicant.

An applicant is required to pay to the department the investigation fee as set forth in chapter 4.03 for each person required to be licensed.

(Ord. 2800, § 2, 1-20-2009)

4.60.060 No refund on investigation fee.

Even though an applicant is denied a license after investigation, no part of the investigation fee deposited shall be returned to the applicant.
(Ord. 2800, § 2, 1-20-2009)

4.60.070 Withdrawal of application—Refund.

If any applicant withdraws his application prior to the beginning of an investigation all investigation fees deposited shall be returned to the applicant.
(Ord. 2800, § 2, 1-20-2009)

4.60.080 Investigation and issuance.

A. Upon receipt of the application, the department shall refer the applicant or employee or agent thereof to the Henderson police department which shall cause an investigation pursuant to chapter 4.03 of the Henderson Municipal Code.

B. Upon the director's review of the application, the director shall refuse to issue a license to the applicant for any of the following reasons:

1. The applicant has been convicted of any felony, gross misdemeanor, or a misdemeanor involving a sex offense, trafficking in controlled substances, or any violent act against a person or property, such conviction having being entered within the ten years preceding the date of application;

2. The applicant is a person against whom a judgment based upon, or conviction for, fraud, deceit or misrepresentation has been entered within the ten years immediately preceding the date of application.

C. The license application may also be denied for good cause as set forth in section 4.04.150(A), or because the applicant is not qualified as set forth in section 4.60.020.
(Ord. 2800, § 2, 1-20-2009)

4.60.090 Fees—Further regulations.

A. *[Applicability of fees.]* Teenage dancehalls and teenage nightclubs shall be subject to the fees set forth in section 4.05.010.

B. *Hours of operation.* A teenage dancehall's or teenage nightclub's hours of operation shall end at 10:00 p.m. on any evening preceding a day in which the public middle or high schools in the city are open for classes and 12:00 midnight on any other day. No patron shall be permitted to enter or remain on the licensee's premises after closing.

C. *Written consent of parent/guardian.* The licensee must not allow persons under the age of 16 to enter or remain on the premises without written authorization of a parent or guardian signed in the presence of the licensee.

D. *Age restrictions.* No person under the age of 14 years of age or over the age of 20 (other than the parent or guardian accompanying his or her minor child) shall be allowed to enter or remain on the premises; provided however, that this restriction shall not apply to employees and agents of the licensee.

E. *Access to governmental agents.* The director and all peace officers, fire department investigators or employees, licensing officers, or code enforcement officers shall have free access to a teenage dancehall or teenage nightclub for the purpose of inspection, or to enforce the conditions of the permit, applicable code provision, or law.

F. *Prohibition on alcohol and tobacco.* No alcoholic beverage or tobacco in any form may be consumed, dispensed, or possessed by or to any person at a teenage dancehall or teenage nightclub. Furthermore, no patron may be present on the premises of a teenage dancehall or teenage nightclub who is under the influence of intoxicating liquor or a controlled substance. The prohibitions with regard to alcoholic beverages apply at all times, even when the premises are not being used as a teenage dancehall or teenage nightclub.

G. *Lighting.* The establishment shall at all times during the operation thereof be illuminated with the following minimum lighting:

1. The interior space used by patrons, at least one footcandle per square foot measured at a height of 30 inches above the floor; and

2. On all outside premises, at least three footcandles per square foot measured at a height of 30 inches above the ground, unless a higher candle foot is required in a conditional use permit.

H. *Sanitary requirements.* A teenage dancehall or teenage nightclub shall be equipped with separate, fully functional restrooms for males and females and shall be kept and maintained in a clean and sanitary manner.

I. *Supervision of restrooms.* The licensee shall ensure that there is no cross-gender use of restrooms in violation of HMC [section] 8.60.085.

J. *Loitering/readmission.* The licensee shall be responsible to be sure that no person loiters on or around the outside premises. Free passageway shall be kept open and unobstructed at all times for the ready passage for persons to and from the teenage dancehall or teenage nightclub. No patron admitted into a teenage dancehall or teenage nightclub shall be permitted to leave and thereafter re-enter the premises unless, if an admission charge was paid, the patron pays the admission fee again, or a readmission fee equal to or greater than one-half of the original price of admission.

K. *Occupancy load/seating.* The licensee must comply with the adopted building code occupancy requirements. The maximum occupancy shall be posted above each door through which patrons may be admitted, and a number of persons in excess of the posted occupancy load shall not be admitted. The licensee shall maintain an accurate record of the number and identity (to include, at a minimum, a person's first and last name and date of birth) of persons present and upon request immediately present said count and identity information to any peace officer, fire department investigator or employee, director, licensing officer, or code enforcement officer. Seating shall be provided sufficient to accommodate at least one-half of the maximum occupancy.

L. *Security.* Each teenage dancehall or teenage nightclub location shall provide at least two uniformed security guards who are licensed pursuant to and meet all requirements in chapter 648 of the Nevada Revised Statutes and licensed pursuant to HMC section 4.05.335 for the first 100, or portion thereof, persons who are anticipated to attend any function. For each additional 100 persons attending or anticipated to attend (whichever number is greater), one more duly licensed and qualified security guard shall be provided. Such security guards shall patrol and maintain order in and about the location, shall be vigilant to ensure that all regulations are complied with at all times, and shall supervise the cleanup of the trash and litter in the parking lot area and premises. In no event shall a teenage dancehall or teenage nightclub be open for business without having at least one such guard inside the location and at least one such guard in the parking area. This requirement shall not prevent security guards from temporarily assisting security guards elsewhere in or about the location if the circumstances absolutely require such assistance.

M. *[Compliance.]* The licensee shall conform to all of the requirements pertaining to teenage dancehalls and teenage nightclubs in title 19 of the Henderson Municipal Code. Any business licensed as a teenage dancehall as of the effective date of this ordinance shall not operate as a teenage nightclub without first obtaining a conditional use permit as required in title 19.
(Ord. 2800, § 2, 1-20-2009)

4.60.100 Transfer prohibited.

It shall be unlawful for any teenage dancehall or teenage nightclub licensee to transfer his license to any other person.
(Ord. 2800, § 2, 1-20-2009)

4.60.110 License—Suspension—Revocation—Limitation.

Any license issued under this chapter may be revoked, limited, or suspended by the director for any of the reasons set forth in sections 4.60.080 or 4.04.150.
(Ord. 2800, § 2, 1-20-2009)

4.60.120 Licensee responsible for the acts of employees.

Every licensee shall be responsible for the acts of his employees and agents committed during the course of employment or licensed activity. In any license suspension, limitation or revocation proceeding, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense, and every licensee hereunder accepts his license subject to said condition.
(Ord. 2800, § 2, 1-20-2009)

4.60.130 Licensee's agreement to conform to law.

Acceptance of a license constitutes an agreement on the part of such licensee to be bound by all of the regulations of the city as the same now are, or may hereafter be amended or promulgated. It is the sole responsibility of the licensee to keep himself informed of the content of all such rules and regulations, and ignorance thereof will not excuse violations.
(Ord. 2800, § 2, 1-20-2009)

4.60.140 Right of appeal.

Appeal rights of applicants are set forth in section 4.04.210.
(Ord. 2800, § 2, 1-20-2009)

4.60.150 Judicial review.

Procedure for judicial review of final decisions and order of the council are set forth in section 4.06.160.
(Ord. 2800, § 2, 1-20-2009)

4.60.160 Emergency police order.

A. Without limiting the enforcement powers specified in HMC [section] 4.04.200, the chief of police or his designee may issue an emergency order to immediately cease operation upon a determination that there has been a violation of this chapter or the applicable conditions stated in the licensee's conditional use permit and that such order is necessary for the immediate preservation of the public peace, health, safety, morals, good order or general welfare within the city.

B. An emergency order issued pursuant to this section shall:

1. Set forth the grounds upon which it is issued, including a statement of facts constituting the emergency necessitating such order;

2. Be effective immediately upon the issuance and service thereof on the licensee or its representative or, if either is not immediately present and available, upon posting of the order on the front door of the premises of the teenage dancehall or teenage nightclub; and

3. Indicate the period of time for which it is effective, which period shall be based upon the severity of the violation and the nature of the emergency as determined by the chief of police or his designee.

C. A licensee may appeal the emergency order to the city council as provided in HMC [section] 4.04.210, and further appeal from the city council's decision pursuant to HMC [section] 4.06.160.
(Ord. 2800, § 2, 1-20-2009)

4.60.170 Penalty for violation of chapter.

Any person violating any of the provisions of this chapter shall be guilty of a misdemeanor; and, upon conviction thereof, shall be punished as the law allows for a misdemeanor crime. Whenever in this chapter any act is prohibited, or is made or declared to be unlawful, or an offense or a misdemeanor, or whenever in such chapter the doing of any act is required, or the failure to do any act is made or declared to be unlawful, or an offense or misdemeanor, the doing of any such prohibited act, or the failure to do any such required act, shall constitute a violation of this chapter. Every day of violation of this chapter constitutes a separate offense. Any person being adjudged guilty of a violation of this chapter or any of the provisions or prohibitions thereof may, in the discretion of the council, be denied a license thereafter.
(Ord. 2800, § 2, 1-20-2009)

Chapter 4.64 PAWNBROKERS*

Sections:

4.64.010 Definitions.
4.64.020 License required.
4.64.030 Application for license.
4.64.040 Nature of pawnbroker.
4.64.045 Applicability of Nevada Revised Statutes chapter 646.
4.64.050 Proprietor only eligible for license.
4.64.060 Background investigation fees.
4.64.070 Bond for pawnbroker.
4.64.080 License—Transfer or assignment—Council approval required.
4.64.090 Property redemption notice form.
4.64.100 Pawn ticket.
4.64.110 Daily report to police chief.
4.64.120 Forms for daily report.
4.64.130 Pawnshop record ledger.
4.64.140 Police to provide forms and file reports.
4.64.150 Unlawful to accept articles from certain persons.
4.64.160 Pawnshop employment restricted to persons over 18 years.
4.64.170 Pawnbroker liable for employees.
4.64.180 Time lapse after daily report.
4.64.190 Identification of business required.
4.64.200 Restriction on knives and razors.
4.64.210 Memorandum of record book entry to pledger.
4.64.220 Limit on number of licenses.
4.64.230 Storage compound when motor vehicles are pawned.
4.64.240 Inactivity of license.
4.64.250 Liability insurance when motor vehicles are pawned.
4.64.260 Clear title required for pawning motor vehicle.
4.64.270 License plates to be removed at time of motor vehicle pawn.
4.64.280 Pawnbroker to obtain dealer's license from State of Nevada when motor vehicles are pawned.
4.64.290 Pawnbroker to obtain use permit from City of Henderson.
4.64.300 Penalty for violation covering chapter 4.64 inclusive.

4.64.010 Definitions.

Motor vehicle means any self-propelled vehicle that is used upon a highway, but not operated on rails, for the purpose of transporting persons or property.

***Editor's note—**Ord. 1133, § 1 repealed chapter 4.64 of the Henderson Municipal Code as established by Ords. 99, 685, 762, 772, 850, 852, 958, 1095, in its entirety. Ord. 1133, § 2 amended the Henderson Municipal Code by adding a new chapter designated chapter 4.64, which is herein codified. Ord. 1138 amended the title of the Ord. 1133 as published.

Pawnbroker means every person within the city engaged, in whole or in part, in the business of loaning money on the security of pledges, deposits or other secured transactions in personal property.
(Ord. 1788, § 1, 1997)

4.64.020 License required.

It is unlawful for any person to conduct or transact a pawnbroking business in the city without first having procured a city license therefor, as provided in this chapter.

4.64.030 Application for license.

This application shall state the name of the person, and, in case of a firm or corporation, the name of the persons composing such firm, or of the officers and stockholders of such corporation; also the place, street and number where such business is to be carried on, and shall specify the amount of capital proposed to be used by the applicant in such business.

4.64.040 Nature of pawnbroker.

The pawnbroker license is a privileged license or in the nature of a privileged license due to the opportunities for criminal transactions or the hiding or exchange of stolen goods and other illegal or illicit activity.

4.64.045 Applicability of Nevada Revised Statutes chapter 646.

In addition to the requirements as set forth in this chapter, each pawnbroker shall conduct his business in accordance with Nevada Revised Statutes chapter 646.
(Ord. 1788, § 2, 1997)

4.64.050 Proprietor only eligible for license.

No such license shall be issued to any person copartnership, corporation or association other than the real and actual proprietor of the business and place of business for which it is issued.

4.64.060 Background investigation fees.

All applications for pawnbroker license, shall be made to the business license division, who shall refer such application to the Henderson police department. Applicant shall be required to deposit with the application an investigation fee, as set forth in chapter 4.03. After completion of a background investigation, the Henderson police department shall

make its recommendation for approval or disapproval to the business license division, who shall in turn make a recommendation to the city council for final action at the next available meeting thereof.
(Ord. 1301, § 13, 1992)

4.64.070 Bond for pawnbroker.

The applicant shall file, with the application, a bond running to the city, conditioned for the faithful observance of all ordinances of the city respecting pawnbrokers, during the continuance of such license, and any renewal thereof. This bond shall be in the sum of $10,000.00, with two or more individual sureties. To such bond shall be attached a justification to the effect that the sureties are residents within the county and each are worth the amount specified in such bond, over and above all just debts and liabilities, and exclusive of property exempt from execution.

In lieu of the above-mentioned bond there may be used a surety bond from a company authorized to do business in the State of Nevada.

4.64.080 License—Transfer or assignment—Council approval required.

Any assignee or transferee of a valid pawnbroker license is required to receive a pawnbroker license prior to engaging in the business of pawnbroking. It is unlawful for any licensee to permit the licensed premises to be managed or utilized by a lessee, assignee or other transferee who has not first received a pawnbroker license and obtained approval of city council for the transfer or assignment of the pawnbroker license. No license issued under this chapter can be assigned or transferred except with the approval of the council.
(Ord. 1788, § 3, 1997)

4.64.090 Property redemption notice form.

All personal property including motor vehicles, placed in pawn, must be held for redemption by the pawnbroker, for at least 120 days after the date of pledge. A pawnbroker shall give to the person securing the loan a printed receipt clearly showing the amount loaned and rate of interest, together with a description of the pledged property. In the case of motor vehicles, the description shall include the make, model, color, year, and vehicle identification number of the particular vehicle. The receipt must be marked in such a manner that the amounts of principal and interest paid by the person securing the loan can be clearly designated. Each payment must be entered upon the receipt, and each entry must designate how much of the payment is being credited to principal and how much to interest, with dates of payments shown thereon.
(Ord. 1788, § 4, 1997)

4.64.100 Pawn ticket.

Any pawnbroker shall furnish to the pledger what is known as a pawn ticket, plainly numbered, containing the name of the pledger, a description of the article or thing pawned or received, date of receipt thereof, the amount loaned thereon, time for redemption, and names of the pledges, and shall affix to each article or thing, a tag, upon which tag shall be inscribed a number of legible characters, which number shall correspond to the number of the pawn ticket, and be entered in the book required to be kept by section 4.64.130.

4.64.110 Daily report to police chief.

Every pawnbroker in the city must, make and deliver to the chief of police, at the police station, a full, true and detailed report in writing, on forms to be approved by the city council, setting forth an exact description of each article or thing pawned or received by such pawnbroker during the 24 hours immediately preceding such report. This report shall be a full, detailed and correct copy of all entries in the book required to be kept in section 4.64.130. The report made on each Monday shall include all articles or things pawned or received from and after the report made and delivered on the Saturday preceding. If no articles or thing has been pawned or received, a report must be made to that effect.

4.64.120 Forms for daily report.

The chief of police shall cause such a number of blanks to be printed as may be necessary for the purpose of making the reports required by this chapter. He shall from time to time cause such additional blanks to be printed as many be required. These blanks shall be so printed and subdivided that they shall have space for writing in all the matters required by this chapter to be registered and reported.

This report shall be written in the English language in a clear, legible manner. Such blanks shall bear a caption, providing spaces in which shall be filled in the date of the report, the name and residence of the person making the same and the hour of day when made, and all other matters required by this chapter to be reported.

4.64.130 Pawnshop record ledger.

Every pawnbroker shall keep a master record ledger wherein every transaction made must be recorded. The ledger shall be typed or printed in ink at the time of each loan or receipt of property. The ledger shall contain an accurate account and description of the goods, article, vehicle or things pawned, or received, the amount of money loaned or advanced thereon, the number of the pawn ticket given to the pledger, the time when the

property is redeemable, the date and time of pawning or receipt of such goods, article, vehicle or things, name, address, date of birth, social security number, sex and race of the person pawning or delivering the goods, article, vehicle or things.

No entry made in the master record ledger shall be erasable, obliterated or defaced. The master record ledger as well as all goods, articles, vehicles or things pawned, pledged or deposited, shall be open and available to the inspection of the chief of police or his designee upon reasonable notice to the pawnbroker.

4.64.140 Police to provide forms and file reports.

The chief of police shall deliver the blanks provided for in section 4.64.120 to the person from whom these reports are required, from time to time, at the cost of the police department. He shall, upon receipt of such reports, file them in some secure place in his office, and they shall be open to inspection only by the chief of police or any officer directed by the chief, or upon the order of some court duly made for that purpose.

4.64.150 Unlawful to accept articles from certain persons.

It shall be unlawful for any pawnbroker, his servant, agent or employee to receive any goods, articles or things in pawn or pledge from a person who appears to be under the influence of alcohol or drugs, is a thief, suffering from mental disabilities or a person under the age of 18 years.

4.64.160 Pawnshop employment restricted to persons over 18 years.

It shall be unlawful for any pawnbroker, to employ any clerk or person under the age of 18 years to receive any pledge or make any loan.

4.64.170 Pawnbroker liable for employees.

The holder of a pawnbroker's license shall be liable for any and all acts of his employees, and for any violation by them of any of the provisions of this chapter.

4.64.180 Time lapse after daily report.

It is unlawful for any pawnbroker, clerk, agent, or employee of a pawnbroker to remove any property received in pledge from his place of business, within 30 days after the receipt of the property is reported to the chief of police.
(Ord. 1788, § 5, 1997)

4.64.190 Identification of business required.

Every person licensed under this chapter shall cause his name, or the firm name, or the corporation name, with the words "licensed pawnbroker" or to be printed or painted, in large, legible characters, and placed over the outside of the door or entrance of his office or place of business.

4.64.200 Restriction on knives and razors.

A licensed pawnbroker may buy, sell or take for pledge, pawn or security, safety razors, or any dirk, bowie knife or any other knife of any kind or size, whether or not it has any blade over three inches long; provided, however, that no licensed pawnbroker shall buy, sell or take for pledge, pawn or security any other razor, sword, cane, sling shot, blackjack, brass knuckles or Spanish stiletto; provided further, however, that permission to buy, sell or take for pledge, pawn or security of any of the aforementioned permitted knives does not mandate permission to carry such weapons concealed upon the person of anyone in contravention of applicable city ordinances or state statutes.

4.64.210 Memorandum of record book entry to pledger.

Every pawnbroker shall at the time of each loan, deliver to the person pawning or pledging any goods, articles or things, a memorandum or note signed by him in such record book, and an estimated value of the goods, articles or things pledged; and no charge shall be made or received by any pawnbroker, for any such entry, memorandum or note.

4.64.220 Limit on number of licenses.

There shall be allowed one pawnbroker license for each 50,000 population in the City of Henderson as determined and reported by the State of Nevada, Department of Taxation, pursuant to the provisions of NRS 360.283, and as certified by the governor, pursuant to the provisions of NRS 360.285.
(Ord. 1788, § 6, 1997)

4.64.230 Storage compound when motor vehicles are pawned.

Pawnbrokers engaged in pawning motor vehicles shall provide and maintain at least one storage compound within the city limits, sufficient in size to handle a minimum of 15 motor vehicles. Such compound shall be enclosed by a chain link fence or block wall topped with 18-inch outriggers. Gates or doors for access to the compound shall be kept closed and locked when the premises are not open for business.

4.64.240 Inactivity of license.

The license of a pawnbroker who has not engaged in any pawn activity for a period of 90 consecutive calendar days shall be subject to revocation by the city council unless the pawnbroker has received specific approval of the council giving permission to close or to stay closed, but such total time shall not exceed one year from date of approval.
(Ord. 1788, § 7, 1997)

4.64.250 Liability insurance when motor vehicles are pawned.

Every pawnbroker engaged in pawning motor vehicles shall possess and maintain garage keeper's liability insurance in the amount of $100,000.00, general (public) liability insurance in the amount of $100,000.00 and collision insurance in the amount of $15,000.00.

4.64.260 Clear title required for pawning motor vehicle.

It is unlawful to pawn any motor vehicle on which there exists any lien, security interest or encumbrance of whatever nature or to pawn any motor vehicle if the person pawning said motor vehicle is not the legal owner thereof.

4.64.270 License plates to be removed at time of motor vehicle pawn.

The license plate from any motor vehicle to be pawned must first be removed by or at the direction of the registered owner of the motor vehicle.

4.64.280 Pawnbroker to obtain dealer's license from State of Nevada when motor vehicles are pawned.

Every motor vehicle pawnbroker engaged in pawning motor vehicles must possess a dealer's license from the State of Nevada Department of Motor Vehicles and must fully comply with the requirements set forth in NRS 482.318 et seq.

4.64.290 Pawnbroker to obtain use permit from City of Henderson.

Every pawnbroker must possess a use permit pursuant to title 19 of the Henderson Municipal Code.

4.64.300 Penalty for violation covering chapter 4.64 inclusive.

Any person violating any provision of this chapter shall be guilty of a misdemeanor.

Chapter 4.68 SECONDHAND DEALERS*

Sections:

4.68.010 Definitions.
4.68.020 Statement of legislative intent—Regulation.
4.68.025 Secondhand dealer classifications.
4.68.030 License required.
4.68.035 License exemptions.
4.68.040 Limit on number of secondhand dealer licenses.
4.68.050 Land use—Compliance with title 19.
4.68.060 Reserved.
4.68.070 License—Application—General.
4.68.080 Special provisions of secondhand dealer license.
4.68.090 Reserved.
4.68.100 Reserved.
4.68.110 Reserved.
4.68.120 Reserved.
4.68.130 Investigation fees—Required—Fees charged.
4.68.140 Reserved.
4.68.150 Reserved.
4.68.160 Reserved.
4.68.170 License issuance—Assignment—City council approval required—License nontransferable.
4.68.175 License—Change of location.
4.68.180 Reserved.
4.68.190 Closure or non-operational status—Responsibility of licensee to maintain use.
4.68.200 Display of sign.
4.68.210 Purchase from minors and juveniles—Prohibitions—Exceptions—Conditions.
4.68.220 Time period merchandise to be retained.
4.68.230 Record of transactions—Inspection of records and goods—Record retention.
4.68.233 Record of scrap metal purchases—Photographic or video documentation required—Inspection of records.
4.68.235 Daily reports.
4.68.240 Licensee responsible for the acts of employees.
4.68.250 Reserved.
4.68.260 License—Suspension—Revocation—Limitation.
4.68.270 Application of Nevada Revised Statutes.

***Editor's note—**Ord. No. 4041, § 1, adopted October 15, 2024, amended chapter 4.68 in its entirety to read as herein set out. Formerly, chapter 4.68 pertained to similar subject matter and derived from Ord. 1303, § 1 (part), adopted in 1992; Ord. 1907, § 1 (part), adopted in 1999; Ord. 2370, § 111, adopted in 2005, and Ord. No. 2910, §§ 1—3, adopted March 15, 2011.

4.68.280 Reserved.
4.68.290 Violation—Penalty.

4.68.010 Definitions.

The following definitions are in addition to the definitions set forth in chapter 4.04 of this title. Unless the context clearly indicates a different meaning, the definitions below shall govern the construction, meaning, and application of words and phrases used in this chapter:

Antique means a unique object of personal property that is not less than 60 years old and has special value primarily because of its age, or as otherwise defined by NRS Chapter 647.

Collectible means an object of personal property that has special value primarily because of its unique characteristics and the high level of demand for the object.

Drop-off center means a collection site where recyclable materials may be taken by persons and deposited into designated containers.

Jewelry means merchandise customarily kept in retail (including estates) jewelry stores for sale, including, but not limited to, precious and semiprecious stones; watches; clocks; rings; bracelets; articles made in whole or in part of gold, silver, platinum or other precious or semiprecious metal and, in addition thereto, shall also include art objects.

Net assets means the book value of current assets less applicable liabilities, represented by a capital investment unencumbered by a lien or other encumbrance, and subject to a claim by a general creditor. Such capital investment must be represented by common or preferred shares and capital or earned surplus, if the business is a corporation; or a substantial equivalent of items, as determined by generally accepted accounting principles, if the business is not a corporation.

New merchandise means all commodities which merchants normally sell, whether at wholesale or retail, and which have never entered into common market place for sale or distribution to a consumer.

Recyclable materials or *recyclables* has the same meaning as that term is defined in the health department regulations governing recycling centers, as amended.

Recycling center has the same meaning as that term is defined in the health department regulations governing recycling centers, as amended.

Scrap metal means:

1. Nonferrous metals, scrap iron, stainless steel or other material or equipment which consists in whole or in part of metal and which is used in construction, agricultural operations, electrical power generation, transmission or distribution, cable, broad-

band or telecommunications transmission, railroad equipment, oil well rigs or any lights maintained by the state or a local government, including, without limitation, street lights, traffic-control devices park lights, or ball park lights; and

2. Catalytic converters.

3. The term does not include waste generated by a household, aluminum beverage containers, used construction scrap iron or materials consisting of a metal product in its original manufactured form which contains not more than 20 percent by weight nonferrous metal.

Scrap metal processor means any person who:

1. Engages in the business of purchasing, trading, bartering or otherwise receiving scrap metal; or

2. Uses machinery and equipment for processing and manufacturing iron, steel or nonferrous scrap into prepared grades, and whose principal product is scrap iron, scrap steel or nonferrous metallic scrap, not including precious metals, for sale for remelting purposes.

Secondhand dealer means any person having a place of business in the city for purchasing, trading or dealing in any secondhand personal property. Establishments conducting the business of recyclables, or of a drop-off center, are included in this definition.

Secondhand dealer, Category A, means:

1. A person whose principal business practices and transactions are primarily in new merchandise, with used, or secondhand, merchandise constituting a maximum of 30 percent of the total gross revenues from the business activities.

2. This category of secondhand dealer license includes license classifications I or II, as set forth in section 4.68.025.

Secondhand dealer, Category B, means:

1. A person whose principal business practices and transactions are primarily in used or secondhand merchandise.

2. This category of secondhand dealer license includes license classifications I, II, and III, as set forth in section 4.68.025.

Secondhand dealer, Category C, means a person whose business practices and transactions are in furs, currency or stamps.

Secondhand dealer, Category D, means:

1. A person whose business practices and transactions are limited to those set forth in category C and jewelry; and maintaining net assets of at least $250,000.00 that are used or readily available for use in the business of the licensed location.

2. If the director cannot verify that an applicant meets the net assets requirement of this section, the director may require the applicant to submit a finding, including a current balance sheet, by an independent certified public accountant that the accountant has reviewed the applicant's books and records, and the applicant meets the net assets requirement.

3. This category of secondhand dealer license is included in secondhand dealer, class II.

4. With the exception of a license issued for a change of ownership for a business holding a valid secondhand dealer, category D license issued on or before November 29, 2011, no new secondhand dealer, category D licenses will be issued.

5. Any valid, existing category D license issued on or before November 29, 2011, shall be deemed nonconforming and may continue to operate so long as it is in compliance with the provisions of this title.

6. Any change of ownership relating to a valid, existing category D license must be approved by council in order for the establishment to continue to operate as a nonconforming business.

7. A change of location of a business holding a valid, existing category D license approved pursuant to section 4.68.175 shall continue to be deemed a nonconforming business.

Secondhand dealer, Category E, means a recycling center permitted to operate by the health department.

1. This category excludes scrap metal processors.

2. Any valid, existing category E license issued to a secondhand dealer that was engaged in the business of scrap metal processing as of January 1, 2018, shall be deemed nonconforming. Such a nonconforming license may continue to operate so long as it is in compliance with the provisions of this title, including the scrap metal processor provisions set forth in this chapter, without obtaining a separate category F license.

Secondhand dealer, Category F, means a scrap metal processor permitted to operate by the health department.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.020 Statement of legislative intent—Regulation.

It is found and declared that the public health, safety, morals and welfare of the inhabitants of the city require the regulation and control of persons engaged in the secondhand dealer business, or in the operation of secondhand shops. All secondhand dealers, as defined in this chapter, shall be licensed and regulated so as to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public. It is further found and declared that the right to obtain such license is a privilege and that the operation of a secondhand dealer business, when authorized by such license, is a privileged business subject to regulations, and that the license may be revoked for violation of the conditions of this chapter. In conformity with the policy of this chapter, the following persons are declared not qualified to hold a license under the provisions of this chapter:

A. A person who has been convicted of a crime involving theft, fraud, dishonesty, receiving or possessing stolen property, any controlled substance violation whatsoever, or any sex offense;

B. A person whose license, issued pursuant to the provisions of this chapter, or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of secondhand dealer businesses, has been revoked for cause;

C. A person who, at the time of renewal of any license issued under this chapter, would not be eligible for such license upon a first application;

D. A partnership, limited partnership or association, unless all of the members of such partnership, limited partnership or association are qualified to obtain a license;

E. A corporation, unless it is incorporated in the State of Nevada, or unless it is a foreign corporation which is qualified under Nevada law to transact business in Nevada;

F. A corporation or limited liability corporation, if an officer or director thereof would not be eligible to receive a license for any reason which would disqualify an individual applicant.

(Ord. No. 4041, § 1, 10-15-2024)

4.68.025 Secondhand dealer classifications.

Classifications include the following:

A. Secondhand dealer, Class I, which includes all secondhand dealers who handle, or deal in secondhand motor vehicles or trailers for sale or for the purpose of dismantling, wrecking, disassembling and selling the dismantled, wrecked or disassembled parts or accessories; and, secondhand motor vehicles or trailers, or

parts and accessories thereof; and, secondhand dealers who dismantle, wreck, or disassemble motor vehicles or trailers, and who possess the appropriate State of Nevada, Department of Motor Vehicles dealers license this class also includes ATV's, boats and dirt bikes.

B. Secondhand dealer, Class II, which includes all secondhand dealers who handle, or deal in one or more of, but not limited to, the following: metals, scrap metals, rags, paper, furs, furniture, fixtures, household goods, radios, televisions, office supplies and equipment, pictures, paintings, watches, gold, silver and other precious metals, diamonds and other precious stones, recyclables, and dealers who smelt gold or wrought gold, or other wrought metals. The business of consignment may also be included in this classification based on the nature of the goods being placed on consignment with the establishment.

(Ord. No. 4041, § 1, 10-15-2024)

4.68.030 License required.

It is unlawful for any person to operate, conduct, carry on, or maintain any secondhand dealer business as described in this chapter within the city without first obtaining and thereafter maintaining the license herein required and paying the license fee as set forth in chapter 4.05.

(Ord. No. 4041, § 1, 10-15-2024)

4.68.035 License exemptions.

A. This chapter does not apply to the following persons licensed pursuant to chapter 4.05 or chapter 4.64 as specified elsewhere in this title:

1. Pawnbrokers licensed pursuant to chapter 4.64;

2. Dealers in antiques;

3. Dealers in used books and/or periodicals;

4. Dealers in coins which are not a part of jewelry;

5. Dealers in collectibles; or

6. Dealers in used firearms or any antique parts, accessories or other equipment relating to those firearms if:

a. The person engages in that business at a show that:

i. Is held at:

1. A convention facility which is owned or operated by and located on the premises of a resort hotel; or

2. A recreational facility which is owned or operated by a county fair and recreation board; and

ii. Is conducted for not more than seven days during any six-month period; and

b. The person has been issued a license as a manufacturer, importer, dealer or collector pursuant to the provisions of 18 U.S.C. § 923;

B. A business licensed pursuant to this title may take in used items on trade for store credit or for the purchase of store merchandise without the requirement to obtain a secondhand dealers license.

C. Nonprofit organizations recognized as such by the Internal Revenue Code of the United States which are registered pursuant to chapter 4.04.

(Ord. No. 4041, § 1, 10-15-2024)

4.68.040 Limit on number of secondhand dealer licenses.

There shall be allowed one category B, class II license for each 20,000 population in the city as determined and reported by the State of Nevada, Department of Taxation, pursuant to the provisions of NRS 360.283, and as certified by the governor, pursuant to the provisions of NRS 360.285.

(Ord. No. 4041, § 1, 10-15-2024)

4.68.050 Land use—Compliance with title 19.

Every secondhand dealer licensed in the city must comply with the provisions of title 19 of this Code.

(Ord. No. 4041, § 1, 10-15-2024)

4.68.060 Reserved.

4.68.070 License—Application—General.

Whenever a person desires to conduct any secondhand dealer business in the city, or engage in the business thereof, such person shall make application in writing to the division to obtain a license therefor.

(Ord. No. 4041, § 1, 10-15-2024)

4.68.080 Special provisions of secondhand dealer license.

A. All applicants for a secondhand dealer, category A, license shall, in addition to the application for a secondhand dealer license, make application, be issued, and shall maintain, a gross revenue business license for new merchandise as defined in section 4.05.010, during all times the category A license is to remain valid; and

B. In all cases, to obtain, and maintain, a secondhand dealer, category A, license, the business so licensed shall derive a minimum of 70 percent of its gross revenues from the sale of new merchandise during any six-month period of time.

C. To obtain and maintain a secondhand dealer, category E, license, the business so licensed shall maintain a valid permit to operate a recycling center issued by the health department.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.090 Reserved.

4.68.100 Reserved.

4.68.110 Reserved.

4.68.120 Reserved.

4.68.130 Investigation fees—Required—Fees charged.

Any person applying for a secondhand dealer license, is required to submit to the city an investigation fee as set forth in chapter 4.03, for each person required to submit to a background investigation.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.140 Reserved.

4.68.150 Reserved.

4.68.160 Reserved.

4.68.170 License issuance—Assignment—City council approval required—License nontransferable.

A. Upon receipt of the results of the background investigation from the police department, the director will submit the application to the city council for consideration. If approved by the council, the division may be directed to issue the license; provided, however, that all other conditions, restrictions, payment of fees, and compliance with all applicable state statutes and city ordinances have been met.

B. A secondhand dealer license shall not be transferable and shall not be assignable to any other person, or place of business, without council approval.

C. Any assignee, or transferee, of a valid secondhand dealer license shall be required to obtain a separate license prior to engaging in the business of a secondhand dealer.

D. It is unlawful for any licensee to permit the licensed premises to be managed or utilized by a lessee, or other transferee, who has not first obtained a separate secondhand dealer license.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.175 License—Change of location.

A. No secondhand dealer license is transferable to a new location unless such proposed change of location complies with all requirements of this title and title 19; and

B. Location changes are subject to council approval. Such approval may be withheld for any reason deemed sufficient by the council; and

C. Location changes are subject to an administrative fee as set forth in chapter 4.04.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.180 Reserved.

4.68.190 Closure or non-operational status—Responsibility of licensee to maintain use.

A. In the event a secondhand dealer licensee holding a category B, class II license or a secondhand dealer licensee holding a category D license desires to close or discontinue his business operations for any period of time in excess of three months, he must submit a written notification to the division within 30 calendar days of the closure or discontinuance requesting approval for non-operational status beyond the initial three-month period. The notification must include a closure plan detailing the length of closure or period of non-operational status and the licensee's plans for reopening, relocating, selling, or otherwise divesting themselves of the business. The licensee may not discontinue operation of the business for more than a three-month period and maintain a valid license without council approval. The council may approve non-operational status of the business beyond the initial three-month period in time increments not to exceed one year but in no event shall the council approve any non-operational status beyond a maximum of two years. A license shall be automatically revoked at the expiration of the time periods provided by this section unless council approval has been granted pursuant to this section. All semiannual license

fees must be paid notwithstanding the licensee's non-operational status. Failure to maintain the fees will result in automatic revocation of the license and termination of the established use.

B. All other secondhand dealer licensees must continue business operations in order to maintain licensing at the specified business location.

C. It shall be the responsibility of the licensee to maintain, extend, or renew any necessary land use approvals.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.200 Display of sign.

Every secondhand dealer holding a class II license shall maintain and display at all times during the period of his license, in a conspicuous place at the public entrance to the licensed premises, a sign in letters not less than six inches in height, bearing the name of such licensee and the words "Secondhand Dealer."
(Ord. No. 4041, § 1, 10-15-2024)

4.68.210 Purchase from minors and juveniles—Prohibitions—Exceptions—Conditions.

A. It is unlawful for any class I secondhand dealer, whether acting for himself as licensee, or whether by an employee or agent of the licensee, to purchase any secondhand merchandise as defined herein from any person under 18 years of age, unless the person has title, free and clear, for the motor vehicle, ATV, boat, dirt bike or parts, to be purchased, except with the written consent or direction of the parent or guardian of such person. Said written permission shall be maintained as part of the records as specified in section 4.68.230.

B. It is unlawful for any secondhand dealer, whether acting for himself as licensee, or whether by an employee or agent of the licensee, to purchase any secondhand merchandise as defined herein, from any person under 18 years of age.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.220 Time period merchandise to be retained.

Except for class I secondhand dealers, every dealer in secondhand merchandise as defined herein must keep, without concealment, for a period of 30 days, subject to inspection by any police officer or license agent, all merchandise purchased or received a from any person, before selling, shipping, or otherwise disposing of the same.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.230 Record of transactions—Inspection of records and goods—Record retention.

A. Every secondhand dealer or scrap metal processor shall keep appropriate recordation of each transaction at the time of purchase or receipt, in the English language in a format approved by the chief of police, and retained in accordance with the provisions of NRS Chapter 647.

B. The record and all goods received must at all times during the ordinary hours of business be open to inspection by the director, his designee, or the police department.

C. Each secondhand dealer shall make the necessary reports to the police department in accordance with the provisions of NRS 647.120 and shall be in a form acceptable to the chief of police.

D. The provisions of subsection C of this section do not apply to any transaction which involves business activities identified as exempt in section 4.68.035.

E. The records required to be kept per subsection A of this section are required to be kept and maintained on the premises for a minimum of three years from the date of original transaction.

F. Every secondhand dealer having good cause to believe that any property in his or her possession has been previously lost or stolen shall forthwith report that fact to the chief of police, together with the name of the owner if known, and the date when and the name of the person from whom the secondhand dealer received the property.

G. It is unlawful for any person to purchase scrap metal unless the scrap metal has been transported to the purchaser by means of a motor vehicle, and not by means of a shopping cart or on a walk-up basis.

H. It is unlawful for any person to purchase scrap metal in the form of metallic wire that has been burned in whole or in part to remove insulation unless the purchaser:

1. Obtains from the seller written evidence identifying the seller and documenting that the wire was lawfully acquired and burned; and

2. Complies with the documentation and retention requirements of NRS 647.030 and 647.035 that pertain to the purchase of burned metallic wire.

I. It is unlawful for any person to purchase scrap metal unless:

1. Payment is made either by check or electronic transfer of money; and

2. Such payment is not mailed, delivered or electronically transmitted sooner than ten days after the purchase transaction.

a. The ten-day time period set forth in subsection (I)(2) above does not apply to any transaction in which the seller is the holder of, or a principal of the holder of, a State of Nevada business license, any other state-level licenses necessary to engage in such a transaction, and a city business license issued under title 4.

J. For any payment made by check under subsection (I) to a seller who represents a business, the check must be made payable to the business, and not the representative, employee or agent of the business.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.233 Record of scrap metal purchases—Photographic or video documentation required—Inspection of records.

A. Each scrap metal purchase shall be conducted in compliance with NRS 647.094.

B. Each scrap metal processor shall maintain and make available for inspection all records as required pursuant to NRS 647.094.

C. Each scrap metal processor shall make the necessary reports to the police department in accordance with the provisions of NRS 647.094 and shall be in a form acceptable to the chief of police.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.235 Daily reports.

Every secondhand dealer shall submit reports in compliance with NRS 647.120.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.240 Licensee responsible for the acts of employees.

Every licensee shall be responsible for the acts of his employees and agents committed during the course and scope of employment. Every licensee shall accordingly use adequate care in the selection of his employees and agents. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense, and every licensee accepts his license subject to said condition.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.250 Reserved.

4.68.260 License—Suspension—Revocation—Limitation.

The council, its designee, or the director may deem that any activity on the part of the licensee or employees, or a person previously found suitable, which is contrary to the public health, safety, morals, good order, or general welfare of the residents of the city or the state is grounds for disciplinary action which may result in a suspension, limitation or revocation of the secondhand dealer license pursuant to chapter 4.06. Without limiting the generality of the foregoing, each of the following reasons is declared to be a basis for disciplinary action:

A. Conviction of the licensee of any crime involving theft, fraud, dishonesty, receiving or possessing stolen property, any narcotics violation or any sex offense; or

B. Conducting a secondhand dealer business in an unlawful manner or in a manner detrimental to the public health, safety or welfare; or

C. Each licensee who violates any provision of title 4; or

D. Each licensee who knowingly fails to report or conceals a full disclosure of the names of all persons having an interest in the ownership of or having an equitable or beneficial right to the profits under a license in which he has an interest; or

E. Each licensee who knowingly fails to report or conceals from proper authority any information which it is his duty to supply under any statute, ordinance or regulation of the state or the city; or

F. Each licensee who, for conduct subsequent to the issuance of a license, becomes ineligible to hold a secondhand dealer license as set out in the statutes, ordinances and regulations of the state or city; or

G. Each licensee who made a misrepresentation of a material fact in his application to obtain a license; or

H. Each licensee whose secondhand dealer license in any place in the state, or in any state or municipality which is empowered to issue a license or permit for the business of secondhand dealer, has been revoked for cause; or

I. In the case of a category D secondhand dealer, failure to maintain the minimum net assets requirement.

(Ord. No. 4041, § 1, 10-15-2024)

4.68.270 Application of Nevada Revised Statutes.

The terms, conditions and requirements of this chapter are in addition to those imposed under NRS 647.
(Ord. No. 4041, § 1, 10-15-2024)

4.68.280 Reserved.

4.68.290 Violation—Penalty.

Any person who violates any provision of this chapter, including the requirements of NRS Chapter 647, shall be punished:

1. For the first offense, by a fine of not more than $500.00.

2. For the second offense, by a fine of not more than $1,000.00.

3. For the third offense, by a fine of not more than $2,000.00 and by revocation of the license of the secondhand dealer.

(Ord. No. 4041, § 1, 10-15-2024)

Chapter 4.72 MOBILE FOOD VENDORS*

Sections:

4.72.010 Definitions.
4.72.020 Statement of purpose and intent—Regulation.
4.72.030 Unlawful to operate without license.
4.72.040 License—Application—Consent to investigation.
4.72.050 Investigation fees—Employees or agents to qualify the same as the applicant.
4.72.060 No refund on investigation fee.
4.72.070 Withdrawal of application—Refund.
4.72.080 Investigation and issuance.
4.72.090 Fees—Further regulations.
4.72.100 Exhibition of license.
4.72.110 Signs denying approach.
4.72.120 Transfer prohibited.
4.72.130 License—Suspension—Revocation—Limitation.
4.72.140 Licensee responsible for the acts of employees.
4.72.150 Licensee's agreement to conform to law.
4.72.160 Right of appeal.
4.72.170 Judicial review.
4.72.180 Penalty for violation of chapter.

4.72.010 Definitions.

As used in this chapter, unless the context otherwise requires, or the words are otherwise defined below, the words and terms used in this chapter have the following meanings:

A. *Department* means the department of finance business license division.

B. *Director* means the administrator of purchasing and licensing or his designee in the business license division of the department of finance.

C. *Mobile food vendor* means, but is not limited to, any person or employee or agent thereof carrying on or conducting the business of selling ice cream, fruit, candy, vegetables, meats or any other edible foods, raw, prepared, loose or packaged, from a motor vehicle, or other type of food service conveyance, approved or required to be approved, by the statutes or ordinances of the Clark County Health District governing such vehicles, conveyances and sales practices.

(Ord. 2382, § 2 (part), 2005)

4.72.020 Statement of purpose and intent—Regulation.

It is found and declared that the public health, safety, morals, good order and general welfare of the residents of the city require the regulation and control of all mobile food

***Prior ordinance history:** 1782 and 1302.

vendors. All mobile food vendors shall be licensed and regulated so as to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public. It is further found and declared that the right to obtain such a license is a privilege and that the license may be suspended, limited or revoked for violation of the conditions of this chapter. In conformity with the policy of this chapter, the following persons are declared not to be qualified to hold a license under the provisions of this chapter:

A. A person who violates, or has violated, the provisions of this chapter despite notice by the city;

B. A person who has been convicted of a crime involving theft, fraud, dishonesty, receiving or possessing stolen property, any controlled substance violation or any sex offense;

C. A person whose license, issued under the provisions of this chapter, or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of businesses as defined in this chapter, has been denied, suspended or revoked for cause;

D. A person who, at the time of renewal of any license issued under this chapter, would not be eligible for such license upon a first application;

E. A partnership, limited partnership association, limited liability company, or other business entity unless all of the members of such partnership, limited partnership association, limited liability company, or business entity are qualified to obtain a license;

F. A corporation, unless it is incorporated in the State of Nevada, or unless it is a foreign corporation which is qualified under Nevada law to transact business in Nevada; or

G. A corporation, if an officer or director thereof would not be eligible to receive a license for any reason which would disqualify an individual applicant.

(Ord. 2382, § 2 (part), 2005)

4.72.030 Unlawful to operate without license.

It is unlawful for any mobile food vendor to engage in the business of mobile food vending within the city without first obtaining a license therefor in compliance with the provisions of this chapter.

(Ord. 2382, § 2 (part), 2005)

4.72.040 License—Application—Consent to investigation.

Whenever a person desires to conduct any of the activities of a mobile food vendor in the city, such person shall completely execute the following:

A. The application specified in section 4.04.060(A);

B. Applicant's request to release information (HPD INV 40 [Rev. 1/01] or as may be amended) the contents of which are incorporated herein by reference; and

C. Henderson police department personal history questionnaire (HPD INV 41 [2/01], or as may be amended) the contents of which are incorporated herein by reference and any other pertinent documents or information which the department may require in order to corroborate the information provided in the form.

(Ord. 2382, § 2 (part), 2005)

4.72.050 Investigation fees—Employees or agents to qualify the same as the applicant.

An applicant is required to pay to the department the investigation fee as set forth in chapter 4.03, for each person required to be licensed as well as for each driver.
(Ord. 2382, § 2 (part), 2005)

4.72.060 No refund on investigation fee.

Even though an applicant is denied a license after investigation, no part of the investigation fees deposited shall be returned to the applicant.
(Ord. 2382, § 2 (part), 2005)

4.72.070 Withdrawal of application—Refund.

If any applicant withdraws his application prior to the beginning of an investigation, all investigation fees deposited shall be returned to the applicant.
(Ord. 2382, § 2 (part), 2005)

4.72.080 Investigation and issuance.

A. Upon receipt of the application, the department shall refer the applicant or employee or agent thereof to the Henderson police department which shall cause a background investigation of the applicant's and driver's local criminal history and the Nevada Sex Offender Registry.

B. Upon the director's review of the application, the director shall refuse to issue a license to the applicant for any of the following reasons:

1. The applicant has been convicted of any felony, gross misdemeanor, or a misdemeanor involving a sex offense, trafficking in controlled substances, or any violent act against a person or property, such conviction having being entered within the ten years preceding the date of application;

2. The applicant is a person against whom a judgment based upon, or conviction for, fraud, deceit or misrepresentation has been entered within the ten years immediately preceding the date of application.

C. The license application may also be denied for good cause as set forth in section 4.04.150(A), or because the applicant is not qualified as set forth in section 4.72.020.
(Ord. 2382, § 2 (part), 2005)

4.72.090 Fees—Further regulations.

A. Mobile food vendors shall be subject to the fees set forth in section 4.05.010.

B. Each mobile food vendor shall be in compliance with the regulations enacted by the Clark County Health District, and shall show written evidence of the same, prior to issuance of a license by the department.

C. No licensee hereunder may lease, rent, or otherwise hire a vehicle to another for use as a mobile food vendor's vehicle. Every driver shall be a licensee hereunder, or the direct employee of such licensee.

D. Each licensee shall further be subject to regulation of section 8.99.030(G).

E. During the hours that schools are in session and during the period of one-half hour before or after the times posted on the applicable school zone signs, no mobile food vendor shall sell or solicit, or attempt to sell or solicit, or park a vehicle (1) within 500 feet in any direction from the extreme outside perimeter of any school and/or adjacent park grounds, (2) within a posted school zone, or (3) on the opposite side of the street which runs next to the front of a school.

F. No mobile food vendor shall enter on private property, knock on doors, ring any bells, or otherwise disturb persons in their residences between the hours of 9:00 p.m. and 8:00 a.m. This section shall not apply, however, when the mobile food vendor has been specifically invited by the owner, resident, occupant or person legally in charge of the premises.
(Ord. 2831, § 5, 10-20-2009; Ord. 2382, § 2 (part), 2005)

4.72.100 Exhibition of license.

All mobile food vendors are required to exhibit their licenses at the request of any customer or potential customer, business license officer or peace officer.
(Ord. 2382, § 2 (part), 2005)

4.72.110 Signs denying approach.

A. It is unlawful for any mobile food vendor to knock on the door, or ring the bell of any residence whereon a sign with visible and legible letters at least three-fourths of an inch in height bearing the words "No Trespassers," "No Peddlers," "No Canvassers," "No Mobile Food Vendors," "No Solicitors," or other words of similar import are painted, affixed or exposed to public view, or to attempt to gain admittance thereto.

B. This regulation shall apply to all groups of structures or complexes such as apartments, condominiums, or private gated communities which have posted signage pursuant to subsection A of this section at the entrance(s) or other points of ingress to such property regardless of whether any individual residence is individually posted, provided that the sign has letters at least 1½ inches in height.

C. The provisions of this section shall not apply to a mobile food vendor who knocks at any door, or rings any bell, at the specific invitation of the owner, resident, occupant or person legally in charge of the premises.
(Ord. 2382, § 2 (part), 2005)

4.72.120 Transfer prohibited.

It shall be unlawful for any mobile food vendor to transfer his license to any other person.
(Ord. 2382, § 2 (part), 2005)

4.72.130 License—Suspension—Revocation—Limitation.

Any license issued under this chapter may be revoked, limited, or suspended by the director for any of the reasons set forth in sections 4.72.080 or 4.04.150.
(Ord. 2382, § 2 (part), 2005)

4.72.140 Licensee responsible for the acts of employees.

Every licensee shall be responsible for the acts of his employees and agents committed during the course of employment or licensed activity. In any license suspension, limitation

or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense, and every licensee hereunder accepts his license subject to said condition.
(Ord. 2382, § 2 (part), 2005)

4.72.150 Licensee's agreement to conform to law.

Acceptance of a license constitutes an agreement on the part of such licensee to be bound by all of the regulations of the city as the same now are, or may hereafter be amended or promulgated. It is the sole responsibility of the licensee to keep himself informed of the content of all such rules and regulations, and ignorance thereof will not excuse violations.
(Ord. 2382, § 2 (part), 2005)

4.72.160 Right of appeal.

Appeal rights of applicants are set forth in section 4.04.210.
(Ord. 2382, § 2 (part), 2005)

4.72.170 Judicial review.

Procedure for judicial review of final decisions and order of the council are set forth in section 4.06.160.
(Ord. 2382, § 2 (part), 2005)

4.72.180 Penalty for violation of chapter.

Any person violating any of the provisions of this chapter shall be guilty of a misdemeanor; and, upon conviction thereof, shall be punished as the law allows for a misdemeanor crime. Whenever in this chapter any act is prohibited, or is made or declared to be unlawful, or an offense or a misdemeanor, or whenever in such chapter the doing of any act is required, or the failure to do any act is made or declared to be unlawful, or an offense or misdemeanor, the doing of any such prohibited act, or the failure to do any such required act, shall constitute a violation of this chapter. Every day of violation of this chapter constitutes a separate offense. Any person being adjudged guilty of a violation of this chapter or any of the provisions or prohibitions thereof may, in the discretion of the council, be denied a license thereafter.
(Ord. 2382, § 2 (part), 2005)

Chapter 4.74 RESERVED*

*__Editor's note—__Ord. No. 3175, § 1, adopted June 17, 2014, repealed the former chapter 4.74, §§ 4.74.010—4.74.160 in its entirety, which pertained to multiple arena vendor sales, and derived from Ord. No. 997, adopted in 1985, and Ord. No. 1301, § 15, adopted in 1992.

CHAPTER 4.75 SIDEWALK AND OPEN-AIR VENDORS

Sections:

4.75.010 Definitions.
4.75.020 Statement of purpose and intent.
4.75.030 License requirement and fee.
4.75.040 License application.
4.75.045 Licensee's agreement to conform to law.
4.75.050 Display of license and equipment requirements.
4.75.055 General liability insurance required.
4.75.060 Operating regulations—Nonstationary sidewalk vendors—Residential.
4.75.065 Operating regulations—Open-air vendors—Private property.
4.75.070 Transfer prohibited.
4.75.090 Licensee responsible for acts of employees and agents.
4.75.100 Electrical cords, chains, wires, or hoses.
4.75.110 License does not provide defense for noncompliance with other laws.
4.75.140 Enforcement authority and disciplinary action.
4.75.150 Enforcement—Appeal rights.

4.75.010 Definitions.

Whenever used in this chapter, the following words must have the meanings ascribed in this section, unless the context clearly indicates a different meaning:

Applicant shall have the same meaning as set forth in chapter 4.04, as may be amended.

Conveyance means, without limitation, a pushcart, stand, display, pedal driven cart, wagon, showcase, or rack that is used by a sidewalk vendor for purposes of selling food or beverages.

Entertainment district means a contiguous area zoned/customarily used for commercial purposes that contains a combination of restaurants, bars, entertainment establishments, music venues, theaters, art galleries, dance studios, or sports stadiums.

Food means any substance whether processed, semi-processed or raw, which is intended for human consumption and includes non-alcoholic drinks.

Food establishment means a city-licensed establishment that operates in the capacity of a restaurant or has an alcoholic beverage license that includes the operation of a restaurant or tavern.

Health district means the Southern Nevada Health District.

Nonstationary sidewalk vendor means a sidewalk vendor utilizing a mobile conveyance such as a pushcart, pedal-driven cart, or wagon.

Open-air vendor means a vendor that operates on private commercial property and who sells food from a conveyance, including, without limitation, a pushcart, stand, display, pedal-driven cart, wagon, showcase, or rack, as otherwise defined or amended by NRS Chapter 268.

Religious assembly means a religious institution, place of worship, and/or similar facilities for religious worship and incidental religious functions and education, but not including schools as defined by title 19.

Sidewalk vendor means a person who sells food upon a public sidewalk or other pedestrian path from a conveyance, including, without limitation, a pushcart, stand, display, pedal-driven cart, wagon, showcase, or rack, as otherwise defined or amended by NRS Chapter 268. The term includes, without limitation, a nonstationary sidewalk vendor and a stationary sidewalk vendor.

Stationary sidewalk vendor means a sidewalk vendor utilizing a nonmobile conveyance such as a stand, display, showcase, or rack.

Vend means to sell or offer to sell food products from a vending conveyance as either a nonstationary sidewalk vendor or open-air food vendor.

Water Street entertainment district is an entertainment district and means the area of Water Street bordered by Ocean Street to the South and Lake Mead Parkway to the North, including Purple Heart Street, Market Street and West Army Street between Water Street and Market Street.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.020 Statement of purpose and intent.

It is found and declared that the public health, safety, good order, and general welfare of the residents of the city require the regulation and control of all sidewalk vendors operating in the city. All sidewalk vendors shall be licensed and regulated so as to protect the public health, safety, good order, and general welfare of the residents of the city.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.030 License requirement and fee.

It shall be unlawful to operate, conduct, carry on, or maintain any sidewalk vendor business, as described in this chapter, without first having obtained and thereafter maintaining the license as herein required. Each sidewalk vendor shall pay an annual license fee of $150.00. The application fee in section 4.04.065 shall not be required.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.040 License application.

Every person required to obtain a license pursuant to this chapter shall file, with the division, an application, on a form to be furnished by the division, providing, without limitation, the following information:

1. The name, mailing address, and telephone number of the applicant;

2. A brief description of the business or activity to be conducted including, without limitation:

A. A description of the products the applicant intends to sell;

B. The number and type of conveyance(s) that will be utilized pursuant to the license, and a drawing or photograph identifying the height, width, and length of each conveyance;

3. If employed, contracted, or otherwise engaged by another individual, company, partnership, or corporation to engage in the activities regulated in this chapter, the name, address and telephone number of the principal office of such individual, company, partnership, or corporation;

4. A certification by the sidewalk vendor that, to the best of the applicant's knowledge and belief, the information submitted to the division is true; and

5. All licenses, permits, or evidence of compliance required by applicable laws or regulations of a state or local agency, including without limitation, a state business license, a health district permit, etc. as may be applicable.

(Ord. No. 4033, § 1, 6-18-2024)

4.75.045 Licensee's agreement to conform to law.

Acceptance of a license under this chapter constitutes an agreement on the part of such licensee to be bound by all of the regulations of the city as the same now are, or may hereafter be amended or promulgated. It is the sole responsibility of the licensee to keep himself informed of the content of all such rules and regulations, and ignorance thereof will not excuse violations.

(Ord. No. 4033, § 1, 6-18-2024)

4.75.050 Display of license and equipment requirements.

1. Each sidewalk vendor licensed in the city shall keep the license in their possession at all times while the licensee is operating in the city, and shall allow inspection of the license and health district permit upon request by any compliance agent, code enforcement officer, police officer or other compliance personnel of the city, state, or county regulatory agencies, including the health district.

2. Each conveyance shall prominently display any sidewalk vendor decal issued under a multi-jurisdictional business license issued by a neighboring jurisdiction, if applicable.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.055 General liability insurance required.

Each sidewalk vendor as defined by this chapter shall file with the division and thereafter maintain a general liability insurance policy issued by an insurance company authorized to do business in the State of Nevada in accordance with applicable sections of NRS Title 57. The general liability insurance policy shall name the City of Henderson as an additional insured and the certificate of insurance must be made available upon request of the division. The policy limits of each insurance policy shall not be less than:

1. For bodily injury or the death of one person in any one accident, $250,000.00;

2. Subject to the limitations of paragraph 1., for bodily injury to or death of two or more persons in any one accident, $500,000.00; and

3. For injury to or destruction of property in any one accident, $50,000.00.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.060 Operating regulations—Nonstationary sidewalk vendors—Residential.

1. Sidewalk vendors are subject to the following requirements:

A. Maintain sanitary conditions and comply with all applicable health district regulations and permit requirements including but not limited to cleanliness and food safety standards;

B. Sidewalk vendors may only vend items authorized by a valid health district permit as applicable;

C. Ensure that the conveyance and vending area are free from trash, debris, rubbish, refuse, or waste. Including but not limited to trash created by the vendor's customers and drips and spills of liquid waste from the conveyance;

D. A sidewalk vendor must comply with the requirements of the Americans with Disabilities Act of 1974 (ADA), as amended, including requirements related to clear paths of travel. A sidewalk vendor may not operate in a manner that will impede pedestrian traffic or other normal use of the public sidewalk or pedestrian path, or otherwise hinder accessibility or otherwise operate:

a. Within 25 feet of any ADA sidewalk access point; or

b. From a public sidewalk or pathway if such operations do not allow for a clear path of travel of at least 36 inches.

2. A sidewalk vendor shall not:

A. Lease, rent, loan, or otherwise hire a conveyance to another for use as a sidewalk vendor in the city. Each sidewalk vendor operating from a conveyance in the city shall be a licensee under this chapter, or the direct employee of such licensee;

B. Enter on private property, knock on doors, ring any bells, or otherwise disturb persons in their residences between the hours of 9:00 p.m. and 8:00 a.m. This section shall not apply when the sidewalk vendor has been specifically invited by the owner, resident, occupant, or person legally in charge of the premises;

C. Have any exclusive right to operate from any location upon public sidewalks, pathways, or alleys;

D. Utilize temporary signs except for menu boards located on or adjacent to the conveyance. Illuminated signs are prohibited;

E. Operate from any public street, including marked or unmarked crosswalks or in any manner that may impede or interfere with the orderly flow of traffic on the street;

F. Ring bells, play chimes, play an amplified musical system, or make any other noise to attract attention to its business while operating within city limits; or

G. Provide tables or seating areas for customers.

3. Limitations on locations of operation from the property line of the protected use. A sidewalk vendor shall not operate:

A. Within 1,500 feet of:

a. A resort hotel defined in NRS 463.01865; or

b. A professional sports event facility with a seating capacity for 5,000 people.

B. Within 500 feet of:

a. An entertainment district, including the Water Street entertainment district, unless otherwise permitted under a special event permit issued by the city;

b. Any city park, community center, recreational facility, trail, or convention center, unless otherwise permitted under a special event permit issued by the city;

c. A childcare facility in commercially zoned areas during operating hours;

d. A polling place during election operations;

e. Religious assembly or place of worship during operating hours;

f. In the immediate vicinity of a farmer's market during operating hours; or

g. In the immediate vicinity of an area designated for a temporary special event throughout the duration of the temporary special event.

C. Within 150 feet of or immediately adjacent to:

a. A licensed food establishment during the hours the establishment is open for business, unless the vendor is operating as part of a special event approved by the city;

b. A nonrestricted gaming establishment as defined in subsection 1 or 2 of NRS 463.0177;

c. A privately funded community center or recreational facility, including facilities that offer youth sports;

d. A school (public, private, charter, etc.) during the hours the school is in session and the 30-minute period before sessions begin and after sessions end; or

e. Any public safety stations or substations (police and fire).

4. Stationary sidewalk vendors are prohibited from operating in residential areas.

5. Sidewalk vendors shall not operate from any single location for more than 30 minutes, unless:

A. The sidewalk vendor is operating under a special event permit issued by the city to the vendor;

B. The sidewalk vendor is operating at a temporary special event pursuant to a prior arrangement made with the event holder (and the event holder has a valid special event permit); or

C. The sidewalk vendor is operating on private property when specifically invited by the owner, resident, occupant, or person legally in charge of the premises, and subject to the provisions of section 4.75.065.

6. Exemptions.

A. The following persons are exempt from the location restrictions:

a. The location restrictions set forth in subsection 4.75.060(3) shall not apply to nonstationary sidewalk vendors operating in areas zoned exclusively for residential use, unless the area is on a public sidewalk or pedestrian path that is immediately adjacent to (visible from) the restricted location.

b. Persons operating on private property pursuant to section 4.75.065.

B. This chapter does not apply to charitable solicitations conducted in compliance with the provisions of chapter 4.12.

7. A map of the areas where a person may engage in the act of sidewalk vending in the city may be viewed on the city's internet website.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.065 Operating regulations—Open-air vendors—Private property.

1. Open-air vendors are subject to the following requirements:

A. Maintain sanitary conditions and comply with all requirements applicable to sidewalk vendors set forth in subsections 1 and 2 of 4.75.060;

B. Open air vendors may only vend items authorized by a valid health district permit;

C. May only operate on private commercial property with written permission of the property owner or responsible party for the property or from the immediately adjacent business. The written permission required by this subsection must be available for inspection; and

D. Must comply with the requirements of the Americans with Disabilities Act of 1974, as amended, including requirements related to clear paths of travel.

2. Open-air vendor shall not:

A. Block entrances and exits to existing commercial businesses on the property;

B. Operate within 150 feet of a licensed food establishment or another open-air vendor;

C. Sell merchandise; or

D. Operate during hours in which the business granting permission to the property is not operating or from 12:00 a.m. to 7:00 a.m., whichever is more restrictive.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.070 Transfer prohibited.

No sidewalk vendor license issued or renewed under the provisions of this chapter may be transferred or assigned.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.090 Licensee responsible for acts of employees and agents.

Any person or entity who employs, contracts, or otherwise engages another to conduct sidewalk vendor activities, is responsible for the acts or omissions of his employees or

agents committed during the course of employment or performance of activities governed by this chapter. In any suspension, limitation, or revocation proceeding, the fact that the distributing service or person who employed, contracted, or engaged another did not have actual knowledge of the violation shall be no defense.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.100 Electrical cords, chains, wires, or hoses.

Except as otherwise expressly allowed by state law or city code, electrical cords, chains, wires, or hoses shall not be strung across or along public sidewalks or public pedestrian easements, nor may electrical generators or batteries be placed upon such sidewalks or easements in the restricted area.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.110 License does not provide defense for noncompliance with other laws.

1. The provisions of this chapter and the statutory provisions related to sidewalk vendors set for in NRS Chapter 268 shall not be construed to:

A. Exempt a person from complying with any state or local law or regulation; or

B. Provide a defense to any criminal charge unrelated to the act of sidewalk vending.
(Ord. No. 4033, § 1, 6-18-2024)

4.75.140 Enforcement authority and disciplinary action.

1. The director, agents, or officers of the division, code enforcement, the police department, or any state or county regulatory agency shall be entitled to enforce the provisions of this chapter and impose disciplinary action as set forth in this section:

A. Civil penalties. Any activity by a sidewalk vendor licensed under this chapter that violates any provisions of this chapter, state law, or other governmental regulation applicable to sidewalk vendors is grounds for disciplinary action including, but not limited to, notices of violation of this chapter, civil penalties of $100.00 to $500.00 for each violation for each day the violation occurs or continues, notices of correction, stop work orders, or the suspension or revocation of licenses pursuant to chapter 4.06.

a. Pursuant to NRS 446.883, a city license issued under this chapter shall be automatically revoked in the event the sidewalk vendor's permit is revoked by the health district, and no new license may be issued until such person again possesses an unrevoked (valid) permit from the health district.

b. If any meat, seafood, poultry, vegetable, fruit, or other perishable articles which are unsound, or contain any filthy, decomposed or putrid substance, or that may be poisonous or deleterious to health or otherwise unsafe is found, the same having been declared to be a nuisance, agents may condemn or destroy the same, or in any other manner render the same unsalable as human food.

B. Criminal penalties. The persons identified in subsection A of this section, and otherwise authorized by law, shall also have the authority to issue misdemeanor citations to enforce the following:

a. Vending within 1,500 feet of a resort hotel per subsection 4.75.055(1)(a), a conviction under this subjection does not constitute a crime of moral turpitude; or

b. A violation of any state or local law otherwise punishable by misdemeanor citation, if the violation is otherwise unrelated to the sidewalk vendor provisions set forth in this chapter or NRS Chapter 268, including any legal prohibition on unlicensed business activities.

(Ord. No. 4033, § 1, 6-18-2024)

4.75.150 Enforcement—Appeal rights.

Appeal rights for civil penalties issued under this chapter are the same as those set forth in chapter 4.07.

(Ord. No. 4033, § 1, 6-18-2024)

Chapter 4.80 EMERGENCY MEDICAL SERVICES*

Sections:

4.80.010 Declaration of policy.
4.80.020 Purpose of provisions.
4.80.030 Chief of the department.
4.80.040 Definitions.
4.80.050 Ambulance services—Business license required.
4.80.060 Ambulance services—Franchise requirements.
4.80.070 Ambulance services—Franchise fee determination.
4.80.080 Ambulance services—Solicitation of bids.
4.80.090 Ambulance services—Limitation of number of franchises.
4.80.100 Ambulance services—Grant of franchise.
4.80.110 Ambulance services—Right of property not granted by franchise.
4.80.120 Ambulance services—Application for franchise.
4.80.130 Ambulance services—Review of franchise application.
4.80.135 Ambulance services—Application for business license; ongoing obligation.
4.80.137 Ambulance services—Review of and granting business license application; authorized services.
4.80.140 Ambulance services—Provisional business license.
4.80.145 Ambulance services business license—Failure to comply.
4.80.150 Ambulance services—Franchise agreement content.
4.80.160 Ambulance services—Service response protocol.
4.80.170 Ambulance services—Maximum service rates.
4.80.180 Ambulance services—Submittal of reports.
4.80.190 Ambulance services—Release of records to patient.
4.80.200 Ambulance services—Release of records to city.
4.80.210 Ambulance services—Monthly reports.
4.80.220 Ambulance services—Financial statements.
4.80.230 Ambulance services-Inspection of financial records.
4.80.240 Confidentiality of records.
4.80.250 Ambulance services—Franchise is non-transferrable.
4.80.260 Ambulance services—Security deposit required.
4.80.270 Franchisee and licensees bound by regulations.
4.80.280 Ambulance services—Request for extension of franchise.
4.80.290 Ambulance services—Revocation of franchise.
4.80.295 Ambulance services—IEMS participation.
4.80.297 Ambulance services—Penalty.
4.80.300 Special event medical services—Franchise not required when.
4.80.310 Special event medical services—IEMS Participation.

***Editor's note—**Ord. No. 3292, §§ 1, 2, adopted October 6, 2015, repealed and reenacted chapter 4.80 in its entirety to read as herein set out. Formerly, chapter 4.80, §§ 4.80.010—4.80.120, pertained to private ambulance services, and derived from Ord. No. 1750, § 2, adopted in 1997; Ord. No. 1895, §§ 1, 2, adopted in 1999; Ord. No. 2779, §§ 1—4, adopted in 2008, and Ord. No. 2847, § 1, adopted January 19, 2010.

4.80.320 Special event medical services—Business license required.
4.80.330 Special event medical services—Business license fee.
4.80.340 Special event medical services—Business license application.
4.80.350 Special event medical services—Transport from special events.
4.80.355 Ambulance services—Pre-notification of special event.
4.80.360 Special event medical services—Cooperation during emergency.
4.80.370 Special event medical services—Failure to comply—Penalty.
4.80.380 Special event medical services—Color scheme—Design.
4.80.390 Liability insurance required.
4.80.400 Prior private ambulance licensure.

4.80.010 Declaration of policy.

The provision of pre-hospital emergency medical services is an essential public safety function of government, made available in support of community health, security and general welfare. In order to successfully support this function, various emergency medical services components must be integrated and managed by the city to further the optimal provision of such services for the inhabitants of the city.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.020 Purpose of provisions.

The provisions of this chapter shall govern the franchising, licensing and regulation of an integrated emergency medical services system, including but not limited to ambulance services, community para-medicine, and special event medical services in the city, so that the general public has access to a safe, dependable, efficient, and integrated emergency medical services system in the case of medical/traumatic injury emergencies.
(Ord. No. 3856, § 1, 3-1-2022; Ord. No. 3292, § 2, 10-6-2015)

4.80.030 Chief of the department.

It shall be the duty of the chief of the fire department to manage the IEMS in accordance with the provisions of this chapter, unless otherwise provided herein. Nothing contained in this chapter shall be construed to limit or otherwise apply to any function or service provided by the fire department except as specifically set forth in this chapter.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.040 Definitions.

As used in this chapter, the following definitions shall apply. Unless otherwise expressly stated, words not defined herein shall be given their common and ordinary meaning:

Advanced life support or *ALS*, whether used alone or as a modifier of other nouns, means medical procedures for sustaining life, including the advanced diagnosis and protocol-driven treatment of a patient in the field such as defibrillation, airway management, and administration of medications, that are provided by a paramedic.

Advanced emergency medical technician or *AEMT* or *advanced EMT* has the same meaning as the term "advanced emergency medical technician (AEMT)" in the health district regulations, as may be amended.

Air ambulance has the same meaning as the term "air ambulance" in the health district regulations, as may be amended.

ALS ambulance has the same meaning as the term "dedicated advanced life support ambulance" in the health district regulations, as may be amended.

Advanced life support intervention has the same meaning as the term "Advanced life support (ALS) intervention" in 42 CFR 414.605, as may be amended.

Ambulance means a motor vehicle which is specially designed, constructed, equipped and staffed to provide basic, intermediate, advanced, or critical/specialty care for one or more:

(1) Sick or injured persons; or

(2) Persons whose medical condition may require special observation during transportation.

For the purposes of this chapter, the term "ambulance" specifically excludes vehicles for special event medical service vehicles.

Ambulance service has the same meaning as the term "ambulance service" in the health district regulations, as may be amended. The term "ambulance service" does not include the use of vehicles for special event medical service.

Applicant means a person who submits a completed application for a franchise as set forth in this chapter.

Application means all written documentation, statements, representations and warranties provided to the city by an applicant, in accordance with this chapter, to be relied upon by the city council in making its determination of whether to grant or withhold a franchise.

Basic life support or *BLS*, whether used alone or as a modifier of other nouns, has the same meaning as the term "basic life support (BLS)" in 42 CFR 414.605, as may be amended.

CFR means the Code of Federal Regulations, as may be amended, which is the codification of the general and permanent rules published in the Federal Register by the departments and agencies of the Federal Government.

CFO means the chief financial officer of the city, or their designee.

City council means the governing body of the city.

City manager means the city manager appointed by the city council to perform such administrative functions of the city government as may be required of them by the city council, or their designee.

Computer-aided dispatch or *CAD* means dispatching of emergency vehicles through computer technology to calls for ambulance service.

Commission on Accreditation of Ambulance Service or *CAAS* means an independent commission that establishes a comprehensive series of standards for the ambulance service industry.

Community para-medicine means the delivery of patient-centered healthcare in the out-of-hospital environment utilizing technology and mobile pre-hospital professional resources to address the needs of the community, including the following services:

(1) Utilization of a medical professional for advice for low acuity 911 calls.

(2) Patient-centered healthcare navigation.

(3) Community risk-reduction strategies.

(4) Medication reconciliation.

(5) Provision of preventative care, health screening, and education.

(6) Provision of alternative yet appropriate responses for low acuity calls to the PSAP center.

(7) Provision of alternative modes of transport.

(8) Post-discharge healthcare navigation.

(9) Post-discharge follow up and disease management.

(10) Hospital readmission avoidance.

(11) Hospice care support and collaboration.

(12) Long-term care facility support and collaboration.

(13) Chronic disease management.

(14) Coordination of outpatient care.

(15) Fall-reduction strategies.

CPI-MCS means the Consumer Price Index (CPI) for all Urban Consumers: U.S. City Average, Series CUUR0000SAM2, Medical Care Services, as published by the U.S. Department of Labor, Bureau of Labor Statistics, Washington, D.C.

Critical care transport or *CCT* has the same meaning as the term "critical care transport" in the health district regulations, as may be amended. CCT can also mean SCT.

Department means the business operations division of the finance department of the city, responsible for the administration of this chapter as set forth herein.

Director means the business license supervisor of the business operations division of the finance department of the city, or their designee.

Emergency has the same meaning as the term "emergency" in the health district regulations, as may be amended.

Emergency medical care means medical care given to a patient in an emergency situation before the patient arrives at a hospital or other medical facility, and until responsibility for the patient is assumed by the medical staff at such facility.

Emergency medical service system or *EMS* means a system consisting of a chain of services linked together to provide emergency medical care for the patient at the scene of an emergency, during transport, and upon entry to a hospital or other medical facility.

Emergency medical technician or *EMT* has the same meaning as the term "emergency medical technician (EMT)" in the health district regulations, as may be amended.

Emergency medical technician paramedic or *EMT-Paramedic* or *paramedic* has the same meaning as the term "paramedic" in the health district regulations, as may be amended and in accordance with the health district regulations is authorized to administer additional advanced life support interventions and medications.

Emergency response has the same meaning as the term "emergency response" in 42 CFR 414.605, as may be amended.

EMS priority dispatch means a dispatch system:

(1) Whereby emergency medical dispatchers, certified by the health district, give lifesaving pre-arrival instructions to person(s) requesting the same; and

(2) Which provides for the dispatch of the appropriate level of emergency vehicle response, as determined by use of a priority card or computer program, based on the severity of the medical emergency.

Financial statements means financial statements of the local operation of a business licensed, or licensed and franchised, under this chapter. Financial statements are to include: balance sheet, income statement, statements of cash flows, and statement of retained earnings prepared in accordance with generally accepted accounting principles.

Fire department means the fire department of the city.

Franchise means the authorization granted to a person, firm, partnership, corporation or company by the city council to provide services in support of the IEMS within the public rights-of-way and all highways, streets, roads and alleys within the jurisdictional limits of the city. The terms and conditions of such authorization will be described in a franchise agreement specific to such purpose.

Franchise agreement means the written agreement entered into between the city and a franchisee evidencing the city's authorization for a franchisee to provide services in support of the IEMS and requiring the franchisee to comply with the terms of this chapter, and incorporating such other reasonable terms, conditions, and provisions as the city council deems appropriate.

Franchise service area or *service area* means the geographic area within the city specified in a franchise agreement, wherein a franchisee is authorized and required to provide services in support of the IEMS.

Franchisee means the person, firm, partnership, corporation or company to whom a franchise is granted by the city council pursuant to this chapter.

Health district means the Southern Nevada Health District, its officers and authorized agents.

Health district regulations means the applicable EMS regulations, manuals and protocols adopted by the health district, as they may be amended from time to time.

Health officer means the chief health officer of the health district.

HIPAA means the Health Insurance Portability and Accountability Act of 1996, as amended, and regulations related thereto.

Hospital has the same meaning as the definition of that term in NRS 439B.110, as amended.

Incident commander means the city fire officer or fire paramedic in charge at the scene of an incident where patient care is being provided by fire department personnel.

Inter-facility ambulance transport service means an emergency transport or a nonemergency transfer of a patient by ambulance that originates and terminates at previously designated medical facilities or locations.

Integrated emergency medical service system or *IEMS* means a system of components that provides for the receipt and notification of calls for service, arrangement of personnel, facilities, training, quality improvement, equipment, and management of the system components for the effective and coordinated delivery of health care services under emergency/nonemergency conditions within the city.

Life threatening emergency is an event or situation where immediate death or disability could be reasonably inferred to occur if immediate emergency medical care and transport is not provided.

Loaded mileage has the same meaning as the term "loaded mileage" in 42 CFR 414.605, as may be amended.

Maximum ambulance service rate means the maximum amount that a franchisee may bill a patient or other payer for the level of ambulance service provided to the patient, as established in this chapter, including all ancillary services and supplies used in providing ambulance service.

Mutual aid means ambulance service provided within the franchise service area in response to a request through the city PSAP for assistance.

Non-emergency ambulance service means prearranged non-911 dispatched ambulance service provided to patients with non-life-threatening conditions, including without limitation non-emergency ambulance service requested at special events and other non-911-dispatched ambulance service requests that would be categorized as nonemergency transfers or level 33-A calls (as that term is approved and endorsed by the health district) when processed through EMS priority dispatch protocol.

Public safety answering point or *PSAP* means the 911 call answering point which is administered by the City of Henderson, or other agency designated by the city.

Rights-of-way means public property dedicated to, granted to, or held or prescriptively used by the city for public street, alley, road and highway purposes, except public streets predominantly used for public freeway or expressway purposes.

Service category means the type or level of ambulance service that is specified in a franchise granted pursuant to this chapter.

Special event means an activity that occurs on a specific date and time at a specific location, such as, but not limited to, sporting events, off-road vehicle races, speedway races, concerts, fairs and parades.

Special event medical service or *SEMS* means the providing of medical care to the participants and members of the public in attendance at a special event pursuant to a

contractual arrangement between a special event medical service provider or a franchisee and the special event owner, operator, promoter, organizer or any other person authorized to enter into such contractual arrangements on behalf of the special event.

Special event medical service provider or *SEMS provider* means a person who has obtained a special event medical service provider business license pursuant to this chapter and the special purpose ambulance service permit required pursuant to health district regulations.

Special event medical service vehicle means the special purpose vehicle permitted by health district regulations which for the purposes of this chapter may be used for the sole purpose of providing medical care at a special event. Except as otherwise provided in this chapter, the term does not include a vehicle which provides ambulance service over city rights-of-way.

Specialty care transport or *SCT* has the same meaning as the term "specialty care transport (SCT)" in 42 CFR 414.605, as may be amended.

Street means the surface of the full width of the right-of-way, including alleys, sidewalks and thoroughfares, places or ways of any kind used by the public or open to the public as a matter of right for the purpose of vehicular traffic or vehicular and pedestrian traffic.

Sub-zone means a portion of a franchise service area as defined in a franchise agreement.

Transfer means the scheduled or unscheduled movement of a patient located within the geographic area within the city by ambulance from one medical facility to another medical facility, from a home to a medical facility, from a medical facility to a home or from another location to a medical facility.

Transport has the same meaning as the term "transport" in the health district regulations, as may be amended.
(Ord. No. 3856, § 2, 3-1-2022; Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.050 Ambulance services—Business license required.

A. No person shall engage in the business of operating an ambulance service upon the rights-of-way of the city without first obtaining, and thereafter maintaining a valid unexpired business license, as required by this chapter.

B. Each ambulance service licensed in the city under this chapter shall pay, in advance, a semiannual business license fee as set forth in section 4.05.124.

C. A person is not required to obtain a business license pursuant to this section if such person is licensed in another jurisdiction to provide ambulance services and does not provide cross-jurisdictional transport or transfer services originating inside the city.
(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3352, § 2, 7-5-2016; Ord. No. 3292, § 2, 10-6-2015)

4.80.060 Ambulance services—Franchise requirements.

A. Except as provided in subsection B of this section, it is unlawful for any person to provide ambulance service in support of the IEMS in the city without first obtaining and thereafter maintaining an ambulance service franchise and paying the franchise fee as required by this chapter.

B. A person is not required to obtain an ambulance service franchise pursuant to this chapter if the services such person provides in the city are limited to the following:

1. Providing cross-jurisdictional transport or transfer services originating outside the city;

2. Responding to requests for emergency mutual aid in accordance with subsection 4.80.160(A);

3. Responding to requests for CCT/SCT services when a franchisee is not available to respond; or

4. Responding to requests for aid from a franchisee pursuant to an aid agreement authorized by the city between the franchisee and the ambulance service.
(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3352, § 2, 7-5-2016; Ord. No. 3292, § 2, 10-6-2015)

4.80.070 Ambulance services—Franchise fee determination.

A franchise fee shall be the amount imposed for the grant or extension of a franchise, as set forth in a franchise agreement. Franchise fees shall be paid according to the provisions of the franchise agreement, and shall be accompanied by such supporting documentation as required therein and as the CFO deems necessary.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.080 Ambulance services—Solicitation of bids.

The city council, in its sole discretion, may solicit qualifications for ambulance service franchises and, the requirements for application stated in section 4.80.120 notwithstanding, establish such requirements for qualifications as it deems appropriate. Qualifications received shall be reviewed and investigated by the department, and the results of such

investigation shall be reported to the city council. After receiving the department's report, the city council may grant a franchise, not grant a franchise or take any other action it may deem appropriate.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.090 Ambulance services—Limitation of number of franchises.

The city council may, in its sole discretion, specify by resolution a fixed number of ambulance service franchises, including their service levels, types and categories, to be granted within the city. If the city council has not specified by resolution a fixed number of ambulance service franchises to be granted within the city, then prior to accepting a new application for an ambulance service franchise, the city council in its sole discretion, shall make a determination by resolution of whether a new ambulance service franchise will serve the public convenience and necessity.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.100 Ambulance services—Grant of franchise.

An ambulance service franchise shall grant permission to the franchisee to provide ambulance services in support of the IEMS for the service level, type and category so authorized in the service areas specifically described in the franchise agreement, according to the terms and conditions contained in the franchise agreement.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.110 Ambulance services—Right of property not granted by franchise.

Any franchise granted pursuant to this chapter is a privilege conferred by the city council and shall not impart to the franchisee any right of property in any city rights-of-way or other city property. The franchise agreement shall be construed to have granted permission and authority to operate within the city under the terms and conditions of the franchise agreement.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.120 Ambulance services—Application for franchise.

A. Whenever the number of ambulance service franchisees within the city is less than the maximum number established by the city council pursuant to this chapter, or if the city council has not established a maximum number of such franchises but has determined that

a new ambulance service franchise will serve the public convenience and necessity as provided in section 4.80.090, a person may apply for a new franchise by submitting an application with the department on such form or in such format as the department shall require.

B. The application shall be in writing and shall include, at a minimum, the following:

1. For a sole proprietor:

a. The name and business and residence addresses of the applicant; and

b. A list of any other businesses in which the sole proprietor has a five percent or greater ownership interest.

2. For a corporation:

a. The corporate name, date and place of incorporation, the address of its principal place of business, and identification of the ownership and control of the applicant, including:

(i) A list of the officers and directors and persons who may otherwise control the operations of the corporation;

(ii) A list of all shareholders of five percent or more of the shares of the corporation;

(iii) A list of any businesses in which any of the persons listed in item 2(a)(i) and (ii) have a five percent or more ownership interest;

b. A copy of the articles of incorporation and all effective amendments certified by the appropriate officer of the state of incorporation; and

c. A certificate of good standing from the Nevada Secretary of State.

3. For a limited liability company:

a. The limited liability company name, date and place of organization, the address of the principal place of business and the ownership and control of the limited liability company, including:

(i) Whether the limited liability is managed by member(s) or manager(s);

(ii) A list of the managers, members, officers and persons who may otherwise control the operations of the limited liability company;

(iii) A list of any businesses in which any of the persons listed in item 3(b) have a five percent or more ownership interest;

b. A copy of the articles of organization.

4. For a partnership or, association:

a. The names of the owners, partners or the persons comprising the partnership or association, the names and percentage of ownership of each owner, partner or person, and the business and residence addresses of each owner, partner or person.

b. A list of any businesses in which any of the persons listed in item 4(a) have a five percent or more ownership interest; and

c. A copy of the partnership agreement or articles of association.

5. A statement with such references as may be acceptable to the department describing the qualifications and experience of the applicant and the personnel who will manage the ambulance service franchise; all geographic areas and all other jurisdictions currently or previously provided ambulance service by the applicant, including performance standards achieved and levels of service provided. This section shall not be deemed to preclude an application from a new business entity; provided that the principals in such entity are able to demonstrate to city council, in city council's sole discretion, that the new entity can satisfy the requirements for a franchise set forth in this chapter.

6. A letter of intent from an insurance carrier stating that, if a franchise is granted, an insurance policy will be issued for liability insurance in the amount and under the conditions stated in this chapter.

7. A letter of commitment from a qualified institution acceptable to the department stating that, if a franchise is granted, performance security in the kind and amount stated in section 4.80.260 of this chapter will be issued securing the applicant's performance under the franchise agreement.

8. A written description of the ALS and the computer-aided dispatch system, or other system the applicant intends to utilize, which must be based within the city and be compatible with the PSAP's CAD.

9. A written description of the communication system and dispatch procedures the applicant intends to utilize, including a copy of the applicant's application to the Federal Communication Commission for an appropriate license;

10. The color scheme, logo and uniform design proposed to be used to designate the ambulance(s) and personnel of the applicant, which shall not be the same as or confusingly similar to the color schemes or designs of the fire department or other ambulance service providers operating in the city as determined by the fire chief in his or her sole discretion.

11. A description of the applicant's proposed operating procedures related to training, staffing, billing, collections, customer relations and maintenance of records.

12. Written information as required by the CFO to allow evaluation of whether the applicant is financially able to provide ambulance services, including but not limited to:

a. A statement outlining the extent to which the applicant has been in the ambulance service business before filing the application, and

b. Documented financial and other information as the CFO may require to ascertain financial viability of an applicant.

13. Documented proof verifying current CAAS accreditation.

14. A copy of the applicant's health district ambulance service permit.

15. A copy of the applicant's Federal Communications Commission license.

16. If an applicant is operating under a fictitious firm name, a copy of the certificate filed pursuant to NRS 602.

C. All documents provided by the applicant as part of the completed application or provided as supplemental thereto and all statements, representations, warranties and promises made therein by the applicant and relied upon by the city in granting a franchise shall be binding upon the franchisee.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.130 Ambulance services—Review of franchise application.

A. Upon the receipt by the department of any application referred to in section 4.80.120, and payment of a nonrefundable application fee of $1,000.00, the department shall conduct verification, review, and investigation of the applicant to determine whether the applicant meets all requirements of this chapter, the actual costs of which shall be paid by the applicant prior to execution of the franchise agreement. The department shall report to the city council the findings made pursuant to the investigation, including the recommendation of the fire department on whether to approve or deny the franchise application.

B. The city council, in its sole discretion, may approve or reject any application, grant or deny any franchise, or request further documentation, investigation or review or direct other actions.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.135 Ambulance services—Application for business license; ongoing obligation.

A. Any person desiring to operate a business that provides ambulance services within the city must first obtain and thereafter maintain a valid unexpired business license to provide ambulance services.

B. The application shall be in writing and shall include, at a minimum, the following:

1. For a sole proprietor:

a. The name and business and residence addresses of the applicant; and

b. A list of any other businesses in which the sole proprietor has a five percent or greater ownership interest.

2. For a corporation:

a. The corporate name, date and place of incorporation, the address of its principal place of business, and identification of the ownership and control of the applicant, including:

(i) A list of the officers and directors and persons who may otherwise control the operations of the corporation;

(ii) A list of all shareholders of five percent or more of the shares of the corporation;

(iii) A list of any businesses in which any of the persons listed in item 2(a)(i) and (ii) have a five percent or more ownership interest;

b. A copy of the articles of incorporation and all effective amendments certified by the appropriate officer of the state of incorporation; and

c. A certificate of good standing from the Nevada Secretary of State.

3. For a limited liability company:

a. The limited liability company name, date and place of organization, the address of the principal place of business and the ownership and control of the limited liability company, including:

(i) Whether the limited liability is managed by member(s) or manager(s);

(ii) A list of the managers, members, officers and persons who may otherwise control the operations of the limited liability company;

(iii) A list of any businesses in which any of the persons listed in item 3(b) have a five percent or more ownership interest;

b. A copy of the articles of organization.

4. For a partnership or association:

a. The names of the owners, partners or the persons comprising the partnership or association, the names and percentage of ownership of each owner, partner or person, and the business and residence addresses of each owner, partner or person.

b. A list of any businesses in which any of the persons listed in item 4(a) have a five percent or more ownership interest; and

c. A copy of the partnership agreement or articles of association.

5. A statement with such references as may be acceptable to the department describing the qualifications and experience of the applicant and the personnel who will manage the ambulance service business; all geographic areas and all other jurisdictions currently or previously provided ambulance service by the applicant, including performance standards achieved and levels of service provided.

6. A letter of intent from an insurance carrier stating that, if a licensee is granted, an insurance policy will be issued for liability insurance in the amount and under the conditions stated in this chapter.

7. A written description of the communication system and dispatch procedures the applicant intends to utilize, including a copy of the applicant's application to the Federal Communication Commission for an appropriate license.

8. The color scheme, logo and uniform design proposed to be used to designate the ambulance(s) and personnel of the applicant, which shall not be the same as or confusingly similar to the color schemes or designs of the fire department or other ambulance service providers operating in the city as determined by the fire chief in his or her sole discretion.

9. A description of the applicant's proposed operating procedures related to training, staffing, billing, collections, customer relations and maintenance of records.

10. Documented proof verifying current CAAS accreditation. An applicant that does not have CAAS accreditation may apply for a provisional business license in accordance with section 4.80.140.

11. A copy of the applicant's health district ambulance service permit.

12. A copy of the applicant's Federal Communications Commission license.

13. If an applicant is operating under a fictitious firm name, a copy of the certificate filed pursuant to NRS 602.

C. If city council grants applicant a business license for ambulance service, licensee shall at all times maintain its CAAS accreditation in good standing.
(Ord. No. 3856, § 3, 3-1-2022; Ord. No. 3379, § 2, 1-3-2017)

4.80.137 Ambulance services—Review of and granting business license application; authorized services.

A. Upon the receipt by the department of an application referred to in section 4.80.135, and the payment of all required fees, the department shall conduct verification, review, and investigation of the applicant to determine whether the applicant meets all requirements of

this chapter ("staff findings"). The department shall report to city council the staff findings, including the recommendation of the fire department on whether to approve or deny the application.

B. In addition to the provisions set forth in subsection 4.04.150(A), city council shall consider the following factors in exercising its discretion to approve or deny an application for an ambulance service business license:

1. The staff findings and recommendation pursuant to subsection 4.80.137(A);

2. The applicant's past history, if any, in providing ambulance services and medical transports and transfers;

3. The geographic area and healthcare facilities proposed to be served by the applicant;

4. The public benefit of the applicant's licensure as an ambulance service; and

5. Any other good and sufficient factor.

C. An ambulance service business licensee is only allowed to provide the following:

1. Inter-facility ambulance transfer service originating within the city, provided that the licensee has a city-approved aid agreement with the franchisee.

2. Inter-facility ambulance transport service originating within the city, provided that the applicant has a city-approved aid agreement with the franchisee

3. SEMS.

4. Responding to requests for emergency mutual aid in accordance with subsection 4.80.160(A).

5. Responding to requests for CCT/SCT services when a franchisee is not available to respond.

(Ord. No. 3856, § 4, 3-1-2022)

4.80.140 Ambulance services—Provisional business license.

A. An applicant for an ambulance service business license that has not yet obtained accreditation through CAAS may make application to the department for a provisional business license by submitting an application to the department in accordance with section 4.80.135, paying all required fees, and following the process in this section 4.80.140. The applicant must include with such application a plan with defined and measurable actions to obtain CAAS accreditation. In accordance with subsection 4.80.137(A), the department shall report to city council the staff findings and recommendation. If the city council reasonably determines that the applicant has submitted an application in accordance with section 4.80.135 and met all other criteria required for an ambulance service business

license under this chapter, the city council may, in its sole discretion, approve an application for a provisional business license for a period of 24 months. In making the determination whether to grant said provisional business license, the city council shall consider the factors set forth in subsection 4.80.137(B).

B. If city council grants a provisional business license for ambulance service, the applicant shall be referred to as a provisional licensee until the provisional business license expires. In granting a provisional business license for ambulance service, the city council may require, in its sole discretion, the provisional licensee to furnish periodic updates on service history and progress toward obtaining CAAS accreditation.

C. The provisional licensee is only allowed to provide the following:

1. Inter-facility ambulance transfer service originating within the city, provided that the applicant has a city-approved aid agreement with the franchisee.

2. Inter-facility ambulance transport service originating within the city, provided that the applicant has a city-approved aid agreement with the franchisee.

3. SEMS.

D. If the provisional licensee does not obtain CAAS accreditation within the 24-month period, then, upon recommendation of the fire department and before the 24-month period expires, the city council may extend a provisional business license for an additional six months from the initial expiration date.

E. If the provisional licensee does not provide documented proof of CAAS accreditation to the department before the provisional business license expires, city council shall deny the provisional licensee's application for an ambulance service business license.

F. If the provisional licensee obtains CAAS accreditation before the provisional business license expires, the applicant shall provide documented proof of CAAS accreditation to the department before the provisional business license expires, and city council shall grant provisional licensee's application for an ambulance service business license.
(Ord. No. 3856, § 5, 3-1-2022; Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.145 Ambulance services business license—Failure to comply.

Failure of an ambulance service provider to comply with the applicable sections of this chapter may result in disciplinary action against the licensee, including suspension, revocation or limitation of the ambulance service provider's business license under the provisions of chapter 4.06 of this title.
(Ord. No. 3379, § 3, 1-3-2017)

4.80.150 Ambulance services—Franchise agreement content.

A. A franchise agreement will specify the terms and conditions by which the franchisee may provide ambulance service. The franchise agreement shall incorporate and be subject to the provisions of this chapter, as it may be amended from time to time, all of which shall be binding upon the franchisee and its approved successors, transferees of ownership or control, and assignees; provided, however, in no event shall this chapter be considered a contract between the city and the franchisee such that the city would be prohibited from unilaterally amending any provision hereof.

B. A franchise agreement shall, at a minimum, include the following:

1. The length of the franchise term.

2. A detailed statement of the equipment and facilities to be used in providing ambulance service, including vehicle identification numbers, make, type, age, condition and patient capacity of each ambulance available for use within the service area, a detailed description of the equipment thereon and the identification number of the red light and siren permit issued by the Nevada Highway Patrol.

3. The location and description of the premises which are to be used as the base of operations and any terminals, officers and other facilities to be used in the operations.

4. A description of the franchisee's procedures related to vehicle maintenance and repair.

5. Response time standards prescribed by the fire department, and staffing requirements in the franchisee's service area and in each subzone that the franchisee is authorized to serve. The franchisee shall ensure that each subzone in its service area receives the same level of service or level of performance as compares with other subzones it serves within the franchise service area.

6. Service response protocol and procedures as set forth in this chapter.

7. Ambulance service rates consistent with the limitations set forth in this chapter.

8. Recordkeeping and reporting requirements, including but not limited to the requirements set forth in this chapter.

9. Penalties and remedies in the event the franchisee fails to comply with the terms of the franchise agreement or the requirements of this chapter.

10. Provisions governing any proposed transfer of ownership or control.

11. Release, indemnification, and hold harmless provisions in form required by the city.

12. Failure to address every requirement of this chapter in the franchise agreement shall in no way relieve franchisee of its obligations to comply with each and every applicable provision under this chapter.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.160 Ambulance services—Service response protocol.

A. The fire department shall be the 911 emergency response and transport service in support of the IEMS for the city. In the event the city is unable to meet emergency response demands, the fire chief may, at his discretion, enter into a mutual aid agreement for a particular emergency situation with an ambulance service that is licensed under this chapter.

B. If a licensee receives a call for service that requires an emergency response for a life threatening condition, that call for service shall be given to the PSAP center unless the requested response is for a CCT/SCT unit or the call originates at a hospital. Emergency responses at hospitals do not require a response from the fire department unless specifically requested by the caller or the ambulance service provider.

C. The following procedures shall apply:

1. Upon arrival at the scene of an incident where patient care is being provided by fire department personnel, the licensee's personnel shall:

a. Seek out the incident commander for an information report on patient care already provided;

b. Request possible assignments to assist in any additional care;

c. Avoid duplicating any patient assessment or treatment already completed; and

d. Work under the direction of the incident commander.

2. Upon arrival at the scene of an incident where patient care is being provided by licensee's personnel, the fire department may assume command of the scene. In the event that the fire department does assume command of the scene it shall:

a. Seek out the licensee's employee in charge for a report on the condition of the patient, and any treatment that may have been provided;

b. Request transfer of information from the licensee's personnel; and

c. Remain in charge of the scene while at the scene.

3. Upon the fire department's assumption of command of an incident scene, care of a patient or patients shall be the responsibility of the fire department personnel until such personnel have ceased to provide patient care and responsibility has been transferred to licensee personnel; provided, however, that at no time shall licensees' personnel delay initiation of appropriate treatment or transportation of a patient in anticipation of fire department response. It is the responsibility of all agencies providing patient care to cooperate and assist in treatment and transportation requirements.

4. A licensee responding to a PSAP call shall not send additional ambulances to an incident unless so authorized by the incident commander or the PSAP.

5. Nothing in this section shall be deemed to require or authorize the interruption of patient care in progress.

6. Any licensee providing treatment and transport or transfer services to or from a non-medical facility in the city shall provide personnel and equipment at the EMT paramedic level in accordance with health district regulations and operate in accordance with this chapter.

7. A licensee that is requested to transport or transfer allegedly mentally ill patients that require medical examination prior to transport or transfer in accordance with NRS 433A.165 may provide such transport or transfer at the advanced EMT level, as necessary to the transport request and in accordance with health district regulations.

8. Any licensee providing inter-facility/hospital ambulance transport or transfer services originating in the city shall provide personnel and equipment at the level of service requested by the medical facility, but not less than the advanced EMT level, as necessary to the transport request and in accordance with health district regulations.

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.170 Ambulance services—Maximum service rates.

A. A licensee may charge no more than the maximum ambulance service rates plus loaded mileage rates as established in chapter 2.29 of the Henderson Municipal Code.

B. Ambulance service rate charges specified in subsection A of this section are subject to the following:

1. When there are transports or transfers involving two or more patients in the same ambulance, the mileage charge shall be equally divided between the patients;

2. A licensee shall not charge for wait time as a result of or in proximity to any transport or transfer;

3. A licensee may discount an ambulance service rate to the degree allowed by federal, state and local laws from the maximum ambulance service rates, provided that:

a. No cost shifting shall occur, and

b. The same discounted rate shall be charged to all patients or third-party payers;

4. A licensee shall not capitate any rate nor charge a uniform average per capita rate for any group or category of persons to whom it provides service.

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.180 Ambulance services—Submittal of reports.

A. At the request of either the CFO or the fire department, a licensee shall submit reports, records and other information regarding emergency transports and non-emergency transfers that are necessary to verify the licensee's compliance with this chapter and franchise agreement, if applicable, executed pursuant to this chapter. These reports, records and information shall be submitted in a format mutually agreed to between licensee and city, and on the date requested by the CFO or fire department.

B. A licensee may keep records using account numbers or patient numbers rather than names and addresses; provided, however, that such records shall include the PSAP incident number.

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.190 Ambulance services—Release of records to patient.

Upon request by any patient who has been transported or transferred by a licensee or any other person described in NRS 629.061(6), that licensee shall make: (i) the health care records (as that term is defined in NRS 629.021) of that patient and (ii) all of its billing records relating to that patient, available for inspection as required by NRS 629.061(6).

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.200 Ambulance services—Release of records to city.

At the city's request, a licensee shall furnish to the city any records or any additional information regarding emergency transports and nonemergency transfers that are necessary to verify compliance with this chapter or the franchise agreement, if applicable. Licensee shall furnish such records in a manner that complies with HIPAA.

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.210 Ambulance services—Monthly reports.

The franchisee shall provide a monthly report to the department listing any litigation filed against the franchisee of which it is aware arising from or in any way related to franchisee's operations in the city.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.220 Ambulance services—Financial statements.

A franchisee shall provide to the department:

A. Within four months after the end of each fiscal year of a franchise, the financial statements for such fiscal year;

B. In connection with financial records inspections as provided for in this chapter or during any auditing activities, such details regarding the franchisee's financial operation in the city as the department may require to verify compliance by the franchisee with the provisions of this chapter and the terms of the franchise agreement.

C. Access to financial statements of entities locally owned by, operated by or under the control of the franchisee or related business parties who exercise any control of the franchisee.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.230 Ambulance services—Inspection of financial records.

Upon two business days' written notice, during normal business hours, the department may inspect the financial records of an ambulance service licensee to determine whether the licensee is complying with the terms of this chapter.

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.240 Confidentiality of records.

A. Except as otherwise provided in this section, records provided by a person to the city for purposes of making application for a franchise or business license under this chapter, and determining compliance with the requirements of this chapter after being licensed or issued a franchise, shall be considered public records in accordance with state open records law.

B. An applicant for a franchise or business license under this chapter may seek confidential treatment to protect against the disclosure or public inspection of confidential or proprietary information, such as commercially valuable or proprietary information related to performance. The applicant must represent in writing to the city that protections exist under the law to preserve the confidentiality of the record and the legal basis thereof. The city shall provide confidential treatment to the extent allowed by law as determined by city in its sole discretion.

C. Any information provided to the city which contains a natural person's name, address, medical condition or diagnosis, incident location, social security number, personal financial records, telephone number, home address, e-mail address, names of family

members, or work history, or which otherwise constitutes "protected health information" as that term defined under HIPAA, shall be considered confidential. Such confidential information shall not be released by the city to the public unless the person to whom the information applies has first agreed in writing, in a format which complies with HIPAA requirements, to release of the information. To the extent permitted by HIPAA and other applicable law, reports containing confidential information and information deemed to be public may be released if such confidential information is first redacted.

D. Yearly audited financial statements of the local franchised operations are a matter of public record. To the extent allowed by law, the work papers, findings, and associated documents underlying or produced by audits conducted by the department are confidential.

E. Upon the city's request and within the time period required by the city, a franchisee or licensee shall provide any such redacted reports that may be required for release by the city.

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.250 Ambulance services—Franchise is non-transferrable.

A franchisee's obligations under its franchise involve personal services whose performance involves personal credit, trust and confidence in the franchisee. Ambulance service franchises are not transferrable to successors if there is a transfer of ownership or control.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.260 Ambulance services—Security deposit required.

A. To ensure that ambulance service in support of the IEMS remains uninterrupted in the event of premature termination of a franchise for any reason, and to ensure that any fees, fines, penalties or other amounts owed to the city are paid, a franchisee shall provide and maintain, as a condition of the franchise, and prior to providing any ambulance services in the city, security in the form of cash, an irrevocable pledge of certificate of deposit, an irrevocable letter of credit or a performance bond, as set forth in the franchise agreement. In the event that an ambulance service holds a franchise in the city for non-911-dispatched inter-facility ambulance transport service and CCT service only, such security shall be in the minimal amount of $100,000.00 made payable to the city finance department and delivered to the CFO. In the event that an ambulance service holds a franchise for both mutual aid emergency and nonemergency transports such security shall be in the amount of $1,000,000.00, or in the amount otherwise set forth in the franchise agreement, made payable to the city finance department and delivered to the CFO.

B. If performance bonds are used to satisfy the security requirements of this section, they shall comply with the following requirements:

1. All bonds shall provide for payment of the city's reasonable attorneys' fees to enforce the bond.

2. All bonds shall be issued by a surety company authorized to do business in the State of Nevada, and which is listed in the U.S. Department of the Treasury Fiscal Service (Department Circular 570, Current Revision).
3. All bonds shall guarantee performance of the franchisee's obligations under the franchise agreement and under all applicable local, state and federal laws.
4. A certified and current copy of the power of attorney of the attorney-in-fact who executes the bond on behalf of the surety shall be affixed to the bond.
5. All bonds prepared by a licensed non-resident agent must be countersigned by a resident agent in accordance with NRS 680A.300.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.270 Franchisee and licensees bound by regulations.

The franchisee and persons issued a business license or provisional business license under this chapter shall be subject to all requirements of the city's ordinances, rules, regulations and specifications insofar as the regulations and specifications are not in violation of any applicable state or federal regulations. The city reserves every right and power to exercise any requirement of the Henderson Municipal Code, and the franchisee and each licensee, by its acceptance of the franchise or business license, agrees to be bound thereby and to comply with any action under (or requirement of) Henderson Municipal Code, as it exists now or as amended in the future.

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.280 Ambulance services—Request for extension of franchise.

A franchisee may request extension of its franchise. Such request must be made no less than 12 months prior to the expiration of the initial franchise term. The city manager may waive or add any application requirements of section 4.80.120 for extension of a franchise. If the city council determines that the franchisee has operated in conformance with the provisions of this chapter, the franchise agreement, and the rules and regulations of the city, the franchise may be extended for a period not to exceed the initial franchise term. A franchisee shall cooperate with the city in any extension proceeding and shall provide such information as the city shall reasonably request in such an extension proceeding.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.290 Ambulance services—Revocation of franchise.

A. The city council may revoke a franchise if it finds that:

1. The franchisee has failed to meet one or more of the performance standards of this chapter;

2. The franchise was obtained by fraud or misrepresentation;

3. The franchisee has failed to operate its ambulance service business in accordance with all applicable laws and regulations and the franchise agreement;

4. The franchisee otherwise failed to meet any of the provisions of any state, local or federal law or regulation;

5. A transfer of ownership or control has occurred.

B. The city council may revoke a franchise upon 12 hours' notice to a franchisee in the event that any failure of the franchisee which constitutes a significant and immediate threat to public health and safety is not cured to the satisfaction of the city council within such time.

C. Except for revocation pursuant to subsection B of this section, prior to revoking a franchise the city council shall first provide written notice to the franchisee stating its intent to revoke the franchise and the nature of the deficiency. The franchisee shall have 15 calendar days from receipt of notice to cure such deficiency to the satisfaction of the city council. If such deficiency is not so cured, the city council may issue a notice of revocation stating any deficiencies and the effective date of the revocation.

D. The city shall provide the franchise written notice, at the time the public receives written notice pursuant to NRS Chapter 241, of any city council meeting at which a franchise is being considered for revocation.

E. In an emergency, as defined in NRS 241.020, the city council may revoke a franchise without prior notification.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.295 Ambulance services—IEMS participation.

Any person desiring to operate a business that provides ambulance services within the city shall maintain full participation in the IEMS as managed by the city. This includes, but is not limited to training, quality improvement processes, mutual aid/mass care services, system reporting requirements, and other IEMS management needs identified by the city.
(Ord. No. 3379, § 4, 1-3-2017)

4.80.297 Ambulance services—Penalty.

Failure of an ambulance service provider to comply with the applicable sections of this chapter may result in disciplinary action against the licensee, including suspension, revocation or limitation of the provider's business license under the provisions of chapter 4.06 of this title.
(Ord. No. 3856, § 6, 3-1-2022)

4.80.300 Special event medical services—Franchise not required when.

A. An ambulance service franchise shall not be required in order to provide special event medical service as defined by health district EMS regulations, sections 1150.050 through 1150.400, as may be amended, if the special event does not require a dedicated ALS ambulance(s).

B. If a dedicated ALS ambulance(s) is used at a special event or is required at a special event by the promoter of the special event, by an insurer in connection with the special event, by the owner of the venue at which the special event is being held, by the chief of the fire department, or by another person with contractual or jurisdictional authority over the special event, then only an ambulance service provider who is franchised in accordance with this chapter is authorized to provide the dedicated ALS ambulance(s) at the special event.

(Ord. No. 3856, § 7, 3-1-2022; Ord. No. 3292, § 2, 10-6-2015)

4.80.310 Special event medical services—IEMS Participation.

Any person desiring to operate a business that provides medical or first aid services at special events within the city must maintain full participation in the IEMS as managed by the city. This includes but is not limited to training, quality improvement processes, mutual aid/mass care services, system reporting requirements, and other IEMS management needs identified by the city.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.320 Special event medical services—Business license required.

Any person desiring to operate a business that provides medical or first aid service at special events within the city must first obtain and thereafter maintain a valid unexpired business license to provide special event medical services. Persons holding a valid and current ambulance service franchise and ambulance service business license with the city, or a valid and current ambulance service business license with the city, are not required to obtain a separate business license to provide SEMS.

(Ord. No. 3856, § 8, 3-1-2022; Ord. No. 3292, § 2, 10-6-2015)

4.80.330 Special event medical services—Business license fee.

The business license fee for a special event medical service provider shall be $100.00 paid semiannually.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.340 Special event medical services—Business license application.

A. An ambulance service business license granted in accordance with this chapter shall not be required in order to provide SEMS.

B. A person desiring to provide SEMS must file a written application with the department on such form or in such format as the department shall require. The following additional documentation shall also be provided with the completed applications:

1. Proof of an ambulance service special purpose permit issued by the health district.

2. Proof of insurance as required in this chapter.

(Ord. No. 3856, § 9, 3-1-2022; Ord. No. 3292, § 2, 10-6-2015)

4.80.350 Special event medical services—Transport from special events.

A. An ambulance service provider who is franchised in accordance with this chapter may provide SEMS and may use its ambulances to transport patients from the location of a special event. Ambulance service franchisees are exempt from the requirements of subsection 4.80.350(B)1—5.

B. A SEMS provider who has obtained a business license pursuant to section 4.80.320 and whose special event vehicle is staffed and equipped pursuant to health district regulations, may not transport a patient from a special event it has been contracted to serve and, if a patient must be transported, that SEMS provider shall contact the city PSAP and request an emergency response from the city to the scene of the emergency. However, that SEMS provider may transport a patient from such a special event if the condition of a patient is a life threatening emergency (e.g., penetrating trauma, acute myocardial infarction, evolving cerebral vascular accident, difficult airway management, etc.), and the SEMS provider complies with the following operating requirements:

1. Prior to transport, the SEMS provider shall contact the city PSAP and request an emergency response from the city to the scene of the emergency.

2. The SEMS provider will continue to provide care to the patient while awaiting response.

3. If the fire department is unable to respond, the SEMS provider may transport the patient to an approved medical facility.

4. If the SEMS provider is transporting the patient to a location suitable for transferring the patient to an ambulance or air ambulance, prior to transport the SEMS provider shall contact the city PSAP, to request that an ambulance or air ambulance be dispatched to the transfer location.

5. Within five calendar days of the transport, the SEMS provider shall submit a written report of the patient transport to the fire chief, in a form approved by the department, and to the health district, pursuant to health district reporting regulations.

(Ord. No. 3856, § 10, 3-1-2022; Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

4.80.355 Ambulance services—Pre-notification of special event.

If a special event is anticipated to, or will have 50 or more people in attendance, then five calendar days before the special event is scheduled to occur or on the date the SEMS provider agrees to provide SEMS at the special event, whichever date is earlier, the SEMS provider shall email the chief of the fire department, or their designee, the following information: name of the special event, estimated number of people attending the special event, location of the special event, the name(s) and mobile number(s) of the SEMS provider's primary contact who will be on scene at the special event, and the name and email address of the special event promoter. The SEMS provider shall provide additional information regarding the special event requested by the chief of the fire department, or their designee, by any deadline specified.

(Ord. No. 3856, § 11, 3-1-2022)

4.80.360 Special event medical services—Cooperation during emergency.

If requested to do so by the city, and subject to availability of staff and equipment, a SEMS provider shall make its staff and equipment available to aid and assist the city in the event of wide-scale emergency or disaster and, if requested, shall cooperate with and participate in an emergency planning program conducted or sponsored by the city's office of emergency management.

(Ord. No. 3292, § 2, 10-6-2015)

4.80.370 Special event medical services—Failure to comply—Penalty.

Failure of a SEMS provider to comply with the applicable sections of this chapter may result in disciplinary action against the licensee, including suspension, revocation or limitation of the SEMS provider's business license under the provisions of chapter 4.06 of this title.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.380 Special event medical services—Color scheme—Design.

The color scheme, logo and uniform design to be used to designate the SEMS vehicle and personnel of the SEMS provider shall not be the same or confusingly similar to the color scheme of designs of the fire department or other ambulance service providers operating in the city as determined by the fire chief in his or her sole discretion.
(Ord. No. 3292, § 2, 10-6-2015)

4.80.390 Liability insurance required.

A. As a condition of and prior to commencing business operations, any person required to have a business license, or both a business license and franchise, under this chapter and intending to transport or provide transfers on the rights-of-ways or air space of the city as provided in this chapter shall file with the director and thereafter maintain liability insurance, as long as required to be licensed, or both licensed and franchised, in such form and for such coverage as approved by the city's risk manager, insuring the licensee or franchisee against all risk arising from the operations of the licensee or franchisee for not less than $2,000,000.00 per occurrence for bodily injury or death, and $2,000,000.00 per occurrence for loss or damage to property.

B. All policies of insurance required under this section shall be issued by insurance companies licensed to do business in the State of Nevada in accordance with applicable sections of Nevada Revised Statutes Title 57, from carriers having a rating from A.M. Best Company of no less than A-VIII. Proof of coverage shall be evidenced by submitting an insurance certificate, or certificates, to the director, which names the city as an additional insured and indicates, by proper endorsement or rider to the policy, that the city will be notified no less than 30 days prior to alteration, cancellation, termination or non-renewal of coverage.
(Ord. No. 3856, § 22, 3-1-2022; Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

Editor's note—Ord. No. 3856, §§ 12—21, adopted March 1, 2022, repealed the former sections 4.80.390—4.80.480 in their entirety, which pertained to non-medically supervised

transfer services—IEMS participation; same—business license required; same—business license fee; same—vehicle supplies; same—color scheme—design; same—penalty; air ambulance services—participation in the IEMS; same—business license required; same—business license fee, and same—failure to comply—penalty, and derived from Ord. No. 3292, § 2, adopted October 6, 2015.

Subsequently, §§ 23 and 24 of Ord. No. 3856 redesignated the former sections 4.80.490 and 4.80.500 as sections as 4.80.390 and 4.80.400. The historical notation of these sections has been preserved for reference purposes.

4.80.400 Prior private ambulance licensure.

Any person licensed to operate an ambulance service under this chapter on October 6, 2015 shall have until February 28, 2017, to submit one or more applications for applicable licenses in accordance with the requirements in this chapter. The city shall not renew or extend any license issued prior to October 6, 2015, to operate an ambulance service under chapter 4.80.

(Ord. No. 3856, § 23, 3-1-2022; Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

Note—See editor's note at section 4.80.390.

4.80.500 Prior private ambulance licensure.

Any person licensed to operate an ambulance service under this chapter on October 6, 2015 shall have until February 28, 2017, to submit one or more applications for applicable licenses in accordance with the requirements in this chapter. The city shall not renew or extend any license issued prior to October 6, 2015, to operate an ambulance service under chapter 4.80.

(Ord. No. 3379, § 1, 1-3-2017; Ord. No. 3292, § 2, 10-6-2015)

Chapter 4.84 MASSAGE ESTABLISHMENTS AND INDEPENDENT MASSAGE THERAPISTS*

Sections:

4.84.010 Definitions.
4.84.020 Statement of legislative intent—Regulation.
4.84.030 Unlawful to operate without license—Outside jurisdiction—Separate license required.
4.84.040 License—Location subject to use permit application review.
4.84.050 Exemptions—Specified.
4.84.060 Massage establishment licensee—Employees.
4.84.070 License—Application.
4.84.075 Investigation fees—Required fees.
4.84.080 Advertising.
4.84.090 Massage establishment—Where operated—Operating requirements.
4.84.100 Independent massage therapist—Authorizations and requirements.
4.84.110 License—Changes in ownership.
4.84.120 License issuance.
4.84.130 Reserved.
4.84.140 Clothing requirements.
4.84.150 Unlawful acts.
4.84.160 Sale or transfer or change of location.
4.84.170 Reserved.
4.84.180 Disciplinary action—License suspension, revocation or limitation.
4.84.190 Obtaining a license after revocation—Prohibition.
4.84.200 Enforcement authority.

4.84.010 Definitions.

The following definitions are in addition to the definitions set forth in chapter 4.04 of this title. Unless the context clearly indicates a different meaning, the definitions below shall govern the construction, meaning, and application of words and phrases used in this chapter:

Advertising means the intentional placement or issuance of any sign, card or device, or the permitting or allowing of any sign or marking on a motor vehicle, in any building, structure, newspaper, magazine, handbill, flyer or other publication, any airway transmission, on the Internet or in any directory under the listing of "massage therapy" or "massage" or other words of similar import.

***Editor's note—**Ord. No. 3301, §§ 2, 3, adopted October 20, 2015, repealed and reenacted chapter 4.84 in its entirety to read as herein set out. Formerly, chapter 4.84, §§ 4.84.010—4.84.210, pertained to similar subject matter, and derived from Ord. No. 2844, § 2, adopted January 19, 2010, and Ord. No. 2947, §§ 1—3, adopted December 6, 2011.

Ancillary employee means any employee of a massage establishment or of an independent massage therapist that is not a massage therapist.

Board means the Nevada State Board of Massage Therapists.

Chair massage means a massage administered by a massage therapist to a fully-clothed patron's neck, shoulders, back, arms, hands and feet utilizing a massage chair. A patron or guest at a hotel or resort hotel receiving a chair massage in the swimming pool area of the hotel or resort hotel shall be considered fully-clothed when wearing appropriate public swimming attire.

Control means the power to direct or cause the direction of the management and policies of a massage establishment, massage therapist, employee or agent in any way.

Employee means any of the following: (i) a massage therapist employed by a massage establishment to provide massage therapy, but who is not an independent contractor of the massage establishment; (ii) a manager in charge and (iii) an ancillary employee.

Independent massage therapist means: (i) a massage therapist who is a sole practitioner or independent contractor; or (ii) a person otherwise providing massage services as described in this chapter who is not an employee of a massage establishment.

Massage or *massage therapy* means the application of a system of pressure to the muscular structure and soft tissues of the human body as described in NRS 640C.060(1), and for purposes of this chapter, shall also mean any method of pressure on or friction against, or stroking, kneading, rubbing, tapping, pounding, vibrating or stimulating the external parts of the human body with the hands, or with the aid of any mechanical or electrical apparatus or appliances, with or without supplementary aids such as rubbing alcohol, liniments, antiseptics, oils, powders, creams, lotions, ointment or other such similar preparations commonly used in the practice of massage. Reflexology, when performed in accordance with the regulations of chapter 4.85, is excluded from this definition.

Massage establishment means any fixed place of business where any individual, firm, company association, partnership, corporation, or combination of individuals, engages in, conducts, carries on, or permits to be engaged in or conducted, for money or any other consideration, any massage therapy. For purposes of this chapter, including, without limitation, responsibility for compliance with the provisions of this chapter and penalties for failure to so comply, the term shall include the owners, managers, members, partners, directors, or shareholders of the business entity operating as a massage establishment.

Massage therapist means any person who is licensed pursuant to the provisions of NRS Chapter 640C to engage in the practice of massage therapy or any person performing massage therapy as defined above. While the provisions of this chapter apply to anyone performing massage therapy or operating a massage establishment, regardless of whether such person or place is licensed as such, nothing in this chapter shall be construed to allow

the practice of massage without all appropriate licenses and permits. Massage therapist includes both independent massage therapists and massage therapists who are employees of a massage establishment unless otherwise specified.

Outcall massage service means any massage performed by a massage therapist or independent massage therapist upon a patron at a location other than a location licensed as a massage establishment.

Patron means any person who receives a massage or other service offered by a massage establishment or independent massage therapist.

Sexual activity means:

1. Sexual intercourse;

2. Examining or touching any specified anatomical area of a patron;

3. Rubbing against a patron for sexual gratification;

4. Kissing;

5. Hugging, touching, fondling or caressing of a romantic or sexual nature;

6. Not providing a patron privacy to dress or undress except as may be necessary in a medical emergency;

7. Not providing a patron a gown or draping except as may be necessary in a medical emergency;

8. Removing the patron's clothing or gown or draping without consent, except as may be necessary in a medical emergency;

9. Encouraging masturbation or any other sex act in the presence of a massage therapist or employee;

10. Dressing or undressing in the presence of the patron;

11. Masturbation or any other sex act by the massage therapist or any employee in the presence of the patron;

12. Discussing the sexual history, preference or fantasies of the massage therapist or employee;

13. Any behavior, gesture or expression that may reasonably be interpreted as seductive or sexual;

14. Making statements regarding the patron's body, appearance, sexual history or sexual orientation other than for legitimate health care purposes;

15. Sexually demeaning behavior including any verbal or physical contact which may reasonably be interpreted as demeaning, humiliating, embarrassing, threatening or harming a patron;

16. Photographing or filming the body or any body part of a patron; or

17. Showing a patron sexually explicit photographs or video.

Specified anatomical area means the human genitals, pubic region, anus, or perineum of any person, or the breasts of a female.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.020 Statement of legislative intent—Regulation.

It is found and declared that the public health, safety, morals and welfare of the inhabitants of the city require the regulation and control of persons engaged in the business of massage. All massage establishments shall be licensed and regulated so as to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public. It is further found and declared that the right to obtain such license is a privilege and that the operation of a massage establishment or business by an independent massage therapist, when authorized by such license, is a privileged business subject to regulations, and that the license may be revoked for violation of the laws or regulations of the state, the conditions of this chapter, and other ordinances of this city.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.030 Unlawful to operate without license—Outside jurisdiction—Separate license required.

A. It is unlawful for any person to operate a massage establishment or provide services as an independent massage therapist in the city without obtaining a massage establishment or independent massage therapist license and paying all fees in connection therewith as set forth in chapter 4.05.

B. It is unlawful for any person to provide massage therapy services in the city without first having obtained, and thereafter maintaining, a valid massage therapist license pursuant to NRS Chapter 640C.

C. Any independent massage therapist who is based in any jurisdiction in Clark County, Nevada, other than the city and that wishes to come into the city to perform massage therapy, including chair massage, must first be licensed as a massage therapist by the Board pursuant to NRS Chapter 640C and must also obtain an independent massage therapist license from the city in accordance with this chapter.

D. Massage businesses that are based in any jurisdiction in Clark County, Nevada, other than the city and who wish to send massage therapists into the city to perform massage therapy, including chair massage, must first obtain a city massage establishment license in accordance with this chapter.

E. Any owner of a massage establishment who wishes to engage in the occupation of massage must have a valid, unexpired license from the Board in addition to the massage establishment license required pursuant to this chapter.

F. It is unlawful for a massage establishment or manager in charge of a massage establishment to allow massage therapy to be performed at the massage establishment by a person not licensed as a massage therapist.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.040 License—Location subject to use permit application review.

All license applicants for massage establishments that will be located within the city shall submit to the community development and services department an application, in the manner specified by that department, for a conditional use permit in accordance with title 19 of the development code. Disciplinary actions imposed under this chapter 4.84 or other chapters of this title that apply to massage establishments may result in revocation of the conditional use permit.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.050 Exemptions—Specified.

The provisions of this chapter shall not apply to persons specified in NRS 640C.100(1), so long as the activities or services are provided in connection with the practice for which the person is licensed, certified or registered.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.060 Massage establishment licensee—Employees.

A. Each massage establishment shall be operated under the lawful control of a manager in charge as defined in section 4.84.090.

B. Every massage establishment and manager in charge shall be responsible for the conduct of the massage establishment's employees, agents, representatives, or other persons who are on the premises of the massage establishment regardless of whether such person is providing massage therapy. The massage establishment and manager in charge shall be subject to disciplinary action including civil penalties and criminal citations, and the massage establishment license shall be subject to suspension, limitation or revocation, based upon such conduct, regardless of any actual or constructive knowledge of the conduct by the massage establishment or manager in charge. In any license

suspension, limitation, or revocation proceedings, the fact that the massage establishment did not have actual knowledge of the events complained of shall be no defense and every massage establishment accepts its license subject to said condition.

C. Any massage establishment that contracts or otherwise affiliates with an independent massage therapist for the purpose of performing massage shall be jointly responsible for the conduct and business operations of the independent massage therapist. Any misconduct by the independent massage therapist shall be attributable to both the independent massage therapist and the massage establishment and shall subject the massage establishment, independent massage therapist and manager in charge to disciplinary action including notices of violation, civil penalties and criminal citations, and shall subject the massage establishment license and independent massage therapist license to suspension, limitation or revocation based upon the conduct of the independent massage therapist, regardless of any actual or constructive knowledge of the conduct by the massage establishment or manager in charge. In any license suspension, limitation, or revocation proceedings, the fact that the massage establishment did not have actual knowledge of the events complained of shall be no defense and every massage establishment accepts its license subject to said condition.

D. Massage establishments shall train their employees, and shall ensure their independent massage therapists have training, regarding how to address patrons who initiate, request or suggest sexual activity.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.070 License—Application.

Whenever a person desires to conduct any business in the city, as a massage establishment or as an independent massage therapist, such person shall file a business license application in writing with the division on a form to be furnished by the division, along with the application fee as provided in section 4.04.065 and the license fee as provided in chapter 4.05.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.075 Investigation fees—Required fees.

Any person applying for a massage establishment license is required to submit to the city an investigation fee as set forth in chapter 4.03, for each person required to be investigated. Persons who are required to be investigated include, without limitation, owners, managers in charge, officers, directors, managers, members, and partners.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.080 Advertising.

A. No person shall advertise that such person provides massage therapy services in the city unless, in the case of a natural person, the person is licensed to practice massage therapy by the board, and in the case of a business, such business is a licensed massage establishment. No person shall advertise that massage therapy services are provided at a business located within the city unless the business has been issued a conditional use permit allowing for massage therapy to be performed at the business location and such permit has not been suspended or revoked.

B. No massage establishment or massage therapist shall place, publish or distribute or cause to be placed, published or distributed any advertisement, picture, or statement which is known or, through the exercise of reasonable care, should be known to be false, deceptive or misleading or which would reasonably suggest to prospective patrons that sexual stimulation or sexual gratification will be provided, in order to induce any person to purchase or utilize any massage services of the massage establishment or massage therapist.

C. All advertising by a massage therapist must include his or her legal name, license number and the name of his or her employer, if applicable. All advertising by a massage establishment must include the business name and license number(s) of the massage establishment.

D. In the event a massage establishment or its manager in charge becomes aware of any advertising that: (i) directs the viewer of the advertisement to the massage establishment, either by name or address; and (ii) violates the provisions of this section, the massage establishment or manager in charge shall take reasonable steps to have such advertising removed or taken down, or in the event such advertising is on flyers or handbills, shall cease distributing them. With respect to internet advertising or posting, reasonable efforts shall include, but not be limited to, requesting the host of the website on which the advertising is located, or the person posting the advertisement, to remove or delete the advertisement or post.

E. Two or more violations of section 4.84.080 within a six-month period may subject the massage establishment license to suspension, limitation or revocation pursuant to chapter 4.06, and the massage establishment, manager in charge, massage therapist or other party responsible for the advertising, to disciplinary action as set forth in chapter 4.07.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.090 Massage establishment—Where operated—Operating requirements.

A. A massage establishment license allows the conduct of massage services only in a properly zoned commercial area within the city, in accordance with any conditions required by the conditional use permit issued to that location. A massage establishment license and conditional use permit are required when a massage establishment is operated in leased or rented space, including, without limitation, in a hotel, resort hotel, health club, fitness center or cosmetology establishment.

B. The operating requirements of all massage establishments are as follows:

1. A person designated as the manager in charge shall be on the premises at all times of operation. The manager in charge shall be responsible for accepting citations, written correspondence, and any other communication from the city. The manager in charge shall be considered a key employee subject to the requirements of section 4.04.180. A massage establishment may have more than one manager in charge; provided, however, that at least one manager in charge must be present on the premises of the massage establishment at all times while the massage establishment is open for business. Each person identified as a manager in charge shall be required to obtain an approval letter issued by the division, which shall not be issued until the person meets the following minimum requirements, to the satisfaction of the director:

a. The manager in charge shall be at least 18 years old;

b. The manager in charge shall be a citizen of the United States or a non-citizen eligible to work in the United States, with proper documentation of same;

c. The manager in charge shall not be a registered sex offender or required by law to register as a sex offender;

d. The manager in charge shall not, within ten years before requesting an approval letter, be convicted of (or plead nolo contendere to) an offense involving sexual misconduct with a child, including sexual abuse, sexual assault, sexual conduct, sexual molestation and sexual exploitation;

e. The manager in charge shall not, within ten years before requesting an approval letter, be convicted of (or plead nolo contendere to) prostitution or of operating a prostitution enterprise;

f. The manager in charge shall not, within ten years before requesting an approval letter, be convicted of (or plead nolo contendere to) a felony or crime of moral turpitude not otherwise specified herein; and

g. The record of the manager in charge shall be free of all reasons to deny an application or suspend, limit or revoke a license under this section, section 4.04.150, and section 4.84.180 of this title.

2. A list of services available and the cost of each service shall be made available to all patrons and must be posted and visible in an open public place within the massage establishment, and shall be written in English.

3. The manager in charge shall be responsible for ensuring that all persons performing massage therapy at the massage establishment have a valid, unexpired license from the board. The manager in charge shall maintain a list of all persons employed each day at the massage establishment, whether as independent massage therapists or employees and their license numbers, if any. Such list shall be available for viewing by agents or officers of the division, code enforcement, police department or state or county regulatory agencies at all times the establishment is open for the conduct of business.

4. Each establishment shall provide all patrons clean, sanitary and opaque coverings capable of covering the patron's' specified anatomical areas. No common use of such coverings shall be permitted and reuse of such coverings is prohibited until washed and cleaned.

5. No massage establishment shall be equipped with any electronic, mechanical or artificial device used or capable of being used for recording either audio or video of activities, conversations or other sounds in the treatment room or any other room used by patrons or potential patrons.

6. No massage establishment shall be equipped with tinted or two-way mirrors in any room accessible to patrons.

7. Exterior windows shall not be tinted, covered or blocked in such a manner as to impede a view inside the massage establishment from the exterior. Tint shall be no lower than 50 percent with a maximum of ten percent exterior reflectance not including the glass.

8. All front reception, hallway and front exterior doors (except back or rear exterior doors used only for employee entrance to and exit from the massage establishment and patron restrooms when in use by a patron) shall be kept unlocked during business hours. No massage may be given within any cubicle, room, booth or any area within the massage establishment that is fitted with a door capable of being locked, unless that door is an exterior door. No electronic, automatic combination or other locking device may be utilized on any interior door which is required to be locked.

9. No person shall operate a massage establishment, perform outcall massage service, or administer a massage for money or any other consideration between the hours of 10:00 p.m. and 8:00 a.m.

10. No massages shall be performed in any room where table showers or shower apparatus are located.

11. Each room in which massage therapy will be performed must have lighting fixtures which are capable of providing a minimum of five foot-candles of light at the floor level.

12. A massage establishment shall be responsible for ensuring that it remains closed to the public, with no signage indicating the massage establishment is open for any purpose, if at any time an appropriately licensed massage therapist is not on the premises to perform massage therapy.

13. All massage therapists, employees and managers in charge shall, at all times while working in a massage establishment or providing massage therapy services, carry on their person or otherwise have present at the location where they are working or providing massage services, government-issued identification. It shall be unlawful for any employee, independent massage therapist or manager in charge to refuse to, or otherwise fail to, present his or her identification to agents or officers of the division, code enforcement, police department or state or county regulatory agencies if he or she is asked to do so during business hours.

14. Every massage establishment shall post a copy of the license required by this chapter in a prominent place in the reception area of the establishment.

15. No person shall perform outcall massage at a commercial location if the commercial location is required to have a massage establishment license, but does not have a massage establishment license.

C. If agents or officers of the division, code enforcement, police department or state or county regulatory agencies observe that an establishment has failed to comply with any of the operating requirements set forth in this section 4.84.090, the agent or officer may take action as described in section 4.84.200 of this chapter.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.100 Independent massage therapist—Authorizations and requirements.

A. An independent massage therapist license authorizes the licensee to:

1. Perform massage therapy in a leased or rented room in a licensed massage establishment;

2. Perform outcall massage therapy from his or her residence in the city after obtaining a home occupation permit in accordance with title 19 of the development code provided that no massage therapy is performed in the residence; and

3. Advertise as an independent massage therapist.

B. If an independent massage therapist operating as a sole proprietor wishes to conduct his or her business from a commercial location, he or she is not required to obtain a separate massage establishment license if the commercial location is licensed as a massage establishment and has received a conditional use permit allowing massage therapy at that location.

C. If the commercial location is not licensed as a massage establishment or does not have a conditional use permit allowing massage therapy at that location, the independent massage therapist shall be required to obtain the massage establishment license and/or conditional use permit prior to providing massage therapy at the commercial location.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.110 License—Changes in ownership.

In the case of a corporation, partnership, association, limited liability company, or any other form of ownership other than a sole proprietor, any and all changes in the officers, managers, members, partners or directors of such legal entity shall be reported to the division within 30 days of the change. Any new officers, managers, partners, associate members or directors shall be required to pass an investigation and pay the fees required by chapter 4.03. Failure of any of the aforementioned persons to pass investigation or pay the required fees may result in revocation, limitation or suspension of the massage establishment license.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.120 License issuance.

A. Upon receipt of the results of the background investigation required by section 4.84.075 from the police department, the director will make a determination on the finding of suitability. The division will submit its recommendation for approval or denial of the application for a massage establishment license to the city council for consideration. All license applicants shall be required to submit an affidavit or declaration, on a form provided by the division, to the city council at the time the city council considers whether to approve or deny the license affirming their willingness to abide by the provisions of this chapter. If the application is approved by the city council, the division may be directed to issue the license; provided, however, that all other conditions, restrictions, payment of fees, and compliance with all applicable state statutes and city ordinances have been met.

B. Upon receipt of a complete application for an independent massage therapist license, the division shall issue the license; provided that all other conditions, restrictions, payment of fees, and compliance with all applicable state statutes and city ordinances have been met.
(Ord. No. 3622, § 1, 9-18-2019; Ord. No. 3301, § 3, 10-20-2015)

4.84.130 Reserved.

4.84.140 Clothing requirements.

A. Each massage establishment shall comply with regulations relating to sanitation, hygiene and safety adopted by the board pursuant to NRS 640C.320.

B. All massage establishments shall ensure that all employees, independent contractors, agents or representatives are completely clothed at all times while on the premises of a massage establishment, regardless of whether such person is providing massage therapy services. Outer garments must be clean, must not be torn, must be made of a fully-opaque material, and must be in good repair.

C. For purposes of this subsection, the term "completely clothed" means:

1. With respect to the upper body:

a. For women, wearing undergarments;

b. For men and women, wearing either a blouse or shirt with sleeves and which shall cover the entire torso from the neck to the waist.

2. With respect to the lower body for both men and women, wearing appropriate undergarments plus either pants or a skirt that must cover from the waist down to a point at least two inches above the knee.

3. Undergarments shall not be exposed to a patron or other person on the premises of a massage establishment at any time.
(Ord. No. 3301, § 3, 10-20-2015)

4.84.150 Unlawful acts.

It is unlawful for:

A. Any massage establishment, manager in charge or person acting for the massage establishment, to employ, in any capacity, any person who is not at least 18 years of age.

B. Any person licensed under this chapter to operate under any name or conduct business under any designation not specified in such license or to engage in the

business of operating a massage establishment under a false or assumed name when the use of such false or assumed name is not otherwise permitted by law, or is impersonating another practitioner of a like or different name.

C. Any massage therapist or employee to expose his or her genitals, buttocks, chest or breasts, or make any intentional, occasional or repetitive contact with a patron's specified anatomical areas.

D. Any massage establishment owner, massage therapist or employee to be present in any room with a patron unless the patron's specified anatomical areas are fully covered.

E. Any massage establishment, massage therapist, employee, agent, representative or patron to engage in or solicit sexual activity from any person, at any time within a massage establishment. These acts are unlawful if they occur at any time within a massage establishment, regardless of whether the activity occurs during the course of a massage and regardless of whether the person consents. It shall also be a violation if the massage establishment, employee, agent, massage therapist, or representative, initiates sexual activity with or encourages sexual activity from the person regardless of whether the sexual activity actually occurs.

F. Any person to possess or consume any alcoholic beverages on the premises of any massage establishment.

G. Any gaming as defined in this title to occur on the premises wherein the business of massage is conducted.

H. A massage establishment to employ any person who is not legally qualified to work in the United States.

I. Any individual that is not a patron, employee, or massage therapist of the massage establishment to be present in any area of the massage establishment identified as, or designated for, employees only or intended for patron services during operating hours.

J. Reserved.

K. Any massage establishment, employee, or independent massage therapist, or other person to use the massage establishment premises as a residence or sleeping quarters.

L. Any massage establishment, employee, independent contractor, or other person acting on behalf of any of the foregoing to fail to allow any agents or officers of the division, code enforcement, police department or state or county regulatory agencies access to the premises for administrative inspections or to hinder such representative while performing such inspection.

M. Any massage establishment owner or manager in charge to fail to report to the division any arrest that occurs on the premises of the massage establishment of which it has actual or constructive knowledge, within three calendar days of the arrest, regardless of whether the person arrested is an employee, patron or independent massage therapist, if the arrest is related to activities that occurred on the premises of the massage establishment.

N. Subsections F and G shall not apply in cases where the massage establishment is located within a facility such as, but not limited to a hotel, resort hotel, athletic club, etc. and where gaming or alcohol is legally permitted. In such cases, the prohibition of alcoholic beverages and gaming shall only apply to the area of the facility dedicated to the use of the massage establishment.

(Ord. No. 3301, § 3, 10-20-2015)

4.84.160 Sale or transfer or change of location.

A. No license for an independent massage therapist may be sold or transferred. This subsection is not intended to prohibit the sale of client lists of a massage therapist.

B. No independent massage therapist may relocate to another location within the city without first applying for a change of location with the division and receiving all necessary approvals. The new location must have a conditional use permit issued from the community development and services department allowing for massage therapy to be provided at that location.

C. No massage establishment licensee shall move the business to a place other than the location stated on the massage establishment license, or conduct business at any location other than the location stated on the massage establishment license and conditional use permit. A change of location application must be made to the division by the owner of any massage establishment who wishes to relocate the massage establishment to a new properly zoned location within the city prior to the operation of the massage establishment at the new location. A conditional use permit from community development and services department is required for the new location and the change is subject to city council approval.

D. No massage establishment license is transferable for any reason. A massage establishment license is conferred only to the licensee named therein. Upon the sale or transfer of any interest in a massage establishment, other than as described in section 4.84.110, the business license for that massage establishment shall be null and void. A new application pursuant to this chapter shall be made by any person who, by reason of such sale or transfer, desires to own or operate the establishment.

E. A massage establishment that has undergone a sale or transfer of ownership may continue to operate while the new owner(s) are going through the approval process provided that the new owner applies for and receives a temporary license in accordance with section 4.04.025. In order for the massage establishment to operate pursuant to this section, a massage establishment must have an approved manager in charge on the premises at all times the massage establishment is open for business. Allowing an applicant to continue to operate pending approval of the applicant's license shall in no way guaranty that an applicant will be granted a license if the applicant does not satisfy the license requirements or is otherwise disqualified from being licensed. Any costs or expenses incurred by an applicant prior to issuance of its license are solely at the applicant's risk.

(Ord. No. 3301, § 3, 10-20-2015)

4.84.170 Reserved.

4.84.180 Disciplinary action—License suspension, revocation or limitation.

Any activity by a massage establishment or its employees, agents, independent contractors, and representatives or a person previously found suitable, which is contrary to the public health, safety, morals, good order or general welfare of the residents of the city or that violates any city ordinance or state law or regulation is grounds for the issuance of criminal citations, notices of violation and civil penalties, and/or the suspension, limitation or revocation of a license. Disciplinary action may also be imposed for any of the following:

A. Doing or failing to do any act that would make one unqualified to obtain or hold a license under the provisions of this chapter or NRS Chapter 640C;

B. Operating a massage establishment or providing massage therapy services in an unlawful manner or in a manner detrimental to the public health, safety or welfare, or in violation of any of the provisions of this chapter or state law;

C. Knowingly failing to report or concealing from proper authority any information that the massage establishment, employee or independent massage therapist has a duty to report under this chapter or any statute, ordinance or regulation of the state or the city;

D. Becoming ineligible to hold a massage therapy or massage establishment license as set out in the statutes and ordinances of the state or city after a massage therapy or massage establishment license has been issued;

E. Misstating, misrepresenting or omitting any material fact in any application to obtain a license or conditional use permit;

F. Conduct on the part of any person, where such person engages in sexual activity, offers sexual activity or solicits sexual activity, from any person, at any time on the premises of the massage establishment;

G. Conduct on the part of any person that results in any person being charged with solicitation of prostitution on the premises of any massage establishment;

H. Possession of alcoholic beverages, or existence of any gaming activity, in the massage establishment or, in the case where the massage establishment is located within a facility licensed for alcohol or gaming such as a hotel, resort hotel, or athletic club, then in the area of such facility dedicated to the use of the massage establishment;

I. Transferring or attempting to transfer or assign a license issued under this chapter; or

J. Failure to comply with any of the requirements specified in this chapter or NRS Chapter 640C, as may be amended or renumbered.

(Ord. No. 3301, § 3, 10-20-2015)

4.84.190 Obtaining a license after revocation—Prohibition.

No massage establishment license shall be granted, and any existing massage establishment license may be revoked, limited or suspended, with respect to any person whose business license, massage establishment license, massage therapy license or other similar license was revoked, limited or suspended in any jurisdiction, for the period of two years following the date of such revocation or suspension. The prohibition on granting a license, and the potential revocation, limitation or suspension of an existing license, shall also apply to the spouse, family member, or business associate of, or any person who holds more than a ten percent ownership interest in, such business whose license was suspended, limited or revoked.

(Ord. No. 3301, § 3, 10-20-2015)

4.84.200 Enforcement authority.

A. The director, agents or officers of the division, code enforcement, the police department, or any state or county regulatory agency shall be entitled to enforce the provisions of this chapter.

B. Such enforcement power shall include, but not be limited to, the power to issue notices of violation of this chapter, impose civil penalties up to $500.00 for each violation for each day or any portion thereof during which the violation occurs or continues, declare nuisances, serve notices of correction, issue red tag/stop work orders, initiate suspension or revocation of licenses pursuant to chapter 4.06, and to perform all other duties relating

to licensing enforcement as provided in this title. In addition, those persons identified in subsection A of this section shall have the authority to prepare, sign and serve misdemeanor citations pursuant to NRS Chapter 171, as may be amended or renumbered, to enforce the provisions of this title.

C. The director or his designee shall also have the authority to issue a "red tag/stop work order" for the following reasons:

1. No manager in charge present on the premises during business hours;

2. No massage therapist on the premises;

3. Refusal of the manager in charge, employee or other person to allow agents or officers of the division, code enforcement, the police department, or any state or county regulatory agency onto the premises for inspection to verify compliance with the provisions of this chapter;

4. Occurrence of a crime on the premises of the massage establishment related to the operations of the massage establishment or actions of an employee or independent massage therapist;

5. Existence of a threat to the public health, safety, welfare or morals;

6. A third violation of the provisions of this chapter by any employee, independent massage therapist or the massage establishment, or any combination thereof, in a six-month period;

7. Failure to comply with a plan of correction established between the division and the massage establishment or massage therapist during the time provided for in the plan of correction; or

8. Upon notice to the division or city from the board or other governmental agency of discipline against a massage establishment or its employees or independent massage therapists if the discipline is an indication that continued operation of the massage establishment or provision of massage therapy services may be a threat to the safety, welfare, health or morals of the city.

The "red tag/stop work order" shall direct the massage establishment employees, independent massage therapist, or unlicensed person performing massage to cease and desist from the activity, or activities designated in the "red tag/stop work order". The "red tag/stop work order" shall be given in writing by the director or his designee to the massage establishment, its agents, or employees, or to unlicensed persons providing services in violation of this chapter, clearly stating the violation(s) being committed. The director or his officers shall affix a copy of the "red tag/stop work order" to the public entrance(s) of the massage establishment in a prominent location. It shall be unlawful for any person to remove the "red tag/stop work order" from the public entrance(s) of the establishment without the express written authorization of the director or one of his officers.

D. Any violation of a "red tag/stop work order," issued pursuant to subsection C of this section, shall be deemed a separate violation of this chapter and shall be cause to suspend, limit and/or revoke the massage establishment or independent massage therapist license. A notice of violation and civil penalty may be issued for each violation, for each and every day of continued violation.

E. When, in the course of enforcing the provisions of this title relative to emergency suspension or a "red tag/stop work order," the division shall have the authority to lock and seal the premises where the massage therapy services are being provided.

F. Any agents or officers of the division, code enforcement, the police department, or any state or county regulatory agency shall have access to every part and portion of the massage establishment or location where massage services are being provided at any time when a massage establishment is open for the transaction of business or massage therapy services are being provided, and after regular business hours if business is still being conducted, for the purpose of determining compliance with the provisions of this chapter and title 19 of the development code.

G. Failure of the director or agents or officers of the division, code enforcement, the police department, or any state or county regulatory agency to discover violations and/or take action to enforce any provision of this chapter shall not constitute a forfeiture or waiver of such person's right to take appropriate action at any time thereafter. Nothing in this chapter shall be construed as requiring the director or agents or officers of the division, code enforcement, the police department, or any state or county regulatory agency to impose any penalty on a massage establishment or massage therapist, if the division, police department, or relevant agency deems the matter giving rise to a notice of violation has been corrected.

H. This section is supplemental to, and not exclusive of, enforcement measures available to other officials regarding this title.

(Ord. No. 3301, § 3, 10-20-2015)

Chapter 4.85 REFLEXOLOGY*

Sections:

4.85.010 Definitions.
4.85.015 Statement of legislative intent—Regulation.
4.85.020 Exemptions.
4.85.025 Owner-Employees.
4.85.030 Unlawful to operate without a license—License application requirements.
4.85.033 Investigation fees—Required—Fees charged.
4.85.035 License—Location subject to conditional use permit and massage establishment license if massage performed at location.
4.85.040 Minimum educational and certification requirements.
4.85.045 License—Changes in ownership.
4.85.050 License issuance.
4.85.055 Advertising.
4.85.060 Operating requirements.
4.85.065 Facilities and clothing requirements.
4.85.070 Unlawful acts.
4.85.075 License not transferable—Change of location.
4.85.080 Outcall treatment.
4.85.085 Reserved.
4.85.090 Reserved.
4.85.100 Disciplinary action—License suspension, revocation or limitation.
4.85.110 Obtaining a license after revocation—Prohibition.
4.85.200 Enforcement authority.

4.85.010 Definitions.

The following definitions are in addition to the definitions set forth in chapter 4.04 of this title. Unless the context clearly indicates a different meaning, the definitions below shall govern the construction, meaning, and application of words and phrases used in this chapter:

Advertising means the intentional placement or issuance of any sign, card or device, or the permitting or allowing of any sign or marking on a motor vehicle, in any building, structure, newspaper, magazine, handout, flyer or other publication, any airway transmission, on the Internet or in any directory under the listing of "reflexologist" or "reflexology."

Ancillary employee means any employee of a reflexology establishment or of an independent reflexologist that is not a reflexologist.

***Editor's note—**Ord. No. 3304, §§ 2, 3, adopted October 20, 2015, repealed and replaced chapter 4.85 in its entirety to read as herein set out. Formerly, chapter 4.85, §§ 4.85.010—4.85.200, pertained to similar subject matter, and derived from Ord. No. 2844, § 4, adopted January 19, 2010; Ord. No. 2947, §§ 5, 6, adopted December 6, 2011, and Ord. No. 3068, § 1, adopted October 1, 2013.

Control means the power to direct or cause the direction of the management and policies of a reflexology establishment, reflexologist, employee or agent in any way.

Employee means any of the following: (i) a reflexologist employed by a reflexology establishment to provide reflexology, but who is not an independent contractor of the reflexology establishment; (ii) a manager in charge and (iii) an ancillary employee.

Independent reflexologist means (i) a reflexologist who is a sole practitioner or independent contractor; or (ii) a person otherwise providing reflexology services as described in this chapter who is not an employee of a reflexology establishment.

Outcall reflexology means any reflexology performed by a reflexologist or independent reflexologist upon a patron at a location other than a location licensed as a reflexology establishment.

Patron means any person who receives reflexology services at a reflexology establishment or from an independent reflexologist.

Reflexologist means a person who uses special pressure techniques on the reflexes in the human feet, hands, and ears and who has studied the principles of reflexology, anatomy and physiology generally included in a regular course of study of reflexology. While the provisions of this chapter apply to anyone performing reflexology or operating a reflexology establishment, regardless of whether such person or place is licensed as such, nothing in this chapter shall be construed to allow the practice of reflexology without all appropriate licenses and permits. Reflexologist means both independent reflexologists and reflexologists who are employees of a reflexology establishment unless otherwise specified.

Reflexology means the application of specific pressure by the use of the licensed practitioner's hands, thumbs, and fingers to reflex points in the client's hands, feet, or ears using alternating pressure, and such techniques as thumb walking, finger walking, hook and back up, and rotation on a reflex. This practice does not involve the removal of any clothes other than shoes and socks.

Reflexology establishment means any fixed place of business where any individual, firm, association, partnership, corporation, or combination of individuals, engages in, conducts, carries on, or permits to be engaged in or conducted, for money or any other consideration, any reflexology services. For purposes of this chapter, including, without limitation, responsibility for compliance with the provisions of this chapter and penalties for failure to so comply, the term shall include the owners, managers, members, partners, directors, or shareholders of the business entity operating as a reflexology establishment.

Sexual activity means:

1. Sexual intercourse;

2. Examining or touching any specified anatomical area of a patron;

3. Rubbing against a patron for sexual gratification;

4. Kissing a patron;

5. Hugging, touching, fondling or caressing a patron in a romantic or sexual nature;

6. Removing the patron's clothing, except as may be necessary in a medical emergency;

7. Dressing or undressing in the presence of a patron;

8. Showing a patron sexually explicit photographs or videos;

9. Encouraging masturbation or any other sex act in the presence of the reflexologist, an employee of the reflexology establishment or any other person;

10. Discussing the sexual history, preference or fantasies of the reflexologist in the presence of a patron;

11. Masturbation or any other sex act by the reflexologist or an employee of the reflexology establishment or any other person in the presence of the patron;

12. Any behavior, gesture or expression by a reflexologist or an employee of a reflexology establishment that may reasonably be interpreted as seductive or sexual;

13. Making statements regarding the patron's body, appearance, sexual history or sexual orientation other than for legitimate health care purposes;

14. Sexually demeaning behavior including any verbal or physical contact which may reasonably be interpreted as demeaning, humiliating, embarrassing, threatening or harming a patron; or

15. Photographing or filming the body or any body part of a patron.

Specified anatomical area means the human genitals, pubic region, anus, or perineum of any person, or the breasts of a female.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.015 Statement of legislative intent—Regulation.

The public health, safety, morals and welfare of the inhabitants of the city require the regulation and control of all persons engaged in the business of reflexology. All such persons shall be licensed in order to help protect the public health, safety and general welfare of the residents of the city and to safeguard the public.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.020 Exemptions.

This chapter does not apply to the activities or services of physicians, chiropractors, physical therapists, cosmetologists, registered nurses, or members of other professions licensed, certified, or registered by the state who may, on occasion, apply pressure to the reflex points in the hands, feet, and ears in the course of their work, so long as the activities or services are provided in connection with the practice for which the person is licensed, certified, or registered.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.025 Owner-Employees.

A. Each reflexology establishment shall be operated under the lawful control of a manager in charge as defined in section 4.85.060. Each reflexologist working at a reflexology establishment who is not an actual owner or independent contractor of the establishment shall be deemed an employee of said establishment.

B. Every reflexology establishment and manager in charge shall be responsible for the conduct of the reflexology establishment employees, agents, representatives, or other persons, who are on the premises of the reflexology establishment regardless of whether such person is providing reflexology services, and the reflexology establishment, reflexologist and/or manager in charge shall be subject to disciplinary action including, notices of violation, civil penalties, and criminal citations, and the reflexology establishment license shall be subject to suspension, revocation or limitation, based upon such conduct, regardless of any actual or constructive knowledge of the conduct by the reflexology establishment or manager in charge. In any license suspension, limitation, or revocation proceedings, the fact that the reflexology establishment did not have actual knowledge of the events complained of shall be no defense and every reflexology establishment accepts his or her license subject to said condition.

C. Any reflexology establishment that contracts with reflexologists as independent contractors for the purpose of having the reflexologist perform reflexology shall be jointly responsible for the conduct and business operations of the independent reflexologist. Any misconduct by the independent reflexologist shall be attributable to both the independent reflexologist and the reflexology establishment and shall subject the reflexology establishment, manager in charge and independent reflexologist to disciplinary action including notices of violation, civil penalties, and criminal citations, and shall subject the reflexology establishment to suspension, limitation and/or revocation of the reflexology establishment license based upon the conduct of the independent reflexologist, regardless of any actual or constructive knowledge of the conduct by the reflexology establishment or manager in charge. In any license suspension, limitation, or revocation proceedings, the fact that the

reflexology establishment or manager in charge did not have actual knowledge of the events complained of shall be no defense and every reflexology establishment accepts its license subject to said condition.

D. Reflexology establishments shall train their employees and shall ensure their independent reflexologists have training regarding how to address patrons who initiate, request or suggest sexual activity.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.030 Unlawful to operate without a license—License application requirements.

It shall be unlawful for any person to operate a reflexology establishment, or provide services as a reflexologist, within the city without first having obtained a valid reflexology establishment or reflexologist license as herein required and paying the license fees as set forth in chapter 4.05.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.033 Investigation fees—Required—Fees charged.

Any person applying for a reflexology establishment license or a reflexologist license is required to submit to the city an investigation fee as set forth in chapter 4.03, for each person required to be investigated. Persons who are required to be investigated include, without limitation, reflexologists and, with respect to reflexology establishments, owners, managers in charge, officers, directors, managers, members, and partners.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.035 License—Location subject to conditional use permit and massage establishment license if massage performed at location.

All applicants for a license for a reflexology establishment that will be located within the city and that will also provide massage therapy (as that term is defined in chapter 4.84) shall submit to the community development and services department an application, in the manner specified by that department, for a conditional use permit in accordance with title 19 of the development code. Disciplinary actions imposed under this chapter or chapter 4.84 in connection with any massage therapy services provided may include revocation of the conditional use permit.

Any reflexology establishment that wishes to offer massage therapy services pursuant to chapter 4.84 must separately obtain a massage therapy establishment license.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.040 Minimum educational and certification requirements.

Applicants for a reflexologist license shall submit the following at the time of application:

A. A diploma or certification for the practice of reflexology, issued by a duly licensed school of reflexology or massage therapy, the curriculum of which includes at least 110 hours of instruction, covering reflexology theory, history, and hands on work; anatomy and physiology correlated to reflexology; anatomy and physiology specifically focused on the study of the lower leg and foot; business practice which involves ethics and business standards and knowledge of local and state laws and ordinances pertaining to the practice of reflexology; and 90 hours of practicum; or

B. Certification from an independent national reflexology testing entity which is not aligned with any school, training program, or membership.

(Ord. No. 3304, § 3, 10-20-2015)

4.85.045 License—Changes in ownership.

In the case of a corporation, partnership, association, limited liability company, or any other form of ownership of a reflexology establishment other than a sole proprietor, any and all changes in the officers, partners, managers, members or directors of such legal entity shall be reported to the division within 30 days of the change. Any new officers, partners, managers, members, or directors shall be required to pass the investigation and pay the related fees therefore in accordance with chapter 4.03. Failure of any of the aforementioned persons to pass the investigation or pay the fees may result in revocation, suspension, or limitation of the reflexology establishment license.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.050 License issuance.

Upon receipt of the results of the background investigation required by section 4.85.033 from the police department, the director will make a determination on the finding of suitability of the applicant for a reflexology establishment license. The division will submit the recommendation for approval or denial of the application for a reflexology establishment license to the city council for consideration. All license applicants are required to submit an affidavit or declaration, on a form provided by the division, to the city council at the time the city council considers whether to approve or deny the license affirming their willingness to abide by the provisions of this chapter. If the applicant is approved by the city

council, the division may be directed to issue the license; provided, however, that all other conditions, restrictions, payment of fees, and compliance with all applicable state statutes and city ordinances have been met.
(Ord. No. 3623, § 1, 9-18-2019; Ord. No. 3304, § 3, 10-20-2015)

4.85.055 Advertising.

A. No person shall advertise that such person provides services as a reflexologist operating in the city unless, in the case of a natural person, the person is licensed by the city as a reflexologist, and in the case of a business, is licensed by the city as a reflexology establishment.

B. No reflexology establishment or reflexologist shall place, publish or distribute or cause to be placed, published or distributed any advertisement, picture, or statement which is known or, through the exercise of reasonable care, should be known to be false, deceptive or misleading or which would reasonably suggest to prospective patrons that sexual stimulation or sexual gratification will be provided in order to induce any person to purchase or utilize any reflexology services of the reflexology establishment or reflexologist.

C. All advertising by a reflexologist must include his or her legal name, license number, if any, and the name of the reflexology establishment where he/she performs reflexology services. All advertising by a reflexology establishment must include the business name and license number(s) of the reflexology establishment.

D. In the event a reflexology establishment or manager in charge becomes aware of any advertising that: (i) directs the viewer of the advertisement to the reflexology establishment, either by name or address; and (ii) violates the provisions of this section, the reflexology establishment or manager in charge shall take reasonable steps to have such advertising removed or taken down, or in the case of flyers or handbills, shall cease distribution thereof. With respect to internet advertising or posting, reasonable efforts shall include, but not be limited to, requesting the host of the website on which the advertising is located, or the person posting the advertisement, to remove or delete the advertisement or post.

E. Two or more violations of section 4.85.055 within a six-month period may subject the reflexology establishment or reflexologist license to suspension, limitation, or revocation pursuant to chapter 4.06 and the reflexology establishment, reflexologist, manager in charge or other party responsible for the advertising to civil penalties as provided for in chapter 4.07.
(Ord. No. 3304, § 3, 10-20-2015)

4.85.060 Operating requirements.

The operating requirements of all reflexology establishments licensed pursuant to this chapter are as follows:

A. A person designated as the manager in charge shall be on the premises at all times of operation. The manager in charge shall also be responsible for accepting citations, written correspondence, and any other communications from the city. The manager in charge shall be a key employee subject to the requirements of section 4.04.180.

A reflexology establishment may have more than one manager in charge provided, however, that: at least one manager in charge must be present on the premises of the reflexology establishment at all times while the reflexology establishment is open for business. Each person identified as a manager in charge shall be required to obtain an approval letter issued by the division which shall not be issued until the person meets the following requirements to the satisfaction of the director:

1. The manager in charge shall be at least 18 years old;

2. The manager in charge shall be a citizen of the United States or a non-citizen eligible to work in the United States, with proper documentation of same;

3. The manager in charge shall not be a registered sex offender or required by law to register as a sex offender;

4. The manager in charge shall not, within ten years before requesting an approval letter, have been convicted of (or offer a plea of nolo contendere to) an offense in a case involving sexual misconduct with a child, including sexual abuse, sexual assault, sexual conduct, sexual molestation, or sexual exploitation;

5. The manager in charge shall not, within ten years before requesting an approval letter, be convicted of prostitution (or offer a plea of nolo contendere), or of operating an unlawful prostitution enterprise;

6. The manager in charge shall not, within ten years before requesting an approval letter, be convicted of (or plead nolo contendere to) a felony or crime of moral turpitude not otherwise specified herein; and

7. The record of the manager in charge shall be free of all reasons to deny, suspend, limit or revoke an application under this section, section 4.04.150, and section 4.85.100 of this title.

B. A list of services available and prices for all services shall be prominently posted in the reception area in a location available to all prospective customers and shall be written in English.

C. Every reflexology establishment, and all licensed reflexologists, shall post the license required by this chapter in a prominent place in the reception area of the establishment.

D. The manager in charge shall be responsible for ensuring that all persons performing reflexology at the reflexology establishment have a valid, unexpired reflexology license issued by the division. The manager in charge shall maintain a list of all employees and independent contractors working at the reflexology establishment each day and their license numbers. Such list shall be available for viewing by agents or officers of the division, code enforcement, police department or state or county regulatory agencies at all times the establishment is open for the conduct of business.

E. All reflexologists, employees, and managers in charge shall at all times while working in a reflexology establishment or providing reflexology services, either carry on their person or otherwise have present at the location where they are working, government-issued identification. It shall be unlawful for any employee, independent reflexologist or manager in charge to refuse to, or otherwise fail to, present his or her identification to agents or officers of the division, code enforcement, police department or state or county regulatory agencies if he or she is asked to do so during business hours.

F. It is unlawful for any person in a reflexology establishment to place his/her hand or hands upon, to touch with any part of his/her body, or to fondle in any manner, a specified anatomical area of any patron.

G. All reflexology establishments shall be responsible for ensuring that their establishment remains closed to the public, with no signage indicating the establishment is open for any purpose, if at any time an appropriately licensed reflexologist is not on the premises to perform reflexology services.

H. No person shall operate a reflexology establishment or administer reflexology services for money or any other consideration between the hours of 10:00 p.m. and 8:00 a.m.

I. If an agent or officer of the division, code enforcement, police department or state or county regulatory agency, while on the premises of a reflexology establishment, observes that an establishment has failed to comply with any of the above-listed operating requirements, the agent may take action as described in section 4.85.200 of this chapter.

(Ord. No. 3304, § 3, 10-20-2015)

4.85.065 Facilities and clothing requirements.

A. Every portion of the reflexology establishment, and all chairs, towels, water basins and seating areas used for reflexology services shall be kept clean and operated in a sanitary condition.

B. Exterior windows of the reflexology establishment shall not be tinted, covered or blocked so as to impede a view inside the establishment from the exterior. Tint shall be no lower than 50 percent with a maximum of ten percent exterior reflectance not including the glass.

C. All front reception, hallway and front exterior doors (except back or rear exterior doors used only for employee entrance to and exit from the reflexology establishment and patron restroom doors) shall be kept unlocked during business hours. No electronic, automatic, combination, or other locking device may be utilized on any interior door which is required to remain unlocked.

D. Reflexology establishments shall only provide or permit reflexology services in an unenclosed area within the reflexology establishment. If walls, barriers, or structures, whether temporary, movable or permanent, are used to separate or divide portions of the reflexology establishment, such wall, barrier or structure shall not be taller than three feet in height, as measured from the finished floor of the reflexology establishment.

E. All reflexology establishments shall ensure that all employees, independent reflexologists, agents or representatives are completely clothed at all times while on the premises of a reflexology establishment, regardless of whether such person is providing reflexology services. Outer garments must be clean, must not be torn, must be opaque and must be in good repair.

For purposes of this subsection, the term "completely clothed" means:

1. With respect to the upper body:

a. For women, wearing undergarments;

b. For men and women, wearing either a blouse or shirt with sleeves and which shall cover the entire torso from the neck to the waist.

2. With respect to the lower body for both men and women, wearing appropriate undergarments plus either pants or a skirt which must cover from the waist down to a point at least two inches above the knee.

3. Undergarments shall not be exposed to a patron or other person on the premises of a reflexology establishment at any time.

(Ord. No. 3304, § 3, 10-20-2015)

4.85.070 Unlawful acts.

It shall be unlawful for:

A. A reflexologist to use lotions, creams, or mechanical devices in the application of reflexology.

B. A reflexologist to diagnose or treat for specific diseases, practice spinal or other joint manipulations, prescribe or adjust medication, or prescribe or administer vitamins.

C. Reserved.

D. Any individual that is not a customer, employee, independent contractor or owner of the licensed establishment to be present in any area of the business identified as designated for employees only or intended for patron services.

E. Any person to possess any alcoholic beverages on the premises of any reflexology establishment.

F. Gaming (as defined in this title) to occur on the premises wherein the practice of business of reflexology is conducted.

G. Subsections E and F shall not apply in cases where the reflexology establishment is located within a facility such as, but not limited to, a hotel, a hotel/gaming establishment, athletic club, etc. where alcohol or gaming are legally permitted. This prohibition of alcoholic beverages and gaming shall only apply to the area of the primary facility dedicated to the use of the reflexology establishment.

H. A reflexology establishment, employee, independent reflexologist, agent, representative or patron thereof, to engage in or solicit sexual activity from any person, at any time within a reflexology establishment, whether or not the sexual activity occurs during the course of performing reflexology on a person, even if the person consents to the sexual activity. It shall also be a violation if the, employee, independent reflexologist, agent, or representative, initiates sexual activity with or encourages sexual activity from a patron, regardless of whether the sexual activity actually occurs.

I. Any employee, owner or any other person to use the reflexology establishment premises as a residence or sleeping quarters.

J. Any person affiliated with the reflexology establishment to fail to allow any agent or officers of the division, code enforcement, police department or state or county regulatory agency access to the premises for administrative inspections or to hinder such agent or officer while performing such inspection.

K. A reflexology establishment to employ any person who is not legally qualified to work in the United States.

L. Any reflexology establishment owner or manager in charge to fail to report to the division any arrest that occurs on the premises of the reflexology establishment of which it has actual or constructive knowledge, within three calendar days of the

arrest, regardless of whether the person arrested is an employee, independent contractor, patron or other person if the arrest is related to activities that occurred on the premises of the reflexology establishment.

(Ord. No. 3304, § 3, 10-20-2015)

4.85.075 License not transferable—Change of location.

A. No reflexology establishment license is transferable for any reason. A reflexology establishment license is conferred only to the licensee named therein. Upon the sale or transfer of any interest in a reflexology establishment, other than as described in section 4.85.045, the business license for that reflexology establishment shall be null and void. A new application pursuant to this chapter shall be made by any person who, by reason of such sale or transfer, desires to own or operate the establishment.

B. A reflexology establishment that has undergone a sale or transfer of ownership may continue to operate while the new owner(s) are going through the approval process provided that the new owner applies for and receives a temporary license in accordance with section 4.04.025. In order for the reflexology establishment to operate pursuant to this section, a reflexology establishment must have an approved manager in charge on the premises at all times the reflexology establishment is open for business. Allowing an applicant to continue to operate pending approval of the applicant's license shall in no way guaranty that an applicant will be granted a license if the applicant does not satisfy the license requirements or is otherwise disqualified from being licensed. Any costs or expenses incurred by an applicant prior to issuance of its license are solely at the applicant's risk.

(Ord. No. 3304, § 3, 10-20-2015)

4.85.080 Outcall treatment.

There shall be no outcall reflexology services. There shall be no outcall massage therapy services provided on the premises of a reflexology establishment.

(Ord. No. 3304, § 3, 10-20-2015)

4.85.085 Reserved.

4.85.090 Reserved.

4.85.100 Disciplinary action—License suspension, revocation or limitation.

Any activity on the part of a reflexologist or reflexology establishment, manager in charge, or the employees, agents, or representatives or any of the foregoing, which is

contrary to the public health, safety, morals, good order, or general welfare of the residents of the city or that violates any city ordinance, state law or regulation may be grounds for the issuance of criminal citations, notices of violation, civil penalties, and/or the suspension, limitation or revocation of the relevant license or suitability classification. Disciplinary action may also be imposed for any of the following:

A. Doing or failing to do any act which would make one unqualified to hold a license under the provisions of this chapter;

B. Performing reflexology or operating a reflexology establishment in an unlawful manner or in a manner detrimental to the public health, safety or welfare, or in violation of any of the provisions of this chapter;

C. Knowingly failing to report or concealing from proper authority any information which it is the licensee's duty to supply under this chapter or any statute, ordinance or regulation of the state or the city;

D. Becoming ineligible to hold a reflexology license as set out in the statutes and ordinances of the state or city after a reflexology license has been issued;

E. Making a misrepresentation of a material fact in his application to obtain a license; or

F. Conduct on the part of any person that results in a person being charged with solicitation of prostitution on the premises of any reflexology establishment, within the preceding three-year period.

(Ord. No. 3304, § 3, 10-20-2015)

4.85.110 Obtaining a license after revocation—Prohibition.

No reflexology establishment or reflexologist license shall be granted, and any existing reflexology establishment or reflexologist license may be revoked, suspended, or limited, with respect to any person whose reflexologist, reflexology establishment, business or other similar license was revoked or suspended in any jurisdiction, for the period of two years following the date of such revocation or suspension. The prohibition on granting a license, or revoking or suspending an existing license, shall also apply to the spouse, family member, or business associate of, or any person who holds more than a ten percent ownership interest in, such business whose license was revoked or suspended.

(Ord. No. 3304, § 3, 10-20-2015)

4.85.200 Enforcement authority.

A. The director and agents or officers of the division, code enforcement, police department or state or county regulatory agencies shall enforce the provisions of this chapter.

B. Such enforcement power shall include, but not be limited to, the power to issue notices of violation of this chapter and civil penalties up to $500.00 for each violation for each day or any portion thereof during which the violation occurs or continues, and the power to serve notices of correction, issue orders of suspension or limitation, declare nuisances, prohibit unlawful business activities, prevent activities in contravention of the licensing ordinances, initiate suspension, revocation or limitation of licenses pursuant to chapter 4.06 and to perform all other duties relating to licensing enforcement as provided in this title. In addition, those persons identified in subsection A of this section shall have the authority to prepare, sign and serve misdemeanor citations pursuant to NRS Chapter 171, as may be amended or renumbered, to enforce the provisions of this title.

C. The director or his designee shall have the authority to issue a "red tag/stop work order" for the following reasons:

1. No manager in charge is present on the premises during business hours;

2. No licensed reflexologist is on the premises during business hours;

3. Refusal of the manager in charge, owner or employee to allow agents or officers of the division, code enforcement, police department or state or county regulatory agencies onto the premises for inspection to verify compliance with the provisions of this chapter;

4. Occurrence of a crime on the premises;

5. Existence of a threat to the public health, safety, welfare or morals;

6. A third violation of this chapter by any reflexologist, employee or the reflexology establishment (or combination thereof) in a six-month period;

7. Failure to comply with a plan of correction established between the division and the reflexology establishment or reflexologist during the time provided for in the plan of correction; or

8. Upon notice from a governmental agency of discipline against the reflexology establishment, its employees or independent reflexologists that indicate continued operation may be a threat to the safety, welfare, health or morals of the city.

The "red tag/stop work order" shall direct the unlicensed person, the reflexologist or reflexology establishment or its or their employees that are providing services in violation of this chapter to cease and desist from the activity or activities designated in the order. The "red tag/stop work order" shall be given in writing by the director or its designee to the reflexology establishment, its manager in charge, agents, independent reflexologists or employees, clearly stating the violation(s) being committed. The director or its designee shall affix a copy of the "red tag/stop work order" on the public entrance(s) of the

establishment in a prominent location. It shall be unlawful for any person to remove the "red tag/stop work order" from the public entrance(s) of the establishment without the express written authorization of the director or its designee.

D. Any violation of a "red tag/stop work order" in subsection C of this section shall be deemed a separate violation of this chapter and shall be cause to suspend, limit and/or revoke the reflexology establishment or reflexologist license and a citation and/or civil penalty may be issued for each violation, for each and every day of continued violation.

E. When, in the course of enforcing the provisions of this title relative to emergency suspension or a "red tag/stop work order," the division shall have the authority to lock and seal the premises where the reflexology services are being provided.

F. Any agents or officers of the division, code enforcement, police department or state or county regulatory agencies authorized pursuant to this chapter, chapter 4.04 or any state statute or regulation shall have access to every part and portion of the premises on which reflexology services are provided at any time when such business is open for the transaction of business, and after regular business hours if business is still being conducted, for the purpose of determining that the provisions of this chapter are being complied with. It shall be unlawful for any person to fail to allow any such agents or officers of the division, code enforcement, police department or state or county regulatory agencies access to the premises or to hinder such representative in any manner.

G. Failure of the director or the officers or agents of the division, code enforcement, police department or state or county regulatory agency to discover violations and/or take action to enforce any regulation shall not constitute a forfeiture or waiver of the right to take appropriate action at any time thereafter. Nothing in this chapter shall be construed as requiring the officers or agents of the division, code enforcement, police department or any state or county regulatory agency to impose any penalty on a reflexology establishment or reflexologist, if the division deems the matter giving rise to a notice of violation has been corrected.

H. This section is supplemental to, and not exclusive of, enforcement powers available to other officials regarding this title.

(Ord. No. 3304, § 3, 10-20-2015)

Chapter 4.98 SALE AND DISPLAY OF NARCOTIC AND OTHER PARAPHERNALIA*

Sections:

4.98.010 Public nuisance.
4.98.020 Exemption for medical use of marijuana.
4.98.030 Minors—Excluded.
4.98.040 Sale and display rooms.

4.98.010 Public nuisance.

The distribution or possession for the purpose of sale, exhibition or display in any place of business from which minors are not excluded of equipment, devices, contrivances, instruments or paraphernalia used for smoking, injecting, ingesting, or otherwise introducing into the human body any controlled substance enumerated in NRS Chapter 453 or NRS Chapter 454 other than prescription drugs, is a public nuisance, and may be abated. This remedy is in addition to any other remedy provided by law, including the penalty provisions applicable for violation of the terms and provisions of this title.
(Ord. No. 3244, § 1, 1-6-2015)

4.98.020 Exemption for medical use of marijuana.

The provisions of this chapter are not applicable to paraphernalia as defined by NRS 453A.125, the sale, exhibition and display of which is only permitted by licensed medical marijuana dispensaries pursuant to the provisions in HMC subsection 4.116.070 B.9.
(Ord. No. 3244, § 1, 1-6-2015)

4.98.030 Minors—Excluded.

A. No owner, manager, proprietor or other person in any place of business selling or displaying for purpose of sale any equipment, device, contrivance, instrument or paraphernalia used for smoking, injecting, ingesting, or otherwise introducing into the human body any controlled substance enumerated in NRS Chapter 453 or NRS Chapter 454 other than prescription drugs, shall allow or permit any person under the age of 18 years to be, remain in, enter or visit such business.

***Editor's note—**Ord. No. 3244, § 1, adopted January 6, 2015, amended chapter 4.98 in its entirety to read as herein set out. Formerly, chapter 4.98, §§ 4.98.010—4.98.050 pertained to similar subject matter, and derived from Ord. No. 680, § 1(part), adopted in 1980 ; Ord. No. 727, § 1, adopted in 1980, and Ord. No. 1633, § 3, adopted in 1995.

B. A person under the age of 18 years shall not be, remain in, enter or visit any place of business used for the sale, or displaying for sale any equipment, devices, contrivances, instruments or paraphernalia used for smoking, injecting, ingesting, or otherwise introducing into the human body any controlled substance enumerated in NRS Chapter 453 or NRS Chapter 454 other than prescription drugs.
(Ord. No. 3244, § 1, 1-6-2015)

4.98.040 Sale and display rooms.

A person shall not maintain in any place of business to which the public is invited the display for sale, or the offering to sell equipment, devices, contrivances, instruments or paraphernalia used for smoking, injecting, ingesting or otherwise introducing into the human body any controlled substance enumerated in NRS Chapter 453 or NRS Chapter 454 other than prescription drugs, unless within a separate room or enclosure to which minors are excluded. A sign hall be posted at each entrance to such a room that states, in reasonably visible and legible words, that narcotic paraphernalia are being offered for sale in such a room, and minors are excluded.
(Ord. No. 3244, § 1, 1-6-2015)

Chapter 4.100 RESERVED*

*__Editor's note—__Ord. No. 3069, § 1, adopted October 1, 2013, repealed the former chapter 4.100, §§ 4.100.010—4.100.150 in its entirety, which pertained to vacation certificate business and derived from Ord. No. 684, § 1, adopted in 1980, and Ord. No. 1301, § 18, adopted in 1992.

Chapter 4.101 RESERVED*

***Editor's note—**Ord. No. 3245, § 1, adopted January 6, 2015, repealed the former chapter 4.101, §§ 4.101.010—4.101.370 in its entirety, which pertained to outcall promoter and outcall entertainer, and derived from Ord. No. 1435, § 1(part), adopted in 1993; Ord. No. 1462, § 1, adopted in 1994, and Ord. No. 2846, § 1, adopted January 19, 2010.
For provisions pertaining to similar subject matter, the user's attention is directed to chapter 4.110.

Chapter 4.102 VIDEO RENTAL STORES

Sections:

4.102.010 Definitions.
4.102.020 Unlawful to operate without license.
4.102.030 Video rental store and video rental kiosk regulations.

4.102.010 Definitions.

The following words and terms are in addition to the definitions set forth in chapter 4.04 of this title. Unless the context clearly indicates a different meaning, the definitions below shall govern the construction, meaning, and application of words and phrases used in this chapter.

Adult films are motion pictures, films, video cassettes, digital video discs, or compact discs that are distinguished or characterized by their emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas.

Specified anatomical areas is defined as: the human genitals, pubic region, anus, or perineum of any person, or the breasts of a female when less than completely and opaquely covered.

Specified sexual activities is defined as:

1. Human genitals in a state of sexual stimulation or arousal;

2. Masturbation, sexual intercourse, oral copulation, sodomy or bestiality, whether actual or simulated;

3. Fondling or other erotic touching, whether actual or simulated, of human genitals, pubic region, buttock or female breast;

4. Sadomasochism, whether actual or simulated;

5. Excretory functions, alone, as part of, or in connection with, any of the activities set forth in paragraphs (1), (2), (3), or (4) of this subsection.

Video rental kiosk means any machine that accepts coin, paper money, credit card, or other remuneration and is intended for use as a vending machine for sale or rental of video cassettes, digital video discs, compact discs, or digital video files to customers for noncommercial use.

Video rental store means an establishment that will or does derive its gross revenues from the sale or rental of motion pictures, films, video cassettes, digital video discs, compact discs, or digital video files to customers for noncommercial use.
(Ord. No. 3305, § 1, 11-3-2015; Ord. 800, 1983)

4.102.020 Unlawful to operate without license.

It is unlawful for any person to operate, conduct, carry on, or maintain a video rental store or video rental kiosk, as described in this chapter, without first having obtained a valid business license issued by the division in accordance with the licensing requirements as set forth in this title and paying license fees as set forth in section 4.05.010.
(Ord. No. 3305, § 1, 11-3-2015)

Editor's note—Ord. No. 3305, § 1, adopted November 3, 2015, amended section 4.102.020 in its entirety to read as herein set out. Formerly, section 4.102.020 pertained to business license requirements, and derived from Ord. No. 800, adopted in 1983, and Ord. No. 909, adopted in 1983.

4.102.030 Video rental store and video rental kiosk regulations.

A. It is unlawful for any adult films to be sold or rented to persons under the age of 18.

B. At no time may a video rental store licensed pursuant to this chapter have a significant portion of its stock and trade in adult films. A "significant portion of its stock and trade" exists where the store meets any one of more of the following criteria:

1. Greater than ten percent of the store's inventory consists of adult films; or

2. Greater than ten percent of the store's revenues derive from the sale or rental, for any form of consideration, of adult films; or

3. The store maintains greater than ten percent of its floor space for the display, sale, and/or rental of adult films (aisles and walkways used to access and purchase adult films shall be include in "floor space" maintained "for the display, sale, and/or rental of adult films"); or

4. Greater than ten percent of the store's advertising or interior business is for adult films.

Any adult films for sale or rental in a video rental store shall be stored either in a manner in which the specified anatomical areas and images depicting specified sexual activities will not be visible to the customers, or in a separate room completely segregated from the remainder of the store. The room utilized for the display of adult films must be separated from the remainder of the store by a solid barrier and no adult films displayed therein may be visible from any other part of the store or the entrance. No persons under the age of 18 years old shall be allowed in the separate room at any time.

C. It is unlawful for adult films to be displayed or offered for sale or rental from a video rental kiosk.
(Ord. No. 3305, § 1, 11-3-2015)

Chapter 4.110 SEXUALLY ORIENTED BUSINESSES*

Sections:

4.110.010 Definitions.
4.110.015 Classification.
4.110.020 Purpose and intent.
4.110.030 License required—Locational requirements—Use permit application review.
4.110.040 License—Application—Business premises required.
4.110.050 License—Application—Contents—General.
4.110.060 Reserved.
4.110.070 License—Application—Contents—Additional.
4.110.080 Exemptions.
4.110.090 Application fee required.
4.110.100 Investigation fees—Required—Fees charged.
4.110.110 No refund on investigation fee.
4.110.120 Withdrawal of application—Refund.
4.110.130 License—Corporation—Partnerships—Limited Liability Companies—Associations—Changes in membership.
4.110.140 License issuance or denial.
4.110.160 Required department inspections.
4.110.165 Key employee required.
4.110.170 Adult bookstores, adult novelty businesses, adult video stores, adult motion picture theaters, adult video arcades and commercial adult establishments—Building specifications—Regulations—Security required.
4.110.180 Nude modeling studio—Regulations.
4.110.190 Adult clubs—Regulations.
4.110.195 Escort and escort service—Outcall entertainer and outcall promoter regulations.
4.110.197 Escort service and outcall promoter—Records required.
4.110.200 False, deceptive or misleading advertising prohibited.
4.110.210 Actual deception unnecessary to create liability.
4.110.220 License fee.
4.110.230 Term of licenses.
4.110.240 Licensee responsible for the acts of employees.
4.110.250 Licensee subject to discipline: Denial—Nonrenewal—Suspension—Revocation—Limitation.
4.110.260 Alcoholic liquor not permitted.
4.110.270 Gambling not permitted.

***Editor's note—**Ord. No. 3246, § 1, adopted January 6, 2015, amended chapter 4.110 in its entirety to read as herein set out. Formerly, chapter 4.110, §§ 4.110.010—4.110.340 pertained to similar subject matter, and derived from Ord. No. 1434, § 1(part), adopted in 1993; Ord. No. 1463, § 1, adopted in 1994; Ord. No. 1659, § 1(part), adopted in 1996; Ord. No. 1673, § 1(part), adopted in 1996; Ord. No. 1704, § 1(part), adopted in 1996, and Ord. No. 2846, §§ 1—5, adopted January 19, 2010.

4.110.280 Reserved.
4.110.290 Conformity by businesses already in operation.
4.110.300 Audit and inspection.
4.110.310 Right of appeal.
4.110.320 Reserved.
4.110.330 Enforcement guidelines.

4.110.010 Definitions.

As used in this chapter, unless the context otherwise requires, or the words are otherwise defined below, the words and terms used in this chapter have the definitions set out in chapter 4.04.

Adult bookstore, adult novelty business, or *adult video store* means an establishment having as a significant portion of its stock in trade in any one or more of the following:

1. Books, film, digital video discs, compact discs, video cassettes, slides, magazines, and other periodicals or other written, oral, or visual representations that are distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas; or

2. Instruments or devices that are designed for or marketed primarily for stimulation of human genital organs or for sadomasochistic use or abuse of self or others.

A "significant portion of its stock in trade" exists where the establishment maintains greater than 30 percent of its floor space for the display, sale, and/or rental of said items.

Adult club means a public or private establishment, which may charge admission for entrance, that regularly features nude or topless entertainers, bottomless entertainers, strippers, exotic dancers, or other live performances that are distinguished or characterized by the exposure of specified anatomical areas or that advertises, or holds out to the public that adult entertainment is provided or advertises or implies that sensual or sexual entertainment is provided, and, that may operate in the manner of a tavern, with the exception that no alcoholic beverages as defined in HMC chapter 4.36 are served or permitted. Typical production shows offered by resort hotels as defined in HMC chapter 4.32 that include topless entertainers shall not be considered an adult club provided that a separation and/or barrier that prevents physical contact between performers and customers is maintained at all times during each performance.

Adult motion picture theater means an enclosed building, or a portion thereof, used for presenting motion pictures, films, video cassette, compact disc or digital video disc recordings, slide photographs, or other motion or still pictures, that are distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.

Adult video arcade means any establishment, or any portion thereof, containing any manually operated, coin or slug operated, or electrically or electronically operated or controlled, still, motion picture, film, compact disc, digital video disc, or video cassette machines, projectors, players, or other image producing devices that are maintained to display images to one or more persons per machine or per viewing room at any one time, and where the images so displayed are distinguished or characterized by an emphasis on depicting or describing sexual conduct or specified anatomical areas.

Attendant means a natural person, who is employed by or who received any monetary consideration from an adult club for soliciting the sale or purchase of any product or service, including but not limited to beverages, and/or who collects entry fee, admission or cover charge.

Commercial adult establishment means any establishment other than an adult club that provides the performance of any lawful service, or any other lawful business activity, profession or calling, to include, but not be limited to, car washes, cosmetology or barber services, maid services, food services, and that promotes to the public through advertising, either, written, oral or otherwise, that their services, professions or callings are to be performed in clothing such as, but not limited to, nude, topless, lingerie, g-strings, halters, bikinis, or other such attire.

Escort means any person who, for any form of consideration or gratuity, or no fee, dates, socializes, visits, consorts with or accompanies, or offers to date, consort, socialize, visit or accompany another or others to or about social affairs, entertainment or places of amusement, or within any place of public or private resort or any business or commercial establishment or any private quarters. This definition shall not be construed to include persons who provide business or personal services such as licensed private nurses, aides for the elderly or persons with disabilities, social secretaries or similar service personnel whose relationship with their patron is characterized by a bona fide contractual relationship having a duration of more than 12 hours and who provide a service not principally characterized as dating or socializing. This definition shall not also be construed to include persons providing services such as singing telegrams, birthday greetings or similar activities characterized by appearances in a public place, contracted by a party other than the person for whom the service is being performed and of a duration of no longer than one hour.

Escort service means an individual or entity, which, for any form of consideration or gratuity, or for no fee, furnishes or offers to furnish escorts, or provides or offers to introduce patrons to escorts.

Film, compact disc, digital video disc, video cassette or other media viewing device means, but is not limited to, any digital, electric, electronic, mechanical, magnetic, optical, laser, holographic, virtual reality, or other technology that, through a controlled viewing or

projection device, produces a controlled visible image that is either still or in motion, to patrons, the temporary use of which is contingent upon the payment of some consideration and which use is to occur upon the premises.

Fondle or *caress* means the conduct or affectionate touching that is intended to sexually arouse (may include "sexual conduct").

Governmental offices means any building that is used by the federal, state or local government, and is open to the general public.

Nude modeling agency means any person, agency, firm, corporation, partnership, or any other entity or individual that furnishes, books or otherwise engages or offers to furnish, book or otherwise engage the service of a person for performance or appearance at an establishment licensed pursuant to this chapter as an adult club, commercial adult establishment, or nude modeling studio.

Nude modeling studio means any place where, for any form of consideration or gratuity, figure models, who display specified anatomical areas, are provided to be observed, sketched, drawn, painted, sculptured, photographed, or similarly depicted by persons paying such consideration or gratuity. This section excludes "arts" classes sanctioned by the Board of Regents of the University of Nevada or any other postsecondary educational institution that is licensed by a federal or state agency and is accredited by a nationally recognized educational accrediting association.

An *offer to provide acts of sexual conduct* means to offer, propose or to solicit to provide sexual conduct to a patron. Such definition includes all conversations, publications, advertisements, handbills and acts which would lead a reasonably prudent person to conclude that such acts were to be provided even if such acts are illegal or are purported to be illegal or unlawful.

Operation means the conduct of any business regulated or licensed by this chapter.

Patron means any person who contracts with or employs any escort services or escort, outcall promoter or outcall entertainer, or the customer of any other business licensed pursuant to this chapter.

Outcall means the business procedures whereby one or more persons are sent or referred to a location by another person or business entity for any form of consideration or gratuity, or no fee.

Outcall entertainer shall have the same meaning as escort.

Outcall promoter shall have the same meaning as escort service.

Prostitution means engaging in sexual intercourse, oral-genital, oral-anal, or anal-genital contact, or any touching of the sexual organs, pubic region or male or female breast of a person with the intent of arousing or gratifying the sexual desire of either person in return for a fee, monetary consideration, or other thing of value.

Public park means a tract of land maintained by federal, state or local government for the recreation and enjoyment of the general public.

Religious assembly means a building in which persons regularly assemble for worship, intended primarily for purposes connected with faith, or, for propagating a particular belief form.

School means a licensed child care facility, grades preschool through grade 12, together with the playgrounds, dormitories, stadiums, and other structures or grounds used in conjunction therewith.

Server means a natural person who is employed by or who receives any monetary consideration from an adult club for soliciting the sale or purchase of any product or service, including but not limited to beverages.

Sexual conduct and *specified anatomical areas* as used in this chapter means:

1. "Sexual conduct" includes the following:

a. The fondling or other touching of human genitals, pubic region, buttocks, or male or female breasts;

b. Ultimate sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation and sodomy;

c. Masturbation;

d. Excretory functions, alone, as part of, or in connection with, any of the activities set forth in paragraphs a., b. and c. of this subsection; and

e. Flagellation or torture by or upon a person clad in undergarments, a mask or bizarre costume, or the condition of being fettered, bound or otherwise physically restrained on the part of the one so clothed.

2. "Specified anatomical areas" include the following:

a. Human genitals, pubic region, buttocks and female breasts below a point immediately above the top of the areola;

b. Human male genitals in a discernibly turgid state, even if completely covered.

Sex club means any establishment that is operated and maintained for the purpose of allowing one or more persons to view or participate in live sexual conduct for consideration or a gratuity. A sex club is prohibited and is a public nuisance per se.

Note—This definition shall not be construed to apply to the non-obscene presentation, showing or performance of any play, dance, erotic dance, drama, ballet, concert, or similar performance in any theater, concert hall, fine arts academy, school, institution of higher education, business or similar establishment as a form of expression of opinion or communication of ideas or information, as differentiated from the promotion or exploitation of sex for the purpose of advancing the economic welfare of a commercial or business enterprise. This definition also does not apply to professional services by a "provider of health care" as defined in NRS 629.031.

Sexually oriented business means, adult bookstores, adult novelty businesses, adult video stores, adult motion picture theaters, adult video arcades, adult clubs, commercial adult establishments, escort services, nude modeling agencies, nude modeling studios, outcall promoters and sex clubs.

Sexual stimulation means to excite or arouse the prurient interest.

Viewing area means each area in which a patron or customer of the adult motion picture theater or adult video arcade would ordinarily be positioned in order to view a controlled visible image generated by film, compact disc, digital video disc, video cassette, or other media viewing device.

(Ord. No. 3246, § 1, 1-6-2015; Ord. No. 3984, § 1, 8-15-2023)

4.110.015 Classification.

Lawful sexually oriented businesses shall be classified as follows:

1. Adult video arcades;

2. Adult bookstores, adult novelty businesses, or adult video stores;

3. Adult clubs;

4. Adult motion picture theaters;

5. Commercial adult establishments;

6. Escorts;

7. Escort services;

8. Nude modeling agencies;

9. Nude modeling studios;

10. Outcall entertainers; and

11. Outcall promoters.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.020 Purpose and intent.

In the development and adoption of the ordinance codified in this chapter, it is recognized that there are some adult business uses that have serious objectionable operational characteristics particularly when located in close proximity to residential neighborhoods, public parks, religious assemblies, governmental offices, schools and other facilities, thereby having a deleterious impact upon property values and that such businesses frequently become places of criminality.

It has been acknowledged by communities across the nation that state and local governmental entities have a special concern in regulating the operation of such businesses under their jurisdiction to ensure those controls and regulations necessary to preserve the integrity and character of residential neighborhoods, the stability of property values, and impose restrictions and regulations upon those activities that would adversely affect property values, increase the incidence of prostitution, drug sales, sexually transmitted diseases, crime and violence, and prevent adverse secondary effects that will contribute to the blighting or downgrading of adjacent neighborhoods. It is the further purpose of this chapter to protect the well-being of the youth of the community from objectionable operational characteristics of these adult uses by regulating and restricting their close proximity to established certain facilities such as, but not limited to, religious assemblies, parks, schools and residential areas.

In recognition of the protections afforded to the citizens under the First and Fourteenth Amendments, it is not the intent of this chapter to inhibit freedom of speech or the press. It is further the belief that just as advertising is designed to stimulate one's appetite for desiring goods or services, an overabundance or preoccupation with sexual displays or materials arouses the appetites of those so preoccupied and encourages violations of the criminal statutes involving sexual offenses and is contrary to the health and safety of the community.

The provisions of this chapter have neither the purpose nor effect of imposing a limitation or restriction on the content of any communicative materials, including sexually oriented materials. Similarly, it is not the intent nor effect of this chapter to restrict or deny access by adults to sexually oriented materials protected by the First Amendment, or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended market. This chapter represents a balancing of the legitimate ends of the

community by imposing an incidental, content-neutral place, time and manner regulation of sexually oriented businesses, without limiting alterative avenues of communication, and at the same time, requiring the business to carry its share of financing law enforcement activities. The special regulations deemed necessary to control the undesirable externalities arising from these enterprises are set forth in this chapter.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.030 License required—Locational requirements—Use permit application review.

A. A sexually oriented business is a privileged business and it is unlawful for any person to operate, conduct, carry on, or maintain a sexually oriented business in the city without first having obtained a license as herein provided. A separate license must be applied for, and issued, for each location, place or premises used, prior to the conduct of such business.

B. All applicants for a license must comply with all appropriate city zoning and distance requirements set forth in title 19, and must submit to the planning department an application, in the manner specified by that department, to determine if a use permit is required in accordance with title 19.

C. Prior to the issuance of any business license by the division, the applicant must submit, on a form provided by the division, a request for required department signature inspections, to determine if the proposed business operation is in conformity with the requirements of the building, planning, public works, water, wastewater, fire and code enforcement departments and divisions. Upon submission of the business license application and request for required department signature inspections, the premises must be inspected by all designated departments and divisions within 30 days of the date of the application.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.040 License—Application—Business premises required.

The division must not issue any license to any person with the exception of an escort or outcall entertainer, unless the applicant has an established place of business. Sexually oriented businesses, as licensed under this Code must be located, maintained or kept in those areas of the city zoned in accordance with, and must be subject to, all restrictions and regulations contained in HMC title 19.

It is unlawful for any business required to be licensed pursuant to this chapter to be operated or conducted, either in full or part time, from a residential premises.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.050 License—Application—Contents—General.

Whenever a person desires to conduct any sexually oriented business in the city, or engage in the business thereof, such person must make application in writing, on a form provided by the division, to obtain a license therefor, and such application must contain and set forth the following:

A. The name, residence address, telephone number, and principal occupation of the applicant and the key employee(s) of the business; and

B. The applicant's business organization and structure, including the names and addresses of any and all on-site or off-site managers responsible for timely abatement of any and all nuisance activity at the business location; and

C. The kind of license desired, the business name, a description of the nature of the business, the particular place for which the license is desired, and the name of the owner of the premises where such business is to be operated, along with a copy of the lease or rental agreement for the same; and

D. Whether the business is the undertaking of a sole proprietorship, partnership, limited liability company, or corporation, or other form of business entity. If a sole proprietorship, the application shall set forth the name, address, telephone number, and principal occupation of the sole proprietor. If a partnership, the application shall set forth the names, addresses, telephone numbers, principal occupations, and respective ownership shares of each partner, whether general, limited, or silent. If a limited liability company, the application shall set forth the company name, a copy of the operating agreement, and the names, addresses, telephone numbers, and principal occupations of every member, manager, and managing member of the company, along with the ownership interest held by each. If a corporation, the application shall set forth the corporate name, a copy of the articles of incorporation, and the names, addresses, telephone numbers, and principal occupations of every officer, director, and shareholder of the corporation, along with the number of shares held by each. If any partner, manager, member, managing member, or shareholder of applicant is a business entity, the application shall additionally set forth the names, addresses, telephone numbers, principal occupations, and respective ownership interests of each such partner, manager, member, managing member, or shareholder; and

E. The names, residential addresses, telephone numbers, and principal occupations of every person, partnership, limited liability company, or corporation having any interest in the real or personal property utilized or to be utilized by the business or

having any right or interest to any portion of the profits or receiving or having the right to receive any payment from the business that is not directly related to business operating costs.

If any partner, manager, member, managing member, or shareholder having any interest in the real or personal property utilized or to be utilized by the business or having any right or interest to any portion of the profits or receiving or having the right to receive any payment from the business that is not directly related to business operating costs is a business entity, the application shall additionally set forth the names, addresses, telephone numbers, principal occupations, and respective ownership interests of each such partner, manager, member, managing member, or shareholder; and

F. Whether the applicant, anyone having a ten-percent interest in the business, or anyone having an interest in the real property or personal property utilized or to be utilized by the business, or anyone having a right to ten percent or more of the proceeds of the business (other than operating costs) has:

i. Ever been convicted of or forfeited bail for any crime, excluding minor traffic offenses and, if so, the application shall state the person involved, the charge, date, court, and disposition of the charges,

ii. Ever had a business license denied, revoked or charges filed therefor, and if so, the application shall state the person involved, the name of the business, date, jurisdiction, and outcome of any hearing, or

iii. Ever owned, operated, been employed by a sex club, an escort service, an outcall promoter establishment, a brothel, or adult club, and if so, the name of the business, dates involved, and position or interest therein, or

iv. Ever been convicted of offenses similar to the above under federal law or the law of another state or local government; or adverse civil action judgments involving fraudulent or deceptive advertising, sales, or trade practices, and a detailed explanation of the circumstances; and

G. Applicant's business and employment history, stating whether or not the applicant, or applicant's manager, director, officer, stockholder having involvement with the management or operation of the business or partner have had any business license revoked or suspended and stating the details, including the reasons why; and

H. Applicant's signature acknowledging that all the information furnished by the applicant is true, accurate, and current, that he or she is aware of the obligation to provide timely notice of any changes in required information, and that he or she has informed all principals of their joint and several responsibility for the timely fulfillment of restrictions and conditions to the license or timely abatement of any nuisance activity at the business location(s). If the applicant is a sole proprietorship,

the application shall be signed and sworn to by the sole proprietor. If the applicant is a partnership, the application shall be signed and sworn to by a partner thereof. If the applicant is a limited liability company, the application shall be signed and sworn to by a manager or managing member thereof. If the applicant is a corporation, the application shall be signed and sworn to by an authorized officer of the corporation; and

I. The applicant shall present him or herself to the police department for investigation and fingerprinting and shall pay such investigation and fingerprint fee as is required by HMC chapter 4.03, and shall reveal to the police department such information as is required to properly identify the applicant to enable the investigation of the applicant's arrests and convictions, licensing and litigation record and verify the accuracy and completeness of the application. Where the applicant is a partnership, limited liability company, or corporation, it shall be necessary for all of the partners, managers, managing members, and officers of such business entity to present themselves for investigation and fingerprinting. All partners, members, or stockholders (with ten percent or more stock ownership interest), who exercise management or control of the partnership, limited liability company, or corporation are required to present themselves for investigation and fingerprinting; and

J. A consent and authorization in writing for the division to obtain information from criminal justice agencies, financial institutions, federal, state and local governments and agencies, and other persons and entities and shall consent in writing to the release of such information to the city for use in connection with the application for the license and other city business regulations. The applicant shall also sign a release of claims and hold-harmless agreement to the city for its use of the information provided by the applicant or discovered during any investigation thereof; and

K. Any other pertinent documents or information that the division may require related to subsections A. through J. of this section.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.060 Reserved.

4.110.070 License—Application—Contents—Additional.

A. Each licensee must designate on the application the name of a resident agent or key employee residing within the county who is responsible for the conduct of the business and authorized to immediately answer to the council, or its agents, should inquiry or action be deemed necessary in the absence of the licensee.

B. The applicant must supplement the application by submitting a written plan setting forth the method of operation of the business to ensure compliance with the rules and regulations enumerated in this chapter.

C. The application shall be accompanied by a certified copy of the certificate of fictitious name filed in compliance with NRS Chapter 602 if the applicant is to operate the business under a fictitious name.

D. Every application to operate an adult video arcade, whether as the sole business, or as a part of a larger sexually oriented business licensed at the same location, must include:

1. The number of machines, projectors, other image viewing producing devices or contrivances that will be located upon the premises, the name of the manufacturer, serial number or identification number, if any, and type of each, together with a floor plan of the premises that shows the size and type of each room in which any device will be located, and the size and type of each such device, and the number thereof, in each such room.

2. Each adult video arcade license must specify the specific number of machines, projectors, other image viewing producing devices or contrivances for which it is issued, and the number of devices upon the premises must not exceed the number that is permitted under that license. An increase in the number of devices that is permitted upon the premises requires a new adult video arcade business license application.

E. Every application to operate an escort service or outcall promoter establishment must include:

1. The hours that the business will be open to the public. The hours must include all hours the escorts or outcall entertainers are with a patron;

2. The methods of promoting the health and safety of the escorts and outcall entertainers and protecting them from assault, battery, and rape;

3. The methods of supervision of employees that will guarantee to the patron that the escort or outcall entertainer will not solicit any additional fee beyond that stipulated by the escort service or outcall promoter establishment to the patron for entertainment;

4. The methods of supervision that will prevent the escorts or outcall entertainers from soliciting acts of prostitution, or offering to provide sexual stimulation or sexual gratification;

5. The federal employer's identification number; and

6. The method of compensating escorts and outcall entertainers.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.080 Exemptions.

The provisions of this chapter do not apply to those businesses that:

A. Operate a manufacturing or wholesale business, licensed in accordance with HMC chapter 4.04 and section 4.05.010 and:

1. Are prohibited from conducting retail sales; and

2. Prohibit public access to the premises; and

3. Meet all zoning requirements pursuant to HMC title 19.

B. Operate a retail mail order business, licensed in accordance with HMC chapter 4.04 and section 4.05.010 and:

1. Prohibit public access to the premises; and

2. Meet all zoning requirements pursuant to HMC title 19.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.090 Application fee required.

No investigation will be made of any applicant for a sexually oriented business license prior to the payment by the applicant, and receipt of such fees by the division, and a license must not be issued until all appropriate fees are paid.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.100 Investigation fees—Required—Fees charged.

A. Any person applying for a sexually oriented business license is required to deposit with the division for payment to the police department an investigation fee, as set forth in HMC chapter 4.03, per person required to be licensed (see subsection 4.04.060 B.).

B. After the filing of a completed application and payment of all fees, the applicant must be referred to the chief of police for fingerprinting, photographs, investigation and reporting. The result of the investigation shall be given to the director within 30 days, or as soon thereafter as possible, but in no event in excess of 45 days.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.110 No refund on investigation fee.

Even though an applicant is denied a license after investigation, no part of the investigation fees deposited will be returned to the applicant.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.120 Withdrawal of application—Refund.

If any applicant withdraws his application prior to the background packet being submitted to the police department, all investigation fees deposited shall be returned to the applicant. (Ord. No. 3246, § 1, 1-6-2015)

4.110.130 License—Corporation—Partnerships—Limited Liability Companies—Associations—Changes in membership.

In the case of a licensee that is a corporation or an association, any and all changes in the officers or directors of such corporation or association must be reported to the division within 30 days of the appointment or election of such officers and directors. Such officers or directors are required to qualify for a license as required in this title. In the case of a partnership, or limited liability company, all ownership and management changes must be reported to the division within 30 days of the change, and all new partners (whether general, limited or silent) and, members, managing members and managers must qualify for a license as required in this title. If any partner, manager, member, or managing member of licensee is a business entity, any and all changes in the officers, directors, partners, members, managing members, and managers must likewise be reported to the division within 30 days of the appointment, election, or ownership or management change and the new officers, directors, partners, members, managing members, and managers must likewise qualify for a license as required in this title. Failure to notify the division of such changes, or failure to submit for licensing, is grounds for revocation of any existing license. (Ord. No. 3246, § 1, 1-6-2015)

4.110.140 License issuance or denial.

A. The director shall schedule a hearing before council to consider the applicant's business license application and accompanying HMC title 19 land use applications within 60 days upon completion of the background investigation by the police department. Failure of the director to schedule a hearing of the application before the council within 60 days of completion of the background investigation shall result in a license being granted.

B. In addition to any of the reasons set forth in HMC subsection 4.04.150 A., the council may deny the license application for one or more of the following reasons:

1. The applicant, or any of its principals, has within the past seven years, been convicted of a crime, in the local, state or federal court systems for any of the following violations:

a. Pandering, prostitution and all conduct made unlawful by NRS 201.295 to NRS 201.440, inclusive;

b. Statutory sexual seduction, incest, exhibition and sale of obscene material to minors, and all conduct made unlawful by NRS 201.256 to NRS 201.265, inclusive;

c. Obscenity, and all conduct made unlawful by NRS 201.235 to NRS 201.254, inclusive;

d. Intentional transmission of human immunodeficiency virus (NRS 201.205), sexual penetration of a dead human body (NRS 201.450), lewdness and indecent exposure, and all conduct made unlawful by NRS 201.210 to NRS 201.232, inclusive, and any other crime referenced in NRS 200.700 to 200.760, inclusive;

e. Battery which constitutes domestic violence, sexual assault, and all other conduct made unlawful by NRS 200.010 to NRS 200.50995, inclusive, and NRS 200.571 to 200.605, inclusive;

2. The applicant, or any of its principals has been, within the past seven years, permanently enjoined in an adjudicated civil action from engaging in fraudulent advertising, sales or trade practices; or

3. The applicant, or any of its principals, has made false or fraudulent statements in the application, evidence of which is disclosed by a police department or division background investigation or by any other lawful means; or

4. The operation proposed by the applicant does not comply with all applicable laws, including, but not limited to, all applicable zoning, fire, safety and health ordinances and regulations; or

5. The applicant, or any of its principals, do not qualify for, or have not obtained work identification cards.

C. In the event that an application is initially denied by the council under this section, the applicant may seek judicial review of such final decision of denial by council in the Eighth Judicial District Court.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.160 Required department inspections.

A. Prior to the issuance of any business license by the division, the applicant must submit, on a form provided by the division, a request for required department signature inspections, to determine if the proposed business operation will be in conformity with the requirements of the building, planning, public works, water, wastewater, fire and code enforcement departments and divisions.

1. Upon submission of the request for required department signature inspections, the premises must be inspected by all designated departments and divisions within 30 days of the date of the application; and

2. Written reports of the inspections performed by the departments and divisions in subsection A. of this section must be given to the applicant, or his authorized representative, and also submitted to the division within five days of the date of inspection; and

3. If the inspection reveals any deficiencies, the applicant must make the required corrections, and reschedule a second inspection, or inspections, with the department or division noting the deficiency. A written report must be completed within five days of the second or subsequent request for inspection.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.165 Key employee required.

All businesses required to be licensed pursuant to this chapter must have at least one responsible key employee on the licensed premises to act as the licensee's agent at all times the business is open. The key employee must comply with the provisions set forth in HMC section 4.04.180.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.170 Adult bookstores, adult novelty businesses, adult video stores, adult motion picture theaters, adult video arcades and commercial adult establishments—Building specifications—Regulations—Security required.

In addition to the regulations imposed by this or any other chapter of this Code, sexually oriented businesses operating one or more of the types of businesses designated in this section must conform to the following:

A. It is unlawful to display any product, or offer any service or other business activity, for a fee, or which may be offered to the public at no fee, in an area of the establishment that can be viewed from the exterior of the building.

B. With the exception of adult motion picture theaters with seating for more than ten patrons at a time, it is unlawful for any viewing area, or area reserved for the performance of a service or other business activity, of the establishment to have any door, curtain, or other viewing aid or privacy device.

C. It is unlawful for any adult motion picture theater and adult video arcade not to have a uniformed security guard licensed pursuant to this title and NRS Chapter 648 physically on duty in the viewing area at all times the establishment is open to

ensure compliance with all federal, state and city statutes and ordinances. If the establishment has an adult motion picture theater and an adult video arcade or multiples thereof, which are maintained in separate areas of the establishment, each area must have its own uniformed security guard on duty.

D. It is unlawful for the entrance to a sexually oriented business not to be visible from the cash register, or reception area, of the establishment.

E. It is unlawful for any area of the adult motion picture theater or adult video arcade not dedicated to the viewing of film, compact disc, digital video disc, video cassette, or other media viewing device, not to have lighting that has a minimum of 30-footcandle power light when measured at a point 60 inches from the floor.

F. It is unlawful for any adult motion picture theater or adult video arcade licensee not to notify the director in writing on a new business license application, any proposed change in the number of film, compact disc, digital video disc, video cassette or other media viewing or projection devices upon the premises and any change in the floor plan thereof, including without limitation, any change in the size and type of any device that is identified in the application for the license, any change in the size of any room in which any device is located and any change in the number of devices that are located in any room of the premises.

G. It is unlawful for any person to place in any adult video arcade, any film, compact disc, digital video disc, video cassette, or other media viewing or projection device, with respect to which the information that is required by subsection F. of this section, has not been provided to, and approved by, the director.

H. It is unlawful for alcoholic liquor as defined in HMC chapter 4.36 to be present on the licensee's premises at any time.

I. It is unlawful to allow loitering in the establishment by persons who are not actually engaged in viewing the products offered for sale, or offered for no consideration, or receiving the lawful services, or other business activities provided by a sexually oriented business.

J. It is unlawful for any business governed by this section to allow a person under the age of 18 years in or on the premises.

K. For all businesses, except a commercial adult establishment which is exempt from this subsection only, it is unlawful for a licensee, or a licensee's employee or agent to engage in any physical contact whatsoever during the transaction of a lawful business activity between the licensed business and the patron.

L. **1.** In the case of a commercial adult establishment, it is unlawful for a licensee, or a licensee's employee, agent or servant, to engage in any physical contact

whatsoever beyond the inherent nature of the service, profession or calling performed during the transaction of a lawful business activity between the licensed business and the patron.

2. An example of such lawful contact in subsection L.1. of this section is the cutting or styling of hair when performed by a licensed barber or cosmetologist; and, the lawful contact must not extend beyond that accepted by the industry as necessary to perform the lawful service.

3. Conversely, a maid service does not have as part of its service the necessity to make physical contact with the patron, and is only one example of an unlawful contact.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.180 Nude modeling studio—Regulations.

In addition to the regulations imposed by this or any other chapter of this Code, nude modeling studios must conform to the following:

A. It is unlawful for a licensee, or a licensee's employee or agent, to engage in any physical contact whatsoever during the transaction of a lawful business activity between the licensed business and the patron.

B. It is unlawful for a licensee or a licensee's employee or agent to perform any nude modeling off the premises of the sexually oriented business establishment.

C. It is unlawful for alcoholic liquor as defined in HMC chapter 4.36 to be permitted on the licensee's premises at any time.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.190 Adult clubs—Regulations.

A. In addition to the regulations imposed by this or any other chapter of this Code, adult clubs must have signs posted that:

1. Are at least 24 inches by 12 inches in size; and

2. Have lettering at least two inches in height; and

3. Contain the words:

"NO ALCOHOLIC LIQUOR SERVED HERE"
"PROSTITUTION IS ILLEGAL"

B. The signs described in subsection A. of this section must be placed:

1. At eye level, on the outside of all entrances to the establishment; and

2. Must be properly illuminated so that anyone approaching the entrance can, without difficulty, read said sign; and

3. The same signs as in subsection A.3. of this section must also be placed within the establishment at eye level at 15-foot intervals along all interior walls of the establishment.

C. It is unlawful for alcoholic liquors as defined in HMC chapter 4.36 to be permitted on the licensee's premises at any time.

D. No person, firm, partnership, corporation, limited liability company, or other entity shall advertise adult entertainment or cause to be advertised, as an adult club without a valid license issued pursuant to this chapter.

E. Licensee shall maintain and retain for a period of three years the names, any aliases, addresses, and ages of all persons employed as attendants or servers by the licensee.

F. Licensee shall conspicuously display all licenses required by this chapter.

G. All communication, verbal, visual or physical, between attendants and patrons shall take place within an area that is visible immediately upon entrance to the establishment premises. Patrons shall not be allowed in private rooms with attendants.

H. No attendant or server shall fondle or caress any patron and no patron shall fondle or caress any attendant or server.

I. No attendant or server shall fondle or caress any attendant or server.

J. No patron shall directly pay or give any gratuity to any attendant or server for sexual conduct, or as to offers to provide sexual conduct.

K. No attendant or server shall solicit any pay or gratuity from any patron for sexual conduct or as to offers to provide sexual conduct.

L. Any adult club, licensed pursuant to this chapter, that advertises or uses the words in its trade or place name that imply the availability of alcoholic liquor on the premises, such as "bar," "lounge," or saloon," must state in all such advertisements that alcoholic beverages are not sold or allowed on the premises.

M. No adult club shall employ a security guard, or allow a security guard to work on the premises unless such security guard is licensed pursuant to this title and NRS Chapter 648.

N. No adult club shall publicly display or expose or suffer the public display or exposure, with less than a full opaque covering, of any portion of the female breast below a point immediately above the top of the areola or of a person's genitals, pubic area or in a lewd and obscene fashion.

O. No adult club licensee, attendant, server or security guard shall allow, permit, encourage, or tolerate any act of masturbation to occur on the premises.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.195 Escort and escort service—Outcall entertainer and outcall promoter regulations.

A. It is unlawful to conduct the business of escort service or outcall promoter unless the business operates in a physical structure at a fixed location within the city that is subject to inspection by the division pursuant to section 4.110.300 of this chapter.

B. It is unlawful for an escort service or outcall promoter to employ, contract with, or refer an escort or outcall entertainer to a location unless the escort or outcall entertainer is licensed as provided in this chapter.

C. It is unlawful for any person to advertise, or cause to be advertised, an escort, escort service, outcall entertainer, or outcall promoter establishment without a valid license issued pursuant to this chapter.

D. It is unlawful for any person to work or perform services as an escort or outcall entertainer in the city unless employed by a licensed escort service or outcall promoter or licensed as an escort service or outcall promoter.

E. It is unlawful for an escort service or outcall entertainment promoter licensee to contract with, employ or refer a person as an escort or outcall entertainer unless such escort or outcall entertainer is licensed pursuant to this chapter.

F. It is unlawful for an escort, escort service, outcall entertainer, or outcall promoter to provide entertainment that contributes to the delinquency of a minor, if the patron, or any person with the patron, is under the age of 18 years.

G. It is unlawful for an escort service or outcall promoter to hire, contract with, or refer any escort or outcall entertainer who is under the age of 18 years.

H. It is unlawful for an escort, escort service, outcall entertainer, or outcall promoter to solicit, commit, or participate in an act of prostitution.

I. It is unlawful for an escort, escort service, outcall entertainer, or outcall promoter to solicit any fee, pay, tip or gratuity from any patron in addition to the licensee's basic fee.

J. It is unlawful for an escort service or outcall promoter licensee to operate or conduct business or refer escorts or outcall entertainers to patrons unless one or more managers or key employees are overseeing the operation of the business by being present at the business location, at all times the business is open to ensure compliance with all regulations.

K. It is unlawful for an escort, escort service, outcall entertainer, or outcall promoter to provide alcoholic liquor as defined in HMC chapter 4.36 as part of the entertainment, as an inducement, or for any other reason, to a patron.

L. It is unlawful for an escort, escort service, outcall entertainer, or outcall promoter to be under the influence of alcoholic liquor as defined in HMC chapter 4.36, or a controlled substance, while conducting business.

M. It is unlawful for an escort, escort service, outcall promoter, or outcall entertainer to fail to submit to an audit as set forth in HMC section 4.110.300, or fail to provide the records required by HMC section 4.110.197.

N. It is unlawful for an escort service or outcall promoter establishment to be operated in conjunction with any other business required to be licensed by this title, including other businesses required to be licensed pursuant to chapter 4.110.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.197 Escort service and outcall promoter—Records required.

A. Every escort service and outcall promoter must keep accurate and detailed records of all entertainment visits in a permanently bound ledger at their place of business that contains, in consecutive order:

1. The date and time of the visit;

2. A description of the business service provided to the patron;

3. The name of the licensee, or licensee's employee or agent, including any aliases used by the same, who participated in the business transaction with the patron, including the license number of the escort or outcall entertainer;

4. The total sum of money (credit, cash, check, charge, or barter) paid by the patron to the escort, escort service, outcall entertainer or outcall promoter for the visit; and

a. The amount of said sum of money received by the escort service or outcall promoter from the patron, either directly, or through the escort or outcall entertainer;

b. The amount of said sum given by the escort service or outcall promoter to the escort or outcall entertainer;

5. Whether the escort or outcall entertainer received monetary consideration in addition to the fee charged by the escort service or outcall promoter and if so, how much.

B. All records to be maintained by subsection A. of this section must be made available to the division and the police department, for the purpose of audit and investigation, at any time the business is open. The escort service or outcall promoter's records may be examined at the place of business.

C. All records required to be maintained by subsection A. of this section must be kept for not less than three years from the date of the entertainment visit.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.200 False, deceptive or misleading advertising prohibited.

It is unlawful for a sexually oriented business licensee, or any independent contractor, agent or employee thereof, to publish, disseminate, display, or cause to be displayed by any advertising medium any statement that would suggest to a reasonably prudent person that any service other than that permitted by the business license is available to the public. Such an act is grounds for revocation of the license.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.210 Actual deception unnecessary to create liability.

It is sufficient in bringing any disciplinary action against the licensee, that any statement referred to in section 4.110.050 or 4.110.070 has a tendency to deceive or mislead the public because of its false, deceptive or misleading character even though no member of the public is actually deceived or misled by such statement.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.220 License fee.

The license fee for a sexually oriented business license is one percent of the gross revenue.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.230 Term of licenses.

All licenses provided for in this chapter must be issued for semiannual periods, which must be calculated as described in section 4.04.080.
(Ord. No. 3246, § 1, 1-6-2015)

4.110.240 Licensee responsible for the acts of employees.

Every licensee is responsible for the acts of his employees, agents and servants committed while on the licensed premises and during the course of employment away from

the licensed premises, and every licensee must accordingly use adequate care in the selection of his employees. In any licensing suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of is no defense, and every licensee hereunder accepts his license subject to said condition. (Ord. No. 3246, § 1, 1-6-2015)

4.110.250 Licensee subject to discipline: Denial—Nonrenewal—Suspension—Revocation—Limitation.

Without limiting the generality of the foregoing, all licensees under this chapter are declared to be subject to disciplinary action and may be subject to the process initiated by a complaint against licensee and set forth in section 4.06.040 et seq. under the following circumstances:

A. Each licensee who violates any provision of title 4 of the Henderson Municipal Code;

B. Each licensee who knowingly, and without taking immediate and affirmative steps to obtain sanction, does any act to sell, purchase or lease with any person in connection with a sexually oriented business or with respect to any portion of such business operation;

C. Each licensee who knowingly fails to report or conceals from the council a full disclosure of the names of all persons having an interest in the ownership of, or having an equitable or beneficial right to the profits under a license in which he has an interest;

D. Each licensee who knowingly fails to report or conceals from proper authority any information which it is his duty to supply under any statute, ordinance or regulation of the state or the city;

E. Each licensee who made a misrepresentation of a material fact in his application to obtain a license;

F. Each licensee who allows a minor under the age of 18 years to loiter in or around the premises;

G. Each licensee who allows alcoholic liquor as defined in HMC chapter 4.36 to be present on the business premises;

H. Each licensee who allows any form of gambling as defined in HMC chapter 4.32 to occur on the premises;

I. Each licensee who employs a person under the age of 18 years;

J. Each licensee who commits any of the offenses listed in HMC subsection 4.110.140 B.1.;

K. Each licensee who fails to provide the division with changes in the identities of corporate officers, or any changes in the identities of partners or associates pursuant to HMC section 4.110.130; and

L. Each licensee who solicits, commits, or participates in an act of prostitution.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.260 Alcoholic liquor not permitted.

The division must not issue any liquor license, as defined in HMC chapter 4.36, to any business licensed pursuant to this chapter.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.270 Gambling not permitted.

The division must not issue any gambling license, as defined in HMC chapter 4.32, to any business licensed pursuant to this chapter.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.280 Reserved.

4.110.290 Conformity by businesses already in operation.

Those licensees not in conformity with the provisions of this chapter at the date of adoption of the ordinance codified in this chapter, must conform to the requirements thereof within a period not to exceed six months.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.300 Audit and inspection.

The director or his or her designee and the auditor shall have access to the books, other business records, and premises of any sexually oriented business licensed under this chapter for the purpose of verifying the accuracy of business license fees paid and to ensure compliance with the specific provisions of this chapter.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.310 Right of appeal.

A. *Disciplinary actions.* Appeal rights of licensees subject to disciplinary action involving their business licenses are set forth in HMC section 4.04.210 and/or 4.06.290.

B. *License denials.* Appeal rights of applicants that are denied a license by council are set forth in HMC subsection 4.110.140 C.

C. *Preliminary business license category determinations.* HMC section 4.04.210 does not apply to preliminary business license category determinations initially made by the division to prospective applicants.

1. Any prospective applicant who disagrees with a preliminary business license category determination made in writing by the division and issued to the prospective applicant, may request a review of such preliminary determination by submitting a request for review to the chief financial officer and filing written notice of the same with the city clerk no later than the close of business on the fifth Henderson business day after the preliminary determination letter is sent from the division to the applicant via certified mail.
2. If the prospective applicant disagrees with the decision of the chief financial officer upon his or her review of all information (i) supporting the division's initial determination, and (ii) the basis of the prospective applicant's disagreement with the director's preliminary determination, the prospective applicant must request a review of the chief financial officer's decision by submitting a request for review to the city manager and filing written notice of the same with the city clerk no later than the close of business on the third Henderson business day after the chief financial officer's decision is sent to the applicant via certified mail.
3. The decision of the city manager, upon his or her review of all relevant information in this regard, shall be final.

(Ord. No. 3246, § 1, 1-6-2015)

4.110.320 Reserved.

4.110.330 Enforcement guidelines.

The city attorney shall create guidelines for the enforcement of the provisions of this chapter.

(Ord. No. 3246, § 1, 1-6-2015)

Chapter 4.115 RESERVED*

*__Editor's note—__Ord. No. 3306, § 1, adopted November 3, 2015, repealed the former chapter 4.115, §§ 4.115.010—4.115.050 in its entirety, which pertained to medical marijuana fees, and derived from Ord. No. 3189, § 1, adopted July 1, 2014, and Ord. No. 3196, § 1, adopted August 19, 2014.

Chapter 4.116 MEDICAL MARIJUANA REGULATIONS AND LICENSES*

Sections:

4.116.010 Definitions.
4.116.020 Purpose and intent.
4.116.030 License required—Privileged license—Issuance prohibited to designated persons.
4.116.035 Finding of suitability.
4.116.040 Unlawful to operate without medical marijuana establishment license.
4.116.050 Medical marijuana establishment types.
4.116.060 Multiple locations—Operating names.
4.116.070 Conditions applying to specific location/business types.
4.116.080 License—Application—Contents—General.
4.116.090 Application process.
4.116.100 Applicant—Business premises required.
4.116.120 Investigation fees—Required—Fees charged.
4.116.130 Issuance restrictions—Proximity of medical marijuana establishments specified.
4.116.140 Change of location—Restrictions—Medical marijuana establishment origination fee.
4.116.150 License—Transfer of license, ownership interest and changes in business control—Council approval required.
4.116.160 Closure or non-operational status—Responsibility to maintain use.
4.116.170 Issuance moratorium.
4.116.180 Land use and location requirements—Compliance with title 19.
4.116.190 Medical marijuana establishments—Interconnectivity allowed.
4.116.200 Delivering off premises.
4.116.210 Intoxication on premises.
4.116.220 Distributing to non-registered persons—Establishment of policy—Copy on premises—Requirement to show.
4.116.230 Minor—Employment.
4.116.240 Suspension—Revocation—Limitation—Penalty.
4.116.250 Medical marijuana establishment responsible for the acts of employees.
4.116.260 Medical marijuana establishments subject to local government audit.
4.116.270 Reserved.

***Editor's note—**Ord. No. 3432, § 1, adopted September 5, 2017, amended chapter 4.116 in its entirety to read as herein set out. Formerly, chapter 4.116, §§ 4.116.010—4.116.270 pertained to similar subject matter, and derived from Ord. No. 3307, § 1, adopted November 3, 2015, and Ord. No. 3188, § 1, adopted July 1, 2014.

4.116.010 Definitions.

Whenever used in this chapter, the following words must have the meanings ascribed in this section, unless the context clearly indicates a different meaning:

Applicant shall have the same meaning as set forth in chapter 4.04, as may be amended.

Business interest means a person that holds a financial interest or any other affiliated interest in a medical marijuana establishment.

Class I medical marijuana establishment means a business operating a cultivation facility and a medical marijuana dispensary at the same location.

Class II medical marijuana establishment means a business operating a cultivation facility, facility for production of edible marijuana products or marijuana-infused products and a medical marijuana dispensary at the same location.

Class III medical marijuana establishment means a business operating a cultivation facility, facility for production of edible marijuana products or marijuana-infused products and a medical marijuana dispensary, at one or more locations, but limited to one location per establishment type.

Class IV medical marijuana establishment means a business operating a medical marijuana dispensary operation only.

Class V medical marijuana establishment means a business operating a cultivation facility only.

Class VI medical marijuana establishment means a business operating a facility for production of edible marijuana products or marijuana-infused products only.

Cultivation facility shall have the same meaning as set forth in NRS 453A.056, as may be amended or renumbered.

Designated primary caregiver shall have the same meaning as set forth in NRS 453A.080, as may be amended or renumbered.

Edible marijuana products shall have the same meaning as set forth in NRS 453A.101, as may be amended or renumbered.

Employee means an employee, independent contractor, agent, or volunteer of a medical marijuana establishment, or an employee of a marijuana management company.

Facility for production of edible marijuana products or marijuana-infused products shall have the same meaning as set forth in NRS 453A.105, as may be amended or renumbered.

Gross revenue, as used in connection with the determination of license fees, means the total amount of the sale price of all goods sold, originating in the city and regardless of destination. All such totals are to be calculated without any deduction therefrom on account

of the cost of the property sold, cost of materials used, labor or service costs, interest paid or payable, or any other expense whatsoever provided; however, that cash discounts allowed or taken on sales or services, all taxes, all allowances for bad debts, and all revenues derived from business operations covered by another city business license or licenses, shall be excluded from gross sales.

Independent testing laboratory shall have the same meaning as set forth in NRS 453A.107, as may be amended or renumbered.

Inventory control system shall have the meaning set forth in NRS 453A.108, as may be amended or renumbered.

Key employee shall have the meaning as set forth in section 4.04.010.

Legal residence shall have the same meaning as set forth in NRS 10.155, as may be amended or renumbered.

Manager in charge is the responsible individual for the marijuana establishment that has been given local operational control of the business by all other principals. The individual designated as the manager in charge must be a legal resident of Nevada and have been found suitable pursuant to this chapter.

Marijuana shall have the same meaning as set forth in NRS 453.096, as may be amended or renumbered.

Marijuana management company shall have the same meaning as set forth in subsection 4.05.289.02.

Marijuana-infused products shall have the same meaning as set forth in NRS 453A.112, as may be amended or renumbered.

Medical use of marijuana shall have the same meaning as set forth in NRS 453A.120, as may be amended or renumbered.

Medical marijuana dispensary shall have the same meaning as set forth in NRS 453A.115, as may be amended or renumbered.

Medical marijuana establishment shall have the same meaning as set forth in NRS 453A.116, as may be amended or renumbered.

Medical marijuana establishment agent shall have the same meaning as set forth in NRS 453A.117, as may be amended or renumbered.

Medical marijuana establishment agent registration card shall have the same meaning as set forth in NRS 453A.118, as may be amended or renumbered.

Owner means any individual, partnership, limited partnership, association, limited liability company, or corporation, including the partners, managers and members of any such

partnership, limited partnership, association, or limited liability company, who has a business interest in a medical marijuana establishment or who has an equitable or beneficial right to the profits of a medical marijuana establishment.

Paraphernalia shall have the same meaning as set forth in NRS 453A.125, as may be amended or renumbered.

Principal means:

A. All owners, partners, members, stockholders, employees, and any other person with a direct or indirect ownership interest or voting control equal to or greater than five percent of the business. If the ownership interest or voting control is held by a person or business structure other than a natural person, then each officer, director, member, trustee, beneficiary, or general partner of such person or business is a principal unless otherwise determined by the director.

B. Any key employee, manager in charge, or any other person who is or will be directly engaged in the administration or supervision of the business; and

C. Any other person if, in the director's opinion, the person exercises, or is capable of exercising, significant influence over the business, including, but not limited to, a natural person or corporate entity that provides a source of funding for the initial capitalization and/or the ongoing payment of expenses for the business.

Registration certificate shall mean the approval issued by the State of Nevada to a medical marijuana establishment pursuant to NRS 453A.322.

Registry identification card shall have the same meaning as set forth in NRS 453A.140, as may be amended or renumbered.
(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.020 Purpose and intent.

A. In November 2000, the voters of the state passed an initiative amending Article 4 of the Nevada Constitution to allow the use of marijuana for medical purposes. In 2013, the Nevada State Legislature passed, and the governor signed into law, Senate Bill 374, now codified in NRS Chapter 453A, to allow the establishment of medical marijuana establishments within the state.

B. While the council recognizes that medical marijuana provides treatment for persons suffering from debilitating diseases and ailments, there are many negative secondary effects that have been reported in communities that authorize the use of medical marijuana, such as an increase in violent crimes, theft, traffic, noise, drug and gang activity, and

firearms violations. Therefore, the public health, safety, and welfare of the inhabitants of the city require the regulation of all businesses engaged in the business of medical marijuana sales, cultivation, infusion or testing.

C. Federal law makes it unlawful to cultivate, possess, distribute, or dispense marijuana. However, on August 29, 2013, the United States Department of Justice ("DOJ") issued a memorandum advising that the DOJ would allow enforcement of state laws that authorize marijuana production, distribution, and possession to be handled primarily by state and local law enforcement regulatory bodies as long as the state and local governments enact laws that implement "strong and effective regulatory enforcement systems" to address the federal government's identified enforcement priorities. The following enforcement priorities were specified by the DOJ as being particularly important to the federal government:

1. Preventing the distribution of marijuana to minors;

2. Preventing revenue from the sale of marijuana from going to criminal enterprises, gangs, and cartels;

3. Preventing the diversion of marijuana from states where it is legal under state law in some form to other states;

4. Preventing state-authorized marijuana activity from being used as a cover or pretext for the trafficking of other illegal drugs or other illegal activity;

5. Preventing violence and the use of firearms in the cultivation and distribution of marijuana;

6. Preventing drugged driving and the exacerbation of other adverse public health consequences associated with marijuana use;

7. Preventing the growing of marijuana on public lands and the attendant public safety and environmental dangers posed by marijuana production on public lands; and

8. Preventing marijuana possession or use on federal property.

D. Accordingly, in addition to protecting the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public, this chapter is intended to adequately address these enforcement priorities.
(Ord. No. 3432, § 1, 9-5-2017)

4.116.030 License required—Privileged license—Issuance prohibited to designated persons.

All medical marijuana establishments as defined in this chapter shall be licensed and controlled so as to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public.

A. The right to obtain and maintain a license under this chapter is a privilege and the operation of such medical marijuana dispensing, cultivation, infusion or testing facilities is a privileged business subject to regulations. The license may be revoked for violation of the conditions of this chapter, including those conditions set forth in section 4.116.240; the laws of the state; other ordinances of the city; the DOJ enforcement priorities cited in subsection 4.116.020(C); or for any other cause deemed sufficient by the council in the exercise of its sole discretion.

B. In conformity with the policy of this chapter, the following persons are declared unqualified to hold a medical marijuana establishment license under the provisions of this chapter:

1. A person whose state registration certificate or license issued under the provisions of this chapter or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of medical marijuana dispensing, cultivation, infusion or laboratory services, has been suspended or revoked for cause;

2. A person, who at the time of renewal of any license issued under this chapter, would not be eligible for such license upon a first application;

3. Any applicant that fails to obtain a finding of suitability from the director for each appropriate person or principal as required under the provisions of chapter 4.03 and in accordance with section 4.116.035;

4. A person who does not beneficially own the premises for which a license is sought or does not have a lease thereon for the full period for which the license is to be used;

C. For the purposes of this chapter, only medical marijuana establishments that will cultivate, dispense, infuse/produce edible medical marijuana products or provide laboratory testing at an approved location pursuant to title 19 may be licensed as a medical marijuana establishment.

D. A medical marijuana establishment license will not be issued to an applicant that has not had the appropriate individuals, set forth in this chapter, undergo an background investigation and finding of suitability pursuant to sections 4.03.020

and 4.116.035. In his or her discretion, the director may accept an equivalent background investigation conducted by the Nevada Department of Taxation or another government entity or agency.

E. No medical marijuana establishment license shall be issued to an applicant unless its ownership, irrespective of corporate or business structure can ultimately be traced to ownership or control by a natural person or persons.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.035 Finding of suitability.

In addition to the requirements of chapter 4.03, an individual applicant or each principal of an applicant must be found suitable by the director and meet the following requirements:

A. Such individuals must be 21 years or older;

B. Such individuals shall not have been convicted of a felony or any crime of moral turpitude as may be further defined in chapter 4.04 and must provide an identity history summary check provided by the Federal Bureau of Investigation or similar background check document deemed sufficient by the director at the cost of the applicant; and

C. Such individuals shall not have had a license, issued or renewed under the provisions of this chapter or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of marijuana sales, cultivation, infusion or laboratory services, that has been suspended or revoked for cause.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.040 Unlawful to operate without medical marijuana establishment license.

It shall be unlawful for any person to operate, conduct or carry on any medical marijuana establishment as described in this chapter within the city without first obtaining and thereafter maintaining a medical marijuana establishment license as herein required and paying the fee(s) as set forth in chapter 4.05.

Notwithstanding this provision, marijuana is currently classified as a Schedule I drug under the Controlled Substances Act ("CSA") 21 U.S.C. Section 841(a)(1), and federal law makes it unlawful to manufacture, distribute, dispense or possess any controlled substance.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.050 Medical marijuana establishment types.

All medical marijuana establishments may have vertically integrated ownership and may have multiple establishment types at one location. Medical marijuana establishments shall be determined to be one of six classes or an independent testing laboratory:

Class I—A cultivation facility and medical marijuana dispensary at the same location. A Class I medical marijuana establishment must cultivate at a minimum 70 percent of marijuana products sold at the onsite dispensary.

Class II—A cultivation facility, medical marijuana dispensary and facility for production of edible marijuana products or marijuana-infused products at the same location. A Class II medical marijuana establishment must cultivate at a minimum 70 percent of marijuana products, including edible marijuana products or marijuana-infused products, sold at the onsite dispensary.

Class III—A cultivation facility, medical marijuana dispensary and facility for production facilities of edible marijuana products or marijuana-infused products at one or more locations, but limited to one location per establishment type. A Class III medical marijuana establishment must cultivate at a minimum 70 percent of marijuana products, including edible marijuana products or marijuana-infused products sold at the dispensary.

Class IV—A medical marijuana dispensary only.

Class V—A cultivation facility only.

Class VI—A facility for production of edible marijuana products or marijuana-infused products only.

Independent testing laboratory.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.060 Multiple locations—Operating names.

Class III medical marijuana establishments operating at multiple locations must utilize the same entity name filed with the Nevada Secretary of State's Office, or, if using a fictitious firm name pursuant to NRS Chapter 602, must use that fictitious firm name for all Class III facilities.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.070 Conditions applying to specific location/business types.

A. General requirements for all medical marijuana establishments except independent testing laboratories:

1. Medical marijuana establishments must have at least one responsible key employee on the licensed premises to act as the establishment's agent at all times when employees, customers, distributors, or other third-parties are present on the premises. The key employee must comply with the provisions set forth in section 4.04.180.

2. Medical marijuana establishments must make available to the division at any time a list of all employees that are authorized to be on premises, which list must include the employees designated as key employees.

3. All medical marijuana establishment employees must have on their person a valid marijuana establishment agent identification card issued by the state at all times when at the medical marijuana establishment location.

4. All independent contractors, maintenance and business professionals allowed access to a medical marijuana establishment where the general public does not have access must be logged and given visitor identification. This identification must be displayed on the person of the individual at all times while on the premises of the medical marijuana establishment.

5. A medical marijuana establishment may not allow the use, smoking, ingestion or consumption of any marijuana, edible marijuana product, or marijuana-infused product on the licensed premises.

6. Any theft in excess of $250.00 in retail value of marijuana seedlings, clones, plants, or other plant materials, extract, marijuana-infused product, or other item containing marijuana must be reported to the Henderson Police Department and the division in writing within 24 hours of the theft.

7. To prevent unauthorized access to medical marijuana at a medical marijuana establishment, the establishment must be in compliance with all security requirements adopted by the Department of Taxation and set forth in NRS 453A.

8. Medical marijuana establishments must develop and enforce policies and procedures:

a. That restrict access to the areas of the establishment that contain marijuana or marijuana-infused products, to individuals authorized to be in that area only;

b. That provide for the identification of individuals authorized to be in the areas of the establishment where the general public does not have access that contain marijuana or marijuana infused products;

c. That prevent loitering;

d. For conducting electronic monitoring; and

e. That prevents the distribution of marijuana to minors.

9. Medical marijuana establishments must have an agreement with an authorized waste management service or other approved plan to remove and destroy all waste generated from the cultivation, infusion or dispensing of medical marijuana from the location. Disposal of waste must meet all state and federal guidelines. Waste must be maintained in a secure location until removal from the location. Waste must be rendered unusable by grinding and incorporating the marijuana waste with non-marijuana waste, such that the resulting mixture is at least 50 percent non-marijuana waste.

10. Medical marijuana establishments are required to use an inventory control system compliant with NRS Chapter 453A to track all inventories that includes marijuana clones, marijuana plants, harvested marijuana product for dispensing, edible or infused items or harvested marijuana product sent to independent testing laboratories.

11. Medical marijuana establishments are required to comply with all standards set forth by Henderson Building and Fire safety officials prior to conducting business.

12. All officers, principals, and employees of the medical marijuana establishment shall be required to obtain and maintain a valid medical marijuana establishment agent registration card in compliance with NRS Chapter 453A.

B. Medical marijuana dispensaries.

1. A medical marijuana dispensary shall have a lobby waiting area at the entrance to the dispensary to receive clients, and a separate and secure designated area for dispensing medical marijuana to patients or designated primary caregivers with a valid registry identification card. The primary entrance shall be maintained clear of barriers, landscaping and similar obstructions so that it is clearly visible from public streets, sidewalks or site parking areas.

2. If employing private security, the security vendor must be licensed in accordance with this title and NRS Chapter 648.

3. Medical marijuana dispensaries must display in the lobby waiting area a placard no smaller than 18 inches tall by 20 inches wide that states the following:

a. Federal law makes it unlawful to possess and consume marijuana products;

b. Marijuana products cannot be transferred, shared or gifted to any other individual;

c. Do not operate heavy machinery or automobiles while under the influence of marijuana;

d. Marijuana has intoxicating effects and may be habit forming;

e. There may be health risks associated with consumption of marijuana;

f. Marijuana should not be used by women who are pregnant or breast feeding; and

g. Marijuana should be kept in a secure location and out of reach of minors and pets.

4. Medical marijuana registry identification cardholders may not handle marijuana products unless under the direct supervision of a medical marijuana establishment agent.

5. Except as otherwise provided in this subsection, it shall be unlawful for any person to advertise any medical marijuana, edible marijuana product or marijuana-infused product anywhere in the city where the advertisement is visible to members of the public from any street, sidewalk, park or other public place, including advertising utilizing any of the following media:

a. Any hand-held, human signage or other portable sign;

b. Any handbill, leaflet or flier directly handed to any individual, deposited, fastened, thrown, scattered, cast or placed in a public place, left upon a motor vehicle, or posted upon any public property, right-of-way or private property without the consent of the property owner;

c. Any sign mounted or displayed on a vehicle;

d. Any free promotional materials.

6. Any medical marijuana dispensary offering for sale non-marijuana based products, including but not limited to, clothing, souvenirs, hats or keychains must comply with state laws and regulations, including but not limited to NRS 453A and any regulations set forth in the Nevada Administrative Code. Any paraphernalia offered for sale must be designed for individual use only. A medical marijuana dispensary is limited to ten percent of retail space for paraphernalia, not to include the lobby area.

7. All medical marijuana products sold to medical marijuana registry identification cardholders or their designated primary caregiver must be enclosed in childproof packaging designed and constructed consistent with state law.

C. Cultivation facilities.

1. Cultivation areas of the establishment must be in compliance with regulations set forth in NRS Chapter 453A. The city reserves the right to enforce these sections and may levy sanctions to a medical marijuana establishment based on non-compliance that may include citations and fines, civil penalties, and suspension and revocation of licensure pursuant to chapter 4.06.

2. Areas designated for deliveries from suppliers or couriers must be separated from cultivation areas by floor to ceiling walls and locking doors.

3. Licensees are encouraged to use the most efficient process for the conservation of water resources.

D. Facilities for the production of edible marijuana or marijuana-infused products.

1. Production of edible and infused marijuana products must be in compliance with NRS Chapter 453A. The city reserves the right to enforce these sections and may levy sanctions to a medical marijuana establishment based on non-compliance that may include citations and fines, civil penalties, and suspension and revocation of licensing pursuant to chapter 4.06.

2. Areas designated for deliveries from suppliers or couriers must be separated from production areas by floor to ceiling walls and locking doors.

3. Except as otherwise provided in this subsection, use of flammable gases including, but not limited to, butane and propane are prohibited for the extraction of oils from marijuana plants. Extraction processes utilizing flammable gasses may be permitted upon approval of the fire chief. These systems, processes and processing areas must, at a minimum:

a. Be located in premises that are verified by an independent, qualified industrial hygienist and a Nevada licensed engineer as safe and in compliance with all applicable codes;

b. Utilize listed or approved closed-loop extraction systems;

c. Ensure all flammable gas/liquid transfers shall take place within a chemical fume hood having electrical system classified for a hazardous atmosphere in accordance with the most recent edition of National Fire Protection Association (NFPA) 45, Standard on Fire Protection for Laboratories Using Chemicals, spray booth or spay room complying with the Henderson Fire Code; and

d. Utilize flammable gas monitoring that sound local alarms and close gas valves at levels greater than 25 percent of lower explosive limit (LEL).

4. Other extraction processes involving flammable gasses or hazardous materials as defined in the Henderson Fire Code may be permitted upon approval of the fire chief and approval of the associated use permit by city council.

5. Solvents fit for human consumption shall be permitted in the extraction process.

6. Production of edible and infused marijuana products must be in compliance with all current and future standards set by the Nevada Department of Taxation, the Nevada Division of Public and Behavioral Health and the Southern Nevada Health District for preparation and handling of items meant for human consumption.

E. Independent testing laboratories. Independent testing laboratories for marijuana products must be in compliance with NRS Chapter 453A. The city reserves the right to enforce these sections and may levy sanctions to a medical marijuana establishment based on non-compliance that may include citations and fines, civil penalties, and suspension and revocation of licensing pursuant to chapter 4.06 and section 4.116.240.

F. Marijuana management companies.

1. Each marijuana management company as defined in section 4.05.289 shall maintain a marijuana management business license as set forth in this chapter and comply with the applicable provisions of this chapter including the following requirements:

a. A marijuana management company shall not, in whole or in part, own or control a medical marijuana establishment, including but not limited to any of its owners, principals, or employees serving as an owner or principal of a medical marijuana establishment.

b. Any and all contracts, agreements, and other controlling documents between the marijuana management company and the medical marijuana establishment shall be made available to the division prior to issuance or renewal of a marijuana management license, business license, and at any other time upon request by the Division.

c. Marijuana management companies must have at least one responsible key employee on the premises to act as the medical marijuana establishment's agent at all times when there are employees, customers, distributors, or other third-parties are-present on the premises. The key employee must comply with the provisions set forth in section 4.04.180.

d. Marijuana management companies must make available to the division at any time a list of all employees that are authorized to be on premises, which list must designate which employees are key employees.

e. All marijuana management company employees must have on their person a valid marijuana establishment agent identification card issued by the state at all times when at the medical marijuana establishment location.

2. Any medical marijuana establishment utilizing a marijuana management company shall report any changes in ownership five percent or greater of the management company and such changes must be approved by the division.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.080 License—Application—Contents—General.

A. Whenever a person desires to open, keep, carry on or conduct any medical marijuana establishment in the city, or engage in the business thereof, such person must make application in writing to the division to obtain a medical marijuana establishment license. The application must be submitted at the time of application for purposes of receiving written approval on distance and zoning requirements pursuant to title 19.

B. As part of the application process, an applicant shall make all individuals referenced in section 4.116.035 available for a background investigation under the provisions of chapter 4.03 and a finding of suitability under section 4.116.035.

C. Prior to issuance of a medical marijuana establishment license, the applicant receiving such a license shall execute, and shall have each of its owners, officers, and principals with the authority to bind the licensee execute, an indemnification and release agreement with the city on a form approved by the city attorney, and the applicant shall pay the non-refundable indemnification and release agreement fee set forth in subsection 4.05.288(E) of this title.

D. Medical marijuana establishment applications must contain:

1. Completed Henderson application and attestations.

2. Documentation from an in-state or out-of-state financial institution which demonstrates that the applicant has liquid assets as required by NRS 453A.322 which are unencumbered and can be converted within 30 days and the source of such assets. Liquid asset amounts required for medical marijuana classes are as follows and are based on the $250,000.00 required by the Nevada Department of Taxation for each establishment type:

a. Class I—$500,000.00

b. Class II—$750,000.00

d. Class III—$750,000.00

e. Class IV—$250,000.00

f. Class V—$250,000.00

g. Class VI—$250,000.00

h. Independent testing laboratory—No Henderson requirement

3. Proposed organizational structure that lists all owners or principals by name and their percentage of ownership.

4. Any lease, operating or management agreement, or any other agreement, irrespective of form, affecting the ownership, control, or operation of the proposed medical marijuana establishment.

5. Security plan that includes customer, building and product security measures.

6. Operations manual that demonstrates compliance with all state and local laws and ordinances.

7. Background information/resume highlighting any previous experience at or operating other businesses or non-profit organizations, including educational achievements and demonstrated knowledge of the medical marijuana industry.

8. The identity of a manager in charge that can demonstrate permanent residence in the State of Nevada prior to issuance of the license pursuant to this chapter.

9. Any additional information deemed necessary by the division or the director.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.090 Application process.

A. If or when additional medical marijuana registration certificates are made available by the state, and the city determines to accept an allocation of additional certificates, the division shall accept medical marijuana establishment applications. At any time, the division may accept applications for applicants currently in possession of a valid provisional or finalized registration certificate.

B. Regardless of whether an applicant has received a registration certificate from the state, all applicants shall be subject to all application, backgrounding, indemnification and other fees consistent with state law set forth in chapter 4.05, and must comply with all provisions in this chapter, section 19.5.5.Y, any requirements of NRS Chapter 453A, and any applicable regulations issued by the Nevada Department of Taxation or the Nevada Division of Public and Behavioral Health. All license applications are subject to approval by the council.

C. Concurrently with title 19 zoning approval processes, the division will review applications for compliance with all provisions of this chapter, including sections 4.116.030, 4.116.070, and 4.116.080. In addition, the director will conduct a background investigation

of all of the applicant's owners, officers, and principals and any other person the director deems necessary, to determine whether such persons are suitable for involvement with the operations of a medical marijuana establishment.

1. Only applicants that comply with all provisions of this chapter will receive approval by the division. Approval by the division does not constitute final approval or selection for licensure.

a. For an applicant that receives approval by the division, the division will forward its application to the community development department for that department's approval of distance/zoning.

b. An applicant that receives approval by both the division and the community development department will be provided documentation that the applicant may use for the state's provisional certification process.

c. At the conclusion of the state's provisional certification process, all applicants that have received a provisional medical marijuana establishment license will be submitted to the council for final selection of up to the maximum number of medical marijuana establishment licenses allowed within the city.

2. Applicants that fail to be approved by the division shall be notified in writing. Applicants that fail to be approved may request a review pursuant to chapter 4.04.

3. All applicants approved by the council must satisfy all required building and fire inspection criteria, any state inspections, and all applicable food safety inspections by the health department before beginning operations.

D. In conformity with the policy of this chapter, the council may include, but is not limited to, the following criteria when considering applications for approval for licensure:

1. Ranking provided by the Nevada Department of Taxation, if applicable;

2. Location of each facility contained in the application;

3. Plan for integration within the surrounding area;

4. Demonstration of Henderson community involvement and/or proposed Henderson community involvement by the applicants;

5. Information regarding any bankruptcy proceedings involving owners or principals;

6. Information regarding any legal proceedings, regardless of disposition, dealing with business interests of all owners or principals; and

7. Any other information regarding the suitability of the applicant's owners or principals.

E. In conformity with the policy of this chapter, the council may deny a license upon its discretion when:

1. The granting of such license may tend to create or constitute a public nuisance;

2. By the granting of such license, a disorderly establishment or place may be maintained;

3. The granting of such license may seriously and adversely affect the valuation of neighboring, adjoining, and/or contiguous property;

4. The council, after investigation, is satisfied that the applicant is not a fit and proper person to operate the business contemplated by its application;

5. There are sufficient medical marijuana establishments in the area or place to adequately serve such area;

6. Any violation of the DOJ enforcement criteria set forth in subsection 4.116.020(C) has occurred;

7. Any other information related to the suitability of the applicant's owners or principals is presented; or

8. Any other good and sufficient reason is presented.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.100 Applicant—Business premises required.

The division shall not issue a license for a medical marijuana establishment to any applicant unless the applicant has an established place of business in a properly zoned area in accordance with title 19 and has been recommended by the Nevada Department of Taxation as an approved applicant.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.120 Investigation fees—Required—Fees charged.

Any person applying for a medical marijuana establishment license of any of the several types enumerated herein is required to submit to the city an investigation fee, as set forth in chapter 4.03, for each person required to be investigated, including the applicant and each owner, officer, and principal of the applicant and any other person deemed necessary by the director.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.130 Issuance restrictions—Proximity of medical marijuana establishments specified.

Pursuant to its general regulatory authority to regulate the sale, cultivation, infusion or testing of medical marijuana, the council declares that the health, safety, morals and

welfare of the inhabitants of the city are best promoted and protected by requiring a separation between certain medical marijuana uses. All distance requirements between medical marijuana establishments and any developed residential zoning district with an "R" designation are as set forth in title 19. The council retains all discretion to approve or disapprove medical marijuana establishment license applications.
(Ord. No. 3432, § 1, 9-5-2017)

4.116.140 Change of location—Restrictions—Medical marijuana establishment origination fee.

No medical marijuana establishment license is transferable to a new location unless such proposed change of location complies with and meets all requirements of this title and title 19. The council may authorize such change of location, which authorization may be withheld for any reason deemed sufficient by the council. Location changes are subject to an administrative fee as set forth in chapter 4.04. There shall be no medical marijuana establishment origination fee required for a change of location. A change of location must also be approved by the Nevada Department of Taxation pursuant to NRS Chapter 453A.
(Ord. No. 3432, § 1, 9-5-2017)

4.116.150 License—Transfer of license, ownership interest and changes in business control—Council approval required.

A. No medical marijuana establishment license issued or renewed under this chapter can be transferred except with the prior approval of the council and in compliance with all Department of Taxation policies and procedures for transferring of ownership. A new medical marijuana establishment license obtained by assignment or transfer pursuant to this section shall not be subject to an origination fee as set forth in section 4.05.289 of this title when the type of license is the same as the original, valid, license held by the assignee.

B. Any transfer involving five percent or more, or whereby a transferee will acquire an aggregate of five percent or more, of the ownership interest in a medical marijuana establishment, must be reported to the division within 30 days of the change. Transfers of more than 15 percent of the ownership interest, or whereby a transferee will acquire a controlling ownership interest, are also subject to council approval.

C. Any new owner, officer, or principal must comply with the requirements of section 4.116.030 and shall be required to undergo the same background investigation and finding of suitability pursuant to chapter 4.03 and section 4.116.035. Failure of any of the aforementioned persons to obtain a finding of suitability or council approval may result in revocation, limitation or suspension of the medical marijuana establishment license.

D. A person licensed under this chapter shall notify the division of any change to the designated manager in charge of the medical marijuana establishment within 30 days of when the change occurs.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

Editor's note—Ord. No. 3562, § 1, adopted February 5, 2019, changed the title of section 4.116.150 from "License—Permit—Transfer of ownership and changes in business structure—Council approval required" to "License—Transfer of license, ownership interest and changes in business control—Council approval required." The historical notation has been preserved for reference purposes.

4.116.160 Closure or non-operational status—Responsibility to maintain use.

A. In the event a medical marijuana establishment licensee desires to close or discontinue its business operations for any period of time in excess of three months, it must submit a written notification to the division within 30 calendar days of the closure or discontinuance requesting approval for non-operational status beyond the initial three-month period. The notification must include a closure plan detailing the length of closure or period of non-operational status and the licensee's plans for reopening, relocating, selling, or otherwise divesting itself of the business. The licensee may not discontinue operation of the business for more than a three-month period and maintain a valid medical marijuana establishment license without council approval. The council may approve non-operational status of the business beyond the initial three-month period in time increments not to exceed one year but in no event shall the council approve any non-operational status beyond a maximum of two years.

A medical marijuana establishment license shall be automatically revoked at the expiration of the time periods provided by this section unless council approval has been granted pursuant to this section. All semiannual license fees must be paid notwithstanding the licensee's non-operational status. Failure to maintain the fees will result in automatic revocation of the medical marijuana establishment license and termination of the established use.

B. It shall be the responsibility of the licensee to maintain, extend, or renew any necessary land use approvals under title 19.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.170 Issuance moratorium.

The council may declare a moratorium by resolution on any or all medical marijuana establishment applications or licenses if, in its discretion, it is found to be in the best interests of the city.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.180 Land use and location requirements—Compliance with title 19.

A. Locations for certain medical marijuana establishments are subject to distance restrictions as set forth in title 19.

B. The floor plan of an applicant premises under this chapter must be approved pursuant to the requirements of title 19.

C. A medical marijuana establishment license will not be issued unless the location is in accordance with title 19.

D. Approval of a location or of a use permit pursuant to title 19 does not guarantee or constitute approval of any medical marijuana establishment license.

E. Medical marijuana establishments shall be operated in compliance with the requirements set forth in title 19 related to medical marijuana establishments and its operation.
(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.190 Medical marijuana establishments—Interconnectivity allowed.

Medical marijuana establishments may be interconnected in the interior subject to the following:

A. Interconnectivity is limited to dispensary, cultivation and infusion facilities only;

B. The cultivation and infusion facilities shall not be open or available for public ingress or egress except in an emergency;

C. The interconnected establishments shall be subject to the provisions of title 19;

D. The interconnected establishments shall comply with all applicable regulations of the Nevada Department of Taxation, the Nevada Division of Public and Behavioral Health, the Southern Nevada Health District, and the health department; and

E. Operations of interconnected establishments may be impacted due to enforcement actions related to any of the interconnected facilities.
(Ord. No. 3432, § 1, 9-5-2017)

4.116.200 Delivering off premises.

A medical marijuana dispensary may delivery medical marijuana and medical marijuana infused products to patients outside the premises described in the application of the medical marijuana establishment; all such off-site distribution shall be subject to the following:

A. All deliveries of medical marijuana or marijuana-infused products must be conducted by at least one employee of the medical marijuana dispensary.

B. Off-site deliveries may only be made to the legal residence of a medical marijuana registry cardholder or designated primary caregiver and signatures must be recorded from either the cardholder or designated primary caregiver at the time of delivery and maintained for 180 days for inspection.

C. Written procedures for delivery services must be maintained at the medical marijuana dispensary location and made available to the division, upon request.

D. It is the responsibility of the medical marijuana dispensary to verify that the patient has a valid medical marijuana registry identification card each time a delivery occurs.

E. It is the responsibility of the medical marijuana dispensary to verify the patient has not exceeded medical marijuana purchase limits set by the state.

F. If the patient or designated primary caregiver is not present at the address for delivery or is unable to accept delivery of the medical marijuana or medical marijuana infused products then the items for delivery must be returned to the medical marijuana dispensary on the same business day.

G. Delivery must comply with the transportation and delivery regulations in NAC 453A.

H. Third-party delivery services are prohibited.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.210 Intoxication on premises.

It is unlawful for any person, while engaged in the performance of his or her duties, to be under the influence of alcohol, marijuana, or any other controlled substance that is prohibited pursuant to state or federal law, or an illegally obtained or ingested controlled substance that is available by prescription, in or about the premises where the business of dispensing medical marijuana products is being conducted and while such person is engaged in the performance of his or her duties.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.220 Distributing to non-registered persons—Establishment of policy—Copy on premises—Requirement to show.

A. The owners and managers of every medical marijuana establishment that sells, gives, or otherwise furnishes medical marijuana, edible marijuana products, or medical marijuana-infused products shall adopt a policy to prevent any non-registered person from obtaining medical marijuana, edible marijuana products, or medical marijuana-infused products from that establishment.

B. The policy shall be in accordance with all provisions of the Henderson Municipal Code and state law.

C. A copy of the policy shall be kept on the premises at all times and shall be made known to and available to all employees.

D. The policy shall be available upon request by the division or Henderson Police Department.
(Ord. No. 3432, § 1, 9-5-2017)

4.116.230 Minor—Employment.

Except as otherwise provided by state law, it is unlawful for any medical marijuana establishment or marijuana management company to employ a person under the age of 21 years, or to permit a person under the age of 21 years to sell medical marijuana, edible marijuana products, or medical marijuana-infused products.
(Ord. No. 3432, § 1, 9-5-2017)

4.116.240 Suspension—Revocation—Limitation—Penalty.

Any activity which is contrary to the purpose and intent of this chapter, or which violates any ordinance, regulation, or statute of the city or the state, is a violation of this chapter and is grounds for disciplinary action which may result in a revocation, suspension, or limitation of a medical marijuana establishment license and any and all other licenses held within the city. Without limiting the generality of the foregoing, each of the following is declared to be subject to disciplinary action, including but not limited to:

A. Any person who violates any provision of title 4, NRS Chapter 453A, or any Department of Taxation regulation relating to marijuana;

B. Any person who knowingly does any act to sell, lease or purchase a medical marijuana establishment business operation or any portion thereof without taking immediate and affirmative steps to obtain approval;

C. Failure to report the names of all persons having a five percent or greater interest in the ownership of, or having an equitable or beneficial right to five percent or more of the profits of a medical marijuana establishment, including failure to report any change in ownership as required by this chapter;

D. Failure to report all required owners or principals of the applicant or medical marijuana establishment license holder, including failure to report any change to the principals as required by this chapter;

E. Failure to report any lease, operating or management agreement, amendment to management agreement, or any other agreement, irrespective of form affecting the ownership, control, or operation of the medical marijuana establishment;

F. Failure of any person to report any information which is its duty to supply under any statute, ordinance, and/or regulation of the state or city;

G. Allowing any person that becomes ineligible to hold any marijuana establishment license based on conduct subsequent to the issuance of a license, as set out in the statues, ordinances, and/or regulations of the state or city to continue involvement with the establishment;

H. Making any misrepresentation of any material fact;

I. Allowing any person whose medical marijuana establishment license in any other jurisdiction has been revoked for cause to continue involvement with the establishment;

J. Failure to comply in any way with the following factors established by the United States Department of Justice in its Memorandum titled "Guidance Regarding Marijuana Enforcement" dated August 29, 2013:

1. Preventing the distribution of marijuana to minors;

2. Preventing revenue from the sale of marijuana from going to criminal enterprises, gangs, and cartels;

3. Preventing revenue from the sale of marijuana from states where it is legal under state law in some form to other states;

4. Preventing state-authorized marijuana activity from being used as a cover or pretext for the trafficking of other illegal drugs or other illegal activity;

5. Preventing violence and the use of firearms in the cultivation and distribution of marijuana;

6. Preventing drugged driving and the exacerbation of other adverse public health consequences associated with marijuana use;

7. Preventing the growing of marijuana on public lands and the attendant public safety and environmental dangers posed by marijuana production on public lands; and

8. Preventing marijuana possession or use on federal property.

In addition to any revocation, suspension, or limitation, the city may impose a civil penalty in accordance with the provisions of chapter 4.07.

(Ord. No. 3562, § 1, 2-5-2019; Ord. No. 3432, § 1, 9-5-2017)

4.116.250 Medical marijuana establishment responsible for the acts of employees.

Every licensee shall be responsible for the acts of its employees committed while on the licensed premises and during the course and scope of employment. Every licensee shall accordingly use adequate care in the selection of its employees. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense and every licensee accepts its license subject to said condition.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.260 Medical marijuana establishments subject to local government audit.

In addition to the provisions of section 4.04.090, all medical marijuana establishments shall maintain records at the location accurately and truthfully documenting:

A. All records and receipts of the establishment, including, but not limited to, all contributions, reimbursements, and reasonable compensation, whether in cash or in kind, and all expenditures incurred by the business for the cultivation, production, sale or dispensing of marijuana or marijuana products;

B. All records and receipts for the retail sale, transfer or wholesale sale of any marijuana or marijuana product and the corresponding electronic tracking inventory reference as may be required by state law concerning the seed to sale tracking of the medical marijuana establishment's marijuana inventory;

C. An inventory record documenting the dates, amounts, and content testing results of all marijuana cultivated by business, including the amounts of marijuana stored at the location at any given time;

D. A log documenting each transfer of marijuana reflecting the amount transferred, the date transferred, and the full name of the member to whom it was transferred;

E. A log documenting each transfer of marijuana in any form reflecting the amount transferred, the date delivered, and the full name of the employee whom transferred it to another medical marijuana establishment;

F. Any loss, damage or destruction of the records shall be reported to the city within 24 hours of the loss, destruction or damage; and

G. Surveillance cameras must be directly positioned over the cash register in order to provide clear view over the:

1. Area where the tender type (cash, credit card or checks) is exchanged between the buyer and seller; and

2. Register or computer keys utilized to enter the sales information.

(Ord. No. 3432, § 1, 9-5-2017)

4.116.270 Reserved.

Chapter 4.118 RETAIL MARIJUANA REGULATIONS AND LICENSES

Sections:

4.118.010 Definitions.
4.118.020 Purpose and intent.
4.118.030 License required—Privilege—Issuance prohibited to designated persons.
4.118.035 Finding of suitability.
4.118.040 Unlawful to operate without marijuana establishment license.
4.118.050 Reserved.
4.118.060 Reserved.
4.118.070 Conditions applying to specific location/business types.
4.118.080 License—Application—Contents—General.
4.118.090 Application process.
4.118.100 Applicant—Business premises required.
4.118.120 Investigation fees—Required—Fees charged.
4.118.130 Issuance restrictions—Proximity of marijuana establishments specified.
4.118.140 Change of location—Restrictions—Marijuana establishment origination fee.
4.118.150 License—Transfer of license, ownership interest and changes in business control—Council approval required.
4.118.160 Closure or non-operational status—Responsibility to maintain use.
4.118.170 Issuance of moratorium.
4.118.180 Land use and location requirements—Compliance with title 19.
4.118.190 Marijuana establishments—Interconnectivity allowed.
4.118.200 Delivering off premises and preordered onsite pickup.
4.118.210 Intoxication on premises.
4.118.220 Distributing to minors—Establishment of policy—Copy on premises—Requirement to show.
4.118.230 Minor—Employment.
4.118.240 Suspension—Revocation—Limitation—Penalty.
4.118.250 Marijuana establishment responsible for the acts of employees.
4.118.260 Marijuana establishments subject to local government audit.
4.118.270 Public consumption of marijuana—Prohibition.

4.118.010 Definitions.

Whenever used in this chapter, the following words must have the meanings ascribed in this section, unless the context clearly indicates a different meaning:

Applicant shall have the same meaning as set forth in chapter 4.04, as may be amended.

Business interest means a person that holds a financial interest or any other affiliated interest in a marijuana establishment.

Consumer shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Employee means an employee, independent contractor, agent, or volunteer of a marijuana establishment, or employee of a marijuana management company.

Gross revenue, as used in connection with the determination of license fees, means the total amount of the sale price of all goods sold, originating in the city and regardless of destination. All such totals are to be calculated without any deduction therefrom on account of the cost of the property sold, cost of materials used, labor or service costs, interest paid or payable, or any other expense whatsoever provided; however, that cash discounts allowed or taken on sales or services, all taxes, all allowances for bad debts, and all revenues derived from business operations covered by another city business license or licenses, shall be excluded from gross sales.

Inventory control system shall have the meaning set forth in NRS 453A.108, as may be amended or renumbered.

Key employee shall have the meaning as set forth in section 4.04.010, as may be amended or renumbered.

Legal residence shall have the same meaning as set forth in NRS 10.155, as may be amended or renumbered.

Manager in charge is the responsible individual for the marijuana establishment that has been given local operational control of the business by all other principals. The individual designated as the manager in charge must be a legal resident of Nevada and have been found suitable pursuant to this chapter.

Marijuana shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Marijuana cultivation facility shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Marijuana distributor shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Marijuana establishment shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Marijuana management company shall have the same meaning as set forth in subsection 4.05.289.02.

Marijuana products shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Marijuana product manufacturing facility shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Marijuana paraphernalia shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Marijuana testing facility shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.

Owner means any individual, partnership, limited partnership, association, limited liability company, or corporation, including the partners, managers and members of any such partnership, limited partnership, association, or limited liability company, who has a business interest in a marijuana establishment or who has an equitable or beneficial right to the profits of a marijuana establishment.

Principal means:

A. All owners, partners, members, stockholders, employees, and any other person with a direct or indirect ownership interest or voting control equal to or greater than five percent of the business. If the ownership interest or voting control is held by a person or business structure other than a natural person, then each officer, director, member, trustee, beneficiary, or general partner of such person or business is a principal unless otherwise determined by the director.

B. Any key employee, manager in charge, or any other person who is or will be directly engaged in the administration or supervision of the business; and

C. Any other person if, in the director's opinion, the person exercises, or is capable of exercising, significant influence over the business, including, but not limited to, a natural person or corporate entity that provides a source of funding for the initial capitalization and/or the ongoing payment of expenses for the business.

Process means to harvest, dry, cure, trim and separate parts of the marijuana cultivation facilities, to purchase marijuana and marijuana products from marijuana product manufacturing facilities and retail marijuana stores, and to sell marijuana and marijuana products to customers.

Public place means an area to which the public is invited or in which the public is permitted regardless of age. "Public place" does not include a retail marijuana store.

Retail marijuana store shall have the same meaning as set forth in NRS 453D.030, as may be amended or renumbered.
(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.020 Purpose and intent.

A. In November 2016, the voters of the state passed an initiative amending Article 4 of the Nevada Constitution to allow for the regulation of retail sales of marijuana in a manner similar to alcohol. In 2017, the Nevada State Legislature passed, and the governor signed

into law, Senate Bills 487, 344 and Assembly Bill 422, which further defined and clarified local government's role in the regulation of retail sales of marijuana, cultivation of marijuana, manufacturing of marijuana products and marijuana distributors in the state.

B. While the council recognizes that the retail sale of marijuana has been approved by the voters of this state; there are many negative secondary effects that have been reported in communities that authorize the retail sale of marijuana, such as an increase in violent crimes, theft, traffic, noise, drug and gang activity, and firearms violations. Therefore, the public health, safety, and welfare of the inhabitants of the city require the regulation of all businesses engaged in the business of marijuana sales, cultivation, infusion or testing.

C. Federal law makes it unlawful to cultivate, possess, distribute, or dispense marijuana. However, on August 29, 2013, the United States Department of Justice ("DOJ") issued a memorandum advising that the DOJ would allow enforcement of state laws that authorize marijuana production, distribution, and possession to be handled primarily by state and local law enforcement regulatory bodies as long as the state and local governments enact laws that implement "strong and effective regulatory enforcement systems" to address the federal government's identified enforcement priorities. The following enforcement priorities were specified by the DOJ as being particularly important to the federal government:

1. Preventing the distribution of marijuana to minors;

2. Preventing revenue from the sale of marijuana from going to criminal enterprises, gangs, and cartels;

3. Preventing the diversion of marijuana from states where it is legal under state law in some form to other states;

4. Preventing state-authorized marijuana activity from being used as a cover or pretext for the trafficking of other illegal drugs or other illegal activity;

5. Preventing violence and the use of firearms in the cultivation and distribution of marijuana;

6. Preventing drugged driving and the exacerbation of other adverse public health consequences associated with marijuana use;

7. Preventing the growing of marijuana on public lands and the attendant public safety and environmental dangers posed by marijuana production on public lands; and

8. Preventing marijuana possession or use on federal property.

D. Accordingly, in addition to protecting the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public, this chapter is intended to adequately address these enforcement priorities.
(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.030 License required—Privilege—Issuance prohibited to designated persons.

All marijuana establishments as defined in this chapter shall be licensed and controlled so as to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public.

A. The right to obtain and maintain a license under this chapter is a privilege and the operation of such marijuana sales, cultivation, infusion or testing facilities is a privileged business subject to regulations. The license may be revoked for violation of the conditions of this chapter, including those conditions set forth in section 4.118.240; the laws of the state; other ordinances of the city; the DOJ enforcement priorities cited in subsection 4.118.020(C); or for any other cause deemed sufficient by the council in the exercise of its sole discretion.

B. In conformity with the policy of this chapter, the following persons are declared unqualified to hold a marijuana establishment license under the provisions of this chapter:

1. A person whose state registration certificate, license issued under the provisions of this chapter, or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of medical marijuana dispensing or the retail sale of marijuana, cultivation, infusion or laboratory services, has been suspended or revoked for cause;

2. A person, who at the time of renewal of any license issued under this chapter, would not be eligible for such license upon a first application;

3. Any applicant that fails to obtain a finding of suitability from the director for each appropriate person or principal as required under the provisions of chapter 4.03 and in accordance with section 4.118.035;

4. A person who does not beneficially own the premises for which a license is sought or does not have a lease which can be verified thereon for the full period for which the license is to be used;

C. For the purposes of this chapter, only marijuana establishments that will cultivate, dispense, infuse/produce edible marijuana products or provide laboratory testing at an approved location pursuant to title 19 may be licensed as a marijuana establishment.

D. A marijuana establishment license will not be issued to an applicant that has not had the appropriate individuals, set forth in this chapter, undergo a background investigation and finding of suitability pursuant to sections 4.03.020 and 4.118.035. In his

or her discretion, the director may accept an equivalent background investigation conducted by the Nevada Department of Taxation or another government entity or agency.

E. No marijuana establishment license shall be issued to an applicant unless its ownership, irrespective of corporate or business structure can ultimately be traced to ownership or control by a natural person or persons.

(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.035 Finding of suitability.

In addition to the requirements of chapter 4.03, an individual applicant or each principal of an applicant must be found suitable by the director and meet the following requirements:

A. Such individuals must be 21 years or older;

B. Such individuals shall not have been convicted of a felony or any crime of moral turpitude as may be further defined in chapter 4.04 and must provide an identity history summary check provided by the Federal Bureau of Investigation or similar background check document deemed sufficient by the director at the cost of the applicant; and

C. Such individuals shall not have had a license, issued or renewed under the provisions of this chapter or those ordinances or statutes of any other agency lawfully engaged in the licensing or regulation of marijuana sales, cultivation, infusion or laboratory services, that has been suspended or revoked for cause.

(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.040 Unlawful to operate without marijuana establishment license.

It shall be unlawful for any person to operate, conduct or carry on any marijuana establishment as described in this chapter within the city without first obtaining and thereafter maintaining a marijuana establishment license as herein required and paying the fee(s) as set forth in chapter 4.05.

Notwithstanding this provision, marijuana is currently classified as a Schedule I drug under the Controlled Substances Act ("CSA") 21 U.S.C. Section 841(a)(1), and federal law makes it unlawful to manufacture, distribute, dispense or possess any controlled substance.

(Ord. No. 3433, § 1, 9-5-2017)

4.118.050 Reserved.

4.118.060 Reserved.

4.118.070 Conditions applying to specific location/business types.

A. General requirements for all marijuana establishments except independent testing laboratories:

1. Marijuana establishments must have at least one responsible key employee on the licensed premises to act as the establishment's agent at all times when employees or customers are present on the premises. The key employee must comply with the provisions set forth in section 4.04.180.

2. Marijuana establishments must make available to the division at any time a list of all employees that are authorized to be on premises, which list must include the employees designated as key employees.

3. All marijuana establishment employees must have on their person a valid marijuana establishment agent identification card issued by the state at all times when at the marijuana establishment location.

4. All independent contractors, maintenance and business professionals allowed access to a marijuana establishment where the general public does not have access must be logged and given visitor identification. This identification must be displayed on the person of the individual at all times while on the premises of the marijuana establishment.

5. A marijuana establishment may not allow the use, smoking, ingestion or consumption of any marijuana, edible marijuana product, or marijuana-infused product on the licensed premises.

6. Any theft in excess of $250.00 in retail value of marijuana seedlings, clones, plants, or other plant materials, extract, marijuana-infused product, or other item containing marijuana must be reported to the Henderson Police Department and the division in writing within 24 hours of the theft.

7. To prevent unauthorized access to marijuana at a marijuana establishment the establishment must be in compliance with all security requirements adopted by the Cannabis Compliance Board and set forth in NRS Title 56.

8. Marijuana establishments must develop and enforce policies and procedures:

a. That restrict access to the areas of the establishment where the general public does not have access that contain marijuana or marijuana-infused products, to individuals authorized to be in that area only;

b. That provide for the identification of individuals authorized to be in the areas where the general public does not have access of the establishment that contain marijuana or marijuana-infused products;

c. That prevent loitering;

d. For conducting electronic monitoring; and

e. That prevents the distribution of marijuana to minors.

9. Marijuana establishments must have an agreement with an authorized waste management service or other approved plan to remove and destroy all waste generated from the cultivation, infusion or dispensing of marijuana from the location. Disposal of waste must meet all state and federal guidelines. Waste must be maintained in a secure location until removal from the location. Waste must be rendered unusable by grinding and incorporating the marijuana waste with non-marijuana waste, such that the resulting mixture is at least 50 percent non-marijuana waste. This requirement shall be required of all businesses that are licensed pursuant to Title 4 that may come into possession of unwanted marijuana products.

10. Marijuana establishments are required to use an inventory control system compliant with NRS Title 56, and state Cannabis Compliance Board regulations to track all inventories that includes marijuana clones, marijuana plants, harvested marijuana product for dispensing, edible or infused items or harvested marijuana product sent to independent testing laboratories.

11. Marijuana establishments are required to comply with all standards set forth by Henderson Building and Fire safety officials prior to conducting business.

12. All officers, principals, and employees of the marijuana establishment shall be required to obtain and maintain a valid marijuana establishment agent registration card in compliance with NRS Title 56, and state Cannabis Compliance Board regulations.

B. Retail marijuana stores.

1. There shall be no more than 11 total cannabis sales facility establishments (as defined in NRS 678A.130) in the city.

a. A retail marijuana store may be operated in conjunction with an existing medical marijuana establishment at the same address, so long as it is licensed by the same license holder as the medical marijuana dispensary.

b. A co-located establishment operating pursuant to subsection B.1.a. shall be considered a single cannabis sales facility establishment for purposes of subsection B.1.

2. A retail marijuana store shall have a lobby waiting area at the entrance to the dispensary to receive clients, and a separate and secure designated area for dispensing marijuana to customers. The primary entrance shall be maintained clear of barriers, landscaping and similar obstructions so that it is clearly visible from public streets, sidewalks or site parking areas.

3. If employing private security the security provider must be licensed in accordance with this title and NRS Chapter 648.

4. Retail marijuana stores must display in the lobby waiting area a placard no smaller than 18 inches tall by 20 inches wide that states the following:

a. Federal law makes it unlawful to possess and consume marijuana products;

b. Marijuana products cannot be transferred, shared or gifted to any other individual;

c. Do not operate heavy machinery or automobiles while under the influence of marijuana;

d. Marijuana has intoxicating effects and may be habit forming;

e. There may be health risks associated with consumption of marijuana;

f. Marijuana should not be used by women who are pregnant or breast feeding; and

g. Marijuana should be kept in a secure location and out of reach of minors and pets.

5. Except as otherwise provided in this subsection, it shall be unlawful for any person to advertise any marijuana, edible marijuana product or marijuana-infused product anywhere in the city where the advertisement is visible to members of the public from any street, sidewalk, park or other public place, including advertising utilizing any of the following media:

a. Any hand-held, human signage or other portable sign;

b. Any handbill, leaflet or flier directly handed to any individual, deposited, fastened, thrown, scattered, cast or placed in a public place, left upon a motor vehicle, or posted upon any public property, right-of-way or private property without the consent of the property owner;

c. Any sign mounted or displayed on a vehicle;

d. Any free promotional materials.

6. Retail marijuana stores are prohibited from offering for sale the following:

a. Any alcoholic beverage, liquor or spirits as defined in chapter 4.36;

b. Any products containing nicotine;

c. Any non-marijuana food or beverages;

d. Any personal care items except those sold in compliance with NCCR 7.030;

7. Any retail marijuana store offering for sale non-marijuana based products, including but not limited to, clothing, souvenirs, hats or keychains must comply with state laws and regulations, including but not limited to NRS Title 56 and any regulations set forth in the Nevada Cannabis Compliance Regulations;

8. Any paraphernalia offered for sale must be designed for individual use only;

9. A marijuana dispensary is limited to ten percent of retail space for paraphernalia, not to include the lobby area.

10. Prior to conducting any sales in accordance with subsections 7 and 8 of subsection B of this section a license must be obtained pursuant to section 4.05.010 and thereafter be maintained in order to offer sales of the specified items.

11. All marijuana products sold must be enclosed in childproof packaging designed and constructed consistent with state law.

C. Marijuana cultivation facilities.

1. Cultivation areas of the establishment must be in compliance with regulations set forth in NRS Title 56, and state Cannabis Compliance Board regulations. The city reserves the right to enforce these sections and may levy sanctions to a marijuana establishment based on non-compliance that may include citations and fines, civil penalties, and suspension and revocation of licensure pursuant to chapter 4.06.

2. Areas designated for deliveries from suppliers or couriers must be separated from cultivation areas by floor to ceiling walls and locking doors.

3. Marijuana establishments are encouraged to use the most efficient process for the conservation of water resources.

D. Marijuana product manufacturing facility.

1. Production of edible and infused marijuana products must be in compliance with NRS Title 56, and state Cannabis Compliance Board regulations. The city reserves the right to enforce these sections and may levy sanctions to a marijuana establishment based on non-compliance that may include citations and fines, civil penalties, and suspension and revocation of licensing pursuant to chapter 4.06.

2. Areas designated for deliveries from suppliers or couriers must be separated from production areas by floor to ceiling walls and locking doors.

3. Except as otherwise provided in this subsection, use of flammable gases including, but not limited to, butane and propane are prohibited for the extraction of oils from marijuana plants. Extraction processes utilizing flammable gasses may be permitted upon approval of the fire chief. These systems, processes and processing areas must, at a minimum:

a. Be located in premises that are verified by an independent, qualified industrial hygienist and a Nevada licensed engineer as safe and in compliance with all applicable codes;

b. Utilize listed or approved closed-loop extraction systems;

c. Ensure all flammable gas/liquid transfers shall take place within a chemical fume hood having electrical system classified for a hazardous atmosphere in accordance with the most recent edition of National Fire Protection Association (NFPA) 45, Standard on Fire Protection for Laboratories Using Chemicals, spray booth or spay room complying with the Henderson Fire Code; and

d. Utilize flammable gas monitoring that sound local alarms and close gas valves at levels greater than 25 percent of lower explosive limit (LEL).

4. Other extraction processes involving flammable gasses or hazardous materials as defined in the Henderson Fire Code may be permitted upon approval of the fire chief and approval of the associated use permit by city council.

5. Solvents fit for human consumption shall be permitted in the extraction process.

6. Production of edible and infused marijuana products must be in compliance with all current and future standards set by the Cannabis Compliance Board, the Nevada Division of Public and Behavioral Health and the Southern Nevada Health District for preparation and handling of items meant for human consumption.

E. Independent testing laboratories. Independent testing laboratories for marijuana products must be in compliance with NRS Title 56, and state Cannabis Compliance Board regulations. The city reserves the right to enforce these sections and may levy sanctions to a marijuana establishment based on non-compliance that may include citations and fines, civil penalties, and suspension and revocation of licensing pursuant to chapter 4.06.

F. Marijuana management companies.

1. Each marijuana management company as defined in section 4.05.289 shall maintain a marijuana management business license as set forth in this chapter and comply with the applicable provisions of this chapter including the following requirements:

a. A marijuana management company shall not, in whole or in part, own or control a marijuana establishment, including but not limited to any of its owners, principals, or employees serving as an owner or principal of a marijuana establishment.

b. Any and all contracts, agreements, and other controlling documents between the marijuana management company and the marijuana establishment shall be made available to the division prior to issuance or renewal of a marijuana management license, and at any other time upon request by the division.

c. Marijuana management companies must have at least one responsible key employee on the premises to act as the marijuana establishment's agent at all times when there are employees, customers, distributors, or other third-parties are-present on the premises. The key employee must comply with the provisions set forth in section 4.04.180.

d. Marijuana management companies must make available to the division at any time a list of all employees that are authorized to be on premises, which list must designate which employees are key employees.

e. All marijuana management company employees must have on their person a valid marijuana establishment agent identification card issued by the state at all times when at the marijuana establishment location.

(Ord. No. 3963, § 1, 5-16-2023; Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.080 License—Application—Contents—General.

A. Whenever a person desires to open, keep, carry on or conduct any marijuana establishment in the city, or engage in the business thereof, such person must make application in writing to the division to obtain a marijuana establishment license. The application must be submitted at the time of application for purposes of receiving written approval on distance and zoning requirements pursuant to title 19.

B. As part of the application process, an applicant shall make all individuals referenced in section 4.118.035 available for a background investigation under the provisions of chapter 4.03 and a finding of suitability under section 4.118.035.

C. Prior to issuance of a marijuana establishment license, the applicant receiving such a license shall execute, and shall have each of its owners, officers, and principals with the authority to bind the licensee execute, an indemnification and release agreement with the city on a form approved by the city attorney, and the applicant shall, if applicable, pay the non-refundable indemnification and release agreement fee set forth in subsection 4.05.289(E) of this title.

D. Marijuana establishment applications must contain:

1. Completed Henderson application and attestations.

2. Documentation from an in-state or out-of-state financial institution which demonstrates that the applicant has liquid assets as required by NRS 453A.322, NRS Chapter 453D, and state Department of Taxation regulations, which are unencumbered and can be converted within 30 days and the source of such assets.

3. Proposed organizational structure that lists all owners and principals by name and their percentage of ownership.

4. Any lease, operating or management agreement, or any other agreement, irrespective of form, affecting the ownership, control, or operation of the proposed marijuana establishment.

5. Security plan that includes customer, building and product security measures.

6. Operations manual that demonstrates compliance with all state and local laws and ordinances.

7. Background information/resume highlighting any previous experience at or operating other businesses or non-profit organizations, including educational achievements and demonstrated knowledge of the marijuana industry.

8. The identity of a manager in charge that can demonstrate permanent residence in the State of Nevada prior to issuance of the license pursuant to this chapter.

9. Any additional information deemed necessary by the division or the director.

(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.090 Application process.

A. If or when additional retail marijuana registration certificates are made available by the state, the city council may, by resolution, accept an allocation of additional certificates. So long as an application would not result in a number of licenses in excess of the allocated certificates determined by the city council, the division may accept applications for applicants currently in possession of a valid provisional or finalized registration certificate.

B. Regardless of whether an applicant has received a license from the state, all applicants shall be subject to all application, backgrounding, indemnification and other fees consistent with state law set forth in chapter 4.05, and must comply with all provisions in this chapter, section 19.5.5.Y, any requirements of NRS Chapter 453D, and any applicable regulations issued by the Nevada Department of Taxation or the Nevada Division of Public and Behavioral Health. All license applications are subject to approval by the council.

C. Concurrently with title 19 zoning approval processes, the division will review applications for compliance with all provisions of this chapter, including sections 4.118.030, 4.118.070, and 4.118.080. In addition, the director will conduct a background investigation

of all of the applicant's owners, officers, and principals, and any other person the director deems necessary, to determine whether such persons are suitable for involvement with the operations of a marijuana establishment.

1. Only applicants that comply with all provisions of this chapter will receive approval by the division. Approval by the division does not constitute final approval or selection for licensure.

a. For an applicant that receives approval by the division, the division will forward its application to the community development department for that department's approval of distance/zoning.

b. An applicant that receives approval by both the division and the community development department will be provided documentation that the applicant may use for the state's provisional certification process.

c. At the conclusion of the state's provisional certification process, all applicants that have received a provisional marijuana establishment license will be submitted to the council for final selection of up to the maximum number of marijuana establishment licenses allowed within the city.

2. Applicants that fail to be approved by the division shall be notified in writing. Applicants that fail to be approved may request a review pursuant to chapter 4.04.

3. All applicants approved by the council must satisfy all required building and fire inspection criteria, any state inspections, and all applicable food safety inspections by the health department before beginning operations.

D. In conformity with the policy of this chapter, the council may include, but is not limited to, the following criteria when considering applications for approval for licensure:

1. Ranking provided by the Nevada Department of Taxation, if applicable;

2. Location of each facility contained in the application;

3. Plan for integration within the surrounding area;

4. Demonstration of Henderson community involvement and/or proposed Henderson community involvement by the applicants;

5. Information regarding any bankruptcy proceedings involving owners or principals;

6. Information regarding any legal proceedings, regardless of disposition, dealing with business interests of all owners or principals; and

7. Any other information regarding the suitability of the applicant's owners or principals.

E. In conformity with the policy of this chapter, the council may deny an application upon its discretion when:

1. The granting of such license may tend to create or constitute a public nuisance;

2. By the granting of such license, a disorderly establishment or place may be maintained;

3. The granting of such license may seriously and adversely affect the valuation of neighboring, adjoining, and/or contiguous property;

4. The council, after investigation, is satisfied that the applicant is not a fit and proper person to operate the business contemplated by its application;

5. There are sufficient marijuana establishments in the license area to adequately serve such area;

6. Any violation of the DOJ enforcement criteria set forth in subsection 4.118.020(C) has occurred;

7. Any other information related to the suitability of the applicant's owners or principals is presented; or

8. Any other good and sufficient reason is presented.

(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.100 Applicant—Business premises required.

The division shall not issue a license for a marijuana establishment to any applicant unless the applicant has an established place of business in a properly zoned area in accordance with title 19 and has been recommended by the Nevada Department of Taxation as an approved applicant.

(Ord. No. 3433, § 1, 9-5-2017)

4.118.120 Investigation fees—Required—Fees charged.

Any person applying for a marijuana establishment license of any of the several types enumerated herein is required to submit to the city an investigation fee, as set forth in chapter 4.03, for each person required to be investigated, including the applicant and each owner, officer, and principal of the applicant and any other person deemed necessary by the director.

(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.130 Issuance restrictions—Proximity of marijuana establishments specified.

Pursuant to its general regulatory authority to regulate the sale, cultivation, infusion or testing of marijuana, the council declares that the health, safety, morals and welfare of the

inhabitants of the city are best promoted and protected by requiring a separation between certain marijuana uses. All distance requirements between marijuana establishments and any developed residential zoning district with an "R" designation are as set forth in title 19. The council retains all discretion to approve or disapprove marijuana establishment license applications.
(Ord. No. 3433, § 1, 9-5-2017)

4.118.140 Change of location—Restrictions—Marijuana establishment origination fee.

No marijuana establishment license is transferable to a new location unless such proposed change of location complies with and meets all requirements of this title and title 19. The council may authorize such change of location, which authorization may be withheld for any reason deemed sufficient by the council. Location changes are subject to an administrative fee as set forth in chapter 4.04. There shall be no marijuana establishment origination fee required for a change of location. A change of location must also be approved by the Nevada Department of Taxation pursuant to the regulations adopted by the Department of Taxation.
(Ord. No. 3433, § 1, 9-5-2017)

4.118.150 License—Transfer of license, ownership interest and changes in business control—Council approval required.

A. No marijuana establishment license issued or renewed under this chapter can be transferred except with the prior approval of the council and in compliance with all Department of Taxation policies and procedures for transferring of ownership. A new marijuana establishment license obtained by assignment or transfer pursuant to this section shall not be subject to an origination fee as set forth in section 4.05.289 of this title when the type of license is the same as the original, valid, license held by the assignee or transferee.

B. Any transfer involving five percent or more, or whereby a transferee will acquire an aggregate of five percent or more, of the ownership interest in a marijuana establishment, must be reported to the division within 30 days of the change. Transfers of more than 15 percent of the ownership interest, or whereby a transferee will acquire a controlling ownership interest, are also subject to council approval.

C. Any new owner, officer, or principal must comply with the requirements of section 4.118.030 and shall be required to undergo the same background investigation and finding of suitability pursuant to chapter 4.03 and section 4.118.035. Failure of any of the aforementioned persons to obtain a finding of suitability or council approval may result in revocation, limitation or suspension of the marijuana establishment license.

D. A person licensed under this chapter shall notify the division of any change to the designated manager in charge of the marijuana establishment within 30 days of when the change occurs.

(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

Editor's note—Ord. No. 3563, § 1, adopted February 5, 2019, changed the title of section 4.118.150 from "License—Permit—Transfer of ownership and changes in business structure—Council approval required" to "License—Transfer of license, ownership interest and changes in business control—Council approval required." The historical notation has been preserved for reference purposes.

4.118.160 Closure or non-operational status—Responsibility to maintain use.

A. In the event a marijuana establishment licensee desires to close or discontinue its business operations for any period of time in excess of three months, it must submit a written notification to the division within 30 calendar days of the closure or discontinuance requesting approval for non-operational status beyond the initial three-month period. The notification must include a closure plan detailing the length of closure or period of non-operational status and the licensee's plans for reopening, relocating, selling, or otherwise divesting itself of the business. The licensee may not discontinue operation of the business for more than a three-month period and maintain a valid marijuana establishment license without council approval. The council may approve non-operational status of the business beyond the initial three-month period in time increments not to exceed one year but in no event shall the council approve any non-operational status beyond a maximum of two years.

A marijuana establishment license shall be automatically revoked at the expiration of the time periods provided by this section unless council approval has been granted pursuant to this section. All semiannual license fees must be paid notwithstanding the licensee's non-operational status. Failure to maintain the fees will result in automatic revocation of the marijuana establishment license and termination of the established use.

B. It shall be the responsibility of the licensee to maintain, extend, or renew any necessary land use approvals under title 19.

(Ord. No. 3433, § 1, 9-5-2017)

4.118.170 Issuance of moratorium.

The council may declare a moratorium by resolution on any or all marijuana establishment applications or licenses if, in its discretion, it is found to be in the best interests of the city.

(Ord. No. 3433, § 1, 9-5-2017)

4.118.180 Land use and location requirements—Compliance with title 19.

A. Locations for certain marijuana establishments are subject to distance restrictions as set forth in title 19.

B. The floor plan of an applicant premises under this chapter must be approved pursuant to the requirements of title 19.

C. A marijuana establishment license will not be issued unless the location is in accordance with title 19.

D. Approval of a location or of a use permit pursuant to title 19 does not guarantee or constitute approval of any marijuana establishment license.

E. Marijuana establishments shall be operated in compliance with the requirements set forth in title 19 related to marijuana establishments and its operation.
(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.190 Marijuana establishments—Interconnectivity allowed.

Marijuana establishments may be interconnected in the interior subject to the following:

A. Interconnectivity is limited to dispensary, cultivation and infusion facilities only;

B. The cultivation and infusion facilities shall not be open or available for public ingress or egress except in an emergency;

C. The interconnected establishments shall be subject to the provisions of title 19;

D. The interconnected establishments shall comply with all applicable regulations of the Nevada Department of Taxation, the Nevada Division of Public and Behavioral Health, the Southern Nevada Health District, and the health department; and

E. Operations of interconnected establishments may be impacted due to enforcement actions related to any of the interconnected facilities.
(Ord. No. 3433, § 1, 9-5-2017)

4.118.200 Delivering off premises and preordered onsite pickup.

A. An adult-use cannabis retail store may deliver cannabis or cannabis products to a consumer subject to the provisions of NCCR 7.040 through 7.055 and the following:

1. Deliveries shall only be conducted by cannabis establishment agents with a valid registration card;

2. Before providing the cannabis or cannabis products to the consumer, the cannabis establishment agent must verify that the consumer is 21 years of age or older by checking the consumer's valid government-issued identification card with an approved identification scanner;

3. Deliveries may not exceed the per customer and per vehicle amounts of cannabis permitted by state law and regulations;

4. The delivery of cannabis or cannabis products to consumers on the premises of any restricted or non-restricted gaming establishment is prohibited;

5. A cannabis sales facility shall maintain all documents and records required by NCCR 7.040 to 7.055, which shall be made available during business hours to the director, or the director's designee, for review upon request; and

6. Deliveries must comply with NRS Title 56, the Nevada Cannabis Compliance Regulations, and all state laws and regulations governing delivery and transportation of cannabis or cannabis products.

B. Deliveries under this section made by a cannabis establishment agent or an independent contractor subject to the following:

1. The independent contractor must hold a valid cannabis delivery business license issued by the city pursuant to section 4.05.197;

2. The independent contractor must have entered into a service agreement with the cannabis retail store for delivery to consumers using only cannabis establishment agents who hold a cannabis establishment agent registration card in the category of cannabis sales facility; and

3. Any cannabis retail store establishment that contracts or otherwise utilizes an independent contractor/cannabis delivery business shall be jointly responsible for the conduct and business operations of the independent contractor and its employees. Any misconduct by the independent contractor shall be attributable to the independent contractor, the cannabis establishment agent, and the cannabis retail store establishment and may subject each to disciplinary action as appropriate.

C. The "delivery" authorized by this section, also authorizes the onsite delivery of preordered cannabis or cannabis products to a customer by window, or curbside pickup at designated locations, subject to the requirements of title 19 and the NCCRs.

(Ord. No. 3963, § 2, 5-16-2023; Ord. No. 3433, § 1, 9-5-2017)

Editor's note—Ord. No. 3963, § 2, adopted May 16, 2023, changed the title of section 4.118.200 from "Delivering off premises" to "Delivering off premises and preordered onsite pickup." The historical notation has been preserved for reference purposes.

4.118.210 Intoxication on premises.

It is unlawful for any person, while engaged in the performance of his or her duties, to be under the influence of alcohol, marijuana, or any other controlled substance that is prohibited pursuant to state or federal law, or an illegally obtained or ingested controlled substance that is available by prescription, in or about the premises where the business of selling marijuana products is being conducted and while such person is engaged in the performance of his or her duties.
(Ord. No. 3433, § 1, 9-5-2017)

4.118.220 Distributing to minors—Establishment of policy—Copy on premises—Requirement to show.

A. The owners and managers of every marijuana establishment that sells, gives, or otherwise furnishes marijuana, edible marijuana products, or marijuana-infused products shall adopt a policy to prevent any person under 21 years of age from obtaining marijuana, edible marijuana products, or marijuana-infused products from that establishment.

B. The policy shall be in accordance with all provisions of the Henderson Municipal Code and state law.

C. A copy of the policy shall be kept on the premises at all times and shall be made known to and available to all employees.

D. The policy shall be available upon request by the division or Henderson Police Department.
(Ord. No. 3433, § 1, 9-5-2017)

4.118.230 Minor—Employment.

Except as otherwise provided by state law, it is unlawful for any marijuana establishment to employ a person under the age of 21 years, or to permit a person under the age of 21 years to sell marijuana, edible marijuana products, or marijuana-infused products.
(Ord. No. 3433, § 1, 9-5-2017)

4.118.240 Suspension—Revocation—Limitation—Penalty.

Any activity which is contrary to the purpose and intent of this chapter, or which violates any ordinance, regulation, or statute of the city or the state, is a violation of this chapter and is grounds for disciplinary action which may result in a revocation, suspension, or limitation

of a marijuana establishment license and any and all other licenses held within the city. Without limiting the generality of the foregoing, each of the following is declared to be subject to disciplinary action, including but not limited to:

A. Any person who violates any provision of title 4, NRS Chapter 453D, or any Department of Taxation regulation relating to marijuana;

B. Any person who knowingly does any act to sell, lease or purchase a marijuana establishment business operation or any portion thereof without taking immediate and affirmative steps to obtain approval;

C. Failure to report the names of all persons having a five percent or greater interest in the ownership of, or having an equitable or beneficial right to five percent or more of the profits of a marijuana establishment, including failure to report any change in ownership as required by this chapter;

D. Failure to report all required owners or principals of the applicant or marijuana establishment license holder, including failure to report any change to the principals as required by this chapter;

E. Failure to report any lease, operating or management agreement, amendment to management agreement, or any other agreement, irrespective of form affecting the ownership, control, or operation of the marijuana establishment;

F. Failure of any person to report any information which is its duty to supply under any statute, ordinance, and/or regulation of the state or city;

G. Allowing any person that becomes ineligible to hold any marijuana establishment license based on conduct subsequent to the issuance of a license, as set out in the statues, ordinances, and/or regulations of the state or city to continue involvement with the establishment;

H. Making any misrepresentation of any material fact;

I. Allowing any person whose marijuana establishment license in any other jurisdiction has been revoked for cause to continue involvement with the establishment;

J. Failure to comply in any way with the following factors established by the United States Department of Justice in its memorandum titled "Guidance Regarding Marijuana Enforcement" dated August 29, 2013:

1. Preventing the distribution of marijuana to minors;

2. Preventing revenue from the sale of marijuana from going to criminal enterprises, gangs, and cartels;

3. Preventing revenue from the sale of marijuana from states where it is legal under state law in some form to other states;

4. Preventing state-authorized marijuana activity from being used as a cover or pretext for the trafficking of other illegal drugs or other illegal activity;
5. Preventing violence and the use of firearms in the cultivation and distribution of marijuana;
6. Preventing drugged driving and the exacerbation of other adverse public health consequences associated with marijuana use;
7. Preventing the growing of marijuana on public lands and the attendant public safety and environmental dangers posed by marijuana production on public lands; and
8. Preventing marijuana possession or use on federal property.

In addition to any revocation, suspension, or limitation, the city may impose a civil penalty in accordance with the provisions of chapter 4.07.

(Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

4.118.250 Marijuana establishment responsible for the acts of employees.

Every licensee shall be responsible for the acts of its employees committed while on the licensed premises and during the course and scope of employment. Every licensee shall accordingly use adequate care in the selection of its employees. In any license suspension, limitation or revocation proceedings, the fact that the licensee did not have actual knowledge of the events complained of shall be no defense and every licensee accepts its license subject to said condition.

(Ord. No. 3433, § 1, 9-5-2017)

4.118.260 Marijuana establishments subject to local government audit.

In addition to the provisions of section 4.04.090, all marijuana establishments shall maintain records at the location accurately and truthfully documenting:

A. All records and receipts of the establishment, including, but not limited to, all contributions, reimbursements, and reasonable compensation, whether in cash or in kind, and all expenditures incurred by the business for the cultivation, production, sale or dispensing of marijuana or marijuana products;

B. All records and receipts for the retail sale, transfer or wholesale sale of any marijuana or marijuana product and the corresponding electronic tracking inventory reference as may be required by state law concerning the seed to sale tracking of the marijuana establishment's marijuana inventory;

C. An inventory record documenting the dates, amounts, and content testing results of all marijuana cultivated by business, including the amounts of marijuana stored at the location at any given time;

D. A log documenting each transfer of marijuana reflecting the amount transferred, the date transferred, and the full name of the member to whom it was transferred;

E. A log documenting each transfer of marijuana in any form reflecting the amount transferred, the date delivered, and the full name of the employee whom transferred it to another marijuana establishment;

F. Any loss, damage or destruction of the records shall be reported to the city within 24 hours of the loss, destruction or damage; and

G. Surveillance cameras must be directly positioned over the cash register in order to provide clear view over the:

1. Area where the tender type (cash, credit card or checks) is exchanged between the buyer and seller; and

2. Register or computer keys utilized to enter the sales information.

(Ord. No. 3433, § 1, 9-5-2017)

4.118.270 Public consumption of marijuana—Prohibition.

The consumption of marijuana shall be prohibited in any public place including, but not limited to any business licensed by title 4, any private club or any advertised private parties. (Ord. No. 3563, § 1, 2-5-2019; Ord. No. 3433, § 1, 9-5-2017)

Title 5

HEALTH AND SANITATION

Chapters:

5.04	Litter
5.17	Solid Waste Management
5.20	Reserved
5.24	Reserved
5.28	Trees and Plants

Chapter 5.04 LITTER

Sections:

5.04.010 Definitions.
5.04.020 Litter on occupied private property.
5.04.030 Owner to maintain premises free of litter.
5.04.040 Litter on vacant lots.
5.04.050 Clearing of litter from open property by city.
5.04.060 Transport of unhealthy vegetable matter prohibited.
5.04.070 Penalties.
5.04.080 Reserved.

5.04.010 Definitions.

For the purpose of this chapter, the following definitions shall apply:

Authorized private receptacle means a litter storage collection receptacle as required and described in HMC 5.17.110.

City means the City of Henderson, Nevada.

Duly authorized officer means any police officer, building inspector, fire inspector, environmental enforcement officer or neighborhood services coordinator.

Garbage means refuse, animal and vegetable matter from a kitchen, market or store, including every refuse accumulation of animal, fruit or vegetable matter, liquid or otherwise, that attends preparation, use, cooking, dealing in or storing of meat, fish, fowl, fruit or vegetable, and all foul and filthy substances.

Litter means "garbage," "refuse" and "rubbish" as defined herein and all other waste material which is thrown, deposited, cast, placed or scattered, as herein prohibited.

Person means any person, firm, partnership, association, corporation, company or organization of any kind.

Private premises means any dwelling, house, building or other structure, designed or used either wholly or in part for private residential purposes, whether uninhabited or temporarily or continuously uninhabited or vacant, and shall include any yard, grounds, walk, driveway, porch, steps, vestibule or mailbox belonging or appurtenant to such dwelling, house, building or other structure.

Public place means any and all streets, sidewalks, boulevards, alleys or other public ways and any and all public parks, squares, grounds and buildings.

Refuse means all putrescible and nonputrescible solid wastes (except body wastes), including garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles, and solid market and industrial wastes.

Rubbish means old tin and iron cans and containers, old wood and paper boxes, old metals, wire, rope, cordage, bottles, bags and bagging, rubber and rubber tires, paper, wood shavings, and all used or cast-off articles or material, including old plaster, brick, cement, glass, old building material, leaves and yard trimmings.
(Ord. No. 3079, § 1, 11-5-2013; Ord. 1771, § 1, 1997; Ord. 1087, § 2 (part), 1988)

5.04.020 Litter on occupied private property.

No person shall throw or deposit litter on any occupied private property within the city, whether owned by such person or not, except that the owner or person in control of private property may maintain authorized private receptacles for collection in such a manner that litter will be prevented from being carried or deposited by the elements upon any street, sidewalk or other public place or upon any private property.
(Ord. 1087, § 2 (part), 1988)

5.04.030 Owner to maintain premises free of litter.

The owner or person in control of any private property shall at all times maintain the premises free of litter. Provided, however, that this section shall not prohibit the storage of litter in authorized private receptacles for collection.
(Ord. 1087, § 2 (part), 1986)

5.04.040 Litter on vacant lots.

No person shall throw or deposit litter on any open or vacant private property within the city whether owned by such person or not.
(Ord. 1087, § 2 (part), 1988)

5.04.050 Clearing of litter from open property by city.

A. Notice to remove. The environmental enforcement officer or any duly authorized officer, is authorized and empowered to notify the owner of any private property within the city or the agent of such owner to properly dispose of litter, garbage, refuse or rubbish located on such owner's property. Such notice shall be by certified mail, addressed to said owner at his last known address.

B. Action upon noncompliance. Upon the failure, neglect or refusal of any owner or agent so notified, to properly dispose of litter, garbage, refuse or rubbish, five days after receipt of written notice provided for in subsection A of this section, or within three days after the date of such notice in the event the same is returned to the city by the post office because of its inability to make delivery thereof, provided the same was properly addressed

to the last known address of such owner, or agent, the environmental enforcement officer or any duly authorized officer, is authorized and empowered to pay for the disposing of such litter, garbage, refuse or rubbish, or to order its disposal by the city.

C. Collection of delinquent charge. When the city has effected the removal of such litter, garbage, refuse or rubbish, or has paid for its removal, the actual cost thereof, plus accrued interest at the rate of six percent per annum from the date of the completion of the work, if not paid by such owner prior thereto, shall be charged to the owner of such property. Such charge shall constitute a lien upon the real property of such owner until such charge is paid, as well as constitute a debt of the record owner(s) of the property and of the person(s) occupying such premises to the city. The city may bring a civil action in any court of competent jurisdiction to recover such charge, or follow the lien procedures set forth in subsection D of this section.

D. Enforcement of lien. The lien established in subsection C of this section shall be enforced in the following manner:

1. By recording in the office of the county recorder, within 400 days following the date on which such charge or fee became delinquent, a notice of the lien signed by the city clerk or the city clerk's designee, containing the following:

a. The amount of charge;

b. The name of the record owner(s) of the property;

c. A description of the property sufficient for identification.

2. By an action for foreclosure by the city against such property in the same manner as an action for foreclosure of any other lien, commenced within two years after the date of recording of the notice of lien, and accompanied by reasonable notice to other lienholders.

E. No notice of lien provided for in subsection (D)(1) of this section shall be recorded against any property unless the record owner of the property has been mailed written notice of the delinquency at his last address shown by the records of the county assessor and given 15 days to make payment.
(Ord. No. 3079, § 1, 11-5-2013; Ord. 1087, § 2 (part), 1988)

5.04.060 Transport of unhealthy vegetable matter prohibited.

No person shall bring into the city or have in his possession for sale any decayed or damaged vegetable substance whatever.
(Ord. 1087, § 2 (part), 1988)

5.04.070 Penalties.

Any person violating any of the provisions of this chapter shall be deemed guilty of a misdemeanor. Each day such a violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.
(Ord. 1087, § 2 (part), 1988)

5.04.080 Reserved.

Editor's note—Ord. No. 3079, § 1, adopted November 5, 2013, repealed the former section 5.04.080 in its entirety, which pertained to separability, and derived from Ord. No. 1087, § 2(part), adopted in 1988.

Chapter 5.17 SOLID WASTE MANAGEMENT*

Sections:

5.17.005 Declaration of city policy.
5.17.010 Definitions.
5.17.020 Provisions for collection and disposal.
5.17.030 Collection agent subject to rules and regulations.
5.17.040 Prohibited methods of disposal.
5.17.050 Burning of solid waste or recyclables.
5.17.060 Collecting or transporting of solid waste or recyclables.
5.17.070 Emergency collections.
5.17.080 Interference with containers prohibited.
5.17.090 Requirements as to carts and vehicles.
5.17.100 Containers required—Franchisee to provide wheeled carts.
5.17.105 Implementation of single-stream recycling and solid waste collection.
5.17.110 Container requirements.
5.17.120 Removal of contents of containers prohibited.
5.17.130 Solid waste to be placed in containers—Exceptions.
5.17.140 Containers in residential areas removed from public view—Placement for collection.
5.17.150 Storage of containers in commercial areas.
5.17.160 Charges—Single-family residences, duplexes, and multiple dwellings.
5.17.170 Charges—Motels and mobile home parks.
5.17.180 Charges—Places of business and public buildings.
5.17.190 Charges—Container rentals—One-time on-call collections.
5.17.195 Charges—Overflowing solid waste.
5.17.200 Charges—Medical waste.
5.17.210 Charges—Sewage waste.
5.17.213 Environmental surcharge.
5.17.215 Rates, fees, and charges not applicable to certain types of waste.
5.17.220 Collection of delinquent charges, fees, and rates.
5.17.230 Rates, fees, and charges—Liens.
5.17.240 Adjustments to rates, fees, and charges—Rate changes.
5.17.245 Pass through of taxes, fees, or other charges.
5.17.250 Customer service standards.
5.17.260 Telephone answering standards.
5.17.265 Container repair and replacement standards.
5.17.270 Solid and hazardous waste a nuisance.
5.17.275 Suspension of collection services.
5.17.280 Unauthorized disposal prohibited.
5.17.290 No charge for disposal by residents at authorized disposal sites.

***Editor's note—**Ord. No. 3083, § 1, adopted November 5, 2013, amended chapter 5.17 in its entirety to read as herein set out. Formerly, chapter 5.17, §§ 5.17.005—5.17.360, pertained to similar subject matter, and derived from Ord. No. 2545, § 1(part), adopted in 2006, and Ord. No. 2942, § 1, adopted November 15, 2011.

5.17.300 Penalty for violation.
5.17.310 Injunctive relief.
5.17.320 Rights of owners to dispose of recyclable materials.
5.17.330 Rights of city to dispose of solid waste.
5.17.340 Reserved.
5.17.350 Severability.
5.17.360 No conflict.
Appendix 1 Effective February 1, 2025

5.17.005 Declaration of city policy.

It is declared to be the policy of the city to regulate the collection, transportation, deposit, transfer, recycling and disposal of solid waste and recyclables in a manner that is consistent with State law and that will:

A. Protect public health and welfare.

B. Prevent water or air pollution.

C. Prevent the spread of disease and the creation of nuisances.

D. Conserve natural resources.

E. Enhance the beauty and quality of the environment.

(Ord. No. 3083, § 1, 11-5-2013)

5.17.010 Definitions.

In the construction of this chapter, the following definitions shall apply, unless the context clearly requires otherwise. When not inconsistent with the context, words used in the present tense include the future tense; words in the plural number include the singular number, and words in the singular number include the plural number; the words "shall" and "will" are mandatory, and "may" is permissive:

Agricultural waste means all putrescible and non-putrescible waste material in solid or semisolid form that is generated by the rearing of animals other than household pets, or the production and harvesting of crops or trees, for profit in compliance with allowed uses pursuant to title 19 of this Code, and that has not been discarded or abandoned by its owner.

Bulky item means any large item that would normally be associated with a residential household that does not fit into a residential solid waste container provided by a franchisee or wheeled cart, including but not limited to appliances, carpet, and mattresses, and that can be handled by a two-person crew. A refrigerator and any other item containing Freon, or similarly banned refrigerants or aerosol propellants, are specifically excluded from this definition.

Buy-back center means a facility operated by a licensed commercial recycler or registered charitable organization where persons may bring recyclables in exchange for payment.

CFR means the Code of Federal Regulations which is the codification of the general and permanent rules published in the Federal Register by the departments and agencies of the federal government, as amended.

City means the City of Henderson, Nevada.

City manager means the city manager for the city.

Collection costs means reasonable administrative costs and/or legal fees and costs the city or its franchisee incurs directly or through a collection agency, as defined in NRS Chapter 649, as amended, when attempting to collect rates, fees, and/or charges from the customer of record at the time solid waste collection service is provided or from the legal owner of the premises where solid waste collection service is provided, where such rates, fees, and/or charges have become past due and owing. All rates, fees, and/or charges are recoverable in accordance with applicable law.

Commercial recycler means any licensed entity, to include any licensed franchisee, that is in the business of purchasing, accepting donations of, collecting, storing, transporting or processing source-separated recyclable materials.

Commingled recyclable materials means recyclable materials of more than one type that are combined together and that have been separated from the solid waste stream at the source of generation. The term does not include recyclable materials that are combined in such a manner that makes the material non-recyclable, such as the combination of motor oil and corrugated cardboard.

Compacted solid waste means solid waste reduced by mechanical equipment, in volume but not weight, by a minimum of ratio of three to one.

Construction and demolition waste means non-hazardous solid waste resulting from the construction remodeling, repair, and demolition of utilities and structures, and uncontaminated solid waste resulting from land clearing. Such waste includes, but is not limited to, wood (including painted, treated, and coated wood and wood products), land clearing debris, wall coverings, plaster, drywall, plumbing fixtures, non-asbestos insulation, roofing shingles and other roofing coverings, glass, plastics that are not sealed in a manner that conceals other wastes, empty buckets ten gallons or less in size and having no more than one inch of residue remaining on the bottom, electrical wiring and components containing no hazardous liquids, pipe and metals, corrugated container board, carpeting, furniture, and tires, that are incidental to any of the above. Solid waste that is not construction and demolition debris, (even if resulting from the construction, remodeling, repair, and demolition of utilities, structures, and roads and land clearing) includes, but is not limited to,

asbestos waste, garbage, electrical fixtures containing hazardous liquids such as fluorescent light ballasts or transformers, fluorescent light bulbs or tubes, appliances, drums, containers greater than ten gallons in size, any containers having more than one inch of residue remaining on the bottom, or fuel tanks.

CPI means the Historic Consumer Price Index, for water and sewer and trash collection services, U.S. city average, all urban consumers, not seasonally adjusted (Current Series ID: CUUR0000SEHG), index base period December 1997=100, as published by the U.S. Department of Labor, Bureau of Labor Statistics.

Curbside recyclables collection means a collection program operated by a franchisee in which source-separated recyclables materials, including single-stream recycling, are collected from residential customers on a regularly scheduled basis as part of the franchisee's solid waste business.

Dead animals means all dead animals or parts thereof (including condemned meats) that are not intended to be used as food for man or animal.

Dirt means loose earth, ashes and manure, but exclusive of sand and gravel that is to be used in construction work.

Drop-off center means a collection site where source-separated recyclable materials may be taken by persons and deposited into designated containers.

Duplex means a building or dwelling containing residential dwelling units for two separate families or occupants, each receiving individual solid waste and curbside recyclables collection.

Franchise agreement means an agreement between the city and a franchisee by which such franchisee is authorized to collect, transport and dispose of solid waste and perform curbside recyclables collection services in the city.

Franchise fee means the fee required by a franchise agreement based upon a percentage of franchisee's gross receipts.

Franchisee means any person who has contracted with the city for collection, transportation and disposal of solid waste and/or the performance of curbside recyclables collection.

Garbage means putrescible animal and vegetable wastes, other than source-separated recyclable materials, that result from the handling, storage, sale, preparation, cooking, and serving of food and that have been discarded or abandoned.

Gross receipts means all cash receipts derived from the collection, transportation, and/or disposal of solid waste and curbside recyclables collection services and includes, by way of illustration and not limitation, all cash, credits, property or other consideration of any kind derived directly or indirectly by a franchisee (or any of its authorized agents or affiliates) for

the collection, transportation and disposal of solid waste, including all revenue received from residential service (including any charges attributable to curbside recyclables collection services), commercial and industrial service, medical waste service, sewage waste service, container rentals, packaging, collection costs, past-due letter fees, lien fees, release of lien fees, shipping and late fees, but excluding revenues from: (a) the sale of recyclables; (b) the collection, removal, or transport of source-separated recyclable materials pursuant to and in accordance with subsection 5.17.060(E); and (c) any charge passed through pursuant to subsection 5.17.245(A).

Hazardous waste means any waste with properties that make it dangerous or potentially harmful to human health or the environment. In regulatory terms, a Resource Conservation and Recovery Act hazardous waste is a waste that exhibits at least one of four characteristics - ignitability, corrosivity, reactivity, or toxicity or that appears on one of the four hazardous wastes lists:

A. F-list (non-specific source wastes) (40 CFR § 261.31),

B. K-list (source-specific wastes) (40 CFR § 261.32),

C. P-list (discarded commercial chemical products) (40 CFR § 261.33(e)), or

D. U-list (discarded commercial chemical products) (40 CFR § 261.33(f)).

Incidental non-recyclable waste means the non-recyclable components of white goods, whole computers, or whole automobiles for which dismantling and separation of recyclable from non-recyclable components by the generator are impractical, such as insulation or electronic components in white goods.

Materials recovery facility construction or demolition waste means a solid waste management facility, operating pursuant to a permit issued by the Southern Nevada Health District, a business license issued by the city, and a land use permit issued by the city in accordance with title 19 of this Code, that provides for the extraction from construction or demolition waste of those recyclable materials that may be found in construction or demolition waste. The term does not include:

A. A facility that receives only recyclable materials that have been separated at the source of waste generation;

B. A salvage yard for the recovery of used motor vehicle parts;

C. A facility that receives, processes or stores only concrete, masonry waste, asphalt pavement, brick, uncontaminated soil or stone for the recovery of recyclable materials; and

D. A facility that recovers less than 25 percent by weight of recyclable material from the solid waste received.

Medical waste means any solid waste that is generated in the diagnosis, treatment, or immunization of human beings or animals, in research pertaining thereto, or in the production or testing of biological, excluding hazardous waste identified or listed under 40 CFR Part 261 or any household waste as defined in 40 CFR Subsection 261.4(b)(1).

Mining waste means residues which result from the extraction of raw materials from the earth and which are dumped on land owned by the mining operation that extracted them.

Motel means a building or group of buildings whose main function is to provide temporary lodging and which does not offer conference rooms, restaurants or similar amenities to its customers in addition to sleeping quarters.

Multiple dwellings means any premises on which there are three or more residential dwelling units which are grouped together under the management of one person and which do not require separate individual collection of solid waste.

Nonresidential customer means any solid waste disposal service customer of a franchisee except for customers at single-family residences, duplexes or mobile home residences that receive individual curbside collection of solid waste and do not share containers with other residents.

Overflow or *overflowing solid waste* means solid waste of nonresidential customers that is deposited on the ground outside of a solid waste container, or excess solid waste that has been piled onto a solid waste container that is already full to such an extent that the excess solid waste falls onto the ground or will fall onto the ground in the emptying process, requiring more than minimal manual cleanup of waste from the ground.

Permitted recyclable materials means recyclable materials that are permitted by the Southern Nevada Health District, as the solid waste management authority, that can be received, accepted or processed by a recycling facility.

Person means any state or federal agency; any state, including the State of Nevada; a political subdivision of any state; an interstate agency or organization; any firm, partnership, corporation, or Limited Liability Company (LLC) meeting all the legal requirements of the State of Nevada; or a natural person.

Place of business means any place of business in the city, other than multiple dwellings, motels or mobile home parks, to conduct or carry on principally or exclusively any pursuit or occupation for the purpose of gaining a livelihood.

Premises means a nonresidential or residential lot or property, together with any buildings, improvements, and personal property located thereon.

Public building means office buildings, clubs, churches, schools, hospitals or other places of similar character, but does not include city-owned or city-operated buildings that primarily accommodate city government functions.

Putrescible means capable of being decomposed by microorganisms with sufficient rapidity as to cause nuisances from odor or gases.

Recyclable materials or *recyclables* means solid waste that can be processed and returned to the economic mainstream in the form of raw materials or products, including, but not limited to:

A. Newspaper;

B. Corrugated cardboard;

C. Aluminum;

D. Yard debris (material generated from plants, including trees, bushes, sod, and grass clippings on residential or nonresidential property);

E. Office paper;

F. Glass;

G. Tin and steel cans;

H. Metal;

I. Motor oil;

J. Plastic;

K. Antifreeze;

L. Wood; and

M. Food waste.

Recycling center means a facility designed and operated to receive, store, or process recyclable material which has been separated at the source from all but residual solid waste (ref. NRS 444A.014). The center must receive, store and process only source-separated recyclable materials, for which there is an available market to be permitted as a recycling center. The recyclable materials must be separated from the solid waste stream at the source of waste generation. A recycling center may not receive any solid waste, other than residual solid waste, commingled with recyclables at the recycling facility. The term "recycling center" does not include a:

A. Materials recovery facility;

B. Transfer station;

C. Compost plant;

D. Hazardous waste recycling facility permitted by the Nevada Department of Environmental Protection or the United States Environmental Protection Agency;

E. Convenience center or public waste storage bin facility;

F. Drop off bins; and

G. Agricultural facility.

Refuse means those discarded materials that have no useful physical, chemical, or biological properties after serving their original purpose and that cannot be reused or recycled for the same or other purposes, including medical waste, but excluding mining waste, agricultural waste, source-separated recyclable materials and incidental non-recycled waste.

Residual solid waste means an amount of material that was collected at the site of generation, other than permitted recyclable material, that remains or is left after the separation and removal of permitted, source-separated recyclable materials that does not exceed ten percent by weight, if scales are available at the facility, or by volume, if scales are not installed at the facility, of the total amount of materials prior to separation, and that cannot be recycled and returned to the economic mainstream and must be disposed of as solid waste pursuant to this chapter of the Code and the applicable regulations of the solid waste management authority. In this subsection, "facility" means any location that is permitted by the solid waste management authority to accept recyclable materials.

Rubbish means non-putrescible wastes, other than source-separated recyclable materials, that have been discarded or abandoned such as paper, cardboard, automobiles, cans, wood, glass, bedding, crockery and similar materials.

Sewage waste means any solid or semi-solid waste, consisting of bio-solids, sludge, screenings, or grit generated from the operation of a water reclamation facility, a water supply treatment plant, or an air pollution control facility.

Single-family residence means a building or dwelling designed or used for single-family residential occupancy, including a mobile home, apartment and other unit in a multiple dwelling that receives individual and bulky item collection.

Single-stream recycling system means a system in which multiple types of recyclable materials are mixed in a single solid waste container for collection by a franchisee instead of first being sorted into separate containers by the residential customer before such collection.

Solid waste means all putrescible and non-putrescible refuse in solid, semisolid, or liquid form, including, but not limited to, garbage, rubbish, junk vehicles, ashes or incinerator residue, street refuse, dead animals, demolition waste, construction waste, solid, semi-solid, or liquid commercial and industrial waste, sewage waste, and other discarded material, including solid, liquid, semisolid, or contained gaseous material resulting from industrial, commercial, mining and agricultural operations, and from community activities, but does not include source, special nuclear, or byproduct material as defined by the Atomic

Energy Act of 1954, as amended (68 Stat. 923) (42 U.S.C. § 2011, et seq.), or hazardous waste as defined in the Resource Conservation and Recovery Act, Subpart C (40 CFR § 261.20, et seq.).

Solid waste container means a receptacle, excluding trash bags, capable of storing solid waste that is constructed of a rigid material such as plastic or metal, that is used for the temporary storage of solid waste, and that is equipped with handles and a cover appropriate for the container design. The term does not include trash bags.

Source-separated recyclable materials means recyclables that have been separated from the solid waste stream at the source for recycling purposes and that are not mixed with solid waste other than residual solid waste.

Unforeseen economic circumstance means:

1. A percentage change in the CPI for a given consecutive 12-month period that is greater than ten percent or below zero (a decrease);

2. An adverse economic occurrence beyond a franchisee's reasonable control; or

3. A finding by the city council or other governmental jurisdiction that there have been economic occurrences during that period that have caused specific additional economic costs for a franchisee which are not reflected in changes to the CPI during that same period.

U.S.C. means the United States Code which is the consolidation and codification by subject matter of the general and permanent laws of the United States, as amended.

Wheeled cart means a solid waste container provided by the franchisee or rented from the franchisee for the collection of solid waste or curbside recyclables collection that is also equipped with wheels appropriate for the container design.

White goods means large household appliances including, but not limited to, refrigerators, washing machines, clothes dryers, stoves, dish washers, that were primarily finished with white enamel, but now are sold in other colors.
(Ord. No. 4044, § 1, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.020 Provisions for collection and disposal.

The city council of the city may, by contract or otherwise, or in any manner such council members may deem necessary for the health, safety and welfare of the inhabitants of the city, provide for the collection and disposal of solid waste and recyclables from residences, multiple dwellings with or without kitchen facilities, places of business and public buildings, at the expense of the city or otherwise.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.030 Collection agent subject to rules and regulations.

Any person collecting, transporting, processing or disposing of solid waste, hazardous waste or recyclables shall do so subject to the ordinances, rules and regulations of the city, the Southern Nevada Health District, the State of Nevada and the federal government. Every franchisee shall pay a quarterly franchise fee based on its gross receipts derived from the collection of solid waste and curbside recyclables collection for the preceding calendar quarter, as specified in the franchise agreement.
(Ord. No. 4044, § 2, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.040 Prohibited methods of disposal.

It is unlawful for any person to:

A. Throw or deposit, or cause to be thrown or deposited, in any street, alley, gutter or highway within the city, any solid waste, hazardous waste or recyclables.

B. Throw or deposit, or cause to be thrown or deposited, any solid waste, hazardous waste or recyclables upon the public or private property or premises or into the container of another person or entity within the city, except as may be provided for in this chapter.

C. Place, deposit or accumulate, or cause to be placed, deposited or accumulated, any solid waste, hazardous waste or recyclables in such a manner, or permit the same to remain on their premises in such condition so that the same may be blown or carried over to public or other private property by any means whatsoever.

D. Allow solid waste and hazardous waste to accumulate upon the premises under their control in an amount which is detrimental to the public health or safety, or which results in unsightly or unsanitary conditions.

E. Throw or deposit or cause to be thrown or deposited any solid waste, hazardous waste or recyclables in any areas of the city not designated, authorized or licensed by the city for deposit of these materials.

F. Throw or deposit, or cause to be thrown or deposited, any solid waste, hazardous waste or recyclables generated by or in connection with a business either into a wheeled cart provided by a franchisee at a single-family residence or at a single-family residence for collection by a franchisee as a bulky item unless that solid waste or recyclable is generated in connection with a business with a then-current license issued by the city to do business out of or at that single-family residence.

Identification of the owner of any solid waste which is disposed of in violation of this section creates a reasonable inference that the owner is the person who disposed of the solid waste. The fact that the disposal of the solid waste was not witnessed does not, in and of itself, preclude the identification of its owner.
(Ord. No. 4044, § 3, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.050 Burning of solid waste or recyclables.

It is unlawful for any person, for the purpose of disposal of solid waste, hazardous waste or recyclables by burning, to kindle or maintain any bonfire, or knowingly to furnish the materials for any such fire, or to authorize any such fire to be kindled or maintained in any container, or on any street, alley, road, land or other public grounds or upon any private property, within the city, unless a written permit to do so shall first have been secured from the city fire department; provided, however, that solid waste and infectious waste may be burned in an incinerator duly approved by the fire chief, the building inspector, and the air pollution control officer.
(Ord. No. 4044, § 4, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.060 Collecting or transporting of solid waste or recyclables.

Except in case of an emergency declared by the city manager under section 5.17.070, it is unlawful for any person, other than the city, a franchisee or their duly appointed agents, to collect or transport any solid waste, or provide curbside recyclables collection service; provided, however, that:

A. Construction or demolition waste that results directly from the activities of construction, remodeling, repair, and demolition of utilities and structures and uncontaminated solid waste that results directly from the activity of land clearing, may be removed by any duly licensed construction cleanup or demolition contractor and transported to a transfer station or a disposal site operated by the city or its franchisee, to a materials recovery facility, or other disposal facility legally authorized by the solid waste management authority having jurisdiction over the facility.

B. Any duly licensed and permitted septic tank or grease trap pumpers, licensed yard maintenance services and tree trimmers may transport those materials accumulated in or generated by the performance of licensed services to a transfer station or a disposal site operated by the city or its franchisee.

C. Any person may transport their own solid waste to a transfer station or a disposal site operated by the city or its franchisee.

D. Any person may transport their own source-separated recyclables to recycling centers or drop-off centers, or buy-back centers provided that the source-separated recyclable materials contain no more than ten percent residual solid waste by weight or volume.

E. Any duly licensed commercial recycler, in the legitimate course of such recycler's business, may buy or accept free of charge from any person; remove for a person for a fee; and/or transport for any person; source-separated recyclable materials provided that the source-separated recyclable materials contain no more than ten percent residual solid waste, other than curbside recyclable collection.

F. A charitable organization qualified under the Federal Internal Revenue Code, may collect source-separated recyclable materials from any premises at the express request of the owner, tenant or occupant and may transport those recyclables to drop-off centers or recycling centers.

G. A duly licensed and permitted third party authorized to collect, transport, and dispose of sewage waste may transport that waste to a disposal site operated by its franchisee or a duly permitted disposal facility.

(Ord. No. 4044, § 5, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.070 Emergency collections.

A. In the event of an interruption in the collection, transportation or disposal of solid waste and recyclables by the city or its franchisee, problems affecting the public health, safety and welfare may arise. These problems may include increases in pathogens, vectors, fire hazards, unsightly litter, odor and traffic hazards from the accumulation of solid waste and recyclables. The purpose of this section is to provide for the emergency collection, transportation and disposal of solid waste and recyclables by private citizens in order to minimize the adverse impact on the public health, safety and general welfare arising from an interruption in the collection, transportation and disposal of solid waste and recyclables.

B. In the event of an interruption in the collection, transporting or disposal of solid waste and recyclables by the city or its franchisee, the city manager may declare an emergency.

C. If the city manager declares an emergency under subsection B of this section, the provisions of section 5.17.060 which relate to transporting solid waste and recyclables shall be suspended and the following provisions shall apply until the date specified in the declaration of emergency or in a subsequent declaration:

1. The city manager may designate, establish, operate and maintain temporary emergency collection areas for solid waste and recyclables;

2. Any person may transport the solid waste and recyclables generated or found on real property in their possession to a designated temporary emergency collection area;
3. Until hauled to a designated temporary emergency collection area, all putrescible solid waste shall be stored indoors in plastic bags or outdoors in a solid waste container or receptacle that will not permit access by flies or animals or constitute a fire hazard; and
4. All putrescible solid waste hauled to a temporary emergency collection area must be securely contained in plastic bags.

(Ord. No. 4044, § 6, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.080 Interference with containers prohibited.

A. It is unlawful for any person other than the owner, the city or its franchisee, or their duly appointed agents, to interfere in any manner with any containers containing solid waste or recyclables, including curbside recyclables collection, or to remove any such container from the location where placed for pickup by the owner, the city or its franchisee.

B. It is unlawful for any person, other than the operator of a drop-off center or their duly appointed agent, to interfere with or remove any recyclables from a drop-off center.

C. It is unlawful for any person, other than the owner or a licensed commercial recycler or their duly appointed agents to interfere in any manner with any container containing recyclable materials intended for collection by the licensed commercial recycler or to remove such container from the location where placed for collection by the owner or the licensed commercial recycler.

(Ord. No. 4044, § 7, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.090 Requirements as to carts and vehicles.

It is unlawful to use any cart or vehicle for the transportation or removal of solid waste or recyclables unless such cart or vehicle is appropriately constructed and covered, in accordance with NRS Chapter 484, to prevent or minimize odors from or leakage, sifting, spilling, drifting or blowing of such solid waste or recyclables in or upon the streets through which such cart or vehicle may be driven.

(Ord. No. 3083, § 1, 11-5-2013)

5.17.100 Containers required—Franchisee to provide wheeled carts.

A. For all residential premises that receive curbside recyclables collection and solid waste collection service, franchisee shall provide, at no additional cost to such customers, one wheeled cart for recycling and one wheeled cart for solid waste in sizes, to be initially

selected by the franchisee, with capacities of approximately 35, 65 or 95 gallons, based on industry standards for such containers current at the time. A customer may thereafter request an exchange of a previously provided cart of a different capacity, and the franchisee shall comply with the request within a reasonable period of time. A customer may also request one additional wheeled cart for recycling or for solid waste in a size selected by the customer at no additional charge.

B. A franchisee may rent solid waste containers to its customers pursuant to the rates specified in this chapter, but the responsibility for placement of such rented containers remains with the person owning or managing the premises.
(Ord. No. 4044, § 8, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.105 Implementation of single-stream recycling and solid waste collection.

Not later than December 31, 2014, franchisee will complete implementation of the single-stream recycling system for all curbside recyclables collection customers within the city. The program will utilize wheeled carts for recycling and solid waste with a collection schedule of once per week for solid waste and once per week for recycling on regularly scheduled solid waste collection days and every other week for collection of bulky items on regularly scheduled solid waste collection days.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.110 Container requirements.

A. Each residential premises that receives solid waste and curbside recyclables collection service shall use franchisee provided wheeled carts for the storage and collection of solid waste and recyclables. For each residential premises that receives curbside recyclables collection service, franchisee shall provide bulky item collection service every other week for all solid waste that cannot fit in the wheeled carts provided by franchisee. On the day such bulky item collection service is provided, a residential customer may put the bulky items in a container other than a wheeled cart if that container has a capacity of no more than 36 gallons and weighs no more than 50 pounds, including the contents thereof. Bulky items, such as appliances, that weigh more than 50 pounds shall be placed next to the wheeled carts or at curbside on the day bulky item collection service is provided to be picked up by franchisee on that day. A refrigerator and any other item containing Freon or similarly banned refrigerants or aerosol propellants are specifically excluded as a bulky item, and residential customers may dispose of those items by dropping them off during normal business hours at franchisee's Henderson Transfer Station, any other authorized and permitted transfer station within Clark County, and at any other drop-off location within

the City of Henderson or Clark County, Nevada, as determined by the franchisee. Franchisee, or its third-party contractor, is permitted to charge a pass-through fee for Freon removal.

B. Except for manual type drop-box containers listed in the section 5.17.180 schedule C in appendix 1, solid waste containers shall be constructed watertight and shall be equipped with handles and covers appropriate to the container design. Each such container and cover shall be made of a material approved for such use by the city. Covers shall not be removed except when necessary to place solid waste therein. Each such container and its cover shall be kept clean from accumulating grease and decomposing material.

C. Any nonresidential customer who has a container overflowing with solid waste at the time of collection shall be subject to an overflow charge pursuant to section 5.17.195.
(Ord. No. 4044, § 9, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.120 Removal of contents of containers prohibited.

A. No person other than the owner, the city or a franchisee, or their agents may:

1. Remove any solid waste or recyclables from the solid waste containers or recyclables containers that are intended for pickup by a franchisee as part of its solid waste collection and curbside recyclables collection programs; or

2. Tamper with, engage in, interfere with or participate in curbside recyclables collection.

B. No person other than an owner or operator of a drop-off center, or their authorized agents, may remove recyclables from the drop-off center or recyclables that have been bundled, boxed, tied or otherwise collected and placed adjacent to the drop-off center.
(Ord. No. 4044, § 10, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.130 Solid waste to be placed in containers—Exceptions.

A. All solid waste shall be placed in a container; provided, however, that in a district classified as a residential district under the zoning regulations of the city, tree trimmings, palm fronds, scrap lumber and other such solid waste may be bundled in accordance with subsection (B) of this section if securely tied and placed at curbside on a scheduled bulky item collection day in accordance with subsection 5.17.110(A).

B. Items bundled pursuant to this section shall not exceed six feet in length nor weigh more than 50 pounds.
(Ord. No. 4044, § 11, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.140 Containers in residential areas removed from public view—Placement for collection.

A. It is unlawful in any district classified as residential district under the zoning regulations of the city to place, keep, store or locate within the public right-of-way of a street or sidewalk, or within any front yard as defined in the zoning regulations of the city, any solid waste or recycling container; provided, however, that such container may be placed within such area, but not within vehicle lanes so as to permit unimpeded passage of vehicular traffic, for the purpose of the collection thereof no earlier than 2:00 p.m. on the day prior to a designated collection day and must be removed no later than 12:00 midnight on the designated collection day.

B. In those areas where collection is made by alley pickup, it is unlawful to leave a solid waste or recycling container in the alleyway on days other than designated collection days unless such container is maintained at a point contiguous with the owner's property line and provided with suitable restraints or holders designed to prevent tipping or movement of the container; and provided further, that such containers, restraints or holders shall at all times be kept at a point not less than 15 feet from the nearest obstruction in the alleyway so as to permit unimpeded passage of vehicular traffic at all times.

C. A franchisee shall not be required to pick up solid waste or recyclables from any location that the franchisee, subject to the city's approval, determines is not safe to access with its disposal vehicles due to space limitations restricting vehicle access or maneuverability, including maneuvers requiring the unsafe backing up of vehicles.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.150 Storage of containers in commercial areas.

On any multiple dwelling, duplex, commercial or industrial premises, it is unlawful to place, keep, store or locate any solid waste container or any other container used for storing solid waste within the right-of-way of a street, sidewalk or alley. Containers shall be stored within an enclosure if an enclosure was required in connection with development approval or is otherwise provided on the premises.
(Ord. No. 4044, § 12, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.160 Charges—Single-family residences, duplexes, and multiple dwellings.

A. The charges for collecting, transporting and disposing of solid waste, and collecting and transporting recyclables, at residential premises shall be determined in accordance with the section 5.17.160 schedule A in appendix 1, irrespective of occupancy. The city

manager, a franchisee and specific property owners in designated controlled areas may agree upon alternate collection schedules for specified test periods for the purpose of testing recycling options.

B. The charges for collecting, transporting and disposing of solid waste at multiple dwellings, and for multiple dwellings of up to three dwelling units at the individual living units therein, shall be determined in accordance with the section 5.17.160 schedule A in appendix 1, regardless of whether any of the units are vacant. Multiple dwellings shall provide a minimum of one 96-gallon mobile solid waste container, and shall be allowed no more than two 96-gallon mobile containers, for use by the occupants of the premises.

C. A multiple dwelling generating solid waste in excess of two 96-gallon mobile containers will be required to replace the two mobile containers with one or more cubic-yard type containers sufficient to store the solid waste generated on the premises until its scheduled collection day to prevent overflow. Any overflow shall be subject to overflow charges in accordance with section 5.17.195.

D. All charges for single-family residences, duplexes and multiple dwellings pursuant to this section shall be billed quarterly in advance.

Ord. No. 4044, § 13, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

Editor's note—Ord. No. 4044, § 13, adopted November 6, 2024, changed the title of section 5.17.160 from "Charges—Residential and multiple dwellings" to "Charges—Single-family residences, duplexes, and multiple dwellings." The historical notation has been preserved for reference purposes.

5.17.170 Charges—Motels and mobile home parks.

A. For motels, and the individual room units therein, and mobile home parks with shared solid waste containers that do not receive individual curbside solid waste collection service at each mobile home, the charges for collecting, transporting and disposing of solid waste shall be determined in accordance with the section 5.17.170 schedule A in appendix 1, irrespective of occupancy or vacancy of any units.

B. For mobile home parks that receive individual service at each mobile home, which shall include the same heavy and bulky item pickup as that provided to single-family residences, the charges for collecting, transporting and disposing of solid waste and curbside recyclables collection services shall be the same as for residences as set forth in section 5.17.160.

C. Motels and mobile home parks with shared solid waste containers shall provide a minimum of one 96-gallon mobile solid waste container, and shall be allowed no more than two 96-gallon mobile containers, for use by the occupants of the premises. Such premises

generating solid waste in excess of two 96-gallon mobile containers will be required to replace the two mobile containers with one or more cubic-yard type containers sufficient to store the solid waste generated.

D. All charges for mobile home parks and motels shall be billed quarterly in advance.
(Ord. No. 4044, § 14, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.180 Charges—Places of business and public buildings.

A. Except for the types of solid waste specified in section 5.17.060, a franchisee shall charge for collecting, transporting, and disposing of solid waste from places of business and public buildings a fee determined by the number and type of containers required by each such place of business or public building and by the number of collections from each per week in accordance with the section 5.17.180 schedule A in appendix 1, the section 5.17.180 schedule B in appendix 1, and in the section 5.17.180 schedule C in appendix 1. A franchisee shall charge for collecting, transporting, and disposing of compacted solid waste, from containers other than compaction-type drop boxes, three times the otherwise applicable charge.

B. Each place of business or public building premises shall provide a minimum of one 96-gallon mobile container for depositing its solid waste, and shall be allowed no more than two 96-gallon mobile containers. Premises generating solid waste in excess of two 96-gallon mobile containers shall replace the two mobile containers with one or more cubic-yard containers, as listed in the section 5.17.180 schedule A in appendix 1, sufficient to store, and prevent overflow of, the solid waste generated on the premises until its scheduled collection day. Any overflow shall be subject to overflow charges in accordance with section 5.17.195.

C. All monthly charges set forth in the section 5.17.180 schedule A in appendix 1, the section 5.17.180 schedule B in appendix 1, and in the section 5.17.180 schedule C in appendix 1 shall be billed as follows:

1. Schedule A shall be billed quarterly in advance.

2. Schedule B shall be billed monthly in advance.

3. Schedule C shall be billed monthly in arrears.
(Ord. No. 4044, § 15, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.190 Charges—Container rentals—One-time on-call collections.

A franchisee shall charge for container rentals and special one-time collection for single-family residences, multiple dwellings, places of business and public buildings a fee as set forth in the section 5.17.190 schedule A in appendix 1 and the section 5.17.190 schedule B in appendix 1.

(Ord. No. 4044, § 16, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.195 Charges—Overflowing solid waste.

A. The owner of a premises, other than a premises of a single-family residence, duplex or mobile home park with individual solid waste collection service, whose solid waste container or containers have overflowing solid waste prior to being emptied on collection day, shall be subject to an overflow charge, which may be billed at the time of service as an on-call service, in the amount set forth in the section 5.17.195 schedule A in appendix 1.

B. No overflow charges may be assessed except as follows:

1. Written notice of an overflow has been provided to the owner or manager of the premises in accordance with subsection 5.17.195(B)(4), and a subsequent overflow occurs at the premises within 90 days:

a. After such notice has been delivered; or

b. After the last overflow occurred at the premises, with such occurrence date being established in the notice provided to a customer in accordance with subsection 5.17.195(B)(4).

2. There is overflow from the container, as evidenced by a date and time-stamped photograph; and

3. The overflow actually has been collected by the provider of solid waste collection service, as evidenced by a date and time-stamped photograph; and

4. Within 15 days of an overflow, the owner or manager of the premises is provided written notice of the overflow occurrence, that notice identifies the date of the overflow, includes a date and time-stamped photograph of the overflow and a date and time-stamped photograph showing the overflow was collected and the foregoing is delivered by regular U.S. mail, e-mail, facsimile or personal delivery to the owner or manager of the premises.

C. No overflow charge may be assessed for overflow that is caused by a prior collection being missed or being performed improperly, or by containers being repositioned by a franchisee after collection such that a container is inaccessible to tenants of the premises resulting in overuse of and overflow occurring in another container and the foregoing shall not be considered an overflow for purposes of establishing or calculating an overflow under subsection 5.17.195(B)(1).

D. No overflow charge may be assessed for overflow that is caused because the time of day of collection was more than four hours later than the time of day when the last regularly scheduled collection occurred and the foregoing shall not be considered an overflow for purposes of establishing or calculating an overflow under subsection 5.17.195(B)(1).

E. Overflow charges assessed pursuant to this chapter may be waived by the city manager, or their designee, or a franchisee if it is determined that the owner or manager of the premises has taken reasonable steps to avoid future overflows, including but not limited to increasing the container capacity and/or collection frequency on the premises, installing locks on the lids of containers and/or on access gates to curtail illegal dumping by third parties, or other property-management measures designed to avoid overflows.
(Ord. No. 4044, § 17, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.200 Charges—Medical waste.

A franchisee's basic and additional service charges per container for preparation, collection, transportation and disposal of medical waste, and the charges for the optional purchase and rental of medical waste containers shall be determined in accordance with the section 5.17.200 schedule a in appendix 1 and the section 5.17.200 schedule B in appendix 1. All charges for medical waste service, except for on-call service which may be billed at the time of service, shall be billed monthly in advance.
(Ord. No. 4044, § 18, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.210 Charges—Sewage waste.

A franchisee shall charge the rates listed in the section 5.17.210 schedule A in appendix 1 for sewage waste collection, transportation, and disposal services. Additional terms and conditions for collection, transportation, and disposal of sewage waste shall be specified in a separate sewage waste service agreement between the franchisee and city and franchisee and any other customer.
(Ord. No. 4044, § 19, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.213 Environmental surcharge.

A. To provide for remedial action, compliance with permit requirements, removal or other activities at a solid waste disposal site, for environmentally sound solid waste collection, transportation, deposit, transfer, recycling or disposal, for programs or activities that support or help implement solid waste reduction, prevention, re-use, or recycling, for environmental programs and for such other programs or activities that support or help implement the city's solid waste management system, the city council is imposing a surcharge to be added to all billings for solid waste collection services, including sewage waste services, rendered within the city. A surcharge imposed under this section shall be subject to the requirements of this section.

B. The surcharge shall be five percent of gross receipts. That surcharge shall not be imposed on late fees, lien fees, collection costs, or past-due letter fees. In addition, that surcharge shall not be charged on any services that are not covered by the franchise agreement as exclusive to the franchisee.

C. The surcharge shall be collected by a franchisee, and franchisee shall remit such proceeds to the city as provided in this section. The city may enter into an interlocal agreement with any other local government unit to provide for the imposition and collection of the surcharge consistent with the requirements of this section.

D. The franchisee shall remit the proceeds of the surcharge to the city according to procedures adopted by the city manager. However, the franchisee shall not be responsible for covering any shortage caused by failure of a customer to pay surcharges for solid waste collection.

E. The city may require the franchisee to submit reports or other documentation necessary to establish compliance with the requirements of this section or the procedures adopted by the city manager hereunder. The franchisee shall provide such records to the city for such auditing purposes within 20 business days of a request by the city for production of the same, unless the city agrees to additional time.

F. The proceeds of the surcharge shall be placed into a dedicated environmental fund established by the city and may be used to pay for actions, programs and activities consistent with one or more of those described in subsection (A) of this section.
(Ord. No. 4044, § 20, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.215 Rates, fees, and charges not applicable to certain types of waste.

A. The rates, fees, and charges specified in this chapter for collecting, transporting, and disposing of solid waste shall not apply to construction or demolition waste, septic-tank waste, grease-trap waste, or landscaping or tree-trimming waste handled in accordance with section 5.17.060. A franchisee or other licensed service provider may set its own rates, fees, and charges for the collection, transportation and disposal of such solid waste.

B. A franchisee, in its sole discretion, may establish rates, fees, and charges with respect to goods, services, or other functions provided by the franchisee that are not governed by the franchise agreement or this chapter, including rates, fees, and charges for the purchase or rental of items or services that are offered as an option to customers but which could be obtained from some other source. A franchisee shall submit to the city manager for informational purposes only and on an annual basis, a list of such optional goods or services that are not governed by the franchise agreement or this chapter, along with the rates, fees, and charges to be charged for those goods or services.
(Ord. No. 4044, § 21, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

Editor's note—Ord. No. 4044, § 21, adopted November 6, 2024, changed the title of section 5.17.215 from "Charges not applicable to certain types of waste" to "Rates, fees, and charges not applicable to certain types of waste." The historical notation has been preserved for reference purposes.

5.17.220 Collection of delinquent charges, fees, and rates.

A. To ensure the uniform, safe and sanitary treatment of solid waste in the city and to discourage the illegal handling and disposal of solid waste, it shall be mandatory for any person owning, occupying or managing any premises in the city to subscribe to solid waste collection service provided by the city or its authorized franchisee and to pay the rates, fees, and charges specified in this chapter. No person may discontinue paying for solid waste collection service for their premises, unless such premises is comprised only of vacant land with no building or improvement on it or such premises constitutes an abandoned residential property or other abandoned building or structure (as opposed to vacant and unoccupied) because it meets all of the criteria in either subsection 1 or 2:

1. The premises are in an extreme state of disrepair and unfit for occupancy because: (a) gas, electric, or water utility services have been terminated; and (b) multiple windows are boarded up or otherwise covered to secure them and/or are broken and unrepaired; and (c) doors are boarded up or otherwise secured and/or smashed through, broken off, unhinged or unsecured; or

2. The premises has been declared unfit for occupancy and ordered to remain vacant and unoccupied under an order issued by a municipal or county authority or court of competent jurisdiction.

B. All rates, fees, and charges for regular or periodic services provided by the city, its franchisees, or their duly appointed agents, pursuant to this chapter shall be billed on the first business day of the quarterly or monthly billing period, as applicable, and shall be due and payable on the last day of the billing month; provided, however, that charges for on-call service may be billed at the time of service. All charges for services under this chapter, including collection costs, past-due letter fees and any late charges for delinquent payment, shall constitute a debt and obligation of the legal owner of the premises, and such person shall be liable therefor in a civil action commenced by the city or its franchisee in any court of competent jurisdiction for the recovery of such costs and charges.

C. If any person fails to pay the rates, fees, and charges authorized by this chapter by the date they become due and payable, then a late fee shall be added to the account as a charge for solid waste collection service, and the amount of that late fee for the particular residential account or nonresidential account shall be determined in accordance with the section 5.17.220 schedule A in appendix 1.

D. The city or its franchisee may also send the legal owner(s) of and/or customer(s) at the premises a letter(s) advising that person(s) of the amount of the rates, fees, and/or charges authorized and established by this chapter due and owing ("past-due letter"), prior to the filing of a lien against the premises under section 5.17.230. The city or its franchisee may charge the owner(s) of and/or customer(s) at that property a fee per delinquency for a

past-due letter(s) sent by the city or a franchisee, in an amount that corresponds to the charge in section 5.17.220 schedule A in appendix 1, and this fee is not subject to applicable adjustments made pursuant to section 5.17.240.

E. If the city or its franchisee incurs collection costs, the city or its franchisee may recover collection costs from the legal owner(s) of and/or customer(s) at the premises. The city or its franchisee may report that person(s) to a collection agency, as defined in NRS Chapter 649, to assist the city or its franchisee in the collection of the rates, fees, and/or charges that are past due and owing. The city and/or its franchisee may utilize any applicable law in any collection efforts. The city or its franchisee may also charge the legal owner(s) of and/or customer(s) at the premises collection costs incurred by the city or its franchisee in attempting to collect delinquent amounts prior to the recording of a lien under section 5.17.230.

F. No person shall accept and no franchisee shall offer or give any solid waste collection, transportation, and disposal services or curbside recyclables collection services without charge, or shall offer or give a discount, refund or rebate of any rate, fee, or charge authorized by this chapter, except that this provision does not apply to any credits or refunds issued pursuant to section 5.17.265, charitable organizations which are exempt from federal income tax pursuant to Section 501(c) of the Internal Revenue Code or as further provided by franchise agreement.

(Ord. No. 4044, § 22, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

Editor's note—Ord. No. 4044, § 22, adopted November 6, 2024, changed the title of section 5.17.220 from "Collection of delinquent charges, fees, and penalties" to "Collection of delinquent charges, fees, and rates." The historical notation has been preserved for reference purposes.

5.17.230 Rates, fees, and charges—Liens.

A. All solid waste collection rates, fees, and/or charges authorized and established by this chapter, including any fee assessed under section 5.17.220 and any rates, fees, and/or charges assessed pursuant to this section 5.17.230, shall constitute a lien or liens upon the real property of the premises served until such rates, fees, and charges have been paid. Such liens shall be enforced in the manner specified in NRS 444.520.

B. Until paid, any rate, fee, or charge levied pursuant to this chapter of the Code constitutes a perpetual lien or liens against the property served. The city or its franchisee may pass through to the owner of the property for which a lien or liens have been filed any fees charged by the county recorder's office for the filing and the release of the liens. In addition to the fees charged by the county recorder's office, the city or its franchisee may include in the total amount to be assessed to the property owner, an administrative fee to recover costs incurred by the city or its franchisee for filing and maintaining the liens, an

administrative fee for the release of the liens, any collection costs, and any past-due letter fees - each in an amount (other than collection costs) that corresponds to the fee in section 5.17.220 schedule A and in section 5.17.230 schedule A, as applicable, in appendix 1.

C. If a lien has been filed pursuant to section 5.17.230, the city or a franchisee may, in an amount that corresponds to the charge in section 5.17.230 schedule A in appendix 1:

1. Pass through to the owner(s) of that property any fees that have been charged by the county recorder's office for the recording of any liens and their release;

2. Charge the owner(s) of that property a fee to recover administrative costs incurred by the city or a franchisee in recording and maintaining such liens; and

3. Charge the owner(s) of that property a fee to recover administrative costs incurred by the city or a franchisee in securing the releases of such liens.

(Ord. No. 4044, § 23, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

Editor's note—Ord. No. 4044, § 23, adopted November 6, 2024, changed the title of section 5.17.230 from "Charges—mandatory subscription—billing—penalty—lien" to "Rates, fees, and charges—Liens." The historical notation has been preserved for reference purposes.

5.17.240 Adjustments to rates, fees, and charges—Rate changes.

A. The rates, fees, and charges established pursuant to this chapter, other than pass through rates, fees, and charges, shall be adjusted annually based on the CPI, calculated with reference to the annual percentage change in the CPI for the 12-month period ending December 31 immediately preceding the effective date of the adjustment. However, annual increases to rates, fees, and charges adjusted in accordance with the foregoing shall not be greater than six and one-half percent. The increase in rates, fees, and/or charges shall be made effective on July 1 of each year.

B. When an unforeseen economic circumstance has occurred during a given 12-month period, the city council may consider and may approve a method for adjusting rates which is not based on changes to the CPI. In any year following a period when the adjustment to rates was based on some other method, rate adjustments shall again be based on changes in the CPI. A minimum of one annual rate adjustment based on the CPI method must occur between annual rate adjustments based on methods other than the CPI method.

C. If an unforeseen economic circumstance has occurred during the preceding calendar year, a franchisee may request a special rate increase based upon the facts of the unforeseen economic circumstance. The franchisee will be required to submit facts and

details to substantiate the unforeseen economic circumstance. The city council may consider and may approve any special rate increase due to unforeseen economic circumstance.

(Ord. No. 4044, § 24, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

Editor's note—Ord. No. 4044, § 24, adopted November 6, 2024, changed the title of section 5.17.240 from "Charges—Rate changes" to "Adjustments to rates, fees, and charges—Rate changes." The historical notation has been preserved for reference purposes.

5.17.245 Pass through of taxes, fees, or other charges.

A. In addition to all other charges established by this chapter, franchisee may pass through to its customers such charges as are necessary for the franchisee to recoup any or all of the following that have been imposed upon and paid by franchisee:

1. All taxes, fees, or other charges on franchisee's provision of the services authorized by the franchise agreement that are in proportion to franchisee's customers in the city and that may be imposed by: (a) the Nevada Legislature, including, but not limited to, modified state business taxes set forth in NRS Chapter 363B and the commerce tax set forth in NRS Chapter 363C; (b) the city as a tax; (c) ballot initiative; or (d) federal government, excluding income taxes;

2. Franchise fees that may be imposed by city that are greater than five percent; and

3. Environmental surcharge as set forth in section 5.17.213.

B. Such pass-through charges shall not be subject to the franchise fee.

C. Other than the current franchise fee of five percent, other charges set forth in this section 5.17.245 shall be passed through to each customer as a separate line item on the franchisee's billing to each customer.

D. A franchisee shall provide to city, on or before March 1 of each year and in a form satisfactory to city, a detailed report for the preceding calendar year containing the following information concerning the items listed in subsection (A)(1) of this section:

1. The various amounts paid during the prior calendar year;

2. How such amounts were calculated;

3. The number of customers in the city served by the franchisee during the prior calendar year as of December 31;

4. The total pass-through charges collected from customers during the prior calendar year; and

5. The method that the franchisee will use to pass through such amounts to its customers for the current year, including any adjustments to the pass-through charges necessary to correct for any excess or under changes during the prior calendar year.

(Ord. No. 4044, § 25, 11-6-2024)

5.17.250 Customer service standards.

The following customer service standards shall apply to each franchisee:

A. The franchisee shall be required to implement a complaint resolution procedure to handle all complaints received by either the city or the franchisee. The complaint resolution procedure shall include the following:

1. The franchisee shall designate a single point of contact specifically dedicated to promptly (a) responding to and coordinating with city on issues related to customer service, spills, and concerns raised by city staff, residents, businesses, and visitors and (b) resolving complaints received by the city or the franchisee.

2. The franchisee shall record all complaints and make every effort to investigate and resolve them within 48 hours of their receipt.

3. If the franchisee cannot resolve a complaint within 48 hours of its receipt, the franchisee shall within that period, provide the city with a written report detailing why resolution could not be reached within that period, the actions that will be taken to resolve the complaint and the timeline to reach a resolution of the complaint.

B. If the city is not satisfied with the franchisee's proposed resolution of a complaint, the director of public works, or their designee, shall have the authority to direct the franchisee to resolve the complaint in a manner that is satisfactory to the city.

C. Upon request, the franchisee shall provide the city with a written monthly report, in a form satisfactory to the city, summarizing the complaints received by the franchisee and the resolutions thereof for the preceding month.

D. The franchisee shall designate a person, and provide contact information, for the city to contact in connection with complaints received by the city.

E. Bills for service.

1. Each bill for service issued by a franchisee must include:

a. Any previous balance or credit;

b. The amount due for service provided during the current billing period, with the date upon which this amount is past due;

c. Any approved charge for late payment of a bill, with the date upon which that charge begins to accrue;

d. Any other authorized rate, fee, charge, or tax;

e. The total of the preceding amounts;

f. The first and last day of the current billing period; and

g. The telephone number, fax number, email address, and address of the office of the franchisee where a customer may obtain information concerning their bill, the service provided or submit a complaint.

2. If a customer disputes any bill, charge, or service, the franchisee shall promptly investigate the matter and report its determination to the customer. If the customer so requests, the report must be made in writing.

(Ord. No. 4044, § 26, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.260 Telephone answering standards.

A. The franchisee's customer service operators shall be trained to screen requests and assist in solving problems. A customer shall be transferred to a supervisor upon request or, if none is available, receive a return call from a supervisor within one working day of request.

B. Each franchisee shall at all times maintain a telephone answering system that measures the:

1. Average wait time from the time that customer calls reach the franchisee to the time that such calls are answered by a person (not a machine);

2. Number of calls that reach the franchisee but are dropped before a representative of the franchisee answers such calls; and

3. Percentage of time during which all of the franchisee's customer service telephone lines are busy.

C. Upon request, the franchisee shall provide the city with a written monthly report regarding its telephone answering system, in a form satisfactory to the city, summarizing the average wait time, the number of dropped calls and the percentage of time during which all lines were busy during the preceding month.

D. The franchisee shall maintain the following minimum standards for its telephone answering system at least 90 percent of the time, measured monthly:

1. Telephone answering time, including wait time, shall not exceed 60 seconds.

2. No more than five percent of incoming customer service callers shall receive a busy signal.

3. The number of dropped calls shall not exceed 200 per month as otherwise reasonably established by franchisee after consultation with the city.

4. Customer service operators will identify themselves immediately upon initial contact.

E. Each monthly report required by subsection (C) of this section shall include a summary of whether the franchisee is or is not in compliance with the standards established pursuant to subsection (D) of this section and, if the franchisee is not in compliance, what actions the franchisee will take to meet the standards in future months.

F. The franchisee's business office shall be accessible through a toll-free telephone number 24 hours a day, including weekends and holidays. When the franchisee's business office is closed, a service capable of receiving and recording service complaints and inquiries shall be employed if the telephone is not answered by a person.
(Ord. No. 4044, § 27, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.265 Container repair and replacement standards.

A. If a solid waste container supplied by a franchisee to a nonresidential customer receives damage caused by the franchisee's own actions or through normal wear and tear, the franchisee shall, at its own cost, fix or replace the container no later than seven calendar days after the franchisee has been notified of the damage.

B. If a solid waste container supplied by a nonresidential customer, which is being properly used, receives damage due to a franchisee's negligence or misconduct, the franchisee shall, at its own cost, fix or replace the container no later than seven calendar days after the franchisee has been notified of the damage.

C. For purposes of this section, a franchisee shall be deemed to have been notified that a container has been damaged when a franchisee's collection worker arrives to collect the solid waste from a container and finds the container damaged, or when a premises owner or manager notifies the franchisee in writing that a container is damaged, whichever occurs first.

D. If a franchisee misses or improperly performs a scheduled collection for a nonresidential customer, resulting in solid waste that the customer has properly put out for collection not being collected, then within 24 hours of receiving notice of such missed or improper collection the franchisee shall send a second vehicle to the premises to properly collect such solid waste.

E. If a franchisee fails to timely fix or replace a damaged solid waste container owned or rented by a nonresidential customer, or timely correct a missed or improper collection, or properly position a container for a nonresidential customer, in accordance with this section, the franchisee may issue a pro-rata credit to such customer's account until the damaged or

misplaced container is serviceable or properly placed, or for the missed or improper collection, based on the charges for regularly scheduled collection service to the premises for the applicable billing period, regardless of whether the customer makes any request for such a credit.

F. For wheeled carts provided by franchisee to curbside residential customers under the single-stream recycling systems, franchisee shall be responsible for the normal wear and tear and general maintenance of the wheeled carts at no cost to the residential customer. General maintenance does not include maintaining the cleanliness of the wheeled carts.
(Ord. No. 4044, § 28, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.270 Solid and hazardous waste a nuisance.

Solid waste and hazardous waste as defined in this chapter and for the purposes of this chapter are a nuisance per se.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.275 Suspension of collection services.

A. A franchisee may withhold solid waste collection services from nonresidential customers (except for multiple dwellings, duplexes, and mobile homes) for nonpayment of collection charges but only if:

1. The customer is more than 60 days delinquent in the payment of collection charges;

2. The franchisee first notifies the customer (and the property owner, if different from the customer) in writing of its intent to withhold solid waste collection services and provides a minimum of 15 days within which to pay the delinquent charges or arrange payment therefor satisfactory to the franchisee; and

3. The response period provided under subsection 5.17.275(A)(2) has passed and the delinquent charges have not been paid or payment arrangements made satisfactory to the franchisee.

B. In any particular case in which withholding service from a nonresidential customer described in subsection 5.17.275(A) above creates a public health, safety and welfare concern as determined by the city manager or a designee, the city may require a franchisee to reinstate solid waste collection service for that customer within 24 hours even if the customer's account remains in delinquent status. Action taken under this subsection (B) does not preclude the franchisee from recording a lien pursuant to section 5.17.230 or pursuing any other collection remedy available under this chapter.
(Ord. No. 4044, § 29, 11-6-2024)

5.17.280 Unauthorized disposal prohibited.

All solid waste and hazardous waste collected from the public and private places and premises in the city shall not be deposited at any place within the city limits except at a materials recovery facility or a solid waste disposal facility legally authorized by the solid waste management authority having jurisdiction over such facility.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.290 No charge for disposal by residents at authorized disposal sites.

A. Any person may dispose of solid waste at any disposal site operated in accordance with all applicable laws, rules and regulations.

B. Any single-family resident of the city who is a current customer of a franchisee may dispose of the solid waste generated at their own single-family dwelling at any authorized disposal site operated by the franchisee within the city, without charge, upon presentation of either (1) a valid, government-issued photo identification, such as a current Nevada driver's license with a matching address of the solid waste bill for the single-family dwelling, or (2) a valid government-issued photo identification with a recent water bill with a service address that matches the solid waste service bill address, and in accordance with such other rules and regulations as the city may from time to time adopt. The solid waste presented for disposal without charge must have been generated by the residential customer on their own primary residential property, not generated as a result of any commercial provider permitted to convey their own solid waste under section 5.17.060. Commercial providers permitted to convey their own solid waste under section 5.17.060 may not dispose waste without charge under any circumstances, including, but not limited to:

1. Having a residential customer accompany the commercial provider to the disposal site.

2. Having a residential customer act as an agent for a commercial provider for purposes of disposal without charge.

3. Any person or commercial entity acting on behalf of a residential customer.

C. City may dispose of solid waste at any authorized disposal site owned or operated by the franchisee within the city or the county without charge, consistent with the terms and conditions of the franchise agreement.
(Ord. No. 4044, § 30, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.300 Penalty for violation.

A. Any person violating any of the provisions of this chapter shall be guilty of a misdemeanor and subject to the following penalties:

1. Upon conviction of a first offense shall be sentenced to pay a fine of not less than $200.00 nor more than $1,000.00, or by imprisonment for not more than six months in the city jail, or by both such fine and imprisonment.

2. Upon conviction of a second offense shall be sentenced to pay a fine of not less than $500.00 nor more than $1,000.00 or by imprisonment for not more than six months in the city jail, or by both such fine and imprisonment.

3. Upon conviction of a third offense shall be sentenced to pay a fine of not less than $1,000.00 and be imprisoned for a minimum of ten days in the city jail, not to exceed six months.

B. Every day that a violation occurs, exists, or is allowed to exist or continue, shall constitute a separate offense.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.310 Injunctive relief.

The city, in addition to the remedies and penalties above named, may seek injunctive relief against any violator of this chapter, with or without prior notice, to prevent or correct any solid waste, hazardous waste or recyclable materials problem.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.320 Rights of owners to dispose of recyclable materials.

Nothing in this chapter shall limit the right of any person to donate, sell, or otherwise legally dispose of their source-separated recyclable materials.
(Ord. No. 4044, § 31, 11-6-2024; Ord. No. 3083, § 1, 11-5-2013)

5.17.330 Rights of city to dispose of solid waste.

Nothing in this chapter shall limit the right of the city to collect, transport, process or dispose of any solid waste, hazardous waste or recyclable material, including the operation of transfer stations and recycling centers.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.340 Reserved.

5.17.350 Severability.

If any section, subsection, subdivision, paragraph, clause or provision of this chapter shall for any reason be held invalid or unenforceable, the invalidity or unenforceability of such section or subsection, paragraph, clause or provision shall not affect any of the remaining provisions of this chapter.
(Ord. No. 3083, § 1, 11-5-2013)

5.17.360 No conflict.

All ordinances, or parts of ordinances, sections, subsections, phrases, sentences, clauses or paragraphs contained in the Municipal Code of the City of Henderson, Nevada, in conflict herewith, are hereby repealed and replaced as necessary.
(Ord. No. 3083, § 1, 11-5-2013)

Appendix 1 Effective February 1, 2025

Section 5.17.160 Schedule A
Single-Family, Duplex and Multiple Dwelling Rates (Monthly Rate[1])

Category	Collection Level	Monthly Rate
Single-family residences, multiple dwellings with individual service, and duplexes	Once per week individual collection of solid waste, once per week curbside recyclables collection, and every other week (on regularly scheduled solid waste collection days) bulky item solid waste collection	$18.66

Category and Collection Level	Monthly Rate for first unit on a stop	Monthly Rate for each additional unit on a stop
Multiple dwellings (regardless of unit vacancies) without individual service:		
Two times per week solid waste	$13.90	$9.72
Three times per week solid waste	$20.90	$14.57
Four times per week solid waste	$25.47	$17.81

Category and Collection Level	Monthly Rate for first unit on a stop	Monthly Rate for each additional unit on a stop
Five times per week solid waste	$30.12	$21.06
Six times per week solid waste	$34.76	$24.33
Seven times per week solid waste	$39.38	$27.58

[1] Rates are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.170 Schedule A
Motels and Mobile Home Parks Rates (Monthly Rates[2])

Category and Collection Level (regardless of occupancy)	Monthly Rate for each office	Monthly Rate per unit with cooking facilities	Monthly Rate per unit without cooking facilities
Motels and Mobile Home Parks (without individual service):			
Two times per week solid waste	$13.90	$8.37	$6.68
Three times per week solid waste	$20.90	$12.51	$10.05
Four times per week solid waste	$25.47	$15.27	$12.27
Five times per week solid waste	$30.12	$18.08	$14.51
Six times per week solid waste	$34.76	$20.90	$16.73
Seven times per week solid waste	$39.38	$23.64	$18.96

[2] Rates are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.180 Schedule A
Collection Charges—Places of Business and Public Buildings (Monthly Rates[3])

Container Type & Number	1 Pickup Per Week	2 Pickups Per Week	3 Pickups Per Week	4 Pickups Per Week	5 Pickups Per Week	6 Pickups Per Week	7 Pickups Per Week
96 Gallon Mobile Container	$12.51	$25.04	$37.54	$57.77	$79.23	$104.11	$124.82
Each Additional	$12.51	$25.04	$37.54	$57.77	$79.23	$104.11	$124.82
1 Cubic Yard Container	$62.40	$124.82	$187.24	$207.86	$234.70	$270.36	$324.80
Each Additional	$62.40	$124.82	$187.24	$207.86	$234.70	$270.36	$324.80
2 Cubic Yard Container	$125.06	$250.05	$375.12	$396.04	$429.29	$478.21	$574.88
Each Additional	$125.06	$250.05	$375.12	$396.04	$429.29	$478.21	$574.88

Container Type & Number	1 Pickup Per Week	2 Pickups Per Week	3 Pickups Per Week	4 Pickups Per Week	5 Pickups Per Week	6 Pickups Per Week	7 Pickups Per Week
3 Cubic Yard Container	$187.55	$375.09	$562.65	$583.93	$623.75	$686.03	$824.94
Each Additional	$187.55	$375.09	$562.65	$583.93	$623.75	$686.03	$824.94
4 Cubic Yard Container	$250.05	$500.09	$750.15	$771.89	$818.24	$893.88	$1,074.94
Each Additional	$250.05	$500.09	$750.15	$771.89	$818.24	$893.88	$1,074.94
6 Cubic Yard Container	$375.09	$750.14	$1,125.21	$1,147.77	$1,207.18	$1,309.54	$1,575.07
Each Additional	$375.09	$750.14	$1,125.21	$1,147.77	$1,207.18	$1,309.54	$1,575.07
8 Cubic Yard Container	$500.09	$1,000.22	$1,500.30	$1,523.60	$1,596.13	$1,725.20	$2,075.14
Each Additional	$500.09	$1,000.22	$1,500.30	$1,523.60	$1,596.13	$1,725.20	$2,075.14

[3] Rates are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.180 Schedule B
Contracted Solid Waste Compactor Charges and Associated On-Call Charges (Monthly Rates[4])

Compactor Container Size	1 Pickup Per Week	2 Pickups Per Week	3 Pickups Per Week	4 Pickups Per Week	5 Pickups Per Week	6 Pickups Per Week	7 Pickups Per Week
10 Cubic Yard Container	$2,774.28	$3,708.78	$5,081.29	$5,519.01	$5,956.78	$6,394.52	$9,346.18
17 Cubic Yard Container	$3,432.42	$4,531.08	$6,386.38	$7,016.88	$7,647.29	$8,277.77	$11,021.19
26 Cubic Yard Container	$3,846.81	$5,359.85	$7,629.52	$8,259.99	$8,890.42	$9,520.88	$12,471.65
36 Cubic Yard Container	$4,539.24	$6,052.40	$8,321.84	$9,040.83	$9,759.77	$10,478.88	$13,429.71

Compactor Container Size	8 Pickup Per Week	9 Pickups Per Week	10 Pick-ups Per Week	11 Pickups Per Week	12 Pick-ups Per Week	13 Pick-ups Per Week	14 Pick-ups Per Week
10 Cubic Yard Container	$12,120.47	$13,054.97	$14,427.51	$14,865.22	$15,302.94	$15,740.71	$18,692.38
17 Cubic Yard Container	$14,453.56	$15,553.18	$17,407.57	$18,038.02	$18,668.48	$19,298.96	$22,042.35
26 Cubic Yard Container	$16,318.43	$17,831.56	$20,101.22	$20,731.67	$21,362.15	$21,992.57	$24,943.35
36 Cubic Yard Container	$17,968.95	$19,482.15	$21,751.58	$22,470.53	$23,189.52	$23,908.61	$26,859.41

On-Call Rates Per Pickup (with regular service)	Regular	Sunday/Holiday
Special pickup: 0—49 yards	$680.93	$1,021.40

On-Call Rates Per Pickup (with regular service)	Regular	Sunday/Holiday
Special pickup: 50—74 yards	$1,309.41	$1,964.15
Special pickup: 75 plus yards	$2,135.83	$3,203.73

Associated On-Call Rates Per Pickup (without regular service)	Regular	Sunday/Holiday
Special pickup: 0—49 yards	$1,062.91	$1,594.39

[4] Rates are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.180 Schedule C
Solid Waste Manual Type Drop Box Charges

On-Call Monthly Rates[5] (with or without regular service)	Regular[6]	Sunday/Holiday[6]
Less than 10 Cubic Yards	$13.11 (per cubic yard)	$19.68 (per cubic yard)
10 to 19 Cubic Yards	$131.10	$196.80
20 to 27 Cubic Yards	$262.20	$393.60
28 to 34 Cubic Yards	$367.08	$551.04
35 to 49 Cubic Yards	$458.85	$688.80
50 Cubic Yards or More	$655.50	$984.00

[5] All on-call rates are subject to additional charges of daily rent per 24 hours, or any part thereof, after the first 72 hours, excluding Sundays. The daily rate is $29.29. This daily rate is effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240

[6] Rates are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.190 Schedule A
Residential and Nonresidential Container Rental Charges

Container Size	Monthly Charge[7]
1 Cubic Yard	$24.03
2 Cubic Yard	$28.85
3 Cubic Yard	$33.69
4 Cubic Yard	$37.54
6 Cubic Yard	$48.09
8 Cubic Yard	$52.89
96 Gallon or Smaller Mobile Container	$5.81

[7] Charges are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.190 Schedule B
Special One-Time On-Call Collection Charges

Container Size	One-Time Charge[8]
1 Cubic Yard/Up to 96 Gallon Mobile Container	$46.98
2 Cubic Yard	$62.65
3 Cubic Yard	$78.31
4 Cubic Yard	$93.94
6 Cubic Yard	$109.60
8 Cubic Yard	$125.29
Assorted Trash Pickup	$213.10

[8] Charges are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.195 Schedule A
Overflow Charge

Description	Fee[9]
Per incident of overflowing solid waste at nonresidential customer premises	$47.40

[9] Fee is effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.200 Schedule A
Medical Waste Collection Charges

Basic Service Charges[10]					
		Price Per Item		Minimum Charge Per Service Call	
Item	Size & Volume	Delivered	Picked Up	Prescheduled Once/Month or Greater Frequency	On-Call/ Special Pickup
Biohazardous accumulation containers	Medium 10—14 gallons	$7.54	$7.54	$43.05 (If total for containers delivered and picked up is less than $43.05, then $43.05 will be invoiced)	$96.93 (If total for containers delivered and picked up is less than $96.93, then $96.93 will be invoiced)
	Large 27—32 gallons	$10.77	$10.77	$43.05	$96.93
	X-Large 48—50 gallons	$16.16	$16.16	$43.05	$96.93
	200 gallons w/wheels	$64.65	$64.65	$43.05	$96.93

[10] Charges are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Additional Service Charges[11] Charges for prescheduled once/month or greater frequency service:			
Type	Size Code	Container	Disposal Charge
Chemotherapy waste disposal	Large	33 gallon	$53.17
	Extra large	55 gallon	$94.33
Pharmaceutical (non-controlled substance) disposal	Extra small	5 gallon	$68.60
	Small	10 gallon	$124.35
	Medium	20 gallon	$248.66
	Large	30 gallon	$373.00
	Extra large	55 gallon	$621.71

[11] Charges are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Charges for On-Call/Special Pickups or Special Services[12]

Item	Charge
Special pickups (after 5:00 p.m., same day requests, holidays, weekends or greater than 20 polyurethane containers per pickup)	$102.92 per hour
Special services (account balancing, reconciliation, usage reports, certificates)	$102.92 per hour

Item	Charge
Preparation of waste to make suitable for transportation	$42.89 per container
Collection delay—$1.74 per minute after 10 minutes	$17.17 minimum
Over weight charge (Over 50 lbs.)	$68.60 per container

[12] Charges are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.200 Schedule B
Medical Waste Container Purchase or Rental

Purchase or Rental Items (Optional Services [13]				
Item	**Size**	**Volume**	**Dimensions**	**Price**
Sharp containers	Small	1 quart	4" x 4" x 6"	$8.58 plus tax
	Medium	5 quarts	4" x 10" x 9"	$13.73 plus tax
	Large	8 quarts	6" x 9" x 10"	$17.17 plus tax
	Extra large	32 quarts	9" x 13" x 17"	$34.30 plus tax
Red biohazard bags	Small (500 bags/case)	8—10 gallons	24" x 32" (8-10 gallons)	$120.04 plus tax
	Large/extra large (25 bags/roll)	50 gallons	43" x 48" (50 gallons)	$20.56 plus tax
Locker rental	Small	5 cubic yards	7½' x 5½' x 3½'	$102.92 per month (includes transportation)
	Large	30 cubic yards	20' x 8' x 8'	$240.12 per month (includes transportation)
Roll-off box rental	Extra large	40 cubic yards		$565.98 per month

Purchase or Rental Items (Optional Services [13]				
Item	**Size**	**Volume**	**Dimensions**	**Price**
Trailer rental (special pickup charge of $102.92 per hour does not apply to customers with trailer service, unless after hours or holiday pickups are requested)			30 feet long or less	$820.78 per month
			48 feet long or less	$1,094.36 per month
			53 feet long or less	$1,231.19 per month

[13] Rates are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.210 Schedule A
Sewage Waste Service Charges[14]

Sewage Waste Service	Rate
Per wet ton using franchisee equipment to accumulate, collect, transport, and dispose of sewage waste	$28.55
Per wet ton using customer's equipment to collect and store sewage waste prior to franchisee transporting and disposing of that sewage waste	$28.55

[14] Rates are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.220 Schedule A
Late Fees and Past-Due Letter Fee

Description	Fee
Late Fee—Residential[15]	$4.74 per quarter (or fraction thereof)
Late Fee—Nonresidential	2% of delinquent amount per month (or fraction thereof)
Past-Due Letter(s)	$25.00 per delinquency

[15] Fee is effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

Section 5.17.230 Schedule A
Lien Fees

Description	Fee
Fee charged by Clark County Recorder's Office	$42.00 per lien filed $42.00 per lien released (pass through)

Description	Fee
Administrative Fee to File and Maintain Lien[16]	$84.92 per lien filed
Administrative Fee to Release Lien Filed[16]	$84.92 per lien released

[16] Fees are effective February 1, 2025, and subject to applicable adjustments made pursuant to section 5.17.240.

(Ord. No. 4044, § 33, 11-6-2024)

Chapter 5.20 RESERVED*

***Editor's note—**Ord. No. 3022, § 1, adopted June 11, 2013, repealed the former chapter 5.20, §§ 5.20.010—5.20.360 in its entirety, which pertained to air pollution, and derived from Ord. No. 330, §§ 1—7, 9—11, 13—16, 18, 19, 21—24, adopted October 21, 1963; Ord. No. 333, adopted March 16, 1964; Res. No. 563, adopted in 1978, and Ord. No. 1633, § 5, adopted in 1995.

Chapter 5.24 RESERVED*

*__Editor's note—__Ord. No. 3024, § 1, adopted June 11, 2013, repealed the former chapter 5.24, §§ 5.24.010—5.24.040 in its entirety, which pertained to public rest facilities, and derived from Ord. No. 456, §§ 1—4, adopted in 1973, and Ord. No. 1633, § 6, adopted in 1995.

Chapter 5.28 TREES AND PLANTS

Sections:

5.28.010 Duties of abutting landowners.
5.28.020 Authority to order the treatment, trimming or removal of trees, plants and shrubs.
5.28.030 Procedure upon order to treat, trim or remove.
5.28.040 Action upon noncompliance.
5.28.050 Collection of delinquent charge.
5.28.060 Penalty.

5.28.010 Duties of abutting landowners.

It shall be the duty of any person growing a tree, plant or shrub on his property to keep such tree, plant or shrub from encroaching upon or obstructing the abutting or adjacent streets, sidewalks and public parks, buildings and grounds by:

A. Trimming or removing his tree, plant or shrub so as not to constitute, in the opinion of the building director or his code enforcement officer, a hazard to any member of the public or render unsafe in any manner whatsoever any public place and/or right-of-way;

B. Treating or removing any tree, plant or shrub so diseased or insect-ridden as to constitute a hazard to the public or to any tree, plant or shrub in public places.

(Ord. 1234 (part), 1991)

5.28.020 Authority to order the treatment, trimming or removal of trees, plants and shrubs.

The building director or his code enforcement officer shall have the authority to order the treatment, trimming or removal of any tree, plant or shrub upon private property when he shall find such action necessary to public safety and/or health or to prevent the spread of disease or insects to public trees, plants or shrubs or any public place.

(Ord. 1234 (part), 1991)

5.28.030 Procedure upon order to treat, trim or remove.

When the building director or his code enforcement officer shall find it warranted to order the treatment, trimming or removal of any tree, plant or shrub, as authorized in section 5.28.020, he shall serve a written order to correct the dangerous or unsafe condition upon the owner, lessee or occupant of the private property by one of the following methods of service:

A. By making personal delivery of the order to the owner, lessee or occupant of the private property where the dangerous or unsafe condition exists or originates;

B. By leaving the order with some person of suitable age and discretion upon the premises;

C. By affixing a copy of the order to the door at the premises in violation;

D. By mailing a copy of the order to the last known address of the owner of the premises, by certified mail, return receipt requested;

E. Only if the above four methods of service are impractical, by publishing a copy of the order in a local newspaper once a week, for three consecutive weeks.

(Ord. 1234 (part), 1991)

5.28.040 Action upon noncompliance.

When a person to whom an order is directed shall fail to comply within five days of service of the order, the building director may remedy the condition or contract with others for such purpose and charge the cost thereof to the person to whom the order is directed. The person remedying a condition hereunder shall be authorized to enter the premises for that purpose.

(Ord. 1234 (part), 1991)

5.28.050 Collection of delinquent charge.

When the city or other person with whom the city has contracted has effected the treatment, trimming or removal of any tree, plant or shrub pursuant to this chapter, the cost thereof, plus accrued interest at the rate of ten percent per annum from the date of the completion of the work shall be charged to the owner of the private property. Such charge shall constitute a lien upon the real property of such owner until such charge is paid, as well as constitute a debt of the record owner of the property and of the person occupying such premises to the city. The city may bring a civil action in any court of competent jurisdiction to recover such charge, or follow the lien procedures set forth in section 15.12.060(N)(3)(e).

(Ord. No. 3082, § 1, 11-5-2013; Ord. 1234 (part), 1991)

5.28.060 Penalty.

Any person who, having been served with a written order as provided in HMC [section] 5.28.030, and fails to comply therewith, shall be deemed guilty of a misdemeanor. Each day such a violation is committed or permitted to continue shall constitute a separate offense.

(Ord. 1234 (part), 1991)

Title 6

CIVIL SERVICE RULES*

Chapters:

6.01	General Provisions
6.02	Civil Service Board
6.03	Job Descriptions and Compensation
6.04	Recruitment, Assessment and Appointment
6.05	Employment Actions
6.06	Performance Expectations
6.07	Disciplinary Actions
6.08	Appeals to the Civil Service Board
6.09	Glossary

***Editor's note—**Ord. No. 3267, §§ 1, 2, adopted May 19, 2015, repealed and reenacted title 6 in its entirety to read as herein set out. Formerly, title 6, chapters 6.04—6.44, pertained to civil service, and derived from Ord. No. 2147, § 1, adopted in 2003, and Ord. No. 2745, § 1, adopted in 2008.

Note—For benefits for unclassified employees, see chapter 2.34, Unclassified Employees.

Chapter 6.01 GENERAL PROVISIONS

Sections:

6.01.010 Purpose.
6.01.020 Persons covered under the civil service rules.
6.01.030 Amendments to the civil service rules.
6.01.040 Other city policies and procedures.
6.01.050 Equal opportunity policy.
6.01.060 Accommodation requests.
6.01.070 Prohibited harassment.
6.01.080 Prohibited retaliation.

6.01.010 Purpose.

The purpose of these rules is to establish methods, practices and procedures to ensure fair and effective human resources administration. The terms and conditions of employment for covered positions shall be governed by the civil service rules. As provided by the Henderson City Charter, the civil service rules set forth provisions that concern:

A. Examination of potential employees;

B. Procedures for recruitment and placement;

C. Procedures for reductions in force;

D. Procedures for disciplinary actions against, and the discharge of, employees; and

E. Procedures for hearing employee appeals and taking final action.

(Ord. No. 3267, § 2, 5-19-2015)

6.01.020 Persons covered under the civil service rules.

A. Pursuant to the Henderson City Charter, the civil service rules are applicable to and govern the employment of certain non-represented full-time employees of the city who have successfully completed their probationary period. Pursuant to Section 24 and 26 of Senate Bill No. 440, a person holding any of the positions below, before, on or after October 1, 2013, is not covered by the civil service rules:

1. Executive officers;

2. Senior department directors;

3. Department directors;

4. Division heads (including assistant directors);

5. Assistant city attorneys;

6. Any other attorney employed by the office of the city attorney;

7. Assistants to the city manager;

8. The municipal court administrator;

9. Any elected officer;

10. Any employee that reports directly to an elected officer;

11. Any probationary employee;

12. Any employee covered under a collective bargaining agreement, unless otherwise stated in the collective bargaining agreements;

13. Any seasonal or temporary employee;

14. Any part-time employee;

15. Volunteers (including but not limited to, reserve fire officers, reserve police, reserve marshals, who receive no regular salary from the city); and/or

16. Independent contractors.

B. Employees covered under the civil service rules have classified positions. The employees identified in subsection A. are considered to hold unclassified positions.

C. The rules and regulations adopted in this title shall be made available to each employee holding a classified position. The civil service rules are maintained with the human resources department and the city clerk's office.
(Ord. No. 3267, § 2, 5-19-2015)

6.01.030 Amendments to the civil service rules.

A. The city manager, (or designee) and director of human resources (or designee) shall review the civil service rules on an annual basis. Proposed amendments shall be submitted to the civil service board who will then review and recommend the proposed amendments to the Henderson city council.

B. The civil service rules are codified in the Henderson Municipal Code ("HMC"), title 6. The Henderson city council must adopt the civil service rules and any amendments thereto. If not otherwise specified, the civil service rules and amendments thereto, are effective after they are approved by the Henderson city council and published in accordance with the Henderson City Charter.

C. The civil service rules are subject to change at any time pursuant to this section. These rules do not constitute a contract between employees in a classified position and the city.
(Ord. No. 3267, § 2, 5-19-2015)

6.01.040 Other city policies and procedures.

A. Employees covered under the civil service rules are required to follow all City of Henderson policies, procedures and directives, including the Henderson City Charter and all applicable sections of the HMC, unless a policy, procedure, or directive specifically excludes classified positions. If there is an inconsistency between the civil service rules and any of the City of Henderson policies, procedures and/or directives, then the civil service rules shall prevail.

B. A department may establish rules regarding employee conduct and performance to promote the efficient and orderly operation of the department, as long as such rules are not inconsistent with the City of Henderson policies, procedures and directives, the HMC, the Henderson City Charter, or the civil service rules.

1. Department rules and amendments related to employment practices must be approved by the director of human resources (or designee).

2. Department rules shall be made available to the employees in the affected department.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.01.050 Equal opportunity policy.

The City of Henderson is an equal opportunity employer and makes employment decisions on the basis of merit. In accordance with applicable law, the city prohibits discrimination based on race, color, religion, sex, pregnancy, age, national origin or ancestry, disability, veteran status, sexual orientation, status as HIV positive, genetic information, gender identity and expression, or any other consideration protected by federal, state or local laws. All such discrimination is prohibited. The city's commitment to equal opportunity employment applies to all persons involved in the operations of the city and prohibits discrimination by any employee or agent of the city. For additional information, please refer to the City of Henderson's policies regarding its commitment to equal employment opportunities.

(Ord. No. 3267, § 2, 5-19-2015)

6.01.060 Accommodation requests.

To comply with applicable laws ensuring equal employment opportunities to qualified individuals with disabilities, the city will make reasonable accommodations for the known physical or mental limitations of an otherwise qualified individual with a disability who is an applicant or an employee, unless undue hardship or a direct threat would occur as a result.

Any applicant or employee who requires an accommodation in order to perform the essential functions of the job they hold or desire to hold should contact human resources and request such an accommodation in accordance with the city's policies and procedures. Once an accommodation has been requested, the city will investigate these barriers or limitations and then identify what possible accommodations, if any, will help to eliminate the barrier(s) or limitation(s). If the requested accommodation is reasonable and will not impose an undue hardship or a direct threat, the city will make the accommodation in accordance with applicable law. The city may propose an alternative to the requested accommodation or substitute one reasonable accommodation for another, but the city retains the ultimate discretion to choose between reasonable accommodations.

The accommodation process is interactive, and it may take multiple conversations between the city and the requesting individual before an accommodation is reached. Employees are expected to fully cooperate in the accommodation process, including making every effort to provide management with current medical information. Employees who do not meaningfully cooperate in the accommodation process waive the right to accommodation. For additional information, please refer to the City of Henderson's policies and procedures that relate to accommodation requests.
(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.01.070 Prohibited harassment.

The city maintains a policy strictly prohibiting sexual harassment and harassment because of race, color, religion, sex, pregnancy, age, national origin or ancestry, disability, veteran status, sexual orientation, status as HIV positive, genetic information, gender identity and expression, or any other consideration protected by federal, state or local laws. This policy applies to all persons involved in the operations of the city and prohibits such harassment by any employee or agent of the city, including supervisors and co-workers. The city's policies and procedures also prohibit harassment by visitors, clients, vendors or other service providers at our facilities. Prohibited harassment will not be tolerated. The city is committed to taking all reasonable steps to prevent such harassment from occurring. For additional information, please refer to the City of Henderson's policies on maintaining a harassment free workplace.
(Ord. No. 3267, § 2, 5-19-2015)

6.01.080 Prohibited retaliation.

Applicable law and the City of Henderson's policies and procedures prohibit retaliation against any employee for opposing, reporting or threatening to report prohibited discrimination or harassment, or for participating in any manner in an investigation, proceeding or hearing regarding prohibited discrimination or harassment. The city will not retaliate against

employees who complain of prohibited discrimination or harassment and will not permit such retaliation by its employees. Complaints of prohibited retaliation should immediately be reported to the employee's supervisor and/or human resources in accordance with the City of Henderson's policies and procedures.
(Ord. No. 3267, § 2, 5-19-2015)

Chapter 6.02 CIVIL SERVICE BOARD

Sections:

6.02.010 Civil service board selection and composition.
6.02.020 Meetings.
6.02.030 Recusal of a civil service board member.

6.02.010 Civil service board selection and composition.

A. The civil service board shall be composed of five persons appointed by a majority vote of the city council.

B. Members of the civil service board shall be appointed by vote of the City Council at a public meeting to serve for staggered terms lasting up to three years and may serve no more than three terms.

C. The civil service board shall meet annually (or additionally, as needed), and by majority vote, select a chairperson and vice-chairperson for that calendar year or until the first meeting of the Board in the following year.

D. A member of the civil service board may be removed immediately for good cause prior to the expiration of the term by a majority vote of the city council. Removal for good cause means that the basis for removal is not for any arbitrary, capricious, or illegal reason and is based on facts (1) supported by substantial evidence, and (2) reasonably believed to be true. City Council has the sole discretion to determine if good cause exists.

E. A member of the civil service board shall automatically be removed if they miss more than two meetings in one calendar year period. A member may be removed by a majority vote of the city council if they fail to respond to communications related to their responsibilities on the civil service board.

F. A member of the civil service board may resign from their position by submitting a written resignation letter to the director of human resources. The civil service board member should provide at least two weeks' notice to the director of human resources in order to allow for the city council to find a replacement.

G. The director of human resources (or designee) will serve as secretary to the civil service board. The secretary of the board (or designee) shall have the authority to set the time and place of the annual regular meeting, and shall provide notice of such meeting in accordance with Nevada's Open Meeting Laws (set forth in Nevada Revised Statutes Chapter 241). The secretary does not have any voting authority.

H. Special meetings may be convened at the call of the chairperson, the secretary of the board, or by any two members of the civil service board after reasonable public notice and notice to the remaining members of the civil service board (in compliance with Nevada's Open Meeting Laws set forth in Nevada Revised Statutes Chapter 241).

I. The civil service board shall have the authority to hear appeals in the method provided by these rules from an employee who has requested an appeal that is receivable under these rules.
(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.02.020 Meetings.

A. The chairperson, or in the absence of the chairperson, the vice-chairperson, shall preside at all meetings of the civil service board. If neither the chairperson nor the vice-chairperson is present, the secretary shall preside over the meeting.

B. No business may be transacted and no action may be taken unless a quorum is present. A quorum shall consist of a minimum of three members.

C. Notice of all meetings shall be given in accordance with Nevada's Open Meeting Laws (set forth in Nevada Revised Statutes Chapter 241).
(Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.02.030 Recusal of a civil service board member.

A. Civil service board members are responsible for complying with the HMC chapter 2.40, including the provisions regarding disclosing conflicts of interest and recusing themselves where appropriate.

B. In compliance with HMC section 2.40.060, Civil service board members, even if they do not intend to recuse themselves, shall, prior to the beginning of the hearing, disclose on the record any facts that could reasonably create the appearance that their impartiality could be affected.

C. Pursuant to HMC section 2.40.060, a civil service board member who has a conflict of interest in regard to a particular matter that would materially affect the independence of judgment of a reasonable person in their situation shall recuse themselves and abstain from voting on the matter.

D. The employee or the city, prior to the beginning of a hearing, may ask for the disqualification of any civil service board member(s). The request may be based on the disclosures of a civil service board member, if any, or other facts relating to the particular civil service board member. If the employee or the city is relying on evidence from a third party, the evidence shall be presented in an affidavit.

E. Before a civil service board member may be disqualified, upon the request of the employee or the city, the board must vote and approve of the disqualification. A member may be disqualified from the hearing by at least two votes from the civil service board members who have not been challenged.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Chapter 6.03 JOB DESCRIPTIONS AND COMPENSATION

Sections:

6.03.010 Job descriptions.
6.03.020 Compensation plan.
6.03.030 Annual pay adjustment and general increase compensation.

6.03.010 Job descriptions.

A. All classified positions are assigned an appropriate job description. The human resources department and department directors are responsible for the content of each job description.

B. At a minimum, each job description shall include a reference to the following: (1) the job title; (2) essential functions; (3) minimum qualifications including physical requirements, education, training, experience, licenses, certifications, and/or special requirements; and (4) knowledge, skills and abilities. Job descriptions shall be deemed a summary of the essential work required but will not necessarily include all duties to be performed in a particular position.

C. All new and revised job descriptions are effective upon the approval of the director of human resources (or designee).
(Ord. No. 3267, § 2, 5-19-2015)

6.03.020 Compensation plan.

A. The director of human resources shall recommend a compensation plan to the city manager. The city reserves the right to alter the compensation plan in accordance with the City Charter and the HMC, and any other relevant laws, policies and procedures.

B. Compensation modifications that differ from the approved budget are subject to available funding.
(Ord. No. 3267, § 2, 5-19-2015)

6.03.030 Annual pay adjustment and general increase compensation.

A. Employees who have not been subject to a performance improvement plan or a return-to-work/last chance agreement in the previous 12 months and/or issued disciplinary action consisting of a suspension, may be eligible for an annual pay adjustment and general increase, provided said compensation is approved by the city and funded in the city's annual budget.

B. If approved by the city, annual pay adjustment and general increase compensation is still subject to funding availability and is in no way guaranteed. Annual pay adjustment and general increase compensation may be paid in the form of a salary increase or as a one-time lump sum payment or both.

C. Salary assignments, adjustments, and/or lump-sum bonus payments are not subject to appeal through these rules.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Editor's note—Ord. No. 4142, § 1, adopted January 6, 2026, changed the title of section 6.03.030 from "Pay-for-performance" to "Annual pay adjustment and general increase compensation." The historical notation has been preserved for reference purposes.

Chapter 6.04 RECRUITMENT, ASSESSMENT AND APPOINTMENT

Sections:

6.04.010 Job postings.
6.04.020 Employment application process.
6.04.030 Application materials review and assessment process.
6.04.040 Eligibility lists.
6.04.050 Selection, offers, and appointment of employment.
6.04.060 External candidates subject to a probationary period.
6.04.070 Internal classification changes, promotions and the qualifying period.
6.04.080 Recruitment concerns/complaints regarding violations of this chapter.

6.04.010 Job postings.

A. Vacancies may be filled from an existing eligibility list. If there is no eligibility list or the list is expired, the vacancy may be posted to create an eligibility list.

B. The director of human resources (or designee) may elect to post internally/departmentally, city-wide, or as permitted in subsection 6.04.070(B) or externally, based upon the business needs of the city. The vacancy shall be posted for a minimum of seven calendar days or limited by a predetermined number of applications. Application materials must be completed in their entirety and submitted by the posted closing date and time.

C. The posted vacancy shall specify the title and salary range of the vacant position, a brief summary of the position's essential duties, the minimum qualifications and the final date upon which employment applications shall be accepted, unless the posting is open and continuous.

D. Probationary employees shall be eligible to apply for vacancies for which they are qualified. However, a new probationary period will apply if selected to fill the vacancy.

E. The director of human resources (or designee) may choose to consider applicants who have applied to job postings for classifications within the same job series or job family (as determined by human resources), or for classifications in which the qualifications are sufficiently similar to conclude that the applicant on the eligibility list are likely to be competent for the vacancy in question. These classifications must be within the same or lower pay level as the posted position. The candidate must meet the minimum qualifications of that classification and may be required to pass any applicable assessments. Eligibility for consideration extends up to one year from the date of application or the date the eligibility list expires (whichever is later).

F. Upon approval, a temporary and part-time employee who has worked at least 988 continuous hours (with no separation of employment) in that classification, meets the minimum qualifications of the position, and was hired through a competitive process into that temporary or part-time classification may have their position converted to a full-time position or may be placed into a vacant full-time position in the same classification, without the requirement to post the position. These transactions require approval from the director of human resources (or designee). If the change affects the staff complement (i.e., position conversions), additional approvals may be required.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Note—Former section 6.04.030.

6.04.020 Employment application process.

A. For every posted vacancy, each candidate must complete the employment application materials and may be required to provide evidence of education, training, relevant experience or other requirements and certifications for the relevant classification.

B. The city may reject application materials for any of the reasons below, including, but not limited to:

1. The candidate does not have a legal right to work in the United States;
2. The application materials are incomplete;
3. The application materials are not submitted by the job posting deadline;
4. The application materials do not demonstrate that the candidate meets minimum qualifications;
5. The candidate was previously terminated for-cause (the city may consider the circumstances surrounding the for-cause termination and the time that has passed before making a hiring decision); and
6. The candidate previously applied and was denied the position because they failed the background review process (the city shall consider the circumstances pertaining to the background failure, the time that has passed, and city policy before making a hiring decision).

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Note—Former section 6.04.010.

6.04.030 Application materials review and assessment process.

A. Application materials will be reviewed for completeness, timeliness, and to determine if the candidate meets the minimum qualifications for the classification for which they applied.

B. Assessment processes will be conducted and administered at the discretion of the city. The city reserves the right to modify the selection and assessment process in accordance with accepted legal, ethical and professional standards.

C. The purpose of the assessment process is to evaluate candidates in order to identify those who are best qualified to continue in the recruitment process. Candidates will be evaluated on the information supplied in their application materials and may be given any combination of written, oral, physical agility or performance skills assessments in accordance with applicable federal and state laws and standards. Only the best-qualified candidates will be invited to move forward.

D. The human resources department shall have full responsibility for the design, development, and administration of the assessment process to include contracting with a third party as required by statute or normal course of business.

E. Candidates with disabilities who require accommodation in the assessment process shall contact the human resources department to request assistance prior to the closing date of the recruitment. Requests may be submitted in writing, by phone, or through another accessible method.

F. Applicants may be disqualified if:

1. The applicant fails to be on time for a scheduled assessment or complete an assessment by an established deadline. Exceptions may be made for emergency situations as determined by the human resources department;
2. The applicant fails to follow instructions;
3. The applicant has made a false statement or omission of any material fact, or attempted to or practiced any deception, misrepresentation or fraud in the application, assessment, and/or background process; and/or
4. The candidate exhibited dishonesty, unacceptable and/or unprofessional behavior at any time during any part of the application, assessment, and/or background process as outlined in city policy.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Editor's note—Ord. No. 4142, § 1, adopted January 6, 2026, changed the title of section 6.04.030 from "Application review and assessment process" to "Application materials review and assessment process." The historical notation has been preserved for reference purposes.

Note—Former section 6.04.020.

6.04.040 Eligibility lists.

A. Eligibility lists may be created through an application materials review and/or an assessment process.

B. Candidates who pass either process shall be placed on an eligibility list, which may be ranked or unranked. Candidates who have successfully completed a scored assessment process shall be ranked in descending order based upon their overall performance. A hiring authority may elect to interview any candidate on the eligibility list(s).

C. Eligibility lists shall be certified by the director of human resources (or designee). The director of human resources (or designee) may abolish an eligibility list for legitimate business purposes, such as but not limited to: an insufficient number of qualified candidates, and/or the job description, salary, and/or assessment for the position has significantly changed since the position was posted.

D. The city may elect to consider candidates from an eligibility list for a period of 12 months from the date they were placed on the list.

E. Eligibility lists may be extended upon approval of the director of human resources (or designee).

F. Any person may be removed from an eligibility list for reasons listed below, or under extenuating circumstances as determined by the director of human resources:

1. At the candidate's request;

2. Separation from the city;

3. Failure to respond to inquiries or notices from the city;

4. Failing the background review process;

5. If an offer has been rescinded;

6. Falsification of their application materials; and/or

7. If the city is aware of any factual information that indicates a person is unable or incapable of performing the functions of the job for which the person is applying (e.g., not attaining a certification as required by the minimum qualifications for the position).

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

Editor's note—Ord. No. 4018, § 1, adopted April 2, 2024, changed the title of section 6.04.040 from "Certification of eligibility list" to "Eligibility lists." The historical notation has been preserved for reference purposes.

6.04.050 Selection, offers, and appointment of employment.

A. Employment with the city is at the sole discretion of the city.

B. Employment offers, whether to an internal or external candidate, shall be contingent upon the successful and timely completion of a background review process, which, depending on the position may include, but is not limited to, completion of employer forms

and documents, a criminal background check, DMV records review, education and experience verifications, reference checks, credit check, drug screening, and physical and/or psychological examination.

C. Candidates who fail to respond to the city's offer of employment within three business days shall be deemed to have declined the offer of employment; at which time it may be rescinded.

D. Any person whose job offer has been rescinded by the city per this section shall be removed from an eligibility list, unless the candidate presents an explanation to the director of human resources (or designee) deemed to be satisfactory.

E. Any person who declines a formal offer of employment per this section may request to remain on the eligibility list.

F. A conditional offer may be rescinded if a candidate fails to fully cooperate with or fails any part of the background review process.

G. If an individual who was previously employed with the city has an interest in being rehired to a previously held position, similar position of equal or lower pay, or lower-level position within the same job series, they may submit a request in writing to the director of human resources (or designee) within one year of their date of separation from the city. Rehires may be considered if there is a current vacancy, and if approved by the department director and the director of human resources. Rehired employees must meet the minimum qualifications of the position and may be required to take assessments. Rehires may be required to submit to background screenings prior to reemployment and a probationary/qualifying period may be required and/or adjusted based on prior time in service.
(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Editor's note—Ord. No. 4142, § 1, adopted January 6, 2026, changed the title of section 6.04.050 from "Selection and appointment of employment" to "Selection, offers, and appointment of employment." The historical notation has been preserved for reference purposes.

6.04.060 External candidates subject to a probationary period.

A. Upon initial hire or rehire, an employee will be subject to a six-month probationary period. Probationary periods may be extended up to a period of six additional months upon the recommendation of a department director and approval of the director of human resources (or designee). If an employee is on any type of leave during their probationary period (exceeding four workdays) or is temporarily assigned to a light-duty position (exceeding four workdays, whether consecutive or inconsecutive), the city may also extend the probationary period.

B. During the probationary period, a department director may recommend termination. The director of human resources (or designee) shall have the authority to approve or deny all recommended terminations. An employee who is terminated during the probationary period does not have appeal rights under these civil service rules.

C. If an employee is transferred to or selected for a different city position while serving a probationary period, then the employee must start a new probationary period (the full six months, subject to extension) for the new position. The employee's original date of hire will remain their city seniority date.
(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.04.070 Internal classification changes, promotions and the qualifying period.

A. Insofar as practicable and consistent with the best interest of the city, vacancies in a classified position may be filled by internal candidates from within the city.

B. The city manager, in conjunction with the director of human resources, may authorize alternative internal recruitment and/or selection processes (e.g., assigning or appointing employees to a classified position, for which they are qualified) to facilitate modifications to the organizational structure, to enhance operational efficiencies, or to address any other legitimate operational concerns.

C. With approval from the director of human resources (or designee), the city may elect to establish and utilize a transfer list to fill vacancies.

1. Full-time non-probationary employees who are interested in transferring to the same classification in a different department who meet the requirements of the new position may elect to place themselves on the transfer list.
2. Employees who are no longer eligible for transfer will be removed from the eligibility list.

D. Employees who meet the minimum qualifications and want to compete in the recruitment process must submit completed application materials within the established timeframe.

E. The application materials review and/or assessment process set forth in section 6.04.030 shall be used to determine which employees are eligible for selection, unless the vacancy is filled as a result of an alternative internal selection process as permitted by subsection 6.04.010(E), 6.04.010(F), or 6.04.070(B).

F. Upon promotion, voluntary or involuntary demotion or transfer, employees will serve a six-month qualifying period. The qualifying period may be extended for up to six additional months upon the recommendation of the department director and approval of the director

of human resources (or designee). If an employee is on any type of leave during their qualifying period (exceeding four workdays, whether consecutive or inconsecutive) or is temporarily assigned to a light-duty position (exceeding four workdays, whether consecutive or inconsecutive), the city may extend the qualifying period.

G. An employee who has been promoted, voluntarily or involuntarily demoted, or laterally transferred shall be subject to the applicable performance standards of the new position. Failure to meet performance standards during the qualifying period may result in disciplinary action, up to and including suspension, a return to their former classification (if such a position is available), a demotion or transfer, or termination.

H. An employee who is suspended or terminated for failure to meet performance standards during the qualifying period shall have the appeal rights afforded by these Rules and set forth in chapter 6.08. However, an employee who is offered the opportunity to return to their former classification or a similar classification (i.e., demoted), as a result of being issued disciplinary action for failure to meet the performance standards during a qualifying period, does not have any appeal rights under these rules.

I. An employee who transfers from a classified position to an unclassified position or to a position covered under a collective bargaining agreement does not retain any rights or privileges under the civil service rules.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Editor's note—Ord. No. 4018, § 1, adopted April 2, 2024, changed the title of section 6.04.070 from "Internal transfers, promotions and the qualifying period" to "Internal classification changes, promotions and the qualifying period." The historical notation has been preserved for reference purposes.

6.04.080 Recruitment concerns/complaints regarding violations of this chapter.

A. If a candidate covered under the civil service rules believes that the city violated chapter 6.04 of these rules, they may report such violations to the director of human resources, in writing, within seven calendar days from the date the candidate is notified of the hiring decision. The candidate's complaint must specifically identify the civil service rule allegedly violated and explain the reason why the candidate believes the rule was violated. Upon timely receipt of the complaint to the director of human resources, the director of human resources (or designee) will investigate the complaint. A decision by the director of human resources (or designee) shall be made within 14 calendar days of receipt of the complaint. If the investigation requires additional time, the candidate must be notified within 14 calendar days of receipt of the complaint that the complaint has been received but that the investigation will require additional time to conduct.

B. If a candidate is submitting a complaint regarding the selection for a position within the human resources department, the complaint may be submitted directly to the city manager (or designee). The procedures for submitting a complaint to the city manager (or designee) are the same as for submitting a complaint directly to the director of human resources.

C. The decision of the director of human resources (or designee) or the city manager (or designee) shall be final.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Chapter 6.05 EMPLOYMENT ACTIONS

Sections:

6.05.010 Job abandonment.
6.05.020 Resignation or retirement.
6.05.030 Reduction-in-force procedures.
6.05.040 Displacement rights.
6.05.050 Lay-offs.
6.05.060 Reinstatement list.

6.05.010 Job abandonment.

A. An employee shall have abandoned their job if the employee fails to directly notify their supervisor of an absence from work for three consecutive workdays. Job abandonment shall also occur when an employee fails to return to work for three consecutive workdays after the employee's approved leave has expired without directly notifying their supervisor of the continuing absences and without satisfactory explanation.

B. Before the city makes a determination that the employee has abandoned their job, the city shall attempt to contact the employee on two separate days using either the employee's last known home telephone number, cell phone number or email address provided to the city by the employee. If the attempts to reach the employee are unsuccessful, the city can conclude that the employee has abandoned their job, and the employee shall be immediately terminated.

C. Employees who are terminated for job abandonment do not have appeal rights under these rules.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.05.020 Resignation or retirement.

A. An employee's notice of resignation or retirement shall be in writing and shall be submitted to their supervisor and/or department director. The notice shall indicate the effective date of resignation or retirement. The notice should be submitted at least two weeks prior to the effective date of the resignation or retirement.

B. The notice of resignation or retirement shall be deemed accepted by the city upon receipt by the employee's supervisor and/or department director. The supervisor and/or department director will forward an employee's notice of resignation or retirement to the human resources department. Once a notice is received by the employee's supervisor and/or department director, the notice may not be withdrawn without the written approval of the director of human resources or designee.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.05.030 Reduction-in-force procedures.

A. A department director may make recommendations to the city manager regarding a reduction-in-force if the department director believes layoffs are necessary by reason of shortage of work or funds, the elimination of a position, organizational changes, or for any other legitimate business or operational purposes.

B. The city manager must approve all reductions-in-force.

C. The city council must approve a reduction-in-force involving layoffs of five or more non-vacant positions.

D. After a reduction-in-force has been approved by the city manager, the city manager (or designee) must inform the director of human resources as to the number of employees to be laid-off within each of the affected departments and classifications, and identify the reason (e.g., shortage of work, lack of funds, position elimination, organizational changes or any other legitimate business reason) for the lay-offs. Once this information is provided to the director of human resources, the human resources department shall administer the reduction-in-force according to city seniority within the following limitations:

1. All probationary employees in the affected classification(s) shall be laid-off before employees covered under the civil service rules may be impacted by the reduction-in-force. Probationary employees shall not have displacement rights under these civil service rules.
2. Once all probationary employees have been laid-off in the impacted classification(s) and department(s), then employees shall be selected for inclusion in the reduction-in-force in the inverse order of their city seniority within the affected classification(s) and department(s), with the last employee hired being the first selected for the reduction-in-force. An employee loses their city seniority status for the purposes of a reduction-in-force if they have received active discipline (as defined in HMC 6.07.050) in the form of a demotion, suspension, performance improvement plan and/or return-to-work/last chance agreement.
3. Employees, other than employees serving their probationary period, selected for inclusion in the reduction-in-force shall have displacement rights.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.05.040 Displacement rights.

A non-probationary employee selected for inclusion in a reduction-in-force is considered a displaced employee and shall have displacement rights. The displacement procedure shall be administered as follows:

A. A displaced employee may displace an employee with the least city seniority within the same classification. Under no circumstances is a displaced employee entitled to displace an employee with greater city seniority than the displaced employee.

B. If the displaced employee's classification does not exist outside of their department, or if the displaced employee does not have more seniority than a person in that classification in a different department, then the displaced employee may displace the least senior employee holding the same previously held classification that the displaced employee held within the prior ten years, as long as the displaced employee is still qualified to perform the previously held classification and the position is covered under the Civil Service Rules. If the displaced employee has held multiple previously held classifications during the prior ten years, they will displace the employee with the least city seniority status (as long as the displaced employee is still qualified to perform the previously held classification), in order of the most recently held job covered under the Civil Service Rules.

C. A non-probationary employee holding a classified position who is displaced pursuant to this procedure, has the same displacement rights as a displaced employee.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.05.050 Lay-offs.

A. If a displaced employee does not have a previously held classification with the city, or has the least city seniority in the previously held classification, or is no longer qualified or eligible to hold the previously held classification, or the classification no longer exists, the displaced employee shall be laid-off and placed on a reinstatement list.

B. The director of human resources (or designee) will advise the affected employees, within at least 30 calendar days (or the appropriate period of time required by law) of the employees' effective lay-off date. If the city is unable to provide timely notice, then the city shall pay the affected employees one month's wages (two pay periods) based upon the employee's base rate of pay for their regular work schedule earned in the prior two pay periods.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.05.060 Reinstatement list.

A laid-off employee shall be placed on a reinstatement list for the classification they held at the time of lay-off. The laid-off employee shall remain on a reinstatement list for the applicable classification for a period of 24 months or a period equal to the laid-off employee's length of employment, whichever is less.

A. Laid-off employees on a reinstatement list will be ranked in order by their city seniority date for the classification they held at the time of being laid-off. Vacancies will then be offered to individuals on the reinstatement list for a particular classifi-

cation in descending order of city seniority. A person must still be qualified to perform the essential functions of the job with or without an accommodation to be eligible for the position.

B. A reinstatement list will have precedence over all other eligibility lists.

C. An employee who is placed in a previously held classification as a result of being selected from the reinstatement list must meet the minimum qualifications as listed on the job description and successfully complete the background review process prior to beginning the previously held classification. Once the employee starts working with the city again, they may be required to serve a qualifying period of six months.

D. Laid-off employees on a reinstatement list will be considered eligible for internal recruitments, for classified positions for which they are qualified, for a period of 24 months or a period equal to the employee's length of employment, whichever is less. Employees selected for a classified position as a result of the internal recruitment process, must successfully complete the background review process prior to beginning the new classified position. Once the employee starts working with the city again, they must serve a qualifying period of six months.

E. Laid-off employees placed on a reinstatement list waive their reinstatement privileges if they fail to respond to a re-employment offer within 15 calendar days after the notice is mailed to the last known address. It is the laid-off employee's responsibility to update the city, in writing, of any changes to their contact information.

F. Once a laid-off employee is removed from the reinstatement list, the laid-off employee no longer has rights under the civil service rules.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Chapter 6.06 PERFORMANCE EXPECTATIONS

Sections:

6.06.010 Employee obligations.
6.06.020 Performance evaluations.
6.06.030 Recognition of exceptional performance.
6.06.040 Coaching and feedback.

6.06.010 Employee obligations.

A. Employees are required to adhere to the rules and procedures set forth in the civil service rules, as well as to applicable regulations or policies set forth in the City Charter, administrative policies and procedures, ethics rules, employee agreements, department rules and any other official city rules.

B. Employee responsibilities include, but are not limited to, the following:

1. Learning their official job duties and performing accordingly;

2. Completing assigned training, and/or acquiring and/or maintaining any license(s) registration(s), and/or certifications that are required of their position;

3. Establishing and maintaining effective working relationships with supervisors, fellow employees and the public;

4. Learning and adhering to city and departmental rules, regulations, and policies;

5. Maintaining the ability to perform the essential functions of their position with or without a reasonable accommodation;

6. Maintaining the level of performance required of their position;

7. Communicating any concerns regarding their employment to their supervisor and/or human resources;

8. Timely completion of all required self-evaluations;

9. Attending work as scheduled, unless authorized to be absent, and taking responsibility for initiating and obtaining any necessary authorization for such absences;

10. Obtaining approval from their immediate supervisor, department director, and the director of human resources to work a secondary job, including employment for third parties or self-employment, while employed by the city; and

11. Participating and cooperating in investigations conducted by the city.

C. In addition to the above, employees in supervisory positions are responsible for:

1. Providing instruction and guidance to employees in the performance of job functions;

2. Monitoring employee performance and timely completing performance evaluations;

3. Maintaining an open-door policy with employees, which includes being accessible to their employees' concerns and questions;

4. Communicating with employees about positive and negative performance;

5. Documenting employee disciplinary matters and employee complaints; and

6. Participating, cooperating, and potentially coordinating investigations related to employee disciplinary matters, employee complaints, and other personnel related matters.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.06.020 Performance evaluations.

A. Performance evaluations are meant to be beneficial to both the employer and the employee. In addition to regular work related discussions and/or informal coaching and feedback, supervisors shall conduct formal performance evaluations for each employee under their supervision. All formal performance evaluations shall be completed in a timely manner, and in a manner approved by the director of human resources (or designee). The purpose of the performance evaluation is to review the employee's work performance, achievements, challenges, development goals, and/or define and set clear performance expectations where support is needed. Additionally, the performance evaluation will explain how the employee's job duties aligns with strategic and operational goals and initiatives for both the department and the organization. The performance evaluation also provides an opportunity for the employee to communicate any support they need from their supervisor and ask specific questions to help clarify their role or work.

1. Supervisors should ensure newly hired employees understand the duties and performance expectations for the position and provide regular feedback during a new hire's probationary period or qualifying period. For employees who are not on a probationary period or qualifying period, supervisors shall conduct performance evaluations on an annual basis.

2. Performance evaluations should recognize all aspects of an individual's job performance, including exceptional, acceptable and substandard performance. Supervisors should provide regular coaching and feedback to employees throughout the year and refer to such discussions in the formal performance evaluation.

3. Employees subject to a performance improvement plan may require additional performance evaluations. Employees subject to a performance improvement plan will have clear actions and accountabilities detailed in the plan, which must be satisfied during the stated time period to avoid potential disciplinary action.

4. Annual pay adjustment increases, general increases, and lump sum performance bonuses are not tied to the employees' yearly performance evaluations. An employee is not eligible for an annual pay adjustment increase, general increase or lump-sum performance bonus if they have received active discipline (as defined in subsection 6.07.050) in the form of a demotion, suspension, performance improvement plan and/or return-to-work/last chance agreement.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.06.030 Recognition of exceptional performance.

A. If an employee is performing above and beyond their supervisor's expectations, the department director (or designee) may recognize such performance in writing.

B. Documentation of an employee's exceptional performance shall be kept in the employee's personnel file.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.06.040 Coaching and feedback.

Supervisors are encouraged to provide employees regular coaching and feedback to assist employees in successfully performing their jobs. Coaching and feedback should be provided both with respect to positive and negative aspects of an employee's performance and/or conduct. The act of providing coaching and feedback to employees is not considered disciplinary action. Notes and/or other documentation relevant to any coaching and counseling may be recorded in a manner (or method) approved by the director of human resources (or designee), and are subject to standard retention/destruction schedules. If employees fail to act on their supervisors' coaching and feedback, the supervisor may take disciplinary action as set forth in chapter 6.07. This section shall not be construed to require coaching and feedback prior to disciplinary action being taken.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

Chapter 6.07 DISCIPLINARY ACTIONS

Sections:

6.07.010 Prohibited conduct.
6.07.020 Suspension pending investigation.
6.07.030 Types of disciplinary actions.
6.07.040 Pre-disciplinary procedures (suspensions without pay, demotions, and terminations).
6.07.050 Active discipline.

6.07.010 Prohibited conduct.

City employees are expected to maintain certain behavior and performance standards. The following list of prohibited conduct is intended to provide examples of behavior that can result in disciplinary action. This list is not exhaustive—other acts of substance relating to misconduct or work performance of an employee may be considered grounds for disciplinary action.

A. Incompetency or inefficiency in performance of duties;

B. Insubordination, unprofessionalism, and/or failure to perform assigned duties;

C. Failure to comply with the requirements set forth in a performance improvement plan;

D. Failure to complete assigned training and/or acquire and/or maintain any license(s), registration(s) or certification(s) that are required of the employee's position;

E. Failure to maintain the confidentiality of the city's non-public information;

F. Failure to properly record employee's time—examples include but are not limited to, recording the work time of another employee (unless an employee is assigned to be a time-reporter) or allowing any other employee to record your work time (unless the employee reports time to an assigned time-reporter), recording false time records, manipulating time records, and not recording time worked or time off;

G. Use of obscene, profane or abusive language and/or conduct, including malicious gossip;

H. Careless, negligent or intentional misuse of city property, equipment, or funds, including use for personal reasons or incidents that result in damage or risk of damage to property;

I. Violation of a safety rule or safety practice;

J. Taking audio or video recordings of another employee without the explicit permission from all of the employees who are being recorded;

K. Failure to follow established procedures in reporting a work related personal injury or damage to city property or city equipment;

L. Failure to cooperate in an internal investigation;

M. Excessive tardiness or absenteeism, being absent without leave or failing to report after leave of absence has expired, or abusing paid leave policies;

N. Sleeping or malingering during work hours;

O. Violation of the Civil Service Rules, HMC chapter 2.40, the Charter of the City of Henderson, administrative policies and procedures, and/or other city or departmental rules and regulations;

P. Conviction for, or entering a plea of guilty or no contest to any felony or misdemeanor that is related to the employee's position, violates a city policy, creates a safety concern, and/or involves actions that may diminish the public's trust, whether the offense occurred on or off duty;

Q. Discriminatory conduct, sexual harassment or harassment based on race, color, religion, national origin, gender, age, sexual orientation, covered veteran status, pregnancy, gender identity or expression, marital status, mental or physical disability, genetic information or any other basis made unlawful by any applicable law, ordinance or regulation (disciplinary action based on this provision may not be appealed to the civil service board);

R. Engaging in disorderly conduct such as horseplay, scuffling and malicious mischief;

S. Provoking or instigating a physical fight or fighting at any time while on duty or at any city facility or worksite;

T. Being under the influence of, use, possession, sale, distribution, dispensing or manufacturing of intoxicating beverages, hallucinogens and/or controlled substances (not prescribed or prescribed but abused/misused); failing to report potential hazards of working while taking a prescribed medication; or use of illegal drugs while at work, or preceding duty so as to be detected by behavior, physical condition or testing while on duty;

U. Refusal to be tested when there is a reasonable suspicion that the employee was under the influence of alcohol, controlled substances, hallucinogens, or illegal drugs while at work; or if the employee is required to be tested as a result of having a commercial driver's license;

V. Verbal or physical conduct that is abusive, threatening, offensive or intimidating while on duty or at any city facility or work site;

W. Acceptance or solicitation of a bribe, improper gift/gratuity, or any compensation intended to influence the employee in the performance of their assigned duties for the city;

X. Improper use of one's employment with the city for the employee's personal or financial advantage or granting improper privilege to another;

Y. Misappropriation, misuse, theft, negligent, careless or unauthorized use of city property or funds and/or damage to city property;

Z. Failure to follow a return-to-work/last chance agreement (terminations based on a failure to comply with the terms of a return-to-work/last chance agreement are not appealable); or

AA. Dishonesty.

(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.07.020 Suspension pending investigation.

A. In conjunction with human resources, the department head (or their designee) may suspend an employee and/or place the employee on leave, with or without pay, pending an investigation of an alleged conduct violation. Suspensions pending investigations are appropriate where the presence of the employee is reasonably likely to:

1. Be injurious to the employee, a fellow employee or the general public;

2. Result in damage to property;

3. Substantially impair management's ability to maintain decorum and discipline; and/or

4. Hinder the investigatory process.

B. If an employee has been suspended and/or placed on leave pending investigation, they may not return to work or any city facility until they have received permission from their department director (or designee). The employee may not perform any work for the city.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.07.030 Types of disciplinary actions.

A. Disciplinary actions. Employees may be subject to the following disciplinary actions if they violate these rules or any other city or departmental policy and procedure:

1. Documented verbal warning;

2. Written reprimand;

3. Suspension and/or a demotion (if appropriate and available), and/or subjected to a performance improvement plan (discussed in subsection 6.07.030(B) or a return-to-work/last chance agreement (discussed in subsection 6.07.030(C); and/or

4. Termination.

The foregoing enumeration of the types of discipline shall not be meant to set forth any necessary sequence of progressive discipline. The type of discipline issued depends upon the facts and circumstances of the incident. All suspensions, demotions, return-to-work/last chance agreements, performance improvement plans and terminations must be approved by the department director (or designee), and the director of human resources (or designee). Transferring positions or accepting a voluntary demotion will not prevent the employee from being disciplined for conduct that occurred prior to the transfer or voluntary demotion.

B. Performance improvement plans. A Performance Improvement Plan ("PIP") will typically be used after the employee fails to improve their performance or after a failure to correct their behavior after receipt of documented verbal warning or written reprimand. A PIP is not considered to be a disciplinary action; however it may be utilized before or after disciplinary action has been taken. A performance improvement plan is not appropriate in all cases. A performance improvement plan may be appropriate if a supervisor believes that an employee's performance will significantly improve such that the employee will be able to successfully satisfy their job responsibilities at the conclusion of a performance improvement plan. It is the employee's responsibility to fully understand the provisions and requirements within the performance improvement plan. While it is anticipated that the employee will be successful in changing and correcting their substandard job performance, failure to remedy these deficiencies will lead to further disciplinary action, up to and including termination.

A performance improvement plan shall include the following provisions:

1. Description of unacceptable performance. The supervisor should identify the job functions and/or behaviors that the employee is failing to satisfactorily perform and provide specific examples of the deficiencies.

2. Timeframe. The plan should identify the specific period of time the employee is being given an opportunity to improve and demonstrate satisfactory performance. Performance improvement plans should last for a minimum period of three months. For extenuating circumstances, a supervisor may extend the timeframe of the plan.

3. Description of acceptable level of performance. Identify the improvements that are required of the employee and provide suggestions as to how the employee can improve their performance.

4. Consequences for failing to satisfy the terms and conditions. Clearly indicate that if the employee fails to improve their performance as outlined in the performance improvement plan, then the employee may be subject to termination.
5. Signatures and date. Both the employee and supervisor should acknowledge the performance improvement plan.
6. Follow-up. The supervisor should regularly (at least once a week) follow-up with the employee regarding their progress in carrying out the tasks identified in the performance improvement plan. The performance improvement plan may be updated or amended based on the follow-up meetings between the supervisor and the employee.

C. Return-to-work/last chance agreements. If an employee comes forward to their supervisor and/or human resources business partner and discloses that they are struggling with addiction issues and rehabilitation is appropriate, the city, on a case-by-case basis and in its sole discretion, may require the employee to agree to the terms of a return-to-work/last chance agreement. The return-to-work/last chance agreement shall include a date certain for its start and completion dates. Failure to comply with the terms of a return-to-work/last chance agreement shall result in termination without any right of appeal under the civil service rules.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.07.040 Pre-disciplinary procedures (suspensions without pay, demotions, and terminations).

A. Investigation. A human resources business partner, or a supervisor in conjunction with the human resources business partner, may investigate employee misconduct if the circumstances necessitate an investigation. At the conclusion of the investigation, the supervisor will determine whether disciplinary action is warranted. If disciplinary action is warranted in the form of an unpaid suspension, demotion or termination, then notice of disciplinary action must be provided to the employee before any final disciplinary action is issued.

B. Notice of disciplinary action. Before an employee may be suspended (without pay), demoted, or terminated, the employee's supervisor shall provide the employee with notice of the disciplinary action. Human resources in conjunction with the supervisor shall prepare a notice of the disciplinary action, which shall include the basis for the recommended suspension (without pay), demotion, or termination.

C. Employee response. The employee shall have two business days from the date of receipt the notice of disciplinary action to provide a written response to the human resources business partner (or designee). In emergency circumstances, this time period

may be extended at the sole discretion of the director of human resources (or designee). If the employee fails to timely provide their response, the city will presume that the employee has accepted the disciplinary action and the director of human resources (or designee) shall approve the recommended disciplinary action, unless such recommendation is clearly erroneous.

D. Final approval. If an employee response is provided, the human resources business partner (or designee) shall prepare a package for the department director and director of human resources to review. The package shall include a copy of the notice of disciplinary action, any relevant supporting documentation provided to the employee, and the employee's response. The department director, in conjunction with the director of human resources, within four business days, shall determine whether (1) disciplinary action is warranted, and the recommended discipline should be issued by the supervisor, (2) further investigation is required, or (3) different disciplinary action is warranted, in which case the department director may recommend another action. If further investigation is required, then the employee may be placed on suspension pending investigation (with or without pay). Notice of the final disciplinary decision shall be provided to the employee via electronic communication, certified mail or hand delivery. If further investigation is required or additional time is needed, human resources will provide the employee with a status update within the initial four business day timeline.

E. Exceptions to providing notice of disciplinary action. Notice of disciplinary action is not required for documented verbal warnings or written disciplinary actions. Notice of disciplinary action is also not required where the employee's conduct raises a serious safety concern to the public and/or co-workers or if the employee abandons their job. Where there are safety concerns or where an employee abandons their job, an employee may be immediately terminated by the director of human resources (or designee) without an opportunity to provide a response.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.07.050 Active discipline.

A. Disciplinary action is considered active discipline if the disciplinary action was issued in the previous 12 months. The date the disciplinary action was presented to the employee is the relevant date for which the 12-month period begins. For the purposes of performance improvement plans and return-to-work agreements, the 12-month period begins on the date that the performance improvement plan or the return-to-work agreement becomes effective (the start date). If 12 months or more have elapsed since the disciplinary action was issued or since the performance improvement plan or the return-to-work agreement began, the disciplinary action/performance improvement plan/return-to-work agreement is considered expired and may not thereafter be used as a basis for or in support of any

subsequent disciplinary action, unless the terms of the employee's return-to-work agreement or performance improvement plan state otherwise. Active discipline will remain active for the relevant 12-month period even if an employee is demoted or transferred to another classified position during that time.

B. If an employee is suspended (without pay), involuntarily demoted or terminated for disciplinary reasons, then the employee has a right to appeal as set forth in chapter 6.08, unless the employee is suspended, involuntarily demoted or terminated for disciplinary reasons related to discriminatory or harassing behavior, or terminated for failing to comply with the terms of a return-to-work/last chance agreement.

C. Disciplinary actions are placed in the employees' personnel files. Within five business days of receiving disciplinary action, an employee may request to include in their personnel file a written statement of reasonable length in response to any disciplinary action.

D. Once a disciplinary action has expired (i.e., is no longer active discipline), an employee may request the human resources department to visibly mark the disciplinary action in the personnel file as "inactive." Whether or not the employee requests this, the disciplinary action will be considered expired if 12 months have passed (unless the terms of a performance improvement plan or return-to-work/last chance agreement state otherwise). However, the disciplinary action shall remain in the employee's personnel file.

E. If the civil service board reverses a disciplinary action (suspension without pay, demotion or termination) on appeal, then the disciplinary action will be removed and/or revised in accordance with the civil service board's decision.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Chapter 6.08 APPEALS TO THE CIVIL SERVICE BOARD

Sections:

6.08.010 Appeal rights to the civil service board.
6.08.020 Hearing—Prerequisites.
6.08.030 Procedures for hearing appeals.
6.08.040 Civil service board's final decision making authority.

6.08.010 Appeal rights to the civil service board.

A. The civil service board has the authority to hear employee appeals on the following issues, which shall be considered receivable appeals:

1. Discipline that consists of suspension (without pay), involuntary demotion or termination, with the following exceptions:

a. The civil service board will not hear appeals if an employee is appealing the city's decision to either suspend, involuntarily demote or terminate them as a result of finding that the employee engaged in discriminatory or harassing behavior in violation of the city's anti-discrimination and/or workplace harassment policies.

b. The civil service board will not hear an appeal based on the city's decision to terminate an employee for job abandonment.

c. The civil service board will not hear an appeal based on the city's decision to terminate an employee as a result of the employee's failure to comply with a return-to-work/last chance agreement.

d. The civil service board will not hear appeals on claims that the city engaged in discriminatory or harassing conduct in violation of state or federal laws (including, but not limited to N.R.S. 613.330, Title VII of the Civil Rights Act of 1964, the Americans with Disability Act, the Age Discrimination in Employment Act and the Family Medical Leave Act). All complaints of unlawful discrimination and harassment should be made in accordance with the city's anti-discrimination and/or workplace harassment policies.

e. The civil service board will not hear appeals where an employee is offered the opportunity to return to their former classification or a similar classification (i.e., demoted), as a result of being issued disciplinary action for failure to meet the performance standards during a qualifying period.

2. If an employee was laid-off as a result of a reduction-in-force, the employee may appeal if the basis of the appeal is that the city did not follow the procedures for implementing reduction-in-force in accordance with section 6.05.030. However, the civil service board will not hear appeals regarding the basis for the city's decision to

undertake a reduction-in-force. The appeal is limited to allegations that the city incorrectly followed the process set forth in these rules for implementing a reduction-in-force.

B. The following provisions shall govern the conditions of an appeal:

1. No employee shall bring an appeal before the civil service board until an action complained of has become final. An action is considered to be final on the date of the effective lay-off, suspension (for disciplinary reasons and unpaid), involuntary demotion (for disciplinary reasons) or termination (for disciplinary reasons).

2. An employee must file a notice of appeal with the secretary of the civil service board (the director of human resources) within ten calendar days of the date the action became final. The notice of appeal must contain a statement specifying the action against which the appeal is made, the subsection or sections of the civil service rules under which the appeal is filed and a detailed statement justifying the appeal submission. Failure to submit a notice of appeal pursuant to this section will be grounds to deny the appeal.

3. Unless the employee and the City agree in writing to waive the initial hearing, the secretary of the civil service board must schedule an initial meeting with the civil service board members (at least three members must attend) to take place within 14 calendar days from receipt of an employee's appeal to determine whether the issue complained of is a receivable appeal under these rules. If an employee's character, alleged misconduct, professional competence, or physical or mental health will be considered at the initial meeting, then the initial meeting will be conducted in a closed meeting unless the appellant waives the closure of the meeting. The employee must attend the initial meeting, and may bring their council at their own expense.

4. If the issue complained of is not appealable under the civil service rules, then the secretary of the civil service board shall notify the appellant in writing via electronic communication or certified mail to the last known address of the appellant within seven calendar days of the initial meeting that their request for an appeal is denied because the rules do not allow for an appeal.

5. If the issue complained of is a receivable appeal under these civil service rules, then an appeal hearing shall be set within 40 calendar days of the initial meeting. The parties may mutually agree to extend the hearing date for good cause. Notice shall be sent by electronic communication or certified mail to the last known address of the appellant at least 21 calendar days prior to the scheduled date of the appeal hearing. A notice to the appellant must include the time, place, scope of the hearing, a list of the administrative policy provisions or other rules that the appellant allegedly

violated and the possible disciplinary or other adverse administrative actions that may be taken at the meeting. The hearing may be continued on a showing of good cause by either the appellant or the city.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

6.08.020 Hearing—Prerequisites.

A. The city shall be represented by the city attorney (or designee). The appellant may choose to represent themselves or may be represented by counsel, at their own expense.

B. The city, in its discretion, may choose to hire independent counsel to act as the presiding officer at the appeal hearing or may permit a member of the civil service board to act as the presiding officer at the appeal hearing. Any retained independent counsel, however, will not be a voting member of the civil service board.

C. No later than ten calendar days prior to the appeal hearing, the parties shall exchange their list of witnesses (which shall include a brief summary of the witnesses' testimony) and an exhibit list (which shall list and attach copies of all documents and other tangible items that each party intends to use at the hearing).

The parties shall provide the witness list and exhibit list (with referenced documents and tangible items attached) to the secretary of the board no later than ten calendar days prior to the appeal hearing, who will then distribute the witness list and the exhibit list to the members of the civil service board. The parties' witness list and exhibit list may be sent by electronic communication or certified mail to the secretary of the civil service board. Absent good cause, a party's failure to timely disclose a witness or timely exchange a document or other tangible item may result in the civil service board prohibiting the testimony of a witness or the use of the document or tangible item at the hearing. The parties may submit objections on the record to the civil service board as to any evidence or witnesses on the day of the hearing, and the civil service board members may decide how much weight to give to the objected evidence/witness when taking action.

D. No later than eight calendar days prior to the appeal hearing, the parties shall exchange and submit written statements to the secretary of the civil service board if they desire to provide a written statement to the civil service board in advance of the meeting. The secretary of the board will distribute the materials to each member of the civil service board. The written statements should include a summary of the arguments that the party intends to present to the civil service board. The parties' written statement may be hand-delivered, emailed or mailed via certified mail to the secretary of the civil service board. The written statements will become part of the hearing record.

(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.08.030 Procedures for hearing appeals.

A. An appeal hearing must be held before no fewer than three members of the civil service board.

B. The appellant must be present for the appeal hearing.

C. Any hearing before the civil service board shall be conducted in accordance with NRS 241, Open Meeting Law.

D. Appeal hearings that involve an employee's character, alleged misconduct, professional competence, or physical or mental health, shall be held as closed meetings unless an appellant waives the closure of the appeal hearing and requests that the meeting be open to the public. However, no action may be taken in a closed meeting. When the board is ready to take final action on the matter before it, the meeting must be in open session.

E. Appeal hearings shall be recorded on a recording instrument. The cost of transcribing such testimony from the recording instrument shall be paid by the appellant if the appellant requests a transcript. All recordings shall be kept for a minimum period of two years, unless there is a litigation hold in place that requires the recordings to be held for a longer period of time.

F. No material amendment of, or addition to, the appellant's request for an appeal will be considered by the civil service board.

G. The civil service board may hear evidence specific to the issue being appealed as described in the individual's request for an appeal. The technical rules of evidence shall not apply, except to the extent provided herein. The proceeding shall be as informal as is compatible with justice. The civil service board members may choose to disregard irrelevant, immaterial and unduly repetitious evidence.

H. The civil service board is responsible for determining the truth of the matter, and providing adequate safeguards for the rights of the parties. The civil service board shall be entitled to consider all relevant information, including hearsay evidence.

I. The city shall have the initial obligation to present substantial evidence in support of the action(s) being appealed. The appellant shall thereafter be responsible for supporting their challenge to the adverse recommendation or action by a preponderance of the evidence that the action lacks any substantial factual basis or that the adverse action is arbitrary, unreasonable, and/or capricious.

J. The parties shall have the opportunity to respond and present evidence and argument on the matters at issue. Each party may provide an opening statement, call and examine witnesses, introduce exhibits and cross-examine opposing witnesses, and provide a closing statement on any matter relevant to the issues presented. The civil service board may direct questions toward any of the parties and/or witnesses at any point during

the appeal hearing. The civil service board has the discretion to conclude the appeal hearing when it determines that it has heard sufficient testimony from each of the parties to make a decision on the appeal.

K. If the parties make evidentiary objections (whether written or oral), then the presiding officer of the civil service board may decide whether to accept or decline the objection. (Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

6.08.040 Civil service board's final decision making authority.

A. After the civil service board has heard from both parties, the civil service board may discuss the case further in closed session, but once they are ready to take action the meeting cannot be in closed session. The parties to the appeal cannot be forced to be dismissed from the closed session while the civil service board is deliberating.

B. In making a final decision, the civil service board may, by majority vote, make a finding:

1. That the city's action(s) were without justification or in violation of the rules:

a. For civil service rule violations related to a reduction-in-force, the civil service board may require the city to comply with the rules, which may result in restoring the appellant back to their original position, or if the position is no longer available, to another available vacant position for which they are qualified (i.e., reverse the decision to lay-off an employee).

b. For disciplinary actions, the civil service board may reverse the city's disciplinary action and take the position that no disciplinary action was warranted, which may result in restoring the appellant back to their original position (i.e., reverse the decision to suspend, demote or terminate an employee).

c. The civil service board does not have the authority to determine whether an employee is owed any form of compensation, such as but not limited to, back-pay and/or fringe benefits.

2. That the city's action(s) were justified and complied with the Rules and should be confirmed; or

3. That both parties' arguments have merit. The city was justified in issuing disciplinary action, but the employee's conduct did not warrant the type of disciplinary action issued.

a. Each party shall receive an opportunity to present alternative forms of appropriate disciplinary action that should be issued and the civil service board shall make the final decision about the type of disciplinary action that should be issued.

b. The civil service board does not have the authority to determine whether an employee is owed any form of compensation, such as but not limited to, back-pay and/or fringe benefits.

C. The decision of the civil service board shall be final and the decision shall be binding on the city and the appellant.

D. Inadvertent deviations which may occur in the foregoing appeal hearing and final decision procedures shall not invalidate the decision of the civil service board.
(Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3267, § 2, 5-19-2015)

Chapter 6.09 GLOSSARY

Sections:

6.09.010 Glossary.

6.09.010 Glossary.

Active discipline. An employee is considered to have active discipline if disciplinary action (documented verbal warning, written reprimand, suspension, involuntary demotion, return-to-work/last chance agreement, and/or performance improvement plan) has been issued to that employee within the past 12 months. The date the disciplinary action was presented is the relevant date for which the 12-month period begins. For the purposes of performance improvement plans and return-to-work/last chance agreements, the 12-month period begins on the date that the performance improvement plan or the return-to-work/last chance agreement becomes effective (the start date). If 12 months or more have elapsed since the last disciplinary action was issued or since the performance improvement plan or the return-to-work/last chance agreement began, the disciplinary action/performance improvement plan/return-to-work/last chance agreement is considered expired and may not thereafter be used as a basis for or in support of any subsequent disciplinary action, unless the terms of the employee's return-to-work/last chance agreement or performance improvement plan state otherwise. Active discipline will remain active even if an employee is demoted or transferred to another position.

Appeal hearing means a hearing before the civil service board in which evidence is presented by both parties in order to allow for the civil service board to make a final decision on the issue(s) before it pursuant to Rule 6.08.

Application materials mean the documentation the city requires an applicant to submit to apply for a position including, but not limited to, an employment application, supplemental questionnaire, resume, cover letter, evidence of certifications/licenses, and/or other required documentation as stated on the job posting.

Assessment process means the process for measuring a candidate's knowledge and ability to perform the skills required for a particular job when applying for classified positions.

Business day(s) means Monday through Thursday, excluding holidays, 7:30 a.m. to 5:30 p.m.

Calendar day(s) means every day of the week, including Fridays, Saturdays, Sundays, and legal holidays.

City seniority means an employee's length of continuous service in years, months and days from their most recent full-time/regular date of hire with the city.

Civil service board means a group of five duly appointed individuals responsible for fulfilling the duties outlined in the civil service rules.

Classification means any position which has been defined by a job description.

Classified positions means all positions now existing or hereafter created by the City of Henderson that are not represented by a union and/or not specifically exempted by the Henderson City Charter, which have been determined to be covered under the civil service rules.

Compensation plan means a compensation structure that sets forth the salary range for each classification.

Displaced employee means an employee who is included in a reduction-in-force. Such employee will be provided with displacement rights as set forth in the civil service rules.

Division head means a position responsible for managing multiple sections within a department, or is designated as a key member of a division or functional area that significantly impacts department and/or city operations.

Eligibility list means a list of candidates who have successfully completed the application materials review and/or the assessment process for a specific position. The list will have a defined commencement and expiration date, and will be utilized to select the candidate(s) who are the best fit for the available opening(s).

Initial meeting means the first meeting of the civil service board to occur after an employee has filed a notice of appeal. The sole purpose of the initial meeting is to determine whether the notice of appeal is a receivable appeal under the civil service Rule 6.08.01.

Probationary period (or probationary employee) means the time period a new full-time employee must serve during which time the employee will be evaluated for the purposes of determining if the employee's performance meets the expectations of the position. A probationary period is not less than six months from the full-time date of hire and may be extended by an additional six months at the city's discretion, and the probationary employee will begin a new six-month probationary period if they accept another full-time position in the city during their initial probationary period. A probationary employee may be terminated at the discretion of the city, and such termination may not be appealed to the civil service board as probationary employees are not yet members of the classified service.

Performance improvement plan. A performance improvement plan is meant to assist an employee with improving their performance; it is a written plan that identifies specific areas that need improvement in order to satisfactorily perform their job. An employee's failure to remedy their deficiencies will lead to further disciplinary action, up to and including termination.

Qualifying period means the time period for which an employee who has been promoted, voluntarily or involuntarily demoted or transferred must serve to allow the city to evaluate the employee's performance and determine if employee meets the expectations of the position. A qualifying period is not less than six months and may be extended by an additional six months at the city's discretion.

Reinstatement list means a list of previously employed persons who were laid-off as a result of a reduction-in-force.

Return-to-work/last chance agreement. If an employee is struggling with addiction issues and rehabilitation is appropriate, the city, on a case-by-case basis and in its sole discretion, may require the employee to agree to the terms of a return-to-work/last chance agreement. Failure to comply with the terms of a return-to-work/last chance agreement shall result in termination without any right of appeal under the civil service rules.

Unclassified positions mean positions that are excluded from the civil service rules by the City Charter or positions covered by a collective bargaining agreement between the city and a recognized bargaining unit.

Workdays mean the days which an employee is scheduled to work, and/or expected to be available to work.
(Ord. No. 4142, § 1, 1-6-2026; Ord. No. 4018, § 1, 4-2-2024; Ord. No. 3412, § 1, 5-16-2017; Ord. No. 3267, § 2, 5-19-2015)

Title 7

ANIMALS*

Chapters:

7.01	Definitions
7.02	Generally; Powers of Animal Protection Services
7.04	Pet Licensing and Permits; Fees; Appeal Process
7.06	Pets General Welfare; Neglect; Cruelty
7.08	Nuisance
7.10	Mandatory Spaying and Neutering of Animals
7.15	Managed Care of Community Cats
7.20	Dangerous Animals
7.25	Vicious Animals
7.30	Impoundment
7.40	Wild and Exotic Animals; Reptiles; Non-Domesticated Companion Animals; Animal Exhibitors
7.50	Rabies
7.60	Animal Handler
7.65	Mobile Animal Business
7.70	Animal Establishment
7.75	Commercial Animal Establishment
7.80	Retailers and Dealers
7.90	Enforcement Provisions

***Editor's note—**Ord. No. 4115, §§ 1, 2, adopted October 21, 2025, repealed and reenacted title 7 in its entirety to read as herein set out. Formerly, title 7, chapters 7.01—7.90, pertained to similar subject matter, and derived from Ord. No. 2932, § 2, adopted September 20, 2011; Ord. No. 3221, § 1, adopted October 7, 2014; Ord. No. 3229, § 1, adopted November 4, 2014; Ord. No. 3341, § 2, adopted June 7, 2016; Ord. No. 3763, §§ 1—6, adopted March 2, 2021; Ord. No. 4011, §§ 1, 2, adopted March 5, 2024; Ord. No. 4038, § 1, adopted September 3, 2024, and Ord. No. 4080, §§ 2—6, 8—10, adopted June 17, 2025.

Chapter 7.01 DEFINITIONS

Sections:

7.01.010 Adequate feed.
7.01.020 Adequate water.
7.01.030 Animal.
7.01.040 Animal boarding.
7.01.050 Animal control officer or animal protection officer.
7.01.060 Animal establishment.
7.01.065 Animal establishment permit.
7.01.070 Animal grooming.
7.01.080 Animal handler.
7.01.085 Animal handler permit.
7.01.090 Animal protection facility.
7.01.100 Animal shelter.
7.01.110 Animal vaccination certificate.
7.01.120 At large.
7.01.130 Bite.
7.01.140 Breeder.
7.01.145 Breeder's permit.
7.01.150 Business days.
7.01.155 Caretaker.
7.01.160 Cattery.
7.01.180 Commercial animal establishment.
7.01.185 Commercial animal establishment permit.
7.01.190 Reserved.
7.01.200 Confined.
7.01.210 Cruelty or torture.
7.01.220 Dealer.
7.01.230 Enclosed lot.
7.01.240 Fees.
7.01.250 Feral.
7.01.260 Fowl.
7.01.270 Health officer.
7.01.280 Household pet.
7.01.290 Impound.
7.01.300 Judicial days.
7.01.310 Kennel.
7.01.320 Leash.
7.01.330 Livestock.
7.01.340 Microchip.
7.01.350 Mobile animal business.
7.01.355 Mobile animal business permit.
7.01.360 Motor vehicle.
7.01.370 Owner.
7.01.380 Person.

7.01.390 Pet fancier.
7.01.395 Pet fancier permit.
7.01.400 Pet license.
7.01.410 Pet sitting.
7.01.420 Pet store.
7.01.430 Pet tag.
7.01.440 Provoked.
7.01.450 Rabies quarantine area.
7.01.460 Reptile.
7.01.470 Research facility.
7.01.475 Responsible party.
7.01.480 Retailer.
7.01.490 Serious injury.
7.01.500 Service animal.
7.01.510 Shelter.
7.01.520 Stray animal.
7.01.530 Substantial bodily harm.
7.01.540 Reserved.
7.01.550 Tether.
7.01.560 Urban wildlife.
7.01.570 Vaccination.
7.01.580 Vaccine.
7.01.590 Venomous reptile.
7.01.595 Venomous amphibian.
7.01.600 Veterinarian.
7.01.610 Veterinary clinic.
7.01.620 Wild and exotic animals.

As used in this title, unless the context otherwise requires, the following definitions shall be in effect:

7.01.010 Adequate feed.

Adequate feed means the provision at suitable intervals, but in no event less than once every 24 hours, of a quantity of wholesome food-stuff suitable for the animal's physical condition and age, sufficient to maintain an adequate level of nutrition in the animal, such food-stuff to be served in a clean receptacle, dish or container.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.020 Adequate water.

Adequate water means the access to a sufficient supply of clean, fresh, potable water provided at suitable intervals for the animal's physical needs and the climatic conditions at all times.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.030 Animal.

Animal shall be defined for the purposes of this title to be any mammal (excluding a human being), amphibian, fowl, bird, fish, or reptile, wild or domestic, living or dead.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.040 Animal boarding.

Animal boarding generally means a facility for keeping and/or boarding of pets not owned by the operator whether for profit or not-for-profit.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.050 Animal control officer or animal protection officer.

Animal control officer or animal protection officer means any duly authorized person in the employ of the city responsible for the enforcement of this title and regulations promulgated thereunder.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.060 Animal establishment.

Animal establishment generally means any pet store, animal boarding facility, animal training facility, animal grooming facility, animal rehabilitation/therapy facility, animal acupuncture provider or other business that will keep or possess animals in its care on its premises whether for profit or not-for-profit. This does not include the sale of dogs, cats, and/or rabbits as defined under commercial animal establishment.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.065 Animal establishment permit.

Animal establishment permit means a permit issued by the director of community development and services or designee to the owner or owners of an animal establishment. The permit is required in order to operate an animal establishment whether for profit or not-for-profit. The permit is required for owners meeting the definition as set forth in section 7.01.060.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.070 Animal grooming.

Animal grooming generally means a service that provides cosmetic care for animals such as clipping, bathing, shaving, haircuts, and dyeing a pet's coat whether for profit or not-for-profit.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.080 Animal handler.

Animal handler means a person(s) who provide an animal training service, pet care service, pet sitting service, or any similar animal related business or service subject to the requirements of section 7.60.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.085 Animal handler permit.

Animal handler permit means a permit issued by the director of community development and services or designee to an animal handler. The permit is required in order to operate or carry on a business as an animal handler whether for profit or not-for-profit.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.090 Animal protection facility.

Animal protection facility shall mean the City of Henderson's authorized facility for the confinement, maintenance, safekeeping and control of all animals that come into the custody of the City of Henderson animal protection services.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.100 Animal shelter.

Animal shelter means any establishment authorized by the city for the confinement, maintenance, safekeeping and control of animals.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.110 Animal vaccination certificate.

Animal vaccination certificate means a certificate executed by a veterinarian which includes the following information: the name, complete address, telephone number of the owner of the animal, a description of the animal, including the name, age, sex, breed, color, and weight of the animal, whether the animal is spayed or neutered as applicable, the date the vaccination was administered, the product for revaccination based on the duration of immunity provided by the vaccine according to its label, the number on the rabies vaccination tag issued, the name, address, telephone number and license number of the veterinarian, and the signature of the veterinarian who administered the vaccine.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.120 At large.

At large means any animal, not including feral or community cats, not confined or contained on the owner's, caretaker's, or responsible party's property or not having said animal under the effective control of a leash being held by the owner, caretaker or responsible party.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.130 Bite.

Bite means a breaking of the skin by the teeth of an animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.140 Breeder.

Breeder means any person who causes the breeding or birthing of household pets or makes an unsterilized pet available for breeding purposes, or any person who sells or offers for sale any unsterilized household pet, whether for profit or not-for-profit. This also includes any person who is in possession of an unsterilized dog, cat, and/or rabbit over the age of four months.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.145 Breeder's permit.

Breeder's permit means a permit issued by the director of community development and services or designee. The permit is required for person(s) meeting the definition as set forth in section 7.01.140.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.150 Business days.

Business days means the days the City of Henderson animal protection services facility is open to the public.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.155 Caretaker.

Caretaker means a person employed to look after people or animals.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.160 Cattery.

Cattery means an enclosed area for the total confinement of one or more cats.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.180 Commercial animal establishment.

Commercial animal establishment means any for-profit business enterprise, including, but is not limited to all dealers, retailers, pet stores, sole proprietorships and entities in any form that for the purposes of resale or retail, display, sell, deliver, offer for sale, barter, auction, or otherwise transfer or dispose of dogs, cats and/or rabbits in the city.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.185 Commercial animal establishment permit.

Commercial animal establishment permit means a permit issued by the director of community development and services or designee to the owner or owners of a commercial animal establishment. This also includes animal establishment permit holders authorized to sell dogs, puppies, cats, kittens, or rabbits and issued prior to March 5, 2024. The permit is required in order to operate or carry on a commercial animal establishment for profit.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.190 Reserved.

7.01.200 Confined.

Confined means a condition whereby an animal is restricted to the property of the owner, caretaker or responsible party by enclosed lot, tether, cord or chain of suitable length for the type of animal to stand and lie comfortably.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.210 Cruelty or torture.

Cruelty or torture means every act, omission or neglect whereby unjustifiable physical pain, suffering or death is caused or permitted to any animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.220 Dealer.

Dealer means a person or owner or business who, for compensation or profit, buys, sells, breeds, trades or imports animals for resale including pet store owner/operators.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.230 Enclosed lot.

Enclosed lot means a parcel of land or portion thereof around the perimeter of which a fence or wall adequate to contain any animal kept therein has been constructed.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.240 Fees.

Fees means monies authorized by the city council to be collected by the City of Henderson related to animal protection services.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.250 Feral.

Feral means any animal having become wild from a state of cultivation or domestication.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.260 Fowl.

Fowl means any species of bird in the order of Anseriformes or Galliformes (ducks, geese, chicken family).
(Ord. No. 4115, § 2, 10-21-2025)

7.01.270 Health officer.

Health officer means the Southern Nevada Health District officer or designated and duly authorized representative.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.280 Household pet.

Household pet means a domesticated animal, typically bred in captivity, that is traditionally kept in the home for pleasure rather than for commercial purposes. This includes the following animals only: a dog, cat, rabbit, pot-bellied pig, ferret, certain domesticated birds (passerines and psitticines [psittacines] only), rodent, fish, non-venomous amphibians and non-venomous reptile not more than six feet in length.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.290 Impound.

Impound means the act of taking or receiving into custody by any animal control officer, animal protection officer, or employee of the City of Henderson any animal for the purpose of confinement in an animal shelter consistent with the provisions of this title.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.300 Judicial days.

Judicial days means, for purposes of this title, the days when the Henderson Municipal Court is open to the public.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.310 Kennel.

Kennel means an enclosed area for the total confinement of one or more dogs.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.320 Leash.

Leash means any rope, leather strap, chain, retractable leash or other material not exceeding six feet in length, being held in the hand of a person capable of having and maintaining effective control of the animal to which it is attached. Electronically operated devices and retractable leashes extended beyond six feet are not recognized as a leash.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.330 Livestock.

Livestock means the following domesticated animals only typically bred in captivity: horses (Equus ferus caballus), cattle (Bos taurus), goats (Capra hircus), sheep (Ovis aries), hens (Gallus domesticus), ducks (Anas platyrhynchos domesticus), swine (Sus domesticus) and quail (Coturnix coturnix).
(Ord. No. 4115, § 2, 10-21-2025)

7.01.340 Microchip.

Microchip means a radio frequency transponder which has a permanent and unique numeric or alphanumeric identifier programmed into it and implanted in an animal for positive identification.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.350 Mobile animal business.

Mobile animal business generally means a person or person(s) who operates a mobile animal trailer or other motor vehicle unit used for the grooming of animals, transport of animals, mobile exercise service, or any other animal related business that would include the operation of a motor vehicle or trailer and have temporary care/custody of an animal not owned by them, whether for profit or not-for-profit. This term includes mobile animal exhibitors as defined in title 19 of the Henderson Municipal Code.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.355 Mobile animal business permit.

Mobile animal business permit means a permit issued by the director of community development and services or designee to the owner or owners of a mobile animal business permit. The permit is required for person(s) meeting the definition as set forth in section 7.01.350.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.360 Motor vehicle.

Motor vehicle means every device assisted by a motor, upon, or by which any person or property is or may be transported or driven upon a highway, street or roadway.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.370 Owner.

Owner means any person who is a license-holder of an animal or any person keeping, harboring, having custody of or control of an animal, or permitting any animal to be in their residence or upon their property or premises. The term does not include a veterinarian, an operator of an animal establishment, commercial animal establishment, animal handler, mobile animal business, community cat care giver, or an employee or agent of the city while carrying out any provision of title 7.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.380 Person.

Person means any individual, partnership, firm, joint stock company, corporation, association, trust, estate or other legal entity.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.390 Pet fancier.

Pet fancier means a person who, pursuant to a permit issued under this Title, is allowed to keep or possess in/on their property more birds and more spayed/neutered dogs, cats, ferrets, and/or rabbits than would otherwise be permitted by this title. Pet fanciers are subject to the requirements set forth in section 7.40.100.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.395 Pet fancier permit.

Pet fancier permit means a permit issued by the director of community development and services or designee to a pet fancier in compliance with the requirements set forth in section 7.40.100.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.400 Pet license.

Pet license means the actual receipt and durable material tag issued by the director or designee which evidences the fact that a party has purchased a pet license as required under this title. The receipt must contain information describing the type of pet, the breed, color, sex and rabies vaccination date, and the name, address and telephone number of the pet's owner. The durable material tag shall be numbered and attached to the animal's collar, leash, or harness and shall be attached to the animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.410 Pet sitting.

Pet sitting means the act of temporarily taking care of another person's pet for a given time at the pet owner's home.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.420 Pet store.

Pet store means any business or commercial establishment, premises or part thereof, maintained for the purchase, sale, exchange or hire of animals of any type; except that the term shall not include livestock auctions where for profit or not-for-profit.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.430 Pet tag.

Pet tag means the numbered marker made of durable material which is attached to the animal's collar or harness.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.440 Provoked.

Provoked means to torment, harass, or subject to pain.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.450 Rabies quarantine area.

Rabies quarantine area means any area in which a state of emergency has been declared by the Clark County Health District or the state veterinarian to exist due to the occurrence of rabies in animals in or adjacent to this area.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.460 Reptile.

Reptile means any terrestrial or non-terrestrial, cold-blooded, usually egg-laying vertebrates of the class Reptilia generally characterized as having an external shell or covering of scales or horny plates, breathing air with lungs to include, but not limited to, snakes, lizards, crocodiles, turtles, or tortoises.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.470 Research facility.

Research facility means any place at which scientific tests, experiments, or investigations involving the use of any animal are conducted, attempted, or carried out.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.475 Responsible party.

Responsible party means a person who owns or has possession of an animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.480 Retailer.

Retailer means a person or the owner of a business who acquires pets for resale including pet store owner/operators for profit.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.490 Serious injury.

Serious injury means:

1. A non-life-threatening injury to an animal caused by another animal characterized by bite wounds, ripping, piercing and/or tearing of skin that would cause a reasonable person to seek professional veterinary care for the injured animal.

2. A non-life-threatening injury to a human caused by an animal characterized by bite wounds, ripping, piercing and/or tearing of the skin, sprains, and/or bruising that would cause a reasonable person to seek professional medical care, whether or not treatment is sought.

(Ord. No. 4115, § 2, 10-21-2025)

7.01.500 Service animal.

Service animal means any dog or miniature horse that is recognized under NRS 426.097 or under the Americans with Disabilities Act as a service animal that is individually trained to do work or perform tasks for the benefit of an individual with a disability, including but not limited to, a physical sensory, psychiatric, intellectual, or mental disability. Other species of animals, whether wild or domestic, trained or untrained are not service animals for the purposes of this definition. The work or tasks performed by the service animal must be directly related to the handler's disability. The crime deterrent effects of an animal's presence and the provision of emotional support, well-being, comfort or companionship do not constitute work or tasks for the purposes of this definition.

(Ord. No. 4115, § 2, 10-21-2025)

7.01.510 Shelter.

Shelter means protection from the elements as hereinafter provided.

(Ord. No. 4115, § 2, 10-21-2025)

7.01.520 Stray animal.

Stray animal means any animal of which the ownership is unknown.

(Ord. No. 4115, § 2, 10-21-2025)

7.01.530 Substantial bodily harm.

Substantial bodily harm means bodily injury which creates a substantial risk of death or which causes serious, permanent disfigurement or protracted loss or impairment of the function of any bodily member or organ, or prolonged physical pain.

(Ord. No. 4115, § 2, 10-21-2025)

7.01.540 Reserved.

7.01.550 Tether.

Tether means the practice of fastening a dog to a stationary objector stake by a chain, rope or other tethering device as a means of keeping the animal under control. The term tether does not refer to the periods when an animal is walked on a leash.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.560 Urban wildlife.

Urban wildlife means wildlife that can live or thrive in urban/suburban environments or around densely populated human areas. These include coyotes, mountain lions, fox, bats, rabbits, raccoons, skunks, snakes, raptors, waterfowl, and songbirds.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.570 Vaccination.

Vaccination means administration of an anti-rabies vaccine to any animal under the guidelines of the Nevada Board of Veterinary Medical Examiners.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.580 Vaccine.

Vaccine means a vaccination against rabies in accordance with Rabies Compendium published by the American Veterinarian Medical Association.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.590 Venomous reptile.

Venomous reptile means any species of reptile that is capable of producing venom.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.595 Venomous amphibian.

Venomous amphibian shall mean any species of amphibian that is capable of producing venom and/or toxins.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.600 Veterinarian.

Veterinarian, unless otherwise indicated, means any person licensed to practice veterinary medicine by any state board of veterinary medical examiners.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.610 Veterinary clinic.

Veterinary clinic means any establishment operated by a veterinarian to provide dental, medical or surgical treatment. A veterinary hospital may have adjacent to it or in conjunction with it, or as an integral part of it, pens, stalls, cages, or kennels for quarantine or observation, in a completely enclosed building.
(Ord. No. 4115, § 2, 10-21-2025)

7.01.620 Wild and exotic animals.

Wild and exotic animal means any warm-blooded exotic, non-domesticated animal found naturally in an undomesticated state, whether indigenous to this state or not, and/or any animal requiring a permit from the state or federal government to possess. It includes, but is not limited, to the following: alligator, badger, bear, bobcat, chimpanzee/ape, crocodile, coyote, fox, mink, monkey, mountain lion, raccoon, skunk, weasel, wolf, wolf-hybrid, jaguar, lynx, ocelot, serval, caracal, jaguarundi, coydog, wolverine, opossum, squirrel, kinkajou, monkey, non-human primates, tiger, lion, boar, javelina, coatimundi, panther, muskrat, ring-tailed cat, pachyderm, prairie dog, deer, elk, armadillo, kangaroo, and wallaby. All venomous reptiles shall be included in the definition of wild and exotic animals. Birds licensed for falconry are exempt.
(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.02 GENERALLY; POWERS OF ANIMAL PROTECTION SERVICES

Sections:

7.02.010 Animal protection facility operation.
7.02.020 Authority of animal protection services.
7.02.030 Violation of state law is a city misdemeanor.
7.02.040 Unlawful to resist or obstruct animal protection officer.
7.02.050 Right of entry.
7.02.060 Less than lethal means of capture.
7.02.070 Euthanasia—Certification.

7.02.010 Animal protection facility operation.

A. The operation of an animal protection facility which is authorized and established by the city shall be a proper charge against the general funds of the city. All monies collected hereunder, unless otherwise provided herein, shall be deposited into the general fund of the city.

B. The director of community development and services, hereinafter referred to in this title as "the director," and the animal protection facility administrator shall have the power to deny any animal adoption if it is in the best interest of the general health, safety and welfare of the public or the animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.02.020 Authority of animal protection services.

The City of Henderson establishes animal protection services for the purpose of enforcing the provisions of Chapter 574 of the Nevada Revised Statutes and title 7 of the Henderson Municipal Code.

A. Animal protection services shall be responsible to investigate, or assist in investigating, incidences of animal cruelty, and animal neglect and, where substantiated, to submit requests for prosecution to the city attorney or district attorney's office.

B. Animal protection services shall be responsible for enforcement of each and every provision of title 7 of the Henderson Municipal Code.

C. Pursuant to NRS 171.17751, in order to enforce the provisions of this title 7 of the Henderson Municipal Code and NRS 574, the director, the administrator of animal protection services and all animal protection officers have the authority to prepare, sign and serve citations, and submit requests for summons or warrant issuance to the city attorney's office.
(Ord. No. 4115, § 2, 10-21-2025)

7.02.030 Violation of state law is a city misdemeanor.

The commission of any act within the corporate limits of the City of Henderson by any person or persons, or the failure to perform any duty imposed by law which is defined as an offense and made a misdemeanor pursuant to the Nevada Revised Statute Chapter 574 is declared to be, and shall constitute a misdemeanor when said act is committed, or said duty omitted, within the corporate limits of the City of Henderson.
(Ord. No. 4115, § 2, 10-21-2025)

7.02.040 Unlawful to resist or obstruct animal protection officer.

It shall be unlawful for any person to willfully resist, delay, knowingly provide false information to, or obstruct any animal protection officer discharging or attempting to discharge any legal duty imposed by this title.
(Ord. No. 4115, § 2, 10-21-2025)

7.02.050 Right of entry.

A. An animal protection officer or police officer shall have the right, without first securing a warrant, to enter upon any private or public property, except the interior of the house or other structure used as a residence, in the city to examine or take custody of an animal if probable cause exists that:

1. An animal is in imminent danger and emergency aid or assistance is immediately necessary to protect the animal; or

2. It is necessary to examine or take custody of the animal to protect the health, safety and welfare of the public.

(Ord. No. 4115, § 2, 10-21-2025)

7.02.060 Less than lethal means of capture.

An animal protection officer and any police officer, who have been formally trained and authorized by the director, shall have the authority, when deemed by them reasonably necessary, to utilize a tranquilizer gun or any other form of less than lethal device or substance in order to apprehend, capture, control, or subdue any animal either running at large, or considered to be a threat.
(Ord. No. 4115, § 2, 10-21-2025)

7.02.070 Euthanasia—Certification.

No employee of a public or private animal shelter, including the City's animal protection facility, may use any substance in the euthanasia of animals unless (s)he is certified as

competent to use those substances by a certified educational institution or by a licensed veterinarian and licensed in good standing as a certified euthanasia technician by the Nevada Board of Veterinary Medicinal Examiners.
(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.04 PET LICENSING AND PERMITS; FEES; APPEAL PROCESS

Sections:

7.04.010 Licensing of pets—Required.
7.04.020 Fees.
7.04.025 Veteran, law enforcement officer and first responder adoption fee waiver program.
7.04.030 License fee—Exemptions for service animals.
7.04.040 Licensing and renewal.
7.04.050 Receipt and tag issuance; replacement.
7.04.060 Responsibility of licensing.
7.04.070 License register.
7.04.080 Number and any type animals permitted on residential property.
7.04.090 Breeder's permit.
7.04.100 Pet fancier permit.
7.04.110 Vaccinations.
7.04.120 Revocation of breeder or pet fancier permit.
7.04.125 Appeal of breeder or pet fancier permit revocation.
7.04.130 Denial of animal permit applications.
7.04.135 Appeal of permit denial.
7.04.140 Permit application.
7.04.150 Inspection—Right of entry.
7.04.160 No new permit after revocation or denial.
7.04.170 Microchipping dogs and cats.

7.04.010 Licensing of pets—Required.

A. The owner of any dog, cat or ferret over the age of three months, shall within 30 days after said pet attains the age of three months or within 30 days after first bringing said pet into the city, obtain for said pet a current pet license.

B. The owner of any dog or cat shall securely fasten on the pet's collar, leash or harness the pet tag attached thereto bearing the license number.

C. It is unlawful for any person to intentionally remove a pet tag from a pet not owned by him, or to allow an animal to wear a pet tag not issued for that particular pet, or for any person to allow an animal to wear any counterfeit, imitation or altered pet tag.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.020 Fees.

All fees set forth in the fee schedule herein shall be set by the city council. The director or designee is granted the limited authority to establish service or adoption fees if not specifically listed within this fee schedule.

The director, from time to time, may reduce or waive adoption fees listed here to prevent overcrowding of animals at the animal protection facility.

Fees for services including, but not limited to boarding, quarantine, euthanasia, licensing, microchipping, adoption processing, and vaccination are non-waivable.

All return to owner and owner surrender fees shall be collected and deposited into the Animal Protection Services Revolving Account established under HMC 7.90.020.

FEE TYPE	*AMOUNT*
Adoption—Kitten (six months and younger)	$100.00
Adoption—Cat	85.00
Adoption—Ferret	100.00
Adoption—Puppy (six months and younger)	150.00
Adoption—Dog under 30 pounds	125.00
Adoption—Dog over 30 pounds	100.00
Adoption—Gerbil or hamster or rat	5.00
Adoption—Guinea pig	10.00
Adoption—Rabbit	40.00
Adoption—Potbellied pigs	90.00
Adoption of misc. small pets, reptiles and birds (based on species)	5.00 to 150.00
Rabies vaccine	12.00
Owner surrender per sterilized kitten/cat	50.00
Owner surrender per intact kitten/cat	80.00
Owner surrender per sterilized puppy/dog	50.00
Owner surrender per intact puppy/dog	80.00
Owner surrender—Potbellied pig	100.00
Owner surrender—misc. small animals, rabbits, reptiles, and birds	20.00
Return to owner—1st impound (sterilized)	25.00
Return to owner—2nd impound (sterilized)	50.00
Return to owner—3rd and subsequent impound (sterilized)	100.00
Return to owner—1st impound (intact)	150.00
Return to owner—2nd impound (intact)	300.00
Return to owner—3rd impound and subsequent (intact)	500.00
Board per day after the first 24 hours	25.00
Euthanasia and/or disposal of small rodents (guinea pig, rats, etc.) and birds (fee includes required disposal/cremation fee)	25.00
Euthanasia—Dogs and cats (fee includes required disposal/cremation fee)	100.00
Euthanasia large animal (including but not limited to livestock such as equine, porcine, bovine, ovine) (fee includes required disposal/cremation fee)	600.00

FEE TYPE	*AMOUNT*
Disposal/cremation—Small dogs and cats (under 40 pounds)	20.00
Disposal/cremation—Dogs over 40 pounds	25.00
Microchip	25.00
License for unsterilized dog or cat (per year)	50.00
License for sterilized dog, cat, or ferret (per year)	20.00
License for sterilized dogs, cat, or ferret (per year) (pet owners age 55 and over)	10.00
Replacement license tag	5.00
Animal handler permit (per year)	100.00
Breeder permit (per year)	200.00
Animal establishment permit (every six months)	50.00
Dangerous animal permit (every six months)	100.00
Pet fancier's permit (per year)	50.00
Animal exhibitor permit (application fee per exhibition)	250.00
Zoological park permit (every six months)	500.00
Adoption processing fee (to be charged for all adoptions where the adoption fee is waived).	15.00
Quarantine fee (per day that animal is quarantined at the animal protection facility)	50.00

(Ord. No. 4115, § 2, 10-21-2025)

7.04.025 Veteran, law enforcement officer and first responder adoption fee waiver program.

The director shall waive the adoption fee for not more than one animal that meets the following requirements. The fee may be waived only once every six months for each veteran, law enforcement officer, and first responder.

1. The animal must be six months or older;

2. The animal must have been adoptable, in the animal protection facility, for seven consecutive days prior to being offered as part of this program.

3. The animal must be adopted by a person who can provide proof that they meet one of the following definitions: "first responder" shall have the meaning ascribed to either an emergency medical provider (NRS 450B.199) or firefighter (NRS 4505.071), "law enforcement officer" means any officer of the United States or this State or a political subdivision thereof who is empowered by law to conduct investigations or make arrests, or "veteran" has the meaning ascribed to it in NRS 417.125.

The director shall keep a record of all adoption fees waived under this program and submit a report to the Director of the Legislative Counsel Bureau on or before October 1 of

each even-numbered year that includes the number of animals adopted under this fee waiver program and whether each animal was adopted by a veteran, law enforcement officer or first responder. The director shall also submit this report to the city council.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.030 License fee—Exemptions for service animals.

The license fee provisions of this chapter shall not apply to an animal which has been trained and is actively being used as a service animal for the disabled, or a law enforcement K-9 currently engaging in active service.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.040 Licensing and renewal.

Each pet license issued by the city, or by the contracted agency, to issue pet licenses, shall be valid for one year from the date of its issuance, or up to three years, depending on the rabies vaccine expiration and payment of said license. Pet licenses must be renewed on or prior to the date of license expiration for the life of the dog, cat, and/or ferret while residing in the City of Henderson. It shall be the responsibility of the owner to know the expiration date of the issued license.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.050 Receipt and tag issuance; replacement.

There shall be given to each person paying such license fee a receipt stating the amount and date of payment and the date of expiration of such license, and containing a brief description of the animal. The owner shall be furnished a pet tag of durable material. If the pet tag is lost, stolen or damaged, it shall be the duty of the owner, within ten days from the date of discovery of loss or damage, to procure a new pet tag and pay the fee established in the fee schedule set in section 7.04.020.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.060 Responsibility of licensing.

The licensing functions and duties within this title shall be performed by the City of Henderson and/or a contracted agency designated by the director.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.070 License register.

The city shall keep a register of all licenses issued showing:

A. The name, current address and telephone number, if any, of the owner;

B. Date of issuance;

C. Description of the pet;

D. The number of the tag; and

E. Expiration date of vaccination.

(Ord. No. 4115, § 2, 10-21-2025)

7.04.080 Number and any type animals permitted on residential property.

A. Except as otherwise provided in sections 7.04.090 and 7.04.100, the following sets forth the type and number of animals permitted in any one residence or on any one residential premises located within the City.

1. Household pets:

a. No more than three dogs over the age of four months, all of which must be sterilized.

b. No more than three cats over the age of four months, all of which must be sterilized.

c. No more than three rabbits over the age of four months, all of which must be sterilized.

d. No more than one pot-bellied pig, which must be sterilized, unless a conditional use permit to allow more than one pot-bellied pig is obtained pursuant to and in conformance with all requirements of title 19.

e. No more than three ferrets over the age of four months, all of which must be sterilized.

f. No more than a maximum combined total of ten dogs, cats, rabbits, pot-bellied pig and/or ferrets.

g. No more than three domesticated rodents.

h. A maximum total of 20 household birds and/or domesticated or banded pigeons (psitticines [psittacines] or passerines only). Pigeons must be kept outdoors and only on a lot with a detached single-family dwelling in compliance with title 19.

i. All other household pets are permitted in numbers suitable to the housing, space, shelter and general animal welfare requirements set forth in chapter 7.06.

2. Hens, ducks and quail:

a. A maximum combined total of ten hens, ducks and/or quail, which must be kept outdoors on a lot with a detached single-family dwelling in compliance with title 19.

b. Roosters are prohibited unless permitted in a rural neighborhood in compliance with title 19.

3. Swine, horses, cattle, sheep, and goats are limited in number and by property type as set forth in title 19.

B. Approved animal establishments, as defined in section 7.01.065, may exceed the maximum number limits in this section up to the maximum approved by their animal establishment permit.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.090 Breeder's permit.

A. A breeder, as defined in section 7.01.140, may keep and maintain unsterilized household pets other than pot-bellied pigs, provided that such person has first obtained from the director or designee a breeder's permit for said unsterilized household pets. The breeder shall apply every year for said permit and pay the annual fee. Commercial breeders of livestock are not breeders within the meaning of this title and are prohibited unless the breeder has zoning approval for Agriculture under Title 19.

B. When an initial application or renewal for a breeder's permit is made, a fee as established in the fee schedule in section 7.04.020, as set forth by the city council, shall be paid to the city for the application review. If the applicant is not the property owner, the applicant must provide a written approval from the property owner/leasing agent stating that the applicant has approval to apply for said permit at the time the permit is submitted.

C. The application review shall be conducted by the director or designee to determine compliance with this title. If compliance is met, the permit shall be issued after inspection and will expire one year from the date the permit was applied for.

D. If the application review reveals that this title or other applicable laws, or regulations have not been complied with, the permit shall be denied, and section 7.04.130 and 7.04.135 shall apply.

E. A breeder may keep and maintain the following unsterilized dogs, cats, ferrets and/or rabbits:

1. No more than five unsterilized dogs over four months of age; or

2. No more than five unsterilized cats over four months of age; or

3. No more than five unsterilized rabbits over four months of age; or

4. No more than three unsterilized ferrets over four months of age; or

5. Any combination of dogs, cats, ferrets and/or rabbits to not exceed eight animals in total, whether or not said dogs, cats, and/or rabbits are in combination with spayed/neutered dogs, cats, and/or rabbits.

a. This shall include any puppy, kitten, or kit that reaches the age of four months and remains on property.

F. A breeder may keep and maintain animals other than dogs, cats, ferrets and rabbits in the maximum numbers and according to the types, limitations and requirements set forth in section 7.04.080, as applicable.

G. A breeder shall not breed, cause unsterilized household pets to be made available for breeding, sale, gift, adopt, or rehome an unsterilized household pet:

1. Unless the unsterilized dog, unsterilized cat, or unsterilized rabbit has had a registered microchip subcutaneously inserted into the dog, cat, or rabbit (unsterilized household pets that are not a dog, cat, or rabbit do not require a microchip); and

2. Without providing a written sales contract or receipt to the purchaser/recipient that contains the breeder's permit number; and

3. Unless the breeder has obtained pet licenses for all dogs, cats, and/or ferrets on the property in accordance with section 7.04.010.

H. A breeder shall not breed a female dog or female cat until she is at least 18 months old and shall allow a female dog or cat to have no more than one litter every 12 months. A breeder shall allow a female rabbit to have no more than one litter every 12 months.

I. A breeder shall display the breeder's permit number in all advertising in which the breeder advertises an unsterilized household pet for sale.

J. A breeder shall not breed a dog, cat, and/or rabbit until the animal has been examined by a veterinarian and deemed healthy to breed. Proof of this veterinary exam is required within six months of breeding. Upon request, the breeder must provide documentation of the exam to animal protective services.

K. No dogs, cats, and/or rabbits shall be sold, given away, adopted, gifted, or in any manner transferred to another person(s) or business prior to eight weeks of age.

L. No puppy or kitten shall be sold, given away, adopted, gifted, or in any manner transferred to another person(s) or business without having been first examined and deemed healthy by a veterinarian and received vaccines appropriate for the age of the puppy and/or kitten, and having been microchipped. A copy of the veterinary exam and vaccines shall be provided to the buyer/new owner upon transfer of the puppy/kitten.

M. All puppies, kittens, and kits sold must be reported to animal protection services with the name and address of the buyer within three months of sale.

N. Any breeder's permit, if granted, shall be subject to such conditions as may be prescribed by the director or the county health officer, in the exercise of sound discretion, to prevent the breeding of household pets from becoming a nuisance. The permit holder shall be in compliance with all other applicable requirements under title 7.

O. A breeder shall not maintain any unsterilized dog(s), unsterilized cat(s), unsterilized rabbit(s), unsterilized ferrets or other unsterilized household pets used for breeding on property without obtaining and maintaining the necessary business license pursuant to title 4 of the Henderson Municipal Code.

P. If a permit has been revoked or denied, applicable sections 7.04.120, 7.04.125, 7.04.130, 7.04.135, and 7.04.160 shall apply.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.100 Pet fancier permit.

A. A pet fancier, as defined in section 7.01.390, may keep and maintain on their property the following:

1. No more than six spayed/neutered dogs; or

2. No more than eight spayed/neutered cats; or

3. No more than six spayed/neutered ferrets; or

4. No more than eight spayed/neutered rabbits; or

5. Any combination of spayed/neutered dogs, cats, ferrets, rabbits that does not exceed ten animals in total; or

6. Provided that such person has first obtained from the director or designee a pet fancier's permit for said dogs, cats, ferrets, and/or rabbits.

B. All dogs, cats, and/or ferrets must be licensed in accordance with this title.

C. A pet fancier shall apply every year for said permit and pay the annual fee as established in the fee schedule set by the city council.

D. If applicant is not the property owner, the applicant must provide a written approval from the property owner/leasing agent to apply for said permit at the time permit is submitted.

E. Any such permit, if granted shall be subject to such conditions as may be prescribed by the director or designee, in the exercise of sound discretion, to prevent the keeping of dogs, cats, ferrets, and/or rabbits from becoming a nuisance.

F. If a permit has been revoked or denied, applicable sections 7.04.120, 7.04.125, 7.04.130, 7.04.135, and 7.04.160 shall apply.

G. A pet fancier may keep and maintain animals other than dogs, cats, ferrets and rabbits according to the requirements of section 7.04.080, as applicable.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.110 Vaccinations.

A. Every owner of a dog, cat, or ferret over the age of three months shall maintain such animal currently vaccinated against rabies in accordance with this section and the recommendations set forth in the current edition of the Rabies Compendium published by the American Veterinary Medical Association.

B. A dog or cat must be vaccinated against rabies with a vaccine that is designed to provide protection from rabies per the current Rabies Compendium published by the American Veterinary Medical Association.

C. A ferret must be vaccinated against rabies annually. The provisions of this subsection do not prohibit the vaccination of a ferret against rabies with a vaccine that is designed to provide protection from rabies for a longer period of time if recommended in the Rabies Compendium.

D. A licensed veterinarian may exempt a dog, cat or ferret from vaccination for health reasons. The veterinarian shall record whether the reason for the exemption is permanent and, if it is not, list the date the exemption expires.

E. A rabies certificate is required for dog, cat, and ferret licensing. Every person applying for a pet license must provide a duly issued animal vaccination certificate.

F. Animal vaccination certificate. Every veterinarian who vaccinates a dog, cat or ferret for rabies shall issue to the owner an animal vaccination certificate. The vaccination certificate shall be prepared in triplicate; the veterinarian shall furnish the original to the owner of the animal, a copy to the animal protection services, and shall retain a copy in his records for a period of not less than three years.

G. Animal vaccination certificate form. The animal vaccination certificate shall be substantially as follows:

CERTIFICATE OF VACCINATION		
Date	Tag. No.	
Owner	Name	Breed
Address	Age	Color
County	Sex	Spayed
		Neutered

State	Markings	Weight
Zip	Vaccination Expires	Type
Manufacturer	Serial No.	
Veterinarian's Signature	Veterinarian's License No.	

(Ord. No. 4115, § 2, 10-21-2025)

7.04.120 Revocation of breeder or pet fancier permit.

Any breeder or pet fancier permit issued under this title may be revoked by the director, or designee, if the holder of the permit, or person(s) responsible for the animal(s) that are the subject of the permit, violates any provision of this title or any other federal, state, or local laws relating to animals.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.125 Appeal of breeder or pet fancier permit revocation.

A. Upon the revocation of any permit within this chapter, the permit holder shall be notified by: 1) personal service; or 2) certified mail, return receipt requested, and first class United States mail, sent to the last known address of the permit holder. The revocation letter shall set forth the basis for the revocation of the permit.

B. Date of service shall be the date of actual receipt of the notice if personally served. If the notice is mailed, service shall be deemed complete upon mailing.

C. The permit holder may make a request for a review of the revocation of the permit by submitting a written request for review to the director, or designee, and filing written notice of the same with the city clerk no later than the close of business on the tenth City of Henderson business day after the revocation letter is sent from the animal control administrator, or designee, to the permit holder pursuant to section 7.04.120.

D. The director shall review all relevant information, including but not limited to, the written statement of the applicant; the revocation letter from the animal control administrator, or designee; and other pertinent information considered by the animal control administrator, or designee, in revoking the permit.

E. After the director reviews all relevant information, the director may reinstate the permit outright or with conditions. Should the director determine that there is sufficient cause for the permit to be revoked, the director shall call the permittee to a hearing as set forth in HMC 7.90.030.

F. The decision rendered at the hearing shall be final.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.130 Denial of animal permit applications.

The City of Henderson, through the director or designee, may deny any permit application pursuant to this title if any of the following apply:

A. The applicant has failed to complete, willfully withheld, or falsified any information required for a permit.

B. The applicant has violated any federal, state, or local laws relating to animals.

C. The applicant has been convicted of cruelty to animals.

D. The applicant has been convicted of assault, battery, domestic violence, or any similar physical violence related offenses against a person in this state or any other state.

E. The applicant fails to allow inspection pursuant to section 7.04.150.

For the purpose of this section, a bail forfeiture shall be deemed to be a conviction of the charged offense.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.135 Appeal of permit denial.

A. Upon a denial of any permit application within this title, the applicant shall be notified by: 1) personal service; or 2) certified mail, return receipt requested, and first class United States mail, sent to the last known address of the applicant. The denial letter shall set forth the basis for the denial of the permit.

B. Date of service shall be the date of actual receipt of the notice if personally served. If the notice is mailed, service shall be deemed complete upon mailing.

C. The applicant may make a written request for a review of the application denial by submitting a request for review to the director and filing written notice of the same with the city clerk no later than the close of business on the tenth City of Henderson business day after the denial letter is sent from the director or designee to the applicant pursuant to subsection A.

D. The director or his designee shall review all relevant information, including but not limited to, the written appeal statement of the applicant, the denial letter from the animal protection administrator, and other pertinent information considered by the director or designee in denying the application.

E. After the director or designee reviews all relevant information, the director or designee may issue the permit outright or with conditions. Should the director or designee determine that there is sufficient cause for the permit to be denied, the director or designee shall call the applicant to a hearing as described in HMC 7.90.030.

F. The decision rendered at the hearing shall be final.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.140 Permit application.

A completed permit application and fees paid shall be submitted to animal protection services for any animal related business prior to operating in the City of Henderson, including pet fancier or breeder in the City of Henderson. The applicant shall permit a background check and title 4 suitability requirements, as applicable, for any related offences or violations that may deny said permit per subsection 7.04.130(D).
(Ord. No. 4115, § 2, 10-21-2025)

7.04.150 Inspection—Right of entry.

A. As a condition to the issuance or renewal of any permit under this title, any licensing department inspector, animal protection officer, or other authorized representative of the city shall have the authority to inspect the permit location at any reasonable time to determine compliance with this title, provided advance notice is given to the permittee by the city at least one day prior to the inspection.

B. After issuance of a permit and prior to any needed renewal inspection, an animal protection services officer shall obtain consent of the permittee or an administrative inspection warrant in order to perform an inspection of the permit location, unless there are reasonable grounds to believe the health and safety of the public or animals are in imminent jeopardy.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.160 No new permit after revocation or denial.

If a permit has been revoked or denied, the director or designee shall not accept any new animal permit application from the same person(s), for any location, for a period of 36 months after such denial or revocation, unless the applicant shows, and animal protection services finds, by inspection and/or investigation, that the reason upon which the application was revoked/denied no longer exists.
(Ord. No. 4115, § 2, 10-21-2025)

7.04.170 Microchipping dogs and cats.

A. Except as otherwise provided in section B, it is unlawful for any person to own or harbor a dog or cat over the age of four months unless the animal has been implanted with microchip identification in accordance with this section and title. All community cats managed pursuant to HMC 7.15 shall be implanted with microchip identification in accordance with this section and title.

B. The microchipping requirements of this section do not apply to:

1. An animal whose owner has resided within the city fewer than 30 days.

2. An animal brought into the city temporarily from a location outside of Clark County, Nevada, for less than 30 days, and exclusively for the purpose of entering the animal in a show or exhibition, where the animal is not allowed to run at large.

3. Dogs and cats that cannot be implanted with a microchip as attested to by a licensed veterinarian.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.06 PETS GENERAL WELFARE; NEGLECT; CRUELTY

Sections:

7.06.010 Generally.
7.06.020 Adequate shelter.
7.06.030 Shading.
7.06.040 Abandonment.
7.06.050 Failure to respond to posted notice for violation of chapter 7.06.
7.06.060 Harmful substance on ground.
7.06.065 Poisoning.
7.06.070 Vehicle confinement.
7.06.080 Transportation of animals.
7.06.090 Injury, cruelty and overwork.
7.06.100 Cages, fences, tethering, pickets.
7.06.110 Trapping—Manner—Care while trapped.
7.06.120 Trapping—Disposal.
7.06.130 Crating or boxing.
7.06.140 Promotional sale or gift.
7.06.150 Research or medical use.
7.06.160 Use as a target for amusement.
7.06.170 Reserved.
7.06.180 Dyeing or coloring.
7.06.190 Injury by vehicles—Motorist responsibility.
7.06.200 Intoxicated riding or driving.
7.06.210 Animal crushing.
7.06.220 Sale—Age requirements.
7.06.230 Sale—Breeder permit required.

7.06.010 Generally.

It shall be unlawful for the owner of an animal to refuse or fail to provide the animal, by deliberate or unintentional means adequate food, water, or veterinary care for illness, injury, disease or infirmity.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.020 Adequate shelter.

A. Animals shall have protection from the elements and weather conditions suitable for the age, species, and physical condition of the animal so as to maintain the animal in a good state of health and includes a shaded area. For the purposes of this section, the existence of a pet door access into a structure may not be deemed as adequate shelter if it denies the animal from protection of the elements and weather conditions.

B. Shelter for household pets shall include one or more of the following:

1. Household pets kept outdoors shall have the following:

a. A suitable method for the rapid drainage of surface water from the area where the animal is kept.

b. For each animal with a sufficient amount of shelter to:

(1) Remain dry from rain and/or snow;

(2) Have enough shade to protect the animal from any direct sunlight that is likely to cause overheating or discomfort;

(3) Remain cool during a period for which the National Weather Service has issued a heat advisory and/or when temperatures reach above 105 degrees Fahrenheit;

(4) Protect the animal from wind which creates a wind chill below 50 degrees Fahrenheit or for which the National Weather Service has issued a high wind warning; and

(5) Remain warm when the atmospheric temperature falls below 50 degrees Fahrenheit. If the temperature is below 50 degrees Fahrenheit the shelter must have additional clean and dry bedding material or other protection as necessary for the dog or cat to remain warm.

2. A structure including but not limited to, a garage, barn, or shed that meets standards under title 19, that is sufficiently insulated and ventilated to protect the animal from exposure temperatures below 50 degrees Fahrenheit or above 85 degrees Fahrenheit. The structure shall have the following if housing household pets:

a. Protect the animal from injury and be kept in clean and good repair.

b. Have an adequate and reliable sources of electrical power and potable water available.

c. Ensure that the interior of the structure is constructed and maintained in such a manner as to be substantially impervious to moisture and to facilitate regular cleaning.

d. Provide a suitable method to eliminate excessive water from the interior of the structure and primary enclosures (if any). Any drains must be constructed and maintained in such a manner as to avoid foul odors.

3. Ensure that indoor primary enclosures are constructed and maintained in such a manner as to:

a. Protect the animal(s) from excessive illumination while providing ample amount of light, by natural or artificial means, or both, of a sufficient distributions and intensity to allow for routine inspection and cleaning by owner(s)/caretaker(s).

b. Provide a sufficient amount of heat when necessary to protect animal(s) inside from cold and to maintain their health and comfort. The ambient temperature of an indoor primary enclosure which animal(s) are kept must not be allowed to fall below 50 degrees Fahrenheit.

c. Provide adequate ventilation at all times to maintain the health and comfort of the household pets inside. The system of ventilation must provide fresh air by means of windows, doors, vents, or air-conditioning, and be designed to maintain drafts, odors and the condensation of moisture at a minimum. If the ambient temperature reaches 85 degree Fahrenheit or greater, air-conditioning, exhaust fans and vents, or other auxiliary ventilation must be provided to keep the animal(s) cool and healthy.

d. Provide sufficient housing so that each enclosure for each animal is in accordance with section 7.70.080.

C. Coops for birds approved under this title must be in compliance with title 19 and suitable in size for the number of animals it houses.

D. Barns, stables, or similar structures approved by title 19 for use by horses, cattle, sheep, and goats. Enclosure shall be a minimum of 20 feet by 20 feet per animal, shall include a minimum of 40 square feet of shade per animal, and shall have a properly operating hose bib within ten feet of the enclosure.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.030 Shading.

In addition to providing adequate shelter as outlined in section 7.06.020, an owner of an animal shall provide shade by means of other structures, trees, or awnings, when the temperature is expected to rise above 85 degrees Fahrenheit to protect the animal from direct sunlight that is likely to cause overheating or discomfort. In the event of a heat advisory issued by the National Weather Service, and/or when temperatures reach above 105 degrees Fahrenheit, additional mechanisms appropriate for the animal species, including but not limited to, misters, swamp coolers or air conditioning, must be provided which will allow the animal to cool down the body temperature and prevent overheating.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.040 Abandonment.

A. It shall be unlawful for an owner to abandon an animal or the carcass of an animal on a public street or road, alley, or any other public place, or upon the private property of the owner or the private property of another.

B. An animal shall be considered to be abandoned in the following circumstances:

1. When the animal is not claimed within 72 hours after the scheduled pick up date having been boarded, groomed, trained, handled or cared for by any animal handler, animal establishment.

2. When the animal is not claimed within 72 hours of being impounded at the animal protection facility.

Any animals abandoned at a veterinary facility are subject to NRS 638.070(f) and NAC 638.051.

C. After the appropriate notice has been provided to the owner, if known, and the owner has failed to reclaim, the animal shall be deemed abandoned and shall become the property of the animal protection services. The animal protection services may dispose of the animal in any reasonable, humane manner.

D. TNVR organizations or community cat caregivers are exempt from sections 7.06.020-7.06.040 so long as they are complying with all provisions of chapter 7.15.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.050 Failure to respond to posted notice for violation of chapter 7.06.

Any owner who violates chapter 7.06 and has failed to respond to a notice posted from animal protection services shall be deemed to have abandoned the animal. The animal protection officer may take protective custody of the animal pursuant to section 7.02.050.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.060 Harmful substance on ground.

It shall be unlawful for any person to unjustifiably or knowingly, throw, drop or place, or cause to be thrown, dropped or placed upon any road, highway, street, alley, or public place, or upon the private property of the owner or another, any glass, nails, pieces of metal or other substance or chemical or device calculated or likely to wound, disable or injure an animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.065 Poisoning.

It is unlawful for any person unjustifiably to administer any poisonous drug or substance with intent that the same shall be taken by an animal, whether such animal be the property of himself or another, or whether the drug or substance be exposed upon such person's property, the private property of another, or any public place. Nothing herein shall be

construed to prevent or restrict the animal protection officer or health officer in the exercise and performance of the powers and duties set forth in this title and nothing herein shall be construed to prevent or restrict the eradication of animals commonly considered to be pests which are harmful or destructive to man, other animals or property or which are otherwise defined as a "vertebrate pest" by NRS 555.005.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.070 Vehicle confinement.

A. No person having charge or custody of an animal, as owner or otherwise, shall place or confine such animal or allow such animal to be placed or confined or to remain in a motor vehicle under such conditions or for such period of time as may endanger the health or well-being of such animal due to heat, cold, lack of food or water, or such other circumstances as may reasonably be expected to cause suffering, disability or death.

B. Any law enforcement officer or any animal protection officer who finds an animal in a motor vehicle in violation of this chapter may use any force that is reasonable and necessary under the circumstances to safely remove the animal from the motor vehicle.

C. The officer removing the animal shall take the animal to the animal protection facility or to a veterinary clinic for safekeeping and shall, in the event the person having custody cannot be otherwise contacted, leave in a prominent place in the motor vehicle a written notice bearing their credentials, telephone number, and the address where the animal may be claimed by the owner thereof.

D. The animal will be returned to the owner if the owner claims the animal within 72 hours from the time the animal was removed from the motor vehicle and pays all reasonable charges that have accrued for the maintenance of the animal.

E. In the event the owner cannot be contacted, or expresses no interest in reclaiming the animal within 72 hours from the time the animal was removed from the motor vehicle, the animal shall be deemed abandoned pursuant to section 7.06.040 and the animal protection services may dispose of the animal in any reasonable humane manner.

F. Any person, pursuant to NRS 202.487, who believes that a household pet is confined inside a vehicle unattended under circumstances that present a significant risk to the health and safety of the household pet, including without limitation circumstances such as extreme heat or cold, may use any means that is reasonable and necessary under the circumstances to safely remove the animal from the motor vehicle. Any person who uses force to remove the household pet from the vehicle shall:

1. First determine that the motor vehicle is locked or there is no other reasonable way to remove the pet from the vehicle;

2. Report the violation of subsection 1 of NRS 202.487 to the Henderson Police Department or by calling 911 and requesting assistance;

3. Remain with the pet in a safe place in close proximity to the motor vehicle until informed that his or her presence is no longer necessary by the law enforcement officer, animal protection officer or other person who responds to the request for assistance made pursuant to paragraph (2); and

4. Cooperate with any person who responds to the request for assistance made pursuant to paragraph (2).

(Ord. No. 4115, § 2, 10-21-2025)

7.06.080 Transportation of animals.

It shall be unlawful for any person to carry or enclose, or cause to be carried or enclosed in or upon any vehicle or conveyance any animal in a cruel or inhumane manner. It shall be unlawful for any person to transport or convey any animal in the bed of an open pick-up truck or similar open vehicle without crating or tethering said animal in such a way to prevent the animal from jumping, falling out, or otherwise being thrown from a moving vehicle.

(Ord. No. 4115, § 2, 10-21-2025)

7.06.090 Injury, cruelty and overwork.

It is unlawful for any person to overdrive, overload, torture, beat, or unjustifiably injure, maim, mutilate, treat cruelly, or kill any animal regardless of ownership. This section does not apply to actions of licensed pest and vermin control businesses.

(Ord. No. 4115, § 2, 10-21-2025)

7.06.100 Cages, fences, tethering, pickets.

A. It is unlawful to confine an animal in any cage, coop or fence barrier of a size deemed insufficient by the animal protection officer;

B. It shall be unlawful to restrict any animal by leash, cord or chain in the following manner:

1. Keep any dog on a tether less than 12 feet long;

2. Tethering the dog if such tethering fails to allow the dog to move at least 12 feet or if the device is a pulley system, fails to allow the dog to move a total of 12 feet;

3. Tether a dog with a choke-type collar, martingale collar or prong-type collar;

4. Keep any dog tethered for more than ten hours during a 24-hour period or during anytime when the National Weather Service issues a heat advisory. This subsection does not prohibit conduct permitted by NRS 574.100(4);

5. Tethering the dog in a manner where the dog is able to reach a fence or other object that may cause the dog to become injured or die by strangulation after jumping the fence or object or otherwise becoming entangled in the fence or object;

6. Securing upon an animal a leash, collar, tether, or other device weighing more than ten percent of the animal's body weight; or

7. Places the dog in unsafe or unsanitary conditions.

C. It shall be a violation of this section for a person having charge to keep any dog outside, tethered, penned, caged, fenced or otherwise confined without access to adequate feed, potable water, shading, and adequate shelter as defined in this title.

D. The provisions of this section shall not apply if the tethering or confinement is authorized for medical reasons in writing by a licensed veterinarian which must be renewed annually and adequate shelter and shading is provided.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.110 Trapping—Manner—Care while trapped.

A. It is unlawful for any person to unjustifiably trap any animal with anything other than a humane live trap which will inflict no physical injury upon the animal.

B. It is unlawful for any person to unjustifiably lure or entice, by means of food or otherwise, any animal into a trap other than a humane live trap.

C. It is unlawful for any person having trapped an animal to leave it without food, water or shelter for an unreasonable period of time or in conditions that may endanger its health and safety.

D. It is unlawful for any person to trap any dog without first notifying animal protection services.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.120 Trapping—Disposal.

It is unlawful for any person who has trapped an animal, or discovers any animal so trapped, to dispose of it in any fashion not otherwise provided by law. Any person who traps an animal shall deliver it to the animal protection facility within 72 hours of the animal being trapped, or shall return the animal to its owner within the same period. Any person who traps

a feral cat shall transport the animal to an organization that verifies if the cat is sterilized. All sterilized cats shall be returned to the location of where they were trapped by the trapper or by an organization who traps, neuters, vaccinates and returns cats.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.130 Crating or boxing.

It is unlawful for any person to overcrowd any animal in any crate, box or other receptacle or fail to provide water, food, shelter or sanitation for same.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.140 Promotional sale or gift.

It is unlawful for any person, in connection with any advertising campaign or promotion, to use, give, sell, auction, barter, or offer to use, give, sell or barter, as a gift or prize, any live animal in any manner where there will be a transfer of ownership or possession.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.150 Research or medical use.

A. It is unlawful for any person to sell or offer for sale, buy or offer to buy, barter or offer to barter, give or offer to give, or furnish any animal for experimental, laboratory or vivisection purposes except as hereinafter provided. Nothing herein shall interfere with the sale, buying, barter or gift of animals for properly conducted scientific experiments or investigations which are performed under the authority of the faculty of any regularly incorporated medical college or university of this state, or with recognized hospital or research facilities in the course and scope of their work.

B. Notwithstanding subsection A. of this section, the protection facility shall not under any circumstances knowingly release any animal to any person who intends to use the animal for experimental, laboratory or vivisection purposes.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.160 Use as a target for amusement.

It is unlawful for any owner, operator, or agent or any carnival, fair or amusement park to use any live animal as a target.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.170 Reserved.

7.06.180 Dyeing or coloring.

It is unlawful for any person to dye or color by any means any baby chick, rabbit, duckling or fowl, or to dye or color any animal for purposes of concealing its identity.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.190 Injury by vehicles—Motorist responsibility.

A. Every operator of any vehicle upon the streets and ways of the city shall immediately upon injuring, striking, maiming or running down any animal give such aid as (s)he is reasonably able to render. In the absence of the owner, (s)he shall immediately notify the City of Henderson police department or animal protection services furnishing sufficient facts relative to such injury.

B. It is the duty of such operator to remain at or near the scene until the appropriate authorities arrive, and such operator shall immediately identify himself to the appropriate authority.

C. Alternatively, in the absence of the owner, a person may give aid by taking the animal to a veterinary hospital or the animal shelter of the city, and thereafter notifying the City of Henderson police department or animal protection services. Such animal shall be deemed an uncared for animal within the meaning of section 7.30.060.

D. Emergency vehicles are not required to stop when actually responding to an emergency call, but shall notify the City of Henderson police department or animal protection services, furnishing sufficient facts relative to such injury.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.200 Intoxicated riding or driving.

It is unlawful for any person to ride or drive an equine while such person is under the influence of an intoxicating liquor or drug.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.210 Animal crushing.

It is unlawful for any person to purposely engage in animal crushing, including actual conduct in which one or more living non-human mammal, bird, reptile, or amphibian is

purposely crushed, burned, drowned, suffocated, impaled, or otherwise subjected to serious bodily injury, as defined by the federal Preventing Animal Cruelty and Torture Act, as it may be amended from time to time.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.220 Sale—Age requirements.

It shall be unlawful for any person to sell or offer for sale, barter or give away baby chicks, ducklings, other fowl under four weeks of age or rabbits under two weeks of age, as pets or novelties. This chapter shall not be construed to prohibit the display or sale of natural chicks, rabbits, ducklings or other fowl, in proper breeder facilities by hatcheries, or stores engaged in the business of selling the same to be raised for commercial purposes.
(Ord. No. 4115, § 2, 10-21-2025)

7.06.230 Sale—Breeder permit required.

It shall be unlawful for any person to display, sell or offer for sale, barter, give away, or otherwise dispose of any animal upon any street, sidewalk, public building, public park, or other public place, without a breeder permit and/or commercial pet establishment permit.
(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.08 NUISANCE

Sections:

7.08.010 Caring for animals; sanitation; nuisance.
7.08.020 Animals at large.
7.08.030 Noise.
7.08.040 Pigeon control.
7.08.050 Disposal of dead animals.

7.08.010 Caring for animals; sanitation; nuisance.

A. No owner of any animal shall cause or allow the animal to defecate on any public property or upon any street, sidewalk, public way, play area or common grounds owned jointly by the members of a homeowners or condominium association, or upon private property other than that of the owner, unless such owner or custodian immediately removes and disposes of all feces deposited by such animal by the following methods:

1. Collection of the feces by appropriate implement and placement in a paper or plastic bag or other container; and

2. Removal of such bag or container to the property of the animal owner or public receptacle for depositing animal feces and disposition thereafter in a manner otherwise permitted by law.

B. No owner of an animal shall permit any waste matter from the animal to collect and remain on the property of the owner or custodian, or on the property of others so as to cause or create an unhealthy, unsanitary, dangerous or offensive living condition on the owner's property, or to abutting or nearby property of others.

C. No owner of any animal shall cause unsanitary dangerous or offensive conditions by virtue of the size or number of animals maintained at a single location or due to the inadequacy of the facilities.
(Ord. No. 4115, § 2, 10-21-2025)

7.08.020 Animals at large.

It shall be unlawful for any person having charge, custody or control of any animal to permit the same to be at large or trespass on the private premises of another, or to be on any public highway, street, alley, court, public ground, or unfenced lot. All animals must be confined to the owners' property or shall be on a leash and under effective control of the person holding said leash of the animal, when on any public property, any highway, street,

alley, court, park, public ground, fenced lot or wash. Leash requirements do not apply to designated enclosed areas of animal parks or animals participating in sanctioned performance events. Feral cats and community cats are exempt from this provision.
(Ord. No. 4115, § 2, 10-21-2025)

7.08.030 Noise.

It is unlawful for any person to own, keep, harbor or possess any animal which, by unreasonably loud, unnecessary, or frequent barking, yelping, howling or other noise, causes unreasonable annoyance or disturbance to the neighborhood or to any person of ordinary sensitivity in the vicinity. In determining whether an animal's noise violates this section, factors to be considered include, but are not limited to, the time of day the sounds occur, the intensity and duration of the noise, whether the sound is recurrent, intermittent or constant, the circumstances which might cause the animal to make noise, and the proximity of the noise to others.
(Ord. No. 4115, § 2, 10-21-2025)

7.08.040 Pigeon control.

A. The roosting or lingering of wild pigeons poses a health hazard in addition to offending the aesthetic senses by pigeon contamination. Such roosting or lingering of wild pigeons is declared to be a public nuisance.

B. It shall be unlawful for any person to encourage the lingering, roosting and/or congregating of wild pigeons by providing food—including but not limited to grain, seeds, greens, breadcrumbs and miscellaneous food scraps—intended for wild pigeon ingestion on public or residential property.

C. The owner of private property where wild pigeons roost or linger is responsible for the removal of the pigeons and is responsible to remedy the conditions that allow for the roosting or lingering of wild pigeons.
(Ord. No. 4115, § 2, 10-21-2025)

7.08.050 Disposal of dead animals.

Any dead dog, cat, ferret, pet rabbit, or potbellied pig that is picked up by animal protection services or the department of public works or its disposal contractor shall not be disposed of in any trash or landfill and shall be scanned for an owner identification tag and microchip identification device and shall be delivered to the animal protection facility. If an owner identification tag or microchip exists, animal protection services or the department of public works or its disposal contractor shall notify animal protection services staff and that

staff will make all reasonable attempts to contact and notify the owner. Animals with an owner identification tag or microchip must be held for at least 24 hours for the owner to reclaim.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.10 MANDATORY SPAYING AND NEUTERING OF ANIMALS

Sections:

7.10.010 Mandatory spay/neuter of dogs, cats, rabbits, potbellied pigs and ferrets.
7.10.020 Exceptions to spay/neuter requirements.
7.10.030 Forfeiture.
7.10.040 Unspayed/unneutered animals running at large.
7.10.050 Release—Neutering or spaying.
7.10.060 Pet shop reporting.
7.10.070 Effective date for amendments concerning rabbits and potbellied pigs.

7.10.010 Mandatory spay/neuter of dogs, cats, rabbits, potbellied pigs and ferrets.

Subject to the exceptions provided in this chapter, it shall be unlawful to harbor within the City of Henderson any dog, cat, ferret, rabbit, or potbellied pig over the age of four months that has not been spayed or neutered. For purposes of this section and chapter, "harbor" means having the legal ownership of, or providing on a regular basis, care, shelter, protection, refuge, nourishment, or medical treatment. This shall also include the providing of nourishment to a stray cat or dog.
(Ord. No. 4115, § 2, 10-21-2025)

7.10.020 Exceptions to spay/neuter requirements.

A. The spay/neuter requirement set forth in section 7.10.010 shall not apply if a licensed veterinarian certifies in writing that a specific dog, cat, rabbit, potbellied pig, or ferret is medically unfit to undergo the required spay or neuter procedure because of a physical condition that would be substantially aggravated by such procedure or would likely cause the animal's death.

B. The spay/neuter requirement set forth in section 7.10.010 shall not apply to animals harbored by an animal shelter, the animal protection facility, or humane society, whether public or private, the principal purpose of which is securing the adoption of dogs, cats, rabbits, potbellied pigs, or ferrets provided that such organization has a policy and rules requiring the spaying or neutering of all dogs, cats, rabbits, potbellied pigs, or ferrets placed for adoption by such organization.

C. The spay/neuter requirement set forth in section 7.10.010 shall not apply to any dogs, cats, rabbits, or ferrets harbored by a person holding a valid breeder's permit as provided in section 7.04.090 of this title.

D. The spay/neuter requirement set forth in section 7.10.010 shall not apply to the sale of dogs, cats, or rabbits from an animal establishment under section 7.70.010.

E. The spay/neuter requirement set forth in section 7.10.010 shall not apply to law enforcement K-9's currently engaging in active service.

F. The spay/neuter requirement set forth in section 7.10.010 shall not apply to a non-profit animal organization registered with the City of Henderson for the purpose of cat trap, neuter, vaccinate, return so long as the organization has a policy to sterilize all cats prior to returning them to the community.

G. The spay/neuter requirement set forth in section 7.10.010 shall not apply to an owner of a service animal, under the age of two years old, as described in 7.04.030. This exemption is valid for no more than one dog per residence.
(Ord. No. 4115, § 2, 10-21-2025)

7.10.030 Forfeiture.

Animals born to cats, dogs, rabbits, ferrets and potbellied pigs not spayed or neutered in violation of this chapter shall be forfeited and surrendered, immediately upon demand to animal protection services, or at a set time determined by animal protection services.
(Ord. No. 4115, § 2, 10-21-2025)

7.10.040 Unspayed/unneutered animals running at large.

If a dog or cat is running at large pursuant to section 7.30.010, and animal protection services determines that the dog or cat has not been spayed or neutered in accordance with section 7.10.010. The owner shall be required to have the dog or cat spayed or neutered at a veterinarian of their choosing within 30 days and provide proof to animal protection services. Nothing in this paragraph shall limit an animal protection officer from proceeding with additional enforcement actions.
(Ord. No. 4115, § 2, 10-21-2025)

7.10.050 Release—Neutering or spaying.

Before the release of any: dog, cat, rabbit, potbellied pig, or ferret, by the animal protection facility, by way of sale or adoption the animal shall be spayed or neutered by animal protection services.
(Ord. No. 4115, § 2, 10-21-2025)

7.10.060 Pet shop reporting.

A. In order to assist the city in enforcing this chapter, each pet shop within the city shall provide to animal protection services, on a quarterly basis, a list of the dogs, cats, ferrets, rabbits, and potbellied pigs sold by the pet shop during that quarter. The list shall include the following information for each such animal:

1. The name and residence address of the buyer.

2. The address of the location where the animal will reside, if not the same as the buyer's residence.

3. The breed and approximate age.

4. A description, including principal colors.

B. In order to assist the city in enforcing this chapter, each pet shop, breeder, pound, shelter, or rescue organization that sells animals listed in subsection (A), or makes such animals available for adoption, shall:

1. Provide written notice of the requirements of this chapter to a person purchasing or adopting such an animal, in a form and with content that have been either provided or approved by City of Henderson animal protection services.

2. Obtain from such person an acknowledgement of receipt of that notice and the person's written consent to comply with this chapter; and

3. Include as part of the purchase or adoption transaction the spaying/neutering of the animal. The pet shop, breeder, pound, shelter, or rescue organization may provide the spay/neuter service itself or provide a voucher or other means by which the service will be provided to the person purchasing or adopting the animal. The cost of the purchase or adoption transaction shall be deemed to include the spay/neuter service, whether or not the cost is separately identified in the written record of the transaction. If the animal is later exempted from the spay/neuter requirement, the cost of the spay/neuter service shall be refunded upon request.

C. Failure to comply with subsection (A) or subsection (B) of this section shall be grounds for non-renewal of, or disciplinary action against, a business license.
(Ord. No. 4115, § 2, 10-21-2025)

7.10.070 Effective date for amendments concerning rabbits and potbellied pigs.

Persons who, on or after December 1, 2019, are harboring a rabbit or potbellied pig, subject to the requirements of section 7.10.010, shall have until April 1, 2020, to comply with those requirements.
(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.15 MANAGED CARE OF COMMUNITY CATS

Sections:

7.15.010 Definitions.
7.15.020 Community cat colonies.
7.15.030 Community cat colony caregiver duties.
7.15.040 Disposition of community cats.
7.15.050 TNVR organization registration required.
7.15.060 Enforcement of provisions by animal protection services.

7.15.010 Definitions.

For the purposes of this chapter, the following terms shall have the meaning set forth in this section. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular, and words in the singular number include the plural.

A. "Cat" means any animal of the species Felis catus.

B. "Community cat" means a cat that is free-roaming and may be cared for by one or more residents of the immediate area who is/are known or unknown.

C. "Community cat caregiver" means any person who, in accordance with a good faith effort to trap, sterilize, vaccinate, and return any community cat, provides voluntary care including but not limited to food, water, and medical care to a community cat or community cat colony.

D. "Community cat colony" or "colony" means a group of community cats that congregate, more or less, together as a unit and share a common food source.

E. "Domesticated cat" means a cat that is socialized to humans.

F. "Ear tipping" means straight-line cutting of the tip of the left or right ear of a cat while the cat is anesthetized and has been sterilized and given a rabies shot. A cat with a tipped ear is considered to be sterile and vaccinated against rabies.

G. "Feral cat" means a cat that is born in the wild or abandoned and is not socialized or appropriate as a companion for humans.

H. "Free-roaming" means not restrained by leash, cord, chain, or enclosure.

I. "Nuisance" means conduct by a community cat or cats that disturbs the peace by:

(1) Habitually or continually howling and fighting; or

(2) Habitually and significantly destroying, desecrating or soiling property against the wishes of the owner of the property.

J. "TNVR" signifying trap, neuter, vaccinate and return means to humanely trap a community or feral cat and to sterilize, vaccinate against rabies, ear tip, and return the cat to the location where it was trapped.

K. "TNVR program" means a program in which community or feral cats are humanely trapped, sterilized, vaccinated against rabies, ear tipped, and returned to the location where the cats were trapped.

(Ord. No. 4115, § 2, 10-21-2025)

7.15.020 Community cat colonies.

Except as provided in section 7.15.060.B, community cat colonies may be permitted, and community cat colony caregivers may maintain and care for community cats and perform the duties as described in section 7.15.030. Individuals, community cat caregivers, rescue organizations, and animal protection services shall be permitted to carry out TNVR and TNVR programs. A cat released in accordance with chapter 7.15 shall not be considered to be abandoned. Community cat colonies shall be prohibited within one-half mile of or in any conservation area, state or national forest, wetlands, bird viewing preserve or any other lands managed for wildlife.

(Ord. No. 4115, § 2, 10-21-2025)

7.15.030 Community cat colony caregiver duties.

A. Community cat colony caregivers shall take all appropriate steps to trap each community cat in the colony in order to have the cat sterilized, vaccinated for rabies, and ear tipped. Caregivers shall seek medical attention for any sick or injured cat in the colony.

B. Community cat colony caregivers shall care for their cat colony by providing food, water, shelter, medical care and other forms of sustenance to all cats in the colony.

(Ord. No. 4115, § 2, 10-21-2025)

7.15.040 Disposition of community cats.

A. If a cat with a tipped ear is brought into the animal protection facility, animal protection staff shall:

1. Check the cat for a microchip and/or identification tag. If the cat is owned, then the owner will be contacted and the cat released pursuant to chapter 7.30. If an owner does not reclaim the cat after three days, the cat shall be transferred to a registered TNVR program or made available for public adoption if healthy.

2. If the cat does not have a microchip or any other identification, then staff shall refuse the intake of the cat. Animal protection service staff shall provide the resident information to contact a registered TNVR organization to return the community cat to the colony if the cat is otherwise healthy.

a. In instances where the resident refuses to contact a TNVR organization, animal protection service shall accept the cat for transfer back to a TNVR organization.

b. A TNVR organization shall have three calendar days to transport a community cat back to a cat colony.

c. Should the community cat not be transported back to a colony by a TNVR organization, then it will be offered to be transferred to an animal rescue organization or accessed for public adoption. If the community cat is not transferred to an animal rescue organization and is not fit for public adoption within three days, then the community cat shall be humanely euthanized after seven calendar days by animal protection services. Nothing in this section shall prohibit the humane euthanasia of a cat as directed by a licensed veterinarian due to illness, injury, or contagious disease.

B. If a feral cat with a tipped ear and no other identification or microchip is trapped it shall be released back into the community. Feral ear tipped cats shall not be intentionally brought to the animal protection facility.

C. A community cat that is trapped due to an enforcement action described in section 7.15.050 may be released to a registered TNVR organization for relocation to a different colony, transferred to an animal rescue organization, assessed for public adoption or, if unable to be relocated or transferred, humanely euthanized after seven calendar days by animal protection services. Nothing in this section shall prohibit the humane euthanasia of a cat as directed by a licensed veterinarian due to illness, injury, or contagious disease.

D. A community or feral cat release in accordance with this chapter shall not be considered to be abandoned.

E. If a feral cat is trapped by a citizen and does not have a tipped ear, then the citizen will be referred to a registered TNVR organization. The registered TNVR organization shall sterilize the cat and coordinate its return to the found location. If the TNVR organization does not accept the cat, then it will be held for a three-day period and offered to other animal rescue organizations. If unable to be transferred, then it shall be humanely euthanized.
(Ord. No. 4115, § 2, 10-21-2025)

7.15.050 TNVR organization registration required.

Individuals and organizations acting as a community cat colony caregiver as described in section 7.15.030 or individuals and organizations performing TNVR duties shall register

with animal protection services. TNVR organizations are required to obtain an animal handler permit. All animal handler permit fees required under HMC 7.04.020 shall be waived for registered non-profit organizations. All inspection requirements of HMC 7.60.020 shall be waived for registered TNVR organizations.

Individuals who are members of a registered TNVR organization are not required to individually register with animal protection services so long as their contact information is maintained by their affiliated TNVR organization. TNVR organizations are required to maintain a list of all members of their organization.
(Ord. No. 4115, § 2, 10-21-2025)

7.15.060 Enforcement of provisions by animal protection services.

A. Animal protection services offices shall have the right to trap in a humane manner any cat that is deemed to be a threat to public health or safety. If a cat has bitten a human being, the cat shall be confined pursuant to chapter 7.50, as appropriate. If a licensed veterinarian decides that the cat is too ill or injured or that it has an illness that presents a danger to the public health or safety or to itself, the cat may be humanely euthanized. After the mandatory quarantine, if the cat is found to be healthy and no other issues of public health or safety exist, animal protection staff or volunteers may return the cat to the location where it was trapped after it has been sterilized and vaccinated, if necessary. A feral or community cat released in accordance with this chapter shall not be considered to be abandoned.

B. The director or designee shall have the right to declare that a colony or individual cat(s) is in a location that is hazardous to the health and safety of the public or the colony or that the colony is a nuisance if:

1. The cat(s) is posing a public safety or health issue with numerous verified bites, reports of aggression, substantiated property damage or sanitation including, but not limited to, offensive odors, animal wastes, rodents, flies, or any other offensive or unwholesome conditions;

2. The resident(s) has contacted a community cat organization for and has utilized humane deterrents and trap-neuter-vaccinate-return ("TNVR") in their area;

3. The resident(s) can provide proof that the deterrents and TNVR have not been effective at their location by filling out witness statement(s) and providing photographs; or

4. The resident(s) can provide documentation of any damages including, but not limited to, invoices for repairs, photographs, or veterinarian bills.

C. Once a colony is declared a hazard or nuisance any cat impounded shall not be released to the location where it was trapped unless the hazard or nuisance is remedied and the cats have been approved for return by the director or designee. Cats impounded pursuant to this subsection are subject to the disposition regulations listed in this section. (Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.20 DANGEROUS ANIMALS

Sections:

7.20.010 Purpose and findings.
7.20.020 Dangerous dog declaration.
7.20.030 Notice of dangerous dog declaration; standing; impoundment.
7.20.040 Appeal of dangerous declaration.
7.20.045 Discovery.
7.20.050 Dangerous dogs—Unlawful acts.
7.20.060 Dangerous dog—Ownership permitted when.
7.20.070 Permit revocation conditions.

7.20.010 Purpose and findings.

The Henderson city council finds that the presence of dangerous animals within its city, as defined within this chapter, creates an increased danger to the public health and safety and to the welfare of other animals and people. The purpose of this chapter is to set forth procedures by which a dog may be determined to be dangerous, thereby becoming subject to appropriate restrictions and other actions.
(Ord. No. 4115, § 2, 10-21-2025)

7.20.020 Dangerous dog declaration.

A. As used in this chapter, a dog may be declared "dangerous" if:

1. Without provocation, on two separate occasions within 18 months, it behaves menacingly, to a degree that would lead a reasonable person to defend himself or herself against substantial bodily harm.

2. The dog constitutes a physical threat to human beings or to other animals and, without regard to any previous behavior [when]:

a. It is used in the commission of a crime by its owner;

b. It causes serious injury to another animal that is not at large;

c. It is determined by the animal control officer or law enforcement officer, through their personal observation of the condition or behavior of the dog, that probable cause exists that the dog in question poses an immediate threat to public safety;

d. It has bitten a person without causing substantial bodily harm; or

e. It causes substantial bodily harm or death to another animal which is within a designated dog park.

B. A dog may not be declared dangerous pursuant to this chapter for constituting a physical threat:

1. To another animal or person who provoked the animal as a result of and to the extent of the provocation;

2. To another animal or person who was unlawfully upon the premises owned or occupied by the owner of the animal constituting the threat;

3. To another animal that was running at large;

4. If the dog was used by a law enforcement agency in connection with the officer's duties; or

5. Based solely upon breed.

(Ord. No. 4115, § 2, 10-21-2025)

7.20.030 Notice of dangerous dog declaration; standing; impoundment.

A. The owner of a dog declared dangerous by an animal protection services officer shall be notified via personal service, or by first class United States mail, sent to the last known address of the owner. A certificate of mailing or a signed receipt of declaration by the owner shall be deemed sufficient proof of service of the dangerous declaration.

B. The determination that a dog is dangerous as defined herein shall be deemed to have been made upon service of the notice to the owner as provided in this chapter. After expiration of the appeal period as set forth in section 7.20.040, the determination by the animal protection services officer shall be final and binding upon the city and upon the owner, unless the owner files a timely appeal of the declaration with the Henderson Municipal Court.

C. Only an owner of the dog at the time of the dangerous declaration by animal protection services has standing to file an appeal.

D. Upon declaring a dog dangerous, the animal protection services officer may seize and impound the dog if there is an immediate danger to the public. If the dog is seized and impounded, the owner may not regain possession of the dog until the owner complies with the conditions set forth in section 7.20.060. If the dog is seized and impounded and the owner does not file a timely appeal pursuant to section 7.20.040 or fails to comply with the conditions set forth in section 7.20.060, the owner shall be deemed to have abandoned the dog pursuant to section 7.06.040, and the dog shall immediately become the property of the City of Henderson.

(Ord. No. 4115, § 2, 10-21-2025)

7.20.040 Appeal of dangerous declaration.

A. Within seven judicial days of service of the notice of the dangerous declaration, the owner may file an appeal with the Henderson Municipal Court to appeal the dangerous declaration of the animal control officer.

B. The hearing date for the appeal shall be set by the court within ten judicial days from the date the owner files an appeal with the Henderson Municipal Court, unless otherwise continued at the discretion of the court.

C. The municipal court shall determine whether the dangerous declaration is to be upheld. The municipal court may make any orders authorized by this chapter, based upon the evidence presented. No costs or attorney's fees shall be assessed against either party. The hearing for the appeal shall be conducted in the following manner:

1. The appeal shall be de novo, and the city has the burden to prove by a preponderance of the evidence that the dog is dangerous and the declaration was proper.

2. The court may admit all relevant evidence, including incident reports and the affidavits of witnesses.

D. The decision by the municipal court shall be a final judgment.
(Ord. No. 4115, § 2, 10-21-2025)

7.20.045 Discovery.

A. The owner or the city may not serve any interrogatories or take any depositions relating to the dangerous declaration.

B. At the request of the owner, the city shall permit the owner to obtain a copy of the documents intended to be used during the appeal to include, but not limited to:

1. Written or recorded statements or confessions made by the owner, or any written or recorded statements made by a witness, or copies thereof, within the possession, custody or control, the existence of which is known, or by the exercise of due diligence may become known, that the city plans to use at the appeal;

2. Results or reports of physical or mental examinations, scientific tests or scientific experiments made in connection with the particular case, or copies thereof, within the possession, custody or control, the existence of which is known, or by the exercise of due diligence may become known, that the city plans to use at the appeal; and

3. Books, papers, documents, expert reports, tangible objects, or copies thereof, which the city plans to use at the appeal.

C. The owner is not entitled, pursuant to the provisions of this section, to the discovery or inspection of:

1. An internal report, document or memorandum that is prepared by or on behalf of the city attorney in connection with the investigation or prosecution of the case.

2. A statement, report, book, paper, document, tangible object or any other type of item or information that is privileged or protected from disclosure or inspection pursuant to the Constitution or laws of this state or the Constitution or laws of the United States.

D. At the request of the city, the owner shall permit the city to obtain a copy of the documents intended to be used during the appeal to include, but not limited to:

1. Written or recorded statements made by a witness the owner intends to call at the appeal, or copies thereof, within the possession, custody or control of the owner, the existence of which is known, or by the exercise of due diligence may become known, that the owner plans to use at the appeal;

2. Results or reports of physical or mental examinations, scientific tests or scientific experiments, or copies thereof, within the possession, custody or control of the defendant, the existence of which is known, or by the exercise of due diligence may become known, that the owner plans to use at the appeal; and

3. Books, papers, documents, expert reports, or tangible objects that the owner intends to introduce in evidence [order], or copies thereof, within the possession, custody or control of the owner, the existence of which is known, or by the exercise of due diligence may become known, that the owner plans to use at the appeal.

E. The city is not entitled, pursuant to the provisions of this section, to the discovery or inspection of:

1. An internal report, document or memorandum that is prepared by or on behalf of the owner or the owner's attorney in connection with the investigation or defense of the case.

2. A statement, report, book, paper, document, tangible object or any other type of item or information that is privileged or protected from disclosure or inspection pursuant to the Constitution or laws of this state or the Constitution of the United States.

(Ord. No. 4115, § 2, 10-21-2025)

7.20.050 Dangerous dogs—Unlawful acts.

It shall be unlawful for:

A. Any owner to possess or transfer ownership of a dangerous dog, except as provided in this chapter; or

B. The owner of a dangerous dog to permit the dog to be at large; or

C. The owner to permit or direct a dog to bite or attack any person or domesticated animal; or

D. Any owner to permit the dog to be outside the required enclosure pursuant to subsection 7.20.060 C. unless the dog is under the direct control and supervision of the owner and the dog is securely muzzled and restrained by a leash not exceeding six feet in length.

(Ord. No. 4115, § 2, 10-21-2025)

7.20.060 Dangerous dog—Ownership permitted when.

Except as otherwise ordered by a judicial order pursuant to an appeal of a dangerous declaration, any dog which is declared to be dangerous by an animal protection services officer may be kept within the city provided that:

A. Within 14 calendar days after the owner is notified of the declaration, the owner:

1. Submits a permit application to possess a dangerous dog within the city to the Henderson animal protection services;

2. Pays a nonrefundable application fee as set forth in section 7.90.020;

3. Passes an inspection by an animal protection services officer based upon such terms and conditions that adequately protect the general health, safety, and welfare of the public and the welfare of the dog;

4. Provides photographs every six months of the dog clearly displaying the dog's right and left sides as well as a front facing photograph; and

5. Completes the application process every six months until the animal is deceased. Current permit holders who have an existing expiration date beyond six months, at the time this law is codified, shall be allowed to maintain said expiration date. At the time of this expiration, the permit holder shall then default to a renewal every six months.

B. The animal shall be kept, confined or housed within an enclosure:

1. That will ensure the animal's retention and comfort and is of a dimension deemed adequate by an animal protection services officer; and

2. That is secure enough so that the animal cannot bite, harm or injure anyone.

C. At no time shall the dog be allowed to leave the private property confines of the owner or person in charge of the dog unless it is securely muzzled, leashed (no longer than six feet in length) and under the effective control of the owner.

D. The private property shall be adequately and properly posted with one or more conspicuous warning signs provided by an animal protection services officer. Additionally, it shall be the responsibility of the animal owner to list their name and current telephone number on or near this sign.

E. The dog must be sterilized by a licensed veterinarian and proof provided to the animal protection services. The owner shall maintain all sterilization records, including a description of the animal sterilized, the name of the veterinarian performing the procedure, and the date the sterilization was performed.

F. The dog shall be implanted with a registered microchip from a manufacturer approved by the Henderson animal protection services. The implantation must be performed by a person licensed to implant microchips in the State of Nevada and must conform to procedures recommended by the manufacturer. The owner shall register the microchip number in a national database in accordance with instructions from the manufacturer, and shall provide the number to the animal protection services. In the event that the dog already has a microchip implanted, the national database shall be updated by the owner and proof provided to the animal protection services.

G. The owner shall obtain and maintain in effect, a policy of liability insurance in the amount of not less than $100,000.00 insuring against possible injuries inflicted by the dangerous animal. The City of Henderson must be listed as a certificate holder on the policy or as an additional insured. The liability insurance shall be maintained in effect as long as the owner maintains possession of the dangerous dog. A valid certificate of insurance shall be provided to animal protection services. Any changes or cancellations to the insurance policy shall be provided to the animal protection services within ten calendar days.

H. The owner of a dangerous dog may not sell, relocate or give away the dog without obtaining prior written approval from the animal protection services. If such a transaction is approved, the owner or transferee shall pay a nonrefundable inspection fee of $50.00 for inspection of the new location for the dog. The owner or transferee shall also have the national microchip number updated in the national database to reflect the change in ownership, and shall provide evidence of the update to the animal protection services.

(Ord. No. 4115, § 2, 10-21-2025)

7.20.070 Permit revocation conditions.

A. Any permit issued under section 7.20.060 may be revoked if the dog, without provocation, bites or attempts to bite any person or other animal.

B. Any permit issued under section 7.20.060 may be revoked if the owner violates any provision of title 7 or any similar laws in another jurisdiction, within the State of Nevada, County of Clark.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.25 VICIOUS ANIMALS

Sections:

7.25.010 Purpose and findings.
7.25.020 Vicious dog—Declaration.
7.25.030 Determination of vicious dog.
7.25.040 Notice of vicious dog declaration; standing.
7.25.050 Appeal of vicious declaration.
7.25.055 Discovery.

7.25.010 Purpose and findings.

The Henderson city council finds that the presence of vicious dogs within the city, as defined within this chapter, poses a threat to the health and safety of the public. The purpose of this chapter is to set forth the procedures by which a dog may be determined to be vicious, thereby becoming subject to the appropriate restrictions and other actions provided in this chapter.
(Ord. No. 4115, § 2, 10-21-2025)

7.25.020 Vicious dog—Declaration.

A. As used in this chapter, a dog may be declared "vicious" if:

1. Without provocation, it inflicts substantial bodily harm upon a human being or causes the death of a human being;

2. It causes the death of a domesticated animal; or

3. The dog has been declared dangerous pursuant to section 7.20.020, with proper notice being given to the owner pursuant to section 7.20.020, the animal continues to exhibit the same or similar types of actions or behavior which resulted in the declaration, or is in violation of the provisions of section 7.20.060.

B. An animal may not be declared vicious pursuant to this section for constituting a physical threat:

1. To another domesticated animal or person who provoked the dog as a result of and to the extent of the provocation;

2. To another domesticated animal or person who was unlawfully upon premises owned or occupied by the owner of the dog constituting the threat;

3. To another domesticated animal that is running at large;

4. To another domesticated animal that is within a designated dog park;

5. If the dog was used by a law enforcement agency in connection with the agency's officer's duties; or

6. Based solely upon breed.

(Ord. No. 4115, § 2, 10-21-2025)

7.25.030 Determination of vicious dog.

If upon investigation it is determined by animal protection services or law enforcement officer that probable cause exists that the dog in question is vicious as defined in this chapter, animal protection services or law enforcement officer shall seize and impound the dog. The owner shall not maintain possession of the animal during the appeal process.

(Ord. No. 4115, § 2, 10-21-2025)

7.25.040 Notice of vicious dog declaration; standing.

A. The owner of a dog declared vicious by an animal control officer shall be notified by personal service or by first class United States Mail, sent to the last known address of the owner. A certificate of mailing or a signed receipt of declaration by the owner shall be deemed sufficient proof of proper service of receipt of the vicious declaration.

B. The determination that a dog is vicious as defined herein shall be deemed to have been made upon service of the notice to the owner as provided in this chapter. After expiration of the appeal period as set forth in section 7.25.050, the determination by the animal protection services officer shall be final and binding upon the city and upon the owner, unless the owner files a timely appeal of the declaration with the Henderson Municipal Court.

C. Only an owner of the dog at the time the animal protection services officer has developed probable cause that the dog is vicious has standing to file an appeal.

(Ord. No. 4115, § 2, 10-21-2025)

7.25.050 Appeal of vicious declaration.

A. Within seven judicial days of service of the notice of the vicious declaration, the owner may file an appeal with the Henderson Municipal Court to appeal the vicious declaration of the animal protection services officer.

B. The hearing date for the appeal shall be set by the court within ten judicial days from the date the owner files an appeal with the Henderson Municipal Court, unless otherwise continued at the discretion of the court.

C. The municipal court shall determine whether the vicious declaration is to be upheld. The municipal court may make any orders authorized by this title, based upon the evidence presented. No costs or attorney's fees shall be assessed against either party. The hearing for the appeal shall be conducted in the following manner:

1. The appeal shall be de novo and the city has the burden to prove by a preponderance of the evidence that the dog is vicious and the declaration was proper.

2. The court may admit all relevant evidence, including incident reports and the affidavits of witnesses.

D. If the vicious declaration is upheld, municipal court shall order the dog to be euthanized.

E. The decision by the municipal court shall be considered a final judgment.
(Ord. No. 4115, § 2, 10-21-2025)

7.25.055 Discovery.

A. The owner or the city may not serve any interrogatories or take any depositions relating to the vicious declaration.

B. At the request of the owner, the city shall permit the owner to obtain a copy of the documents intended to be used during the appeal to include, but not limited to:

1. Written or recorded statements or confessions made by the owner, or any written or recorded statements made by a witness, or copies thereof, within the possession, custody or control, the existence of which is known, or by the exercise of due diligence may become known, that the city plans to use at the appeal;

2. Results or reports of physical or mental examinations, scientific tests or scientific experiments made in connection with the particular case, or copies thereof, within the possession, custody or control, the existence of which is known, or by the exercise of due diligence may become known, that the city plans to use at the appeal; and

3. Books, papers, documents, tangible objects, or copies thereof, which the city plans to use at the appeal.

C. The owner is not entitled, pursuant to the provisions of this section, to obtain a copy of the documents intended to be used during the appeal to include, but not limited to:

1. An internal report, document or memorandum that is prepared by or on behalf of the city attorney in connection with the investigation or prosecution of the case.

2. A statement, report, book, paper, document, tangible object or any other type of item or information that is privileged or protected from disclosure or inspection pursuant to the Constitution or laws of this state or the Constitution of the United States.

D. At the request of the city, the owner shall permit the city to inspect and to copy or photograph any:

1. Written or recorded statements made by a witness the owner intends to call at the appeal, or copies thereof, within the possession, custody or control of the owner, the existence of which is known, or by the exercise of due diligence may become known, that the owner plans to use at the appeal;

2. Results or reports of physical or mental examinations, scientific tests or scientific experiments, or copies thereof, within the possession, custody or control of the defendant, the existence of which is known, or by the exercise of due diligence may become known, that the owner plans to use at the appeal; and

3. Books, papers, documents or tangible objects that the owner intends to introduce in evidence owner, or copies thereof, within the possession, custody or control of the owner, the existence of which is known, or by the exercise of due diligence may become known, that the owner plans to use at the appeal.

E. The city is not entitled, pursuant to the provisions of this section, to the discovery or inspection of:

1. An internal report, document or memorandum that is prepared by or on behalf of the owner or the owner's attorney in connection with the investigation or defense of the case.

2. A statement, report, book, paper, document, tangible object or any other type of item or information that is privileged or protected from disclosure or inspection pursuant to the Constitution or laws of this state or the Constitution of the United States.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.30 IMPOUNDMENT

Sections:

7.30.010 Animals running at large.
7.30.020 Impoundment of animals not running at large.
7.30.030 Found animal reporting.
7.30.035 Lost animal reporting.
7.30.040 Release of household pet or livestock—Basic conditions.
7.30.045 Hearing regarding animal impounded for cruelty.
7.30.050 Release of pet—Rabies suspicion.
7.30.060 Reserved.

7.30.010 Animals running at large.

A. Any animal running at large may be impounded and returned to the verified owner at the discretion of the impounding police officer or animal protection services officer.

B. The animal may be impounded to the animal protection facility and held for not less than three business days unless immediate action is necessary to prevent undue pain and suffering, including immediate humane euthanasia, of the animal per section 7.30.020. Within the three business days, if the ownership of the animal is proven, such owner shall be able to obtain possession of such animal upon compliance with HMC section 7.30.040 and the payment of applicable fees set forth in HMC section 7.04.020.

C. If the ownership of the animal is unknown and not easily ascertainable, or the animal is unclaimed after 72 hours, the city may dispose of the animal by adoption, gift, sale or euthanasia.

D. Feral cats that enter the shelter shall be returned to the area where they were impounded by the trap, neuter, vaccinate, return program in chapter 7.15.
(Ord. No. 4115, § 2, 10-21-2025)

7.30.020 Impoundment of animals not running at large.

A. Cruelty pursuant to NRS 574.

1. Any peace officer or animal protection services officer shall, upon discovering any animal that is being treated cruelly, take possession of the animal and provide the animal with shelter and care, or destroy the animal in a humane manner if:

(a) The officer obtains written permission from the owner of the animal;

(b) The officer obtains an order from a court; or

(c) A veterinarian, veterinarian technician or euthanasia technician licensed pursuant to chapter 638 of NRS examines the animal and recommends that the animal be humanely destroyed.

2. The officer taking possession of an animal pursuant to this section and NRS 574.055 shall give to the owner, if the owner can be found, a notice containing:

(a) A written statement of the reasons for the taking;

(b) The location where the animal will be cared for and sheltered;

(c) The fact that there is a limited lien on the animal for the cost of shelter and care; and

(d) If applicable, notice of the right of the owner to request a hearing pursuant to this section not later than seven calendar days after receipt of the notice.

If the owner is not present at the taking and the officer cannot find the owner after a reasonable search, the officer shall post the notice on the property from which the officer takes the animal. If the identity and address of the owner are later determined, the notice must be mailed to the owner immediately after the determination is made.

3. Officers or employees of the City of Henderson and any veterinarian, veterinarian technician or euthanasia technician, who recommends to the City of Henderson the humane destruction of an animal pursuant to subsection (c) are not liable for any action arising out of the taking or humane destruction of the animal.

4. If an officer takes possession of an animal pursuant to this section, the City shall have a lien on the animal for the reasonable cost of care and shelter furnished to the animal and, if applicable, for its humane destruction. The lien does not extend to the cost of care and shelter for more than two weeks.

5. If the owner of an animal has been notified in accordance with subsection 2. and the owner does not request a hearing or the owner has not been found not later than seven calendar days after the required notice has been posted on the property where the animal was found, the animal is forfeited to the city for disposition as the city sees fit, which may include, without limitation, the humane destruction of the animal or transferring ownership of the animal to an animal rescue organization, animal shelter or another person who is able to provide adequate care and shelter to the animal.

6. If the owner requests a hearing, it shall proceed in accordance with section 7.30.045.

B. Arrest or hospitalization of owner or possessor.

1. If an animal protection officer determines that an animal is or will be without necessary care due to the owner's or possessor's hospitalization or lawful arrest and detention for charges other than animal cruelty, the officer may take and impound the animal.

2. If an officer impounds an animal from private property pursuant to this section, the officer shall give written notice via United States first class mail to the owner, possessor or the owner or possessor's representative that the animal has been impounded, the reason for the impoundment, the location where the animal will be held and the period of time in which the owner, possessor or representative may reclaim the animal or provide the name of an authorized person to take the animal, which shall be no less than ten days. If neither the owner or possessor nor a representative can be found, the notice shall be affixed in a visible location on the property where the animal was removed.

3. If the owner, possessor or the owner or possessor's representative provides the name of a person who is authorized to care for the animal, the officer shall transfer the animal to such person if the officer determines that the person is able to provide adequate care and shelter to the animal.

4. If the owner, possessor or the owner or possessor's representative requests assistance in locating a person to care for the animal, animal protective services shall provide reasonable assistance in locating another person to take possession of the animal.

5. If the owner, possessor or representative of the owner or possessor does not reclaim the animal or provide the name of a person(s) who is authorized to care for the animal within the time prescribed, or if the authorized person(s) is not able to provide adequate care and shelter to the animal, the animal protection services division:

(a) May allow another person who is able to provide adequate care and shelter to care for the animal temporarily; or

(b) May take possession of the animal.

6. If the owner or possessor of the animal is convicted of the crime for which he or she was lawfully arrested, the city may by appropriate legal action recover the reasonable cost of any care and shelter it furnished to the animal, including without limitation imposing a lien on the animal for the cost of such care and shelter.

(Ord. No. 4115, § 2, 10-21-2025)

7.30.030 Found animal reporting.

Each person who takes custody of any stray animal apparently running at large, shall report the same to Henderson animal protection services immediately after taking custody thereof, but no later than 72 hours after taking custody thereof, furnishing a sufficient and accurate description of the animal to allow for the possible return of the animal to the owner, unless said finder surrenders it to the Henderson animal protection facility or an animal protection officer.
(Ord. No. 4115, § 2, 10-21-2025)

7.30.035 Lost animal reporting.

Each animal owner who has lost an animal that they own shall report the animal lost to animal protection services no later than 24 hours after discovering the animal to be missing. The owner shall furnish a sufficient and accurate description of the animal to allow for the possible return. The owner shall further be responsible for checking publicly available resources, including, but not limited to the city's website for their animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.30.040 Release of household pet or livestock—Basic conditions.

No animal impounded shall be released to any person except under the following conditions:

A. If the animal owner resides in the City of Henderson and if applicable to the animal, the owner must present to an authorized employee of animal protection services, a current City of Henderson pet license per section 7.04.010.

B. There has been paid to the animal protection facility all applicable fees set forth in section 7.04.020 and any medical expenses incurred while under the care of animal protection services.

C. Presentation of proof of a current rabies vaccination, if applicable.

D. If the pet had not been previously implanted with a microchip, the pet shall be implanted with a registered microchip by an authorized employee of animal protection services. Registration of all microchips will be updated with current owner information and the applicable fee paid as set forth in section 7.04.020.

E. Compliance with the requirements of chapter 7.20 pertaining to dangerous animals, where applicable.

F. Compliance with the requirements of chapter 7.10.

G. The owner shall provide proof that the animal they are claiming is their animal by means of a veterinary record, microchip registration, and/or other substantial proof of ownership that is approved by the director or designee.

H. No animal that was impounded for cruelty, neglect, shall be released except pursuant to section 7.30.045.

(Ord. No. 4115, § 2, 10-21-2025)

7.30.045 Hearing regarding animal impounded for cruelty.

A. Upon an owner timely requesting a hearing pursuant to section 7.30.020(A), the Henderson Municipal Court shall set a hearing date within 15 judicial days.

B. For the purpose of conducting a hearing pursuant to this section, the court may consider:

1. Testimony of the peace officer or animal control officer who took possession of or impounded the animal(s) or other witnesses concerning the conditions under which the animal(s) was owned or kept;

2. Testimony and evidence related to veterinary care provided to the animal(s) including, without limitation, the degree or type of care provided to the animal(s);

3. Expert testimony as to the community standards for the reasonable care of a similar animal;

4. Testimony of witnesses concerning the history of treatment of the animal or any other animal owned or possessed by the person;

5. Prior arrests or convictions related to animal cruelty; or

6. Any other evidence which the court determines is relevant.

C. If the court determines by clear and convincing evidence that the person who requested the hearing is the owner of the animal is able and fit to provide adequate care and shelter for the animal, the court shall order the owner or the designee of the owner, to take possession of the animal(s) not later than three business days after the issuance of the order. The order shall not allow the owner to possess animals in excess of the limits described in this title or title 19 of the Henderson Municipal Code, and all other conditions for release of pet under section 7.30.040 apply.

D. If the court determines that there is not clear and convincing evidence that the owner is fit and able to provide adequate care and shelter for the animal, the court shall order the owner to not own or possess the animal and the ownership of the animal to be transferred to the City of Henderson animal protection facility or to an animal rescue organization or

another person who is able to provide adequate care and shelter to the animal. The court may also order the impoundment of any other animals owned or possessed by the person arrested or enjoin the person from owning or possessing any animal.

E. If the court makes a determination pursuant to paragraph D, the city may by appropriate action recover the reasonable cost of any care and shelter furnished to the animal, and the court may order a later and separate hearing to make a determination about such costs.
(Ord. No. 4115, § 2, 10-21-2025)

7.30.050 Release of pet—Rabies suspicion.

If any animal impounded is suspected to have rabies by animal protection services, the animal shall be held for examination by a veterinarian. In the event that a veterinarian confirms such animal is suspected to be afflicted with rabies, it shall be quarantined and/or euthanized in accordance with NAC 441A and the current published rabies compendium. In the event that a veterinarian confirms such animal is not suspected to be afflicted with rabies, it shall be released as provided herein.
(Ord. No. 4115, § 2, 10-21-2025)

7.30.060 Reserved.

Chapter 7.40 WILD AND EXOTIC ANIMALS; REPTILES; NON-DOMESTICATED COMPANION ANIMALS; ANIMAL EXHIBITORS

Sections:

7.40.010 Wild animals and/or urban wildlife—Generally.
7.40.020 Requirements for wild and exotic animals.
7.40.030 Wild and exotic animals—Permit.
7.40.040 Reptiles and amphibians.
7.40.050 Restrictions on keeping roosters.
7.40.060 Animal exhibitor permit—Required.
7.40.070 Feeding urban wildlife and feral animals.
7.40.080 Reserved.

7.40.010 Wild animals and/or urban wildlife—Generally.

These animals are considered to be dangerous animals. Keeping of such animals shall be permitted only to zoos as defined by title 19. Such total confinement facilities are necessary to protect the public health and safety and to assure proper animal welfare.
(Ord. No. 4115, § 2, 10-21-2025)

7.40.020 Requirements for wild and exotic animals.

No person shall possess a wild and exotic animal in the city unless:

A. The person has received approval under title 19 to operate a zoo; and

B. The person has obtained an appropriate wild and exotic animal permit from the director. Any such permit shall also be reviewed by the chief of police or designee; and

C. The person or organization has a valid business license.
(Ord. No. 4115, § 2, 10-21-2025)

7.40.030 Wild and exotic animals—Permit.

A. In addition to the requirements in section 7.40.020, a permit is required to keep a wild and exotic animal. If the permit is denied, animal protection services will provide the applicant with a written notice of the denial and the reasons for it.

1. Permit application. A person requesting a permit to keep a wild and exotic animal shall be required to submit an application not less than 30 days prior to the exhibition containing all of the following items and information:

a. Name, address and telephone number of the applicant;

b. City of Henderson business license number;

c. Name of business or organization;

d. Description of the animal or animals proposed to be kept, including species, sex, age, weight, registered microchip number (if applicable), vaccination record, record of sterilization, and any distinctive markings or identification marks;

e. A list of applicable federal permits required, including a USDA permit, the permit number(s), and the effective dates thereof;

f. Dates and times of the proposed exhibition(s);

g. Address of the property housing the animals;

h. Proof of insurance as required by subsection A.2. of this section;

i. Signature of the person applying for the permit and the date of the application submission;

j. Proof of registration and insurance applicable to the vehicle(s) to be used to transport the animal(s) to and from the property;

k. A written description of the circumstances, if any, that exhibited animals are removed from quarters during the exhibit;

l. A detailed site plan for the zoo and description of the wild and exotic animal quarters;

m. A statement as to the applicant's past experience, education/training, he or she has with the species to be exhibited; and

n. A statement and any necessary supporting documentation to demonstrate full compliance with all federal and state regulations applicable to the operation of a zoo and the housing of wild and exotic animals, including all state and federal permitting requirements. If a permit is issued for wild and exotic animals in contravention of federal and state regulations, such permit is void.

2. Insurance. Each animal to be exhibited at the zoo shall be included on a liability insurance policy of at least $1,000,000.00 to be in effect at all times that the animal to be exhibited is located within the corporate boundaries of the City of Henderson, including the time when the animal is transported to and from the place of the exhibition. The vehicle(s) used to transport the animal to be exhibited must contain cages constructed in such a manner as to ensure public safety and may be inspected by animal protection services.

3. Quarters at exhibit site. The exhibition shall contain quarters for the animal(s) which are adequate to ensure public safety, as well as the health and welfare of the animal(s). A representative from animal protection services may inspect the exhibit site at any time including prior to the initial exhibition.

4. Restrictions. As needed to protect public health and safety and the safety and welfare of the wild and exotic animals, reasonable restrictions may be placed on the permit, in coordination with any conditions on the conditional use permit and development agreement required for a zoo use under title 19.

5. Permit fee. The wild and exotic animal permit fee shall be set by the city council as set forth in section 7.04.020. A wild animal permit shall be valid for the location specified in the applicant's application and renewable annually or upon movement of the zoo to a different location.

6. Transfer of permit. The permit is not transferrable.

7. Denial of permit. A permit may be denied if any of the information and items required in subsection A.1. of this section are not truthfully provided in the application or if any provision of subsection A. of this section is not met. The permit may be denied for any of the following additional reasons:

a. The granting of the permit would violate any other section of title 7 of the Henderson Municipal Code.

b. The proposed wild and exotic animal(s) poses an unreasonable risk of harm to the animals or public.

c. The applicant's past experience, education/training with respect to the species to be kept or operation of a zoo is not superior.

8. Revocation of permit. A permit may be revoked for any reason which could constitute grounds for denying the permit pursuant to subsection A.7. of this section, or for any instance in which significant personal injury or property damage is sustained as a result of the act of any wild and exotic animal kept by the permittee.

9. Wild and exotic animals not permitted for any other reason. Nothing stated in this subsection A., shall be construed as allowing any person to possess or keep any wild and exotic animal within the City of Henderson under any circumstance or any purpose other than operation of a zoo in strict conformance with subsection A. of this section and all applicable provisions of the Henderson Municipal Code.

10. A permit denied or revoked under this section may be appealed pursuant to the procedure set forth in section 7.90.030.

(Ord. No. 4115, § 2, 10-21-2025)

7.40.040 Reptiles and amphibians.

A. Unless otherwise permitted in subsection B., the following reptiles and amphibians are not permitted:

1. Any venomous reptile or amphibian;

2. Any reptile or amphibian over four feet in length, with the exception of constrictors which may not exceed six feet in length; or

3. Any federally protected reptile or amphibian, not including desert tortoises.

B. Ownership permitted.

1. Any non-venomous reptile or amphibian, which at maturity is less than four feet in length from the nose to the cloaca, weighs less than 15 pounds and is kept in an adequate confined space;

2. Constrictors up to six feet in length; or

3. With a valid wild animal or exotic animal/reptile permit as set forth in section 7.40.020 and any and all permits required and issued by the Nevada Department of Wildlife.

(Ord. No. 4115, § 2, 10-21-2025)

7.40.050 Restrictions on keeping roosters.

It is unlawful for any person to keep or cause to be kept, or permit to be kept on premises over which any such person may have control within the city limits any rooster.
(Ord. No. 4115, § 2, 10-21-2025)

7.40.060 Animal exhibitor permit—Required.

Any owner, operator or promoter of any event temporarily housing, selling or exhibiting domesticated animals for entertainment or demonstration shall obtain an animal exhibitor permit through animal protection services. All regulations set forth in section 7.70.030 must be complied with. Businesses possessing a valid animal establishment permit are exempt from this provision.
(Ord. No. 4115, § 2, 10-21-2025)

7.40.070 Feeding urban wildlife and feral animals.

It shall be unlawful for any person to feed or allow to be kept animals that are considered feral or wild that may be potential carriers of the rabies virus. The property owner, caretaker, renter, or lessee shall not place food that would allow any animal not owned by them to feed on such food. No person shall place food for the purpose of feeding wildlife or feral animals

capable of transmitting rabies on the property of another or on public property. Non-profit organizations and their members registered and approved by animal protection services are exempt from this section provided that they are complying with the terms of their approval.
(Ord. No. 4115, § 2, 10-21-2025)

7.40.080 Reserved.

Chapter 7.50 RABIES

Sections:

7.50.010 Quarantine authority generally.
7.50.020 Biting animal—Report.
7.50.030 Biting animal—Confinement.
7.50.035 Biting animal—Home confinement.
7.50.040 Rabies suspect—Confinement and release.
7.50.050 Rabies suspect—Impoundment—Destruction.
7.50.060 Owner to report suspicion of rabies.
7.50.070 Bitten animals.
7.50.080 Animal bite record.

7.50.010 Quarantine authority generally.

The health officer or animal protection officer may, by public notice and proclamation, quarantine any animal in any area of the city where he finds rabies or other disease to exist. During such quarantine period and until public notice of its termination has been given by the health officer or animal protection officer, each animal in that area must be securely confined by its owner. All such designated animals found at large in that area during such period may be impounded, quarantined, or humanely euthanized pursuant to the order of the health officer or otherwise provided by law.
(Ord. No. 4115, § 2, 10-21-2025)

7.50.020 Biting animal—Report.

A. It shall be the duty of anyone with knowledge of a human being having been bitten by any animal susceptible to rabies to promptly report the same to City of Henderson animal protection services within 48 hours of the occurrence. This shall include all hospitals, medical provider, or medical facilities that treat anyone who is the victim of an animal bite. The reporting person or agency shall obtain the victim's full name, address, phone number, and date of birth. They shall also attempt to obtain a complete description of the animal, the animal owner's name, address, and phone number.

B. Any owner of an animal that bites a person shall immediately report the bite to animal protection services and present or provide the biting animal or its whereabouts immediately.

C. It shall be unlawful for any person who is the victim or who has knowledge of a person who is a victim of an animal bite to refuse to disclose the animal owner, description or location.

D. Each day an owner is in violation of this section shall be deemed a separate violation subject to the penalties set forth under section 7.90.010. This shall not exceed a period of ten days.
(Ord. No. 4115, § 2, 10-21-2025)

7.50.030 Biting animal—Confinement.

Any animal species known to be a potential carrier of rabies virus shall be quarantined in accordance with Nevada Administrative Code Chapters 441a and 410 through 445; and the current published version of the rabies compendium.

Unless otherwise authorized pursuant to section 7.50.035, the animal shall be confined, at the owner's expense, separately, in either the animal quarters at the business premises of a veterinarian or in the animal protection facility for a period of ten days of observation. Such animal shall not be released until the vaccination requirements of this title have been satisfied and there has been paid to animal protection services all impound, board, vaccination and other charges and fees required by this title for the release of an impounded animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.50.035 Biting animal—Home confinement.

Home quarantine may be authorized if the biting animal does not have prior bite history, will not potentially be deemed dangerous or vicious, the property is secured adequately to prevent escape, the owner or caretaker is willing to comply with the home quarantine requirements, and no other extenuating circumstances as determined by the animal control officer would prohibit home quarantine. If the animal protection officer determines home quarantine is authorized, it shall be the duty of any person owning, possessing or having the care, custody and control of said animal to confine such animal separately and securely for a period of ten days and to post a quarantine notice in a form and manner prescribed by the animal control officer. In the event the animal develops any illness during such period of time, the owner or person having care, custody, and control of the animal must promptly notify a veterinarian, who shall examine the animal and report to the animal protection officer in the event the animal is deemed to have rabies. In the event the animal is determined to have rabies, it shall be disposed of in accordance with the provisions of this chapter.
(Ord. No. 4115, § 2, 10-21-2025)

7.50.040 Rabies suspect—Confinement and release.

A. Upon the receipt by animal protection services of any animal believed to be afflicted with rabies, which has been bitten by any animal afflicted or suspected of being afflicted with rabies, or which has been exposed to the infection of rabies, animal protection services

shall separately confine such animal and shall immediately notify a veterinarian and the health officer. The veterinarian or health officer shall thereupon make such examination of the animal as may be deemed necessary. If, based upon such examination, it is determined that such animal is afflicted with rabies animal protection services shall be so advised.

B. It shall be the duty of animal protection services to keep such animal suspected of having rabies confined for such time as the veterinarian or health officer may direct, and such animal shall not be redeemed or released except upon authorization by the health officer or veterinarian. Such animal shall not be released before suitable provisions for vaccination and licensing have been made as set forth in this chapter.

C. The cost of all examinations, boarding, care, and vaccinations shall be borne by the owner of said animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.50.050 Rabies suspect—Impoundment—Destruction.

A. It shall be the duty of animal protection services to impound any animal found in or upon any public street, alley or other public place, or in or upon any lot or premises, whether public or private, if such animal is known to have or suspected of having rabies, or known to have been bitten by any animal having or suspected of having rabies. Any such animal shall be brought immediately to animal protection services for examination by the health officer or a veterinarian for determination of whether the animal shall be humanely euthanized or quarantined. If euthanasia of the animal is required, euthanasia shall be accomplished in such manner as to preserve the head intact. Such head shall promptly and without delay be properly removed and packaged for shipment for laboratory analysis prescribed by the health officer.

B. The owner shall be responsible for any and all costs incurred by animal protection services pursuant to this section.
(Ord. No. 4115, § 2, 10-21-2025)

7.50.060 Owner to report suspicion of rabies.

Whenever an owner shall observe or learn that such animal shows symptoms of rabies, or acts in a manner which would lead to a reasonable suspicion that it may have rabies, (s)he shall immediately notify the City of Henderson animal protection services to make an inspection or examination of such animal until it shall be established to the satisfaction of said veterinarian or health officer that such animal has or does not have rabies.
(Ord. No. 4115, § 2, 10-21-2025)

7.50.070 Bitten animals.

Whenever any animal is bitten by another animal suspected of having rabies, the owner of the animal so bitten or the owner of the biting animal shall immediately notify the City of Henderson animal protection services.
(Ord. No. 4115, § 2, 10-21-2025)

7.50.080 Animal bite record.

It shall be the duty of the City of Henderson animal protection services to keep an accurate record of all reports of animal bites, including the place of occurrence, time of report, person making the report, disposition of the case, and such other information as may be required by the animal protection officer or the health officer. Each such case shall be investigated and the animal properly dealt with in accordance with the provisions of this chapter.
(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.60 ANIMAL HANDLER

Sections:

7.60.010 Animal handler permit.
7.60.020 Fee—Inspection—Issuance of an animal handler permit.
7.60.030 Nontransferability.
7.60.040 Renewal.
7.60.045 No new permit after denial or revocation.
7.60.050 Change notice to city.
7.60.060 Compliance responsibility.
7.60.070 Violation—Generally.
7.60.080 Revocation of animal handler permit.

7.60.010 Animal handler permit.

Persons operating or owning a business providing animal training service, pet care services, pet sitting, or any animal related business or service that will not be housing or possessing animals in their care or on their property, rather providing services to clients at an owner's home or property, must, in order to operate or carry on the said business, obtain an animal handler permit and a City of Henderson business license or a combination animal handler permit/license as issued in compliance with title 4.
(Ord. No. 4115, § 2, 10-21-2025)

7.60.020 Fee—Inspection—Issuance of an animal handler permit.

A. When an initial application or renewal for an animal handler permit is made, a fee, as set by the city council, shall be paid to the city for the application review.

B. The application review shall be conducted by the director or designee to determine compliance with this chapter; and if compliance is met, the permit shall be issued and will expire one year from the date the permit application was applied for.

C. An animal handler permit will not be valid without person obtaining and maintaining the necessary business license pursuant to title 4 of the Henderson Municipal Code.

D. If the application review reveals that this chapter or other applicable laws, or regulations have not been complied with, the permit shall be denied, sections 7.04.130 and 7.04.135 shall apply.

E. If an animal handler business does not pass its initial or renewal inspection, a re-inspection is required. Prior to re-inspection a re-inspection fee of $150.00 is required to be paid.
(Ord. No. 4115, § 2, 10-21-2025)

7.60.030 Nontransferability.

An animal handler permit is not transferable.
(Ord. No. 4115, § 2, 10-21-2025)

7.60.040 Renewal.

An animal handler permit shall expire one year after date of issue and shall be renewed annually upon payment of the applicable fee, approved renewal application, and approved inspection by the director or designee.
(Ord. No. 4115, § 2, 10-21-2025)

7.60.045 No new permit after denial or revocation.

If a permit has been revoked or denied, applicable sections 7.04.120, 7.04.125, 7.04.130, 7.04.135, 7.04.140, and 7.04.160 shall apply.
(Ord. No. 4115, § 2, 10-21-2025)

7.60.050 Change notice to city.

An animal handler permit holder shall notify the director or designee, within 30 days, of any change in his/her operation which affects the status of the permit, including any change in name or location of his/her business. Failure to report any changes may result in denial of renewal or revocation of the permit.
(Ord. No. 4115, § 2, 10-21-2025)

7.60.060 Compliance responsibility.

A. A person or persons in immediate charge of any business or service enumerated in section 7.60.010 shall be responsible for complying with this chapter and other applicable ordinances.

B. Any person owning, possessing or having the care, custody or control of an animal, who willfully refuses, fails or neglects to furnish any animal protection officer or license fee collector the required information as provided within this title, or who willfully fails, refuses or neglects to cause said animals to be registered and pay the registration fees at the time and in the manner herein provided, or who willfully fails, refuses or neglects to perform any act or pay any other fee or charge required by this chapter to be performed or paid, or any person who shall willfully resist, interfere with or prevent any animal protection officer in the exercise of his/her duties, or who violates any of the provisions of this chapter, shall be deemed guilty of a misdemeanor, and upon conviction, shall be punished as the law allows.
(Ord. No. 4115, § 2, 10-21-2025)

7.60.070 Violation—Generally.

Each day a person is in violation of any section in this chapter shall be considered a separate violation and subject to the penalties as set forth under section 7.90.010.
(Ord. No. 4115, § 2, 10-21-2025)

7.60.080 Revocation of animal handler permit.

Where any of the following has occurred, animal protection services shall initiate the process to revoke the animal handler permit under section 7.90.010:

1. The permit holder has been the subject of two or more distinct violations of HMC 7.06 or 7.08 in any consecutive 12-month period, or three or more distinct violations of any other provisions of title 7.
2. The permit holder has been convicted of one or more animal cruelty related violations as described in HMC 7 or NRS 574.
3. The permit holder willfully withheld or falsified any information required for a permit.
4. If the permit holder has been convicted of assault, battery, domestic violence, or any similar physical violence related offenses against a person in this state or any other state.
5. The permit holder failed to timely renew their permit.
6. The permit holder sold, transferred, or otherwise changed the ownership of the permitted business as recorded in the records of the Secretary of State of Nevada.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.65 MOBILE ANIMAL BUSINESS

Sections:

7.65.010 Mobile animal business permit.
7.65.020 Fee—Inspection—Issuance of mobile animal business permit.
7.65.030 Nontransferability.
7.65.040 Renewal.
7.65.045 No new permit after revocation or denial.
7.65.050 Change notice to city.
7.65.060 Compliance responsibility.
7.65.065 Mobile animal exhibitor requirements.
7.65.070 Violation—Generally.
7.65.080 Revocation of mobile animal business permit.

7.65.010 Mobile animal business permit.

Person(s) operating or owning a mobile animal trailer or other motor vehicle unit used for the grooming of animals, transport of animals, mobile exercise service, or any other animal related business that would include the operation of a motor vehicle or trailer and have temporary care/custody of an animal in the trailer or motor vehicle, must, in order to operate said business, obtain a mobile animal business permit and a City of Henderson business license or a combination animal handler permit/license as issued in compliance with title 4. (Ord. No. 4115, § 2, 10-21-2025)

7.65.020 Fee—Inspection—Issuance of mobile animal business permit.

A. When an initial application or renewal for a mobile animal business permit is made, a fee, as set by the city council, shall be paid to the city for the application review.

B. The application review shall be conducted by the director or designee to determine compliance with this chapter; and if compliance is met, the permit shall be issued after inspection of all mobile units and will expire one year from the date the permit application was applied for.

C. If the application review reveals that this chapter or other applicable laws, or regulations have not been complied with, the permit shall be denied, sections 7.04.130 and 7.04.135 shall apply.

D. Inspection of all mobile units are required prior to approval of the permit by the director or designee shall include the following:

1. Compliance with Henderson Municipal Code title 5 for waste management and disposal.

2. Compliance with Henderson Municipal Code title 19 for accessory uses.

3. Compliance with all applicable chapters of this title to include but not limited to air conditioning/heating inside units, hot and cold running water (if required for service), proper drainage and waste storage, sanitation and cleanliness to prevent spread of disease, safety and security of housing household pets.

E. A mobile animal business permit will not be valid without person obtaining and maintaining the necessary business license pursuant to title 4 of the Henderson Municipal Code.

F. If a mobile animal business does not pass its initial or renewal inspection, a re-inspection is required. Prior to re-inspection, a re-inspection fee of $150.00 is required to be paid.
(Ord. No. 4115, § 2, 10-21-2025)

7.65.030 Nontransferability.

A mobile animal business permit is not transferable. Any person employed by a mobile animal business, who will care for and/or transport animal(s) without the permit holder present, must obtain an animal handler permit.
(Ord. No. 4115, § 2, 10-21-2025)

7.65.040 Renewal.

An approved mobile animal business permit shall expire one year after the date the permit fees were paid and application was submitted and shall be renewed annually upon payment of the applicable fee, approved renewal application, and approved inspection by the director or designee.
(Ord. No. 4115, § 2, 10-21-2025)

7.65.045 No new permit after revocation or denial.

If a permit has been revoked or denied, applicable sections 7.04.120, 7.04.125, 7.04.130, 7.04.135, and 7.04.160 shall apply.
(Ord. No. 4115, § 2, 10-21-2025)

7.65.050 Change notice to city.

A mobile animal business permit holder shall notify the director, or designee, within 30 days, of any change in their operation which affects the status of the permit, including any

change in name or location of their business. Failure to report any changes may result in denial of renewal or revocation of the permit. A change in ownership requires a new permit, including fee, and completion of all requirements found in this chapter.
(Ord. No. 4115, § 2, 10-21-2025)

7.65.060 Compliance responsibility.

A. A person or persons in immediate charge of any business or service enumerated in chapter 7.65 shall be responsible for complying with this chapter and other applicable ordinances.

B. Any person owning, possessing or having the care, custody or control of an animal, who willfully refuses, fails or neglects to furnish any animal protection officer or license fee collector the required information as provided within this title, or who willfully fails, refuses or neglects to cause said animals to be registered and pay the registration fees at the time and in the manner herein provided, or who willfully fails, refuses or neglects to perform any act or pay any other fee or charge required by this chapter to be performed or paid, or any person who shall willfully resist, interfere with or prevent any animal protection officer in the exercise of his/her duties, or who violates any of the provisions of this chapter, shall be deemed guilty of a misdemeanor, and upon conviction, shall be punished as the law allows.
(Ord. No. 4115, § 2, 10-21-2025)

7.65.065 Mobile animal exhibitor requirements.

A. Pursuant to NRS 574.053 all mobile animal exhibitor or any mobile animal business is required to post, at the location in which the mobile petting zoo is selling access to live animal(s), a sign that is at least 8½ by 11 inches in size and which contains the following notice in bold type:

IF YOU KNOW OR HAVE REASON TO BELIEVE THAT AN ANIMAL IS IN DANGER OR HAS BEEN SUBJECTED TO AN ACT OF CRUELTY IN VIOLATION OF NRS 574.100, YOU MAY CONTACT [telephone number for the Henderson Animal Protection Facility].
(Ord. No. 4115, § 2, 10-21-2025)

7.65.070 Violation—Generally.

Each day a person is in violation of any section in this chapter shall be considered a separate violation and subject to the penalties as set forth under section 7.90.010.
(Ord. No. 4115, § 2, 10-21-2025)

7.65.080 Revocation of mobile animal business permit.

Where any of the following has occurred, animal protection services shall initiate the process to revoke the animal handler permit under section 7.90.010.B.4:

1. The permit holder has been the subject of two or more distinct violations of HMC 7.06 or 7.08 in any consecutive 12-month period, or three or more distinct violations of any other provisions of title 7.
2. The permit holder has been convicted of one or more animal cruelty related violations as described in HMC 7 or NRS 574.
3. The permit holder willfully withheld or falsified any information required for a permit.
4. If the permit holder has been convicted of assault, battery, domestic violence, or any similar physical violence related offenses against a person in this state or any other state.
5. The permit holder failed to timely renew their permit.
6. The permit holder sold, transferred, or otherwise changed the ownership of the permitted business as recorded in the records of the Secretary of State of Nevada.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.70 ANIMAL ESTABLISHMENT

Sections:

7.70.010 Permit required.
7.70.020 Fee—Inspection—Issuance of.
7.70.030 Conditions relating to animal facilities.
7.70.040 Reserved.
7.70.050 No new permit after denial or revocation.
7.70.060 Non-transferability—Posting.
7.70.070 Standards for animal facilities—Generally.
7.70.080 Animal housing enclosures—Cage construction and size.
7.70.090 Veterinary care.
7.70.100 Sanitation procedures.
7.70.110 Minimum requirements for dogs, runs, run-out pens for greyhounds.
7.70.120 Minimum requirements for cats.
7.70.130 Minimum requirements for small rodents.
7.70.140 Minimum requirements for rabbits and rodents of similar size.
7.70.150 Classification, separation and identification.
7.70.160 Capacity of cage or run.
7.70.170 Outdoor shelter—Sun and elements.
7.70.180 Sales of dogs and cats.
7.70.190 Immunization and medical history.
7.70.200 Penalty for violation.
7.70.210 Revocation of animal establishment permit.

7.70.010 Permit required.

A. No person shall conduct, operate or keep any animal establishment without first obtaining an appropriate animal establishment permit from the director or designee and a City of Henderson business license or a combination animal establishment permit/license as issued in compliance with title 4. The semi-annual permit fee for the above animal facilities shall be as established in the fee schedule by the city council.

B. The city protection facility and licensed veterinary clinics shall be exempt from this section.

C. No permit shall be issued unless all zoning, planning and building ordinances and regulations are complied with or until conditions imposed by the council pursuant to title 19 are met.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.020 Fee—Inspection—Issuance of.

A. An application for a permit to operate and keep any animal establishment shall be in writing on a form approved by the director or designee and submitted every six months. The fee shall be paid to the City of Henderson for the application review. The applicant shall furnish a list of the types of animals to be maintained or used for any purpose together with the approximate number of animals of each type.

B. The City of Henderson through its city council may establish standards relating to:

1. The maximum number and species of animals to be kept or maintained on the premises;

2. The construction, sanitation and maintenance of facilities; and

3. Any other regulations and standards in conformity with and for the purpose of carrying out the intent of this chapter.

C. Compliance with such rules and regulations shall be prerequisite to the issuance and continued validity of any permit provided pursuant to this chapter.

D. Permittee shall maintain a record of the names, addresses, contact telephone numbers, and breeder's permit number of persons from whom animals are received and the names, addresses, to whom animals are sold, traded or given. This shall be available to the Henderson animal protection services upon request.

E. The application review shall be conducted by the director or designee to determine compliance with this chapter; and if compliance is met, the permit shall be issued after inspection of all mobile units and will expire one year from the date the permit application was applied for.

F. If an animal establishment business does not pass its initial or renewal inspection, re-inspection is required. Prior to re-inspection a re-inspection fee of $150.00 is required to be paid.
(Ord. No. 4115, § 2, 10-21-2025)

7.70.030 Conditions relating to animal facilities.

Every person who owns, conducts, manages or operates any animal establishment shall comply with each of the following conditions:

A. *Housing.*

1. Housing facilities for animals shall be structurally sound and shall be maintained in good repair to protect animals from injury and restrict entrance of other animals or the escape of animals so contained therein.

2. Every building or enclosure wherein animals are maintained shall be properly ventilated to prevent drafts and to remove odors; heating and cooling shall be provided as required, according to the physical needs of the animals, with sufficient light to allow observation of the animals.

3. All animal rooms, cages, kennels, runs, stalls, and corrals shall be of sufficient size to provide adequate and proper accommodation and protection from the weather for the animals kept therein.

4. All animal facilities shall be constructed and operated in a manner that reasonably protects public health and safety and the safety of the animals.

B. *Sanitation.* All animal facilities shall be maintained and operated at all times in a clean and sanitary condition and in a manner that avoids causing odors or attraction of insects and vermin and excessive noise.

C. *Care of animals.*

1. All animals shall be supplied with a quantity of wholesome food suitable for the species and age of the respective animals, as often as the feeding habits of such animals require, sufficient to maintain a reasonable level of nutrition. All animals shall have available to them sufficient potable water. Food and water shall be served in separate, clean receptacles.

2. No animal, except those animal(s) in a pasture provided with adequate feed and water, shall be without attention for more than 24 consecutive hours. The name, address and telephone number of a person responsible for the animal shall be posted in a conspicuous place, visible from outside the facility or at the main gate of a pasture where animals are kept, unless the owner or attendant of the animal(s) is immediately available on the premises.

3. All sick, diseased or injured animals shall be isolated from healthy animals at all times and shall be given proper medical treatment. Any enforcement officer of the city of Henderson may order the operator of the facility to immediately seek licensed veterinarian treatment for any animal.

4. All animals shall be treated in a humane manner.

5. All animal establishments shall have a licensed animal handler (pursuant to HMC chapter 7.60) onsite at the animal establishment, during regular business hours, to ensure the proper care of the animals at the animal establishment. The owner of an animal establishment, who was screened at the time of the issuance of an animal establishment permit application, shall count towards this requirement.

D. *Compliance.*

1. Any licensing department inspector, animal protection officer, or other authorized representative of the city shall have the authority to enter the animal facility, except by means of force and with the consent of the owner or occupant of the premises, and at a reasonable time, to determine compliance with this title, provided advance notice is given to the permittee by the city at least one day prior to the inspection, when he has reason to believe that the provisions of the permit or applicable state law or the rules and regulations of the city are being violated. The failure of the operator to consent to the entry shall be deemed just cause for the revocation of the permit.

2. Failure of an applicant or a permit holder to comply with any of the provisions of the permit, this chapter, applicable state law or the appurtenant rules and regulations shall be deemed just cause for the denial of any new permit application or renewal application, or for revocation of a permit.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.040 Reserved.

7.70.050 No new permit after denial or revocation.

If a permit has been denied or revoked, the director or designee shall not accept a new permit application from the same person for the same activity at the same location less than 12 months after such denial or revocation, unless the applicant shows, and animal protection services finds, by inspection and/or investigation, that the grounds upon which the first application was denied or the permit revoked no longer exist.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.060 Non-transferability—Posting.

Animal establishment permits are not transferable. A current permit shall be posted in a conspicuous place in every animal establishment.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.070 Standards for animal facilities—Generally.

A. *Housing.* Facilities shall be constructed of nontoxic materials and of a structurally sound design and maintained in good repair to prevent injury to animals, to contain the animals and to restrict the entrance of other animals. Interior floors shall be constructed to allow easy cleaning and be impervious to animal wastes. The housing facility shall be kept in good order and repair and be kept clean and sanitary at all times.

B. *Water and electrical power.* Reliable and adequate electric power and potable hot and cold running water shall be available.

C. *Isolation.* Facilities for isolating animals under quarantine or treatment for disease shall be in a room that is separated from healthy animals.

D. *Storage.* Facilities shall be provided for the storage of food and bedding in covered containers and protected against infestation or contamination by vermin or any mammalian or avian species. Refrigeration shall be provided for perishable items normally requiring refrigeration.

E. *Waste disposal.* Provisions shall be made for the proper removal and disposal of food waste, excreta, bedding, dead animals and debris. Disposal facilities shall be so constructed and operated as to eliminate vermin infestation, offensive odors and disease hazards.

F. *Washrooms and sinks.* Facilities such as washrooms, basins, sinks, showers, shall be provided to maintain cleanliness of personnel and for cleaning and sanitizing equipment and premises.

G. *Heating.* Facilities shall be adequately heated when necessary to protect the animals from cold and to provide for their health and comfort. The ambient temperature shall not be allowed to fall below 50 degrees Fahrenheit for animals not acclimated to lower temperatures.

H. *Ventilation.* Facilities shall be adequately ventilated to provide for the health and comfort of the animals at all times. All rooms shall be provided with fresh air either by means of windows, doors, vents, coolers or air conditioning. Auxiliary ventilation, such as exhaust fans, vents, coolers, or air conditioning shall be provided when the ambient temperature is 85 degrees Fahrenheit or higher. They shall be ventilated so as to minimize drafts, offensive odors and moisture condensation.

I. *Interior surfaces.* The interior building surfaces shall be constructed and maintained so that they are impervious to moisture and may be readily sanitized.

J. *Drainage.* A suitable method shall be provided to rapidly eliminate water from the area of the building within which the animal is kept. If drains are used, they shall be properly constructed and kept in good repair to avoid clogging and foul odors therefrom. If closed drainage systems are used, they shall be equipped with traps and so installed as to prevent any backup of sewage onto the floor of the room.

K. *Lighting.* The area of the building within which the animal is kept shall have ample light by natural or artificial means or both. Such lighting shall provide uniformly distributed illumination of sufficient light intensity to permit routine inspection of animals and facilities and the cleaning of the same.

These standards are not meant to supersede or in any way interfere with other city or county ordinances dealing with building standards, zoning or animal control. Information on regulations of the building codes, zoning ordinances and animal control regulations should be consulted and complied with, before applying for permits.
(Ord. No. 4115, § 2, 10-21-2025)

7.70.080 Animal housing enclosures—Cage construction and size.

A. Enclosures shall be constructed so as to enable the animals to remain dry and clean. Containers for food and water shall be cleaned and sanitized daily.

B. Provisions shall be made for convenient access to clean food and water.

C. Floors and enclosures shall be constructed to prevent injuries to the animals. Wire or mesh floors which permit the feet of the animals to pass through shall not be used.

D. An animal shall not be housed in a cage unless the interior height of such cage is six inches or more in excess of the height of the animal as measured from the floor to the apex of its shoulders while in a standing position, and the width and depth are six inches or more in excess of the length of the animal as measured from the end of its nose to the base of its tail.

E. The height, length, or width of all cages shall, notwithstanding the minimum specifications set out in this chapter, be large enough so that the animal may sit, stand, lie down, or turn in a normal, comfortable manner or position. Animals shall not be placed in cages over other animals unless each cage is fitted with a floor of material which prevents animal excretion from entering the lower cages.

F. Cages shall be constructed of fiberglass, metal, wood or wire or any combination thereof which is impervious to animal waste and can be kept sanitary.

G. Size of cages, floor space, shall be no less than as follows: an operator shall ensure that a primary enclosure in which each mammal that is at least six weeks old is kept has a minimum amount of floor space which is calculated by finding the mathematical square of the sum of six inches plus the length of the animal measured from the tip of its nose to the base of its tail, and dividing that amount by 144, to arrive at the minimum amount of square footage required for the floor space per animal.
(Ord. No. 4115, § 2, 10-21-2025)

7.70.090 Veterinary care.

A. Written programs of disease control and prevention, euthanasia, deceased animal disposal and adequate veterinary care shall be established and maintained under the supervision and assistance of a doctor of veterinary medicine.

B. Each animal kept or temporarily located at an animal establishment facility shall be observed daily by the animal caretaker in charge. Sick or diseased, injured, lame or otherwise disabled animals shall be provided with proper veterinary care immediately.
(Ord. No. 4115, § 2, 10-21-2025)

7.70.100 Sanitation procedures.

A. *Cage construction.*

1. Easily washed down and sanitized.

2. Constructed of impervious material.

3. Prevents litter from spilling outside of cage.

4. Prevents contact with humans to minimize injuries and passage of disease.

B. *Cleaning schedules.*

1. Excreta shall be removed from animal enclosures at least once daily.

2. Prior to introduction of animals into empty enclosures previously occupied, the rooms, pens, and cages shall be properly sanitized by using first soap or detergent then following with a safe and effective disinfectant.

3. Premises shall be kept clean and in good repair.

4. An effective program for control of insects, ectoparasites and avian and mammalian pests, shall be established and maintained.
(Ord. No. 4115, § 2, 10-21-2025)

7.70.110 Minimum requirements for dogs, runs, run-out pens for greyhounds.

A. If dogs are housed in rooms, pens or runs, a minimum of eight square feet of floor space shall be provided for each dog measuring two feet or less in length; a minimum of 12 square feet of floor space for each dog measuring more than two feet in length.

B. In addition, kennels wherein greyhounds are kept must have a run-out pen that provides at least 30 square feet of area for each greyhound.

Such run-out pens and any open exercise areas must be enclosed with fences at least six feet high. Every gate to these pens and areas must be equipped with a lock.

C. Runs shall be of construction hardened cement with one-fourth inch per foot drop to gutter outside wire. Solid partitions at least three feet high shall be provided between runs, chain-link construction shall be provided for all areas above the solid partitions with tops covering runs. A flushing system shall be available to all runs.

D. Size of runs shall be as follows, or its equivalent in square feet:

Dog Size	*Width (feet)*	*Height (feet)*	*Length (feet)*
Small dog	2	6	4
Medium or large dog	3	6	6
Extra large dog	3	6	8

(Ord. No. 4115, § 2, 10-21-2025)

7.70.120 Minimum requirements for cats.

A. Housing areas for cats shall:

1. Have sufficient clean litter to contain excreta.

2. Have enclosures constructed and maintained so as to provide sufficient space for the animal to make normal postural adjustments with adequate freedom of movements. Interior height of cages shall be at least two feet and a minimum of three square feet of floor space shall be provided for each adult cat. No more than two adult cats shall be housed in any cage. If cats are housed in pens or runs, a minimum of three square feet shall be provided for each cat. The maximum cats housed in a pen shall not exceed 12.

B. All commercial catteries shall be maintained within a completely enclosed building.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.130 Minimum requirements for small rodents.

Housing areas for small rodents shall be in compliance with the following minimum requirements:

A. The interior height of any rodent enclosure shall be at least ten inches.

B. Each nursing animal shall be kept separate in an enclosure of at least 225 square inches.

C. No more than 12 animals shall be kept in any one cage or enclosure and at least 20 square inches shall be provided for each animal.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.140 Minimum requirements for rabbits and rodents of similar size.

A. The floor space of an enclosure used to house a nursing female together with her litter shall be at least six square feet exclusive of space taken up by feed and water receptacles.

B. At least one square foot of floor space shall be provided for each animal and not more than five animals shall be kept in one enclosure.
(Ord. No. 4115, § 2, 10-21-2025)

7.70.150 Classification, separation and identification.

A. Animals housed together shall be in species compatible groups. Unaltered dogs and cats over the age of four months shall be segregated by sex.

B. Any animal exhibiting vicious or aggressive disposition shall be caged individually. Quarantined animals shall be caged separately and securely.

C. Each animal facility operator, or someone in attendance at the facility, shall be able to identify each animal, except that it shall be sufficient for infant animals to be identified as to litter.

D. The name, address and telephone number of a responsible person shall be posted in a conspicuous place, visible from outside the facility.

E. A "small dog" is 12 inches or less at the withers and not exceeding 20 pounds.

F. A "medium dog" is over 12 inches and up to 20 inches at the withers and not exceeding 50 pounds.

G. A "large dog" is over 20 inches and up to 26 inches at the withers and not exceeding 75 pounds.

H. An "extra-large dog" is over 26 inches at the withers and over 75 pounds.
(Ord. No. 4115, § 2, 10-21-2025)

7.70.160 Capacity of cage or run.

Animals maintained in cages or runs for period exceeding 24 hours shall be provided with adequate space to prevent overcrowding and to maintain normal exercise according to species. The minimum cage and run requirements for specific animals shall be as follows:

A. *Cages.*

1. One adult animal per cage; or

2. No more than two animals per cage providing the minimum amount of space is provided as outlined in section 7.70.140.

B. *Runs.*

1. No more than two dogs of the appropriate size per run; or

2. If the run is larger than the minimum run size designated in section 7.70.140, the following restrictions shall apply:

a. Small dog run, four square feet per dog.

b. Medium or large dog run, nine square feet per dog.

c. Extra-large dog run, 12 square feet per dog.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.170 Outdoor shelter—Sun and elements.

A. Sufficient shelter shall be provided to allow all animals kept outdoors to protect themselves from the direct rays of the sun.

B. Animals kept outdoors shall be provided with adequate shelter from wind, rain, hail or snow.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.180 Sales of dogs and cats.

No dogs or cats under eight weeks of age shall be sold or given away.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.190 Immunization and medical history.

A. All dogs and cats over eight weeks of age shall be immunized against common disease.

B. Medical and health condition of the animals and a medical treatment and immunization history shall be provided to the purchaser.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.200 Penalty for violation.

In addition to possible administrative enforcement or revocation of permit or license, any person, whether acting as principal, agent, employee or otherwise, convicted of violating any section in this chapter, is guilty of a misdemeanor for each day of the violation; and upon conviction thereof, shall be subject to a fine not to exceed the sum of $1,000.00 or imprisonment in the city jail for a period not to exceed six months, or both such fine and imprisonment for each such violation. Other than permit revocation, no person may be assessed both administrative penalties and criminal penalties for the same violation.

(Ord. No. 4115, § 2, 10-21-2025)

7.70.210 Revocation of animal establishment permit.

Where any of the following has occurred, animal protection services shall initiate the process to revoke the animal establishment permit under section 7.90.010.B.4:

1. The permit holder has been the subject of two or more distinct violations of HMC 7.06 or 7.08 in any consecutive 12-month period, or three or more distinct violations of any other provisions of title 7.
2. The permit holder has been convicted of one or more animal cruelty related violations as described in HMC 7 or NRS 574.
3. The permit holder willfully withheld or falsified any information required for a permit.
4. The permit holder has been convicted of assault, battery, domestic violence, or any similar physical violence related offenses against a person in this state or any other state.
5. The permit holder failed to timely renew their permit.
6. The permit holder sold, transferred, or otherwise changed the ownership of the permitted business as recorded in the records of the Secretary of State of Nevada.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.75 COMMERCIAL ANIMAL ESTABLISHMENT

Sections:

7.75.010 Commercial animal establishment—Generally.
7.75.020 No new commercial animal establishment permits to be issued after effective date.
7.75.030 Permit required; fee—inspection—issuance of.
7.75.040 Conditions relating to commercial animal establishment facilities.
7.75.050 Fair consumer information.
7.75.060 No new permit after denial or revocation.
7.75.070 Non-transferability—Posting.
7.75.080 Penalty for violation.
7.75.085 Revocation of commercial animal establishment permit.

7.75.010 Commercial animal establishment—Generally.

A. A commercial animal establishment means any for-profit business enterprise, including, but is not limited to all dealers, retailers, pet stores, sole proprietorships, and entities in any form that for the purposes of resale or retail, display, sell, deliver, offer for sale, barter, auction, or otherwise transfer or dispose of dogs, cats and/or rabbits in the city.

B. This section shall not apply to a breeder who holds a permit pursuant to HMC 7.04.090 and is in full compliance with all applicable permit requirements.
(Ord. No. 4115, § 2, 10-21-2025)

7.75.020 No new commercial animal establishment permits to be issued after effective date.

A. A commercial animal establishment permit will not be issued to an animal establishment that does not have an existing animal establishment permit before the effective date of the ordinance from which this section derives for the purposes of resale or retail, display, sell, deliver, offer for sale, barter, auction, or otherwise transfer or dispose of dogs, cats, and/or rabbits in the city, pursuant to section 7.75.030.

B. Any commercial animal establishment permit that abandons, sells its business, transfers ownership, changes the primary ownership of the business, or has its commercial animal establishment permit and/or business license revoked shall not be eligible to renew or reactivate its commercial animal establishment permit.

C. Any existing commercial animal establishment permit holder may move its location provided that notice is given to animal protection services at least 30 days prior to the move and the new location meets all zoning, planning and building ordinance and regulations, or until any condition imposed by the council pursuant to title 19 are met.

1. The commercial animal establishment cannot operate more than one location at any given time.

2. A commercial animal establishment may not move to a location with more square footage than the existing location.

(Ord. No. 4115, § 2, 10-21-2025)

7.75.030 Permit required; fee—inspection—issuance of.

A. A commercial animal establishment that, for the purposes of resale or retail, displayed, sold, delivered, offered for sale, bartered, auctioned, or otherwise transferred or disposed of dogs, cats, and/or rabbits in the city as of the effective date of the ordinance codified in this section, and whose operations complied with all applicable provisions of the Henderson Municipal Code, may continue to display, sell, deliver, offer for sale, barter, auction, or otherwise transfer or dispose of dogs, cats and/or rabbits as long as it remains in compliance with all such provisions and timely applies for renewals of all applicable permits, licenses, and other requirements of the Henderson Municipal Code.

B. An application for a permit to operate and keep any commercial animal establishment shall be in writing on a form approved by the director and submitted every six months. The fee shall be paid to the city for the application review. The applicant shall furnish a list of the types of animals to be maintained or used for any purpose together with the approximate number of animals of each type. The application review shall be conducted by the director or designee to determine compliance with this chapter; and if compliance is met, the permit shall be issued after inspection.

C. The city animal shelter and licensed veterinary clinics shall be exempt from this section.

D. No permit shall be issued unless all zoning, planning and building ordinances and regulations are complied with or until conditions imposed by the council pursuant to title 19 are met.

E. The city through its city council may establish standards relating to:

1. The maximum number and species of animals to be kept or maintained on the premises;

2. The construction, sanitation and maintenance of facilities; and

3. Any other regulations and standards in conformity with and for the purpose of carrying out the intent of this chapter.

F. Compliance with such rules and regulations shall be prerequisite to the issuance and continued validity of any permit provided pursuant to this chapter.

G. The permit holder shall, at all times, maintain a City of Henderson business license in compliance with title 4.

H. If a commercial animal establishment business does not pass its initial or renewal inspection, re-inspection is required. Prior to re-inspection a re-inspection fee of $150.00 is required to be paid.
(Ord. No. 4115, § 2, 10-21-2025)

7.75.040 Conditions relating to commercial animal establishment facilities.

A. Every person who owns, conducts, manages or operates any commercial animal establishment shall comply with all of sections of chapter 7.70, animal establishment, and chapter 7.80, retailers and dealers in addition to other applicable title 7 sections of Henderson Municipal Code and Nevada Revised Statutes.

B. A commercial animal establishment may provide space to a publicly operated animal control agency, nonprofit humane society, or nonprofit animal rescue organization to offer the public dogs, cats and/or rabbits for adoption; provided that the commercial establishment shall not have any ownership interest in the animals offered and shall not receive any fee for providing space or for the adoption of any of the animals.

C. Nothing in this section shall prohibit a commercial animal establishment or its owner, operator or employees from providing appropriate care for animals owned by a publicly operated animal control agency, nonprofit humane society, or nonprofit animal rescue organization at the commercial animal establishment for the purpose of adopting those animals to the public.

D. Disease control program.

A commercial animal establishment shall, with the approval of a veterinarian, establish and maintain a program to control disease and care for the health of animals. In the case of a retail pet store, the program must be in writing. As part of any such program, an operator shall ensure that:

(A) Each animal is observed daily by the person directly responsible for its care, or by someone else under that person's direct supervision.

(B) Blind, lame, injured, ill or diseased animals are provided with the appropriate veterinary care that is consistent with the purposes for which an animal is being kept or humanely euthanized.

(C) Any animals under quarantine or being treated for a communicable disease are kept separate from other animals. Additionally, retailers must ensure that animals under quarantine or being treated for a communicable disease are kept in a fully-enclosed room dedicated solely for that purpose. The room must:

1. Have its own entry/exit door;

2. Have its own ventilation system separate from that of the remaining operation; and

3. Be equipped with a sink and all necessary supplies to treat recovering animals, so as to reduce cross-contamination.

(Ord. No. 4115, § 2, 10-21-2025)

7.75.050 Fair consumer information.

A. Commercial animal establishment shall post in a prominent location, in at least 12-point font, on the enclosure of each dog, cat and rabbit offered for sale the following information about the dog, cat and rabbit:

1. The dog, cat, or rabbit breeder's full name, kennel name (if applicable), city and state, and any applicable United States Department of Agriculture and state license numbers. If the breeder is not United States Department of Agriculture licensed, the posting shall state the local or applicable breeder permit number; and

2. The price of the dog, cat, or rabbit including any fees and sales tax.

(Ord. No. 4115, § 2, 10-21-2025)

7.75.060 No new permit after denial or revocation.

If a permit has been denied or revoked, the director or designee shall not accept a new permit application from the same permit applicant or any person listed as a co-owner of the existing permit, for the same activity at the same location after such denial or revocation.
(Ord. No. 4115, § 2, 10-21-2025)

7.75.070 Non-transferability—Posting.

Commercial animal establishment permits are not transferable. A current permit shall be posted in a conspicuous place in every commercial animal establishment.
(Ord. No. 4115, § 2, 10-21-2025)

7.75.080 Penalty for violation.

In addition to possible administrative enforcement or revocation of permit or license, any person, whether acting as principal, agent, employee or otherwise, convicted of violating any section in this chapter, is guilty of a misdemeanor for each day of the violation; and upon conviction thereof, shall be subject to a fine not to exceed the sum of $1,000.00 or imprisonment in the city jail for a period not to exceed six months, or both such fine and imprisonment for each such violation. Other than permit revocation, no person may be assessed both administrative and criminal penalties for the same violation.
(Ord. No. 4115, § 2, 10-21-2025)

7.75.085 Revocation of commercial animal establishment permit.

Where any of the following has occurred, animal protection services shall initiate the process to revoke the commercial animal establishment permit under section 7.90.010.B.4:

1. The permit holder has been the subject of two or more distinct violations of HMC 7.06 or 7.08 in any consecutive 12-month period, or three or more distinct violations of any other provisions of title 7.
2. The permit holder has been convicted of one or more animal cruelty related violations as described in HMC 7 or NRS 574.
3. The permit holder willfully withheld or falsified any information required for a permit.
4. The permit holder has been convicted of assault, battery, domestic violence, or any similar physical violence related offenses against a person in this state or any other state.
5. The permit holder failed to timely renew their permit.
6. The permit holder sold, transferred, or otherwise changed the ownership of the permitted business as recorded in the records of the Secretary of State of Nevada.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.80 RETAILERS AND DEALERS

Sections:

7.80.010 Notice of availability of information concerning an animal.
7.80.020 Provision of written statement for a dog or cat; content.
7.80.030 Sale of dogs and cats—Microchipping.
7.80.040 Refund and warranty.

7.80.010 Notice of availability of information concerning an animal.

A retailer or dealer shall conspicuously post within close proximity to the primary enclosure of an animal offered for sale the following notice printed in at least 48-point type upon paper that is at least 11 inches wide and 17 inches long:

NEVADA LAW REQUIRES THAT INFORMATION CONCERNING THE DATE OF BIRTH, SOURCE, LINEAGE AND MEDICAL HISTORY OF THESE DOGS (OR CATS) BE PROVIDED TO THE PURCHASER BEFORE THE COMPLETION OF ANY SALE.

(Ord. No. 4115, § 2, 10-21-2025)

7.80.020 Provision of written statement for a dog or cat; content.

Every pet dealer shall deliver to the purchaser of each dog and cat at the time of sale a written statement in a standardized form prescribed by the department of consumer affairs containing the following information and every pet shop shall keep such information on file for each animal at the store and keep on file for a period of not less than six months the following information:

A. For cats:

1. The breeders and/or broker's name, address and phone number, if known, or if not known, the source of the cat. If the person from whom the cat was obtained is a dealer licensed by the United States Department of Agriculture, the person's name, address, phone number and federal dealer identification number and/or any local valley, city or county wide fancier permit number.

2. The date of the cat's birth, unless unknown because of the source of the cat and the date the dealer received the cat.

3. A record of the immunizations and worming treatments administered, if any, to the cat as of the time of sale, including the dates of administration and the type of vaccine or worming treatment.

4. A record of any known disease or sickness that the cat is afflicted with at the time of sale. In addition, this information shall also be orally disclosed to the purchaser.

B. For dogs:

1. The breeder's name and address and phone number, if known, or if not known, the source of the dog. If the person from whom the dog was obtained is a dealer licensed by the United States Department of Agriculture, the person's name, address, phone number, and federal dealer identification number, and/or any local valley, city or county wide breeder permit number.

2. The date of the dog's birth and the date the dealer received the dog. If the dog is not advertised or sold as purebred, registered, or registerable, the date of birth may be approximated if not known by the seller.

3. The breed, sex, color, and identifying marks at the time of sale, if any. If the dog is from a United States Department of Agriculture licensed source, the individual identifying tag, tattoo, or collar number for that animal. If the breed is unknown or mixed, the record shall so indicate.

4. If the dog is being sold as being capable of registration, the names and registration numbers of the sire and dam, and the litter number, if known.

5. A record of inoculations and worming treatments administered, if any, to the dog as of the time of sale, including dates of administration and the type of vaccine or worming treatment.

6. A record of any veterinarian treatment or medication received by the dog while in the possession of the pet dealer and either of the following:

a. A statement, signed by the pet dealer at the time of sale, containing all of the following:

(i) The dog has no known disease or illness.

(ii) The dog has no known congenital or hereditary condition that adversely affects the health of the dog at the time of the sale or that is likely to adversely affect the health of the dog in the future.

b. A record of any known disease, illness, and any congenital or hereditary condition that adversely affects the health of the dog at the time of sale, or is likely to adversely affect the health of the dog in the future, along with a statement signed by a veterinarian licensed in the State of Nevada that authorizes the sale of the dog, recommends necessary treatment, if any, and verifies that the disease, illness, or condition does not require hospitalization or non-elective surgical procedures, nor is it likely to require hospitalization or non-elective surgical procedures in the future. A

veterinarian statement is not required for intestinal or external parasites unless their presence makes the dog clinically ill or is likely to make the dog clinically ill. The statement shall be valid for seven days following examination of the dog by the veterinarian.

C. For the purpose of this article, "non-elective surgical procedure" means a surgical procedure that is necessary to preserve or restore the health of the dog, to prevent the dog from experiencing pain or discomfort, or to correct a condition that would interfere with the dog's ability to walk, run, jump, or otherwise function in a normal manner.

D. For the purposes of this article, "clinically ill" means an illness that is apparent to a veterinarian based on observation, examination, or testing of the dog, or upon a review of the medical records relating to the dog.

E. A disclosure made pursuant to subsection B.6.b. shall be signed by both the pet dealer certifying the accuracy of the statement, and the purchaser of the dog acknowledging receipt of the statement. In addition, all medical information required to be disclosed pursuant to subsection B.6.b. shall be made orally to the purchaser.

F. For purposes of this article, a disease, illness, or congenital or hereditary condition that adversely affects the health of a dog at the time of sale or is likely to adversely affect the health of the dog in the future shall be one that is apparent at the time of sale or that should have been known by the pet dealer from the history of veterinary treatment disclosed pursuant to this section.

(Ord. No. 4115, § 2, 10-21-2025)

7.80.030 Sale of dogs and cats—Microchipping.

All dogs and cats sold must be microchipped and registered to the new owner.

(Ord. No. 4115, § 2, 10-21-2025)

7.80.040 Refund and warranty.

In addition to and independent of the requirements of NRS 574.490, a pet store must provide, in connection with the sale of each dog under the age of 12 months, the following:

A. A warranty that, at a minimum:

1. Covers any such dog for bacterial or viral infections for the period of 14 days following purchase;

2. Covers any such dog for one year regarding congenital defects; and

3. Sets forth the available remedies, prerequisites and procedures pertaining to the warranty in each particular case.

B. An offer to the purchaser to provide at least 30 days of free pet health insurance regarding the dog.

C. No pet shop shall sell a dog or cat unless the dog or cat has been declared healthy by a veterinarian within ten days prior to its sale and the pet shop provides to the purchaser of the dog or cat proof of the declaration of the animal's health, signed by a veterinarian.

(Ord. No. 4115, § 2, 10-21-2025)

Chapter 7.90 ENFORCEMENT PROVISIONS

Sections:

7.90.010 General provisions.
7.90.020 Appeal of administrative enforcement actions.
7.90.030 Appeal of revocation of breeder, animal handler, animal establishment, commercial animal establishment, pet fancier, and mobile animal business permit procedure.
7.90.040 Criminal proceedings and contents of criminal citation.
7.90.050 Animal protection services revolving account.
7.90.060 Purpose of administrative fines.
7.90.070 Administrative fine.

7.90.010 General provisions.

A. General provisions.

1. Authority of the director and his or her designees. The director is authorized and directed to administer and enforce this Code. The director and his or her designee(s), referred to herein as "animal protection official(s)" or "animal protection officers(s)," have the authority to determine whether a violation of this Code exists and to take appropriate action to gain compliance with this Code. This authority includes the power to issue notices, orders, administrative and misdemeanor citations and fines, the power to inspect public and private property and to abate violations, and the power to use any other remedies available under this Code, other provisions of the Henderson Municipal Code, and Nevada law.

B. Administrative enforcement procedures and remedies.

1. Notice of violation and order to correct. Except as otherwise provided herein, when the animal protection official has determined that a violation of this Code exists, the animal protection official may issue a notice of violation and order to correct to the property owner, the animal's owner if different from the property owner, and any other responsible party, in the following manner:

a. Form of notice and order. The notice and order shall be in writing and shall include:

(1) A description of the real property where the violation occurred sufficient for identification;

(2) A statement of the violation(s) and why the notice is being issued;

(3) A list of the corrections necessary to achieve compliance with this Code, if applicable;

(4) A correction order with a reasonable deadline achieve compliance, if applicable; and

(5) A statement advising that administrative fees and fines may be assessed in the event the owner or other responsible party fails to correct the stated violations of this Code by the stated deadline.

b. Method of service. A notice and order shall be deemed properly served if a copy is:

(1) Personally served to the property owner, animal owner, and/or other responsible party, with a signed certificate of service prepared by the animal protection official effectuating service. If personal service is effectuated upon a responsible party other than the property owner, a copy of the notice shall be sent by first-class mail to the property owner as shown in the records of the Clark County Assessor;

(2) Sent by certified mail, return receipt requested, to the owner of the property as shown in the records of the Clark County Assessor:

(a) If the notice is returned by the U.S. Postal Service showing that it was not delivered, a copy thereof shall be posted in a conspicuous place in or about the building, structure, lot, or premise of the subject property. It shall be unlawful for any person to remove, alter, deface, tamper with, or alter the visibility of any notice and order posted at the premises pursuant to this Code. Service of the notice and order shall be complete upon certified mailing or, if the notice and order is returned, posting on the premises. The failure of the owner to receive a certified mailing of the notice and order does not affect the validity of any enforcement proceeding taken under this Code;

(b) A certification of notice and order posting shall be completed by the animal protection official stating the name of the animal protection official posting the notice, the date and time of the posting, the address of the property where the notice and order was posted, and a brief description of the location on the property where the notice and order was posted;

(3) Posted in a conspicuous place in or about the building, structure, lot, or premise and sent by first-class mail to the owner of the property as shown in the records of the Clark County Assessor; or

(4) Sent by electronic mail ("email") to the owner and any other responsible party if the recipient(s) has provided written, signed consent to receive service of notices under this section 7.90.010 by email and has provided

their email address. If a notice and order served via email returns undeliverable, one of the other methods of service in this section shall also be employed.

2. Administrative fees. Expenses incurred by the city in investigating, inspecting and re-inspecting property that is the subject of a violation, as well as any other processing costs related to enforcement of this Code may be recovered through the issuance of administrative fees pursuant to the administrative fee schedule established by the city council and set forth in section 7.90.040. Administrative fees may be imposed in conjunction with abatement expenses or the issuance of administrative citations. In addition to any other lawful means of collection, administrative fees may be collected in the same manner and at the same time as administrative fines and any costs incurred by the city in performing abatements.

3. Administrative citations and fines. Administrative citations and fines may be imposed for violations of any of the provisions of this Code and may be issued following a failure to comply with a notice of violation and order to correct by the stated deadline.

a. Procedure for issuance of citation and fine.

(1) Administrative fines shall be assessed by means of an administrative citation issued by the animal protection official and shall be payable directly to the city.

(2) An administrative citation shall contain:

(a) The name and address of the property owner, animal owner if different from the property owner, business owner, if applicable, and any other responsible party and the address or legal description of the property where the violation is occurring;

(b) A statement of the provisions of this Code that have been violated and the date of the violation(s);

(c) The action required to correct the violation(s) and a deadline for compliance after which the city may proceed to take the stated correction action to abate the violation, if applicable;

(d) The amount of administrative fines and fees imposed for the violation(s);

(e) A statement that each day the owner or other responsible party does not correct or abate the violation after the date of the administrative citation may constitute a separate violation subjecting the owner to additional fines;

(f) A statement that the owner or responsible party may appeal the fine and request a hearing within ten calendar days of the date the administrative citation is served; and

(g) An address and telephone number of an animal protection official with whom contact regarding the violation can be made.

(3) An administrative citation shall be served on the property owner, responsible party, or animal owner via personal service or via certified mail, return receipt requested. A certificate of service shall be completed by the animal protection official who effectuated service of the citation. Service shall be complete upon mailing or personal service of the citation. The failure of the owner to receive the citation shall have no effect on the validity of any fines issued.

b. Accumulation of fines. If the owner or other responsible party fails to correct the violation, subsequent administrative citations may be issued for the same violations. Each day that a violation continues shall constitute a separate violation. The amount of fines assessed for each administrative citation issued for the same violations shall be specified in the fee resolution adopted by the city council as set forth in section 7.90.040. Payment of the fine shall not excuse the failure to correct the violations nor shall it bar further enforcement action by the city.

c. Appeal of an administrative citation, fines, and permit revocation. Appeal of an administrative citation, fines, and fees shall be made in accordance with the procedures of section 7.90.020.

d. Failure to pay administrative fines and fees.

(1) If not appealed, administrative fines and fees are immediately due and payable. Failure to issue payment shall constitute a violation of this Code. The city may take any lawful collection action deemed necessary and appropriate to recover the administrative fine amounts owed, including but not limited to the city attorney filing a petition in a court of competent jurisdiction for the entry of a civil judgment against the property owner in an amount equal to the unpaid fine and/or fee amounts owed, or referral of the unpaid amounts to a collection agency for recovery.

(2) In addition to the fines assessed pursuant to this chapter, the person responsible for any violation shall be liable for an additional collection fee where the collection of the fines provided for herein is referred for collection. The amount of such fee shall be 25 percent of the outstanding indebtedness or $250.00, whichever is less. The amount of any such collection fee shall accrue and become due and payable at the time the

indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency to the amount sought to be collected. Any judgment or amended judgment entered under this chapter may include the amount of the collection fee authorized herein.

4. Revocation of animal related permit. Animal protection services may initiate revocation of any animal related permit issued in accordance with HMC 7.04, 7.60, 7.65, 7.70, 7.75, or 7.80.

Administrative fines may be imposed, in addition to revocation, for violations of any of the provisions of this Code, including failure to comply with any final order issued through the appeal process.

a. Procedure for revocation of animal related permit.

(1) A letter of revocation and order to discontinue the permitted operation shall be sent to the permit holder by the animal protection administrator.

(2) A letter of revocation shall contain:

(a) The name and address of the property owner, business owner, permit holder, and any other responsible party and the address or legal description of the property where the violation is occurring. If the permit is for a mobile vendor, then the permit holder's address shall be used;

(b) A statement of the provisions of this Code that have been violated and the date of the violation(s);

(c) The action that caused the revocation of the permit;

(d) The amount of administrative fines and fees imposed for the violation(s);

(e) A statement that each day the owner or other responsible party does not correct or abate the violation after the date of the administrative citation may constitute a separate violation subjecting the owner to additional fines;

(f) A statement describing the permit holder's rights of appeal as outlined in HMC 7.90.020; and

(f)[(g)] An address and telephone number of the animal protection administrator with whom contact regarding the violation can be made.

(3) A letter of revocation shall be served on the property owner, permit holder, or animal owner via personal service or via certified mail, return receipt requested. A certificate of service shall be completed by the animal protection officer who effectuated service of the citation. Service shall be

complete upon mailing or personal service of the letter. The failure of the permit holder/owner to receive the letter of revocation shall have no effect on the validity of any fines issued.

(Ord. No. 4115, § 2, 10-21-2025)

7.90.020 Appeal of administrative enforcement actions.

Appeal procedures. This section establishes the procedures for appealing administrative enforcement actions under this Code, including procedures for conducting administrative appeal hearings.

A. Procedures for requesting and setting an appeal hearing.

(1) An owner, permit holder, or other responsible party (referred to herein as the "appellant") may request an appeal hearing by submitting a written request to the director that:

(a) Identifies the enforcement action that the person is contesting;

(b) Sets forth the facts supporting the appeal;

(c) Identifies the requested relief; and

(d) Is delivered to and received by the director personally or by mail (as postmarked) no later than the tenth day following the date of the notice, order or citation being appealed.

(2) A timely request for hearing shall stay the enforcement of the appealed action and toll the deadline for compliance, accrual of fines and fees, and payment of fines and fees. An untimely request for appeal shall not be considered and instead shall be dismissed.

(3) The director or designee shall set a hearing and shall issue notice of the hearing date no later than ten days prior to the date set for the hearing, unless a shorter time period is agreed to in writing by the appellant. The notice shall state the date, time, and location of the hearing, and shall include a short explanation of the hearing process.

B. Hearing procedures.

(1) The director or designee shall conduct and preside over the hearing. At the hearing, that person, referred to herein as the "presiding officer," shall direct the order of the proceedings and shall hear all evidence presented relevant to the subject violation(s), fines and/or fees.

(2) The hearing shall be informal in nature. The presiding officer is not bound by evidentiary or procedural rules applicable to public hearings or judicial proceedings. The presiding officer shall have discretion to record the hearing.

(3) The city will have an opportunity to present facts, statements, witness testimony, and other evidence to support its position. Affidavits or declarations of witnesses made under penalty of perjury may be presented by the city at the hearing if provided to the appellant no later than five days prior to the hearing.

(4) The appellant will have an opportunity to present facts, statements, witness testimony, and other evidence to support his or her position. Affidavits or declarations of witnesses made under penalty of perjury may be presented at the hearing if provided to the city no later than five days prior to the hearing.

(5) During the appeal hearing, the presiding officer may gather any relevant information regarding the subject enforcement action to assist in making a final decision. The presiding officer shall have the discretion to question witnesses, to allow rebuttal testimony, and to limit the presentation of immaterial or unduly repetitious evidence.

(6) After the conclusion of the hearing, the presiding officer shall consider all evidence presented relevant to the subject enforcement action and shall issue a decision regarding the disputed enforcement action. In his or her decision, the presiding officer is not authorized to grant exceptions or make modifications to the requirements of this Code. The decision shall be in writing and shall be issued no later than 30 days following the conclusion of the hearing and served on the appellant. The decision shall clearly state one of the following:

(a) That the notice, order, citation, fine and/or fee is upheld, including a short statement of findings explaining the basis for the decision, and providing a deadline for curing the subject violation and payment of any fines and fees, with a notification that fines will resume accruing daily thereafter until the subject violation is corrected, if applicable;

(b) That the notice, order, citation, fine and/or fee is reversed, including a short statement of findings explaining the basis for the decision; or

(c) That the notice, order, citation, fine and/or fee is modified, including a short statement of findings explaining the basis for the decision, and providing a deadline for any modified compliance obligations and payment of fines and/or fees, with a notification that fines will resume accruing daily until the subject violation(s) is corrected, if applicable.

(7) Any appellant who fails to appear at the hearing on the designated date and time is deemed to have waived the right to a hearing and to object to any of the proceedings at the hearing, provided that the hearing was properly noticed and no continuances were granted.

C. Post-hearing procedures.

(1) The decision of the presiding officer is the final administrative action on the appeal.

(2) In the event the decision or appeal requires abatement of a nuisance or correction of any violation under this Code, the owner or other responsible party must abate the nuisance or correct the violation within ten days after the date of the decision or within such other period as the decision may direct.

(3) The provisions of section 7.90.010.B.3.d shall apply to the city's collection of unpaid administrative fines, fees and abatement costs upheld on appeal.

(Ord. No. 4115, § 2, 10-21-2025)

7.90.030 Appeal of revocation of breeder, animal handler, animal establishment, commercial animal establishment, pet fancier, and mobile animal business permit procedure.

Appeal procedures. This section establishes the procedures for appealing revocations of all animal-related permits issued under this Code, including procedures for administrative revocation appeal hearings. All appeals are limited by the provisions of this section 7.90.030.

A. The director or his or her designee shall conduct and preside over the hearing. The director may designate appeals under this chapter to an appeals board established by the city council.

B. At the hearing, the director or his or her designee, referred to herein as the "presiding officer," shall direct the order of the proceedings and shall hear all evidence presented relevant to the basis for the termination of registration. This may include the presentation of written evidence as well as testimony by City employees, the permit holder and any witnesses called by the City or the permit holder. Affidavits or declarations of witnesses made under penalty of perjury may be presented at the hearing if they are provided to the other party no later than five days prior to the hearing date.

C. The hearing shall be conducted informally, shall not be constrained by evidentiary or procedural rules applicable to public hearings or judicial proceedings and shall provide a fair opportunity for the City and the permit holder to present evidence regarding the basis for revoking the permit. The presiding officer shall have the discretion to question witnesses, to allow rebuttal testimony, to limit the time of the hearing to a reasonable length, to limit the presentation of immaterial or unduly repetitious evidence, and to record the hearing.

D. After the conclusion of the hearing, the presiding officer shall consider all evidence presented and shall issue a decision to 1) uphold the revocation of the permit, 2) reinstate the permit, or 3) allow the permit to be reinstated upon the completion of certain conditions. The decision shall be made in writing, shall clearly state the basis

for the decision and any applicable deadlines for compliance with the decision, and shall be served no later than 30 days following the conclusion of the hearing. If the decision results in the permit revocation, it shall provide an effective date of revocation and include an order to cease operation of permit activities as of the effective date.

E. The decision of the presiding officer maybe is final. If the presiding officer upholds the revocation of a permit, the permit activities shall cease during the period pending appeal hearing. Activities covered by the permit during this period shall be subject to administrative fines for operation without a registration.

(Ord. No. 4115, § 2, 10-21-2025)

7.90.040 Criminal proceedings and contents of criminal citation.

Criminal proceedings. Except as otherwise provided by law or ordinance, a person convicted of a violation of this Code shall be guilty of a misdemeanor punishable by imprisonment in the Henderson Detention Center for not more than six months, and/or by a fine of not more than $1,000.00. Each day such a violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.

1. Contents of criminal citation. An issued criminal citation shall be prepared electronically or manually in the form of a complaint and follow NRS 171.1773. At a minimum it shall contain:

a. The name and address of the owner or other responsible party in violation, as well as the address of the property where the violation has occurred or is occurring;

b. A statement of the provisions of this Code that have been violated including a brief description of the offense;

c. The standard bail amount and administrative assessments set by the Henderson Municipal Court for the violation;

d. The date, time and place of appearance for the owner, responsible person, firm, or corporation to appear in the Henderson Municipal Court; and

e. The signature of the officer preparing the citation.

2. Penalty. Any person, firm, or corporation that is convicted of any of the provisions of this Code is guilty of a misdemeanor punishable by a fine not exceeding $1,000.00 imprisonment not exceeding six months, or by both such fine and imprisonment. Each day that a violation of this chapter continues, whether pursued criminally or civilly, constitutes a separate violation for purposes of criminal prosecution or civil proceedings. In addition to this fine, administrative fees and court administrative assessments as set by NRS will be assessed.

3. Subsequent violations. Any person who is convicted of a violation of this Code for a third time for the same violation within a two-year period shall be guilty of a misdemeanor punishable by a minimum fine of not less than $500.00 or by imprisonment not to exceed six months in the city jail or by both such fine and imprisonment. Each day that a violation of this chapter continues, whether pursued criminally or civilly, constitutes a separate violation for purposes of criminal prosecution.

(Ord. No. 4115, § 2, 10-21-2025)

7.90.050 Animal protection services revolving account.

The animal protection services revolving fund is hereby established to fund the nuisance abatement of violations of this Code. All penalties and administrative fines collected in conjunction with the enforcement of this Code shall be deposited in this fund to be used by animal protection services to assist in the abatement of violations of this Code and/or the direct or indirect costs for the care and protection of animals.

(Ord. No. 4115, § 2, 10-21-2025)

7.90.060 Purpose of administrative fines.

The purpose of this administrative fine schedule is to establish monetary enforcement alternatives for the administrative citation and cost recovery components of the code.

(Ord. No. 4115, § 2, 10-21-2025)

Editor's note—Ord. No. 4115, § 2, adopted October 21, 2025, enacted provisions intended for use as sections 7.90.030 and 7.90.040. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as sections 7.90.060 and 7.90.070.

7.90.070 Administrative fine.

Fee, Fine or Service Name/Description	*Fee*
Re-inspection fee (each)	$150.00
Administrative citations and fines for residential properties/non-commercial:	
1st citation	$100.00
2nd citation	$300.00
3rd and/or subsequent citation(s)	$500.00
Administrative citations and fines for commercial properties/commercial businesses:	
1st citation	$250.00

Fee, Fine or Service Name/Description	*Fee*
2nd citation	$500.00
3rd and/or subsequent citation(s)	$1,000.00
Other Fees:	
Administrative violation processing fee[(1)]	$150.00
Abatement[(2)]	Actual Costs

[(1)] To recover any staff time and expense incurred in processing enforcement actions under this Code not included in the other fees set forth herein. May be issued on a one-time basis per violation if abatement action or administrative citation is required.

[(2)] Actual labor and materials associated with abatement which includes, but is not limited to the removal of all animals, the boarding and associated care of animals, all reasonable medical expenses, whether expended by city staff or contractors hired for such purpose.

(Ord. No. 4115, § 2, 10-21-2025)

Note—See editor's note at section 7.90.060.

Title 8

PUBLIC PEACE AND SAFETY

Chapters:

8.01 Police Services Fees
8.02 Crimes Against Public Peace
8.03 Reserved
8.04 Laser Pointers
8.07 Reserved
8.08 Restrictions and Curfew for Minors
8.09 Skating Where Prohibited
8.10 Special Events
8.11 Parade and Public Assembly
8.12 Contributing to Delinquency of Minors
8.28 Hotel Registers
8.32 Dangerous Fireworks
8.36 Fires
8.37 Camping and Similar Activities
8.38 Reserved
8.40 Liquor Violations
8.49 Reserved
8.60 Prostitution and Indecent Conduct
8.64 Reserved
8.68 Reserved
8.72 Reserved
8.76 Reserved
8.84 Noise Control
8.85 Graffiti
8.90 Stink Bombs
8.94 Aggressive Solicitation
8.98 Weapons and Missiles
8.99 Reserved

Chapter 8.01 POLICE SERVICES FEES

Sections:

8.01.010 Designated.
8.01.020 Fee schedule.

8.01.010 Designated.

This chapter is established to provide for police services fees as set forth in the police services fee schedule, which may be changed from time to time by approval of the city council.
(Ord. 1268, § 4, 1991)

8.01.020 Fee schedule.

Service Provided	Fee
Accident report	$0.10 per page
Audio tape reproduction	$1.00 per tape
Automated fingerprint identification system search	$75.00 per hour (one hour minimum)
Challenge criminal history	$65.00
Digital photos on CD	$1.00 per CD
Discovery—research fee	Administrative research $40.00 per hour; Professional research $65.00 per hour
Employee registration card	$30.00
Employee registration card—reissue—no new fingerprints	$5.00
Employment name check—criminal per name (payable in advance)	$10.00
False alarm response fee	$30.00
Field assistance/evidence gathering, etc.	$60.00 per hour (one hour minimum)
Fingerprint card—certified copy	$12.00
Fingerprint card—negatives	$35.00
Fingerprint card—negatives each additional print	$5.00
Fingerprint card—prints only (Henderson residents only)	$5.00 per card
Firearms examination—Serial number restoration	$75.00 per hour (one hour minimum)

Service Provided	Fee
Investigative services	$75.00 per hour (one hour minimum)
Latent print comparison	$60.00 per hour (one hour minimum)
Mug shots	$6.00 each
Photo assignment/not crime scene	$60.00 per hour (one hour minimum)
Polygraph exam—Criminal	$225.00
Polygraph exam—Employment	$75.00
Proofs	$12.00 each
Report reproduction	$5.00
Research	$100.00 per hour (one hour minimum)
Review individual criminal history	$16.00
Special events, parades, or public assembly	Per the wage rate schedule on file in the office of the city clerk as updated from time to time by the director of finance
Specialized forensic services—Forensic anthropology	$350.00 initial fee, $250.00 per hour after first hour
3.5 x 5 prints	$0.10 each black & white; $0.20 each color
4 x 6 prints	$0.10 each black & white; $0.20 each color
5 x 7 prints	$0.10 each black & white; $0.20 each color
8 x 10 prints	$0.10 each black & white; $0.20 each color
Videotape reproduction	Charge for media only - $1.00 each

(Ord. No. 3007, § 1, 5-21-2013; Ord. 2788, § 1, 1-6-2009; Ord. 2194, § 1, 2003; Ord. 2125, § 1, 2002; Ord. 1963, § 1, 1999; Ord. 1268 (part), 1991)

Chapter 8.02 CRIMES AGAINST PUBLIC PEACE*

Sections:

8.02.010 Violation of state law is a city misdemeanor.
8.02.020 Obstructing a public officer.
8.02.030 Resisting a public officer.
8.02.040 Assault.
8.02.050 Battery.
8.02.055 Battery constituting domestic violence.
8.02.060 Harassment.
8.02.070 Disorderly conduct.
8.02.080 Theft.
8.02.090 Trespass.
8.02.100 Injury to property.
8.02.110 Coercion.
8.02.120 Unlawful use or possession of drug paraphernalia.
8.02.130 Smoking or consuming marijuana in a public place.
8.02.140 Penalty for violation.

8.02.010 Violation of state law is a city misdemeanor.

The commission of any act within the corporate limits of the City of Henderson by any person or persons, or the failure to perform any duty imposed by law which is defined as an offense and made a misdemeanor under the laws of the State of Nevada is declared to be, and shall constitute a misdemeanor when said act is committed, or said duty omitted, within the corporate limits of the City of Henderson.
(Ord. No. 3008, § 1, 5-21-2013; Ord. 490, § 2, 1974)

8.02.020 Obstructing a public officer.

Every person who, after due notice, refuses or neglects to make or furnish any statement, report or information lawfully required of the person by any public officer, or who, in such statement, report or information shall make any willfully untrue, misleading or exaggerated statement, or who shall willfully hinder, delay or obstruct any public officer in the discharge of official powers or duties, is guilty of obstructing a public officer.
(Ord. No. 3451, § 1, 11-7-2017)

Editor's note—Ord. No. 3451, § 1, adopted November 7, 2017, amended section 8.02.020 in its entirety to read as herein set out. Formerly, section 8.02.020 pertained to penalty for violation, and derived from Ord. No. 490, § 3, adopted in 1974; Ord. No. 782, § 1, adopted in 1981, and Ord. No. 3008, § 1, adopted May 21, 2013. For current provisions pertaining to penalties for violation, the user's attention is directed to section 8.02.140.

***Editor's note—**Ord. No. 3632, § 1, adopted October 15, 2019, changed the title of chapter 8.02 from "Violation of state law" to "Crimes against public peace."

8.02.030 Resisting a public officer.

A person who willfully resists a public officer in discharging or attempting to discharge any legal duty of his or her office is guilty of resisting a public officer.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.040 Assault.

A person who unlawfully attempts to use physical force or violence against another person or intentionally places another person in reasonable apprehension of immediate bodily harm is guilty of assault.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.050 Battery.

A person who willfully and unlawfully uses force or violence upon the person of another is guilty of battery.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.055 Battery constituting domestic violence.

A. Any person who commits an offense of battery as defined in section 8.02.050 against or upon the person's spouse or former spouse, any other person to whom the person is related by blood or marriage, any other person with whom the person has had or is having a dating relationship, any other person with whom the person has a child in common, the minor child of any of those persons, the person's minor child or any other person who has been appointed the custodian or legal guardian for the person's minor child is guilty of a battery constituting domestic violence.

B. The provisions of this section do not apply to:

1. Siblings, except those siblings who are in a custodial or guardianship relationship with each other; or

2. Cousins, except those cousins who are in a custodial or guardianship relationship with each other.

C. As used in this section, "dating relationship" means frequent, intimate associations primarily characterized by the expectation of affectional or sexual involvement. The term does not include a casual relationship or an ordinary association between persons in a business or social context.

D. A person convicted of a battery constituting domestic violence:

1. For the first offense within seven years, is guilty of a misdemeanor and shall be sentenced to:

(a) Imprisonment in the city jail or detention facility for not less than two days, but not more than six months;

(b) Perform not less than 48 hours, but not more than 120 hours, of community service;

(c) A fine of not less than $200.00, but not more than $1,000.00; and

(d) Participate in weekly counseling sessions of not less than one and one-half hours per week for not less than six months, but not more than 12 months, at his or her expense, in a program for the treatment of persons who commit domestic violence that has been certified pursuant to NRS 439.258.

2. For the second offense within seven years, is guilty of a misdemeanor and shall be sentenced to:

(a) Imprisonment in the city jail or detention facility for not less than ten days, but not more than six months;

(b) Perform not less than 100 hours, but not more than 200 hours, of community service;

(c) Pay a fine of not less than $500.00, but not more than $1,000.00; and

(d) Participate in weekly counseling sessions of not less than one and one-half hours per week for 12 months, at his or her expense, in a program for the treatment of persons who commit domestic violence that has been certified pursuant to NRS 439.258.

E. A person arrested for a battery constituting domestic violence pursuant to this section must not be admitted to bail sooner than 12 hours after arrest.
(Ord. No. 3632, § 2, 10-15-2019)

8.02.060 Harassment.

A person who, without lawful authority, knowingly threatens to cause bodily injury in the future to the person threatened or to any other person, to cause physical damage to the property of another person, or to do any act which is intended to substantially harm the person threatened or any other person with respect to his or her physical or mental health or safety, and the person by words or conduct places the person receiving the threat in reasonable fear that the threat will be carried out is guilty of harassment.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.070 Disorderly conduct.

A person who willfully participates in a fight, challenges another person to fight, incites a disturbance, interferes with, accosts or harasses any other person or disturbs the peace or quiet of any neighborhood or person by tumultuous or offensive conduct is guilty of disorderly conduct.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.080 Theft.

A person who, without lawful authority, knowingly steals, takes, controls or carries away personal property or goods of another or obtains personal property or the services of another by a material misrepresentation or false pretense with intent to deprive that person of the property or services in an amount less than $650.00 is guilty of theft.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.090 Trespass.

A person who, under circumstances not amounting to a burglary, willfully enters or remains upon the property of another to commit an unlawful act or with the intent to take, injure or destroy any real or personal property, or who willfully enters into or remains upon any land or any building after having been warned by the owner or occupant thereof or by a police officer in the course of his or her official duties not to trespass is guilty of a misdemeanor.

A sufficient warning against trespassing is given by any of the following methods:

An oral or written demand by the owner, occupant or agent of the owner;

An oral or written demand by a police officer in the course of his or her official duties on behalf of the owner, occupant or agent of the owner;

A fence, wall or other physical barrier around the property or building; or

A sign or written warning being clearly posted on the land or building.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.100 Injury to property.

A. A person who willfully or maliciously destroys or injures any real or personal property of another, where the value of the loss is $25.00 or more but less than $250.00 shall be guilty of injury to property.

B. It is not a defense that the person engaging in the conduct prohibited by subsection A. holds a leasehold interest in the real property that was destroyed or injured.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.110 Coercion.

A person who willfully prevents or controls the lawful act of another by way of force, threats, intimidation or by hindering the use of any personal property of another is guilty of coercion.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.120 Unlawful use or possession of drug paraphernalia.

Any person who uses, possesses with intent to use or sells drug paraphernalia, knowing, or under circumstances where one reasonably should know that it will be used or has been used to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, prepare, test, analyze, pack, repack, store, contain, conceal, ingest, inhale, or otherwise introduce into the human body a controlled substance in violation of NRS Chapter 453 is guilty of unlawful use or possession of drug paraphernalia.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.130 Smoking or consuming marijuana in a public place.

A person who smokes or otherwise consumes marijuana in a public place, in a retail marijuana store, or in a moving vehicle is guilty of a misdemeanor punished by a fine of not more than $600.00.

"Marijuana" has the same meaning as defined in NRS 453 as may be amended or renumbered.

"Public place" means an area to which the public is invited or in which the public is permitted regardless of age. "Public place" does not include a retail marijuana store.
(Ord. No. 3451, § 1, 11-7-2017)

8.02.140 Penalty for violation.

A. *Violation of state law.* Any person found guilty of a violation of laws of the State of Nevada by the commission of an offense or the omission of a duty defined as and made a misdemeanor under the laws of the State of Nevada shall be punished in accordance with the provisions of NRS 193.150.

B. *Violation of this Code.* Any person found guilty of a violation of ordinances of the City of Henderson by the commission of an offense or the omission of a duty defined as and made a misdemeanor therein shall be punished by a fine not to exceed $1,000.00, or by incarceration in the Henderson Detention Center for a period of time not to exceed six months, or both.
(Ord. No. 3451, § 1, 11-7-2017)

Chapter 8.03 RESERVED*

*__Editor's note—__Ord. No. 3009, § 1, adopted May 21, 2013, repealed the former chapter 8.03, §§ 8.03.010 and 8.03.020, which pertained to police canine units, and derived from Ord. No. 865, § 1, adopted in 1982.

Chapter 8.04 LASER POINTERS

Sections:

8.04.010 Definitions.
8.04.020 Possession by minors unlawful.
8.04.030 Prohibited uses.
8.04.040 Use on law enforcement and other city personnel unlawful.
8.04.050 Penalty for violation.

8.04.010 Definitions.

In the ordinance codified in this chapter, the following words and terms shall have these defined meanings:

Laser pointer means any handheld device containing a small diode laser that is capable of emitting an intense beam of light.

Peace officer includes any person upon whom some or all of the powers of a peace officer are conferred pursuant to NRS 289.150 to 289.360 inclusive.
(Ord. 2392, § 1 (part), 2005)

8.04.020 Possession by minors unlawful.

A. It shall be unlawful for any minor to possess a laser pointer except in the residence of that minor.

B. It shall be unlawful for any person to knowingly sell, offer to sell, lease, give or otherwise provide a laser pointer to a minor, except as otherwise permitted by subsection C of this section.

C. The provisions of subsections A and B do not apply if:

1. The laser pointer is temporarily transferred to the minor for an educational or other lawful purpose and the minor is under the direct supervision of a parent, legal guardian, teacher, employer or other responsible person 18 years of age or older; or

2. The minor's possession of the laser pointer is necessary for his or her employment, trade or occupation and it is necessary for the laser pointer to be carried on his or her person.
(Ord. 2392, § 1 (part), 2005)

8.04.030 Prohibited uses.

A. It shall be unlawful for any person to direct the light from a laser pointer into the eye or eyes of another person.

B. It shall be unlawful for any person to direct the light from a laser pointer upon another person, a person's vehicle, or upon an animal, in such a manner as to unreasonably cause harassment to that person, a motorist, or animal.

C. This section shall not apply to:

1. A person who is licensed or otherwise authorized by law to use a laser pointer in the person's profession if the laser pointer is used by the person in discharging or attempting to discharge the person's official duties; or

2. A peace officer who uses a laser pointer in discharging or attempting to discharge the officer's official duties.

(Ord. 2392, § 1 (part), 2005)

8.04.040 Use on law enforcement and other city personnel unlawful.

It shall be unlawful for any person to direct light from a laser pointer onto:

A. A uniformed peace officer, member of the Henderson fire department, emergency medical services or ambulance worker, or any other uniformed emergency service worker; or

B. The service vehicle of any such individual.

(Ord. 2392, § 1 (part), 2005)

8.04.050 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.

(Ord. No. 3107, § 1, 1-7-2014; Ord. 2392, § 1 (part), 2005)

Chapter 8.07 RESERVED*

***Editor's note—**Ord. No. 3010, § 1, adopted May 21, 2013, repealed the former chapter 8.07, §§ 8.07.010—8.07.040 in its entirety, which pertained to the distribution and display of material harmful to minors, and derived from Ord. No. 1667, § 1, adopted in 1996.

Chapter 8.08 RESTRICTIONS AND CURFEW FOR MINORS*

Sections:

8.08.010 Frequenting or loitering about certain places prohibited.
8.08.020—8.08.060 Reserved.
8.08.070 Definitions for curfew provisions.
8.08.080 Curfew restrictions.
8.08.090 Penalty for violation.

8.08.010 Frequenting or loitering about certain places prohibited.

It is unlawful for any minor to frequent or loiter around any establishment to purchase or obtain any beer, wine, spirituous liquors or other intoxicating beverages from any such place.
(Ord. No. 3080, § 1, 11-5-2013)

8.08.020—8.08.060 Reserved.

8.08.070 Definitions for curfew provisions.

Curfew hours means the period between 10:00 p.m. Sunday through Thursday, both inclusive, and 5:00 a.m. of the succeeding day, and between the hours of 12:00 midnight on Friday and Saturday and 5:00 a.m. of the succeeding day, except that on all school holidays and during the days of summer vacation, the curfew hours means 12:00 midnight any evening of the week until 5:00 a.m. the succeeding day.

Emergency means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes, but is not limited to, a fire, natural disaster, an automobile accident or any situation requiring immediate action to prevent serious bodily injury or loss of life.

Guardian means: (1) a person whom, under court order, is the guardian of the person of a minor; or (2) a public or private agency with whom a minor has been placed by the court.

Minor means any person under 18 years of age.

***Editor's note—**Ord. No. 3080, § 1, adopted November 5, 2013, amended chapter 8.08 in its entirety to read as herein set out. Formerly, chapter 8.08 pertained to similar subject matter, and derived from Ord. No. 47, §§ 1—5, adopted in 1953, and Ord. No. 1812, §§ 2, 3, adopted in 1998.

Parent means a person who is a natural parent, adoptive parent, or step-parent of another person.

Public place means any place to which the public has access.

Responsible adult means a person at least 18 years of age, authorized by a parent or guardian to have the care and custody of a minor.

Serious bodily injury means bodily injury that creates a substantial risk of death or that causes death, serious permanent disfigurement or protracted loss or impairment of the function of any bodily member or organ.
(Ord. No. 3080, § 1, 11-5-2013)

8.08.080 Curfew restrictions.

(a) It is unlawful for any minor to be present in any public place within the City of Henderson during curfew.

(b) It is unlawful for any parent or guardian of a minor knowingly to permit, or by insufficient control to allow, the minor to be present in any public place within the city during curfew hours.

(c) It is a defense to prosecution under section 8.08.080(a) or (b) that the minor was:

1. Accompanied by the minor's parent or guardian, or by a responsible adult;

2. On an errand at the direction of the minor's parent or guardian, or the responsible adult, without any detour or stop;

3. In a motor vehicle involved in lawful interstate travel;

4. Engaged in any lawful employment activity, or going to or returning home from any lawful employment activity, without any detour or stop;

5. Involved in an emergency;

6. On the sidewalk abutting the minor's residence;

7. Attending an official school, religious, or other recreational activity supervised by adults and sponsored by the City of Henderson, a civic organization, or another similar entity that takes responsibility for the minor, or going to or returning home from, without any detour or stop, an official school, religious, or other recreational activity supervised by adults and sponsored by the City of Henderson, a civic organization, or another similar entity that takes responsibility for the minor;

8. Exercising First Amendment rights protected by the United States Constitution; or

9. Emancipated pursuant to law.

(d) Before taking any enforcement action under this section, a police officer shall ask the apparent offender's age and reason for being in the public place or on the premises of the establishment during curfew hours. The officer shall not issue a citation or make an arrest under this section unless the officer reasonably believes that an offense has occurred and that, based on any responses and other circumstances, no defense under section 8.08.080(c) is present or applicable.

(e) Each violation of this section shall constitute a separate offense.
(Ord. No. 3451, § 2, 11-7-2017; Ord. No. 3080, § 1, 11-5-2013)

8.08.090 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.
(Ord. No. 3080, § 1, 11-5-2013)

Chapter 8.09 SKATING WHERE PROHIBITED*

Sections:

8.09.010 Definitions.
8.09.020 Reserved.
8.09.030 Skating prohibited in posted areas.
8.09.040 Seizure of wheeled device until disposition of charge.
8.09.050 Penalty for violation.

8.09.010 Definitions.

Skating shall mean to ride a skateboard, roller skates, roller blades, or other similar wheel device.
(Ord. No. 3014, § 1, 5-21-2013; Ord. 2575, § 1, 2007; Ord. 1578, § 1 (part), 1995)

8.09.020 Reserved.

Editor's note—Ord. No. 3014, § 1, adopted May 21, 2013, repealed the former section 8.09.020 in its entirety, which pertained to skating prohibited in certain areas, and derived from Ord. No. 1578, § 1, adopted in 1995.

8.09.030 Skating prohibited in posted areas.

It is unlawful for any person to ride on a skateboard, roller skates, roller blades, or other similar wheel devices upon any private commercial or public property, when such property has been posted pursuant to this section. The chief of police or his designee is authorized to post or cause to be posted signs, at the owner or lessor's expense, prohibiting the riding of skateboards, rollerblades, roller skates and other similar wheeled devices. The signs must be of a type and size and erected in a manner acceptable to the chief of police or his designee. The signs must be prominently displayed and state substantially as follows:

The use of skateboards, rollerblades, roller skates or other similar wheeled devices in or on these premises is unlawful.
(Ord. 2833, § 1, 10-20-2009; Ord. 1578, § 1 (part), 1995)

8.09.040 Seizure of wheeled device until disposition of charge.

The skateboard, roller skates, rollerblades, or other similar wheeled device(s) used in violation of 8.09.030 may be seized as evidence and held until the disposition of the charge.
(Ord. No. 3014, § 1, 5-21-2013; Ord. 1578, § 1 (part), 1995)

***Editor's note—**Ord. No. 3014, § 1, adopted May 21, 2013, changed the title of chapter 8.09 from "Skating on premises of municipal facilities" to "Skating where prohibited."

8.09.050 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.
(Ord. No. 3014, § 1, 5-21-2013)

Chapter 8.10 SPECIAL EVENTS

Sections:

8.10.010 Definitions.
8.10.020 Permit required.
8.10.025 Commercial filming.
8.10.030 Exceptions.
8.10.040 Permit application.
8.10.050 Fees.
8.10.060 Consideration of application and decision.
8.10.065 Alcoholic beverages disallowed unless specific permission granted.
8.10.070 Restriction on streets and times for event.
8.10.075 Security plans.
8.10.080 Insurance requirements.
8.10.090 Safety protection—Barricades—Cost of police protection.
8.10.100 Litter collection.
8.10.110 Claims for damages.
8.10.120 Compliance with law prior to issuance of permit.
8.10.130 Conditions for issuance of permit.
8.10.140 Standards for issuance.
8.10.150 Sanitation facilities required.
8.10.160 Notice of denial or acceptance.
8.10.170 Waiver of time limitations.
8.10.180 Reserved.
8.10.190 Prohibitions.
8.10.200 Duties of permittee.
8.10.210 Public conduct during special events.
8.10.220 Right of appeal.
8.10.230 Reserved.
8.10.240 Revocation of permit.
8.10.250 Reserved.

8.10.010 Definitions.

A. *Person defined.* As used in this chapter the word "person" means and includes any individual, firm, partnership, corporation, city, county, municipality, district or political subdivision.

B. *Special event defined.* As used in this chapter the word "special event" shall mean a temporary event or activity:

1. Consisting of running or biking races or similar athletic activities; live musical events or dances, community celebrations and observances, not organized for the dominant purpose of expressing the permittee's views, commercial filming; or neighborhood activities such as block parties or picnics; or

2. At which the expected attendance is five hundred or more persons on privately-owned property and is open to the public, whether free of charge or for a fee; or

3. Any other public event other than a parade or public assembly using any public street, park, plaza, or right-of-way; or

4. That has a direct impact on traffic flow on any public street or public right-of-way.

(Ord. No. 3900, § 1, 8-23-2022; Ord. 2371, § 1, 2005; Ord. 2020, § 2 (part), 2000)

8.10.020 Permit required.

A. Except as otherwise provided in Subsection (D), no person shall conduct, manage or operate any "special event" within the corporate limits of the City of Henderson unless a permit has first been procured therefore from the City of Henderson police department.

B. The special events permit is in addition to any other permits required by the Uniform Fire Code adopted in chapter 15.32, title 4, title 19, or any other required permits pursuant to state or federal law.

C. No person shall conduct, manage, operate or participate in any "special event" in violation of, or in any manner contrary to, the provisions of the special event permit.

D. The requirement of a permit under Subsection (A) may be waived or modified by the chief of police or their designee under the following circumstances:

1. For any particular event upon a determination that other applicable licenses, permits or approvals are or will be in place with respect to that event and are sufficient to protect the interests of the city and the public; or

2. For any event held in a venue specifically designed and zoned to host concerts, sporting events, and any other similar events, except that the chief of police or their designee shall retain the right to impose any or all of the requirements in this chapter that they deem appropriate for public safety.

E. A violation of any provision of this chapter shall be a misdemeanor.

(Ord. No. 3900, § 2, 8-23-2022; Ord. No. 3011, § 1, 5-21-2013; Ord. 2371, § 2, 2005; Ord. 2020, § 2 (part), 2000)

Editor's note—Ord. No. 3900, § 2, adopted August 23, 2022, changed the title of section 8.10.020 from "Permit required—In addition to any other permit" to "Permit required." The historical notation has been preserved for reference purposes.

8.10.025 Commercial filming.

A. A special events permit is required for all commercial filming on or utilizing in any manner public property, roadways, or right-of-way and may also be required for commercial filming on private property if the filming will include pyrotechnics, loud noises, gunshot sounds or any other event or activity which may affect the public health, safety or welfare.

B. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3011, § 1, 5-21-2013; Ord. 2371, § 3, 2005)

8.10.030 Exceptions.

This chapter shall not apply to the following:

A. Funeral processions;

B. Students going to and from school classes or participating in educational activities, provided that such conduct is under the immediate direction and supervision of the proper school authorities; and

C. An event, convention or trade show that is subject of and governed by a business license authorizing that event; and

D. The City of Henderson's participation in a special event, except that the city manager, chief of police or their designee shall retain the right to impose those requirements in this chapter, or any other reasonable requirements, that they deem appropriate for public safety.
(Ord. No. 3900, § 3, 8-23-2022; Ord. 2020, § 2 (part), 2000)

8.10.040 Permit application.

A. Any person desiring to conduct or manage a special event shall, not less than 30 days nor more than 180 days before the date on which the person proposes to conduct such special event, file with the Henderson police department an application on a form furnished by that department setting forth the following information:

1. The name, address and telephone number of the applicant and of any other persons, organizations, firms, or corporations on whose behalf the application is made, and the purpose of the event;

2. The name, address and telephone number of the person who will be the special event chairperson and who will be responsible for the event;

3. The name, address and telephone number of the person or organization to whom the permit is to be issued;

4. The date when such special event is to be conducted and the time when the special event is to commence and finish;

5. The location of the special event and, if applicable, a map or diagram showing the route to be used, the starting point, termination point, and assembly and disassembly area, or other area to be used;

6. The estimated number of persons who will participate in the event;

7. The estimated number of vehicles and a description of such vehicles which will participate;

8. The estimated number and type of animals and description of animal cages, if any; whether or not charity, gratuity, charges or offerings will be solicited or accepted, or sale of food, beverages or other merchandise will occur;

9. The time at which any facilities or equipment for the event will be assembled and any location of such assembly;

10. The type of the special event, including a description of activities planned during the event;

11. A description of any recording equipment, sound amplification equipment, banners, signs, or other attention-getting devices to be used in connection with the special event;

12. The approximate number of spectators anticipated;

13. A designation of any public facilities or equipment to be utilized; and

14. Any additional information or maps or diagrams that the chief of the Henderson police department finds reasonably necessary to a fair determination as to whether a permit should issue.

B. In the case of a block party or other similar neighborhood event, the permittee must submit a petition in favor of the event signed by four-fifths of the residents of the block affected by the permit.

(Ord. No. 3011, § 1, 5-21-2013; Ord. 2020, § 2 (part), 2000)

8.10.050 Fees.

Except with respect to block parties, a nonrefundable fee of $125.00 to cover administrative costs of processing the permit shall be paid to the City of Henderson by the applicant when the application is filed.

(Ord. 2020, § 2 (part), 2000)

8.10.060 Consideration of application and decision.

After receipt of the application, the Henderson police department must review the application and forward it to the director of public works, the fire chief and the risk manager within two business days.

(Ord. 2398, § 1 (part), 2005; Ord. 2020, § 2 (part), 2000)

8.10.065 Alcoholic beverages disallowed unless specific permission granted.

A. A person who desires to dispense alcoholic beverages during a special event must request and be granted specific written permission to do so by the chief of the Henderson police department or his designee, as well as comply with sections 8.40.010, 8.10.080, 4.36.270, and any other applicable ordinance or law.

B. The chief of the Henderson police department or their designee may grant specific permission to dispense alcoholic beverages if all of the following conditions are met:

1. The person(s) signing the permit application provide(s) all requested information.

2. The person signing the permit application agrees to be present at all times during the special event.

3. The permittee or his designee agrees to be responsible for verifying the ages of all persons to whom alcoholic beverages are dispensed. A permittee's designee must be a co-applicant for the specific permission to dispense alcoholic beverages, and provide all information requested by the application form.

4. The permittee pays in advance for any additional police officers the chief of the Henderson police department or his designee feels may be appropriate considering that alcoholic beverages will be dispensed.

5. The permittee provides a disclaimer in any and all advertising for the special event stating that the City of Henderson is not sponsoring the event.

6. The permittee submits with his application a map or diagram depicting the area(s) within which alcoholic beverages will be dispensed.

7. The permittee promises to make a good faith and diligent effort to ensure that attendees of the special event do not drink nor possess any open containers of any alcoholic beverages outside of the area for the special event.

8. The permittee receives an approved security plan pursuant to section 8.10.075 and follow all conditions required by the chief of police or their designee.

C. Unless specific permission is granted pursuant to this section, a special events permit does not allow alcoholic beverages to be dispensed or consumed, or open containers of alcoholic beverages to be possessed.

D. A violation of any provision of this section shall be a misdemeanor.

(Ord. No. 3900, § 4, 8-23-2022; Ord. No. 3011, § 1, 5-21-2013; Ord. 2398, § 2, 2005)

8.10.070 Restriction on streets and times for event.

A. Any application for an event to use any street or highway under control of the State of Nevada Department of Transportation must also have the approval of both the Nevada Highway Patrol and the Department of Transportation.

B. Special event permits, other than permits for block parties, will only be issued for the times between one hour after sunrise and one hour before sunset, unless alternate times are granted with the express written permission by the chief of police or their designee.

C. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3900, § 5, 8-23-2022; Ord. No. 3011, § 1, 5-21-2013; Ord. 2020, § 2 (part), 2000)

8.10.075 Security plans.

A. The chief of police or their designee may require the applicant to submit a comprehensive security plan to detail how order will be preserved and property protected in and around the location where the event is to be conducted.

B. The security plan shall be based on the size, location, duration, time, and date of the event; the expected service and consumption, if any, of alcoholic beverages; the number of streets and intersections blocked; and the need to detour or preempt vehicular or pedestrian travel and use of public rights-of-way.

C. Except as otherwise provided in, or determined pursuant to, subsection (D), a required security plan must first be approved by the chief of police or their designee and shall include the requirement for additional security personnel the Henderson Police Department determines necessary for the special event above the requirements listed in subsection 8.10.090(B). The decision whether to approve a security plan under this section shall be based on the considerations set forth in subsection (B).

D. A special event coordinator may file a request for review concerning a decision by the chief of police or their designee under this section in order to propose alternative security measures. Such a request must be filed within ten calendar days to the city manager, or their designee, by filing written notice of appeal with the city manager's office. Unless the city manager or their designee finds good cause for a delay of up to ten additional calendar days, the city manager or designees shall hear the appeal and render a decision within ten calendar days after receipt of the appeal. It is the appellant's burden to present the city manager or their designee any and all facts and mitigating circumstances in support of the appeal. The city manager or their designee must base their decision whether to affirm the denial of an application for a permit upon the criteria listed in this section, and may not continue the hearing on appeal without the applicant's consent.
(Ord. No. 3900, § 6, 8-23-2022)

8.10.080 Insurance requirements.

A. This section shall be deemed to be incorporated in its entirety in any application for any special event permit, other than one for a block party. By filing an application for a special events permit the applicant thereby represents, stipulates and contracts as follows:

1. If the application is made on behalf of any other person, organization, firm, or corporation, that the applicant is fully authorized to act and contract for such other person, organization, firm or corporation; and

2. That the applicant and any other persons, organizations, firms and corporations on whose behalf the application is made contracts and agrees that they will jointly and severally indemnify and hold the City of Henderson and its agents or employees, harmless against liability for any and all claims for damages to property or injury to or death of persons arising out of or resulting from the issuance of the permit or the conduct of the special event or its participants.

B. No permit shall be issued, except for a block party, unless the applicant secures such policies of commercial general liability, automobile liability, and worker's compensation as the risk manager may require. Any such policies:

1. Must be issued by one or more insurance companies authorized to do business in Nevada, with Best's rating of A or better, with coverage for any claim, demand or action arising from said special event;

2. Must name the City of Henderson as an additional insured; and

3. Must have policy limits in amounts determined by the City of Henderson risk manager.

C. If the permittee is a self-insured governmental entity organized under the laws of Nevada, the risk manager may waive the insurance requirements in this section provided that the governmental entity, through its chief executive officer or his designee, provides a satisfactory declaration that it is self-insured.
(Ord. No. 3900, § 7, 8-23-2022; Ord. No. 3011, § 1, 5-21-2013; Ord. 2398, § 1 (part), 2005; Ord. 2020, § 2 (part), 2000)

8.10.090 Safety protection—Barricades—Cost of police protection.

A. Every permittee shall, at their own expense, provide barricades and warning devices where such protection is found necessary for the public safety by the public works department or the Henderson Police Department. The public works department and the Henderson Police Department shall determine the type and location of all barricades and warning devices.

B. Permittee shall be responsible for any and all additional police cost incurred as a consequence of a special event. The number and type of officers shall be determined and specified by the chief of the Henderson police department or their designee to provide for the public safety and protection of public property in and around the area of the special event. The chief of police or their designee shall base this decision on the size, location, duration, time and date of the event, the expected sale or service of alcoholic beverages, the number of streets and intersections blocked, and the need to detour or preempt citizen travel and use of the streets and sidewalks. If off-duty personnel are determined to be necessary to police the event, the applicant shall have to pay for such police protection as designated in section 8.01.020. Police protection requirements for special events are as follows:

1. Police officers: A minimum of one law enforcement officer for every 500 persons expected to be in attendance shall be required;

2. Sergeants: A minimum of one sergeant for every six to ten police officers;

3. Lieutenants: A minimum of one lieutenant for every three sergeants;

4. Captains: A minimum of one captain for every three lieutenants.

C. Where the chief of police or their designee specifies the employment of off-duty peace officers to meet the requirement of this chapter, the peace officers shall be under the complete direction and control of the Henderson Police Department. The chief of police or their designee must be satisfied that the requisite number of peace officers will be provided at all times of operations, plus any specified time prior to and following the special event.

D. The chief financial officer or their designee shall establish the rates and then on July 1 of each year or as soon as practicable thereafter make adjustments to them as necessary to accurately reflect the average costs of the officers' services.

E. The chief financial officer's rates shall take into consideration the officers' rank, rate of pay for the type of hours worked, and the cost of employee benefits. The chief financial officer's rates shall be maintained in the office of the city clerk.
(Ord. No. 3900, § 8, 8-23-2022; Ord. No. 3011, § 1, 5-21-2013; Ord. 2788, § 2, 1-6-2009; Ord. 2125, § 2, 2002; Ord. 2020, § 2 (part), 2000)

8.10.100 Litter collection.

A. Every permittee shall provide for the collection and removal of all trash, garbage and litter caused by or arising out of such special event. Permittee shall be responsible for any and all additional costs incurred by the City of Henderson as a consequence of such special event.

B. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3011, § 1, 5-21-2013; Ord. 2020, § 2 (part), 2000)

8.10.110 Claims for damages.

Every permittee shall agree to assume the defense of and indemnify and hold harmless the City of Henderson, its council, boards, officers, employees and agents, from all suits, actions, damages or claims to which they may be subject of any kind or nature whatsoever resulting from or caused by or arising out of or as a consequence of such special event and the activities in connection therewith.
(Ord. 2020, § 2 (part), 2000)

8.10.120 Compliance with law prior to issuance of permit.

A. Prior to issuance of a permit under this chapter, all applicable ordinances, rules and regulations shall be complied with and all required permits and licenses shall be secured in connection with such special event, or the proposed activities associated therewith including, but not limited to, the sale of food, beverages or other merchandise, or the use of candles, torches, fires, pyrotechnics or other combustibles.

B. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3011, § 1, 5-21-2013; Ord. 2398, § 1 (part), 2005; Ord. 2020, § 2 (part), 2000)

8.10.130 Conditions for issuance of permit.

Any permit granted under this chapter may contain conditions reasonably calculated to reduce or minimize the dangers and hazards to vehicular or pedestrian traffic and the public health, safety, tranquility, morals or welfare, including, but not limited to, changes in time, duration, number of participants, or level of sound.
(Ord. 2020, § 2 (part), 2000)

8.10.140 Standards for issuance.

A. A permit shall be issued by the Henderson police department when, from a consideration of the application and from such other information as may otherwise be obtained, it finds that all of the following circumstances exist unless waived by the chief of police or their designee:

1. The permit application has been approved by the following departments or agencies:

a. City of Henderson police department;

b. City of Henderson public works department;

c. City of Henderson fire department;

d. City of Henderson risk manager;

2. The permittee has obtained the insurance or bond as required by section 8.10.080.

3. If any state roadway is part of the area to be used for a special event, the permittee has obtained any and all necessary permits and approval from the Nevada Department of Transportation and the Nevada Highway Patrol;

4. The permittee has contracted with the City of Henderson to provide the necessary additional police service unless the permit is for a block party;

5. Unless the permit is for a block party, the permittee has contracted for the proper barricades and warning devices as required in a plan approved by the public works department;

6. The permittee has not knowingly and with the intent to deceive, made any false, misleading or fraudulent statement of material fact in the application for a permit or in any other document required pursuant to this chapter;

7. The permittee has met the standards in this chapter, complied with requirements of title 4 and title 19, and paid in advance any and all fees required, and agrees to such conditions as are imposed in the permit;

8. The time, duration and size of the special event will not require the diversion of so great a number of police officers as to prevent the normal police protection;

9. The concentration of persons and or equipment will not unduly interfere with proper fire and police protection, or ambulance service to area and areas contiguous to such special event;

10. The special event will not unduly interfere with the orderly operation of public roadways, sidewalks, hospitals, parks, schools, or other public and quasi-public institutions in the city;

11. The permittee has provided reasonable means for informing all interested persons or persons whose commercial interests may be adversely impacted and all persons participating in such special event of the terms and conditions of such permit and applicable laws thereto;

12. The special event will not conflict with or interfere with another special event for which a permit has previously been granted;

13. In the case of a block party or other similar neighborhood event, the permittee has submitted a petition in favor of the event signed by four-fifths of the residents of the block affected by the permit;

14. Unless the permit is for a block party, the permittee has provided evidence of plans to comply with the requirements for sanitation facilities; and

15. The permittee has provided evidence of any garbage removal agreement that may be required by section 8.10.150(C).

(Ord. No. 3900, § 9, 8-23-2022; Ord. 2398, § 1 (part), 2005; Ord. 2020, § 2 (part), 2000)

8.10.150 Sanitation facilities required.

A. Except with respect to a block party, every permittee shall provide at least one enclosed flush-type water closet facility marked "Men" and one such facility marked "Women" on the premises of an assembly on the basis of one flush-type water closet for each 150 males and one for each 150 females expected to be in attendance as spectators of the special event. Urinals may be substituted for the required flush-type water closets for men on the ratio of one urinal and one flush-type water closet per 200 males.

B. Where flush-type water closets cannot be made available for the persons in attendance, portable chemical toilets may be used. Such portable chemical toilets must meet the approval of the Clark County Health District before any permit may be issued. Chemical toilets shall be emptied and recharged at the permittee's expense as necessary pursuant to procedures established by the Clark County Health District.

C. Every permittee shall be required to furnish at least one trash can with a 36-gallon capacity with a tight-fitting lid for each 5,000 square feet of assembly area, and an adequate supply of plastic bag liners to fit the trash receptacles shall be provided by the permittee, and each container shall at all times have a plastic bag liner inserted. The pickup and removal of refuse, trash, garbage and rubbish shall be at least once a day and more often if required. Evidence of agreement with a licensed refuse collector shall be filed with the City of Henderson. Removal of all trash and refuse shall be at the permittee's expense.

D. A violation of any provision of this section shall be a misdemeanor.

(Ord. No. 3011, § 1, 5-21-2013; Ord. 2020, § 2 (part), 2000)

8.10.160 Notice of denial or acceptance.

Written notice of the issuance or denial of a permit shall be provided to the applicant within 25 days of acceptance of the application or as soon as practicable if application is received in less than the normal required time.

(Ord. 2020, § 2 (part), 2000)

8.10.170 Waiver of time limitations.

The chief of the Henderson police department or his designee may waive the time limitation for filing an application if it is found that unusual circumstances or good cause exists and no unreasonable burden will be created thereby.
(Ord. 2398, § 1 (part), 2005; Ord. 2020, § 2 (part), 2000)

8.10.180 Reserved.

Editor's note—Ord. No. 3011, § 1, adopted May 21, 2013, repealed the former section 8.10.180 in its entirety, which pertained to weapons prohibited, and derived from Ord. No. 2020, § 2, adopted in 2000.

8.10.190 Prohibitions.

The following prohibitions shall apply to all special events:

A. It is unlawful for any person to stage, present, or conduct any special event without first having obtained a permit as provided in this chapter;

B. It is unlawful for any person to participate in a special event for which the person knows a permit has not been granted;

C. It is unlawful for any person in charge of, or responsible for the conduct of, a duly licensed special event to knowingly fail to comply with any condition of the permit;

D. It is unlawful for any person to engage in any special activity that would constitute a substantial hazard to the public safety or that would materially interfere with or endanger the public peace or rights of residents to the quiet and peaceful enjoyment of their property;

E. It is unlawful for any person participating in any special event to carry or possess any length of metal, lumber, wood, or similar materials for purposes of displaying a sign, poster, plaque or notice, unless such object is one-quarter inch or less in thickness and two inches or less in width, or if not generally rectangular in shape, such object shall not exceed three-quarters of an inch in its thickest dimension;

F. It is unlawful for any person to carry any sign, poster, plaque, or notice, whether or not mounted on a length of material as specified in subsection E of this section, unless such sign, poster, plaque or notice is constructed or made of a cloth, paper, or cardboard material; and

G. It is unlawful for any person to ride, drive, or cause to be ridden or driven any animal or any animal-drawn vehicle upon any public street, unless specifically authorized by the permit.

(Ord. 2384, § 2, 2005; Ord. 2020, § 2 (part), 2000)

8.10.200 Duties of permittee.

A. A permittee hereunder shall comply with all permit directions and conditions and with all applicable laws and ordinances.

B. The special events chairman or other person heading such activity shall carry the special events permit upon his person during the conduct of the special event.
(Ord. 2020, § 2 (part), 2000)

8.10.210 Public conduct during special events.

A. No person shall unreasonably hamper, obstruct or impede, or interfere with any special event or with any person, vehicle or animal participating or used in a special event.

B. No driver of a vehicle shall drive between the vehicles or persons comprising a special event when such vehicles or persons are in motion and are conspicuously designated as a special event.

C. The chief of police shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a street constituting a part of the route of a special event. The chief of police shall post signs to that effect, and it shall be unlawful for any person to park or leave unattended any vehicle in violation thereof. No person shall be liable for parking on a street unposted in violation of this chapter.

D. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3011, § 1, 5-21-2013; Ord. 2020, § 2 (part), 2000)

8.10.220 Right of appeal.

A. An applicant denied a permit by the police department may appeal that decision within ten calendar days to the city manager, or their designee, by filing written notice of appeal with the city manager's office. Unless the city manager finds good cause for a delay of up to ten additional calendar days, the city manager shall hear the appeal and render a decision within ten calendar days after receipt of the appeal. It is the appellant's burden to present the city manager any and all facts and mitigating circumstances in support of the appeal.

B. The city manager must base their decision whether to affirm denial of an application for a permit upon the criteria listed in section 8.10.140, and may not continue the hearing on appeal without the applicant's consent.
(Ord. No. 3900, § 10, 8-23-2022; Ord. No. 3451, § 3, 11-7-2017; Ord. No. 3011, § 1, 5-21-2013; Ord. 2020, § 2 (part), 2000)

8.10.230 Reserved.

Editor's note—Ord. No. 3451, § 3, adopted November 7, 2017, repealed the former section 8.10.230 in its entirety, which pertained to judicial review, and derived from Ord. No. 2020, § 2, adopted in 2000, and Ord. No. 3011, § 1, adopted May 21, 2013.

8.10.240 Revocation of permit.

Any permit for a special event issued under this chapter may be revoked by the city council or chief of police at any time when by reason of disaster, public calamity, public safety, or other emergency, they determine that the safety of persons and property demands such revocation.

(Ord. No. 3011, § 1, 5-21-2013; Ord. 2020, § 2 (part), 2000)

8.10.250 Reserved.

Editor's note—Ord. No. 3011, § 1, adopted May 21, 2013, repealed the former section 8.10.250, which pertained to penalty, and derived from Ord. No. 2020, § 2 (part), adopted in 2000.

Chapter 8.11 PARADE AND PUBLIC ASSEMBLY

Sections:

8.11.010 Definitions.
8.11.020 Permit required.
8.11.030 Exceptions.
8.11.040 Application.
8.11.050 Fees.
8.11.060 Standards for issuance.
8.11.070 Restrictions on streets and times for event.
8.11.080 Sanitation facilities required.
8.11.090 Insurance requirements.
8.11.100 Consideration of application and decision.
8.11.105 Alcoholic beverages disallowed unless specific permission is granted.
8.11.110 Litter collection.
8.11.120 Claims for damages.
8.11.130 Compliance with law prior to issuance of permit.
8.11.140 Reserved.
8.11.150 Indigency.
8.11.160 Alternative permit.
8.11.170 Notice to city and other officials.
8.11.180 Contents of permit.
8.11.190 Duties of permittee.
8.11.200 Prohibitions.
8.11.210 Public conduct during parades or public assemblies.
8.11.220 Revocation of permit.
8.11.230 Notice of denial or acceptance.
8.11.240 Safety protection—Barricades—Costs of police protection.
8.11.250 Right of appeal.
8.11.260 Reserved.
8.11.270 Reserved.

8.11.010 Definitions.

As used in this chapter:

Likely to interfere or *likely interfere* for purposes of the definitions of "parade" and "public assembly" is an objective standard that applies when a reasonable person viewing the situation in advance would anticipate significant interference with the ordinary flow of traffic. Whether an event meets the "likely to interfere" standard will turn on the reasonable expectations of the organizers of the event, given the size of the group, the precise plans for the event, whether the intention is to block traffic or avoid doing so, and the predictable conditions at the location and time the organizers have chosen.

Parade means any march, procession or motorcade upon the streets, highways, alleys, sidewalks, or other public rights-of-way with the intent of attracting public attention that interferes or will likely interfere with the normal flow or regulation of traffic, or, if in a public park or other public space, consists of 150 or more persons, including participants and spectators.

Person means any person, firm, partnership, association, corporation, company or organization of any kind.

Public assembly means any meeting, demonstration, picket line, rally or gathering of persons for a common purpose as a result of prior planning that interferes or will likely interfere with the normal flow or regulation of pedestrian or vehicular traffic, or, if in a public park or other public space, consists of 150 or more persons, including participants and spectators.

Spectator is a person who looks on; an observer. Spectators are not participants in parades or public assemblies.

Unit is a single thing or person or group that is a constituent of a whole.
(Ord. 2780, § 1, 2008; Ord. 2733, § 1, 2008; Ord. 2020, § 3 (part), 2000)

8.11.020 Permit required.

A. No person shall engage in or conduct any parade or public assembly unless a permit is issued by the chief of the Henderson police department or his designee, and shall not conduct, manage or participate in any parade or public assembly in violation of, or in any manner contrary to, the provisions of such permit. The parade or public assembly permit is in addition to any other permits required by the Uniform Fire Code adopted in chapter 15.32, or any other required permits.

B. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3012, § 1, 5-21-2013; Ord. 2020, § 3 (part), 2000)

8.11.030 Exceptions.

This chapter shall not apply to the following:

A. Funeral processions;

B. Students going to and from school classes or participating in educational activities, provided that such conduct is under the immediate direction and supervision of the proper school authorities; and

C. The City of Henderson's participation in a special event, except that the risk manager shall retain the right to impose those requirements in this chapter, or any other reasonable requirement that (s)he deems appropriate for the public safety.

(Ord. 2020, § 3 (part), 2000)

8.11.040 Application.

A. Except as provided in subsection B of this section, any person desiring to conduct or manage a parade or public assembly shall, not less than three business days in advance of parades or public assemblies involving less than 150 persons or five business days in advance of parades or public assemblies involving more than 150 persons nor more than 180 days before the date on which the person proposes to conduct such parade or public assembly, file with the Henderson police department an application on a form furnished by that department setting forth the following information:

1. The name, address and telephone number of the persons seeking to conduct such parade or public assembly;

2. The names, addresses and telephone numbers of the headquarters of the organization for which the parade or public assembly is to be conducted, if any, and the authorized and responsible heads of the organization;

3. The requested date of the parade or public assembly;

4. The location of the parade or public assembly and, if applicable, a map or diagram showing the route to be used, the starting point, termination point, and assembly and disassembly area, or other area to be used;

5. The time at which units of the parade or public assembly will begin to assemble at any such area;

6. The approximate number of persons who, and animals and vehicles which, will constitute such parade or public assembly and the type of animals and description of the vehicles;

7. The hours when such parade or public assembly will start and terminate;

8. A statement as to whether the parade or public assembly will occupy all or only a portion of the width of the streets proposed to be traversed;

9. The intervals of space to be maintained between the units of such parade or public assembly;

10. If the parade or public assembly is designed to be held by, or on behalf of, any person other than the applicant, the applicant for such permits shall file a letter from that person with the chief of the Henderson police department authorizing the applicant to apply for the permit on his behalf;

11. The type of public assembly, including a description of activities planned during the event;

12. A description of any recording equipment, sound amplification equipment, banners, signs, or other attention-getting devices to be used in connection with the parade or public assembly;

13. The approximate number of spectators anticipated;

14. A designation of any public facilities or equipment to be utilized; and

15. Any additional information or maps or diagrams that the chief of the Henderson police department finds reasonably necessary to a fair determination as to whether a permit should issued.

B. Any parade or public assembly organized for the dominant purpose of expressing the permittee's views regarding political or social issues of public concern related to events occasioned by news or affairs coming into public knowledge within five days of such parade or public assembly may file the application specified in section 8.11.040(A) no later than two business days before the parade or public assembly. For news or affairs coming into public knowledge within 72 hours of the parade or public assembly the two business day requirement shall be shortened to one business day. If the permit cannot be timely granted, the permittee may conduct a parade or public assembly on the grounds of the Henderson Civic Plaza, if not otherwise being used by or with the permission of the city for another event. The police chief or his designee may impose reasonable time, place and manner restrictions on a spontaneous event. If and only if the Henderson Civic Plaza is not available, a parade or public assembly may take place in a park or on a public sidewalk. If in a public park, the total group must not consist of more than 500 people at any given time, and each participant must not unreasonably interfere with any recreational use taking place and obey all park regulations. If on a public sidewalk, the total group must not consist of more than 150 people at any given time, must assemble or parade in smaller groups of no more than 25 with no more than two persons side by side, and each of these smaller groups must keep a distance from the other of at least 50 feet. Each participant must yield to others on the sidewalk whom he or she encounters and obey all traffic laws.
(Ord. 2733, § 2, 2008; Ord. 2020, § 3 (part), 2000)

8.11.050 Fees.

A. A nonrefundable fee of $125.00 to cover administrative costs of processing the permit shall be paid to the City of Henderson by the applicant when the application is filed.

B. If the application is for the use of any City of Henderson property or if any City of Henderson services shall be required for the parade or public assembly, the applicant shall pay, prior to the issuance of a permit, the charges for those services.
(Ord. 2020, § 3 (part), 2000)

8.11.060 Standards for issuance.

The chief of the Henderson police department or his designee shall issue a permit as provided for herein when, from a consideration of the application and from such other information as may otherwise be obtained, he finds that:

A. The permit application has been approved by the following departments or agencies:

1. City of Henderson police department;

2. City of Henderson public works department;

3. City of Henderson fire department;

4. City of Henderson risk manager;

B. The permittee has obtained the insurance or bond as required by section 8.11.090;

C. If any state roadway is part of the area to be used for a parade or public assembly, the permittee has obtained any and all necessary permits and approval from the Nevada Department of Transportation and the Nevada Highway Patrol;

D. The permittee has contracted with the City of Henderson to provide the necessary additional police service;

E. The permittee has contracted for the proper barricades and warning devices as required in a plan approved by the public works department;

F. The permittee has not knowingly and with the intent to deceive, made any false, misleading or fraudulent statement of material fact in the application for a permit or in any other document required pursuant to this chapter;

G. The permittee has met the standards in this chapter, and paid in advance any and all fees required, and agrees to such conditions as are imposed in the permit;

H. The time, duration and size of the parade or public assembly will not require the diversion of so great a number of police officers as to prevent the normal police protection;

I. The concentration of persons and or equipment will not unduly interfere with proper fire and police protection, or ambulance service to area and areas contiguous to such parade or public assembly;

J. The parade or public assembly will not unduly interfere with the orderly operation of public roadways, sidewalks, hospitals, parks, schools, or other public and quasi-public institutions in the city;

K. The permittee has provided reasonable means for informing all interested persons or persons whose commercial interests may be adversely impacted and all persons participating in such parade or public assembly of the terms and conditions of such permit and applicable laws thereto;

L. The parade or public assembly will not conflict with or interfere with another special event, public assembly, parade, reservation granted under HMC [chapter] 8.99, or other planned use;

M. The permittee has provided evidence of plans to comply with the requirements for sanitation facilities; and

N. The permittee has provided evidence of any garbage removal agreement that may be required by section 8.11.080(C).

(Ord. 2780, § 3, 2008; Ord. 2397, § 1 (part), 2005; Ord. 2020, § 3 (part), 2000)

8.11.070 Restrictions on streets and times for event.

A. No permit shall be granted to use Water Street, US Highway 93 (Boulder Highway), State Route 146 (Lake Mead Drive), except on Saturdays and Sundays and legal holidays between one hour after sunrise and one hour before sunset.

B. Any application for an event to use any street or highway under control of the State of Nevada Department of Transportation must also have the approval of both the Nevada Highway Patrol and the Department of Transportation.

C. Parade or public assembly permits will only be issued for the times between one hour after sunrise and one hour before sunset.

(Ord. 2020, § 3 (part), 2000)

8.11.080 Sanitation facilities required.

A. Every permittee shall provide at least one enclosed flush-type water closet facility marked "Men" and one such facility marked "Women" on the premises of a parade or an assembly the basis of one flush-type water closet for each 150 males and one for each 150 females expected to be in attendance as spectators of the special event. Urinals may be substituted for the required flush-type water closets for men on the ratio of one urinal and one flush-type water closet per 200 males.

B. Where flush-type water closets cannot be made available for the persons in attendance, portable chemical toilets may be used. Such portable chemical toilets must meet the approval of the Clark County Health District before any permit may be issued. Chemical toilets shall be emptied and recharged at the permittee's expense as necessary pursuant to procedures established by the Clark County Health District.

C. Every permittee shall be required to furnish at least one trash can with a 36-gallon capacity with a tight-fitting lid for each 5,000 square feet of assembly or parade area, and an adequate supply of plastic bag liners to fit the trash receptacles shall be provided by the permittee, and each container shall at all times have a plastic bag liner inserted. The pickup and removal of refuse, trash, garbage and rubbish shall be at least once a day and more often if required. Evidence of agreement with a licensed refuse collector shall be filed with the City of Henderson. Removal of all trash and refuse shall be at the permittee's expense.

D. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3012, § 1, 5-21-2013; Ord. 2020, § 3 (part), 2000)

8.11.090 Insurance requirements.

A. This section shall be deemed to be incorporated in its entirety in any application for any parade or public assembly permit. By filing an application for a parade or public assembly permit the applicant thereby represents, stipulates and contracts as follows:

1. If the application is made on behalf of any other person, organization, firm, or corporation, that the applicant is fully authorized to act and contract for such other person, organization, firm or corporation; and

2. That the applicant and any other persons, organizations, firms and corporations on whose behalf the application is made contracts and agrees that they will jointly and severally indemnify and hold the City of Henderson and its agents or employees harmless against liability for any and all claims for damages to property or injury to or death of persons resulting from the acts or omissions of the permittee, the participants, employees, agents, and those acting in concert thereto, except that the permittee will not be held liable for the actions or omissions of spectators as long as the spectators' acts or omissions which caused damages were not actually or apparently authorized or ratified by or on behalf of the permittee.

B. No permit shall be issued unless the applicant therefore shall obtain a comprehensive general liability insurance policy, issued by an insurance company authorized to do business in Nevada with Best's rating of A or better, with coverage for any claim, demand or action arising from the act(s) or omission(s) of the permittee, its participants, employers, agents, and those acting in concert thereto, except that the permittee will not be liable for the acts or omissions of spectators as long as such acts or omissions were not actually or apparently authorized or ratified by or on behalf of the permittee. Such policy shall name the City of Henderson as an additional insured. The policy limits of such insurance shall not be less than the following: Combined single limit for bodily injury or death and property damages in an amount of $250,000.00 per occurrence. If specific permission is granted to dispense alcoholic beverages pursuant to section 8.10.065, the policy limits of such insurance shall increase to $1,000,000.00 per occurrence. If the permittee is a self-insured

governmental entity organized under the laws of Nevada, the risk manager may waive the insurance requirements in this section provided that the governmental entity, through its chief executive officer or his designee, provides a satisfactory declaration that it is self-insured.
(Ord. No. 3012, § 1, 5-21-2013; Ord. 2397, § 1 (part), 2005; Ord. 2020, § 3 (part), 2000)

8.11.100 Consideration of application and decision.

After receipt of the application, the Henderson police department must review the application and forward it to the director of public works, fire chief and the risk manager within two business days, or if the application is submitted under section 8.11.040(B), then this period of time shall be reduced to one business day.
(Ord. 2397, § 1 (part), 2005; Ord. 2020, § 3 (part), 2000)

8.11.105 Alcoholic beverages disallowed unless specific permission is granted.

A. A person who desires to dispense alcoholic beverages during a parade or public assembly must request and be granted specific written permission to do so by the chief of the Henderson police department or his designee, as well as comply with sections 8.40.010, 8.11.090, 4.36.270, and any other applicable ordinance or law.

B. The chief of the Henderson police department or his designee may grant specific permission to dispense alcoholic beverages if all of the following conditions are met:

1. The person(s) signing the permit application provide(s) all requested information.

2. The person signing the permit application agrees to be present at all times during the parade or public assembly.

3. The permittee or his designee agrees to be responsible for verifying the ages of all persons to whom alcoholic beverages are dispensed. A permittee's designee must be a co-applicant for the specific permission to dispense alcoholic beverages, and provide all information requested by the application form.

4. The permittee pays in advance for any additional police officers the chief of the Henderson police department or his designee feels may be appropriate considering that alcoholic beverages will be dispensed.

5. The permittee provides a disclaimer in any and all advertising for the parade or public assembly stating that the City of Henderson is not sponsoring the event.

6. The permittee submits with his application a map or diagram depicting the area(s) within which alcoholic beverages will be dispensed.

7. The permittee promises to make a good faith and diligent effort to ensure that attendees of the parade or public assembly do not drink nor possess any open containers of any alcoholic beverages outside of the area for the parade or public assembly.

Unless specific permission is granted pursuant to this section, a parade or public assembly permit does not allow alcoholic beverages to be dispensed or consumed, or open containers of alcoholic beverages to be possessed.

C. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3012, § 1, 5-21-2013; Ord. 2397, § 2, 2005)

8.11.110 Litter collection.

A. Every permittee shall provide for the collection and removal of all trash, garbage, and litter caused by the permittee, its employees, agents and those acting in concert thereto arising out of the parade or special assembly.

B. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3012, § 1, 5-21-2013; Ord. 2020, § 3 (part), 2000)

8.11.120 Claims for damages.

Every permittee shall agree to assume the defense of and indemnify and hold harmless the City of Henderson, its council, boards, officers, employees and agents, from all suits, actions, damages or claims to which they may be subject of any kind or nature whatsoever resulting from or caused by the conduct or omission of the permittee, its participants, employees, agents, and/or those acting in concert thereto except that the permittee will not be held liable for the acts or omissions of spectators as long as the spectators' acts or omissions were not actually or apparently ratified by or on behalf of the permittee.
(Ord. 2020, § 3 (part), 2000)

8.11.130 Compliance with law prior to issuance of permit.

Prior to issuance of a permit under this chapter, all applicable ordinances, rules, and regulations shall be complied with and all required permits and licenses shall be secured in connection with such parade or public assembly, or the proposed activities associated therewith including, but not limited to, the sale of food, beverages or other merchandise, or the use of candles, torches, fires or other combustibles.
(Ord. 2397, § (part), 2005; Ord. 2020, § 3 (part), 2000)

8.11.140 Reserved.

Editor's note—Ord. No. 3012, § 1, adopted May 21, 2013, repealed the former section 8.11.140 in its entirety, which pertained to weapons prohibited, and derived from Ord. No. 2020, § 3 (part), adopted in 2000.

8.11.150 Indigency.

A. The city manager, upon timely application of a party, person or entity requesting a parade or public assembly permit for the dominant purpose of expressing the permittee's views regarding political or social issues may, based upon the showing of good cause by said applicant, waive any or all of the costs associated with complying with the following sections of this chapter for the event in question: 8.11.050, 8.11.090 and 8.11.240, if the city manager is satisfied that the applicant is indigent.

B. The request for waiver of any or all of the above sections must be made in writing at the time the permit application is filed and on the form provided by City of Henderson police department.

C. If the applicant is not satisfied with the decision of the city manager, the applicant has the right to appeal as set forth in section 8.11.250.
(Ord. No. 3451, § 4, 11-7-2017; Ord. 2020, § 3 (part), 2000)

8.11.160 Alternative permit.

A. The chief of police, in denying an application for a parade or public assembly permit, may authorize the parade or public assembly at a date, time, location, or route different from that named by the applicant. An applicant desiring to accept an alternative permit shall, within one business day after notice of the action of the chief of police, file a written notice of acceptance with the chief of police.

B. An alternate parade or public assembly permit shall conform to the requirements of, and shall have the effect of, a parade or public assembly permit issued under this chapter.
(Ord. 2020, § 3 (part), 2000)

8.11.170 Notice to city and other officials.

Immediately upon the issuance of a parade or public assembly permit, the chief of police shall send a copy thereof to the following:

A. The city manager;

B. The fire chief;

C. The director of the department of public works; and

D. The risk manager.
(Ord. 2020, § 3 (part), 2000)

8.11.180 Contents of permit.

Any permit granted under this chapter may contain conditions reasonably calculated to reduce or minimize the dangers and hazards to vehicular or pedestrian traffic and the public health, safety, tranquility, morals or welfare, including, but not limited to, changes in time, duration, number of participants, or level of sound.

A. Each parade or public assembly permit may state the following information:

1. Starting and approximate ending time;

2. Minimum speed of parade units;

3. Maximum speed of parade units;

4. Maximum interval of space to be maintained between parade units;

5. The portions of the streets that may be occupied by the parade or public assembly;

6. The maximum length of the parade in miles or fractions thereof; and

7. Such other information as the chief of police shall find necessary to the enforcement of this chapter.
(Ord. 2020, § 3 (part), 2000)

8.11.190 Duties of permittee.

A. A permittee hereunder shall comply with all permit directions and conditions and with all applicable laws and ordinances.

B. The parade or public assembly chairman or other person heading such activity shall carry the parade or public assembly permit upon his person during the conduct of the parade or public assembly.

C. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3012, § 1, 5-21-2013; Ord. 2020, § 3 (part), 2000)

8.11.200 Prohibitions.

The following prohibitions shall apply to all parades and public assemblies:

A. It is unlawful for any person to stage, present, or conduct any parade or public assembly without first having obtained a permit as herein provided;

B. It is unlawful for any person to participate in a parade or public assembly for which the person knows a permit has not been granted;

C. It is unlawful for any person in charge of, or responsible for the conduct of, a duly licensed parade or public assembly to knowingly fail to comply with any condition of the permit;

D. It is unlawful for any person to engage in any parade or public assembly activity that would constitute a substantial hazard to the public safety or that would materially interfere with or endanger the public peace or rights of residents to the quiet and peaceful enjoyment of their property;

E. It is unlawful for any person participating in any parade or public assembly to carry or possess any length of metal, lumber, wood, or similar materials for purposes of displaying a sign, poster, plaque or notice, unless such object is one-quarter inch or less in thickness and two inches or less in width, or if not generally rectangular in shape, such object shall not exceed three-quarters of an inch in its thickest dimension;

F. It is unlawful for any person to carry any sign, poster, plaque, or notice, whether or not mounted on a length of material as specified in subsection E of this section, unless such sign, poster, plaque or notice is constructed or made of a cloth, paper, or cardboard material; and

G. It is unlawful for any person to ride, drive, or cause to be ridden or driven any animal or any animal-drawn vehicle upon any public street, unless specifically authorized by the permit.

H. A violation of any provision of this section shall be a misdemeanor.

(Ord. No. 3012, § 1, 5-21-2013; Ord. 2384, § 3, 2005; Ord. 2020, § 3 (part), 2000)

8.11.210 Public conduct during parades or public assemblies.

A. No person shall unreasonably hamper, obstruct or impede, or interfere with any parade or public assembly or with any person, vehicle or animal participating or used in a parade or public assembly. It shall not be a violation of this subsection, however, for a person to be present along the parade route or at a public assembly which is open to the general public and communicate a message opposed to that of the permittee provided that the person does not substantially prevent any other person from viewing, hearing, or otherwise participating in the message the permittee wishes to convey.

B. No driver of a vehicle shall drive between the vehicles or persons comprising a parade or public assembly when such vehicles or persons are in motion and are conspicuously designated as a parade or public assembly.

C. The chief of police shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a street constituting a part of the route of a parade or public assembly. The chief of police shall post signs to that effect, and it is unlawful for any person to park or leave unattended any vehicle in violation thereof. No person shall be liable for parking on a street unposted in violation of this chapter.

D. A violation of any provision of this section shall be a misdemeanor.
(Ord. No. 3012, § 1, 5-21-2013; Ord. 2780, § 2, 2008; Ord. 2020, § 3 (part), 2000)

8.11.220 Revocation of permit.

The chief of police and the city council shall have the authority to revoke a parade or public assembly permit instantly upon any violation of the conditions or standards for issuance as set forth in this chapter or when a public emergency arises where the police resources required for that emergency are so great that deployment of police services for the parade or public assembly would have an immediate and adverse effect upon the welfare and safety of persons or property.
(Ord. No. 3451, § 4, 11-7-2017; Ord. No. 3012, § 1, 5-21-2013; Ord. 2020, § 3 (part), 2000)

8.11.230 Notice of denial or acceptance.

Written notice of the decision of the chief of police with respect to the permit shall be provided to the applicant within five business days of acceptance of the application. In the event that the application is made pursuant to section 8.11.040(B), the applicant must be provided such form of notice as is best calculated to result in actual notice within 24 hours of acceptance of the application.
(Ord. 2020, § 3 (part), 2000)

8.11.240 Safety protection—Barricades—Costs of police protection.

A. Every permittee shall, at his own expense, provide barricades and warning devices where such protection is found necessary for the public safety by the public works department. The public works department shall determine the type and location of all barricades and warning devices.

B. Permittee shall be responsible for any and all additional police cost incurred as a consequence of a parade or public assembly. The number and type of officers shall be determined and specified by the chief of the Henderson police department to provide for the public safety and protection of public property in and around the area of the parade or public assembly. The chief of police shall base this decision on the size, location, duration, time and date of the event, the expected sale or service of alcoholic beverages, the number of

streets and intersections blocked, and the need to detour or preempt citizen travel and use of the streets and sidewalks. The speech content of the event shall not be a factor in determining the amount or type of police protection necessary, and no regard shall be given to any estimate of the number of persons who may be anticipated to be in the vicinity of the parade or public assembly as counter-demonstrators or to show hostility to any message that the permittee may be perceived as having. If off-duty personnel is determined to be necessary to police the event, the applicant shall have to pay for such police protection as designated in section 8.01.020. One sergeant shall be required for three or more police officers. The finance director shall establish the rates and then on July 1 of each year or as soon as practicable thereafter make adjustments to them as necessary to accurately reflect the average costs of the officers' services. The finance director's rates shall take into consideration the officers' rank, rate of pay for the type of hours worked, and the cost of employee benefits. The finance director's rates shall be maintained in the office of the city clerk.

(Ord. 2788, § 3, 1-6-2009; Ord. 2020, § 3 (part), 2000)

8.11.250 Right of appeal.

A. An applicant denied a permit by the police department may appeal that decision within ten calendar days to the city manager, or their designee, by filing written notice of appeal with the city manager's office. Unless the city manager finds good cause for a delay of up to ten additional calendar days, the city manager shall hear the appeal and render a decision within ten calendar days after receipt of the appeal. It is the appellant's burden to present the city manager any and all facts and mitigating circumstances in support of the appeal.

B. The city manager must base their decision whether to affirm denial of an application for a permit upon the criteria listed in section 8.11.060, and may not continue the hearing on appeal without the applicant's consent.

(Ord. No. 3451, § 4, 11-7-2017; Ord. No. 3012, § 1, 5-21-2013; Ord. 2020, § 3 (part), 2000)

8.11.260 Reserved.

Editor’s note—Ord. No. 3451, § 4, adopted November 7, 2017, repealed the former section 8.11.260 in its entirety, which pertained to judicial review, and derived from Ord. No. 2020, § 3, adopted in 2000, and Ord. No. 3012, § 1, adopted May 21, 2013.

8.11.270 Reserved.

Editor’s note—Ord. No. 3012, § 1, adopted May 21, 2013, repealed the former section 8.11.270 in its entirety, which pertained to penalty, and derived from Ord. No. 2020, § 3, adopted in 2000.

Chapter 8.12 CONTRIBUTING TO DELINQUENCY OF MINORS

Sections:

8.12.010 Contributing to the delinquency of minors unlawful.
8.12.020 Penalty for violation.
8.12.030 Minor defined.

8.12.010 Contributing to the delinquency of minors unlawful.

It shall be unlawful for any person to permit, aid or compel a person under the age of 18 years to commit any unlawful, dangerous or immoral act, where there is risk of injury to the morals, health or safety of such persons under the age of 18 years, or expose a person under the age of 18 years to risk of injury to said minor's health, morals or safety.
(Ord. No. 3013, § 1, 5-21-2013; Ord. 73, § 1, 1954)

8.12.020 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.
(Ord. No. 3013, § 1, 5-21-2013; Ord. 1492, § 3, 1994; Ord. 150, 1955; Ord. 73, § 2)

8.12.030 Minor defined.

For the purposes of this chapter all persons under the age of 18 years and who have not been declared emancipated pursuant to NRS 129.080 to 129.140 shall be considered minors.
(Ord. No. 3013, § 1, 5-21-2013)

Chapter 8.28 HOTEL REGISTERS

Sections:

8.28.010 Public register required—Inspection.
8.28.020 Penalty for violation.

8.28.010 Public register required—Inspection.

Every person within the limits of the city who keeps, maintains or controls any hotel, rooming house or lodging house, shall provide, keep and maintain a public register, and shall require every person who rents or occupies a room in such hotel, rooming house or lodging house to register his name and place of residence. Such registration shall also include the date and the time of day the person rents, or arranges to occupy a room. Such hotel, rooming house or lodging house register may be inspected by any member of the police force or other peace officer of the city, business license officer or code enforcement officer as long as such inspection complies with federal and state law.
(Ord. No. 3331, § 1, 2-2-2016; Ord. No. 3015, § 1, 5-21-2013; Ord. 11, § 1, 1953)

8.28.020 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.
(Ord. No. 3015, § 1, 5-21-2013; Ord. 1492, § 7, 1994; Ord. 109, 1955; Ord. 11, § 2, 1953)

Chapter 8.32 DANGEROUS FIREWORKS*

Sections:

8.32.010 Dangerous fireworks prohibited.
8.32.020 Penalty for violation.

8.32.010 Dangerous fireworks prohibited.

1. It shall be unlawful for any person to possess, store, to offer for sale, expose for sale, sell at wholesale or retail, otherwise provide to another person, or use or explode any dangerous fireworks in the city.

2. Dangerous fireworks will be seized.

3. Dangerous fireworks which have been seized will be disposed of by the Henderson fire department.

Definitions:

1. "Fireworks" includes any combustible or explosive composition, or any substance or combination of substances, or article prepared for the purpose of producing a visible or an audible effect by combustion, explosion, deflagration or detonation.

2. "Dangerous fireworks" are fireworks which do not comply with the City of Henderson Fire Safety Guidelines including, but are not limited to, the following:

a. Firecrackers, M-80s, M-100s, salutes and other articles which explode;

b. Fireworks that provide an aerial display;

c. Skyrockets and rockets, including all devices which employ any combustible or explosive material and which rise in the air during discharge;

d. Roman candles, including all devices which discharge balls of fire into the air;

e. Cannons, canes, pistols or other devices designed for use otherwise than with paper caps;

f. Fireworks compositions that may ignite spontaneously or undergo marked decomposition when subjected for 48 consecutive hours to a temperature of 167° Fahrenheit;

g. Sparklers more than ten inches in length or one-fourth inch in diameter;

h. Torpedoes of all kinds including those which explode on impact;

***Editor's note—**Ord. No. 3033, § 1, adopted July 2, 2013, amended chapter 8.32 in its entirety to read as herein set out. Formerly, chapter 8.32, §§ 8.32.010—8.32.030, pertained to disorderly conduct, and derived from Ord. No. 46, § 1, adopted in 1953; Ord. No. 2001, §§ 1, 2, adopted in 2000, and Ord. No. 2959, § 1, adopted March 6, 2012.

i. Any fireworks that incorporate or utilize a detonator or blasting cap;

j. Fireworks which explode through means of friction;

k. Fireworks kits which are any assembly of materials or explosive substances, designed and intended by the seller to be assembled by the consumer and when so assembled would come within this definition;

i. Devices that travel a distance on the ground exceeding a ten-foot radius.

3. "Consumer fireworks" are those fireworks identified as "Safe and Sane fireworks" and do not explode and do not provide aerial displays and comply with City of Henderson Fire Safety Guidelines.

4. Exceptions.

a. Consumer fireworks as defined above.

b. Outside fireworks displays that have been permitted in accordance with HMC 15.32.050.

(Ord. No. 3451, § 5, 11-7-2017; Ord. No. 3033, § 1, 7-2-2013)

8.32.020 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.

(Ord. No. 3033, § 1, 7-2-2013)

Chapter 8.36 FIRES*

Sections:

8.36.010 Interference with water supply.

8.36.010 Interference with water supply.

It shall be the duty of each and every person, or the agent, servant or employee of any person, who uses or is entitled to use water from the water system which is used or entitled to be used by the city for the extinguishment of fires, to shut off and prevent the flowing and use of any water for sprinkling or watering lawns, trees or gardens upon the premises of such person, immediately after the alarm of fire is sounded or given in the city, and the above mentioned persons shall refrain from the use of or allowing the water to flow for such purposes until the fire, if any, is fully extinguished. Any person, or the agent, servant or employee of any person above mentioned, who shall violate any of the provisions of this section shall be guilty of a misdemeanor.
(Ord. No. 3033, § 1, 7-2-2013)

***Editor's note—**Ord. No. 3033, § 1, adopted July 2, 2013, amended chapter 8.36 in its entirety to read as herein set out. Formerly, chapter 8.36, §§ 8.36.010—8.36.030, pertained to similar subject matter, and derived from Ord. No. 7, §§ 5, 8, 9; Ord. No. 106, adopted in 1955, and Ord. No. 1492, § 9, adopted in 1994.

Chapter 8.37 CAMPING AND SIMILAR ACTIVITIES*

Sections:

8.37.010 Purpose/findings; definitions.
8.37.020 Definitions.
8.37.030 Camping—Prohibitions.
8.37.040 Laying down, sleeping, or storing, maintaining, or placing personal property in public places, public building, the public right-of-way, or other paths.
8.37.050 Enforcement.
8.37.060 Stored property—Impoundment.
8.37.070 Notice; storage and disposal.
8.37.080 Outdoor fires prohibited on public land without permit.
8.37.090 Outdoor fires prohibited on private land without permit.
8.37.100 Penalty.

8.37.010 Purpose/findings; definitions.

A. Public places, public rights-of-way, and other paths within the city are created and maintained for the primary purpose of enabling pedestrians and lawfully permitted vehicles to safely and efficiently move about from place to place, facilitating deliveries of goods and services, unobstructed access for first responders in an emergency situation, and providing all potential customers and visitors with convenient access to their destinations. The acts of sleeping, laying down, or storing, maintaining, or placing personal property in public places and public rights-of-way that interferes with the primary purposes of those public places threatens the public health, safety and welfare of the public. It is the obligation of the city to keep its public places, public rights-of-way, and other paths within the city clean and available for public use, and to protect the public health, safety, and access for all citizens.

B. Public places and paths are prone to congestion and should be kept available to serve their primary purposes as set forth in this section.

C. The obstruction of overpasses, underpasses, freeway ramps, tunnels, bridges, and pedestrian bridges creates a hazardous condition to the public by disrupting the flow of traffic, which may result in the death or serious bodily injury of the individuals who create such obstruction.

D. The obstruction of flood channels, washes, and spreading grounds creates a hazardous condition to the public health and safety by interfering with the flow of stormwater drainage, which may cause death or serious bodily injury during unexpected flash floods. (Ord. No. 3967, § 1, 6-6-2023)

***Editor's note—**Ord. No. 3967, § 1, adopted June 6, 2023, repealed and reenacted chapter 8.37 in its entirety to read as herein set out. Formerly, chapter 8.37, sections 8.37.010—8.37.070 pertained to camping—outdoor fires, and derived from Ord. No. 1989, § 1, adopted in 2000; Ord. No. 2047, § 1, adopted in 2001, and Ord. No. 3033, § 1, adopted July 2, 2013.

8.37.020 Definitions.

As used below, the words and terms defined in this section have the meanings ascribed to them unless a different meaning clearly appears in the context where used, or unless specifically defined in an applicable section.

Authorized officer means any peace officer, fire inspector, environmental enforcement officer, code enforcement officer, or neighborhood services coordinator.

Camp or *camping* means:

1. Making a campfire;

2. Setting up or using camp paraphernalia, a tent, a shelter, or other structure as temporary living accommodations;

3. Sleeping outdoors; or

4. Carrying on cooking activities using a personal cooking apparatus or using permanent charcoal grills provided by the parks and recreation department in violation of HMC Chapter 2.27.

Camping paraphernalia means equipment or supplies that are used by a person or persons to facilitate camping, which includes but is not limited to lanterns, latrines, tents, huts, cots, beds, sleeping bags, bedrolls, knapsacks, hammocks, canvases, or other similar type of equipment or supplies.

Contaminated property means any personal property which may pose a health risk to city personnel, their vendor(s), or the public. Contaminated Property shall include all property which may be:

1. Visibly soiled with feces or urine.

2. Stained with blood.

3. Items which are wet, presenting mold concerns.

4. Oils, chemicals, unknown liquids, or any other fluid containing vessel which is not factory sealed.

5. Any other personal property which the Nevada Occupational Safety and Health Administration, the Nevada Department of Environmental Protection or the Southern Nevada Health District deems to be a health hazard.

Dangerous items mean, for purposes of this chapter, those items that present a hazard to the health and safety of city personnel or the public. These items include, but are not limited to, hazardous materials, flammable materials (e.g., propane tanks), fabric contaminated with human or animal waste, fabric contaminated with flammable substances (e.g., oil or petroleum products), or wet fabric (mold hazard).

Personal property means an item that is:

1. Reasonably recognizable as belonging to a person;

2. In its present condition has apparent utility and/or value; and

3. Is not hazardous or unsanitary.

Public place shall have the same meaning as in HMC 1.03.010.

Public building shall mean any real property, structure or facility, owned, leased or occupied by the city which is used for the transaction of public or quasi-public business.

Owner means any person, whether residing, located or domiciled within or outside the State of Nevada, having title to the subject property. For the purposes of service of notice, owner shall also mean the owner's local designated agent or representative.

Special events may include, but are not limited to, programs operated by the city departments, youth or school events, marathons, sporting events, or music festivals.

Spreading ground means an open area of public land that collects or conveys surface water generated through a natural process such as rainfall or through artificial means via irrigation or dust control, resulting in the percolating and infiltration of water into groundwater basins.

Temporary shelter means tents, tarps, huts, lean-tos, tarps, cardboard boxes, or any type of structure or cover that provides partial shelter from the elements, other than clothing.
(Ord. No. 3967, § 1, 6-6-2023)

8.37.030 Camping—Prohibitions.

A. It is unlawful for any person to camp in the following areas, except as otherwise provided by this Code or where specifically designated by the owner of such property:

1. Any public right-of-way;

2. Any trail, park, or park facility;

3. Any public building, publicly-owned parking lot or publicly-owned land, improved or unimproved; or

4. Any public property where camping obstructs or interferes with the intended public use of the property.

B. Exceptions:

1. In the event of an emergency circumstance such as earthquake, fire, flood, explosion, or other natural disaster, temporary camping may be authorized as decreed in a declaration of emergency issued pursuant to HMC 2.24.060.

2. The city manager/CEO, or his or her designee may, at his or her discretion, issue a permit to establish, maintain and operate a camp or a temporary shelter in connection with a special event. The city manager/CEO, or designee, may consult with city or county departments, such as the health department, and the public prior to issuing any temporary permits. Those consulted may provide comments and suggestions regarding health, safety, and public welfare, thereby providing recommendations on whether the temporary permit should be issued outright, issued with conditions, or denied. The city may establish a fee to be paid for issuance of the special event permit to operate a camp or a temporary shelter in connection with a special event.

a. If a permit is issued for a special event, that permit shall be posted in a conspicuous place during the duration of the camp or temporary shelter's existence at the event.

b. Should the special event's camp or temporary shelter(s) violate any terms set forth by the permit issued by the city, the permit shall be revoked immediately until the set terms are met again.

3. The director of the parks and recreation department may issue a permit authorizing persons or groups to camp in a park or park facility pursuant to section 2.27.030 of the HMC.

C. No person shall camp upon any private property without the express written consent of the property owner or the owner's agent, and only in such locations where camping may be conducted in accordance with any other applicable city law.

1. It is not intended by this section to prohibit overnight camping on private residential property by friends or family of the property owner, so long as the owner consents and the overnight camping is limited to not more than one night where the camping is in the rear yard, or in an area of a side yard or front yard not within view outside of the private property line.

2. It is not intended to prohibit or make unlawful, activities of an owner of private property or other lawful user of private property that are normally associated with and incidental to the lawful and authorized use of private property for residential or other purposes; further, nothing is intended to prohibit or make unlawful, activities of a property owner or other lawful user if such activities are expressly authorized by the City of Henderson Development Code or other laws and regulations.

3. Nothing stated is intended to make it unlawful to possess or transport camp facilities or camp paraphernalia on private property or city park or park facility with a properly issued special event permit pursuant to HMC 2.27.035.

D. If an unattended campsite appears to be abandoned on city property or upon private property without the owner's consent, removal of the campsite may occur by the appropriate city agency after the written notice required by subsection 8.37.070 B. is provided. (Ord. No. 3967, § 1, 6-6-2023)

8.37.040 Laying down, sleeping, or storing, maintaining, or placing personal property in public places, public building, the public right-of-way, or other paths.

A. No person shall obstruct or interfere with the access to any public place, public building, public right-of-way, or other paths:

1. By laying down, sleeping, or by storing, maintaining, or placing personal property, in a manner that impedes passage, as provided by the Americans with Disabilities Act of 1990, Pub. L, No. 101-336, 104 Stat. 328 (1990), as amended from time to time;

2. By laying down, sleeping, or by storing, maintaining, or placing personal property, within ten feet of any operational or utilizable driveway or loading dock;

3. By laying down, sleeping, or by storing, maintaining, or placing personal property, within five feet of any operational or utilizable building entrance or exit;

4. By laying down, sleeping, or by storing, maintaining, or placing personal property, within two feet of any fire hydrant, fire plug, or other fire department connection;

5. By laying down, sleeping, or by storing, maintaining, or placing personal property, within the public right-of-way in a manner that obstructs or unreasonably interferes with the use of the right-of-way by the general public; or

6. By laying down, sleeping, or storing, maintaining, or placing personal property, in or upon any public place, public building, or other public right-of-way within any overpass, underpass, freeway ramp, tunnel, bridge, pedestrian bridge, wash, spreading ground.

B. No person shall obstruct any portion of any public place other public right-of-way open to use by motor vehicles, or any portion of a bike lane, bike path, or other public right-of-way open to use by bicycles, by laying down, or sleeping, or by storing, using, maintaining, or placing personal property, anywhere within the street, bike lane, bike path, or other public right-of-way, as specified.

C. No person shall lay down, sleep, or store, use, maintain, or place personal property, in or upon any public place or other public right-of-way within the distance stated on the posted signage (up to a maximum of 500 feet) or a property designated as a sensitive use.

For a property to be designated as a "sensitive use," the property must be a park, public plaza, recreation facility, trail, trailhead, as those terms are defined in chapter 2.27.020 of this Code.
(Ord. No. 3967, § 1, 6-6-2023)

8.37.050 Enforcement.

A. Before issuing a citation or making an arrest to enforce sections 8.37.030 and 8.37.040, an officer charged with its enforcement who observes a violation must:

1. Notify the person engaged in the prohibited conduct that he or she is in violation of this chapter;

2. Inquire whether there are available beds at a shelter in Southern Nevada and notify the person of the location and availability of the shelter; and

3. Direct the person engaged in the prohibited conduct to move to another location.

4. If an individual refuses to go to an available shelter, a citation or an arrest can be made pursuant to this chapter.

B. It is an affirmative defense to any prosecution under subsection A. if:

1. Any person so notified as described in paragraph 1. of subsection A. of this section promptly ceased, within a time reasonable under the circumstances, to engage in the prohibited conduct following such notification;

2. The person is in violation of this chapter due to a medical emergency;

3. The person is utilizing an object, placed in public place or other public right-of-way, in the manner in which it was intended, such as sitting on a bus stop or bench waiting for transportation;

4. The conduct is in conformity with the conditions of any permit issued pursuant to the city or Henderson Municipal Code;

5. The individual in violation is a passenger that is asleep while being transported by another person in or on any device or by any method otherwise legally permitted in the part of the right-of-way or other public path for vehicular or pedestrian travel being used for such travel;

6. The individual is participating in or attending a parade, festival, performance, rally, demonstration, meeting, or similar event conducted on the public place or public right-of-way pursuant to a special event or other applicable permit;

7. The individual is operating or patronizing a business with permission to occupy the sidewalk; or

8. The individual is engaging in constitutionally protected expressive activities which would otherwise be restricted by the limitations in this chapter.

C. If the minimum requirements set forth in subsection A. are met, the officer should use reasonable efforts to perform the following actions prior to arrest or issuing a citation:

1. Ascertain if the subject is in need of medical attention;

2. Use reasonable efforts to contact appropriate available social services agencies if services are needed or requested;

3. Provide information to the person of the availability of social services;

4. Direct the person engaged in the prohibited conduct to a location not subject to this chapter;

5. Coordinate with the code enforcement division of the community development and services department for the collection of personal property, as needed.

D. If no shelter or services are available, no arrest or citation will be rendered. If the violator refuses to receive the offered available assistance, the violator may be cited or arrested for appropriate violations under this chapter.
(Ord. No. 3967, § 1, 6-6-2023)

8.37.060 Stored property—Impoundment.

A. All stored personal property in violation of this chapter may be impounded by the city. In the event personal property placed on public property interferes with the safe or orderly management of the premises or poses an immediate threat to the health, safety, or welfare of the public, it may be impounded by the appropriate city agency at any time.

B. Personal property placed on public property shall be deemed to be stored personal property if it has not been removed from public property within 24 hours of service of the written notice required by section 8.37.070, which requires such removal, and the city may cause the removal and impoundment of such stored personal property.
(Ord. No. 3967, § 1, 6-6-2023)

8.37.070 Notice; storage and disposal.

A. The written notice required to be served by subsection 8.37.060 B. shall be deemed to have been served if a copy of the written notice is served on the person storing the personal property or is posted prominently and conspicuously on the stored personal property. The written notice shall contain the following:

1. A description of the personal property to be removed (such description may refer to an attached photograph).

2. The location of the personal property.

3. The date and time the notice was posted.

4. The section of the Henderson Municipal Code that is being violated.

5. A statement that the personal property will be impounded if not removed within 24 hours.

6. The location where the removed property will be stored and clear instructions explaining how to retrieve the property.

7. A statement that the impounded property will be sold or otherwise disposed of if not claimed within 30 days.

B. Impounded personal property shall be moved to a place of storage.

1. All personal property except contaminated property, dangerous items, or other items that present any health and safety risk shall be impounded.

2. The property shall be stored for a minimum of 30 days during which time it will be made reasonably available to any individual claiming ownership. Any property that remains unclaimed after 30 days may be disposed of.

3. Weapons, drug paraphernalia and items that are believed to be stolen or are evidence in a crime shall also be impounded or appropriately disposed of by the police department.

(Ord. No. 3967, § 1, 6-6-2023)

8.37.080 Outdoor fires prohibited on public land without permit.

No person shall kindle or maintain any open fire or authorize any such fire to be kindled or maintained on or in any public street, alley, road or other public ground without a permit from the fire department.

(Ord. No. 3967, § 1, 6-6-2023)

8.37.090 Outdoor fires prohibited on private land without permit.

No person shall kindle or maintain any outdoor open fire or authorize any such fire to be kindled or maintained on any private land without first having obtained a permit from the fire department. Nor shall any fire be kindled or maintained in any outdoor container unless such container has been approved by and a permit issued by the fire department. Nothing in this section shall be construed to prohibit or make unlawful the construction and use of barbecue pits, grills or outdoor fireplaces for the preparation of food for consumption by individuals on their own private property or with the permission of the owner of the private property.

(Ord. No. 3967, § 1, 6-6-2023)

8.37.100 Penalty.

A. A person who violates this chapter shall be subject to the following penalties:

1. Criminal penalties.

a. A violation of this chapter is a misdemeanor, and upon conviction, confinement of up to six months in jail and/or fines of up to $1,000.00 per violation.

b. For violations of sections 8.37.030 and 8.37.040, the city attorney's office will explore eligibility for the individual to enter into existing programs through the municipal court.

2. Civil penalties. In lieu of criminal prosecution, an individual in violation of this chapter, after receiving notice of the violation and failing to correct the violation may be assessed a civil penalty pursuant to HMC 1.05.020.

(Ord. No. 3967, § 1, 6-6-2023)

Chapter 8.38 RESERVED*

***Editor's note—**Ord. No. 3108, § 1, adopted January 7, 2014, repealed the former chapter 8.38, §§ 8.38.010—8.38.060 in its entirety, which pertained to imitation controlled substances, and derived from Ord. No. 820, § 1(part), adopted in 1982.

Chapter 8.40 LIQUOR VIOLATIONS

Sections:

8.40.010 Open container of alcohol prohibited.
8.40.020 Reserved.
8.40.030 Liquor in possession of minors prohibited.
8.40.040 Parental responsibility.
8.40.050 Penalty for violation.

8.40.010 Open container of alcohol prohibited.

A. It is unlawful for a person to consume any alcoholic or intoxicating beverage or have in his possession any open container of any alcoholic or intoxicating beverage in any public place or within a motor vehicle upon a public highway. This prohibition does not apply to persons attending the following:

1. A special event permitted pursuant to chapter 8.10 or a parade or public assembly permitted pursuant to chapter 8.11 provided that the permit does not disallow drinking alcoholic beverages, and the permittee of the special event, parade or public assembly has secured a special events permit pursuant to section 4.36.270; or

2. A city-sponsored event in which the city allows for drinking alcoholic beverages.

3. Private events that take place at the Convention Center of the City of Henderson or the Henderson Pavilion, which have been approved by the city.

4. Events at a park, recreation facility or trail where the event organizer has obtained an alcohol consumption permit pursuant to subsection 2.27.030(G).

B. "Public place" means any street, alley, sidewalk, thoroughfare, school, municipal premises, public building, vacant lot, parking lot, or the entrance to a store, hotel or motel. (Ord. No. 3693, § 1, 6-2-2020; Ord. No. 3451, § 6, 11-7-2017; Ord. No. 3155, § 1, 5-6-2014; Ord. No. 3109, § 1, 1-7-2014; Ord. 2385, § 1, 2005; Ord. 1102, 1989; Ord. 867, 1982; Ord. 856, § 1, 1982; Ord. 15, § 1, 1953)

Editor's note—Ord. No. 3451, § 6, adopted November 7, 2017, changed the title of section 8.40.010 from "Drinking in public place prohibited" to "Open container of alcohol prohibited." The historical notation has been preserved for reference purposes.

8.40.020 Reserved.

Editor's note—Ord. No. 3109, § 1, adopted January 7, 2014, repealed the former section 8.40.020 in its entirety, which pertained to gross intoxication prohibited, and derived from Ord. No. 17, § 1, adopted in 1953.

8.40.030 Liquor in possession of minors prohibited.

A. It shall be unlawful for any person under the age of 21 years to have in his possession any intoxicating or alcoholic beverage. The word "possession" under the terms of this section shall include both actual and constructive possession by consumption.

B. Consumption may be proven by presentation of evidence showing blood alcohol content through the use of a non-invasive scientific measurement device such as a preliminary breath testing device.
(Ord. No. 3109, § 1, 1-7-2014; Ord. 280, §§ 1, 2, 1960)

8.40.040 Parental responsibility.

A. It is unlawful for any person to permit his or her residence to be used by any person under the age of 21, or

B. By an invitee if the invitee is under the age of 21, as a place where alcoholic beverages are possessed, purchased or consumed.

C. A parent or guardian shall be deemed to have permitted his or her residence to be used in violation of this section if he or she authorizes such use or enables such use to occur by failing to control access to either the residence or the alcoholic beverage(s) maintained therein.
(Ord. No. 3109, § 1, 1-7-2014; Ord. 1753, § 1 (part), 1997)

8.40.050 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.
(Ord. No. 3109, § 1, 1-7-2014; Ord. 1753, § 1 (part), 1997; Ord. 280, § 3, 1960; Ord. 113, 1955; Ord. 111, 1955; Ord. 17, § 2; Ord. 15, § 2)

Chapter 8.49 RESERVED*

*__Editor's note—__Ord. No. 3116, § 1, adopted January 21, 2014, repealed the former chapter 8.49, §§ 8.49.010—8.49.060 in its entirety, which pertained to private patrolmen—security guards, and derived from Ord. No. 1755, § 1, adopted in 1997.

Chapter 8.60 PROSTITUTION AND INDECENT CONDUCT*

Sections:

8.60.010—8.60.040 Reserved.
8.60.050 Prostitution unlawful.
8.60.060 Definitions.
8.60.070 Accosting and soliciting unlawful.
8.60.080 Maintaining a place of prostitution unlawful.
8.60.090 Loitering for the purpose of soliciting unlawful.
8.60.100 Aiding and abetting unlawful.
8.60.110 Allowing premises to be used for prostitution unlawful.
8.60.120 Resorting unlawful.
8.60.130 Public urination or defecation prohibited.
8.60.140 Reserved.
8.60.150 Annoyance, molestation of or indecency toward a minor under 18 years of age.
8.60.160 Penalty for violation.

8.60.010—8.60.040 Reserved.

8.60.050 Prostitution unlawful.

It is unlawful for anyone, other than a police officer acting within the scope of his or her employment, to:

(1) Offer or agree to commit an act of prostitution;

(2) Attempt to institute an act of prostitution; or

(3) Intentionally facilitate, allow, permit, encourage, procure, negotiate or provide a fee for an act of prostitution.

(A) It is unlawful for anyone, other than a police officer acting within the scope of his or her employment, to:

(1) Secure or offer to secure another person for the purpose of committing a violation of subsection (A) of this section;

***Editor's note—**Ord. No. 3117, § 1, adopted January 21, 2014, amended chapter 8.60 in its entirety to read as herein set out. Formerly, chapter 8.60, §§ 8.60.010—8.60.100, pertained to similar subject matter, and derived from Ord. No. 25, § 5, adopted in 1953; Ord. No. 30, § 1, adopted in 1953; Ord. No. 425, §§ 2, 3, adopted in 1971; Ord. No. 1436, § 1, adopted in 1993; Ord. No. 1492, § 14, adopted in 1994, and Ord. No. 2166, § 2, adopted in 2003.

(2) Knowingly transport, offer to transport, or seek transport for a person into or within the city for the purpose of committing a violation of subsection (A) of this section, or to procure or pay for transportation for that purpose;

(3) Knowingly receive, offer or agree to receive another into any motor vehicle, place or building for the purpose of committing a violation of subsection (A) of this section;

(4) Direct another to any motor vehicle or place for the purpose of committing a violation of subsection (A) of this section;

(5) Attempt to detect the presence or identity of a police officer, or other law enforcement officer for the purpose of attempting to avoid or escape criminal liability for violating, or attempting to violate this chapter, by:

(a) Exposing or touching or seeking to expose or touch an intimate body part of another or one's self, or asking, soliciting, encouraging or attempting to procure another to do the same; or

(b) Inquiring, in any manner, as to whether another person is a police officer, or other law enforcement officer;

(6) Possess or acquire a prescription or non-prescription controlled substance for the purposes of facilitating a violation of this chapter or a benefit therefrom, including acquiring or possessing such substance to:

(a) Complete a barter, trade or exchange;

(b) Enhance sexual performance or sexual gratification; or

(c) Incapacitate another so as to steal a thing of value from such other person; or

(7) Knowingly, in any other way, aid, abet or participate in an act of prostitution or pandering.

(B) It is not a defense to a charge of offering or agreeing to an act of prostitution that there was an absence of an intent to institute, commit, engage in, procure, facilitate or carry through with an act of prostitution.

(Ord. No. 3117, § 1, 1-21-2014)

8.60.060 Definitions.

(a) "Act of prostitution" means engaging in sexual intercourse, oral-genital contact, anal-genital contact, oral-anal contact, or sado-masochistic abuse as defined in NRS 201.262, or any touching of the sexual organs or female breast of a person for monetary consideration, whether by credit, cash or check except between persons who are legally married to each other.

(b) "Fee," whether or not quantified, means anything of monetary value, service, consideration, trade, barter, exchange, accommodation, or other compensation, whether agreed to, received, offered, solicited, promised, suggested, or expected by any party to a transaction.

(c) "Prostitute" means a male or female person who, for a fee, engages in sexual intercourse, oral-genital contact, anal-genital contact, oral-anal contact, or sado-masochistic abuse as defined in NRS 201.262, or any touching of the sexual organs or female breast of a person, who is not that person's legal spouse, for the purpose of arousing or gratifying the sexual desire of either person.

(d) "Prostitution referral service" means any person who refers knowingly, or under such circumstances where a person should reasonably know that the person is referring, another for the purposes of prostitution or solicitation thereof.

(e) "Person" means a natural person, any form of business or social organization and any other nongovernmental legal entity including, but not limited to, a corporation, partnership, association, trust or unincorporated organization.

(f) "Public place" means any place of business, public building, or other building open to the general public, street, sidewalk, bridge, alley or alleyway, plaza, park, driveway, parking lot or transportation facility or the doorways and entrance ways to any building which fronts on any of the aforesaid places, or a motor vehicle in or on any such place.
(Ord. No. 3117, § 1, 1-21-2014)

8.60.070 Accosting and soliciting unlawful.

It is unlawful for any person to accost, solicit or invite another in any public place or in or from any building or vehicle by word, gesture, publication or any other means to commit, offer, agree to afford an opportunity to commit an act of prostitution.
(Ord. No. 3117, § 1, 1-21-2014)

8.60.080 Maintaining a place of prostitution unlawful.

It is unlawful for any person to own, lease, operate, maintain, reside in, visit or entice or attempt to entice another to reside in or visit any building or place with knowledge that acts of prostitution occurs therein.
(Ord. No. 3117, § 1, 1-21-2014)

8.60.090 Loitering for the purpose of soliciting unlawful.

It is unlawful for any person to remain or wander about in a public place and repeatedly beckon to, or repeatedly stop, or repeatedly attempt to stop, or repeatedly attempt to

engage passers-by in conversation, or repeatedly stop or attempt to stop motor vehicles, or repeatedly interfere with the free passage of other persons, for the purpose of prostitution, or of patronizing a prostitute.
(Ord. No. 3117, § 1, 1-21-2014)

8.60.100 Aiding and abetting unlawful.

It is unlawful for any person to knowingly in any manner aid or abet any act of prostitution, or to:

(a) Secure or offer to secure another for the purpose of committing an act of prostitution; or

(b) Knowingly transport a person into or within the county with the purpose to promote that person's engaging in prostitution, or procuring or paying for transportation with that purpose; or

(c) Knowingly receive, offer or agree to receive another into any place or building for the purpose of performing an act of prostitution, or knowingly permit another to remain there for any such purpose; or

(d) Direct another to any place for the purpose of committing an act of prostitution.

(Ord. No. 3117, § 1, 1-21-2014)

8.60.110 Allowing premises to be used for prostitution unlawful.

It is unlawful for any person, partnership, firm, association or corporation to knowingly lease or rent any hotel, motel, building, house, apartment, office, room, premises, or portion thereof to any person, partnership, firm, association or corporation to be used as, or for the purpose of using the premises for, a place of prostitution, or to knowingly suffer or permit the same to be used for prostitution.
(Ord. No. 3117, § 1, 1-21-2014)

8.60.120 Resorting unlawful.

It is unlawful for any person to resort to any public place for the purpose of inducing, enticing, soliciting for or procuring another to commit an act of prostitution.
(Ord. No. 3117, § 1, 1-21-2014)

8.60.130 Public urination or defecation prohibited.

Any person who shall defecate or urinate in any public place shall be guilty of a misdemeanor.

A. For purposes of this section, a "public place" means any street, alley, sidewalk, thoroughfare, school, municipal premises, vacant lot, parks or private property that is plainly visible from any such public place, except by proper use of a toilet or other suitable facility provided for this purpose.

B. In addition to any other penalty for this offense, the court shall order the person to pay an administrative fee of $100.00 to the City of Henderson for any clean-up costs incurred by the city.

(Ord. No. 3451, § 7, 11-7-2017; Ord. No. 3117, § 1, 1-21-2014)

8.60.140 Reserved.

Editor's note—Ord. No. 3451, § 7, adopted November 7, 2017, repealed the former section 8.60.140 in its entirety, which pertained to cross-gender use of public restrooms prohibited, and derived from Ord. No. 3117, § 1, adopted January 21, 2014.

8.60.150 Annoyance, molestation of or indecency toward a minor under 18 years of age.

A. Any person who annoys or molests a minor is guilty of a misdemeanor.

B. For the purpose of this chapter, the word "annoy" refers to conduct which would cause a reasonable person in the position of the minor or the parent or guardian of the minor to reasonably apprehend a significant threat to the minor's safety.

For the purpose of this chapter, the word "molest" refers to conduct which would cause a reasonable person in the position of the minor or the parent or guardian of the minor to reasonably apprehend the commission against the minor of sexual abuse or sexual exploitation, as defined in NRS 432B.100 or NRS 432B.110.

(Ord. No. 3117, § 1, 1-21-2014)

8.60.160 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.

(Ord. No. 3117, § 1, 1-21-2014)

Chapter 8.64 RESERVED*

***Editor's note—**Ord. No. 3115, § 1, adopted January 21, 2014, repealed the former chapter 8.64, §§ 8.64.010—8.64.040 in its entirety, which pertained to obscene materials, and derived from Ord. No. 321, §§ 1, 2, 4, adopted in 1963, and Ord. No. 1492, § 15, adopted in 1994.

Chapter 8.68 RESERVED*

***Editor's note—**Ord. No. 3114, § 1, adopted January 21, 2014, repealed the former chapter 8.68, §§ 8.68.010—8.68.040 in its entirety, which pertained to property damage, and derived from Ord. No. 22, §§ 1, 2, adopted in 1953; Ord. No. 48, §§ 1, 2, adopted in 1953; Ord. No. 49, §§ 1, 2, adopted in 1953; Ord. No. 118, adopted in 1955; Ord. No. 135, adopted in 1955; Ord. No. 136, adopted in 1955, and Ord. No. 1492, § 16, adopted in 1994.

Chapter 8.72 RESERVED*

***Editor's note—**Ord. No. 3118, § 1, adopted January 21, 2014, repealed the former chapter 8.72, §§ 8.72.010—8.72.050 in its entirety, which pertained to interference with radio reception, and derived from Ord. No. 55, §§ 1, 2, 4, adopted in 1953; Ord. No. 141, adopted in 1955, and Ord. No. 970, § 1, adopted in 1985.

Chapter 8.76 RESERVED*

***Editor's note—**Ord. No. 3119, § 1, adopted January 21, 2014, repealed the former chapter 8.76, §§ 8.76.010—8.76.110 in its entirety, which pertained to short-wave radio, and derived from Ord. No. 56, §§ 1—10-A, adopted in 1953; Ord. No. 74, adopted in 1954; Ord. No. 152, adopted in 1955, and Ord. No. 1492, § 17, adopted in 1994.

Chapter 8.84 NOISE CONTROL

Sections:

8.84.010 Legislative purpose.
8.84.020 General prohibition.
8.84.030 Specific prohibitions.
8.84.040 Exemptions.
8.84.050 Penalty for violation.

8.84.010 Legislative purpose.

The purpose of this chapter is to protect and preserve the public health and comfortable enjoyment of the people in their life and property by the regulation, control and prohibition, as a public nuisance, of excessive noise which is injurious to the public's health or unreasonably interferes with the comfortable enjoyment of life or property within the boundaries of the city.
(Ord. 2384, § 1 (part), 2005)

8.84.020 General prohibition.

A. No person shall make, continue, or cause to be made or continued:

1. Any unreasonably loud or raucous noise;

2. Any noise which unreasonably disturbs, injures, or endangers the comfort, repose, health, peace or safety of persons of ordinary sensitivity, within the jurisdictional limits of the city; or

3. Any noise which is so harsh, prolonged, unnatural or unusual in time or place as to occasion unreasonable discomfort to any persons of ordinary sensitivity within the neighborhood from which such noise emanates, or as to unreasonably interfere with the peace and comfort of neighbors or their guests, or operators or customers in places of business, or as to unreasonably and adversely affect such residences or places of business.

B. Factors for determining whether a sound is prohibited by subsection A of this section include, but are not limited to, the following:

1. The proximity of the sound to sleeping facilities, whether residential or commercial;

2. The land use, nature, and zoning of the area from which the sound emanates and the area where it is received or perceived;

3. The time of day or night the sound occurs;

4. The duration of the sound;

5. Whether the sound is recurrent, intermittent or constant; and

6. Whether the maximum sound pressure level complies with HMC Title 15.33 and HMC Title 19.

(Ord. No. 4101, § 1, 9-2-2025; Ord. 2384, § 1 (part), 2005)

8.84.030 Specific prohibitions.

The following acts, and the causing, creating or continuation thereof, are declared to be per se violations of this chapter. This enumeration does not constitute an exclusive list of the generally prohibited noises.

A. *Radios, television sets, boomboxes, musical instruments and similar devices.* Operating, playing or permitting the operation or playing of any radio, television, phonograph, stereo, drum, musical instrument, sound amplifier, or any device which produces, reproduces or amplifies sound:

1. That is plainly audible to any person (in addition to or other than the player(s) or operator(s) of the device and/or those who are voluntarily choosing to listen to the sound) and which unreasonably disturbs his peace, quiet and comfort.

2. In such a manner as to be plainly audible at a distance of 50 feet from such set or device when operated in or on a motor vehicle on a public right-of-way or public space;

B. *Loudspeakers, amplifiers, public address systems, and similar devices.* The unreasonably loud and raucous use or operation of a loudspeaker, amplifier, public address system, or other device for producing or reproducing sound between the hours of 10:00 p.m. and 7:00 a.m. on weekdays, and 10:00 p.m. and 10:00 a.m. on weekends and holidays in the following areas:

1. Within or adjacent to a residential area, school, hospital, nursing home, public library, or similar institution or place which is particularly sensitive to noise;

2. Within any real property or structures on real property, owned or operated by a government entity and normally accessible to the public if the sound is plainly audible across the real property line of the public space from which the sound emanates, and is unreasonably loud or raucous.

C. *Yelling, shouting, hooting, etc.* Yelling, shouting, hooting, whistling or singing on the public streets, between the hours of 10:00 p.m. and 7:00 a.m., or any time or place so as to unreasonably annoy or disturb the quiet, comfort or repose of any persons of ordinary sensibilities.

D. *Exhaust discharge.* To discharge into the open air the exhaust of any steam engine, stationary internal combustion engine, motor vehicle or motorboat engine except through a muffler or sound dissipation device.

E. *Building operations.* The erection (including excavation), demolition, alteration or repair of any building in any new or existing residential district or section, the excavation of streets and highways in any new or existing residential district or section, other than between the hours of 6:00 a.m. and 6:00 p.m. (see note 1 below), except in case of urgent necessity in the interest of public health and safety, and then only with a permit from the building official, which permit may be granted for a period not to exceed 30 days while the emergency continues, is hereby prohibited. If the building official should determine that the public health and safety will not be impaired by the erection, demolition, alteration or repair of any building or the excavation of streets in any new or existing residential district between the hours of 6:00 p.m. and 6:00 a.m. (see note 1 below), and if the building official shall further determine that loss or inconvenience would result to any party in interest, the building official may grant permission for such work to be done between the hours of 6:00 p.m. and 6:00 a.m. upon application being made at the time the permit for the work is awarded or during the progress of the work.

Note 1: During the period beginning on April 1 and ending on September 30 construction work may commence at 5:00 a.m. on any project that is more than 300 feet from an occupied residential unit. As used in this note, "residential unit" means a single-family residence or an individual residential unit within a larger building, including, without limitation, a condominium, townhouse, duplex or other multifamily dwelling. The term does not include a time share or other unit that is subject to the provisions of Nevada Revised Statutes chapter 119A.

F. *Noises near schools, hospitals, churches, etc.* The creation of any noise described in section 8.84.020 on any street adjacent to any school, institution of learning, church or court while the same are in session, or adjacent to any hospital, which unreasonably interferes with the workings or sessions thereof.

G. *Loading and unloading.* Loading, unloading, opening, closing or other handling of boxes, crates, containers, building materials, garbage cans, or similar objects between the hours of 11:00 p.m. and 7:00 a.m. the following day in such a manner as to cause noise described in section 8.84.020 across a residential real property boundary.

H. *Vehicle or motorboat repairs and testing.* Repairing, rebuilding, modifying, or testing any motor vehicle, motorcycle, or motorboat in such a manner as to cause a noise described in section 8.84.020 across a residential real property boundary.

I. *Emergency signaling devices.*

1. The intentional sounding or permitting the sounding outdoors of any fire, burglar, or civil defense alarm, siren whistle or similar stationary emergency signaling device, except for emergency purposes or for testing, as provided in this section.

2. **(a)** Testing of a stationary emergency signaling device shall occur at the same time of day each time such a test is performed, but not before 8:00 a.m. or after 9:00 p.m. Any such testing shall use only the minimum cycle test time. In no case shall such test time exceed 60 seconds.

(b) Testing of the complete emergency signaling system, including the functioning of the signaling device and the personnel response to the signaling device, shall not occur more than once in each calendar month. Such testing shall not occur before 8:00 a.m. or after 6:00 p.m. The time limit specified in subsection (J)(2)(a) of this section shall not apply to such complete system testing.

3. Sounding or permitting the sounding of any exterior burglar alarm or any motor vehicle burglar alarm unless such alarm is automatically terminated within 15 minutes of activation. If an activation of an alarm, even if false or accidental, occurs more than twice in a calendar month, the owner or person responsible for the alarm shall be in violation of the ordinance codified in this chapter.

(Ord. No. 4101, § 2, 9-2-2025; Ord. No. 3110, § 1, 1-7-2014; Ord. 2384, § 1 (part), 2005; Ord. 2096, § 1, 2002)

8.84.040 Exemptions.

A. Holders of special event permits or parade/public assembly permits issued by the city pursuant to chapters 8.10 and 8.11, respectively and are not exceeding any conditions established pursuant to sections 8.10.130 or 8.11.190 are exempt from the provisions of this chapter.

B. Emergency exemption. The provisions of this chapter shall not apply to:

1. Police and fire emergency vehicle and equipment;

2. The emission of sound for the purpose of alerting persons to the existence of an emergency; or

3. Sounds emitted in the performance of emergency work.

C. Fireworks display activity permitted pursuant with HMC 15.32 is exempt from the provisions of this chapter.

(Ord. No. 4101, § 3, 9-2-2025; Ord. No. 3110, § 1, 1-7-2014; Ord. 2384, § 1(part), 2005)

8.84.050 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.

(Ord. No. 3110, § 1, 1-7-2014; Ord. 1070, 1988; Ord. 982, 1985; Ord. 568, 1977; Ord. 126, 1955; Ord. 31, 1953)

Chapter 8.85 GRAFFITI

Sections:

8.85.010 Graffiti—Legislative findings.
8.85.020 Definitions.
8.85.030 Graffiti—Prohibited.
8.85.040 Spray paint, markers and paint sticks—Sale to minors prohibited.
8.85.050 Spray paint, markers and paint sticks—Display restrictions.
8.85.055 Spray paint, markers and paint sticks—Possession by minors prohibited—Rebuttable presumption of no parental permission.
8.85.060 Reward for information leading to identification, apprehension or conviction.
8.85.070 Graffiti reward and abatement account created; administrative assessment to be imposed for certain violations; use of money in account.
8.85.080 City victim.
8.85.090 Imposition of civil liability on parent(s) or guardian having custody and control of minor child who violates HMC section 8.85.030.
8.85.100 Penalty for violation.

8.85.010 Graffiti—Legislative findings.

The Henderson city council finds that:

A. Incidents of the defacement of public and private property through the application of graffiti upon walls, signs, streets, sidewalks, trees, rocks, bridges, buildings, fences, gates, other structures, and other real and personal property within the City of Henderson constitute a blight on the community, and are inimical to the health, safety and general welfare of the community.

B. Such defacement of property is most often committed by persons under the age of 18 years using aerosol containers of spray paint, broad tipped indelible markers or paint sticks.

C. When any such person has a legitimate need for aerosol containers, markers or paint sticks the same may be furnished by a parent or guardian.

D. Aerosol containers, markers or paint sticks are frequently stolen from retail stores by such persons.

E. The sale of aerosol containers, markers or paint sticks to such persons should therefore be prohibited, and persons who are engaged in the retail sale of aerosol containers, markers or paint sticks should be required to take reasonable steps to prevent the theft of such items.

F. The placement of graffiti is often done in connection with gang activities.

G. When appropriate, the courts should require those who commit acts of defacement of public or private property through the application of graffiti, to restore the property so defaced, damaged or destroyed.

H. Obtaining convictions for the application of graffiti is difficult due to the fact that the offense can be committed quickly and secretively that witnesses to the act are frequently nonexistent.

I. To eliminate graffiti in the City of Henderson, the public should be encouraged, through the promise of a reward, to cooperate with law enforcement authorities by reporting any observed incidents of the application of graffiti.

(Ord. No. 3320, § 1, 12-15-2015; Ord. 1533, § 1, 1994; Ord. 1423, § 1 (part), 1993)

8.85.020 Definitions.

As used in sections 8.85.030 through 8.85.060 the following words shall have the meaning ascribed to it as follows:

Broad tipped indelible marker or *marker* means any felt tipped marker or similar implement that contains a fluid that is not soluble in water and has a flat or angled writing surface of a width of one-quarter inch or greater.

Decal remover tool means any device using power or heat to remove an adhesive substance.

Estray means any livestock running at large upon public or private lands in the city whose owner is unknown in the section where the animal is found.

Graffiti means any unauthorized inscription, word, figure or design that is marked, etched, scratched, drawn, painted on or affixed to the public or private property, real or personal, of another, including, without limitation, an estray or one or more head of livestock, that defaces the property. The term does not include any item affixed to property that may be removed without the use of a decal remover tool, by hand without defacing the property, or through the use of a chemical or cleaning solvent commonly used for removing an adhesive substance without defacing the property.

Livestock has the meaning ascribed to it in NRS 205.219.

Paint stick means a device containing a solid form of paint, chalk, wax, epoxy, or other similar non-water soluble substance that is capable of being applied to a surface by pressure, and upon application can leave a mark of at least one-quarter inch in width.

(Ord. No. 3320, § 1, 12-15-2015; Ord. 1533, § 2, 1994; Ord. 1423, § 1 (part), 1993)

8.85.030 Graffiti—Prohibited.

Any person who engages in the placement of graffiti shall be guilty of a misdemeanor. In the case of public property, the authorization referenced herein must be in writing and signed by the chief of police or his designee prior to any inscription, word, figure or design being marked, etched, scratched, drawn, painted on or affixed thereto.
(Ord. No. 3320, § 1, 12-15-2015; Ord. 1423, § 1 (part), 1993)

8.85.040 Spray paint, markers and paint sticks—Sale to minors prohibited.

Any person who sells, offers to sell or causes to be sold any aerosol container of spray paint, broad tipped indelible marker or paint stick to any person under the age of 18 years shall be guilty of a misdemeanor.
(Ord. 1533, § 3, 1994; Ord. 1423, § 1 (part), 1993)

8.85.050 Spray paint, markers and paint sticks—Display restrictions.

A. It is unlawful for any person who sells or offers for sale aerosol containers of spray paint, broad tipped indelible markers or paint sticks to display such aerosol containers, markers or paint sticks unless contained in a locked compartment or cabinet that only the seller or its employees have access.

B. A sign with letters not less than one-half inch in height shall be posted upon or within two feet of any compartment or cabinet described in subsection (A) of this section stating:

GRAFFITI IS A CRIME!

SPRAY PAINT AND MARKERS
MUST BE LOCKED AT ALL TIMES

HMC 8.85.050

IF YOU FIND THIS AREA UNLOCKED, PLEASE CONTACT
STORE MANAGEMENT IMMEDIATELY

The letters must be black or red on a yellow or white background and the sign must be between four and six feet above floor level. Each sign must be conspicuously located and illuminated sufficient to be visible and readable by a person with normal eyesight or eyesight corrected to 20/20, ten feet from the sign.
(Ord. No. 3320, § 1, 12-15-2015; Ord. 2639, § 1, 2007; Ord. 1533, § 4, 1994; Ord. 1423, § 1 (part), 1993)

8.85.055 Spray paint, markers and paint sticks—Possession by minors prohibited—Rebuttable presumption of no parental permission.

A. It is unlawful for any person under the age of 18 to be in possession of any aerosol container of spray paint, broad tipped indelible marker or paint stick while in any public street, park, playground, recreational facility or other public place, except upon school grounds in which the minor is enrolled or upon church grounds in which the minor is a member.

B. There shall be a rebuttable presumption that a person under the age of 18 who is in possession of an aerosol container of spray paint, broad tipped indelible marker or paint stick while in any public street, park, playground, recreational facility or other public place (except upon the grounds of a school in which the minor is enrolled or upon the grounds of a church in which the minor is a member) does not have the permission of any parent or guardian.
(Ord. 1533, § 5, 1994)

8.85.060 Reward for information leading to identification, apprehension or conviction.

A. A reward of no more than $1,000.00 shall be paid to a person who, in response to an offer of a reward by the city, provides information resulting in the identification, apprehension or conviction of a person who is alleged to have violated or who violates this chapter.
(Ord. No. 3320, § 1, 12-15-2015; Ord. No. 3162, § 1, 5-20-2014; Ord. 1687, § 1, 1996; Ord. 1423, § 1 (part), 1993)

8.85.070 Graffiti reward and abatement account created; administrative assessment to be imposed for certain violations; use of money in account.

1. The graffiti reward and abatement account is hereby created in the general fund.

2. When a defendant pleads or is found guilty of violating HMC chapter 8.85 in the Henderson Municipal Court, the court shall include an administrative assessment of $250.00 for each violation in addition to any other fine or penalty. The money collected must be paid by the clerk of the court to the city finance department on or before the fifth day of each month for the preceding month for credit to the graffiti reward and abatement account.

3. The money in the graffiti reward and abatement account must be used to purchase supplies or pay for other costs incurred by the city that are directly related to graffiti abatement or to pay a reward to a person who, in response to the offer of a reward, provides information that results in the identification, apprehension or conviction of a person who is alleged to have violated or who violates this chapter.

4. If sufficient money is available in the graffiti reward and abatement account, the Henderson Police Department may offer a reward, not to exceed $1,000.00, for information leading to the identification, apprehension, or conviction of a person who is alleged to have violated or who violates this chapter. The money to purchase supplies or pay for other costs incurred by the city that are directly related to graffiti abatement or to pay a reward must be paid out of the graffiti reward and abatement account upon approval of the city manager or the authorized designee of the city manager.
(Ord. No. 3320, § 1, 12-15-2015; Ord. No. 3162, § 1, 5-20-2014)

Editor's note—Ord. No. 3162, § 1, adopted May 20, 2014, repealed and reenacted section 8.85.070 in its entirety to read as herein set out. Formerly, section 8.85.070 pertained to the effective date, and derived from Ord. No. 1423, § 1(part), adopted in 1993.

8.85.080 City victim.

In the event that graffiti is placed on any city property, or property facing or bordering a city street, road or alleyway, the city will be considered to be the victim of graffiti and suffers damage for the purpose of prosecution of any person violating any section of this chapter.
(Ord. No. 3320, § 1, 12-15-2015; Ord. 1423, § 1 (part), 1993)

8.85.090 Imposition of civil liability on parent(s) or guardian having custody and control of minor child who violates HMC section 8.85.030.

A violation of this chapter by a person under the age of 18 creates a civil cause of action that may be pursued against that minor child's parents or guardians having custody and control of the minor child by anyone who has sustained damage caused by the violation of this chapter. For purposes of this section, any reward the city pays pursuant to this chapter shall be deemed damage sustained by the city.
(Ord. No. 3320, § 1, 12-15-2015; Ord. 1676, § 1, 1996; Ord. 1651, § 1, 1996; Ord. 1423, § 1 (part), 1993)

8.85.100 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.
(Ord. No. 3162, § 1, 5-20-2014)

Chapter 8.90 STINK BOMBS

Sections:

8.90.010 Stink bombs and similar preparations prohibited.
8.90.020 Penalty for violation.

8.90.010 Stink bombs and similar preparations prohibited.

It shall be unlawful to sell or use any stink bomb or other nauseous or ill smelling preparation, designed or intended to annoy persons within the limits of the City of Henderson.
(Ord. 221, § 1, 1957)

8.90.020 Penalty for violation.

A violation of any provision of this chapter shall be a misdemeanor.
(Ord. No. 3113, § 1, 1-21-2014; Ord. 1492, § 18, 1994; Ord. 221, § 2, 1957)

Chapter 8.94 AGGRESSIVE SOLICITATION

Sections:

8.94.010 Definitions.
8.94.020 Prohibited acts.
8.94.030 Penalty.

8.94.010 Definitions.

A. *Solicit* means to request an immediate donation of money or other thing of value from another person, regardless of the solicitor's purpose or intended use of the money or other thing of value. The solicitation may be, without limitation, by the spoken, written, or printed word, or by other means of communication.

B. *Aggressive manner* means and includes:

1. Intentionally or recklessly making any physical contact with or touching another person in the course of the solicitation without the person's consent;

2. Following the person being solicited, if that conduct is: (i) intended to or is likely to cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession; or (ii) is intended to or is reasonably likely to intimidate the person being solicited into responding affirmatively to the solicitation;

3. Continuing to solicit within five feet of the person being solicited after the person has made a negative response, if continuing the solicitation is: (i) intended to or is likely to cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession; or (ii) is intended to or is reasonably likely to intimidate the person being solicited into responding affirmatively to the solicitation;

4. Intentionally or recklessly blocking the safe or free passage of the person being solicited or requiring the person, or the driver of a vehicle, to take evasive action to avoid physical contact with the person making the solicitation. Acts authorized as an exercise of one's constitutional right to picket or legally protest, and acts authorized by a permit issued pursuant to chapters 8.10 or 8.11 of the Henderson Municipal Code, shall not constitute obstruction of pedestrian or vehicular traffic;

5. Intentionally or recklessly using obscene or abusive language or gestures: (i) intended to or likely to cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession; or (ii) words intended to or reasonably likely to intimidate the person into responding affirmatively to the solicitation; or

6. Approaching the person being solicited in a manner that: (i) is intended to or is likely to cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession; or (ii) is intended to or is reasonably likely to intimidate the person being solicited into responding affirmatively to the solicitation.

C. *Automated teller machine* means a device, linked to a financial institution's account records, which is able to carry out transactions, including, but not limited to: account transfers, deposits, cash withdrawals, balance inquiries, and mortgage and loan payments.

D. *Automated teller machine facility* means the area comprised of one or more automatic teller machines, and any adjacent space which is made available to banking customers after regular banking hours.

E. *Public area* means an area to which the public or a substantial group of persons has access, and includes, but is not limited to, alleys, bridges, buildings, driveways, parking lots, parks, playgrounds, plazas, sidewalks, and streets open to the general public, and the doorways and entrances to buildings and dwellings, and the grounds enclosing them.
(Ord. 2391, § 1, 2005)

8.94.020 Prohibited acts.

It shall be unlawful for any person to solicit money or other thing of value, or to solicit the sale of goods or services:

A. In an aggressive manner in a public area;

B. In any public transportation vehicle, bus or bus stop;

C. Within 15 feet of any entrance or exit of any bank or within 15 feet of any automated teller machine during the hours of operation of such bank or automated teller machine without the consent of the owner or other person legally in possession of such facilities. Provided, however, that when an automated teller machine is located within an automated teller machine facility, such distance shall be measured from the entrance or exit of the automated teller machine facility;

D. In an aggressive manner, from any operator of a motor vehicle that is in traffic on a public street.
(Ord. 2391, § 1, 2005)

8.94.030 Penalty.

A violation of any provision of this chapter shall be a misdemeanor.
(Ord. No. 3146, § 1, 4-15-2014; Ord. 2391, § 1, 2005)

Chapter 8.98 WEAPONS AND MISSILES

Sections:

8.98.010—8.98.050 Reserved.
8.98.060 Throwing stones and missiles prohibited.
8.98.061 Unlawful discharge of firearms within city limits, exceptions.
8.98.065 Reserved.
8.98.070 Reserved.
8.98.075 Bludgeoning devices.
8.98.076 Imitation firearm.
8.98.080 Penalty for violation.

8.98.010—8.98.050 Reserved.

Editor's note—Ord. No. 3276, § 1, adopted July 21, 2015, repealed the former sections 8.98.010—8.98.050 in their entirety, which pertained to concealed weapons prohibited except by permission, police officers exempted, concealable weapons to be registered, exchange of weapons to be registered, and concealable weapon defined, respectively, and derived from Ord. No. 67, §§ 1—5, adopted in 1954.

8.98.060 Throwing stones and missiles prohibited.

It is unlawful for any person to throw stones or other missiles on any street, lane or alley within the limits of the City of Henderson.
(Ord. 220, § 1, 1957)

8.98.061 Unlawful discharge of firearms within city limits, exceptions.

A. Pursuant to NRS 202.287, the entire area within the jurisdictional limits of the City of Henderson, except as provided in subsection C of this section, is designated as a populated area for the purpose of prohibiting the discharge of weapons.

B. Except as otherwise provided in subsection C of this section, it is unlawful for any person to willfully discharge or cause to be discharged any pistol, gun or any other kind of firearm within the jurisdictional limits of the City of Henderson.

C. This section does not apply to:

1. A peace officer while engaged in the performance of his official duties;

2. One who discharges a weapon in lawful self-defense. A person who discharges a firearm while in his residence is presumed to have acted in lawful self-defense if he discharges the firearm towards one who he reasonably believes is committing a burglary or invasion of his residence.

3. That land and premises commonly known as the Henderson Police Pistol Range, 2400 Moser Street, Henderson, Nevada, and more particularly described as a portion of the southeast quarter of section 36, Township 21 South, Range 62 East M.D.M. more particularly described as lying within the west half (W 1/2) of the southeast quarter (SE 1/4) of the southeast quarter (SE 1/4) of the southwest quarter (SW 1/4) of section 36, Township 21S, Range 62E.
4. That land and premises commonly known as the Pawn and Gun Shop, 1212 North Boulder Highway, Henderson, Nevada, and more particularly described as a portion of the north half (N 1/2) of the Northeast Quarter (NE 1/4) of section 12, Township 22 South, Range 62 East, M.D.M., further described as follows:

   Commencing at the Northeast corner of section 12, Township 22 South, Range 62 East, thence South 0° 33' West 238.67 feet; thence North 89° 51' West, 1,396.72 feet, to the true point of beginning; thence North 89° 51' West, 383.52 feet; to the Easterly right-of-way of Boulder Highway; thence South 42° 27' East, along the Boulder Highway right-of-way 264.91 feet; thence departing said right-of-way South 89° 51' East, along the north right-of-way line of King Street, 204.21 feet; thence North 0° 09' East, 195.00 feet to the true point of beginning.

   Contains 1.32 acres or 57,306 square feet more or less.
5. That land and premises commonly known as the National Guard Armory shooting range, 680 Mountain View Road, Henderson, Nevada, and more particularly described as being the West 400 feet of the North 800 feet of that certain property conveyed to the State of Nevada Military District by deed recorded 8/12/69 in Book 969 as Instrument 0778359 in Clark County records.

(Ord. 1215, 1990)

8.98.065 Reserved.

Editor's note—Ord. No. 3451, § 8, adopted November 7, 2017, repealed the former section 8.98.065 in its entirety, which pertained to unlawful use of electronic stun device, and derived from Ord. No. 1018, adopted in 1986.

8.98.070 Reserved.

Editor's note—Ord. No. 3156, § 1, adopted May 6, 2014, repealed the former section 8.98.070 in its entirety, which pertained to switchblades and similar weapons prohibited, and derived from Ord. No. 219, § 1, adopted in 1957.

8.98.075 Bludgeoning devices.

A. It is unlawful within the City of Henderson, for any person, except a peace officer, to carry or possess any mace, truncheon or other bludgeoning weapon or device which has been manufactured or modified for the purpose of inflicting grievous bodily harm, without

first having received written permission to possess the same from the chief of police. Such permission shall only be given upon the determination the person applying therefor is of good moral character and is a bona fide collector or exhibitor of weapons.

B. Any person who violates any of the provisions of this section is guilty of a misdemeanor.
(Ord. No. 3451, § 8, 11-7-2017; Ord. 1492, § 20 (part), 1994; Ord. 627, § 1, 1978)

8.98.076 Imitation firearm.

It shall be unlawful for any person to:

Point, brandish, conceal, use or attempt to use any imitation firearm which substantially duplicates an actual firearm, in a manner that would be criminal if the imitation firearm were real. For purposes of this section, an imitation firearm is any object that resembles an actual firearm closely enough that a person observing it would reasonably believe it to be a firearm including any imitation, replica, toy or inoperable pistol, revolver, gun, or airgun.
(Ord. 2571, § 1, 2007)

8.98.080 Penalty for violation.

Any person who violates any of the provisions of this chapter is guilty of a misdemeanor.
(Ord. 1492, § 20 (part), 1994; Ord. 220, 1957; Ord. 219, § 2, 1957; Ord. 149, 1955; Ord. 67, § 6, 1954)

Chapter 8.99 RESERVED*

*__Editor's note—__Ord. No. 3190, § 1, adopted July 1, 2014, repealed the former chapter 8.99, §§ 8.99.010—8.99.060 in its entirety, which pertained to parks and recreation, and derived from Ord. No. 1977, § 1(part), adopted in 2000; Ord. No. 2382, § 5, adopted in 2005; Ord. No. 2384, § 4, adopted in 2005; Ord. No. 2385, § 3, adopted in 2005; Ord. No. 2466, §§ 1, 2, adopted in 2006; Ord. No. 2699, § 1, adopted in 2008; Ord. No. 2831, §§ 1—3, adopted October 20, 2009, and Ord. No. 2875, § 1, adopted October 5, 2010.

For current provisions pertaining to parks and recreation, the user's attention is directed to chapter 2.27.

Title 9

(RESERVED)

Title 10

VEHICLES AND TRAFFIC

Chapters:

10.02	Nevada Traffic Manual Adopted
10.04	Reserved
10.06	Parking Regulations Adopted
10.08	Definitions
10.12	Reserved
10.16	Enforcement, Obedience and Effect
10.18	Reserved
10.20	Traffic Control Devices
10.23	Reserved
10.24	Speed Regulations
10.28	Reckless and Negligent Driving
10.32	Reserved
10.34	Charitable Solicitations While Standing on Median Strip or Sidewalk
10.36	Intersections
10.40	Turning, Starting and Stopping—Signals
10.44	Miscellaneous Driving Rules
10.48	Pedestrians' Rights and Duties
10.54	Reserved
10.58	Off-Road Use of Motor Vehicles
10.59	Excessive Vehicle Noises
10.60	Truck Routes
10.62	Operation of Golf Carts on Streets
10.64	Penalties and Procedure on Arrest

Chapter 10.02 NEVADA TRAFFIC MANUAL ADOPTED

Sections:

10.02.010 Adopted.
10.02.020 Violation—Penalty.

10.02.010 Adopted.

Language in this title conforms to the Manual on Uniform Traffic Control Devices, 2009 edition as revised, copies of which are on file in the office of the Henderson city clerk. (Ord. No. 3157, § 1, 5-6-2014; Ord. 545, § 1, 1976)

10.02.020 Violation—Penalty.

Except as otherwise provided for as a civil infraction under state law, any person violating any of the terms and provisions of this chapter shall be deemed guilty of a misdemeanor. (Ord. No. 3968, § 1, 6-6-2023; Ord. 1492, § 22, 1994; Ord. 545, § 2, 1976)

Chapter 10.04 MODEL TRAFFIC ORDINANCE ADOPTED—AMENDMENTS

Sections:

10.04.010 Adoption.
10.04.020 Amendments and deletions.

10.04.010 Adoption.

The City of Henderson adopts as its rules and regulations for the control of traffic within the City of Henderson, Nevada, the Model Traffic Ordinance adopted by the National Committee on Uniform Traffic Laws and Ordinances as adopted in 1962, as revised, with the following additions and deletions.
(Ord. 360, 12-20-1965)

10.04.020 Amendments and deletions.

The following are the amendments and deletions to be found in the Model Traffic Ordinance:

ARTICLE II

Section 2-12 is changed to read as follows:

(a) There is hereby established a traffic commission to serve without compensation, consisting of the mayor, city manager, chief of police, municipal judge, city attorney, director of public works, and three lay members to be appointed by the above-mentioned officers.

ARTICLE III

Delete sections 3-9, 3-10 and 3-11.

ARTICLE V

Delete all of article V (Model Traffic Ordinance) replace with Article V, Speed Regulations, section 5-1 through section 5-7.

ARTICLE VII

Section 7-1 through section 7-3, delete all of article VII (Model Traffic Ordinance) replace with article VII, Driving on Right Side of Roadway, Overtaking and Passing—Use of Roadway, section 7-1 through section 7-13.

ARTICLE VIII

Delete section 8-6.1.

ARTICLE VI

Same as article IX, Turning and Starting and Signals on Stopping and Turning.

ARTICLE IX

Same as article X, Miscellaneous Driving Rules.

ARTICLE X

Delete section 10-1 through 10-8.

ARTICLE XIII

Same as article XII in new ordinance.

ARTICLE XV

Has been combined with article XII of new ordinance.

ARTICLE XVI

Same as article XIII in new ordinance.

ARTICLE XIX

ARTICLE XVIII

Delete.

Article XIV of Model Traffic Ordinance amended—Wherein section 14-1 of new ordinance is inserted in place of sections 17-1 and 17-2 of Model Traffic Ordinance and section 14-2 of new ordinance in place of 17-3 of Model Traffic Ordinance.

(Ord. 360, 12-20-1965)

Chapter 10.06 PARKING REGULATIONS ADOPTED

Sections:

10.06.010 Adopted.
10.06.020 Unlawful parking of commercial vehicles.
10.06.030 Unlawful parking of recreational vehicles.
10.06.040 Abandoned vehicles on public roads or property.
10.06.050 Public nuisance.
10.06.060 Violation notice—When towing allowed—Other penalties.

10.06.010 Adopted.

The provisions of the Nevada Revised Statutes, NRS 484B.440 to NRS 484B.533, inclusive, are adopted and incorporated herewith as if fully set forth herein. The commission of any parking infraction mentioned in NRS 484B.440 to NRS 484B.533, inclusive, within the corporate limits of the City of Henderson is unlawful.
(Ord. No. 3169, § 1, 6-3-2014; Ord. 1663, § 5, 1996)

10.06.020 Unlawful parking of commercial vehicles.

1. It is unlawful to stand, park or store a commercial vehicle, trailer, mobile billboard, or any combination of vehicle and trailer having an overall length of 24 feet or more or an unladen weight greater than 10,000 pounds:

(a) On any public street or public right-of-way in or adjacent to any residential district;

(b) On any public street or public right-of-way adjacent to any public school or public park; and

(c) On any public street or public right-of-way where the city has posted signs prohibiting the parking of such vehicles.

2. The provisions of subsection 1 do not apply to:

(a) A commercial vehicle that is parked in front of property from which or to which goods or passengers are being picked up or delivered, but only for that period during which goods or passengers are being expeditiously loaded or unloaded. In no event may the commercial vehicle stand or park between the hours of 7:00 p.m. and 7:00 a.m.;

(b) A commercial vehicle that is being used in conjunction with the performance of service, repair, construction or similar essential use within the immediate neighborhood and is parked in front of the property where the work or construction is being performed; and

(c) Any vehicle parked as permitted by posted sign.

3. For purposes of this chapter, "commercial vehicle," and "trailer" shall have the definitions set forth in HMC title 19, chapter 19.37.

4. For purposes of this chapter, "mobile billboard" means one or more sign structures that are mounted on a vehicle or trailer and are used for general advertising or advertising for hire. The term does not include signs that are displayed or installed on:

(a) A bus, taxicab or similar vehicle that is used primarily for the purpose of transporting multiple passengers; or

(b) A vehicle operated in the normal course of the vehicle owner's business, if the signs contain advertising or identifying information directly related to the business and are not used to display advertising unrelated to that business.

(Ord. No. 4043, § 1, 11-6-2024)

10.06.030 Unlawful parking of recreational vehicles.

1. It is unlawful to stand, park or store a recreational vehicle for more than 48 hours:

(a) On any public street or public right-of-way in or adjacent to any residential district;

(b) On any public street or public right-of-way adjacent to any public school or public park; or

(c) On any public street or public right-of-way where the city has posted signs prohibiting the parking of such vehicles.

2. For purposes of this chapter, "recreational vehicle" means a vehicle as defined in NRS 482.101 and includes, but is not limited to, a travel trailer, pick-up camper, camping trailer, motor coach home, boat trailer, off-highway vehicle trailer, and converted truck or bus.

(Ord. No. 4053, § 1, 1-7-2025)

10.06.040 Abandoned vehicles on public roads or property.

1. It is unlawful to stand, park, or store an abandoned vehicle, as defined in HMC 15.12.020, upon any highway, street, public thoroughfare or other public right-of-way.

2. It is unlawful to stand, park or store an abandoned vehicle, as defined in HMC 15.12.020, upon public property without the consent of the owner or person in control or management of the public property through a permit or other written authorization.

(Ord. No. 4043, § 3, 11-6-2024)

10.06.050 Public nuisance.

Violation of any of the provisions of this chapter is a threat to public health, safety, and welfare and is declared and deemed a nuisance by the city council.
(Ord. No. 4043, § 4, 11-6-2024)

10.06.060 Violation notice—When towing allowed—Other penalties.

1. Any officer of the City of Henderson police department, city marshal, or public response officer (code enforcement) who has reasonable grounds to believe that a vehicle has been parked or stored in violation of this chapter may affix a violation notice advising that:

(a) The vehicle is in violation of HMC chapter 10.06;

(b) The vehicle is subject to being towed if not removed within the time specified on the affixed violation notice, which shall not be less than 72 hours;

(c) In addition to any other penalty provided for, and in accordance with the provisions of HMC 1.04, the vehicle's registered owner may be issued an administrative citation and civil penalty not to exceed $500.00 per occurrence; but no such penalty shall be assessed for the first violation to a registered owner of a vehicle which is in violation of HMC 10.060.303; and

(d) The vehicle's registered owner may appeal the violation notice and/or citation and obtain a hearing pursuant to the procedures set forth in HMC subsection 15.12.060.B.6.

2. In addition to any other penalty provided for, and subject to the provisions of NRS Chapters 484B and 487, any officer of the City of Henderson police department, city marshal, or code enforcement officer is authorized to immediately remove or have such vehicle removed from any street, highway, public thoroughfare, public or private property, or public right-of-way for the purpose of storage or disposition, to any garage within the city as designated by the officer or employee if the vehicle:

(a) Is parked within a fire lane, whether on public or private property, which has been designated and posted as such pursuant to the city's fire code.

(b) Is parked within 15 feet of a fire hydrant located on either public or private property, whether or not a sign has been posted to indicate "No Parking" or the adjacent curb or road surface has been painted red.

3. The towing of any abandoned vehicle, illegally parked vehicle, recreational vehicle, commercial vehicle, trailer or mobile billboard in accordance with the provisions of this chapter shall be at the expense of the owner. The tow car operator shall, to the extent practicable and using the shortest and most direct route, remove the abandoned vehicle, recreational vehicle, commercial vehicle, trailer or mobile billboard to the closest facility of the tow car operator.

4. Moving of the abandoned vehicle, trailer, recreational vehicle, commercial vehicle, or mobile billboard short distances with the intent of avoiding the time limitations set forth in this chapter is insufficient to comply with the requirements of this chapter.
(Ord. No. 4043, § 5, 11-6-2024)

Chapter 10.08 DEFINITIONS*

Sections:

10.08.010 Definitions generally.
10.08.030 Authorized emergency vehicle.
10.08.390 Traffic division.

10.08.010 Definitions generally.

The following words and phrases when used in this title shall for the purpose of this title have the meanings respectively ascribed to them in this chapter.
(Ord. No. 3170, § 1, 6-3-2014)

10.08.030 Authorized emergency vehicle.

The term "authorized emergency vehicle" shall mean vehicles of the fire department, police vehicles and such ambulances and emergency vehicles of municipal departments or public service corporations as are designated or authorized by the city council or the chief of police of this city.
(Ord. No. 3170, § 1, 6-3-2014)

10.08.390 Traffic division.

The term "traffic division" shall mean the traffic division of the police department of this city, or in the event a traffic division is not established, then the term whenever used herein shall be deemed to refer to the police department of this city.
(Ord. No. 3170, § 1, 6-3-2014)

***Editor's note—**Ord. No. 3170, § 1, adopted June 3, 2014, amended chapter 10.08 in its entirety to read as herein set out. Formerly, chapter 10.08, §§ 10.08.010—10.08.400, pertained to similar subject matter, and derived from Ord. No. 360, §§ 1-1—1-40, adopted December 20, 1995.

Chapter 10.12 RESERVED*

*__Editor's note—__Ord. No. 3986, § 1, adopted September 5, 2023, repealed the former chapter 10.12, section 10.12.030 in its entirety, which pertained to traffic administration, and derived from Ord. No. 3163, § 1, adopted May 20, 2014.

Chapter 10.16 ENFORCEMENT, OBEDIENCE AND EFFECT*

Sections:

10.16.010 Applicability of the provisions of this chapter.
10.16.0200 Enforcement authority of police and fire department officials, and other enforcement officers.
10.16.0201 Authority of police and fire department officials to direct traffic.
10.16.0202 Authority of fire department officials to direct traffic.
10.16.030 Penalty for violation of chapter.
10.16.040 Obedience to police and fire department.
10.16.050 Reserved.
10.16.060 Reserved.
10.16.070 Reserved.
10.16.080 Authorized emergency vehicles.
10.16.090 Reserved.
10.16.100 Reserved.
10.16.110 Reserved.
10.16.111 Duty to report accident.
10.16.112 Reserved.
10.16.113 Duty of repairman.
10.16.114 Vehicles involved in accident may be impounded.
10.16.120 Reserved.

10.16.010 Applicability of the provisions of this chapter.

The provisions of this title relating to the operation of vehicles refer to the operations of vehicles upon highways, streets, alleys and thoroughfares whether public or private, public and private parking lots, other places open to the public, and public gatherings, or any place wherein the operation of a vehicle can or may constitute a hazard to persons or property, except where a different place is specifically referred to in a given section.
(Ord. No. 3164, § 1, 5-20-2014)

***Editor's note—**Ord. No. 3164, § 1, adopted May 20, 2014, amended chapter 10.16 in its entirety to read as herein setout. Formerly, chapter 10.16, §§ 10.16.010—10.16.120, pertained to similar subject matter, and derived from Ord. No. 360, §§ 3-1—3-12, adopted December 120, 1965; Ord. No. 407, §§ 2(part)—5, adopted in 1970, and Ord. No. 1492, § 23, adopted in 1994.

10.16.0200 Enforcement authority of police and fire department officials, and other enforcement officers.

It is the duty of the officers of the police department or such officers as are assigned by the chief of police to enforce all traffic laws of this city and all of the state vehicle laws applicable to traffic in this city. City code enforcement officers are authorized to take administrative enforcement action as provided in chapter 10.06.
(Ord. No. 4043, § 6, 11-6-2024; Ord. No. 3164, § 1, 5-20-2014)

Editor's note—Ord. No. 4043, § 6, adopted November 6, 2024, changed the title of section 10.16.0200 from "Enforcement authority of police and fire department officials" to "Enforcement authority of police and fire department officials, and other enforcement officers." The historical notation has been preserved for reference purposes.

10.16.0201 Authority of police and fire department officials to direct traffic.

Officers of the police department or such officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand or signal in conformance with traffic laws, provided that in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.
(Ord. No. 3164, § 1, 5-20-2014)

10.16.0202 Authority of fire department officials to direct traffic.

Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(Ord. No. 3164, § 1, 5-20-2014)

10.16.030 Penalty for violation of chapter.

It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this title.
(Ord. No. 3164, § 1, 5-20-2014)

10.16.040 Obedience to police and fire department.

It shall be a misdemeanor for a person to willfully fail or refuse to comply with any lawful order or direction of any Officer or official who is authorized to enforce the provisions of the chapter.
(Ord. No. 3164, § 1, 5-20-2014)

10.16.050 Reserved.

Editor's note—Ord. No. 3968, § 2, adopted June 6, 2023, repealed the former section 10.16.050 in its entirety, which pertained to persons propelling push carts or riding animals to obey traffic regulations, and derived from Ord. No. 3164, § 1, adopted May 20, 2014.

10.16.060 Reserved.

Editor's note—Ord. No. 3968, § 2, adopted June 6, 2023, repealed the former section 10.16.060 in its entirety, which pertained to use of coasters, roller skates and similar devices restricted, and derived from Ord. No. 3164, § 1, adopted May 20, 2014.

10.16.070 Reserved.

Editor's note—Ord. No. 3968, § 2, adopted June 6, 2023, repealed the former section 10.16.070 in its entirety, which pertained to public employees to obey traffic regulations, and derived from Ord. No. 3164, § 1, adopted May 20, 2014.

10.16.080 Authorized emergency vehicles.

1. The driver of an authorized emergency vehicle or an official vehicle of a regulatory agency, when responding to an emergency call or when in pursuit of an actual or suspected violator of the law or when responding to but not upon returning from a fire alarm, or a vehicle escorting a funeral procession, may:

(a) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation.

(b) Exceed any speed limits so long as he does not endanger life or property, except that a vehicle escorting a funeral procession may not exceed the speed limit by more than 15 miles per hour to overtake the procession and direct traffic at the next intersection.

(c) Disregard regulations governing direction of movement or turning in specified directions. The driver of a vehicle escorting a funeral procession may direct the movements of the vehicles in the procession in a similar manner and may direct the movements of other vehicles.

2. The privileges granted in subsection 1 apply only when the vehicle is making use of audible and visual signals; or visual signals only, all as required by law.
(Ord. No. 3164, § 1, 5-20-2014)

10.16.090 Reserved.

10.16.100 Reserved.

10.16.110 Reserved.

10.16.111 Duty to report accident.

When a written report has not been made under any other section of this chapter or as required by any other provision of law, the driver of a vehicle involved in any accident resulting in damage to property or injury to any person, shall immediately after such accident make or cause to be made a written report of such accident to the chief of police of the city.
(Ord. No. 3164, § 1, 5-20-2014)

10.16.112 Reserved.

10.16.113 Duty of repairman.

It shall be the duty of the person in charge of any garage or repair shop to which a motor vehicle is brought for repair, or any person who repairs a motor vehicle in any place other than a garage or repair shop, which vehicle shows evidence of having been struck by a bullet, to file a written report with the police department of the city within 24 hours after such motor vehicle is received, and before any repair work is commenced, giving the following information:

A. Color of vehicle;

B. Make;

C. Year;

D. License number;

E. Engine number;

F. Brief description of the damage;

G. Name and address of the owner and operator of such vehicle.

Provided, however, such report need not be made if there is displayed on the vehicle a damaged vehicle release sticker, placed thereon by the Henderson city police department, or any other authorized law enforcement agency in Clark County, Nevada.
(Ord. No. 3164, § 1, 5-20-2014)

10.16.114 Vehicles involved in accident may be impounded.

A. Members of the police department are authorized to remove a vehicle from a street or highway to the nearest garage or other place of safety, or to a garage designated or maintained by the police department, or otherwise maintained by this city under the circumstances hereinafter enumerated:

1. When any vehicle is left unattended upon any bridge, viaduct, or causeway, or in any tube or tunnel where such vehicle constitutes an obstruction to traffic;

2. When a vehicle upon a highway is so disabled as to constitute an obstruction to traffic and the person or persons in charge of the vehicle are by reason of physical injury incapacitated to such an extent as to be unable to provide for its custody or removal;

3. When any vehicle is left unattended upon a street and is so parked illegally as to constitute a definite hazard or obstruction to the normal movement of traffic;

4. When any vehicle is parked in violation of law;

5. When any driver is arrested and it is considered necessary to impound the vehicle for safekeeping of the vehicle and its contents;

6. When there is probable cause to believe that any vehicle may have been used in the commission of a crime and it is impounded for evidentiary purposes.

B. The registered owner of the vehicle shall be liable for all reasonable and necessary charges arising from the impounding of vehicles under this section.
(Ord. No. 3164, § 1, 5-20-2014)

10.16.120 Reserved.

Chapter 10.18 RESERVED*

*__Editor's note—__Ord. No. 3215, § 1, adopted September 2, 2014, repealed the former chapter 10.18, §§ 10.18.010—10.18.080 in its entirety, which pertained to the citizens traffic advisory board, and derived from Ord. No. 1918, §§ 1—7, adopted in 1999, and Ord. No. 3134, § 1, adopted April 1, 2014.

Chapter 10.20 TRAFFIC CONTROL DEVICES

Sections:

10.20.010 Authority to install.
10.20.020 Manual and specifications.
10.20.030 Obedience.
10.20.040 When devices required.
10.20.050 Presumption of legality.
10.20.060 Traffic control signals.
10.20.070 Green indication.
10.20.080 Steady yellow indication.
10.20.090 Steady red indication.
10.20.100 Pedestrian-control signals.
10.20.110 Flashing signals.
10.20.120 Lane direction control signals.
10.20.130 Display of unauthorized signs, signals or markings.
10.20.140 Interference.
10.20.150 Authority to establish play streets.
10.20.160 Play streets.
10.20.170 Designation and establishment of crosswalks and safety zones.
10.20.175 Curb markings.
10.20.180 Traffic lanes.
10.20.190 Avoiding traffic signals.

10.20.010 Authority to install.

The city traffic engineer shall place and maintain or cause to be placed or maintained, traffic control signs, signals and devices when and as required under the traffic ordinance of this city to make effective the provisions of said ordinances, and may place and maintain such additional traffic control devices as he may deem necessary to regulate traffic under the traffic ordinances of this city or under state law or to guide or warn traffic.
(Ord. 360, § 4-1, 12-20-1965)

10.20.020 Manual and specifications.

All traffic control signs, signals and devices shall conform to the manual and specifications approved by the state highway engineer or the city traffic engineer. All signs and signals required hereunder for a particular purpose shall so far as practicable be uniform as to type and location throughout the city.

All traffic control devices so erected and not inconsistent with the provisions of state law or this title shall be official traffic control devices.
(Ord. 360, § 4-2, 12-20-1965)

10.20.030 Obedience.

The driver of any vehicle shall obey the instructions of any official traffic control device applicable thereto place in accordance with the provisions of this title, unless otherwise directed by a traffic or police officer, subject to the exceptions granted the driver of an authorized emergency vehicle in this title.
(Ord. 360, § 4-3, 12-20-1965)

10.20.040 When devices required.

No provisions of this title for which official traffic control devices are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official device is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that official traffic control devices are required, such section shall be effective even though no devices are erected or in place.
(Ord. 360, § 4-4, 12-20-1965)

10.20.050 Presumption of legality.

Whenever official traffic control devices are placed in position approximately conforming to the requirements of this title, such devices shall be presumed to have been so placed by the official act or direction of lawful authority, unless the contrary shall be established by competent evidence.

Any official traffic control device placed pursuant to the provisions of this title and purporting to conform to the legal requirements pertaining to such devices shall be presumed to comply with the requirements of this title, unless the contrary shall be established by competent evidence.
(Ord. 360, § 4-4.1, 12-20-1965)

10.20.060 Traffic control signals.

Whenever traffic is controlled by traffic control signals exhibiting different colored lights, or colored lighted arrows, successively one at a time or in combination, only the colors green, red and yellow shall be used, except for special pedestrian signals carrying a word legend, and such lights shall indicate and apply to drivers of vehicles and pedestrians as set forth in sections 10.20.070—10.20.090.
(Ord. 360, § 4-5 (part), 12-20-1965)

10.20.070 Green indication.

Vehicular traffic facing a circular green signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn.

But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

Unless otherwise directed by a pedestrian-control signal as provided in section 10.20.100, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.
(Ord. 360, § 4-5(a), 12-20-1965)

10.20.080 Steady yellow indication.

Vehicular traffic facing a steady yellow signal is thereby warned that the related green movement is being terminated or that a red indication will be exhibited immediately thereafter when vehicular traffic shall not enter the intersection.

Pedestrians facing a steady yellow signal, unless otherwise directed by a pedestrian-control signal as provided in section 10.20.100, are thereby advised that there is sufficient time to cross the roadway before a red indication is shown and no pedestrian shall then start to cross the roadway.
(Ord. 360, § 4-5(b), 12-20-1965)

10.20.090 Steady red indication.

Vehicular traffic facing a steady red signal alone shall stop before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection and shall remain standing until a green indication is shown.

The driver of a vehicle which is stopped as close as practicable to the right hand curb or edge of the roadway and as close as practicable to the crosswalk on the near side of the intersection or, if none, to the intersection in obedience to a red signal may make a right turn except where prohibited by sign, but shall yield the right-of-way to pedestrians and other traffic proceeding as directed by the signal at such intersection before making such turn.

Unless otherwise directed by a pedestrian-control signal as provided in section 10.20.100, pedestrians facing a steady red signal shall not enter the roadway.

In the event an official traffic control signal is erected and maintained at a place other than an intersection, the provisions of sections 10.20.060—10.20.090 shall be applicable

except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking the stop shall be made at the signal.
(Ord. 360, § 4-5(c, d), 12-20-1965)

10.20.100 Pedestrian-control signals.

Whenever special pedestrian-control signals exhibiting the words "Walk" or "Don't Walk" are in place such signals shall indicate as follows:

A. *Walk.* Pedestrians facing such signals may proceed across the roadway in the direction of such signal and shall be given the right-of-way by the drivers of all vehicles.

B. *Don't Walk.* No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his crossing on the "Walk" signal shall proceed to a sidewalk or safety island while the "Don't Walk" signal is showing.
(Ord. 360, § 4-6, 12-20-1965)

10.20.110 Flashing signals.

Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal it shall require obedience by vehicular traffic as follows:

A. *Flashing red (stop signal).* When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

B. *Flashing yellow (caution signal).* When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossings shall be governed by the rules as set forth in section 10.36.090 of this title.
(Ord. 360, § 4-7, 12-20-1965)

10.20.120 Lane direction control signals.

When lane direction control signals are placed over the individual lanes of a street or highway, vehicular traffic may travel in any lane over which a green signal is shown, but shall not enter or travel in any lane over which a red signal is shown.
(Ord. 360, § 4-7.1, 12-20-1965)

10.20.130 Display of unauthorized signs, signals or markings.

No person shall place, maintain or display upon or in view of any highway an unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic control device or any railroad sign or signal. This paragraph shall not apply in cases of emergency when temporary warnings signs, flares or barricades are necessary to avoid a hazard which constitutes an immediate and impending danger to traffic providing that the police department is immediately notified of such hazard and of the placing of any temporary warning signs, flares or barricades.

No person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising.

This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

Every such prohibited sign, signal or marking is declared to be a public nuisance and the authority having jurisdiction over the highway is empowered to remove the same or cause it to be removed without notice.
(Ord. 360, § 4-8, 12-20-1965)

10.20.140 Interference.

No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down or remove any official traffic control device or any railroad sign or signal or any inscription, shield or insignia thereon, or any other part thereof.
(Ord. 360, § 4-9, 12-20-1965)

10.20.150 Authority to establish play streets.

The city traffic engineer shall have authority for good and sufficient reason to declare any street or part thereof a play street and to place appropriate signs or devices in the roadway indicating and helping to protect the same.
(Ord. 360, § 4-10, 12-20-1965)

10.20.160 Play streets.

Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose residence are within such closed area, and then any said driver shall exercise the greatest care in driving upon any such street or portion thereof.
(Ord. 360, § 4-11, 12-20-1965)

10.20.170 Designation and establishment of crosswalks and safety zones.

The city traffic engineer is authorized:

To designate and maintain, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at intersections where in his opinion there is particular danger to pedestrians crossing the roadway, and at such other places as he may deem necessary;

To establish safety zones of such kind and character and at such places as he may deem necessary for the protection of pedestrians.
(Ord. 360, § 4-12, 12-20-1965)

10.20.175 Curb markings.

The city may, in its discretion, mark curbs with the following colors which shall have the following meanings:

A. Red—No parking;

B. Yellow—Freight loading zone;

C. White—Passenger loading zone;

D. Green—Parking for no more than 12 minutes.

The absence on any curb of any of the above-listed painted colors does not signify that parking is otherwise allowed. The painting of curbs is intended to assist operators of motor vehicles in identifying areas where parking is prohibited or restricted, not to identify all places where parking is prohibited or restricted.
(Ord. 1663, § 6, 1996)

10.20.180 Traffic lanes.

The city traffic engineer is authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.

Where such traffic lanes have been marked, it shall be unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane except when lawfully passing another vehicle or preparatory to making a lawful turning movement.
(Ord. 360, § 4-13, 12-20-1965)

10.20.190 Avoiding traffic signals.

It is unlawful for any person to ride, drive or propel any vehicle over, across or through any public or private property to avoid having to obey traffic control signals or any other official traffic control device or signs, unless directed to do so by a police officer or other authorized person.
(Ord. 360, § 4-14, 12-20-1965)

Chapter 10.23 OPEN CONTAINERS UNLAWFUL IN MOTOR VEHICLES

Sections:

10.23.010 Open containers unlawful in motor vehicles.

10.23.010 Open containers unlawful in motor vehicles.

A. It is unlawful for a person to have in his or her possession, or on his or her person, while in a motor vehicle upon a highway, any bottle, can, or other receptacle containing any alcoholic liquor which has been opened, or a seal broken, or the contents of which have been partially removed.

B. It is unlawful for any occupant of any motor vehicle to actually or constructively possess, while in a motor vehicle, when the motor vehicle is upon any highway, any bottle, can, or other receptacle containing any alcoholic liquor which has been partially removed, unless the container is kept in the trunk of the vehicle or kept in some other area of the vehicle not normally occupied by the driver or passengers if the vehicle is not equipped with a trunk. A utility compartment or glove compartment shall be deemed to be within the area occupied by the driver and passengers.

C. Subsections A and B of this section do not apply to the passengers of a motor vehicle operated by a common carrier, taxicab, limousine, bus or other motor vehicle used to carry passengers for furtherance of commercial transportation enterprise, or the living quarters of a motorhome, housecar or camper.

D. "Alcoholic liquor" as used in this section means beer, wine, spirits and alcohol, as those products are defined in Henderson Municipal Code [section] 4.36.010.

E. "Highway" as used in this section means the entire width between the boundary lines of every way dedicated to a public authority when any part of the way is open to the use of the public for purposes of vehicular traffic, whether or not the public authority is maintaining the way.

Chapter 10.24 SPEED REGULATIONS

Sections:

10.24.010 Reserved.
10.24.020 Limits.
10.24.030 Determination of speed limits.
10.24.040 Reserved.
10.24.050 Drag race or drag racing.
10.24.060 Exhibition of speed.
10.24.070 Determination of speed.

10.24.010 Reserved.

Editor's note—Ord. No. 3137, § 1, adopted April 1, 2014, repealed the former section 10.24.010 in its entirety, which pertained to basic rules, and derived from Ord. No. 360, § 5-1, adopted December 12, 1965.

10.24.020 Limits.

The maximum speed limit shall be 25 miles per hour on all streets and highways unless a different speed limit is posted pursuant to the provisions set forth in this Code.
(Ord. No. 4113, § 1, 10-21-2025)

Editor's note—Prior to the reenactment of section 10.24.020 by Ord. No. 4113, § 1, adopted October 21, 2025, Ord. No. 3968, § 3, adopted June 6, 2023, repealed the former section 10.24.020 in its entirety, which pertained to maximum limits, and derived from Ord. No. 360, § 5-2, adopted December 20, 1965, and Ord. No. 3137, § 1, adopted April 1, 2014.

10.24.030 Determination of speed limits.

Whenever the city traffic engineer determines, upon the basis of an engineering and traffic investigation, that the safe and orderly movement of traffic upon any highway, street, alley and thoroughfare whether public or private, will be facilitated by the establishment of a different speed limit, the city traffic engineer may determine and declare a reasonable and safe maximum speed limit. The city traffic engineer may set conditions associated with the declared speed limit including but not limited to day, time, type of vehicles, weather conditions and any other factors bearing on safe speeds. The maximum speed limit shall be declared to be in effect upon the appropriate signs being erected.
(Ord. No. 3137, § 1, 4-1-2014; Ord. 360, § 5-3, 12-20-1965)

Editor's note—Ord. No. 3137, § 1, adopted April 1, 2014, changed the title of section 10.24.030 from "Establishment of speed zones" to "Determination of speed limits." The historical notation has been preserved for reference purposes.

10.24.040 Reserved.

Editor's note—Ord. No. 3968, § 3, adopted June 6, 2023, repealed the former section 10.24.040 in its entirety, which pertained to minimum speed regulations, and derived from Ord. 360, § 5-4, adopted December 20, 1965.

10.24.050 Drag race or drag racing.

The term "drag race" or "drag racing" is defined as the operation of two or more vehicles from a point side by side at accelerating speeds in a competitive attempt to outdistance each other or the operation of one or more vehicles over a common selected course, from the same point to the same point, wherein timing is made of the participating vehicles involving competitive accelerations or speeds.

No person shall participate in a drag race within the city unless authorized in an area approved by the chief of police and the city traffic engineer, subject to such rules and regulations as may be required by the chief of police.

Persons rendering assistance in any manner to such competitive use of vehicles shall be equally charged as a participant.

The operation of two or more vehicles side by side at speeds in excess of maximum lawful speeds or the operation of one or more vehicles rapidly accelerating from a common starting point to a speed in excess of the maximum lawful speed, shall be prima facie evidence of drag racing.
(Ord. 360, § 5-5, 12-20-1965)

10.24.060 Exhibition of speed.

No person shall engage in any motor vehicle exhibition of power or speed on a highway, street, alley or other thoroughfare open to the public or while exiting from an intersection, stop sign or stop light. For purposes of this section any unnecessary or avoidable spinning of wheels shall be deemed prima facia evidence of an exhibition of power or speed.
(Ord. No. 3137, § 1, 4-1-2014)

Editor's note—Ord. No. 3137, § 1, adopted April 1, 2014, amended section 10.24.060 in its entirety to read as herein set out. Formerly, section 10.24.060 pertained to maximum speed limit, and derived from Ord. No. 360, § 5-6, adopted December 20, 1965.

10.24.070 Determination of speed.

Any relevant evidence of speed is admissible including without limiting the following:

A. Estimation by visual observation of a moving vehicle;

B. The speedometer reading of a following vehicle at a speed not greater than the speed of the vehicle being followed;

C. Readings from radar equipment designed for such purposes when the equipment has been tested with a tuning fork after being set up at the location where the reading was taken;

D. Computations from skid marks as follows:

1. The speed nomograph produced herein or a facsimile thereof may be used for the purpose of determining either skidding distance, speed, or skid resistance when two of the factors are known, by the use of a straight line, two points of which shall be the points of intersection on the two scales at the reading of the known factors and the third point of which is the point of intersection with the scale for the factor to be determined by the reading at the point of intersection,

2. Skidding distance may be determined by total of the measurements of the skid marks from each wheel of a vehicle divided by the number of wheels,

3. Speed may be determined by a speedometer in the vehicle,

4. Skid resistance may be determined by making three test stops with any vehicle traveling at a known speed when brakes are applied and utilizing subsections (D)(2) and (3) above with the speed nomograph. The lowest of the three results shall be considered the skid resistance;

E. Evidence introduced pursuant to subsections A, B or C in the first paragraph of this section shall be prima facie evidence of the minimum speed of a vehicle.

Chapter 10.24 SPEED REGULATIONS

Sections:

10.24.010 Basic rules.
10.24.020 Maximum limits.
10.24.030 Establishment of speed zones.
10.24.040 Minimum speed regulations.
10.24.050 Drag race or drag racing.
10.24.060 Maximum speed limit.
10.24.070 Determination of speed.

10.24.010 Basic rules.

A. No person shall drive a vehicle on a highway at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing. In every event speed shall be so controlled as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering the highway in compliance with legal requirements and the duty of all persons to use due care.

B. Except when a special hazard exists that requires lower speed for compliance with subsection A of this section, the limits specified in this section or established as hereinafter authorized shall be maximum lawful speeds, and no person shall drive a vehicle on a highway at a speed in excess of such maximum limits.

C. The driver of every vehicle shall, consistent with the requirements of subsection A of this section, drive at an appropriate reduced speed when approaching and crossing an intersection or railway grade crossing, when approaching and going around a curve, when approaching a hill crest, when traveling upon any narrow or winding roadway, or when special hazard exists with respect to pedestrians or other traffic or by reason of weather or highway conditions.
(Ord. 360, § 5-1, 12-20-1965)

10.24.020 Maximum limits.

The maximum speed limit shall be 15 miles per hour when passing a school building or the ground thereof, contiguous to the street or highway on the days when school is in session from 8:00 a.m. until 5:00 p.m. Such prima facie limit also shall apply when passing any school grounds which are not separated from the street or highway by a fence, gate or any other physical barrier, while such grounds are in use by children. The maximum speed limit shall be 25 miles per hour on all streets and highways unless a different speed limit is posted pursuant to the provisions set forth in this Code. All speed zones established for

which signs have been posted for a rate of speed other than 25 miles per hour as of the effective date of this title are hereby ratified and approved subject to change pursuant to section 10.24.030.
(Ord. 360, § 5-2, 12-20-1965)

10.24.030 Establishment of speed zones.

Whenever the city traffic engineer shall determine upon the basis of an engineering and traffic investigation that any maximum speed hereinbefore set forth is greater or less than is reasonable or upon any highway, street, alley or other thoroughfare open to the public, the city traffic engineer may determine and declare a reasonable and safe maximum limit thereat, which shall be effective when appropriate signs giving notice thereof are erected. Such a maximum speed limit may be declared to be effective at all times or at such times as are indicated upon the signs; and differing limits may be established for different times of day, different types of vehicles, varying weather conditions, and other factors bearing on safe speeds, which shall be effective when posted upon appropriate fixed or variable signs.
(Ord. 360, § 5-3, 12-20-1965)

10.24.040 Minimum speed regulations.

No person shall drive a motor vehicle at such a slow speed as to impede the normal and reasonable movement of traffic except when reduced speed is necessary for safe operation or in compliance with law.

Whenever the city traffic engineer determines on the basis of an engineering and traffic investigation that slow speeds on any part of a highway consistently impede the normal and reasonable movement of traffic, the city traffic engineer may determine and declare a minimum speed limit below which no person shall drive a vehicle except when necessary for safe operation or in compliance with law.
(Ord. 360, § 5-4, 12-20-1965)

10.24.050 Drag race or drag racing.

The term "drag race" or "drag racing" is defined as the operation of two or more vehicles from a point side by side at accelerating speeds in a competitive attempt to outdistance each other or the operation of one or more vehicles over a common selected course, from the same point to the same point, wherein timing is made of the participating vehicles involving competitive accelerations or speeds.

No person shall participate in a drag race within the city unless authorized in an area approved by the chief of police and the city traffic engineer, subject to such rules and regulations as may be required by the chief of police.

Persons rendering assistance in any manner to such competitive use of vehicles shall be equally charged as a participant.

The operation of two or more vehicles side by side at speeds in excess of maximum lawful speeds or the operation of one or more vehicles rapidly accelerating from a common starting point to a speed in excess of the maximum lawful speed, shall be prima facie evidence of drag racing.
(Ord. 360, § 5-5, 12-20-1965)

10.24.060 Maximum speed limit.

The speed of any vehicle in excess of any of the limits specified herein or established as authorized in this code is unlawful.
(Ord. 360, § 5-6, 12-20-1965)

10.24.070 Determination of speed.

Any relevant evidence of speed is admissible including without limiting the following:

A. Estimation by visual observation of a moving vehicle;

B. The speedometer reading of a following vehicle at a speed not greater than the speed of the vehicle being followed;

C. Readings from radar equipment designed for such purposes when the equipment has been tested with a tuning fork after being set up at the location where the reading was taken;

D. Computations from skid marks as follows:

1. The speed nomograph produced herein or a facsimile thereof may be used for the purpose of determining either skidding distance, speed, or skid resistance when two of the factors are known, by the use of a straight line, two points of which shall be the points of intersection on the two scales at the reading of the known factors and the third point of which is the point of intersection with the scale for the factor to be determined by the reading at the point of intersection,

2. Skidding distance may be determined by total of the measurements of the skid marks from each wheel of a vehicle divided by the number of wheels,

3. Speed may be determined by a speedometer in the vehicle,

4. Skid resistance may be determined by making three test stops with any vehicle traveling at a known speed when brakes are applied and utilizing subsections (D)(2) and (3) above with the speed nomograph. The lowest of the three results shall be considered the skid resistance;

E. Evidence introduced pursuant to subsections A, B or C in the first paragraph of this section shall be prima facie evidence of the minimum speed of a vehicle.

Chapter 10.28 RECKLESS AND NEGLIGENT DRIVING

Sections:

10.28.010 Full time and attention.
10.28.020 Reckless driving.

10.28.010 Full time and attention.

A person shall, when operating a vehicle, give his full time and attention to the operation of the same.
(Ord. 360, § 6-1, 12-20-1965)

10.28.020 Reckless driving.

Any person who drives any vehicle in willful or wanton disregard for the safety of persons or property is guilty of reckless driving.

"Persons whose safety is disregarded" shall include without limiting, all occupants of the vehicle which is driven in a willful or wanton manner including the driver and "property" shall include, without limiting, the vehicle which is driven in a willful or wanton manner.

Every person convicted of reckless driving shall be guilty of a misdemeanor.
(Ord. 1492, § 24, 1994; Ord. 360, § 6-2, 12-20-1965)

Chapter 10.32 USE OF ROADWAY

Sections:

10.32.010 Drive on right side of roadway—Exceptions.
10.32.020 Passing vehicles proceeding in opposite directions.
10.32.030 Overtaking a vehicle on the left.
10.32.040 Overtaking on the right—When permitted.
10.32.050 Limitations on overtaking on the left.
10.32.060 Further limitations on driving to left of center of roadway.
10.32.070 No-passing zones.
10.32.080 One-way roadways and rotary traffic islands.
10.32.090 Driving on roadways laned for traffic.
10.32.100 Following too closely.
10.32.110 Driving on divided streets.
10.32.120 Restricted access.
10.32.130 Driving in parking lanes.

10.32.010 Drive on right side of roadway—Exceptions.

A. Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway, except as follows:

1. When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement;

2. When an obstruction exists making it necessary to drive to the left of the center of the street, provided, any person so doing shall yield the right-of-way to all vehicles traveling in the proper direction upon the unobstructed portion of the street within such distance as to constitute an immediate hazard;

3. Upon a street divided into three marked lanes for traffic under the rules applicable thereon; or

4. Upon a roadway designated and signposted for one-way traffic.

B. Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge or the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.

C. Upon any street having four or more lanes for moving traffic and providing for two-way movement of traffic, no vehicle shall be driven to the left of the centerline of the roadway, except when authorized by official traffic control devices designating certain lanes to the left side of the center of the street for use by traffic not otherwise permitted to use such lanes, or except as permitted under subsection (A)(2) of this section.
(Ord. 360, § 7-1, 12-20-1965)

10.32.020 Passing vehicles proceeding in opposite directions.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadways having width for not more than one line of traffic in each direction each driver shall give to the other at least one-half of the main traveled portion of the roadway as nearly as possible.
(Ord. 360, § 7-2, 12-20-1965)

10.32.030 Overtaking a vehicle on the left.

The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to those limitations, exceptions and special rules hereinafter stated.

A. The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

B. Except when overtaking and passing on the right is permitted the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.
(Ord. 360, § 7-3, 12-20-1965)

10.32.040 Overtaking on the right—When permitted.

The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(a) When the vehicle overtaken is making or about to make a left turn;

(b) Upon a street or highway with unobstructed pavement not occupied by parked vehicles of sufficient width for two or more lines of moving vehicles in each direction;

(c) Upon a one-way street, or upon any roadway on which traffic is restricted to one direction of movement, where the roadway is free from obstructions and of sufficient width for two or more lines of moving vehicles.

The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. In no event shall such movement be made by driving off the pavement or main traveled portion of the roadway.
(Ord. 360, § 7-4, 12-20-1965)

10.32.050 Limitations on overtaking on the left.

No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless authorized by the provisions of this article and unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event the overtaking vehicle must return to an authorized lane of travel as soon as practicable and in the event the passing movement involves the use of a lane authorized for vehicles approaching from the opposite direction, before coming within 200 feet of any approaching vehicle.
(Ord. 360, § 7-5, 12-20-1965)

10.32.060 Further limitations on driving to left of center of roadway.

No vehicle shall at any time be driven to the left side of the roadway under the following conditions:

(a) When approaching the crest of a grade or upon a curve in the highway where the driver's view is obstructed within such distance as to create hazard in the event another vehicle might approach from the opposite direction;

(b) When approaching within 100 feet of or traversing any intersection or railroad grade crossing;

(c) When the view is obstructed upon approaching within 100 feet of any bridge, viaduct or tunnel.

The foregoing limitations shall not apply upon a one-way roadway.
(Ord. 360, § 7-6, 12-20-1965)

10.32.070 No-passing zones.

The city traffic engineer is hereby authorized to determine those portions of any street where overtaking and passing or driving to the left of the roadway would be especially hazardous and may be appropriate signs or markings on the roadway indicate the beginning and end of such zones and when such signs or markings are in place and clearly visible to an ordinarily observant person every driver of a vehicle shall obey the directions thereof.

Where signs or markings are in place to define a no-passing zone as set forth in the preceding paragraph no driver shall at any time drive on the left side of the roadway within such no-passing zone or on the left side of any pavement striping designed to mark such no-passing zone throughout its length.

A double yellow line shall constitute the paving striping designed to make a "no-passing" zone.
(Ord. 360, § 7-7, 12-20-1965)

10.32.080 One-way roadways and rotary traffic islands.

The city traffic engineer may designate any street or any separate roadway under its jurisdiction for one-way traffic and shall erect appropriate signs giving notice thereof.

Upon a roadway designated and signposted for one-way traffic a vehicle shall be driven only in the direction designated.
(Ord. 360, § 7-8, 12-20-1965)

10.32.090 Driving on roadways laned for traffic.

Whenever any roadway has been divided into two or more clearly marked lanes for traffic the following rules in addition to all other consistent herewith shall apply.

(a) A vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

(b) Upon a roadway which is divided into three lanes and provides for two-way movement of traffic, a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle traveling in the same direction when such center lane is clear of traffic within a safe distance, or in preparation for making a left turn or where such center lane is at the time allocated exclusively to traffic moving in the same direction that the vehicle is proceeding and such allocation is designated by official traffic control devices.

(c) Official traffic control devices may be erected directing specified traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway and drivers of vehicles shall obey the directions of every such sign.

(d) Official traffic control devices may be installed prohibiting the changing of lanes on sections of roadway and drivers of vehicles shall obey the directions of every such device.
(Ord. 360, § 7-9, 12-20-1965)

10.32.100 Following too closely.

The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the street.
(Ord. 360, § 7-10, 12-20-1965)

10.32.110 Driving on divided streets.

Whenever any street has been divided into two or more roadways by leaving an intervening space or by a physical barrier or clearly indicated dividing section so as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand roadway unless directed or permitted to use another roadway by official traffic control devices or police officers. No vehicle shall be driven over, across or within any such dividing space, barrier or dividing section or space or at a crossover or intersection as established, unless specifically prohibited by public authority.
(Ord. 360, § 7-11, 12-20-1965)

10.32.120 Restricted access.

No person shall drive a vehicle onto or from any controlled-access roadway except at such entrances and exits as are established by public authority.
(Ord. 360, § 7-12, 12-20-1965)

10.32.130 Driving in parking lanes.

It shall be unlawful for any person riding, driving, or propelling any vehicle to drive, ride or propel any vehicle in lanes or areas designated for parking of vehicles and has been posted with official signs designating parking only.
(Ord. 360, § 7-13, 12-20-1965)

Chapter 10.34 CHARITABLE SOLICITATIONS WHILE STANDING ON MEDIAN STRIP OR SIDEWALK

Sections:

10.34.010 Purpose.
10.34.020 Definitions.
10.34.030 Permit required.
10.34.040 Liability.
10.34.050 Application contents.
10.34.060 Application approval requirements.
10.34.070 Permit—Time limit.
10.34.080 Permit—Hours of use.
10.34.090 Permit—Age requirement.
10.34.100 Solicitation—Unlawful when.
10.34.110 Right of appeal and judicial review.
10.34.120 Violation—Penalty.

10.34.010 Purpose.

This chapter is adopted pursuant to NRS 268.423 to provide for the issuance of permits to charitable organizations to solicit charitable contributions on the median strips of highways or on sidewalks adjacent to highways.
(Ord. 2827, § 1, 7-21-2009)

10.34.020 Definitions.

As used in this chapter, unless the context otherwise indicates, the following terms shall have the meanings that are ascribed to them as follows:

A. *Charitable organization* means an organization which:

1. The Secretary of the Treasury has determined is an exempt organization pursuant to the provisions of section 501(c) of the Internal Revenue Code; and

2. Holds a current certificate of organization or is currently qualified by the secretary of state to do business in this state.

B. *Highway* means the entire width between the boundary lines of every way maintained by a public authority when any part thereof is open to the use of the public for purposes of vehicular traffic. The term does not include a "freeway" as that term is defined in NRS 408.060.

C. *Highway solicitation permit* means a certificate of authority issued by the chief of the Henderson police department or his/her designee to a charitable organization

which allows the holder of the permit to solicit charitable contributions for its organization while standing on the median strip of any highway or the sidewalk adjacent to the highway within the jurisdiction of the city.

(Ord. 2827, § 1, 7-21-2009)

10.34.030 Permit required.

No charitable organization shall solicit contributions from the median strip of any highway or the sidewalk adjacent to the highway within the jurisdiction of the city without first obtaining and thereafter maintaining a highway solicitation permit.

(Ord. 2827, § 1, 7-21-2009)

10.34.040 Liability.

Every charitable organization that applies for and receives a highway solicitation permit shall:

A. Defend and indemnify the city against any injury to any person or damage to any property during the solicitation which arises from or is incident to the act of solicitation; and

B. Be liable for any injury to any person or damage to any property during the solicitation which arises from negligence of the soliciting agent.

(Ord. 2827, § 1, 7-21-2009)

10.34.050 Application contents.

A. An application for a highway solicitation permit shall be made to the Henderson police department upon forms provided by that department.

B. An application shall be filed with the department at least three business days prior to the date on which the solicitation is to begin and shall contain the following information:

1. The name, street address, and telephone number of the applicant and the charitable organization on behalf of which the application is made;

2. The name, street address, and telephone number of the person who will be responsible for the conduct of the solicitation;

3. The date and the time of day when the solicitation is to begin and end for each day requested;

4. The location(s) of the solicitation;

5. The purpose of the solicitation;

6. Proof of being a charitable organization as defined herein;

7. A declaration that no one less than 18 years of age will be permitted to participate in the solicitation; and

8. The applicant's signature acknowledging that he or she has read, understood, and agreed with the provision regarding liability set forth in HMC.

C. A post office box address shall be unacceptable as a street address on an application where a street address is required; provided, however, an applicant may identify and designate on his application a post office box address as the address to which he prefers correspondence to be mailed.
(Ord. 2827, § 1, 7-21-2009)

10.34.060 Application approval requirements.

Upon receipt of:

A. A completed application for a highway solicitation permit;

B. Payment of a permit fee in the sum of $50.00; and

C. Satisfactory proof that the applicant has procured a comprehensive general liability insurance policy in the sum of $25,000.00 that names the city as an additional insured;

The chief of the Henderson police department shall grant the highway solicitation permit if all of the requirements set forth in this section and in HMC [section] 10.34.050 are met in all respects.
(Ord. 2827, § 1, 7-21-2009)

10.34.070 Permit—Time limit.

Upon approval of an application, the chief of the Henderson police department or his/her designee shall issue a highway solicitation permit for the period requested which may not exceed three days in a calendar year.
(Ord. 2827, § 1, 7-21-2009)

10.34.080 Permit—Hours of use.

Highway solicitation permits shall be issued for solicitation between the hours of 30 minutes after sunrise and 30 minutes before sunset.
(Ord. 2827, § 1, 7-21-2009)

10.34.090 Permit—Age requirement.

No person whose age is less than 18 years may be permitted to participate in any highway solicitation.
(Ord. 2827, § 1, 7-21-2009)

10.34.100 Solicitation—Unlawful when.

It is unlawful for any person engaged in highway solicitation to:

A. Solicit on a median strip that is less than four feet wide; provided, however, that if a median strip of adequate width is not available, solicitors may start and end their solicitation on a sidewalk.

B. Except as provided in subsection 3 below, solicit while:

1. Standing within that portion of a highway specifically designated for travel and use by vehicles.

2. Walking from vehicle to vehicle within that portion of a highway specifically designated for travel and use by vehicles.

3. Subsections 1 and 2 do not apply to intersections controlled by traffic signals, provided that the vehicles the occupants of which are being solicited are at a complete stop for a red traffic signal, and the solicitor returns to the median or sidewalk before the traffic signal controlling the lanes or portion of the highway in which the solicitor is present turns green.

C. Solicit at any location that is under construction or repair.

D. Solicit at any location at which is taking place a permitted special event, public assembly or parade pursuant to HMC [chapter] 8.10 or 8.11.
(Ord. 2827, § 1, 7-21-2009)

10.34.110 Right of appeal and judicial review.

Appeal rights are set forth in HMC [section] 4.04.210, and the right to judicial review is set forth in HMC [section] 4.06.160.
(Ord. 2827, § 1, 7-21-2009)

10.34.120 Violation—Penalty.

Any person violating any provision of this chapter shall be guilty of a misdemeanor.
(Ord. 2827, § 1, 7-21-2009)

Chapter 10.36 INTERSECTIONS*

Sections:

10.36.010 Authority to designate through streets and "stop" and "yield" intersections.
10.36.070 Reserved.
10.36.080 Reserved.

10.36.010 Authority to designate through streets and "stop" and "yield" intersections.

The city traffic engineer is hereby authorized, on the basis of engineering and traffic investigation, to designate through streets and erect stop signs or yield signs at specified entrances thereto, or may designate any intersection as a stop intersection or as a yield intersection and erect stop signs or yield signs at one or more entrances to such intersection.
(Ord. No. 3138, § 1, 4-1-2014)

10.36.070 Reserved.

Editor's note—Ord. No. 3968, § 4, adopted June 6, 2023, repealed the former section 10.36.070 in its entirety, which pertained to emerging from alley, driveway or building, and derived from Ord. No. 3138, § 1, adopted April 1, 2014.

10.36.080 Reserved.

Editor's note—Ord. No. 3968, § 4, adopted June 6, 2023, repealed the former section 10.36.080 in its entirety, which pertained to traffic gridlock at intersection or marked crosswalk, and derived from Ord. No. 3138, § 1, adopted April 1, 2014.

***Editor's note—**Ord. No. 3138, § 1, adopted April 1, 2014, amended chapter 10.36 in its entirety to read as herein set out. Formerly, chapter 10.36, §§ 10.36.010—10.36.100 pertained to right-of-way—intersections—railroad crossings, and derived from Ord. No. 360, §§ 8-1—8-10, adopted December 20, 1965.

Chapter 10.36 RIGHT-OF-WAY—INTERSECTIONS—RAILROAD CROSSINGS

Sections:

10.36.010 Authority to designate through streets and "stop" and "yield" intersections.
10.36.020 Vehicle approaching or entering an uncontrolled intersection.
10.36.030 Vehicle turning left.
10.36.040 Stop signs and yield signs.
10.36.050 Vehicle entering stop intersection.
10.36.060 Vehicle entering yield intersection.
10.36.070 Emerging from alley, driveway or building.
10.36.080 Stop when traffic obstructed.
10.36.090 Obedience to signal indicating approach of train.
10.36.100 Approach of authorized emergency vehicles.

10.36.010 Authority to designate through streets and "stop" and "yield" intersections.

The city traffic engineer is hereby authorized, on the basis of engineering and traffic investigation, to designate through streets and erect stop signs or yield signs at specified entrances thereto, or may designate any intersection as a stop intersection or as a yield intersection and erect stop signs or yield signs at one or more entrances to such intersection.
(Ord. 360, § 8-1, 12-20-1965)

10.36.020 Vehicle approaching or entering an uncontrolled intersection.

The driver of a vehicle approaching an uncontrolled intersection shall yield the right-of-way to a vehicle which has entered the intersection from a different highway.

When two vehicles enter an uncontrolled intersection from different streets at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.
(Ord. 360, § 8-2, 12-20-1965)

10.36.030 Vehicle turning left.

The driver of a vehicle intending to turn to the left within an intersection or into an alley, private road, or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard.
(Ord. 360, § 8-3, 12-20-1965)

10.36.040 Stop signs and yield signs.

The driver a vehicle approaching a yield sign, if required for safety to stop, shall stop before entering the crosswalk on the near side of the intersection or, in the event there is no crosswalk, at a clearly marked stop line, but if none, then at the point nearest the intersection roadway where the driver has a view of approaching traffic on the intersecting roadway.

Except when directed to proceed by police officer or traffic control signal, every driver of a vehicle approaching a stop intersection indicated by a stop sign shall stop before entering the crosswalk on the near side of the intersection or, in the event there is no crosswalk, shall stop at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection.
(Ord. 360, § 8-4, 12-20-1965)

10.36.050 Vehicle entering stop intersection.

Except when directed to proceed by a police officer or traffic control signal, every driver of a vehicle approaching a stop intersection indicated by a stop sign shall stop as required by section 10.36.040 and after having stopped shall yield the right-of-way to any vehicle which has entered the intersection from another street or which is approaching so closely on the street as to constitute an immediate hazard during the time when such driver is moving across or within the intersection.
(Ord. 360, § 8-5, 12-20-1965)

10.36.060 Vehicle entering yield intersection.

The driver of a vehicle approaching a yield sign shall in obedience to such sign slow down to a speed reasonable for the existing conditions and shall yield the right-of-way to any vehicle in the intersection or approaching on another street so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection;

provided, however, that if such a driver is involved in a collision with a vehicle in the intersection, after driving past a yield sign without stopping, such collision shall be deemed prima facie evidence of his failure to yield the right-of-way.
(Ord. 360, § 8-6, 12-20-1965)

10.36.070 Emerging from alley, driveway or building.

The driver of a vehicle within a business or residence district emerging from an alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway or driveway, and shall yield the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on that roadway.
(Ord. 360, § 8-7, 12-20-1965)

10.36.080 Stop when traffic obstructed.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal indication to proceed.
(Ord. 360)

10.36.090 Obedience to signal indicating approach of train.

Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within 50 feet but no less than 15 feet from the nearest rail of such railroad, and shall not proceed until he can do so safely. The foregoing requirements shall apply when:

(a) A clearly visible electric or mechanical signal device given warning of the immediate approach of a railroad train;

(b) A crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train;

(c) A railroad train approaching within approximately 1,500 feet of the street crossing emits a signal audible from such distance and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard;

(d) An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed. (Ord. 360, § 8-9, 12-20-1965)

10.36.100 Approach of authorized emergency vehicles.

Upon the immediate approach of an authorized emergency vehicle making use of audible and visual signals meeting the requirements of section 10.16.070 of this act, or of a police vehicle properly and lawfully making use of an audible signal only, the driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and as close as possible to, the right-hand edge or curb of the roadway clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway. (Ord. 360, § 8-10, 12-20-1965)

Chapter 10.40 TURNING, STARTING AND STOPPING—SIGNALS

Sections:

10.40.010 Required position and method of turning at intersection.
10.40.020 Authority to place and obedience to turning markers.
10.40.030 Authority to place restricted turn signals.
10.40.040 Obedience to no-turn signs.
10.40.050 Limitations on turning around.
10.40.060 Turning on curve or crest of grade prohibited.
10.40.070 Starting parked vehicle.
10.40.080 Turning movements and required signals.
10.40.090 Signals by hand and arm or signal lamps.
10.40.100 Method of giving hand and arm signals.

10.40.010 Required position and method of turning at intersection.

The driver of a vehicle intending to turn at an intersection shall do so as follows:

(a) *Right turns.* Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

(b) *Left turns on two-way roadways.* At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the center line where it enters the intersection and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center line of the roadway being entered. Whenever practicable the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

(c) *Left turns on other than two-way roadways.* At any intersection where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle and after entering the intersection the left turn shall be made so as to leave the intersection, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

(Ord. 360, § 9-1, 12-20-1965)

10.40.020 Authority to place and obedience to turning markers.

The city traffic engineer is authorized to place markers, buttons, or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections, and such course to be traveled as so indicated may conform to or be other than as prescribed by law or ordinance.

When authorized markers, buttons, or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications.
(Ord. 360, § 9-2, 12-20-1965)

10.40.030 Authority to place restricted turn signals.

The city traffic engineer is hereby authorized to determine those intersections at which drivers of vehicles shall not make a right turn, left turn or U-turn, and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted.
(Ord. 360, § 9-3, 12-20-1965)

10.40.040 Obedience to no-turn signs.

Whenever authorized signs are erected indicating that no right or left turn or U-turn is permitted, no driver of a vehicle shall disobey the directions of any such signs.
(Ord. 360, § 9-4, 12-20-1965)

10.40.050 Limitations on turning around.

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street unless such movement can be made in safety and without interfering with other traffic except as provided for in section 10.40.040.
(Ord. 360, § 9-5, 12-20-1965)

10.40.060 Turning on curve or crest of grade prohibited.

No vehicle shall be turned so as to proceed in the opposite direction upon any curve, or upon the approach to or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within 500 feet.
(Ord. 360, § 9-7, 12-20-1965)

10.40.070 Starting parked vehicle.

No person shall start a vehicle which is stopped, standing or parked without first yielding the right-of-way to an approaching vehicle and after having so yielded, only when such movement can be made with reasonable safety.
(Ord. 360, § 9-7, 12-20-1965)

10.40.080 Turning movements and required signals.

No person shall turn a vehicle at an intersection unless the vehicle is in proper position upon the roadway as required in section 10.40.010, or turn a vehicle to enter a private road or driveway, or otherwise turn a vehicle from a direct course or move right or left upon a roadway unless and until such movement can be made with reasonable safety. No person shall so turn any vehicle without giving an appropriate signal in the manner hereinafter provided.

A signal of intention to turn right or left when required shall be given continuously during not less than the last 100 feet traveled by the vehicle before turning.

No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.

The signals provided for in section 10.40.090 shall be used to indicate an intention to turn, change lanes, or start from a parked position and shall not be flashed on one side only on a parked or disabled vehicle, or flashed as a courtesy or "do pass" signal to operators of other vehicles approaching from the rear.
(Ord. 360, § 9-8, 12-20-1965)

10.40.090 Signals by hand and arm or signal lamps.

Any stop or turn signal when required herein shall be given either by means of the hand and arm or by signal lamps except as otherwise provided in the following paragraph.

Any motor vehicle in use on a highway shall be equipped with, and a required signal shall be given by a signal lamp or lamps when the distance from the center of the top of the steering post to the left outside limit of the body, cab or load of such motor vehicle exceeds 24 inches, or when the view from the rear of a hand and arm signal would be obstructed.
(Ord. 360, § 9-9, 12-20-1965)

10.40.100 Method of giving hand and arm signals.

All signals herein required given by hand and arm shall be given from the left side of the vehicle in the following manner and such signals shall indicate as follows:

(a) Left turn—Hand and arm extended horizontally.

(b) Right turn—Hand and arm extended upward.

(c) Stop or decrease speed—Hand and arm extended downward.
(Ord. 360, § 9-10, 12-20-1965)

Chapter 10.44 MISCELLANEOUS DRIVING RULES*

Sections:

10.44.140 Unlawful riding.
10.44.180 Exhaust system.
10.44.190 Exhaust pipes.
10.44.210 Gases and fumes.

10.44.140 Unlawful riding.

No person shall ride on any vehicle upon any portion thereof not designed or intended for the use of passengers. This provision shall not apply to an employee engaged in the necessary discharge of a duty.
(Ord. No. 3171, § 1, 6-3-2014)

10.44.180 Exhaust system.

The exhaust system of every motor vehicle subject to the provisions of this code shall extend beyond the rear or side of the body, but shall in no case terminate in the vicinity of an exit. Exhaust pipes, mufflers, and tailpipes shall be entirely outside the body of the motor vehicle. No flexible pipe or tubing shall be used except where necessary to prevent breakage, and shall be only of the hermetically sealed exhaust type.
(Ord. No. 3171, § 1, 6-3-2014)

10.44.190 Exhaust pipes.

The exhaust gases from a motor vehicle shall not be directed to the side of the vehicle between two feet and 11 feet above the ground.
(Ord. No. 3171, § 1, 6-3-2014)

10.44.210 Gases and fumes.

The cab of any motor vehicle shall be reasonably tight against the penetration of the gases and fumes from the engine and exhaust system. The exhaust system, including the manifold, muffler, and exhaust pipes shall be so constructed as to be capable of being maintained and shall be maintained in a reasonably gas-tight condition.
(Ord. No. 3171, § 1, 6-3-2014)

***Editor's note—**Ord. No. 3171, § 1, adopted June 3, 2014, amended chapter 10.44 in its entirety to read as herein set out. Formerly, chapter 10.44, §§ 10.44.010—10.44.210, pertained to similar subject matter, and derived from Ord. No. 360, §§ 10-1—10-21, adopted December 20, 1995.

Chapter 10.48 PEDESTRIANS' RIGHTS AND DUTIES*

Sections:

10.48.040 Reserved.
10.48.070 Reserved.
10.48.090 Pedestrians soliciting rides or business.

10.48.040 Reserved.

Editor's note—Ord. No. 3968, § 5, adopted June 6, 2023, repealed the former section 10.48.040 in its entirety, which pertained to crossing at right angles, and derived from Ord. No. 3158, § 1, adopted May 6, 2014.

10.48.070 Reserved.

Editor's note—Ord. No. 3968, § 5, adopted June 6, 2023, repealed the former section 10.48.070 in its entirety, which pertained to obedience of pedestrians to railroad signals, and derived from Ord. No. 3158, § 1, adopted May 6, 2014.

10.48.090 Pedestrians soliciting rides or business.

No person shall stand on or in proximity to a street or highway for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street or highway.
(Ord. No. 3158, § 1, 5-6-2014)

***Editor's note—**Ord. No. 3158, § 1, adopted May 6, 2014, amended chapter 10.48 in its entirety to read as herein set out. Formerly, chapter 10.48, §§ 10.48.010—10.48.100, pertained to similar subject matter, and derived from Ord. No. 360, §§ 11-1—11-10, adopted December 20, 1965.

Chapter 10.54 RESERVED*

*__Editor's note—__Ord. No. 3321, § 1, adopted December 15, 2015, repealed the former chapter 10.54, §§ 10.54.010—10.54.030 in its entirety, which pertained to safety equipment for motorcyclists, and derived from Ord. No. 408, §§ 2—4, adopted in 1970.

Chapter 10.58 OFF-ROAD USE OF MOTOR VEHICLES

Sections:

10.58.010 Prohibited.
10.58.020 Exemptions.
10.58.030 Reserved.

10.58.010 Prohibited.

No person shall drive or operate any motor vehicle upon lands belonging to or occupied by another, except as provided in this chapter, without having in his immediate possession written permission therefor from the legal owner, his agent, or lawful occupant of said real property; and said written permission must be exhibited to a police officer upon request or it will be presumed that said authorization does not exist and that said person is in violation of this chapter.
(Ord. 569, § 1 (part), 1977)

10.58.020 Exemptions.

This chapter shall not apply to any person who drives or operates any motor vehicle as follows:

A. Upon a dedicated highway, street or roadway;

B. Upon real property where such person has or is doing lawful business with or for the legal owner, his agent, or lawful occupant thereof;

C. For any legitimate emergency or governmental purpose;

D. Upon public or private real property which is specifically designed for the said use thereof through proper compliance with zoning and licensing procedures according to law;

E. If such person drives or operates such motor vehicle at a distance greater than 1,000 feet from any residential or commercial building.

This chapter shall not be deemed to interfere with the right of the federal or state government or any of its agencies to regulate, prohibit or permit the use of motor vehicles on real property owned by it or under its control or jurisdiction, nor shall this chapter be deemed to permit or authorize any trespass or nuisance.
(Ord. 569, § 1 (part), 1977)

10.58.030 Reserved.

Editor's note—Ord. No. 3968, § 6, adopted June 6, 2023, repealed the former section 10.58.030 in its entirety, which pertained to motorized skateboards, and derived from Ord. 1814, § 1, adopted in 1998.

Chapter 10.59 EXCESSIVE VEHICLE NOISES

Sections:

10.59.010 Prohibited acts.
10.59.020 Exception.
10.59.030 Violation—Penalty.

10.59.010 Prohibited acts.

A. It is unlawful for any person to operate a motorcycle, motor-powered bicycle, or other motor vehicle in, upon, or along any street, highway, or near any private residence, apartment house, or other dwelling house in the City of Henderson, Nevada, unless such motor vehicle is at all times equipped with a muffler upon the exhaust thereof, in good working order, and in constant operation to prevent excessive or unusual noise; and it is unlawful for any person operating any motor vehicle to use a cutout, bypass or similar muffler elimination, appliance or device.

B. It is unlawful to make, cause, or suffer or permit to be made or caused upon any premises near any private residence, apartment house, dwelling house, or public place in the City of Henderson, Nevada, any unnecessary noises or sounds which are physically annoying to persons of ordinary sensitivity or which are so harsh or so prolonged or unnatural or unusual in their use, time or place, as to occasion physical discomfort.
(Ord. 568, §§ 1, 2, 1977)

10.59.020 Exception.

Nothing under the provisions of this chapter shall apply to the use of sirens or other warning devices on police, fire or other emergency vehicles.
(Ord. 568, § 3, 1977)

10.59.030 Violation—Penalty.

Any person who violates any of the provisions of this chapter is guilty of a misdemeanor.
(Ord. 1492, § 27, 1994)

Chapter 10.60 TRUCK ROUTES*

Sections:

10.60.010 Reserved.
10.60.020 Traction engines.
10.60.030 Maximum width and length of vehicles—Exception.
10.60.040 Issuance of special permits for movement of buildings and other structures—Conditions—Applications therefor.
10.60.050 Reserved.
10.60.060 Parking of vehicles laden with hazardous materials.
10.60.070 Truck routes.
10.60.080 Reserved.
10.60.090 Reserved.
10.60.100 Designated truck routes.

10.60.010 Reserved.

10.60.020 Traction engines.

A. The provisions of section 10.60.040 shall apply to traction engines or tractors, the propulsive power of which is exerted not through wheels resting upon the ground but by means of a flexible band or chain known as a movable track, when the portions of the movable tracks in contact with the surface of the street, highway or alley present plain surfaces.

B. No traction engine or tractor having lugs, grousers or other mechanical contrivances on its wheels or tracks designed to give tractive effect shall be operated on any public street, highway or alley within the City of Henderson unless a circular metal band of a width of not less than three inches is placed entirely around the periphery of such wheels or tracks, such band to serve as a protection against the tearing up or marring of the surface of the street, highway or alley.
(Ord. No. 3172, § 1, 6-3-2014)

10.60.030 Maximum width and length of vehicles—Exception.

This chapter does not apply to any street or highway which is a part of the National System of Interstate and Defense Highways, as described in subsection (D) of section 103 of title 23, U.S.C.

A. No person shall operate any bus, motor truck or combination of vehicles, including any attachments thereto coupled together in excess of 70 feet, upon the streets of

***Editor's note—**Ord. No. 3172, § 1, adopted June 3, 2014, amended chapter 10.60 in its entirety to read as herein set out. Formerly, chapter 10.60, §§ 10.60.010—10.60.100, pertained to similar subject matter, and derived from Ord. No. 591, § 2(A)—(J), adopted in 1977, and Ord. No. 1492, § 27, adopted in 1994.

the City of Henderson, except on those routes described in section 10.60.100, copies of which shall be maintained for public inspection in the office of the city clerk and the city traffic engineer and may be amended from time to time by resolution of the city council.

B. The provisions of this chapter shall not apply to any specially designed equipment operated by any duly franchised public utility for the purposes of the installation, maintenance or repair of public facilities; provided, however, that the public utility desiring to operate any such specially designed equipment in excess of the maximum widths and lengths set forth in this section shall first register the same with the department of public works.

(Ord. No. 3172, § 1, 6-3-2014)

10.60.040 Issuance of special permits for movement of buildings and other structures—Conditions—Applications therefor.

A. The traffic engineer may, at his discretion, upon application in writing filed with their respective departments at least 48 hours in advance of the requested movement, issue a special permit in writing authorizing the applicant to operate or move a vehicle, combination of vehicles or special mobile equipment for the purpose of transporting a building or other structure of a size or weight in excess of the legal maximums set forth in this chapter, within, into or through the City of Henderson.

B. Such permits shall be issued on a single trip basis only.

C. In issuing such special permits, the traffic engineer may impose such conditions thereon, such as routes to be followed, place of operation or movement, time of operation or movement or other matters he shall deem necessary or proper to protect the streets, highways and alleys from excessive damage or to minimize the dangers, inconveniences or delays to the general public.

D. The application for a special permit provided for in this section shall:

1. Specifically describe the vehicle, combination of vehicles or special mobile equipment, and load thereon, including the width, length, total gross weight with load imposed and number of axles of the vehicle or equipment and the width, length and height of the building or other structure to be moved thereby;

2. Indicate the particular streets, highways or alleys over which the special permit to operate or move is requested;

3. State the date and time for which such special permit is requested.

E. The department of public works shall notify the police and fire departments of the issuance of such special permits at least 24 hours in advance of the requested movement, describing the conditions of the permit and the appointed route and time of the movement.
(Ord. No. 3172, § 1, 6-3-2014)

10.60.050 Reserved.

10.60.060 Parking of vehicles laden with hazardous materials.

It is unlawful for any operator or owner to park any vehicle laden with hazardous, flammable or explosive materials in any residential or commercial area within the city limits of the City of Henderson, unless such area has been designated a proper parking place for these vehicles by the fire chief of the City of Henderson, or his designee.
(Ord. No. 3172, § 1, 6-3-2014)

10.60.070 Truck routes.

A. As used in this section, "unladen weight" means the weight of any vehicle without load, but fully equipped with such accessories and appliances belonging to and used by such vehicle in the transportation of persons or property.

B. Notwithstanding any of the other provisions of this section, no vehicle in excess of 8,000 pounds unladen weight shall be operated or moved upon any public street, highway or alley within the city, except upon truck routes, as set forth in section 10.60.100, copies of which shall be maintained for public inspection in the office of the city clerk and the city traffic engineer and may be amended from time to time by resolution of the city council, or upon temporary truck routes hereafter designated by the department of public works pursuant to subsection C of this section unless merchandise, freight or other supplies are to be picked up by or delivered from such vehicle or unless such vehicle is required in the performance of service, repair, construction or similar essential use; provided, however, that in such event, such vehicle shall use the shortest possible route from a designated truck route to the point of pickup, delivery or essential use and shall return therefrom to the nearest designated truck route; provided, further, that the following additional restrictions shall apply:

1. No vehicle in excess of 8,000 pounds unladen weight shall be operated or moved upon any street unless the use of such route is required in the pickup or delivery of merchandise, freight or other supplies or in some essential use at some point not served by a truck route but served by such direct route street.
2. Streets, other than truck routes, shall not be used as through routes from one truck route to another unless pickup, delivery or essential use is required en route.

C. The department of public works shall have authority to designate additional, temporary truck routes for the purpose of directing and controlling traffic along necessary detours or between designated truck routes and construction projects or other areas where commercial vehicles are required to be employed over extended periods of time. Such temporary routes, when so designated, shall be posted with appropriate signs as truck routes, and the use of such routes shall be subject to the same conditions as set forth in this section for permanent truck routes.

D. The provisions of this section shall not apply to any specially designed equipment operated by any duly franchised public utility or governmental agency when such equipment is required in providing an essential public service.

E. The truck routes provided for in this section shall be posted with adequate signs indicating that such routes are truck routes.
(Ord. No. 3172, § 1, 6-3-2014)

10.60.080 Reserved.

Editor's note—Ord. No. 4043, § 7, adopted November 6, 2024, repealed the former section 10.60.080 in its entirety, which pertained to the prohibition of parking of overweight vehicles in residence districts, and derived from Ord. No. 3172, § 1, adopted June 3, 2014.

10.60.090 Reserved.

10.60.100 Designated truck routes.

1. City of Henderson truck routes:

a. Eastern Avenue between Sunridge Heights Parkway and northerly city limits;

b. Pecos Road between I-215 and northerly city limits;

c. Stephanie Street between Horizon Ridge Parkway and Russell Road;

d. Sunset Road between Pabco Road and westerly city limits;

e. Mountain Vista Street between Sunset Road and northerly city limits;

f. Russell Road;

g. Warm Springs Road between Stephanie Street and Lake Mead Parkway (State Route No. 564);

h. Gibson Road, between Sunset Road and Horizon Ridge Parkway;

i. Horizon Ridge Parkway between Seven Hills Parkway and Horizon Drive;

j. Horizon Drive between Boulder Highway (State Route No. 582) and College Road;

k. I-215 between Stephanie Street and westerly city limits;

l. Executive Airport between Volunteer and St. Rose Parkway; and

m. Volunteer between Las Vegas Boulevard and Executive Airport.

2. State of Nevada truck routes:

a. I-215 between Stephanie Street and US 93/US 95/I-515;

b. Lake Mead Parkway (State Route No. 56) between US 93/US 95/I-515 and easterly city limits;

c. St. Rose Parkway (State Route No. 146) between Las Vegas Boulevard and I-215;

d. US 93/US 95/I-515;

e. Boulder Highway (State Route No. 582).

More particularly shown on Exhibit "A" entitled Truck Route Map, which is on file in the city clerk's office.
(Ord. No. 3172, § 1, 6-3-2014)

Chapter 10.62 OPERATION OF GOLF CARTS ON STREETS

Sections:

10.62.010 Where permitted.

10.62.010 Where permitted.

A. Those streets, parts of streets, or areas described in the schedule attached to the ordinance codified in this chapter, a copy of which is to be maintained for public inspection in the office of the city clerk and the city traffic engineer, and such other streets, parts of streets, or areas as may be added to said schedule by resolution of the city council, are declared to be public street segments where the operation of golf carts is permitted in accordance with the provisions of the Nevada Revised Statutes.

B. Except in locations designated by the schedule, and except where crossing a public street at a marked and signed crossing authorized by the city traffic engineer, it is unlawful to operate a golf cart on any city street or right-of-way.
(Ord. 1539, §§ 2, 3, 1994)

Chapter 10.64 PENALTIES AND PROCEDURE ON ARREST*

Sections:

10.64.010 Defacing of traffic citations, warrants and complaints.
10.64.020 Record of traffic cases—Report of convictions to state.
10.64.030 Disposition of traffic fines and forfeitures.

10.64.010 Defacing of traffic citations, warrants and complaints.

Unlawful to deface citation. It shall be unlawful and official misconduct for any member of the police department or any other officer or public employee to dispose of, alter, or deface a traffic citation or any copy thereof, or the record of the issuance or disposition of any traffic citation, complaint, or warrant, in a manner other than as required in this section.
(Ord. No. 3176, § 1, 6-17-2014)

10.64.020 Record of traffic cases — Report of convictions to state.

Every magistrate or judge of a court shall keep or cause to be kept a record of every traffic complaint, traffic citation, or other legal form of traffic charge deposited with or presented to the court or its traffic violations bureau, and shall keep a record of every official action by the court of its traffic violations bureau in reference thereto, including but not limited to a record of every conviction, forfeiture of bail, judgment of acquittal, and the amount of fine or forfeiture resulting from every traffic complaint or citation deposited with or presented to the court or traffic violations bureau.

A record of convictions or forfeitures of bail shall be forwarded to the state department of motor vehicles as required by the NRS.
(Ord. No. 3176, § 1, 6-17-2014)

10.64.030 Disposition of traffic fines and forfeitures.

All fines or forfeitures collected upon conviction or upon the forfeiture of bail of any person charged with a violation of any of the provisions of this title shall be paid into the city treasury.
(Ord. No. 3176, § 1, 6-17-2014)

***Editor's note—**Ord. No. 3176, § 1, adopted June 17, 2014, amended chapter 10.64 in its entirety to read as herein set out. Formerly, chapter 10.64, §§ 10.64.010—10.64.160, pertained to similar subject matter, and derived from Ord. No. 360, §§ 16-1—16-16, adopted December 20, 1965, and Ord. No. 1492, § 28, adopted in 1994.

Title 11

STREETS AND SIDEWALKS*

Chapters:

11.01	Standard Specifications for Public Improvements
11.02	Construction and Excavation Within Right-of-Way
11.03	Obstructions
11.04	Barricades
11.05	Sidewalks and Right-of-Way
11.06	Construction, Maintenance and Repair of Sidewalks, Transition Strips, and Medians
11.07	Fees—Authorization and Payment
11.08	Fees for Closure of Right-of-Way
11.09	Penalty for Violation of Title
11.10	Bonding

***Editor's note—**Ord. No. 3380, §§ 1, 2, adopted January 3, 2017, repealed and reenacted title 11 in its entirety to read as herein set out. Formerly, title 11, chapters 11.04, 11.08, 11.12, 11.15, 11.20 and 11.30, pertained to similar subject matter, and derived from Ord. No. 218, §§ 1, 2, 5, adopted October 7, 1957; Ord. No. 224, §§ 1, 4—7, adopted November 4, 1957; Ord. No. 277, adopted September 19, 1960; Ord. No. 295, §§ 1, 2, 5, adopted March 19, 1962; Ord. No. 343, adopted July 6, 1964; Ord. No. 1912, § 1, adopted in 1999; Ord. No. 1965, § 2, adopted in 1999; Ord. No. 3234, § 1, 11-18-2014; Ord. No. 3235, § 1, adopted November 18, 2014.

Chapter 11.01 STANDARD SPECIFICATIONS FOR PUBLIC IMPROVEMENTS

Sections:

11.01.010 Integration and title of standard specifications.

11.01.010 Integration and title of standard specifications.

A. At the direction of the director of public works, parks and recreation, or designee, all subdivision improvements construction and any work within the public right-of-way must conform to the standard and specifications, the standard drawings, the City of Henderson Development Code, and, as applicable, the additional specifications described in subsection 11.01.010(D), as amended.

B. All references to "standard specifications" are to the most recent edition of the Uniform Standard Specifications for Public Works Construction Off-Site Improvements, Clark County Area, Nevada.

C. All references to "standard drawings" are to the most recent edition of the Uniform Standard Drawings for Public Works Construction Off-Site Improvements, Clark County Area, Nevada.

D. At the direction of the director of public works, parks and recreation, or designee, additional specifications or standards may govern subdivision improvements and right-of-way construction. Such additional specifications or standards shall include, but are not limited to, the following:

1. Clark County Area Uniform Standard Specifications and Drawings;

2. Clark County Regional Flood Control District Hydraulic Criteria and Drainage Design Manual;

3. Design and Construction Standards for Waste Water Collection Systems;

4. Uniform Design and Construction Standards for Potable Water Systems;

5. City of Henderson Utility Guidelines;

6. City of Henderson Utility Services Approved Material List;

7. Current International Fire Code with City of Henderson Amendments;

8. Nevada Department of Transportation Standard Plans for Road and Bridge Construction;

9. Manual on Uniform Traffic Control Devices;

10. American Association of State Highway and Transportation Officials a Policy on Geometric Design of Highways and Streets;

11. Transportation Research Board Highway Capacity Manual; and

12. ADA Guidelines.

(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.02 CONSTRUCTION AND EXCAVATION WITHIN RIGHT-OF-WAY

Sections:

11.02.010 Permit required.
11.02.020 Permit issuance.
11.02.030 Standards and specifications.
11.02.040 Denial of excavation permit.
11.02.050 Drains connected with public sewer.
11.02.060 Inspection.
11.02.070 Time restrictions on work in streets.

11.02.010 Permit required.

No person, firm or corporation shall excavate or perform any construction on any street, sidewalk, alley, easement or right-of-way within the corporate limits of the city without first obtaining an excavation permit from the department of public works, parks and recreation of the city.
(Ord. No. 3380, § 2, 1-3-2017)

11.02.020 Permit issuance.

A permit shall be issued to an applicant if:

A. The applicant has filled out an application for a permit stating the time and location of the excavation;

B. The plans for the proposed excavation have been approved by the director of the department of public works, parks and recreation, or designee;

C. A bond or deposit in lieu of bond has been made according to the provisions of chapter 11.11 of this title;

D. The excavation will not unreasonably interfere with vehicular and pedestrian traffic, the demand and necessity for parking spaces, and the ingress and egress from the affected or adjacent properties; and

E. The health, safety and welfare of the public will not be impaired; and

F. The applicant has submitted a traffic barricade plan and, pursuant to this chapter, has obtained approval of the plan and barricade permit from the director of public works, parks and recreation or designee.

(Ord. No. 3380, § 2, 1-3-2017)

11.02.030 Standards and specifications.

A. All work shall be made and completed in accordance with the standard specifications, standard drawings, and additional specifications or standards adopted pursuant to section 11.01.010.

B. All pavement cuts that result in a patch shall be made by power saw, leaving vertical edges. Mass pavement removal in areas of full replacement may be wheel cut or removed with excavation equipment so long as the final edge to pave is clean and vertical.

C. All trenches shall be made safe to pedestrian and vehicle traffic from start to completion of work.
(Ord. No. 3380, § 2, 1-3-2017)

11.02.040 Denial of excavation permit.

The director of public works, parks and recreation, or designee, may deny an excavation permit to any applicant who:

A. Has a documented history of unsatisfactory safety conditions;

B. Has failed or refused to honor warranty requirements;

C. Has failed to correct noncompliance with permit requirements; or

D. Otherwise has failed to comply with the requirements of this chapter.
(Ord. No. 3380, § 2, 1-3-2017)

11.02.050 Drains connected with public sewer.

Whenever any excavation as mentioned in the preceding sections and any excavation involving a private roadway is made for the purposes of connecting a drain with a public sewer or repairing a drain connected with a public sewer, before beginning such excavation, such person, firm, association or corporation must receive approval, in writing, from the department of public works, parks and recreation and the department of utility services. Such written approval shall include the place where, and the time when such excavation is to be made. Such excavation and filling shall be made under the direction of the director of public works, parks and recreation. In such cases, unless waived by the director of public works, parks and recreation, or designee, the provisions of this title shall apply in all respects.
(Ord. No. 3380, § 2, 1-3-2017)

11.02.060 Inspection.

The director of public works, parks and recreation shall furnish an inspector during normal business hours for each permit for improvements or installation of underground

utilities in the streets, alleys, or easements within the city, whose duties shall be to check for application and conformance to the standard specifications adopted pursuant to section 11.01.010. The director of public works, parks and recreation shall be notified at least one business day in advance of the time when the work is proposed to be started unless an emergency occurs during the period in which the office is not open, in which instance the applicant for a permit shall contact the department of public works, parks and recreation within the first hour after the office reopens.

The city is authorized to charge fees related to the patching and resurfacing of pavement that is cut or disturbed in connection with utility installations and other development-related work. The fees may include the costs of slurry seal installation, asphalt resurfacing or reinstallation, or may be based upon reimbursement for lost value. The fees shall be in accordance with the fee schedule established pursuant to chapter 11.08 of this title.
(Ord. No. 3380, § 2, 1-3-2017)

11.02.070 Time restrictions on work in streets.

A. For purposes of this chapter, the term "emergency work" means work performed by the owner or operator of a utility, by any governmental entity, or by persons authorized to perform work within the city rights-of-way that must be performed or that will compromise the health, safety and welfare of the public if not performed and completed as soon as possible, even if such completion requires continuous repairs at times other than normal working hours.

B. The director of public works, parks and recreation, or designee, shall establish and maintain a schedule of time restrictions applicable to work to be performed on city streets. Except for emergency work, no work may be performed in the travel lanes of any street except in accordance with the schedule.

C. The schedule described in subsection B may be amended from time to time as necessary by the director of public works, parks and recreation, or designee. No amendment to the schedule shall become effective without at least ten days' notice to a general contractor performing the construction work.

D. The director of public works, parks and recreation, or designee, may waive the time restrictions set forth in this section if the health, safety or welfare of the public is not adversely affected and if the work to be performed:

1. Is not within 250 feet of a residential dwelling;

2. Will not unnecessarily disrupt traffic flow;

3. Requires materials that are not readily available during the restricted time periods;

4. Would not significantly disrupt traffic flow during the restricted time periods any more than during the unrestricted time periods;

5. Necessitates that such work be accomplished at different time periods than those specified herein; or

6. Can be completed in whole or in part with more intense construction activity that shortens the overall length of the traffic disruption.

7. If the director of public works, parks and recreation, or designee, denies a waiver of the time restrictions, the applicant may appeal the decision to the city council within ten days after the decision is made. The appeal shall be in writing, shall be filed with the director of public works, parks and recreation, or designee, and shall state the factual basis for the appeal. The director of public works, parks and recreation, or designee shall, within 30 days thereafter, place the matter before the city council, whose decision shall be final.

(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.03 OBSTRUCTIONS

Sections:

11.03.010 Obstructions or encroachments within city rights-of-way.
11.03.020 Removal—Dangerous or unsafe obstruction.
11.03.030 Sidewalks and streets to be free of landscaping, building, and other materials—Abutting owner's duties—Civil liability—Indemnity.

11.03.010 Obstructions or encroachments within city rights-of-way.

A. Except as otherwise provided in this section or another provision of this Code, it is unlawful for any person to erect, place or maintain any obstruction, or to cause or permit any obstruction to encroach within, upon, or over any public right-of-way, including any public street, public sidewalk, or public alley. Each day any unauthorized obstruction is allowed to remain after 24 hours notice to remove the obstruction shall constitute a separate offense. Such notice may be provided by:

1. Any officer of the Henderson Police Department;

2. Any officer or employee of the department of public works or department of community development and services office of public response (code enforcement); or

3. Any other officer or employee of the city who has been specifically authorized to enforce this section.

B. An obstruction otherwise prohibited by subsection A may be permitted by means of an encroachment agreement approved by the city in accordance with this section. The agreement must be in a form prepared by, or otherwise acceptable, to the city. Approval by the city of an encroachment agreement:

1. Is entirely within the city's discretion;

2. Is contingent upon a determination by the director of public works or designee, that the obstruction or encroachment can be accomplished without negatively impacting traffic, public safety, pedestrian safety, or the use of and access to utility facilities; and

3. May be denied based on plans for future improvements to the affected right-of-way, street, sidewalk or alley.

C. An encroachment agreement under this section:

1. May include conditions reasonably calculated to mitigate any impact, including without limitation a time limit, provisions regarding ongoing maintenance, and appropriate remedial measures; and

2. May be required to be recorded against property that is benefitted by the agreement.

3. May be recorded against the property of the party seeking the encroachment agreement.

D. Except as otherwise provided in subsections E and F, the approval authority for an encroachment agreement under this section shall be the director of public works or designee. Typical items qualifying under this subsection D include:

1. Encroachments related to subdivision improvements;

2. Encroachments for monitoring wells;

3. Encroachments necessary for compliance with a building-related code; and

4. Other minor encroachments related to signage, outdoor dining, landscaping, fencing, and similar minor intrusions into public right-of-way.

E. The approval authority for the following items shall be the city council:

1. Encroachments which, in the judgment of the director of public works or designee, are of a significant nature, character or size so as to warrant consideration by the city council; and

2. Encroachments concerning which a member of the city council, prior to administrative approval of an agreement pursuant to subsection D, has requested that the encroachment be considered by the city council.

F. In the case of encroachment agreements to be forwarded to the city council for consideration pursuant to subsection E, the director of public works or designee, shall schedule the encroachment agreement for council consideration at the next regular meeting of the city council that is reasonably available.

G. If the director of public works or designee, denies administrative approval of an encroachment agreement pursuant to subsection D, the person seeking encroachment approval may appeal the decision to the city council within ten days after the denial decision is made. The appeal shall be in writing, shall be filed with the director or designee, and shall state the factual basis for the appeal. The director or designee shall schedule the matter for consideration by the city council within 30 days following receipt of the appeal. The decision by the city council shall be final.

H. Unless approved by city council, encroachment agreements approved administratively pursuant to subsection D shall be signed by the director of public works or designee.

I. Nothing in this section shall apply to obstructions or improvements installed:

1. By or on behalf of the city; or

2. By another governmental agency acting in accordance with an interlocal or cooperative agreement with the city that has been approved by city council.

J. For purposes of this chapter:

1. "Encroachment agreement" includes any agreement, however named, that by its terms authorizes an encroachment or obstruction.

2. "Obstruction" means a structure, installation, amenity or improvement of any kind within the right-of-way, street, sidewalk or alley. This term includes any tree, plant, or shrub that overhangs a sidewalk less than ten feet above the sidewalk or less than 16 feet and four inches above any street, or any overhanging foliage that presents a danger to the public.

(Ord. No. 4042, § 1, 11-6-2024; Ord. No. 3380, § 2, 1-3-2017)

11.03.020 Removal—Dangerous or unsafe obstruction.

The director of public works, parks and recreation shall cause all obstructions above, across or under the streets of the city, which upon investigation may be considered dangerous or unsafe to the public using such streets, to be removed. Any person failing or refusing to obey the order directing the removal of such obstruction shall forfeit and pay a penalty of $500.00 for each day such obstruction shall be allowed to remain after the notice of removal shall have expired.

(Ord. No. 3380, § 2, 1-3-2017)

11.03.030 Sidewalks and streets to be free of landscaping, building, and other materials—Abutting owner's duties—Civil liability—Indemnity.

A. Owner and/or occupant of property shall not allow off-premises delivery of materials. The owner or occupant of property shall not direct or permit the delivery of landscaping, building, or other material on the public sidewalk, public street, or otherwise off, of the owner or occupant's property.

B. Off-premises delivery of materials prohibited. No person shall deliver landscaping, building, or other material on the public sidewalk, public street or otherwise off, of the premises of the deliveree.

C. Maintenance of sidewalks. Owners and/or occupiers of private property shall maintain in good and safe condition all public sidewalks abutting their land by not placing or allowing to be placed or to remain any object which may reasonably constitute a hazard to a pedestrian. No person may place any object on a public sidewalk which may reasonably constitute a hazard to a pedestrian.

D. Ice removal. No person owning or controlling any premises abutting upon any public sidewalk within the city shall permit any such sidewalk to be covered with ice formed by water which came from the private premises. It shall be the duty of any such person to remove any ice accumulating on such sidewalk.

E. Liability. Any person who violates this Section shall be liable for any injuries proximately resulting therefrom.

F. Indemnity. Whenever any injury proximately results from a violation of any of subsections A through D of this section, the violator shall be liable to the City of Henderson for all damages and costs which the City of Henderson may be required to pay by reason of a judgment or settlement to the person damaged.

G. Penalties. Any person violating any of the provisions of this section shall be deemed guilty of a misdemeanor. Each day such a violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.

H. Applicability. The provisions of this section shall only apply to public sidewalks and streets. As used in this section, no sidewalk or street shall be considered public unless all of the following have occurred:

1. The sidewalk or street has been dedicated to the City of Henderson;

2. The City of Henderson has accepted maintenance of such sidewalk or street; and

3. The City of Henderson has released any bond for public improvements posted with the City of Henderson by the developer constructing the sidewalk or street.

(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.04 BARRICADES

Sections:

11.04.010 Permit required.

11.04.010 Permit required.

A. Except as previously authorized by the director of public works, parks and recreation, no person, firm, corporation or other entity shall temporarily, whether partially or fully, close or obstruct any city street, highway, freeway, or alley, or any portion thereof, without first obtaining a barricade permit from the director of public works, parks and recreation or an authorized agent thereof, except:

1. Under emergency conditions;

2. Pursuant to a special events permit; or

3. Pursuant to activities authorized by the director of public works, parks and recreation.

B. Unless otherwise instructed by the director of public works, parks and recreation, any person, firm, corporation, or other entity that closes or obstructs a street, highway, freeway, or alley shall place the proper barricades on such roadway in accordance with the Manual on Uniform Traffic Control Devices on file with the city clerk.

C. Reserved.

D. Only persons, contractors, owners or other individuals who are properly licensed and bonded for performance of work within public rights-of-way shall be issued a permit for any work, cause the deposit of materials, or use the rights-of-way for other than normal operation of motor vehicles and pedestrians.

E. Where barricades or other traffic-control devices are left within the travel lanes or sidewalk areas of a right-of-way for longer than the period authorized by a permit, or at time unauthorized by the permit, the city is authorized to charge a correction fee, including fees charged on a per-unit of equipment basis, in accordance with the fee schedule established pursuant to chapter 11.07.

F. As used in this chapter, emergency conditions shall mean any condition or occurrence which poses an imminent or existing threat to the safety or security of persons or property. As soon as reasonably possible, emergency conditions shall be reported to the city and a barricade permit shall be obtained.

G. As used in this chapter, the word obstruct does not include sporadic or intermittent access to the right-of way by a person who:

1. Is authorized by the director of public works, parks and recreation to enter the right-of-way; and

2. Has no discernable impact on the flow of traffic or pedestrians.

(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.05 SIDEWALKS AND RIGHT-OF-WAY

Sections:

11.05.010 Removal of unauthorized sidewalks.
11.05.020 Force removal of unauthorized sidewalks.
11.05.030 Sweeping onto sidewalk, street or gutter.
11.05.040 Running water—Broken pipes.
11.05.050 Display, parking and sale of motor vehicles or merchandise on or within any unimproved public right-of-way.

11.05.010 Removal of unauthorized sidewalks.

Any person, firm or corporation failing to construct sidewalks in compliance with this chapter and applicable standards, or any person, firm or corporation not having on record with the city clerk a receipt for permit and inspection fees, may be ordered in writing, by the director of public works, parks and recreation, or designee, to remove constructed sidewalks within five days.
(Ord. No. 3380, § 2, 1-3-2017)

11.05.020 Force removal of unauthorized sidewalks.

In the event of the failure of any person, firm or corporation to remove constructed sidewalks as provided in section 11.05.010, the director of public works, parks and recreation, or designee, may order the city maintenance superintendent to remove and replace constructed sidewalks, or such defective or unacceptable sidewalks, as he deems in the best interest of the City of Henderson, and bill the person, firm or corporation for actual man-hours, materials and equipment used in removal and replacement thereof.
(Ord. No. 3380, § 2, 1-3-2017)

11.05.030 Sweeping onto sidewalk, street or gutter.

A. It shall be unlawful for any person to sweep dust, dirt, accumulations, refuse or deposits from any building onto any public sidewalk in the city. Such dust, dirt, accumulations, refuse or deposits shall be gathered up and deposited into some suitable receptacle.

B. It shall be unlawful for any person to sweep the dust, dirt, accumulations, refuse or deposits on any public sidewalks into any street or gutter within the city.
(Ord. No. 3380, § 2, 1-3-2017)

11.05.040 Running water—Broken pipes.

A. It shall be unlawful for any person owning or controlling any hose, water pipe, ditch, canal, flume, lawn sprinkling system or waterway to allow or permit water from the same or any part thereof, or through or from either or through or from any other source, to flow over

or into any sidewalk, street, alley or public place; provided, however, that nothing herein shall be construed as preventing the wetting of any sidewalk, alley, street or public place for the purpose of cleaning the same or allaying the dust thereon, or to the accidental breaking of any such hose, water pipe, ditch, canal or flume, landscape sprinkling system or waterway; provided, however, that such break shall be repaired or the flow of water through the same shall be abated within two hours after notice of such break is given to any person who owns or occupies, or to the manager, superintendent, agent or officer of any company, corporation, association or organization that owns, controls or maintains such water pipe, ditch, canal or flume, lawn sprinkling system or waterway or has any pecuniary interest therein. If such break is not repaired or the water turned off within such time, it shall be the duty of the director of public works, parks or recreation; or designee, the director of utilities, or designee; or any police officer, to cause the water flowing through such hose, water pipe, ditch, canal, flume, lawn sprinkling system or waterway to be shut off, and it shall be unlawful for any person to again turn water through the same until proper repairs have been made.

B. Any person who violates any portion of subsection A is guilty of a misdemeanor and upon the conviction thereof shall be fined:

1. If the property from which the water is flowing is zoned R-1, in an amount that is determined by the municipal court to be appropriate under the attendant circumstances; or

2. If the property from which the water is flowing is subject to a zoning classification that is less restrictive than R-1:

a. Upon the first conviction, a minimum of $10.00;

b. Upon the second conviction within a period of three years, a minimum of $250.00; and

c. Upon the third conviction within a period of three years and upon each subsequent conviction within such period, a minimum of $500.00.

(Ord. No. 3380, § 2, 1-3-2017)

11.05.050 Display, parking and sale of motor vehicles or merchandise on or within any unimproved public right-of-way.

A. It is unlawful for any person to sell or to display for the purpose of sale any motor vehicle or merchandise on or within any unimproved portion of a public right-of-way. For purposes of this section, "merchandise" means goods or wares, including, but not limited

to, produce, nursery stock, ceramics and other similar items. A violation of this subsection A may be enforced either by means of a criminal proceeding or as a civil violation under this title.

B. Members of the Henderson Police Department are authorized to remove or cause to be removed, to a designated garage or storage area, any motor vehicle which is being displayed in violation of this section if the vehicle has not been removed within 72 hours after a written notice to remove is attached to the vehicle. The costs of removal and storage shall be borne by the owner or operator of the vehicle.

C. Nothing in this section shall be deemed to authorize any sale or display on any improved portion of a public right-of-way except that which is otherwise expressly permitted by this Code.

(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.06 CONSTRUCTION, MAINTENANCE AND REPAIR OF SIDEWALKS, TRANSITION STRIPS, AND MEDIANS

Sections:

11.06.010 Purpose.
11.06.020 Definitions.
11.06.030 Installation of new sidewalk.
11.06.040 Maintenance and repair of existing sidewalks.
11.06.050 Maintenance of transition strip.
11.06.060 Maintenance of the median.
11.06.070 Noncompliance—Notice or approval.
11.06.080 Appeal procedure.
11.06.090 Necessity for remedial action.
11.06.100 Appeal hearing—Determination by council.
11.06.110 Remedial action—Cost—Time limit.
11.06.120 Remedial action—Nonpayment—Statement.
11.06.130 Standards and inspection.
11.06.150 Compliance.

11.06.010 Purpose.

It is the purpose of this chapter to:

A. Require the property owners abutting the public right-of-way to maintain the unimproved portion of the right-of-way referred to as a transition strip whenever necessary to the public health, safety, welfare and benefit;

B. Require the property owner abutting the public right-of-way to construct new sidewalk, or maintain or repair existing sidewalk whenever necessary to the public health, safety, welfare and benefit;

C. Require private persons or entities that are responsible for maintaining the medians within public rights-of-way to provide proper maintenance and upkeep;

D. Assure the uniform and safe development of the public right-of-way within the city by requiring that sidewalks be constructed, maintained and repaired in accordance with those standards adopted by the city.

(Ord. No. 3380, § 2, 1-3-2017)

11.06.020 Definitions.

For purposes of this chapter, the following definitions shall be applicable:

Maintenance means the upkeep, cleaning or preservation of the transition strip or existing sidewalk, including the trimming or removal of vegetation, which is necessary to insure the public health, safety, welfare and benefit.

Median or *median strip* means the strip of land between lanes of opposing traffic on a divided roadway.

Repair means the cutting, removing or replacing of existing sidewalk.

Sidewalk means that portion of the public right-of-way which has been improved for pedestrian traffic.

Transition strip means the unimproved portion of the public right-of-way, including any vegetation growing thereon, lying between the back of the curb, or in the event there is no curb then that portion between the end of the paved street, and the property line of the property abutting the public right-of-way.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.030 Installation of new sidewalk.

It shall be the responsibility of the property owner to install new sidewalk along the transition strip whenever necessary to the health, safety, welfare and benefit of the public or as determined by the director of public works, parks and recreation.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.040 Maintenance and repair of existing sidewalks.

It shall be the responsibility of the property owner to maintain and repair existing sidewalk whenever necessary to the health, safety, welfare and benefit of the public.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.050 Maintenance of transition strip.

It shall be the responsibility of the property owner to maintain the transition strip abutting his property whenever necessary to the health, safety, welfare benefit, and beautification of the public.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.060 Maintenance of the median.

If a median strip is not owned by the city, or if the median strip is maintained by a third party through an agreement with the city, it shall be the responsibility of the median strip property owner or contractee to maintain the median strip whenever necessary to the health, safety, welfare, benefit and beautification of the public.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.070 Noncompliance—Notice or approval.

Whenever the owner has failed to install a new sidewalk, maintain or repair an existing sidewalk, or maintain the transition strip as required by this chapter, the director of public works, parks and recreation, or designee, may notify the abutting property owner in writing that he has 30 days in which to remedy the situation or to file an appeal with the city council. The notice shall also state that in the event the property owner fails to take appropriate action or file an appeal to the city council that a lien may be imposed by the city against the property for the cost of remedying the situation.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.080 Appeal procedure.

In the event that the property owner elects to appeal, then the property owner shall notify the city clerk in writing who shall set a hearing date before the city council. Written notification of the hearing date shall be sent to the property owner at least seven days before the scheduled hearing.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.090 Necessity for remedial action.

If after the expiration of 30 days from the date of receipt of the written notice required by section 11.06.070, the property owner has refused or failed to install new sidewalk as required by section 11.06.030, maintain or repair existing sidewalk as required by section 11.06.040 or to maintain the transition strip or median strip as required by section 11.06.050 or section 11.06.060 respectively, and the property owner has not appealed the written notice from the director of public works, parks and recreation as provided under section 11.06.080, then such refusal or failure and lack of appeal shall be reported to the city council. The city council shall determine if the remedial action, as recommended by the director of public works, parks and recreation is necessary and if so, the city council may instruct and authorize the director of public works, parks and recreation to proceed with remedial action.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.100 Appeal hearing—Determination by council.

In the event of hearing as provided by section 11.07.080, the property owner may present evidence for consideration by the city council. After considering the presentations and evidence of both the property owner and the department of public works, parks and recreation, the city council shall determine if remedial action on the part of the property owner is necessary to the health, safety, welfare or benefit of the public. If such action is

found to be necessary to the public health, safety, welfare or benefit, then the property owner shall be notified of the decision of the city council that remedial action shall be commenced and completed within ten days from the date of notification of the city council's decision and that failure to complete such action shall result in the department of public works, parks and recreation proceeding with such remedial action and a lien being placed against the property of the abutting property owner for the costs incurred by the city.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.110 Remedial action—Cost—Time limit.

Subsequent to the completion of the work, the director of public works, parks and recreation shall forward to the property owner a statement as to cost incurred by the city in connection with the remedial action and informing the property owner that failure to pay the amount stated therein within 30 days from the date of the statement shall result in a lien being assessed against the property of the property owner.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.120 Remedial action—Nonpayment—Statement.

If after the expiration of the 30-day period provided under section 11.06.110 the property owner has failed to reimburse the city for the costs of the remedial action, the city clerk shall forward to the county recorder's office a sworn statement stating the location of the work performed by the city, the date the remedial action was completed, the amount to be assessed as a lien which amount is to equal the cost of the remedial action plus ten percent and identifying the property subject to the assessment.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.130 Standards and inspection.

The construction of new sidewalk, or the maintenance or repair of existing sidewalk, shall be in accordance with the standards and specifications described in section 11.01.010 of this title. Upon completion of the construction, maintenance or repair, the sidewalk shall be inspected and approved by the department of public works, parks and recreation.
(Ord. No. 3380, § 2, 1-3-2017)

11.06.150 Compliance.

It is unlawful for any person including the owner of property abutting the public right-of-way, or the agent, servant, contractor or employee of the owner, to construct new sidewalk or to repair existing sidewalk located within the public right-of-way within the city if the construction or repair does not comply with the standards and specifications provided for in

section 11.01.010 of this title. Any approval of the survey lines or grades submitted by the property owner or his agent, servant, contractor or employee does not relieve the property owner for the accuracy of said survey lines and grades.
(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.07 FEES—AUTHORIZATION AND PAYMENT

Sections:

11.07.010 Fees—Authorization and payment.

11.07.010 Fees—Authorization and payment.

A. The director of public works, parks and recreation is authorized to charge fees in connection with the issuance of any permit required by this chapter. Such fees may include fees associated with plan checking and inspection, fees for services performed by or on behalf of the city in implementing this chapter, fees relating to noncompliance with the provisions of this chapter, fees for closure of the right-of-way, and fees associated with corrective action required under this chapter.

In connection with the issuance of a permit, the city is authorized to establish and collect an additional fee to cover work that was previously performed by or on behalf of the applicant without the benefit of a valid permit. In addition, the city is authorized to charge fees for noncompliance with permit requirements set forth in this title.

B. Permit fees established pursuant to this chapter shall be paid before the issuance of a permit. Inspection and service fees shall be paid before any work is done. In connection with fees that are required in order to recover the city's costs in performing corrective action, the city is authorized to charge the permittee the cost of the work, and may calculate the cost in the same way that the cost of extra and force account work is determined and charged under the standard specifications. The city may collect the amount so charged by any available means. In cases where the corrective work is the responsibility of the abutting property owner, collection efforts may include making the amount a charge against the abutting property and recording an appropriate lien against the property.

C. Except as otherwise provided in this chapter, the fees chargeable by the city pursuant to this section shall be those that are set forth in a fee schedule that shall be approved and amended from time to time by resolution of the director of public works, parks and recreation, or designee.

(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.08 FEES FOR CLOSURE OF RIGHT-OF-WAY

Sections:

11.08.010 Right-of-way fees and occupancy charges.
11.08.012 Definitions.

11.08.010 Right-of-way fees and occupancy charges.

A. Schedule of right-of-way fees.

1. Barricade permit fee.

a. The barricade permit fee shall be $200.00.

b. The barricade permit fee shall be paid with the barricade permit application, or, pursuant to an emergency condition described in subsection 11.02.070 A., as soon as reasonably possible.

2. Right-of-way occupancy charge.

a. Calculation of the fees for a right-of-way occupancy charge shall commence on the fourth day following the effective date of the barricade permit fee for the lane closure.

b. The fee shall be $50.00 per day for each lane that is closed at any time of the day.

c. The right-of-way occupancy charge will be billed once the right-of-way work is complete and the lane re-opened; amounts billed shall be due within 30 days after a bill is issued; fines or penalties will begin to accrue on the 31st day after the bill is issued.

d. A right-of-way occupancy charge shall not be assessed for work performed during a continuing emergency condition described in subsection 11.02.070 A. or for work performed within rights-of-way managed by the State of Nevada or the United States Government.

(Ord. No. 3380, § 2, 1-3-2017)

11.08.012 Definitions.

For purposes of this chapter, the following definition shall be applicable:

Lane means the portion of the public roadway utilized for the movement of a single line of vehicles, both motor vehicle and bicycle.

(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.09 PENALTY FOR VIOLATION OF TITLE

Sections:

11.09.010 Misdemeanors.
11.09.020 Alternative to criminal prosecution.
11.09.030 Notice of violation—Required information.
11.09.040 Notice of violation—Issuance.
11.09.050 Notice of violation—Filing.
11.09.060 Notice of violation—Response—Hearings.
11.09.065 Notice of violation—Response period.
11.09.070 Collection fees.
11.09.080 Public nuisance abatement.

11.09.010 Misdemeanors.

Any person violating any of the provisions of this title shall be guilty of a misdemeanor; and, upon conviction thereof, shall be punished as the law allows for a misdemeanor crime. Whenever in this chapter any act is prohibited, or is made or declared to be unlawful, or an offense or a misdemeanor, or whenever in such chapter the doing of any act is required, or the failure to do any act is made or declared to be unlawful, or an offense or misdemeanor, the doing of any such prohibited act, or the failure to do any such required act, shall constitute a violation of this chapter. Every day of violation of this chapter constitutes a separate offense. Any person being adjudged guilty of a violation of this chapter or any of the provisions or prohibitions thereof may, in the discretion of the council, be denied a license thereafter.
(Ord. No. 3380, § 2, 1-3-2017)

11.09.020 Alternative to criminal prosecution.

As an alternative to criminal prosecution for a violation of any provision of title 11, the city may impose a civil penalty in accordance with the provision of this chapter.
(Ord. No. 3380, § 2, 1-3-2017)

11.09.030 Notice of violation—Required information.

A. A civil penalty under this chapter shall be imposed by the issuance of a notice of violation by the city. The notice of violation must contain, at a minimum, the following information:

1. The name and address (if known) of the person or entity responsible for the violation;

2. A brief description of the violation and a reference to the applicable ordinance or code citation(s);

3. The location, date and time of the violation;

4. The name of the person issuing the notice of violation;

5. The amount of the civil penalty; and

6. Information advising of the manner and time for responding to the notice of violation.

B. No error concerning, or omission of, any of the above-described information is grounds for the dismissal of a proceeding relating to a notice of violation unless the person requesting the dismissal demonstrates substantial prejudice from the error and/or omission.

C. Where the notice of violation data is entered into and stored in a computer or similar device, any printout or other output readable by sight that accurately reflects such data is an original notice of violation for purposes of a proceeding under this chapter. Any such data entry that is moved or copied into another computer or similar device is intended to constitute an additional or replacement of the record of the data by the issuing officer or employee and is also an original notice of violation for purposes of a proceeding under this chapter.

D. Any notice of violation issued pursuant to this chapter shall constitute a declaration which is subject to the penalty of perjury.
(Ord. No. 3380, § 2, 1-3-2017)

11.09.040 Notice of violation—Issuance.

The notice of violation may be issued by any peace officer or by any authorized officer or employee of the department of public works, parks and recreation.
(Ord. No. 3380, § 2, 1-3-2017)

11.09.050 Notice of violation—Filing.

An original notice of violation, or a facsimile thereof, must be filed with and retained by the department of public works, parks and recreation. A notice of violation is prima facie evidence of the facts which are alleged therein. The notice of violation must be served on the person responsible for the violation or, in the case of an entity, an officer, key employee, manager in charge, or registered agent of that entity. A notice of violation may be served on the person responsible for the violation either personally or by registered or certified mail, return receipt requested, at the address on file with the department of public works, parks and recreation.
(Ord. No. 3380, § 2, 1-3-2017)

11.09.060 Notice of violation—Response—Hearings.

A. The person cited must respond to a notice of violation within the time prescribed by section 11.10.070 of this chapter in one of the following ways:

1. Admit responsibility for the commission of the violation and liability by paying the amount of the civil penalty; or

2. Dispute the notice of violation by requesting a hearing before a hearing officer. A hearing may be requested by sending a written request to the director of public works, parks and recreation with the following information:

a. The name of the individual on the notice of violation;

b. The current address of the individual; and

c. The notice(s) of violation(s) which the person wishes to dispute at the hearing.

B. After receipt of a person's written request for a hearing, the director of public works, parks and recreation shall set a hearing date and provide notice of the hearing to the person requesting it at least 14 days before the date of the hearing.

C. Any hearing conducted pursuant to this chapter shall be presided over by a hearing officer appointed pursuant to section 4.06.100. With respect to any such hearing, a properly filed notice of violation shall constitute a claim of liability and a claim for relief and no other such claim shall be required. Prima facie proof of the violation alleged shall be established by the city providing the hearing officer with either a certified copy of the notice of violation or the data stored in a computer or other device as described in subsection 11.09.030(C). No formal appearance by the city attorney's office is required at the hearing. The hearings and dispositions of all such actions shall be informal, with the hearing officer receiving witness statements or testimony and other evidence for the sole purpose of dispensing a fair and speedy resolution between the parties.

D. Any person initiating a hearing pursuant to this chapter shall be referred to as "defendant". If a defendant requesting a hearing before the hearing officer fails to appear at the hearing without having first sought and obtained a continuance of the hearing, the hearing officer may enter a decision against the defendant for the full amount of the civil penalty scheduled to be reviewed. The burden of proving any defense shall be upon the person raising such defense.

E. If the hearing officer finds that a violation did not occur or that the defendant should not be held liable, the hearing officer shall enter a decision for the defendant.

F. The defendant shall pay the total civil penalty forthwith or at such times and on such conditions as the hearing officer shall prescribe if it is found that the person has either failed to appear or otherwise defend against the issuance of the notice of violation as agreed or that the violation was committed and no applicable defense exists. Any decision by the hearing officer pursuant to this chapter shall be a final determination.

G. Upon reaching a decision, the hearing officer shall, as soon as practicable thereafter, file a written decision with the director of public works, parks and recreation substantially conforming to the following form:

City of Henderson, Clark County, Nevada

City of Henderson, Plaintiff v. _____, Defendant. Before, _____, Hearing Officer for the City of Henderson, Nevada, decision is entered in favor of _____, (plaintiff or defendant) for $_____/_____/_____ (enter $0.00 if judgment is for the defendant), on the _____ day of _____/_____/_____, 20_____. Any payments are due in full within ___ days of the date hereof to the City of Henderson Finance Department.

I certify that the foregoing is a correct reflection of the decision entered in the proceeding properly brought for my consideration pursuant to HMC _____ et seq.

_____

Hearing Officer

H. The city attorney may petition the Henderson municipal court for the entry of a civil judgment against the defendant in an amount equal to that stated in the written decision of the hearing officer if the city attorney determines this action to be necessary to enforce the decision. Service of such petition on the defendant must be made by certified mail, return receipt requested, restricted delivery, addressed to the defendant at the defendant's last known address, or in any other manner which is authorized by law. An affidavit or declaration of mailing, a signed, returned receipt, or other evidence of service of the civil judgment shall be filed upon such service of the petition.
(Ord. No. 3380, § 2, 1-3-2017)

11.09.065 Notice of violation—Response period.

A. A response to a notice of violation, as provided in section 11.09.060, must be made within 30 calendar days after the date on which the notice of violation is served. If no response is received during such 30-day period, an additional civil penalty which is equal to the amount of the original civil fine may be assessed.

B. If a person does not respond to a notice of violation within the 30-day response period, the director of public works, parks and recreation, or an authorized designee, shall send a notice of delinquency by mail to the person responsible for the violation or, in the case of an entity, an officer, key employee, manager in charge, or registered agent of that entity at the address on file with the department of public works, parks and recreation.

C. The notice of delinquency shall contain the original date of the violation, the amount of the civil fine and the amount of any late penalty which is associated therewith. The person responsible for the violation or, in the case of an entity, an officer, key employee, manager

in charge, or registered agent of that entity has 15 calendar days after the date of the notice of delinquency in which to respond to the department of public works, parks and recreation. If no response is made to the notice of delinquency within such additional 15-day period, an additional civil penalty may be assessed equal to the original civil penalty imposed and the matter may be referred to the city attorney's office to initiate proceedings to suspend and/or revoke the business license or permit.

D. If a person fails to respond to a notice of violation or a notice of delinquency in accordance with this chapter, the city is entitled to collect the amount of any fines and penalties by means of any remedy available under applicable law, including without limitation referring the matter to a collection agency and initiating proceedings to suspend and/or revoke the person's business license or permit.
(Ord. No. 3380, § 2, 1-3-2017)

11.09.070 Collection fees.

In addition to the civil penalties assessed pursuant to this chapter, the person responsible for any violation shall be liable for an additional collection fee where the collection of the penalties provided for herein is referred for collection. The amount of such fee shall be 25 percent of the outstanding indebtedness or $250.00, whichever is less. The amount of any such collection fee shall accrue and become due and payable at the time the indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency to the amount sought to be collected. Any judgment or amended judgment entered under this chapter may include the amount of the collection fee authorized herein.
(Ord. No. 3380, § 2, 1-3-2017)

11.09.080 Public nuisance abatement.

Any continuous violation of title 11 is a threat to the public health, safety, and morals and constitutes a public nuisance to the general public. In addition to any civil penalties provided herein, the city may abate the nuisance or apply for other equitable relief pursuant to section 1.05.040.
(Ord. No. 3380, § 2, 1-3-2017)

Chapter 11.10 BONDING

Sections:

11.10.010 Bond required.
11.10.020 Deposit lieu of bond.
11.10.030 Waiver.

11.10.010 Bond required.

Any person obtaining a permit for any of the purposes designated in this title shall, before commencing work upon or in any manner changing the surface of the street, highway, avenue or alley or as a condition of maintaining an obstruction or encroachment in the right-of-way pursuant to chapter 11.03, execute to the city a bond to be approved by the director of public works, parks and recreation, or designee, in such sum as shall be designated by the director of public works, parks and recreation, or designee, as necessary for the proper protection of the city. Such bond shall be conditioned that the obligors of the bond will pay to the city the amount of the bond, should the person obtaining such permit fail, neglect or refuse to complete the excavating, grading, paving, leveling, repairing, sidewalking, crosswalking or filling in the public street, highway, avenue, or alley for which such permit was obtained, within the time stated in the permit; fail, neglect or refuse to restore the street, highway, avenue or alley in proper condition to the satisfaction of the director of public works, parks and recreation, or designee, after the work provided for in the permit has been finished, and to keep the same in such condition for at least six months thereafter, reasonable wear thereof excepted, refilling any such excavation during such time, whenever and wherever it may sink or settle below the surface of the street, alley, sidewalk, highway, avenue or place, and without notice to do so from the director of public works, parks and recreation, or designee; or fail to comply with the terms of the encroachment agreement described in chapter 11.03 of this title. Instead of special bonds to cover particular work, any person intending to make excavations in public streets, alleys, or any public places in the city may make and maintain with the city a general cash bond in the sum of $50,000.00, which general bond shall be conditioned and used for the same purpose as the special bond hereinbefore described in this section, covering all work to be done instead of any particular piece of work; and while such general bond is maintained at the sum of $50,000.00, such person shall not be required to make the special bond hereinbefore in this section provided, but shall be required to comply with all the other provisions of this title.

(Ord. No. 3380, § 2, 1-3-2017)

11.10.020 Deposit lieu of bond.

Instead of executing the special bond required by section 11.10.010, a deposit in money in the same amount may be made with the director of public works, parks and recreation,

or designee, to be held under the same conditions as provided for such bond, except that when such excavation is refilled and the surface of the street, alley, sidewalk, highway, public square or place is restored as provided for herein, one-half of such deposit shall be returned and the other one-half of such deposit shall be retained for a period of six months after the completion of the excavation; and at the expiration of such time shall be returned to the person so depositing the same; provided, further, that the director of public works, parks and recreation may use any part or all of such deposit in restoring and in maintaining, at a reasonable cost, such street, alley, sidewalk, highway, public square or place, as required in section 11.10.010, whenever the person making such excavation fails or neglects to comply with the requirements of such section.
(Ord. No. 3380, § 2, 1-3-2017)

11.10.030 Waiver.

The director or public works, parks and recreation, or designee, may waive any bonding requirement prescribed by this chapter if, in the opinion of the director of public works, parks and recreation, or designee, no such bonding requirement is necessary.
(Ord. No. 3380, § 2, 1-3-2017)

Title 12

(RESERVED)

Title 13

STORMWATER REGULATIONS

Chapters:

13.04 Stormwater Regulations

Chapter 13.04 STORMWATER REGULATIONS

Sections:

13.04.010 Definitions.
13.04.020 General provisions.
13.04.030 Authority.
13.04.040 Commentary.
13.04.050 Word usage and construction of language.
13.04.060 Conflicting provisions.
13.04.070 Responsibility for enforcement.
13.04.080 Severability.
13.04.090 Ultimate responsibility.
13.04.100 Discharge prohibitions.
13.04.110 Suspension of MS4 access.
13.04.120 Construction activity discharges.
13.04.130 Industrial activity discharges.
13.04.140 Monitoring of discharges.
13.04.150 Requirements to prevent, control, and reduce storm water pollutants by the use of best management practices.
13.04.160 Watercourse protection.
13.04.170 Notification of spills.
13.04.180 Enforcement.
13.04.190 Appeal of notice of violation.
13.04.200 Enforcement measures after appeal.
13.04.210 Cost of abatement of the violation.
13.04.220 Reserved.
13.04.230 Violations deemed a public nuisance.
13.04.240 Criminal prosecution.
13.04.250 Enforcement actions and penalties not exclusive.
13.04.260 Construction site inspection program fees.

13.04.010 Definitions.

For the purposes of this chapter, the words and terms set forth in this chapter shall be defined as follows:

Authorized enforcement agency means employees or designees of the director of the municipal agency designated to enforce this title.

Best management practices (BMPs) means the schedules of activities, prohibitions of practices, general good house keeping practices, pollution prevention and educational practices, maintenance procedures, and other management practices to prevent or reduce the discharge of pollutants directly or indirectly to stormwater, receiving waters, or stormwater

conveyance systems. BMPs also include treatment practices, operating procedures, and practices to control site runoff, spillage or leaks, sludge or water disposal, or drainage from raw materials storage.

Clean Water Act means the Federal Water Pollution Control Act (33 USC Section 1251 et seq.), and any subsequent amendments thereto.

Construction activity means activities subject to NPDES Construction Permits. NPDES Storm Water Phase II permits will be required for construction projects resulting in land disturbance of one acre or more. Such activities include but are not limited to clearing and grubbing, grading, excavating, and demolition.

Dirt means loose earth, ashes and manure, but exclusive of sand and gravel that is to be used in construction work.

Garbage means putrescible animal and vegetable wastes, other than source-separated recyclables, that result from the handling, storage, sale, preparation, cooking, and serving of food and that have been discarded or abandoned.

Hazardous waste means any waste or combination of wastes, including without limitation solids, semisolids, liquids or contained gases, which:

1. Because of its quantity or concentration or its physical, chemical or infectious characteristics may:

a. Cause or significantly contribute to an increase in mortality or serious irreversible or incapacitating illness; or

b. Pose a substantial hazard or potential hazard to human health, public safety or the environment when it is given improper treatment, storage, transportation, disposal or other management;

2. Is identified as hazardous waste by the Nevada Department of Conservation and Natural Resources as a result of studies undertaken for the purpose of identifying hazardous wastes. The term includes, but is not limited to, toxins, corrosives, flammable materials, irritants, strong sensitizers and materials which generate pressure by decomposition, heat or otherwise.

Hazardous materials means any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

Illegal discharge means any direct or indirect non-storm water discharge to the storm drain system, except as exempted in section 13.04.100 of this chapter.

Illicit connections. An illicit connection is defined as either of the following:

1. Any drain or conveyance, whether on the surface or subsurface, which allows an illegal discharge to enter the storm drain system including but not limited to any conveyances which allow any non-storm water discharge including sewage, process wastewater, and wash water to enter the storm drain system and any connections to the storm drain system from indoor drains and sinks, regardless of whether said drain or connection had been previously allowed, permitted, or approved by an authorized enforcement agency; or

2. Any drain or conveyance connected from a commercial or industrial land use to the storm drain system which has not been documented in plans, maps, or equivalent records and approved by an authorized enforcement agency.

Industrial activity means activities subject to NPDES industrial permits as defined in 40 CFR 122.26(b)(14).

Municipal separate storm sewer system (MS4) means a conveyance or system of conveyances including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, or storm drains: (1) owned or operated by a state, city, town, borough, county, parish, district, association, or other public body (created by or pursuant to state law) including special districts under state law such as a sewer district, flood control district or drainage district, or similar entity, or an Indian tribe or an authorized Indian tribal organization, or a designated and approved management agency under Section 208 of the Clean Water Act that discharges into waters of the United States; (2) designed or used for collecting or conveying stormwater; (3) which is not a combined sewer; and (4) which is not part of a publicly owned treatment works (POTW) as defined at 40 CFR 122.2.

National Pollutant Discharge Elimination System (NPDES) storm water discharge permit means a permit issued by the Nevada Division of Environmental Protection (NDEP) under authority delegated pursuant to 33 USC Section 1342(b) that authorizes the discharge of pollutants to waters of the United States, whether the permit is applicable on an individual, group, or general area-wide basis.

Non-storm water discharge means any discharge to the storm drain system that is not composed entirely of storm water.

Overflow or *overflowing solid waste* means solid waste of nonresidential customers that is deposited on the ground outside of a solid waste container, or excess solid waste that has been piled onto a solid waste container that is already full to such an extent that the excess solid waste will spill onto the ground in the emptying process, requiring more than minimal manual cleanup of waste from the ground.

Person means any individual, association, organization, partnership, firm, corporation or other entity recognized by law and acting as either the owner or as the owner's agent.

Pollutant means anything that causes or contributes to pollution. Pollutants may include, but are not limited to: paints, varnishes, and solvents; oil and other automotive fluids; non-hazardous liquid and solid wastes and yard wastes; refuse, rubbish, garbage, litter, or other discarded or abandoned objects, ordnances, and accumulations, so that same may cause or contribute to pollution; floatables; pesticides, herbicides, and fertilizers; hazardous substances and wastes; sewage, fecal coliform and pathogens; dissolved and particulate metals; animal wastes; wastes and residues that result from constructing a building or structure; and noxious or offensive matter of any kind.

Premises means any building, lot, parcel of land, or portion of land, whether improved or unimproved, including adjacent sidewalks and parking strips.

Refuse means those discarded materials that have no useful physical, chemical, or biological properties after serving their original purpose and that cannot be reused or recycled for the same or other purposes.

Rubbish means non-putrescible wastes, other than source-separated recyclables, that have been discarded or abandoned such as paper, cardboard, automobiles, cans, wood, glass, bedding, crockery and similar materials.

Sewage waste means any solid or semi-solid waste, including biosolids, sludge, screenings and grit.

Storm drainage system means publicly-owned facilities by which storm water is collected and/or conveyed, including but not limited to any roads with drainage systems, municipal streets, gutters, curbs, inlets, piped storm drains, pumping facilities, retention and detention basins, natural and human-made or altered drainage channels, reservoirs, and other drainage structures.

Stormwater means any surface flow, runoff, or drainage consisting entirely of water from any form of natural precipitation, and resulting from such precipitation.

Stormwater pollution prevention plan means a document which describes the best management practices and activities to be implemented by a person or business to identify sources of pollution or contamination at a site and the actions to eliminate or reduce pollutant discharges to stormwater, stormwater conveyance systems, and/or receiving waters to the maximum extent practicable.

Wastewater means any water or other liquid, other than uncontaminated storm water, discharged from a facility.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 1, 2008)

13.04.020 General provisions.

A. *Purpose.* The purpose of this chapter is to provide for the health, safety, and general welfare of the citizens of the city through the regulation of non-storm water discharges to the multiple separate storm sewer system (MS4) to the maximum extent practicable as required by federal, state and local law in order to comply with requirements of the National Pollutant Discharge Elimination System (NPDES) storm water discharge permit (MS4 permit) issued by the NDEP.

B. *Policy.* The specific objectives of this chapter are to regulate the contribution of pollutants to the MS4 that would cause a violation of the MS4 permit, prohibit illicit connections and discharges to the MS4, and establish the legal authority to carry out all inspection, surveillance and monitoring procedures, and enforcement procedures and activities necessary to ensure compliance with this chapter.

C. *Scope.* The provisions of this chapter shall apply to all residents and property owners of the city, a responsible party operating and maintaining a commercial or industrial business, a responsible party conducting grading and other soil disturbing activities, and/or users of city provided street, storm drainage system, and utility infrastructure.

D. *Applicability.* The provisions of this chapter shall apply to all pollutants, stormwater, or urban use water discharged from any developed and undeveloped lands within the City of Henderson (city), including land owned by local, county, state or federal agencies unless explicitly exempted by the city, Nevada Division of Environmental Protection (NDEP), U.S. Environmental Protection Agency (EPA), or by permit.

E. *Administration.* Except as otherwise provided herein the public works director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest.

F. *Compliance.* No discharge of pollutants, stormwater, or urban use water from any developed and undeveloped lands shall be allowed until all applicable development review and approval processes have been followed, all applicable approvals have been obtained, and all required permits or authorizations to proceed have been issued.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 2, 2008)

13.04.030 Authority.

This chapter is enacted pursuant to the powers granted and limitations imposed by the laws of the State of Nevada, including the statutory authority granted in Nevada Revised Statutes (NRS) Chapter 445A.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 3, 2008)

13.04.040 Commentary.

Whenever a provision of this chapter requires additional explanation to clarify its intent, a commentary is included. These commentaries are intended solely as a guide for administrative officials and the public to use in interpreting the chapter.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 4, 2008)

13.04.050 Word usage and construction of language.

A. *Meanings and intent.* All provisions, terms, phrases, and expressions contained in this chapter shall be construed according to the purpose and intent set out in the general provision section.

B. *Headings, illustrations, and text.* In case of any difference of meaning or implication between the text of this chapter and any heading, drawing, table, figure, commentary block or illustration, the text shall control.

C. *Lists and examples.* Unless otherwise specifically indicated, lists of items or examples that use terms such as "including" and "such as," or similar language, are intended to provide examples and not to be exhaustive lists of all possibilities.

D. *References to other regulations, publications and documents.* Whenever reference is made to a resolution, ordinance, statute, regulation or document, it shall be construed as a reference to the most recent edition of such regulation (as amended), resolution, ordinance, statute, regulation or document, unless otherwise specifically stated.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 5, 2008)

13.04.060 Conflicting provisions.

The provisions of this chapter shall not be deemed to nullify any provision of local, state, or federal law. In the event of conflicting provision the following shall apply:

A. *Conflict with state or federal regulations.* If the provisions of this chapter are inconsistent with those of the state or federal government, the more restrictive provision will control, to the extent permitted by law.

B. *Conflict with other city regulations.* If the provisions of this chapter are inconsistent with one another or if they conflict with provisions found in other adopted ordinances, resolutions or regulations of the city, the more restrictive provision will control.

C. *Conflict with private agreements.* It is not the intent of this chapter to interfere with, abrogate or annul any easement, covenant, deed restriction, or other agreement between private parties. However, if the provisions of this chapter impose a greater restriction than imposed by a private agreement, the provisions of this chapter will

control. If the provisions of a private agreement impose a greater restriction than this chapter, the provisions of the private agreement will control. The city shall not be responsible for monitoring or enforcing private agreements.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 6, 2008)

13.04.070 Responsibility for enforcement.

The director of public works shall have primary responsibility for enforcing provisions of this chapter. Other officers, persons, or entities acting in the beneficial interest of or in the employ of the city as authorized by the director of public works shall share responsibility for enforcing provisions of this chapter.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 7, 2008)

13.04.080 Severability.

The provisions of this chapter are hereby declared to be severable. If any provision, clause, sentence, or paragraph of this chapter or the application thereof to any person, establishment, or circumstances shall be held invalid by a court of law with proper jurisdiction, such invalidity shall not affect the other provisions or application of this chapter.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 8, 2008)

13.04.090 Ultimate responsibility.

The standards set forth herein and promulgated pursuant to this chapter are minimum standards; therefore this chapter does not intend nor imply that compliance by any person will ensure that there will be no contamination, pollution, nor unauthorized discharge of pollutants.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 9, 2008)

13.04.100 Discharge prohibitions.

A. *Prohibition of illicit discharges.*

1. No discharge of wastewater or stormwater in any form, as defined in the Federal Water Pollution Control Act (33 USC 1251 et seq.), shall be made into the storm water system or waters of the State of Nevada that would cause a violation of the NPDES storm water permit.

2. No discharge of any pollutant, as defined in the Federal Water Pollution Control Act (33 USC 1251 et seq.) shall be made into the stormwater system or waters of the State of Nevada within the City of Henderson without first obtaining the appropriate NPDES permit from the State of Nevada or the U.S. Environmental Protection Agency.

3. The commencement, conduct or continuance of any illegal discharge to the storm drain system is prohibited except as described as follows:

a. Those discharges allowed in the "National Pollutant Discharge Elimination System Permit for Discharges from Municipal Separate Storm Sewer Systems," Permit No. NV0021911 issued by the NDEP on June 19, 2003.

b. Discharges specified in writing by the city as being necessary to protect public health and safety.

c. Dye testing is an allowable discharge, but requires a verbal notification to the city prior to the time of the test.

d. The prohibition shall not apply to any non-storm water discharge permitted under an NPDES permit, waiver, or waste discharge order issued to the discharger and administered under the authority of the city, NDEP or EPA; provided that the discharger is in full compliance with all requirements of the permit, waiver, or order and other applicable laws and regulations; and provided that written approval has been granted for any discharge to the MS4.

B. *Prohibition of illicit connections.*

1. The construction, use, maintenance or continued existence of illicit connections to the storm drain system that includes, without limitation, illicit connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection, that are in violation of title 14 of the Henderson Municipal Code (HMC);

2. A person is considered to be in violation of this ordinance if the person connects a line conveying sewage to the MS4, or allows such a connection to continue.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 10, 2008)

13.04.110 Suspension of MS4 access.

A. *Suspension due to illicit discharges.* The city may, without prior notice, suspend access to the MS4 by developed and undeveloped lands, or by property owners or operators, when such suspension is necessary to stop an actual or threatened discharge that presents or may present imminent and substantial danger to the environment, health or welfare of persons, MS4, waters of the State of Nevada, or waters of the United States. If the violator fails to comply with a suspension order issued, the city may take such steps as deemed necessary to prevent or minimize damage to the environment, health or welfare of persons, MS4, waters of the State of Nevada, or waters of the United States.

B. *Suspension due to the detection of illicit discharge.* Any developed and undeveloped lands, or property owners or operators, discharging to the MS4 in violation of this chapter may have their MS4 access terminated if such termination would abate or reduce an illicit

discharge. The authorized enforcement agency will notify a violator of the proposed termination of its MS4 access. The violator may petition the authorized enforcement agency for a reconsideration and hearing.

1. A person shall be in violation of this chapter if the person reinstates MS4 access to premises terminated pursuant to this chapter, without the prior approval of the city.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 11, 2008)

13.04.120 Construction activity discharges.

A. *Stormwater General Permit NVR100000 coverage required.* Any persons or facility operators subject to coverage under "Stormwater General Permit NVR100000" for construction activity issued by NDEP shall obtain such coverage. Proof of coverage under said permit shall be required in a form acceptable to the city prior to allowing discharges to the MS4.

B. *Compliance required.* Any persons or facility operators subject to coverage under "Stormwater General Permit NVR100000" for general construction activity issued by NDEP shall comply with all provisions of said permit and the provisions in this chapter. Proof of compliance may be required in a form acceptable to the city prior to the allowing of discharges to the MS4.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 12, 2008)

13.04.130 Industrial activity discharges.

A. *Stormwater General Permit NVR050000 coverage required.* Any persons or facility operators subject to maintaining a permit under Chapter 27 of the International Fire Code shall obtain coverage under "Stormwater General Permit NVR050000" for industrial activity issued by NDEP. Proof of coverage under said permit may be required in a form acceptable to the city prior to allowing discharges to the MS4.

B. *Renewable fire permit required.* Any persons or facility operators subject to maintaining a permit under Chapter 27 of the International Fire Code shall comply with all provisions of said chapter and the provisions of this chapter. Proof of compliance with said permit may be required in a form acceptable to the City of Henderson prior to the allowing of discharges to the MS4.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 13, 2008)

13.04.140 Monitoring of discharges.

A. *Applicability.* This section applies to all facilities that have storm water discharges associated with construction and industrial activity.

B. *Access to facilities.*

1. The city shall be permitted to enter and inspect facilities subject to regulation under this chapter as often as may be necessary to determine compliance. If a discharger has security measures in force which require proper identification and clearance before entry into its premises, the discharger shall make the necessary arrangements to allow access to representatives of the city.

2. Facility operators shall allow the city ready access to all parts of the premises for the purposes of inspection, sampling, examination and copying of records that must be kept under the conditions of a permit to discharge storm water, and the performance of any additional duties as defined by local, state and federal law.

3. The city shall have the right to set up on any permitted facility such devices as are necessary in the opinion of the city to conduct monitoring and/or sampling of the facility's storm water discharge.

4. The city has the right to require the discharger to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the discharger at its own expense. All devices used to measure stormwater flow and quality shall be calibrated to ensure their accuracy.

5. Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the operator at the written or oral request of the city and shall not be replaced. The costs of clearing such access shall be borne by the operator.

6. Unreasonable delays in allowing the city access to a permitted facility is a violation of a storm water discharge permit and of this chapter. A person who is the operator of a facility with a permit to discharge storm water associated with industrial activity commits an offense if the person denies the authorized enforcement agency reasonable access to the permitted facility for the purpose of conducting any activity authorized or required by this chapter.

7. If the city has been refused access to any part of the premises from which stormwater is discharged, and is able to demonstrate probable cause to believe that there may be a violation of this ordinance, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program designed to verify compliance with this chapter or any order issued hereunder, or to protect the overall public health, safety, and welfare of the community, then the city may seek issuance of a search warrant from any court of competent jurisdiction.

(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 14, 2008)

13.04.150 Requirements to prevent, control, and reduce storm water pollutants by the use of best management practices.

A. *Required BMPs.* The city shall require BMPs for any activity, operation, business, facility, or development that may cause or contribute to pollution or contamination of storm water, the MS4, waters of the State of Nevada, or waters of the U.S. The owner or operator responsible for said activity, operation, business, facility, or development shall provide, at their own expense, reasonable protection from accidental or intentional discharge of prohibited materials or other wastes into the MS4 to the maximum extent practicable through the use of BMPs. The use of BMPs shall not absolve any owner or operator from complying with any requirement set forth in this chapter or state and federal permits.

1. Compliance with all terms and conditions of a valid stormwater permit issued by NDEP or the U.S. EPA authorizing the discharge of stormwater to the system shall be deemed in compliance with the provisions of this section.
2. The BMPs for all new development and substantial redevelopment after adoption of this chapter shall follow established local guidelines whenever possible. If local guidelines are not established for certain practices, then generally accepted regional, state, and federal practices should be followed.
3. The BMPs used shall be identified on the stormwater pollution prevention plan (SWPPP) that follow established federal, state, and local guidelines as necessary for compliance with requirements of the stormwater permit issued by NDEP.
4. The BMPs used for each new development and substantial redevelopment project subject to this chapter are may be inspected by the city for reasonable protection from accidental or intentional discharge of prohibited materials or other wastes to the maximum extent practicable for any activity, operation, facility, or development that may cause or contribute to pollution or contamination of storm water, the MS4, waters of the State of Nevada, or waters of the U.S.
5. The inspection and maintenance of BMPs located on private land shall be at the sole responsibility and expense of the property owner or operator.

B. *Inadequate BMPs.* If at any time the city determines that the BMPs are inadequate to provide reasonable protection from accidental or intentional discharge of prohibited materials or other wastes to the maximum extent practicable for any activity, operation, facility, or development that may cause or contribute to pollution or contamination of storm water, the MS4, waters of the State of Nevada, or waters of the U.S. the owner or operator responsible for said property or premises may be required to implement additional BMPs at their own expense to prevent the potential or further discharge of pollutants.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 15, 2008)

13.04.160 Watercourse protection.

Every person owning property through which a watercourse passes, or such person's lessee, shall keep and maintain that part of the watercourse within the property free of trash, debris, excessive vegetation, and other obstacles that would pollute, contaminate, or significantly retard the flow of water through the watercourse. In addition, the owner or lessee shall maintain existing privately owned structures within or adjacent to a watercourse, so that such structures will not become a hazard to the use, function, or physical integrity of the watercourse.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 16, 2008)

13.04.170 Notification of spills.

Notwithstanding other requirements of law, as soon as any person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of any known or suspected release of materials which are resulting or may result in illegal discharges or pollutants discharging into storm water, the MS4, waters of the state, or waters of the U.S., said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of hazardous materials said person shall immediately notify emergency response agencies of the occurrence via emergency dispatch services. In the event of a release of non-hazardous materials, said person shall notify the department of public works in person or by phone or facsimile no later than the next business day. Notifications in person or by phone shall be confirmed by written notice addressed and mailed to the department of public works within five business days of the phone notice. If the discharge of prohibited materials emanates from a commercial or industrial establishment, the owner or operator of such establishment shall also retain an on-site written record of the discharge and the actions taken to prevent its recurrence. Such records shall be retained for at least three years.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 17, 2008)

13.04.180 Enforcement.

A. *Notice of potential discharge violation.* Whenever an authorized agent of the city finds that an owner or operator has inadequate, or failed to install, best management practices (BMPs) on private property or at a permitted construction site as required by this chapter, the city shall order compliance by written notice of violation to the responsible person. Such notice may require without limitation:

1. That violating practices or operations shall cease and desist;

2. The mitigation of inadequate or the implementation of source control or treatment BMPs;

3. A re-inspection of the site to ensure that any inadequate BMPs are mitigated or new BMPs are installed that meet the requirements for compliance of this Code; and

The notification letter shall provide a description of the BMPs found to be in non-compliance and set forth a deadline within which such mitigation or installation of said BMPs must be completed. The notice shall advise that a re-inspection must be scheduled within 14 days of receipt of the notification and the contact information for scheduling such re-inspections. Said notice shall further advise that, should the violator fail to complete the work within the established deadlines, additional notifications and enforcement actions shall be implemented as described in the following matrix:

Action	*City Notification Letter*	*Stop Current Inspections*	*Stop Work Order*	*City Mitigation*	*Citations*	*State Involvement*
Violation						
No control measures	X					
Inadequate control measures	X					
Poor housekeeping	X					
No response to 1st notification letter	X	X				
No response to 2nd notification letter (certified)	X	X				
No response to 3rd notification letter (certified)	X	X	X	X	X	X

The second and subsequent notification letters shall provide a description of the BMPs found to be in non-compliance and set forth a deadline within which such mitigation or installation of said BMPs must be completed. The notice shall advise that a re-inspection must be scheduled within seven days of the receipt and the contact information for scheduling such re-inspections; as well as a description of the enforcement actions that the city is taking due to the lack of response.

B. *Notice of discharge violation.* Whenever an authorized agent of the city finds that an owner or operator has allowed pollutants to be discharged from private property or at a permitted construction site in violation of this chapter, the city shall order compliance immediately, followed by written notice of violation to the responsible person. Such notice may require without limitation:

1. The elimination of illicit discharges;

2. That violating discharges, practices, or operations shall cease and desist;

3. The abatement or remediation of storm water pollution or contamination hazards and the restoration of any affected property; and

4. The mitigation of inadequate or the implementation of source control or treatment BMPs.

The notification letter shall provide a description of the discharge found to be in non-compliance and set forth a deadline within which such mitigation of said discharge must be completed. The notice shall advise that a re-inspection must be scheduled within seven days of the receipt of the notification and the contact information for scheduling such re-inspections. Said notice shall further advise that, should the violator fail to complete the work within the established deadlines, additional notifications and enforcement actions shall be implemented as described in the following matrix:

Action	*City Notification Letter*	*Stop Current Inspections*	*Stop Work Order*	*City Mitigation*	*Citations*	*State Involvement*
Violation						
Pollutant discharge to MS4	X	X				
No response to 1st notification letter	X	X	X			
No response to 2nd notification letter (certified)	X	X	X	X	X	
No response to 3rd notification letter (certified)	X	X	X	X	X	X

The second and subsequent notification letters to the construction site owner/operator will include a description of the violation, the required mitigation measures, and the requirements for scheduling a re-inspection of the site; as well as a description of the enforcement actions that the city is taking due to the lack of response.

C. *Civil judicial compliance.* Any user or person who violates, or aids or abets the violation of any provision of this chapter, requirements and conditions set forth in permits duly issued, or violates any cease and desist order, prohibition, shall be held civilly liable for violations regardless of intention or negligence on their part. Said civil liabilities in the sum of no less than $1,000.00 per day, and not to exceed $10,000.00 per day of which such violation occurs. In addition to civil liabilities herein, the violator shall be liable for any penalties imposed by the city as a result of that violation.

D. *Criminal judicial compliance.* Any user or person who willfully or negligently is in violation of this chapter, their stormwater discharge permit, or a cease and desist order may be guilty of a misdemeanor.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 18, 2008)

13.04.190 Appeal of notice of violation.

A. Any party affected by any decision, action or determination, including any enforcement action taken by the city may file an appeal. All appeals for reconsideration shall be upon a written request filed with the director, no later than ten business days from the date of the notice of potential discharge or notice of discharge violation, setting forth in detail the facts supporting the user's request for reconsideration.

B. The decision of the director shall be rendered within ten business days of the date of the hearing of the appeal. Such decision shall be deemed to be the final administrative action on such appeal.

C. If a ruling made by the director is unsatisfactory to the customer requesting reconsideration, the customer may within ten days after notification of city action, file a written appeal to the city council with the city clerk. The written appeal shall be heard by the city council within 30 days from the date of filing. The director's decision, action or determination shall remain in effect during such period of reconsideration or appeal.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 19, 2008)

13.04.200 Enforcement measures after appeal.

If a violation has not been corrected pursuant to the requirements set forth in a notice of violation, or, in the event of an appeal, within seven days of the decision of the public works director or his designee upholding the decision of the authorized agent of the city, then representatives of the city shall enter upon the subject private property and are authorized to take any and all measures necessary to abate the violation and/or restore the property. It shall be unlawful for any person, owner, agent or person in possession of any premises to refuse to allow the city or designated contractor to enter upon the premises for the purposes set forth above.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 20, 2008)

13.04.210 Cost of abatement of the violation.

Within 14 days after abatement of the violation, the owner of the property will be notified in writing of the cost of abatement, including administrative costs. The property owner may file a written protest objecting to the amount of the assessment within seven days of receipt of the cost assessment. If the amount due is not paid within a timely manner as determined by the decision of the city or by the expiration of the time in which to file an appeal, the charges shall become a special assessment against the property and shall constitute a lien on the property for the amount of the assessment. Any person violating any of the provisions of this article shall become liable to the city by reason of such violation. The liability shall be paid in not more than 12 equal payments. Interest at the rate of percent per annum equal to that set for city Investments at the time of violation shall be assessed on the balance beginning on the first day following abatement of the violation.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 21, 2008)

13.04.220 Reserved.

Editor's note—Ord. No. 3058, § 1, adopted September 3, 2013, repealed the former section 13.04.220 in its entirety, which pertained to injunctive relief, and derived from Ord. No. 2783, § 22, adopted in 2008.

13.04.230 Violations deemed a public nuisance.

In addition to the enforcement processes and penalties provided, any condition caused or permitted to exist in violation of any of the provisions of this chapter is a threat to public health, safety, and welfare, and is declared and deemed a nuisance by the city council, and may be summarily abated or restored at the violator's expense, and/or a civil action to abate, enjoin, or otherwise compel the cessation of such public nuisance may be taken.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 23, 2008)

13.04.240 Criminal prosecution.

Any person that has violated or continues to violate this chapter shall be subject to criminal prosecution to the fullest extent of the law, and shall be subject to a fine of up to $1,000.00 per violation per day and/or imprisonment in the city detention center for a period of time not to exceed six months or both a fine and imprisonment. The authorized enforcement agency may recover all attorney fees, court costs and other expenses associated with enforcement of this chapter, including remediation, sampling and monitoring expenses.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 24, 2008)

13.04.250 Enforcement actions and penalties not exclusive.

The enforcement actions and penalties listed in this chapter are not exclusive of any other actions available under any applicable federal, state or local law and it is within the discretion of the authorized enforcement agency to seek cumulative actions.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 6, 2008)

13.04.260 Construction site inspection program fees.

A. The fees for services provided are listed in the SWPPP inspections procedure on file in the development services center (DSC) and shall be directed to the DSC enterprise fund. Sufficient copies to meet public demand for such procedure shall be available for public use at the DSC.

B. The development services center manager or designee, in consultation with the development industry advisory committee, shall evaluate the need for fee adjustments and make annual recommendations to city council regarding the need for such adjustments.
(Ord. No. 3058, § 1, 9-3-2013; Ord. 2783, § 26, 2008)

Title 14

UTILITY SERVICES

Chapters:

14.01 Definitions
14.02 Water Commitment and Allocation Regulations
14.03 Water Regulations
14.04 Wastewater Regulations
14.05 Reclaimed Water Regulations
14.06 Raw Water Regulations
14.08 Cross-Connection Control Regulations
14.09 Pretreatment Regulations
14.12 Electricity and Natural Gas Utilities
14.14 Conservation
14.16 Refunding Regulations
14.17 Billing Regulations
14.18 Fees, Rates and Charges
14.21 Compliance

Chapter 14.01 DEFINITIONS

Sections:

14.01.010 Definitions.

14.01.010 Definitions.

For the purpose of administering this title, the words and terms set forth in this chapter shall be defined as follows:

Acceptance means a formal process by which the City of Henderson assumes responsibility for operation and maintenance of the asset and/or infrastructure.

Active/*programmed recreation* means active recreation or programmed recreation.

Active/*programmed recreation turf* means irrigated lawn grass in an active/programmed recreation area on homeowner association-owned or -managed property, at a public park, or at a water park (excluding park streetscape and community frontage areas) and is:

a. 1,500 contiguous square feet or greater;

b. Co-located with facilities, including but not limited to trash bins, benches, tables, walkways, and/or other recreational amenities; and

c. Located at least ten feet from a street or interior facing parking lot unless: (1) the contiguous turf area is at least 30 feet in all dimensions; or (2) the turf is immediately adjacent to an athletic field.

Active recreation means an activity or event that may or may not be scheduled and may include active or passive recreational activities and events.

Actual cost means all costs to include, but not limited to costs of time, labor, overhead and benefits, rental or city-owned vehicles, materials, and use of outside resources or services necessary to administer, monitor, repair, replace, remove and/or install city facilities as needed.

Adopted standards means procedures, policies, rules, and regulations which may include utility design and construction standards and City of Henderson adopted amendments, city and/or department standard operating procedures, approved material lists, adopted plumbing codes, etc.

Appurtenances means equipment, machinery, appliances, structures, attachments, and other parts of a main structure that are necessary to allow it to operate as intended.

Athletic field turf means irrigated lawn grass used as a programmed sports field or for physical education and intermural use that is 1,500 contiguous square feet or greater, not less than 30 feet in any dimension, and located at a school, daycare, youth recreation

center, senior center, public park, homeowner association-owned or -managed park, water park, or religious institution. Athletic field turf may be located less than ten feet from a street or interior-facing parking lot if the contiguous turf area is at least 30 feet in all dimensions.

Basic service charge means a monthly fee for city accounting services, taxes, billing, account collection, collection and treatment of storm water inflow and groundwater infiltration, salinity control and pretreatment.

Billing period means the period of time for which a customer is billed for services provided by the utility.

Building permit means a permit for the erection, construction, enlargement, alterations, repair, improvements, conversion or demolition of any building or structure regulated by the City of Henderson Municipal Code (HMC).

Connection charge means the sum of the various fees charged for utility service including the system development charge, refunding fees, regional connection charge, main connection charge and lateral connection fee.

Customer means any person, owner, occupant, manager, developer, entity, or user of real property who is or has been a recipient of utility services.

Days means actual calendar days.

Dedication means a formal process by which the City of Henderson has been officially given all ownership rights to said property, facilities and/or premises.

Delinquent means being overdue in payment.

Department means City of Henderson department of utility services.

Department service rules, department's service rules, or service rules means the document that contains, but is not limited to, the department's rates, fees, charges and procedures, and is updated periodically by city staff to incorporate changes authorized by council or the director.

Designated use area turf means irrigated lawn grass designated for special use at cemeteries and mortuaries.

Developer means any person engaged in or proposing development of property, which shall include subdividers.

Direct discharge or discharge means the addition of any pollutant, directly or indirectly, into the publicly owned treatment works or state waterways.

Director or director of utility services means the director of utility services for the City of Henderson or any of their duly authorized representatives.

Disabled person is a person meeting the following criteria: (1) a person who is the head of household; and (2) has been determined by a competent and licensed physician to be totally and permanently disabled.

Discontinuance of service means formal enforcement action taken against a non-compliant user, wherein the non-compliant user's water and/or wastewater service is shutdown or otherwise discontinued.

Easement means an acquired legal right to the use of land owned by others.

Enforcement response plan means a plan which provides guidance to City of Henderson personnel for enforcement actions necessary to remedy non-compliance with a provision in title 14 of the Code.

Equivalent dwelling unit (EDU) means a measure of water demand equivalent to the amount of water used annually by an average single-family residential dwelling unit. One EDU is equivalent to 0.55 acre-feet of water per year.

Equivalent residential unit (ERU) means a measure of wastewater equivalent to the amount of wastewater generated per day by an average single-family residential dwelling unit. One ERU is equivalent to 250 gallons per day.

Exemption means a determination by the city, or its designee, that a project is not subject to the rules and regulations of a particular section of this Code.

Fire service or fire service connection means a water service connection exclusively for fire suppression.

Fixture means a plumbing device or appliance that is connected to the water supply system and is also connected to the wastewater collection system of the city either directly or indirectly. Devices and appliance expressly excluded from this definition include, but are not limited to: air conditioner, boiler, coffee urn, disposal units, drinking fountain, glass filler, ice machine, refrigerator, soft drink machine, water softener and X-ray machine.

Functional turf means an irrigated lawn grass area that provides a recreational benefit to the community and is:

a. Located at least ten feet from a street (except as otherwise specified), installed on slopes less than 25 percent, and not installed within street medians, along streetscapes or at the front of entryways to parks, commercial sites, neighborhoods, or subdivisions; and

b. Active/programmed recreation turf; athletic field turf; designated use area turf; golf course play turf; pet relief turf; playground turf; or resident area turf.

Golf course play turf means irrigated lawn grass at a golf course in driving ranges, chipping and putting greens, tee boxes, greens, fairways, and rough.

Hand-watering means the sporadic use or application of water outside any dwelling, building, or structure for any purpose by a customer or any person through a hose connected to a piping system while such hose is held by an individual.

Industrial means a distinct group of productive enterprises, primarily dealing with manufacturing activity and/or a recipient of city utility services not classified as residential or commercial.

Lawn grass means an area covered in natural turf.

Manifolding or meter banking means more than one meter and service connection within close proximity of each other, configured and connected to a single service line supplying water to the property.

Maximum day demand means the maximum daily water demand as allowed by the director of utility services.

Natural turf means any of various grasses (such as Kentucky bluegrass, hybrid Bermuda, or perennial ryegrass) grown to form grass and its matted roots.

Nonfunctional turf means irrigated lawn grass area not meeting the definition of functional turf.

Out of valley area means real property located outside the boundaries of the Las Vegas Valley Hydrographic Basin (hydrographic basin number 212, region 13) as described by the then-current Hydrographic Areas Map prepared by the Nevada Division of Water Resources.

Pet relief turf means irrigated lawn grass at a property providing commercial and retail services for pets that is designated for pet use (such as veterinarians or boarding facilities). Pet relief turf may not exceed 200 square feet.

Playground turf means irrigated lawn grass in designated play areas with playground amenities, including but not limited to slides, swings and climbing structures on homeowner association-owned or -managed property or at a public park, water park, school, daycare, youth recreation center, senior center, or religious institution. Playground turf may be located less than ten feet from a street, if fenced.

Pollutant means a substance that alters the chemical, physical or biological properties of receiving waters.

Positive shut-off nozzle means a device that automatically shuts off the flow of water through a hose or other item to which it is attached unless pressure is maintained on a trigger or other mechanism forming part of the device (also known as a trigger nozzle).

Premises means a structure or group of adjacent structures belonging to an individual or a group of individuals, receiving utility services.

Programmed recreation means a recreational activity or event that is scheduled by an organizing entity through a systematic process and requires the use of a particular facility, area, course, field, or equipment.

Property means a tract of land, with or without structures, belonging to an individual or a group of individuals, receiving utility services.

Public water system means city-owned infrastructure, facilities, piping, and appurtenances used to treat and deliver water.

Publicly owned treatment works (POTW) means city-owned wastewater infrastructure, facilities, piping, and appurtenances used to collect, treat and discharge wastewater.

Raw water means source water that has not been processed for the removal of pollutants.

Reclaimed water means municipal wastewater processed to meet all applicable federal, state and local standards for use in applications approved by the director of utility services.

Refunding means a program established by the department of utility services which provides a mechanism for the city to enter into an agreement with a customer fronting the cost and building of utility infrastructure. The agreement provides for the repayment of a portion of such costs related to the design and construction of such infrastructure by other customers obtaining benefit from it.

Refunding report means a final report submitted to the city council by the director of utility services identifying the boundary of the special refunding area, the type and route of backbone infrastructure to be included, the service demands when the special refunding area is fully developed, methods of cost sharing, refunding amounts, depreciation times or any other information required to assist council in deciding on a special refunding area.

Resident area turf means up to 150 square feet of irrigated lawn grass per dwelling unit at a multi-family residential property, single-family attached residential property, commercial/multi-family mixed use property, extended stay hotel/motel, or assisted living or live-in rehabilitation center used by residents for recreation or leisure and not to exceed a total of 16,000 square feet on the property. Resident area turf must be in areas reasonably accessible for active use by residents and therefore may not be located in a streetscape frontage, parking lot, roundabout, median, driveway, or any other non-accessible or exclusive-use area such as a commercial courtyard.

Responsible party means the individual, entity, company, contractor and/or developer that has signed the permit (also known as the permittee), and/or that is financially responsible.

Safe Drinking Water Act (SDWA) refers to Public Law 93-523 as amended that protects public health by regulating the nation's public drinking water supply. Under SDWA, the Environmental Protection Agency (EPA) sets standards for drinking water quality and oversees the states, localities, and water suppliers who implement those standards.

Senior citizen is a person meeting all of the following criteria: (1) a person who is the head of household; and (2) attained the age of 62; and (3) qualifies for the Clark County assessor senior citizen's property tax/rent relief program.

Service connection—Dedicated residential or commercial fire service means the point of connection between a public water system and the customer water system, and defined as the downstream end of the valve connection at the public main.

Service connection—Large meter (three inches or greater) means the point of connection between a public water system and the customer's water system, defined as the point where the piping exits the meter vault downstream of the meter on the exterior of the meter vault.

Service connection—Small meter (less than three inches) and combined domestic fire service means the point of connection between a public water system and the customer water system, defined as the downstream end of the meter at the discharge point of the connected fitting or at the discharge point of the second angle meter stop.

Service connection—Wastewater means the point of connection between a public collection system main and the wastewater service line or service lateral.

Service line—Water or service lateral—Water means the pipe from the city's water distribution main up to and including the meter and attached fittings.

Service line—Wastewater or service lateral—Wastewater means the pipe and all appurtenances located between a collection system main and the place where a customer of the public collection system discharges to the main.

Sewer lateral cleanout means a structure or device designed to provide sewer access for the purpose of removing deposited or accumulated materials in the customer's sewer lateral.

Southern Nevada Water Authority (SNWA) means the organization by that name that has been formed by cooperative agreement among local agencies to address southern Nevada's water needs on a regional basis.

Standard refunding agreement means an agreement between the city and a customer that establishes the amount to be collected and refunded to participating parties as their prorated share, advanced for the construction of non-backbone infrastructure.

Special refunding agreement means an agreement between the city and a customer that establishes the final cost of work to be collected and refunded to participating parties as their prorated share, advanced for the cost of backbone infrastructure.

System development charge (SDC) means that portion of the connection charge determined to be the customer's proportionate share of the cost to provide utility service within the distribution and collection system.

Tamper or *tampering* means to introduce a contaminant into a public water system with the intention of harming persons; or to otherwise interfere with the operation of a public water system with the intention of harming persons.

Temporary service means an approved request for service under conditions approved by the city. This service provides no permanent right to water service and has a low priority. Service is approved at the sole discretion of the city.

User means a recipient of city utility services.

Utility, utilities, or utility services means a public water, wastewater, reclaimed and/or raw water services provided by the City of Henderson which includes equipment to provide such service.

Walkway has the same meaning as "Walkway" in section 19.37.1 (Definitions) of the Code.

Wastewater backbone infrastructure means infrastructure such as lift stations and all connecting pipelines, generally 15 inches or larger in diameter, or as otherwise determined by the director, used to collect and transport wastewater from users or other facilities.

Water backbone infrastructure means infrastructure such as pump stations, reservoirs and all connecting pipelines or as otherwise determined by the director, used to transmit and distribute water to users or other facilities.

Water commitment—Conditional and final means a final commitment to provide water service, conditioned upon completion of the requirements outlined in this title and the department service rules; or as otherwise determined by the director. Conditional means a commitment of water shall be deemed conditional, pending issuance of a certificate of occupancy. At no time shall a water commitment be considered a vested right until at a minimum, all fees relative to the provision of water service has been fully satisfied and service established in accordance with this title and the department service rules.

Water facilities means water transmission lines, water treatment facilities, reservoirs, pumping stations, distribution lines and appurtenances.
(Ord. No. 3905, § 1, 9-13-2022; Ord. 2798, § 1, 1-20-2009; Ord. 2676, § 1, 2008; Ord. 2536, § 1, 2006; Ord. No. 2951, § 1, 12-20-2011)

Chapter 14.02 WATER COMMITMENT AND ALLOCATION REGULATIONS

Sections:

14.02.010 General provisions.
14.02.020 Applicability.
14.02.030 Water commitment.
14.02.040 Existing water contracts and allocations.
14.02.050 Violations.

14.02.010 General provisions.

A. *Purpose and policy.* This chapter sets forth responsibility, authority, and provisions to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare.

B. *Scope.* The provisions of this chapter shall apply to all residents of the city, a responsible party operating, maintaining, repairing, relocating, removing, and/or disconnecting the public water system and/or publicly owned treatment works, and/or users of city-provided utilities.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. 2676, § 2, 2008; Ord. 2536, § 3, 2006)

14.02.020 Applicability.

A. All water commitments shall be governed by and made in accordance with the requirements stipulated in the Henderson Municipal Code and the department service rules.

B. Section 14.02.040 shall be effective for water committed by the City of Henderson through an executed water service contract. Water commitment associated with development that falls under a water service contract shall be addressed in accordance with this title and the applicable sections of the department service rules.

C. Water commitment for all water service contracts that have expired, or have had their allocations relinquished or revoked, shall be governed by section 14.02.030 and made in accordance with the requirements stipulated in the department service rules.

D. Approval of a water commitment shall not be deemed to prevent future exercise of the city's authority to protect health, safety and general welfare.

E. All water committed to projects by the Victory Valley Land Company (VVLC), The Landwell Company, or any other subsidiary company of VVLC as determined by the city, which is under agreement with the City of Henderson, shall be governed by this chapter. (Ord. 2536, § 4, 2006; Ord. No. 2951, § 2, 12-20-2011)

14.02.030 Water commitment.

A. All developments requiring water service from the city shall obtain a water commitment in accordance with this chapter and procedures stipulated in the service rules.

B. Exemptions. Any development not requiring water service from the city shall be exempt from this chapter; or any temporary activity that does not create a permanent water demand, or additional activities that do not create additional water demands from the property initiating such activities shall not be required to obtain a water commitment.

C. A will serve letter is issued as a part of the city's duty to the general public and shall not constitute any obligation of the city, or entitlement of the developer to serve the development project with water, except to the extent that a valid water service contract has been approved and executed for the project, or conditional water commitment secured pursuant to this title.

D. All water committed under this chapter shall be committed in a manner that is consistent with the recommendations set forth in the then-current SNWA Water Resource Plan, as approved by the City of Henderson and SNWA and on file with the State of Nevada, Division of Water Resources.

E. Final issuance of a water commitment shall not be deemed to give rise to the accrual or vested development rights, equitable estoppel claims, or any right or guarantee to receive development approvals, building or grading permits. Nor does it relieve the recipient of such water commitment from complying with established rules or regulations governing the development of land, or the provision of payment for water facilities required under this title and the service rules.

F. Final issuance of a water commitment does not create or imply water rights, or an automatic property interest in water service. Instead, issuance of a water commitment authorizes water service to be provided in accordance with the conditions set forth in this title and department service rules.

G. Approval of a water commitment shall terminate and the conditional commitment shall be considered void if completion of any prerequisite item becomes delinquent or expires.

H. The director reserves the right to deny any request for a water commitment if the city deems the property and/or premises requiring service to be non-compliant with any provisions of this Code.

I. A water commitment must be obtained from the city prior to establishment of a new water service connection. Water service to a new water service connection will not be activated until all requirements for establishing such service have been satisfied.

J. A new water commitment must be obtained from the city prior to expanding or upgrading any existing service connection. Any proposal to expand or upgrade an existing service must be coordinated with the department of utility services. Such proposal shall follow the requirements for the establishment of a new water service connection.

K. Any expansion or addition of buildings or structures on a parcel of land presently served by the city, where such expansion or addition increases the water demands above the total water commitment established for such parcel of land, shall obtain a new water commitment for such additional demand.

L. A water commitment is deemed conditional until all items identified in the service rules pertaining to water commitment have been satisfied. Notwithstanding any provision in the service rules, payment of applicable fees and construction of any water facilities (where applicable), a water commitment shall be deemed final upon the city's verification that all steps in the water commitment process as outlined in the service rules are complete. Nevertheless, the city may deny any request for a water commitment or request for a water service connection if the city determines there is an inadequate supply of water, or there are physical limitations in the system capacity to serve the developer or proposed customer and simultaneously maintain an adequate level of service to other customers, or if granting the request would compromise public health, safety and/or welfare. Developers shall proceed accordingly at their own risk.

M. Water commitment cannot be traded, sold or transferred to another parcel of land. Recordation of a parcel map, final map or other map associated with the division of land shall not be interpreted as the city's authorization for, or commitment of water service. Final issuance of a water commitment shall occur only upon completion of the steps outlined in the service rules.

N. Water commitment shall become void upon abandonment or removal of an existing service connection. Re-establishment of an abandoned or removed service connection shall require application for and issuance of a new water commitment.

O. If a property owner requests water service from the city and such owner owns a permanent, non-revocable water right for diversion of groundwater from one of the hydrographic basins identified in the following sentence, then all or a portion of said non-revocable water right shall be donated and transferred to the city as a condition of

provision of service. A person owning a permanent, non-revocable water right for diversion from the Las Vegas Valley, Black Mountain Area, Colorado River Valley, Eldorado Valley, Paiute Valley, and/or Ivanpah Valley hydrographic basin who donates and transfers the water rights to the city, pays all applicable fees and charges, and meets all other requirements of the city, may obtain a commitment from the city in an amount equal to the pumpage permitted to the city by the state engineer, but not to exceed the amount of water right donated. The water commitment shall become effective 31 days following the date the state engineer approves an application to change.

P. Public water system service area.

1. The city council recognizes that there are persons owning property outside of the city's public water system service area that desire to connect such property to the public water system because no existing facilities are readily available to provide service by that property's governing jurisdiction. In such cases, the city shall not permit a person to request, or a property to receive, a connection to the city's public water system to any extra-territorial property. The city shall continue to serve extra-territorial properties with its public water system if:

a. Such properties were connected to the public water system prior to the effective date of the ordinance from which this subsection derives; and

b. A property is connected to the public water system prior to the effective date of the ordinance from which this subsection derives pursuant to a service contract, and the properties and/or the parties to the service contract are in compliance with the terms of service contract.

2. For purposes of this chapter, the service area for the public water system is designated as any and all real property located within the contiguous corporate boundaries of the City of Henderson as those boundaries may be amended from time-to-time. All other real properties located outside of the contiguous corporate boundaries of the City of Henderson are deemed extra-territorial properties, and explicitly not a part of the city's public water system service area. The city council may, by ordinance, amend the service area to include areas outside the corporate boundaries if the city council determines:

a. That a public benefit will be served by such change; and

b. A concurrent contract is provided by the property's jurisdictional governing body.

3. Nothing in this section shall be deemed to preclude the city from discontinuing or interrupting service for any reason authorized by law or contract, and the city may terminate service for failure to comply with any service contract.

Q. *Revocable groundwater rights and domestic wells.* A building or structure that currently receives water from a revocable groundwater right (and is required to connect to a municipal water purveyor because the right to use groundwater is revoked by the state engineer) or from a domestic well may be permitted to obtain a water commitment from the city for the building or structure, provided the existing well is abandoned in accordance with all local, state, and federal requirements.

R. *Water rights or rights to delivery of Colorado River water to SNWA for use by city.* With approval of the director, a person can obtain a water commitment without donating the water right or assigning the right to delivery of Colorado River water directly to the city if that person assigns to SNWA the water rights or rights to delivery of Colorado River water, a percentage of which is for use by the city. SNWA and the city shall have the sole authority to evaluate the proposed acceptance of water rights and/or right to delivery of Colorado River water, including based upon water quality, quantity, assured availability, location, deliverability, and legal considerations, and shall determine if the offered water rights and/or right to delivery of Colorado River water may be used to obtain a water commitment under this process. If acceptable to SNWA and the city, the city may enter into a contractual arrangement with the person to provide for a present or future water commitment.
(Ord. No. 3905, § 2, 9-13-2022; Ord. No. 3322, § 1, 12-15-2015; Ord. No. 2909, § 5, 3-15-2011; Ord. 2536, § 5, 2006)

14.02.040 Existing water contracts and allocations.

A. This section shall be effective for water allocated by the city through July 16, 1996, and verified by an executed water service contract. All existing water service contracts and future assignments from master plan and/or T-District water allocations shall continue to be governed by this section and the service rules, except that approvals by the city council shall be by the director.

B. Existing water service contracts shall be administered in accordance with the stipulations of Ordinance No. 1259, as well as other ordinances previously codified and incorporated by reference associated with the city's water allocation program and shall be made a part of this section by reference.

C. *Expiration/revocation of water service contracts.*

1. All water service contracts that have expired and thus were relinquished or revoked shall reapply pursuant to section 14.02.030 and department service rules.

2. Expiration and/or revocation of a water service contract shall be in accordance with the established procedures outlined in this title and department service rules.

3. The city council may revoke a water service contract for any of the following reasons:

a. Failure to commence construction on or before the date set forth in construction schedule contained in the water service contract;

b. Failure to complete construction in strict accordance with the construction schedule required in the long form water service contract;

c. Expiration or revocation of a building permit, unless extended by city council;

d. Failure to complete construction by the final construction date set forth in the construction schedule contained in the water service contract; or

e. Failure to comply with any other condition imposed in the water service contract or any other condition imposed as a condition of development.

4. In the event the applicant is unable to comply with the terms and conditions of the water service contract that would result in expiration/revocation, the applicant may request an extension of the contract. Any such extension is at the sole discretion of the city council and shall require satisfaction of additional conditions not inconsistent with the original approval. Applicant shall have the burden of establishing that the reasons for extension are for acts or circumstances that were unforeseeable at the time of the original approval.

5. The director shall initiate revocation proceedings under this section whenever it is determined that one of the following approvals has expired, whether expiration occurs on a particular date or by virtue of the terms and conditions imposed on the approval:

a. Approval/issuance of a water service contract; or

b. Any transitional approval.

6. Upon a determination that an approval specified above has expired, the director shall refer the matter to the city council for a hearing or revocation proceedings. The city council shall notify the holder of an approval specified above, any persons to whom notices were mailed in the original proceedings, and any persons who have been designated interested parties in the initial application for approval, that the approval shall be revoked unless sufficient cause is shown to the city council within ten days from such notification that the approval should not be revoked.

7. If the holder of an approval specified above, or any other person notified pursuant to subsection (c)(5) of this section requests, within ten days from the date of such notice, that a hearing be held concerning revocation, the city council shall schedule a hearing within a reasonable time after receiving such request. The city council may designate persons other than the holder of an approval as interveners in the proceedings. At the hearing the city council shall hear testimony of city staff, the holder of the approval, interveners and, if present, any other person alleging direct injury. The hearing may be continued without additional public notice.

8. The city council shall revoke an approval upon making one or more of the following findings:

a. That the approval was made on the basis of erroneous or misleading information or misrepresentation; or

b. That the terms or condition(s) of the approval have been violated or that other laws or regulations have been violated.

Upon demonstration that extenuating circumstances exist which have prevented the satisfaction of conditions imposed on an approval specified in paragraph 4 above, the city council may allow an extension of an approval on satisfaction of additional conditions not inconsistent with the initial approval.

9. Within a reasonable period of time, the city council shall render a decision and shall mail notice of such decision to the holder of the approval, and to any person who has filed written request for such notice.

10. A decision to revoke an approval shall become final, ten days after the date of the decision.

11. The city's right to revoke such approval specified in subsection (c)(4) of this section, shall be cumulative to any other remedy allowed in law or equity.

(Ord. No. 2909, § 5, 3-15-2011; Ord. 2536, § 6, 2006; Ord. No. 2951, § 2, 12-20-2011)

Editor's note—Ord. No. 2951, § 2, adopted December 20, 2011, changed the title of section 14.02.040 from "Water allocation" to "Existing water contracts and allocations." The historical notation has been preserved for reference purposes.

14.02.050 Violations.

Any person who fails or refuses to comply with any of the provisions of this chapter shall be deemed to be in violation of this title and shall be subject to discontinuance of service, subject to any penalties and charges assessed in accordance with this title and/or department service rules, and subject to all compliance procedures as prescribed within this title.

(Ord. 2536, § 9, 2006; Ord. No. 2951, § 2, 12-20-2011)

Editor's note—Ord. No. 2951, § 2, adopted December 20, 2011, repealed the former sections 14.02.050 and 14.02.060 in their entirety, which pertained to the water reservation fee and administrative fees, respectively, and derived from Ord. No. 2536, §§ 7, 8, adopted in 2006. Subsequently, the former section 14.02.070 was redesignated as section 14.02.050. The historical notation has been preserved for reference purposes.

Chapter 14.03 WATER REGULATIONS

Sections:

14.03.010 General provisions.
14.03.020 Conditions of service.
14.03.030 Service line requirements.
14.03.040 Mains and main extensions.
14.03.050 Backbone infrastructure.
14.03.060 Property access.
14.03.070 System maintenance and repair.
14.03.080 Interruption of service.
14.03.090 Violations.

14.03.010 General provisions.

A. *Purpose and policy.* This chapter sets forth responsibility, authority, and provisions to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare.

B. *Scope.* The provisions of this chapter shall apply to all residents of the city, a responsible party operating, maintaining, repairing, relocating, removing, and/or disconnecting the public water system and/or publicly owned treatment works, and/or users of city-provided utilities.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. 2676, § 3 (part), 2008; Ord. 2536, § 11, 2006)

14.03.020 Conditions of service.

A. The city may, subject to the approval of the director, authorize the taking and receipt of water in accordance with this title and the department service rules. Where water is required for construction purposes or any other temporary use, the city must first authorize the location for use of such water, the service must be from a temporary connection and established in accordance with this title and the department service rules, and the city may reject a request for temporary service.

B. Applicants requesting service shall pay applicable fees and charges in accordance with this title and department service rules.

C. The city reserves the right to specify or restrict the location, time, and rate of water use to avoid interference with service to other customers.

D. The customer is responsible for all plumbing, piping, and appurtenances from the service connection to the point of use.

E. Service lines shall be installed in accordance with adopted standards. The director reserves the right to determine the service size, service line material, meter size, location, installation configuration, and service connection.

F. The customer shall furnish all necessary equipment to convey the water from the service connection to the customer point of use. In the case of mixed use developments, service connections shall be established and billed in accordance with the adopted standards and department service rules. Those units that are a combined commercial-residential unit shall be billed as commercial.

G. Temporary water service will cease when a permanent demand for potable water has been established, including but not limited to fire service, domestic supply and landscape irrigation.

H. The customer shall not operate the service in a manner which may create an adverse condition such as, but not limited to, low pressure, pressure surges, reduction of flow, or compromised water quality within the city's public water system.

I. The city will endeavor to provide its customers with a continuous and adequate supply of water within reasonable maximum and minimum pressures. However, varying pressures will normally prevail throughout the distribution system due to changes in elevation, use, and other factors.

J. Where prevailing water pressures fall outside of prescribed operating limits, applicants for service shall be responsible for installation of pressure regulators, storage tanks, pumps, or other devices as the director may require.

K. Unless otherwise approved by the director, all privately owned systems shall remain privately owned and maintained.

L. Unless otherwise approved by the director, all properties shall be provided domestic service through a single service connection. Where multiple services to a single property are allowed, said services shall be established in accordance with this title, the department service rules, and adopted standards.

M. The city reserves the right to authorize use of facilities prior to final acceptance. Exercising such right does not infer acceptance or release of responsibility for compliance with any and/or all requirements of this title, adopted standards, and/or the department service rules.

N. It shall be the customer's responsibility to maintain and to not allow the loss, escape, or excess use of water through a break, leak, or other malfunction in the water distribution facilities on the property or premises, such as an irrigation pipe or tubing, the irrigation delivery system, or a water supply line. Any and all repairs necessary to correct a malfunction(s), including all costs associated with such repairs, shall be the sole responsibility of the customer whether performed at the customer's direction or at the city's direction in connection with the city taking corrective action.

O. Out of valley area. If, after December 9, 2020, a customer wishes to receive water service from the city and all or a portion of the property or premises that will be served by the city are located in the out of valley area, wastewater service for the customer shall comply with the requirements stated within subsection 14.04.020.P of this title.
(Ord. No. 3905, § 3, 9-13-2022; Ord. 2676, § 3 (part), 2008; Ord. 2536, § 12, 2006)

14.03.030 Service line requirements.

A. *Meters.*

1. A city-approved meter per adopted standards shall be installed on each service line to measure water usage.

2. Each meter location shall be within the public right-of-way directly adjacent to the parcel being served. If street right-of-way is not available, the director may approve installation within an easement or alley adjacent to or on the parcel to be served. All meters shall be located where access by city personnel for operation and maintenance will not be restricted. The meter shall be located outside of travel lanes and driveways and shall be protected from vehicular traffic, unless otherwise approved by the director.

3. Any single family residential combination fire and domestic water system installed after February 1, 2009, shall have a minimum one inch residential fire meter installed.

B. *Valves.*

1. For services with a three-inch meter or larger where the service has been discontinued or it becomes necessary to shut off a service connection for repair of piping on the customer's property, a valve as required by adopted standards shall be installed prior to restoration of the service with all costs to be borne by the customer. Should the customer fail to make such repairs or corrections to the service conditions and the city has performed its due diligence to notify the customer to make such repairs or corrections, the director may authorize the city to make the

necessary corrections, with the customer being responsible for reimbursement to the city for all costs incurred in addition to any penalties in accordance with this title and the department service rules.

2. Private property shutdowns conducted at the property owner's request shall be billed using the department's actual costs, with such costs being the responsibility of the property owner.

C. *Fire service connections.* Fire service connections shall only be used for fire suppression unless otherwise approved by the director. Should any unauthorized connection be made, the city reserves the right to shut off the service or install a meter at the customer's expense and charge for it at regular domestic rates.

D. *Corrective actions.* When, in the opinion of the director, an existing service line becomes inadequate and/or a customer/owner has not complied with adopted standards, the city may choose to install, upgrade, and/or repair the service line with prior notification and at the customer/owner's expense. This expense shall be billed using the department's actual costs.
(Ord. No. 3905, § 4, 9-13-2022; Ord. 2798, § 2, 1-20-2009; Ord. 2676, § 3 (part), 2008; Ord. 2536, § 13, 2006)

14.03.040 Mains and main extensions.

A. Unless otherwise approved by the director, all service connections shall be made to a main that is located immediately adjacent to the property requiring service. The director reserves the right to determine the main to which connection shall be made.

B. Applicants requesting service to a property where no city main exists contiguous to the property must first arrange for a main extension in accordance with this title and department service rules. Where such main exists but does not extend across the full extent of the property frontage or is within 400 feet of the property as described in subsection 14.03.040.D, subsection 14.03.040.E, or subsection 14.03.040.F, the city may require the applicant to extend the main to such extent prior to obtaining utility service.

C. All public mains shall be placed within a dedicated public street. Where no public street is available and upon approval by the director, a public main may be installed within a dedicated municipal utility easement. Said easement shall not be less than 20 feet in width and shall be contained within a single parcel of land. The easement shall increase by ten feet in width for each utility main added to the easement beyond a single main. All mains shall be centered in the available easement space. Unless otherwise allowed by the city, all utility easements in a subdivision, not within a public or private street, shall be within a common element. The easement width required may increase with a main deeper than standard. In such instance, the easement shall be perpetual in nature and unless otherwise

approved by the director, shall be exclusive to the city. Proper access by city personnel to all areas within the easement must be provided. No building, structures, fences, trees, shrubs, or other improvements that interfere with its use by the city, can be placed within the easement. The city reserves the right to operate, maintain, repair, replace and/or change the size and/or number of mains and appurtenances within such easement. All such easements shall be granted to the city in a form and manner that is acceptable to the city.

D. Unless otherwise approved by the director, a property shall cease obtaining water service through a private well if the property served by the well lies within 400 feet of the city's water system. The 400 feet length shall be measured from the closest point of that property to the point of connection from an existing, active and accessible city main and, generally, route through existing or future streets or, as determined by the department, other areas appropriate for a main.

If deemed in the best interest of the city, the director may require the owner of such property to abandon all private wells in accordance with applicable federal, state, and local requirements, perform a main extension and establish water service from the city in accordance with the city's requirements.

E. Water service must be obtained from the city whenever an undeveloped property initiates development through the city and such property lies within 400 feet of the city's water system. In such instance, a main extension shall be required and must be made in accordance with the city's requirements. The 400 feet length shall be measured from the closest point of that property to the point of connection from an existing, active and accessible city main and, generally, route through existing or future streets or, as determined by the department, other areas appropriate for a main.

F. In such instance where a parcel map is being proposed, a main extension shall be required whenever the city's water system lies within the resulting calculation of 400 feet multiplied by either the total number of lots created by recordation of such map of such parcel of land or the maximum number of lots that could be created based on then-current zoning, whichever number of lots is greater. Where consecutive parcel maps are being proposed, a main extension shall be required whenever the city's water system lies within the resulting calculation of 400 feet multiplied by either (1) the total number of lots created by the recordation of the initial and all consecutive parcel maps combined or (2) the maximum number of lots that could be created based on then-current zoning of the parcels of land in the initial and all consecutive parcel maps combined for those parcels of land, whichever number of lots is greater. However, final determination, including application of these requirements, shall be made by the director.

G. In such instance where a tentative map or planned unit development is being proposed and no city main exists contiguous to the property, a main extension shall be required and must be made in accordance with the city's requirements.

H. Unless otherwise approved by the director, not more than one lot or other parcel of subdivided land shall be served by a single service connection. A single customer shall be responsible for payment of water bills for each such service. Additionally, where the city provides water and sewer service to a single lot or other parcel of subdivided land, the same customer shall be responsible for payment of both the water and sewer bill.

1. Exception: In the case of a commercial subdivision whereby a single service line or service lines provide service to multiple lots or other parcels of subdivided land, a single customer shall exist in the form of a property owner's association. Said property owner's association shall be responsible for payment of all water and sewer bills associated with such service(s). Additionally, the subdivision shall record a declaration of covenants, conditions and restrictions (CC&Rs) in the office of the Clark County recorder, which designates that all of the lot owners in the subdivision own an undivided interest in the private water facilities, and that all of the lot owners must participate in the cost of the operation and maintenance of such private systems.

I. Where multiple services are provided to a single lot or other parcel of subdivided land, a single customer shall be responsible for payment of water and/or sewer bills for all such services.

J. When a main extension is required, the director reserves the right to dictate the size, length and capacity of such main. The applicant may apply for partial cost reimbursement through the establishment of a refunding agreement, as outlined in this title and department service rules.

K. When a connection is made to any main, the main frontage fee is assessed in accordance with this title and the service rules. A minimum charge shall apply to any parcel having less than 60 feet of chargeable frontage.

L. All mains and main extensions must be designed and constructed in accordance with the city's adopted standards.

M. Before a main, service line, or connection is allowed to be placed into service, it shall be tested to the satisfaction of the city.

N. The granting of a certificate of occupancy does not relieve the developer of its obligations relative to the construction of the main extension; nor does it imply that the mains have been properly constructed or accepted by the city.

O. Upon completion of a main extension by a customer or subdivider, the customer or subdivider shall furnish the department a valid bill of sale conveying title to the city for such main and appurtenances, to include service lines, rights-of-way, and/or easements. Upon transfer of such title, the city reserves the right to provide direct or indirect service to any customer through the use of such mains and appurtenances.

P. The developer is responsible to correct any defects or failures that occur relative to the design and construction of the main extension, within a period of one year from the date of acceptance of the work by the city. The developer shall, at the developer's own expense, make good such defects and failures and make all replacements and adjustments required, in accordance with the city's requirements. All repairs shall be subject to the approval of the city. Furthermore, developer is at no time relieved of any obligation or responsibility it may have by law, including but not limited to damages for latent deficiencies, injury to real or personal property or injury to or wrongful death of a person.

Q. The developer shall indemnify, defend and hold harmless the city, its officers, agents, volunteers, and employees, against and from any and all liability, loss, damage, claims, fines, demands, causes of action, costs, expenses, and judgments of whatsoever nature, including but not limited to reasonable costs of investigation, reasonable attorneys' fees and expenses, all reasonable expert witness fees and expenses, and all court or arbitration or other alternative dispute resolution costs which result from injury to or death of any persons whomsoever, and/or against and from damage to or loss or destruction of property whatsoever when such injury, death, loss, destruction or damage is due to or arises in connection with or as a result of any work done by the developer, its contractors, agents and subcontractors in connection with the construction of the main and/or arises out of or in connection with developer's, or its contractors' and subcontractors' performance or failure to comply with the requirements of this title or the department's service rules.
(Ord. No. 3905, § 5, 9-13-2022; Ord. 2676, § 3 (part), 2008; Ord. 2536, § 14, 2006)

14.03.050 Backbone infrastructure.

A. *Extensions of backbone infrastructure.*

1. Unless otherwise approved by the director, construction and/or extensions of backbone infrastructure to support service to proposed developments, including all costs associated with such construction and/or extensions shall be the responsibility of the customer. Additionally, the design of such infrastructure, including the preparation of all applicable design reports shall be the responsibility of the customer, and shall be prepared in accordance with the city's requirements. By proceeding with the proposed development and associated backbone infrastructure required to support service to it, the customer acknowledges that they have gained a complete understanding of the city's requirements, and agree to comply with them accordingly.

2. Where the director determines it is in the city's best interest for the city to assume the responsibility for the construction and/or extensions of backbone infrastructure to support service to developments, or to participate in a cost-sharing with the customer responsible for such construction and/or extensions, the director reserves

the right to establish a special refunding agreement in order to establish a means of receiving proportional cost reimbursement from customers that benefit from the construction of such infrastructure. Said special refunding agreement shall be established in accordance with the requirements outlined in this title and the department's service rules.

3. The granting of a certificate of occupancy does not relieve the customer of its obligations relative to the construction of the backbone infrastructure; nor does it imply that the backbone infrastructure has been properly constructed or accepted by the city.

4. The customer is responsible to correct any defects or failures that occur relative to the design and construction of the backbone infrastructure, within a period of one year from the date of acceptance of the work by the city. The customer shall, at the customer's own expense, make good such defects and failures and make all replacements and adjustments required, in accordance with the city's requirements. All repairs shall be subject to the approval of the city.

5. The customer, at all times, is not relieved of any obligation or responsibility it may have by law, including but not limited to damages for latent deficiencies, injury to real or personal property or injury to or wrongful death of a person.

6. The customer shall indemnify, defend and hold harmless the city, its officers, agents, volunteers, and employees, against and from any and all liability, loss, damage, claims, fines, demands, causes of action, costs, expenses, and judgments of whatsoever nature, including but not limited to reasonable costs of investigation, reasonable attorneys' fees and expenses, all reasonable expert witness fees and expenses, and all court or arbitration or other alternative dispute resolution costs which result from injury to or death of any persons whomsoever, and/or against and from damage to or loss or destruction of property whatsoever when such injury, death, loss, destruction or damage is due to or arises in connection with or as a result of any work done by the customer, its contractors, agents and subcontractors in connection with the construction of the backbone infrastructure, and/or arises out of or in connection with customer's, or its contractors' and subcontractors' performance or failure to comply with the requirements of this title or the department service rules.

B. *Sizing of backbone infrastructure.* The director reserves the right to determine the size and capacity of the backbone infrastructure proposed for construction, taking into account projected service needs of the areas served and whenever it is deemed to be in the best interest of the city in order to provide for the orderly development of the city's public infrastructure system. Where said size or capacity of such backbone infrastructure is deemed to be in excess of the customer's needs to support their project, it shall be the

customer's responsibility to comply with such requirement, with all costs associated with its compliance to be the sole responsibility of the customer. In such situations the customer may apply for a special refunding agreement in order to seek proportional cost reimbursement from other developers and/or landowners that benefit from the construction of such infrastructure. Said special refunding agreement shall be established in accordance with the requirements outlined in this title and the department service rules.
(Ord. 2536, § 15, 2006)

14.03.060 Property access.

City employees or a duly authorized city representative or contractor shall have the right to access and to perform work on a property or premises at reasonable times for any purpose related to the furnishing of service, taking corrective action under a provision of this title, protection of water quality and/or for verification of compliance with the provisions of this title. The city will attempt to provide prior notice where possible.
(Ord. No. 3905, § 6, 9-13-2022; Ord. 2536, § 16, 2006)

14.03.070 System maintenance and repair.

A. Upon dedication and/or acceptance of any part of the city's public water system, the city shall be responsible for its maintenance and repair, subject to any agreement covering the installation of such facilities.

B. Street pavement and sidewalk replacement conducted by the department in association with system repairs are limited to standard asphalt and concrete types. Where a non-standard pavement or sidewalk exists, the city shall not be responsible for the replacement of such non-standard material.
(Ord. 2536, § 17, 2006)

14.03.080 Interruption of service.

A. The city will endeavor to notify customers in advance of any interruption in service due to repair, maintenance, or other causes. In emergency conditions, when notification is not possible or practical, service may be interrupted for indefinite periods. At no time shall the city be liable for loss and/or damages that may occur due to any interruption in service and/or due to system failure.

B. In accordance with department service rules, written notification shall be provided to the director whenever persons are engaged in street work and/or onsite repairs, including but not limited to grading, directional boring, filling and trenching, and/or paving that may cause removal, displacement or modifications to any portion of the city's public water

system, or any interruption of service to the city's customers. With the exception of emergencies, said work cannot proceed until permission is received from the director to conduct such activities.
(Ord. 2536, § 18, 2006)

14.03.090 Violations.

Any person who fails or refuses to comply with any of the following provisions shall be deemed to be in violation of this title and shall be subject to discontinuance of service, subject to any penalties and charges assessed in accordance with this title and/or department service rules, and subject to all compliance procedures as prescribed within this title.

A. Any person who negligently, recklessly or willfully introduces or causes to be introduced into the city's public water system, any pollutant or hazardous substance which such person knew, or with the exercise of reasonable due diligence would have known, could cause personal injury or system damage shall be deemed in violation of this chapter.

B. Any person who tampers with a public water system is in violation of this chapter and United States Code 42 USC 300i-1.

C. Any person who, without prior authorization by the city, operates, maintains, repairs, relocates, cuts, changes, removes, disconnects, repairs or interferes in any manner with the city's public water system, is in violation of this chapter.

D. Any person or party who, with or without authorization by the city, takes actions which result in damage to any portion of the city's public water system, either directly or indirectly, is in violation of this chapter.

E. Any person who takes water without applying for and receiving approval from the department for a service connection is in violation of this chapter.

F. With the exception of construction phase meter set up and testing, it is prohibited to utilize spacers for the purpose of providing water service to the property.

G. Manifolding and/or meter banking multiple meters for the purpose of reducing or avoiding service connection fees is prohibited.

H. Any entry into city property and/or premises by an unauthorized person is prohibited and subject to enforcement procedures as outlined in this title.

(Ord. 2536, § 19, 2006)

Chapter 14.04 WASTEWATER REGULATIONS

Sections:

14.04.010 General provisions.
14.04.020 Conditions of service.
14.04.030 Service line requirements.
14.04.040 Mains and main extensions.
14.04.050 Backbone infrastructure.
14.04.060 Property access.
14.04.070 System maintenance and repair.
14.04.080 Interruption of service.
14.04.090 Violations.

14.04.010 General provisions.

A. *Purpose and policy.* This chapter sets forth responsibility, authority, and provisions to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare.

B. *Scope.* The provisions of this chapter shall apply to all residents of the city, a responsible party operating, maintaining, repairing, relocating, removing, and/or disconnecting the public water system and/or publicly owned treatment works, and/or users of city-provided utilities.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. 2676, § 4 (part), 2008; Ord. 2536, § 21, 2006)

14.04.020 Conditions of service.

A. The city may, subject to the approval of the director, authorize service from a permanent wastewater connection in accordance with this title and the department service rules. Where wastewater is required for a temporary use, the director may authorize temporary service.

B. The city reserves the right to specify or restrict the location, time, and rate of discharge to avoid interference with service to other customers.

C. Wastewater service lines shall be installed in accordance with adopted standards. The director reserves the right to determine the service size, service line material, location, installation configuration, and service connection.

D. The customer is responsible for all plumbing, piping, and appurtenances from the point of use to the service connection.

E. The customer shall furnish all necessary piping and connections to convey wastewater from the point of use to the service connection.

F. In the case of mixed use developments, service connections shall be established and billed in accordance with the department service rules. Those units that are a combined live-work unit shall be billed as commercial.

G. Temporary wastewater service will cease when a permanent demand for service has been established.

H. Septic tanks shall be disconnected and abandoned upon connection to the city's publicly owned treatment works. Abandonment shall be performed in such a manner as to meet the requirements of any federal, state, local and city requirements and/or standards.

I. The customer shall not discharge waste in a manner which may create an adverse condition such as, but not limited to, reduction of flow, stoppage in the city's publicly owned treatment works, or compromised water quality within the city's publicly owned treatment works and/or public water system.

J. The city will endeavor to provide its customers with uninterrupted wastewater service.

K. Where service cannot be provided without the use of pumps or other equipment, said pumps and equipment shall remain privately owned and maintained. The city reserves the right to assume ownership and maintenance of such equipment if the director determines it is in the best interest of the city. Where assumptions of ownership and maintenance occur, the director may require said pumps and equipment to meet adopted standards.

L. Unless otherwise approved by the director, all privately owned systems shall remain privately owned and maintained.

M. All construction developments shall implement a means of protection against accidental discharges into the city publicly owned treatment works.

N. The city reserves the right to authorize use of facilities prior to final acceptance. Exercising such right does not infer acceptance by the city or release of responsibility by the developer for compliance with all requirements associated with acceptance of said facilities.

O. Wastewater service area.

1. The city council recognizes that there are persons owning property outside of the city's wastewater service area that desire to connect such property to the city's wastewater system because no existing facilities are readily available to provide service by that property's governing jurisdiction. In such cases, the city shall not permit a person to request, or a property to receive, a connection to the city's wastewater system to any extra-territorial property. The city shall continue to serve extra-territorial properties with its wastewater system if:

a. A person submitted all documents necessary to effect a connection for a property to the city's wastewater system prior to July 1, 2015, including, but not limited to, an executed annexation agreement and petition for annexation by the owner(s) of the property to be serviced; or

b. A property is connected to the city's wastewater system prior to the effective date of this ordinance pursuant to a service contract, and the properties and/or the parties to the service contract are in compliance with the terms of service contract.

2. For purposes of this chapter, the wastewater service area for the city's wastewater system is designated as any and all real property located within the contiguous corporate boundaries of the city of Henderson as those boundaries may be amended from time-to-time. All other real property located outside of the contiguous corporate boundaries of the city is deemed extra-territorial property, and explicitly not a part of the city's wastewater service area. The city council may, by ordinance, amend the wastewater service area to include areas outside the corporate boundaries if the city council determines:

a. That a public benefit will be served by such change, and

b. A concurrent agreement is provided by the property's jurisdictional governing body.

3. Nothing in this section shall be deemed to preclude the city from discontinuing or interrupting service for any reason authorized by law or contract, and the city may terminate service for failure to comply with any service contract.

P. Out of valley area.

1. Notwithstanding the prohibition in section 14.03.020.O, if a proposed development is contemplated in the out of valley area, the developer has requested that the city provide water service to all or a portion of the property or premises on which that new development will be located, that development is not within the vicinity of a wastewater system operated by an SNWA member agency that will discharge that wastewater to the Las Vegas Wash (each, a "regional wastewater system"), and the

developer wishes to use a septic system(s) for that development, then the director may approve - but is not required to approve or otherwise allow - the proposed development to receive water service from the city and allow the property(ies) within the proposed development to discharge wastewater to a septic system(s) if all of the following are met:

a. A regional wastewater system that will serve the development is being designed and constructed contemporaneously with the design and construction of the cleanout and sanitary and sewer laterals for each unit within the proposed development.

b. For each unit within the proposed development that will receive a separate water service from the city, a cleanout and sanitary sewer lateral is designed and constructed that complies with adopted standards and enables the unit to disconnect from the septic system or other temporary system approved by the department and connect to a future, regional wastewater system.

c. The cleanout and sanitary sewer lateral described in subsection 14.04.020.P.1.b are shown on civil improvement plans for the development that are accepted by, and on file with, the city.

d. The property owner of each unit signs and records in the office of the county recorder of Clark County, Nevada a declaration of special land use restriction wherein the property owner agrees that, within three months after the operator of the regional wastewater system assumes responsibility for operation and maintenance of that system, the property owner (at their cost) shall connect to the regional wastewater system in compliance with the requirements of the operator of that system and shall remove or abandon their septic system in compliance with applicable federal, state, and local requirements, including Southern Nevada Health District regulations.

That declaration of special land use restriction shall be in a form approved by the director, shall be for the benefit of the city, and must also be signed by the city.

2. The city shall not issue a building permit for a new structure in the out of valley area (with the exception of a grading permit) until after the developer provides documentation to the city that shows the cleanout and sanitary sewer lateral described in subsection 14.04.020.P.1.b are included in the applicable construction plans for the development.

3. The city shall not issue a certificate of occupancy for a new structure in the out of valley area until after the city inspects the property and confirms that the cleanout and sanitary sewer lateral were constructed in conformance with the requirements

in subsection 14.04.020.P.1.b above and construction has commenced on the regional wastewater system to convey the wastewater generated from the property to the regional wastewater system.

(Ord. No. 3905, § 7, 9-13-2022; Ord. No. 3323, § 1, 12-15-2015; Ord. 2536, § 22, 2006)

14.04.030 Service line requirements.

A. *Customer's responsibility.* Unless otherwise approved by the director, it shall be the customer's responsibility to own and maintain the wastewater service line, from the point of connection to the city main, to the customer's property. Any and all repairs necessary to correct deficiencies noted within the customer's service line, including all costs associated with such repairs shall be the sole responsibility of the customer.

B. *Corrective actions.* When, in the opinion of the director, an existing service line becomes inadequate and/or a customer/owner has not complied with adopted standards, the city may choose to install, upgrade, and/or repair the service line with prior notification and at the customer/owner's expense. This expense shall be billed using the department's actual costs.

(Ord. 2676, § 4 (part), 2008; Ord. 2536, § 23, 2006)

14.04.040 Mains and main extensions.

A. Unless otherwise approved by the director, all service connections shall be made to a wastewater main that is located immediately adjacent to the property requiring service. The director reserves the right to determine the wastewater main to which connection shall be made.

B. Applicants requesting service to a property where no city wastewater main exists contiguous to the property must first arrange for a wastewater main extension in accordance with this title and department service rules. Where such wastewater main exists but does not extend across the full extent of the property frontage or is within 400 feet of the property as described in subsections 14.04.040.E, 14.04.040.F, or 14.04.040.G, the city may require the applicant to extend the wastewater main to such extent prior to obtaining utility service.

C. All public wastewater mains shall be placed within a dedicated public street. Where no public street is available and upon approval by the director, a public wastewater main may be installed within a dedicated municipal utility easement. Said easement shall not be less than 20 feet in width and shall be contained within a single parcel of land. The easement shall increase by ten feet in width for each utility main added to the easement beyond a single main. All mains shall be centered in the available easement space. Unless otherwise allowed by the city, all utility easements in a subdivision, not within a public or

private street, shall be within a common element. The easement width required may increase with a main deeper than standard. In such instance, the easement shall be perpetual in nature and unless otherwise approved by the director, shall be exclusive to the city. Proper access by city personnel to all areas within the easement must be provided. No building, structures, fences, trees, shrubs, or other improvements that interfere with its use by the city, can be placed within the easement. The city reserves the right to operate, maintain, repair, replace and/or change the size and/or number of wastewater mains and appurtenances within such easement. All such easements shall be granted to the city in a form and manner that is acceptable to the city.

D. Unless otherwise approved by the director, a property shall not operate or otherwise use a septic system when such property lies within 400 feet of the city's wastewater system. The 400 feet length shall be measured from the closest point of that property to the point of connection from an existing, active and accessible city main and, generally, route through existing or future streets or, as determined by the department, other areas appropriate for a main. For any septic system installed on a property on or after January 1, 2023, a cleanout and sanitary sewer lateral shall be designed and constructed that complies with adopted standards and enables the property to disconnect from the septic system and connect to a city wastewater main and that cleanout and sanitary sewer lateral must be shown on civil improvement plans for the property that are accepted by, and on file with, the city. If deemed in the best interest of the city, the director may require the owner of such property to abandon all septic systems in accordance with applicable federal, state, and local requirements, perform a wastewater main extension and establish wastewater service from the city in accordance with the city's requirements.

E. Unless otherwise approved by the director, wastewater service must be obtained from the city whenever an undeveloped property initiates development through the city and such property lies within 400 feet of the city's wastewater system. In such instance, a wastewater main extension shall be required and must be made in accordance with the city's requirements.

F. In such instance where a parcel map is being proposed and offsite improvements are required as a condition of approval of such map, a wastewater main extension shall be required whenever the city's wastewater system lies within the resulting calculation of 400 feet multiplied by either the total number of lots created by recordation of such map of such parcel of land or the maximum number of lots that could be created based on then-current zoning, whichever number of lots is greater. Where consecutive parcel maps are being proposed, a main extension shall be required whenever the city's wastewater system lies within the resulting calculation of 400 feet multiplied by either (1) the total number of lots created by the recordation of the initial and all consecutive parcel maps combined or (2) the maximum number of lots that could be created based on then-current zoning of the parcels

of land in the initial and all consecutive parcel maps combined for those parcels of land, whichever number of lots is greater. However, final determination, including application of this requirement, shall be made by the director.

G. In such instance where a tentative map or planned unit development is being proposed and no city wastewater main exists contiguous to the property, a wastewater main extension shall be required and must be made in accordance with the city's requirements.

H. Unless otherwise approved by the director, not more than one lot or other parcel of subdivided land shall be served by a single service connection. A single customer shall be responsible for payment of wastewater bills for each such service. Additionally, where the city provides wastewater service to a single lot or other parcel of subdivided land, the same customer shall be responsible for payment of both the water and wastewater bill.

1. Exception: In the case of a commercial subdivision whereby a single service line or service lines provide service to multiple lots or other parcels of subdivided land, a single customer shall exist in the form of a property owner's association. Said property owner's association shall be responsible for payment of all water and wastewater bills associated with such service(s). Additionally, the subdivision shall record a declaration of covenants, conditions and restrictions (CC&Rs) in the office of the Clark County recorder, which designates that all of the lot owners in the subdivision own an undivided interest in the private water and wastewater facilities, and that all of the lot owners must participate in the cost of the operation and maintenance of such private systems.

I. Where multiple services are provided to a single lot or other parcel of subdivided land, a single customer shall be responsible for payment of wastewater bills for all such services.

J. When a wastewater main extension is required, the director reserves the right to dictate the size, length and capacity of such wastewater main. The applicant may apply for partial cost reimbursement through the establishment of a refunding agreement, as outlined in this title and department service rules.

K. When a connection is made to any main, the main frontage fee is assessed in accordance with this title and department service rules. A minimum charge shall apply to any parcel having less than 60 feet of chargeable frontage.

L. All wastewater mains and main extensions must be designed and constructed in accordance with the city's adopted standards.

M. Before a wastewater main, service line, or connection is allowed to be placed into service, it shall be tested to the satisfaction of the city.

N. The granting of a certificate of occupancy does not relieve the developer of its obligations relative to the construction of the wastewater main extension; nor does it imply that the mains have been properly constructed or accepted by the city.

O. Upon completion of a wastewater main extension by a customer or subdivider, the customer or subdivider shall furnish the department a valid bill of sale conveying title to the city for such main and appurtenances, to include service lines, rights-of-way, and/or easements. Upon transfer of such title, the city reserves the right to provide direct or indirect service to any customer through the use of such wastewater mains and appurtenances.

P. The developer is responsible to correct any defects or failures that occur relative to the design and construction of the wastewater main extension, within a period of one year from the date of acceptance of the work by the city. The developer shall, at the developer's own expense, make good such defects and failures and make all replacements and adjustments required, in accordance with adopted standards. All repairs shall be subject to the approval of the city. Furthermore, developer is at no time relieved of any obligation or responsibility it may have by law, including but not limited to damages for latent deficiencies, injury to real or personal property or injury to or wrongful death of a person.

Q. The developer shall indemnify, defend and hold harmless the city, its officers, agents, volunteers, and employees, against and from any and all liability, loss, damage, claims, fines, demands, causes of action, costs, expenses, and judgments of whatsoever nature, including but not limited to reasonable costs of investigation, reasonable attorneys' fees and expenses, all reasonable expert witness fees and expenses, and all court or arbitration or other alternative dispute resolution costs which result from injury to or death of any persons whomsoever, and/or against and from damage to or loss or destruction of property whatsoever when such injury, death, loss, destruction or damage is due to or arises in connection with or as a result of any work done by the developer, its contractors, agents and subcontractors in connection with the construction of the main and/or arises out of or in connection with developer's, or its contractors' and subcontractors' performance or failure to comply with the requirements of this title or the department's service rules.
(Ord. No. 3905, § 8, 9-13-2022; Ord. 2798, § 3, 1-20-2009; Ord. 2676, § 4 (part), 2008; Ord. 2536, § 24, 2006)

14.04.050 Backbone infrastructure.

A. *Extensions of backbone infrastructure.*

1. Unless otherwise approved by the director, construction and/or extensions of backbone infrastructure to support service to proposed developments, including all costs associated with such construction and/or extensions, shall be the responsibility of the customer. Additionally, the design of such infrastructure, including the preparation of all applicable design reports shall be the responsibility of the

customer, and shall be prepared in accordance with the adopted standards. By proceeding with the proposed development and associated backbone infrastructure required to support service to it, the customer acknowledges that they have gained a complete understanding of adopted standards, and agree to comply with them accordingly.

2. Where the director determines it is in the city's best interest for the city to assume the responsibility for the construction and/or extensions of backbone infrastructure to support service to developments, or to participate in a cost-sharing with the customer responsible for such construction and/or extensions, the director reserves the right to establish a special refunding agreement in order to establish a means of receiving proportional cost reimbursement from customers that benefit from the construction of such infrastructure. Said special refunding agreement shall be established in accordance with the requirements outlined in this title and the department's service rules.

3. The granting of a certificate of occupancy does not relieve the customer of its obligations relative to the construction of the backbone infrastructure; nor does it imply that the backbone infrastructure has been properly constructed or accepted by the city.

4. The customer is responsible to correct any defects or failures that occur relative to the design and construction of the backbone infrastructure, within a period of one year from the date of acceptance of the work by the city. The customer shall, at the customer's own expense, make good such defects and failures and make all replacements and adjustments required, in accordance with adopted standards. All repairs shall be subject to the approval of the city.

5. The customer, at all times, is not relieved of any obligation or responsibility it may have by law, including but not limited to damages for latent deficiencies, injury to real or personal property or injury to or wrongful death of a person.

6. The customer shall indemnify, defend and hold harmless the city, its officers, agents, volunteers, and employees, against and from any and all liability, loss, damage, claims, fines, demands, causes of action, costs, expenses, and judgments of whatsoever nature, including but not limited to reasonable costs of investigation, reasonable attorneys' fees and expenses, all reasonable expert witness fees and expenses, and all court or arbitration or other alternative dispute resolution costs which result from injury to or death of any persons whomsoever, and/or against and from damage to or loss or destruction of property whatsoever when such injury, death, loss, destruction or damage is due to or arises in connection with or as a result of any work done by the customer, its contractors, agents and subcontractors in connection with the construction of the backbone infrastructure, and/or arises out of or in connection with customer's, or its contractors' and subcontractors' performance or failure to comply with the requirements of this title or the department's service rules.

B. *Sizing of backbone infrastructure.* The director reserves the right to determine the size and capacity of the backbone infrastructure proposed for construction, taking into account projected service needs of the areas served and whenever it is deemed to be in the best interest of the city in order to provide for the orderly development of the city's public infrastructure system. Where said size or capacity of such backbone infrastructure is deemed to be in excess of the customer's needs to support their project, it shall be the customer's responsibility to comply with such requirement, with all costs associated with its compliance to be the sole responsibility of the customer. In such situations the customer may apply for a special refunding agreement in order to seek proportional cost reimbursement from other developers and/or landowners that benefit from the construction of such infrastructure. Said special refunding agreement shall be established in accordance with the requirements outlined in this title and the department's service rules.
(Ord. 2536, § 25, 2006)

14.04.060 Property access.

City employees or a duly authorized city representative shall have the right to access customer's property or premises at reasonable times for any purpose related to the furnishing of service, protection of water quality and/or for verification of compliance with the provisions of this title. The city will attempt to provide prior notice where possible.
(Ord. 2536, § 26, 2006)

14.04.070 System maintenance and repair.

A. Upon dedication and/or acceptance of any part of the city's publicly owned treatment works, the city shall be responsible for its maintenance and repair, subject to any agreement covering the installation of such facilities.

B. Street pavement and sidewalk replacement conducted by the department in association with system repairs are limited to standard asphalt and concrete types. Where a non-standard pavement or sidewalk exists, the city shall not be responsible for the replacement of such non-standard material.

C. Bypassing of wastewater mains to take the main out of service will not be permitted without prior notification and approval as outlined in this title and the department service rules.
(Ord. 2536, § 27, 2006)

14.04.080 Interruption of service.

A. The city will endeavor to notify customers in advance of any interruption in service due to repair, maintenance, or other causes. In emergency conditions, when notification is not possible or practical, service may be interrupted for indefinite periods. At no time shall the city be liable for loss and/or damages that may occur due to any interruption in service and/or due to system failure.

B. In accordance with department service rules, written notification shall be provided to the director whenever persons are engaged in street work and/or onsite repairs, including but not limited to grading, directional boring, filling and trenching, and/or paving that may cause removal, displacement or modifications to any portion of the city's publicly owned treatment works, or any interruption of service to the city's customers. With the exception of emergencies, said work cannot proceed until permission is received from the director to conduct such activities.
(Ord. 2536, § 28, 2006)

14.04.090 Violations.

Any person who fails or refuses to comply with any of the following provisions shall be deemed to be in violation of this title and shall be subject to discontinuance of service,

subject to any penalties and charges assessed in accordance with this title and/or department service rules, and subject to all compliance procedures as prescribed within this title.

A. It shall be prohibited for a person to negligently, recklessly or willfully introduce or cause to be introduced into the city's publicly owned treatment works any pollutant, waste, or hazardous substance which may:

1. Cause pass through;

2. Interfere with the city's publicly owned treatment works;

3. Cause the city to violate the city's National Pollution Discharge Elimination System (NPDES) permit;

4. Cause the city's publicly owned treatment works to be in non-compliance with any local, state or federal rules and/or requirements applicable to the management of the city's publicly owned treatment works; or

5. Create a hazardous condition to human health and/or the environment.

B. Any person who, without prior authorization by the city, operates, maintains, repairs, relocates, cuts, changes, removes, disconnects, repairs or interferes in any manner with the city's publicly owned treatment works is in violation of this chapter.

C. Any person or party who, with or without authorization by the city, takes actions which result in damage to any portion of the city's publicly owned treatment works, either directly or indirectly, is in violation of this chapter.

D. Any person who utilizes the publicly owned treatment works without applying for and receiving approval from the department for a service connection is in violation of this chapter.

E. It is prohibited for any person within the corporate limits of the city to maintain, use or operate any private cesspool, privy, septic tank or sewage disposal system when the property upon which wastewater services are required is within 400 feet of existing publicly owned treatment works of the city, and it shall be unlawful for the owner, renter or operator of any residence, business establishment or real property to refuse to connect his business, residence, establishment or real property to the city's publicly owned treatment works.

F. Construction related material, rock, dirt, and all other unauthorized materials shall not be disposed or placed into the city's publicly owned treatment works. At its sole discretion, the city may hold persons responsible liable for all costs and expenses incurred by the city for cleanup, correction or any other related costs including, but not limited to, fines, fees or government penalties levied against the city for conditions resulting from such disposal or placement of unauthorized material.

(Ord. 2676, § 4 (part), 2008; Ord. 2536, § 29, 2006)

Chapter 14.05 RECLAIMED WATER REGULATIONS

Sections:

14.05.010 General provisions.
14.05.020 Conditions of service.
14.05.030 Service line requirements.
14.05.040 Mains and main extensions.
14.05.050 Backbone infrastructure.
14.05.060 Property access.
14.05.070 System maintenance and repair.
14.05.080 Interruption of service.
14.05.090 Violations.

14.05.010 General provisions.

A. *Purpose and policy.* This chapter sets forth responsibility, authority, and provisions to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare.

B. *Scope.* The provisions of this chapter shall apply to all residents of the city, a responsible party operating, maintaining, repairing, relocating, removing, and/or disconnecting the public water system and/or publicly owned treatment works, and/or users of city-provided utilities.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. 2676, § 5 (part), 2008; Ord. 2536, § 31, 2006)

14.05.020 Conditions of service.

A. The city may, subject to the approval of the director, authorize reclaimed water service from a reclaimed water connection in accordance with this title and the department service rules.

B. The city reserves the right to specify or restrict the location, time, and rate of reclaimed water use to avoid interference with service to other customers.

C. Reclaimed water service lines shall be installed, maintained, and repaired in accordance with all federal, state, and local regulations, as well as adopted standards. The director reserves the right to determine service size, service line material, location, installation configuration, and service connection.

D. The customer is responsible for all plumbing, piping, and appurtenances from the service connection to the point of use.

E. The customer shall furnish all necessary equipment to convey the reclaimed water from the service connection to the customer point of use.

F. Temporary reclaimed water service will cease when a permanent demand for reclaimed water has been established.

G. The customer shall not operate the service in a manner which many create an adverse condition such as, but not limited to, low pressure, pressure surges, reduction of flow, or compromised water quality within the city's public water system.

H. The city will endeavor to provide its customers with a continuous and adequate supply of reclaimed water service within reasonable maximum and minimum pressures. However, varying pressures will normally prevail through the reclaimed distribution system due to changes in elevation, use, and other factors.

I. Where prevailing reclaimed water pressures may fall outside of prescribed operating limits, applicants for service shall be responsible for installation of pressure regulators, storage tanks, pumps, or other devices as the director may require.

J. The city reserves the right to authorize use of facilities prior to final acceptance. Exercising such right does not infer acceptance or release of responsibility for compliance with any and/or all requirements of this title, adopted standards, and/or the department service rules.
(Ord. 2536, § 32, 2006)

14.05.030 Service line requirements.

A. *Meters.*

1. A city-approved meter shall be installed to control the flow, measure water usage and protect the reclaimed water supply.

2. The meter location shall be within the public right-of-way directly adjacent to the parcel being served. If street right-of-way is not available, the director may approve installation within an easement or alley adjacent to or on the parcel to be served. All meters shall be located where access by city personnel for operation and mainte-

nance will not be restricted. The meter shall be located outside of travel lanes and driveways and shall be protected from vehicular traffic, unless otherwise approved by the director.

B. *Valves.* For services with a three-inch meter or larger where the service has been discontinued or it becomes necessary to shut off a service connection for repair of piping on the customer's property, a valve as required by adopted standards shall be installed prior to restoration of the service with all costs to be borne by the customer. Should the customer fail to make such repairs or corrections to the service conditions and the city has performed its due diligence to notify the customer to make such repairs or corrections, the director may authorize the city to make the necessary corrections, with the customer being responsible for reimbursement to the city for all costs incurred in addition to any penalties in accordance with this title and the department service rules.

C. *Corrective actions.* When, in the opinion of the director, an existing service line becomes inadequate and/or a customer/owner has not complied with adopted standards, the city may choose to install, upgrade, and/or repair the service line with prior notification and at the customer/owner's expense. This expense shall be billed using the department's actual costs.
(Ord. 2536, § 33, 2006)

14.05.040 Mains and main extensions.

A. Unless otherwise approved by the director, all service connections shall be made to a main that is located immediately adjacent to the property requiring service. The director reserves the right to determine the main to which connection shall be made.

B. Applicants requesting service to a property where no city main exists contiguous to the property must first arrange for a main extension in accordance with this title and department service rules.

C. When a main extension is required, the director reserves the right to dictate the size, length and capacity of such main. The applicant may apply for partial cost reimbursement through the establishment of a refunding agreement, as outlined in this title and department service rules.

D. When a connection is made to any main, the main frontage fee is assessed in accordance with this title and department service rules. A minimum charge shall apply to any parcel having less than 60 feet of chargeable frontage. Connections to serve median strips within a publicly dedicated right of way or land either owned or controlled by the public for landscaped trails and paths shall be charged the minimum charge regardless of the length of the median strip or landscaped area(s).

E. All mains and main extensions must be designed and constructed in accordance with the city's adopted standards.

F. Before a main, service line, or connection is allowed to be placed into service, it shall be tested to the satisfaction of the city.

G. The granting of a certificate of occupancy does not relieve the developer of its obligations relative to the construction of the main extension; nor does it imply that the mains have been properly constructed or accepted by the city.

H. Upon completion of a main extension by a customer or subdivider, the customer or subdivider shall furnish the department a valid bill of sale conveying title to the city for such main and appurtenances, to include service lines, rights-of-way, and/or easements. Upon transfer of such title, the city reserves the right to provide direct or indirect service to any customer through the use of such mains and appurtenances.

I. The developer is responsible to correct any defects or failures that occur relative to the design and construction of the main extension, within a period of one year from the date of acceptance of the work by the city. The developer shall, at the developer's own expense, make good such defects and failures and make all replacements and adjustments required, in accordance with adopted standards. All repairs shall be subject to the approval of the city. Furthermore, developer is at no time relieved of any obligation or responsibility it may have by law, including but not limited to damages for latent deficiencies, injury to real or personal property or injury to or wrongful death of a person.

J. The developer shall indemnify, defend and hold harmless the city, its officers, agents, volunteers, and employees, against and from any and all liability, loss, damage, claims, fines, demands, causes of action, costs, expenses, and judgments of whatsoever nature, including but not limited to reasonable costs of investigation, reasonable attorneys' fees and expenses, all reasonable expert witness fees and expenses, and all court or arbitration or other alternative dispute resolution costs which result from injury to or death of any persons whomsoever, and/or against and from damage to or loss or destruction of property whatsoever when such injury, death, loss, destruction or damage is due to or arises in connection with or as a result of any work done by the developer, its contractors, agents and subcontractors in connection with the construction of the main and/or arises out of or in connection with developer's, or its contractors' and subcontractors' performance or failure to comply with the requirements of this title or the department's service rules.
(Ord. 2676, § 5 (part), 2008; Ord. 2536, § 34, 2006)

14.05.050 Backbone infrastructure.

A. *Extensions of backbone infrastructure.*

1. Unless otherwise approved by the director, construction and/or extensions of backbone infrastructure to support service to proposed developments, including all

costs associated with such construction and/or extensions shall be the responsibility of the customer. Additionally, the design of such infrastructure, including the preparation of all applicable design reports shall be the responsibility of the customer, and shall be prepared in accordance with adopted standards. By proceeding with the proposed development and associated backbone infrastructure required to support service to it, the customer acknowledges that they have gained a complete understanding of adopted standards, and agree to comply with them accordingly.

2. Where the director determines it is in the city's best interest for the city to assume the responsibility for the construction and/or extensions of backbone infrastructure to support service to developments, or to participate in a cost-sharing with the customer responsible for such construction and/or extensions, the director reserves the right to establish a special refunding agreement in order to establish a means of receiving proportional cost reimbursement from customers that benefit from the construction of such infrastructure. Said special refunding agreement shall be established in accordance with the requirements outlined this title and the department's service rules.

3. The granting of a certificate of occupancy does not relieve the customer of its obligations relative to the construction of the backbone infrastructure; nor does it imply that the backbone infrastructure has been properly constructed or accepted by the city.

4. The customer is responsible to correct any defects or failures that infrastructure, within a period of one year from the date of acceptance of the work by the city. The customer shall, at the customer's own expense, make good such defects and failures and make all replacements and adjustments required, in accordance with adopted standards. All repairs shall be subject to the approval of the city.

5. The customer, at all times, is not relieved of any obligation or responsibility it may have by law, including but not limited to damages for latent deficiencies, injury to real or personal property or injury to or wrongful death of a person.

6. The customer shall indemnify, defend and hold harmless the city, its officers, agents, volunteers, and employees, against and from any and all liability, loss, damage, claims, fines, demands, causes of action, costs, expenses, and judgments of whatsoever nature, including but not limited to reasonable costs of investigation, reasonable attorneys' fees and expenses, all reasonable expert witness fees and expenses, and all court or arbitration or other alternative dispute resolution costs which result from injury to or death of any persons whomsoever, and/or against and from damage to or loss or destruction of property whatsoever when such injury, death, loss, destruction or damage is due to or arises in connection with or as a

result of any work done by the customer, its contractors, agents and subcontractors in connection with the construction of the backbone infrastructure, and/or arises out of or in connection with customer's, or its contractors' and subcontractors' performance or failure to comply with the requirements of this title or the department's service rules.

B. *Sizing of backbone infrastructure.* The director reserves the right to determine the size and capacity of the backbone infrastructure proposed for construction, taking into account projected service needs of the areas served and whenever it is deemed to be in the best interest of the city in order to provide for the orderly development of the city's public infrastructure system. Where said size or capacity of such backbone infrastructure is deemed to be in excess of the customer's needs to support their project, it shall be the customer's responsibility to comply with such requirement, with all costs associated with its compliance to be the sole responsibility of the customer. In such situations the customer may apply for a special refunding agreement in order to seek proportional cost reimbursement from other developers and/or landowners that benefit from the construction of such infrastructure. Said special refunding agreement shall be established in accordance with the requirements outlined in this title and the department's service rules.
(Ord. 2536, § 35, 2006)

14.05.060 Property access.

City employees or a duly authorized city representative shall have the right to access customer's property or premises at reasonable times for any purpose related to the furnishing of service, protection of water quality and/or for verification of compliance with the provisions of this title. The city will attempt to provide prior notice where possible.
(Ord. 2536, § 36, 2006)

14.05.070 System maintenance and repair.

A. Upon dedication and/or acceptance of any part of the city's publicly owned treatment works, the city shall be responsible for its maintenance and repair, subject to any agreement covering the installation of such facilities.

B. Street pavement and sidewalk replacement conducted by the department in association with system repairs are limited to standard asphalt and concrete types. Where a non-standard pavement or sidewalk exists, the city shall not be responsible for the replacement of such non-standard material.
(Ord. 2536, § 37, 2006)

14.05.080 Interruption of service.

A. The city will endeavor to notify customers in advance of any interruption in service due to repair, maintenance, or other causes. In emergency conditions, when notification is not possible or practical, service may be interrupted for indefinite periods. At no time shall the city be liable for loss and/or damages that may occur due to any interruption in service and/or due to system failure.

B. Written notification shall be provided to the director in accordance with department service rules whenever persons are engaged in street work and/or onsite repairs, including but not limited to grading, directional boring, filling and trenching, and/or paving that may cause removal, displacement or modifications to any portion of the city's publicly owned treatment works, or any interruption of service to the city's customers. With the exception of emergencies, said work cannot proceed until permission is received from the director to conduct such activities.
(Ord. 2536, § 38, 2006)

14.05.090 Violations.

Any person who fails or refuses to comply with any of the following provisions shall be deemed to be in violation of this title and shall be subject to discontinuance of service, subject to any penalties and charges assessed in accordance with this title and/or department service rules, and subject to all compliance procedures as prescribed within this title.

A. Any person who takes reclaimed water without applying for and receiving approval from the department for a service connection is in violation of this chapter.

B. With the exception of construction phase meter set up and testing, it is prohibited to utilize spacers for the purpose of providing reclaimed water service to the property.
(Ord. 2536, § 39, 2006)

Chapter 14.06 RAW WATER REGULATIONS

Sections:

14.06.010 General provisions.
14.06.020 Conditions of service.
14.06.030 Service line requirements.
14.06.040 Property access.
14.06.050 System maintenance and repair.
14.06.060 Interruption of service.
14.06.070 Violations.

14.06.010 General provisions.

A. *Purpose and policy.* This chapter sets forth responsibility, authority, and provisions to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare.

B. *Scope.* The provisions of this chapter shall apply to all residents of the city, a responsible party operating, maintaining, repairing, relocating, removing, and/or disconnecting the public water system and/or publicly owned treatment works, and/or users of city-provided utilities.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated to persons acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. 2676, § 6, 2008; Ord. 2536, § 41, 2006)

14.06.020 Conditions of service.

A. The city may, subject to the approval of the director, authorize raw water service from a permanent raw water connection in accordance with this title and the department service rules.

B. The city reserves the right to specify or restrict the location, time, and rate of raw water use to avoid interference with service to other customers.

C. Raw water service lines shall be installed, maintained, and repaired in accordance with all federal, state, and local regulations, as well as adopted standards. The director reserves the right to determine service size, service line material, location, installation configuration, and service connection.

D. The customer is responsible for all plumbing, piping, and appurtenances from the service connection to the point of use.

E. The customer shall furnish all necessary equipment to convey the raw water from the service connection to the customer point of use.

F. Where prevailing raw water pressures may fall outside of prescribed operating limits, applicants for service shall be responsible for installation of pressure regulators, storage tanks, pumps, or other devices as the director may require.

G. The customer shall not operate the service in a manner which may create an adverse condition such as, but not limited to: low pressure, pressure surges, reduction of flow or compromised water quality within the city's raw and/or potable water system.

H. The city will endeavor to provide its customers with a continuous and adequate supply of raw water service within reasonable maximum and minimum pressures. However, varying pressures will normally prevail through the raw water distribution system due to changes in elevation, use, and other factors.

I. Unless otherwise approved by the director, all properties shall be provided raw water service through a single connection. Where multiple services to a single property and/or parcel are allowed, said services shall be established in accordance with this title and department service rules.
(Ord. 2536, § 42, 2006)

14.06.030 Service line requirements.

A. *Mains and main extensions.*

1. Unless otherwise approved by the director, all raw water service connections shall be made from an approved raw water main.

2. Applicants requesting raw water service to a property, where no raw water main exists contiguous to the property, must first arrange for a main extension in accordance with this title and the department service rules.

3. When a main extension is required, the director reserves the right to dictate the size and capacity of such main.

B. *Corrective actions.* When, in the opinion of the director, an existing service line becomes inadequate and/or a customer/owner has not complied with adopted standards, the city may choose to install, upgrade, and/or repair the service line with prior notification and at the customer/owner's expense. This expense shall be billed using the department's actual costs.
(Ord. 2536, § 43, 2006)

14.06.040 Property access.

City employees or a duly authorized city representative shall have the right to access customer's property or premises at reasonable times for any purpose related to the furnishing of service, protection of water quality and/or for verification of compliance with the provisions of this title. The city will attempt to provide prior notice where possible.
(Ord. 2536, § 44, 2006)

14.06.050 System maintenance and repair.

A. Upon dedication and/or acceptance of any part of the city's public water system, the city shall be responsible for its maintenance and repair, subject to any agreement covering the installation of such facilities.

B. Street pavement and sidewalk replacement conducted by the department in association with system repairs are limited to standard asphalt and concrete types. Where a non-standard pavement or sidewalk exists, the city shall not be responsible for the replacement of such non-standard material.
(Ord. 2536, § 45, 2006)

14.06.060 Interruption of service.

A. The city will endeavor to notify customers in advance of any interruption in service due to repair, maintenance, or other causes. In emergency conditions, when notification is not possible or practical, service may be interrupted for indefinite periods. At no time shall the city be liable for loss and/or damages that may occur due to any interruption in service and/or due to system failure.

B. Written notification shall be provided to the director in accordance with department service rules whenever persons are engaged in street work and/or onsite repairs, including but not limited to grading, directional boring, filling and trenching, and/or paving that may cause removal, displacement or modifications to any portion of the city's water system, or any interruption of service to the city's customers. With the exception of emergencies, said work cannot proceed until permission is received from the director to conduct such activities.
(Ord. 2536, § 46, 2006)

14.06.070 Violations.

Any person who fails or refuses to comply with any of the following provisions shall be deemed to be in violation of this title and shall be subject to discontinuance of service,

subject to any penalties and charges assessed in accordance with this title and/or department service rules, and subject to all compliance procedures as prescribed within this title.

A. Any person who takes raw water without applying for and receiving approval from the department for a service connection is in violation of this chapter.

(Ord. 2536, § 47, 2006)

Chapter 14.08 CROSS-CONNECTION CONTROL REGULATIONS*

Sections:

14.08.010 General provisions.
14.08.020 Conditions of service.
14.08.030 Location and installation.
14.08.040 Testing and maintenance.
14.08.050 Department-authorized backflow prevention assembly test companies and testers.
14.08.060 Property access and modification.
14.08.070 Exception.
14.08.080 Corrective actions.
14.08.090 Violations.

14.08.010 General provisions.

A. *Purpose and policy.* The purpose of this chapter is to set forth uniform requirements that protect the public water system from pollution and contamination through a connection to the public water system and to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare. "Contamination" has the meaning ascribed to the term "contamination" in Nevada Administrative Code, as amended, (the "NAC") 445A.65795. "Pollution" has the meaning ascribed to the term "pollution" in NAC 445A.6623.

B. *Scope.* The provisions of this chapter shall apply to any person, governmental entity or property owner with a property or premise that has a commercial meter or commercial connection to the public water system, to any property or premise that has a commercial meter or commercial connection to the public water system, and to any backflow prevention assembly company or tester that provides, or wishes to provide, backflow prevention assembly testing in the city. The provisions of section 14.08.020.C shall apply to any person and governmental entity.

C. *Objectives.* The objectives of this chapter are to:

1. Prevent the introduction of pollution or contamination into the public water system;

2. Regulate connections to the public water system; and

***Editor's note—**Ord. No. 3737, § 1, adopted December 15, 2020, repealed and reenacted chapter 14.08 in its entirety to read as herein set out. Formerly, chapter 14.08 pertained to similar subject matter, and derived from Ord. No. 2536, §§ 49—57, adopted in 2006; Ord. No. 2676, § 7, adopted in 2008; Ord. No. 2798, § 4, adopted January 20, 2009; Ord. No. 2909, § 4, adopted March 15, 2011, and Ord. No. 3038 § 1, adopted July 2, 2013.

3. Be a component of the city's cross-connection control program thereby enabling the city to comply with requirements in NAC 445A.67185 to 445A.67255, inclusive.

D. *Administration.* Except as otherwise provided, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties granted to or imposed upon the director or the department may be delegated by the director to other persons acting in the beneficial interest of the city.

E. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title.

F. *Property owner responsibility.* If the customer and the property owner(s) are not identical, any reference to customer in this chapter shall also refer to and include the property owner(s). Accordingly, any right, obligation, requirement or prohibition applicable to a customer in this chapter shall also apply to the property owner(s).
(Ord. No. 3737, § 1, 12-15-2020)

14.08.020 Conditions of service.

A. No person shall connect to the public water system unless the department authorizes the connection in advance, that person complies with all requirements in this title applicable to that connection and the city's cross-connection control program and that person protects the public water system from a cross-connection in accordance with all federal, state and local requirements.

B. After water passes from the public water system through the point of connection, the customer shall ensure that such water does not reverse back into the public water system for any reason, including as a result of backsiphonage or backpresssure. "Backsiphonage" has the meaning ascribed to the term "backsiphonage" in NAC 445A.65615. "Backpressure" has the meaning ascribed to the term "backpresssure" in NAC 445A.6561.

C. No person shall introduce any pollution or contamination into the public water system.

D. If the department determines that a backflow prevention assembly or device is required to eliminate an actual or potential unprotected cross-connection between either a new water service or an existing water service and the public water system, the department shall notify the customer in writing that a department-approved backflow prevention assembly or device is required. The type of assembly or device shall be commensurate with the degree of hazard that exists on the property and premise. The department has the right to designate the required type of backflow prevention (including the minimum size, model, type and number of backflow prevention assembly(ies) or device(s)), designate the installation location for the backflow prevention assembly(ies) or device(s), prescribe milestones and milestone deadlines for installation of the backflow prevention as-

sembly(ies) or device(s), and identify the date by when the assembly(ies) or device(s) must be placed into operation. The customer shall cause the backflow prevention assembly or device to be designed and installed in strict compliance with the requirements in that notice, in this chapter and in the city's cross-connection control program.

E. The customer shall protect the service connection from sewage and reclaimed water with an air gap. "Air gap" has the meaning ascribed to the term "air gap" in NAC 445A.6553.

F. The customer is responsible for designing and constructing the customer's water system (either a new water service or the retrofit of an existing water service) to accommodate pressure losses attributed to the installation of a backflow prevention assembly(ies) and device(s).

G. The customer is responsible for ensuring the design, installation, testing, repair, maintenance, and replacement of the backflow prevention assembly(ies) and device(s) are performed at no expense to the city and in compliance with the following:

1. Chapter 15.20 - Uniform Plumbing Code - of the code;

2. American Water Works Association (AWWA) M14 manual "Recommended Practice for Backflow Prevention and Cross-Connection Control," as adopted by reference in NAC 445A.6663;

3. The most recent edition of the University of Southern California (USC) "Manual of Cross-Connection Control," as adopted by reference in NAC 445A.6663, (the "USC Manual of Cross-Connection Control");

4. Applicable federal, state and local requirements;

5. The requirements in this chapter; and

6. The requirements in the city's cross-connection control program.

H. If at any time a federal, state or local requirement concerning backflow prevention or cross-connection is more stringent than a requirement imposed in this chapter or elsewhere in the city's cross-connection control program, the more restrictive requirement shall govern and the customer must comply, or otherwise be in compliance, with the more restrictive requirement.
(Ord. No. 3737, § 1, 12-15-2020)

14.08.030 Location and installation.

A. When the department has required the installation of a backflow prevention assembly(ies) or device(s), the customer is responsible for the installation of the assembly(ies) or device(s) at each point of connection on the customer's side of the water meter or the point of connection at the customer's property line, but in all cases, prior to the first branch line leading off the service line.

B. Installation of the required backflow prevention assembly(ies) shall conform to and be in compliance with the requirements in section 15.70.010 of the code (also referred to as "UDACS"), adopted standards, and NAC chapter 445A.
(Ord. No. 3737, § 1, 12-15-2020)

14.08.040 Testing and maintenance.

A. The customer shall have all backflow prevention assembly(ies) required under this chapter (1) tested by a person on the list of department-authorized testers and (2) have a test performed at the time of installation, after any maintenance, repair or relocation of the assembly(ies), and annually by the department-assigned anniversary date or more frequently than annually as required by the department pursuant to section 14.08.040.E.

B. Within five business days after the department-authorized tester completes a test of a backflow prevention assembly after the assembly is installed, maintenance is performed on it, the assembly is repaired or the assembly is relocated, the customer shall ensure the department-authorized tester submits the test report(s) to city staff who administer the city's cross-connection control program ("CCC staff").

C. Each backflow prevention assembly shall be assigned an anniversary date by the department for the scheduling of annual testing. The annual testing shall be performed in compliance with adopted standards no later than this date and may be performed up to 45 days prior to the department-assigned anniversary date. Any test performed prior to 45 days before the anniversary date will be considered invalid. Before the anniversary date, the customer shall ensure the department-authorized tester submits the test report(s) to CCC staff.

D. If a backflow prevention assembly(ies) fails testing, then within seven days of failing the testing the customer must cause (1) that assembly to either be repaired with original equipment manufacturer ("OEM") parts or be replaced with a department-approved assembly and (2) the repaired or replaced assembly retested by a department-authorized tester.

E. The department may, in those instances where the department determines there exists a greater risk of pollution or contamination of the public water system or the then-existing backflow prevention assembly(ies) or device(s) used on the property or premises is not commensurate with the then-existing degree of hazard, require testing more frequently than annually of backflow prevention assemblies.

F. The department-authorized tester shall comply with the requirements in NAC 445A.67245 and perform the testing of the backflow prevention assembly in accordance with the provisions in the USC Manual of Cross-Connection Control.

G. The customer shall maintain full and complete records relating to the installation, testing, repair, maintenance, and replacement of all backflow prevention assembly(ies) for a period of five years. The customer shall provide these records to the department or make them available for city inspection upon the city's request.
(Ord. No. 3737, § 1, 12-15-2020)

14.08.050 Department-authorized backflow prevention assembly test companies and testers.

A. In order to operate as a business that provides backflow prevention assembly testing in the city and be placed on department's list of authorized backflow prevention assembly test companies (the "list of department-authorized test companies"), that business must meet all of the following requirements (a "test company"):

1. Have a city or multi-jurisdictional business license;

2. Be bonded and insured as required by applicable law;

3. Have one or more qualified employees;

4. Have that qualified employee attend an orientation meeting with CCC staff and sign and deliver to CCC staff an acknowledgment that (a) they understand the requirements and procedures for testing backflow prevention assemblies and devices and (b) they are subject to and must comply with the most current provisions of chapter 14.08 and related city procedures;

5. Ensure qualified employees and each tester uses a test kit that meets the requirements identified in NAC 445A.67245 and any requirements prescribed in the city's cross-connection control program (a "test kit"); and

6. Provide documentation annually within seven days of certification, and upon request to CCC staff by the deadline specified by CCC staff, that each test kit was checked for accuracy annually (and, as required, recalibrated) by a manufacturer-authorized representative in accordance with applicable requirements in the USC Manual of Cross-Connection Control, NAC 445A.67245 and the city's cross-connection control program.

A "qualified employee" means a natural person who has a current certification from the California/Nevada Section of the AWWA, American Society of Sanitary Engineering ("ASSE") (with USC designation), or the American Backflow Prevention Association ("ABPA") to perform backflow-prevention-assembly testing. "USC designation" means ASSE has affirmed that the person has a certification to ASSE Standard 5110 and, in addition, has successfully completed the requirements for backflow prevention assembly tester using the most recent USC Manual of Cross-Connection Control test procedures.

B. In order to provide backflow prevention assembly testing required under this chapter, a person must be authorized by the department at the time the person performs the testing and be in good standing with respect to all required licenses and certifications. To obtain the department's authorization, that person must:

1. Notify CCC staff that they wish to be a department-authorized tester, attend an orientation meeting with CCC staff and sign and deliver to CCC staff an acknowledgment that (a) they understand the requirements and procedures for testing backflow prevention assemblies and devices and (b) they are subject to and must comply with all current provisions of chapter 14.08 and related department procedures;

2. Have a current certification from the AWWA, the ASSE (with USC designation), or the ABPA to perform backflow-prevention-assembly testing and provide a copy of that current certification to CCC staff;

3. Have a city or multi-jurisdictional business license or be employed by a test company;

4. Be able to perform testing with a test kit; and

5. Have all other required licenses and certifications.

C. If the person meets the requirements in section 14.08.050.B, that person is authorized by the department to test backflow prevention assemblies (a "department-authorized tester"), the department will add the department-authorized tester to the department's list of department-authorized testers (the "list of department-authorized testers") and the department will make that list publicly available.

D. After a person becomes a department-authorized tester, that person must:

1. When performing any backflow prevention assembly test, perform each test in compliance with the requirements in NAC 445A.67245, this chapter and the city's cross-connection control program and in accordance with the provisions in the USC Manual of Cross-Connection Control;

2. Document the results of each test in the form of a test report and, in a timeframe compliant with the requirements of section 14.08.040, submit that test report to the city's cross-connection control program and to the customer;

3. Maintain in good standing all required licenses and certifications and, at CCC staff's request, provide documentation of compliance with the foregoing;

4. Submit to CCC staff proof of current certification from the AWWA, the ASSE (with USC designation), or the ABPA to perform backflow-prevention-assembly testing; and

5. At CCC staff's request and within five business days of the request or by the deadline specified in the request, whichever date is later, provide to CCC staff a copy of any test report prepared by the tester.

E. The department may remove a test company from the list of department-authorized test companies for any of the following violations:

1. Not maintaining in good standing the company's city or multi-jurisdictional business license;

2. Not being bonded and insured as required by applicable law;

3. Not having at least one qualified employee employed by the company;

4. Having any qualified employee or tester who used a test kit that does not comply with the requirements in section 14.08.050.5;

5. Failing to timely provide documentation annually and upon request to CCC staff that each test kit was checked for accuracy annually (and, as required recalibrated,) by a manufacturer-authorized representative in accordance with applicable requirements in the USC Manual of Cross-Connection Control, NAC 445A.67245 and the city's cross-connection control program; or

6. Submitting a false certification or other documentation to the director, department or CCC staff.

F. The department may remove a department-authorized tester from the list of department-authorized testers for any of the following violations:

1. Failing to submit a test report in the timeframe specified above, submitting a test report based on an invalid test or failing to correctly or completely fill out a test report;

2. Failing to test a backflow prevention assembly in accordance with the requirements in NAC 445A.67245 and the USC Manual of Cross-Connection Control;

3. Making a false or misleading statement, representation or certification of any material fact in a test report submitted to the city, department or director;

4. Submitting a test report with false, misleading, incomplete or inaccurate information;

5. Not having or not maintaining in good standing all required licenses and certifications;

6. Failing to repair a backflow prevention assembly with OEM parts;

7. Not demonstrating competent ability to properly field test a backflow prevention assembly; or

8. Removing, bypassing or otherwise rendering ineffective any backflow prevention assembly(ies) or device(s).

G. If a test company commits a violation identified in section 14.08.050.E, the department may remove the test company from the list of department-authorized test companies after complying with the requirements in this section 14.08.050.G. If a tester commits a violation identified in section 14.08.050.F, the department may remove the tester from the list of department-authorized testers after complying with the requirements in this section 14.08.050.G. The test company and tester shall also be subject to any penalties and charges assessed in accordance with this title and/or department service rules and subject to all compliance procedures as prescribed within this title.

1. The department shall provide the test company or tester, as applicable, written notice that, at a minimum, contains the following information (referred to as a "violation notice"):

a. The name and business address of the test company or tester, as applicable;

b. A brief description of the violation with a reference to the applicable code section;

c. Where appropriate, the action to correct the violation(s) and the deadline by when the violation(s) must be corrected; and

d. The date the department intends to remove the test company from the list of department-authorized test companies or the tester from the list of department-authorized testers, as applicable;

e. Information advising of the test company's deadline or tester's deadline, as applicable, to respond to the notice by either timely correcting the violation (if applicable) or filing a written request to the director to reconsider the department's decision to remove the test company from the list of department-authorized test companies or tester from the list of department-authorized testers, as applicable, (the "response deadline").

2. An original violation notice, or a copy thereof, must be filed with and retained by the department. A violation notice is prima facie evidence of the facts that are alleged therein. The department must deliver the violation notice personally or by registered or certified mail, return receipt requested to the test company at the company's business address on file with the department or to the tester at the tester's business address on file with the department, as applicable.

3. On or before the response deadline, the test company or tester, as applicable, must respond to a violation notice in one or more of the following ways:

a. Do nothing;

b. Advise the department that the test company or tester, as applicable, is not disputing the violation notice;

c. Correct the violation, if required in the violation notice; or

d. Dispute the violation notice by filing a request for reconsideration.

4. A request for reconsideration of a violation notice (a) shall be made by the test company or tester, as applicable, submitting a written request for reconsideration to the director that identifies the action taken or decision made by the department that the test company or tester, as applicable, would like reconsidered, identifies any relief requested (such as not having to perform the corrective action or not being removed from the list of department-authorized test companies or the list of department-authorized testers, as applicable), sets forth in detail the facts supporting the request for reconsideration and relief requested, and includes a copy of the violation notice; (b) shall be delivered personally or by registered or certified mail, return receipt requested, to the director; and (c) must be received by the director, if delivered personally, or must be postmarked, if delivered by registered or certified mail, by the response deadline.

5. After the director receives a timely subsection 14.08.050.G.4 request for reconsideration, the director may modify or affirm the action taken or decision made. The director's decision must be in writing, be made within 14 days of the director's receipt of that request for reconsideration, and thereafter delivered to the test company or tester, as applicable, that made the request personally or by registered or certified mail, return receipt requested. The director's decision will be deemed to have been received by the test company or tester, as applicable, on the date of delivery if delivered personally or by mail or the date of the last delivery attempt if delivered by mail and delivery was unsuccessful. The director's decision shall be deemed to be the final administrative action.

6. If the test company or tester, as applicable, does nothing, the test company or tester, as applicable, advises the department that the test company or tester, as applicable, is not disputing the violation notice, the test company or tester, as applicable, does not file a timely request for reconsideration or the director affirms the department's decision to remove the test company from the list of department-authorized test companies or the tester from the list of department-authorized testers, as applicable, the department may remove the test company from the list of department-authorized test companies or the tester from the list of department-authorized testers, as applicable.

(Ord. No. 4132, § 1, 12-2-2025; Ord. No. 3737, § 1, 12-15-2020)

14.08.060 Property access and modification.

The city or authorized city representatives shall have the right to access and to modify the customer's backflow prevention assembly, water system, property or premises at

reasonable times for any purpose related to the furnishing of service, taking corrective action(s) pursuant to section 14.08.080 or section 14.21.040, protection of water quality and/or for verification of compliance with the provisions of this chapter. The city's and authorized city representatives' foregoing rights of access and modification are also conditions of service.
(Ord. No. 3737, § 1, 12-15-2020)

14.08.070 Exception.

A. At the department's discretion, a backflow prevention assembly installed prior to May 8, 1999 that is not on the USC Foundation for Cross-Connection Control and Hydraulic Research list of approved backflow prevention assemblies or the then-current department-approved materials list may remain in service if that assembly meets the following requirements:

1. Was a department-approved model at the time of installation, was of the proper type for the degree of hazard and does not constitute a risk to public health, safety, and/or welfare;

2. Passes annual testing by a department-authorized tester;

3. Is in the originally-installed location; and

4. Only contains OEM parts, as part of the original installation and any repair.

B. If at any time a backflow prevention assembly allowed to remain in service by the department does not meet all of the requirements in subsection 14.08.070.A, is moved from its original location, is replaced, or must be repaired and OEM parts are no longer available for the necessary repairs or if the department determines that the connection constitutes a risk to public health, safety, and/or welfare, the customer shall replace that assembly in accordance with the requirements in this chapter.
(Ord. No. 3737, § 1, 12-15-2020)

14.08.080 Corrective actions.

If the customer does not timely install, test, repair, maintain, or replace a backflow prevention assembly(ies), then the city may (a) install, test, repair, maintain, replace the assembly(ies) or take other corrective action to bring the customer, property or premise into compliance with the provisions in this chapter, invoice the customer for the costs and, in accordance with the process described in section 14.21.040, add the invoiced amount, as modified by the director or the city manager in accordance with section 14.21.120, to the customer's utility bill as a charge for utility service; (b) discontinue water service; and/or (c) impose any other compliance procedure as prescribed in this chapter and in chapter 14.21.
(Ord. No. 3737, § 1, 12-15-2020)

14.08.090 Violations.

Any person who does an act prohibited by a provision in this chapter or fails to perform an act that is required to be performed by a provision in this chapter shall be deemed to be in violation of this chapter and shall be subject to all compliance procedures as prescribed in this chapter and in chapter 14.21. This does not include the failure of a city officer or city employee to perform an official duty unless it is specifically provided that the failure to perform the duty is to be punished as provided in this chapter.
(Ord. No. 3737, § 1, 12-15-2020)

Chapter 14.09 PRETREATMENT REGULATIONS*

Sections:

14.09.010 Definitions and rules of construction; abbreviations.
14.09.020 Applicability, objectives and responsibility of the city.
14.09.030 Wastewater discharge prohibitions and limitations.
14.09.040 National categorical pretreatment standards.
14.09.050 Pretreatment and monitoring facilities.
14.09.060 Industrial wastewater discharge permits.
14.09.070 Industrial wastewater discharge permit conditions.
14.09.080 Industrial wastewater discharge permit modification.
14.09.090 Industrial wastewater discharge permit revocation.
14.09.100 Special agreements and contracts.
14.09.110 Recordkeeping.
14.09.120 Confidentiality of information.
14.09.130 Sample collection and analytical methods.
14.09.140 Right of entry.
14.09.150 Reporting and notification requirements.
14.09.160 Sector control programs.
14.09.170 Compliance and enforcement.
14.09.180 Remedies nonexclusive.
14.09.190 No waiver.
14.09.200 Regulation of industrial users from outside jurisdictions.
14.09.210 Affirmative defenses to discharge violations.

14.09.010 Definitions and rules of construction; abbreviations.

A. *Definitions and rules of construction.* The following words, terms and phrases, when used in this chapter, whether or not initially capitalized and except where the context clearly indicates a different meaning, shall have the meanings ascribed to them as follows:

Act means the Federal Water Pollution Control Act of 1948 (P.L. 80-845, 62 Stat. 155, 33 USC § 1251, et seq.), as amended, also known as the Clean Water Act.

Approval authority means the Regional Administrator of EPA Region 9 or, upon EPA delegating authority of the pretreatment program to the state of Nevada, the Administrator of the Nevada Division of Environmental Protection.

***Editor's note—**Ord. No. 3496, § 1, adopted July 10, 2018, repealed and reenacted chapter 14.09 in its entirety to read as herein set out. Formerly, chapter 14.09, sections 14.09.010—14.09.100 pertained to similar subject matter, and derived from Ord. No. 2536, §§ 59—67, adopted in 2006, and Ord. No. 2676, § 8, adopted in 2008.

Authorized representative or *duly authorized representative of the industrial user* means:

1. If the industrial user is a business structure other than a partnership or sole proprietorship:

a. The president, secretary, treasurer, or a vice-president of the legal entity in charge of a principal business function, or any other person who performs similar policy or decision making functions for the legal entity; or

b. The manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions which govern the operation of the regulated facility, including having the explicit or implicit duty of making major capital investment recommendations, and initiating and directing other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for industrial wastewater discharge permit requirements; and has apparent or actual authority to sign documents in accordance with applicable internal procedures.

2. If the industrial user is a partnership or sole proprietorship business structure: a general partner or proprietor, respectively.

3. If the industrial user is a federal, state, or local government entity: The highest official appointed or designated to oversee the operation and performance of the activities of the governmental entity, or their designee.

4. The individuals described in subsections 1. through 3., above, may designate another authorized representative if the authorization is made in writing, the authorization specifies the individual or a position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the industrial user, and the written authorization is submitted to the city.

Baseline monitoring report means the report required in subsection 14.09.150.B.

Best management practice means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the General and Specific Prohibitions listed in section 14.09.030. BMPs may also include, but are not limited to, treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage. BMPs shall be considered local limits and pretreatment standards for the purposes of this chapter and section 307(d) of the Act as specified at 40 CFR section 403.5(c)(4).

Biochemical oxygen demand—Five-day means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures in five days at 20 degrees (20°) Celsius, expressed in mg/L.

Bypass means the intentional diversion of wastestreams from any portion of an industrial user's pretreatment facility.

Categorical industrial user means an industrial user who is subject to a categorical pretreatment standard.

Categorical pretreatment standard or *categorical standard* means any regulation containing pollutant discharge limits promulgated by EPA in accordance with 33 USC § 1317, which apply to a specific category of industrial users and that appear in 40 CFR chapter I, subchapter N, parts 405-471.

Chemical oxygen demand means the measure of the oxygen required to oxidize all compounds, both organic and inorganic, in water.

Clean Air Act means the Air Pollution Control Act (1955) (P.L. 84-159, 69 Stat. 322, 42 USC § 7401, et seq.), as amended.

Code of Federal Regulations means the Code of Federal Regulations, as amended.

Composite sample means a representative flow-proportioned sample generally collected within a 24-hour period and combined according to flow. Time-proportional sampling may be approved or used by the city where time-proportional samples are believed representative of the discharge.

Cooling water means:

1. *Contact:* Water used for cooling purposes which comes in contact with any raw material, intermediate product, waste product or finished product.

2. *Noncontact:* Water used for cooling purposes which does not comes in contact with any raw material, intermediate product, waste product or finished product and the only pollutant added is heat.

Daily maximum discharge limit means the maximum allowable concentration of a pollutant(s) that may be discharged during a calendar day or as specified in an industrial wastewater discharge permit. Where daily maximum discharge limits are expressed in units of mass, the discharge is the total mass discharged over the sampling period.

Direct discharge means the discharge of pollutants to waters of the United States.

Director means the director of the department of utility services who is designated by the city to supervise the operation of the POTW and who is charged with certain duties and responsibilities under this chapter, or their duly authorized representative.

Environmental Protection Agency means the United States Environmental Protection Agency, or, where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of such agency.

Existing source means any indirect discharge that is not a new source.

Fats, oil and grease means non-petroleum organic polar compounds derived from animal or plant sources such as fats, non-hydrocarbons, fatty acids, soaps, waxes, and oils that contain multiple carbon chain triglyceride molecules. These substances are detectable and measurable using the approved method for Hexane Extractable Materials in the analytical procedures established in 40 CFR part 136.

Grab sample means a sample which is taken from a wastestream on a one-time basis with no regard to the flow in the wastestream and over a period of time not to exceed 15 minutes.

Gravity grease interceptor is an in-ground tank containing at least one baffle in which solids, greases and oils are separated from wastewater, located outside the industrial user's building and made accessible by at least two manhole covers.

Hydromechanical grease interceptor or *grease trap* means a small device hooked directly to the outgoing drains of sinks located inside a commercial food preparation facility that allows for the separation of fats, oils and grease of a non-petroleum nature from wastewater prior to being discharged into the POTW.

Hazardous waste means any waste designated as hazardous under the provisions of 40 CFR part 261.

Holding tank waste means any wastewater from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, sealed vaults, and vacuum-pump tank trucks.

Indirect discharge means the discharge or the introduction of pollutants into the POTW from any nondomestic source, including holding tank waste from a non-domestic user.

Industrial user means a source of indirect discharge.

Industrial waste means the liquid or solid wastes from industrial manufacturing processes, trade or business activities producing non-domestic or non-residential sewage as distinct from domestic wastewater.

Industrial wastewater discharge permit means a permit issued by the city to an industrial user that allows, limits and/or prohibits the discharge of pollutants or flow to the POTW as set forth in this chapter.

Instantaneous discharge limit means the maximum or minimum concentration or measurement for a pollutant or pollutant property allowed to be discharged at any time for any length of time and is determined by use of a grab sample or a direct measurement.

Interference means a discharge which, alone or in conjunction with a discharge or discharges from other sources, both:

1. Inhibits or disrupts the POTW, its treatment processes or operations or its sludge processes, use or disposal, and

2. Therefore is a cause of a violation of the city's NPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory or regulatory provisions or permits issued thereunder, or any more stringent state or local regulations: section 405 of the Act; the SWDA, including Title II commonly referred to as RCRA; any state regulations contained in any state sludge management plan prepared pursuant to subtitle D of the SWDA; the Clean Air Act; the Toxic Substances Control Act; and the Marine Protection, Research, and Sanctuaries Act.

Local limits means any regulation containing pollution discharge limits promulgated by the city in accordance with 40 CFR sections 403.5(c) and (d), which are deemed to be pretreatment standards and contained in section 14.09.030.

Marine Protection, Research, and Sanctuaries Act means the Marine Protection, Research, and Sanctuaries Act of 1972 (P.L. 92-532, 86 Stat. 1052 and 1061, 33 USC § 1401, et seq. and 16 USC § 1431, et seq.), as amended.

Medical waste means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, pharmaceutical residues, and dialysis wastes.

Municipality means a city, town, borough, county, parish, district, association, or other public body created by or under state law and having jurisdiction over disposal of sewage, industrial wastes, or other wastes, or a designated and approved management agency under section 208 of the Act.

National pollutant discharge elimination system means the Clean Water Act program delegated by EPA to the state of Nevada program for issuing, conditioning, and denying permits for the discharge of pollutants from point sources into waters of the state implemented by the Nevada Division of Environmental Protection pursuant to section 402 of the Act and the state of Nevada Water Pollution Control Law, chapter 445A of the Nevada Revised Statutes (NRS 445A.300-445A.730).

New source means:

1. Any building, structure, facility or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication

of proposed pretreatment standards under section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

a. The building, structure, facility or installation is constructed at a site at which no other source is located;

b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

c. The production or wastewater generating processes of the building, structure, facility or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered.

2. Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility or installation meeting the criteria of subsections 1.b. or 1.c. of this definition but otherwise alters, replaces, or adds to existing process or production equipment.

3. Construction of a new source as defined under this subsection has commenced if the owner or operator has:

a. Begun, or caused to begin as part of a continuous onsite construction program:

(1) Any placement, assembly, or installation of facilities or equipment; or

(2) Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

b. Entered into a binding contractual obligation for the purchase of facilities or equipment which is intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this subsection.

North American industry classification system means the system used by business and government to classify business establishments according to the type of economic activity.

Normal domestic strength wastewater means wastewater, when analyzed in accordance with procedures established in 40 CFR part 136, contains no more than 300 mg/L of TSS and/or 300 mg/L of BOD_5. Discharges to the POTW that exceed these concentrations shall be surcharged.

Pass through means a discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the city's NPDES permit (including an increase in the magnitude or duration of a violation).

Person means any natural person, any form of business, social organization, or other nongovernmental legal entity (including, but not limited to, a corporation, partnership, association, trust or unincorporated organization), a government, governmental agency or political subdivision of a government.

pH means the acid or base condition of the solution expressed as the logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in moles per liter of solution and reported as standard units (SU).

Pollutant means any dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, explosives, munitions, medical waste, chemical wastes, corrosive substance, biological material, biological nutrient, toxic substance, radioactive materials, heat, malodorous substance, wrecked or discharged equipment, rock, sand, slurry, cellar dirt, untreatable waste, or industrial, domestic, or agricultural wastes and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD_5, COD, toxicity or odor).

Pretreatment means the reduction of the amount of pollutants, the elimination of pollutants or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to, or in lieu of, discharging or otherwise introducing such pollutants into the POTW. The reduction or alteration can be obtained by physical process, biological process, or by other process or means, except as prohibited by 40 CFR section 403.6(d). Appropriate pretreatment technology includes control equipment, such as equalization tanks or facilities, for protection against surges or slug loadings that might interfere with or otherwise be incompatible with the POTW. However, where wastewater from a regulated process is mixed in an equalization facility with unregulated wastewater or with wastewater from another regulated process, the effluent from the equalization facility must meet an adjusted pretreatment limit calculated in accordance with 40 CFR section 403.6(e).

Pretreatment requirement means any substantive or procedural requirement related to pretreatment, other than a pretreatment standard, imposed on an industrial user.

Pretreatment standard, national pretreatment standard or standard means any regulation containing pollutant discharge limits promulgated by EPA, in accordance with section

307(b) and (c) of the Act, which applies to industrial users. This term includes prohibitive discharge limits, local limits and best management practices that are established by the city. In cases of differing standards, the more stringent shall apply.

Publicly owned treatment works means a treatment works as defined by 33 USC 1292, which is owned by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of municipal sewage or industrial wastes of a liquid nature and any sewers, pipes or other conveyances which convey wastewater to the treatment plant. The term also means the municipality having jurisdiction over the industrial user's discharges to and the discharges from the treatment works.

Resource Conservation and Recovery Act means the Resource Conservation and Recovery Act (1976) (P.L. 94-580, 90 Stat. 2795, 42 USC § 6901, et seq.), as amended.

Sand/oil separator means a plumbing appurtenance or appliance that is installed in a sanitary drainage system to intercept sand (or other aggregate) and oil and grease from a wastewater discharge and are designed considering retention times, volumes in gallons calculated for each facility, and gravity separation; such interceptors include baffle(s) and a minimum of two compartments. See section 14.09.160.

Sector control program means a program designed to control specific pollutants from industrial users with similar operations, waste generation or treatment through the implementation of pretreatment standards and pretreatment requirements, including best management practices. These sector control program requirements may be found at section 14.09.160.

Significant industrial user means:

1. A categorical industrial user; or

2. An industrial user that:

a. Discharges making up five percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant;

b. Discharges an average of 25,000 gallons per day or more of process wastewater to the POTW (excluding noncontact cooling, sanitary, and boiler blow down); or

c. Is designated as such by the director on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or pretreatment requirement.

The city, at its sole discretion, may determine that an industrial user subject to categorical pretreatment standards is a non-significant categorical industrial user rather than a significant industrial user on a finding that the industrial user never discharges more than 100 gallons per day of total wastewater subject to categorical

pretreatment standards (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

a. The industrial user, prior to the city's finding, has consistently complied with all applicable categorical pretreatment standards and pretreatment requirements;

b. The industrial user annually submits the certification statement as found in 40 CFR section 403.12(q), together with any additional information necessary to support the certification statement; and

c. The industrial user never discharges any untreated concentrated wastewater.

Upon finding by the director that an industrial user meeting the criteria in subsection 2. of this definition has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standards or requirement, the director may at any time, on its own initiative or in response to a petition received from an industrial user, determine that such industrial user is not a significant industrial user.

Slug load or *slug discharge* means any discharge at a flow rate or concentration, which could cause a violation of the general or specific prohibitions in section 14.09.030. A slug discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, or a discharge which exceeds the hydraulic or design capacity of an industrial user's treatment system or any part of the treatment unit including a discharge which has a reasonable potential to cause interference or pass through or in any other way violate an applicable pretreatment standard or pretreatment requirement or an industrial wastewater discharge permit issued by the city.

Solid Waste Disposal Act means the Solid Waste Disposal Act (1965) (P.L. 89-272, 79 Stat. 992, 42 USC § 6901, et seq.), as amended, including by the RCRA.

Standard industrial classification code means a classification pursuant to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget, 1972, as amended.

Stormwater means any surface flow, runoff, and drainage consisting entirely of water from any form of natural precipitation and resulting from such precipitation, including snowmelt.

Surcharge means an additional charge to an industrial user whose discharge waste strength is in excess of the normal domestic strength wastewater.

Total dissolved solids means the "residue-on-evaporation" of the filterable solids in water or wastewater, otherwise known as that portion of solids that passes through a glass fiber filter and dried at 180 degrees Celsius (180°C) using a method approved in 40 CFR part 136.

Total suspended solids means the solids that float on the surface of, or are suspended in the water, sewage, or other liquid, and which are removable by laboratory filtering in accordance with procedures approved in 40 CFR part 136, as amended.

Toxic pollutant means any pollutant or combination of pollutants listed as toxic in regulations promulgated by the EPA under section 307(a) of the Act or as otherwise listed in 40 CFR part 122, appendix D.

Toxic Substances Control Act means the Toxic Substances Control Act (1976) (P.L. 94-469, 90 Stat. 2003, 15 USC § 2601, et seq.), as amended.

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of factors beyond the reasonable control of the industrial user, but does not include noncompliance to the extent caused by operational error, improperly designed pretreatment facilities, inadequate pretreatment facilities, lack of preventive maintenance, or careless or improper operation.

User means a recipient of city wastewater services.

Wastewater means the liquid and water-carried industrial or domestic wastes from residences, commercial buildings, industrial facilities and institutions, together with any infiltrating groundwater, surface water and stormwater that may be present, whether treated or untreated, which are discharged to or permitted to enter the POTW.

United States Code means the United States Code, as amended.

B. *Abbreviations.* The following abbreviations shall have the designated meanings:

BMP	Best Management Practice
BMR	Baseline Monitoring Report
BOD_5	Biochemical Oxygen Demand—Five-day
°C	Degrees Celsius
CFR	Code of Federal Regulations
COD	Chemical Oxygen Demand
EPA	Environmental Protection Agency
°F	Degrees Fahrenheit
FOG	Fats, Oils and Grease
gpd	gallons per day
GGI	Gravity Grease Interceptor
HMGI	Hydromechanical Grease Interceptor
ILA	Inter-Local Agreement
IMR	Industrial Monitoring Report
IU	Industrial User
mg/L	milligrams per Liter
NAICS	North American Industry Classification System

NDEP	Nevada Division of Environmental Protection
NPDES	National Pollutant Discharge Elimination System
O&M	Operation and Maintenance
POTW	Publicly Owned Treatment Works
RCRA	Resource Conservation and Recovery Act
§	Section
SIU	Significant Industrial User
SWDA	Solid Waste Disposal Act
SIC	Standard Industrial Classification
TDS	Total Dissolved Solids
TSS	Total Suspended Solids
USC	United States Code

(Ord. No. 3496, § 1, 7-10-2018)

14.09.020 Applicability, objectives and responsibility of the city.

A. *Applicability.* This chapter sets forth uniform requirements for all industrial users that discharge into the POTW and enables the city to comply with all applicable state laws and federal laws under the Act and the General Pretreatment Regulations for Existing and New Sources of Pollution (40 CFR part 403).

B. *Objectives.* The objectives of this chapter are to:

1. Prevent the introduction of pollutants into the POTW which will interfere with the operation of the system or contaminate the resulting sludge;

2. Prevent the introduction of pollutants into the POTW which will pass through the wastewater facilities, inadequately treated, into the receiving waters or the atmosphere, or otherwise be incompatible with the system;

3. Provide for and promote the general health, safety and welfare of both the general public and the POTW personnel who may be affected by wastewater and sludge in the course of their employment;

4. Improve the opportunity to recycle and reclaim wastewater and sludge from the POTW;

5. Provide for the equitable distribution of the cost of operation and maintenance of the POTW by requiring the industrial user making, causing or allowing the indirect discharge to pay the direct costs of all labor, equipment and materials incurred by the city to handle, treat, inspect, monitor, sample, test, dispose of or remediate that discharge; and

6. Enable the city to comply with its NPDES permit conditions, sludge use and disposal requirements, and any other federal or state laws or regulations to which the POTW is subject.

C. *Industrial users.* No industrial user shall discharge wastewater to the POTW unless done so in compliance with the provisions of this chapter.

D. *Owner/tenant responsibility.* Where an owner of property leases a premises to a person as a tenant under any rental or lease agreement, if either the owner or the tenant is an industrial user at the premises, either or both as an industrial user(s) are responsible for compliance with the provisions of this chapter.

E. *Authority of director.* Except as otherwise provided, the director shall administer, implement and enforce the provisions of this chapter. Any powers granted to or duties imposed upon the director may be delegated by the director to other city personnel.

F. *Notification to industrial users.* The director shall attempt to notify in writing any industrial user whom the city has reason to believe is subject to a national categorical pretreatment standard or pretreatment requirement, or other applicable requirements promulgated by the EPA under the provisions of section 204(b) or 405 of the Act, or under the provisions of sections 3001, 3004, or 4004 of the Solid Waste Disposal Act. Failure of the city to so notify industrial users shall not relieve said industrial users from the responsibility of complying with applicable requirements. It is the responsibility of significant industrial users to apply for and receive a permit prior to discharge, whether or not they have been identified and formally requested to do so.

G. *Discharge by industrial users.* If wastewaters discharged by an industrial user contain any pollutant or unexplained uncharacteristically high flow that have the potential to discharge in the opinion of the director or are proposed to be discharged to the POTW, the director may take any action necessary to:

1. Prohibit the discharge of such wastewater;

2. Require an industrial user to demonstrate that in-plant facility modifications will reduce or eliminate the discharge of such substances in conformity with this chapter;

3. Require treatment, including storage facilities or flow equalization necessary to reduce or eliminate the potential for a discharge to violate this chapter;

4. Require the industrial user making, causing or allowing the discharge to pay any additional cost or expense incurred by the city for handling, treating, disposing or remediation costs as a result of wastes discharged to the wastewater treatment system;

5. Require the industrial user to apply for and obtain a permit, including a zero discharge permit;

6. Require timely and factual reports from the industrial user; or

7. Take such other action as may be necessary to meet the objectives of this chapter. (Ord. No. 3496, § 1, 7-10-2018)

14.09.030 Wastewater discharge prohibitions and limitations.

A. General prohibitions. No industrial user shall contribute or cause to be contributed, directly or indirectly, any pollutant or wastewater which causes pass through or interference. These general prohibitions and the specific prohibitions in subsection B. apply to all industrial users of the POTW whether or not the industrial users are subject to other pretreatment standards or pretreatment requirements.

B. Specific prohibitions. No industrial user shall contribute the following pollutants into the POTW:

1. Any liquids, solids or gases which, by reason of their nature or quantity, are or may be sufficient, either alone or by interaction with other substances, to cause fire or explosion or be injurious in any other way to the wastewater facilities, including, but not limited to, wastestreams with a closed cup flashpoint of less than sixty degrees Celsius (60°C) or one hundred forty degrees Fahrenheit (140°F) using the test methods specified in 40 CFR section 261.21. The director may require industrial users with the potential to discharge flammable, combustible or explosive substances to install and maintain an approved combustible gas detection meter or explosion hazard meter. No two successive readings on an explosion hazard meter at the point of discharge shall be more than five percent, nor any one reading more than ten percent, of the lower explosive limit (LEL) of the meter.

2. Solid or viscous substances which may cause obstruction to the flow in the POTW resulting in interference.

3. Any wastewater having a pH less than 5.0 or higher than 12.0, or wastewater having any other corrosive property capable of causing damage or hazard to structures, equipment or personnel of the POTW.

4. Any pollutant, including oxygen demanding pollutants (BOD_5, etc.) released in a discharge at a flow rate and/or pollutant concentration which will cause interference with the POTW;

5. Heat in amounts which will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature at the

POTW treatment plant exceeds 40 degrees (40°) Celsius or one hundred four degrees (104°) Fahrenheit unless EPA, upon request of the POTW, approves alternate temperature limits;

6. Any petroleum oil, non-biodegradable cutting oil, or products of mineral origin in amounts that will cause pass through or interference. The city may include sampling and reporting requirements in a permit or require compliance with permit specific limits or best management practices where the concentration has the reasonable potential to exceed 100 mg/L.

7. Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems or pollutants which singly or cumulatively or by interaction with other wastes are sufficient to create a public nuisance or hazard to life or are sufficient to prevent or interfere with entry into the POTW for their maintenance and repair.

8. Any trucked or hauled pollutants, except at discharge points designated by the director;

9. Rainwater, stormwater, groundwater, street drainage, subsurface drainage, roof drainage, yard drainage, water from yard fountains or water features, ponds or lawn sprays or other non-potable water as determined by the city to be discharged to the POTW without prior authorization. The director may approve the discharge of such water only when, in the opinion of the city, there is no other reasonable method of disposal available. If authorization is granted for the discharge of such water into the POTW, the industrial user shall pay an applicable user charge, as set forth in the department service rules, and meet all conditions as required. No discharge of wastewater or stormwater in any form, as defined in the Act, shall be made into the stormwater system or waters of the state of Nevada that would cause a violation of the city's NPDES permit.

10. Any substance which may cause the POTW's effluent, or any other product of the POTW, such as residues, sludges or scums, to be unsuitable for reclamation and reuse or to interfere with the reclamation process.

11. Any substance which will cause the city to violate its NPDES permit or applicable water quality standards.

12. Any wastewater with objectionable color not removed in the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions.

13. A slug discharge.

14. Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the director or other regulations set forth by the state of Nevada or that violates any applicable state or federal regulations.

15. Bulk, expired, outdated or concentrated prescription or non-prescription drugs.

16. Wastewater or pollutants discharged directly into a manhole or other opening to the POTW unless specifically authorized by the director or as otherwise permitted under this chapter. Prohibited is the opening of a manhole or discharging into any opening in violation of this chapter.

17. Wastewater contaminated as a result of discharge from aboveground and/or underground gasoline, diesel fuels, fuel oil, kerosene, and jet fuel tanks, tank accessories, and/or pipelines without applying for and obtaining a permit prior to discharge.

18. Liquid wastes from chemical toilets, and trailers, campers or other recreational vehicles which have been collected and/or held in tanks or other containers shall not be discharged into the POTW except at locations authorized by the city to collect such wastes.

19. Sludges, screenings, or other residues from the treatment of industrial wastes.

20. Medical wastes that cause or contribute to pass through or interference.

21. Wastewater causing the POTW effluent to fail a Whole Effluent Toxicity (WET) test.

22. Detergents, surfactants and other surface-active agents, or other substances which may cause excessive foaming in the POTW or cause or contribute to pass through or interference.

23. Discharge of nonylphenol from the use of bulk or concentrated Nonylphenol containing detergents as employed by some industrial or commercial laundries, car washes or asphalt manufacturers or other industrial users.

24. Wastewater which contains grease or oil or any other substances that will solidify or become discernibly viscous at temperatures between thirty-two degrees (32°) Fahrenheit (0° Celsius) and one hundred fifty degrees (150°) Fahrenheit (65.5° Celsius).

25. Wastewater containing free or floating oil and grease, or any discharge containing FOG in excess of two hundred fifty milligrams per liter (250 mg/L). Unless otherwise approved by the director a food service establishment shall install and properly operate and maintain a GGI and implement all required BMPs as specified in section 14.09.160.

26. Wastewater generated as a result of wastes pumped from GGIs, HMGIs or grease traps, sand-oil separators or other storage tanks or treatment units back into the POTW, either directly or indirectly, without approval of the director.

27. Discharge of any wastewater containing perchloroethylene (PCE) (also known as tetrachloroethene and tetrachloroethylene) from any industrial user.

28. Wastewater of domestic origin or associated with any industrial activities shall not be discharged to the city stormwater system unless permitted by the state and approved by the city in writing.

29. Any pollutant or wastewater containing pollutants with UV (254 nm) absorbing substances which causes interference with UV disinfection at the treatment plant.

30. Any pesticides, herbicides or fungicides that cause or contribute to pass through, interference or other problems at the treatment works or in the receiving waters. In no case, shall an industrial user discharge wastewater that is generated from the rinsing of any container that contains or contained any concentrated or formulated pesticide, herbicide or fungicide.

C. Specific discharge limitations.

1. No significant industrial user shall discharge or cause to be discharged wastewater that exceeds the following limits:

Pollutant[a]	*Daily Maximum Discharge Limit (mg/L)*
Arsenic	0.71
Cadmium	0.02
Chromium	1.48
Copper	1.93
Lead	0.65
Mercury	0.015
Nickel	3.84
Selenium	0.05
Silver	1.15
Zinc	4.58
5-Day Biochemical Oxygen Demand (BOD_5) [b][c]	13,611 lbs/day
Total Suspended Solids (TSS) [b][c]	20,577 lbs/day
Phosphorus [b]	701 lbs/day
Ammonia [b]	2,084 lbs/day

[a] All pollutants as total and in mg/L unless otherwise specified.

[b] These limits are the total mass in pounds per day (lbs/day) that are available to allocate to all permitted industrial users. Allocations are at the sole discretion of the city.

[c] Discharges containing BOD_5 or TSS concentrations over that of normal domestic strength wastewater shall be surcharged.

2. The city may, at its sole discretion, implement local limits through allocation of the Maximum Allowable Industrial Load (MAIL) to significant industrial users and

correspond to the uniform concentration local limits shown in the table above. The MAILs that correspond to the daily maximum discharge limits are hereby incorporated by reference.

D. A significant industrial user who introduces wastewater into the POTW may be required to submit a salinity control plan if monitoring of the industrial user's discharge shows it exceeds 1,200 mg/L TDS. This plan shall contain a description of the chemicals and materials used that contribute to the TDS concentration and the source control measures that will be implemented to reduce the TDS concentration in the discharge to less than 1,200 mg/L or to a level specified by the director that prevents discharges that cause or contribute to pass through or interference.

E. The city may establish more stringent pollutant limits by ordinance and/or the director may establish additional site-specific pollutant limits in a permit, best management practices, or additional pretreatment requirements when, in the judgment of the director, such limitations are necessary to implement the provisions of this chapter.

F. Dilution is prohibited as a substitute for treatment and shall be a violation of this chapter. Except where expressly authorized to do so by an applicable pretreatment standard or pretreatment requirement, no industrial user shall ever increase the use of process water, or in any other way attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with a pretreatment standard or pretreatment requirement. The city may impose mass limitations on industrial users which are using dilution to meet applicable pretreatment standards or pretreatment requirements or in other cases where the imposition of mass limitations is appropriate.

G. State requirements and limitations on discharges shall apply in any case where they are more stringent than federal pretreatment standards and pretreatment requirements or those in this chapter.

(Ord. No. 3814, § 1, 11-2-2021; Ord. No. 3496, § 1, 7-10-2018)

14.09.040 National categorical pretreatment standards.

Industrial users must comply with the categorical pretreatment standards found at 40 CFR chapter I, subchapter N, parts 405-471.

A. Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the director may impose equivalent concentration or mass limits in accordance with subsections 14.09.040.E and 14.09.040.F.

B. When the limits in a categorical pretreatment standard are expressed only in terms of mass of pollutant per unit of production, the director may convert the limits to

equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual industrial users.

C. When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the director shall impose an alternate limit in accordance with 40 CFR section 403.6(e).

D. A categorical industrial user may obtain a net/gross adjustment to a categorical pretreatment standard in accordance with the following subsections.

1. Categorical pretreatment standards may be adjusted to reflect the presence of pollutants in the industrial user's intake water in accordance with this section. Any industrial user wishing to obtain credit for intake pollutants must make application to the city. Upon request of the industrial user, the applicable standard will be calculated on a "net" basis (i.e., adjusted to reflect credit for pollutants in the intake water) if the requirements of subsection D.2 below are met.

2. Criteria.

a. Either (1) the applicable categorical pretreatment standards contained in 40 CFR, chapter I, subchapter N specifically provide that they shall be applied on a net basis; or (2) the industrial user demonstrates that the control system it proposes or uses to meet applicable categorical pretreatment standards would, if properly installed and operated, meet the standards in the absence of pollutants in the intake waters.

b. Credit for generic pollutants such as biochemical oxygen demand, total suspended solids, and oil and grease should not be granted unless the industrial user demonstrates that the constituents of the generic measure in the user's effluent are substantially similar to the constituents of the generic measure in the intake water or unless appropriate additional limits are placed on process water pollutants either at the outfall or elsewhere.

c. Credit shall be granted only to the extent necessary to meet the applicable categorical pretreatment standard(s), up to a maximum value equal to the influent value. Additional monitoring may be necessary to determine eligibility for credits and compliance with standard(s) adjusted under this section.

d. Credit shall be granted only if the user demonstrates that the intake water is drawn from the same body of water as that into which the POTW discharges. The city may waive this requirement if it finds that no environmental degradation will result.

E. When a categorical pretreatment standard is expressed only in terms of pollutant concentrations, an industrial user may request that the city convert the limits to equivalent mass limits. The determination to convert concentration limits to mass limits is within the discretion of the director. The city may establish equivalent mass limits only if the industrial user meets all the conditions set forth in subsections E.1.a. through E.1.e. below.

1. To be eligible for equivalent mass limits, the industrial user must:

a. Employ, or demonstrate that it will employ, water conservation methods and technologies that substantially reduce water use during the term of its individual wastewater discharge permit;

b. Currently use control and treatment technologies adequate to achieve compliance with the applicable categorical pretreatment standard, and not have used dilution as a substitute for treatment;

c. Provide sufficient information to establish the facility's actual average daily flow rate for all wastestreams, based on data from a continuous effluent flow monitoring device, as well as the facility's long-term average production rate. Both the actual average daily flow rate and the long-term average production rate must be representative of current operating conditions;

d. Not have daily flow rates, production levels, or pollutant levels that vary so significantly that equivalent mass limits are not appropriate to control the discharge; and

e. Have consistently complied with all applicable categorical pretreatment standards during the past five years or permitted period, whichever is longer, prior to the industrial user's request for equivalent mass limits.

2. An industrial user subject to equivalent mass limits must:

a. Maintain and effectively operate control and treatment technologies adequate to achieve compliance with the equivalent mass limits;

b. Continue to record the facility's flow rates through the use of a continuous effluent flow monitoring device;

c. Continue to record the facility's production rates and notify the director whenever production rates are expected to vary by more than 20 percent from its baseline production rates determined in subsection F.1.c. Upon notification of a revised production rate, the director will reassess the equivalent mass limit and revise the limit as necessary to reflect changed conditions at the facility; and

d. Continue to employ the same or comparable water conservation methods and technologies as those implemented pursuant to subsection E.1.a. so long as it discharges under an equivalent mass limit.

3. When developing equivalent mass limits, the director:

a. Will calculate the equivalent mass limit by multiplying the actual average daily flow rate of the regulated process(es) of the industrial user by the concentration-based daily maximum and monthly average standard for the applicable categorical pretreatment standard and the appropriate unit conversion factor;

b. Upon notification of a revised production rate, will reassess the equivalent mass limit and recalculate the limit as necessary to reflect changed conditions at the facility; and

c. May retain the same equivalent mass limit in subsequent industrial wastewater discharge permit terms if the industrial user's actual average daily flow rate was reduced solely as a result of the implementation of water conservation methods and technologies, and the actual average daily flow rates used in the original calculation of the equivalent mass limit were not based on the use of dilution as a substitute for treatment pursuant to subsection 14.09.030.F. The industrial user must also be in compliance with 40 CFR section 403.17 regarding the prohibition of bypass.

F. The director may convert the mass limits of the categorical pretreatment standards of 40 CFR parts 414, 419, and 455 to concentration limits for purposes of calculating limitations applicable to individual industrial users. The conversion is at the discretion of the director.

G. Once included in its permit, the industrial user must comply with the equivalent limitations developed in section 14.09.040 in lieu of the promulgated categorical pretreatment standards from which the equivalent limitations were derived.

H. Many categorical pretreatment standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average, or four-day average, limitations. Where such standards are being applied, the same production or flow figure shall be used in calculating both the average and the maximum equivalent limitation.

I. Any industrial user operating under a permit incorporating equivalent mass or concentration limits calculated from a production-based standard shall notify the director within two business days after the user has a reasonable basis to know that the production level will significantly change within the next calendar month. Any

user not notifying the director of such anticipated change will be required to meet the mass or concentration limits in its permit that were based on the original estimate of the long term average production rate.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.050 Pretreatment and monitoring facilities.

A. Treatment required. An industrial user shall provide necessary wastewater treatment at the industrial user's expense as required to comply with this chapter and shall achieve compliance with all pretreatment standards and pretreatment requirements within the time limitations specified by the EPA, NDEP, or the city, whichever is more stringent. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the director for review and shall be acceptable before construction of the facility. The review of such plans and operating procedures will in no way relieve the industrial user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the city under the provisions of this chapter.

B. The industrial user shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the industrial user. This provision requires the operation of back-up or auxiliary facilities or similar systems which are installed by an industrial user when the operation is necessary to achieve or assure compliance with conditions of the permit.

C. Monitoring facilities. The city may require an industrial user to install at the industrial user's expense, suitable monitoring facilities or equipment that allows for the representative sampling and accurate observation of wastewater discharges. Whether constructed on public or private property, the monitoring facilities shall be constructed in accordance with the city's requirements and all applicable construction standards and specifications. Monitoring equipment and structures shall be maintained in proper working order, calibrated as required by manufacturer's recommendations and kept safe and accessible at all times to city personnel. The monitoring equipment shall be located and maintained on the industrial user's premises outside of the building unless otherwise approved by the city. When such a location would be impractical, the city may allow such facility to be constructed in the public street or easement area, with the approval of the agency having jurisdiction over such street or easement, and located so that it will not be obstructed by public utilities, landscaping or parked vehicles. No industrial user shall cover any manhole, sewer cleanout, or other openings in the POTW with earth, paving, or otherwise render it inaccessible.

D. The director may require an industrial user to have treatment facility operators that are certified as industrial waste operators by the Nevada Water Environment Association. The minimum grade of certification required shall be determined by the director.

E. Wastewater discharge control. The city may require an industrial user to restrict discharge during peak flow periods, designate that certain wastewater be discharged only into specified sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and demonstrate the industrial user's compliance with the requirements of this chapter.

F. Flow equalization. The city may require any industrial user discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An industrial wastewater discharge permit may be issued solely for flow equalization.

G. Multitenant buildings. When more than one industrial user is able to discharge into a common service line, the city may require installation of separate monitoring equipment or structures for each industrial user.

H. Flow, pH, LEL and other meters and equipment. If the city determines an industrial user is required to measure and report (1) wastewater flow, (2) discharge process wastewaters necessitating continuous pH measurement, or (3) discharge wastewater that may contain flammable substances or other pollutants of concern, the city may require the industrial user to install and maintain, at the industrial user's expense, approved meters and equipment. The type of meter and installation design shall be certified by a professional engineer licensed in the state of Nevada.
(Ord. No. 3496, § 1, 7-10-2018)

14.09.060 Industrial wastewater discharge permits.

A. *Permits required.* All SIUs proposing to connect to, or discharge into, any part of the POTW shall apply for and obtain an industrial wastewater discharge permit prior to commencing discharge to the POTW. A separate permit may be required for each SIU building or complex of buildings. Such SIUs shall immediately contact the city and obtain an industrial wastewater discharge permit.

B. *New industrial users: Applying for an industrial wastewater discharge permit.* Any industrial user required to obtain an industrial wastewater discharge permit who proposes to begin or recommence discharging into the POTW must apply for and obtain such permit prior to the beginning or recommencing of such discharge. The industrial user shall file a permit application on forms provided by the city containing the information specified in subsection 14.09.060.F. below. The completed application for the industrial wastewater discharge permit must be filed at least 90 days prior to the date upon which any discharge will begin or recommence. The city may issue a permit at any time after receipt of the completed permit application.

C. *Existing industrial users: Applying for an industrial wastewater discharge permit re-issuance.* An industrial user with an expiring industrial wastewater discharge permit shall apply for a new permit by submitting a complete permit application at least 90 days prior to the expiration of the industrial user's existing discharge permit. The industrial user shall file a permit application on forms provided by the city containing the information specified in subsection 14.09.060.F. below. An industrial user with an existing permit that has filed a complete and timely application may continue to discharge, as approved in writing by the city, through an administrative extension of the existing permit if the delay in permit issuance is not due to any act or failure to act on the industrial user's part.

D. *Other industrial users.* The city may require other industrial users to apply for and obtain wastewater discharge permits or similar control mechanisms necessary to carry out the purposes of this chapter. The city may issue an industrial wastewater discharge permit, a zero discharge permit or other control mechanism as needed to prohibit the discharge of some or all non-domestic process wastewater from an industrial user or to establish other pretreatment standards or requirements.

E. *Enforceability.* Any violation of the terms and conditions of an industrial wastewater discharge permit, failure to apply for a permit as required, or discharging without a required permit shall be deemed a violation of this chapter and subjects the industrial user to enforcement by the city. Obtaining an industrial wastewater discharge permit does not relieve a permittee of its obligation to comply with all state and federal pretreatment standards or pretreatment requirements.

F. *Permit application contents.* In support of the application, the industrial user shall submit, in units and terms appropriate for evaluation, the following information:

1. Name of business, address of the facility, location of the discharge if different from the facility address, and contact information for the owner, operator and the authorized representative of the industrial user.

2. Environmental permits. A list of any environmental control permits held by or for the facility.

3. Description of operations.

a. A brief description of the nature, average and maximum rate of production (including each product produced by type, amount, processes, and rate of production);

b. The standard industrial classification(s) of the operation(s) carried out by such industrial user;

c. A schematic process diagram, which indicates all process tanks, process lines, treatment systems, drains, and points of discharge to the POTW from each regulated process and source of non-domestic wastewater;

d. A listing of all non-domestic process streams and the type(s) of wastes generated from each process;

e. A list of all raw materials and chemicals used or stored at the facility which are, or could accidentally or intentionally be, discharged to the POTW;

f. Number of employees; and

g. Hours of operation, and proposed or actual hours of operation.

4. Time and duration of discharges including the date the industrial user first began discharge or plans to discharge to the POTW.

5. The location for sampling the wastewater discharges from the industrial user.

6. Flow measurement. Information showing the average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula set out in 40 CFR section 403.6(e). For new sources and new permittees not currently discharging, an estimate of flows may be used for meeting the requirements of the baseline monitoring report required in section 14.09.150.

7. Measurement of pollutants.

a. The pretreatment standards applicable to each regulated process;

b. The results of sampling and analysis identifying the nature and concentration, and/or mass of regulated pollutants in the discharge from each regulated process where required by the standard or by the city;

c. Instantaneous, daily maximum and long-term average concentrations, or mass, where required, shall be reported;

d. The sample shall be representative of daily operations and shall be collected in accordance with procedures set out in section 14.09.130. Where the standard requires compliance with a BMP or pollution prevention alternative, the industrial user shall submit documentation as required by the city or the applicable standard to determine compliance with the standard; and

e. Analyses must be performed in accordance with procedures set out in section 14.09.130.

8. A list of hazardous waste(s) generated and a description of the storage area and procedures for handling and disposal of the wastes.

9. Slug discharge control plan for significant industrial users as described in section 14.09.150 shall be submitted and as required by the director for other industrial users.

10. Compliance schedule. If additional pretreatment and/or operation and maintenance will be required to meet the pretreatment standards, the shortest schedule by which

the industrial user will provide such additional pretreatment and/or O&M. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard.

The following conditions shall apply to this schedule:

a. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable pretreatment standards (e.g. hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.). No such increment shall exceed nine months.

b. Not later than 14 days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the director including, as a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine months elapse between such progress reports to the director.

11. Certification. A statement, reviewed by the authorized representative of the industrial user and certified to by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional O&M and/or additional pretreatment is required for the industrial user to meet the pretreatment standards and pretreatment requirements.

12. Signatory certification. All industrial wastewater discharge permit applications and certification statements must be signed by the authorized representative of the industrial user and contain the applicable certification statement(s) in subsection 14.09.150.H.

13. Any other information as may be deemed by the director to be necessary to evaluate the permit application.

G. *Industrial wastewater discharge permit issuance.*

1. Permits shall be issued for a specified time period, not to exceed five years. A permit may be issued for a period of less than five years at the city's discretion or may be stated to expire on a specific date.

2. Where the city is issuing a permit containing a permit specific pretreatment standard or pretreatment requirement not otherwise contained in this chapter, the pretreat-

ment standard or pretreatment requirement shall be noticed for public comment for 30 days in a newspaper of general circulation that provides meaningful public notice or processed through the city council approval process.

3. The city shall issue an industrial wastewater discharge permit to the applicant if the city finds that all of the following conditions are met:

a. The applicant has provided a timely and complete permit application to the city;

b. The proposed discharge by the applicant is in compliance with the pretreatment standards and pretreatment requirements established in this chapter;

c. The proposed operation and discharge of the applicant would permit the normal and efficient operation of the POTW; and

d. The proposed discharge by the applicant would not result in a violation by the city of the terms and conditions of its NPDES permit or cause pass through or interference.

4. If the city finds that the condition set out in subsection 3.b. above is not met, the city may, in its discretion, issue an industrial wastewater discharge permit to the applicant if the conditions set out in subsections 3.a., 3.c. and 3.d. above have been met and if the applicant submits, and the city approves, a compliance schedule setting out the measures to be taken by the applicant and the dates that such measures will be implemented to insure compliance with applicable pretreatment standards and pretreatment requirements. At no time shall a discharge be allowed to cause a violation of any general or specific prohibition established in section 14.09.030 nor shall the final compliance date for a categorical pretreatment standard be extended.

5. Any industrial user may file a request for reconsideration of the terms of an industrial wastewater discharge permit and thereafter an appeal, in accordance with the procedures set forth in subsection 14.09.170.C.9.

H. *Denial by city to issue an industrial wastewater discharge permit.* Any industrial user denied a permit to discharge by the city may file a request for reconsideration and thereafter an appeal in accordance with the procedures set forth in subsection 14.09.170.C.9.

I. *Transferability.* An industrial wastewater discharge permit is issued to a specific industrial user for a specific operation. An industrial wastewater discharge permit may be transferred to a new owner or new operator only if the permittee gives the city at least 180 days advance notice to the director and the director approves the industrial wastewater discharge permit transfer. The notice to the director must include a written certification by the new owner or new operator that:

1. States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;

2. Identifies the specific date on which the transfer is to occur; and

3. Acknowledges full responsibility for complying with the existing industrial wastewater discharge permit.

Any succeeding owner or operator shall comply with the terms and conditions of the existing permit until a new permit is issued. The permittee shall notify the city at least 30 days prior to any change of ownership and shall provide a copy of the permit to the new owner. Failure to provide advance notice of a transfer renders the industrial wastewater discharge permit void as of the date of facility transfer and discharge of wastewater prohibited.
(Ord. No. 3496, § 1, 7-10-2018)

14.09.070 Industrial wastewater discharge permit conditions.

Industrial wastewater discharge permits shall be expressly subject to all provisions of this chapter and all other applicable regulations, surcharges, user charges and fees. Any such surcharges, user charges and fees shall be established by city council and set forth in the department service rules.

A. Permits shall contain the following:

1. A statement that indicates the permit's issuance date, expiration date and effective date;

2. A statement on permit non-transferability without, at a minimum, prior notification to the POTW and the new owner or operator agreeing in writing to abide by all terms and conditions of the permit;

3. Effluent limits, including best management practices, based upon applicable pretreatment standards;

4. Self-monitoring, sampling, reporting, notification and record-keeping requirements including, but not limited to, identification of the pollutants or BMPs to be monitored, sampling location, sampling frequency and sample type, based on federal, state and local law;

5. Statements of applicable administrative, civil and criminal penalties for the violation of pretreatment standards and pretreatment requirements, the permit, this chapter, and any applicable compliance schedule;

6. Requirements to immediately notify the city of any changes at its facility affecting potential for a slug discharge and for the industrial user to immediately report any slug discharges, spills or accidental discharges, including any discharges that may cause problems at the POTW;

7. Permittee's consent to city entering upon, and accessing permittee's facility, property and premises, making the foregoing available to city upon request at any time, and allowing city to perform other activities at or upon the foregoing to effect the purposes of this chapter; and

8. A requirement that permittee comply with all of the provisions set forth in the permit, HMC Title 14, and all applicable federal, state, and local laws and regulations.

B. Permits may also include, as appropriate:

1. Applicable schedule of user charges and fees for the wastewater to be discharged into the POTW;

2. Limits on average and maximum rate and time of discharge or requirements for flow;

3. Requirements for installation and maintenance of inspection and sampling facilities and equipment;

4. Best management practices to control specific pollutants as necessary to meet the objectives of this chapter;

5. Compliance schedules;

6. Requirements to reapply for a new permit prior to expiration of the existing permit;

7. Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works;

8. Closure requirements for permitted facilities undergoing partial or complete closure activities to ensure closure activities are completed and wastes have been properly disposed and remaining access to the POTW are protected; and

9. Other conditions as deemed appropriate by the director to ensure compliance with all applicable local, state and federal rules and regulations.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.080 Industrial wastewater discharge permit modification.

The notification of an industrial wastewater discharge permit modification does not stay any wastewater discharge permit condition. The city may modify an industrial wastewater discharge permit for good cause, including, but not limited to, the following reasons:

A. To incorporate any new or revised federal, state, or local pretreatment standards or pretreatment requirements or to reflect changes in applicable state or federal standards;

B. To address significant alterations or additions to the industrial user's operation, processes, or wastewater volume or character since the time of the wastewater discharge permit issuance;

C. A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

D. Information indicating that the permitted discharge poses a threat to the POTW, city personnel, or the receiving waters;

E. Violation of any terms or conditions of the industrial wastewater discharge permit;

F. Misrepresentations or failure to fully disclose all relevant facts in the industrial wastewater discharge permit application or in any required reporting;

G. To reflect a transfer of the facility ownership and/or operation to a new owner/operator;

H. To correct typographical or other errors in the industrial wastewater discharge permit; or

I. Upon request of the permittee, provided such request does not result in a violation of any applicable pretreatment standards or pretreatment requirements, or this chapter.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.090 Industrial wastewater discharge permit revocation.

A violation of the conditions of a permit, or of this chapter or of applicable state or federal regulations shall be grounds for revocation of such permit by the city. Upon revocation of the permit, any wastewater discharge from the affected industrial user shall be considered prohibited and discharge of such wastewater in violation of this chapter. Additional grounds for revocation of a permit include, but are not limited to, the following:

A. Failure of an industrial user to accurately disclose or report the wastewater constituents and characteristics of any discharge;

B. Failure of the industrial user to report significant changes in operations or wastewater constituents and characteristics as required;

C. Refusal of access to the industrial user's premises for the purpose of inspection or monitoring;

D. Falsification of records, reports or monitoring results;

E. Tampering with monitoring equipment;

F. Misrepresentation or failure to fully disclose all relevant facts in the industrial wastewater discharge permit application;

G. Failure to pay fines or penalties;

H. Failure to pay user charges, surcharges, or fees;

I. Failure to meet compliance schedules;

J. Failure to pay the direct costs of all labor, equipment and materials incurred by the city to handle, treat, monitor, sample, test, dispose of or remediate the industrial user's indirect discharge;

K. Failure to provide advance notice of the transfer of business ownership of a permitted facility;

L. Failure to provide required reports, including but not limited to, a wastewater survey, baseline monitoring report, 90-day compliance report, permit application, self-monitoring report or other permit required reports or notifications within the timeframe required by the city; or

M. Violation of any pretreatment standard or pretreatment requirement.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.100 Special agreements and contracts.

No statement contained in this chapter shall be construed as prohibiting special written agreements between the city and any industrial user allowing industrial waste or wastewater of unusual strength or character to be discharged to the POTW, provided said industrial user compensates the city for any additional costs of treatment. Such agreement, however, shall not allow or cause:

A. Any adverse effect to the POTW;

B. A violation of the POTW NPDES permit;

C. A violation of a general or specific prohibition;

D. A Maximum Allowable Industrial Load (MAIL) to be exceeded;

E. A violation of state or federal law or regulation; and

F. Provide any waiver to applicable categorical pretreatment standard.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.110 Recordkeeping.

A. All industrial users shall retain, and make available to city for inspection and copying, all records, reports, monitoring or other data, applications, permits and all other information and documentation required by this chapter including documentation associated with best management practices.

B. Industrial users shall retain such records and shall keep such records available for inspection for at least three years. This recordkeeping period shall be extended automatically for the duration of any litigation concerning the industrial user's compliance with any provision of this chapter, or when the industrial user has been specifically and expressly notified of a longer records retention period by the director.

C. Written reports will be deemed to have been submitted on the date postmarked if mailed by registered or certified mail (return receipt requested). For reports which are not so mailed, the date of receipt of the report by the city shall govern.
(Ord. No. 3496, § 1, 7-10-2018)

14.09.120 Confidentiality of information.

A. All records, reports, data or other information supplied by any person or industrial user as a result of any disclosure required by this chapter or information and data from inspections shall be available for public inspection except as otherwise provided in this section, 40 CFR section 403.14, and the Nevada Public Records law (NRS chapter 239).

B. These provisions shall not be applicable to any information designated as a trade secret by the person supplying such information. "Trade secret" has the meaning ascribed to it in NRS 600A.030. Materials designated as a trade secret may include, but shall not be limited to, processes, operations, style of work or apparatus or confidential commercial or statistical data. Any information and data submitted by the industrial user which is desired to be considered a trade secret shall have the words, "Confidential Business Information," stamped in a reasonably noticeable manner on each page containing such information. The industrial user must demonstrate to the satisfaction of the city that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the industrial user.

C. Information designated as a trade secret pursuant to this section shall remain confidential and shall not be subject to public inspection unless otherwise required or allowed by NRS chapter 239 or other applicable law. Such information shall be available only to officers, employees or authorized representatives of the city charged with implementing and enforcing the provisions of this chapter and properly identified representatives of the EPA and the NDEP.

D. Effluent data from any industrial user whether obtained by self-monitoring, monitoring by the city or monitoring by any state or federal agency, shall not be considered a trade secret or otherwise confidential. All such effluent data shall be available for public inspection.
(Ord. No. 3496, § 1, 7-10-2018)

14.09.130 Sample collection and analytical methods.

A. Sample collection. Compliance determinations with respect to prohibitions and limitations in this chapter may be made on the basis of either grab or composite samples of wastewater as specified by the city. Such samples shall be taken at a point or points which the city determines to be suitable for obtaining a representative sample of the discharge. Composite samples may be taken over a 24-hour period, or over a longer or shorter time span, as determined by the city to meet specific circumstances.

B. Sample type. Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report, and based on data that is representative of conditions occurring during the reporting period.

1. Except as indicated in subsections B.2 and B.3 below, the industrial user must collect representative wastewater samples using 24-hour flow proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is required by the city. Where time-proportional composite sampling or grab sampling is authorized by the city, the samples must be representative of the permitted discharge.

2. Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques. Using protocols (including appropriate preservation) specified in 40 CFR part 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composited samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the city, as appropriate. In addition, grab samples may be required to show compliance with instantaneous local limits, including pH.

3. For sampling required in support of baseline monitoring and 90-day compliance reports required in section 14.09.150, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds for facilities for which historical representative sampling data do not exist. Where historical data are available, the city may authorize a lower minimum. The industrial user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards and pretreatment requirements.

C. Analytical requirements. All pollutant analysis, including sampling techniques, to be submitted as part of an industrial wastewater discharge permit application, report, permit or other analyses required under this chapter shall be performed in accordance with the techniques prescribed in 40 CFR part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the city or other parties approved by the EPA.

D. Records shall include for all samples:

1. The date, exact place, method, and time of sampling and the name of the person(s) taking the samples;

2. The date(s) and time analyses were performed;

3. The name of the person performing the analyses;

4. The analytical techniques/methods used, including method detection limits and QA/QC sample results;

5. All chain-of-custody records; and

6. The results of such analyses.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.140 Right of entry.

A. Whenever it shall be necessary for the purposes of this chapter and at no cost to the city, the city may enter upon any industrial user's facility, property, or premises and shall have ready access to all parts of the premises subject to this chapter for the purposes of:

1. Performing all inspection, surveillance and monitoring procedures necessary to determine, independent of information supplied by industrial users, compliance or noncompliance with applicable pretreatment standards and pretreatment requirements by an industrial user. Compliance monitoring and inspection shall be conducted at a frequency as determined by the city and may be announced or unannounced;

2. Setting up on the industrial user's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the industrial user's operations;

3. Examining and copying any records required to be kept under the provisions of this chapter or of any other local, state or federal regulation;

4. The city may use equipment to photograph, video or otherwise document any areas of the facility as deemed necessary for carrying out the duties of the pretreatment program including, but not limited to, documentation of the industrial user's compliance status and for reinforcement of required written reports. The industrial user shall be allowed to review copies of photographs or videos for confidentiality claims;

5. Inspecting any monitoring equipment or method, pretreatment system equipment and/or operation;

6. Sampling any discharge of wastewater into POTW; and/or

7. Inspecting any production, manufacturing, fabricating or storage area where pollutants, regulated under this chapter, could originate, be stored, or be discharged to the POTW.

B. The occupant of such property or premises shall render all proper assistance in such activities at no cost to the city. Where an industrial user has security measures in place which require proper identification and clearance before entry into its premises, the industrial user shall make necessary arrangements with its security personnel so that authorized representatives of the city will be permitted to enter without delay to perform their specified functions.

C. Failure to allow entry or unreasonable delays: In the event the city or other duly authorized representative of the city is refused admission or unreasonably delayed, such refusal or delay is a violation of this chapter and may result in enforcement action as allowed for under this chapter including revocation of the industrial wastewater discharge permit.

D. Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the industrial user at the written or verbal request of the director and shall not be replaced. The costs of clearing such access shall be borne by the industrial user.

E. The director shall have the right to utilize any or all remedies and enforcement actions set forth in this chapter, other provisions in the HMC, or otherwise permitted by applicable law or regulation.

F. Search warrants. If the city has been refused access to a facility, property, or premises, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this chapter or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the city designed to verify compliance with this chapter or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, the director may seek issuance of a search warrant from the Henderson Municipal Court or another court of competent jurisdiction.
(Ord. No. 3496, § 1, 7-10-2018)

14.09.150 Reporting and notification requirements.

A. *Industrial monitoring reports (IMR)—All significant industrial users.*

1. Any significant industrial user or other industrial user required by the city, subject to a federal, state, or city pretreatment standard or pretreatment requirement must submit reports, at a frequency determined by the city but no less than once per six months, indicating the nature, concentration of pollutants in the discharge which are limited by pretreatment standards, including reporting of mass where applicable, and the average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with best management practices or pollution prevention alternatives, the industrial user must submit documentation required by the city or the pretreatment standard necessary to determine compliance status of the industrial user. All industrial monitoring reports must be signed and certified in accordance with subsection 14.09.150.H.

2. For industrial users subject to equivalent mass or concentration limits established by the city, the IMR shall contain a reasonable measure of the industrial user's long term production rate. For all other industrial users subject to categorical pretreatment standards expressed only in terms of allowable pollutant discharge per unit of production (or other measure of operation), the IMR shall include the industrial user's actual average production rate for the reporting period.

3. All wastewater samples must be representative of the industrial user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of an industrial user to keep its monitoring facility in good working order shall not be grounds for the industrial user to claim that the sample results are unrepresentative of its discharge.

4. If an industrial user monitors any regulated pollutant at the appropriate sampling location more frequently than required by the city, using the methods and procedures prescribed in section 14.09.130, the results of this monitoring shall be included in the report.

5. The sampling and analyses required for the reporting outlined above may be performed by the city in lieu of the permittee. Where the city itself makes arrangements with the industrial user to collect all the information required for the report, the industrial user will not be required to submit the report.

B. *Baseline monitoring reports—Categorical industrial users.*

1. Within either 180 days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR section 403.6(a)(4), whichever is later, existing industrial users currently

discharging to or scheduled to discharge to the POTW shall submit to the city a report which contains the information listed in subsection B.2 below. At least 90 days prior to commencement of their discharge, new sources, and sources that become categorical industrial users subsequent to the promulgation of an applicable categorical pretreatment standard, shall submit to the city a report which contains the information listed in subsection B.2 below. A new source shall report the method of pretreatment it intends to use to meet applicable pretreatment standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged from regulated process streams and other non-process streams.

2. Industrial users described above shall submit the information set forth below.

a. All information required in subsection 14.09.060.F.

b. Measurement of pollutants.

(1) The industrial user shall take a minimum of one representative sample to compile the data necessary to comply with the requirements of this subsection.

(2) Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment, the industrial user should measure the flows and concentrations necessary to allow use of the combined wastestream formula in 40 CFR section 403.6(e) in order to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR section 403.6(e) this adjusted limit along with supporting data shall be submitted to the city.

(3) Sampling and analysis shall be performed in accordance with section 14.09.130.

(4) The city may allow the submission of a BMR which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures.

(5) The BMR shall indicate the time, date, and place of sampling and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

(6) Signature and report certification. All baseline monitoring reports must be signed in accordance with subsection 14.09.150.H and signed by an authorized representative as defined in subsection 14.09.010.A.

C. *Ninety-day compliance reports—Categorical industrial users.*

1. New sources: All new sources subject to existing categorical pretreatment standards shall submit a report to the city within 90 days from the date of first discharge to the POTW demonstrating actual and continuing compliance with those standards.

2. Existing sources: All existing sources required to comply with newly promulgated categorical pretreatment standards shall submit a report to the city within 90 days of the date on which compliance is required with those standards demonstrating that actual and continuing compliance with such standards has been achieved.

3. Such 90-day compliance report shall contain at a minimum the information required in subsections 5., 6., 7., 10., 11., 12. and 13. of subsection 14.09.060.F.

D. *Twenty-four-hour notice and 30-day re-sampling.* If sampling performed by an industrial user indicates a violation of this chapter, the industrial user shall notify the city within 24 hours of becoming aware of the violation. The industrial user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the city within 30 days after becoming aware of the violation. The industrial user is not required to resample if the following occurs:

1. The city performs sampling at the industrial user's facility at a frequency of at least once per month.

2. The city performs sampling at the industrial user's facility between the time when the IU performs its initial sampling and the time when the industrial user receives the results of this sampling. Although it is the sole responsibility of the industrial user to verify if the city has performed this sampling, the city will make reasonable efforts to provide industrial user with notice that the city will perform or has performed such sampling.

E. *Slug and spill discharges—Notification and plan development.*

1. Each industrial user shall provide protection from spills and slug discharges of pollutants regulated under this chapter. Facilities to prevent the discharge of spills or slug discharges shall be provided and maintained at the industrial user's expense.

2. Each permitted IU shall report all slug discharges, including any discharge that would violate a prohibition of section 14.09.030.

3. The city shall evaluate whether each significant industrial user needs a slug/spill discharge control plan or other action to control spills and slug discharges. The city may require an industrial user to develop, submit for approval, and implement a slug/spill discharge control plan or take such other action that may be necessary to control spills and slug discharges.

4. A slug/spill discharge control plan shall address, at a minimum, the following:

a. Detailed plans (schematics) showing facility layout and plumbing representative of operating procedures;

b. Description of contents and volumes of any process tanks;

c. Description of discharge practices, including non-routine batch discharges;

d. Listing of stored chemicals, including location and volumes;

e. Procedures for immediately notifying the city of any spill or slug discharge. It is the responsibility of the industrial user to comply with the reporting requirements in subsection 14.09.150.F;

f. Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response; and

g. Any other information as required by the city.

5. Notice to employees. A notice shall be permanently posted on the industrial user's bulletin board or other prominent place advising employees who to call in the event of an accidental or slug discharge. Employers shall ensure that all employees who work in any area where an accidental or slug discharge may occur or originate are advised of the emergency notification procedures.

F. *Reports of potential problems—Slug discharges.*

1. In the case of any changes at its facility affecting potential for a slug discharge as defined in subsection 14.09.010.A, the industrial user shall immediately (but no later than 24 hours after such a change) email and telephone to notify the city of the incident. This notification shall include:

a. Name of the facility;

b. Location of the facility;

c. Name of the caller;

d. Date and time of discharge;

e. Date and time discharge was halted;

f. Location of the discharge;

g. Estimated volume of discharge;

h. Estimated concentration of pollutants in discharge;

i. Corrective actions taken to halt the discharge; and

j. Method of disposal, if applicable.

2. Within five working days following such discharge, the industrial user shall, unless waived by the city, submit a detailed written report that includes all of the information contained in subsection F.1 above and any other information describing the cause(s) of the discharge and the measures to be taken by the industrial user to remediate the discharge and prevent similar future occurrences. Such notification shall not relieve the industrial user of any expense, loss, damage, or other liability which might be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the industrial user of any fines, penalties, or other liability which may be imposed pursuant to this chapter.

G. *Reports for other industrial users.* If the city deems it necessary to assure compliance with provisions of this chapter, any industrial user of the POTW may be required to submit an industrial wastewater discharge permit application, questionnaire or other reports and notifications in a format and timeframe as specified by the city.

H. *Signatory certification.* All reports and other submittals required to be submitted to the city shall include the following statement and signatory requirements.

1. The authorized representative of the industrial user signing any application, questionnaire, any report or other information required to be submitted to the city must sign and attach the following certification statement with each such report or information submitted to the city.

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to ensure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or the persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of a fine and imprisonment for knowing violations."

2. If the authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of this section and provided by an authorized representative that meets the definition in subsection 14.09.010.A must be submitted to the city prior to or together with any reports to be signed by the current authorized representative.

I. *Compliance schedules.* Should any schedule of compliance be established in accordance with the requirements of this chapter, the compliance schedule shall be as specified in subsection 14.09.060.F.10.

J. *Change in discharge or operations.*

1. Every permitted industrial user shall file a notification with the city a minimum of 14 days prior to any planned significant change in operations or wastewater characteristics. A significant change shall be a change equal to or greater than 20 percent in the mass of a pollutant or volume of flow discharged to the POTW. In addition, this notification shall include changes to:

a. Adding or removing processing, manufacturing or other production operations;

b. New pollutants used which may be discharged; and

c. Changes in the listed or characteristic hazardous waste for which the industrial user has submitted or is required to submit information to the city under this chapter and 40 CFR section 403.12(p).

2. Known or anticipated facility closure. The industrial user is required to notify the city at least 30 days prior to facility shutdown or closure which might alter the character, nature, quality, or volume of its wastewater if that shutdown or closure would cause a violation of an applicable pretreatment regulation.

K. *Notification of the discharge of hazardous waste.*

1. Any industrial user shall notify the city, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be hazardous waste. Such notification to the city shall be made within the appropriate time frames specified in subsections 14.09.150.D, 14.09.150.F, and 14.09.150.J or within 24 hours of becoming aware of the discharge, whichever is shorter.

Such notification must include:

a. The name of the hazardous waste as set forth at 40 CFR part 261;

b. The EPA hazardous waste number;

c. The type of discharge (continuous, batch, or other);

d. An identification of the hazardous constituents contained in the wastes;

e. An estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month;

f. An estimation of the mass of constituents in the wastestream expected to be discharged during the following 12 months;

g. Certification that the industrial user has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical; and

h. Signatory certification as required by subsection 14.09.150.H.

2. Any industrial user shall notify the EPA Regional Waste Management Division Manager, and state hazardous waste authorities, in writing, of the discharge into the POTW of a substance which, if otherwise disposed of, would be hazardous waste and meets the reporting criteria specified at 40 CFR section 403.12(p). Notification to the state and EPA is the responsibility of the industrial user and shall be made as required under 40 CFR section 403.12(p). The industrial user shall copy the city on all notifications made to the state of Nevada and EPA.

3. In the case of any new regulation under RCRA identifying additional characteristics of hazardous waste or listing any additional substance as hazardous waste, the industrial user must notify the city, the EPA Regional Waste Management Division Director, and state hazardous waste authorities of the discharge of such substance within 90 days of the effective date of such regulations.

4. This provision does not create a right to discharge any substance not otherwise allowed to be discharged by this chapter, a permit issued hereunder, or any applicable federal or state law.

L. *Requests for information.*

1. A permittee shall furnish to the city, within the timeframe set by the director, any information which the city may request to determine whether cause exists for modifying, revoking, and reissuing, or terminating an industrial wastewater discharge permit, or to determine compliance with the industrial wastewater discharge permit or this chapter. A permittee shall also, upon request, provide to the city, within the timeframe required by the director, copies of any records that are required by the industrial wastewater discharge permit or this chapter.

2. When requested by the city, any industrial user shall submit information to the director regarding industrial processes, nature and characteristics of wastes and wastewaters generated at the industrial facility, method of disposal of wastes, or other information required by the director to meet the responsibilities under this chapter, state law, and 40 CFR part 403. Failure to provide information within the timeframe specified shall be a violation of this chapter.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.160 Sector control programs.

A. *General requirements.*

1. *Authority.* By ordinance, the city may establish specific sector control programs for industrial users to control specific pollutants as necessary to meet the objectives of this chapter. Pollutants subject to these sector control programs shall generally be controlled using best management practices.

2. *Facility identification and compliance.* The city shall implement procedures to identify industrial users for inclusion into applicable sector control programs. Once identified and included into one or more sector control program, the facility shall be required to comply with the applicable sector control program requirements.

3. *Notification to the city by the industrial user and management review.* The city shall review new construction and existing facilities undergoing any physical change, change in ownership, change in operations, or other change that could change the nature, properties, or volume of wastewater discharge, to ensure that current sector control program requirements are incorporated and implemented.

The industrial user shall inform the city prior to:

a. Sale or transfer of ownership of the business;

b. Change in the trade name under which the business is operated;

c. Change in the nature of the services provided that affect the potential to discharge sector control program pollutants; or

d. Remodeling of the facility that may result in an increase in flow or pollutant loading or that otherwise requires the facility to submit plans or specifications for approval through a building or zoning department, or any other formal approval process of a city, county or other jurisdiction.

4. *Inspections.*

a. The city may conduct inspections of any facility with or without notice for the purpose of determining applicability and/or compliance with sector control program requirements.

b. If any inspection reveals non-compliance with any provision of a sector control program requirement, corrective action shall be required pursuant to the applicable sector control program.

c. Inspection results will be provided in writing to the facility upon request.

5. *Closure.* The city may require closure of plumbing, treatment devices, storage components, containments, or other such physical structures that are currently not

being used to discharge to the POTW. Closure may include the removal of equipment, the filling in and/or cementing, capping, plugging, etc. of such physical structures.

6. *Enforcement and compliance.*

a. These requirements form a part of this chapter. Enforcement of this regulation is governed by the express terms herein and the enforcement provisions of this chapter.

b. Any costs incurred by the city due to interference, damage, pass through, or maintenance necessary in the treatment and/or collection system shall be paid by the industrial user to the city. The city's costs, including costs of time, labor, overhead, benefits, equipment, materials, sampling, monitoring, testing, and treatment expenses, and use of outside resources or services, incurred in rectifying the interference, damage, pass through, or maintenance shall be billed directly to the owner or the industrial user by the city, and such costs shall become part of the total charges due and owing to the city for wastewater service to the industrial user.

B. *Fats, oil and grease best management practices.*

1. Applicability: These best management practices establish requirements for any facility the director determines has the potential to discharge floatable or settleable material. The requirements established in this BMP shall apply to facilities where preparation, manufacturing, processing of food or washing/sanitizing of dishes or equipment occurs. Included food establishments may include, but are not limited to, restaurants, cafes, fast food outlets, pizza outlets, delicatessens, sandwich shops, coffee shops, schools, nursing homes and other facilities that prepare, service or otherwise make foodstuff available for consumption.

2. These facilities shall install and maintain a GGI within 90 days of being notified of such requirement.

3. No food service establishment covered by subsection B.1 above shall discharge or cause to be discharged any wastewater containing free or floating oil and grease, or any discharge containing animal fat or grease by-product in excess of 250 milligrams per liter (250 mg/L). Unless otherwise approved by the director, a food service establishment shall install and properly operate and maintain a GGI, implement all required BMPs and not violate a general or specific prohibition as specified in section 14.09.030.

4. A GGI that was legally and properly installed at an industrial user's facility prior to the effective date of this chapter shall be acceptable as an alternative if such device is effective in removing floatable and settleable material and is designed and installed

is such a manner that it can be inspected and properly maintained. If the director determines at any time that such GGI is incapable of adequately retaining the floatable and settleable material or if it was installed in such a manner that it cannot be inspected and properly maintained, the industrial user shall install a GGI that complies with all city codes within 90 days after being notified of such requirement.

5. Variance.

a. A variance as to the requirements may be granted by the director for good cause. The facility has the burden of proof of demonstrating through data and other information why a variance should be granted. In no case shall a variance result in violation of any pretreatment standard or pretreatment requirement specified in this chapter and applicable to the discharge. The granting of any variance shall be at the sole discretion of the director and may be revoked at their discretion.

b. If a variance is granted, the facility shall institute best management practices and other mitigation measures as specified by the director. These BMPs may include, but not be limited to:

(1) Allow the installation of a HMGI, or continue to allow the use of an HMGI in lieu of installing a GGI, where the HMGI is shown to be effective. If a HMGI is not shown to be effective, the director may require the industrial user to install a GGI.

(2) All sinks and drains which are connected to the POTW shall be equipped with a fixed or removable mesh or screen which shall catch garbage and food debris and prevent it from entering the POTW.

(3) Food grinders are prohibited unless the industrial user installs and properly operates a solids separator prior to discharge to the POTW.

(4) Biological treatment or enzyme treatment shall not be used unless approved by the director. Use of enzymes or other chemical or biological treatment or product that emulsifies or acts to emulsify FOG is prohibited.

(5) An employee training program shall be instituted on a periodic basis and for all new employees on FOG waste management.

(6) Provide quarterly cleaning of its private service line to prevent the buildup of oil, grease and solids or as otherwise specified by the director.

(7) Submit records of the private service line cleaning as specified by the director.

(8) Pay the costs incurred by the city or other jurisdiction for accelerated line cleaning on the sewer line providing service between the facility and the POTW, costs to the city for treating the excess strength waste and any costs for sampling and analysis.

6. General control requirements.

a. A GGI shall be required for the proper handling of liquid wastes which may be harmful to, or cause obstruction in the POTW or cause or contribute to pass through or interference.

b. It shall be the responsibility of the industrial user and/or owner of the property to contact the city for the purpose of obtaining necessary permits for the installation of a grease removal device or any modifications to the facility's plumbing. Written approval from the city must be obtained prior to installation of the interceptor. The time of review and approval of such permits shall in no way relieve the industrial user from the responsibility of producing a discharge acceptable to the city under the provisions of this chapter.

c. The design and sizing of GGIs shall be in accordance with applicable city building codes. The GGI shall be designed, sized, installed, maintained and operated so as to accomplish the intended purpose of intercepting pollutants from the industrial user's wastewater and preventing the discharge of such pollutants to the city's wastewater collection system, including pollutants that result in toxic, noxious or malodorous conditions that create a public nuisance or unsafe working conditions, which endanger life or the environment.

d. Upon change of ownership of any existing facility which would be required to have an interceptor under this chapter, the applicant for sanitary sewer service shall have the burden to demonstrate that a properly sized and functioning GGI is installed.

e. All sinks which are connected to a GGI shall be equipped with a fixed or removable mesh or screen which shall catch garbage and food debris and prevent it from entering the GGI. Food grinders are prohibited unless the industrial user installs and properly operates a solids separator prior to the GGI.

f. The industrial user must ensure interceptors are easily accessible for inspection, cleaning, and removal of FOG.

g. The industrial user must maintain interceptors at their expense and keep them in efficient operating condition at all times by the regular removal of accumulated FOG.

h. Each industrial user that is required to use and maintain a GGI shall keep a record of every time the GGI is pumped, cleaned or repaired. This record shall include the date, the name of the company that pumped or cleaned the GGI and the amount of waste that was removed. Such records shall be maintained on site for at least three years and made available to the director upon request.

The removed contents from any GGI shall be handled by a person licensed to haul such waste and shall be disposed of in accordance with federal, state and local regulations.

7. Required maintenance.

a. GGIs shall be maintained by regularly scheduled cleaning so that they will properly operate as intended to efficiently intercept the fats, oil and grease from the facility's wastewater and prevent the discharge of said materials into the city's POTW. A GGI shall be completely pumped and serviced a minimum of every 90 days, whenever the combined thickness of the floating greases and settled solids is greater than 25 percent of the hydraulic working capacity of the GGI, if an effluent concentration exceeds 250 mg/L, or if toxic, noxious, malodorous conditions create a public nuisance or unsafe working conditions which endanger health.

b. The city may require more frequent cleaning than that prescribed in subsection B.6.a. above. A variance from the requirement in subsection B.6.a. may be obtained if the industrial user can demonstrate through analytical data that less frequent cleaning is sufficient.

c. Maintenance of grease interceptors shall be done in a workmanlike manner only by a business/professional normally engaged in the servicing of such plumbing fixtures.

d. In the event a GGI is not properly maintained by the industrial user, owner, lessee, or other authorized representative of the facility, the city may authorize such maintenance work be performed on behalf of the industrial user. The costs of such maintenance shall be billed directly to the customer on the bill, owner of the premises, or the tenant of the premises at the city's discretion and shall become part of the charges due and owing to the city.

e. Biological treatment or enzyme treatment shall not be a substitute for the servicing of a GGI. Use of enzymes or other chemical or biological treatment or product that emulsifies or acts to emulsify FOG is prohibited.

f. The industrial user must document each pump-out with a waste manifest or trip ticket and kept by the industrial user on site for at least three years.

g. The industrial user must take reasonable steps to assure that all waste is properly disposed of in accordance with federal, state and local regulations (i.e. through a statement certifying proper disposal by the hauler included on the waste manifest or trip ticket for each load).

C. *Sand/oil separator requirements.*

1. These best management practices establish requirements for any facility that has the potential to discharge petroleum oil, mineral oil, cutting oils, non-food grease and solids. All facilities subject to these BMPs must comply with the requirements which include both the requirement for installation and proper operation and maintenance of a separator and other reporting requirements.

2. A sand/oil separator that was legally and properly installed at an industrial user's facility prior to the effective date of this chapter shall be acceptable as an alternative if such device is effective in removing floatable and settleable material and is designed and installed is such a manner that it can be inspected and properly maintained. If the director determines at any time that such sand/oil separator is incapable of adequately retaining the floatable and settleable material or if it was installed in such a manner that it cannot be inspected and properly maintained, the industrial user shall install a sand/oil separator that complies with all city codes within 90 days after being notified of such requirement.

3. Implementation: These sand/oil separator requirements may be implemented by letter, order or permit.

4. General control requirements.

a. A sand/oil separator shall be required for the proper handling of liquid wastes which may be harmful to, or cause obstruction in the POTW or cause or contribute to pass through or interference.

b. It shall be the responsibility of the industrial user and owner of the property, business or industry or an authorized representative of the industrial user to contact the city for the purpose of obtaining a plan review. The plan review shall determine the need, size, location, and other requirements of the interceptor required to control discharges into the POTW. Written approval from the city must be obtained prior to installation of the separator and meet all applicable building codes. The review of such plans and operating procedures shall in no way relieve the industrial user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the city under the provisions of this chapter.

c. Upon change of ownership of any existing facility which would be required to have a separator under this chapter, the applicant for sanitary sewer service shall have the burden to demonstrate that a properly sized and functioning sand/oil separator is installed.

d. Toilets, urinals and similar fixtures shall not discharge through a sand/oil separator. Such fixtures shall be plumbed directly into the building sewer and waste system.

e. The industrial user shall ensure the sand/oil separator is easily accessible for inspection, cleaning, and removal of sand, oils and other accumulated wastes.

f. The industrial user shall maintain separators at their expense and keep in efficient operating condition at all times by the regular removal of waste materials.

g. Each industrial user that is required to use and maintain a sand/oil separator shall keep a record of every time the sand/oil separator is pumped, cleaned, serviced or repaired. This record shall include the date, the name of the company that pumped or cleaned the sand/oil separator and the amount of waste that was removed. Such records shall be maintained on site for at least three years and made available to the director upon request. The removed contents from any sand/oil separator shall be handled by a person licensed to haul such waste and shall be disposed of in accordance with federal, state and local regulations.

5. Required maintenance.

a. Sand/oil separators shall be maintained by regularly scheduled cleaning so that they will properly operate as intended to efficiently intercept the sand and oil from the industrial user's wastewater and prevent the discharge of said materials into the city's POTW. A sand/oil separator shall be completely pumped and serviced at minimum once per 12 months or more frequently as necessary. The industrial user should periodically check the separator for the accumulation of pollutants or solids to avoid exceeding the capacity of the separator.

b. The city may require more frequent cleaning. A variance from this requirement may be obtained when the industrial user can demonstrate with analytical data that less frequent cleaning is sufficient.

c. Maintenance of sand/oil separators shall be done in a workman-like manner only by a business/professional normally engaged in the servicing of such plumbing fixtures.

d. In the event a separator is not properly maintained by the industrial user, owner, or lessee, the city may authorize such maintenance work be performed on behalf of the facility. The costs of such maintenance shall be billed directly to the customer and shall become part of the charges due and owed to the city.

e. The industrial user must document each pump-out with a waste manifest or trip ticket and keep on site for at least three years.

f. The industrial user must take reasonable steps to assure that all waste is properly disposed of in accordance with federal, state and local regulations (i.e. through a statement certifying proper disposal by the hauler included on the waste manifest or trip ticket for each load).

g. Each industrial user that is required to use and maintain a sand/oil separator shall keep a record of every time the sand/oil separator is pumped or cleaned or repaired. This record shall include the date, the name of the company that pumped or cleaned the sand/oil separator and the amount of waste that was removed. Such records shall be made available to the director upon request. The removed contents from any sand/oil separator shall be handled by a person licensed to haul such waste and shall be disposed of in accordance with federal, state and local regulations.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.170 Compliance and enforcement.

A. *Enforcement response plan.* The city may adopt policies and procedures as set forth in the city's pretreatment enforcement response plan for carrying out the provisions of this chapter, provided that such policies and procedures are not in conflict with this chapter or any applicable state or federal law or regulation.

B. *Publication of industrial users in significant noncompliance.* The city shall publish annually, in a newspaper of general circulation that provides meaningful public notice, a list of the significant industrial users which, at any time during the previous 12 months, were in significant noncompliance with applicable pretreatment standards or pretreatment requirements. In addition, any industrial user found to be in significant noncompliance with subsections 3., 4. or 8. below shall also be published in the newspaper. One or more of the following criteria shall be used to define significant noncompliance:

1. Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all of the measurements taken for the same pollutant parameter during a six-month period exceed (by any magnitude) a numeric pretreatment standard or pretreatment requirement, including instantaneous limits.

2. Technical review criteria (TRC) violations, defined here as those in which 33 percent or more of all of the measurements taken for the same pollutant parameter taken during a six-month period equal or exceed the product of the numeric pretreatment standard or pretreatment requirement including instantaneous limits multiplied by the applicable TRC (TRC = 1.4 for BOD_5, TSS, FOG, and 1.2 for all other pollutants except pH).

3. Any other violation of a pretreatment standard or pretreatment requirement (daily maximum, long-term average, instantaneous limit, or narrative standard) that the POTW determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public).

4. Any discharge of a pollutant that has caused imminent endangerment to human health, welfare, or the environment or has resulted in the exercise of the city's emergency authority to halt or prevent such a discharge.

5. Failure to meet, within 90 days after the schedule date a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance.

6. Failure to provide, within 30 days after the due date, required reports such as baseline monitoring reports, compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules.

7. Failure to accurately report noncompliance.

8. Any other violation or group of violations, which may include a violation of best management practices, which the POTW determines may adversely affect the operation or implementation of the pretreatment program.

C. *Administrative enforcement actions.*

1. *Notice of violation (NOV).* Whenever the director finds that an industrial user has violated or continues to violate, any provision of this chapter, an industrial wastewater discharge permit or order issued hereunder, or any other pretreatment standard or pretreatment requirement, the director may serve upon such industrial user a written notice of violation. Within five working days of the receipt of such notice, an explanation of the violation and a plan for satisfactory correction and prevention of further violations shall be submitted to the director. Submission of such a plan in no way relieves the industrial user of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the city to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

2. *Administrative order.* When the city finds that an industrial user has violated, or continues to violate, any provision of this chapter, an industrial wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or pretreatment requirement, the city may issue an administrative order to the industrial user responsible for the discharge directing that the industrial user come into compliance within a specific time. If the industrial user does not come into compliance within the time provided, sewer service may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the POTW. An administrative order may not extend the deadline for compliance established for a pretreatment standard or pretreatment requirement, nor does such an order

relieve the industrial user of liability for any violation, including any continuing violation. Issuance of an administrative order shall not be a bar against, or a prerequisite for, taking any other action against the industrial user.

3. *Consent order.* The city may enter into a consent order, assurances of voluntary compliance, or other similar documents establishing an agreement with any industrial user responsible for noncompliance. Such documents shall include specific actions to be taken by the industrial user to correct the noncompliance within a time period specified by the document. A consent order may include penalties, supplemental environmental projects, or other conditions and requirements as agreed to by the city and the industrial user. A consent order shall have the same force and effect as an administrative order and shall be judicially enforceable.

4. *Show cause hearing.*

a. The director may order an industrial user which has violated, or continues to violate, any provision of this chapter, an industrial wastewater discharge permit or order issued hereunder, or any other pretreatment standard or pretreatment requirement, to appear before the director and show cause why the proposed enforcement action should not be taken. Notice shall be served on the user specifying the time and place for the meeting, the proposed enforcement action, the reasons for such action, and a request that the user show cause why the proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested) at least ten days prior to the hearing. Such notice may be served on any authorized representative of the industrial user. A show cause hearing shall not be a bar against, or prerequisite for, taking any other action against the industrial user.

b. After the director has reviewed the evidence, the director may issue an order to the industrial user responsible for the discharge directing that, following a specified time period, the sewer service be discontinued unless adequate treatment facilities, devices or other related appurtenances have been installed or existing treatment facilities, devices or other related appurtenances are properly operated. Further orders and directives as are necessary and appropriate to correct the violation may be issued.

5. *Cease and desist order.*

a. When the director finds that an industrial user has violated, or continues to violate, any provision of this chapter, an industrial wastewater discharge permit or order issued hereunder, or any other pretreatment standard or pretreatment requirement, or that the industrial user's past violations are likely

to recur, the director may issue a cease and desist order to the industrial user directing it to cease and desist all such violations and directing the industrial user to:

(1) Immediately comply with all requirements; and

(2) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

b. Issuance of a cease and desist order shall not be a bar against, or a prerequisite for, taking any other action against the industrial user.

6. *Administrative fines.*

a. When the director finds that an industrial user has violated, or continues to violate, any provision of this chapter, an industrial wastewater discharge permit or order issued hereunder, or any other pretreatment standard or pretreatment requirement, the director may fine such industrial user in an amount not to exceed $1,200.00. Such fines shall be assessed on a per-violation, per-day basis.

b. Issuance of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the industrial user.

7. *Suspension of service.*

a. Endangerment to health or welfare of the community. Whenever it reasonably appears that such discharge presents an imminent endangerment to the health or welfare of the community, the city may (with or without prior notice) immediately and effectively halt or prevent any discharge of pollutants into any natural waterway, surface drainage within the city, any area under jurisdiction of the city, the POTW of the city or any wastewater system tributary thereto, by any means available to them, including physical disconnection from the POTW.

b. Endangerment to environment or treatment works. The city, after written notice to the industrial user may halt or prevent any discharge of pollutants into any natural waterway, surface drainage within the city, any area under jurisdiction of the city, the POTW, wastewater system tributary thereto, by any means available to them, including physical disconnection from the POTW, whenever such discharge presents or may present an endangerment to the environment or threatens to interfere with the operation of the POTW.

c. Any person notified of a suspension of wastewater service and/or the industrial wastewater discharge permit shall immediately stop or eliminate the contribution. In the event of a failure of the person to comply voluntarily with the

suspension order, the city shall take such steps as deemed necessary including immediate severance of the sewer connection, to prevent or minimize damage to the POTW or endangerment to individuals or the environment. The city may reinstate the industrial wastewater discharge permit and/or the wastewater service upon proof of the elimination of the non-complying discharge.

d. A detailed written statement submitted by the industrial user describing the causes of the harmful contribution and the measures taken to prevent any future occurrence shall be provided to the city within five days of the date of occurrence. Suspension of service shall not be a bar against, or a prerequisite for, taking any other action against the industrial user.

8. *Revocation of industrial wastewater discharge permit.* Pursuant to section 14.09.090, a violation of the conditions of an industrial wastewater discharge permit or of this chapter or of applicable state or federal regulations shall be reason for revocation of such permit by the city. Upon revocation of the permit, any wastewater discharge from the affected industrial user shall be considered prohibited and discharge of such wastewater in violation of this chapter.

9. *Continuous violations.* With respect to violations of this chapter that are continuous with respect to time, each day that the violation continues is a separate violation. With respect to violations of this chapter that are not continuous with respect to time, each prohibited act and/or each failure to perform a required act is a separate violation.

10. *Administrative enforcement: request for reconsideration; appeals.*

a. Any industrial users directly aggrieved by an administrative enforcement action taken by the city under chapter 14.09 may file a request for reconsideration. All requests for reconsideration (1) shall be made by the aggrieved party submitting a written request for reconsideration to the director that identifies the action taken or decision made by the city that the aggrieved party wants to be reconsidered, sets forth in detail the facts supporting the request for reconsideration, and identifies any relief requested; (2) shall be served personally or by registered or certified mail, return receipt requested, on the director; and (3) must be received by the director on or before the tenth day after the city takes the action or makes the decision that the aggrieved party wants to be reconsidered.

b. Within ten days after the director receives a request for reconsideration in accordance with subsection 14.09.170.C.9.a, the director may modify the action taken. Any such modification must be in writing, be made within 20 days

of the director's receipt of that request for reconsideration, and served on the aggrieved party that made the request personally or by registered or certified mail, return receipt requested.

c. If a decision made by the director in accordance with subsection 14.09.170.C.9.b is unsatisfactory to the aggrieved party requesting reconsideration, the aggrieved party may, within ten days after receiving the director's decision, file a written appeal to the city manager with the city clerk. The written appeal shall be decided by the city manager within 30 days from the date of filing, and the city manager's decision shall be deemed to be the final administrative action on such appeal. The director's decision shall remain in effect during such period of appeal.

D. *Public nuisance.* Any condition caused by a user or permitted by a user to exist in violation of any provision of this chapter is a threat to public health, safety, and welfare, and is declared and deemed a nuisance per se.

E. *Judicial enforcement remedies.*

1. *Injunctive relief.* When the city finds that an industrial user has violated, or continues to violate, any provision of this chapter, an industrial wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or pretreatment requirement, the city may petition a court of competent jurisdiction for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the industrial wastewater discharge permit, order, or other requirement imposed by this chapter on activities of an industrial user. The city may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the industrial user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against an industrial user.

2. *Civil penalties.*

a. An industrial user who has violated, or continues to violate, any provision of this chapter, an industrial wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or pretreatment requirement shall be liable to the city for a civil penalty no less than $1,000.00 and not to exceed $10,000.00 per day per violation. With respect to violations that are continuous with respect to time, each day that the violation continues is a separate offense.

b. Filing a lawsuit for civil penalties shall not be a bar against, or a prerequisite for, taking any other action against an industrial user.

3. *Civil/administrative fine pass through.* In the event that an industrial user discharges such pollutants which cause the city to violate any condition of its NPDES permit and the city is fined by the EPA or the state of Nevada for such violation, then such industrial user shall be fully liable for the total amount of the fine assessed against the city by the EPA and/or the state of Nevada.

4. *Criminal penalties.*

a. An industrial user that willfully, knowingly, or negligently violates a provision of this chapter, a provision of any order issued hereunder, a provision of an industrial wastewater discharge permit issued hereunder, a pretreatment standard, or a pretreatment requirement is guilty of a misdemeanor and, upon conviction thereof, shall punishable by a fine not to exceed $1,000.00 per day for each violation and/or by imprisonment in the Henderson Detention Center for not more than six months. In lieu of all or part of the foregoing punishment which may be imposed, the convicted person may be sentenced to perform a fixed period of community service pursuant to the conditions prescribed in NRS 176.087 and, as applicable, to pay restitution in accordance with NRS 176.033. If a corporation is convicted of a violation, the corporation is punishable by a fine not exceeding $1,000.00 and, as applicable, shall pay restitution in accordance with NRS 176.033, unless otherwise provided by law or the code. With respect to violations that are continuous with respect to time, each day that the violation continues is a separate offense. With respect to violations that are not continuous with respect to time, each prohibited act and/or each failure to perform a required act is a separate offense.

b. The city may refer violations that may warrant criminal prosecution to the U.S. Attorney General's Office, State Attorney General, EPA Criminal Investigation Division or other appropriate agency. This referral shall not preclude the city from taking a parallel administrative or civil enforcement action.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.180 Remedies nonexclusive.

The remedies provided for in this chapter are not exclusive of any other remedies that the city may have under the Code or provisions of state or federal law. The city may take any, all, or any combination of these actions against a non-compliant industrial user. Enforcement of violations under this chapter will generally be in accordance with the city's pretreatment enforcement response plan. However, the city may take any other action against an industrial user when the circumstances warrant and may take more than one enforcement action against any non-compliant industrial user.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.190 No waiver.

The failure of the city to discover violations and/or to take action to enforce any requirement, including but not limited to the assessment and collection of applicable charges, surcharges, fees, fines and penalties, shall not constitute a forfeiture or waiver of the city's right to take appropriate action at any time thereafter. This entitlement shall be retained by the city as a condition of service.
(Ord. No. 3496, § 1, 7-10-2018)

14.09.200 Regulation of industrial users from outside jurisdictions.

A. *Outside jurisdictions and inter-local agreements.*

1. In order for the city to effectively implement and enforce pretreatment standards and pretreatment requirements for all industrial users discharging to the POTW and as required by 40 CFR section 403.8(f), the city shall enter into pretreatment ILA with contributing jurisdictions as necessary and as provided in NRS 277.180. Prior agreements shall be unaffected by these requirements until such time as the city determines that modifications are necessary.

2. Prior to entering into an ILA under this section, the city shall seek to obtain the following information from the contributing jurisdiction(s):

a. A description of the quality and volume of wastewater discharged to the POTW by the contributing jurisdiction;

b. An inventory of all sources of indirect discharge located within the contributing jurisdiction that are discharging to the POTW;

c. A requirement that the contributing jurisdiction submit an updated user inventory on at least an annual basis if such jurisdiction has non-domestic users;

d. A requirement that the contributing jurisdiction provide the city with access to all information that the contributing jurisdiction obtains regarding effluent quantity and quality from non-domestic users; and

e. Other requirements as necessary for the city to effectively administer and enforce the pretreatment program.

B. *Industrial users in outside jurisdictions with no ILA in-place.* Until such time as the city and a jurisdiction enter into an ILA for pretreatment program delegation, the city shall have the option to exercise any of the following options:

1. Prohibit the discharge of non-domestic wastewater from an industrial user located in another jurisdiction.

2. Request the jurisdiction to issue a permit or order to the industrial user that is equivalent to the industrial wastewater discharge permit and all pretreatment standards and pretreatment requirements required by the city.

3. Enter into a contract with the industrial user that requires the industrial user to comply with all pretreatment standards and pretreatment requirements within chapter 14.09 and in an industrial wastewater discharge permit issued by the city to the industrial user.

(Ord. No. 3496, § 1, 7-10-2018)

14.09.210 Affirmative defenses to discharge violations.

A. *Bypass.* Bypass is prohibited, and industrial users are subject to and shall comply with all provisions concerning bypass in 40 CFR section 403.17, which provisions and requirements are incorporated into this chapter by reference, including an industrial user's obligation to provide the city (as the control authority) notices. The director may take an enforcement action against an industrial user, however an industrial user shall have any defense available to it under 40 CFR section 403.17, provided it complies with all procedures and requirements in 40 CFR section 403.17 to establish such a defense.

B. *Upset.* An upset shall constitute an affirmative defense to an enforcement action brought for noncompliance with categorical pretreatment standards, provided an industrial user complies with all procedures and requirements in 40 CFR section 403.16 to establish such a defense. The provisions and requirements in 40 CFR section 403.16 are hereby incorporated into this chapter by reference.

C. *Burden of proof.* In any enforcement proceeding, the industrial user seeking to establish a defense under section 14.09.210 shall have the burden of proof.

(Ord. No. 3496, § 1, 7-10-2018)

Chapter 14.12 ELECTRICITY AND NATURAL GAS UTILITIES

Sections:

14.12.010 General provisions.
14.12.020 Authorization.

14.12.010 General provisions.

A. *Purpose and policy.* This chapter sets forth the responsibility, authority, and provisions to ensure compliance with all the requirements of this title for the protection of the public health, safety and welfare of the city's residents.

B. *Scope.* The provisions of this chapter shall apply to all residents of the city, a responsible party operating, maintaining, repairing, relocating, removing, and/or disconnecting the public water system and/or publicly owned treatment works, and/or users of city-provided utilities.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. 2676, § 9, 2008; Ord. 2536, § 69, 2006)

14.12.020 Authorization.

The City of Henderson is authorized to acquire, construct, improve, equip, maintain and operate an electrical and/or natural gas utility within the boundaries of the city.
(Ord. 2536, § 70, 2006)

Chapter 14.14 CONSERVATION

Sections:

14.14.010 General provisions.
14.14.015 Condition of service.
14.14.020 Water waste.
14.14.025 Malfunctioning water distribution facilities or other water loss issues.
14.14.030 Landscape watering restrictions; water budget; possible exemption from landscape watering restrictions for active/programmed recreation turf areas and athletic field turf areas.
14.14.040 Golf courses.
14.14.050 Landscape material restrictions.
14.14.060 Mist systems.
14.14.070 Restrictions on surface, building, equipment, and vehicle washing; splash pads.
14.14.080 Water features.
14.14.090 Swimming pool, spa, and hot tub draining.
14.14.100 Recreational water park.
14.14.110 Artificial lakes.
14.14.120 Drought emergency.
14.14.130 Water use restriction in deed or other written instrument recorded against real property.
14.14.140 Violations.

14.14.010 General provisions.

A. *Purpose, policy, and objectives.* This chapter sets forth responsibility, authority, and provisions to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare. The objectives of this chapter are to maximize the water resources of the Colorado River and groundwater basins, to conserve ground and surface waters, to promote water use efficiency, and to prevent, discourage, and stop water waste.

B. *Scope.* The provisions of this chapter shall apply to (1) all residents of the city, (2) owners, occupants, landscape maintenance personnel, and managers of real property to which the city provides water service or of real property in the city's corporate boundaries, (3) real property to which the city provides water service or real property in the city's corporate boundaries, (4) a person with a property interest in or control over real property to which the city provides water service (such as a homeowners association) or a person with a property interest in or control over real property in the city's corporate boundaries, (5) customers, and (6) any person using or taking water within the city's corporate boundaries, whether or not that water is supplied by the city. Unless inconsistent with the context, any reference to "water" in this chapter is to potable water, reclaimed water, raw water, stormwater, well water, and groundwater.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. The director may delegate any powers granted to or duties imposed upon the director, the city, or the department to a person acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and any enforcement response plan or other procedures established and periodically modified by the department.

E. *Definitions.* In addition to terms defined in chapters 1.03 and 14.01 of the Code, the following terms are defined and used in this chapter: artificial lake (section 14.14.110); building permit for an occupied structure (section 14.14.050); courtyard (section 14.14.050); drought response plan (section 14.14.120); drought-tolerant landscaping (section 14.14.050); front yard (section 14.14.050); lazy river (section 14.14.080); MSS (section 14.14.070); newly-developed property (section 14.14.050); non-residential property (section 14.14.050); rear yard (section 14.14.050); recreational water park (section 14.14.100); residential property (section 14.14.050);responsible person (section 14.14.020); side yard (section 14.14.050); splash pad (section 14.14.070); supervised testing (section 14.14.025); water efficiency plan (section 14.14.100); water feature (section 14.14.080); water waste (section 14.14.020).
(Ord. No. 3905, § 9, 9-13-2022; Ord. 2676, § 10 (part), 2008; Ord. 2536, § 72, 2006)

14.14.015 Condition of service.

As a condition of service, a customer must use water delivered by the city in a manner that promotes water use efficiency, avoids water waste, and is in compliance with the requirements in this chapter. If an existing or new customer wishes to establish or resume water service at a property and that property is not in compliance with the requirements in this chapter, the city may refuse to establish or resume water service to that customer at that property until after that property is brought into compliance with the requirements in this chapter.
(Ord. No. 3905, § 10, 9-13-2022)

14.14.020 Water waste.

A. *Water waste defined.* As used in chapter 14.14, "water waste" means the discharge of water without any practical purpose or use of water in a manner that squanders that water. Water waste is any of the following:

1. Allowing the loss, escape, or excess use of water through a break, leak, or other malfunction in the water distribution facilities on the real property, such as an

irrigation pipe or tubing, the irrigation delivery system, or a water supply line, for any period of time after such escape of water should have been reasonably discovered, as determined by the department.

2. Failing to repair a break, leak, or other malfunction in the water distribution facilities on the real property within 120 hours of being notified by the city of the malfunction or by the deadline set by the city (if any) to repair the malfunction, whichever date is later.

3. Allowing water from a water distribution facility, tank, or water feature on the real property water to flow onto, spray onto, pool on, or run off onto (a) non-irrigated or non-landscaped areas on the real property, (b) adjacent real property, or (c) private or public walkways, roadways, pavement, gutters, alleys, parking lots, or structures.

4. Allowing water from a tank or water feature on the real property to pool on an irrigated or landscaped area on the real property.

5. Watering lawn grass, a garden, a tree, shrubbery, or other vegetation at a time prohibited unless an exemption in section 14.14.030 or section 14.14.040 applies.

6. Watering lawn grass, a garden, a tree, shrubbery, or other vegetation on a day that is not a day in the watering group assignment for the real property or service location unless an exemption in section 14.14.030 or section 14.14.040 applies.

7. Using spray irrigation for any purpose other than to irrigate lawn grass.

8. Failing to comply with a requirement in a water budget.

9. Using landscaping materials other than as allowed in section 14.14.050 and/or imposing landscaping requirements that do not comply with the requirements in section 14.14.050.

10. Using a mist cooling system at a time or on a day other than as allowed in section 14.14.060.

11. Using water to perform surface, building, equipment, or vehicle washing other than as allowed in section 14.14.070.

12. Failing to operate a splash pad installed or modified after January 1, 2023 in compliance with section 14.14.070.

13. Having a water feature unless an exemption in subsection 14.14.080.B applies.

14. Draining or emptying any water from a swimming pool, spa, or hot tub water into the street or any component of the storm drain system other than as allowed in section 14.14.090.

15. Failing, as a recreational water park, to comply with all requirements in section 14.14.100.

16. Having an artificial lake unless an exemption in subsection 14.14.110.B applies.

17. Failing to comply with a requirement in the drought response plan.

18. Failing to comply with a restriction in a deed or other written instrument that limits, restricts, prohibits, or prescribes particular water use or landscaping materials on real property, provided that the deed or other written instrument containing the restriction(s) is recorded against that real property in the Office of the County Recorder of Clark County, Nevada.

For purposes of chapter 14.14, if city provides written notice, including of a malfunction in the water distribution facilities, that notice is deemed received as follows: on the date the door hanger notice or water waste violation flag is placed on the property or premises, if the city uses one or both of these notice methods; on the date the city emails the notice, if the notice is emailed; three days after the notice is deposited with the US Postal Service for mailing, if the notice is mailed by first-class mail; on the date officially recorded as delivered (or delivery refused) according to the record of delivery, if the notice is mailed by certified mail; on the date officially recorded as delivered (or delivery refused) according to the record of delivery, if the notice is delivered by courier; and, on the date the notice is delivered, if the notice is delivered personally.

B. *Water waste prohibited.* To prevent the waste and unreasonable use of water and to promote water conservation and water use efficiency, an owner, occupant, landscape maintenance personnel, or manager of real property in the city's corporate boundaries or of real property to which the city provides water service, a person with a property interest in or control over real property in the city's corporate boundaries, a person with a property interest in or control over real property to which the city provides water service (such as a homeowners association), a customer, and any person using or taking water within the city's corporate boundaries, whether or not that water is supplied by city, (each, a "responsible person") are prohibited from (a) committing water waste and/or (b) allowing water waste to occur on real property that the responsible person controls, has a property interest in, or maintains.

C. *Rebuttable presumption.* Any water waste, together with documentation of that water waste, shall constitute a rebuttable presumption that the water waste occurred and that a responsible person committed or allowed the water waste to occur.

D. *Temporary termination of water service.* The city may temporarily terminate water service to the property or responsible person, as applicable, if (1) a water waste condition exists; (2) the city spoke with, left a message for, or provided written notice (such as with a door hanger notice, water waste violation flag, by email, by letter, or with some other written communication) to a responsible person about that water waste condition; and (3) the water

waste condition was not corrected. Within a reasonable time after the responsible person corrects the condition and pays any required fee to resume water service, the city must resume water service to the property or responsible person, as applicable.

E. *Marker.* The city shall have the right to access real property to identify a water waste condition and to place a water waste violation flag or other marker on or in the real property that identifies that condition.

F. *Corrective action.* If the city has notified the person to make repair or correct the water waste condition and a responsible person fails to repair or correct the water waste condition by the deadline set by the city, then the city (1) may make the necessary repair and take other corrective action to repair or correct the water waste condition, invoice that person for those costs, and, in accordance with the process described in subsection 14.21.040.C, add the invoiced amount to the customer's utility bill as a charge for utility service; (2) terminate water service; and/or (3) impose any other compliance procedure as prescribed in this chapter and/or in chapter 14.21.
(Ord. No. 3905, § 11, 9-13-2022; Ord. 2798, § 5, 1-20-2009)

14.14.025 Malfunctioning water distribution facilities or other water loss issues.

A. A responsible person must not allow the loss, escape, or excess use of water through a break, leak, or other malfunction in the water distribution facilities on the real property for any period of time after such escape of water should have been reasonably discovered, as determined by the department.

B. A responsible person must repair a break, leak, or other malfunction in the water distribution facilities on the real property within 120 hours of knowing, or being notified, of the malfunction or by the deadline set by the city, whichever date is later.

C. A responsible person must not allow water from a water distribution facility, tank, or water feature on the real property water to flow onto, spray onto, pool on, or run off onto (a) non-irrigated or non-landscaped areas on the real property, (b) adjacent real property, or (c) private or public walkways, roadways, pavement, gutters, alleys, parking lots, or structures.

D. A responsible person must not allow water from a tank or water feature on the real property to pool on an irrigated or landscaped area on the real property.

E. A responsible person is exempt from the requirements in subsections 14.14.025.A and 14.14.025.B when performing, or causing to be performed, supervised testing. As used in chapter 14.14, "supervised testing" means supervised operation of an irrigation delivery

system for testing, repair, adjustment, performance assessment, or efficiency assessment by an individual who is physically present on the real property and observing irrigation-delivery-system performance.
(Ord. No. 3905, § 12, 9-13-2022)

14.14.030 Landscape watering restrictions; water budget; possible exemption from landscape watering restrictions for active/programmed recreation turf areas and athletic field turf areas.

A. The landscape watering restrictions and schedules in subsections 14.14.030.B and 14.14.030.C apply to all real property in the city's corporate boundaries and to all real property to which the city provides water service. A customer, or the owner or manager of real property, with functional turf that is either active/programmed recreation turf or athletic field turf that meets certain conditions may seek an exemption to those landscape watering restrictions and schedules by following the process in subsection 14.14.030.G.

B. During the period commencing May 1 and ending August 31, inclusive, of each calendar year, a responsible person must not water lawn grass, a garden, a tree, shrubbery, or other vegetation between the hours of 11:00 a.m. and 7:00 p.m.

C. Water schedule and watering group assignments.

1. A responsible person must water lawn grass, a garden, a tree, shrubbery, or other vegetation in compliance with the schedule in Table 14.14.030a and the watering group assignment for the service location.

Table 14.14.030a
Water Schedule for Irrigation

Period	*Day-of-Week Watering Schedule Restrictions*
Winter (November—February)	One assigned day per week*
Spring (March—April)	Three assigned days per week*
Summer (May—August)	Any day, except Sunday
Fall (September—October)	Three assigned days per week*
*Days specified for the group by the city.	

2. A watering group assignment is based upon the service location, is assigned by the city, and is communicated by the city to each customer.

D. The following are exemptions to the time-of-day and day-of-week watering schedule restrictions:

1. Hand-watering using a hand-held container or positive shut-off nozzle for the purpose of preserving lawn grass, a garden, a tree, shrubbery, or other vegetation; and

2. Irrigating new turf or re-seeding of existing turf, for a period of 30 days from the date of planting or installation, with prior notification to the department customer care center; and

3. Irrigating newly installed lawn grass or irrigating existing lawn grass being overseeded or re-seeded, for a period of 14 days from the date of installation or date of overseeding/re-seeding, as applicable, provided the responsible person provides prior notification to the department customer care center and any overseeding/re-seeding is performed no more than twice each calendar year; and

4. Irrigating commercial nursery stock at a commercial garden or plant nursery, provided that the commercial garden or plant nursery has a valid City of Henderson business license and the licensee or their representative is personally present on the real property at the time the irrigation is taking place to monitor the irrigation operation and maintain compliance with section 14.14.025; and

5. Performing supervised testing.

E. Each responsible person shall ensure compliance with the time-of-day and day-of-week watering restrictions. The department may require that landscape water distribution facilities be modified in a manner to assure compliance with this chapter. This shall include, but not be limited to, the removal of lawn grass or other non-drought tolerant landscaping, or the addition of metered connections to the irrigation system in order to reduce the timeframes for cycling through all irrigation stations. Where additional metered connections are required, such metered connections shall comply with all requirements in title 14 of the code applicable to a new metered service.

F. A responsible person shall not use spray irrigation for any purpose other than to irrigate lawn grass.

G. In addition to or in lieu of any provisions of this section 14.14.030, the department has the right to assign to customers - and a customer, or the owner or manager of the real property receiving water service from the city, may request that the department assign - specific water budgets for any specified period of time and the department may require customers to comply with certain conditions as part of that water budget, including, but not limited to, the amount of water used during a specified period of time, the type of water that can be used, what that water can be used for, compliance with one or more provisions in this section, and automatic or other termination of the water budget. A customer, or the

owner or manager of the real property receiving water service from the city, may request that the department assign a water budget by submitting a signed application to the department on such form and in such format as the department shall require and must comply with all requirements in the department's process, such as providing all information required by the department and demonstrating that the customer made a good faith effort to comply with the requirements in this chapter and was not able to before the department assigns that customer a water budget. The department is not required to approve an application for a water budget. If the department grants an exemption, the customer must submit a signed acknowledgment agreeing to comply with all conditions in the water budget, and the department may terminate the exemption if the customer does not comply with all of those conditions. If a customer exceeds their water budget, that customer must pay for the additional volume of water used at the rate(s) in the department service rules and as outlined in this title. The customer must also pay a surcharge for any water used over the annual water budget amount.

H. Possible exemption from watering restrictions and requirements for an active/programmed recreation turf area or athletic field turf area.

1. A customer, or the owner or manager of real property, (the "applicant") may request that the department grant an exemption to the landscape watering restrictions and schedules in subsections 14.14.030.B and/or 14.14.030.C for the portion of their real property with functional turf that is either active/programmed recreation turf or athletic field turf, provided the applicant meets the following requirements (each, a "requirement"): (a) there is functional turf located on their real property that is either active/programmed recreation turf or athletic field turf; (b) there is no nonfunctional turf on that real property; (c) there are at least two acres of lawn grass within that active/programmed recreation turf area or athletic field turf area; and, (d) the applicant cannot consistently comply with all watering restrictions and sustain public use due to extraordinary public use of that area or to protect the health, safety, and well-being of the public. If the applicant meets all of the requirements, the applicant must submit a signed application to the department on such form and in such format as the department shall require. The applicant must comply with all requirements in the department's process, such as providing all information required to enable the department to evaluate the application. The department is not required to approve an application for an exemption.

2. If the department grants an exemption, the department may require the applicant to comply with certain conditions, the applicant must submit a signed acknowledgment agreeing to comply with all conditions, and - for any reason and with 14

calendar days' written notice to the applicant - the department may terminate the exemption or modify one or more of the conditions in the exemption. Conditions in an exemption may include, but are not limited to:

a. Obtaining and prominently displaying a sign(s) stating that an alternative watering schedule is in use. The city must approve the sign location(s), wording (language, font, and font size), and size.

b. Submitting to the department for approval a spring and fall watering schedule for each active/programmed recreation turf area and athletic field turf area and adhering to the approved schedule. Scheduled spring and fall watering may not exceed seven days out of 14 consecutive days.

c. Submitting to the department for approval a winter watering schedule for each active/programmed recreation turf area and athletic field turf area and adhering to the approved schedule. Scheduled winter watering may not exceed two days per week.

d. Commencing irrigation no earlier than 9:00 p.m. the day prior to the designated day in any department-approved watering schedule for the active/programmed recreation turf area and athletic field turf area.

e. Posting the watering schedule at the facility.

f. Preparing a conservation plan that maximizes outdoor water use efficiency and reduces water use (the "CP") for approval by the department, adhering to the approved plan, submitting periodic reports to the department regarding plan execution, including any gaps and process improvements that could be made, and, at the department's request, modifying that CP.

I. The landscape watering restrictions in section 14.14.030 do not apply to city operations or procedures to the extent variation from such restrictions is necessary to protect the health, safety, and well-being of the public or to preserve city property.
(Ord. No. 3905, § 13, 9-13-2022; Ord. No. 3413, § 1, 6-6-2017; Ord. No. 2909, § 1, 3-15-2011; Ord. 2798, § 5, 1-20-2009)

14.14.040 Golf courses.

A. Golf courses using or taking water within the city's corporate boundaries, whether or not that water is supplied by city, and golf course customers shall comply with all requirements in this chapter. At the department's written request, a golf course property shall provide the department documentation regarding water used for irrigation on that property.

B. Golf course properties shall be on a water budget and allocated a maximum of (1) through December 31, 2023, 6.3 acre feet of water (including potable, raw, reclaimed, and other non-potable water) for each irrigated acre, per calendar year and (2) as of January 1, 2024, 4.0 acre feet of water (including potable, raw, reclaimed, and other non-potable water) for each irrigated acre, per calendar year. To enable the city to determine the total amount of water used for irrigation on the golf course property each year, the department, in consultation with the golf course property's authorized representative, shall identify the means for achieving such determination, where such means shall involve commercially reasonable efforts, with the cost for implementation being the responsibility of the golf course. The department, in consultation with the golf course property's authorized representative, shall determine the irrigated acreage of the golf course. That irrigated acreage will include the golf course play turf, lakes and ponds then-existing within a golf course property, lakes and ponds serving, in total or in part, as a golf-course-property irrigation reservoir, and other outdoor areas on the golf course property that are landscaped, irrigated with an irrigation delivery system, and are not occupied by a structure, walkway, roadway, curb, gutter, pavement, or parking lot. The city may periodically review the area comprising the irrigated acreage at a particular golf course.

C. If a golf course property contests the calculated irrigated acreage determined by the department, the golf course property may provide calculations supported by other methods acceptable to the department. The golf course property may hire an independent consultant, not affiliated with the golf course property, to calculate the irrigated acreage. In any case, however, the department shall make the final determination of the irrigated areas and the irrigated acreage for the golf course property.

D. A golf course property is limited to the total square feet of the golf course play turf area that existed as of September 19, 2022 and shall not increase the golf course play turf area.

E. Exemptions for golf courses.

1. Budgeted water apportionments may be used on the golf course property to syringe golf course greens without time-of-day or day-of-week restrictions, provided (a)(1) one station at a time is run manually or (2) on large irrigation projects, stations are run using hand-held remote irrigation controllers or computerized central controls, and the individual operating the spray irrigation is present to monitor their operation and (b) water does not flow onto, spray onto, pool on, or run off onto a walkway, bike path, pavement, gutter, street, or drain.

2. Budgeted water apportionments may be used on the golf course property to spray irrigate the golf course play turf without time-of-day or day-of-week restrictions, provided (a) the golf course property and/or golf course customer, as applicable, are in compliance with any and all applicable reclaimed water management plans (formerly referred to as effluent management plans) and reclaimed water use

agreements and (b) water does not flow onto, spray onto, pool on, or run off onto a walkway, bike path, pavement, gutter, street, or drain. The foregoing exemption does not apply to other lawn grass or to other landscaped areas within the golf course property.

3. If a golf course property wishes to re-seed or overseed all or a portion of the golf course play turf, the golf course property must stay within its budgeted water apportionment.

F. If a golf course property exceeds their water budget, that customer must pay for the additional volume of water used at the rate(s) in the department service rules and as outlined in this title. The golf course property must also pay a surcharge for any water used over the annual water budget amount.

G. The city will not serve and a responsible person shall not use potable, reclaimed, or raw water provided by the city for a golf course that was not in existence as of September 19, 2022.

(Ord. No. 3946, § 1, 3-7-2023; Ord. No. 3905, § 14, 9-13-2022; Ord. No. 2909, § 1, 3-15-2011; Ord. 2798, § 5, 1-20-2009)

14.14.050 Landscape material restrictions.

A. As of September 19, 2022, lawn grass is prohibited in any newly-developed property in the city's corporate boundaries and any newly-developed property that is provided any utility service unless that lawn grass (1) is for a public park, a homeowner association-owned or -managed park approved as a park through the city's development process, a public school, a private school, or a cemetery and (2) is functional turf. The foregoing restrictions take precedence over any exception that allows lawn grass in subsection 14.14.050.B and subsection 14.14.050.C.

B. Lawn grass is prohibited on all non-residential properties in the city's corporate boundaries and on all non-residential properties that are provided any utility service unless that lawn grass is functional turf. If nonfunctional turf has been installed on such a non-residential property, the owner of the non-residential property has until December 31, 2026 to remove that nonfunctional turf.

C. The following landscape material restrictions apply to residential properties in the city's corporate boundaries and to residential properties that are provided any utility services:

1. As of January 1, 2004, lawn grass is prohibited in the front yard of a residential property with a detached single-family residential dwelling unit unless lawn grass was installed in that front yard on or before December 31, 2003. If lawn grass was installed in the front yard on or before December 31, 2003, and on or after January

1, 2004 some or all of that lawn grass is removed or is dead, lawn grass is prohibited and cannot be replaced (or re-seeded) in the front yard except in the areas where the lawn grass was originally installed and, in compliance with subsection 14.14.050.G, and that lawn grass is replaced within one year of being removed and/or is re-seeded within one year, as applicable.

2. At any residential property with a detached single-family residential dwelling unit for which a building permit for an occupied structure was issued before September 19, 2022, lawn grass is prohibited in the rear yard, in the courtyard(s), and in the side yards unless all of the following conditions are met: (a) the lawn grass area does not exceed 50 percent of the gross area of the rear yard, courtyard, and side yard areas (collectively, the "yard area") or 100 square feet, whichever is greater; (b) no lawn grass area dimension is less than ten feet; (c) the slope of the lawn grass area is less than 25 percent; and (d) the lawn grass area is graded to prevent runoff except in and to the designated drainage area(s). Based on these restrictions, it is possible that lawn grass cannot be installed in a rear yard, courtyard, and/or side yard.

3. At any residential property with a detached single-unit dwelling for which a building permit for an occupied structure was issued before September 19, 2022 and provided that the property meets all applicable requirements in subsection 14.14.050, (a) as to any lawn grass installed on the property before September 19, 2022, the total lawn grass installed on the property shall not exceed 5,000 square feet, (b) if the total lawn grass installed on the property before September 19, 2022 is greater than 2,500 square feet, additional lawn grass shall not be installed on the property, and (c) if the total lawn grass installed on the property before September 19, 2022 is less than 2,500 square feet, additional lawn grass may be installed on the property up to a maximum of 2,500 square feet of lawn grass in total on the property. At any residential property with a detached single-unit dwelling for which a building permit for an occupied structure was issued on or after September 19, 2022, consistent with subsection 14.14.050.A, lawn grass is prohibited on the property.

4. At any multifamily and single-family attached residential property in the city's corporate boundaries and at any multi-family and single-family attached residential property that is provided any utility service, lawn grass is prohibited unless it is resident area turf and is functional turf. If nonfunctional turf has been installed on such a residential property, the owner of the residential property has until December 31, 2026 to remove nonfunctional turf.

D. As of December 9, 2020, if property is located in the out of valley area, then lawn grass may only be installed in a public park, a homeowner association-owned or -managed park approved as a park through the city's development process, a public school, or a private school and that lawn grass must be functional turf. However, the restrictions in the immediately preceding sentence do not apply to a property that, on December 9, 2020, (1)

is in the city's corporate boundary and (2) is either (a) in a residential development or within residential zoning, or (b) subject to an approved developer-initiated master plan that includes residential properties. All lawn grass installations in the out of valley area must be in compliance with all applicable requirements in this chapter 14.14.

E. Use of drought-tolerant landscaping in any landscaped area is encouraged. Other than in the yard area at a residential property with a detached single-family residential dwelling unit for which a building permit for an occupied structure was issued before September 19, 2022, drought-tolerant landscaping shall not be removed from a property for the purpose of installing lawn grass.

F. Any person(s) or association(s) regardless of date of establishment is prohibited from imposing private covenants, conditions, restrictions, deed clauses or other agreements between the parties that require the installation of lawn grass, prevent the removal of lawn grass or prevent the use of drought-tolerant landscaping. In addition, such person(s) and association(s) may not prohibit landscaping materials and designs solely on the basis that they make use of drought-tolerant landscaping.

G. In the instance where lawn grass is originally installed in an area in conformance with the code, all or a portion of the lawn grass in that area is dead, and lawn grass would otherwise be prohibited in that area by a provision in section 14.14.050, the lawn grass that is dead may be replaced with lawn grass or re-seeded only if such replacement or re-seeding occurs within one year of that lawn grass being dead. After that one-year period ends, replacement or re-seeding of that dead lawn grass is prohibited and lawn grass is no longer allowed in that area. For the purposes of determining the one-year period for re-seeding or replacement, such determination shall be at the sole discretion of the department.

H. As used in chapter 14.14:

1. "Building permit for an occupied structure" means a building permit to newly construct a structure that will be occupied after passing a building final inspection.

2. "Courtyard" means an area on a residential property with a detached single-family residential dwelling unit that is open to the sky, is not part of the habitable structure, is unobstructed by a structure from the ground upward, and is not the front yard, side yard, or rear yard. An area is still a courtyard even if covered by a shade structure.

3. "Drought-tolerant landscaping" means a plant that that can be adapted to the desert environment in the Southern Nevada area because it is tolerant of heat, cold and wind, water efficient, low-maintenance, noninvasive, pest and disease resistant, and can survive using (at most) only low-volume, drip irrigation. Examples of drought-tolerant landscaping can be found in the Water Smart Landscapes Program Plant List, as amended, developed by SNWA and Southern Nevada Regional Planning Coalition and are generally identified as "bulletproof" on that list.

4. "Front yard" means the yard area extending along the entire length of the front property line and the depth between the street right-of-way line and the front façade or façades of the primary structure of a detached single-family residential dwelling unit.

5. "Newly-developed property" means non-residential property or residential property that is being developed through the construction of a residential, commercial, or

industrial structure(s) and that property either was not previously developed or is being redeveloped (i.e. a majority of the structure(s) is being removed or was otherwise destroyed and is being replaced with new construction).

6. "Non-residential property" means a parcel of real property that does not meet the definition of residential property.

7. "Rear yard" means the yard area extending along the entire length of the rear property line and the depth between the rear property line and the rear façade or façades of the primary structure of a detached single-family residential dwelling unit.

8. "Residential property" means a parcel of real property on which a multi-family residential unit (such as apartment building), an attached single-family residential dwelling unit (such as a townhouse or condominium), or a detached single-family residential dwelling unit has been constructed.

9. "Side yard" means the yard area extending from the front yard to the rear yard and between the side property line and the primary structure of a detached single-family residential dwelling unit.

I. If all or a portion of lawn grass originally installed on or before December 31, 2026 does not meet the definition of functional turf, the responsible person may apply to SNWA for a waiver of a prohibition in subsection 14.14.050.B. By electronic mail, mail, or other delivery method specified by the department and by the deadline identified by the department, the responsible person shall provide the department: (1) a copy of that waiver application and documentation that shows the application was submitted to SNWA; (2) an update(s) regarding the status of the application; (3) a copy of SNWA's decision on the waiver application and any waiver granted by SNWA; (4) an update(s) regarding the status of any appeal of SNWA's decision on the waiver application; and, (5) a copy of the decision regarding any appeal. The foregoing waiver process does not apply to a residential property with a detached single-family residential dwelling unit. Except for a waiver granted by the SNWA that allows lawn grass where all or a portion of that lawn grass does not meet the definition of functional turf, there shall be no waivers, exemptions, or variances granted to the standards listed in this section 14.14.050 and any such request shall be considered a request to amend the requirements of this section.

(Ord. No. 3905, § 15, 9-13-2022; Ord. 2798, § 5, 1-20-2009; Ord. No. 2951, § 3, 12-20-2011)

14.14.060 Mist systems.

A. A mist cooling system on real property in the city's corporate boundaries or on real property to which the city provides water service may only operate March 1 through October 31. In addition, a mist cooling system at a commercial property on such real property may only operate during hours in which the business is open to the public.

B. Operation of a mist cooling system for animal safety is not restricted.

(Ord. No. 3905, § 16, 9-13-2022; Ord. No. 3413, § 2, 6-6-2017; Ord. 2798, § 5, 1-20-2009)

14.14.070 Restrictions on surface, building, equipment, and vehicle washing; splash pads.

A. *Surface, building, and equipment washing.*

1. Surface, building, and equipment washing (excluding motor vehicles) at a non-residential property in the city's corporate boundaries and on real property to which the city provides water service is prohibited unless (a) the water is contained on site (i.e. does not flow off that property) or is discharged to a municipal sewer system that has the ability to treat and discharge that treated water to Lake Mead (the "MSS") through approved methods as determined by the city and (b) there is no violation of any other applicable code requirement, such as a requirement in title 13 of the Code.

A responsible person shall not perform surface or building washing more often than once each calendar month other than to remediate a condition on the property for the protection of public health, safety, or welfare. If the responsible person is remediating a condition, then that responsible person must provide the city documentation of that condition, at the department's request.

2. If a person performs surface, building, or equipment washing (including motor vehicles) at a residential property in the city's corporate boundaries or on residential property to which the city provides water service, that person must use a positive shut-off nozzle and comply with any other applicable code requirements, such as those in title 13 of the code.

B. *Vehicle washing.*

1. Washing a non-commercial vehicle at a residential property in the city's corporate boundaries or on real property to which the city provides water service is limited to one day per week with the use of a positive shut-off nozzle.

2. A commercial vehicle may only be washed at a commercial facility (including a commercial car wash business) where water is contained on site or discharged to the MSS through approved methods, as determined by the city, and a high-pressure, low volume sprayer (or spray system) is used.

3. A commercial car wash business (including mobile and stationary operations) with a valid City of Henderson business license may wash commercial and non-commercial vehicles and must use a high-pressure, low volume sprayer (or spray system) that uses less than ten gallons of water per vehicle.

4. Charitable car washes performed by a nonprofit group, charity fund raiser, or school group are permissible only when:

a. High-pressure, low volume sprayers (or spray systems) are used; and

b. Less than ten gallons of water per vehicle is used; and

c. Any other applicable code requirements, such as those in title 13, are complied with.

C. *Splash pads.*

1. A splash pad installed or modified after January 1, 2023, may only be operated if it meets the following requirements:

a. The splash pad is designed and operated in a manner that prevents surface water run-on from the area adjacent to and surrounding the splash pad from entering the MSS; and

b. The majority of the water dispersed in connection with operation of the splash pad is discharged into the MSS through an approved method (as determined by the city); and

c. In compliance with any applicable requirement in title 13 and any other applicable code requirement, any other water, including surface water run-on from the area adjacent to and surrounding the splash pad, is diverted to the storm drain system; and

d. The splash pad automatically shuts off after five minutes; and

e. When the splash pad is not in use, the splash pad drainage area is covered to prevent stormwater and other substances from entering the MSS; and

f. The splash pad is located in any of the following: a public park, a recreational water park, a homeowner association-owned or -managed property, a residential property (provided the splash pad is not located in the front yard), a school, a daycare, a recreation center, a senior center, a mixed-use development, a government facility, or a religious institution; and

g. The method used to discharge splash pad water to the MSS is regularly maintained and replaced as necessary to maintain operational efficiency and pollutants (defined in section 14.09.010) are not discharged to the MSS through that connection.

2. As used in chapter 14.14, "splash pad" means an outdoor water play area intended for human contact that has potable water typically dispersed by sprinklers, fountains, nozzles, or other devices that spray, mist, or dump that water and that diverts

the dispersed water through an approved method (as determined by the city) into the MSS so that the play area is continuously drained and, as a result, has little or no standing water.

(Ord. No. 4062, § 1, 3-4-2025; Ord. No. 3905, § 17, 9-13-2022; Ord. No. 3413, § 3, 6-6-2017; Ord. 2798, § 5, 1-20-2009)

Editor's note—Ord. No. 3905, § 17, adopted September 13, 2022, changed the title of section 14.14.070 from "Other outdoor water use standards" to "Restrictions on surface, building, equipment, and vehicle washing; splash pads." The historical notation has been preserved for reference purposes.

14.14.080 Water features.

A. A water feature is prohibited on real property in the city's corporate boundaries and on real property to which the city provides water service, unless an exemption in subsection 14.14.080.B applies.

B. The following water features are exempted from the prohibition in subsection 14.14.080.A:

1. Swimming pools, spas, and hot tubs, provided, as to any residential property with an attached or a detached single-family residential dwelling unit:

a. The swimming pool, spa, and/or hot tub is not located in the front yard; and

b. For any swimming pool, spa, and hot tub issued a permit for construction by the city on or after September 19, 2022, the combined water surface area of the swimming pool, spa, and hot tub does not exceed 600 square feet of surface area of water; and

c. For any swimming pool, spa, and hot tub issued a permit for construction by the city before September 19, 2022, the combined water surface area of the swimming pool, spa and hot tub cannot be increased beyond the surface area of water in the permit originally approved or beyond 600 square feet, whichever is greater; and

d. There is at most one swimming pool and one spa or hot tub on that property.

2. A water feature that is necessary and/or a functional component serving at least one of the following uses:

a. An irrigation reservoir for a golf course; or

b. An engineered component of a heat exchanger for a cooling system.

3. A water feature within a climate-controlled, enclosed structure.

4. Not including a swimming pool, spa, or hot tub, a single water feature of not more than 25 square feet of surface area of water upon a residential property with an attached or a detached single-family residential dwelling unit. Regardless of depth,

a lazy river may be a separate water feature or be part of the swimming pool, spa, or hot tub. As used in chapter 14.14, "lazy river" means a channeled flow of water of near-constant depth in which the water is moved by pumps or other means of propulsion to provide a riverlike flow and is usually found in water parks, hotels, resorts, and recreation centers.

5. Not including a swimming pool, spa, or hot tub, a single water feature of not more than 25 square feet of surface area of water within a common area of a residential property with a multi-family residential unit, provided that the feature is not located at an entryway to the property.

6. A water feature that was installed and operating prior to June 9, 2017 or approved or otherwise authorized by the city in a contract with the city in accordance with title 19 of the Code prior to June 9, 2017.

7. A lazy river in a recreational water park.

8. Interactive water play features in a city-operated pool or in a privately owned and maintained pool that is open for general community use.

9. A splash pad.

C. For purposes of calculating the square feet of surface area of water, the square feet of the surface over which water continuously flows or falls, or is designed to continuously flow or fall, shall be included in the calculation of the surface area.

D. As used in chapter 14.14, "water feature" means any artificially constructed or installed stream, lazy river, fountain, waterfall, reflective pool, pond, lake, body of water, waterfall, swimming pool, spa, hot tub, or other artificially constructed or installed feature using water that is located outdoors that:

1. Contains water that flows, is recirculated, or is sprayed into the air; and

2. Was constructed or is used, in whole or in part, for recreational, cooling-off, decorative, scenic, aesthetic, or landscape purposes.

(Ord. No. 3905, § 18, 9-13-2022)

Editor's note—Ord. No. 3905, § 18, adopted September 13, 2022, amended section 14.14.080—14.14.110 in their entirety to read as herein set out. Formerly, sections 14.14.080—14.14.110 pertained to conservation rates, fees, and penalties, manmade decorative water features, pool and hot tub draining, and violations, respectively, and derived from Ord. No. 2798, § 5, adopted January 20, 2009; Ord. No. 2909, § 1, adopted March 15, 2011; Ord. No. 3020, § 1, adopted June 11, 2013, and Ord. No. 3413, §§ 4—6, adopted June 6, 2017.

14.14.090 Swimming pool, spa, and hot tub draining.

A. When submitting an application for a swimming pool or spa permit, the applicant must show an onsite sewer lateral cleanout on the plans and that cleanout must be constructed. Except as otherwise provided in subsection B of this section 14.14.090, swimming pool, spa, or hot tub water shall only be discharged into the MSS through a private connection such as a sewer lateral cleanout, sink, toilet, or bathtub.

B. Exemptions.

1. Real property that is on a septic system may drain water from a swimming pool, spa, or hot tub into the storm drain system, provided the water is dechlorinated, prior notification has been given to the department's customer care center, and such discharge is permitted by and performed in compliance with title 13 of the Code.

2. Where there is limited hydraulic capacity in the MSS, real property that is provided wastewater service by the city may drain water from a swimming pool, spa, or hot tub into the storm drain system, provided the water is dechlorinated, such discharge is allowed by and performed in compliance with title 13 of the Code, and such discharge is authorized by the department.

(Ord. No. 3905, § 19, 9-13-2022)

Note—See editor's note at section 14.14.080.

14.14.100 Recreational water park.

A. Any recreational water park that is on real property to which the city provides water service or on real property in the city's corporate boundaries and that, after September 19, 2022, changes a use at the recreational water park in relation to water used that requires a city-issued permit, license, or other city authorization must comply with the following:

1. The recreational water park must submit to the department a water efficiency plan for review within three months of receiving City's approval of that use change, and, at least once annually thereafter, review its water efficiency plan and, as soon as practicable after its review is completed but not later than December 31 of each year, submit the results of its review and any additions or modifications to its water efficiency plan to the department, and incorporate any changes identified by the department into the water efficiency plan. The department must approve the original plan and any additions or modifications. The recreational water park must implement the approved water efficiency plan.

2. The recreational water park must mitigate water use and, subject to the department's approval, identify methods to mitigate water use in their water efficiency plan. Methods to mitigate water use may include one or more of the following:

a. Installing and maintaining drought-tolerant landscaping, instead of lawn grass, in the landscaped areas of the recreational water park; and

b. Instituting measures to prevent water loss at water play areas at the recreational water park.

B. As used in chapter 14.14:

1. "Recreational water park" means a commercial amusement park with any combination of water play areas intended for human contact such as pools, water slides, splash pads, lazy rivers, artificial surfing, artificial bodyboarding, and/or water playgrounds, as well as areas for floating, wading, or swimming.

2. "Water efficiency plan" means a comprehensive plan conforming to department guidelines that contains information related to a development's consumptive and non-consumptive water demand projections. The plan may include a summary of indoor and outdoor water uses, a description of water fixtures and appliances, cooling systems, misting systems and other water dependent applications, a summary of efficiency measures proposed on site, and methods to mitigate water use.

(Ord. No. 3905, § 20, 9-13-2022)

Note—See editor's note at section 14.14.080.

14.14.110 Artificial lakes.

A. As of September 19, 2022, an artificial lake is prohibited on real property in the city's corporate boundaries and on real property to which the city provides water service, unless an exemption in subsection 14.14.110.B applies.

B. The following are exempted from the prohibition in subsection 14.14.110.A:

1. An artificial lake that was installed and operating prior to June 9, 2017.

2. An artificial lake that was approved or otherwise authorized by the city in a contract with city in accordance with title 19 of the Code prior to June 9, 2017.

3. An artificial lake located on a golf course that is used for the purpose of storing irrigation water for the irrigated acreage at the golf course in conformance with section 14.14.040.

C. As used in chapter 14.14, "artificial lake" means an outdoor body of water that is artificially constructed or installed, is privately owned, is used in whole or in part for a recreational, scenic, aesthetic, or landscape purpose, and is filled, or refilled, with potable water or non-potable water from any source, including lakes, ponds, lagoons, and reservoirs but excluding tank-type reservoirs that are fully enclosed and contained. The term "artificial lake" does not include a water feature or a recreational water park.

(Ord. No. 3905, § 21, 9-13-2022)

Note—See editor's note at section 14.14.080.

14.14.120 Drought emergency.

A. The department is authorized to draft, modify, implement, and enforce a drought response plan. The department shall make that drought response plan publicly available on the city's website.

B. All responsible persons shall comply with the requirements in that drought response plan.

C. As used in chapter 14.14, "drought response plan" means a plan to mitigate the impacts of drought or low Lake Mead water level conditions by requiring customers to reduce, limit, or curtail their demand for and use of city-supplied water generally or through specific types of action (such as not filling a water feature), by prioritizing uses by different customers, and by prohibiting water use.
(Ord. No. 3905, § 22, 9-13-2022)

14.14.130 Water use restriction in deed or other written instrument recorded against real property.

An owner, and any lessee, renter, or occupant, of real property shall comply with all restrictions in a deed or other written instrument that limits, restricts, prohibits, or prescribes particular water use or landscaping materials at that real property, provided that the deed or other written instrument containing the restriction(s) is recorded against that real property in the office of the county recorder of Clark County, Nevada.
(Ord. No. 3905, § 23, 9-13-2022)

14.14.140 Violations.

Any person who commits an act or refuses to correct a condition that is not in compliance with a requirement in this chapter as set forth in any section above, and any responsible person who violates this chapter as set forth below, is subject to discontinuance of service, subject to any penalties and charges assessed in accordance with this title and/or department service rules, and subject to all compliance procedures as prescribed within this title. It is a violation of this chapter for a responsible person to commit water waste and/or allow water waste to occur on real property that the responsible person controls, has a property interest in or maintains by:

A. Allowing the loss, escape, or excess use of water through a break, leak or other malfunction in the water distribution facilities on the real property for any period of time after such escape of water should have been reasonably discovered as determined by the department.

B. Failing to repair a break, leak, or other malfunction in the water distribution facilities on the real property within 120 hours of knowing, or being notified, of the malfunction or by the deadline set by the city, whichever date is later.

C. Allowing water from a water distribution facility, tank, or water feature on the real property water to flow onto, spray onto, pool on, or run off onto (1) non-irrigated or non-landscaped areas on the real property, (2) adjacent real property, or (3) private or public walkways, roadways, pavement, gutters, alleys, parking lots, or structures.

D. Allowing water from a tank or water feature on the real property to pool on an irrigated or landscaped area on the real property.

E. Watering lawn grass, a garden, a tree, shrubbery, or other vegetation at a time prohibited unless an exemption in section 14.14.030 or section 14.14.040 applies.

F. Watering lawn grass, a garden, a tree, shrubbery, or other vegetation on a day that is not a day in the watering group assignment for the real property or service location unless an exemption in section 14.14.030 or section 14.14.040 applies.

G. Using spray irrigation for any purpose other than to irrigate lawn grass.

H. Failing to comply with a requirement in a water budget.

I. Using landscaping materials other than as allowed in section 14.14.050 and/or imposing landscaping requirements that do not comply with the requirements in section 14.14.050.

J. Using a mist cooling system at a time or on a day other than as allowed in section 14.14.060.

K. Using water to perform surface, building, equipment, or vehicle washing other than as allowed in section 14.14.070.

L. Failing to operate a splash pad installed or modified after January 1, 2023 in compliance with section 14.14.070.

M. Having a water feature unless an exemption in subsection 14.14.080.B applies.

N. Draining or emptying any water from a swimming pool, spa, or hot tub water into any component of the storm drain system other than as allowed in section 14.14.090.

O. Failing, as a recreational water park, to comply with the requirements in section 14.14.100.

P. Having an artificial lake unless an exemption in subsection 14.14.110.B applies.

Q. Failing to comply with a requirement in the drought response plan.

R. Failing to comply with a restriction in a deed or other written instrument that limits, restricts, prohibits, or prescribes particular water use or landscaping materials on

real property, provided that the deed or other written instrument containing the restriction(s) is recorded against that real property in the Office of the County Recorder of Clark County, Nevada.

(Ord. No. 3905, § 24, 9-13-2022)

Chapter 14.16 REFUNDING REGULATIONS

Sections:

14.16.010 General provisions.
14.16.020 Cost for infrastructure.
14.16.030 Construction specifications.
14.16.040 Standard refunding.
14.16.050 Special refunding.
14.16.060 Violations.

14.16.010 General provisions.

A. *Purpose and policy.* This chapter sets forth responsibility, authority, and provisions to provide a mechanism for the orderly development of the utility system through refunding of costs associated with the design and construction of utility infrastructure.

B. *Scope.* The provisions of this chapter shall apply to all residents of the city, a responsible party operating, maintaining, repairing, relocating, removing, and/or disconnecting the public water system and/or publicly owned treatment works, and/or users of city-provided utilities.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. 2676, § 11 (part), 2008; Ord. 2536, § 84, 2006)

14.16.020 Cost for infrastructure.

The cost to design and construct any water, sewer, and/or reclaimed infrastructure required in connection with the extension of the public utility system to serve the customer shall be advanced by the customer requesting such service.
(Ord. 2536, § 85, 2006)

14.16.030 Construction specifications.

All utility extensions, facilities and/or infrastructure to be constructed by the customer shall conform to adopted standards.
(Ord. 2536, § 86, 2006)

14.16.040 Standard refunding.

A. *Standard refunding agreements.*

1. The city may enter into an agreement which provides for repayment of a portion of the cost of the main extension lying between the original point of supply and the customer's property from main frontage fees collected from other properties frontage to the main extension covered by such agreement during the term provided in the agreement or until the amount advanced by the customer has been satisfied, as determined in accordance with the provisions of this title and/or the department's service rules.

2. The following items may be eligible for standard refunding:

a. Water, sewer, and reclaimed water main extensions to a project;

b. Water, sewer, and reclaimed water main extensions adjacent to a project; and/or

c. Water, sewer, and reclaimed water mains replacing existing mains.

3. The period during which refunds are due shall be 20 years, commencing on the date when the infrastructure covered by the agreement is completed, tested, and accepted by the city.

4. Construction shall be deemed to be complete when the utility infrastructure is constructed according to the approved plans and satisfies all applicable testing and acceptance criteria.

5. The city council shall grant the director the authority to enter into and execute any standard refunding agreement in which the city is not a participant. Should the city be a participant in a standard refunding agreement, such agreement must be approved according to city standard operating procedures and policies.

B. *Standard refunding conditions.*

1. Application for standard refunding agreement shall be submitted to the department in writing accompanied by documentation as required by the city from customer(s) constructing such infrastructure covered by the agreement. This application shall be submitted within 90 days of date of acceptance by the city of the infrastructure to be covered by such agreement.

2. All customers entering into any refunding agreement with the city shall pay all fees as outlined in this title and/or the department service rules. These fees are due and payable at the time of the execution of the agreement.

3. Customers may be eligible for a refund of main frontage fees collected by the city from other properties in accordance with this title.

4. All standard refunding calculations shall be rounded to the nearest foot and shall be assessed based on the frontage of the applicant's property, as indicated by the most current data in the Clark County assessor office records, adjacent to the right-of-way or easement where the existing water, sewer, or reclaimed water main is located in accordance with this title and/or the department's service rules.

5. After execution of a valid standard refunding agreement, all main frontage fees collected in accordance with this title and/or department service rules shall be paid within 60 days from the date of collection.

6. In the event any expense is incurred by the city within a period of one year after acceptance of the infrastructure installed by the customer covered by a standard refunding agreement due to defective materials or workmanship the amount of such expense shall be deducted from any refund(s) that may become due to the customer thereafter.

(Ord. 2536, § 87, 2006)

14.16.050 Special refunding.

A. *Special refunding agreements.*

1. The city may enter into a special refunding agreement which provides for repayment of a portion of the cost of that backbone infrastructure lying between the original point of supply and the customer's property from special refunding fees to be collected by the city from other customers obtaining direct or indirect service from the backbone infrastructure during the term provided in the special refunding agreement, pursuant to this title, or until the proportional cost of design and construction advanced by the customer has been repaid, whichever is earlier.

2. Any special refunding agreement entered into by the city must be based upon a refunding report completed in accordance with the department service rules and adopted by the city council.

3. The term of any special refunding agreement shall be 20 years, which will commence on the date the infrastructure covered by the special refunding agreement is completed, tested and accepted by the city.

4. Application for special refunding agreement shall be submitted to the director in writing accompanied by documentation as required by the city within 90 days of the date of acceptance of the pre-design report by the city for the infrastructure to be covered by such agreement. All final costs are subject to verification by the city.

5. The amount subject to repayment under a special refunding agreement shall be the amount of the actual cost of the work as verified by the city. The final cost of the

work shall be the basis for the determination and calculation of refunds under the special refunding agreement. Final costs that are eligible for inclusion in the special refunding agreement are:

a. Actual construction costs (including administration and safety and traffic control measures);

b. Design engineering costs and inspection costs not to exceed an aggregate 15 percent of item 5 of this section;

c. Permits and fees;

d. Performance and related bond costs to the extent not included in item 5 of this section;

e. Actual financing costs related to subsections (A)(5)(a) through (A)(5)(d) of this section. Said financing costs shall be computed through the date of final acceptance of the backbone infrastructure by the city; and

f. All fees and expenses reasonably incurred concerning the preparation of the special refunding agreement shall be added to the refunding amount.

6. Construction shall be deemed to be complete when the utility infrastructure is constructed according to the approved plans and satisfies all applicable testing and approval criteria.

B. *Special refunding conditions.*

1. Customers entering into any special refunding agreement with the city shall pay all fees as outlined in this title and/or the department service rules. These fees are due and payable upon execution of the agreement.

2. After execution of a valid special refunding agreement, special refunding fees collected in accordance with this title and/or department service rules shall be paid to the customer within 30 days from the last business day of the quarter in which such fees were collected and will be issued in accordance to the procedures outlined in the department service rules.

3. Special refunding fees collected by the city shall be computed as follows:

a. As to the portion of cost attributable to the holder of the special refunding agreement, advances shall be accrued quarterly with interest equal to one-fourth the prime rate plus two percentage points with a maximum of ten percent per year. The prime rate that is published in the Wall Street Journal or a similar publication approved by the city's finance director for utilization in the refunding report and being the prime rate published at the last business day of each calendar quarter for the subsequent quarter.

b. As to the portion of cost attributable to city, advances shall be accrued quarterly with interest equal to one-fourth the Merrill Lynch Bond Index for tax-exempt 30-year A-rated revenue bonds as printed in the Wall Street Journal or a similar publication approved by the city's finance director for utilization in the refunding report with a maximum of ten percent per year. The rate shall be based upon the index rate published the last business day of each calendar quarter for the subsequent quarter.

c. The amount that makes up the actual final cost of work shall be depreciated annually over 40 years using the straight-line method of depreciation or such time line as recommended and approved in the refunding report. The net book value of the infrastructure shall become the base for purposes of calculating amounts to be refunded and of computing the addition of accrued interest.

4. Special refunding fees, as allocated in the refunding report to a customer, will only be made for utility infrastructure that service areas not only of the customers but areas designated in the approved refunding report.

5. Special refunding fees will be made from fees collected from other customers or the city whose properties are served by the backbone infrastructure and paid prior to final issuance of a certificate of occupancy.

6. In the event two or more customers have designed the same backbone infrastructure, those eligible costs, or an applicable portion thereof, paid by the customer who has submitted a performance bond to the city for construction of the relevant system or facility and has completed said construction shall be refunded.

7. In the event any expense is incurred by the city within a period of one year after acceptance of the infrastructure installed by the customer covered by a special refunding agreement due to defective materials or workmanship on, the amount of such expense shall be deducted from any refund(s) that may become due to the customer thereafter.

(Ord. 2676, § 11 (part), 2008; Ord. 2536, § 88, 2006)

14.16.060 Violations.

Any person who fails or refuses to comply with any provision of this chapter or department's service rules or who provides false information to the city shall be deemed to be in violation of this title and shall be subject to discontinuance of service; subject to any penalties and charges assessed in accordance with this title and/or department's service rules; and subject to all compliance procedures as prescribed within this title.

(Ord. 2536, § 89, 2006)

Chapter 14.17 BILLING REGULATIONS

Sections:

14.17.010 General provisions.
14.17.020 Establishment of service.
14.17.030 Discontinuance of service.
14.17.040 Meter readings and registration.
14.17.050 Billing periods.
14.17.060 Delinquent bills.
14.17.070 Billing adjustments.
14.17.080 Violations.

14.17.010 General provisions.

A. *Purpose and policy.* This chapter sets forth responsibility, authority, and provisions to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare.

B. *Scope.* The provisions of this chapter shall apply to all residents of the city, a responsible party operating, maintaining, repairing, relocating, removing, and/or disconnecting the public water system and/or publicly owned treatment works, and/or users of city-provided utilities.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. 2676, § 12, 2008; Ord. 2536, § 91, 2006)

14.17.020 Establishment of service.

A. *Applications for service.*

1. The property owner or owner's representative shall make application to the department and obtain approval from the city prior to connection to or use of a permanent and/or temporary service. The applicant shall agree to pay for all services used and to abide by all rules and regulations of the city, this title, and the department service rules. Applications for temporary service shall be renewed on an annual basis.

2. The city reserves the right to refuse any request for utility service from any applicant for any of the following reasons:

a. An account in their name at the same or any other location is delinquent;

b. The applicant fails to provide any and all requested information;

c. When the department determines that the purpose of the request is to circumvent discontinuance of service in another name because of non-payment of bill(s), fees, fines, reimbursements or other charges owed to the utility or other violations of the regulations; and/or

d. When the department determines that the applicant has failed to comply with any provisions of this title.

3. A single customer shall be responsible for payment of utility bills for each service connection. When more than one building or parcel of land is served by a single service connection, a single customer must be responsible for payment of the utility bill.

4. The city is not responsible for damage to customer's property and/or piping due to activation of service. Customer shall ensure piping is in good repair and that all interior and exterior fixtures are in the "off" position prior to requesting activation of water service.

(Ord. No. 3023, § 1, 6-11-2013; Ord. 2536, § 92, 2006)

14.17.030 Discontinuance of service.

A. A customer desiring to discontinue service shall provide advance notice to the department and provide a mailing address to which the closing bill shall be mailed. Service and charges will cease as of the discontinuance date provided.

B. Failure to notify the department of discontinuance of service shall not relieve the customer of responsibility for payment of any existing billings, or any charges due prior to notifying the department.

C. The city reserves the right to discontinue service if there is running and/or leaking water on the customer's property during service activation.

(Ord. No. 3023, § 1, 6-11-2013; Ord. 2536, § 93, 2006)

14.17.040 Meter readings and registration.

A. Meters shall be read monthly or as reasonably possible.

B. Customers are responsible for payment of all water that passes through the meter, regardless of whether such water was put to beneficial use.

C. Should a meter be inaccessible at the time of regular reading time, or should it be found to be stuck or damaged so that a reading cannot be obtained, or in cases of emergency as the city deems necessary, the city reserves the right to estimate the water consumption for the billing period and to compute the charges on the basis of the estimated consumption. Should the city determine that a succeeding reading indicates a material error in the estimated reading, an appropriate adjustment shall be made.

D. Meter accuracy shall be maintained to the fullest extent practicable for any meter installed within the city's service area. If there is a dispute, the city may test the meter using the procedures identified in department service rules.

E. At the customer's request, a meter testing fee as outlined in the department service rules will be charged to the customer and the meter will be tested. If the meter is found to register more or less than the actual water flow, the city will, as reasonably practical, make the appropriate billing adjustment. Additionally, if the meter is found to register more than the actual water flow, the meter testing fee will be returned to the customer.
(Ord. 2536, § 94, 2006)

14.17.050 Billing periods.

A. The city shall establish regular billing periods subject to adjustment at the city's discretion.

B. Failure to receive or accept a bill does not relieve a customer of liability for payment of such bill.

C. If any opening or closing bill is for a period other than the regular billing period, the basic monthly service charge shall be prorated based on the actual number of days in the billing period.
(Ord. 2536, § 95, 2006)

14.17.060 Delinquent bills.

A. Bills shall be due and payable upon the applicable due date. When any bill becomes delinquent, the city may discontinue utility service pursuant to notification and termination procedures. Utility service may not be re-established until the delinquent bill and/or all succeeding bills which may have become due, and any applicable charges have been paid.

B. Should any customer fail or refuse to pay for service furnished and charged for in accordance with this title, the city may not provide service to the customer at the same or any other location until all delinquent utility bills, applicable fees and charges have been paid.

C. Until paid, all fees, rates, and charges imposed by title 14 for water service, wastewater service, reclaimed water service, raw water service, or any combination of those services, shall constitute a debt owing to the city by the customer of record and by the owner of such property as shown on the records of the county assessor, if such record owner is someone other than the customer of record. Under subsection 2.280.1(c) of the Charter, such delinquent fees, rates, and charges shall be a lien upon the property to which the service is rendered.

1. The city may collect such delinquent fees, rates, and charges (a) in accordance with NRS 268.043 by having them collected at the same time as, together with and not separately from, Clark County's general taxes by having the city through a designee in its department comply with the requirements in NRS 268.043.1; (b) by perfecting the city's lien upon the property to which service is rendered by filing/recording in the office of the county recorder a notice of lien signed by the city clerk, or the city clerk's designee, that identifies the amount due and unpaid, the name of the record owner(s) of the property, and a description of the real property subject to the lien; (c) through a collection agency, as defined in NRS Chapter 649; (d) directly; (e) through a civil action in any court of competent jurisdiction; and/or (f) through any other means available to the city under applicable law.

2. If the city chooses to collect such delinquent fees, rates, and charges under subsection 1(a) of this section, the city shall have the right to collect all penalties allowable under NRS 268.043 and NRS 361.483.7 from the owner(s) of the real property with respect to which the fees, rates, and charges are delinquent at the time such delinquencies became a lien against that property.

3. If the city chooses to collect such delinquent fees, rates, and charges under subsection 1(b) of this section, no notice of lien shall be recorded against the property by the city unless written notice of the delinquency has been mailed or personally delivered to the record owner of the property at the last mailing address shown by the records of the county assessor and the record owner of the property has been given 15 days to pay the delinquent amount in full. If there is more than one record owner, failure to send a copy of that notice to a particular owner does not invalidate a notice if properly sent to another record owner. An error or mistake in the name of the record owner contained in any notice of lien does not defeat the lien, unless a correction of the notice of lien in a particular instance would prejudice the rights of an innocent bona fide purchaser or encumbrancer for value, but then only with respect to the bona fide purchaser or encumbrancer for value who was prejudiced. The owner(s) of record and/or customer(s) of record must pay the city a service charge, in an amount approved by city council and identified in the department service rules, for a release of the lien filed with the office of the county recorder and any and all recording costs incurred by the city in recording the release

of lien. After the delinquency is fully satisfied or discharged, at the written request of the owner(s) of record or customer(s) of record, and after that owner or customer pays the required fees, the city will cause to be recorded a notice of discharge or release of the notice of lien. After recording the required notice of lien and unless the delinquency is fully satisfied or discharged, the city may foreclose said lien against such property by following the process identified in NRS 108.239, as amended, for the foreclosure of mechanic's liens. Pursuant to section 2.280.1 of the Charter, the lien is coequal with the latest lien thereon to secure the payment of general taxes, the lien is not subject to extinguishment by the sale of any property on account of the nonpayment of general taxes, and the lien is prior and superior to all liens, claims, encumbrances and titles other than the liens of assessments and general taxes. The lien is not extinguished if the city does not commence a foreclosure action.

D. When a customer receiving service at multiple locations allows a bill for one or more locations to become delinquent, and the service for which the bill is delinquent is shut off, then all of the other service locations may be shut off and subject to all applicable fees and charges in accordance with this title and department service rules.

E. When a customer's utility bill is not paid in full on or before the due date, it will be considered delinquent in accordance with the provisions of this title and any and all charges shall be subject to the assessment of late charges as established in the department service rules.

(Ord. No. 3442, § 1, 9-19-2017; Ord. No. 2909, § 2, 3-15-2011; Ord. 2536, § 96, 2006)

14.17.070 Billing adjustments.

Upon notification of a potential billing error, the city will investigate to verify billing accuracy. In no case shall the city make corrections retroactively for a period of more than 12 months. Any adjustments to the customer's account shall be at the discretion of the director.

(Ord. 2536, § 97, 2006)

14.17.080 Violations.

Any person who fails or refuses to comply with any of the provisions in this chapter shall be deemed to be in violation of this title and shall be subject to discontinuance of service, subject to any penalties and charges assessed in accordance with this title and/or department service rules, and subject to all compliance procedures as prescribed within this title.

(Ord. 2536, § 98, 2006)

Chapter 14.18 FEES, RATES AND CHARGES

Sections:

14.18.010 General provisions.
14.18.020 Fees, rates and charges.
14.18.030 Deposits.
14.18.040 System development charges.
14.18.045 West Henderson 2630/2760 PZ water backbone infrastructure rates.
14.18.047 West Henderson-Bermuda wastewater backbone infrastructure rates.
14.18.050 Southern Nevada Water Authority regional connection charge.
14.18.060 Clean Water Coalition regional sewer connection charge and regional sewer user charge.
14.18.070 Southern Nevada Water Authority regional commodity charge.
14.18.075 Approval and application of the Southern Nevada Water Authority drought protection charge.
14.18.080 Approval and application of Southern Nevada Water Authority reliability surcharge.
14.18.085 Approval and application of the Southern Nevada Water Authority infrastructure surcharge.
14.18.090 Main frontage fees.
14.18.100 Chapter 14.14 water budget surcharge.
14.18.110 Charge for taking water without authorization.

14.18.010 General provisions.

A. *Purpose and policy.* This chapter sets forth responsibility, authority, and provisions to ensure compliance with all federal, state, and local requirements for the protection of public health, safety and welfare.

B. *Scope.* The provisions of this chapter shall apply to (1) all residents of the city, (2) a person that operates, maintains, repairs, relocates, removes, and/or disconnects to or from the city's water system and/or publicly owned treatment works, (3) a person who wishes to connect to the city's water system and/or publicly owned treatment works, (4) a user, and (5) a customer.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of this chapter. The director may delegate any powers granted to or duties imposed upon the director, the city, or the department to a person acting in the beneficial interest of the city.

D. *Compliance.* All provisions of this chapter are subject to compliance procedures as outlined in this title and the department service rules.
(Ord. No. 3905, § 25, 9-13-2022; Ord. 2676, § 13 (part), 2008; Ord. 2536, § 100, 2006)

14.18.020 Fees, rates and charges.

A. Per article II, section 2.280(c) of the Henderson City Charter, the Henderson city council shall fix charges and rates for water and wastewater services.

B. Fees, rates and charges shall be billed in accordance with this title and shall be applied as outlined in this title and the department service rules.

C. Final determination of a customer's use or billing category shall be made by the director. All applicable fees and charges shall be assessed accordingly.

D. The assessment and collection of all fees and charges shall be made in accordance with the established procedures of the city, relative to the assessment and collection of those fees and charges. Notwithstanding this requirement, the director reserves the right to determine the manner through which all fees and charges are collected.

E. All fees and charges shall be paid to the city prior to issuance of the certificate of occupancy.

F. Basic service and usage charges.

1. Service connections shall be considered in use and appropriate charges shall be assessed commencing with the date of installation unless the customer has provided advance notice that the connection shall not be used until such time as it is needed. If the customer has provided such advance notice, charges shall commence on the date the service is first turned on by the city.

2. Any service turned on without advance authorization from the city shall be assessed charges based on the date of installation in addition to any other charges or fees.

3. Charges for usage shall be based upon the volume of flow based upon either readings from city approved water meters, approved wastewater flow monitoring equipment or other methods that may be approved by the city.

4. All users shall be charged a monthly basic service charge in addition to any monthly usage charges accrued.

5. Exemptions from basic monthly water and sewer service charge.

a. Upon application to the department, a low-income or permanently disabled person may have their own private residential account exempted from all or a portion of the basic monthly water and sewer service charge, as determined by the department, by qualifying in accordance with the Nevada Energy Assistance Program, or similar program criteria as established by the department.

b. All customers who received an exemption based on income must re-qualify annually to continue receiving that exemption and provide information required by the department to support that exemption.

c. Residents who are senior citizens, received the senior exemption on or before November 1, 1996, and have not changed their place of residence from the residence they were in as of the date they began receiving the senior exemption continue to be eligible to receive an exemption from the basic monthly water and sewer service charge until such time as the customer changes their place of residence.

d. The applicant shall furnish such information as the city may require, supporting their application for an exemption.

G. The city reserves the right to inspect any facility to determine the actual equivalent residential units (ERUs) being contributed to the collection system. Additional sewer system development charges and regional fees may be assessed as a result of the findings. Fees will be based on the current rate in place at the time of verification. Regional fees will be charged if applicable at the time of permit issuance.
(Ord. No. 3831, § 1, 1-4-2022; Ord. No. 2951, § 4, 12-20-2011; Ord. 2798, § 6, 1-20-2009; Ord. 2536, § 101, 2006)

14.18.030 Deposits.

A. The city may require a deposit from any applicant or existing customer in any situation where the city has cause to believe that a deposit is required.

B. The deposit paid to the city shall be held until all equipment has been returned and verified by the city to be in satisfactory working and operational condition with no damages and/or all charges for the service and any damages have been paid.

C. Upon service discontinuance, any applicable deposit shall be credited to the closing bill and any amount remaining shall be refunded to the customer in accordance with this title and department service rules.

D. The customer's deposit may be applied as a credit on the customer's account when 12 months of service have passed and none of the bills become delinquent or applied to the closing bill upon discontinuance of service.
(Ord. 2536, § 102, 2006)

14.18.040 System development charges.

All permits, will be charged water system and sewer system development charges based on the fee and charge scheduled in the department service rules.

For large commercial and/or industrial customers with estimated peak wastewater flows over 100,000 gallons per day (GPD), after one year of full operation, a one-time adjustment may be made based on actual maximum month (30 days) wastewater flows multiplied by

12 months. The annual peak wastewater flows shall be divided by 90,000 gallons to determine the actual ERUs. The actual ERUs shall be multiplied by the single-family resident ERU rate to derive the customer's adjusted SDC. The initial SDC shall be compared to the actual.
(Ord. No. 2909, § 3, 3-15-2011; Ord. 2798, § 6, 1-20-2009; Ord. 2536, § 103, 2006)

14.18.045 West Henderson 2630/2760 PZ water backbone infrastructure rates.

A. Planning and design of water backbone infrastructure for the West Henderson 2630 Pressure Zone and the West Henderson 2760 Pressure Zone, construction of that infrastructure, and financing of that construction are required to support water service to existing and future developments in the West Henderson area. The director has the right to determine the size and capacity of the water backbone infrastructure, timing of construction of the water backbone infrastructure, and method of financing the construction, taking into account projected service needs of the West Henderson area served and the need for the orderly and efficient development of the city's public infrastructure system. The West Henderson 2630 Pressure Zone ("2630 PZ") and the West Henderson 2760 Pressure Zone ("2760 PZ") are located in West Henderson. A depiction of the 2630 PZ and the 2760 PZ is available on the city's website.

B. Through December 31, 2022, the rate charged to projects that the city determines will receive a benefit from the water backbone infrastructure planned, designed, constructed, and/or financed for (1) a portion of the 2630 PZ is referred to as the "phase 1A 2630 PZ water infrastructure rate" and (2) a portion of the 2760 PZ is referred to as the "phase 1A 2760 PZ water infrastructure rate." These rates are addressed in this section 14.18.045. The amount charged for the phase 1A 2630 PZ water infrastructure rate and phase 1A 2760 PZ water infrastructure rate (collectively, "phase 1A 2630/2760 PZ rates") shall be in addition to system development, regional connection, and other applicable charges for water service.

C. Effective January 1, 2023, the rate charged to projects that the city determines will receive a benefit from the water backbone infrastructure planned, designed, constructed, and/or financed for (1) a portion of the 2630 PZ is referred to as the "WH 2630 PZ water infrastructure rate" and (2) a portion of the 2760 PZ is referred to as the "WH 2760 PZ water infrastructure rate." These rates are addressed in this section 14.18.045. The amount charged for the WH 2630 PZ water infrastructure rate and WH 2760 PZ water infrastructure rate (collectively, "WH 2630/2760 PZ rates") shall be in addition to system development, regional connection, and other applicable charges for water service.

D. Effective January 1, 2023, all new projects that the city determines will receive a benefit from existing or future water backbone infrastructure planned, designed, constructed, and/or financed for the 2630 PZ or for the 2760 PZ shall be charged and pay the

WH 2630 PZ water infrastructure rate and/or the WH 2760 PZ water infrastructure rate, as the city determines is appropriate. The amount(s) charged shall be based upon the total EDUs proposed for the project, as reflected in the civil improvement plans for the project approved by the city, and the rate(s) used will be the one(s) in effect on the date the city processes the building permit for the project or, if a project is not required to obtain a building permit from the city, at the rate in effect on the date the city approves the civil improvement plans for the project.

E. Any project that was initiated at the city before January 1, 2023, and either was required to pay the rate(s) established (or other amount charged by the city) for existing or future water backbone infrastructure planned, designed, constructed, and/or financed for the 2630 PZ or for the 2760 PZ or whose approval was conditioned on the city being paid such rate(s) shall be charged and pay, as the city determines is appropriate, (1) if the building permit is issued prior to January 1, 2023, the phase 1A 2630 PZ water infrastructure rate and/or the phase 1A 2760 PZ water infrastructure rate or (2) if the building permit is issued on or after January 1, 2023, the WH 2630 PZ water infrastructure rate and/or the WH 2760 PZ water infrastructure rate. The amount(s) charged shall be based upon the total EDUs proposed for the project, as reflected in the civil improvement plans for the project approved by the city, and the rate(s) used will be the one(s) in effect on the date the city processes the building permit for the project or, if a project is not required to obtain a building permit from the city, at the rate in effect on the date the city approves the civil improvement plans for the project.

F. All projects that proceed with additional improvements to a property that result in an increase in water usage above the usage previously proposed - as reflected in the civil improvement plans approved by the city, in the building permit issued by the city, or by other means of receiving official city approval for such additional improvements (each, a "city approval") - and that the department determines will receive a benefit from existing or future water backbone infrastructure planned, designed, constructed, and/or financed for the 2630 PZ or for the 2760 PZ shall be charged and pay, as the department determines is appropriate, (1) if the city approval is issued prior to January 1, 2023, the phase 1A 2630 PZ water infrastructure rate, and/or phase 1A 2760 PZ water infrastructure rate and (2) if the city approval is issued on or after January 1, 2023, the WH 2630 PZ water infrastructure rate and/or the WH 2760 PZ water infrastructure rate. Whether there is an increase in water usage shall be determined by the director in their sole discretion. The rate(s) charged shall be based upon the increase in total additional EDUs associated with the property improvements and at the rate in effect on the date the city processes the building permit for the proposed improvements or, if a project is not required to obtain a building permit from the city, at the rate in effect on the date the city approves the civil improvement plans for the proposed improvements or provides its approval of the additional improvements by other means.

G. As provided for in this title, equivalent dwelling unit (EDU) is defined as "a measure of water demand equivalent to the amount of water used annually by an average single-family residential dwelling unit. One EDU is equivalent to 0.55 acre-feet of water per year." For the purpose of calculating the total EDUs attributable to each project being assessed a rate under this section 14.18.045, the EDU calculation table in subsection 14.18.045.L shall apply. However, where it is determined by the director that the "EDU Calculation Factor" or "EDU %" reflected in that table does not adequately reflect the water demands placed upon the city's water system by a proposed project, then the city shall not use that table and instead shall use an alternate method in order to determine the appropriate amount to charge that project for its equitable share of the water backbone infrastructure planned, designed, constructed, and/or financed for 2630/2760 PZ. Final determination of such alternate method shall be made by the director.

H. The phase 1A 2630 PZ water infrastructure rate shall be $3,067.00 per EDU, and the phase 1A 2760 PZ water infrastructure rate shall be $5,145.00 per EDU. The initial WH 2630 PZ water infrastructure rate shall be $3,527.00 per EDU, and the initial WH 2760 PZ water infrastructure rate shall be $5,660.00 per EDU. These rates are based upon actual and estimated costs for the city to fund the planning, design, construction, and/or financing of the water infrastructure for the 2630 PZ and the 2760 PZ. The city manager may adjust the WH 2630 PZ water infrastructure rate and/or the WH 2760 PZ water infrastructure rate once each calendar year by an amount that (1) for the WH 2630 PZ water infrastructure rate, is no more than 15 percent of the WH 2630 PZ water infrastructure rate in effect in the immediately preceding period; and (2) for the WH 2760 PZ water infrastructure rate, is no more than ten percent of the WH 2760 PZ water infrastructure rate in effect in the immediately preceding period. The city will identify the phase 1A 2630 PZ water infrastructure rate, the phase 1A 2760 PZ water infrastructure rate, the then-current WH 2630 PZ water infrastructure rate, and the then-current WH 2760 PZ water infrastructure rate in the department service rules. Unless otherwise approved in writing by the director in their sole discretion, the rate(s) assessed shall be paid to the city when the city issues a building permit, prior to issuance of a certificate of occupancy, or prior to commencement of temporary or permanent water service, whichever date is earliest.

I. For five years after a certificate of occupancy is issued for a project or an improvement is made to a project, the city has the right to audit that project to confirm that the project's average annual water usage is substantially the same as the total EDUs proposed for the project or project improvement. If the city determines the project is using more EDUs than proposed, the city may require the original developer of the project or project improvement, as applicable, to pay the difference between the total EDUs charged the project and total EDUs actually used at the property at the phase 1A 2630 PZ water infrastructure rate, phase 1A 2760 PZ water infrastructure rate, WH 2630 PZ water infrastructure rate, and/or WH 2760 PZ water infrastructure rate, as appropriate, in effect on the date the city prepares a bill for the additional payment.

J. If the phase 1A 2630 PZ water infrastructure rate, phase 1A 2760 PZ water infrastructure rate, WH 2630 PZ water infrastructure rate, or the WH 2760 PZ water infrastructure rate is adjusted after the city receives a payment, the city is not obligated to true-up the payment received or to refund/collect any difference.

K. If a customer requests to design, construct, and pay for all or a portion of the WH water backbone water infrastructure for the 2630 PZ and/or for the 2760 PZ, the city may enter into a special refunding agreement acceptable to the city and in accordance with applicable provisions in section 14.16.050 that provides for repayment of a portion of those costs from WH rates collected, or to be collected, by the city from customers that will receive a benefit from existing or future water backbone infrastructure planned, designed, constructed, and/or financed for the 2630 PZ or for the 2760 PZ.

L. EDU Calculation Table.

Type of Development	*EDU Calculation Factor*
Low Density Single-Family: RS-4, RS-6, RS-8, and RMH	1.0 EDU/lot
Medium-Density Residential: RM-10 and RM16	0.81 EDU/unit
Medium-Density Residential and High-Density Multifamily Residential: RH-24 and RH-36	0.51 EDU/unit
Commercial and Industrial[(1)]	See Commercial and Industrial Meter Equivalency Chart (Potable Water)[(2)]
[(1)] Commercial and Industrial includes all non-residential, mixed-use, and special-purpose districts, including, but not limited to, schools, churches, public facilities, recreational vehicle parks, convalescent/assisted living facilities, etc. [(2)] The EDU calculation factor shall be based on meter size as reflected in the Commercial and Industrial Meter Equivalency Chart (Potable Water).	

Commercial and Industrial Meter Equivalency Chart
(Potable Water)
Applicable Through 12/31/2022

Meter Size (inch)[(a)]	*EDU*	*phase 1A 2630 PZ (per meter)[(b)]*	*phase 1A 2760 PZ (per meter)[(b)]*
¾"	1.00	$3,067	$5,145
1"	1.67	$5,121	$8,593
1½"	3.33	$10,212	$17,134
2"	5.33	$16,345	$27,425
3"	11.67	$35,787	$60,047
4"	21.00	$64,398	$108,054
6"	46.67	$143,118	$240,138

Meter Size (inch)[a]	*EDU*	*phase 1A 2630 PZ (per meter)[b]*	*phase 1A 2760 PZ (per meter)[b]*
8"	80.00	$245,327	$411,636
10"	126.67	$388,445	$651,774
12"	166.67	$511,108	$857,592

[a] When a combination fire and domestic system is utilized, the charges shall be based on the size of the meter that would be required to accommodate all non-fire flow demands. Said meter sizing shall be based on the American Water Works Association standards for sizing meters or other nationally recognized method as approved by the director.
[b] Based upon the phase 1A 2630 PZ water infrastructure rate of $3,067 per EDU, and phase 1A 2760 PZ water infrastructure rate of $5,145 per EDU.

Commercial and Industrial Meter Equivalency Chart
(Potable Water)
Applicable On and After 1/1/2023

Meter Size (inch)[a]	*EDU*	*2630 PZ 2023 Charge (per meter)[b]*	*2760 PZ 2023 Charge (per meter)[b]*
¾"	1.00	$3,527	$5,660
1"	1.97	$6,948	$11,150
1½"	3.94	$13,897	$22,300
2"	13.20	$46,556	$74,712
3"	48.85	$172,294	$276,491
4"	72.51	$255,743	$410,407
6"	BASED UPON ANNUAL WATER USE	SEE NOTE (2) BELOW	SEE NOTE (2) BELOW
8"			
10"			
12"			

[a] When a combination fire and domestic system is utilized, the charges shall be based on the size of the meter that would be required to accommodate all non-fire flow demands. Said meter sizing shall be based on the American Water Works Association standards for sizing meters or other nationally recognized method as approved by the director.
[b] Based upon the 2630 PZ water infrastructure rate of $3,527 per EDU and 2760 PZ water infrastructure rate of $5,660 per EDU.

Meter Size (inch)[a]	*EDU*	*2630 PZ 2023 Charge (per meter)[b]*	*2760 PZ 2023 Charge (per meter)[b]*
Notes: (1) Commercial and Industrial includes all non-residential, mixed-use, and special-purpose districts, including, but not limited to, schools, churches, public facilities, recreational vehicle parks, convalescent/assisted living facilities, etc. (2) EDU calculation factor for Commercial and Industrial that installs a meter greater than or equal to a 6" meter shall be based upon the total estimated annual water usage for the project, in gallons per year, based upon the formula of 1 EDU = 0.55 acre-feet per year. See example below Example: Project A Annual water use = 50,000,000 gallons 1 EDU = 0.55 acre-feet per year = 325,851 x 0.55 = 179,218 gallons per year Total EDUs = (50,000,000 gallons) x (1 EDU/179,218 gallons per year) = 279.0 EDUs			

(Ord. No. 3912, § 3, 10-18-2022)

Editor's note—Ord. No. 3912, § 3, adopted October 18, 2022, amended section 14.18.045 in its entirety to read as herein set out. Formerly, section 14.18.045 pertained to West Henderson phase 1 water backbone infrastructure rates, and derived from Ord. No. 3383, § 2, adopted January 17, 2017.

14.18.047 West Henderson-Bermuda wastewater backbone infrastructure rates.

A. Planning and design of wastewater backbone infrastructure for West Henderson, construction of that infrastructure, financing of that construction, and phasing of that construction are required to support wastewater service to existing and future developments in the West Henderson area. The director has the right to determine the size and capacity of that wastewater backbone infrastructure, phasing of construction of that wastewater backbone infrastructure, and method of financing the construction, taking into account projected service needs of the West Henderson area served and the need for the orderly and efficient development of the publicly-owned treatment works.

B. The rates charged to projects that the city determines will receive a benefit from segment 1, segment 2, segment 3 or segment 9 of the wastewater backbone infrastructure planned, designed, constructed, and/or financed for the Bermuda Sewer Basin within West Henderson are referred to as the "segment 1 wastewater infrastructure rate," "segment 2 wastewater infrastructure rate," "segment 3 wastewater infrastructure rate" and "segment 9 wastewater infrastructure rate," respectively, and, collectively, as the "WH-Bermuda backbone wastewater infrastructure rates." The WH-Bermuda wastewater backbone infrastructure rates shall be in addition to system development and other applicable charges for wastewater service.

C. Effective November 25, 2019, all new projects that the city determines will receive a benefit from existing or future wastewater backbone infrastructure planned, designed, constructed, and/or financed for the Bermuda Sewer Basin within West Henderson shall be charged and pay the segment 1 wastewater infrastructure rate, the segment 2 wastewater infrastructure rate, the segment 3 wastewater infrastructure rate and/or the segment 9 wastewater infrastructure rate, as the city determines is appropriate. The amount(s) charged shall be based upon the total ERUs proposed for the project, as reflected in the civil improvement plans for the project approved by the city, and the rate(s) used will be the one(s) in effect on the date the city processes the building permit for the project or, if a project is not required to obtain a building permit from the city, at the rate in effect on the date the city approves the civil improvement plans for the project.

D. Any project that was initiated at the city before November 25, 2019 and whose approval was conditioned on the city being paid the rate(s) established or other amount charged by the city for existing or future wastewater backbone infrastructure planned, designed, constructed, and/or financed for West Henderson shall be charged and pay the segment 1 wastewater infrastructure rate, the segment 2 wastewater infrastructure rate, the segment 3 wastewater infrastructure rate and/or the segment 9 wastewater infrastructure rate, as the city determines is appropriate. The amount(s) charged shall be based upon the total ERUs proposed for the project, as reflected in the civil improvement plans for the project approved by the city, and the rate(s) used will be the one(s) in effect on the date the city processes the building permit for the project or November 25, 2019, whichever is later.

E. Effective November 25, 2019, all projects that proceed with additional improvements to a property that result or might result in an increase in the amount of wastewater discharged to the publicly owned treatment works above that previously proposed - as reflected in the civil improvement plans, in the building permit or by other means of receiving city approval for such additional improvements - and that the city determines will receive a benefit from existing or future wastewater backbone infrastructure planned, designed, constructed, and/or financed for West Henderson shall be charged and pay the segment 1 wastewater infrastructure rate, the segment 2 wastewater infrastructure rate, the segment 3 wastewater infrastructure rate and/or the segment 9 wastewater infrastructure rate, as the city determines is appropriate. Whether the improvements result or might result in an increase in the amount wastewater discharged to the publicly-owned treatment works above that previously proposed shall be determined by the director in his or her sole discretion. The rate(s) charged shall be based upon the increase in total additional ERUs associated with the property improvements and at the rate in effect on the date the city processes the building permit for the proposed improvements or, if a project is not required to obtain a building permit from the city, at the rate in effect on the date the city approves the civil improvement plans for the proposed improvements or provides its approval of the additional improvements by other means.

F. The initial segment 1 wastewater infrastructure rate shall be $31.52 per ERU. The initial segment 2 wastewater infrastructure rate shall be $79.45 per ERU. The initial segment 3 wastewater infrastructure rate shall be $131.39 per ERU. The initial segment 9 wastewater infrastructure rate shall be $270.83 per ERU. Initially, these rates have been based upon actual and estimated costs for the city to fund the planning, design, construction, and/or financing of the West Henderson wastewater backbone infrastructure. After construction of the particular segment is completed, the city manager may adjust the rate for that segment to reflect the actual costs to plan, design, construct, and finance the West Henderson wastewater backbone infrastructure in that segment. The city will identify the then-current segment 1 wastewater infrastructure rate, the segment 2 wastewater infrastructure rate, the segment 3 wastewater infrastructure rate and/or the segment 9 wastewater infrastructure rate in the department service rules. Unless otherwise approved in writing by the director at his or her sole discretion, the rate(s) assessed shall be paid to the city when the city issues a building permit, prior to issuance of a certificate of occupancy or prior to commencement of permanent wastewater service, whichever is earliest.

G. For five years after a certificate of occupancy is issued for a project or an improvement is made to a project, the city has the right to audit that project to confirm that the project's average annual wastewater discharge to the publicly owned treatment works is substantially the same as the total ERUs proposed for the project or project improvement. If the city determines the project is using more capacity of the West Henderson wastewater backbone infrastructure than proposed, the city may require the original developer of the project or project improvement, as applicable, to pay the difference between the total ERUs charged the project and total ERUs actually used at the property at the segment 1 wastewater infrastructure rate, the segment 2 wastewater infrastructure rate, the segment 3 wastewater infrastructure rate and/or the segment 9 wastewater infrastructure rate, as appropriate, in effect on the date the city prepares a bill for the additional payment.

H. If the segment 1 wastewater infrastructure rate, the segment 2 wastewater infrastructure rate, the segment 3 wastewater infrastructure rate or the segment 9 wastewater infrastructure rate is adjusted after the city receives a payment, the city is not obligated to true-up the payment received or to refund/collect any difference.
(Ord. No. 3638, § 2, 11-19-2019)

14.18.050 Southern Nevada Water Authority regional connection charge.

A. Effective March 1, 1996, a regional water connection fee shall be assessed to all projects as per the Southern Nevada Water System Facilities and Operations Agreement among the Southern Nevada Water Authority (SNWA), City of Boulder City, City of Henderson, City of North Las Vegas, and the Las Vegas Valley Water District. The rate

charged shall be based on the rate in effect at the time the application for new utility service or improvement plans (as required by the city) are approved and the actual connection fees are paid. For combination fire and domestic meters, the charge shall be based on the smaller meter.

B. Effective November 1, 2005, regional connection charges assessed, in amounts to be increased on the first of the month in May and November each year thereafter through the year 2008, to all projects served by the city.

C. The city reserves the right to audit any project within the initial three years of operation to confirm the basis or estimate used to determine the regional connection charge and may adjust the amount of the regional connection charge based upon the results of such audit. Subsequent audits may be conducted by the city to determine any increase in the basis of the regional connection charge and may adjust the regional connection charge at the rate in place at the time of the audit.
(Ord. No. 2909, § 3, 3-15-2011; Ord. 2536, § 104, 2006)

14.18.060 Clean Water Coalition regional sewer connection charge and regional sewer user charge.

The Clean Water Coalition (CWC) consists of four member agencies, the City of Henderson, the City of Las Vegas, Clark County Water Reclamation District, and the City of North Las Vegas. The CWC is tasked to implement the systems conveyance and operations program (SCOP) to improve our community's water quality through construction of a 17-mile pipeline that will carry high quality treated wastewater deep into Lake Mead. The SCOP project is funded through a combination of sewer connection and user charges. All member agencies of CWC have implemented these charges.

The regional sewer connection charges for wastewater became effective October 1, 2006. The regional sewer user charges for wastewater became effective July 1, 2007. At its meeting of February 23, 2010, the CWC voted to stop levying assessments to its member agencies based on regional connection and sewer user charges, effective March 1, 2010. With formal termination of the Clean Water Coalition imminent, the city ceased assessment of regional connection fees effective March 1, 2010, and regional sewer user charges effective May 1, 2011.
(Ord. No. 2915, § 1, 5-3-2011; Ord. No. 2857, § 1, 6-1-2010; Ord. 2592, § 1, 2007; Ord. 2536, § 105, 2006; Ord. No. 2951, § 4, 12-20-2011)

14.18.070 Southern Nevada Water Authority regional commodity charge.

Effective on all bills mailed after November 5, 1996, a charge per 1,000 gallons shall be assessed to all metered potable water consumption as per the Southern Nevada Water

System Facilities and Operations Agreement among the Southern Nevada Water Authority, City of Boulder City, City of Henderson, City of North Las Vegas and the Las Vegas Valley Water District.
(Ord. 2536, § 106, 2006)

14.18.075 Approval and application of the Southern Nevada Water Authority drought protection charge.

This charge was approved by the Southern Nevada Water Authority Board on December 10, 2014, and was enacted on purveyor water sales beginning January 1, 2016. The surcharge is applied as a fixed monthly water service charge based on meter size.
(Ord. No. 3279, § 1, 8-4-2015)

14.18.080 Approval and application of Southern Nevada Water Authority reliability surcharge.

This surcharge was approved by the Southern Nevada Water Authority Board and the Las Vegas Valley Water District Board in November 1997 and was enacted on purveyor water sales beginning March 1998. The surcharge is applied as a percentage of the total water bill, which is composed of the monthly water service charge, volume charge, and the SNWA commodity charge.
(Ord. 2536, § 107, 2006)

14.18.085 Approval and application of the Southern Nevada Water Authority infrastructure surcharge.

This surcharge was approved by the Southern Nevada Water Authority Board on February 29, 2012, and was enacted on purveyor water sales beginning May 1, 2012. The surcharge is applied as a fixed monthly water service charge based on meter size.
(Ord. No. 3279, § 1, 8-4-2015)

14.18.090 Main frontage fees.

Main frontage fees shall apply to all connections through which water or wastewater service will be provided from an existing main to particular parcels of property which are adjacent to the right-of-way or easement wherein that existing main is located.
(Ord. No. 3831, § 2, 1-4-2022; Ord. 2676, § 13 (part), 2008; Ord. 2536, § 108, 2006)

14.18.100 Chapter 14.14 water budget surcharge.

The customer at a property that, pursuant to chapter 14.14 of the Code, has a water budget is subject to a surcharge for any water used over the water budget amount. After the

customer exceeds the annual water budget, the city will assess this surcharge and place the surcharge on the customer's utility bill or otherwise invoice the customer for that surcharge. This surcharge is in addition to the customer's obligation to pay for the volume of water used at applicable rate. Table 14.18.100a identifies how the surcharge rate is calculated. Table 14.18.100b identifies how the surcharge amount is calculated, using the applicable surcharge rate.

Table 14.18.100a
Water Budget Surcharge Rate

Percentage of budget	101 to 120 percent	121 to 140 percent	Over 140 percent
Surcharge rate	2.0 times the highest rate	5.0 times the highest rate	9.0 times the highest rate

Table 14.18.100b
Water Budget Surcharge Formula

RECLAIMED WATER	RAW WATER	POTABLE WATER
Total amount over water budget (in thousand gallons)	Total amount over water budget (in thousand gallons)	Total amount over water budget (in thousand gallons)
x % reclaimed water	x % raw water	x % potable water
x highest then-current, applicable rate	x highest then-current, applicable rate	x highest then-current, applicable rate
x surcharge rate (see Table 14.18.100a)	x surcharge rate (see Table 14.18.100a)	x surcharge rate (see Table 14.18.100a)
= SURCHARGE AMOUNT	= SURCHARGE AMOUNT	= SURCHARGE AMOUNT

(Ord. No. 3905, § 26, 9-13-2022)

Editor's note—Ord. No. 3905, § 26, adopted September 13, 2022, amended section 14.18.100 in its entirety to read as herein set out. Formerly, section 14.18.100 pertained to violations, and derived from Ord. No. 2536, § 109, adopted in 2006.

14.18.110 Charge for taking water without authorization.

A. If a person takes water from the city's water system in violation of a provision of chapter 14.03, chapter 14.05, or chapter 14.06 of the Code, that person and/or the owner(s) of the equipment used to transport the water taken shall be charged and shall pay the estimated water usage at 12x the highest rate per 1,000 gallons in the highest rate block for the potable water volume charge or other rate authorized by council and set forth in the department service rules, whichever rate is higher, and the cost of any damage to city facilities. The department may estimate the amount of water taken, including, but not limited

to, based on the use to which that water was apparently put, the equipment used to take or apply that water, the estimated length of time the person was taking the water, and the container or tank used to transport or store that water. The applicable rate shall be based on the rates, fees and charges in this title and/or the department service rules that the department determines is appropriate. Using a container or tank to store that water shall constitute a rebuttable presumption that the container or tank was empty before the person took water from the city's water system and that the container or tank was completely filled after that person took the water.

B. In addition to being responsible for the charges described in subsection 14.18.110.A, the person who took water from the city's water system in violation of a provision of chapter 14.03, chapter 14.05, or chapter 14.06 of the Code and/or the owner(s) of the equipment used to transport that water is subject to all compliance procedures as prescribed within this title and is subject to all penalties imposed by applicable law.
(Ord. No. 3905, § 27, 9-13-2022)

Chapter 14.21 COMPLIANCE*

Sections:

14.21.010 General provisions.
14.21.020 Criminal prosecution.
14.21.030 Injunctive relief.
14.21.040 Administrative enforcement.
14.21.050 Administrative fine tables.
14.21.060 Fine pass through.
14.21.070 Civil litigation.
14.21.080 Referral for state and/or federal enforcement.
14.21.090 No waiver.
14.21.100 Remedies cumulative.
14.21.110 Administrative hearings.
14.21.120 Request for reconsideration; appeals.
14.21.130 Public nuisance.
14.21.140 Inapplicability to chapter 14.09—Pretreatment regulations.

14.21.010 General provisions.

A. *Purpose and policy.* This chapter 14.21 sets forth provisions and authority to ensure compliance with title 14 of the Code and all federal, state, and local requirements enforceable by the city for the protection of public health, safety and welfare.

B. *Scope.* The provisions of this chapter 14.21 shall apply to (1) all residents of the city, (2) a person that operates, maintains, repairs, relocates, removes, and/or disconnects to or from the city's water system and/or publicly owned treatment works, (3) a person that violates a provision of title 14 of the Code, (4) a person with a property interest in or control over real property in the city's corporate boundaries or with a property interest in or control over real property to which the city provides any type of water or wastewater service (such as a homeowners association), (5) a user, and (6) a customer. The operation or administration of this chapter 14.21 shall in no way change or diminish the effect of other provisions in this Code dealing with like or similar matters.

C. *Administration.* Except as otherwise provided herein, the director shall administer, implement, and enforce the provisions of title 14 of the Code. The director may delegate any powers granted to or duties imposed upon the director, the city, or the department to a person acting in the beneficial interest of the city.
(Ord. No. 3905, § 28, 9-13-2022; Ord. No. 3497, § 1, 7-10-2018)

***Editor's note—**Ord. No. 3497, § 1, adopted July 10, 2018, amended chapter 14.21 in its entirety to read as herein set out. Formerly, chapter 14.21, sections 14.21.010—14.21.050, pertained to similar subject matter, and derived from Ord. No. 2536, §§ 111—115, adopted in 2006; Ord. No. 2676, § 14, adopted in 2008; Ord. No. 2798, § 7, adopted January 20, 2009.

14.21.020 Criminal prosecution.

A person who willfully, knowingly, or negligently violates a provision of chapter 14.03, chapter 14.04, chapter 14.05, chapter 14.06, chapter 14.08, and/or chapter 14.14 of the Code is guilty of a misdemeanor and, upon conviction thereof, shall be punishable by imprisonment in the Henderson Detention Center for not more than six months and/or by a fine of not more than $1,000.00 per day for each violation. In lieu of all or part of the foregoing punishment which may be imposed, the convicted person may be sentenced to perform a fixed period of community service pursuant to the conditions prescribed in NRS 176.087 and, as applicable, to pay restitution in accordance with NRS 176.033. If a corporation is convicted of a violation, the corporation is punishable by a fine not exceeding $1,000.00 and, as applicable, shall pay restitution in accordance with NRS 176.033, unless otherwise provided by law or the code. With respect to violations that are continuous with respect to time, each day that the violation continues is a separate offense. With respect to violations that are not continuous with respect to time, each prohibited act and/or each failure to perform a required act is a separate offense.
(Ord. No. 3497, § 1, 7-10-2018)

14.21.030 Injunctive relief.

The city may petition a court of competent jurisdiction for the issuance of a temporary or permanent injunction, as appropriate, to restrain the continuance of a violation or compel the specific performance of a requirement imposed under title 14 of the Code. The city may also seek such other action as is appropriate for legal and/or equitable relief. A petition for injunctive relief shall not be a bar against, or a prerequisite for, the city to take any other action.
(Ord. No. 3497, § 1, 7-10-2018)

14.21.040 Administrative enforcement.

A. *General.*

1. An enforcement official has the authority to determine whether a violation of title 14 of the Code exists and to take appropriate action to gain compliance with the provisions of title 14 of the Code. These powers include the power to impose administrative fines, to issue notices of violation, to have the city take corrective action, to issue notices and orders, to order and conduct a show cause hearing, to inspect public and private property, to order abatement of a violation, and to use any remedy that is available in title 14 of the Code, in another provision of the Code, and in Nevada law. "Enforcement official" shall mean the director and any director designee.

2. The enforcement official is authorized to grant minor variations from the strict application of specific provisions of title 14 of the Code where, in the opinion of the director, the corrective work or compliance measures are in substantial compliance with the intent of the applicable provision.

B. *Administrative fine.*

1. The enforcement official may impose, as an alternative to criminal prosecution, administrative fines identified in section 14.21.050 for a violation of a provision of chapter 14.02, chapter 14.03, chapter 14.04, chapter 14.05, chapter 14.06, chapter 14.08, and/or chapter 14.14 of the Code by issuing a notice of violation and shall impose a fine(s) as outlined in this chapter 14.21 and any department enforcement response plan. Payment of an administrative fine shall not relieve the person(s) responsible from their obligation to correct, abate, or stop the violation nor shall it bar further enforcement action by the city or an enforcement official.

2. Before issuing a notice of violation and imposing a fine for violation of chapter 14.14 of the Code, the enforcement official may (but is not required to) send one or more warning letters to the person(s) alleged or deemed to have violated that chapter or otherwise potentially responsible for the violation. If the enforcement official sends a warning letter, that letter must notify them of the violation and, if applicable, provide a deadline to correct the violation. The enforcement official may have that letter delivered by email, mail, courier service, personal delivery, or any other method of delivery the enforcement official determines is appropriate.

3. If an administrative fine amount is due and owed to the city by a person cited, the person cited is a customer and the violation relates to utility service to the customer, the city may add that fine amount to the person cited's utility bill as a charge for utility service if:

a. The person cited did not timely request a hearing before the DUS hearing officer and did not file a timely request for reconsideration; or

b. The person cited timely requested a hearing before the DUS hearing officer, the DUS hearing officer identified a deadline that fine amount was due, the person cited did not pay that amount by the deadline identified by the DUS hearing officer in the Hearing Officer Decision and (1) the person cited did not file a timely request for reconsideration of the Hearing Officer Decision or (2) the person cited filed a timely request for reconsideration of the Hearing Officer Decision, the director identified a deadline the fine amount was due, the person cited did not pay that amount by the deadline identified by the director and the person cited did not file a timely written appeal of the director's decision to the city manager or (3) the person cited filed a timely request for reconsideration of the Hearing Officer Decision, the director affirmed or modified the

fine amount, the person cited filed a timely written appeal to the city manager, the city manager identified a deadline that amount was due and the person cited did not pay that amount by the deadline identified by the city manager; or

c. The person cited did not timely request a hearing before the DUS hearing officer, the person cited filed a timely request for reconsideration, the director identified a deadline the fine amount was due, the person cited did not pay that amount by the deadline identified by the director and the person cited did not file a timely written appeal of the director's decision to the city manager; or

d. The person cited did not timely request a hearing before the DUS hearing officer, the person cited filed a timely request for reconsideration, the director identified a deadline the fine amount was due, the person cited did not pay that amount by the deadline identified by the director, the person cited filed a timely written appeal of the director's decision to the city manager, the city manager identified a deadline the fine amount was due and the person cited did not pay that amount by the deadline identified by the city manager.

However, if the person cited is a user and not the owner of the property and accordingly the city delivered the notice of violation to the property owner in accordance with subsection 14.21.040.F.4, the city may only add an administrative fine amount due and owed to the city to the customer's utility bill as a charge for utility service if, as to that fine amount, (w) the property owner did not timely request a hearing before the DUS hearing officer and did not file a timely request for reconsideration, or (x) the property owner timely requested a hearing before the DUS hearing officer, received a Hearing Officer Decision and did not file a timely request for reconsideration of that order, or (y) the property owner timely requested a hearing before the DUS hearing officer, received a Hearing Officer Decision, filed a timely request for reconsideration of that Hearing Officer Decision, received a decision from the director and did not file a timely written appeal of the director's decision to the city manager, or (z) the property owner timely requested a hearing before the DUS hearing officer, received a Hearing Officer Decision, filed a timely request for reconsideration of that Hearing Officer Decision, received a decision from the director, filed a timely written appeal of the director's decision to the city manager and received a decision from the city manager.

4. If an administrative fine amount is due and owed to the city and the person who owes the city that amount holds a city-issued license or city-issued permit, has applied for a city-issued license or city-issued permit, has requested a city inspection, is seeking renewal or transfer of a city-issued license or city-issued permit, or is seeking a city approval, the city may take one or more of the following actions until that person pays the city the amount owed:

a. Revoke the city-issued license and/or city-issued permit;

b. Deny, or condition the city's approval of, that person's application for the city-issued license and/or city-issued permit;

c. Refuse to schedule or perform the city inspection;

d. Deny, or condition the city's approval of, a renewal or transfer of the city-issued license or city-issued permit; or

e. Refuse to provide, or impose conditions on, the city approval being sought.

C. *Corrective actions.*

1. When a person, with or without prior authorization from the department, operates, maintains, repairs, relocates, cuts, changes, removes, disconnects, interferes with or damages in any manner the city's public water system, reclaimed water system, raw water system and/or publicly owned treatment works, the department may choose but is not obligated to repair the damages to the city facilities, replace the city facilities, repair some or all damages to any real property or personal property, perform any other remediation work the city determines is necessary and invoice that person for the actual costs of the work. The person invoiced may file a request for reconsideration in accordance with section 14.21.120. The city may add the invoiced amount, as modified by the director or the city manager in accordance with section 14.21.120, to the customer's utility bill as a charge for utility service if the person invoiced is a customer and:

a. The customer did not pay the invoice by the deadline identified on the invoice and did not file a timely request for reconsideration; or

b. The customer did not pay the invoice by the deadline identified on the invoice, the customer filed a timely request for reconsideration and the director affirmed or modified the invoiced amount and identified a deadline that amount was due, the customer did not pay that amount by the deadline identified by the director, and the customer did not file a timely written appeal of the director's decision to the city manager; or

c. The customer did not pay the invoice by the deadline identified on the invoice, the customer filed a timely request for reconsideration, the director affirmed or modified the invoiced amount, the customer files a timely written appeal of the director's decision to the city manager, the city manager affirmed or modified the invoiced amount and identified a deadline that amount was due, and the customer did not pay that amount by the deadline identified by the city manager.

2. If, under another provision in title 14 of the Code, the city takes corrective action and issues an invoice for the services or work performed, the person invoiced may file a request for reconsideration in accordance with section 14.21.120. The city may

add the invoiced amount, as modified by the director or the city manager in accordance with section 14.21.120, to the customer's utility bill as a charge for utility service if the person invoiced is a customer and:

a. The customer did not pay the invoice by the deadline identified on the invoice and did not file a timely request for reconsideration; or

b. The customer did not pay the invoice by the deadline identified on the invoice, the customer filed a timely request for reconsideration, the director affirmed or modified the invoiced amount and identified a deadline that amount was due, the customer did not pay that amount by the deadline identified by the director, and the customer did not file a timely written appeal of the director's decision to the city manager; or

c. The customer did not pay the invoice by the deadline identified on the invoice, the customer filed a timely request for reconsideration, the director affirmed or modified the invoiced amount, the customer filed a timely written appeal of the director's decision to the city manager, the city manager affirmed or modified the invoiced amount and identified a deadline that amount was due, and the customer did not pay that amount by the deadline identified by the city manager.

D. *Termination of service.* With or without prior notice and in accordance with any applicable requirements in this title, in the department service rules, and in the department's written procedures, the city may shut off, stop, prevent turn-on of utility service and any associated equipment, and otherwise terminate water, wastewater, reclaimed and/or raw water service without the customer's permission. The city is not obligated to resume or re-establish service until after all violations are corrected to the director's satisfaction, all delinquent fees, rates and charges are paid to the city, and all administrative fine amounts due and owed to the city are paid.

E. *Denial and revocation of permits, licenses and inspections.* The city may deny, revoke or withhold city-issued permits, city-issued licenses, and/or inspections for any facility or person associated with the premises.

F. *Notice of violation(s).* The city may issue a notice of violation(s).

1. The notice of violation must contain, at a minimum, the following information:

a. The name and address (if known) of the person or customer responsible for the violation (referred to as the "person cited");

b. A brief description of the violation(s) and a reference to the applicable ordinance or code citation(s);

c. The location, date and (when known) time of the violation;

d. Where appropriate, the action required to correct the violation(s) and the deadline by when the violation(s) must be corrected;

e. The name of the person issuing the notice of violation;

f. The amount of the administrative fine(s) imposed for the violation(s); and

g. Information advising of the manner and time for responding to the notice of violation.

2. No error concerning, or omission of, any of the above-described information is grounds for the dismissal of a proceeding relating to a notice of violation unless the person requesting the dismissal demonstrates substantial prejudice from the error and/or omission.

3. The notice of violation may be issued by any peace officer employed by the city or by an enforcement official. Any notice of violation issued pursuant to this subsection 14.21.040.F shall constitute a declaration that is subject to the penalty of perjury.

4. An original notice of violation, or a copy thereof, must be filed with and retained by the department. A notice of violation is prima facie evidence of the facts that are alleged therein. The department must deliver the notice of violation personally, by courier service, or by registered or certified mail, return receipt requested to the person cited, the property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property) and, if the person cited is an entity, to an officer, key employee, manager in charge, or registered agent of that entity. That notice of violation will be deemed to have been received by the person to whom it was addressed on the date of delivery if delivered personally, by courier service, or by mail or the date of the last delivery attempt if delivered personally, by courier service, or by mail and delivery was refused or otherwise unsuccessful.

5. Where the notice of violation data is entered into and stored in a computer or similar device, any printout or other output readable by sight that accurately reflects such data is an original notice of violation for purposes of a proceeding under this chapter 14.21. Any such data entry that is moved or copied into another computer or similar device is intended to constitute an additional or replacement of the record of the data by the issuing officer or employee and is also an original notice of violation for purposes of a proceeding under this chapter 14.21.

6. The person cited must respond to a notice of violation within the time prescribed in that notice in one of the following ways:

a. Admit responsibility for the commission of the violation and liability by paying the amount of any administrative fines; or

b. Dispute the notice of violation by requesting a hearing before the DUS hearing officer or filing a request for reconsideration. A hearing may be requested by sending a written request to the department with the following information:

(1) The name of the individual on the notice of violation;

(2) The current address of the individual; and

(3) The violation(s) and any administrative fines identified in the notice of violation the person wishes to dispute at the hearing.

7. If the person cited is a user and not the owner of the property and the violation relates to utility services at the property and accordingly the department delivered the notice of violation to the property owner in accordance with subsection 14.21.040.F.4, that property owner may (a) admit responsibility in accordance with subsection 14.21.040.F.6.a and correct the violations in accordance with subsection 14.21.040.F.8, or (b) dispute the notice of violation by requesting a hearing in accordance subsection 14.21.040.F.6.b.

8. If the person cited (and any property owner as allowed under subsection 14.21.040.F.7) admits responsibility, that person must correct the violation(s) identified in the notice of violation by the deadline in that notice or, if approved in writing by the director, by a different deadline(s).

9. If the person cited (and any property owner as allowed under subsection 14.21.040.F.7) fails to admit responsibility or dispute the notice of violation within the time prescribed in that notice and in accordance with subsection 14.21.040.F.6, such failure shall constitute an admission of all matters and facts contained in the notice of violation, each such person is deemed to admit responsibility for the commission of the violation(s) and any administrative fine amounts imposed, any administrative fine amounts imposed are immediately due and owed to the city by each such person and each such person must correct the violation(s) identified in the notice of violation by the deadline(s) in that notice. If the violation(s) are not corrected by such deadline(s), the department (after providing written notice to that person and the property owner - if the person cited is a user and not the owner of the property and the violation relates to utility services at the property - and at that customer's and that property owner's expense) may choose but is not obligated to perform the abatement or take other action(s) to correct or address the violation(s).

The city shall invoice the person cited and the property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property) for the actual costs of that work.

10. If the person cited requests a hearing in accordance with subsection 14.21.040.F.6.b (or the property owner requests a hearing pursuant to subsection 14.21.040.F.7 and in accordance with subsection 14.21.040.F.6.b), the department shall schedule a

hearing at which each such person that requested the hearing shall be required to appear to dispute the notice of violation(s). The scheduling of the hearing, its conduct and other procedures of the administrative hearing shall be governed by section 14.21.110.

G. *Show cause hearing.* The enforcement official may order a person who has violated a provision of title 14 of the Code to appear before the enforcement official and show cause why a proposed enforcement action or additional enforcement action should not be taken.

1. The notice of the show cause hearing must specify the time and place for the hearing, the proposed enforcement action(s) or additional enforcement action(s), the reasons for such action(s), and a request that the person who has violated a provision of title 14 of the Code show cause why the proposed or additional enforcement action(s) should not be taken.

2. An original notice of the show cause hearing, or a copy thereof, must be filed with and retained by the department. A notice of the show cause hearing is prima facie evidence of the facts that are alleged therein. The notice must be delivered personally, by courier service, or by registered or certified mail, return receipt requested to the person responsible for the violation, the property owner (if the person ordered to appear for the show cause hearing is a user and not the owner of the property and the violation relates to utility services at the property) and, if the person responsible is an entity, on an officer, key employee, manager in charge, or registered agent of that entity. A show cause hearing shall not be a bar against, or prerequisite for, taking any other enforcement action. That notice of show cause hearing will be deemed to have been received by the person to whom it was addressed on the date of delivery if delivered personally, by courier service, or by mail or the date of the last delivery attempt if delivered personally, by courier service, or by mail and delivery was refused or otherwise unsuccessful.

3. After the director's designee has reviewed the evidence, the enforcement official may issue one or more orders and notices of violation as are necessary and appropriate to correct and address the violation and bring the person who has violated a provision of title 14 of the Code into compliance with title 14 of the Code.

H. *Administrative orders and consent orders.*

1. When an enforcement official finds that a person has violated, or continues to violate, any provision of title 14 of the Code or an order or decision issued under this chapter, the enforcement official may issue an administrative order to that person that directs that person to come into compliance within a specific time and contains other requirements to address the noncompliance and bring that person into compliance with title 14 of the Code. Issuance of an administrative order shall not be a bar against, or a prerequisite for, taking any other action against that person.

2. After a notice of violation has been issued, the city may enter into a consent order, assurances of voluntary compliance, or other similar documents establishing an agreement with any person who has violated, or is responsible for noncompliance with, a provision of title 14 of the Code. Such documents shall include specific actions to be taken by the person to correct the noncompliance within a time period specified by the document. A consent order may address administrative fines, corrective action to be taken, and/or other conditions and requirements as agreed to by the city and that person.

I. *Continuous violations.* With respect to violations that are continuous with respect to time, each day that the violation continues is a separate violation. With respect to violations that are not continuous with respect to time, each prohibited act and/or each failure to perform a required act is a separate violation.
(Ord. No. 3905, § 29, 9-13-2022; Ord. No. 3497, § 1, 7-10-2018)

14.21.050 Administrative fine tables.

A. The person issued a notice of violation for violation of a provision of chapter 14.02, chapter 14.03, chapter 14.04, chapter 14.05, chapter 14.06, and/or chapter 14.08 of the Code may be assessed an administrative fine in accordance with Table 14.21.050a. If the person issued a notice of violation is the owner of commercial property and the violation concerns that commercial property, then the administrative fine in Table 14.21.050a shall be doubled.

Table 14.21.050a
Administrative Fine for Violation of
Chapters 14.02, 14.03, 14.04, 14.05, 14.06, or 14.08

	First Violation	Second Violation	Third and Subsequent Violation
Severity Level: Level 1	$100.00	$200.00	$300.00
Severity Level: Level 2	$200.00	$300.00	$400.00
Severity Level: Level 3	$300.00	$400.00	$500.00
Severity Level: Level 4	$500.00		

B. The person issued a notice of violation for violation of a provision of chapter 14.14 of the Code may be assessed an administrative fine in accordance with Table 14.21.050b1, Table 14.21.050b2 or Table 14.21.050b3, as applicable. As part of the determination of severity level under Table 14.21.050b3, violation history will be taken into account and is based upon the preceding 36 months for improper draining of pools or spas and 18 months for all other violations of chapter 14.14.

Table 14.21.050b1
Administrative Fine for Water Waste for Violation of
Section 14.14.025, Section 14.14.030.F, Section 14.14.140.A, Section 14.14.140.B, Section 14.14.140.C, Section 14.14.140.D or Section 14.14.140.G

Meter Size	First Violation	Second Violation	Third Violation	Fourth Violation	Fifth and Subsequent Violations
1-inch or less	$80.00	$160.00	$320.00	$640.00	$1,280.00
> 1-inch and < 3-inches	$160.00	$320.00	$640.00	$1,280.00	$2,560.00
3-inches or greater	$320.00	$640.00	$1,280.00	$2,560.00	$5,120.00

Table 14.21.050b2
Administrative Fine for Water Waste for Violation of
Section 14.14.050, Section 14.14.070.C, Section 14.14.080.A, Section 14.14.140.I, Section 14.14.140.J, or Section 14.14.140.K

First Violation and Subsequent Violations	$25.00

Table 14.21.050b3
Administrative Fine for Water Waste for Violation of Any Other Section of Chapter 14.14
(Not Identified in Table 14.21.050b1 or Table 14.21.050b2)

	First Violation	Second Violation	Third Violation and Subsequent Violations
Severity Level: Level 1	$25.00	$50.00	$100.00
Severity Level: Level 2	$100.00	$250.00	$500.00
Severity Level: Level 3	$500.00	$750.00	$1,000.00

(Ord. No. 3905, § 30, 9-13-2022; Ord. No. 3497, § 1, 7-10-2018)

14.21.060 Fine pass through.

Whenever a resident, person, responsible party, or customer violates any of the provisions of title 14 of the Code, such violation causes the city to violate state or federal law or any condition of a permit issued to the city, and the city is fined for such violation, then such resident, person, responsible party, or customer shall be fully liable to city for the total amount of the fine assessed against the city.
(Ord. No. 3497, § 1, 7-10-2018)

14.21.070 Civil litigation.

The city attorney may file an action in a court of competent jurisdiction to seek correction of a violation(s) of a provision of title 14 of the Code, payment of administrative fines, restitution for corrective action(s) taken by the city, pass through of a fine(s) and any other appropriate relief.
(Ord. No. 3497, § 1, 7-10-2018)

14.21.080 Referral for state and/or federal enforcement.

The city may refer a violation of a provision of title 14 of the Code to the U.S. Attorney General's Office, State Attorney General, EPA Criminal Investigation Division or other appropriate agency for enforcement, and this referral shall not preclude the city from taking parallel enforcement or other action.
(Ord. No. 3497, § 1, 7-10-2018)

14.21.090 No waiver.

Failure of the city to discover violations and/or to take action to enforce any requirement, including but not limited to the assessment and collection of applicable charges, fees, administrative fines, and penalties, shall not constitute a forfeiture or waiver of the city's right to take appropriate action at any time thereafter. This entitlement shall be retained by the city as a condition of service.
(Ord. No. 3497, § 1, 7-10-2018)

14.21.100 Remedies cumulative.

The remedies provided for in this chapter 14.21 are not exclusive of any other remedies that the city may have under the Code, state law, or federal law, and the administrative fines and penalties in this chapter 14.21 may be imposed in addition to any other fine, penalty, fee, charge, notice of violation, or any other remedy provided for in this Code, the laws of the state of Nevada, or the laws of the United States of America. The city is entitled to collect the amount of any administrative fines that are due and owed to the city and its actual costs for any work performed by or on its behalf to correct or abate a violation of title 14 by means of any remedy available under applicable law, including without limitation referring the matter to a collection agency. The person that owes such an amount shall be liable to the city for an additional collection fee where the city refers the administrative fine(s) and/or the city's actual costs to a collection agency, as defined in NRS Chapter 649. The amount of such fee shall be 25 percent of the outstanding indebtedness or $250.00, whichever is less.

The amount of any such collection fee shall accrue and become due and payable at the time the indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency to the amount sought to be collected.
(Ord. No. 3497, § 1, 7-10-2018)

14.21.110 Administrative hearings.

A. This section 14.21.110 establishes the procedures governing administrative hearings requested in accordance with subsection 14.21.040.F.6.b. Any hearing conducted pursuant to this section 14.21.110 shall be presided over by the director's designee and such person is referred to as the "DUS hearing officer."

B. The DUS hearing officer shall issue a notice of hearing that specifies the date, time, and place for the administrative hearing. An original notice of the hearing, or a copy thereof, must be filed with and retained by the department. The department must deliver the notice personally by courier service, or by registered or certified mail, return receipt requested to the person cited, the property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property) and, if the person cited is an entity, on an officer, key employee, manager in charge, or registered agent of that entity. That notice of hearing will be deemed to have been received by the person to whom it was addressed on the date of delivery if delivered personally by courier service, or by mail or the date of the last delivery attempt if delivered personally, by courier service, or by mail and delivery was refused or otherwise unsuccessful. The DUS hearing officer may continue the hearing to a different date and/or time at the written request of a party if the DUS hearing officer determines good cause for the continuance exists and the requestor makes such a request before the date and time then scheduled for the hearing.

C. The person cited, and/or a property owner as allowed under subsection 14.21.040.F.7, that timely requested a hearing in accordance with subsection 14.21.040.F.6.b is referred to as the "defendant." The city and each defendant are each referred to as a "party."

D. A party may not serve any interrogatories or other written discovery, take any depositions or conduct other discovery. Affidavits or declarations made under penalty of perjury may be received in evidence at the hearing. The party wishing to use such affidavit or declaration shall, not less than 11 days prior to the date set for the hearing, deliver to the opposing party, either personally or by mail, a copy of the affidavit or declaration which that party proposes to introduce in evidence.

E. A properly filed notice of violation shall constitute a claim of liability and a claim for relief and no other such claim shall be required. Prima facie evidence of the violation alleged shall be established by the city providing the DUS hearing officer with either a copy

of the notice of violation or the data stored in a computer or other device as described in subsection 14.21.040.F.5. No formal appearance by the city attorney's office is required at the hearing.

F. The DUS hearing officer shall call the hearing to order and otherwise conduct the hearing proceedings. At the request of the hearing officer, city or defendant, a city police officer or marshal shall be present at the hearing to provide security and help maintain order.

G. At the hearing, each party shall have the opportunity to present witnesses, cross-examine witnesses and present other evidence in support of the party's case. Every witness shall declare, by oath or affirmation, that he or she will testify truthfully. The hearings and dispositions of all such hearings shall be informal, with the DUS hearing officer receiving photographs, testimony and other evidence for the sole purpose of dispensing a fair and speedy resolution between the parties. The DUS hearing officer may exclude irrelevant, immaterial or unduly repetitious evidence. The DUS hearing officer is not bound by the technical rules of evidence, and no informality in any proceeding or in the manner of taking testimony or receiving evidence will invalidate any Hearing Officer Decision.

H. The DUS hearing officer may question a witness at any time during the hearing. If a witness is questioned by the DUS hearing officer, the party who called the witness may request permission to ask further questions, limited to the area addressed by the DUS hearing officer. When the party who called the witness has asked those questions, the other party may request permission to ask further questions, limited to the area addressed by the DUS hearing officer. The DUS hearing officer may use the experience, technical competence and specialized knowledge of the city's departments, divisions and personnel to evaluate the evidence.

I. The city has the burden of proof in any such hearing to establish the existence of a violation of title 14 of the Code. The standard of proof to be used by the DUS hearing officer in deciding the issues at such a hearing is by a preponderance of the evidence. The burden of proving any defense shall be upon the party raising that defense.

J. At the hearing, the DUS hearing officer shall only consider evidence that is relevant to the following issues:

1. Whether the conditions listed in the issued notice violate title 14 of the Code;

2. Whether the city afforded the person cited and the property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property) due process by adhering to the notification procedures specified in subsection 14.21.040.F.6.b and subsection 14.21.110.B;

3. Whether administrative fine(s) in the issued notice is(are) appropriate;

4. Whether the action(s) required to correct or abate the violation(s), deadline(s) by when the violation(s) must be corrected or abated, and the consequences of failing to comply are reasonable; and

5. If a defendant asserts that the violation(s) have been corrected or abated, whether the violation(s) have been adequately corrected or abated.

K. The hearing may be reported stenographically and/or recorded by audio record, as determined appropriate by the DUS hearing officer. If any party desires the hearing reported stenographically and transcribed by a certified court reporter, that party must make the necessary arrangements and bear the costs thereof and any other party is entitled to purchase a copy of that transcription.

L. After the DUS hearing officer has reviewed the information presented at the hearing and within 45 days of the hearing (unless the DUS hearing officer extends that 45-day period for good cause), the DUS hearing officer shall issue a written decision, deciding for the defendant(s) and/or the city, entitled "Hearing Officer Decision":

1. Deciding for the defendant if the DUS hearing officer finds that a violation did not occur or that the defendant should not be held liable; or

2. Deciding for the city if the DUS hearing officer finds that a violation occurred and that either the person cited or the property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property) should be held liable and, as part of that Hearing Officer Decision:

a. Affirm or modify the action(s) required to correct or otherwise abate the violation(s);

b. Modify the deadline by when the violation(s) must be corrected or abated;

c. Affirm, increase or reduce the administrative fine(s);

d. Establish specific deadlines by when the administrative fine(s) must be paid; and/or

e. If the defendant fails to comply with the Hearing Officer Decision, confirm that the city may perform the abatement or take other action(s) to correct or address the violation(s) and require the person cited and any property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property) to pay the city's actual costs of that work within 30 days of receiving an invoice from the city; or

3. Deciding for the city if the DUS hearing officer finds that a violation occurred, that the defendant did not attend the hearing, that the defendant was given sufficient legal notice of the hearing and that the defendant should be held liable and, as part of that Hearing Officer Decision:

a. Affirm or modify the action(s) required to correct or otherwise abate the violation(s);

b. Confirm that the city may perform the abatement or take other action(s) to correct or address the violation(s) and require the person cited and any property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property) to pay the city's actual costs of that work within 30 days of receiving an invoice from the city;

c. Affirm, increase or reduce the administrative fine(s); and/or

d. Provide that those administrative fine amounts are deemed to be immediately due and owed to the city.

M. The DUS hearing officer shall include a certification in the Hearing Officer Decision substantially conforming to the following form: "I certify that the foregoing is a correct reflection of the decision entered in the proceeding properly brought for my consideration pursuant to section 14.21.110 of the Henderson Municipal Code." The original Hearing Officer Decision, or a copy thereof, must be filed with and retained by the department. The department must deliver a copy of the Hearing Officer Decision personally, by courier service, or by registered or certified mail, return receipt requested to the person cited, the property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property) and, if the person cited is an entity, on an officer, key employee, manager in charge, or registered agent of that entity. That Hearing Officer Decision will be deemed to have been received by the person to whom it was addressed on the date of delivery if delivered personally, by courier service, or by mail or the date of the last delivery attempt if delivered, personally, by courier service, or by mail and delivery was refused or otherwise unsuccessful.

N. If the administrative fine amounts are not paid by the deadline(s) established in a Hearing Officer Decision, the unpaid amounts are deemed to be immediately due and owed to the city by the person cited and the property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property).

O. The city attorney may petition the Henderson municipal court or such other court of competent jurisdiction for the entry of a civil judgment against each defendant in an amount equal to that stated in the Hearing Officer Decision if the city attorney determines this action to be necessary to enforce the Hearing Officer Decision. Service of such petition on each defendant must be made by certified mail, return receipt requested, restricted delivery, addressed to the defendant at the defendant's last known address, or in any other manner that is authorized by law. An affidavit or declaration of mailing, a signed, returned receipt, or other evidence of service of the civil judgment shall be filed upon such service of the petition.

P. If the person that timely requested a hearing in accordance with subsection 14.21.040.F.6.b does not attend the hearing, that person is deemed to admit responsibility for the commission of the violation(s), be responsible for correction or abatement of the

violation(s), be responsible for any administrative fine(s), be responsible for the city's actual costs to correct or abate the violation(s), and unpaid amounts are deemed to be immediately due and owed to the city by the person cited and the property owner (if the person cited is a user and not the owner of the property and the violation relates to utility services at the property).

Q. The Hearing Officer Decision shall be the final administrative action unless a timely request for reconsideration of that decision is filed under subsection 14.21.120.A.
(Ord. No. 3905, § 31, 9-13-2022; Ord. No. 3497, § 1, 7-10-2018)

14.21.120 Request for reconsideration; appeals.

A. Any resident of the city, a responsible party operating, maintaining, repairing, relocating, removing, or disconnecting the public water system and/or publicly owned treatment works, a person that violates a provision of title 14 of the Code, or a customer directly aggrieved by an enforcement action taken by the city under section 14.21.040 may file a request for reconsideration. Any defendant aggrieved by a Hearing Officer Decision under section 14.21.110, may also file a request for reconsideration. All requests for reconsideration (1) shall be made by that aggrieved person submitting a written request for reconsideration to the director that identifies the action taken or decision made by the department, enforcement official, or city that the aggrieved person would like reconsidered, sets forth in detail the facts supporting the request for reconsideration, and identifies any relief requested; (2) shall be delivered personally, by courier service, or by registered or certified mail, return receipt requested, to the director; and (3) must be received by the director, if delivered personally, by courier service, or must be postmarked, if delivered by registered or certified mail, on or before the 11th day after the city takes the action or makes the decision that the aggrieved person would like reconsidered.

B. After the director receives a request for reconsideration that complies with the requirements in subsection 14.21.120.A, the director may modify or affirm the action taken or decision made and, as part of that decision-making process, may review any information the director determines is relevant and request that the department or the aggrieved person provide additional information. If a request for reconsideration is not timely or fails to provide the information required in subsection 14.21.120.A(1), then the director shall dismiss the request for reconsideration on the grounds that it was untimely and/or insufficient. The director's decision must be in writing, be made within 30 days of the director's receipt of that request for reconsideration and delivered to the aggrieved person that made the request personally, by courier service, or by registered or certified mail, return receipt requested. In the director's discretion, the director may extend the time for the director to issue that decision. The director's decision will be deemed to have been received by the person to whom it was addressed on the date of delivery if delivered personally, by courier service, or by mail or the date of the last delivery attempt if delivered by mail and

delivery was refused or otherwise unsuccessful. The director's decision to modify or affirm the action taken or decision made, or to dismiss the request for reconsideration, shall be deemed to be the city's final administrative action and decision unless timely and sufficiently appealed to the city manager in accordance with subsection 14.21.120.C. Unless otherwise ordered by a court of competent jurisdiction, the director's decision shall remain in effect during the pendency of any judicial appeal or other judicial review of that decision sought pursuant to and in accordance with applicable law.

C. If a decision made by the director in accordance with subsection 14.21.120.B is unsatisfactory to the aggrieved person requesting reconsideration, the aggrieved person may, within 11 days after receiving the director's decision, appeal that decision to the city manager. All appeals (1) shall be made by that aggrieved person submitting a written request to the city manager that identifies the director's decision that the aggrieved person wishes to reverse or modify, sets forth in detail the facts supporting the appeal, and identifies any relief requested; (2) shall be delivered personally, by courier service, or by registered or certified mail, return receipt requested, to the city manager and to the director; and (3) must be received by the city manager and the director, if delivered personally or by courier service, or must be postmarked, if delivered by registered or certified mail, on or before the 11th day after the aggrieved person receives the director's decision. An appeal that complies with the foregoing requirements shall be decided by the city manager within 30 days from the date it is received by the city manager unless the city manager, in the city manager's discretion, extends the time for the city manager to issue that decision. As part of that decision-making process, the city manager may review any information city manager determines is relevant and request that the department or the aggrieved person provide additional information. If an appeal is not timely or does not provide the information required in item (1) in this subsection, the city manager shall dismiss the appeal. The city manager's decision to modify or affirm the action taken or decision made, or to dismiss the appeal, shall be deemed to be the city's final administrative action and decision. The director's decision shall remain in effect during the pendency of any appeal to the city manager. Unless otherwise ordered by a court of competent jurisdiction, the city manager's decision shall remain in effect during the pendency of any judicial appeal or other judicial review of that decision sought pursuant to and in accordance with applicable law.
(Ord. No. 3905, § 32, 9-13-2022; Ord. No. 3497, § 1, 7-10-2018)

14.21.130 Public nuisance.

Any condition caused or permitted to exist in violation of any of the provisions of chapter 14.02, chapter 14.03, chapter 14.04, chapter 14.05, chapter 14.06, chapter 14.08, or chapter 14.14 of the Code is a threat to public health, safety, and welfare and is declared and deemed a nuisance by the city council. The city may summarily, at the violator's expense, abate the condition after following the procedures in subsection 14.21.040.F or

correct the condition pursuant to subsection 14.21.040.C or another provision in title 14 of the Code, and the city attorney may file an action in a court of competent jurisdiction to abate, enjoin, or otherwise compel the cessation of such public nuisance.
(Ord. No. 3497, § 1, 7-10-2018)

14.21.140 Inapplicability to chapter 14.09—Pretreatment regulations.

Sections 14.21.010 through 14.21.130, inclusive, do not apply to a violation of a provision of chapter 14.09 of the Code. Compliance and enforcement of a violation of chapter 14.09 are addressed in that chapter 14.09.
(Ord. No. 3497, § 1, 7-10-2018)

Title 15

BUILDINGS AND CONSTRUCTION

Chapters:

15.01	Building and Fire Safety Administrative Code of Henderson, Nevada
15.02	Development Services Schedule of Fees
15.08	Building Code
15.09	Residential Building Code
15.10	Uniform Code for Dangerous Buildings Abatement
15.11	Existing Building Code
15.12	Property Maintenance Code
15.13	Abandoned Residential Real Property Registry
15.16	Electrical Code
15.18	Undergrounding Utility Facilities
15.20	Plumbing Code
15.24	Mechanical Code
15.30	Wildland-Urban Interface Code
15.32	Fire Code
15.33	Blasting Regulations
15.40	Fireplaces
15.44	Swimming Pool Code
15.45	Energy Conservation Code
15.50	Flood Control and Control of Drainage
15.52	Uniform Standard Specifications for Public Works Construction
15.56	Noise Level Reduction Standards
15.60	Temporary Dwelling Units
15.70	Uniform Design and Construction Standards (UDACS) for Water Distribution Systems
15.75	Design and Construction Standards for Wastewater Collection Systems
15.80	Baby Changing Tables in Buildings Accessible to the Public

Chapter 15.01 BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE OF HENDERSON, NEVADA

Sections:

15.01.005 Title.
15.01.010 Purpose.
15.01.015 Scope.
15.01.020 Substantial compliance standard.
15.01.025 Guarantee or warranty.
15.01.030 Emergency provisions.
15.01.035 Existing buildings, structures, and building service equipment.
15.01.040 Definitions.
15.01.045 Moved buildings.
15.01.050 Temporary buildings or structures.
15.01.055 Historic buildings.
15.01.060 Alternate materials and methods of construction.
15.01.065 Modifications.
15.01.070 Tests.
15.01.075 Conflicting provisions.
15.01.080 Creation of enforcement agency.
15.01.085 Enforcement.
15.01.090 Liability.
15.01.095 Cooperation of other officials and officers.
15.01.100 Contract services.
15.01.105 Delegation of authority.
15.01.110 Unsafe buildings, structures, building service equipment and ATS structures and equipment.
15.01.115 Board of appeals.
15.01.120 Violations.
15.01.125 Permits required.
15.01.130 Building permit exemptions.
15.01.135 Plumbing permit exemptions.
15.01.140 Electrical permit exemptions.
15.01.145 Mechanical permit exemptions.
15.01.150 Grading permit exemptions.
15.01.155 Sign construction permit exemptions.
15.01.160 Amusement and transportation system permit and certificate of operation exemptions.
15.01.165 Permit denial.
15.01.170 Subcontractor registration.
15.01.175 Business license required.
15.01.180 Amusement and transportation system permit required.
15.01.185 Explosive demolitions.
15.01.190 Permit application.
15.01.195 Application for amusement and transportation system (ATS) permit.

15.01.200 Submittal of construction documents.
15.01.205 Information on plans and specifications.
15.01.210 Deferred submittals.
15.01.215 Design provisions for use with the building code.
15.01.220 Referenced standards.
15.01.225 Contractor licensing.
15.01.230 Homeowner permittees.
15.01.235 Manufactured housing permits.
15.01.240 Manufactured housing submittal requirements, fees and occupancy.
15.01.245 Manufactured housing as a conditional or temporary use.
15.01.250 Modular commercial and residential permits, submittal requirements and fees.
15.01.255 Mobile home and manufactured housing parks.
15.01.260 Building permit issuance.
15.01.265 Phased design and construction.
15.01.270 Combination permit.
15.01.275 Retention of plans.
15.01.280 Validity of permit.
15.01.285 Permit expiration.
15.01.286 Swimming pool, spa, or hot tub permit expiration.
15.01.290 Permit extension.
15.01.295 Timely completion of work.
15.01.300 Suspension or revocation of permits.
15.01.305 Fees.
15.01.310 Fee refunds.
15.01.315 Expiration of plan review.
15.01.320 Work without permits—Investigative fee.
15.01.325 Inspection of existing buildings.
15.01.330 Witness fees.
15.01.335 Inspection and survey.
15.01.340 Required building inspections.
15.01.345 Required building service equipment inspections.
15.01.350 Required pool and spa inspections.
15.01.355 Required electrical inspections.
15.01.360 Required plumbing inspections.
15.01.365 Required mechanical inspections.
15.01.370 Occupancy authorization.
15.01.375 Required amusement and transportation system inspections.
15.01.380 Amusement and transportation system (ATS) certificate of operation.
15.01.385 Reinspection fees.
15.01.390 Dedicated inspection services.
15.01.395 Inspection of atypical or unusual work.
15.01.400 Inspection agencies.
15.01.405 Special inspections.
15.01.410 Quality assurance agency.
15.01.415 Approved fabricators/manufacturers.

15.01.420 Condition, suspension or revocation of approval for special inspectors, quality assurance agencies and fabricators/manufacturers.
15.01.425 Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures.

15.01.005 Title.

Chapter 15.01 shall be known as the "Building and Fire Safety Administrative Code of Henderson, Nevada." It may be cited as such or by the short title "administrative code." It is referenced herein as "this chapter."
(Ord. 2736, § 1 (part), 2008)

15.01.010 Purpose.*

The purpose of this chapter is to provide the administrative rules and regulations for the administration and enforcement of the technical codes adopted by the City of Henderson. These technical codes are set out generally in chapters 15.08, 15.09, 15.10, 15.11, 15.16, 15.20, 15.24, 15.30, 15.40, 15.44, 15.45 and 15.56 of the Henderson Municipal Code.

The purpose of this chapter and the technical codes is to provide appropriate design and construction regulations to safeguard the public health, safety and general welfare by regulating and controlling the permitting, design, construction, quality of materials, use and occupancy, location and maintenance of buildings, service equipment and structures in the jurisdiction of the City of Henderson specifically regulated herein.
(Ord. No. 3906, § 1, 9-13-2022; Ord. No. 3503, § 1, 8-7-2018; Ord. 2736, § 1 (part), 2008)

15.01.015 Scope.

The provisions of this chapter shall serve as the administrative, organizational and enforcement rules and regulations for the technical codes, that regulate the site preparation, construction, alteration, moving, enlargement, replacement, demolition, repair, maintenance, use and occupancy of buildings and structures and appurtenances connected or attached to such buildings and structures, signs, amusement and transportation systems and building service equipment.

For the purpose of this chapter, the term "equipment" or "systems" shall apply to any equipment or system regulated by the technical codes. Where, in any specific case, different sections of the technical codes specify different materials, methods of construction or other requirements, the most restrictive shall govern. Whenever the technical codes make a reference to an appendix chapter, the appendix chapter shall not apply unless specifically adopted by the City of Henderson. Where differences occur between provisions of this chapter and the technical codes, the most restrictive shall govern.

***Note—**Effective February 4, 2019.

Exception. This chapter does not apply to the following:

A. Facilities or installations within the City of Henderson which are owned and operated by an entity which invokes preemptive power such as the State of Nevada or the federal government.

B. Buildings, structures or service equipment and installations directly used in utility generation or distribution which are installed on properly recorded easements belonging to water, gas, power, telephone, or other utility companies that are preemptively regulated and governed by the Nevada Public Service Commission, a State of Nevada Charter, or other public franchise. This exception does not apply to non-exempted buildings and structures containing occupiable space such as offices, meeting rooms, service counters, public restrooms, site preparation, block walls and fences.

(Ord. 2736, § 1 (part), 2008)

15.01.020 Substantial compliance standard.

In the enforcement of specific provisions of this chapter and the technical codes, the building official and the fire chief are authorized to grant minor variations from the strict application of specific code provisions where, in the opinion of the building official and the fire chief, the work is in substantial compliance with the intent of the adopted codes and standards, and these minor variations are warranted.

(Ord. 2736, § 1 (part), 2008)

15.01.025 Guarantee or warranty.

The building official reviews and approves construction drawings and conducts periodic inspections of work in progress to verify that the approved plans and work inspected at specific points in time are in substantial compliance with the technical codes. The building

official does not conduct continuous inspections of work in progress. Accordingly, reviews, approvals and inspections performed by the building official pursuant to this chapter do not create any guarantee or warranty that buildings, structures or service equipment have been constructed in accordance with all of the applicable provisions of the technical codes.
(Ord. 2736, § 1 (part), 2008)

15.01.030 Emergency provisions.

In the event of a national, state or local emergency declaration, the building official may waive or augment the provisions of this chapter and the technical codes as needed during the periods of emergency to protect public safety.
(Ord. 2736, § 1 (part), 2008)

15.01.035 Existing buildings, structures, and building service equipment.*

Existing buildings, structures and building service equipment shall comply with the provisions of this section.

A. *Additions, alterations or repairs.* Buildings, structures and building service equipment to which additions, alterations and repairs are made shall comply with all the requirements of the technical codes for new facilities, except as specifically provided in this chapter.

Additions, alterations and repairs may be made to any building, structure and building service equipment without requiring the existing building, structure or building service equipment to comply with all the requirements of the technical codes provided the addition, alteration or repair conforms to that required for a new building, structure or building service equipment.

Additions, alterations or repairs shall not be made to an existing building, structure or building service equipment that will cause the existing building or building structure service equipment to be in violation of any of the provisions of the technical codes, nor shall such additions, alterations or repairs cause the existing building, structure or building service equipment to become unsafe. An unsafe condition shall be deemed to have been created if an addition, alteration or repair:

1. Causes the existing building to become structurally unsafe;

2. Does not provide adequate means of egress in compliance with the provisions of the building code;

3. Creates a fire hazard as determined by the Henderson fire marshal;

***Note—**Effective through February 3, 2019.

4. Reduces required fire resistance;

5. Causes building service equipment to become overloaded or exceed its rated capacity;

6. Creates a health hazard as determined by the Health District of Southern Nevada or otherwise creates conditions dangerous to human life and safety.

Any addition, alteration or repair of a building which involves a change in use or occupancy shall not exceed the height, number of stories or area permitted by the building code for new buildings. Any building plus new additions shall not exceed the height, number of stories or area permitted by the building code for new buildings. All fire systems required by chapter 9 of the Building and Fire Safety Administrative Code because of the area of the addition or the area of the addition plus the existing building area shall be extended throughout the building or structure or separated per the fire code.

New additions and alterations shall comply with the code in effect at the time of construction of the addition or alteration. Additions and alterations may not be made to an existing building or structure where such building or structure is not in full compliance with the provisions of the applicable building code in effect at the time of construction of the building unless the proposed addition or alteration includes work to bring the existing building into compliance with the applicable code.

Alterations and repairs to an existing building or structure which are nonstructural and do not adversely affect a structural member or system, or a part of the building having required fire resistance, may be made with the same materials as the building or structure, subject to the approval of the building official. The installation or replacement of glass shall be as required for new installations.

Additions or alterations shall not be made to an existing building or structure which is in violation of other provisions of the Henderson Municipal Code unless such additions or alterations include work to bring the building into compliance with the applicable provisions of the Henderson Municipal Code. This limitation does not apply to lawful non-conforming buildings or uses as determined by the Henderson community development department.

B. *Existing building service equipment installations.* Building service equipment lawfully in existence at the time of adoption of the technical codes may have its use, maintenance or repair continued if such building service equipment is in accordance with its original design and does not pose a hazard to life, health or property. Minor additions, alterations and repairs to existing building service equipment may be made in accordance with the technical codes in effect at the time of original installation, subject to approval of the building official, and provided such additions, alterations and repairs will not cause the existing building service equipment to become unsafe, unsanitary or overloaded.

C. *Existing occupancy.* Buildings in existence at the time of the adoption of the building code may have their use or occupancy continued if such use or occupancy was legal at the time of the adoption of the building code and provided such continued use is not dangerous to life, health or safety. Any change in the use or occupancy of an existing building shall require that the building be made to conform to all current technical code requirements based upon the new use or occupancy, including upgrade of the building's structural system. In addition, any fire safety system required by the codes because of the occupancy change shall be extended throughout the building or structure or separated per the fire code.

D. *Maintenance.* All existing and new buildings, structures, signs, and building service equipment and all parts thereof shall be maintained in a safe working condition and in accordance with the provisions of the adopted technical codes and City of Henderson Property Maintenance Code as adopted in chapter 15.12 of the Henderson Municipal Code. All devices and safeguards which are required by the technical codes shall be maintained in conformance with the technical code in effect at the time of installation. The owner or his designated agent shall be responsible for the maintenance of buildings, structures, building service equipment and assuring that all required fire and life safety systems are maintained in an operable condition at all times. To determine compliance with the requirement of this section, the building official may cause any building, structure or building service equipment to be re-inspected.

(Ord. 2736, § 1 (part), 2008)

15.01.035 Existing buildings, structures, and building service equipment.*

Existing buildings, structures and building service equipment shall comply with the provisions of this section.

A. *Additions, alterations or repairs.* Buildings, structures and building service equipment to which additions, alterations and repairs are made shall comply with all the requirements of the technical codes for new facilities, except as specifically provided in this chapter and chapter 15.11.

Additions, alterations and repairs may be made to any building, structure and building service equipment without requiring the existing building, structure or building service equipment to comply with all the requirements of the technical codes provided the addition, alteration or repair conforms to that required for a new building, structure or building service equipment.

***Note—**Effective February 4, 2019.

Additions, alterations or repairs shall not be made to an existing building, structure or building service equipment that will cause the existing building or building structure service equipment to be in violation of any of the provisions of the technical codes, nor shall such additions, alterations or repairs cause the existing building, structure or building service equipment to become unsafe. An unsafe condition shall be deemed to have been created if an addition, alteration or repair:

1. Causes the existing building to become structurally unsafe;

2. Does not provide adequate means of egress in compliance with the provisions of the building code;

3. Creates a fire hazard as determined by the Henderson fire code official;

4. Reduces required fire resistance;

5. Causes building service equipment to become overloaded or exceed its rated capacity;

6. Creates a health hazard as determined by the Health District of Southern Nevada or otherwise creates conditions dangerous to human life and safety.

Any addition, alteration or repair of a building which involves a change in use or occupancy shall not exceed the height, number of stories or area permitted by the building code for new buildings. Any building plus new additions shall not exceed the height, number of stories or area permitted by the building code for new buildings. All fire systems required by chapter 9 of the Building and Fire Safety Administrative Code because of the area of the addition or the area of the addition plus the existing building area shall be extended throughout the building or structure or separated per the fire code.

New additions and alterations shall comply with the code in effect at the time of construction of the addition or alteration. Additions and alterations may not be made to an existing building or structure where such building or structure is not in full compliance with the provisions of the applicable building code in effect at the time of construction of the building unless the proposed addition or alteration includes work to bring the existing building into compliance with the applicable code.

Alterations and repairs to an existing building or structure which are nonstructural and do not adversely affect a structural member or system, or a part of the building having required fire resistance, may be made with the same materials as the building or structure, subject to the approval of the building official. The installation or replacement of glass shall be as required for new installations.

Additions or alterations shall not be made to an existing building or structure which is in violation of other provisions of the Henderson Municipal Code unless such additions or alterations include work to bring the building into compliance with the

applicable provisions of the Henderson Municipal Code. This limitation does not apply to lawful non-conforming buildings or uses as determined by the Henderson community development department.

B. *Existing building service equipment installations.* Building service equipment lawfully in existence at the time of adoption of the technical codes may have its use, maintenance or repair continued if such building service equipment is in accordance with its original design and does not pose a hazard to life, health or property. Minor additions, alterations and repairs to existing building service equipment may be made in accordance with the technical codes in effect at the time of original installation, subject to approval of the building official, and provided such additions, alterations and repairs will not cause the existing building service equipment to become unsafe, unsanitary or overloaded.

C. *Existing occupancy.* Buildings in existence at the time of the adoption of the building code may have their use or occupancy continued if such use or occupancy was legal at the time of the adoption of the building code and provided such continued use is not dangerous to life, health or safety. Any change in the use or occupancy of an existing building shall require that the building be made to conform to all current technical code requirements based upon the new use or occupancy, including upgrade of the building's structural system. In addition, any fire safety system required by the codes because of the occupancy change shall be extended throughout the building or structure or separated per the fire code.

D. *Maintenance.* All existing and new buildings, structures, signs, and building service equipment and all parts thereof shall be maintained in a safe working condition and in accordance with the provisions of the adopted technical codes and City of Henderson Property Maintenance Code as adopted in chapter 15.12 of the Henderson Municipal Code. All devices and safeguards which are required by the technical codes shall be maintained in conformance with the technical code in effect at the time of installation. The owner or his designated agent shall be responsible for the maintenance of buildings, structures, building service equipment and assuring that all required fire and life safety systems are maintained in an operable condition at all times. To determine compliance with the requirement of this section, the building official may cause any building, structure or building service equipment to be re-inspected.

(Ord. No. 3503, § 1, 8-7-2018; Ord. 2736, § 1 (part), 2008)

15.01.040 Definitions.

For the purposes of this chapter, certain terms, phrases, words and their derivatives shall be defined as specified in this section or other adopted technical codes. Where words and

terms are not defined, they shall have their ordinary accepted meanings within the context with which they are used. The latest edition of Webster's Third New International Dictionary of the English Language, Unabridged, shall be considered as providing ordinary accepted meanings. Words used in the singular include the plural, and the plural the singular. Words used in the masculine gender include the feminine, and the feminine the masculine.

Alter or *alteration* means any construction or renovation to an existing building, structure or building service equipment other than repair or addition.

Amusement and transportation system (ATS) is any ride, device, building or structure that is used primarily for human entertainment and enjoyment, either moving or stationary. The final determination whether a ride, device or structure shall be classified under this definition shall be made by the building official. For the purposes of this chapter, slot machines, electronic gaming devices, pinball games, electronic arcade games, and non-motorized playground equipment are not amusement and transportation systems.

Amusement system or transportation system permit means permits issued by the building official authorizing construction and installation of an ATS. At the option of the building official, an amusement and transportation system permit may include in its scope any subsidiary permits for supporting or enclosing structures and buildings, associated and accessory structures, utility permits, and other building service equipment.

Approved, as to materials, types of construction, equipment and systems refers to approval by the building official as the result of investigation and tests, or by reason of accepted principles or tests by recognized authorities, technical or scientific organizations.

Approved agency is a quality assurance agency that has been approved and listed by the building official pursuant to this chapter.

Approved construction documents are construction documents that have been reviewed and approved for permit by the building official pursuant to this chapter.

Approved fabricator means a company that constructs or assembles standardized building components into assemblies in an approved manner based on submittal of specified documentation and successful periodic evaluation for conformance to standard operating procedures and tests such that the company is listed on the published approved fabricators list.

Approved products are products that are included on product listings from testing and listing agencies approved by the building official.

Approved special inspector is a special inspector who has been approved and listed by the building official pursuant to this chapter.

Area acceptance report is a report to the building official that states all required activities for special inspection item(s) are complete and acceptable for a portion of the work authorized by a permit.

ATS means "amusement and transportation system" as defined in this chapter.

Building means any structure used or intended for supporting or sheltering any use or occupancy.

Building code means that edition of the International Building Code and amendments thereto adopted by the City of Henderson and referenced in chapter 15.08 of the Henderson Municipal Code.

Building, existing. "Existing building" means a building erected prior to the adoption of the currently adopted technical codes or one for which a legal, unexpired building permit has been issued by the building official.

Building official means the City of Henderson building official and the building official's designee(s).

Building service equipment means the plumbing, mechanical, electrical and elevator equipment including piping, wiring, fixtures and other accessories that provide potable water, sanitation, lighting, heating, ventilation, cooling, refrigeration, fire-fighting and transportation facilities essential for the habitable occupancy of a building or structure for the designated use and occupancy.

Building service equipment, existing. "Existing building service equipment" means building service equipment lawfully installed prior to the adoption of the currently adopted technical codes or for which a legal, unexpired permit has been issued by the building official.

maintenance, the approved operations and maintenance manual(s), and approved plans and any other requirements of this chapter. A current certificate of operation is required in order to lawfully operate an ATS.

Commercial coach means a structure without motive power which is designed and equipped for human occupancy for industrial, professional or commercial purposes. A commercial coach is intended to be shipped to a location and remain at that site for a temporary period of time. A commercial coach does not include a recreational park trailer.

Construction documents are plans, specifications, supporting calculations and other data prepared to describe the design, materials, physical characteristics, location, orientation, and scope of a proposed project necessary to obtain a permit.

Construction offices are those trailers which are intended to serve as temporary, on-site office and meeting space for the owner, architects, engineers and other project representatives during, and related to, the actual construction of a project. Construction offices do not include office space of the contractor's construction personnel.

Construction trailers are those trailers which are intended to serve as temporary, on-site office and meeting space for contractors, subcontractors and other project representatives during, and related to, the actual construction of a project. Construction trailers do not include sales offices or satellite offices of the contractors, architect, engineer, etc., if the staff is working permanently therein.

Dangerous building code means that edition of the Uniform Code for the Abatement of Dangerous Buildings and amendments thereto adopted by the City of Henderson and referenced in chapter 15.10 of the Henderson Municipal Code.

Department means the City of Henderson building and fire safety department.

Design professional is an individual who is registered or licensed by the State of Nevada pursuant to Nevada Revised Statutes chapters 623, 623A, or 625.

Device is a component or system that may contain electrical, mechanical and/or pyrotechnic effects that require specific safety features to protect the general public.

Electrical code means that edition of the National Electrical Code and amendments thereto adopted by the City of Henderson in chapter 15.16 of the Henderson Municipal Code.

Fire code means that edition of the International Fire Code and amendments thereto adopted by the City of Henderson in chapter 15.32 of the Henderson Municipal Code.

Jurisdiction as used in this chapter is the area within the incorporated boundaries of Henderson, Nevada.

Life-safety system means, without limitation, electrical, plumbing, heating, ventilating, air conditioning, emergency lighting, fire alarm systems, fire sprinklers, smoke detectors, fire walls, fire barriers and exits required by the technical codes for the protection of human life and safety.

Listed equipment, materials or services included in a list published by an organization acceptable to the building official and concerned with evaluation of products or services that maintains periodic inspection of production of listed equipment or materials or periodic evaluation of services and whose listing states either that the equipment, material or service meets identified standards or has been tested and found suitable for a specified purpose by an approved testing agency that is qualified and equipped for experimental testing and maintaining an adequate, periodic inspection of current productions, and whose listing states the equipment complies with recognized safety standards.

Listing and *listing report* is a published statement or document that details the products and services evaluated by a nationally recognized body and any conditions or limitations placed on the use of the product or service by that body. Listings and reports are subject to acceptance by the building official.

Major modification of any amusement and transportation system (ATS) is any change in either the structural or operational characteristics of the ATS that will alter its performance from that specified in the manufacturer's design criteria, including ride control software.

Manufactured home means a structure which is built on a permanent chassis, designed to be used with or without a permanent foundation as a dwelling when connected to utilities; a manufactured home does not include a recreational park trailer, travel trailer, modular building, commercial coach or mobile home.

Mechanical bull is an operator-controlled device, operated in such a manner that the intention is to cause the ejection of the rider.

Mechanical code means that edition of the Uniform Mechanical Code and amendments thereto adopted by the City of Henderson in chapter 15.24 of the Henderson Municipal Code.

Mobile home means a vehicular structure which is built on a chassis or frame, is designed to be used with or without a permanent foundation, is capable of being drawn by a motor vehicle and is used as a dwelling when connected to utilities. Mobile home does not include a recreational park trailer, travel trailer, modular building, commercial coach or manufactured home.

Modular building means an office, apartment, school, motel or other building, whether it is a total building or room, which is either wholly manufactured or is in substantial part manufactured at an off-site location to be wholly or partially assembled on-site in accordance with regulations adopted by the State of Nevada. A modular building is intended to

a motor vehicle and is used as a dwelling when connected to utilities. Mobile home does not include a recreational park trailer, travel trailer, modular building, commercial coach or manufactured home.

Modular building means an office, apartment, school, motel or other building, whether it is a total building or room, which is either wholly manufactured or is in substantial part manufactured at an off-site location to be wholly or partially assembled on-site in accordance with regulations adopted by the State of Nevada. A modular building is intended to be shipped to a location and remain at that site for its intended life as an improvement to the real estate. A modular building does not include a mobile home or recreational park trailer.

Nationally recognized body is an organization that evaluates testing laboratories, inspection agencies as well as fabrication and manufacturing facilities that produce products and services in accordance with the technical codes. A listing or report is published that details the products and services evaluated and any conditions or limitations placed on their use. The listing or report is subject to acceptance by the building official.

Occupancy means the purpose of which a building or structure or part thereof is used or intended to be used. The term "occupancy" as used in this chapter shall include the building or structure or part thereof housing the intended use.

Occupant means the person who resides in and/or has primary use of a building or structure or a portion of a building or structure.

Owner means any person, agent, firm or corporation having a legal or equitable interest in the property.

Patron is a person who participates in an amusement and transportation system (ATS) whether paying or non-paying, including employees.

Permit means an official document or certificate issued by the building official authorizing performance of a specified activity.

Permit applicant means the person that has filed an application with the building official for a permit.

Permitee means the person to whom a permit is issued.

Permitted work means the work for which a permit is issued.

Person means an individual, heirs, executors, administrators or assigns, and also includes a firm, partnership or corporation, its or their successors or assigns, or the agent of any of the aforesaid.

Plumbing code means that edition of the Uniform Plumbing Code and amendments thereto adopted by the City of Henderson in chapter 15.20 of the Henderson Municipal Code.

Pool code means the Southern Nevada Pool Code adopted in chapter 15.44 of the Henderson Municipal Code.

Prime agency means an approved agency designated by the owner or design professional acting on behalf of the owner to provide special inspection services and required special inspection documents to the building official.

Principal design professional is an architect registered pursuant to Nevada Revised Statutes chapter 623 or a professional engineer licensed pursuant to Nevada Revised Statutes [chapter] 625 who is responsible for the coordination of each aspect of the construction documents that are submitted to the building official for approval.

Prohibited use notice means a written document issued by the building official indicating non-compliance with the requirements of certification, installation, inspection, operation or any provisions of the amusement and transportation system (ATS) code and further indicating that the ATS may not be operated for other than repairs, inspection or testing.

Public facility model means a comprehensive model or map of the physical location of all or a substantial portion of the facilities of a public utility, public water system or video service provider. A public facility model does not include public utilities or public water systems that are owned or operated by the city.

Public utility has the meaning ascribed to it in NRS 704.020.

Public water system has the meaning ascribed to it in NRS 445A.235.

Quality assurance agency (QAA) means an approved organization that is in the business of providing inspection, testing and reporting services for the types of construction and construction work that are regulated in the technical codes.

Quality assurance agency special inspection agreement means an agreement between an owner that has been issued a permit, or a design professional acting on behalf of that owner, and an approved quality assurance agency listing the types of construction and construction work required to be verified through a special inspection process.

Quality system auditor means a person with the requisite knowledge, skill and experience to evaluate the quality assurance and quality control operations of fabrication and manufacturing facilities.

Recognized agency means a quality assurance agency (QAA) that maintains an accreditation through a nationally recognized body.

Recognized fabricator/*manufacturer* means a facility that is listed or maintains an evaluation report through a nationally recognized body. The evaluation report or listing is used by the building official to determine the acceptability of the quality control and quality assurance operations of the facility.

Recreational park trailer means a vehicle which is primarily designed to provide temporary living quarters for recreational, camping or seasonal use.

Repair means the reconstruction or renewal of any part of an existing building, structure or building service equipment for the purpose of maintenance or continued use, operation or occupancy.

Residential code means that edition of the International Residential Code and amendments thereto adopted by the City of Henderson and referenced in chapter 15.09 of the Henderson Municipal Code.

Ride means an amusement ride or transportation system (ATS) as defined in this chapter.

Sales trailer are those trailers which are intended to serve as temporary, office and sales space for customer sales during the construction of a project.

Shall, as used in this chapter, is mandatory.

Special inspection means a process of inspection, testing and reporting by approved special inspectors and quality assurance agencies to assure the building official that the construction of structural elements, materials, and life safety systems is being performed in accordance with the approved construction documents and applicable technical code.

Special inspection category means that collection of specialized inspection activities specified in chapter 17 of the International Building Code.

Special inspection personnel are individuals employed by an approved quality assurance agency and listed by the building official as a special inspector, technician, a laboratory supervisor, a laboratory director, a field supervisor, a quality manager, or an engineering manager.

Special inspector is an individual who has specialized knowledge, skill, training, experience and professional certifications by a nationally recognized body for one or more of the types of construction subject to special inspection as specified in chapter 17 of the International Building Code.

Structure means that which is built or constructed.

Structure, existing. "Existing structure" means a structure erected prior to the date of adoption of the currently adopted technical codes, or one for which a legal building permit has been issued.

Subcontracted agency means an approved agency providing special inspection services through a prime agency.

Technical codes means those codes adopted in chapters 15.08, 15.09, 15.10, 15.16, 15.20, 15.24, 15.44, 15.45 and 15.56 of title 15 of the Henderson Municipal Code.

Technical guidelines means the rules and regulations promulgated by the building official to carry out the purpose and provisions of this chapter.

Transportation system means any moving apparatus which is primarily intended for transportation but may include entertainment and enjoyment while moving along, around, or over a fixed or restricted course. This definition includes people movers and monorails for private property, linking of properties, or when included in a franchise agreement. The final determination as to whether an apparatus shall be classified under this definition shall be made by the building official. The definition of transportation system does not include automobiles, trucks, buses, surface trains or other transportation means when existing regulation of the State of Nevada for federal authorities would conflict with this chapter.

Valuation or *value,* for the purpose of this chapter, means the total value of work including materials and labor, grading, site development, electrical, gas, mechanical, plumbing, painting, finish work, roofing, fire protection and any other permanent systems or equipment for which a permit is being issued. Final determination of value shall be made by the building official.

Video service provider has the meaning ascribed to it in NRS 711.151.

Work as used in this chapter means, without limitation, the construction, erection, alteration, installation, production, activity, manufacture, labor or operation that goes into the making of the proposed project that is subject to a permit.
(Ord. No. 3324, § 1, 12-15-2015; Ord. No. 3141, § 1, 4-1-2014; Ord. 2736, § 1 (part), 2008)

15.01.045 Moved buildings.

Buildings or structures moved into or within the City of Henderson shall comply with the provisions of this chapter, the technical codes and title 19 of the Henderson Municipal Code for new buildings and structures. All required permits shall be obtained prior to the demolition or removal or relocation of a building or structure to a new site.

A. *Requirements for site demolition.* The owner is responsible to properly disconnect all utility services from the site of a moved building and remove all debris, building materials, foundations, and accessory building components from the site on which the building existed. The sewer lateral serving the premises shall be removed or shall be capped as determined by the Henderson utilities services department. For this work, the owner shall obtain a demolition permit in accordance with this chapter.

B. *Permit requirements for moved or relocated building.* Application to move or relocate a building or structure shall be accompanied by:

1. The legal description of the property on which the building or structure is currently located;

2. The legal description of the property on which the moved or relocated structure is to be placed;

3. A fully dimensioned plot plan showing the size of the parcel on which the moved or relocated building is to be placed, any existing buildings on that parcel, and the distance from the moved or relocated building to existing buildings and all property lines;

6. A performance bond of cash or surety in favor of the city in an amount as determined by the building official sufficient to cause the removal of the moved building and all improvements should the project be abandoned;

7. And a letter of intent for completion, including a completion schedule, signed by the owner.

If the owner fails to complete the project as detailed in the completion letter, which, for the purposes of this section, is deemed to be a maximum of 180 days, the owner may request a single 180-day extension from the building official by showing cause of extreme hardship. Should the owner fail to complete the project after expiration of the time specified in the intent for completion letter and any granted extension, the building official shall initiate action to cause the performance bond of cash or surety to be utilized to demolish or remove the moved or relocated building or structure and all site improvements as may be deemed appropriate by the building official.

C. *Permit requirements for new site.* At the new site for a moved building, all work including construction of the foundation, installation of site utilities, site development and additions, alterations or repairs made to the moved building or structure shall require a permit application, construction document approval and permit issuance pursuant to the requirements of this chapter. Such work shall be inspected and shall obtain all required approvals prior to use or occupancy of the building or structure in accordance with this chapter and the technical codes.

(Ord. 2736, § 1 (part), 2008)

15.01.050 Temporary buildings or structures.

Temporary buildings or structures such as reviewing stands, grandstands, sheds, and other miscellaneous structures located on private property shall require a permit application, construction document approval and building permit issuance.

Exception. Temporary buildings or structures erected or used for 30 days or less.

Such buildings or structures need not comply with the type of construction or fire resistive time periods required by the building code provided they do not exceed 500 square feet in area and are separated from other structures and lot lines as determined by the building official.

No temporary building or structure shall be used or occupied without a current temporary certificate of occupancy (TCO). The initial TCO for temporary buildings or structures may be issued for a period not to exceed 180 days. Upon expiration of the TCO, the temporary

building or structure shall be completely removed within 15 days unless the TCO has been extended. When a TCO for a temporary building or structure is renewed or extended, the owner is required to obtain an inspection of the temporary building or structure.

Exceptions:

A. Temporary membrane structures regulated by the Henderson fire code.

(Note: All requirements of the Henderson Fire Code, including required permits and inspection approvals, remain applicable to such membrane structures.)

B. Temporary ATS and structures such as haunted houses and fireworks stands that do not exceed 30 days in duration from erection to removal.

(Note: All requirements of the Henderson Fire Code, including required permits and inspection approvals, remain applicable to such temporary structures, excluding temporary ATS.)

C. Temporary structures such as canopies or fences used for the protection of the public during permitted construction may, when approved by the building official, continue in existence until such time as related construction is completed or protection is no longer required.

(Ord. 2736, § 1 (part), 2008)

15.01.055 Historic buildings.

Repairs, alterations and additions necessary for the preservation, restoration, rehabilitation or continued use of a building, structure and its buildings service equipment may be made without conformance to all the requirements of the technical codes when approved by the building official provided:

A. The building or structure has been designated by official action of the legally constituted authority of the City of Henderson as having special historical or architectural significance;

B. Any unsafe conditions as described in this chapter, the technical codes and the property maintenance code contained in chapter 15.12 of the Henderson Municipal Code are corrected;

C. The repairs, alterations or additions to the building, structure or its building service equipment shall not cause the existing building, structure or building service equipment to be more hazardous based on life safety, fire safety and sanitation than before the repairs, alterations or additions occurred.

(Ord. 2736, § 1 (part), 2008)

15.01.060 Alternate materials and methods of construction.

The provisions of the technical codes are not intended to prevent the use of any material, design, or method of construction not specifically prescribed by the technical codes, provided such alternative has been approved by the building official. An alternative material, design or method of construction may be approved provided the building official finds the proposed alternate is satisfactory and complies with the intent of the technical codes and the proposed alternate is at least equivalent to that prescribed by the technical codes in suitability, strength, effectiveness, fire resistance, durability, performance, safety and sanitation.

The building official shall require that sufficient evidence of proof be provided to substantiate any claims made regarding the suitability of any proposed alternate. The International Code Council Performance Code for Buildings and Facilities may be referenced as a guide for using alternate methods and materials. The building official may require that evidence or proof be submitted for review and acceptance by the board of appeals prior to the granting of an approval. Record of any action granting approval of an alternate shall be kept by the building and fire safety department as required by prevailing law.

Alternates are project-specific and the granting of approval of an alternate for one project does not constitute approval of that same alternate for another project.
(Ord. 2736, § 1 (part), 2008)

15.01.065 Modifications.

Whenever there are practical difficulties in complying with the provisions of the technical codes, the building official shall have the authority to allow modification to the technical codes on an individual case-by-case basis provided the building official first determines that strict compliance with the technical codes is impractical. No modification shall be granted which lessens the requirements of the health, life safety or structural integrity of the technical codes or the intent of those codes as determined by the building official. Record of action granting any modification shall be kept by the building and fire safety department as required by prevailing law.
(Ord. 2736, § 1 (part), 2008)

15.01.070 Tests.

Whenever there is insufficient evidence of compliance with the provisions of the technical codes or evidence that a material or method of construction does not conform to the requirements of the technical codes, or in order to substantiate claims for proposed alternate materials and methods, the building official shall have the authority to require

tests to provide verification of compliance. The permit applicant shall pay the costs of all tests required by the building official. Test methods shall be as specified in the technical codes or by other recognized test methods acceptable to the building official. Tests shall be performed by an approved or recognized agency. Test reports will be retained by the building and fire safety department as required by prevailing law. In the absence of recognized or accepted test methods, the building official shall approve the testing procedures. The building official may require an opinion of a qualified independent third-party professional regarding a proposed testing procedure. The building official shall approve the qualified independent third-party professional in consultation with the permit applicant and the permit applicant shall pay the cost of all third-party review services.
(Ord. 2736, § 1 (part), 2008)

15.01.075 Conflicting provisions.

Whenever conflicting provisions or requirements occur between this chapter, the technical codes and other laws and regulations, the most restrictive shall govern. Where conflicts occur between the technical codes, those provisions providing the greater safety to life shall govern. Where different sections of the technical codes specify different materials, methods of construction or other requirements, the most restrictive shall govern. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern. In any situation in which a conflict may develop between the development code contained in title 19 of the Henderson Municipal Code and the technical codes or this chapter relating to the location or height of buildings and structures, the most restrictive shall govern.
(Ord. 2736, § 1 (part), 2008)

15.01.080 Creation of enforcement agency.

The building and fire safety department is hereby designated as the enforcing agency for this chapter and the technical codes. The building and fire safety director is hereby designated the building official and authority having jurisdiction and is responsible for enforcement of this chapter and the technical codes. Whenever the term or title "administrative authority," "responsible official," "director," "chief inspector," "code enforcement officer," "authority having jurisdiction" or other similar designation is used herein or in the technical codes, it shall be construed to mean the building official.

The building official is authorized and directed to enforce all the provisions of this chapter and the technical codes and shall have the power to prepare, sign and serve misdemeanor citations pursuant to Nevada Revised Statutes 171.17751. The building official may appoint technical officers, plan reviewers, inspectors and other employees to carry out the functions of the building official. The building official may delegate authority and responsi-

bility for enforcement of specific provisions of this chapter and the technical codes to qualified third-parties upon approval by the city council of a contract or memorandum of understanding delegating said authority and responsibility. The building official shall have the power to render interpretations of this chapter and the technical codes and to adopt policies, procedures, rules and regulations supplemental to this chapter and the technical codes to carry out the provisions of this chapter and the technical codes. Such policies, procedures, rules, regulations and interpretations shall be in conformance with the intent and purpose of this chapter and the technical codes.
(Ord. 2736, § 1 (part), 2008)

15.01.085 Enforcement.

Enforcement of this chapter shall comply with the requirements of this section.

A. *Right of entry.* Whenever necessary to make an inspection to enforce any of the provisions of this chapter and the technical codes or whenever there is reasonable cause to believe that there exists in any unoccupied building, structure, building service equipment, ATS or upon any unoccupied premises any condition or code violation which makes such building, structure, building service equipment, ATS or premises unsafe, dangerous or hazardous, the building official may enter such building, structure, building service equipment, ATS or premises at all reasonable times to inspect the same or to perform any duties imposed by the technical codes and this chapter.

When it is necessary to make an inspection to enforce any of the provisions of this chapter and the technical codes, or whenever there is reasonable cause to believe that there exists in any occupied building, structure, building service equipment ATS or upon any unoccupied premises any condition or code violation which makes such building, structure, ATS, or premises unsafe, dangerous or hazardous, the building official shall first make a reasonable effort to locate the owner or other persons having charge or control of the building or premises and demand entry. If entry to a building, structure, building service equipment, ATS or premises is refused, the building official shall have recourse to every remedy provided by law to secure entry, including obtaining a warrant for entry and inspection.

B. *Stop work orders.* Whenever any work is being done contrary to the provisions of this chapter or the technical codes, to an issued permit, or to other pertinent laws or regulations, the building official may order the work stopped by notice in writing served on any persons engaged in the doing or causing such work to be done, and any such person shall forthwith stop such work until authorized by the building official to resume work. Should individuals issued a written stop work notice continue to perform work in violation of that order, the building official may request

the assistance of the code enforcement division of the building and fire safety department or the Henderson police department in enforcing the requirement to stop work. Any person who shall knowingly proceed to do work in violation of a stop work order shall be guilty of a misdemeanor and shall be issued a misdemeanor citation by an authorized police or peace officer. In addition, police officers have the power to arrest individuals who knowingly proceed to do work in violation of a stop work order after having been issued a misdemeanor citation.

Whenever any work has been stopped for one or more of the above stated reasons, an investigative fee may be assessed by the building official to recover the direct and indirect costs of conducting an investigation including the cost of inspections, report preparation, clerical support and supervisory and managerial oversight of the investigation. Investigative fees shall be paid prior to the building official authorizing work to resume.

C. *Occupancy violations.* Whenever any building, structure, building service equipment or ATS regulated by this chapter and the technical codes is occupied or used contrary to the provisions of this chapter, the technical codes or other pertinent laws, ordinances or regulations, the building official may order such occupancy or use discontinued until the building, structure, building service equipment or ATS is brought into conformance with this chapter, the technical codes or other pertinent laws, ordinances or regulations. Such notice shall be in writing served on any person causing such occupancy or use to continue. Persons causing the occupancy or use of a building, structure, building service equipment or ATS found to be in violation of this chapter, the adopted technical codes or other pertinent laws, ordinances or regulations shall discontinue the occupancy or use within the time prescribed by the building official after receipt of written notice. Any person who knowingly continues to occupy or use any building, structure, building service equipment or ATS in violation of written notice shall be guilty of a misdemeanor and shall be issued a misdemeanor citation by an authorized police or peace officer. In addition, police officers have the power to arrest individuals who knowingly continue to occupy or use a building, structure, building service equipment or ATS after having been issued a misdemeanor citation.

D. *Authority to disconnect building service equipment.* When the building official determines that any building service equipment regulated by the technical codes has become hazardous to life, health, property or unsanitary, the building official shall order in writing that such equipment either be removed or restored to a safe or sanitary condition. The written notice shall fix a time limit for compliance with such order. No person shall use or maintain hazardous building service equipment after receiving such notice. When any building service equipment is maintained in

violation of the technical codes and in violation of any notice issued pursuant to the provision of this section, the building official shall institute any appropriate action to prevent, restrain, correct or abate the violation.

1. *Emergency disconnection.* The building official shall have authority to disconnect any utility service equipment supplied to any building, ATS, structure, mobile home, trailer, recreational vehicle or premises regulated by this chapter or the technical codes in case of emergency when necessary to eliminate an immediate hazard to life or property. The building official shall whenever possible notify the serving utility, the owner and the occupant of any building, ATS, structure, mobile home, trailer, recreational vehicle or premises of the decision to disconnect at least 24 hours prior to taking such action, and shall notify in writing such serving utility, owner and occupant of the building, ATS, structure, mobile home, trailer, recreational vehicle or premises of such disconnection immediately thereafter. Upon demand, the owner or occupant shall be granted an immediate pre-disconnect or post-disconnect hearing by the building official.

2. *Non-emergency disconnection.* The building official shall have the authority to disconnect any utility service or energy supplied to any building, ATS, structure, mobile home, trailer, recreational vehicle, premises or building service equipment regulated by this chapter or the technical codes where notification has been provided and where violation of one or more of the technical codes is deemed to be in existence.

Disconnection of utilities is authorized where an electric or natural gas service has been connected to a building, ATS, structure, mobile home, trailer, recreational vehicle or premises that has not been approved for occupancy or operation at that site, or where a permit for temporary power has expired and the electrical connection is still in use.

a. *Notification.* The building official shall issue the notice to the owner of the building, ATS, structure, mobile home, trailer, recreational vehicle or premises and the occupant thereof by personal service or U.S. certified mail (return receipt requested) and posting the entrance of such building, ATS, structure, mobile home, trailer, recreational vehicle or premises. If the building official is unable to notify the owner or occupant by personal service or certified mail, the posting of the entrance of such building, ATS, structure, mobile home, trailer, recreational vehicle or premises shall be considered proper and sufficient notification. The notice shall contain:

(1) The street address or legal description of the property sufficient for identification of the building, ATS, structure, mobile home, trailer, recreational vehicle or premises.

(2) A statement that the building official has determined one or more violations of the technical codes (to be specified in detail) are in existence and that disconnection of utility service(s) or energy connections is authorized by this chapter.

(3) A statement of the action to be taken as determined by the building official which may range from a voluntary disconnection on the part of the owner within a time certain as specified by the building official, to involuntary disconnection at a specified time certain if specific action is not accomplished on the part of the owner such as, but not limited to, application for a zone variance or the removal of the building, ATS, structure, mobile home, trailer, recreational vehicle or premises.

(4) Statements advising that if the stated action to be taken by the owner is not accomplished within a specified period of time as determined by the building official from the date of service of the notice, the building official may order the utility to disconnect service, with the costs for such action to be borne by the owner. Responsibility for damages, losses and liabilities consequent with the loss of utility service shall be borne by the owner and not the City of Henderson, nor its officers or employees.

(5) Statements advising: (1) that any person having any record title or legal interests in the building, ATS, structure, mobile home, trailer, recreational vehicle or premises may appeal the notice to the building official within 15 days from the date of service of such notice; (2) that it is assumed that those referred to as having title or legal interest include the occupant; and (3) that failure to appeal will constitute a waiver of all rights to an administrative hearing and determination of the matter. If the owner or occupant can conclusively demonstrate the likelihood of a loss of human life or serious health endangerment consequent to a loss of power to the site and can further conclusively demonstrate the inability to provide alternate living arrangements for the endangered person, then the building official may stay a disconnect order until such time as a final determination is made by the building official.

b. *Appeals.* Within 15 days upon receipt of an appeal pursuant to (a)(5) above, the building official shall schedule a hearing before the board of appeals. This hearing shall constitute the sole administrative recourse provided. Failure to appeal within 15 days of the date of a notice issued pursuant to this section shall constitute a waiver of all right to an administrative hearing and determination of the matter.

c. *Enforcement.* After any notice of the building official made pursuant to this section shall become final, no person to whom any such notice is directed shall fail, neglect or refuse to obey any such notice. Any such person who fails to comply with any such notice is guilty of a misdemeanor.

d. *Notice to serving utility.* When utility service or energy to such a building, ATS, structure, mobile home, trailer, recreational vehicle or premises is to be disconnected, a written notice of such disconnection and causes therefore shall be provided at least 24 hours prior to such disconnection to the serving utility, the owner and the occupants of such building, ATS, structure, mobile home, trailer, or recreational vehicle.

3. *Removing, or defacing a posted notice or interfering with the posting of a notice.* It shall be a misdemeanor to remove or deface a posted notice or to interfere with the posting of the notice or the disconnection of any utility under the provisions of this chapter.

4. *Connection after order to disconnect.* No person shall make connections from any energy, fuel or power supply nor supply energy or fuel to any building service equipment that has been disconnected or ordered to be disconnected by the building official or the use of which has been ordered to be disconnected by the building official until such time as the building official has authorized the reconnection and use of such equipment.

(Ord. 2736, § 1 (part), 2008)

15.01.090 Liability.

The building official, members of the board of appeals and employees charged with the enforcement of this chapter, the technical codes and other pertinent laws, ordinances and regulations, while acting for the City of Henderson in good faith and without malice in the discharge of the duties required by this chapter, the technical codes and other pertinent laws, ordinances and regulations, shall not thereby be rendered personally liable and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. Any suit instituted against a member of the board of appeals, an officer or an employee because of a performed act or the failure to perform an act by that board member, officer or employee in the lawful discharge of duties and under the provisions of this chapter, the technical codes and other pertinent laws, ordinances and regulations shall be defended by a legal representative of the City of Henderson until final determination of the proceedings. The building official or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of this chapter, the technical codes and other pertinent laws, ordinances and regulations.

(Ord. 2736, § 1 (part), 2008)

15.01.095 Cooperation of other officials and officers.

The building official may request and shall receive the assistance and cooperation of others in the City of Henderson in the enforcement of this chapter, the technical codes and other pertinent laws, ordinances and regulations.
(Ord. 2736, § 1 (part), 2008)

15.01.100 Contract services.

Pursuant to Nevada Revised Statutes 278.575, the building official may contract for plan review services, engineering review services, and inspection services with qualified public agencies, qualified subdivisions of the State of Nevada and qualified private-sector firms and individuals as determined by the building official and in accordance with the applicable City of Henderson purchasing and contracting procedures. The building official shall base the determination of whether agencies, political subdivisions, private-sector firms and individuals are deemed "qualified" based upon objective criteria and the nature of the work to be performed.
(Ord. 2736, § 1 (part), 2008)

15.01.105 Delegation of authority.

The building official may delegate authority to plan review or inspect buildings and structures to qualified political subdivisions of the State of Nevada or other qualified governmental agencies or entities by way of a memorandum of understanding, contract or interlocal governmental agreement that clearly details the delegated duties, responsibilities and obligations.
(Ord. 2736, § 1 (part), 2008)

15.01.110 Unsafe buildings, structures, building service equipment and ATS structures and equipment.

All buildings, structures, building service equipment and ATS structures and equipment regulated by this chapter and the technical codes that are structurally inadequate or have inadequate egress, or that constitute a fire or life safety hazard are, for the purpose of this chapter and the technical codes, unsafe. Building service equipment regulated by this chapter and the technical codes that constitute a fire, electrical or health hazard, or is otherwise dangerous to human life is, for the purpose of this chapter and the technical codes, unsafe.

Any use of buildings, structures, ATS or building service equipment constituting a hazard to safety, health or public welfare by reason of inadequate maintenance, dilapidation, obsolescence, fire hazard, disaster, damage or abandonment is, for the purpose of this chapter and the technical codes, an unsafe use.

Parapet walls, cornices, eaves, spires, towers, tanks, statuary and other appendages or structural members that are supported by, attached to or part of a building or structure and in a deteriorated condition or otherwise unable to sustain the design loads specified in the building code are, for the purpose of this chapter and the technical codes, unsafe building appendages.

All such unsafe buildings, ATS rides and devices, structures, building service equipment, parapet walls, cornices, eaves, spires, towers, tanks statuary and other building appendages or structural members that are supported by, attached to or part of a building are hereby declared to be a public nuisance and shall be abated by repair, rehabilitation, demolition or removal in accordance with the procedures set forth in this chapter, the Uniform Code for the Abatement of Dangerous Buildings as adopted in chapter 15.10 of the Henderson Municipal Code or the property maintenance code adopted in chapter 15.12. The building official shall determine the appropriate abatement regulations to be utilized based upon the nature and degree of hazard involved.
(Ord. 2736, § 1 (part), 2008)

15.01.115 Board of appeals.

The board of appeals is created to hear and decide appeals of determinations made by the building official or fire chief relative to the application and interpretation of the technical codes. The board of appeals is authorized to hear appeals relating to this chapter and the technical codes and to review proposed alternate materials and methods of construction.

A. *Members.* The members of the board of appeals shall be qualified by training and experience to decide matters pertaining to building construction and building service equipment. The members shall not be employees of the City of Henderson. The members of the board of appeals shall consist of the following:

1. Two general contractors;

2. One electrical contractor or electrical engineer;

3. Two mechanical and/or plumbing contractors;

4. One fire protection engineer;

5. One lay member.

B. *Procedures.* The board of appeals shall adopt rules and procedures for conducting its hearings and investigations. A person (the appellant) who wishes to appeal a determination of the building official or fire chief to the board of appeals shall submit a written request for appeal to the building official or fire chief as applicable. The building official or fire chief, as applicable, shall provide the appellant a copy of

the guidelines for preparing an appeal and a copy of the board rules and procedures. The appellant is responsible to prepare the written appeal in compliance with the guidelines.

In order to provide for timely hearing and resolution of appeals, the building official or fire chief shall schedule a hearing before the board upon a determination of the building official or fire chief that a written appeal is in substantial compliance with the board guidelines for preparing an appeal.

The board shall issue a written decision based on the evidence presented at the hearing. The decision shall be signed by the chairman of the board and shall be filed with the building official or fire chief as applicable. A copy of the board decision shall be delivered to the appellant in person or by U.S. certified mail.

C. *Limitation and scope of authority.* The board of appeals shall not have authority relative to the interpretation of the administrative provisions of this chapter or the adopted administrative provisions of the technical codes, nor shall the board be empowered to waive any requirements of this chapter or the technical codes.

D. *Tests.* The appellant shall cause to be made at the appellant's expense any tests or research necessary to support appellant claims before the board of appeals and any tests or research as may be required by the board in its investigation of claims of the appellant.

E. *Liability.* Neither the board of appeals nor any member thereof shall be personally liable for, any damage that may accrue to persons or property as a result of any good faith act or any good faith act omission in the discharge of the duties specified herein. Any suit brought against the board or any member thereof resulting from such act or omission performed, or not performed, by a member of the board acting in an official capacity in the performance of board duties as specified in this chapter shall be considered an act of the City of Henderson and shall be subject to all applicable immunities and rights conferred by law upon the City of Henderson, as well as subject to applicable City of Henderson liability self-insurance or insurance coverage.

(Ord. 2736, § 1 (part), 2008)

15.01.120 Violations.

It shall be unlawful for any person to erect, construct, enlarge, alter, repair, move, improve, remove, convert, demolish, equip, use, occupy or maintain any building, ATS, structure or building service equipment or cause or allow the same to be done in violation of this chapter or the technical codes. Whenever in this chapter or the technical codes any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, the doing of any such act shall constitute a violation of this chapter or the technical codes.

adopted administrative provisions of the technical codes, nor shall the board be empowered to waive any requirements of this chapter, the property maintenance code set forth in chapter 15.12, the abandoned residential real property registry set forth in chapter 15.13, or the technical codes adopted by the city.

D. *Tests.* The appellant shall cause to be made at the appellant's expense any tests or research necessary to support appellant claims before the board of appeals and any tests or research as may be required by the board in its investigation of claims of the appellant.

E. *Liability.* Neither the board of appeals nor any member thereof shall be personally liable for, any damage that may accrue to persons or property as a result of any good faith act or any good faith act omission in the discharge of the duties specified herein. Any suit brought against the board or any member thereof resulting from such act or omission performed, or not performed, by a member of the board acting in an official capacity in the performance of board duties as specified in this chapter shall be considered an act of the City of Henderson and shall be subject to all applicable immunities and rights conferred by law upon the City of Henderson, as well as subject to applicable City of Henderson liability self-insurance or insurance coverage. Those members of the board of appeals or any member thereof acting or failing to act while in their official city capacity shall have qualified immunity.

(Ord. No. 3141, § 1, 4-1-2014; Ord. 2736, § 1 (part), 2008)

15.01.120 Violations.

It shall be unlawful for any person to erect, construct, enlarge, alter, repair, move, improve, remove, convert, demolish, equip, use, occupy or maintain any building, ATS, structure or building service equipment or cause or allow the same to be done in violation of this chapter or the technical codes. Whenever in this chapter or the technical codes any act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, the doing of any such act shall constitute a violation of this chapter or the technical codes.

Any person violating any of the provisions of this chapter or the technical codes shall be deemed guilty of a misdemeanor, and each person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of the provisions of this chapter or the technical codes is committed, continued or permitted to exist and upon conviction of any such violation, such person shall be punishable by a fine of not more than $1,000.00 or by imprisonment for not more than six months, or by both such fine and imprisonment.

(Ord. 2736, § 1 (part), 2008)

15.01.125 Permits required.

Unless exempted by this chapter, no building, structure, ATS, building service equipment, swimming pool, spa, sign, fence or wall regulated by this chapter or the technical

codes shall be erected, constructed, enlarged, altered, repaired, moved improved, removed, converted or demolished unless the appropriate building, electrical, plumbing, mechanical, swimming pool, spa, demolition or other permit(s) has first been obtained from the building official.
(Ord. 2736, § 1 (part), 2008)

15.01.130 Building permit exemptions.

A building permit shall not be required for the following:

A. Buildings, structures, or service equipment and installations directly used in utility generation or distribution which are installed on properly recorded easements and rights-of-way belonging to water, gas, power, telephone or other utility companies that are preemptively regulated and governed by the Nevada Public Service Commission, State of Nevada Charter, or other governmental entity. This exemption does not include site preparation, block walls, fences or habitable public areas such as offices, meeting rooms, and public service counters.

B. Improvements such as traffic lights, streets, curbs, gutters, sidewalks, drainage facilities, bus stops and similar improvements constructed on public property or in a public easement or right-of-way.

C. One-story detached accessory buildings in conjunction with a single family dwelling used as tool or storage sheds, playhouses and similar uses provided the floor area does not exceed 200 square feet;

D. Movable cases, counters and partitions not over five feet nine inches high;

E. Water tanks supported directly on grade if the capacity does not exceed 5,000 gallons and the ratio of height to diameter or width does not exceed two to one;

F. Walks and driveways not more than 30 inches above grade and not part of an accessible route or means of egress and not over any basement or story below;

G. Exterior stairways on-grade and not part of an accessible route or means of egress;

H. Platforms, decks and similar structures not more than 30 inches in height above grade in conjunction with a single-family dwelling;

I. Painting, papering and similar finish work;

J. Structures, booths, sets, and scenery used for motion picture, conventions, television shows, theaters, shows, special events, and similar temporary uses;

K. Window awning supported by an exterior wall of one- and two-family dwellings and garages accessory thereto when projecting not more than 54 inches;

L. A storable swimming or wading pool as defined in the pool code that is accessory to a single-family dwelling and in which the pool walls are entirely above the adjacent grade;

M. Pre-manufactured fabric sun shade and carport structures, wood gazebos and similar structures used in conjunction with a single-family dwelling and not exceeding 200 square feet in area and not permanently affixed to an existing building nor anchored to a permanent foundation;

N. Fences in rear yards without permanent foundations and not over four feet in height;

O. Fences not over 24 inches in height at any location;

P. Retaining walls that are not more than 24 inches in height measured from the top of the footing to the top of the wall;

Q. Hazardous material storage tanks regulated by the fire code;

R. Storage sheds and portable or mobile offices, including construction trailers not exceeding 400 square feet, on an active construction project site;

S. Livestock shade structures open on three sides and not more than 1,500 square feet in area;

T. Non-motorized playground equipment;

U. Storage racks less than or equal to eight feet in height unless designated as high-pile storage;

V. Portable spas accessory to a single-family dwelling with all heating and circulating equipment integral to the manufactured product;

W. Underground structures and facilities housing mechanical equipment constructed by a political subdivision of the State of Nevada and not intended for human habitation;

X. Replacement of existing exterior and interior windows, doors and similar openings not requiring enlargement of the wall opening;

Y. Replacement of existing roofing material of the same or higher class and the same or lighter material and not involving replacement of sheathing;

Z. Installation of additional layers of roofing material over existing roof covering not exceeding the maximum allowable number of layers;

AA. Minor repair of interior or exterior wall covering, such as stucco and drywall, provided the repair area does not exceed ten square feet and the repair work is not performed in conjunction with any other permit;

BB. Structures containing technical service equipment used for meteorological sampling or air quality sampling and testing by local, state or federal government agencies provided the structure does not exceed 240 square feet in area.

Exemption from the permit requirements of this chapter does not authorize any work to be done in violation of the provisions of this chapter, the technical codes, or any other pertinent ordinances, laws or regulations of the City of Henderson.
(Ord. No. 3906, § 2, 9-13-2022; Ord. No. 3141, § 1, 4-1-2014; Ord. 2736, § 1 (part), 2008)

15.01.135 Plumbing permit exemptions.

A plumbing permit shall not be required for the following:

A. The stopping of leaks in drain, soil, waste or vent pipe;

B. The clearing of stoppages or the repairing of leaks in pipes, valves or fixtures, or for the removal and reinstallation of plumbing fixtures, provided such repairs do not involve or require the replacement or rearrangement of valves, pipes or fixtures;

C. Lift stations, septic tanks and package plants regulated by the appropriate serving sanitation utility;

D. Automatic fire sprinkler systems (NOTE: These systems are regulated by the fire code);

E. Piping for dry chemical extinguishing systems serving Type I commercial hoods (NOTE: These systems are regulated by the fire code);

F. Fuel tanks buried or above ground that are regulated by the fire code or the State of Nevada;

G. Landscape water sprinkler systems;

H. Installation or replacement of water softeners where pre-plumbing for the softener is existing;

I. Replacement of plumbing fixtures in the same location with a similar fixture and materials provided no work is done other than the replacement of the fixture, the tail piece and/or the trap and provided the work does not penetrate the fire resistive rated construction, including a fire resistive rated concrete slab.

Exemption from the permit requirements of this chapter does not authorize any work to be done in violation of the provisions of this chapter, the technical codes, or any other pertinent ordinances, laws or regulations of the City of Henderson.
(Ord. 2736, § 1 (part), 2008)

M. Signal wiring outside of buildings installed by licensed and franchised cable television, telephone or buried cable installers;

N. Power-limited wiring of 50 volts or less in or associated with single-family dwellings;

O. Surface-mounted power-limited wiring;

P. Power limited Class II and III wiring not part of a fire system;

Q. Replacement of lighting fixtures in single family residences, dwelling units, guest rooms and guest suites as defined in the NEC;

R. Installation of low voltage devices and data links.

Exemption from the permit requirements of this chapter does not authorize any work to be done in violation of the provisions of this chapter, the technical codes, or any other pertinent ordinances, laws or regulations of the City of Henderson.
(Ord. 2736, § 1 (part), 2008)

15.01.145 Mechanical permit exemptions.

A mechanical permit shall not be required for the following:

A. Any portable heating appliance;

B. Any portable ventilating equipment;

C. Any portable cooling equipment;

D. Any portable evaporative cooler;

E. Any closed system of steam, hot or chilled water piping within any heating or cooling equipment regulated by the mechanical code;

F. Replacement of any component or assembly of an appliance that does not alter its original approval and complies with other applicable requirements of the technical codes;

G. Any refrigerating equipment that is part of the equipment for which a permit has been issued pursuant to the requirements of the technical codes;

H. Any unit refrigerating system as defined in the mechanical code;

I. Replacement of compressors of the same rating;

J. Any piping that is part of a manufacturing process.

Exemption from the permit requirements of this chapter does not authorize any work to be done in violation of the provisions of this chapter, the technical codes, or any other pertinent ordinances, laws or regulations of the City of Henderson.
(Ord. 2736, § 1 (part), 2008)

15.01.150 Grading permit exemptions.

A grading permit shall not be required for the following:

A. Grading in an isolated, self-contained area, not exceeding 100 cubic yards, provided there is no danger to the public, and that such grading will not adversely affect adjoining properties or on-site structures;

B. Excavation for construction of a structure permitted under this Code;

C. Cemetery graves;

D. Refuse disposal sites controlled by other regulations;

E. Excavations for wells or trenches for utilities;

F. Mining, quarrying, excavation, processing or stockpiling rock, sand, gravel, aggregate or clay controlled by other regulatory agencies provided such operations do not affect the lateral support of, or significantly increase stressed in, soil on adjoining properties;

G. Exploratory excavations performed under the direction of a registered design professional.

Exemption from the permit requirements of this chapter does not authorize any work to be done in violation of the provisions of this chapter, the technical codes, or any other pertinent ordinances, laws or regulations of the City of Henderson.
(Ord. 2736, § 1 (part), 2008)

15.01.155 Sign construction permit exemptions.

A sign construction permit shall not be required for the following:

A. Mobile or portable signs;

B. The changing of advertising copy or message on painted or printed signs, theater marquees and similar signs specifically designed for use of replacement copy;

C. Maintenance activities to include only painting, repainting, exact replacement with approved flashers, lamps, bulbs, ballasts, neon tubing, starters, neon transformers, wire or computer components, cleaning or changing the copy unless a structural change is made;

D. Memorial signs or tablets, names of buildings and date of erection when cut into any masonry surface or when constructed of bronze or other noncombustible materials;

E. Construction signs 32 square feet or less;

F. Holiday decorations;

G. Nameplates of four square feet or less;

H. Public signs or notices, or any sign relating to an emergency.

Exemption from the permit requirements of this chapter does not authorize any work to be done in violation of the provisions of this chapter, the technical codes, or any other pertinent ordinances, laws or regulations of the City of Henderson.
(Ord. 2736, § 1 (part), 2008)

15.01.160 Amusement and transportation system permit and certificate of operation exemptions.

Neither an ATS permit nor ATS certificate of operation shall be required for the below listed apparatus:

A. Non-motorized playground equipment;

B. Shows performed on stages that have been designed for such events;

C. Any ATS that is relocated on a regular basis, with or without disassembly, and operated for a period of less than 30 days on any single property such as, but not limited to, fair or carnival ATS;

D. Any ATS installed at single-family residential private property for the exclusive use of the owner and non-paying guests;

E. Repairs or minor modifications to an existing ATS operating under a valid ATS certificate of operation;

F. Mechanical bulls;

G. Non-motorized climbing walls;

H. Inflatable slides and bounce structures.

Exemption from the ATS permit and certificate of operation requirements of this chapter shall not authorize any ATS work, use or operation to be done in violation of the provisions of this chapter, the technical codes, or any other pertinent ordinances, laws or regulations of the City of Henderson.
(Ord. 2736, § 1 (part), 2008)

15.01.165 Permit denial.

The building official may deny the issuance of any permit regulated by this chapter for work on property upon which there exists any violation of this chapter, the technical codes or the Henderson Municipal Code unless the scope of work authorized by such permit includes corrective action to remove said violation.

In addition, the building official may deny the issuance of permits to individuals or firms who have failed to complete work and obtain final inspection approval for previously issued permits resulting in the expiration of those permits.
(Ord. 2736, § 1 (part), 2008)

15.01.170 Subcontractor registration.

Subcontractors performing plumbing, electrical or mechanical work authorized by a combination building permit shall file a subcontractor registration with the building and fire safety department. The submittal shall be by a qualified individual representing the person holding a valid unexpired, un-revoked or un-suspended contractors license as required by the State of Nevada unless specifically exempted by Nevada Revised Statutes chapter 624.
(Ord. 2736, § 1 (part), 2008)

15.01.175 Business license required.

Any contractor or subcontractor required to sign a permit or voucher, or who provides work, services, or other functions for any purpose whatsoever regulated by this chapter or the technical codes adopted by the City of Henderson shall first secure the applicable business license from the City of Henderson finance department.
(Ord. 2736, § 1 (part), 2008)

15.01.180 Amusement and transportation system permit required.

No person shall construct or install any amusement and transportation system (ATS) unless it has been issued an ATS permit for construction or installation. An ATS may not be lawfully operated unless it has passed all required inspections and an ATS certification of operation has been issued. A new ATS permit shall be obtained prior to commencement of work to relocate or substantially modify an existing ATS. A certificate of operation is required before any ATS may be lawfully operated. Possession of the required permit for construction or installation of an ATS shall not be construed to give the right to operate the ATS without having first obtained the required certificate of operation.
(Ord. 2736, § 1 (part), 2008)

15.01.185 Explosive demolitions.

A contractor using explosive devices or materials shall comply with the demolition technical guidelines and shall obtain an explosive demolition permit prior to commencing

preparation work for an explosive demolition. In accordance with the provisions of the fire code, an operation permit is required for the manufacture, storage, handling or use of any quantity of explosives and/or explosive materials.
(Ord. 2736, § 1 (part), 2008)

15.01.190 Permit application.

To obtain a permit for construction or installation as required by this chapter, the applicant shall first file an application in writing on a form furnished by the building official for that purpose. Every such application shall:

A. Identify and describe the work to be covered by the permit for which application is made;

B. Describe the land on which the proposed work is to be done by legal description, parcel number, street address or similar description that will readily identify and definitely locate the proposed work;

C. Indicate the use or occupancy for which the proposed work is intended;

D. Be accompanied by construction documents as required in this chapter;

E. State the valuation of any new building or structure or any addition, remodeling or alteration to an existing building;

F. Be signed by the permittee or an authorized agent of the permittee;

G. Applications for permits for public swimming and wading pools and spas shall have the prior written approval of the Health District of Southern Nevada, together with construction documents;

H. Reference all applicable technical codes, standards and ordinances that regulate the design and construction of the proposed project;

I. Provide such other data and information as may be required by the building official.
(Ord. 2736, § 1 (part), 2008)

15.01.195 Application for amusement and transportation system (ATS) permit.

To obtain an amusement and transportation system (ATS) permit for an amusement and transportation system, the owner/operator shall file an application in writing on a form furnished by the building official for that purpose. A group of identical ATSs may, at the option of the building official, be part of a group application, but shall be individually permitted. Every application shall be accompanied by all required reports, plans, calculations, specifications, data, manuals, fees and other items required by the building official. A

functional description of any computer software used in the operation of an ATS that includes methods to validate changes to the original installation and effects on the operational characteristics shall be included with the permit application.
(Ord. 2736, § 1 (part), 2008)

15.01.200 Submittal of construction documents.

Construction documents shall be submitted in multiple sets as required by the building official with each application for a permit.

Construction documents shall be prepared by a design professional or by a person who qualifies for an exemption pursuant to Nevada Revised Statutes chapters 623, 623A, 624, or 625. The building official may require persons claiming the design exemption to demonstrate their qualifications for the exemption and may require such persons to obtain written confirmation of qualifying for an exemption from the appropriate state or regulatory body.

Construction documents shall contain the name and signature of the design professional, contractor or owner of residential property who prepared the documents or under whose direct supervision the documents were prepared, and must conform to this chapter, the technical codes and the applicable provisions of the development code contained in title 19 of the Henderson Municipal Code. The signature of the design professional, contractor or owner of residential property who prepared the documents, or under whose direct supervision the documents were prepared, shall represent that the person takes responsibility for the content of the construction documents.

The building official may require construction documents to be prepared, stamped and signed by a licensed design professional. Computer generated calculations shall include a complete description of the mathematical model used in the design, program identification, input data, program application and limitations and final results. The building official may require the submittal of the program description (user's manual).

The building official may require a principal design professional be designated for any project that requires multiple disciplines (i.e., architectural, structural, mechanical, electrical, etc.). The principal design professional shall be responsible for the coordination of each aspect of the construction documents. All special inspection and structural inspection requirements shall be clearly specified in the construction documents by the design professional in responsible charge of the design work.

Exception. The building official may waive the submission of plans, calculations, special and structural inspection requirements, etc. if the proposed work is minor in nature and reviewing of plans is not necessary to obtain compliance with this chapter or the technical codes.
(Ord. 2736, § 1 (part), 2008)

15.01.205 Information on plans and specifications.

A. *General.* Plans and specifications submitted to the building official for review and approval shall comply with the requirements of this section. Plans shall be drawn to scale upon substantial paper and shall be of sufficient clarity to indicate the location, nature and extent of the work proposed and show in detail that the work will conform to the provisions of the technical codes and all relevant laws, ordinances, rules, regulations and shall include all components listed in the applicable City of Henderson development services center submittal checklists. All construction documents shall be of sufficient quality to be readable after they are reproduced from microfilm or electronic scanning. All revisions shall be identified with a delta symbol and clouded on the drawings or resubmitted as a new project. It shall be the responsibility of the principal design professional to notify the building official, the permittee and the prime agency of any and all changes to the construction documents throughout the project and provide revised construction documents prior to the commencement of work.

B. *General commercial work.* Prior to the issuance of applicable construction permits, applicants for permit for buildings or portions of buildings used for all occupancies except single-family dwellings shall provide the following plans to the building official unless exempted by the building Official:

1. *Master exit plan.* This plan shall be to scale and show sufficient detail to allow evaluation of existing facilities required by the building code;

2. *Natural gas plan.* This plan shall show the location of main and secondary natural gas distribution centers and areas served;

3. *Electrical plan.* This plan shall show the location of main and secondary electrical power distribution centers and areas served;

4. *Sprinkler plan.* This plan shall show the location of areas served by automatic sprinkler systems, standpipes (Class I, II, or III) and the location of the primary control valves and their locations in the building; and

5. *Fire protection report.* This report shall be required for all facilities with complex fire protection aspects, including high-rise buildings, covered mall buildings, atriums, hospitals, some amusement buildings, facilities with fire effects, and other facilities as determined by the building official. This report shall describe the active and passive fire protection features of the facility and shall describe how the different fire protection aspects interrelate to provide the level of protection intended by the code. This report shall address any unique and/or interpretive fire protection aspects of the facility.

C. *Commercial electrical and fire alarm.* Each application for a permit to install electrical wiring shall have attached thereto drawings showing in detail the riser diagram, proposed materials and method for installation of the wiring and apparatus, and complete load calculations in accordance with the electrical code. When required by the building official, these drawings shall be prepared under the supervision of, and certified by, an electrical engineer, licensed in the State of Nevada, who is well versed in the rules and regulations contained in the electrical code. Modifications of design shall require re-approval by the building official.

D. *Commercial plumbing.* Each application to install plumbing in all occupancies other than single-family dwellings shall have attached thereto a drawing showing in detail the proposed materials and method to be used for installation of fixtures and piping, including calculations where applicable. When required by the building official, these drawings shall be prepared under the supervision of, and certified by, a mechanical engineer, licensed in the State of Nevada, who is well versed in the rules and regulations contained in the plumbing code. Modifications of design shall require re-approval by the building official. Plumbing applications for single-family dwellings shall have attached thereto plans showing fixture layout, and fuel gas piping.

E. *Commercial mechanical.* Each application to install a mechanical system in all occupancies other than single-family dwellings shall have attached thereto a drawing showing in detail the proposed materials and method to be used for installation of the mechanical system, including calculations where applicable. When required by the building official, these drawings shall be prepared under the supervision of, and certified by, a mechanical engineer, licensed in the State of Nevada, who is well versed in the rules and regulations contained in the mechanical code. Modifications of design shall require re-approval by the building official.

F. *Swimming pools*/*spas*/*hot tubs.* Swimming pools, spas, and hot tubs, provided for residential property with an attached or a detached single family residential dwelling unit, shall comply with HMC 14.14. Plans shall include calculations showing the aggregate surface area of all pools, spas, and hot tubs on the lot. The surface area calculation accuracy shall be certified with a statement as follows: "I certify that the surface area calculation is in compliance with the requirements of HMC 14.14." followed by the signature of the design professional, owner/builder or contractor preparing the calculation. Submittals prepared under the owner/builder or contractor exemption shall be attested to accordingly on the drawings in accordance with NRS 623.035(1)(d) and 623A.070(1)(c). Plot plans for swimming pools or spas shall be drawn to a minimum scale of one-eighth inch to the foot. The scale used shall be indicated on the plot plan. The plot plan shall include, but not be limited to, the following information:

1. A north arrow;

2. The location(s), type of material and height of access barriers;

3. For private pools/spas, the applicable location, material, height, device, and/or listing of the safety feature selected to comply with Section 305 of the International Swimming Pool and Spa Code;

4. Property lines and all known utility or other easements;

5. Drainage information showing pool deck drainage;

6. Location and specifications of pool/spa equipment including heating, circulating, filtering and water-handling equipment;

7. Location and specifications of decking, stairs, steps, ladders and underwater lighting fixtures;

8. Dimensions, materials and methods of construction of the proposed pool or spa;

9. All existing structures on the same property or parcel of land within 20 feet of any portion of the proposed pool and/or spa; and

10. Location and distance from any septic system components, leach field, and lines.

Pool and spa applications shall also include a structural plan prepared by a civil or structural engineer or architect, licensed or registered in the State of Nevada, who shall sign the plan with an original signature and affix his stamp. The structural plan shall include the soil bearing capacity, landfill characteristics, reinforcing steel placement, steel diameter, steel specifications, steel thickness, steel strength, method of attachment, and concrete specifications. An approved standard plan may be used. The building official may require any pool application to be accompanied by a soils report from a Nevada licensed civil engineer. All manufactured pools or spas must be listed by an approved agency or recognized agency and shall be installed in accordance with the manufacturer's installation recommendations.
(Ord. No. 3906, § 3, 9-13-2022; Ord. No. 3141, § 1, 4-1-2014; Ord. 2736, § 1 (part), 2008)

15.01.210 Deferred submittals.

For the purposes of this section, deferred submittals are defined as those portions of the design documents that are not submitted at the time of application and that are to be submitted to the building official within a specified period. Deferral of submittal of any required construction documents shall have the prior approval of the building official. Documents approved for deferred submittal shall first be submitted to the registered design professional in responsible charge who shall review the documents and forward the documents to the building official with a notation indicating that the deferred submittal documents have been reviewed and found to be in general conformance with the approved

design. Construction or erection of deferred submittal components shall not occur until the design and deferred submittal documents have been reviewed and approved by the building official.
(Ord. 2736, § 1 (part), 2008)

15.01.215 Design provisions for use with the building code.

The most recent editions of referenced standards may be allowed for use with the building code.
(Ord. 2736, § 1 (part), 2008)

15.01.220 Referenced standards.

Technical guidelines promulgated by the building official shall serve as reference standards as provided for in this chapter. Standards referenced in the technical codes are hereby adopted into, and considered part of the technical codes.
(Ord. 2736, § 1 (part), 2008)

15.01.225 Contractor licensing.

All permits regulated by this chapter shall be issued only to contractors who hold a valid and active Nevada State Contractors License covering the scope of work authorized by the permit and who hold a valid and active City of Henderson business license as required by title 4 of the Henderson Municipal Code.

Exception. The requirements of this section do not apply to persons who are exempted pursuant to Nevada Revised Statutes 624.031 and section 15.01.230 of this chapter.
(Ord. 2736, § 1 (part), 2008)

15.01.230 Homeowner permittees.

A homeowner may be issued a permit for work regulated by this chapter for a single-family dwelling used exclusively by the homeowner as a residence, provided that:

A. The homeowner has been granted an exemption to the contractor licensing requirements of Nevada Revised Statutes 624.031(4);

B. The homeowner is the bona fide owner of the real property on which the residential structure or accessory building is to be built or improved;

C. The residential structure is, or shall be, occupied by the homeowner;

D. The homeowner applies for and obtains the appropriate permits for the installation of any building service equipment; and

E. The homeowner permittee shall sign the permit application and the "owner/builder" statement pursuant to Nevada Revised Statutes 278.573 acknowledging the homeowner's responsibilities as the permittee to supervise the work and to comply with all applicable laws, ordinances, technical codes and the development code requirements contained in title 19 of the Henderson Municipal Code.

(Ord. 2736, § 1 (part), 2008)

2. Modular buildings shall be constructed to the standards and requirements of the technical codes.

B. *Fees.* Fees for modular permits shall be as specified in chapter 15.02 of the Henderson Municipal Code.

(Ord. 2736, § 1 (part), 2008)

15.01.255 Mobile home and manufactured housing parks.

Mobile home and manufactured housing parks shall be constructed and maintained in conformance with all applicable provisions of the technical codes and chapter 15.12 and title 19 of the Henderson Municipal Code.

(Ord. 2736, § 1 (part), 2008)

15.01.260 Building permit issuance.

The permit application and construction documents filed by an applicant for a permit shall be reviewed by the building official. The construction documents may be reviewed by other departments of the City of Henderson to verify compliance with all applicable laws. The building official shall require the application for permit to include verification of applicable utility services including, but not limited to, electrical, water and sewer service prior to the issuance of permit. As a prerequisite to obtaining a building permit or a combination permit, all fees must be paid prior to or at the same time as permit issuance. If the building official finds that the work described in an application for a permit and the construction documents filed with it conform to the requirements of this chapter, the technical codes and other pertinent laws, regulations and ordinances, the building official shall stamp the plans, specifications and related construction documents as "APPROVED."

Approved construction documents shall not be changed, modified or altered without authorization from the building official and all work required by the technical codes, this chapter and other City of Henderson ordinances and regulations shall be completed in accordance with the approved construction documents. Upon identification and verification of appropriate licensing of a contractor or owner/builder exemption and the payment of all fees pursuant to this chapter, a permit shall be issued to the contractor or owner/builder for the described work.

The building official may issue a permit for the construction of part of a building, structure or building service equipment before the construction documents for the entire building, structure or building service equipment have been submitted or approved, provided adequate information and detailed statements have been submitted with the application to show compliance with the requirements of this chapter, the technical codes and other applicable City of Henderson ordinances and regulations. Issuance of a permit for part of

a building, structure or building service equipment shall be granted and the permittee may proceed at the permittee's own risk. The building official may require changes to work authorized for partial construction of a building, structure or building service equipment, whether or not inspection approval of that work has been granted by the building official, based upon final approval of construction documents for the entire building to bring the partial work into conformance with the applicable technical codes, this chapter and other pertinent City of Henderson regulations and ordinances.
(Ord. 2736, § 1 (part), 2008)

15.01.265 Phased design and construction.

The building official may authorize projects to be constructed using a phased design and construction approach. Such authorization must be obtained prior to the submission of construction documents. Final authorization of projects to be constructed using a phased design and construction approach shall be as determined by the building official.

A. *Application.* The applicant shall furnish all information as may be required by the building official including the following:

1. Description of the project including preliminary drawings, if any;

2. Description of the land by parcel(s) on which the project is to be built and the applicant's actions to date to obtain required land use and design review discretionary approvals;

3. Design and construction schedule outlining time-phases of the project;

4. A description of each time-phase specifying the construction to be completed in that phase;

5. The name of the person who will be responsible for coordinating the phasing, plans submittals, design data, re-submittals, correspondence and meetings with the applicant and the building and fire safety department;

6. The name of the principal design professional for the project;

7. A statement indicating the final phase for which the coordinating person will be responsible under each application. All work subsequent to the permitted phases shall be governed by the provisions of this chapter and the technical codes.

B. Reserved.

C. Reserved.

D. *Procedure.* All time-phase submittals to the building official shall include a transmittal letter listing the documents and describing their contents and detailing the purpose and intended outcome of the time-phase submittal. All documents resub-

mitted that have been revised or changed in whole or in part shall contain a revision date and an indication of the type and location of all revisions or changes made. Significant revisions or changes to the documents shall be made in an identical manner of delineation as the original submitted documents.

(Ord. 2736, § 1 (part), 2008)

15.01.270 Combination permit.

The building official may issue a single permit incorporating any combination of the multiple scopes of work governed by one or more of the various technical codes. To obtain a combination permit, the applicant shall complete and file with the building official a permit application on a form furnished by the building official for that purpose and shall submit with the application all construction documents required by the building official pursuant to the applicable provisions of this chapter. Prior to issuing a combination permit, the building official shall require the identification and verification of appropriate licensing of contractors.

When inspections proceed simultaneously, the building official may issue a single permit incorporating several scopes of work governed by one or more of the technical codes; for example, a single permit may be issued for a pool with an attached spa that includes the building, electrical, plumbing and mechanical work.

(Ord. 2736, § 1 (part), 2008)

15.01.275 Retention of plans.

Upon issuance of a permit, one set of stamped approved construction documents shall be returned to the permit applicant and shall be kept on the site of the permitted work at all times during which the permitted work is in progress. One set of approved construction documents of sufficient quality to be readable after they are reproduced from microfilm or electronic scanning shall be retained by the building official until final approval of the permitted work and for the period required for retention of pubic records as specified by the office of the city clerk.

(Ord. 2736, § 1 (part), 2008)

15.01.280 Validity of permit.

The issuance of a permit or approval of construction documents shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this chapter or the technical codes, or any other code, regulation or ordinance of the City of Henderson. Permits presuming to give authority to violate or cancel the provisions of this chapter, the technical codes, or any other code, regulation or ordinance of the City of Henderson shall be invalid. The issuance of a permit based upon approved construction documents shall

not prevent the building official from thereafter requiring the correction of errors in the construction documents, or from issuing a notice of violation or stop work order when work is not in compliance with the approved construction documents, this chapter, the technical codes or any other code, regulation or ordinance of the City of Henderson.
(Ord. 2736, § 1 (part), 2008)

15.01.285 Permit expiration.

Unless otherwise approved by the building official, the provisions of this section shall apply to all new and existing permits, regardless of the date of permit issuance.

A. *Expiration.* Every permit issued by the building official shall expire by limitation and become null and void if the building or work authorized by such permit is not commenced within 180 calendar days from the date of issuance of such permit, or if the building or work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 calendar days, or if the building or work authorized by such permit exceeds three calendar years from the date of issuance of the permit.

B. *Inspections required.* Work shall be presumed to have commenced if a required inspection approval of work authorized by the permit has been obtained from the building official within 180 calendar days of the date of permit issuance. Work shall be presumed to be suspended or abandoned if a required inspection approval of work authorized by the permit has not been obtained by the building official within each 180 calendar days upon initial commencement of work authorized by such permit. Before such work can be recommenced, a new permit or renewal permit as specified below shall first be obtained.

C. *Renewal permit—Work not commenced.* For permits for which work has not been commenced in the first 180 days from the date of permit issuance as defined herein, a renewal permit may be obtained provided that:

1. No changes have been made or will be made in the original plans and specification for such work;

2. The expiration has not exceeded three years from the original date of permit issuance;

3. The same edition of the technical codes are in effect as used in the initial review and approval of the construction documents;

4. A fee equal to one-fourth the amount required for a new permit is paid;

5. The renewal permit shall expire three calendar years from date of issuance of original permit; and

7. A statement indicating the final phase for which the coordinating person will be responsible under each application. All work subsequent to the permitted phases shall be governed by the provisions of this chapter and the technical codes.

B. Reserved.

C. Reserved.

D. *Procedure.* All time-phase submittals to the building official shall include a transmittal letter listing the documents and describing their contents and detailing the purpose and intended outcome of the time-phase submittal. All documents resubmitted that have been revised or changed in whole or in part shall contain a revision date and an indication of the type and location of all revisions or changes made. Significant revisions or changes to the documents shall be made in an identical manner of delineation as the original submitted documents.

(Ord. 2736, § 1 (part), 2008)

15.01.270 Combination permit.

The building official may issue a single permit incorporating any combination of the multiple scopes of work governed by one or more of the various technical codes. To obtain a combination permit, the applicant shall complete and file with the building official a permit application on a form furnished by the building official for that purpose and shall submit with the application all construction documents required by the building official pursuant to the applicable provisions of this chapter. Prior to issuing a combination permit, the building official shall require the identification and verification of appropriate licensing of contractors.

When inspections proceed simultaneously, the building official may issue a single permit incorporating several scopes of work governed by one or more of the technical codes; for example, a single permit may be issued for a pool with an attached spa that includes the building, electrical, plumbing and mechanical work.

(Ord. 2736, § 1 (part), 2008)

15.01.275 Retention of plans.

A. Upon issuance of a permit, one set of stamped approved construction documents shall be returned to the permit applicant and shall be kept on the site of the permitted work at all times during which the permitted work is in progress. One set of approved construction documents of sufficient quality to be readable after they are reproduced from microfilm or electronic scanning shall be retained by the building official until final approval of the permitted work and for the period required for retention of pubic records as specified by the office of the city clerk.

B. Notwithstanding provisions stated elsewhere in this title, the city shall not maintain or display a public facility model. However, nothing in this section shall prevent the city from requiring a public utility, public water system or video service provider to provide information about the physical location of the facilities of the public utility, public water system or video service provider for the purpose of:

1. Facilitating a public work; or

2. Facilitating a public improvement project pursuant to a franchise agreement.
(Ord. No. 3324, § 2, 12-15-2015; Ord. 2736, § 1 (part), 2008)

15.01.280 Validity of permit.

The issuance of a permit or approval of construction documents shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this chapter or the technical codes, or any other code, regulation or ordinance of the City of Henderson. Permits presuming to give authority to violate or cancel the provisions of this chapter, the technical codes, or any other code, regulation or ordinance of the City of Henderson shall be invalid. The issuance of a permit based upon approved construction documents shall not prevent the building official from thereafter requiring the correction of errors in the construction documents, or from issuing a notice of violation or stop work order when work is not in compliance with the approved construction documents, this chapter, the technical codes or any other code, regulation or ordinance of the City of Henderson.
(Ord. 2736, § 1 (part), 2008)

15.01.285 Permit expiration.

Unless otherwise approved by the building official, the provisions of this section shall apply to all new and existing permits, regardless of the date of permit issuance. However, a permit issued prior to September 19, 2022, for construction of a swimming pool, spa, and/or hot tub, having an aggregate water surface area greater than 600 square feet for any residential property with an attached or a detached single family residential dwelling unit, shall comply with the provisions of subsection 15.01.286.

A. *Expiration.* Every permit issued by the building official shall expire by limitation and become null and void if the building or work authorized by such permit is not commenced within 180 calendar days from the date of issuance of such permit, or if the building or work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 calendar days, or if the building or work authorized by such permit exceeds three calendar years from the date of issuance of the original permit.

B. *Inspections required.* Work shall be presumed to have commenced if a required inspection approval of work authorized by the permit has been obtained from the building official within 180 calendar days of the date of permit issuance. Work shall be presumed to be suspended or abandoned if a required inspection approval of work authorized by the permit has not been obtained by the building official within each 180 calendar days upon initial commencement of work authorized by such permit. Before such work can be recommenced, the permit shall be renewed as specified in subsections 15.01.285(C) and (D).

C. *Permit renewal—Work not commenced.* For permits for which work has not been commenced in the first 180 days from the date of permit issuance as defined herein, the permit may be renewed provided that:

1. No changes have been made or will be made in the original plans and specification for such work.

2. The expiration has not exceeded three years from the original date of permit issuance.

3. The same edition of the technical codes are in effect as used in the initial review and approval of the construction documents.

4. A fee equal to one-fourth the amount required for a new permit is paid.

5. The renewed permit shall expire three calendar years from date of issuance of original permit.

6. The renewed permit shall expire if work is not commenced within 180 calendar days from renewal date.

Where more recent editions of the technical codes have been adopted than used in the initial review and approval of the construction documents, such application for renewal shall be considered as a new submittal. Accordingly, all construction documents shall be updated to reflect the requirements of the current technical codes in effect, a full new review and approval of the construction documents by the building official is required, and a full new plan review fee shall be paid. In instances where, in the opinion of the building official, the changes in the construction document required to reflect compliance with the technical codes are minor in nature, the building official may reduce the plan review fee to reflect the actual total cost (direct and indirect costs) of reviewing the plans. Upon completion of the plan review, the permit may be renewed upon payment equal to one-fourth the amount required for a new permit.

D. *Permit renewal—Work commenced.* For permits where work has commenced as defined herein and was subsequently suspended or abandoned as defined herein, the permit may be renewed provided that:

1. No changes have been made or will be made in the original plans and specification for such work.

2. The expiration has not exceeded three years from the original issuance date.

3. A fee equal to one-fourth the amount required for a new permit is paid.

4. The renewed permit shall expire three calendar years from date of issuance of original permit.

5. The renewed permit shall expire if work is not commenced within 180 calendar days from renewal date.

E. *New permit—Three years from date of original permit issuance.* For permits that have exceeded three years from the date of original issuance, a new permit may be obtained provided that:

1. Construction authorized by the building permit has commenced and has received required inspection approvals as stated herein.

2. No changes have been made or will be made in the original plans and construction documents for such work.

3. A fee equal to the amount required for a new permit is paid, except that where the building official determines that construction has progressed to the point that a lesser fee is warranted, such lesser fee as determined by the building official shall be paid.

Where more recent editions of the technical codes have been adopted than used in the initial review and approval of the construction documents, such application for a new permit shall be considered as a new submittal. Accordingly, all construction documents may be required to be updated to reflect the requirements of the current technical codes in effect. A full new review and approval of the construction documents by the building official may be required, and a full new plan review fee shall be paid. In instances where, in the opinion of the building official, the changes in the construction document required to reflect compliance with the technical codes are minor in nature, the building official may reduce the plan review fees to reflect the actual total cost (direct and indirect costs) of reviewing the plans. Upon completion of the plan review, a new permit may be issued. All work that has passed inspection may not be required to be updated to new codes.

The maximum life of the new permit in accordance with this subsection shall be three calendar years from the date of permit renewal/issuance.

(Ord. No. 3906, § 4, 9-13-2022; Ord. No. 3141, § 1, 4-1-2014; Ord. 2736, § 1 (part), 2008)

15.01.286 Swimming pool, spa, or hot tub permit expiration.

A permit issued prior to September 19, 2022, for construction of a swimming pool, spa, and/or hot tub having an aggregate water surface area greater than 600 square feet, for any residential property with an attached or a detached single-family residential dwelling unit, shall comply with this subsection.

A. *Expiration.* Every permit issued by the building official shall expire by limitation and become null and void if the building or work authorized by such permit is not commenced within 180 calendar days from the date of issuance of such permit, or if the building or work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 calendar days, or if the building or work authorized by such permit exceeds three calendar years from the date of issuance of the original permit.

B. *Inspections required.* Work shall be presumed to have commenced if a required inspection approval of work authorized by the permit has been obtained from the building official within 180 calendar days of the date of permit issuance. Work shall be presumed to be suspended or abandoned if a required inspection approval of work authorized by the permit has not been obtained by the building official within each 180 calendar days upon initial commencement of work authorized by such permit. Before such work can be recommenced, the permit shall be renewed as specified in subsection 15.01.286(C).

C. *Permit renewal.* Work not commenced or work commenced. For permits for which work has not been commenced in the first 180 days from the date of permit issuance as defined herein or for permits where work has commenced as defined herein and was subsequently suspended or abandoned as defined herein, the permit may be renewed provided that:

1. The original permit has not been extended as outlined in section 15.01.290.

2. No changes have been made or will be made in the original plans and specification for such work.

3. The expiration has not exceeded three years from the original date of permit issuance.

4. A fee equal to one-fourth the amount required for a new permit is paid.

5. The renewed permit shall expire three calendar years from date of issuance of original permit.

6. The renewed permit shall expire if work is not commenced within 180 calendar days from renewal date.

(Ord. No. 3906, § 4, 9-13-2022)

15.01.290 Permit extension.

For unexpired permits, the permittee may apply for an extension of time within which work under that permit may be continued when for good and satisfactory reasons the permittee is unable to commence or continue work within the time required by the chapter. The building official may extend the time for action by the permittee for a period not exceeding 180 calendar days upon written request by the permittee showing that circumstances beyond the control of the permittee have prevented action from being taken. No permit shall be extended more than once unless otherwise approved by the building official. However, a permit issued prior to September 19, 2022, for construction of a swimming pool, spa, and/or hot tub having an aggregate water surface area greater than 600 square feet, for any residential property with an attached or a detached single-family residential dwelling unit, and the original permit has not been renewed as outlined in section 15.01.286 shall not be extended more than one time for a period not exceeding 180 calendar days or not exceeding three calendar years from the original permit issuance date, whichever is less.
(Ord. No. 3906, § 4, 9-13-2022; Ord. No. 3141, § 1, 4-1-2014; Ord. 2736, § 1 (part), 2008)

15.01.295 Timely completion of work.

All work for which a permit is issued shall be completed in a timely manner. Approval of a required inspection must be obtained for work authorized by a permit at least once every 180 days upon issuance. Failure to obtain approval of a required inspection within any 180-day period will result in the expiration of the permit. If work has commenced and the permit for that work has expired, then renewal of the original permit shall be obtained within 60 days of expiration of the permit as specified in subsection 15.01.285(A). If the project on which permit expiration has occurred is not completed in a timely manner as specified herein, the project shall be subject to enforcement action to ensure completion or removal of work authorized by the permit. The building official may grant a waiver of the enforcement action on a case-by-case basis where, in the opinion of the building official, the incomplete work or structure does not present a hazard or nuisance condition or would not reasonably be expected to present negative visual or fiscal impacts to adjacent properties or the neighborhood.
(Ord. No. 3141, § 1, 4-1-2014; Ord. 2736, § 1 (part), 2008)

15.01.300 Suspension or revocation of permits.

The building official may suspend or revoke a permit issued under the provisions of this chapter whenever the permit is issued in error, or on the basis of incorrect information supplied, or in violation of any of the technical codes, this chapter, or any ordinance or regulation of the City of Henderson. A permit may also be revoked or suspended when work authorized by such permit is determined to be unsafe by the building official.
(Ord. 2736, § 1 (part), 2008)

15.01.305 Fees.

Permit, plan review and inspection fees shall be assessed in accordance with the provisions of specific fees set forth in this chapter or as set forth in the fee schedules contained in chapter 15.02 of the Henderson Municipal Code. The payment of fees pursuant to this chapter and chapter 15.02 of the Henderson Municipal Code does not preclude the assessment of other applicable fees. Employing or contracting with a quality assurance agency does not preclude or waive permit, plan review and other relevant fees as set forth in this chapter and chapter 15.02 of the Henderson Municipal Code.

Any issued permit may be suspended or revoked and all work authorized by that permit may be ordered stopped by the building official should the method of payment of required fees result in the failure of the City of Henderson to receive those fees. In the event a method of payment of fees does not result in the City of Henderson receiving required fees, the building official may specify a method of payment that, in the opinion of the building official, will result in required fees being received by the city.
(Ord. 2736, § 1 (part), 2008)

15.01.310 Fee refunds.

The provisions of this section shall govern the refunding of plan review and inspection fees.

A. *Plan check fee refunds.* The building official may authorize refunding of not more than 80 percent of the plan review fee paid when an application for a permit for which a plan review fee has been paid is withdrawn or canceled before any examination time has been expended.

B. *Inspection fee refunds.* In the event of abandonment or discontinuance of work for which a permit has been issued, a refund by the city of certain portions of the permit inspection fees may be approved subject to all of the following:

1. A written request is made by the person or firm who paid the fee;

2. The written request is delivered to the office of the building official within 180 days of the date of permit issuance where no work has commenced or 180 days of the date of last inspection approval or permit extension; and

3. The work approved to date does not present negative visual or fiscal impacts to adjacent properties or the neighborhood.

The portion of the fee to be refunded shall be based upon the following table:

Time at Which Work is Abandoned or Discontinued	***Percentage of Fee to be Refunded***
Subsequent to issue of permit, but prior to any foundation inspection approval	75%

Time at Which Work is Abandoned or Discontinued	*Percentage of Fee to be Refunded*
Subsequent to any foundation inspection approval, but prior to any rough inspections approval	50%
Subsequent to any rough inspections approval, but prior to any final inspection approval	25%

The building official may approve variations from these fee refund provisions in unusual or extenuating circumstances on a case-by-case basis.
(Ord. 2736, § 1 (part), 2008)

15.01.315 Expiration of plan review.

Applications for which no permit is issued within 180 calendar days following the date of application shall expire by limitation and construction documents submitted for review may be returned to the applicant or destroyed by the building official. The building official may extend the time for action by the applicant for a period not exceeding 180 calendar days upon written request by the applicant showing that circumstances beyond the control of the applicant have prevent action from being taken. An application may not be extended more than once. An application shall not be extended if this chapter, the technical codes or any other pertinent laws, ordinances or regulations of the City of Henderson have been amended subsequent to the date of application. In order to review action on an application after expiration, the applicant shall submit plans and pay a new plan review fee.

Exceptions: For large public works and public utilities projects, the building official may grant plan review extensions in instances where more recent editions of the technical codes have been adopted provided that, in the opinion of the building official, there have been no substantial changes to the structural or life-safety requirements of the technical codes in effect at the time of submittal of the original permit application and construction of the project in accordance with those codes will not pose any structural or life-safety hazards to the project occupants or the public.

The building official may grant minor extensions due to hardship or unusual extenuating circumstances on a case by case basis.
(Ord. 2736, § 1 (part), 2008)

15.01.320 Work without permits—Investigative fee.

A. *Investigation.* Whenever any work for which a permit is required by this chapter has commenced without first obtaining a permit or work authorized by a permit exceeds the scope of the permit, a special investigation shall be made before a permit may be issued for such work.

B. *Fee.* The building official may assess an investigative fee, in addition to all other required fees, whether or not a permit is then subsequently issued. The investigative fee shall be as set forth in chapter 15.02 of the Henderson Municipal Code. The payment of such investigative fee shall not exempt any person from compliance with all other provisions of this chapter, the technical codes, and other relevant ordinances and regulations of the City of Henderson.

C. *Voluntary disclosure.* The building official may waive the fees referenced in subsection (B) of this section for voluntary disclosure of work done without a permit; but all costs associated with the investigation shall be reimbursed.
(Ord. 2736, § 1 (part), 2008)

15.01.325 Inspection of existing buildings.

An existing building or structure that is not covered by an existing valid building permit may be inspected by the building official at the owner's or other interested party's request upon payment of an inspection fee based upon the estimated time to perform the inspection and the hourly inspection rate as contained in chapter 15.02 of the Henderson Municipal Code. This service shall be available at the option of the building official.
(Ord. 2736, § 1 (part), 2008)

15.01.330 Witness fees.

Time spent in preparation for a deposition or testimony in a legal proceeding shall be reimbursed at the full-cost (direct and indirect cost) hourly rates specified in chapter 15.02 of the Henderson Municipal or at the full cost-recovery hour rate as calculated by the City of Henderson finance department for hourly rates not specified in chapter 15.02 of the Henderson Municipal Code.
(Ord. 2736, § 1 (part), 2008)

15.01.335 Inspection and survey.

All work for which a permit is required shall be subject to inspection by the building official. In addition, certain types of work shall have continuous inspection as determined by the building official.

The building official may require a survey of the lot upon which construction authorized by a permit is to be performed to verify that site grading is in conformance with the approved construction documents and structures or portions of structures are located in accordance with the approved construction documents.

A. *Inspection access.* It shall be the duty of the permittee to provide access to and means for proper inspection of work authorized by a permit. The permittee shall

cause the work to be exposed for inspection purposes until approved by the building official. Neither the building official nor the City of Henderson shall be liable for expenses incurred in the removal or replacement of any material or construction to provide access to work to be inspected.

B. *Inspection requests.* It shall be the duty of the permittee to notify the building official that work is ready for inspection. Every request for inspection shall be filed at least one workday before such inspection is desired. Failure to provide one workday notification for an inspection is deemed improper notification and the inspection may be rescheduled for the following workday.

C. *Access to inspection record, permit and approved plans.* Work for which a permit is required shall not be commenced until the permittee has made available on the premises the inspection record, approved permit and approved construction documents in such a location as to allow the building official convenient access and use. The inspection record, approved permit and approved construction documents shall be maintained in such location by the permittee until final inspection approval has been granted by the building official.

D. *Inspection approval required to proceed.* All work for which a permit is required shall not be done beyond the stage indicated in each successive inspection without first obtaining the approval of the building official. The building official, upon proper request, shall make requested inspections and shall either indicate that portion of the work is satisfactory as completed or shall notify the permittee or his authorized agent when the work fails to comply with this chapter, the approved construction documents, the technical codes or any ordinance or regulation of the City of Henderson. Any portion of the work that does not comply with this chapter, the approved construction documents, the technical codes or any ordinance or regulation of the City of Henderson shall be corrected and such work shall not be covered or concealed until re-inspected and approved by the building official.

Inspection approval shall not be construed to be an approval of a violation of the provisions of this chapter, the approved construction documents, the technical codes or any ordinance or regulation of the City of Henderson. Inspections presuming to give authority to violate or cancel the provisions of this chapter, the approved construction documents, the technical codes or any ordinance or regulation of the City of Henderson shall not be valid.
(Ord. 2736, § 1 (part), 2008)

15.01.340 Required building inspections.

Reinforcing steel or structural framework of any part of any building or structure shall not be covered or concealed without first obtaining the approval of the building official. Upon receipt of a proper inspection request, the building official shall perform the following inspections:

A. *Foundation inspection.* A foundation inspection shall be performed after excavations for footings are complete and any required reinforcing steel, structural embeds, grounding electrodes, piping and other equipment required by the construction documents or technical codes are in place and before concrete is placed. When required, a pad certification prepared by a licensed civil engineer shall be submitted to the building official prior to the performance of a foundation inspection.

B. *Framing inspection.* A framing inspection shall be performed after all structural and non-structural components are in place as follows:

1. *Wood and light gauge metal construction.* Framing inspection of wood and light gauge metal construction shall be performed after the roof sheathing, all framing, fire blocking, shear panels and bracing are in place and all pipes, chimneys, vents and rough electrical, plumbing and mechanical system components are in place.

2. *Concrete, steel and masonry construction.* Framing inspection of concrete, steel and masonry construction shall be performed after all structural elements required by the approved construction documents and technical codes are in place, including reinforcing steel, structural steel, concrete, masonry, grout and mortar and all structural connections are complete.

C. *Insulation inspection.* An insulation inspection shall be performed after all insulation is installed and fastened in place pursuant to the manufacturer's installation instructions, all caulking and sealing is installed, and all exterior openings are properly flashed.

D. *Lath and/or wallboard inspection.* Lath and/or wallboard inspection shall be performed after all lathing and wall and ceiling board (interior and exterior) is in place and before any plastering is applied or before wallboard joints and fasteners are taped and finished.

E. *Final inspection.* A final inspection and approval of all work, including final grading, shall be performed when the building or structure is completed and ready for occupancy and use but prior to any occupancy or use unless specific prior approval for occupancy or use has been granted by the building official.

Exception. Freestanding walls and fences six feet or less in height. This exemption applies to existing walls constructed under permits issued prior to the effective date of this chapter. (Ord. 2736, § 1 (part), 2008)

15.01.345 Required building service equipment inspections.

All building service equipment for which a permit is required by this chapter or the technical codes shall be inspected by the building official. No portion of any building service equipment shall be concealed until inspected and approved. When the installation of any building service equipment is complete, a final inspection shall be performed. Building service equipment regulated by the technical codes shall not be connected to the water, fuel or power supply or sewer system until authorized by the building official.

A. *Temporary connections.* The building official may authorize the temporary connection of the building service equipment to the source of energy, fuel or power for the purpose of testing building service equipment or for use under a temporary certificate of occupancy.

B. *Replacement of building service equipment.* Building service equipment installed to replace existing building service equipment serving an occupied portion of a building may be operated if a request for inspection of the replacement equipment has been filed with the building official not more than 48 hours after such replacement work was completed and before any portion of the building service equipment is concealed.

C. *Fire and life-safety systems performance verification.* Prior to final inspection of the building, the permittee is responsible to test all components of the fire and life-safety systems and verify the proper operation of such systems. Upon completion of all testing, the general contractor shall perform an overall life safety system test. The system test program shall be submitted to the building official prior to system testing. The system test shall be witnessed by the building official.

(Ord. 2736, § 1 (part), 2008)

15.01.350 Required pool and spa inspections.

Inspection of pools and spas shall comply with the provisions of this section.

A. *Concrete construction.* Upon receipt of a proper inspection request, the building official shall perform the following inspections of pools and spas constructed of concrete:

1. *Steel and bonding.* A steel and bonding inspection shall be performed after excavation is complete, the reinforcing steel is in place per the approved construction documents and all electrical bonding connections are made.

2. *Pre-gunite inspection.* All underground utilities, gas, water and electrical piping shall be completed at this time with required pressure tests.

3. *Pre-plaster inspection.* A pre-plaster inspection shall be performed when all equipment is installed, bonding and electrical work is complete and permanent barriers are in place. All required interior safety devices shall be in place and inspected at this time.

4. *Final inspection.* A final inspection shall be performed when the structure is complete and filled with water. All systems shall be operational and lights and ground fault circuit interrupter (GFCI) tested. The safety barriers and yard drainage shall be re-inspected. If applicable, a gas pressure test will be inspected and gas tag issued when the final inspection is approved.

B. *Manufactured pools and spas.* Upon receipt of a proper inspection request, the building official shall perform the following inspections of manufactured pools and spas:

1. *Underground utility and bonding inspection.* An inspection shall be performed after all trenching and excavation work is complete. All underground utilities, gas, water and electrical piping shall be completed at this time with required pressure tests. Access barriers shall be installed and all electrical bonding connections shall be made. All required interior safety devices must be in place and inspected at this time.

2. *Pre-deck inspection.* A pre-deck inspection shall be performed prior to placing decks. The equipotential grid shall be in place and all electrical work complete. All equipment shall be connected and anchored in place. All permanent barriers shall be complete.

3. *Final inspection.* A final inspection shall be performed when the structure is complete and filled with water. All systems shall be operational and lights and GFCIs tested. The safety barriers and yard drainage shall be re-inspected. If applicable, a gas pressure test will be inspected and gas tag issued when the final inspection is approved.

(Ord. 2736, § 1 (part), 2008)

15.01.355 Required electrical inspections.

Upon receipt of a proper inspection request, the building official shall perform the following electrical inspections:

A. *Concrete-encased electrode ground inspection.* An inspection of the concrete-encased electrode ground shall be performed before or concurrently with the building foundation inspection and prior to the foundation being poured. The concrete-encased electrode ground shall be installed per the electrical code.

B. *Underground electrical inspection.* An underground electrical inspection shall be performed before the building concrete slab or under-floor inspection and after all in-slab or under-floor building service equipment items are in place, but before any concrete is poured or floor sheathing is installed, including sub-flooring.

C. *Rough electrical inspection.* A rough electrical inspection shall be performed before or concurrently with the building framing inspection and after the initial installation of all electrical equipment and conduit or wiring.

D. *Other electrical inspections.* Depending on the type of electrical installation, inspection of additional electrical system components may be required by the building official.

E. *Final electrical inspection.* A final electrical inspection shall be performed when the electrical work is complete and prior to any use or occupancy.

(Ord. 2736, § 1 (part), 2008)

15.01.360 Required plumbing inspections.

Upon receipt of a proper inspection request, the building official shall perform the following inspections:

A. *On-site sewer inspection.* For the purposes of this section, on-site sewers shall be that portion(s) of the sewer system under the jurisdiction and permitted by the building official. An on-site sewer inspection shall be performed after all underground on-site sewer piping is installed, including manholes and cleanouts. Sewer piping shall be tested in accordance with the plumbing code. Portion of the sewer system covered under this section includes piping extending five feet from the building envelope.

B. *Underground plumbing inspection.* An underground plumbing inspection shall be performed after all underground drain, waste, vent and water piping is installed and under test. Portion of the plumbing system covered under this section includes piping extending up to five feet from building envelope.

C. *Rough plumbing inspection.* A rough plumbing inspection shall be performed before or concurrently with the building framing inspection and after all portions of the above-floor drain, waste, vent and water piping systems are installed and under test.

D. *Final plumbing inspection.* A final plumbing inspection shall be performed after all fixtures are in place and connected to the drain, waste, vent and potable water supply systems and prior to any use or occupancy.

(Ord. 2736, § 1 (part), 2008)

15.01.365 Required mechanical inspections.

Upon receipt of a proper inspection request, the building official shall perform the following mechanical inspections:

A. *Rough mechanical inspection.* A rough mechanical inspection shall be performed before or concurrently with the building framing inspection and after all heating, ventilating, air-conditioning and exhaust duct systems are installed, securely fastened and supported in place. Fire and smoke dampers shall be installed pursuant to the manufacturer's listing requirements and installation instructions.

B. *Mechanical equipment testing.* Mechanical equipment shall be tested pursuant to inspection procedures specified in the mechanical code.

C. *Final mechanical inspection.* A final mechanical inspection shall be performed after all heating, ventilating, air-conditioning equipment and exhaust duct systems, gas lines, and refrigeration lines are installed and prior to any use or occupancy.

(Ord. 2736, § 1 (part), 2008)

15.01.370 Occupancy authorization.

A. *Certificate of occupancy (CO).* No building or structure for which a certificate of occupancy (CO) is required shall be used or occupied, and no change in the existing occupancy classification of a building or structure or portion thereof shall be made until such time as the building official has issued a certificate of occupancy (CO) therefore as provided herein. The certificate of occupancy (CO) creates no warranty or guarantee, either expressed or implied. A final inspection approval shall be considered equivalent to the certificate of occupancy (CO) for any building classified as Group U occupancy.

B. *Change in use.* Changes in the character or use of a building shall not be made except as specified in this chapter and the building code.

C. *Issuance of certificate.* After an approved final inspection, the building official shall issue a certificate of occupancy (CO) within three working days. The building official shall not issue a certificate of occupancy (CO) for any building classified in occupancy group A, B, E, H, I or R under the building code until:

1. Final inspection approval has been granted by all applicable city departments and agencies;

2. Verification of the connection of the building service equipment has been completed;

3. Verification that the building or structure has met all the requirements specified in the approved construction documents and permits has been completed.

D. *Temporary certificate of occupancy.* If the building official finds that no substantial hazard will result from occupancy of any building or portion thereof, the building official may issue a temporary certificate of occupancy (TCO) for the use of a portion or portions of a building or structure prior to the completion of the entire building or structure.

E. *Fee for temporary certificate of use of occupancy.* The fee for issuance of a temporary certificate of occupancy (TCO) shall be as set forth in chapter 15.02 of the Henderson Municipal Code. If additional inspection(s) are required prior to the issuance of the temporary certificate, all costs of such inspection(s) shall be paid by the applicant at the full-cost (direct and indirect cost) recovery hourly service rate specified in chapter 15.02 of the Henderson Municipal Code. If a temporary certificate of occupancy (TCO) is not issued within 90 days from the date of application, the request shall become null and void and a new application shall be required if occupancy approval continues to be pursued and all costs of additional inspections shall be paid by the applicant as specified herein.

F. *Certificate posting.* The certificate of occupancy (CO) for buildings classified in occupancy groups A, B, E, H, I, M, and S shall be posted in a conspicuous place on the premises and shall not be removed except by the building official.

G. *Certificate revocation.* The building official may, in writing, suspend or revoke a certificate of occupancy (CO) or a temporary certificate of occupancy (TCO) issued under the provisions of this chapter whenever the certificate is issued in error, or on the basis of incorrect information supplied, or when it is determined that the building or structure or portion thereof is in violation of any provisions of this chapter, the technical codes or other ordinances and regulations of the City of Henderson.

H. *Certificate content.* The certificate of occupancy (CO) or temporary certificate of occupancy (TCO) shall contain the following information:

1. The building permit number;

2. The address of the building;

3. The name of the owner;

4. A description of that portion of the building for which the certificate is issued;

5. A statement that the described portion of the building is in substantial compliance with the requirements of this chapter and the technical codes for the group and division of occupancy and the use for which the proposed occupancy is classified;

6. The name of the building official;

7. Date of issuance.

An approved final inspection, temporary certificate of occupancy (TCO), certificate of occupancy (CO), or an amusement and transportation system (ATS) certificate of operation from the building and fire safety department indicates the building, structure, ATS, or

part thereof for which the approved final inspection was made or certificate was issued, was found by the building official to be in substantial compliance with the provisions of this chapter and the technical codes based upon periodic inspections during construction and, do not create an express or implied warranty or guarantee.
(Ord. 2736, § 1 (part), 2008)

15.01.375 Required amusement and transportation system inspections.

All amusement and transportation systems (ATS) shall be inspected in accordance with the requirements of the technical codes, the technical guidelines, the approved operations and maintenance manual, the amusement and transportation code and any special requirements of the permit for a specific ATS.

The installing contractor or manufacturer shall be responsible to obtain all required inspection and testing services and furnish an inspection and testing report to the building official for each ATS for its initial installation on a site. Thereafter, the owner/operator of an ATS is responsible to obtain all required inspection and testing services and furnish an inspection and testing report to the building official for each ATS when required by the approved operations and maintenance manual. Reports of inspection and testing, as required, shall be made by an approved quality assurance agency. Reports that indicate non-compliance with the approved construction documents or operation and maintenance manual shall require a reinspection and written report of compliance before a renewal ATS certificate of operation will be issued.

The building official may perform unannounced monitoring inspections for the purpose of determining operational compliance with the approved operation and maintenance manual. Should the inspection identify non-compliance with the technical codes, the operation and maintenance manual or the conditions of the certificate of operation, the owner/operator shall bear the full cost of the unannounced monitoring inspection at the full cost-recovery hourly rate as specified in chapter 15.02 of the Henderson Municipal Code or as calculated by the City of Henderson finance department. Any additional monitoring inspections due to non-compliance reports or deficiencies found will also be charged to the owner/operator who shall be responsible for paying those costs.
(Ord. 2736, § 1 (part), 2008)

15.01.380 Amusement and transportation system (ATS) certificate of operation.

A valid ATS certificate of operation is required for the operation of an ATS after initial installation. Each ATS shall have an individually issued certificate of operation in accordance with the requirements of this section.

A. *Initial amusement and transportation system certificate of operation.* After the ATS permit is finalized and all requirements for operation are completed satisfactorily, the building official shall issue the initial ATS certificate of operation for the ATS. No additional application or fees are required for the initial ATS certificate of operation certificate.

B. *Expiration.* An ATS certificate of operation expires one year from the date of issuance. Prior to expiration, the owner/operator is responsible to make an application to the building official for renewal of the ATS certificate of operation in accordance with the requirements of this chapter and the technical codes. No ATS certificate of operation shall be renewed or extended without meeting all requirements of the amusement and transportation code, the technical guidelines and this chapter. No ATS shall be used or operated with an expired certificate of operation.

C. *Application for renewal.* To obtain a renewal of the ATS certificate of operation, the owner/operator shall file an application no less than 30 days prior to the certificate expiration. When grouped, amusement and transportation systems may, at the option of the building official, be part of a group application, but shall have individual certificates issued for each ATS. Every application for certificate renewal shall be accompanied by all required inspection reports, fees and other items required by the building official. Third-party inspection and/or testing shall be performed in accordance with the requirements of the approved operations and maintenance manual for all ATSs governed by this chapter. Any such inspection and testing reports issued since the last monitoring inspection or initial installation of the ATS, whichever is more recent, shall be provided to the building official at the time of application for a renewal of the ATS certificate of operation. The ATS certificate of operation shall be issued only after a third-party inspection report is submitted and approved, a building and fire safety department monitoring inspection is satisfactorily completed and all fees are paid.

D. *Revocation.* The building official may, in writing, revoke or suspend an ATS certificate of operation when it is issued in error or on the basis of incorrect information supplied, or the ATS is in violation of any ordinance or regulation or any of the provisions of this chapter, the amusement and transportation code, the technical guidelines and the technical codes.

E. *Certificate posting and display.* The ATS certificate of operation shall be posted on the ATS or at an alternate location near the ATS approved by the building official. In instances where the certificate is posted at an approved alternate location, a notice shall be placed on the ATS indicating the actual location of the ATS certificate of operation.

(Ord. 2736, § 1 (part), 2008)

15.01.385 Reinspection fees.

A reinspection fee as specified in chapter 15.02 of the Henderson Municipal Code may be assessed for each initial inspection or reinspection of work if any of the following conditions occur:

A. Work for which inspection is requested is not substantially complete;

B. Corrections identified in a previous inspection are not substantially complete;

C. The permit, approved plans and documents pertinent to the requested inspection such as geotechnical report, structural calculations, electrical load calculations, energy calculations, manufacturer listings, etc. and the inspection record are not readily available on the job site;

D. Access to the work to be inspected is not provided or is so restricted that the requested inspection cannot be performed;

E. Work for which the inspection is requested has been covered or otherwise concealed;

F. Work that requires inspection approval prior to the requested inspection has not been approved.

This section shall not be interpreted as requiring reinspection fees the first time a job is rejected for failure to comply with the requirements of this chapter or the technical codes, but as controlling the practice of requesting inspections before work is ready for inspection or reinspection. In instances where reinspection fees have been assessed, no additional inspection of the work shall be performed until the required reinspection fees have been paid.

(Ord. 2736, § 1 (part), 2008)

15.01.390 Dedicated inspection services.

A building permit permittee may request that the building official assign one or more dedicated inspectors to be available on-site to immediately perform inspections upon request. The building official has the option of granting or denying such requests based upon the nature and extent of work to be inspected and the availability of sufficient staff to

provide such services. The permittee shall, as a condition of granting the request, pay in advance the total cost (direct and indirect cost) of providing such services as determined by the building official in addition to normal inspection fees. The building official shall determine the appropriate inspector classification to be assigned to inspect the work based on the type and scope of work to be inspected. An agreement setting forth conditions of such dedicated inspection services may be required by the building official.
(Ord. 2736, § 1 (part), 2008)

15.01.395 Inspection of atypical or unusual work.

In situations where the scope and nature of work is atypical or unusual and exceeds the technical knowledge and skills of conventional inspection personnel, the building official may determine that specialized inspection services are required. Upon determination that specialized inspection services are required, the building official shall notify the permittee of that determination and the permittee shall pay the total cost (direct and indirect cost) of such specialized inspection services. The building official shall determine the appropriate qualifications of individuals to perform specialized inspections based upon the type and scope of atypical or unusual work to be inspected. An agreement setting forth conditions of specialized inspection services may be required by the building official.
(Ord. 2736, § 1 (part), 2008)

15.01.400 Inspection agencies.

The building official is authorized to accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications, licensing and approval.
(Ord. 2736, § 1 (part), 2008)

15.01.405 Special inspections.

Special inspections shall comply with the provisions of this section.

A. *General.* In addition to the inspections required elsewhere in this chapter, certain types of work shall have special inspections as specified in the building code . The special inspections shall be conducted by the building official or by an approved quality assurance agency approved by the building official. Special inspections conducted by an approved quality assurance agency shall be performed as provided in this chapter and the technical codes. Methods of complying with special inspection requirements are found in the technical guidelines.

B. *Special inspection by an approved quality assurance agency.* When special inspections by an approved quality assurance agency are required, the owner or the

design professional acting as the owner's agent shall employ a prime agency. The prime agency shall provide special inspections in accordance with the special inspection agreement as required by this chapter and the technical codes. No change of the prime agency shall be made without the approval of the building official.

Projects designated by the building official as requiring special inspection by an approved quality assurance agency shall not be issued a permit until the special inspection agreement is executed by the owner or the owner's agent, the designated prime agency and the building official.

C. *Special inspection by other than a prime agency.* Upon approval of the building official, other persons may provide special inspections in the following cases:

1. Where the required special inspection is to be performed by the design professional responsible for construction documents approved by the building official pursuant to this chapter;

2. Where, in the opinion of the building official, the nature of the work requires inspection by a person having specialized technical knowledge and skill to inspect and test specialized work for which the prime agency may not be qualified or authorized to inspect. In such cases, the building official may approve other persons to perform the required special inspection.

Persons acting pursuant to this section accept all duties and responsibilities of a quality assurance agency including reporting requirements.

D. *Stop work orders.* If the building official determines that an approved special inspector is failing to properly perform special inspection services, or that an unapproved special inspector performed, or is performing, special inspection services, the building official may order the special inspection work stopped. Once stopped by the building official, special inspection work may only resume upon written agreement between the quality control manager of the quality assurance agency and the building official. If the building official determines that the owner has made changes to the prime agency without prior approval after the special inspection work has commenced, the building official may order the special inspection work stopped. Once stopped by the building official, special inspection work may only resume upon submittal of a compliance report or other evidence that the special inspection work completed prior to the agency change complies with the approved construction documents, this chapter and the technical codes.

E. *Subcontracted special inspection.* The prime agency designated in the special inspection agreement may subcontract special inspection services to another approved quality assurance agency. The prime agency is responsible for overall coordination and issuance of the required final report. The prime agency and the

subcontracted agency shall notify the building official in writing of a subcontracting arrangement. The written notification shall identify the prime agency, the subcontracted agency, and the division of scope of work prior to commencement of the work. The engineering manager of the prime agency shall provide a written declaration that they are in responsible charge of all subcontracted special inspections. The prime agency is responsible for notifying the building official in writing of any changes in the designated subcontracted agencies.

F. *Waiver of special inspection.* The building official may waive the requirement for the employment for an approved quality assurance agency where minor quantities or amount of work requiring special inspection are involved or when the work is performed at the facility of an approved fabricator or manufacturer.

G. *Special inspection requests.* Special inspection requests shall be coordinated between the designated prime agency and the contractor. The permittee shall verify that the prime agency has the most current set of approved construction documents. The permittee is responsible to establish and maintain communication with the prime agency and quality assurance agency throughout the construction process. The permittee shall provide sufficient notice to the prime agency to schedule special inspection services. Construction work is subject to a stop work order for failure to establish and maintain the required special inspection process.

H. *Types of work requiring special inspection.* Special inspection shall be as required by the technical codes. In addition, the building official may require special inspection of work identified by the building official as unique and requiring specialized knowledge to verify proper and safe construction or installation.

I. *Approved special inspection personnel.* Special inspection personnel, fabrication shop inspectors, or quality systems auditors must demonstrate competence to the satisfaction of the building official, achieve and maintain national certification(s), as required for the special inspections to be performed, and meet the applicable requirements of the technical guidelines. The approved special inspection personnel shall be employed by an approved quality assurance agency, a design professional approved to perform special inspections, or the building official.

J. *Duties and responsibilities of the quality assurance agency and special inspector.* Approved special inspectors and approved quality assurance agencies shall perform all duties imposed in this chapter, the technical codes, the referenced standards and the technical guidelines.

The approved special inspector shall inspect the types of work identified in the special inspection agreement for conformance with the approved construction documents, the technical codes, the referenced standards and the technical guidelines. The approved special inspector shall report to the job sufficiently in advance

of the commencement of work to become familiarized with the approved construction documents. The approved special inspector shall write a non-compliance report (NCR) when approved construction documents or the permit are not available on the premises at the time of special inspection. The approved special inspector shall immediately notify the contractor and shall immediately submit a copy of the noncompliance report to the building official.

The approved agencies shall notify the building official in writing of commencement of special inspection activities on a project.

1. *Reports.* The approved special inspector is responsible for the following reports:

a. *Daily report by special inspector.* The approved special inspector shall write daily reports and provide such other information as may be required by the building official within the scope of the special inspector's duties. The approved special inspector shall also furnish inspection reports as required by the technical guidelines. The approved special inspector shall immediately notify the contractor and the building official in writing of non-conformance with the approved construction documents or other violations of the technical codes and technical guidelines within the scope of the special inspector's activities and duties. Notification shall be within 24 hours and may be accomplished by fax or, upon approval of the building official, transmitted electronically. All daily reports prepared by a special inspector pursuant to this chapter and the technical codes and technical guidelines are the property of the City of Henderson and shall be made available upon request of the building official.

b. *Final reports.* The approved quality assurance agency shall submit a final report to the building official stating whether all specified special inspections were completed, documented, and found to be in compliance with the approved construction documents, technical codes and technical guidelines. Final reports shall not be submitted to the building official until all non-compliance reports have been cleared by the approved quality assurance agency. Final reports shall include all non-compliance reports with dates of approval of corrective action, the completed job card and the job history record.

Final reports shall be reviewed by a Nevada licensed professional engineer or registered architect and have an original signature and licensure seal prior to submittal to the building official. The stamp and original signature shall be on a cover letter that certifies the required special inspections were completed or exceptions taken and documented as being acceptable to the building official.

Final reports requiring more than two reviews shall be charged fees for additional reviews on a full cost-recovery hourly rate (direct and indirect costs) specified in chapter 15.02 of the Henderson Municipal Code or calculated by the City of Henderson finance department.

c. *Maintenance of records.* Approved agencies shall maintain records of all inspection reports, laboratory test results, and other documents generated during the performance of inspections, material testing, and other related activities on a project. Those records shall be maintained by the approved agencies for a period specified by the applicable referenced standards, but not less than two years from the date the final report was documented as approved.

(Ord. 2736, § 1 (part), 2008)

15.01.410 Quality assurance agency.

Each approved quality assurance agency (QAA) shall meet the following requirements:

A. *Approval by the building official required.* To perform special inspections as set forth in the technical codes, reference standards and technical guidelines, a quality assurance agency must be approved by the building official, who shall maintain a list of approved quality assurance agencies. The building official shall establish rules and regulations for approval and listing and the conduct of approval quality assurance agencies. rules and regulations for the approval and listing requirements shall be contained in the technical guidelines.

B. *Employment of special inspectors.* The approved quality assurance agency is responsible to employ only approved special inspectors for work requiring special inspection pursuant to the technical codes, technical guidelines and referenced standards.

C. *Quality management.* The quality assurance agency shall employ at all times a quality control manager to carry out supervision and technical responsibilities. The quality control manager shall possess appropriate education, certifications and experience. The quality assurance agency is responsible to notify the building official within 14 days of any changes in the designated quality control manager. Failure to do so shall result in the immediate forfeiture of the quality assurance agency's approval status.

The quality assurance agency, through its quality control manager, is responsible to the building official for:

1. Hiring and training of qualified special inspectors and testing technicians;

2. Supervision of special inspectors;

3. Filing of accurate and complete reports based upon actual inspection and testing results;

4. In-house distribution and application of technical guidelines;

5. Supervising and documenting the internal audit and in-house training program.

D. *Engineering management.* The prime agency shall employ a Nevada licensed professional engineer or registered architect as an engineering manager who shall be in responsible charge and accountable to the building official for technical processes used to verify compliance with approved construction documents and the technical codes. Failure to comply with the requirement for engineering management shall result in the immediate forfeiture of the quality assurance agency's approval status.

The prime agency, through its engineering manager, is responsible to the building official for:

1. Directing the operations of testing and special inspection;

2. Certifying the special inspection and testing processes for all projects that require special inspection;

3. Supervision and performing a review to ensure special inspections are performed pursuant to the approved construction documents, technical guidelines and the technical codes and within the scope of the permit;

4. Directing and reviewing the internal audit and in-house training program.

E. *Conflict of interest.* Quality assurance agencies shall conform to the conflict of interest technical guidelines.

(Ord. 2736, § 1 (part), 2008)

15.01.415 Approved fabricators/manufacturers.

To perform work identified in this section, fabricators/manufacturers shall be approved by the building official who shall maintain a list of approved fabricators/manufacturers. Approved fabricator/manufacturer shall perform all duties imposed through this chapter, technical codes, and the technical guidelines.

A. *Approval required.* Approval is required for the following fabricated/manufactured products and systems:

1. Engineered structural wood products;

2. Engineered structural metal products and assemblies;

3. Structural metal storage racks over eight feet in height;

4. Metal stairs, balconies, and assemblies;

5. Engineered metal canopies;

6. Amusement and transportation systems (ATS);

7. Pre-cast and/or pre-stressed concrete products;

8. Ready-mix concrete;

9. Exterior insulation and finish systems;

10. Panelized wall systems;

11. Other products or systems as the building official may designate.

B. *Requirements for approval.* Each fabricator/manufacturer shall apply for approval using forms obtained from the building official and pay the fees as provided in this chapter. General approval requirements are listed below with additional detail provided in the technical guidelines:

1. Verification of the fabricator/manufacturer quality control capabilities, equipment and personnel as outline in the manufacture/fabrication procedural manual;

2. Periodic inspection of the fabricator/manufacturer shall be conducted to monitor the effectiveness of the quality control program;

3. Notify the building official in writing of any changes to the manufacture/fabrication procedural manual.

An approved fabricator/manufacturer shall have an established written quality control program. The quality control program shall verify fabrication compliance with the technical codes and technical guidelines. The quality control program, through inspection and testing processes, shall provide documentation sufficient to meet the intent of the special inspection requirements of this chapter, the technical codes and the technical guidelines.

C. *Conditional approval.* Conditional approval requirements are detailed in the technical guidelines. Conditional approval allows for the initial listing of a fabricator/manufacturer that has met minimum requirements equivalent to those contained in the technical guidelines. A conditional approval may also be provided for approved fabricators/manufacturers that require time to resolve findings identified and reported as part of the auditing process.

D. *Requirements for a one-time permit-specific approval.* A fabricator/manufacturer requesting one-time permit-specific approval shall apply for approval using forms

provided by the building official and pay the fees as provided in this chapter and chapter 15.02 of the Henderson Municipal Code. The fabricator/manufacturer shall be qualified as specified in the technical guidelines.

(Ord. 2736, § 1 (part), 2008)

15.01.420 Condition, suspension or revocation of approval for special inspectors, quality assurance agencies and fabricators/manufacturers.

A. *Procedures.* The building official may establish procedures to identify and resolve problems that interfere with the proper functioning of the special inspection process, including actions by special inspection personnel, quality assurance agencies and fabricators/manufacturers. Such procedures may include informal resolution and voluntary compliance by the special inspection personnel, quality assurance agency and fabricator/manufacturer.

B. *Sanctions.* The building official may condition, suspend or revoke the approval of any special inspection personnel, quality assurance agency or fabricator/manufacturer as prescribed in subsections (B)(1) and (B)(3) of this section. Conditions, suspensions and revocations shall be for a period to be determined by the building official. The building official may require any individual or firm to retest or recertify in their specific category at the end of the sanctions or revocation period. Revocations and sanctions may be appealed as specified [in] section 15.01.425 of this chapter.

1. *Suspension of approval.* Approved status of listed special inspection personnel, quality assurance agency, or fabricator/manufacturer may be suspended for any of the following grounds: incompetence; conflict of interest; willful or negligent failure to inspect the work; failure to establish and maintain job site supervision; failure to report non compliances; violations of approved construction documents; technical codes or technical guidelines; or any other failure to perform the duties designated for approved special inspection personnel, quality assurance agencies, or fabricators/manufacturers, as documented in two or more notices of violation issued pursuant to the chapter and the technical guidelines within 12 months of the agency's annual renewal date. Conditions placed to lift the suspension and restore approved status shall be determined by the building official and indicated in the written notification of suspension of approved status.

2. *Automatic revocation.* Approval of a special inspection personnel, qualify assurance agency and fabricator/manufacturer shall be automatically revoked for the following causes:

Causes for Automatic Revocation		
Approved Quality Assurance Agency	***Approved Fabricator Manufacturer***	***Approved Special Inspector***
Failure to pay renewal fee within 45 days of renewal date	Failure to pay renewal fee within 45 days of renewal date	Failure to pay renewal fee within 45 days of renewal date
Failure to document internal quality control audits	Failure to submit the required quality control document as a condition of renewal	Failure to maintain certifications for specific approvals in accordance with the technical guidelines
Failure to pay administrative and investigative fees within 45 days of assessment	Failure to pay administrative and investigative fees within 45 days of assessment	Failure to pay administrative and investigative fees within 45 days of assessment
Failure to employ a quality control manager		
Failure of prime agency to employ an engineering manager		

Request for reinstatement after revocation shall be treated as a new application.

C. *Conditional approval.* Previously approved personnel which have unresolved performance issues may be granted full approval after verification that similar performance issues do not recur during a three month conditional approval period. Performance issues are those documented in notices of violation during a period of 12 months prior to a request to be approved. Verification activities and approval conditions during the conditional approval period are as specified in the technical guidelines.

D. *Fees.* In addition to other fees that may be imposed pursuant to this chapter, the building official may impose other administrative and investigative fees as specified in this chapter and chapter 15.02 of the Henderson Municipal Code.

(Ord. 2736, § 1 (part), 2008)

15.01.425 Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures.

The provisions of the section apply to the administration of complaints, hearings and appeals regarding special inspectors, quality assurance agencies and fabricators/manufacturers.

A. *Complaints.* Complaints alleging facts, that if true, would constitute ground to condition, suspend or revoke an approval or certification of a special inspector,

quality assurance agency or fabricator/manufacturer shall be submitted in writing to the building official. The complaint shall be verified, and supporting documents, with numbered pages, shall be attached to the complaint. Building and fire safety department staff may be a complaining party. Facts asserted in the complaint shall be referenced to the page in the supporting documentation where the matters relied upon are to be found.

The special inspector, quality assurance agency or fabricator/manufacturer against whom the complaint is filed shall be notified of the complaint and shall have an opportunity to submit a written response to the complaint. The written response shall set forth facts that respond to the allegations contained in the complaint. Supporting documents, with numbered pages, shall be attached to the written response. Facts asserted in the response shall be referenced to the page in the supporting documentation where the matters relied upon are to be found.

B. *Designation of hearing officer.* Upon receipt of a complaint, the building official shall designate a hearing officer to conduct an investigation of the facts that are the basis of the complaint. The hearing officer shall set a reasonable time in which to respond, but the time shall be no less than 21 days from the date the notice of the complaint is mailed to the special inspector, quality assurance agency or fabricator/manufacturer. The hearing officer shall review the complaint and response and all supporting documents. The hearing officer may request additional information from the involved parties.

After completing the review, the hearing officer shall make a report of findings of fact to the building official and recommend an appropriate remedy. The special inspector, quality assurance agency or fabricator/manufacturer shall receive a copy of the hearing officer's report and recommendations. The report shall be sent by certified mail, return receipt requested.

C. *Building official review of hearing officer report and recommendations.* The building official shall review the hearing officer's report and recommendations. The building official may accept, modify or reject the report and recommendations. The building official shall prepare a final report of findings of fact and shall impose an appropriate remedy. The special inspector, quality assurance agency or fabricator/manufacturer shall be notified of the decision of the building official no later than ten calendar days upon completion of the review of the hearing officer's report and recommendations. The notice shall be sent certified mail, return receipt requested.

D. *Appeal to the building official.* The complaining party, special inspector, quality assurance agency or fabricator/manufacturer that is the subject of a complaint made pursuant to this section may appeal the hearing officer's report of findings of fact and recommendations to the building official. A written notice of appeal shall be

submitted to the building official no later than ten calendar days after notice of the hearing officer's report and recommendations are mailed to the special inspector, quality assurance agency or fabricator/manufacturer. The written notice of appeal shall address disputed findings and recommendations in the hearing officer's reports. Supporting documents, with numbered pages, may be attached to the written notice. Facts asserted in the notice shall be referenced to the page in the supporting documentation where the matters relied upon are to be found. Failure to file a timely written notice of appeal as specified in this section shall be a waiver of further administrative remedy.

The hearing of the appeal shall be conducted by the building official no later than ten calendar days upon receipt of a written notice of appeal. Procedures for conducting the hearing shall be established by the building official and shall allow the parties to be represented by legal counsel and provide an opportunity for each party to present facts based upon supporting documentation in support of their respective positions. The building official may accept, modify or reject the report of the findings of fact and the recommendations of the hearing officer.

Upon concluding the hearing, the building official shall prepare a final report of findings of fact and shall impose an appropriate remedy. The special inspector, quality assurance agency or fabricator/manufacturer shall be notified in writing of the building official's decision no later than ten calendar days upon conclusion of the hearing by the building official. The notice shall be sent certified mail, return receipt requested.

E. *Appeal to the board of appeals.* The complaining party, special inspector, quality assurance agency or fabricator/manufacturer that is the subject to a complaint made pursuant to this section may appeal the building official's final report of findings of fact and determinations to the board of appeals as specified in section 15.01.115 of this chapter.

(Ord. 2736, § 1 (part), 2008)

Chapter 15.02 DEVELOPMENT SERVICES SCHEDULE OF FEES

Sections:

15.02.010 Adoption of development services schedule of fees.
15.02.020 Annual report.
15.02.030 Evaluation and recommendations.

15.02.010 Adoption of development services schedule of fees.

The fees for services provided in the development services center shall be calculated pursuant to the most recently adopted development services schedule of fees on file in the development services center. Sufficient copies to meet public demand for such schedule shall be available for public use at the development services center.
(Ord. No. 4075, § 1, 5-20-2025; Ord. 2295, §§ 1 (part), 3, 2004)

15.02.020 Annual report.

After the close of each fiscal year, but in no case later than September 30, the development services center manager and the city finance director shall provide a written report to the city council regarding the status of the DSC enterprise fund. The report shall, at a minimum, contain summary information regarding annual revenues, annual costs, the amount of any reserve funds, capital expenditures made during the prior year and anticipated capital expenditures proposed for the next fiscal year. Such report shall be made available to interested members of the public and development industry representatives.
(Ord. 2295, §§ 1 (part), 3, 2004)

15.02.030 Evaluation and recommendations.

The DSC manager, in consultation with the development services center industry advisory committee, shall use the information contained in the financial summary report to evaluate the need for fee adjustments and make annual recommendations to city council regarding the need for such adjustments.
(Ord. No. 4075, § 1, 5-20-2025; Ord. 2295, §§ 1 (part), 3, 2004)

Chapter 15.08 BUILDING CODE*

Sections:

15.08.010 Adoption by reference.
15.08.020 Code amended.
15.08.030 Substantial compliance standard.
15.08.040 Compliance required—Penalty for violations.
15.08.050 Effective date.

15.08.010 Adoption by reference.

The City of Henderson adopts as its building code the 2024 International Building Code as published by the International Code Council in its entirety excepting amendments and changes as stated in this chapter. This code is available online through the International Code Council.

(Ord. No. 4083, § 2, 7-15-2025; Ord. No. 3907, § 1, 9-13-2022; Ord. No. 3504, § 1, 8-7-2018; Ord. No. 3040, § 1, 8-6-2013; Ord. No. 2898, § 2, 1-18-2011)

15.08.020 Code amended.

The City of Henderson adopts as an amendment to the 2024 International Building Code the booklet entitled Southern Nevada Proposed Amendments to the 2024 International Building Code, is adopted in its entirety excepting amendments and changes as stated in this chapter. This booklet is available on the city's website(s).

The booklet is further amended by replacing the definition of ventilation well in Section 202, by replacing section 406.5.2.2 and by replacing Section 504.4 as follows:

VENTILATION WELL. A vertical open area used to provide natural ventilation with an unobstructed opening to sky at the top. The well is bound on three sides by walls with the fourth side having openings to the structure requiring natural ventilation.

406.5.2.2 Opening above grade. When ventilation wells are used to satisfy natural ventilation requirements for open parking garages, the width of the ventilation well opening to sky shall be one and one-half times the height of the adjacent structure to the bottom of the lowest required opening. The minimum required width of the ventilation well shall be maintained for not less than the length of the required openings. The width

***Editor's note—**Ord. No. 2898, §§ 1, 2, adopted January 18, 2011, repealed and reenacted chapter 15.08 in its entirety to read as herein set out. Formerly, chapter 15.08, §§ 15.08.010—15.08.050 pertained to similar subject matter, and derived from Ord. No. 1801, § 2(part), adopted 1998; Ord. No. 2180, § 3(part), adopted 2003; Ord. No. 2494, § 1(part), adopted 2008, and Ord. No. 2539, § 1(part), adopted 2006.

Subsequently, Ord. No. 4083, § 1, adopted July 15, 2025, changed the title of chapter 15.08 from "International Building Code" to "Building Code."

of the ventilation well is not required to exceed 30-feet. The building shall be provided with a horizontal air intake opening at the bottom not less than 160 square feet and leading to the exterior of the building surrounding the open parking garage.

Exception: The ventilation well opening width is not restricted if any of the following are met or provided:

1. Supplemental mechanical ventilation meeting the requirements of Section 406.6.2 is provided for the open parking garage.

2. An engineering analysis proving equivalent natural ventilation requirements are met.

504.4 Number of Stories. The maximum number of stories of a building shall not exceed the limits specified in Table 504.4.

(Ord. No. 4137, § 2, 12-16-2025; Ord. No. 4083, § 3, 7-15-2025; Ord. No. 3907, § 2, 9-13-2022; Ord. No. 3824, § 2, 12-7-2021; Ord. No. 3669, § 2, 3-3-2020; Ord. No. 3504, § 1, 8-7-2018; Ord. No. 3040, § 1, 8-6-2013; Ord. No. 2898, § 2, 1-18-2011)

15.08.030 Substantial compliance standard.

In the enforcement of the specific provisions of the adopted technical codes and standard, the building official is authorized to grant minor variations from the strict application of specific code and standards provisions where, in the opinion of the building official, the work is in substantial compliance with the intent of the adopted codes and standards.

(Ord. No. 3040, § 1, 8-6-2013)

Editor's note—Ord. No. 3040, § 1, adopted August 6, 2013, repealed the former section 15.08.030 in its entirety, which pertained to amendments to the 2009 International Building Code and to the Southern Nevada Amendments to the 2009 International Building Code, and derived from Ord. No. 2898, § 2, adopted January 18, 2011. Subsequently, the former sections 15.08.040—15.08.060 were redesignated as sections 15.08.030—15.08.050. The historical notation has been preserved for reference purposes.

15.08.040 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.

(Ord. No. 3040, § 1, 8-6-2013; Ord. No. 2898, § 2, 1-18-2011)

Note—See editor's note at section 15.08.030.

15.08.050 Effective date.

This chapter shall become effective on January 2, 2026.

(Ord. No. 4083, § 4, 7-15-2025; Ord. No. 3907, § 3, 9-13-2022; Ord. No. 3504, § 1, 8-7-2018; Ord. No. 3040, § 1, 8-6-2013; Ord. No. 2898, § 2, 1-18-2011)

Chapter 15.09 RESIDENTIAL BUILDING CODE*

Sections:

15.09.010 Adoption by reference.
15.09.020 Code amended.
15.09.025 Reference standard.
15.09.030 Substantial compliance standard.
15.09.040 Compliance required—Penalty for violations.
15.09.050 Effective date.

15.09.010 Adoption by reference.

The City of Henderson adopts as its residential building code the 2024 International Residential Code as published by the International Code Council in its entirety excepting amendments and changes as stated in this chapter. This code is available online through the International Code Council.

(Ord. No. 4084, § 2, 7-15-2025; Ord. No. 3505, § 1, 8-7-2018; Ord. No. 3041, § 1, 8-6-2013; Ord. 2885, § 1, 12-7-2010; Ord. 2541, § 1 (part), 2006; Ord. 2181, § 1 (part), 2003)

15.09.020 Code amended.

The City of Henderson adopts as an amendment to the 2024 International Residential Code the booklet entitled "Southern Nevada Amendments to the 2024 International Residential Code" amending the 2024 International Residential Code, is adopted in its entirety. This booklet is available on the city's website(s).

(Ord. No. 4084, § 2, 7-15-2025; Ord. No. 3505, § 1, 8-7-2018; Ord. No. 3041, § 1, 8-6-2013; Ord. 2885, § 1, 12-7-2010; Ord. 2541, § 1 (part), 2006; Ord. 2181, § 1 (part), 2003)

15.09.025 Reference standard.

The City of Henderson adopts, as the reference standard building code for use with its residential building code, the 2024 International Building Code as published by the International Code Council in its entirety, as amended by the booklet entitled "Southern Nevada Amendments to the 2024 International Building Code." The reference standard building code is available online through the International Code Council's website. The booklet is available on the city's website.

(Ord. No. 4084, § 2, 7-15-2025; Ord. No. 3908, § 1, 9-13-2022)

15.09.030 Substantial compliance standard.

In the enforcement of the specific provisions of the adopted technical codes and standards, the building official or designee is authorized to grant minor variations from the

***Editor's note—**Ord. No. 4084, § 1, adopted July 15, 2025, changed the title of chapter 15.09 from "International Residential Code" to "Residential Building Code."

strict application of specific code and standards provisions where, in the opinion of the building official, the work is in substantial compliance with the intent of the adopted codes and standards.
(Ord. No. 3505, § 1, 8-7-2018; Ord. No. 3041, § 1, 8-6-2013; Ord. 2885, § 1, 12-7-2010; Ord. 2181, § 1 (part), 2003)

15.09.040 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.
(Ord. 2181, § 1 (part), 2003)

15.09.050 Effective date.

This chapter shall become effective on January 2, 2026.
(Ord. No. 4084, § 2, 7-15-2025; Ord. No. 3505, § 1, 8-7-2018; Ord. No. 3041, § 1, 8-6-2013; Ord. 2885, § 1, 12-7-2010)

Chapter 15.10 UNIFORM CODE FOR DANGEROUS BUILDINGS ABATEMENT

Sections:

15.10.010 Adopted.
15.10.015 City council approval required for demolition.
15.10.020 Violation—Penalty.

15.10.010 Adopted.

The city adopts and conforms to the Uniform Code for the Abatement of Dangerous Buildings, 1997 Edition as revised, copies of which are on file in the office of the Henderson City Clerk.

(Ord. No. 3142, § 1, 4-1-2014; Ord. 1778, § 1, 1997; Ord. 1568, § 1, 1995; Ord. 1350, § 1, 1992; Ord. 1110, § 4, 1989; Ord. 966, § 1, 1985; Ord. 860, § 2, 1982)

15.10.015 City council approval required for demolition.

No building which has been ordered demolished as authorized in the Uniform Code for the Abatement of Dangerous Buildings, 1997 Edition, shall be destroyed or demolished without prior approval of the city council.

(Ord. 1778, § 2, 1997; Ord. 1568, § 2, 1995; Ord. 1350, § 2, 1992; Ord. 966, § 2, 1985)

15.10.020 Violation—Penalty.

Any person violating any terms and provisions of this chapter shall be deemed guilty of a misdemeanor.

(Ord. No. 3142, § 1, 4-1-2014; Ord. 860, § 2, 1982)

Chapter 15.11 EXISTING BUILDING CODE*

Sections:

15.11.010 Adoption by reference.
15.11.020 Code amended.
15.11.030 Amendment to the International Existing Building Code.
15.11.040 Substantial compliance standard.
15.11.050 Compliance required—Penalty for violations.
15.11.060 Effective date.

15.11.010 Adoption by reference.

The City of Henderson adopts as its existing building code the book entitled "2024 International Existing Building Code" as published by the International Code Council in its entirety excepting amendments and changes as stated in this chapter. This code is available online through the International Code Council.
(Ord. No. 4085, § 2, 7-15-2025; Ord. No. 3506, § 1, 8-7-2018)

15.11.020 Code amended.

The City of Henderson adopts as amendments to the "2024 International Existing Building Code" the booklet entitled "Southern Nevada Amendments to the 2024 International Existing Building Code." This booklet is adopted in its entirety excepting amendments and changes as stated in this chapter. This booklet is available on the city's website(s).
(Ord. No. 4085, § 2, 7-15-2025; Ord. No. 3506, § 1, 8-7-2018)

15.11.030 Amendment to the 2024 International Existing Building Code.

The following sections of the 2024 International Existing Building Code are added or revised as follows:

Add the following new definition to Section 202 GENERAL DEFINITIONS:

> HIGH RISE BUILDING. Any building built prior to adoption of the 2018 International Building Code having occupied floors more than 55 feet (16 764 mm) above the lowest level of fire department vehicle access. Any building built after adoption of the 2018 International Building Code having occupied floors more than 75 feet (22 860 mm) above the lowest level of fire department vehicle access.

***Editor's note—**Ord. No. 4085, § 1, adopted July 15, 2025, changed the title of chapter 15.11 from "International Existing Building Code" to "Existing Building Code."

Amend Chapter 16 reference standards ICC A117.1 as follows:

ICC

….

ICC A117.1 — 09 Accessible and Usable Buildings and Facilities.

….

(Ord. No. 4085, § 2, 7-15-2025; Ord. No. 3506, § 1, 8-7-2018)

15.11.040 Substantial compliance standard.

In the enforcement of the specific provisions of the adopted technical codes and standards, the building official or designee is authorized to grant minor variations from the strict application of specific code and standards provisions where, in the opinion of the building official, the work is in substantial compliance with the intent of the adopted codes and standards.

(Ord. No. 3506, § 1, 8-7-2018)

15.11.050 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.

(Ord. No. 3506, § 1, 8-7-2018)

15.11.060 Effective date.

This chapter shall become effective on January 2, 2026.

(Ord. No. 4085, § 2, 7-15-2025; Ord. No. 3506, § 1, 8-7-2018)

Chapter 15.12 PROPERTY MAINTENANCE CODE

Sections:

15.12.010 General provisions.
15.12.020 Definitions.
15.12.030 General property maintenance standards.
15.12.040 Nonresidential buildings and structures maintenance standards.
15.12.050 Residential buildings and structures maintenance standards.
15.12.060 Enforcement provisions.
15.12.070 Code enforcement abatement revolving fund.
15.12.080 Purpose.
15.12.090 Fee schedule.

15.12.010 General provisions.

A. *Short title.* This chapter shall be known as the City of Henderson Property Maintenance, Habitability and Public Nuisance Code and shall be referred to herein as "this Code".

B. *Purpose.* The purpose of this Code is to promote the life, health, safety, aesthetic, economic, and general welfare of the citizens of the city and protect neighborhoods against nuisances, blight, and deterioration by establishing minimum requirements for the occupancy and maintenance of all residential and nonresidential buildings, whether vacant or occupied, and the maintenance of all land, whether improved or unimproved.

C. *Application—Conformity required.*

1. *Application.* This Code shall apply to all existing residential and nonresidential buildings, structures, and lands and portions thereof without regard to the use, date of construction, improvement, or alteration.

2. *Existing buildings.* Buildings and portions thereof in existence at the time of the adoption of this Code that are not currently in compliance with this Code may continue their non-compliance if such buildings or portions thereof were legal at the time of their original design and provided continued use is not dangerous to life, health, and safety.

3. *Historic buildings.* This Code does not apply to existing buildings, structures, or premises designated by the state or city as historic when such buildings, structures, or premises are judged by the building official to be safe and do not contain unhealthful or blighted conditions. Any enforcement of this Code against buildings, structures, or premises designated by the State of Nevada as historic shall comply with all state law applicable to historic preservation.

4. *Maintenance.* Equipment, systems, devices, and safeguards required by this Code or a previous regulation or code under which the structure or premises was constructed, altered, or repaired shall be maintained in good working order. No owner, owner's authorized agent, operator, or occupant shall cause any service, facility, equipment, or utility that is required under this section to be removed from, shut off from or discontinued for any occupied dwelling, except for such temporary interruption as necessary while repairs or alterations are in progress. The requirements of this Code are not intended to provide the basis for removal or abrogation of fire protection and safety systems and devices in existing structures. Except as otherwise specified herein, the responsible party as defined in Section 15.12.020 shall be obligated to maintain buildings, structures and premises in compliance with the requirements of this Code.

5. *Relocation.* Existing buildings and structures that are moved or relocated shall be made to conform to the requirements of this Code.

6. *Repairs.* Repairs, additions, or alterations to a structure, or changes in occupancy of a structure, shall be done in accordance with the applicable procedures and provisions of the International Building Code, International Existing Building Code, International Energy Conservation Code, International Fire Code, International Fuel Gas Code, Uniform Mechanical Code, International Residential Code, Uniform Plumbing Code, NFPA 70 (National Electrical Code), and Title 19 of the Henderson Municipal Code ("Development Code").

7. *Dangerous buildings and structures.* Buildings, structures, or portions thereof determined to be dangerous may be abated in accordance with this Code or the most current edition of the Uniform Code for the Abatement of Dangerous Buildings and amendments thereto, as adopted by the City of Henderson and referenced in Chapter 15.10 of the Henderson Municipal Code (the Uniform Code and Chapter 15.10 are collectively referred to as "HMC 15.10"). No building or structure or part thereof determined to be dangerous may be demolished by the city without first following the provisions of HMC 15.10.

8. *Conflict of ordinances.* The operation of this Code shall in no way change or diminish the effect of other ordinances in the Henderson Municipal Code dealing with like or similar matters. In any case where a provision of this Code is found to be in conflict with a provision of any zoning, building, fire safety, or health ordinance, or other section of the Henderson Municipal Code, the provision which establishes the most restrictive standard for the promotion and protection of health and safety shall prevail. It is not intended by this Code to repeal, abrogate, annul, or in any way impair or interfere with existing provisions of other laws or ordinances or with private restrictions placed upon property by covenant, deed, or other private agreement,

except those specifically repealed at the time of adoption of this property maintenance code. In cases where two or more provisions of this Code conflict, the most stringent and restrictive shall prevail.

(Ord. No. 3910, § 1, 10-4-2022; Ord. No. 3733, § 1, 10-20-2020; Ord. No. 3177, § 1, 6-17-2014; Ord. 2483, § 1 (part), 2006)

15.12.020 Definitions.

For the purpose of this chapter, all terms used herein are intended to have standard definitions, meanings and connotations, and are intended to be consistent with the meaning ascribed to them in other chapters of the Henderson Municipal Code and the Nevada Revised Statutes as limited in scope as specified below:

Abandoned nuisance activity, within the scope of this chapter, means:

1. Instances of unlawful breaking and entering or occupancy by unauthorized persons;

2. The presence of graffiti, debris, litter, garbage, abandoned materials, inoperable vehicles, or junk appliances;

3. The presence of unsanitary conditions or hazardous materials;

4. The lack of adequate lighting, fencing or security;

5. Indicia of the presence or activities of gangs;

6. Environmental hazards;

7. Violations of city codes, ordinances, or other adopted policy; or

8. Any other activity, behavior, conduct, or condition defined by this Code or any other provision of the Henderson Municipal Code to constitute a threat to the public health, safety, or welfare of the residents of or visitors to the city.

Abandoned vehicle. See *Vehicle.*

Accumulation of inoperable vehicles. See *Vehicle.*

Alteration means any construction or renovation to an existing structure other than repair.

Animal means an animal as defined by Title 7 of the Henderson Municipal Code.

Architectural pool or pond means a constructed or excavated exterior area designed to contain a regular supply of water other than a swimming pool or spa.

Blight or *blighted* means unsightly conditions, including but not limited to: the accumulation of debris; fences or walls characterized by holes, breaks, rot, crumbling, cracking, peeling, or rusting; landscaping that is dead, characterized by uncontrolled growth or lack of maintenance, or is damaged; or the exterior visible use or display of tarps, plastic sheeting, or similar materials as flexible or inflexible screening, fencing, or wall covering upon a residential lot, regardless of the condition of other properties in the neighborhood.

Building code means the most current edition of the International Building code or the International Residential Code and amendments thereto adopted by the City of Henderson and referenced in chapter 15.08 and 15.09 of the Henderson Municipal Code.

Building official means the person who oversees the Division of Building and Fire Safety at the City of Henderson, or his/her designee.

Chronic nuisance means a nuisance as defined in NRS 268.4124, including but not limited to three or more public nuisances or nuisance activities as defined in this chapter occurring within any 30-day period.

Code enforcement official ("code official") means any City of Henderson personnel authorized by the director to enforce the provisions of this chapter.

Congregate residence means any building or portion thereof which contains facilities for living, sleeping, and sanitation, as required by this Code, and may or may not include facilities for eating, cooking, or for occupancy. A congregate residence may be a shelter, convent, monastery, dormitory, and fraternity or sorority house, but does not include jails, hospitals, nursing homes, hotels, or lodging houses.

Dangerous structure or condition means a structure or condition as defined in NRS 268.4122, including but not limited to any building or structure determined to be dangerous by the building official pursuant to HMC 15.10, and any condition that may cause injury to or endanger the health, life, property, or safety of the general public or the occupants, if any, of the real property on which the condition is located.

Debris means materials which may be present in accumulations including, but not limited to: deteriorated lumber; old newspapers; furniture parts; stoves; sinks; cabinets; household fixtures; refrigerators; car parts; abandoned, broken, or neglected equipment; or the scattered remains of items.

Deterioration means a lowering in quality of the condition or appearance of a building, structure or premises or parts thereof, characterized by holes, breaks, rot, crumbling, cracking, peeling, rusting, or any other evidence of physical decay, damage, neglect, or lack of maintenance.

Development Code means Title 19 of the Henderson Municipal Code.

Director means the Director of the City of Henderson Community Development and Services Department.

Dwelling or *dwelling unit* means a single unit providing complete and independent living facilities for one or more persons including provisions for living, sleeping, eating, cooking, and sanitation.

Enforcement means City efforts to secure compliance with the provisions of this Code, including but not limited to review of plans and permit applications, response to complaints,

notices of violation, orders, administrative citations, fines, fees, and other legal processes. Except as otherwise provided in this part, "enforcement" may include inspections of existing land, buildings, and structures.

Efficiency dwelling unit means a dwelling unit containing only one habitable room and meeting the requirements for an exception to the minimum floor area requirements specified in this chapter.

Excavation means a well, shaft, trench, cellar, basement, cesspool, septic tank, pit, swimming pool, fishpond, or other similar condition resulting in a hole.

Exterior opening means any open or closed window, door, or passage between interior and exterior spaces.

Extermination means the elimination of insects, rodents, or other pests by eliminating their harborage places, removing or making inaccessible materials that serve as their food or water, or other approved pest elimination methods.

Fences, screen walls and/or retaining walls means self-standing structures designed to provide semi-private security or cut/slope retention between grade separations.

Garbage means putrescible animal and vegetable wastes resulting from the handling, storage, sale, preparation, cooking, and serving of food.

Graffiti shall have the meaning set forth in NRS 268.4075.

Habitable space means space in a structure for living, sleeping, eating, or cooking. Bathrooms, toilet rooms, closets, halls, storage or utility spaces, and similar areas are not considered habitable space.

Health hazard means the presence of any item(s) or condition(s) that adversely impact or jeopardize the health of an individual. Such items or conditions include, but are not limited to evidence of occupancy without adequate water and sanitation facilities, human or animal waste, medical or biological waste, syringes, gaseous or combustible materials, dangerous or corrosive chemicals or liquids, flammable or explosive materials, friable asbestos, offal, and decay matter, or any other hazard identified by the health officer as defined herein.

Health officer means the representative of the Southern Nevada Health District who is authorized to enforce health regulations in the City of Henderson.

Hot water means water supplied to a plumbing fixture at a temperature of not less than 110 degrees Fahrenheit (49° degrees Celsius).

Illegal discharge means any direct or indirect non-storm water discharge to the storm drain system that is not exempted in Henderson Municipal Code section 13.04.100.

Imminent hazard means any condition associated with real property that presents a substantial likelihood that death, serious illness, severe personal injury, or a substantial endangerment to health, property, or the environment may occur before such hazard can be eliminated by the standard enforcement procedures set forth in section 15.12.060.E.

Infestation means the presence of insects, rodents, reptiles, or pests in quantities large enough to be potentially harmful or threatening as determined by the health officer or a licensed extermination contractor.

Inoperable vehicle. See *Vehicle*.

Litter means decaying or non-decaying solid and semi-solid wastes, including but not limited to: both combustible and non-combustible wastes such as paper, trash, cardboard, water material, cans, yard clippings, wood, glass, bedding, debris, scrap paving material, discarded appliances, discarded furniture, piles of earth mixed with any of the above or any foreign objects, or any waste as determined by the health officer. Lodging house means any building or portion thereof containing not more than five guest rooms available for rent.

Mechanical code means the most current edition of the Uniform Mechanical Code and amendments thereto adopted by the City of Henderson and referenced in chapter 15.24 of the Henderson Municipal Code. The mechanical code regulates the design, construction, installation, quality of materials, location, operation and maintenance, or use of heating, ventilating, cooling, refrigeration systems, incinerators, and other miscellaneous heat-producing appliances within the city.

Occupant means a person, persons, or legal entity that, through rights of ownership or tenancy, has possession or the use and enjoyment of the subject real property.

Owner means a person, persons, or legal entity listed as current titleholder to real property as recorded in the official records of the Clark County Recorder's office.

Perimeter wall means any wall composed of stone, brick, concrete, concrete blocks, masonry, iron, or similar building material, together with footings, pilasters, outriggers, grillwork, gates and other appurtenances, constructed around the perimeter of a residential subdivision or residential lot.

Person means any individual, firm, association, organization, partnership, business trust, corporation, or company.

Plumbing code means the most current edition of the Uniform Plumbing Code and amendments thereto adopted by the City of Henderson and referenced in chapter 15.20 of the Henderson Municipal Code. The plumbing code regulates the erection, installation, alteration, repair, relocation, replacement, addition to, use or maintenance of plumbing systems and equipment with the city.

Pond means a body of water that is less than 18 inches deep. The definition does not apply to city-approved detention basins or other like facilities.

Private property means any real property within the city that is not owned by the City of Henderson or another governmental entity.

Public area means an area that is owned and maintained by the city and/or any other governmental entity for its use or the use of its citizens.

Public nuisance or *nuisance activity* includes but is not limited to:

1. The presence of debris, litter, garbage, rubble, refuse, abandoned vehicles, inoperable vehicles, discarded appliances or other waste allowed to accumulate on private property;

2. Any violation of the uniform building code, as adopted and amended by title 15 of this Code, that is declared to be a hazard to the public health, safety, and welfare of the residents of the city;

3. Any violation of the uniform fire code, as adopted and amended by title 15 of this Code, that is declared to be a hazard to the public health, safety, and welfare of the residents of the city;

4. Any body of water which by its nature, condition, and/or location constitutes an unhealthy, dangerous or unsafe condition;

5. Any structure or object which by its nature, location, and/or character would tend to attract and endanger the safety of any minor person;

6. Any structure declared by the building official to be dangerous pursuant to the uniform code for the abatement of dangerous buildings as adopted and amended by chapter 15.10 of this Code;

7. Any dangerous or unsafe condition as defined herein;

8. Weeds, noxious plant growth, deteriorated and/or dead or substantially dead vegetation, trees or plants;

9. Criminal activity occurring on private property and caused or committed by the owner or responsible party;

10. Excessive noise;

11. A substandard building;

12. An unsecured vacant structure and/or unlawful habitation of any portion of a vacant structure or property;

13. Any violation of the Development Code, including but not limited to the following:

a. The keeping of any animals on private property not in compliance with the provisions of HMC Title 19 and Title 7, where applicable; and

b. The display of any signs on private or public property that are not in compliance with the provisions of HMC Title 19.

14. The use of any temporary shelter, structure, or building, or litter, debris, or other similar material as a dwelling on public or private property unless otherwise permitted or approved in writing by the city;

15. The use of recreational vehicles (RV) as living quarters on any premises other than a licensed and permitted RV park or resort. An RV shall be deemed used as living quarters if it is connected to sanitary sewer and/or municipal water sources;

16. Any illegal discharge as defined in section 15.12.020;

17. The presence of shopping cart(s) on residential property or any non-residential property other than the commercial property in which the shopping cart(s) were originally intended to be used;

18. Any unlawful burning on public or private property including, but not limited to:

(a) The kindling or maintaining of any indoor or outdoor fire without authorization of the fire department and/or not in conformance with HMC 8.37.060 and 8.37.070, or

(b) The burning of solid waste, hazardous waste, and/or recyclables without a written permit from the fire department;

19. The removal and/or transportation of liquid waste from any property without written approval from the Southern Nevada Health District; and

20. Any construction or building activity between the hours of 6:00 p.m. and 6:00 a.m. without approval of the building official or as further described in HMC 8.84.030.E.

Refuse means those discarded materials that have no useful physical, chemical, or biological properties after serving their original purpose and that cannot be reused or recycled for the same or other purposes.

Responsible party means an owner, owner's authorized agent, operator, occupant, lessor, lessee, manager, licensee, or other person having authority or control over a structure or parcel of land.

Rubbish means non-putrescible solid waste, consisting of both combustible and non-combustible wastes such as paper, plastic, cardboard, tin cans, wood, glass, bedding, crockery, and similar materials.

Rubble means broken, solid surface fragments usually resulting from the decay or deterioration of a building, miscellaneous mass of broken or apparently worthless materials.

Sound condition means any structure, building, or component that is in a condition to withstand designed or anticipated loads. This would include maintenance for weather protection, free of deterioration and damage.

Stagnant or stagnated water means water that is not flowing or moving.

Structure means that which is built or constructed.

Structure unfit for human occupancy. A structure is unfit for human occupancy whenever the code official finds the structure is unsafe, unlawful, or unsanitary because of the degree to which the structure is in disrepair or lacks maintenance, is infested, contains filth and contamination, or lacks ventilation, illumination, sanitary or heating facilities or other essential equipment required by this Code, or because the location of the structure constitutes a hazard to the occupants of the structure or to the public.

Swimming pool means a permanently installed artificial body of water in excess of 18 inches in depth that is used or intended for swimming and includes all equipment necessary for its use as well as a spa and any other water features intended and designed to be used in conjunction with the swimming pool.

Vacant structure means a structure with no occupant as defined herein. Disconnection of electrical power or water service shall constitute prima facie evidence that a structure is vacant. The date of discontinuance of electrical power and/or water service shall constitute the date at which such building became vacant.

Vegetation means plant life of any kind, whether living or dead, characterized as grass, weeds, bushes, cacti, and trees.

Vehicle means a vehicle as defined in NRS 482.135.

The following definitions also apply to the provisions of this Code regulating vehicles:

1. *Abandoned vehicle* means any vehicle that is parked on private property without permission of the property owner for a continuous period of more than 72 hours, or parked on public property for a continuous period of more than 48 hours. Such a vehicle is presumed to have been abandoned or discarded by that vehicle's owner.

2. *Accumulation of inoperable vehicles* means two or more inoperable vehicles upon a residential lot or upon a commercial or industrial lot where the primary business does not involve the service of vehicles or the storage of inoperative vehicles.

3. *Inoperable vehicle* means a vehicle physically incapable of its intended operation or unable to be safely operated, or a vehicle that exhibits one or more of the following

conditions: wrecked; partially or fully dismantled; stripped; substantially damaged; scrapped; having the status of a hulk or shell; discarded; unable to be safely operated; elevated on blocks or similar devices; deflated tires; or having the engine, steering wheel, headlights, taillights, wheels, or tires removed.

4. *Minor vehicle repair work* means minor repair work that includes, but is not limited to: maintenance items such as engine tune-ups, oil changes and transmission fluid replacements, joint lubrication, brake component replacement, tire changes, and shall not exceed 72 hours in duration. Minor repair work does not include such work as engine overhauls or replacement, transmission replacements, and bodywork including repair or replacement of damaged body parts.

5. *Recreational vehicle* means a vehicle as defined in NRS 482.101.

Weed means a useless and troublesome plant generally accepted as having no value and frequently of uncontrolled growth, not including native desert vegetation.
(Ord. No. 3910, § 2, 10-4-2022; Ord. No. 3733, § 1, 10-20-2020; Ord. No. 3177, § 1, 6-17-2014; Ord. 2815, § 1, 5-5-2009; Ord. 2511, § 1, 2006; Ord. 2483, § 1 (part), 2006)

15.12.030 General property maintenance standards.

A. *Application.* The provisions of this section apply to all land in the limits of the City of Henderson, whether improved or unimproved, and all residential and nonresidential buildings and structures.

B. *Exterior property maintenance standards.* All land including exterior premises and vacant land, whether improved or unimproved, and exterior areas under any roof not enclosed by the walls, doors, or windows of any building shall be maintained free from the following:

1. Any accumulation of garbage, debris, rubble, litter, rubbish, refuse, or other waste material, or blight, to include, but not limited to: graffiti on walls, buildings, structures, fences, and mail boxes; bottles; paper; tires; vehicle parts; broken glass; cans; organic or inorganic material; including exterior areas under any roof not enclosed by the walls, doors, or windows of any building that also contains items such as cans, bottles, wood, metal, plastic, rags, tires, auto parts, lumber, covering (carpet, pads, vinyl), scrap iron, tin, similar materials or other metal not neatly stacked, or anything that becomes a hazard to the public health and safety or harbors insect, rodent, or vermin infestation;

2. The exterior visible use or display of tarps, plastic sheeting, or other similar materials as flexible or inflexible screening, fencing, or wall covering, unless part of a manufactured screen or fence assembly;

3. Abandoned or inoperable vehicle(s), or part(s) thereof, that are not concealed from ordinary public view by means of inside storage, permissible fencing, or other permissible means, subject to the following limitations and exceptions:

a. No property may have more than two abandoned or inoperable vehicles concealed from ordinary public view in the manner required herein in paragraph 3, unless such vehicles are contained in a garage or other fully enclosed structure;

b. A single inoperable vehicle on any property that is registered to a resident of the property and undergoing minor repair work as defined herein need not be concealed for the period of minor repair work if the period does not exceed 72 hours;

c. Lawful commercial activities involving vehicles are permitted without being concealed as allowed by the zoning applicable to the property;

4. Any operable vehicle parked in any portion of the front or side yard of a single-family dwelling or accessory building, unless all aspects of the parking of such vehicle meet the requirements of the Henderson Development Code for parking such vehicles in front and side yards, including but not limited to the requirement to park

vehicles on a paved concrete or asphalt surface (or similar paved surface), and the requirement that no more than one additional parking space be installed in such area;

5. Any machinery or equipment, including but not limited to forklifts, backhoes, tractors, or similar types of construction or commercial vehicles originally intended, designed or manufactured for commercial or industrial uses, or similar types of construction or commercial equipment. This paragraph shall not prohibit equipment used for personal residential gardening, personal property maintenance purposes, or active construction sites, or where otherwise permitted by the Development Code;

6. Any abandoned, unattended, discarded, broken or inoperable commercial or industrial equipment, appliances, machinery, freezers, refrigerators or other household items, equipment, furnishings, or any container, appliance or equipment that has an airtight door or lid, snap lock, or other locking device that may not be released from the inside, without first removing such door or lid, snap lock, or other locking device;

7. Any object, including but not limited to a sign, tree, or bush on private property that interferes with, obstructs, partially obstructs, or renders dangerous the free passage, use, or vision in the customary manner of any sidewalk, street, alley, highway, or traffic light or sign in the city;

8. Any landscaping, including but not limited to any tree, plant, shrub, or ground-cover visible from any street, alley, or sidewalk that is substantially dead, damaged, or characterized by uncontrolled growth, or presents a deteriorated appearance; uncultivated plants, weeds, tall grass, tumbleweeds, uncultivated shrubs or growth (whether growing or otherwise) higher than six inches; or any dead trees (including any palm or similar type of tree) and branches, bushes, shrubs, or portions thereof that may become a fire hazard, or result in a condition which threatens the health and safety of adjacent property owners or occupants;

9. Discarded or broken furniture;

10. Discarded or broken bicycles, bicycle parts, and toys;

11. Piles of mixed materials, dry vegetation, or rags; empty barrels, drums, boxes, crates, packing cases, and any similar materials;

12. Mattresses, bedding, and any similar materials;

13. Excelsior, packing straw, packing hay or other packing material;

14. Anything whatsoever that is or may become an imminent hazard or which may otherwise create a fire hazard;

15. Any unguarded and unprotected or abandoned excavation of more than two feet in depth on any unenclosed lot that may constitute a threat or public hazard;

16. Any wall or fence that is missing blocks, boards, or other material, or is otherwise deteriorated so as to constitute a hazard to persons or property;

17. Graffiti that is capable of being viewed by a person using any public area or right-of-way in the city;

18. Any temporary sign, banner, flag, inflatable advertisement, or tethered balloon that has not received required approvals or permits pursuant to the Development Code;

19. Animals kept on any premises not in compliance with the Development Code or HMC Title 7;

20. Recreational vehicles used as living quarters on premises other than a licensed and permitted RV park or resort; and

21. Any public nuisance or nuisance activity as defined in this chapter.

These general exterior property maintenance standards shall not be deemed to prohibit: items kept in covered bins or metal receptacles approved by any other ordinance of the city; automobile wrecking yards or any other junkyard lawfully established pursuant to the city zoning regulations; any neatly stored materials used in the development of property; and any items stored or kept in enclosed trailers or vehicles.

These general exterior property maintenance standards shall not apply to prohibit the neat and orderly storage of non-hazardous materials in the side and rear yards provided such storage does not exceed ten percent of the area of the side or rear yard in which the material is stored and further provided such storage does not exceed the height of any fence or wall enclosing such yards, and is not visible from the exterior of the property.

C. *Exterior insect and rodent control.* All premises shall be kept free from infestation. This provision shall not require action to disturb the natural activity of bees where such activity is not a danger or nuisance to any resident or residents of the area and where other legal requirements applicable to that activity have been met. Where infestation has taken place, the owner shall be responsible for the extermination of any insects, rodents, or other pests when such extermination is not specifically made the responsibility of the occupant by law or by orders issued under this Code.

D. *Drainage.* All premises shall be maintained so as to prevent the accumulation of stagnant water.

E. *Fences, screen walls, perimeter walls and retaining walls.* All fences, screen walls, perimeter walls and retaining walls visible from any street or sidewalk shall be safe, structurally sound, and uniform in color, structure and design, and shall be maintained so that they do not constitute a hazard, blight, or condition of disrepair. Examples of hazards,

blight, or conditions of disrepair include but are not limited to: leaning fences, leaning walls, fences that are missing slats or blocks, graffiti, peeling paint, paint or wall signage not in compliance with the requirements of the Development Code, deterioration of surface finish, walls or fences constructed without required permits, rotting, or damaged components.

Perimeter walls, including those in existence at the time of adoption of this Code, shall be properly maintained. Repair or replacement of an existing perimeter wall or portions thereof shall be made with the same or similar materials as the existing wall unless design review approval of different materials or a different design has been obtained from the community development and services department.

A perimeter wall may not be permanently removed unless approved by the building official and the director or his or her designee.

F. *Waste disposal requirements.* All premises shall comply with the applicable provisions of HMC 5.17 with regard to the disposal of garbage, rubbish, litter, rubble, refuse, debris and/or any other waste material, and the use, maintenance and storage of waste containers.

G. *Maintenance of swimming and architectural pools and ponds.* All swimming and architectural pools and spas (hot tubs) and fountains shall be properly maintained so as not to create a health or safety hazard or harbor infestation. Water shall not be allowed to stagnate. Fencing or other barriers required for swimming pool and spa enclosures shall be properly maintained as specified in the Southern Nevada Pool Code in effect at the time of pool construction. The premises shall be free from safety hazards inclusive of, but not limited to lack of security, water stagnation, or abandoned pools, regardless of whether or not there is water in the pools and ponds.

H. *Dumping.* Vacant lots or lands that have been subject to enforcement action regarding dumping on more than one occasion shall be secured to prevent future occurrences of dumping. Methods of securing vacant lots or lands may include the following: fencing; placing four-foot high posts at four feet intervals; or other equally effective methods. Where methods of securing vacant lots or lands by other than fencing are utilized, signs with the words "no dumping" shall be erected in accordance with applicable laws on vacant lots or lands that have been subject to dumping on more than one occasion.

I. *Open excavations.* Unenclosed, unsecured or dangerous excavations must be fully restored to a safe, serviceable condition, or filled with clean fill or other material approved by the building official. Excavations shall be maintained in a secure manner to prevent a hazard to public health and safety. An excavation is considered secure when:

1. An excavation more than two feet in depth is protected by a permanent and complete five-foot minimum height enclosure that surrounds the excavation or property; or

2. A well, pit, abandoned swimming pool, or similar excavation is covered, securely fenced, or otherwise protected in an equivalent manner.

J. *Vacant buildings, structures, and premises.* The property owner, or other responsible party, shall actively maintain all buildings, structures, and premises, including vacant buildings. Vacant buildings, structures, and premises shall meet the requirements of this section.

1. Active maintenance shall include:

a. Maintenance of landscaping and plant materials in good condition, free of weeds, and otherwise in conformance with the requirements of this Code;

b. Maintenance of the exterior of the building, including but not limited to paint and finishes, as specified in this Code;

c. Regular removal of all exterior refuse, debris, garbage, litter, rubbish or other waste and graffiti;

d. Maintenance of the building in continuing compliance with all applicable codes and regulations, including but not limited to maintenance of a secure exterior with functioning locks on all windows and doors;

e. Prevention of reoccurring criminal activity on the premises; and

f. Regular monitoring of the premises.

2. Vacant buildings, structures, and premises that are not maintained in accordance with the requirements of this section are subject to an order by the code official requiring that they be completely secured in the following manner:

a. All gas and electrical utility services may be required to be disconnected within ten days upon notice and order;

b. Doorways, crawl spaces, windows, and openings are to be completely boarded by use of five-eighths inch or thicker exterior grade plywood, fastened by tamper-proof screws and one-way bolts to the frame or a cross brace, as identified in Appendix A of the International Property Maintenance Code (IPMC);

c. All boarding shall be painted to match the dominant exterior color of the elevation of the building or structure on which the barricade is placed. The dominant exterior color shall be that color that occupies at least 60 percent of the particular elevation; and

d. For commercial buildings, opaque window coverings may be allowed by the director in lieu of boarding provided all windows are maintained and if broken or cracked, are replaced within 48 hours. The code official may revoke

approval of the use of the alternative when the owner or responsible party fails to maintain the windows or replace cracked or broken windows within the specified 48-hour time frame.

Any order issued pursuant to this section shall follow the enforcement procedures of section 15.12.060.B.5.g.

(Ord. No. 3733, § 1, 10-20-2020; Ord. No. 3177, § 1, 6-17-2014; Ord. 2815, § 2, 5-5-2009; Ord. 2511, § 2, 2006; Ord. 2483, § 1 (part), 2006)

15.12.040 Nonresidential buildings and structures maintenance standards.

A. *Application.* In addition to the general property maintenance standards specified in section 15.12.030, the provisions of this section shall apply to nonresidential buildings and structures located within the limits of the City of Henderson.

B. *Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing.* Foundations, exterior walls, roofs, and mechanical equipment shall be free from deterioration or blighting conditions and shall conform to the following requirements:

1. *Foundation.* Foundation systems shall be firmly supported by footings, plumb, and free from open cracks and breaks, and properly anchored and capable of supporting all nominal loads and resisting all load effects.

2. *Exterior walls.* The exterior walls shall be free from conditions that contribute to the deterioration of the structure or otherwise present a deteriorated or blighted condition. Exterior walls shall be substantially weather-tight, weatherproof, free from dry rot and mildew, and shall be maintained in sound condition and good repair so as to prevent infestation. Exterior doors and windows shall be fitted securely in their frames and shall be substantially weather-tight with operable locks, if locks are present. Windows of occupied structures shall not be boarded, and glazing in windows and doors shall be properly maintained. Chipping or peeling paint may not exceed 25 percent of a surface area of any building component visible from public property. All exterior surfaces other than decay-resistant materials shall be protected from the elements by painting or other protective covering according to manufacturer's specifications. Chimneys and similar appurtenances shall be structurally safe. Window screening, if present, shall be maintained in good condition.

3. *Roofs.* Roofs shall be maintained in a safe condition and have no defects which might admit rain or cause dampness in the walls or interior portion of the building. Roofs shall be free from conditions that contribute to the deterioration of the structure or otherwise present a deteriorated or blighted appearance. Broken,

rotted, split, curled, or missing roofing material shall not exceed ten square feet of any roof for no more than 30 consecutive days. Canopies and awnings shall be properly anchored and maintained.

4. *Mechanical equipment.* Heating, ventilating, air-conditioning, evaporative cooling equipment, and their mounting apparatus shall be maintained in a condition free from excessive accumulation of scale, rust, corrosion, or mineral deposits. Equipment stands or mounts shall be structurally sound. Unused, deteriorated or unattached heating ventilation and air conditioning (HVAC) equipment and mechanical equipment and associated apparatuses shall be removed from the structure. Equipment shrouds, enclosures, and similar protecting housing components integral to a piece of equipment shall be installed, anchored, and properly maintained.

5. *Electrical equipment.* All electrical equipment, wiring and appliances shall be installed and maintained in a safe operational condition and approved manner.

6. *Plumbing equipment.* Plumbing equipment shall be properly installed and maintained in working order, and shall be kept free from obstructions, leaks and defects and be capable of performing the function for which such plumbing fixtures are designed. Plumbing fixtures shall be maintained in a safe, sanitary, and functional condition.

7. *Public and employee toilet facilities.* Not less than one water closet, one lavatory, and one drinking facility shall be available to employees working on the premises and to the public, unless exempted by the International Building code. Toilet facilities shall be maintained in a safe, sanitary, and working condition in accordance with the International Plumbing Code and the International Building Code. Except for periodic maintenance or cleaning, public access and use shall be provided to the toilet facilities at all times during occupancy of the premises.

8. *Solar reflectance.* Solar reflectance from windows, solar panels or similar reflective surfaces determined by the fire chief, the fire chief's designee, or code enforcement to create an unsafe condition constituting a fire hazard or other condition dangerous to human life or the public health, safety or welfare, shall be mitigated. Mitigation may employ one of the following methods: installation of external film, solar screens, awnings, or screening; window replacement; changing the window installation angle; or other means deemed acceptable by the fire chief, the fire chief's designee, or code enforcement. Common-interest community associations may not prohibit the owner or responsible party from providing such mitigation.

C. *Outdoor stairs, porches, guardrails, handrails, and similar railings.* All outdoor stairs, porches, guard and handrails and all supports shall be adequate for safety and maintained in a structurally sound condition. Every stair and porch, and any appendage thereto shall be capable of supporting a load that normal use may place thereon. Every flight of stairs

having more than four risers shall have a handrail on one side of the stair and every open portion of a stair, landing, balcony, porch, deck, ramp, or other walking surface that is more than 30 inches (762 mm) above the floor or grade below shall have guards. Handrails shall not be less than 30 inches (762 mm) in height or more than 42 inches (1067 mm) in height measured vertically above the nosing of the tread or above the finished floor of the landing or walking surfaces. Guards shall not be less than 30 inches (762 mm) in height above the floor of the landing, balcony, porch, deck, or ramp, or other walking surface.

D. *Interior of structures.*

1. *General.* Every owner of a property shall ensure the interior of structures and mechanical, electrical, and plumbing equipment therein are maintained in good working order and structurally sound. Occupants shall keep that part of the structure that they occupy or control in a clean and sanitary condition. Every owner of a structure containing a rooming house, a hotel, a dormitory, two or more dwelling units, or two or more nonresidential occupancies shall maintain in a clean and sanitary condition the shared or common areas of the structure or any areas accessible to the public.

2. *Structural members.* All structural members shall be maintained structurally sound and be capable of supporting the imposed design loads.

3. *Interior surfaces.* All interior surfaces shall be maintained in good, clean and sanitary condition. Peeling, chipping, flaking, or abraded paint shall be repaired, removed, or covered. Cracked, broken, or damaged, or loose plaster, decayed wood, and other defective surface conditions in excess of one-eighth inch shall be repaired.

4. *Stairs and walking surfaces.* Every stair, ramp, landing, balcony, mezzanine or other walking surface shall be maintained in sound condition and good repair. Every flight of stairs having more than four risers shall have a handrail on one side of the stair, and every open portion of a stair, landing, balcony, porch, deck, ramp, or other walking surface that is more than 30 inches (762 mm) above the floor or grade below shall have guards.

5. *Handrails and guardrails.* Every handrail and guardrail shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition. Handrails shall be not less than 30 inches (762 mm) in height or more than 42 inches (1067 mm) in height measured vertically above the nosing of the tread or above the finished floor of the landing or walking surfaces. Guards shall be not less than 30 inches (762 mm) in height above the floor of the landing, balcony, porch, deck, or ramp or other walking surface.

6. *Interior windows and doors.* Every interior window and door shall fit within its frame and shall be capable of being opened and closed by being properly and securely attached to jambs, headers, or tracks.

E. *Exits.* All buildings or portions thereof shall be provided with properly maintained exits, exit corridors, exit passageways, and appurtenances as required by the building code. Dwelling units and guest rooms shall have access directly to the outside or to an exit corridor or exit passageway. A safe, continuous, and unobstructed path of travel shall be provided from any point in a building or structure to the public way. Means of egress shall comply with the International Fire Code. Required emergency escape openings shall be maintained in accordance with the applicable building codes in effect at the time of construction, and the following:

1. Required emergency escape and rescue openings shall be operational from the inside of the room without the use of keys or tools; and

2. Bars, grilles, grates, or similar devices are permitted to be placed over emergency escape and rescue openings provided the minimum net clear opening size complies with the code that was in effect at the time of construction and such devices shall be releasable or removable from the inside without the use of a key, tool or force greater than that which is required for normal operation of the escape and rescue opening.

F. *Fire protection.* All buildings or portions thereof shall be provided with the degree of fire-resistive construction as required by the building code for the appropriate occupancy, type of construction, and location on property, and shall be provided with the appropriate fire-extinguishing systems or equipment as required by the building code and fire code. All fire-resistive construction required by the building code shall be maintained.

G. *Substandard commercial buildings.* Any building or portion thereof or the premises on which the same is located in which there exists any of the following conditions shall be deemed and hereby declared to be a substandard building, which shall be a violation of this Code.

1. *Habitability and sanitation.* Buildings or portions thereof shall be deemed substandard when any of the following conditions exist:

a. Improper operation of water closet lavatory, bathtub, or shower, or lack of water closet lavatory, bathtub, or shower when required by law to be installed on the premises;

b. Lack of required interior wall covering;

c. Lack of required hot and cold running water to plumbing fixtures;

d. Lack of or improper operation of required ventilation equipment;

e. Lack of required electrical lighting;

f. Dampness in rooms;

g. Infestation;

h. General dilapidation or improper maintenance;

i. Lack of connection to a required sewage disposal system;

j. Lack of adequate garbage and rubbish storage and removal facilities; and

k. Improper occupancy and/or unlawful habitation of any portion of the building or property without prior approval from the code official.

2. *Structural hazards.* Buildings or portions thereof shall be deemed substandard when they are, or contain, structural hazards. Structural hazards shall include, but not be limited to, the following:

a. Deteriorated or inadequate foundations incapable of supporting the load which normal use may place thereon;

b. Defective or deteriorated flooring or floor supports;

c. Flooring or floor supports of insufficient size to carry imposed loads safely;

d. Members of walls, partitions, or other vertical supports that split, lean, list, or buckle due to defective material or deterioration;

e. Members of walls, partitions, or other vertical supports that are of insufficient size to carry imposed loads safely;

f. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members that sag, split, or buckle due to defective material or deterioration;

g. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members that are of insufficient size to carry imposed loads safely; and

h. Fireplaces or chimneys that list (to lean), bulge, or settle due to defective material or deterioration.

3. *Hazardous electrical wiring.* All wiring that does not conform to all applicable laws in effect at the time of installation, has not been maintained in good condition, or is not currently in good and safe condition and working properly shall be considered substandard.

4. *Hazardous plumbing.* All plumbing that does not conform to all applicable laws in effect at the time of installation, has not been maintained in good condition, is not currently in good and safe condition or not working properly, or is not free of cross connections and siphonage between fixtures shall be considered substandard.

5. *Hazardous mechanical equipment.* All mechanical equipment, including vents, that does not conform to all applicable laws in effect at the time of installation, that has not been maintained in good and safe condition, and is not currently in good and safe condition and working properly shall be considered substandard.

6. *Fire hazard.* Any building or portion thereof, device, apparatus, equipment, combustible waste, or vegetation that is in noncompliance with the fire code to the extent that the fire chief has determined the noncompliance condition is unsafe or that a fire or explosion could occur as the result of said noncompliance shall be considered substandard. In addition, any condition the fire chief has determined provides a ready fuel to augment the spread and intensity of fire or explosion arising from any cause is deemed substandard.

7. *Faulty materials of construction.* All materials of construction except those that are specifically allowed or approved by the building code and that have been adequately maintained in good and safe condition shall be considered substandard.

8. *Hazardous or unsanitary premises.* Those premises on which an accumulation of weeds, vegetation, junk, dead organic matter, debris, garbage, offal, rodent harborages, stagnant water, combustible materials, and similar materials or conditions that constitute a fire hazard, health hazard, safety hazard, or a public nuisance shall be considered substandard.

9. *Inadequate exits.* All buildings or portions thereof not provided with adequate exit facilities, except those buildings or portions thereof whose exit facilities conformed with all applicable laws at the time of their construction and that have been adequately maintained and increased in relation to any increase in occupant load, alteration or addition, or any change in occupancy shall be considered substandard. When an unsafe condition exists due to lack of or improper location of exits, additional exits may be required to be installed.

10. *Inadequate fire-protection or fire-fighting equipment.* All buildings or portions thereof not provided with fire-resistive construction or fire-extinguishing systems or equipment required by the building and fire code, except those buildings or portions thereof that conformed to all applicable laws at the time of their construction and whose fire-resistive integrity and fire-extinguishing systems or equipment have been adequately maintained and improved in relation to any increase in occupant load, alteration or addition, or any change in occupancy shall be considered substandard.

11. *Improper occupancy.* All buildings or portions thereof occupied for purposes not designed or intended to be used for those occupancies shall be considered substandard.

H. *Loading and unloading.* Unless approved in writing by the director, or their designee, loading, unloading, opening, closing or other handling of boxes, crates, containers, building materials, garbage cans, or similar objects between the hours of 11:00 p.m. and 7:00 a.m. that creates unreasonable noise across a residential real property boundary is prohibited. (Ord. No. 3910, § 3, 10-4-2022; Ord. No. 3733, § 1, 10-20-2020; Ord. No. 3564, § 1, 2-5-2019; Ord. No. 3177, § 1, 6-17-2014; Ord. 2511, § 3, 2006; Ord. 2483, § 1 (part), 2006)

15.12.050 Residential buildings and structures maintenance standards.

A. *General.* In addition to the general property maintenance standards specified in section 15.12.030 of this Code, all buildings, common area, or portions thereof used, designed, or intended to be used for human habitation shall comply with the requirements of this section. Buildings and accessory structures to residential buildings shall comply with the provision of subsection B of this section. Any dwelling that is leased, sub-leased, rented, or any other arrangement where the owner or possessor of the property receives a pecuniary gain from another party for the use and or occupancy of the dwelling must have the dwelling and all common areas conform to both the residential and non-residential property maintenance standards. Whenever conflicting provisions or requirements occur between this chapter, the technical codes and other laws and regulations, the most restrictive shall govern.

B. *Foundations, stairs, exterior walls, roofs, mechanical equipment, electrical, and plumbing.* Foundations, exterior walls, roofs, and mechanical equipment shall be free from deterioration or blighting conditions and shall conform to the following requirements:

1. *Foundation.* Foundation systems shall be firmly supported by footings, plumb, and free from open cracks and breaks, properly anchored and capable of supporting all nominal loads and resisting all load effects.

2. *Exterior walls.* The exterior walls shall be free from conditions that contribute to the deterioration of the structure or otherwise present a deteriorated or blighted condition. Exterior walls shall be substantially weather-tight, weatherproof, free from dry rot and mildew, and shall be maintained in sound condition and good repair so as to prevent infestation. Exterior doors and windows shall be fitted securely in their frames and shall be substantially weather-tight with operable locks if locks are present. Windows of occupied structures shall not be boarded and glazing in windows and doors shall be properly maintained. Chipping or peeling paint may not exceed 25 percent of a surface area of any building component visible from any street or sidewalk. All exterior surfaces other than decay-resistant materials shall be protected from the elements by painting or other protective covering according to manufacturer's specifications. Paint must be uniform in color, and paint and wall signage must be in compliance with the requirements of the Development Code. No lead-based paint shall be used on any surface of any structure. Chimneys and similar appurtenances shall be structurally safe. Window screening, if present, shall be maintained in good condition.

3. *Roofs.* Roofs shall be maintained in a safe condition and have no defects which might admit rain or cause dampness in the walls or interior portion of the building.

Roofs shall be free from conditions that contribute to the deterioration of the structure or otherwise present a deteriorated or blighted appearance. Broken, rotted, split, curled, or missing roofing material shall not exceed ten square feet of any roof. Canopies and awnings shall be properly anchored and maintained.

4. *Mechanical equipment.* Heating, ventilating, air-conditioning, evaporative coolers, equipment, and their mounting apparatus shall be maintained in a safe and operational condition free from excessive accumulation of scale, rust, corrosion, or mineral deposits. Cooler stands or mounts shall be structurally sound. Unused, deteriorating, or unattached evaporative coolers shall be removed from the structure. Equipment shrouds, enclosures, and similar protecting housing components integral to a piece of equipment shall be installed, anchored, and properly maintained.

5. *Electrical equipment.* All electrical equipment, wiring and appliances shall be installed and maintained in a safe, functional, and approved manner.

6. *Plumbing equipment.* All plumbing equipment, piping and fixtures shall be installed and maintained in a safe, sanitary, functional and approved manner.

7. *Stairs, porches, guardrails, handrails, and similar railings.* All stairs, porches, guardrails and handrails shall be adequate for safety and maintained in a structurally sound and safe condition. Every stair and porch, and any appendage thereto shall be maintained in a safe condition and capable of supporting a load that normal use may place thereon. Every exterior and interior flight of stairs having more than four risers shall have a handrail on one side of the stair, and every open portion of a stair, landing, balcony, porch, deck, ramp, or other walking surface that is more than 30 inches above the floor or grade below shall have guards. Handrails shall be not less than 34 inches in height or more than 38 inches in height measured vertically above the nosing of the tread or above the finished floor of the landing or walking surfaces. Guards shall be not less than 36 inches in height above the floor of the landing, balcony, porch, deck, or ramp or other walking surface.

C. *Room dimensions.*

1. *Existing buildings.* Buildings and portions thereof in existence at the time of the adoption of this Code are not required to be modified to comply with this section C. and may have their existing use or occupancy continued provided the construction, use, or occupancy was legal at the time of original construction and further provided the continued use or occupancy is not dangerous to life, health, and safety.

2. *Ceiling heights.* Habitable space shall have a ceiling height of not less than seven feet except as otherwise permitted in this section. Kitchens, halls, bathrooms, and toilet compartments may have a ceiling height of not less than seven feet measured to the lowest projection from the ceiling. Where exposed beam ceiling members are

spaced at less than 48 inches on center, ceiling height shall be measured to the bottom of these members. Where exposed beam ceiling members are spaced at 48 inches or more on center, ceiling height shall be measured to the bottom of the deck supported by these members, provided that the bottom of the members is not less than seven feet above the floor.

If any habitable space has a sloping ceiling, the prescribed ceiling height for the room is required in only one-half the area thereof. No portion of the room measuring less than five feet from the finished floor to the finished ceiling shall be included in any computation of the minimum area thereof. If any room has a furred ceiling, the prescribed ceiling height is required in two-thirds the area thereof, but in no case shall the height of the furred ceiling be less than seven feet.

3. *Floor area.* Dwelling units and congregate residences shall have at least one room that shall have not less than 120 square feet of floor area. Other habitable rooms, except kitchens, shall have an area of not less than 70 square feet. Where more than two adults occupy a room used for sleeping purposes, the required floor area shall be increased at the rate of 50 square feet for each adult in excess of two.

Exception: Nothing in this section shall prohibit the use of an efficiency dwelling unit within an apartment house meeting the following requirements:

a. The unit shall have a living room of not less than 220 square feet of floor area. An additional 100 square feet of floor area shall be provided for each occupant of such unit in excess of two;

b. The unit shall be provided with a kitchen sink and cooking appliance. If a refrigerator is provided, it must be maintained in a safe and operational condition. Each having a clear working space of not less than 30 inches in front, except accessible units shall meet the working space requirements of those units. Light and ventilation conforming to this Code shall be provided; and

c. The unit shall be provided with a separate bathroom containing a water closet, lavatory, and bathtub or shower.

4. *Width.* No habitable room other than a kitchen shall be less than seven feet in any dimension. Each water closet shall be located in a clear space not less than 30 inches in width and a clear space in front of the water closet of not less than 24 inches shall be provided.

D. *Light and ventilation.*

1. *General.* For the purpose of determining the light or ventilation required by this section, any room may be considered as a portion of an adjoining room when one-half of the area of the common wall is open and unobstructed and provides an

opening of not less than one-tenth of the floor area of the interior room or 25 square feet, whichever is greater. Exterior openings for natural light or ventilation required by this section shall open directly onto a public way or a yard or court located on the same lot as the building.

Exceptions:

a. Required windows may open into a roofed porch where the porch:

(1) Abuts a public way, yard, or court;

(2) Has a ceiling height of not less than seven feet; and

(3) Has a longer side at least 65 percent open and unobstructed.

b. Skylights.

2. *Light.* Guest room and habitable rooms within a dwelling unit or a congregate residence shall be provided with natural light by means of exterior glazed openings with an area of not less than one-tenth of the floor area of such rooms with a minimum of ten square feet of opening area.

3. *Ventilation.* Guest rooms and habitable rooms within a dwelling unit or congregate residence shall be provided with natural ventilation by means of exterior openings with an area of not less than 1/20 of the floor area of such rooms with a minimum opening of five square feet of area. Such openings shall be capable of being opened so as to provide ventilation.

In lieu of required openings for natural ventilation, a mechanical ventilating system may be provided. Such system shall be capable of providing:

a. Not less than four and one-half or more than seven air changes per hour for an attached residence or any residence for which fire sprinklers are installed; or

b. Not less than four or more than seven air changes per hour for any residence other than a residence described in paragraph (a).

Bathrooms, water closet compartments, laundry rooms, and similar rooms shall be provided with natural ventilation by means of exterior openings with an area of not less than 1/20 of the floor areas of such rooms with a minimum of one and one-half square feet of area. Such openings shall be capable of being opened so as to provide ventilation. In lieu of required exterior openings for natural ventilation in bathrooms containing a bathtub or shower, or combination thereof, laundry rooms, and similar rooms, a mechanical ventilation system connected directly to the outside capable of providing five air changes per hour shall be provided. The location of the discharged exhaust air shall be at least three feet from any opening into the building. Bathrooms which contain only a water closet or lavatory, or

combination thereof, and similar rooms may be ventilated with an approved mechanical re-circulating fan or similar device designed to remove odors from the air.

4. *Hallways.* All public hallways, stairs, and other paths of exit shall be adequately illuminated at all times in accordance with the building code.

E. *Sanitation.*

1. *Bathrooms.* Dwelling units, lodging houses and congregate residences shall be provided with a bathroom equipped with facilities consisting of a water closet, lavatory, and either a bathtub or shower, or combination thereof.

2. *Kitchen.* Each dwelling unit shall be provided with a kitchen. Every kitchen shall be provided with a safe and operational kitchen sink, and cooking appliance. If a refrigerator is provided, it must be maintained in a safe and operational condition.

3. *Fixtures.* All plumbing fixtures shall be connected to a sanitary sewer or to an approved private sewage disposal system. All plumbing fixtures shall be connected to an approved water supply and provided with hot and cold running water necessary for normal operations. All plumbing fixtures shall be listed by an approved listing agency.

4. *Water closet compartments.* Except in dwelling units, walls within two feet of urinals and water closets shall have a smooth, hard, nonabsorbent surface to a height of four feet above the floor.

5. *Installation and maintenance.* All sanitary facilities shall be installed and maintained in a safe and sanitary working condition.

6. *Required utilities.* Dwelling units, lodging houses and congregate residences shall be provided with public utility services sufficient to maintain heating, plumbing, and electrical fixtures and appliances in a working condition.

F. *Structural conditions.* Roofs, floors, walls, foundations, and all other structural components of buildings shall be capable of resisting any and all forces and loads to which they may be subjected as specified in the codes and standards in effect at the time of original construction, and as specified in codes and standards regulating existing buildings.

G. *Weather protection.* Every habitable building shall be weather protected so as to provide shelter for the occupants against the elements as specified in subsection B of this section.

H. *Smoke and carbon monoxide alarms.* All dwelling units shall be equipped with smoke alarms and carbon monoxide alarms as required in the International Residential Code, International Building Code, and/or International Existing Building Code. Retrofit alarms and/or combination alarms are permitted to be used if they comply with all other provisions of the above-referenced codes and this Code.

I. *Mechanical equipment.*

1. *Heating.* Dwelling units, guest rooms, and congregate residences shall be provided with permanently installed heating facilities capable of maintaining a room temperature of 68° degrees Fahrenheit (20° degrees Celsius) at a point three feet (914 mm) above the floor in all habitable rooms. Such facilities shall be installed and maintained in a safe condition. All heating devices or appliances shall be of an approved type and utilized in accordance with their listing. Fuel-burning heaters without vents to the exterior are specifically prohibited.

2. *Combustion air.* Rooms and areas containing fuel-burning appliances shall be provided with combustion air as required by the mechanical code.

3. *Cooling.* Dwelling units, guest rooms, and congregate residences shall be provided with permanently installed cooling facilities capable of maintaining a room temperature of 78° degrees Fahrenheit (25.5° Celsius) at a point three feet (914 mm) above the floor in all habitable rooms. Such facilities shall be installed and maintained in a safe condition. All cooling devices or appliances shall be of an approved type and utilized in accordance with their listing.

J. *Electrical equipment.* All electrical equipment, wiring, and appliances shall be installed and maintained in safe working order and in accordance with the electrical code. All electrical equipment shall be listed and approved for the intended use.

K. *Exits and emergency egress.*

1. *Exits.* All buildings or portions thereof shall be provided with properly maintained exits, exit corridors, exit passageways, and appurtenances as required by the building code. Dwelling units and guest rooms shall have access directly to the outside or to an exit corridor or exit passageway.

2. *Emergency egress.* Sleeping rooms below the fourth story shall have at least one operable window or exterior door approved for emergency escape or rescue. The window or door shall have the ability to be opened from the inside and any security bars or grills protecting such openings shall comply with subsection X of this section.

L. *Fire protection.* All buildings or portions thereof shall be provided with the degree of fire-resistive construction as required by the building code for the appropriate occupancy, type of construction, and location on property, and shall be provided with the appropriate fire-extinguishing systems or equipment as required by the building code and fire code. All fire-resistive construction required by the building code shall be maintained.

M. *Substandard residential buildings (minimum habitability standards).* Any building or portion thereof or the premises on which the same is located in which there exists any of the following conditions shall be deemed and hereby declared to be a substandard building, which shall be a violation of this Code and may be subject to the requirements of subsection 15.12.060.B.5.F.

1. *Habitability and sanitation.* Buildings or portions thereof shall be deemed substandard when any of the following conditions exist:

a. Lack of, or improper operation of, water closet lavatory, bathtub, or shower;

b. Lack of required interior wall covering;

c. Lack of proper kitchen sink, cooking appliances or refrigerator, or improper operation of kitchen sink, cooking appliance or refrigerator;

d. Lack of required hot and cold running water to plumbing fixtures;

e. Lack of adequate heating or cooling facilities;

f. Lack of, or improper operation of, required ventilation equipment;

g. Lack of minimum amounts of natural light and ventilation required by this Code;

h. Room and space dimensions less than required by this Code. However, a condition that would require the displacement of sound walls or ceilings to meet height, length, or width requirements for ceilings, rooms, and dwelling units shall not by itself be considered sufficient existence of dangerous conditions making a building substandard, unless the building was constructed, altered, or converted in violation of those requirements in effect at the time of construction, alteration, or conversion;

i. Lack of required electrical lighting;

j. Dampness in habitable rooms;

k. Infestation of insects, vermin, or rodents;

l. General dilapidation or improper maintenance;

m. Lack of connection to a required sewage disposal system;

n. Lack of adequate garbage and rubbish storage and removal facilities;

o. Lack of connection to public utilities that are essential to maintain heating, plumbing, and electrical fixtures and appliances in a working condition; and

p. Lack of, or improper maintenance of, required systems, devices, and equipment to detect a fire, actuate an alarm, or suppress or control a fire, or any combination thereof, at all times in accordance with the International Fire Code.

2. *Structural hazards.* Buildings or portions thereof shall be deemed substandard when they are, or contain, structural hazards. Structural hazards shall include, but not be limited to, the following:

a. Deteriorated or inadequate foundations incapable of supporting the load which normal use may place thereon;

b. Defective or deteriorated flooring or flooring supports;

c. Flooring or floor supports of insufficient size to carry imposed loads safely;

d. Members of walls, partitions, or other vertical supports that split, list (to lean), or buckle due to defective material or deterioration;

e. Members of walls, partitions, or other vertical supports that are of insufficient size to carry imposed loads safely;

f. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members that sag, split, or buckle due to defective material or deterioration;

g. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members that are of insufficient size to carry imposed loads safely; and

h. Fireplaces or chimneys that list (to lean), bulge, or settle due to defective material or deterioration.

3. *Hazardous electrical wiring.* All wiring that does not conform to all applicable laws in effect at the time of installation, has not been maintained in good condition, or is not currently in good and safe condition and working properly shall be considered substandard.

4. *Hazardous plumbing.* All plumbing that does not conform to all applicable laws in effect at the time of installation, has not been maintained in good condition, is not currently in good and safe condition or not working properly, or is not free of cross connections and siphonage between fixtures shall be considered substandard.

5. *Hazardous mechanical equipment.* All mechanical equipment, including vents that do not conform to all applicable laws in effect at the time of installation, not maintained in good and safe condition and not currently in good and safe condition and working properly shall be considered substandard.

6. *Fire hazard.* Any building or portion thereof, device, apparatus, equipment, combustible waste, or vegetation that is noncompliant with the fire code to the extent that the fire chief, building official or their designee, or a code official has determined the noncompliant condition is unsafe or that a fire or explosion could occur as the result of said noncompliance shall be shall be considered substandard and a violation of this Code. In addition, any condition the fire chief or his or her designee has determined provides a ready fuel to augment the spread and intensity of fire or explosion arising from any cause is deemed substandard.

7. *Faulty materials of construction.* All materials of construction that are not specifically allowed or approved by the building code or have not been adequately maintained in good and safe condition shall be considered substandard.

8. *Hazardous or unsanitary premises.* Those premises on which an accumulation of weeds, vegetation, junk, dead organic matter, debris, garbage, offal, rodent harborages, stagnant water, combustible materials, and similar materials or conditions that constitute a fire hazard, health hazard, or safety hazard shall be considered substandard.

9. *Inadequate exits.* All buildings or portions thereof not provided with adequate exit facilities as required by this Code, except those buildings or portions thereof whose exit facilities conformed with all applicable laws at the time of their construction and that have been adequately maintained and increased in relation to any increase in occupant load, alteration or addition, or any change in occupancy shall be considered substandard. When an unsafe condition exists due to lack of or improper location of exits, additional exits may be required to be installed.

10. *Inadequate fire-protection or fire-fighting equipment.* All buildings or portions thereof that are not provided with fire-resistive construction or fire-extinguishing systems or equipment required by the building and fire code shall be considered substandard, except those buildings or portions thereof that conformed to all applicable laws at the time of their construction and whose fire-resistive integrity and fire-extinguishing systems or equipment have been adequately maintained and improved in relation to any increase in occupant load, alteration or addition, or any change in occupancy.

11. *Improper occupancy.* All buildings or portions thereof occupied for living, sleeping, cooking, or dining purposes that were not designed or intended to be used for those occupancies shall be considered substandard.

12. *Inadequate emergency egress.* Bars, grills, covers, screens, or similar devices are not permitted to be placed over emergency escape and rescue openings, bulkhead enclosures, or window wells that serve sleeping rooms, unless the minimum net opening dimensions required for escape and rescue openings are maintained. Such devices shall be releasable or removable from the inside without the use of a key, tool, or force greater than that which is required for normal operation of the escape and rescue opening.

(Ord. No. 3910, §§ 4—6, 10-4-2022; Ord. No. 3733, § 1, 10-20-2020; Ord. No. 3564, § 2, 2-5-2019; Ord. No. 3177, § 1, 6-17-2014; Ord. 2511, § 4, 2006; Ord. 2483, § 1 (part), 2006)

15.12.060 Enforcement provisions.

A. *General provisions.*

1. *Authority of the director and his or her designees.* The director is authorized and directed to administer and enforce this Code. The director and his or her desig-

nee(s), referred to herein as "code enforcement official(s)" or "code official(s)", have the authority to determine whether a violation of this Code exists and to take appropriate action to gain compliance with this Code. This authority includes the power to issue notices, orders, administrative and misdemeanor citations and fines, the power to inspect public and private property and to abate violations, and the power to use any other remedies available under this Code, other provisions of the Henderson Municipal Code, and Nevada law.

a. *Substantial compliance standard.* The code official is authorized to grant minor variations from the strict application of specific Code provisions where, in the opinion of the director, the corrective work or compliance measures are in substantial compliance with the intent of this Code.

b. *Authority to inspect.* Whenever it is necessary to make an inspection to enforce any of the provisions of, or perform any duty imposed by this Code or other applicable law, or whenever the code official has reasonable cause to believe that there exists on any building, structure, or land any violation of the provisions of this Code or any other applicable law, or any condition that otherwise makes the property hazardous or dangerous, the code official is hereby authorized to:

(1) Make any investigations, examinations, and surveys as may be necessary in the performance of their duties; and

(2) Enter the building, structure, or land at any reasonable time to conduct inspections and perform any duty imposed upon them by this Code. This authority is subject to the following limitations:

(a) If the building, structure, or land is occupied, the code official shall first present proper credentials to the occupant and request entry, explaining the reasons for entry; or

(b) If the building, structure, or land is unoccupied, the code official shall first make a reasonable effort to locate the responsible party and request entry, explaining the reasons for entry.

If entry is refused or if the responsible party cannot be found, the code official shall have recourse to every remedy provided by law to secure lawful entry and inspect the building, structure or land, including but not limited to, securing an inspection warrant. The code official shall provide notice that a warrant has been issued to both the owner and the occupant at least 24 hours before the warrant is executed, unless the judge finds that immediate execution is reasonably necessary.

Notwithstanding the foregoing, if the director has reasonable cause to believe that the building, structure, or land presents an imminent hazard

that requires immediate inspection to safeguard the public health or safety, the director may authorize the code official to immediately enter and inspect the building, structure, or land and use any reasonable

means required to enter and make an inspection, whether the property is occupied or unoccupied and whether or not permission to inspect has been obtained.

(3) The authority granted pursuant to this section includes, but is not limited to, the taking of photographs, samples, and other physical evidence and the use of devices such as a sound level or light measurement device to measure disturbances. Unmanned aerial vehicles may also be employed for the purposes of taking photographs and videos if all applicable laws, regulations, and city policies and procedures are followed prior to implementation of the use of such devices.

c. *Extensions.* If a violation of this Code has not been corrected by the required compliance date provided in any notice, order, or citation, but significant progress has been completed, the code official may grant an extension of time, not to exceed 30 days. The code official may grant additional extensions of time provided substantial compliance progress continues to be made. In cases of extreme hardship, the code official may grant an extension of time without progress towards substantial compliance. The extensions permitted by this section are not automatic. In determining whether to grant any extension, the code official shall consider the nature of the violation and its impact on the safety of the public and building occupants, as well as any history of similar past violations on the same property and the degree of cooperation received from the property owner or other responsible party in complying with past notices and orders.

2. *Responsibilities of owner and responsible party.* Every owner remains liable for violations of this Code even though an obligation is also imposed on the occupants of the property or other responsible parties, and even if the owner has, by agreement, imposed on the occupant the duty of furnishing required equipment or complying with this Code. Every owner or other responsible party, in addition to being responsible for maintaining the property in a sound structural and unblighted condition, shall be responsible for keeping that part of the building or premises they occupy or control in a clean, sanitary, and safe condition, including the shared or public areas of commercial buildings. Every occupant of a dwelling unit shall also be responsible for that part of the dwelling unit or premises he or she occupies and controls and shall dispose of all rubbish, garbage, and other organic waste in a manner required by the ordinances of the city and the health officer. Every occupant shall, where required by this Code or, by the ordinances of the city or by the health officer, furnish and maintain approved devices, equipment, or facilities necessary to keep the property safe and sanitary.

3. *Transfer of ownership.* The owner of any building, structure, lot, or parcel of land that has received any pending notice of violation, order, or citation under this Code and is in the process of selling, transferring, mortgaging, leasing, or otherwise disposing of the building, structure lot, or parcel that is the subject of the notice, order or citation, remains obligated to correct the violation. Alternatively, the owner shall first furnish the grantee, transferee, mortgagee, or lessee a true copy of any citation, order or notice of violation issued by the city and shall furnish the city a signed and notarized statement from the grantee, transferee, mortgagee, or lessee acknowledging such citation, order or notice of violation and fully accepting the responsibility, without condition, for making the corrections or repairs required by such citation, order, or notice of violation.

B. *Administrative enforcement procedures and remedies.*

1. *Notice of violation and order to correct.* Except as otherwise provided herein, when the code official has determined that a violation of this Code exists, the code official may issue a notice of violation and order to correct to the property owner and any other responsible party, in the following manner:

a. *Form of notice and order.* The notice and order shall be in writing and shall include:

(1) A description of the real property sufficient for identification;

(2) A statement of the violation(s) and why the notice is being issued;

(3) A list of the corrections necessary to bring the property into compliance with this Code;

(4) A correction order with a reasonable deadline to bring the property into compliance; and

(5) A statement advising that administrative fees and fines may be assessed in the event the owner or other responsible party fails to correct the stated violations of this Code.

b. *Method of service.* A notice and order shall be deemed properly served if a copy is:

(1) Personally served to the owner or other responsible party, with a signed certificate of service prepared by the code official effectuating service. If personal service is effectuated upon a responsible party other than the owner, a copy of the notice shall be sent by first-class mail to the owner as shown in the records of the Clark County Assessor;

(2) Sent by certified mail, return receipt requested, to the owner of the property as shown in the records of the Clark County Assessor:

(a) If the notice is returned by the U.S. Postal Service showing that it was not delivered, a copy thereof shall be posted in a conspicuous

place in or about the building, structure, lot, or premise of the subject property. It shall be unlawful for any person to remove, alter, deface, tamper with, or alter the visibility of any notice and order posted at the premises pursuant to this Code. Service of the notice and order shall be complete upon certified mailing or, if the notice and order is returned, posting on the premises. The failure of the owner to receive a certified mailing of the notice and order does not affect the validity of any enforcement proceeding taken under this Code;

(b) A certification of notice and order posting shall be completed by the code official stating the name of the code enforcement official posting the notice, the date and time of the posting, the address of the property where the notice and order was posted, and a brief description of the location on the property where the notice and order was posted;

(3) Posted in a conspicuous place in or about the building, structure, lot, or premise and sent by first-class mail to the owner of the property as shown in the records of the Clark County Assessor; or

(4) Sent by electronic mail ("email") to the owner and any other responsible party if the recipient(s) has provided written, signed consent to receive service of notices under this section 15.12.060.B.1 by email and has provided their email address. If a notice and order served via email returns undeliverable, one of the other methods of service in this section shall also be employed.

c. *Re-inspections.* The code official shall re-inspect the property after the compliance date specified in the notice and order. If the violation is still in existence on the re-inspection date, the code official is authorized to impose a re-inspection fee as provided in section 15.12.060.B.3 and in the amount specified in section 15.12.090 of this Code. A re-inspection fee may be charged in advance for the third inspection and any subsequent inspection until compliance is attained.

2. *Notice and order to abate.* When the code official determines that an owner or other responsible party has not complied with a notice of violation and order to correct, the code official may issue a notice and order to abate.

a. *Content of notice and order.* The notice and order to abate shall include all information required in the notice of violation and order to correct (see section 15.12.060.B.1.a), and in addition shall include the following:

(1) A statement advising that the city will proceed to abate the violation if the owner or other responsible party does not comply with the notice and order to abate by the stated deadline;

(2) A statement explaining how the city intends to recover the costs incurred to abate the violation if the owner or other responsible party does not comply with the notice and order to abate by the stated deadline; and

(3) A statement that the owner or other responsible party may appeal the notice and order to abate within ten calendar days of the notice and order and request a hearing in accordance with section 15.12.060.B.6.

b. *Service of notice and order.* A notice and order to abate shall be served as follows:

(1) Sent by certified mail, return receipt requested, to the owner of the property as shown in the records of the Clark County Assessor;

(a) If the notice is returned by the U.S. Postal Service showing that it was not delivered, a copy thereof shall be posted in a conspicuous place in or about the subject building, structure, lot, or premise and shall be mailed by first-class mail to the owner. It shall be unlawful for any person to remove, alter, deface, tamper with, or alter the visibility of any notice and order posted at the premises pursuant to this Code;

(b) A certification of posting shall be completed by the code official who posted the notice and order stating the date and time it was posted on the property, the address of the property where it was posted, and a brief description of the location on the premises where it was posted; or

(2) Served by personal service on the property owner, with a signed certificate of service prepared by the code official effectuating the service;

(3) Service of the notice and order to abate shall be complete upon mailing or, where applicable, posting on the premises. The failure of the owner to receive the certified mailing does not affect the validity of any proceedings taken under this Code.

c. *Abatement by the city.* The code official shall follow the reinspection process and may assess reinspection fees as provided in section 15.12.060.B.1.c. after the compliance date for the notice and order to abate has passed. Once reinspection has occurred, if abatement has not been completed, the code official has followed all other required procedures set forth in this section 15.12.060.B.1 and B.2, and no appeal has been filed, or an appeal has been denied and abatement not completed by the deadline provided in the decision on appeal, the condition(s) or violation(s) may be abated by city personnel or by a private contractor hired by the city for that purpose. City personnel or a

private contractor may enter upon the property at a reasonable time and in a reasonable manner to abate the conditions set forth in the notice and order to abate.

d. *Abatement report.* The city personnel or outside contractor ordered to perform the abatement shall file with the director a written report detailing the work performed, time and labor incurred, and an itemized accounting of the total equipment and abatement costs incurred to abate the violation within 30 days of completion of the work. The report shall contain the names and addresses of the owner and any other responsible parties, and the address, Assessor's parcel number or legal description of the property. The director shall review the abatement report and approve the report, reject the report and order a new report, or order modifications to the report as needed.

e. *Recovery of abatement costs.* Once the director has finalized an approved abatement report and costs included therein, the director is authorized to proceed with recovery of the reported abatement costs against the property through a special assessment or other lawful collection method.

(1) *Special assessment.* The director may authorize the code official to collect the abatement costs against the property by recording a special assessment lien, which may be collected at the same time and in the same manner as ordinary county taxes, subject to the same penalties, procedure and sale in the case of delinquency as provided for ordinary county taxes.

(a) The special assessment shall be perfected when the city has:

i. Recorded with the Clark County Recorder a statement setting forth the amount of the expenses incurred and unpaid and the description of the property subject to the lien; and

ii. Sent by certified mail, return receipt requested, a notice of special assessment lien, separately prepared for each lot affected, and addressed to the owner of the property as set forth in the records of the Clark County Assessor.

(b) The special assessment shall be treated as co-equal with the latest lien on the property to secure the payment of county taxes, not subject to extinguishment by the sale of the property for nonpayment of county taxes, and proper and superior to all other liens, claims, and encumbrances on the property other than the lien for county taxes.

(c) Before recording the lien, the code official shall mail the owner of record a written notice of the city's intent to record a special assessment lien unless payment of all monies due is paid in full on or before the date listed in the notice.

(d) Quarterly special assessment report. Quarterly, the director shall report to the city council all special assessments recorded for abatement actions performed and shall include in such report the street address or assessor's parcel number of the property abated, the name of each owner of property assessed as of the date of the assessment, and the total amount of the assessment, stating the amount assessed for expenses of abatement and any amount assessed for administrative fines.

(2) *Collection action.* The city may take any lawful collection action deemed necessary and appropriate to recover the abatement costs owed, including but not limited to the city attorney filing a petition in a court of competent jurisdiction for the entry of a civil judgment against the property owner in an amount equal to the amounts owed, or referral of the unpaid amounts to a collection agency for recovery. Where the amounts are referred for collection, the city may impose a fee of 25 percent of the outstanding indebtedness or $250.00, whichever is less, against the responsible party. This fee shall accrue and become due and payable at the time the indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency to the amount sought to be collected. Any judgment or amended judgment entered under this chapter may include the amount of the collection fee authorized herein.

3. *Administrative fees.* Expenses incurred by the city in investigating, inspecting and re-inspecting property that is the subject of a violation, as well as any other processing costs related to enforcement of this Code may be recovered through the issuance of administrative fees pursuant to the administrative fee schedule established by the city council and set forth in section 15.12.090. Administrative fees may be imposed in conjunction with abatement expenses or the issuance of administrative citations. In addition to any other lawful means of collection, administrative fees may be collected in the same manner and at the same time as administrative fines and any costs incurred by the city in performing abatements.

4. *Administrative citations and fines.* Administrative fines may be imposed for violations of any of the provisions of this Code, including failure to comply with any final order issued through the appeal process.

a. *Procedure for issuance of citation and fine.*

(1) Administrative fines shall be assessed by means of an administrative citation issued by the code official and shall be payable directly to the city.

(2) An administrative citation shall contain:

(a) The name and address of the property owner and any other responsible party and the address or legal description of the property where the violation is occurring;

(b) A statement of the provisions of this Code that have been violated and the date of the violation(s);

(c) The action required to correct the violation(s) and a deadline for compliance, if not already provided in a notice of violation separately or concurrently served with the citation;

(d) The amount of administrative fines and fees imposed for the violation(s);

(e) A statement that each day the owner or other responsible party does not correct or abate the violation after the date of the administrative citation may constitute a separate violation subjecting the owner to additional fines;

(f) A statement that the owner or responsible party may appeal the fine and request a hearing within ten calendar days of the date the administrative citation is served; and

(g) An address and telephone number of a code official with whom contact regarding the violation can be made.

(3) An administrative citation shall be served on the property owner via personal service or via certified mail, return receipt requested. A certificate of service shall be completed by the code official who effectuated service of the citation. Service shall be complete upon mailing or personal service of the citation. The failure of the owner to receive the citation shall have no effect on the validity of any fines issued.

b. *Accumulation of fines.* If the owner or other responsible party fails to correct the violation, subsequent administrative citations may be issued for the same violations. Each day that a violation continues shall constitute a separate violation. The amount of fines assessed for each administrative citation issued for the same violations shall be specified in the fee resolution adopted by the city council as set forth in section 15.12.090. Payment of the fine shall not excuse the failure to correct the violations nor shall it bar further enforcement action by the city.

c. *Appeal of an administrative citation, fines, and fees.* Appeal of an administrative citation, fines, and fees shall be made in accordance with the procedures of section 15.12.060.B.6.

d. *Failure to pay administrative fines and fees.*

(1) If not appealed, administrative fines and fees are immediately due and payable. Failure to issue payment shall constitute a violation of this Code. The city may take any lawful collection action deemed necessary and appropriate to recover the administrative fine amounts owed, including but not limited to the city attorney filing a petition in a court of competent jurisdiction for the entry of a civil judgment against the property owner in an amount equal to the unpaid fine and/or fee amounts owed, or referral of the unpaid amounts to a collection agency for recovery.

(2) In addition to the fines assessed pursuant to this chapter, the person responsible for any violation shall be liable for an additional collection fee where the collection of the fines provided for herein is referred for collection. The amount of such fee shall be 25 percent of the outstanding indebtedness or $250.00, whichever is less. The amount of any such collection fee shall accrue and become due and payable at the time the indebtedness is referred for collection to the collection agency, and that amount may be added by the collection agency to the amount sought to be collected. Any judgment or amended judgment entered under this chapter may include the amount of the collection fee authorized herein.

(3) *Special assessment.* The city may also collect unpaid administrative fines and fees through the special assessment process set forth in section 15.12.060.B.2.e(1), if the uncollected fine amounts total more than $5,000.00 and at least 12 months have elapsed after the date specified for correction in the notice and order or citation, or the date of compliance in any order of the city or court on an appeal of the notice and order or citation, whichever is later.

5. *Emergency measures and expedited procedures.*

a. *Emergency abatement order.* Where the director or building official determines a condition or violation of this Code constitutes an imminent hazard, the director or building official may order the owner and any other responsible party to abate the condition or violation so as to remove the hazard within an expedited time period specified in the order. The order shall be served as required in section 15.12.060.B.2.b. No notice of violation is required to first be served, no extensions need be granted, and all appeal periods may be expedited. Within 24 hours after the required time to abate the condition or violation, the director, building official or code official shall conduct a re-inspection of the property to determine compliance with the notice and order.

b. *Emergency abatement.* If an imminently hazardous condition has not been abated in compliance with an order issued pursuant to subsection a, and no

appeal has been filed or an appeal has been denied, the director or building official may secure the necessary labor, materials, and other resources required to perform the abatement action set forth in the order as expeditiously as possible.

c. *Temporary safeguards.* Notwithstanding other provisions of this Code, whenever there is an imminent hazard that necessitates immediate safeguards, the director or building official may order the necessary corrective action taken, including but not limited to, the boarding up or securing of building or structure openings, to render such structure or condition temporarily safe whether or not prior notice to the owner or other responsible party has been provided, and may cause such other safeguards to be implemented as deemed necessary to meet such emergency.

d. *Order to vacate building or structure that is dangerous.* When any of the following circumstances is present, the code official may, without providing prior notice to the owner or other responsible party, cause to be posted at each entrance to such structure a notice and order reading as follows: "THIS STRUCTURE IS DANGEROUS AND ITS OCCUPANCY IS PROHIBITED":

(1) There is imminent danger of failure or collapse of a building or structure;

(2) Any structure or part of a structure has fallen and life is endangered by the occupation of the structure; or

(3) There is imminent danger to the building occupants or those in the proximity of any structure or due to the presence of explosives, explosive fumes or vapors, or the presence of toxic fumes, gases, or materials, or operation of defective or dangerous equipment.

It shall thereafter be unlawful for any person to enter such structure except for the purpose of securing the structure, making the required repairs, removing hazardous or substandard conditions, or demolishing the same. Failure to vacate a building or structure as specified in the notice and order or to reoccupy a building or structure which has been ordered vacated prior to the issuance of written re-occupancy approval by the director or building official or his or her designee shall constitute a violation of this Code.

e. *Cost of temporary safeguards and emergency abatement.* Costs incurred in the performance of temporary safeguards and emergency work performed by the city may be recovered from the owner of the property where the imminent hazard is or was located, in accordance with sections 15.12.060.B.2.d and 15.12.060.B.2.e. Such costs may be recovered by a special assessment against the property, in addition to any other reasonable means authorized by

law, this Code, or a court of competent jurisdiction. Prior to recording a special assessment lien to recover costs for the installation of temporary safeguards pursuant to subsection c, the city shall provide the property owner with a written statement of costs and an opportunity to appeal the assessment of such costs through the appeal procedures of section 15.12.060.B.6.

f. *Order to vacate structure unfit for human occupancy.* A building or structure unfit for human occupancy as defined in this Code is subject to closure by a code official if the code official first follows the procedures set forth in section 15.12.060.B.2, except that no notice of violation and order to correct is required to first be issued. If the owner or other responsible party does not comply with a notice and order to abate a building or structure unfit for human occupancy by the original compliance date and fails to appeal the notice and order to abate, or fails to comply with any compliance date issued in a decision on appeal, the code official may cause to be posted at each entrance to such structure a notice and order reading as follows: "THIS STRUCTURE IS UNFIT FOR HUMAN OCCUPANCY AND ITS OCCUPANCY IS PROHIBITED". It shall thereafter be unlawful for any person to enter such structure except for the purpose of securing the structure, making the required repairs, removing hazardous or substandard conditions, or demolishing the same. Failure to vacate a building or structure as specified in the notice and order or to reoccupy a building or structure that has been ordered vacated prior to the issuance of written re-occupancy approval by the code official shall constitute a violation of this Code. Costs incurred by the city in closing and securing the structure to prevent further occupancy of the structure may be recovered from the owner of the property where the building is located in accordance with sections 15.12.060.B.2. and 15.12.060.B.2.e.

Property owners are responsible for providing relocation and temporary lodging assistance for any tenants or other lawful residents of a substandard building if such building is ordered to be vacated because it is unfit for human occupancy. If the property owner or its representative fails to assist any displaced tenants or other lawful residents in relocating and securing short-term replacement housing after receipt of a notice and order to vacate a structure unfit for human occupancy, reasonable relocation costs incurred by the city to assist residents in need of emergency housing may be recovered from the property owner in accordance with subsections 15.12.060.B.2. and 15.12.060.B.2.e.

g. *Closure of unmaintained vacant buildings.* Vacant buildings that have not been maintained pursuant to the requirements of section 15.12.030.J are subject to an order requiring that they be secured as set forth in section 15.12.030.J.2. In

issuing the order, the code official shall follow the procedures set forth in section 15.12.060.B.2, except that no notice of violation is required to first be issued. If the owner or other responsible party does not comply with the order by the original compliance date and fails to appeal the notice and order, or fails to comply with any compliance date issued in a decision on appeal, the code official may take any action deemed necessary to close and secure the building. It shall thereafter be unlawful for any person to enter such structure except for entry by the owner or owner's authorized agent for the purpose of further securing the building, inspecting the property, performing repairs, or taking other action necessary to prepare the property for occupancy by a lawful

occupant. Entry or occupancy by all other persons shall constitute a violation of this Code. Costs incurred by the city in closing and securing the building to prevent unlawful occupancy, vandalism, or other criminal activity on the premises may be recovered from the owner of the property, in accordance with sections 15.12.060.B.2.d and 15.12.060.B.2.e.

6. *Appeal procedures.* This section establishes the procedures for appealing administrative enforcement actions under this Code, including procedures for administrative appeal hearings. All appeals are limited by the provisions of this section 15.12.060.B.6.

a. *Procedures for requesting and setting an appeal hearing.*

(1) An owner or other responsible party (referred to herein as the "appellant") may request an appeal hearing by submitting a written request to the director that:

(a) Identifies the enforcement action that the person is contesting;

(b) Sets forth the facts supporting the appeal;

(c) Identifies the requested relief; and

(d) Is delivered to and received by the director personally or by mail (as postmarked) no later than the tenth day following the date of the notice, order or citation being appealed.

(2) A timely request for hearing shall stay the enforcement of the appealed action and toll the deadline for compliance, accrual of fines and fees, and payment of fines and fees. An untimely request for appeal shall not be considered and instead shall be dismissed.

(3) The director, or his/her designee, shall set a hearing and shall issue notice of the hearing date no later than ten days prior to the date set for the hearing, unless a shorter time period is agreed to in writing by the appellant. The notice shall state the date, time, and location of the hearing, and shall include a short explanation of the hearing process.

b. *Hearing procedures.*

(1) The director, or his/her designee, shall conduct and preside over the hearing. At the hearing, that person, referred to herein as the "presiding officer", shall direct the order of the proceedings and shall hear all evidence presented relevant to the subject violation(s), fines and/or fees.

(2) The hearing shall be informal in nature. The presiding officer is not bound by evidentiary or procedural rules applicable to public hearings or judicial proceedings. The presiding officer shall have discretion to record the hearing.

(3) The city will have an opportunity to present facts, statements, witness testimony, and other evidence to support its position. Affidavits or declarations of witnesses made under penalty of perjury may be presented by the city at the hearing if provided to the appellant no later than five days prior to the hearing.

(4) The appellant will have an opportunity to present facts, statements, witness testimony, and other evidence to support his or her position. Affidavits or declarations of witnesses made under penalty of perjury may be presented at the hearing if provided to the city no later than five days prior to the hearing.

(5) During the appeal hearing, the presiding officer may gather any relevant information regarding the subject enforcement action to assist in making a final decision. The presiding officer shall have the discretion to question witnesses, to allow rebuttal testimony, and to limit the presentation of immaterial or unduly repetitious evidence.

(6) After the conclusion of the hearing, the presiding officer shall consider all evidence presented relevant to the subject enforcement action and shall issue a decision regarding the disputed enforcement action. In his or her decision, the presiding officer is not authorized to grant exceptions or make modifications to the requirements of this Code. The decision shall be in writing and shall be issued no later than 30 days following the conclusion of the hearing and served on the appellant. The decision shall clearly state one of the following:

- **(a)** That the notice, order, citation, fine and/or fee is upheld, including a short statement of findings explaining the basis for the decision, and providing a deadline for curing the subject violation and payment of any fines and fees, with a notification that fines will resume accruing daily thereafter until the subject violation is corrected, if applicable;
- **(b)** That the notice, order, citation, fine and/or fee is reversed, including a short statement of findings explaining the basis for the decision; or
- **(c)** That the notice, order, citation, fine and/or fee is modified, including a short statement of findings explaining the basis for the decision, and providing a deadline for any modified compliance obligations and payment of fines and/or fees, with a notification that fines will resume accruing daily until the subject violation(s) is corrected, if applicable.

(7) Any appellant who fails to appear at the hearing on the designated date and time is deemed to have waived the right to a hearing and to object to any of the proceedings at the hearing, provided that the hearing was properly noticed and no continuances were granted.

c. *Post-hearing procedures.*

(1) The decision of the presiding officer is the final administrative action on the appeal.

(2) In the event the decision or appeal requires abatement of a nuisance or correction of any violation under this Code, the owner or other responsible party must abate the nuisance or correct the violation within ten days after the date of the decision or within such other period as the decision may direct.

(3) Failure to comply with a decision on appeal, including the failure to pay any administrative fines, fees, or abatement costs upheld on appeal, constitutes a misdemeanor.

(4) The provisions of section 15.12.060.B.4.d shall apply to the city's collection of unpaid administrative fines, fees and abatement costs upheld on appeal.

C. *Criminal proceedings.* Any person who violates this Code shall be deemed guilty of a misdemeanor, and the violation shall be deemed a strict liability offense. Each day such a violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.

1. *Contents of criminal citation.* An issued criminal citation shall contain:

a. The name and address of the owner or other responsible party in violation, as well as the address of the property where the violation has occurred or is occurring;

b. A statement of the provisions of this Code that have been violated;

c. The amount of the criminal citation fees and administrative fines requested to be imposed for the violations; and

d. The date of appearance for the owner, responsible person, firm, or corporation to appear in the Henderson municipal court.

2. *Penalty.* Any person, firm, or corporation that violates any of the provisions of this Code is guilty of a misdemeanor punishable by a fine not exceeding $1,000.00 or by imprisonment not exceeding six months, or by both such fine and imprisonment. Each day that a violation of this chapter continues, whether pursued criminally or civilly, constitutes a separate violation for purposes of criminal prosecution or civil proceedings. In addition to this fine, administrative fees and court administrative fees will be assessed.

3. *Subsequent violations.* Any person who is convicted of a violation of this Code for a third time for the same violation within a two-year period shall be guilty of a misdemeanor punishable by a minimum fine of not less than $500.00 or by

imprisonment not to exceed six months in the city jail or by both such fine and imprisonment. Each day that a violation of this chapter continues, whether pursued criminally or civilly, constitutes a separate violation for purposes of criminal prosecution or civil proceedings.

D. *Injunctive relief.* The city may petition a court of competent jurisdiction for the issuance of a temporary or permanent injunction, as appropriate, to restrain the continuance of a violation or compel the specific performance of a requirement imposed under this Code. The city may also seek such other action as is appropriate for legal and/or equitable relief. A petition for injunctive relief shall not be a bar against, or a prerequisite for, the city to take other action.

E. *Other remedies and proceedings.*

1. *Graffiti.*

a. *Abatement of graffiti on residential property.* City personnel or contractors may cover or remove graffiti on residential property, at the city's cost, if:

(1) The owner of the property consents to the covering or removal of the graffiti; or

(2) If code officials are unable to contact the owner of the property to obtain the owner's consent, the code official first provides the owner with written notice, sent by certified mail, return receipt requested and posted on the property on which the graffiti will be covered or removed at least five days before city personnel or a city contractor covers or removes the graffiti.

b. *Abatement of graffiti on non-residential property.* Actions for abatement of graffiti on non-residential property shall follow the abatement procedures and remedies set forth in section 15.12.060.B.2.

2. *Abandoned nuisance.* No owner or other responsible party shall allow an abandoned nuisance to exist on the owner's property. The city may employ the remedies and enforcement provisions of this section in response to any abandoned nuisance.

a. *Abandoned nuisance notice.* When an abandoned nuisance exists on any property, the code official may send the owner a written notice to abate the abandoned nuisance. The notice shall be entitled "Notice of Abandoned Nuisance" and shall:

(1) Identify property upon which the abandoned nuisance is located;

(2) Include a description of the conditions or activities that constitute the abandoned nuisance as defined by this Code;

(3) Specify the date, at least 30 days from the date of the notice if the nuisance is not an immediate danger to the public health, safety, and welfare and was caused by the criminal activity of a person other than the

owner, by which the condition or activities must be abated in order to prevent the matter from being submitted to the city attorney's office to file an action in a court of competent jurisdiction to seek:

(a) Abatement of the nuisance;

(b) Repair, safeguarding, or demolition of any property or structure where the abandoned nuisance is located or occurring;

(c) Court authorization to carry out the abatement, repair, safeguard, or demolition of the nuisance; or

(d) Civil penalties against the owner; and/or

(e) Any other relief deemed appropriate by the court.

(4) Be sent by certified mail, return receipt requested, to the owner of the property at the address of record with the Clark County Assessor;

(5) Provide notice of the opportunity for a hearing before a court of competent jurisdiction;

(6) Advise the owner that the time to abate the condition or activities is tolled for the period during which the owner has requested a hearing and receives a decision from the court; and

(7) Advise the owner that the city may recover the money expended for labor and materials used to abate the condition or activities, or if applicable, repair, safeguard or demolish a structure or property where the abandoned nuisance is located or occurring, through a special assessment against the property.

b. *Abandoned nuisance remedy.* Upon finding by a court of competent jurisdiction that an abandoned nuisance exists, the court may:

(1) Impose a civil penalty of not more than $500.00 per day for each day that the condition was not abated after the date specified in the notice by which the owner was required to abate the condition, if the property is residential property, and not more than $750.00 per day if the property is nonresidential property;

(2) Order the owner to pay the city for all costs incurred by the city, including its fees imposed, in abating the condition;

(3) If applicable, order the owner to pay reasonable expenses for the relocation of any tenants who occupy the property legally and are affected by the abandoned nuisance; and

(4) Order any other appropriate relief.

c. *Collection of costs, fees and civil penalties.* The city may make the costs and fees incurred in abating the condition a special assessment against the

property in which the abandoned nuisance is or was located or occurring, pursuant to the procedures of section 15.12.060B.2.e. Civil penalties awarded by the court that are not collected from the owner of the property may be collected through a special assessment against the property if:

(1) At least 180 days have elapsed after the date specified in the order of the court by which the owner must abate the abandoned nuisance, or, if the owner appeals that order, the date specified in the order of the appellate court by which the owner must abate the abandoned nuisance, whichever is later;

(2) The total amount of uncollected civil penalties is more than $5,000.00; and

(3) The owner has been billed, served or otherwise notified that the civil penalties are due.

3. *Chronic nuisance.* No owner or other responsible party shall allow the existence of a chronic nuisance upon the owner's property. The city may employ the remedies and enforcement provisions of this section in response to any chronic nuisance.

a. *Chronic nuisance notice.* When a chronic nuisance exists on any property, the code official may send the owner a written notice to abate the chronic nuisance. The notice shall be entitled "Notice of Chronic Nuisance" and shall:

(1) Identify the property upon which the chronic nuisance is located;

(2) Include a description of the conditions or activities that constitute the chronic nuisance as defined by this chapter;

(3) Specify the date, at least 30 days from the date of the notice if the nuisance is not an immediate danger to the public health, safety, and welfare and was caused by the criminal activity of a person other than the owner, by which the condition or activities must be abated in order to prevent the matter from being submitted to the city attorney's office to file an action in a court of competent jurisdiction to seek abatement of the nuisance, penalties and other relief deemed appropriate by the court;

(4) Provide notice of the opportunity for a hearing before a court of competent jurisdiction;

(5) Advise the owner that the time to abate the condition or activities is tolled for the period during which the owner has requested a hearing and receives a decision;

(6) Be sent by certified mail, return receipt requested to the owner of the property at the address as listed with the Clark County Assessor; and

(7) Advise the owner that the city will recover the money expended for labor and materials used to abate the condition or activities, or if applicable, repair, safeguard or demolish a structure or property where the chronic nuisance is located or occurring, through a special assessment against the property.

b. *Chronic nuisance remedy.* Upon finding by a court of competent jurisdiction that a chronic nuisance exists, the court may:

(1) Impose a civil penalty of not more than $500.00 per day for each day that the condition was not abated after the date specified in the notice by which the owner was required to abate the condition if the property is residential;

(2) Impose a civil penalty of not more than $750.00 per day for each day that the condition was not abated after the date specified in the notice by which the owner was required to abate the condition if the property is non-residential;

(3) Order the owner to pay the city for all costs incurred by the city, including its fees imposed, in abating the condition;

(4) If applicable, order the owner to pay reasonable expenses for the relocation of any tenants who are affected by the chronic nuisance; and

(5) Order any other appropriate relief.

c. *Collection of costs, fees and civil penalties.* The city may make the costs and fees incurred in abating the condition a special assessment against the property in which the abandoned nuisance is or was located or occurring, pursuant to the procedures of section 15.12.060B.2.e. Civil penalties awarded by the court that are not collected from the owner of the property may be collected through a special assessment against the property if:

(1) At least 180 days have elapsed after the date specified in the order of the court by which the owner must abate the abandoned nuisance, or, if the owner appeals that order, the date specified in the order of the appellate court by which the owner must abate the abandoned nuisance, whichever is later;

(2) The total amount of uncollected civil penalties is more than $5,000.00; and

(3) The owner has been billed, served or otherwise notified that the civil penalties are due.

4. *Municipal court abatement action.* This procedure shall be followed when the code official and city attorney elect to pursue the chronic or abandoned nuisance remedies set forth in subsections 15.12.060.E.2 or 15.12.060.E.3, pursuant to NRS

268.4124 and 268.4126. This procedure may also be followed when the code official and city attorney determine that municipal court action may be warranted due to the scope of the nuisance and abatement needed, or when another provision of this Code or state law requires court action.

This subsection 15.12.060.E.4 shall not be construed to prevent the city from 1) administratively abating a nuisance as authorized under this chapter or 2) pursuing injunctive relief or other nuisance remedies authorized by law in any other court of competent jurisdiction.

(a) After the code official has properly served the notices required by subsections 15.12.060.B or 15.12.060.E, as applicable, if the owner or responsible party has not cured the violations of this Code as required in the notices, the code official may refer the matter to the city attorney or his or her designee to initiate an action in municipal court ("court") by filing a petition for abatement order with the court.

(1) The petition shall set forth the following:

a. The subject property address and Assessor's Parcel Number (APN);

b. The name of the property owner;

c. A description of the violation(s) occurring on the subject property constituting a nuisance under this Code;

d. The dates and nature of all violation notices issued by the city prior to the filing of the petition;

e. The outcome of any administrative appeals proceedings regarding the violations, if any occurred; and

f. The city's requested relief.

(2) The petition shall be served on the property owner by personal service or by certified mail, return receipt requested, at the address of record for the property owner as listed with the Clark County Assessor, and shall also be posted on the subject property.

(3) Once service has been effectuated, an affidavit of service shall be completed and filed with the court. For a certified mailing to the owner, service of the petition shall be deemed complete upon proof of mailing, regardless of whether the owner accepts the mailing.

(b) Once the court has received a complete filed petition and affidavit of service, it shall set a hearing date no later than 30 days from the date of service of the petition.

(1) The court shall provide notice of the hearing date, time, and location to the city attorney's office, who shall serve the notice on the property owner in the same manner the petition is served.

(2) Any compliance deadlines set forth in the city's pre-hearing notices regarding the nuisance shall be stayed pending the court's decision following the hearing.

(3) The property owner may file with the court a written response to the petition no later than five days prior to the hearing. The owner must serve such response on the city attorney's office by regular mail or personal delivery.

(4) The court may continue the hearing at its discretion.

(c) Pre-hearing discovery.

(1) No party to the abatement action may serve any interrogatories or take any depositions prior to the abatement hearing.

(2) Either party to the abatement action may request that the other party provide a copy of the documents intended to be used during the hearing, including:

a. Written or recorded statements made by the owner or a witness, or copies thereof, within the possession, custody or control of the other party, the existence of which is known, or by the exercise of due diligence may become known, that the other party intends to use at the hearing;

b. Photographs of the subject property and the nuisance;

c. Notices the city issued to the property owner regarding the nuisance; and

d. Any other correspondence books, papers, documents, reports, tangible objects, or copies thereof, which the other party intends to use at the hearing.

(3) The owner is not entitled, pursuant to the provisions of this section, to the discovery or inspection of:

a. An internal report, document or memorandum that is prepared by or on behalf of the city attorney in connection with the investigation or prosecution of the nuisance action.

b. A statement, report, book, paper, document, tangible object or any other type of item or information that is privileged or protected from disclosure or inspection pursuant to the Constitution or laws of this state or the Constitution or laws of the United States.

(4) The city is not entitled, pursuant to the provisions of this section, to the discovery or inspection of:

a. An internal report, document or memorandum that is prepared by or on behalf of the owner or the owner's attorney in connection with the investigation or defense of the nuisance action.

b. A statement, report, book, paper, document, tangible object or any other type of item or information that is privileged or protected from disclosure or inspection pursuant to the Constitution or laws of this state or the Constitution of the United States.

(5) A party shall provide copies of requested documents in its possession, custody or control within three days of the request

(d) Hearing. The abatement hearing shall be conducted by a municipal court judge, with no jury, in the following manner:

(1) The city shall have the burden to prove by a preponderance of the evidence that the condition of the subject property constitutes a nuisance in violation of this Code.

(2) The court may admit all relevant documentary evidence and may hear testimony of the parties and any witnesses.

(3) The property owner or its legal counsel, as authorized in writing, must appear for the hearing. If the owner or its counsel does not appear for the hearing and has not requested a continuance, the court may continue the matter or enter an abatement order in favor of the city.

(4) The court shall render its decision within 14 days after the conclusion of the hearing. The decision shall be in writing and served upon both parties. The court may make any orders and award any relief authorized by this chapter and Nevada law based upon the evidence presented.

(5) No attorney's fees or costs shall be assessed against either party.

(6) The decision by the court shall be a final order.

(Ord. No. 3910, §§ 7, 8, 10-4-2022; Ord. No. 3733, § 1, 10-20-2020; Ord. No. 3177, § 1, 6-17-2014; Ord. 2483, § 1 (part), 2006)

15.12.070 Code enforcement abatement revolving fund.

The code enforcement abatement revolving fund is hereby established to fund the abatement of violations of this Code. All penalties and fines collected in conjunction with the enforcement of this Code shall be deposited in this fund to be used by code enforcement to assist in the abatement of violations of this Code.

(Ord. 2483, § 1 (part), 2006)

15.12.080 Purpose.

The purpose of this fee schedule is to establish monetary enforcement alternatives for the administrative citation and cost recovery components of the property maintenance code.

(Ord. 2688, § 1, 2007)

15.12.090 Fee schedule.

Fee, Fine or Service Name/Description	Fee
Re-inspection fee (each)	$150.00
Administrative citations and fines for residential properties:	
1st citation	$100.00
2nd citation	$300.00
3rd and/or subsequent citation(s)	$500.00
Illegal Discharge 1st citation	$300.00
Illegal Discharge 2nd and/or subsequent citation(s)	$500.00
Illegal Dumping 1st citation	$300.00
Illegal Dumping 2nd and or subsequent citation(s)	$500.00
Administrative citations and fines for commercial properties pursuant to NRS 268.4122:	
1st citation	$250.00
2nd citation	$500.00
3rd and/or subsequent citation(s)	$1,000.00
Illegal Discharge 1st citation	$750.00
Illegal Discharge 2nd and/or subsequent citation(s)	$1,000.00
Other fees:	
Lien recordation and release fee	$150.00
Stagnant water treatment fee	$100.00
Administrative violation processing fee(1)	$150.00
Abatement(2)	Actual Costs
Reasonable emergency tenant relocation costs incurred pursuant to 15.12.060.B.5(f)	Actual Costs

(1) To recover any staff time and expense incurred in processing enforcement actions under this Code not included in the other fees set forth herein. May be issued on a one-time basis per violation if abatement action or administrative citation is required.

(2) Actual labor and materials associated with abatement, whether expended by city staff or contractors hired for such purpose.

(Ord. No. 3910, § 9, 10-4-2022; Ord. No. 3733, § 1, 10-20-2020; Ord. No. 3177, § 1, 6-17-2014)

Chapter 15.13 ABANDONED RESIDENTIAL REAL PROPERTY REGISTRY

Sections:

15.13.010 Purpose and scope.
15.13.020 Definitions.
15.13.030 Creation.
15.13.040 Registration.
15.13.050 Fees.
15.13.060 Inspection.
15.13.070 Continued inspection requirements.
15.13.080 Enforcement.
15.13.090 Appeal process.
15.13.100 Limitations.
15.13.110 Reserved.

15.13.010 Purpose and scope.

It is the purpose and intent of this chapter to establish a registration program ("program") to oversee abandoned residential property and those in danger of becoming abandoned. This chapter is intended to reduce and prevent neighborhood blight, to mitigate conditions that threaten the health, safety, and welfare of the public, and to promote neighborhood stability. This program creates a property registration requirement designed to assist in accomplishing the intent and purpose of this chapter. Nothing in this section waives, relieves, or otherwise excuses an owner of residential real property from compliance with applicable building codes and ordinances, and the owner shall remain responsible and liable therefore.
(Ord. No. 4019, § 1, 4-2-2024; Ord. No. 3121, § 1, 2-4-2014)

15.13.020 Definitions.

The following words and phrases used in this chapter will have the meanings ascribed to them:

Abandoned residential property means residential real property:

(a) Consisting of not more than four family dwelling units or a single-family residential unit, including, without limitation, a condominium, townhouse or home within a subdivision, if the unit is sold, leased or otherwise conveyed unit by unit, regardless of whether the unit is part of a larger building or parcel that consists of more than four units; and

(b) That the grantor or the successor in interest of the grantor has surrendered as evidenced by a document signed by the grantor or successor confirming the surrender or by the delivery of the keys to the property to the beneficiary or that satisfies the following conditions:

(1) The residential real property is not currently occupied as a principal residence by the grantor of the deed of trust, the person who holds title of record or any lawful occupant;

(2) The obligation secured by the deed of trust is in default and the deficiency in performance or payment has not been cured;

(3) The gas, electric, or water utility services to the residential real property have been terminated;

(4) An owner of the residential real property is not presently serving in the Armed Forces of the United States, a reserve component thereof or the National Guard; and

(5) Two or more of the following conditions exist:

(I) Construction was initiated on the residential real property and was discontinued before completion, leaving a building unsuitable for occupancy, and no construction has taken place for at least 3 months;

(II) Multiple windows and/or doors on the residential real property are boarded up or closed off or are smashed through, broken off or unhinged, or multiple window panes are broken and unrepaired;

(III) Doors on the residential real property are smashed through, broken off, unhinged or continuously unlocked;

(IV) The residential real property has been stripped of copper or other materials, or interior fixtures to the property have been removed;

(V) Law enforcement officials have received at least one report of trespassing or vandalism or other illegal acts being committed at the residential real property within the immediately preceding 6 months;

(VI) The residential real property has been declared unfit for occupancy and ordered to remain vacant and unoccupied under an order issued by a municipal or county authority or a court of competent jurisdiction;

(VII) The local police, fire or code enforcement authority has requested that the owner or any other interested or authorized party secure the residential real property because the local authority has declared the property to be an imminent danger to the health, safety and welfare of the public; or

(VIII) The residential real property is open and unprotected and in reasonable danger of significant damage resulting from exposure to the elements or vandalism.

The term does not include residential real property in which:

(a) There is construction, renovation or rehabilitation on the residential real property that is proceeding diligently to completion, and any building being constructed, renovated or rehabilitated on the property is in substantial compliance with all applicable ordinances, codes, regulations and laws as evidenced by active building permit(s);

(b) The residential real property is occupied on a seasonal basis, but is otherwise secure;

(c) There are bona fide rental or sale signs on the residential real property, or the property is listed on a Multiple Listing Service, and the property is secure; or

(d) The residential real property is secure but is the subject of a probate action, action to quiet title or any other ownership dispute.

Beneficiary shall have the meaning contained in NRS 107.015.

City means City of Henderson.

Default, with respect to a mortgage, means that the obligor under the mortgage has breached or is in default of a repayment or other obligation in connection with that mortgage.

Designated agency means an agency or a contractor chosen by the city that inspects real property to determine if that real property is abandoned.

Grantee means the person or entity to whom property is conveyed.

Grantor means a person who holds title of record to the residential real property.

Mortgage means a first mortgage or other first-priority security interest in real property that is placed as a security for the repayment of a loan, and includes a first deed of trust.

Mortgagee means any person or firm who holds a first-priority mortgage or other first-priority security interest in real property to secure a loan, whether as the mortgagee of a mortgage or the beneficiary of a deed of trust.

Obligor means a person or entity owing a certain sum of money or other debt to another.

Property in danger of becoming abandoned means any property receiving a notice of default as defined by this chapter and by Nevada statute or any property not occupied by a lawful occupant and showing signs, in any combination, leading to abandonment as set forth in subsection 15.13.020(b)(5).

Property owner is a person or entity that holds legal title to residential real property located in the city.

Registry means the entity established by the city.
(Ord. No. 4019, § 2, 4-2-2024; Ord. No. 3121, § 1, 2-4-2014)

15.13.030 Creation.

The City of Henderson hereby creates a registry for abandoned residential properties and those in danger of becoming abandoned within the city limits.
(Ord. No. 4019, § 3, 4-2-2024; Ord. No. 3121, § 1, 2-4-2014)

15.13.040 Registration.

A. *Requirements.*

(1) A mortgagee who conducts or causes an inspection to occur pursuant to the requirements of section 15.13.060 and determines that a residential property is abandoned or in danger of becoming abandoned is required to register the property with the city.

(2) Registration must occur with 15 days following a completed inspection.

B. *Procedures for registering property.*

(1) The mortgagee or property owner shall register the property with the city's registry on forms approved by the community development services department. Approved forms may be located online and in any other manner as designated by the city.

(2) By means of contract, the city may assign and delegate to another person(s) or entity or entities the authority and responsibility to:

a. Effect, collect, and maintain registrations under this chapter.

b. Collect registration and modification fees under this chapter.

c. Inspect residential real property to determine whether it is abandoned or in danger of becoming abandoned as required under this chapter.

(3) Registration pursuant to this chapter shall contain, at a minimum, the following information:

a. The name and mailing address of the mortgagee or the property owner, and the physical address of the mortgagee or property owner if the mailing address is a post office box;

b. A direct contact name and phone number for purposes of contacting the mortgagee or property owner;

c. The current disposition and occupancy status of the property; and

d. The name, address and phone number of the local property manager, if applicable.

(4) Any property manager designated pursuant to this section must be located within Nevada and must be:

a. A property management company or property preservation company located in and licensed by the State of Nevada;

b. A department or section of a mortgagee located in Nevada that is devoted to property management or preservation; or

c. A service provider located in Nevada specifically employed by a mortgagee to provide property management or preservation within the city.

(Ord. No. 4019, § 4, 4-2-2024; Ord. No. 3121, § 1, 2-4-2014)

15.13.050 Fees.

The City of Henderson is authorized to charge a mortgagee or the property owner a fee of $200.00 for each initial property registration required under this chapter, and a fee of $50.00 for each modification to a registration. On the yearly anniversary of each property registration, the City of Henderson is authorized to charge a mortgagee or the property owner an annual fee of $200.00 for each property required to be registered under this chapter.

(Ord. No. 3121, § 1, 2-4-2014)

15.13.060 Inspection.

The mortgagee or its agent is required to inspect properties for which it has recorded a notice of default as well as any other properties it has reason to believe may be abandoned or in danger of becoming abandoned.

A. A mortgagee or its agent may inspect by entering the residential real property, but not any dwelling or structure unless otherwise authorized, to investigate whether the real property is abandoned residential property or in danger of becoming abandoned residential property

B. Should a mortgagee request the designated agency to inspect pursuant to this chapter, the agency shall inspect by entering the real property, but not any dwelling or structure unless otherwise authorized, to investigate whether the real property is abandoned residential property or in danger of becoming abandoned.

C. Time period.

(1) *Notice of default.* An inspection by a mortgagee, its agent, or designated agency must be done within 30 calendar days after a notice of default has been

recorded with the Clark County Recorder's Office to determine whether such property is abandoned or in danger of becoming abandoned as defined in this chapter.

(2) *Notice of abandonment or property in danger of becoming abandoned.* A mortgagee or its agent must conduct an inspection within 30 calendar days after receiving notice from an occupant or other knowledgeable party that its residential real property may be abandoned or in danger of becoming abandoned as defined in this chapter.

(Ord. No. 4019, § 5, 4-2-2024; Ord. No. 3121, § 1, 2-4-2014)

15.13.070 Continued inspection requirements.

A. Residential real property shall be maintained in accordance with applicable city and state codes and ordinances, including without limitation, ordinances pertaining to dangerous buildings, litter, nuisance abatement, and the property maintenance code. Landscaping visible from the public right-of-way shall be maintained pursuant to the property maintenance code, HMC chapter 15.12, during the registration period.

B. For purposes of this chapter:

(1) Landscaping includes without limitation grass, turf stain, trees, ground covers, bushes, shrubs, hedges or similar plantings, decorative rock or bark or artificial turf/sod designed specifically for residential installation.

(2) Maintenance of landscaping includes without limitation regular watering and irrigation, weeding, staining, re-staining, cutting, pruning, and mowing of required landscaping and removal of all trimmings.

C. Pools and spas located on residential real property shall be kept in working order so the water remains clear and free of pollutants and debris or drained and kept dry. Such maintenance of pools and spas must comply with the applicable requirements of HMC chapter 15.01 (Building and Fire Safety Administrative Code) and HMC chapter 15.12 (Property maintenance code).

D. Residential real property shall be maintained in a secure manner to prevent accessibility to unauthorized persons. Doors of all kinds, windows, gates and other openings that make the property accessible must be closed and locked. Broken windows must be reglazed or boarded in accordance with applicable city standards.

E. Except as otherwise provided, compliance with this section shall be the joint responsibility of the mortgagee and the property manager, as well as the property owner.

(Ord. No. 4019, § 6, 4-2-2024; Ord. No. 3121, § 1, 2-4-2014)

15.13.080 Enforcement.

A. It is unlawful for a person or other responsible party under this chapter to violate any provision of this chapter.

B. The provisions of this chapter may be enforced by an employee and/or officer of the City of Henderson working on behalf of any department as charged with enforcing this chapter. Such city employee and/or officer shall issue, including but not limited to, a notice, violation, and/or citation as necessary.

C. The provisions of this chapter may be enforced by means of:

(1) Administrative fines and fees of $150.00 per day per violation;

(2) Criminal prosecution, as permitted by NRS 266.105, which shall constitute a misdemeanor crime upon conviction;

(3) Any civil action in a court of competent jurisdiction to compel compliance;

(4) Any other civil mechanism established by the city council for use in connection with this chapter; and/or

(5) Any means as permitted by law.

The City of Henderson may use any of these remedies in any combination at any time during the procedures.
(Ord. No. 3121, § 1, 2-4-2014)

15.13.090 Appeal process.

Unless otherwise provided in this chapter, the appeal process procedure shall mirror that contained in the Henderson Municipal Code 15.12, Property Maintenance Code.

A. *Standing.* The person(s) or entities having standing to appeal under this chapter shall be ones legally responsible for maintenance of the property including, but not limited to a mortgagee, its designated property manager, and/or the property owner. Legal responsibility for maintenance of the property cannot be deferred to an occupant.

(Ord. No. 3121, § 1, 2-4-2014)

15.13.100 Limitations.

A. Nothing in the chapter:

(1) Requires a mortgagee or its agent or employee to violate any criminal law or ordinance or any court order, or to violate an automatic stay in a bankruptcy proceeding.

(2) Creates a duty or obligation that is owed to, or runs in favor of, any person other than the City of Henderson and those officers, employees or agents who are acting in the City of Henderson's behalf.

(3) Creates or implies a cause of action in favor of, or available to, any person other than the City of Henderson.

B. This chapter is limited by any legal holdings as ordered by a court of competent jurisdiction.

(1) The City of Henderson, a municipal corporation, may not control, limit, or require the compliance of federal government entities in a manner found to conflict with applicable federal law(s).

C. Liability of city employees arising under this chapter shall be limited pursuant to NRS 41.032, HMC 15.12.060(E), and any applicable laws.
(Ord. No. 3121, § 1, 2-4-2014)

15.13.110 Reserved.

Editor's note—Ord. No. 4019, § 7, adopted April 2, 2024, repealed the former section 15.13.110 in its entirety, which pertained to expiration and derived from Ord. No. 3121, § 1, adopted February 4, 2014.

Chapter 15.16 ELECTRICAL CODE*

Sections:

15.16.010 Adoption by reference.
15.16.020 Code amended.
15.16.030 Supervision of work.
15.16.040 Substantial compliance standard.
15.16.050 Compliance required—Penalty for violations.
15.16.060 Effective date.

15.16.010 Adoption by reference.

The City of Henderson adopts as its electrical code the 2023 National Electrical Code as published by the National Fire Protection Association in its entirety excepting amendments and changes as stated in this chapter. This code is available online through the National Fire Protection Association.
(Ord. No. 4086, § 2, 7-15-2025; Ord. No. 3898, § 2, 8-2-2022; Ord. No. 3507, § 1, 8-7-2018; Ord. No. 3042, § 1, 8-6-2013; Ord. 2886, § 1, 12-7-2010)

15.16.020 Code amended.

The City of Henderson adopts as amendments to the 2023 National Electrical Code the booklet entitled "Southern Nevada Amendments to the 2023 National Electrical Code" amending the 2023 National Electrical Code. The booklet is adopted in its entirety excepting amendments and changes as stated in this chapter. This code is available online through the National Fire Protection Associations website.
(Ord. No. 4086, § 3, 7-15-2025; Ord. No. 3898, § 3, 8-2-2022; Ord. No. 3507, § 1, 8-7-2018; Ord. No. 3042, § 1, 8-6-2013; Ord. 2886, § 1, 12-7-2010)

15.16.030 Supervision of work.

Every contractor shall provide qualified supervision while performing electrical installations. To meet this requirement, the individual leading or directing the installation shall have a current approved card issued by the International Code Council Contractor Examination Services for Clark County, Nevada for the scope of work being performed and shall provide the card to the code official upon request.
(Ord. 2886, § 1, 12-7-2010)

***Editor's note—**Ord. 2886, § 1, adopted December 7, 2010, amended chapter 15.16 in its entirety to read as herein set out. Formerly, chapter 15.16, §§ 15.16.010—15.16.080, pertained to similar subject matter, and derived from Ord. 1758, § 2(part), adopted 1997; Ord. 1758, § 2(part), adopted 2007; Ord. 1995, § 1, adopted 2000; Ord. 2182, §§ 3(part)—5, adopted 2003, and Ord. 2538, § 1(part), adopted 2006.

15.16.040 Substantial compliance standard.

In the enforcement of the specific provisions of the adopted technical codes and standards, the building official or designee is authorized to grant minor variations from the strict application of specific code and standards provisions where, in the opinion of the building official, the work is in substantial compliance with the intent of the adopted codes and standards.
(Ord. No. 3042, § 1, 8-6-2013; Ord. 2886, § 1, 12-7-2010)

15.16.050 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.
(Ord. 2886, § 1, 12-7-2010)

15.16.060 Effective date.

This chapter shall become effective on January 2, 2026.
(Ord. No. 4086, § 4, 7-15-2025; Ord. No. 3507, § 1, 8-7-2018; Ord. No. 3042, § 1, 8-6-2013; Ord. 2886, § 1, 12-7-2010)

Chapter 15.18 UNDERGROUNDING UTILITY FACILITIES*

Sections:

15.18.010 Purpose.
15.18.020 Definitions.
15.18.030 Undergrounding utility facilities required; exceptions.
15.18.040 Waivers.
15.18.050 Plans and approval.

15.18.010 Purpose.

The purpose of this chapter is to decrease obstructions in city rights-of-way, standardize, regulate and control the location, size, type, maintenance and quantity of cuts, breaks, alterations and installations of improvements in the city rights-of-way, promote the health, safety, convenience and general welfare of the public, and improve the aesthetic appearance of areas within the city by requiring that new and modified utility facilities be placed underground, except as hereinafter provided.
(Ord. No. 3429, § 2, 8-15-2017)

15.18.020 Definitions.

The following definitions shall apply to this chapter unless the context requires otherwise.

Approved poles means galvanized steel poles with a light gray finish. Poles of other types and finish may be used by agreement between the utility and the city manager or director-PWPR.

CDS department means the city's department of community development and services, as the foregoing name may be modified from time to time.

Commission means the Public Utilities Commission of Nevada.

Development means any construction for residential, commercial, industrial, recreational or civic use or occupancy regardless of the size or number of structures or the size of the land parcel being improved for such use or occupancy.

Director-CDS means the director of the CDS department.

Director-PWPR means the director of the PWPR department.

***Editor's note—**Ord. No. 3429, §§ 1, 2, adopted August 15, 2017, repealed and reenacted chapter 15.18 in its entirety to read as herein set out. Formerly, chapter 15.118, §§ 15.18.010—15.18.230 pertained to underground electric and communications utilities, and derived from Ord. No. 480, § I, adopted in 1973, and Ord. No. 905, § I, adopted in 1983.

Interactive computer service has the same meaning ascribed to the term "interactive computer service" in NRS 711.0726, as amended.

Major street means a street listed and delineated in the text and maps of the master transportation plan of the comprehensive plan of the city as consisting of a width of greater than 80 feet.

PWPR department means the city's department of public works, parks and recreation, as the foregoing name may be modified from time to time.

Relocate means to move, modify, re-erect, reconstruct, rebuild and/or replace.

Subdivision means any land, vacant or improved, which is divided into five or more lots, parcels, sites, units or plots for the purpose of transfer or development, or any proposed transfer or development, or any building or buildings constructed for occupancy by five or more tenants for commercial or industrial purposes on the same parcel of land.

Telecommunication service has the same meaning ascribed to the term "telecommunication service" in NRS 711.135, as amended.

Utility means a person supplying a utility service within the corporate boundaries of the city.

Utility customer means the owner, developer, subdivider, resubdivider, builder, or other person or governmental entity requesting utility service.

Utility facilities means poles, towers, supports, wires, conductors, cables, fiber, guy wires, stubouts, platforms, crossarms, braces, transformers, terminal boxes, meters, meter cabinets, equipment cabinets, pull boxes, pipes, conduits, ducts, service laterals, insulators, cutouts, switches, and other appurtenances used or useful in supplying a utility service.

Utility service means provision of electrical service, interactive computer service, telecommunication service, or video service to another person using utility facilities, whether or not the person providing such service is regulated by the commission.

Video service has the same meaning ascribed to the term "video service" NRS 711.141, as amended.
(Ord. No. 3429, § 2, 8-15-2017)

15.18.030 Undergrounding utility facilities required; exceptions.

A. New or relocated utility facilities in the corporate boundaries of the city shall be located underground except as provided in subsection B.

B. The following exceptions apply to the undergrounding requirements in subsection A.:

1. City equipment installed to the satisfaction of the director-PWPR or the director-PWPR's designee, including but not limited to traffic control devices, streetlight systems, public safety equipment, and SCADA systems.

2. Utility facilities transmitting electricity over 34,500 volts (a) after the utility obtains a conditional use permit in accordance with title 19, which permit, at a minimum, identifies the route, pole locations, and system design; or (b) that are located in a city-approved aboveground utility corridor and the route, pole locations, and system design are approved by the city in accordance with title 19.

3. The addition of new circuits, or oversizing of existing wires or cables, on an existing serviceable pole line to provide electrical service that serves additional customers, provided a replacement pole is no more than five percent or five feet taller and/or no more than ten percent larger in circumference in relation to the pole being replaced to accommodate that addition of new circuits, or oversizing of existing wires or cables, on that existing serviceable pole line.

4. Relocating a one-half mile section, or more, of an existing aboveground system of utility facilities if the utility obtains a permit from the city to perform the foregoing and installs approved poles; provided, however, that where the continuity of alignment is broken by the intersection with a major thoroughfare, freeway or expressway, by a street or railroad overpass or underpass, by a railroad crossing, by a change in alignment of a street or a pole line, or the end of a pole line, or by city-owned property, the PWPR department may require the replacement of a quarter-mile section with approved poles.

5. Radio antennae and wireless equipment for furnishing telecommunication service.

6. House service switch boxes, exposed conduit at buildings and electric meters. Telecommunications enclosed terminal blocks may be pedestal mounted or placed underground and shall be located as close to electric transformers as is practical.

7. Temporary aboveground utility facilities used or to be used in conjunction with (a) a construction project for a period of up to one year from the date the city approves the project plans or (b) a special event or temporary use for a period coterminous with the period identified in the permit issued by the city for such event or use provided that such period does not exceed six months.

8. Temporary aboveground utility facilities that are required for utility service after the director-PWPR approves in writing an application for installation of such temporary utility facilities. An application may be made to the director-PWPR for any of the following reasons: temporary unavailability of materials; emergency repairs to or replacement of the existing utility facilities as a result of malfunction or damage that

will take more than 14 consecutive calendar days; or, accommodation of a city project. The applicant must obtain the director-PWPR's written approval prior to construction. If the director-PWPR does not approve an application and the applicant wishes to appeal that decision, then the applicant may appeal that decision to the city manager. The determination of the city manager to approve or disapprove the application shall be final. Any approval of the installation of temporary utility facilities shall be for a definite period of time and that time period may be extended in writing by the director-PWPR or city manager upon acceptable grounds.

9. Emergency service required because of malfunction or damage to any existing aboveground utility facilities. The utility may make such emergency connections as are required to maintain utility service or make the utility facilities safe and shall, within 72 hours after such construction, report the same to the director-PWPR if the emergency service is still in use. If the emergency service is to be used longer than 14 consecutive calendar days, then the utility shall make application for a temporary service as described in the immediately preceding subsection above.

10. Aboveground utility facilities that must be rebuilt, re-erected, replaced, and/or reconstructed because those utility facilities were damaged by a third party, were damaged by weather, or have deteriorated over time, provided the utility uses approved poles and/or utility facilities substantially similar to those being rebuilt, re-erected, replaced, and/or reconstructed.

11. Equipment appurtenant to underground utility facilities, such as surface-mounted transformers, surface-mounted switches, pedestal-mounted terminal boxes and meter cabinets, and concealed ducts.

12. Aboveground utility facilities that will be installed in areas approved from time to time by action of the city council upon recommendation of the planning commission or of the city manager.

(Ord. No. 3429, § 2, 8-15-2017)

15.18.040 Waivers.

A. The utility may submit an application to the director-PWPR, requesting approval of a waiver of the undergrounding requirements in section 15.18.030 for any of the following reasons:

1. In cases of emergency where public health and safety would be jeopardized;

2. Unavailability of materials necessary for underground installation;

3. Topographical or subsurface conditions making such underground installations economically unreasonable or impractical; or

4. Requiring the underground installation does not promote the purposes stated under section 15.18.010 or is unreasonable due to other circumstances presented by the applicant.

B. The director-PWPR and the director-CDS together, or their respective designees, must approve or deny a waiver under this section.

C. The utility may appeal the denial of a waiver by submitting to the city manager a written request to reconsider the denial no later than ten days after the director-PWPR and the director-CDS issue their denial of the waiver and such request must set forth in detail the facts supporting the request for reconsideration. The decision of the city manager, or the city manager's designee, shall be rendered within 30 days of the date the utility submitted the written request to the city manager. The city manager's, or the city manager's designee's, decision shall be deemed to be the final administrative action on such appeal. (Ord. No. 3429, § 2, 8-15-2017)

15.18.050 Plans and approval.

A. The utility customer shall be responsible for complying with all applicable requirements in this chapter and shall make the necessary arrangements with the utility for utility service. The utility shall comply with all applicable requirements in the code when designing and installing the utility facilities. The installation specifications and design plans shall comply with any applicable National Electrical Safety Code requirements.

B. The utility customer shall identify the desired terminal points of the utility facilities on the tentative map or subdivision map and shall provide the utility with copies of all proposed development plans necessary for proper design of the utility facilities. The utility shall show its approval by authorized signature on the map prior to its submission to the city.

C. The utility shall furnish the applicant and the director-PWPR with approved plans required by the utility for the overall underground system for the provision of utility service to the applicant.

D. At the director-PWPR's written request, the utility shall furnish city an "as-built" plan that shows the underground utility facilities identified in that request as actually installed in city right-of-way.

E. It shall be the responsibility of the utility customer to provide any utility easements that may be required.

F. When crossing any major street or at any street intersection, underground wire, cable, fiber, and conductors for utility service shall be installed in conduit or direct buried with spare conduit available. The size of the conduit shall be determined by the utility providing the utility service, allowing for future requirements. These requirements may be waived in writing by the director-PWPR for just cause.

G. The utility shall furnish the director-PWPR plans for construction of any utility system which is to be installed within any portion of a public right-of-way or easement and the utility will not install any utility facilities in such public right-of-way or easement until after the director-PWPR, in the director-PWPR's discretion, approves those plans.
(Ord. No. 3429, § 2, 8-15-2017)

Chapter 15.20 PLUMBING CODE*

Sections:

15.20.010 Adoption by reference.
15.20.020 Code amended.
15.20.030 Supervision of work.
15.20.040 Substantial compliance standard.
15.20.050 Compliance required—Penalty for violations.
15.20.060 Effective date.

15.20.010 Adoption by reference.

The City of Henderson adopts as its plumbing code the 2024 Uniform Plumbing Code as published the International Association of Plumbing and Mechanical Officials in its entirety excepting amendments and changes as stated in this chapter. This code is available online on the International Association of Plumbing and Mechanical Officials website.
(Ord. No. 4087, § 2, 7-15-2025; Ord. No. 3508, § 1, 8-7-2018; Ord. No. 3043, § 1, 8-6-2013; Ord. 2887, § 1, 12-7-2010)

15.20.020 Code amended.

The City of Henderson adopts as an amendment to the 2024 Uniform Plumbing Code the booklet entitled "Southern Nevada Amendments to the 2024 Uniform Plumbing Code" amending the 2024 Uniform Plumbing Code by the International Association of Plumbing and Mechanical Officials. This booklet is adopted in its entirety excepting amendments and changes as stated in this chapter. This booklet is available on the city's website(s).
(Ord. No. 4087, § 3, 7-15-2025; Ord. No. 3671, § 2, 3-3-2020; Ord. No. 3508, § 1, 8-7-2018; Ord. No. 3043, § 1, 8-6-2013; Ord. 2887, § 1, 12-7-2010)

15.20.030 Supervision of work.

Every contractor shall provide qualified supervision while performing plumbing installations. To meet this requirement, the individual leading or directing the installation shall be a Nevada-licensed journeyman plumber and shall provide the journeyman plumbing license issued by the Nevada Board of Plumbing Examiners to the code official upon request.
(Ord. 2887, § 1, 12-7-2010)

***Editor's note—**Ord. 2887, § 1, adopted December 7, 2010, amended chapter 15.20 in its entirety to read as herein set out. Formerly, chapter 15.20, §§ 15.20.010—15.20.060, pertained to similar subject matter, and derived from Ord. 1804, § 2(part), adopted 1998; Ord. 2183, §§ 2(part)—4, adopted 2003, and Ord. 2544, § 1(part), adopted 2006.

Subsequently, Ord. No. 4087, § 1, adopted July 15, 2025, changed the title of chapter 15.20 from "Uniform Plumbing Code" to "Plumbing Code."

15.20.040 Substantial compliance standard.

In the enforcement of the specific provisions of the adopted technical codes and standards, the building official or designee is authorized to grant minor variations from the strict application of specific code and standards provisions where, in the opinion of the building official, the work is in substantial compliance with the intent of the adopted codes and standards.

(Ord. No. 3508, § 1, 8-7-2018; Ord. No. 3043, § 1, 8-6-2013; Ord. 2887, § 1, 12-7-2010)

15.20.050 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.

(Ord. 2887, § 1, 12-7-2010)

15.20.060 Effective date.

This chapter shall become effective on January 2, 2026.

(Ord. No. 4087, § 4, 7-15-2025; Ord. No. 3508, § 1, 8-7-2018; Ord. No. 3043, § 1, 8-6-2013; Ord. 2887, § 1, 12-7-2010)

Chapter 15.24 MECHANICAL CODE*

Sections:

15.24.010 Adoption by reference.
15.24.015 Evaporative cooling.
15.24.020 Code amended.
15.24.030 Supervision of work.
15.24.040 Substantial compliance standard.
15.24.050 Compliance required—Penalty for violations.
15.24.060 Effective date.

15.24.010 Adoption by reference.

The City of Henderson adopts as its mechanical code the "2024 Uniform Mechanical Code" as published the International Association of Plumbing and Mechanical Officials in its entirety excepting amendments and changes as stated in this chapter. This code is available online on the International Association of Plumbing and Mechanical Officials website.

(Ord. No. 4088, § 1, 7-15-2025; Ord. No. 3509, § 1, 8-7-2018; Ord. No. 3044, § 1, 8-6-2013; Ord. 2888, § 1, 12-7-2010)

15.24.015 Evaporative cooling.

"Evaporative cooling" as referred to in this section applies to any type of cooling technology, device, or equipment that utilizes the evaporation of water as part of the cooling process. Evaporative coolers include, but are not limited to, swamp coolers and cooling towers, but do not include misting systems.

15.24.015.01 *Applicability.* This section applies to all buildings and structures regulated by HMC title 15.

15.24.015.02 *Evaporative cooling—Permitting and approvals.* Evaporative cooling is prohibited unless either a permit exemption in HMC section 15.01.145 applies or all of the following provisions are satisfied:

1. A building or mechanical permit application has been submitted before September 1, 2023;

***Editor's note—**Ord. 2888, § 1, adopted December 7, 2010, amended chapter 15.24 in its entirety to read as herein set out. Formerly, chapter 15.24, §§ 15.24.010—15.24.040, pertained to similar subject matter, and derived from Ord. 1802, § 2(part), adopted 1998; Ord. 2184, §§ 2(part)—4, adopted 2003; Ord. 2494, § 2(part), adopted 2006, and Ord. 2543, § 1(part), adopted 2006.

Subsequently, Ord. No. 3939, § 1, adopted February 7, 2023, changed the title of chapter 15.24 from "Uniform Mechanical Code" to "Mechanical Code."

2. A building or mechanical permit has been issued before February 1, 2024; and
3. A temporary certificate of occupancy, certificate of occupancy or an approved final inspection for the system has been received before February 1, 2026.

Tenant improvements within shell buildings permitted in compliance with the provisions listed above may permit and equip their space(s) with Evaporative Cooling.

15.24.015.03 *Consumptive water use—Existing evaporative cooling.* Evaporative cooling systems or appliances permitted in accordance with HMC section 15.24.015.02, or other sections of HMC title 15 in effect at the time that system or appliance was installed, may be expanded or replaced with systems or appliances using the same or more efficient technologies provided the resulting change does not increase the water consumption of the system or appliance.
(Ord. No. 3939, § 2, 2-7-2023)

15.24.020 Code amended.

The City of Henderson adopts as amendments to the "2024 Uniform Mechanical Code" the booklet entitled "Southern Nevada Amendments to the 2024 Uniform Mechanical Code" amending the 2024 Uniform Mechanical Code by the International Association of Plumbing and Mechanical Officials. This booklet is adopted in its entirety excepting amendments and changes as stated in this chapter. This booklet is available on the city's website(s).
(Ord. No. 4088, § 2, 7-15-2025; Ord. No. 3509, § 1, 8-7-2018; Ord. No. 3044, § 1, 8-6-2013; Ord. 2888, § 1, 12-7-2010)

15.24.030 Supervision of work.

Every contractor shall provide qualified supervision while performing electrical installations. To meet this requirement, the individual leading or direction the installation shall have a current approved card issued by the International Code Council Contractor Examination Services for Clark County, Nevada for the scope of work being performed and shall provide the card to the code official upon request.
(Ord. 2888, § 1, 12-7-2010)

15.24.040 Substantial compliance standard.

In the enforcement of the specific provisions of the adopted technical codes and standards, the building official or designee is authorized to grant minor variations from the strict application of specific code and standards provisions where, in the opinion of the building official, the work is in substantial compliance with the intent of the adopted codes and standards.
(Ord. No. 3509, § 1, 8-7-2018; Ord. No. 3044, § 1, 8-6-2013; Ord. 2888, § 1, 12-7-2010)

15.24.050 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.
(Ord. 2888, § 1, 12-7-2010)

15.24.060 Effective date.

This chapter shall become effective on January 2, 2026.
(Ord. No. 4088, § 3, 7-15-2025; Ord. No. 3509, § 1, 8-7-2018; Ord. No. 3044, § 1, 8-6-2013; Ord. 2888, § 1, 12-7-2010)

Chapter 15.30 WILDLAND-URBAN INTERFACE CODE

Sections:

15.30.010 Adoption by reference.
15.30.020 Code amended.
15.30.030 Amendments to the 2024 International Wildland-Urban Interface Code.
15.30.040 Substantial compliance standard.
15.30.050 Compliance required—Penalty for violations.
15.30.060 Effective date.

15.30.010 Adoption by reference.

The City of Henderson adopts as its Wildland-Urban Interface Code the book entitled "2024 International Wildland-Urban Interface Code" in its entirety excepting amendments and changes as stated in this chapter. This code is available online through the International Code Council.
(Ord. No. 4089, § 1, 7-15-2025; Ord. No. 3897, § 1, 8-2-2022)

15.30.020 Code amended.

The City of Henderson adopts as amendments to the "2024 International Wildland-Urban Interface Code" the book entitled "City of Las Vegas & City of Henderson Amendments to the 2024 International Wildland-Urban Interface Code." This booklet is adopted in its entirety excepting amendments and changes as stated in this chapter. This booklet is available on the city's website(s).
(Ord. No. 4089, § 1, 7-15-2025; Ord. No. 3897, § 1, 8-2-2022)

15.30.030 Amendments to the 2024 International Wildland-Urban Interface Code.

The following sections of the 2024 International Wildland-Urban Interface Code are added or revised as follows:

Section 101.1 is amended as follows:

[A] 101.1 Title. These regulations shall be known as the Wildland-Urban Interface Code, hereinafter referred to as "this code."

Section 103.1 is amended as follows:

[A] 103.1 Creation of enforcement agency. The Fire Department and the Building and Fire Safety & Development Services Department shall enforce this code and the code officials in charge thereof shall be known as the fire chief and building official, or their designee.

Section 109.3.7 is amended as follows:

[A] 109.3.7 Violation penalties. Persons who violate a provision of this code or fail to comply with any of the requirements thereof or who erect, install, alter, repair or do work in violation of the approved construction documents or directive of the fire chief, building official or designee, or of a permit or certificate used under provisions of this code, shall be guilty of a misdemeanor. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

The penalties referenced in the above paragraph are established in HMC 15.01.120.
(Ord. No. 4089, § 1, 7-15-2025; Ord. No. 3897, § 1, 8-2-2022)

15.30.040 Substantial compliance standard.

In the enforcement of the specific provisions of the adopted technical codes and standards, the fire chief, building official or designee is authorized to grant minor variations for the strict application of specific code and standards provisions where, in the opinion of the fire chief, building official or designee, the work is in substantial compliance with the intent of the adopted codes and standards.
(Ord. No. 3897, § 1, 8-2-2022)

15.30.050 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.
(Ord. No. 3897, § 1, 8-2-2022)

15.30.060 Effective date.

This chapter shall become effective on January 2, 2026.
(Ord. No. 4089, § 1, 7-15-2025; Ord. No. 3897, § 1, 8-2-2022)

Chapter 15.32 FIRE CODE*

Sections:

15.32.010 Short title.
15.32.020 Adoption.
15.32.020 Adoption by reference.
15.32.030 Code amended.
15.32.050 City of Henderson amendments.
15.32.060 Enforcement authority.
15.32.070 State fire marshal's regulations.
15.32.080 Citations.
15.32.090 Appeals and relief from regulations.
15.32.100 Penalties.
15.32.110 Permit and service fee schedule.
15.32.120 Effective date.

15.32.010 Short title.

This chapter shall be known as the "City of Henderson Fire Code" and may be cited as such.

Where the designation "International Fire Code" or the abbreviation "IFC" appears in this chapter, it shall be construed as referring to the International Fire Code as adopted by the ordinance from which this chapter derives.
(Ord. No. 3909, § 3, 9-13-2022; Ord. No. 3510, § 2, 8-7-2018)

15.32.020 Adoption by reference.

The City of Henderson adopts as its Fire Code the "International Fire Code, 2024 Edition," as published by the International Code Council, Inc., Publications, 4051 West Flossmoor Road, Country Club Hills, IL.60478-5795, which is hereby designated as the City of Henderson Fire Code and by this designation and reference is hereby adopted and made a part of this chapter, as if it were fully set forth herein. This code is available online through the International Code Council website.

***Editor's note—**Ord. No. 3510, §§ 1, 2, adopted August 7, 2018, repealed and reenacted chapter 15.32 in its entirety to read as herein set out. Formerly, chapter 15.32, sections 15.32.010—15.32.120 pertained to similar subject matter, and derived from Ord. No. 3048, § 2, adopted August 6, 2013.

Subsequently, Ord. No. 4090, § 4, adopted July 15, 2025, changed the title of chapter 15.32 from "International Fire Code" to "Fire Code."

Where the phrase "NAME OF JURISDICTION" appears in the Fire Code, it shall be construed as referring to the City of Henderson. Where the phrase "AHJ" appears in the Fire Code, it shall be construed as referring to the City of Henderson as the Authority Having Jurisdiction (AHJ).
(Ord. No. 4090, § 5, 7-15-2025; Ord. No. 3909, § 4, 9-13-2022; Ord. No. 3510, § 2, 8-7-2018)

15.32.030 Code amended.

The City of Henderson adopts as an amendment to the International Fire Code a booklet entitled, "Southern Nevada Amendments to the 2024 International Fire Code" hereafter referred to as this booklet. This booklet is adopted in its entirety with the following exceptions as described in this section. This booklet is available on the city's website(s).

The booklet is further amended as stated in section 15.32.050 of this chapter.
(Ord. No. 4090, § 6, 7-15-2025; Ord. No. 3909, § 5, 9-13-2022; Ord. No. 3670, § 2, 3-3-2020; Ord. No. 3510, § 2, 8-7-2018)

15.32.050 City of Henderson amendments.

Certain parts, articles, divisions, sections and/or subsections and tables of the International Fire Code and the booklet are hereby amended as follows.

Section 103 CODE COMPLIANCE AGENCY.

Section 103 CODE COMPLIANCE AGENCY is re-titled, amended and replaced as follows:

> Section 103 FIRE SAFETY

Section 103.1 General.

Section 103.1 General is amended as follows:

> Section 103.1 General: Fire safety is established within the City of Henderson. The function of this division shall include assisting the fire chief in the administration and enforcement of the provisions of the fire code. Management oversight of fire safety is provided by the building official. The fire chief has the final decision-making authority on all technical fire code issues.

Section 103.2.1 Fire Code Official.

A new Section 103.2.1 Fire code official is added as follows:

> 103.2.1 Fire code official: The fire chief may designate fire department and/or fire safety staff to assist him with his duties as the fire code official to perform the duties as set forth in the fire code.

Section 103.3.1 Fire Safety Personnel, Fire Department, and Police.

A new Section 103.3.1 Fire safety personnel, fire department and police is added as follows:

Section 103.3.1 Fire safety personnel, fire department, and police. The fire chief, members of the fire department, and members of fire safety shall have the powers of a police officer in performing their duties under this code.

Section 104.2 Determination of Compliance / Substantial Compliance.

Revise Determination of Compliance / Substantial Compliance Section 104.2 as follows:

Section 104.2 Determination of compliance / Substantial compliance. The fire code official shall have the authority to determine compliance with this code, to render interpretations of this code and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures:

1. Shall be in compliance with the intent and purpose of this code.

2. Shall not have the effect of waiving requirements specifically provided for in this code.

Substantial compliance standard. In the enforcement of specific provisions of this code or adopted standard, the fire chief is authorized to grant minor variations from the strict application of specific code provisions where, in the opinion of the fire chief, the work is in substantial compliance with the intent of the adopted codes and/or standards.

Section 104.4.2 Authority to Inspect.

A new Section 104.4.2 Authority to inspect is added as follows:

Section 104.4.2 Authority to inspect. Fire safety and/or the fire department shall inspect, as often as necessary, buildings and premises, including such other hazards or appliances designated by the fire chief for the purpose of ascertaining and causing to be corrected any conditions which would reasonably tend to cause fire or contribute to its spread, or any violation of the purpose or provisions of the fire code and of any other law or standard affecting fire safety.

Section 105.1.1.1 Permit and Service Fee Schedule.

A new Section 105.1.1.1 Permit and service fee schedule is added as follows:

105.1.1.1 Permit and service fee schedule. Fees for permits, inspections, plan checks and other services shall be as set forth in the development services schedule of fees, as adopted and amended from time to time by the Henderson City Council (HMC 15.02).

Section 105.5.5 Carnivals and fairs.

Section 105.5.5 Carnivals and fairs is amended as follows:

105.5.5 Carnivals and fairs. An operational permit is required to conduct a carnival or fair.

Section 105.5.34 Mobile food preparation vehicles.

Section 105.5.34 Mobile food preparation vehicles is amended as follows:

105.5.34 Mobile food preparation vehicles. An operational permit is required for mobile food preparation vehicles equipped with appliances that produce smoke or grease-laden vapors, where the main business office is located within the boundaries of this jurisdiction.

Exception: Mobile food preparation vehicles that have a valid/current fire operational permit from another Nevada jurisdiction.

Section 105.5.67 Fire Suppression and Extinguishing Systems.

Section 105.5.67 Fire suppression and extinguishing systems is added as follows:

105.5.67 Fire suppression and extinguishing systems. An operational permit is required for facilities that contain a fire suppression or extinguishing system. See Chapter 9 of the 2024 International Fire Code.

Section 105.5.68 Mobile fueling vehicle.

Section 105.5.68 Mobile fueling vehicle is amended as follows:

105.5.68 Mobile fueling vehicle. An operational permit is required to operate a mobile fueling vehicle where the main business office is located within the boundaries of this jurisdiction. See Chapter 57 of the 2024 International Fire Code.

Exception: Mobile fueling vehicles that have a valid/current fire operational permit from another Nevada jurisdiction.

Section 105.5.69 Operational permit for new and existing buildings.

Section 105.5.69 Operational permit for new and existing buildings is added as follows:

105.5.69 Operational permit for new and existing buildings. An annual, biennial or triennial operational permit is required for new and existing buildings. See section 325.

Exception: One- and two-family dwellings; townhouses; and buildings that are regulated by NRS/NAC 477 or NRS/NAC 499.

Section 106.1 Submittals.

Section 106.1 Submittals is amended as follows:

106.1 Submittals. Construction documents and supporting data shall be submitted in electronic format with each application for a permit and in such form and detail as required by the fire code official. Submittals shall demonstrate compliance with the adopted codes and standards, City of Henderson checklists and guidelines. The construction documents shall be prepared by a registered design professional where required by the statutes of the jurisdiction in which the project is to be constructed.

Exception: The fire code official is authorized to waive the submission of construction documents and supporting data not required to be prepared by a registered design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this code.

Section 108.7 Fire Apparatus Standby.

Section 108.7 Fire apparatus standby is added as follows:

108.7 Fire apparatus standby fee shall be five hundred ($500) dollars per hour with a minimum of four (4) hours for each standby apparatus or unit. Fees for standby rescue unit(s) shall be two hundred and fifty ($250) dollars per hour with a minimum of four (4) hours for each standby rescue.

Section 110.3.1.1 Reporting Means.

Section 110.3.1.1 Reporting means is added as follows:

110.3.1.1 Reporting means shall be by email to the email inbox designated by the fire code official or through an electronic or web-based system approved by the fire code official.

Section 112.1.1 Board of appeals established.

Section 112.1.1 Board of appeals established is amended as follows:

112.1.1 Board of appeals established. A board of appeals is established in HMC 15.01.115.

Section 113.4 Violation Penalties.

Section 113.4 Violation penalties is amended as follows:

113.4 Violation penalties. Persons who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directive of

the fire code official, or of a permit or certificate used under provisions of this code, shall be guilty of a misdemeanor. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

The penalties referenced in the above paragraph are established in HMC 15.01.120.

Section 114.4 Failure to comply.

Section 114.4 Failure to comply is amended as follows:

114.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be deemed guilty of a misdemeanor and shall be liable for a fine of not more than one thousand dollars ($1,000.00) or by imprisonment for not more than six (6) months, or by both such fine and imprisonment.

A new section 408 NFPA 3000 program is added as follows:

408 NFPA 3000 Program.

408.1 When required by the cities fire code official, police chief, director of emergency management or their designees' plans, reports and program details shall be submitted by the building owner to fire safety in accordance with NFPA 3000.

408.1.1 Submitted documents shall be marked "CONFIDENTIAL" by the applicant.

408.2 Plans, reports and program details shall be prepared in compliance with NFPA 3000.

408.3. Plans, reports and program details shall be prepared by facility/business owners and managers, facility managers, safety and security professionals, architects, fire and life safety engineers or other experts as necessary to comply with NFPA 3000.

Section 325 Periodic fire safety inspections.

A new section 325 periodic fire safety inspections is added as follows:

325 Periodic Fire Safety Inspections.

325.1 General. Periodic fire safety inspections shall be in accordance with this section.

Exceptions:

1. Where approved by the fire code official.
2. Buildings designed and constructed in accordance with the International Residential Code that are not regulated by NRS/NAC 477 or NRS/NAC 499.

325.2 Permits. Permits shall be required as set forth in this Section and Section 105.5.

325.3 Fire safety inspection frequency. Periodic fire safety inspections of new and existing buildings shall be performed on an annual, biennial, triennial or other frequency based on hazards, risks and staffing as determined by the City's fire safety division.

Section 503.1.1 Buildings and facilities.

Section 503.1.1 Buildings and facilities is amended as follows:

503.1.1 Buildings and facilities. Approved fire apparatus access roads shall be provided for every facility, building or portion of a building hereafter constructed or moved into or within the jurisdiction. The fire apparatus access road shall comply with the requirements of this section and shall extend to within 150 feet (45 720 mm) of all portions of the facility and all portions of the exterior walls of the first story of the building as measured by an approved route around the exterior of the building or facility.

Exceptions:

1. Where suitable mitigation is provided through an acceptable alternate method or code modification the fire code official is authorized to increase the dimension of 150 feet (45 720 mm).

2. Where approved by the fire code official, fire apparatus access roads shall be permitted to be exempted or modified for solar photovoltaic power generation facilities.

3. Where approved by the fire code official for development within the Hillside Overlay District - HMC Title 19, driveways more than 150 feet (45 720 mm) in length providing fire apparatus access to facilities or buildings constructed in accordance with the International Residential Code, shall be permitted to be modified in accordance with the Fire Safety division design criteria for hillside driveways.

Section 503.1.2 Additional access.

Section 503.1.2 Additional access is amended by adding a second paragraph and an exception as follows:

503.1.2 Additional access. The fire code official is authorized to require more than one fire apparatus access road based on the potential for impairment of a single road by vehicle congestion, condition of terrain, climatic conditions or other factors that could limit access.

Approved secondary access shall be provided for 20 or more dwelling units, road(s) with dead ends or with a single point of access more than 600 feet (182 880 mm), and for all commercial and industrial developments.

Exception: Hillside Overlay District - HMC Title 19.

Section 503.2.1.1 Group R, Division 3 Residential Subdivisions.

A new section 503.2.1.1 Group R, Division 3 Residential Subdivisions is added as follows:

503.2.1.1 Group R, Division 3 Residential Subdivisions. For Group R, Division 3 Residential Subdivisions, the minimum width of a fire apparatus access road is 36 feet (10 973 mm), measured face of curb to face of curb (i.e., 20 feet (6096 mm) driving lane with 8 feet (2438 mm) of parking on each side).

Exceptions:

1. For cluster housing developments, the last 150 feet (45 720 mm) may be reduced to 24 feet (7315 mm) in width (face of curb to face of curb) provided the homes are provided with an approved automatic sprinkler system and on-street parking is prohibited.

2. Hillside Overlay District - HMC Title 19.

Section 503.2.7 Grade.

Section 503.2.7 Grade is amended by adding an exception as follows:

503.2.7 Grade. The grade of the fire apparatus access road shall not exceed 12 percent 0.75 rad. The maximum cross-slope curve shall not exceed two (2) percent 0.13rad.

Exception: Hillside Overlay District - HMC Title 19.

Section 505.1.1 Building Addressing.

A new section 505.1.1 Building addressing is added as follows:

505.1.1 Building Addressing. Building addressing shall comply with HMC Title 19.

Section 506.1 Key Boxes. Where required.

Section 506.1 Key Boxes. Where required is amended as follows:

506.1 Key Boxes. Where required - Restricted access. Where access to or within a structure or area is restricted because of secured openings or where immediate access is necessary for lifesaving or fire-fighting purposes, the fire code official is authorized to require a key box to be installed in an approved location. Buildings with fire sprinkler or fire alarm systems, or buildings not equipped with an exterior

means of electrical disconnect, shall be provided with a key box. The key box shall be of an approved type listed in accordance with UL 1037 and shall contain keys to gain necessary access as required by the fire code official.

Recessed Knox Boxes are required except on individual dwelling units when approved by the Fire Chief or designee.

Key boxes shall be located as follows:

1. Adjacent to the fire command center, if applicable.

2. Adjacent to the exterior entrance door to each fire sprinkler riser room.

3. Adjacent to the main entry for buildings with fire alarm systems or sprinklered buildings without a riser room.

4. Adjacent to the exterior entrance door to the fire pump room.

5. Adjacent to the exterior entrance door to each electrical equipment room provided with a service disconnect.

6. At each elevator bank at the lobby nearest the lowest level of fire department access.

7. Other locations where required by the fire code official.

Key boxes shall be installed within 5 feet (1524 mm) to 6 ½ feet (1981 mm) to the top of the box above finished grade.

In new and existing buildings, keys for all lockable doors, exterior or interior, utilized to access fire alarm panel(s), main fire sprinkler control valve(s) and fire pump(s) shall be placed into the key box. Contents of elevator boxes shall be limited to fire service elevator keys. Whenever locks are changed, the building owner or tenant shall replace old keys inside the key box with new keys.

Section 507.2.1.1 Post Indicator Valves.

A new section 507.2.1.1 Post Indicator Valves is added as follows:

507.2.1.1 Post Indicator Valves. Post indicator valve(s) shall be a minimum of five (5) feet (1524 mm) from the building footing.

Section 507.4 Water supply test.

Section 507.4 Water supply test is amended as follows:

507.4 Water supply test - Permit required. A construction permit is required to use or operate fire hydrants or valves controlling fire hydrants.

Section 507.4.1 Fire flow or Fire Sprinkler Design water supply information.

A new section 507.4.1 Fire flow or Fire Sprinkler Design water supply information is added as follows:

507.4.1 Fire flow or Fire Sprinkler Design water supply information. Water supply information for fire flow or fire sprinkler system design is provided by the City of Henderson. Requests for the available flow at 20 psi shall be submitted on the designated form to the City. When available, hydraulically modeled water supply information provided by the City shall be used as the basis for fire flow or fire sprinkler design.

The City will process the request and provide the applicant with the available flow based upon hydraulic modeling. The information provided by the City shall be valid for a period of six (6) months from the date of issuance.

The available flow provided is predicted using a computer hydraulic model of the City's water distribution system which is based on the City's GIS data and approved civil utility plans. The results are from the model's maximum day demand scenario with no part of the water system upstream of the fire flow demand point having less than 20 psi residual pressure. The available flow information is typically provided at a water main and does not account for any pressure losses downstream from that location (for example: from the service or hydrant lateral, backflow devices, meters or any onsite piping to the fire sprinkler system).

The City makes no guarantee that the flow is presently available, nor does it guarantee that these flows will be available in the future due to continued growth which places additional demands for water on our distribution system. Availability of flow is also subject to periodic shutdowns and variations required by the operation of the City's distribution system.

It is the contractor's responsibility to obtain the approved civil utility plans to verify the appropriate backflow device(s) have been or will be installed on the system and to verify the existing on-site pressure prior to final system acceptance. The Contractor shall notify the City's fire safety staff immediately upon discovery of any major pressure discrepancies.

Section 507.4.2 Water supply field test.

A new section 507.4.2 Water supply field test is added as follows:

507.4.2 Water supply field test. Water supply field testing is strongly discouraged. Prior to applying for a permit, specific acceptance in writing by the fire code official is required. This acceptance shall be provided with the permit application. When approved, a manual water supply test may be permitted. A request for permit shall be made on a form provided by the City. Prior to performing the water supply field

test, the Utilities Services Department must be notified at 702-267-5908. The fire code official shall be notified prior to the water supply test. The water supply field test shall be witnessed by the fire code official. The test shall be documented by the contractor. Water supply information obtained through this test shall be valid for a period of six (6) months.

Section 507.5.4.1 Debris Caps.

A new section 507.5.4.1 Debris caps is added as follows:

507.5.4.1 Debris caps. Debris caps are required to be installed beneath the road caps of all private fire systems and fire hydrant water valves to prevent the buildup of obstructions such as dirt, rocks, and plant matter.

Section 901.4.4.1 Non-Separated and Separated Occupancies.

A new Section 901.4.4.1 Non-Separated and Separated Occupancies is added as follows:

901.4.4.1 Non-Separated and Separated Occupancies. The total occupant load shall be applied using the predominant occupancy group within each fire area to determine the threshold so as not to exceed the limits established for requiring a fire protection system in accordance with this chapter.

Exception: When the total occupant load of an non-predominant occupancy group exceeds the threshold requiring a fire protection system the system shall be required throughout the fire area.

Section 903.3.1.3 NFPA 13D sprinkler systems.

A section 903.3.1.3 NFPA 13D sprinkler systems is amended as follows:

903.3.1.3 NFPA 13D sprinkler systems. Automatic sprinkler systems installed in group R-3; Group R-4, condition 1 shall be permitted to be installed throughout in accordance with NFPA 13D, 2022 edition including local amendments. Automatic sprinkler systems installed in one- and two-family dwellings; and townhouses shall be permitted to be installed throughout in accordance with NFPA 13D, 2022 edition including local amendments.

Section 903.3.8.5 Calculations.

Section 903.3.8.5 Calculations is amended as follows:

903.3.8.5 Calculations. Hydraulically calculated fire sprinkler systems shall be designed to ensure the available supply pressure is a minimum of ten (10) psi above the required system pressure. The fire code official is authorized to approve a lower safety margin for 903.3.1.3 systems. The safety margin shall be shown on the plans.

Sections 903.4.3.1 and 904.3.2.

Sections 903.4.3.1 and 904.3.2 are added as follows:

903.4.3.1 Interior audible notification appliances provided in R occupancies shall produce a 520 Hz low frequency signal.

903.4.3.2 In sprinklered one- and two-story self-storage occupancies audible and visual waterflow alarm notification appliances shall be provided throughout interior corridors in lieu of each tenant space. Additionally, one interior audible and visual notification appliance shall be provided near the main entrance or in a normally occupied location and any sleeping units. Sleeping unit audible notification appliances shall produce a 520 Hz low frequency signal.

Section 905.3 Required installations.

Section 905.3 Required installations is amended as follows:

905.3 Required installations. Standpipe systems shall be installed where required by Sections 905.3.1 through 905.3.9. Standpipe systems are allowed to be combined with automatic sprinkler systems.

Exception: Unless required by Section 905.3.9, standpipe systems are not required in Group R-3 occupancies.

The standpipe design shall be approved by the fire code official. Standpipes in buildings with fire pumps shall be automatic.

Exceptions:

1. When approved by the fire code official, standpipes in buildings not subject to freezing shall be wet and shall be permanently connected to a water supply.
2. When approved by the fire code official, standpipes in buildings subject to freezing shall be dry with supervised air or nitrogen and shall be permanently connected to a water supply.
3. When approved by the fire code official, standpipes in areas subject to freezing shall be permitted to be manual dry when equipped with both KNOX locking caps and/or KNOX plugs for fire department connections (FDC).

Section 905.3.9 Residential Manual Dry Standpipes.

A new section 905.3.9 Residential Manual Dry Standpipes is added as follows:

905.3.9 Residential Manual Dry Standpipes. An approved residential manual dry standpipe system shall be installed for Group R-3 occupancies and structures

constructed in accordance with the International Residential Code with driveways over 150 feet (45 720 mm) long to mitigate the lack of fire access for structures constructed in the hillside overlay (Hillside Overlay District - HMC Title 19).

The quantity and locations of hose valve outlets shall be approved by the fire code official.

The permittee shall be responsible for providing all equipment, including pumper truck, necessary for acceptance testing.

Section 905.12 Signage.

Replace Section 905.12 as follows:

905.12 Signage. In addition to all signage required by NFPA Standard 14, an approved architectural floor plan with room numbers shall be provided adjacent to each standpipe hose valve outlet. The plan shall graphically show the area reachable by 100 feet (30 480 mm) of hose from the specific outlet and the location of adjacent outlets (if any) and the distance away.

Section 907.6.6.1 Expanded Monitoring.

A new section 907.6.6.1 Expanded Monitoring is added as follows:

907.6.6.1 Expanded Monitoring. Signals from two-way communication, emergency responder communication enhancement coverage systems, dedicated function elevator recall systems and other systems shall be transmitted to a supervising station as required by the Authority Having Jurisdiction.

Section 1009.8. Two-Way Communication.

Section 1009.8 Two-way communication is amended as follows:

1009.8 Two-way communication.

A two-way communication system complying with Sections 1009.8.1 and 1009.8.2 shall be provided at the landing serving each elevator or bank of elevators on each accessible floor and occupiable mezzanine that is one or more stories above or below the level of exit discharge.

Exceptions:

1. Two-way communication systems are not required at the landing serving each elevator or bank of elevators where the two-way communication system is provided within areas of refuge in accordance with Section 1009.6.5.
2. Two-way communication systems are not required on floors provided with ramps conforming to the provisions of Section 1012.

3. Two-way communication systems are not required at the landings serving only service elevators that are not designated as part of the accessible means of egress or serve as part of the required accessible route into a facility.
4. Two-way communication systems are not required at the landings serving only freight elevators.
5. Two-way communication systems are not required at the landing serving a private residence elevator.
6. Two-way communication systems are not required in Group I-2 or I-3 facilities. 905.3.9 Residential Manual Dry Standpipes.

Sections 4106.4.3.1.1 and 4106.4.3.2.1.

Sections 4106.4.3.1.1 and 4106.4.3.2.1 are added as follows:

4106.4.3.1.1 LP-gas alarms. A listed LP-gas alarm shall be installed within the vehicle in the vicinity of LP-gas system components, in accordance with the manufacturer's instructions.

4106.4.3.2.1 Methane alarms. A listed methane gas alarm shall be installed within the vehicle in accordance with manufacturer's instructions.

Section 5601.2.2 Sale and retail display.

Section 5601.2.2 Sale and retail display is amended as follows:

5601.2.2 Sale and retail display. All sales and retail displays of fireworks and explosives are prohibited.

Exceptions:

1. Consumer fireworks 1.4G (safe and sane) offered for sale at portable retail fireworks stands that are in accordance with the current Fire Prevention Association of Nevada (FPAN) Guidelines for Fireworks. Stands or booths constructed of non-combustible materials providing an acceptable equivalent level of safety to the prescriptive FPAN guidelines may be approved by the fire code official.
2. Novelties complying with NFPA 1124 section C.3.2 & C.3.3 including: party popper; snapper; toy smoke devices; snakes, glow worms; wire sparklers, dipped sticks; and toy caps.

Section 5607.1.1 Blasting Regulations.

A new section 5607.1.1 Blasting Regulations is added as follows:

5607.1.1 Blasting Regulations. Blasting for new development such as subdivisions and commercial uses is regulated in HMC 15.33 entitled "Blasting Regulations." The fire code official is authorized to exercise discretionary authority in utilizing any of the requirements from HMC 15.33 when evaluating other requests for blasting.

Section 5608.1.1 Additional Requirements for Outside Fireworks Displays.

A new section 5608.1.1 Additional Requirements for Outside Fireworks Displays is added as follows:

5608.1.1 Additional Requirements for Outside Fireworks Displays. The following conditions apply to fireworks displays:

1. Fireworks displays shall not exceed twelve (12) times per calendar year at any one location.

2. Fireworks displays shall only occur on Friday and Saturday nights, with the sole exception of New Year's Eve and July 4th. On New Year's Eve and July 4th, fireworks must conclude by 12:30 a.m. (including misfires). On any other occasion, fireworks must conclude by 10:30 p.m. (including misfires).

3. Notification (a vicinity map depicting the subject site, the proposed date(s), time(s) and contact information) shall be provided by the applicant to the mailing addresses on the list provided by staff via first-class mail postmarked not more than thirty (30) days and not less than ten (10) days in advance of the fireworks display. Notification shall also be provided to City of Henderson fire safety staff and community police staff at least 10 calendar days prior to the fireworks display date. A copy of the notification plan shall be included with the permit application.

4. Fireworks displays will be cancelled or postponed when the wind velocity is more than 15 mph for aerial displays and when the wind velocity is more than 20 mph for ground displays. All advertising for the fireworks display shall contain a disclaimer advising that "The fireworks displays will be cancelled or postponed when the wind velocity is in excess of 15 mph."

5. Other firework displays for special events may be considered on an individual basis.

6. Notification to Henderson Fire Department Dispatch shall be made the day of the fireworks display. Notification by the permit holder shall be provided no later than four (4) hours prior to the fireworks display by calling dispatch at 702-267-4913.

5704.2.9.6.1 Locations where above-ground tanks are prohibited.

Section 5704.2.9.6.1 Locations where above-ground tanks are prohibited is amended as follows:

5704.2.9.6.1. Locations where above-ground tanks are prohibited. Storage of Class I and II liquids in above-ground tanks in control areas exceeding an aggregate capacity of 500 gallons (1893 L) outside of buildings is prohibited for the protection of heavily populated or congested areas.

Exception: When approved by the planning or zoning authority and when approved by the fire code official. Note: The fire code official may require UL2085 listed protected tanks or other appropriate mitigation measures.

Chapter 80

Revise Chapter 80 reference NFPA standards as follows:

NFPA

…

54-24 National Fuel Gas Code.

…

140-24 Motion Picture and Television Production Studio Soundstages, Approved Production Facilities, and Production Locations.

…

3000-24 Standard for an Active Shooter/Hostile Event Response (ASHER) Program.

…

(Note: The list before and after the revisions and insertions are unchanged.)

Section B103.1.1: Utility water storage tank sites.

A new section B103.1.1: Utility water storage tank sites is added as follows:

B103.1.1: Utility water storage tank sites. The fire code official is authorized to reduce or eliminate the fire-flow requirements for utility storage sites where the development of fire-flow requirements is impractical.

Table B105.1(1)

Table B105.1(1) is revised and replaced as follows:

TABLE B105.1(1)
REQUIRED FIRE FLOW FOR ONE- AND TWO-FAMILY DWELLINGS, GROUP R-3 AND R-4 BUILDINGS AND TOWNHOUSES

FIRE FLOW CALCULATION AREA (square feet)	*MINIMUM FIRE FLOW (gallons per minute)*	*FLOW DURATION (hours)*
0-3,600	1,500	1
3,601 and greater	½ Value in Table B105.1(2) but not less than 1,500	Duration in Table B105.1(2) at the required fire-flow rate

For SI: 1 square foot = 0.0929 m^2, 1 gallon per minute = 3.785 L/m

NFPA 13

Section 16.4.1.5.1 is revised as follows:

16.4.1.5.1 Design Temperature and Duration. The minimum criteria for an engineered solution in calculating heat loss for the requirement to maintain 40ºF (4.4ºC) shall be 0º F (-17.8ºC) for 8 hours. The initial starting temperature of the water shall be no greater than 50ºF (10ºC).

To maintain 40º F (4°C), the temperature analysis must use a starting temperature of 50º F (10°C) and use an outside temperature of 0º F (-17.8°C) for a period of 8 hours. To maintain 100º F (37.8°C), the temperature analysis must use a starting temperature of 90º F (32.2°C) and use an outside temperature of 120º F (48.9°C) for a period of 8 hours.

NFPA 13D

A new section 6.5.4 is added as follows:

6.5.4 A supply line from the sprinkler system loop shall feed into the toilet in the master bathroom. In multi-level dwellings, if the lowest protected level is below the elevation of the water supply, a supply line shall also feed into a toilet at that level.

Section 8.4 is amended as follows:

8.4 Protection Matrix for Group R Division 3 Occupancies and Buildings Built Under the IRC.

8.4.1 General. When a sprinkler system is being upgraded or installed to mitigate the minimum Fire Code requirements for fire flow, number of fire hydrants, or fire department access, the design requirements in Table 8.4.1 shall be applied.

Table 8.4.1 Protection Matrix for Group R Division 3 Occupancies and Buildings Built Under the IRC[4]

Fire Lane Distance per IFC 503.1.1	*Building Area SIZE RANGE[5]*	*Mitigation Residential SYSTEM TYPE[1,3]*	*MINIMUM WATER METER SIZE[6]*	*SPRINKLERS REQUIRED IN AREAS SUBJECT TO FREEZING*
≤350 FT	≤10,000 SQ. FT.	Enhanced NFPA 13D[1,2] 2-head calculation[1,2]	3/4"/1"[7]	No

Fire Lane Distance per IFC 503.1.1	*Building Area SIZE RANGE[5]*	*Mitigation Residential SYSTEM TYPE[1,3]*	*MINIMUM WATER METER SIZE[6]*	*SPRINKLERS REQUIRED IN AREAS SUBJECT TO FREEZING*
≤350 FT	>10,000 SQ. FT.	Enhanced NFPA 13D 4-head calculation[1,2,8]	1-1/2"[7]	No
>350 FT	Any Size	Enhanced NFPA 13D 4-head calculation[1,2,8]	1-1/2"[7]	No

1. This mitigation constitutes a building "protected with an approved fire sprinkler system" per the IFC.

2. Domestic demand of 5 gpm is required to be added to the sprinkler demand in the hydraulic calculations.

3. Free-standing detached buildings with habitable space (as defined in the IRC) shall be protected by a minimum Enhanced NFPA 13D system with a 2-head calculation.

4. Excluding Group Care Homes with two or less persons being cared for per NRS 449.1865.

5. Building area is defined as the areas under roof except for porches, patios, balconies, carports, and porte cocheres.

6. Water meters used for residential sprinkler systems shall be residential fire service meters (RFM) or other meters approved by the water purveyor.

7. Existing homes with ¾" water meters may be allowed to install a ¾" RFM meter subject to approval. Minimum 1" water meters shall be installed when a 2-head calculation is permitted. Minimum 1-1/2" water meters shall be installed when a 4-head calculation is required.

8. Enhanced 13D 4-head calculation design requires the hydraulic design area to include all sprinklers within a compartment, up to a maximum of four sprinklers.

8.4.2 Where required. When Table 8.4.1 requires an Enhanced 13D design, sprinklers shall be installed throughout the structure except where omissions are permitted by the following:

1. Unheated attic spaces.

2. Floor/ceiling spaces.

3. Concealed combustible spaces with no access for storage or living purposes.

4. Exterior overhangs, porches, and carports.

5. Showers, saunas, steam rooms or other areas that would necessitate the installation of corrosion proof heads.

6. Unconditioned spaces such as storage rooms or exterior accessible spaces that are subject to freezing.

NFPA 14

A new section 10.2.5.1 is added as follows:

10.2.5.1 The contractor is responsible for pressure testing and verifying the integrity and capacity of the drain line.

A new section 12.6.2.2 is added as follows:

12.6.2.2 The installing contractor is responsible for providing all equipment for the acceptance testing of a manual standpipe acceptable to the authority having jurisdiction.

NFPA 72

The 2022 edition of NFPA 72 is adopted except Chapter 29 as follows:

The 2022 edition of NFPA 72 is adopted except Chapter 29 is deleted. (Note: For requirements like Chapter 29, refer to the requirements found in the International Residential Code HMC 15.09.)

Section 12.4 is revised as follows:

12.4* Pathway Survivability. All pathways shall comply with 12.2.3 and NFPA 70.

Section 17.4.7.3 is revised as follows:

17.4.7.3 Detectors installed in concealed locations where the specific detector alarm or supervisory signal is indicated at the control unit (and on the drawings with its specific location and functions) shall be required to be provided with remote alarm indicators unless approved by the Authority Having Jurisdiction.

Section 24.10.9.1 is added as follows:

24.10.9.1 Elevator lobby call stations shall be within 10-feet of the elevator door or bank of elevators served unless approved by the Authority Having Jurisdiction.

(Ord. No. 4138, § 5, 12-16-2025; Ord. No. 4090, § 7, 7-15-2025; Ord. No. 3909, § 6, 9-13-2022; Ord. No. 3510, § 2, 8-7-2018)

15.32.060 Enforcement authority.

Fire safety is established within the City of Henderson. The City of Henderson Fire Code shall be enforced by fire safety, which shall be operated under the direction of the City of Henderson manager of plans examining services/fire protection engineer, senior fire plans examiner and senior fire inspectors. The primary function of fire safety will be to assist the fire chief in the administration and enforcement of the fire code. Management oversight of fire safety is provided by the building official. The fire chief has the final decision-making authority on all technical fire code issues.
(Ord. No. 3670, § 3, 3-3-2020; Ord. No. 3510, § 2, 8-7-2018)

15.32.070 State fire marshal's regulations.

Pursuant to NAC 477.280, fire safety shall enforce the Nevada State Fire Marshal Regulations as adopted by the state fire marshal, except as modified by HMC chapter 15.
(Ord. No. 3510, § 2, 8-7-2018)

15.32.080 Citations.

The City of Henderson fire chief, deputy fire chiefs, battalion chiefs, fire protection engineer, fire investigators, senior fire inspector(s) and members of code enforcement for the City of Henderson may prepare, sign, and serve written citations on persons accused of violating any provision of this title. Any designated employee issuing a citation pursuant to this section shall comply with the provisions of NRS 171.1773.
(Ord. No. 3670, § 3, 3-3-2020; Ord. No. 3510, § 2, 8-7-2018)

15.32.090 Appeals and relief from regulations.

All decisions made by the City of Henderson manager of plans examining services/fire protection engineer, senior fire plans examiner, senior fire inspector(s), members of fire safety, or members of the fire department are subject to review by the building official and the fire chief.

All decisions made by the City of Henderson building official and the fire chief are subject to review in accordance with HMC chapter 15.01.
(Ord. No. 3670, § 3, 3-3-2020; Ord. No. 3510, § 2, 8-7-2018)

15.32.100 Penalties.

A. Any person, firm, or corporation who violates any of the provisions of the Code shall be deemed guilty of a misdemeanor and each such person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of any

of the provisions of this code is committed, continued, or permitted, and upon conviction of any such violation such person shall be punished as the law allows for a misdemeanor crime.

B. The application of the above penalty shall not be held to prevent the enforced removal of prohibited conditions.
(Ord. No. 3510, § 2, 8-7-2018)

15.32.110 Permit and service fee schedule.

Fees for permits, inspections, plan checks and other services shall be as set forth in the development services schedule of fees, as adopted and amended from time to time by the Henderson City Council (HMC 15.02).
(Ord. No. 3510, § 2, 8-7-2018)

15.32.120 Effective date.

This chapter shall become effective on January 2, 2026.
(Ord. No. 4090, § 8, 7-15-2025; Ord. No. 3909, § 7, 9-13-2022; Ord. No. 3510, § 2, 8-7-2018)

Chapter 15.33 BLASTING REGULATIONS

Sections:

15.33.010 Short title.
15.33.020 Adoption.
15.33.030 Scope.
15.33.040 Substantial compliance standard.
15.33.050 Technical opinions and reports.
15.33.060 Inspections.
15.33.070 Enforcement authority.
15.33.080 Citations.
15.33.090 Administrative review.
15.33.100 Penalties and other enforcement actions.
15.33.110 Definitions.
15.33.120 Permits.
15.33.130 Performance standards.
15.33.140 Non-proximate blasting permit requirements.
15.33.150 Proximate blasting permit requirements.

15.33.010 Short title.

This chapter shall be known as the City of Henderson "Blasting Regulations" and may be cited as such.
(Ord. 2388, § 3 (part), 2005)

15.33.020 Adoption.

The City of Henderson adopts the ordinance codified in this chapter as its blasting regulations and by this designation and reference is hereby adopted and made a part of this chapter, the same as if it were fully set forth herein. One copy of this blasting regulations is on file in the office of the city clerk.
(Ord. 2388, § 3 (part), 2005)

15.33.030 Scope.

The on-site storage, handling, and use of explosives to prepare land for development shall be in accordance with this ordinance, except for the following:

A. The armed forces of the United States, Coast Guard or National Guard;

B. The transportation and use of explosive materials by federal, state and local regulatory law enforcement and fire agencies acting in their official capacities;

C. When preempted by federal law or regulations.

NOTE: The manufacturing, possession, off-site storage, sale, transportation, handling, and use of explosives shall be in accordance with the adopted fire code and all applicable state and federal regulations. The use of explosives within 100 feet of a building or utility is prohibited.

Exceptions:

1. When the use of explosives is required to eliminate imminent hazards;

2. Public construction projects;

3. Where written permission of all building owner(s) within 100 feet of the blast hole(s) has been obtained on a form provided by the city;

4. Where written acknowledgement of all utility owner(s) within 100 feet has been obtained on a form provided by the city.

The use of explosives is permitted at a distance greater than 100 feet and less than 300 feet from a building or utility (herein identified as "proximate" blasting) only upon issuance of a proximate blasting permit, as specified herein.

The use of explosives is permitted greater than 300 feet from a building or utility (herein identified as "non-proximate" blasting).
(Ord. 2388, § 3 (part), 2005)

15.33.040 Substantial compliance standard.

In the enforcement of this ordinance the fire chief and the building and fire safety director are authorized to grant minor variances from the strict application of the ordinance codified in this chapter where, in the opinion of the fire chief and the building and fire safety director, the work or method is in substantial compliance with the intent of the ordinance codified in this chapter.
(Ord. 2388, § 3 (part), 2005)

15.33.050 Technical opinions and reports.

Technical assistance. To determine the acceptability of technologies, processes, products, facilities, materials and uses attending the design, operation or use of explosives, the fire chief and building and fire safety director are authorized to require the owner or agent to provide at no expense to the city, a technical opinion and report. The opinion and report shall be prepared by a qualified engineer, specialist, laboratory or fire safety specialty organization acceptable to the fire chief and building and fire safety director and shall analyze the design, operation and use of explosives in regards to the application submitted

and recommend necessary changes and render an opinion as to whether the proposed blasting can be conducted safely and in accordance with the provisions of the ordinance codified in this chapter or provide peer review of the engineered plans.
(Ord. 2388, § 3 (part), 2005)

15.33.060 Inspections.

The city reserves the right to conduct inspections at any time during the duration of the permit.
(Ord. 2388, § 3 (part), 2005)

15.33.070 Enforcement authority.

A fire safety division is established within the building and fire safety department. The City of Henderson blasting regulations shall be enforced by the fire safety division, which shall be operated under the direction of the City of Henderson fire marshal. The primary function of the fire safety division will be to assist the fire chief in the administration and enforcement of the fire code and the blasting ordinance. Management oversight of the fire safety division is provided by the director of the building and fire safety department. The fire chief has the final decision making authority on all technical fire code issues and blasting issues.
(Ord. 2388, § 3 (part), 2005)

15.33.080 Citations.

The City of Henderson fire marshal, the deputy fire marshal(s), the fire investigators, and members of code enforcement for the Henderson building and fire safety department may prepare, sign and serve written citations upon persons accused of violating any provision of this title. Any designated employee issuing a citation pursuant to this section shall comply with the provisions of NRS 171.1773.
(Ord. 2388, § 3 (part), 2005)

15.33.090 Administrative review.

An administrative review of the application and interpretation of the provisions of these regulations may be requested by any aggrieved party. The administrative review shall be conducted within four business days of the filing of the request with the fire chief or the director of building and fire safety. The party requesting the review will be notified of the date, time and location for the review and provided an opportunity to attend and present pertinent information.

The review shall be heard by an administrative review committee consisting of the fire chief, director of building and fire safety, fire marshal, risk manager, and the emergency management coordinator, or their designee. The committee shall adopt reasonable rules and regulations for conducting reviews, and shall render its decisions and findings in writing, with a copy to the appellant. Decisions of the committee are final.

A request for review under this section does not stay any suspension or revocation order.
(Ord. 2388, § 3 (part), 2005)

15.33.100 Penalties and other enforcement actions.

A. Any person, firm, or corporation who violates any of the provisions of these blasting regulations shall be deemed guilty of a misdemeanor and each such person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this code is committed, continued, or permitted, and upon conviction of any such violation such person shall be punished as the law allows for a misdemeanor crime.

B. The application of the penalty in subsection A of this section shall not be held to prevent the enforced removal of prohibited conditions.

C. The fire chief and director of building and fire safety are hereby authorized and may file a complaint with the Nevada State Contractors Board against any violator of this chapter.
(Ord. 2388, § 3 (part), 2005)

15.33.110 Definitions.

Air blast means an airborne pressure wave resulting from the detonation of explosives.

Blast means any detonation(s) of an explosive(s) being initiated simultaneously by a single energy source.

Blast area means the area surrounding a blast site where fly rock could occur and which should be guarded against entry during the shot.

Blast site means the area in which explosives materials are being or have been loaded and which includes all holes loaded or to be loaded for the same blast and for a distance of 50 feet in all directions.

Blaster means a person who holds a valid certificate of registration issued by the state fire marshal and qualified to be in charge of and responsible for the design, loading and firing of a blast.

Blast hole means a hole drilled in the material to be blasted, for the purpose of containing an explosive charge, also called borehole or drill hole.

Building means for purposes of the ordinance codified in this chapter a building is defined as specified in the adopted building code, whether under construction or completed. Exception: unoccupied utility buildings, towers, and similar structures.

Building and fire safety director means the appointed head of the building and fire safety department of the City of Henderson or his designee.

Certificate of registration means a license granted by the state fire marshal to a blaster which allows the license holder to be in charge of and responsible for the loading and firing of a blast.

Explosives means any chemical compound, mixture or device, the primary or common purpose of which is to function by explosion; including, but not limited to, water gel, slurries, emulsion, dynamites, pellet powder, blasting caps, cast primers and boosters, detonating cord, detonating cord delay connectors, and blasting agents.

Fire chief means the appointed head of the fire department of the City of Henderson or his designee.

Fly rock means rock and/or earth propelled from the blast site through the air or along the ground by the force of the detonated explosives.

Misfire means a charge of explosive material that fails to detonate completely after initiation.

Non-proximate blasting means that area containing blast holes greater than 300 feet from any building or utility.

Permit area means the area within the perimeter of the parcel(s) on which a blast site(s) exists.

Pre-blast survey means a visual and written record of the existing condition of a given building near an area where blasting is to be conducted. The purpose of the survey is to record the pre-blasting condition of the building and to document any observable defects or damage.

Proximate blasting means that area containing blast holes 300 feet or less from any building or utility.

Special inspection means inspection required by these regulations for the preparation and conducting of regulated blasting operations.

Utility means any water, sewer, natural gas, electrical service, telecommunication line or distribution component.

Velocity means the measurement of speed.

Velocity, particle means the velocity at which the earth vibrates, measured in inches per second.

Velocity, peak particle means the highest recorded particle velocity in any one of three mutually perpendicular directions.

Velocity, seismic means the velocity at which a vibration or seismic wave travels outward from the source. It is measured in thousands of feet per second.

Vibration, blasting means the energy from a blast that manifests itself in vibrations which are transmitted through the earth away from the immediate blast area.

Vibration, frequency means the number of cycles of vibration per unit of time. The units of frequency are in cycles per second or Hertz (Hz).

Vibration, ground means shaking the ground, by elastic waves emanating from a blast; usually measured in inches per second of particle velocity.
(Ord. 2388, § 3 (part), 2005)

15.33.120 Permits.

A. *General.* A permit constitutes permission to use explosives and conduct blasting operations as may be conditioned or limited under the terms of such permit. Such permission shall not be construed as authority to violate, cancel or set aside any of the provisions of the ordinance codified in this chapter or the adopted fire code or any other applicable local or state law.

Where the provisions of the ordinance codified in this chapter conflicts with any other applicable code or regulation, the most restrictive provision shall apply, unless otherwise preempted under law. Such permit shall not take the place of any license required by law.

The issuance of a blasting permit shall not preclude the fire chief and building and fire safety director from subsequently suspending or revoking the permit, imposing additional requirements on the applicant, or supplementing any existing requirement whenever, in the opinion of the fire chief and building and fire safety director, later information or newly discovered conditions justify such actions.

B. *Blasting permit required.* A permit shall be obtained from the fire safety division of the building and fire safety department prior to any drilling in preparation for blasting and for all subsequent blasting activities.

Blasting permits shall be issued to only those persons or entities currently licensed for blasting by the Nevada State Contractors Board, City of Henderson business license division, and U.S. Department of Justice Bureau of Alcohol, Tobacco, Firearms and Explosives.

Blasting permits shall be either non-proximate or proximate. The applicant shall declare upon submission of the application the type of permit being requested. Permits and accompanying approved documents shall be readily available on the job site during any drilling or blasting operations.

C. *Refusal to issue permit.* The issuance of a blasting permit is a discretionary action on the part of the City of Henderson and as such the city has the right to refuse to issue a permit for blasting. Such refusal shall be in writing and shall contain the reasons for refusal.

D. *Expiration.* A permit shall not be valid for more than 180 days.

E. *Non-transferable.* Permits are not transferable and any change in ownership of the permittee shall require that a new permit be issued.

F. *Revocation or suspension.* The fire chief and the building and fire safety director are authorized to suspend or revoke any permit or portion thereof under the following circumstances:

1. The permit holder does not follow the requirements of these regulations;

2. The permit holder does not follow any condition of the permit; or

3. The blasting causes or may cause an imminent hazard to public health, safety, or welfare.

Upon notification that a permit has been suspended or revoked, all blasting and drilling activities as specified in the order shall immediately cease and all explosive materials shall be removed from the permit area immediately. Such notification shall be by any of the following methods:

4. Posting the notice at the permit area;

5. Personal service on individuals performing blasting operations;

6. By facsimile;

7. Telephone;

8. Electronic mail; or

9. First class U.S. mail.

The fire chief and building and fire safety director are authorized to reinstate a suspended permit at such time as the conditions that caused the suspension have been corrected. If the conditions have not been corrected within 30 days of service

of the notice of suspension, the permit shall be automatically revoked. A permit that has been revoked cannot be reinstated. The holder of a revoked permit may submit a new application, if so desired, to resume blasting operations on a site where a permit has been revoked.

G. *Suspension or revocation hearing.* A permittee may request a hearing within five business days of the suspension or revocation of a permit by filing a written request with either the fire chief or building and fire safety director. A request for hearing does not stay any suspension or revocation order. The hearing shall be conducted by the fire chief and building and fire safety director within five business days of filing of the written request for a hearing, unless by mutual agreement the hearing is scheduled for a later time. A written decision shall be rendered no later than ten business days after the conclusion of the hearing.

H. *Fees.*

1. *Cost recovery.* Fees shall be assessed so that all costs incurred by the city are recovered. Permit fees shall be paid at the time the application is submitted. Permit fees shall be as specified in the development services center fee schedule.

(Ord. 2388, § 3 (part), 2005)

15.33.130 Performance standards.

A. *Blast scheduling.*

1. Blasting contractors are required to request a blast time for each blast. Blasts shall be scheduled by the building and fire safety department. The department shall issue such scheduling rules as the fire chief and building official deem necessary and appropriate. The scheduling rules may be modified by the fire chief and building official, whenever necessary. Notice of modifications shall be sent to the blasting contractors regularly conducting business in Henderson at least seven days prior to the effective date of the modifications.

2. Blasting-related drilling may be conducted between the hours of 6:00 a.m. and 6:00 p.m. during the period beginning on October 1 and ending on March 31 and non-proximate blasting-related drilling may be conducted between the hours of 5:00 a.m. and 6:00 p.m. during the period beginning on April 1 and ending on September 30.

3. All blasting shall be conducted between the hours of 8:00 a.m. to 4:00 p.m., Monday through Friday, excluding state observed holidays (NRS-236). The fire chief and building official may approve alternative time periods for blasting, at their sole discretion, as deemed appropriate.

4. The blasting contractor shall notify fire department dispatch using a non-emergency telephone number a minimum of one hour prior to each blast.

B. *Seismograph monitoring location(s).* Seismographs shall be placed at the nearest building(s) to the blast site in accordance with Table 1. Seismographs shall be provided in sufficient numbers, distances, and directions that will provide ground motion and airblast records representative of the maximum impacts on the surrounding neighborhoods. The fire chief and building and fire safety director may require additional seismographs as deemed necessary to obtain additional attenuation data.

Table 1
Number of Seismographs Required

	Pounds of Explosives per Delay	
Distance (feet)	***≤ 100***	***> 100***
≤ 1,000	1	2
> 1,000	2	3

C. *Seismograph monitoring equipment.*

1. The ground vibration and airblast measuring systems shall have a flat response between two and 200 Hz.

2. Ground vibrations and airblast shall be monitored with blasting seismographs that meet the current International Society of Explosives Engineer's guideline entitled "Performance Specifications for Blasting Seismographs" (www.isee.org) and approved by the fire chief and building and fire safety director.

3. Blasting seismographs shall be deployed in the field according to the current International Society of Explosive Engineers guidelines entitled "Field Practice Guidelines for Blasting Seismographs" (www.isee.org).

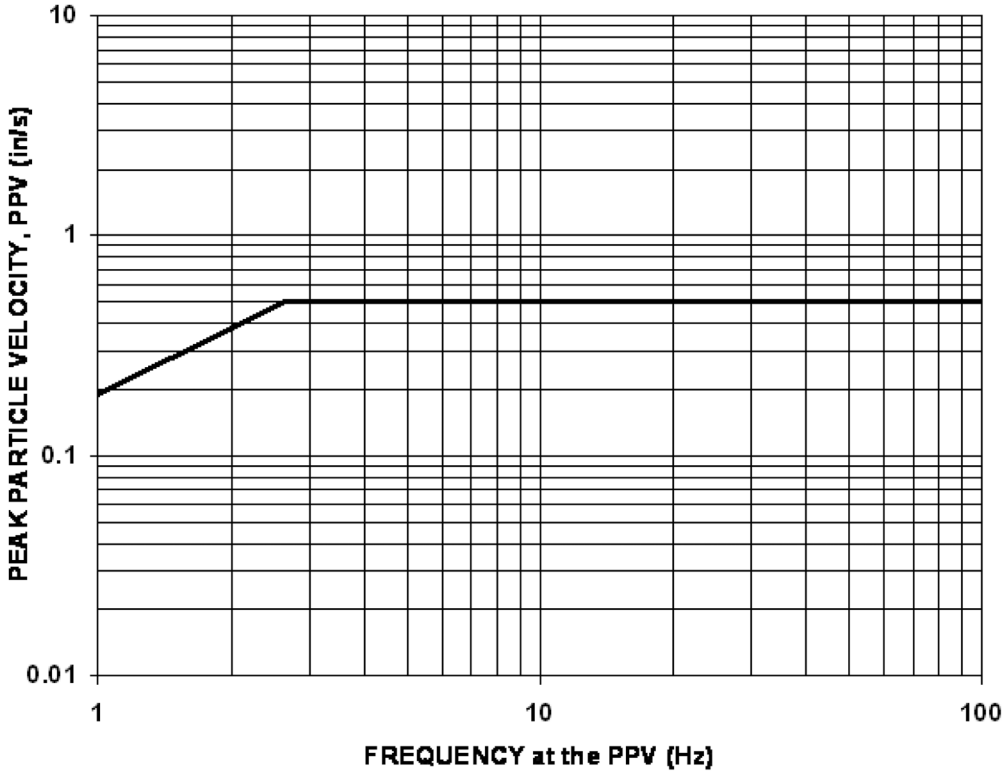
D. *Ground vibration.*

1. At all blasting operations, the frequency-based maximum ground vibrations shall not exceed the limitations specified in Figure 1 at any building or utility.

2. Compliance shall be verified by employing blasting-type seismographs to record particle velocity time histories (full wave forms) and the frequency content of the time histories for three mutually perpendicular components of ground motions.

3. Ground vibrations shall be reported in terms of the peak particle velocity (PPV) and the frequency at the PPV.

FIGURE 1



E. *Airblast.* Airblast shall not exceed the maximum limit of 120 dBL sound pressure level equivalent of air pressure measured on a linear-weighted scale at the location of any building.

Exception: The maximum limit may be raised to 133 dBL with written permission of all building owner(s) within the distance as shown in Figure 2.

F. *Fly rock.* Fly rock traveling in the air or along the ground shall not be projected beyond the permit area.

G. *Reports.* All reports required by this section shall be submitted with the required reports attached via email to an address designated by the building and fire safety department.

The permittee shall provide written notification to the fire chief and building and fire safety director of any incident, damage claim, or neighbor annoyance report brought to the permittee's attention. Such notification shall be provided within 24 hours after a report of an incident, damage, or annoyance.

1. *Seismograph reports.* A seismograph report shall be provided to the city within 48 hours after every blast. The report shall include:

- **a.** Date and time of recording(s);
- **b.** Name of the person and firm taking the reading;
- **c.** Name of the person and firm analyzing the seismographic record;
- **d.** Type of instrument, serial number and calibration signal or certification of annual calibration;
- **e.** Trigger levels used for the ground motion and airblast (ground motion trigger levels at distances over 300 feet shall be set at 0.03 in/sec);
- **f.** Show location on a scaled map for each seismograph by address, if applicable;
- **g.** GPS location, distance and direction from the blast of each seismograph;
- **h.** Ground motion time histories for three mutually perpendicular components;
- **i.** Airblast time history;
- **j.** Peak particle velocity (PPV) and the frequency at the PPV;
- **k.** Peak airblast in decibels (dB) and pounds per square foot (psi) and the frequency at the peak;
- **l.** Maximum pounds of explosives per eight millisecond (ms) delay.

2. *Blasting report.* The operator shall retain a record of all blasts for a minimum of three years. At the request of the fire chief and building and fire safety director, the blasting operator shall provide to the City of Henderson a copy of the blasters log or report within 24 hours after the blast. The blasting log shall include the following:

- **a.** Name and signature of the operator and blaster conducting the blast;
- **b.** Date, time and location of the blast;
- **c.** GPS coordinates of the blast;
- **d.** Type of material blasted;
- **e.** Total number of drill holes;
- **f.** Diameter and depth of holes (maximum, minimum and average depth);
- **g.** Burden, and spacing used in the blasting pattern;
- **h.** Subdrill depth;

i. Type and length of stemming (minimum, maximum and average);

j. Total pounds of each type of explosive used;

k. Initiation system and delay periods used in design;

l. Schematic showing the drill hole pattern and detonation timing of each blast hole;

m. Weather conditions, including those which may cause possible adverse blasting effects;

n. The maximum weight of explosives detonated in an 8-millisecond period;

o. Type and size of any fly rock protection devices used, if any;

p. Distances to and addresses of all closest buildings to the blast site in all directions;

q. Reasons and conditions for each unscheduled blast.

3. *Noncompliant incident report.* When a blast exceeds established limits as specified herein, the permittee shall file a written noncompliant incident report with the building and fire safety department within 24 hours of the event. The incident report shall state:

a. What specified limit was exceeded;

b. Why the specified limit was exceeded;

c. Corrective measures taken to prevent similar future occurrences.

(Ord. No. 4101, § 4, 9-2-2025; Ord. 2388, § 3 (part), 2005)

15.33.140 Non-proximate blasting permit requirements.

A. *Blasting permit.* A blasting permit application will be considered by the fire chief and director of building and fire safety or their designee to be complete and ready for review once the application includes:

1. A completed application form provided by the City of Henderson;

2. Site maps and drawings;

3. Blasting plan;

4. Seismograph monitoring plan;

5. Traffic and access control plan;

6. Notification plan;

7. Proof of bonding or insurance;

8. Utility acknowledgement (when applicable).

Six copies of the entire application packet are required for all blasting permit applications.

B. *Application form.* An application form approved by the fire chief and building and fire safety director shall be completed and submitted for each blasting permit.

C. *Site maps and drawings.* An aerial site map with measured distances shall be submitted and shall:

1. Show the perimeter of the blast area;

2. Identify the locations of all buildings, utilities, and gas transmission pipelines located within 1,000 feet of the blast site;

3. Measure the distance(s) to the closest building(s) from the nearest blast hole.

The blast sites shall be superimposed upon the approved engineered grading plan and shall include information designated in subsections (c)(1) and (c)(2) of this section.

D. *Blasting plan.* Blast plans shall be provided for all applications within the notification distance as shown in Figure 2. Information deemed proprietary in nature by the applicant shall be clearly and distinctly identified as such. The city will maintain any proprietary information submitted in accordance with the Nevada Revised Statutes. The plan must include:

1. The location where the blast(s) will occur and the nearest building designated on a map or drawing using either of the following two methods:

a. An engineered scaled drawing with the nearest buildings located on this drawing; or

b. Show the blast site on a generic drawing/map by providing measured distances from the perimeter of the blast site to the nearest buildings;

2. The measured distance to the nearest building shall be provided;

3. The approximate total amount of material to be blasted (cubic yards);

4. The incremental volumes, per blast, of material to be blasted;

5. The types and packaging of explosive materials to be used;

6. The drill hole diameters, depths, patterns, sub drilling depths and drill hole orientation to be used;

7. A description of the initiation system, the incremental delay times, and the location of the primers in the explosive column;

8. A description of the stemming depths and stemming material for the various estimated depths of drill holes to be blasted;

9. The blast design shall provide either:

a. The maximum pounds per delay to be detonated within eight milliseconds based on the distance to the nearest building; or

b. The scaled distance factor (SD) that they will stay above for the blasts;

10. A description of the fly rock control procedures and equipment to be used;

11. A description of the blast warning sound system and equipment to be used;

12. The scheduled start date and finish date of blasting operations;

13. Additional information as requested.

E. *Seismograph monitoring plan.* A monitoring plan will be submitted to identify the name and address of an independent vibration monitoring company and describe plans for seismograph use, monitoring and reporting. A seismograph monitoring plan will include:

1. The number and general locations of seismographs to be used during monitoring identified on the site map;

2. The plan will include a sufficient number of seismographs strategically located within the surrounding neighborhoods to measure the influence of distance and direction on ground vibrations and airblast;

3. The name of the company supplying and operating seismographs and responsible for preparing the seismograph report;

4. The manufacturer and model of seismographs employed;

5. Seismograph monitoring shall comply with the International Society of Explosives Engineers (ISEE) Field Practice Guidelines for blasting seismographs.

F. *Traffic and access control plan.* A traffic and access control plan shall include warning signage, flagging, temporary road closures, and detour routes for blasting operations. Permit areas that are secured from entry by the general public are exempt from this equipment.

During the loading and detonation of a blast hole, signs shall be conspicuously placed reading "Blasting Area" along the edge of any blasting area. Access within the blasting area shall be controlled to prevent presence of unauthorized persons during blasting and until an authorized representative of the operator has reasonably determined that no unusual hazards, such as undetonated charges, exist, and access to and travel within the blasting area can be safely resumed.

G. *Notification plan.* The notification plan shall consist of the following: (i) blasting notification mailing, (ii) neighborhood meeting.

1. The director of building and fire safety and the fire chief are authorized in their joint discretion to:

a. Allow one blasting notification mailing and/or neighborhood meeting for a project that involves multiple permits such as, but not limited to, projects requiring permit renewals; geographic proximity of proposed blast areas in relation to other development; and master planned communities;

b. Allow one blasting notification mailing and/or neighborhood meeting for multiple projects that involve multiple permits such as, but not limited to, projects subject to a master development agreement; contiguous projects; and master homeowner associations;

c. Require additional blasting notification mailing(s) and/or neighborhood meeting(s) if the scope of the project substantially changes or otherwise warrants additional information sharing with the public such as, but not limited to, substantial acreage added to permit area; or change to blasting plan;

d. Not require blasting notification mailing and/or a neighborhood meeting for permit applications that fall within the scope and notification distance requirements of existing permits by the same blasting contractor.

2. *Blasting notification mailing.* A blasting notification mailing shall be sent to all property owners, and homeowner associations, with a copy provided to the City of Henderson departments of building and fire safety, and neighborhood services, within the scaled notification distance from the perimeter of the assessor's parcel numbers or applicant's designated blast site(s) upon which the blasting permit is requested no less than seven days and no greater than 21 days prior to the start of blasting operations. When fewer than five different property owners are within the notification distance, the applicant may propose a custom plan for informing these owners pursuant to this section. The fire chief and building and fire safety director may accept or modify this plan.

The notification distance for a blasting notification mailing shall be based on Figure 2. The distance from the perimeter of the assessors parcel number containing the closest blast site for notifying property owners is the point where the weight intersects the line on the chart. The weight is based on the applicant's statement stating the maximum anticipated pounds of explosives in any single delay.

FIGURE 2

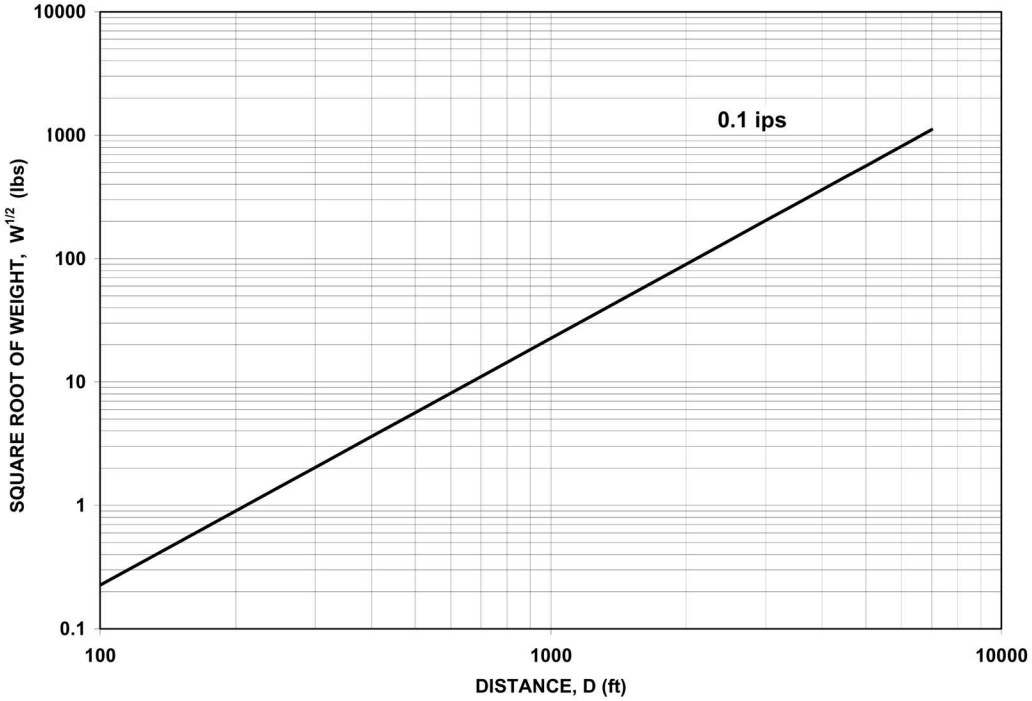


Figure 2 is based on the following equation: D (ft) = 210 * W ½ (lbs) where D is the scaled notification distance and W is the maximum charge weight per eight ms delay.

Upon request, the City of Henderson will provide a mailing list for all residences within the scaled notification distance from the perimeter of the assessor's parcels upon which the blasting permit is requested. A fee shall be charged to recover the cost of providing this service.

The applicant may request to have the city prepare and process the mailing for the neighborhood meeting and shall charge a fee to recover the cost of providing this service.

The blasting notification mailing shall have a return address identifying the applicant. The contents of the notice shall include, but are not limited to, the following:

a. Why the blasting is necessary;

b. Name of blasting company;

c. When the blasting will occur, i.e., date range and approximate times of blasting;

d. Where the blasting will be conducted. A map shall be provided;

e. How to contact the blasting company;

f. Date, time, location of the required neighborhood meeting.

When no blasting occurs for a period of 30 or more days, a new blasting notification mailing shall be sent. The notice shall include subsections (2)(a) through (2)(e) of this section.

3. *Neighborhood meeting.* The location of the neighborhood meetings are subject to the approval of the fire chief and building and fire safety director.

A neighborhood meeting will be conducted prior to the issuance of a non-proximate blasting permit by representatives of the blasting company, the developer, and the vibration consultants implementing the monitoring program.

Information provided to neighborhood residents will include, but is not limited to:

a. A general description of the blasting activities, including an explanation of the drilling and blasting process;

b. The anticipated duration of the blasting;

c. An anticipated schedule of blasts, including estimated dates and times of blasting;

d. The qualifications of the blasters;

e. The warning signals for blasting and the all clear signal;

f. Measures to be taken for the control of ground vibrations, air blast, fly rock, fumes and dust;

g. Contact information for submitting questions or complaints;

h. Insurance carrier contact information for submitting claims;

i. A description of the vibration monitoring process.

H. *Proof of insurance.*

1. *General.* A valid certificate of insurance shall be submitted with each application when applying for a permit to conduct blasting.

2. *Certificate information required.* The certificate shall be issued by an insurance company authorized to transact business in the State of Nevada, or be named on the list of authorized insurers maintained by the Nevada Department of Business and Industry, Division of Insurance. The following information shall be identified:

a. The contractor shall be named as the insured. If the insurance is provided by an individual, company or partnerships other than the contractor, the contractor shall be named as an additional insured;

b. The City of Henderson Municipal Corporation, its officers, agents, employees and volunteers shall be named as additional insured and certificate holder;

c. Commercial general liability limits, including contractual liability, in the minimum amount of $5,000,000.00, per occurrence.

I. *Additional insurance.* Greater liability insurance amounts may be required under circumstances where the blasting activity is deemed by the fire chief and building and fire safety director to present unusual hazards.

J. *Indemnification.* Each permit issued under the authority of this chapter shall contain the following indemnification provision:

The permittee hereby fully indemnifies, holds harmless and agrees to defend the City of Henderson, its agents, officers and employees from any and all claims, expenses, losses, liability, actions, suits or demands, including legal defense costs thereof, of whatever nature, arising out of or connected with this blasting permit.

K. *Utility notification.* Utilities within 300 feet of the blast site shall be notified as follows:

1. Utility service provider shall acknowledge the use of explosives by providing a signature from an authorized person on a form provided by the City of Henderson or written permission on utility company letterhead.

Exception: alternate methods of notification as acceptable to the utility and filed with the building and fire safety department.

2. The blasting contractor shall provide a minimum of 24 hours' notice to the utility in advance of the initial blast.

(Ord. 2416, §§ 1—2, 2005; Ord. 2388, § 3 (part), 2005)

15.33.150 Proximate blasting permit requirements.

A. *[Safety precautions.]* In addition to all other requirements of this chapter, the following safety precautions shall be taken for proximate blasting:

1. Additional seismographs may be required by the City of Henderson or its consultant;

2. The blast plan shall also note the measured distance between the seismograph and the nearest blast hole;

3. Only packaged, measured or metered explosives shall be used;

4. A drill log shall be maintained on all proximate blasting to allow the blasting supervisor to monitor the drilling process closely and to take the appropriate action if an anomaly occurs;

5. Drill hole depth shall be held to a maximum of 20 feet of solid rock when conducting proximate blasting;

6. The diameter of the drill hole shall not exceed three inches when conducting proximate blasting;

7. Stemming material shall be one-half inch angular gravel or crushed stone;

8. All proximate blasts shall be videotaped at a distance and direction that will allow visual capture of any fly rock. A copy of the videotape shall be provided to the fire chief and building and fire safety director within 24 hours upon request;

9. The fire chief and building and fire safety director may require protective cover such as matting used on top of proximate blasts to prevent fly rock. The type of and quantity of cover shall be as determined by the contractor, but not less than simple topsoil or a manmade material like synthetic rubber;

10. The approximate powder factors anticipated.

B. *Notification plan.* The notification plan shall consist of the following: (i) blasting notification mailing, (ii) neighborhood meeting.

1. The director of building and fire safety and the fire chief are authorized in their joint discretion to:

a. Allow one blasting notification mailing and/or neighborhood meeting for a project that involves multiple permits such as, but not limited to, projects requiring permit renewals; geographic proximity of proposed blast areas in relation to other development; and master planned communities;

b. Allow one blasting notification mailing and/or neighborhood meeting for multiple projects that involve multiple permits such as, but not limited to, projects subject to a master development agreement; contiguous projects; and master homeowner associations;

c. Require additional blasting notification mailing(s) and/or neighborhood meeting(s) if the scope of the project substantially changes or otherwise warrants additional information sharing with the public such as, but not limited to, substantial acreage added to permit area; or change to blasting plan;

d. Not require blasting notification mailing and/or a neighborhood meeting for permit applications that fall within the scope and notification distance requirements of existing permits by the same blasting contractor.

2. *Blasting notification mailing.* A blasting notification mailing shall be sent to all property owners, and homeowner associations, with a copy provided to the City of Henderson departments of building and fire safety, and neighborhood services, within the scaled notification distance from the perimeter of the assessor's parcel numbers or applicant's designated blast site(s) upon which the blasting permit is requested no less than seven days and no greater than 21 days prior to the start of blasting operations. When fewer than five different property owners are within the

notification distance, the applicant may propose a custom plan for informing these owners pursuant to this section. The fire chief and building and fire safety director may accept or modify this plan.

The notification distance for a blasting notification mailing shall be based on Figure 3. The distance from the perimeter of the assessors parcel number containing the closest blast site for notifying property owners is the point where the weight intersects the line on the chart. The weight is based on the applicant's statement stating the maximum anticipated pounds of explosives in any single delay.

FIGURE 3

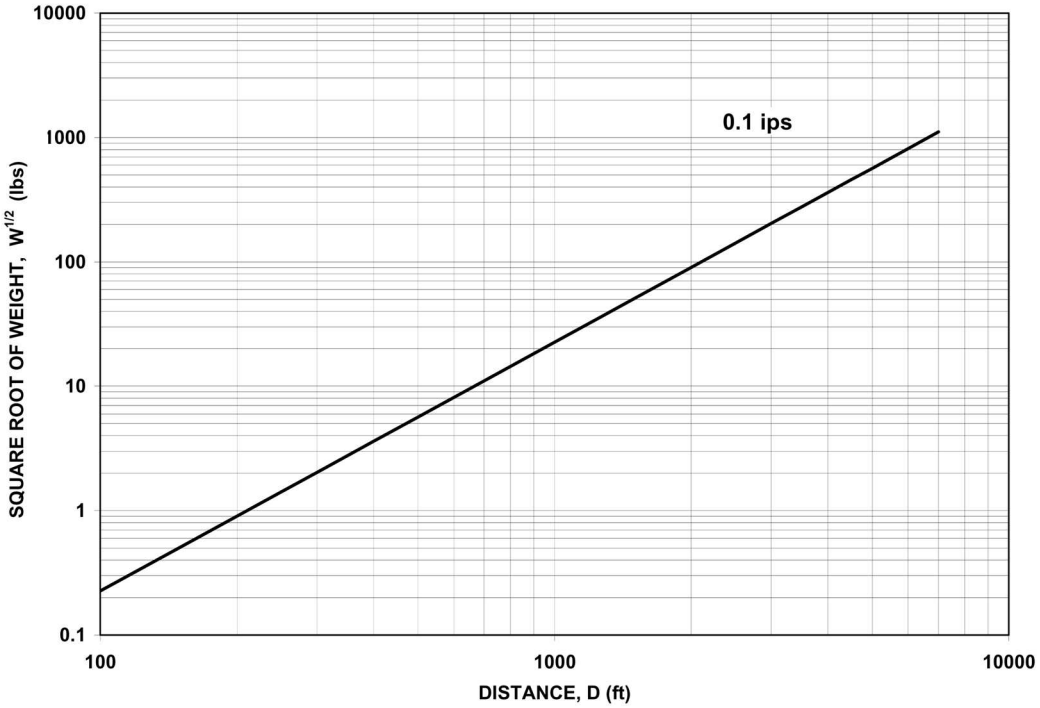


Figure 3 is based on the following equation: D (ft) = 210 * W ½ (lbs) where D is the scaled notification distance and W is the maximum charge weight per eight ms delay.

Upon request, the City of Henderson will provide a mailing list for all residences within the scaled notification distance from the perimeter of the assessor's parcels upon which the blasting permit is requested. A fee shall be charged to recover the cost of providing this service.

The applicant may request to have the city prepare and process the mailing for the neighborhood meeting and shall charge a fee to recover the cost of providing this service.

The blasting notification mailing shall have a return address identifying the applicant. The contents of the notice shall include, but are not limited to, the following:

a. Why the blasting is necessary;

b. Name of blasting company;

c. When the blasting will occur, i.e., date range and approximate times of blasting;

d. Where the blasting will be conducted. A map shall be provided;

e. How to contact the blasting company;

f. Date, time, location of the required neighborhood meeting.

When no blasting occurs for a period of 30 or more days, a new blasting notification mailing shall be sent. The notice shall include subsections (2)(a) through (2)(e) of this section.

3. *Neighborhood meeting.* The location of the neighborhood meetings are subject to the approval of the fire chief and building and fire safety director.

A neighborhood meeting will be conducted prior to the issuance of a proximate blasting permit by representatives of the blasting company, the developer, and the vibration consultants implementing the monitoring program.

Information provided to neighborhood residents will include, but is not limited to:

a. A general description of the blasting activities, including an explanation of the drilling and blasting process;

b. The anticipated duration of the blasting;

c. An anticipated schedule of blasts, including estimated dates and times of blasting;

d. The qualifications of the blasters;

e. The warning signals for blasting and the all clear signal;

f. Measures to be taken for the control of ground vibrations, air blast, fly rock, fumes and dust;

g. Contact information for submitting questions or complaints;

h. Insurance carrier contact information for submitting claims;

i. A description of the vibration monitoring process.

C. *Pre-blast and post-blast surveys.* Before proximate blasting may commence, the blasting company shall complete pre-blast surveys of all buildings 300 feet or less from the nearest blast hole. Pre-blast and post-blast surveys shall comply with the following:

1. *Pre-blast surveys.*

a. At least 21 days before initiation of blasting, the permit applicant shall notify, in writing, all property owners within 300 feet of the permit area, of their eligibility to request a pre-blast survey and the procedure for requesting a survey;

b. The pre-blast survey shall be conducted by an independent engineering consulting firm qualified to inspect buildings;

c. The inspector conducting the survey shall determine the condition of the building and shall document with scaled photographs and supplemental sketches any pre-blasting damage and other physical factors that could reasonably be affected by the blasting;

d. Documentation shall include foundation and building construction details, other improvements and landscape features;

e. Utilities such as pipelines, cables, transmission lines, and cisterns, wells, and other water systems warrant special attention; however, the assessment of these may be limited to surface conditions and other readily available data;

f. The written report of the survey shall be signed by the person who conducted the survey;

g. Copies of pre-blast inspection reports and any owner refusals shall be provided to the city, upon request.

2. *Post-blast survey.*

a. A property owner that received a pre-blast survey may request a post-blast survey;

b. The permittee is responsible for notifying the property owner of this right;

c. The property owner must request this survey in writing to the permittee and a survey must be conducted within three business days following receipt of notification from the property owner;

d. The post-blast survey, signed by the person conducting the survey, shall consist of scaled photographs of any alleged damages and a written report comparing the pre-blast photographs with the post-blast photographs;

e. Copies of inspection reports or owner refusals shall be provided to the city upon request.

D. *Special inspections.* Proximate blasting operations require special inspection. The owner of the property for which the permit is issued shall employ one or more independent special inspectors to provide inspections of all proximate blasting operations. The special inspector shall be from an agency qualified in blasting operations that has demonstrated competence to the satisfaction of the fire chief and the building and fire safety director.

The fire chief and building and fire safety director may condition, suspend, or revoke the approval of any special inspector for any of the following grounds:

1. Failure to comply with the requirement or conditions of permit issuance;

2. Incompetence;

3. Conflict of interest;

4. Willful and negligent failure to inspect;

5. Failure to maintain certifications and licenses;

6. Failure to report non-compliances;

7. Violation of approved permit documents; or

8. Failure to perform any of the duties designated for special inspectors.

Conditions, suspensions or revocations of special inspectors shall be for a period determined by the fire chief and the building and fire safety director.

The special inspector shall develop a plan and inspection schedule to verify compliance with the approved plans. This plan and schedule shall be approved by the fire chief and building and fire safety director. The special inspector shall issue a stop work order when the approved blasting permit and accompanying documentation are not available on the job site at the time of inspection. The special inspector shall immediately notify the blasting contractor and shall maintain a copy of the stop work order on the blasting site.

The special inspector shall immediately notify the contractor in writing of any blasting preparations or operations which is in non-conformance with the approved permit, blasting plan, or any provisions of this ordinance. Work shall not proceed unless the conditions noted in the non-conformance report have been corrected. The special inspector shall maintain a copy of the non-compliance report on the job site.

The special inspector shall write daily report(s) and provide, as directed by the fire chief or the building and fire safety director or by the design professional or owner, such other information as may be required within the scope of the special inspector's duties. All daily reports prepared by a special inspector pursuant to these regulations are the property of the City of Henderson and shall be made available upon request of the fire chief or the building and fire safety director. The daily reports shall address conformance with the following:

9. Site maps and drawings;

10. Blasting plan;

11. Seismograph monitoring plan;

12. Traffic and access control plan;

13. Notification plan;

14. Other criteria as specified in these regulations.

The special inspector shall immediately notify the contractor and the fire chief and building and fire safety director in writing of uncorrected non-conformance to the approved permits, blasting plan, or any provisions of these regulations within the scope of the special inspector. Notification shall be within 24 hours and may be by e-mail, fax, or telephone call.

The special inspector shall submit a final report to the fire chief and building and fire safety director stating whether all required inspections were completed, documented, and found to be in compliance with the approved permit, blasting plan, and applicable provisions of these regulations. Final reports shall include all non-compliance reports with dates of corrective action approval and completed inspection history record.

E. *Exceptions.*

1. The requirements of this section may be waived when the owner of the blast site and any building(s) within 300 feet are the same, and written permission is submitted on a form provided by the city.

2. The requirements of this section may be waived where written acknowledgement of all utility owner(s) within 300 feet has been submitted on a form provided by the city and there are no building(s) within 300 feet.

(Ord. 2416, §§ 3—4, 2005; Ord. 2388, § 3 (part), 2005)

Chapter 15.40 FIREPLACES

Sections:

15.40.010 Fireplaces in new construction and new fireplaces in existing construction.

15.40.010 Fireplaces in new construction and new fireplaces in existing construction.

Effective upon publication of the ordinance codified in this section, no fireplace shall be constructed in any residential dwelling unit in Henderson unless it is one of the following:

A. A fireplace equipped with gas logs with a nationally recognized listing approved by the building official;

B. A dedicated natural gas burning factory-built fireplace with a nationally recognized listing approved by the building official;

C. A dedicated wood-burning factory-built fireplace that conforms to the Phase II Environmental Protection Agency Standards for Wood Heaters, as presented by NSPS, 40 CFR part 60, subpart AAA (emitting less than 7.5 grams per hour of particular matter), as verified by a nationally recognized listing approved by the building official;

D. A masonry fireplace that complies with section 3102.7 of the Uniform Building Code, 1994 edition; or

E. A decorative electrical appliance with a nationally recognized listing approved by the building official.

(Ord. 1697, § 1, 1996)

Chapter 15.44 SWIMMING POOL CODE*

Sections:

15.44.010 Adoption by reference.
15.44.020 Code amended.
15.44.030 Substantial compliance standard.
15.44.040 Compliance required—Penalty for violations.
15.44.050 Effective date.

15.44.010 Adoption by reference.

The City of Henderson adopts as its swimming pool code the 2024 International Swimming Pool and Spa Code as published by the International Code Council in its entirety excepting amendments and changes as stated in this chapter. This code is available online through the International Code Council.
(Ord. No. 4091, § 1, 7-15-2025; Ord. No. 3511, § 1, 8-7-2018; Ord. No. 3045, § 1, 8-6-2013)

15.44.020 Code amended.

The City of Henderson adopts as an amendment to the 2024 International Swimming Pool and Spa Code the booklet entitled "Southern Nevada Amendments to the 2024 International Swimming Pool and Spa Code." This booklet is adopted in its entirely, excepting amendments and changes as stated in this chapter. This booklet is available on the city's website(s).

The booklet is further amended by deleting Section 305.4 and replacing it as follows:

Section 305.4 Structural Wall as a Barrier.

305.4 Structure wall as a barrier. Where a wall of a dwelling or structure serves as part of the barrier and where doors, pet doors that allow a 4-inch diameter sphere to pass through, gates or windows provide direct access to the pool or spa through that wall, one of the following shall be required:

1. Operable windows having a sill height of less than 48 inches (1219 mm) above the indoor finished floor, doors, pet doors, and gates, shall have an alarm that produces an audible warning when the window, door or their screens are opened. The alarm shall be listed and labeled as a water hazard entrance alarm in accordance with UL 2017.

***Editor's note—**Ord. No. 3045, § 1, adopted August 6, 2013, amended chapter 15.44 in its entirety to read as herein set out. Formerly, chapter 15.44, §§ 15.44.010—15.44.030 pertained to similar subject matter, and derived from Ord. No. 2889, § 1, adopted December 7, 2010.

2. In dwellings not required to be Accessible units, Type A units or Type B units, the operable parts of the alarm deactivation switches shall be located at not less than 54 inches (1372 mm) above the finished floor.

3. In dwellings that are required to be Accessible units, Type A units or Type B units, the operable parts of the alarm deactivation switches shall be located not greater than 54 inches (1372 mm) and not less than 48 inches (1219 mm) above the finished floor. Windows shall be equipped with a permanent locking device to prevent an opening such that a sphere of 4 inches (102 mm) in diameter cannot pass through.

4. In structures other than dwellings, the operable parts of the alarm deactivation switches shall be located not greater than 54 inches (1372 mm) and not less than 48 inches (1220 mm) above the finished floor. Windows shall be equipped with a permanent locking device to prevent an opening such that a sphere of 4 inches (102 mm) in diameter cannot pass through.

5. A safety cover that is listed and labeled in accordance with ASTM F1346 is installed for the pools and spas.

6. An approved means of protection, such as self-closing doors with self-latching devices, is provided. Such means of protection shall provide a degree of protection that is not less than the protection afforded by Item 1 or 2.

7. Windows serving as part of a required means of egress that are unable to be equipped with a permanent locking device shall not be included in a public pool or spa barrier.

(Ord. No. 4139, § 2, 12-16-2025; Ord. No. 4091, § 1, 7-15-2025; Ord. No. 3511, § 1, 8-7-2018; Ord. No. 3045, § 1, 8-6-2013)

15.44.030 Substantial compliance standard.

In the enforcement of the specific provisions of the adopted technical codes and standards, the building official or designee is authorized to grant minor variations from the strict application of specific code and standards provisions where, in the opinion of the building official, the work is in substantial compliance with the intent of the adopted codes and standards.

(Ord. No. 3511, § 1, 8-7-2018; Ord. No. 3045, § 1, 8-6-2013)

15.44.040 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a

misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.
(Ord. No. 3045, § 1, 8-6-2013)

15.44.050 Effective date.

This chapter shall become effective on January 2, 2026.
(Ord. No. 4091, § 1, 7-15-2025; Ord. No. 3511, § 1, 8-7-2018; Ord. No. 3045, § 1, 8-6-2013)

Chapter 15.45 ENERGY CONSERVATION CODE*

Sections:

15.45.010 Adoption by reference.
15.45.020 Code amended.
15.45.030 Substantial compliance standard.
15.45.040 Compliance required—Penalty for violations.
15.45.050 Effective date.

15.45.010 Adoption by reference.

The City of Henderson adopts as its energy code the 2024 International Energy Conservation Code as published by the International Code Council in its entirety excepting amendments and changes as stated in this chapter. This code is available online through the International Code Council.
(Ord. No. 4092, § 2, 7-15-2025; Ord. No. 3512, § 1, 8-7-2018; Ord. No. 3047, § 1, 8-6-2013)

15.45.020 Code amended.

The City of Henderson adopts as an amendment to the 2024 International Energy Conservation Code the booklet entitled "Southern Nevada Amendments to the 2024 International Energy Conservation Code." The booklet is adopted in its entirety excepting amendments and changes as stated in this chapter. This booklet is available on the city's website(s).
(Ord. No. 4092, § 2, 7-15-2025; Ord. No. 3512, § 1, 8-7-2018; Ord. No. 3047, § 1, 8-6-2013)

15.45.030 Substantial compliance standard.

In the enforcement of specific provisions of the adopted technical codes and standards, the building official or designee is authorized to grant minor variations from the strict application of specific code and standards provisions where, in the opinion of the building official, the work is in substantial compliance with the intent of the adopted codes and standards.
(Ord. No. 3512, § 1, 8-7-2018; Ord. No. 3047, § 1, 8-6-2013)

***Editor's note—**Ord. No. 3047, § 1, adopted August 6, 2013, amended chapter 15.45 in its entirety to read as herein set out. Formerly, chapter 15.45, §§ 15.45.010—15.45.090 pertained to similar subject matter, and derived from Ord. No. 2322, § 1, adopted 2005; Ord. No. 2540, § 1, adopted in 2006; Ord. No. 2838, § 1, adopted December 1, 2009, and Ord. No. 2890, § 1, adopted December 7, 2010.

Subsequently, Ord. No. 4092, § 1, adopted July 15, 2025, changed the title of chapter 15.45 from "International Energy Conservation Code" to "Energy Conservation Code."

15.45.040 Compliance required—Penalty for violations.

Any person, firm or corporation violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished as provided by law for a misdemeanor offense. Each separate date or any portion thereof during which any violation of this chapter occurs or continues shall be deemed to constitute a separate offense, and upon conviction thereof shall be punishable as herein provided.
(Ord. No. 3047, § 1, 8-6-2013)

15.45.050 Effective date.

This chapter shall become effective on January 2, 2026.
(Ord. No. 4092, § 2, 7-15-2025; Ord. No. 3512, § 1, 8-7-2018; Ord. No. 3047, § 1, 8-6-2013)

Chapter 15.50 FLOOD CONTROL AND CONTROL OF DRAINAGE

Sections:

15.50.010 Uniform regulations.
15.50.020 Federal Emergency Management Flood Plain Maps.

15.50.010 Uniform regulations.

The City of Henderson hereby adopts the Clark County Regional Flood Control District "Uniform Regulations for the Control of Drainage" as revised September 8, 2022.
(Ord. No. 3927, § 1, 12-6-2022; Ord. No. 3016, § 1, 6-11-2013; Ord. 2724, § 1, 2008; Ord. 2141, § 1, 2002; Ord. 1337, § 1, 1992; Ord. 1233, 1991; Ord. 1100, § 1, 1988; Ord. 1064, § 3, 1987; Ord. 1050, § 4, 1987)

15.50.020 Federal Emergency Management Flood Plain Maps.

The Federal Emergency Management Flood Plain Maps for Clark County and the municipalities therein are incorporated into this ordinance by reference and are on file in the office of the Henderson city clerk.
(Ord. 1050, § 5, 1987)

Chapter 15.52 UNIFORM STANDARD SPECIFICATIONS FOR PUBLIC WORKS CONSTRUCTION

Sections:

15.52.010 Adoption.
15.52.020 Violation—Penalty.

15.52.010 Adoption.

The Uniform Standard Specifications for Public Works Construction—Off-Site Improvements, Clark County Area, Nevada, a copy of which is on file in the office of the Henderson city clerk, is adopted as the uniform principles and standards to be observed in the construction of off-site improvements in the City of Henderson, Nevada, as revised.
(Ord. No. 3152, § 1, 4-15-2014; Ord. 549, § 1, 1976)

15.52.020 Violation—Penalty.

Any person violating any of the terms and provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not to exceed $500.00 or by imprisonment in the city jail for a term not to exceed six months or by both such fine and imprisonment.
(Ord. 549, § 2, 1976)

Chapter 15.56 NOISE LEVEL REDUCTION STANDARDS

Sections:

15.56.010 Statement of purpose.
15.56.020 Certification of plans.
15.56.030 25 decibel noise level reduction standard.
15.56.040 30 decibel noise level reduction standard.
15.56.050 35 decibel noise level reduction standard.
15.56.060 Reserved.

15.56.010 Statement of purpose.

Henderson Municipal Code (HMC) title 19 specifies that certain areas of the city impacted by aircraft overflight shall be controlled with regard to use and construction by an AE Airport Environs Overlay District. The AE Airport Environs Overlay District requires interior noise level reductions as specified in Table 19.4.3-1. The noise level reduction standards stated in HMC [sections] 15.56.030 through 15.56.050 shall be used to meet those requirements in Table 19.4.3-1.
(Ord. No. 3150, § 1, 4-15-2014; Ord. 1409, § 1 (part), 1993)

15.56.020 Certification of plans.

The building official shall not issue a building permit for any building or structure within the noise subzones of the AE Airport Environs Overlay District unless the plans and specifications accompanying the application for said permit are certified to comply with the minimum exterior to interior noise level reduction requirements of Table 19.4.3-1. Such compliance shall be achieved as follows:

A. Through adherence to the requirements of HMC sections 15.56.030 through 15.56.050; or

B. In cases where materials included in a design do not have listed ratings acceptable to the building official, where strict adherence to the standards in HMC sections 15.56.30 through 15.56.50 would result in a violation of the Henderson Building Code, or where an applicant wishes to employ sound attenuation methods other than those listed in HMC sections 15.56.030 through 15.56.050, the plans submitted with the building permit application shall be certified by a qualified acoustical consultant approved by the building official, such approval being based on the adequate demonstration of competence and credentials in the area of architectural acoustics.

(Ord. No. 3150, § 1, 4-15-2014; Ord. 1409, § 1 (part), 1993)

15.56.030 25 decibel noise level reduction standard.

Compliance with the following standards shall be deemed to meet requirements for a minimum noise level reduction (NLR) of 25 decibels.

A. *General.*

1. Brick veneer, masonry blocks, or stucco exterior walls shall be constructed airtight. All joints shall be grouted or caulked airtight.

2. At the penetration of exterior walls by pipes, ducts or conduits, the air space between the wall and pipes, ducts or conduits shall be caulked or filled with mortar.

3. Window and/or through-the-wall ventilation units shall not be used.

4. Through-the-wall/door mailboxes shall not be used.

B. *Exterior walls.*

1. Exterior walls, other than described in this section, shall have a laboratory sound transmission class rating of at least STC-30.

2. Masonry walls having a surface weight of at least 25 pounds per square foot do not require a furred (stud) interior wall. At least one surface of concrete block walls shall be plastered.

3. Stud walls shall be at least four inches in nominal depth and shall be finished on the outside with siding-on-sheathing, stucco or brick veneer.

a. Interior surface of the exterior walls shall be of gypsum board or plaster at least one-half inch thick, installed on the studs.

b. Continuous composition board, plywood or gypsum board sheathing at least one-half inch thick shall cover the exterior side of the wall studs behind wood or metal siding. Asphaltic or wood shake shingles or plaster (stucco) are acceptable in lieu of siding.

c. Sheathing panels shall be covered on the exterior with overlapping building paper.

d. Insulation material at least R-11 shall be installed continuously throughout the cavity space behind the exterior sheathing and between wall studs. Insulation shall be glass fiber or mineral wool.

C. *Windows.*

1. Windows other than as described in this section shall have a laboratory sound transmission class rating of at least STC-28.

2. Glass shall be at least $^{3}/_{16}$ inch thick.

3. All operable windows shall be weather-stripped and airtight when closed so as to conform to an air infiltration test not to exceed 0.5 cubic foot per minute per foot of crack length in accordance with ASTM E-283-65-T.

4. Glass of fixed-sash shall be sealed in an airtight manner with a nonhardening sealant or a soft elastomer gasket or gasket tape.

5. The perimeter of window frames shall be sealed airtight to the exterior wall construction with a sealant conforming to one of the following federal specifications: TT-S-00227, TT-S-00230 or TT-S-00153.

6. Total area of glass shall not exceed 20 percent of exterior wall area.

D. *Doors.*

1. Doors other than as described in this section shall have a laboratory sound transmission class rating of at least STC-26.

2. All exterior side-hinged doors shall be solid-core wood or insulated hollow metal at least 1 3/4 inches thick and shall be fully weather-stripped.

3. Exterior sliding doors shall be weather-stripped with an efficient airtight gasket system with performance as specified in subsection C3. The glass in the sliding doors shall be at least 3/16 inch thick.

4. Glass in doors shall be sealed in an airtight nonhardening sealant or in a soft elastomer gasket or glazing tape.

5. The perimeter of door frames shall be sealed airtight to the exterior wall construction as described in subsection C5.

E. *Roofs.*

1. Combined roof and ceiling construction other than described in this section and subsection F shall have a laboratory sound transmission class rating of at least STC-39. This requires an acoustical analysis or test acceptable to the building official.

2. With an attic or rafter space at least six inches deep, and with a ceiling below, the roof shall consist of one-half inch composition board, plywood or gypsum board sheathing topped by roofing as required.

3. Open beam roof construction shall follow the energy insulation standards method for batt insulation.

4. Skylights shall conform to a STC rating of 28.

F. *Ceilings.*

1. Gypsum board or plaster ceilings at least one-half inch thick shall be provided where required by subsection E2 above. Ceilings shall be substantially airtight with a minimum number of penetrations.

2. Glass fiber or mineral wool insulation at least R-19 shall be provided above the ceiling between joists.

G. *Floors.*

1. Openings to any crawl spaces below the floor of the lowest occupied room shall not exceed two percent of the floor area of the occupied rooms.

2. Sleeping area floors shall be carpeted.

H. *Ventilation.*

1. A mechanical ventilation system shall be installed that will provide the minimum air circulation and fresh air supply requirements for various uses in occupied rooms without the need to open any windows, doors, or other openings to the exterior. The attic inlet and discharge openings shall be fitted with sheet metal transfer ducts of at least 20 gauge steel, which shall be lined with one-inch thick coated glass fiber, and shall be at least five feet long with one 90-degree bend.

2. Gravity vent openings in attics shall be sized in accordance with the building code.

3. All vent ducts connecting the interior space to the outdoors, excepting kitchen and sewer gas ducts (including domestic range exhaust ducts), shall contain at least one five-foot length of internal sound-absorbing duct lining. Each duct shall be provided with a bend in the duct such that there is no direct line-of-sight through the duct from the venting cross-section to the room-opening cross-section. Duct lining shall be coated fiber duct liner at least one inch thick.

4. Fireplaces shall be fitted with well-fitted dampers.

(Ord. No. 3150, § 1, 4-15-2014; Ord. 1409, § 1 (part), 1993)

15.56.040 30 decibel noise level reduction standard.

Compliance with the following standards shall be deemed to meet requirements for a minimum noise level reduction (NLR) of 30 decibels.

A. *General.*

1. Brick veneer, masonry blocks, or stucco exterior walls shall be constructed airtight. All joints shall be grouted or caulked airtight.

2. At the penetration of exterior walls by pipes, ducts or conduits, the air space between the wall and pipes, ducts or conduits shall be caulked or filled with mortar.

3. Window and/or through-the-wall ventilation units shall not be used.

4. Operational-vented fireplaces shall not be used.

5. Through-the-wall/door mailboxes shall not be used.

B. *Exterior walls.*

1. Exterior walls, other than described in this section, shall have a laboratory sound transmission class rating of at least STC-35.

2. Masonry walls having a surface weight of at least 40 pounds per square foot do not require a furred (stud) interior wall. At least one surface of concrete block walls shall be plastered.

3. Stud walls shall be at least four inches in nominal depth and shall be finished on the outside with siding-on-sheathing, stucco or brick veneer.

a. Interior surface of the exterior walls shall be of gypsum board or plaster at least one-half inch thick, installed on the studs. The gypsum board or plaster may be fastened rigidly to the studs if the exterior is brick veneer or stucco. If the exterior is siding-on-sheathing, the interior gypsum board or plaster must be fastened resiliently to the studs.

b. Continuous composition board, plywood or gypsum board sheathing at least three-fourths inch thick shall cover the exterior side of the wall studs behind wood or metal siding.

c. Sheathing panels shall be covered on the exterior with overlapping building paper.

d. Insulation material at least R-11 shall be installed continuously throughout the cavity space behind the exterior sheathing and between wall studs. Insulation shall be glass fiber or mineral wool.

C. *Windows.*

1. Windows other than as described in this section shall have a laboratory sound transmission class rating of at least STC-33.

2. Glass of double glazed windows shall be at least one-eighth inch thick. Panes of glass shall be separated by a minimum of one-half inch airspace.

3. Double-glazed windows shall employ fixed sash or efficiently weather-stripped, operable sash. The sash shall be rigid and weather-stripped with material that is compressed airtight when the window is closed so as to conform to an infiltration test not to exceed 0.5 cubic foot per minute per foot of crack length in accordance with ASTM E-283-65-T.

4. Glass of fixed-sash windows shall be sealed in an airtight manner with a nonhardening sealant or a soft elastomer gasket or gasket tape.

5. The perimeter of window frames shall be sealed airtight to the exterior wall construction with a sealant conforming to one of the following federal specifications: TT-S-00227, TT-S-00230 or TT-S-00153.

6. Total area of glass shall not exceed 20 percent of exterior wall area.

D. *Doors.*

1. Doors other than as described in this section shall have a laboratory sound transmission class rating of at least STC-33.

2. Double-door construction is required for all door openings to the exterior. Openings fitted with side-hinged doors shall have one solid-core wood or insulated hollow metal at least 1 3/4 inches thick separated by an airspace of at least three inches from another door, which can be a storm door. Both doors shall be tightly fitted and weather-stripped.

3. The glass in the sliding doors shall be separated by a minimum one-half inch airspace. Each sliding frame shall be provided with an efficient airtight weather-stripping material as specified in subsection C3.

4. Glass of all doors shall be at least 3/16 inch thick. Glass in double sliding doors shall not be equal in thickness.

5. The perimeter of door frames shall be sealed airtight to the exterior wall construction as described in subsection C5.

6. Glass of doors shall be set and sealed in an airtight nonhardening sealant or a soft elastomer gasket or glazing tape.

E. *Roofs.*

1. Combined roof and ceiling construction other than described in this section and subsection F shall have a laboratory sound transmission class rating of at least STC-44. This requires an acoustical analysis or test acceptable to the building official.

2. With an attic or rafter space at least six inches deep, and with a ceiling below, the roof shall consist of three-fourths inch composition board, plywood or gypsum board sheathing topped by roofing as required.

3. Open beam roof construction shall follow the energy insulation standards method for batt insulation, except use one inch plywood decking with shakes or other suitable roofing material instead of one-half inch plywood.

4. Window or dome skylights shall have a laboratory sound class rating of at least STC-33.

F. *Ceilings.*

1. Gypsum board or plaster ceilings at least five-eighths inch thick shall be provided where required by subsection E2 above. Ceilings shall be substantially airtight with a minimum number of penetrations.

2. Glass fiber or mineral wool insulation at least R-19 shall be provided above the ceiling between joists.

G. *Floors.*

1. The floor of the lowest occupied rooms shall be slab on fill, below grade, or over a fully enclosed basement or crawl space. All door and window openings in the fully enclosed basement shall be tightly fitted.

2. Sleeping area floors shall be carpeted.

H. *Ventilation.*

1. A mechanical ventilation system shall be installed that will provide the minimum air circulation and fresh air supply requirements for various uses in occupied rooms without the need to open any windows, doors, or other openings to the exterior. The attic inlet and discharge openings shall be fitted with sheet metal transfer ducts of at least 20 gauge steel, which shall be lined with one-inch thick coated glass fiber, and shall be at least five feet long with one 90-degree bend.

2. Domestic range exhaust ducts connecting the interior space to the outdoors shall contain a self-closing baffle plate which allows proper ventilation. The duct shall be provided with a 90-degree bend or other mitigating measures approved by the building official.

3. All vent ducts connecting the interior space to the outdoors, excepting kitchen and sewer gas ducts (including domestic range exhaust ducts), shall contain at least one five-foot length of internal sound-absorbing duct lining. Each duct shall be provided with a bend in the duct such that there is no direct line-of-sight through the duct from the venting cross-section to the room-opening cross-section. Duct lining shall be coated fiber duct liner at least one inch thick.

4. Gravity vent openings in attics shall not exceed code minimum in number and size. The openings shall be fitted with transfer ducts at least three feet in length containing internal one-inch thick coated fiberglass sound-absorbing duct lining. Each duct shall have a lined 90-degree bend in the duct such that there is no direct line-of-site from the exterior through the duct into the attic.

(Ord. No. 3150, § 1, 4-15-2014; Ord. 1409, § 1 (part), 1993)

15.56.050 35 decibel noise level reduction standard.

Compliance with the following standards shall be deemed to meet requirements for a minimum noise level reduction (NLR) of 35 decibels.

A. *General.*

1. Brick veneer, masonry blocks, or stucco exterior walls shall be constructed airtight. All joints shall be grouted or caulked airtight.

2. At the penetration of exterior walls by pipes, ducts or conduits, the air space between the wall and pipes, ducts or conduits shall be caulked or filled with mortar.

3. Window and/or through-the-wall ventilation units shall not be used.

4. Operational-vented fireplaces shall not be used.

5. All sleeping spaces shall be provided with a carpeted floor.

6. Through-the-wall/door mailboxes shall not be used.

7. No glass or plastic skylight shall be used.

B. *Exterior walls.*

1. Exterior walls, other than described in this section, shall have a laboratory sound transmission class rating of at least STC-40.

2. Masonry walls having a surface weight of at least 75 pounds per square foot do not require a furred (stud) interior wall. At least one surface of concrete block walls shall be plastered.

3. Stud walls shall be at least four inches in nominal depth and shall be finished on the outside with siding-on-sheathing, stucco or brick veneer.

a. Interior surface of the exterior walls shall be of gypsum board or plaster at least five-eighths inch thick, installed on the studs. The gypsum board or plaster may be fastened rigidly to the studs if the exterior is brick veneer. If the exterior is stucco or siding-on-sheathing, the interior gypsum board or plaster must be fastened resiliently to the studs.

b. Continuous composition board, plywood, plaster (stucco) or gypsum board sheathing at least one inch thick shall cover the exterior side of the wall studs behind wood or metal siding.

c. Sheathing panels shall be butted tightly and covered on the exterior with overlapping building paper.

d. Insulation material at least R-19 shall be installed continuously throughout the cavity space behind the exterior sheathing and between wall studs. Insulation shall be glass fiber or mineral wool.

C. *Windows.*

1. Windows other than as described in this section shall have a laboratory sound transmission class rating of at least STC-38.

2. Glass of double glazed windows shall be at least 3/16 inch thick. Panes of glass shall be separated by a minimum of one-half inch airspace and shall not be equal in thickness.

3. Double-glazed windows shall employ fixed sash or efficiently weather-stripped, operable sash. The sash shall be rigid and weather-stripped with material that is compressed airtight when the window is closed so as to conform to an infiltration test not to exceed 0.5 cubic foot per minute per foot of crack length in accordance with ASTM E-283-65-T.

4. Glass of windows shall be sealed in an airtight manner with a nonhardening sealant or a soft elastomer gasket or gasket tape.

5. The perimeter of window frames shall be sealed airtight to the exterior wall construction with a sealant conforming to one of the following federal specifications: TT-S-00227, TT-S-00230, or TT-S-00153.

6. Total area of glass shall not exceed 20 percent of exterior wall area.

D. *Doors.*

1. Doors other than as described in this section shall have a laboratory sound transmission class rating of at least STC-38.

2. Double-door construction is required for all door openings to the exterior. The doors shall be side-hinged and shall be solid-core wood or insulated hollow metal, at least 1 3/4 inches thick, separated by a vestibule or enclosed porch at least three feet in length. Both doors shall be tightly fitted and weather-stripped.

3. The perimeter of door frames shall be sealed airtight to the exterior wall construction as specified in subsection C4.

4. Glass of all doors shall be at least 3/16 inch thick. Glass in double sliding doors shall not be equal in thickness.

5. Glass of doors shall be set and sealed in an airtight nonhardening sealant or a soft elastomer gasket or glazing tape.

E. *Roofs.*

1. Combined roof and ceiling construction other than described in this section and subsection F shall have a laboratory sound transmission class rating of at least STC-49.

2. With an attic or rafter space at least six inches deep, and with a ceiling below, the roof shall consist of one inch composition board, plywood or gypsum board sheathing topped by roofing as required.

3. Open beam roof construction shall follow the energy insulation standards method for batt insulation, except use clay or concrete tiles in place of shakes.

F. *Ceilings.*

1. Gypsum board or plaster ceilings at least five-eighths inch thick shall be provided where required by subsection E. Ceilings shall be substantially airtight with a minimum number of penetrations. The ceiling panels shall be mounted on resilient clips or channels.

2. Glass fiber or mineral wool insulation at least R-30 shall be provided above the ceiling between joists.

G. *Floors.*

1. The floor of the lowest occupied rooms shall be slab on fill or below grade.

2. Sleeping area floors shall be carpeted.

H. *Ventilation.*

1. A mechanical ventilation system shall be installed that will provide the minimum air circulation and fresh air supply requirements for various uses in occupied rooms without the need to open any windows, doors, or other openings to the exterior. The attic inlet and discharge openings shall be fitted with sheet metal transfer ducts of at least 20 gauge steel, which shall be lined with one-inch thick coated glass fiber, and shall be at least five feet long with one 90-degree bend.

2. Domestic range exhaust ducts connecting the interior space to the outdoors shall contain a self-closing baffle plate which allows proper ventilation. The duct shall be provided with a 90-degree bend or other mitigating measures approved by the building official.

3. All vent ducts connecting the interior space to the outdoors, excepting kitchen and sewer gas ducts (including domestic range exhaust ducts), shall contain at least one five-foot length of internal sound-absorbing duct lining. Each duct shall be provided with a bend in the duct such that there is no direct line-of-sight through the duct from the venting cross-section to the room-opening cross-section. Duct lining shall be coated fiber duct liner at least one inch thick.

4. Gravity vent openings in attics shall not exceed code minimum in number and size. The openings shall be fitted with transfer ducts at least three feet in length

containing internal one-inch thick coated fiberglass sound-absorbing duct lining. Each duct shall have a lined 90-degree bend in the duct such that there is no direct line-of-site from the exterior through the duct into the attic.

(Ord. No. 3150, § 1, 4-15-2014; Ord. 1409, § 1 (part), 1993)

15.56.060 Reserved.

Editor's note—Ord. No. 3150, § 1, adopted April 15, 2014, repealed the former section 15.56.060 in its entirety, which pertained to penalty for violation, and derived from Ord. No. 1409, § 1, adopted in 1993.

Chapter 15.60 TEMPORARY DWELLING UNITS

Sections:

15.60.010 Manufactured home defined.
15.60.020 Mobile home defined.
15.60.030 Travel trailer defined.
15.60.040 Temporary dwelling unit.
15.60.050 Temporary construction trailer.
15.60.060 Temporary security trailer.
15.60.070 Required inspection and permit.
15.60.080 Penalty.

15.60.010 Manufactured home defined.

1. Manufactured home means a structure which is:

(a) Built on a permanent chassis;

(b) Designed to be used with or without a permanent foundation as a dwelling when connected to utilities;

(c) Transportable in one or more sections; and

(d) Eight feet or more in body width or 40 feet or more in body length when transported, or, when erected on site, contains 320 square feet or more.

2. The term includes:

(a) The plumbing, heating, air-conditioning and electrical systems of the structure;

(b) Any structure:

(1) Which meets the requirements of paragraphs (a) to (c), inclusive, of subsection 1; and

(2) With respect to which the manufacturer voluntarily files a certification required by the Secretary of Housing and Urban Development and complies with the standards established under the National Manufactured Housing Construction and Safety Standards Act of 1974 (42 USC §§ 5401 et seq.).

(Ord. 978, § 1, 1985)

15.60.020 Mobile home defined.

1. Mobile home means a structure which is:

(a) Built on a permanent chassis;

(b) Designed to be used with or without a permanent foundation as a dwelling when connected to utilities; and

(c) Transportable in one or more sections.

2. The term includes:

The design of the body and frame and the plumbing, heating, air-conditioning and electrical systems of the mobile home. Mobile homes does not include a travel trailer, commercial coach, manufactured home or any structure built in compliance with the requirements of chapter 461 of NRS.
(Ord. 978, § 1, 1985)

15.60.030 Travel trailer defined.

1. Travel trailer means a portable structure mounted on wheels, consisting of a vehicular chassis primarily designed as temporary living quarters for recreational, camping or travel use and designed to be drawn by another vehicle, and designated by the manufacturer as a travel trailer.

2. A vehicle is not a travel trailer, if, when equipped for highway use, it is more than eight feet wide.
(Ord. 978, § 1, 1985)

15.60.040 Temporary dwelling unit.

The owner of any lot or tract of land may place thereon, and live therein, a manufactured or mobile home or travel trailer provided sanitary, power and utilities are approved by the director of building and safety, and further that:

A. The owner is constructing a single-family residence home on the lot or tract of land and has obtained all necessary permits and paid all mandatory fees; and

B. The use of the temporary dwelling unit shall not exceed the period of 18 months from the date of permit issuance; and

C. The owner has placed a $500.00 bond in cash or surety with the chief financial officer of the finance department for purposes of ensuring the removal of the temporary dwelling unit at the end of the 18-month time period; and

D. The owner shall submit to the director of building and fire safety, a construction schedule for the new house and accessory buildings which include a statement of intent to construct according to the submitted schedule.

The owner of any lot or tract of land on which a temporary dwelling unit has been placed may request a single six-month extension of time from the director of building and fire safety by a showing of extreme hardship.
(Ord. No. 3149, § 1, 4-15-2014; Ord. 1352, § 3, 1992; Ord. 978, § 1, 1985)

15.60.050 Temporary construction trailer.

The owner of a construction project, other than a single-family residence home covered under provisions of section 15.60.040, which would require security protection during hours of closure, may place thereon, a travel trailer for security protection for the period of construction.

The travel trailer shall be parked on the construction site and shall be removed ten days after final inspection of the permanent structure.

The sanitary plumbing requirements can be waived by the director of building and fire safety provided adequate sanitary plumbing is available elsewhere on the site.
(Ord. No. 3149, § 1, 4-15-2014; Ord. 1352, § 4, 1992; Ord. 978, § 1, 1985)

15.60.060 Temporary security trailer.

The owner of a permitted business who requires security protection during hours of closure may maintain a trailer for that purpose until a permanent facility can be constructed. In no case shall the use of such security trailer be for longer than a six-month period.
(Ord. 978, § 1, 1985)

15.60.070 Required inspection and permit.

All temporary dwelling units described in this chapter shall require a permit issued by the department of building and fire safety and shall comply with all inspections of the department.
(Ord. No. 3149, § 1, 4-15-2014; Ord. 1352, § 5, 1992; Ord. 978, § 1, 1985)

15.60.080 Penalty.

Any person violating any of the terms and/or provisions of this chapter shall be deemed guilty of a misdemeanor each and every day of such offense and upon conviction thereof shall be punished as the law allows for a misdemeanor crime.
(Ord. 986, § 1, 1985)

Chapter 15.70 UNIFORM DESIGN AND CONSTRUCTION STANDARDS (UDACS) FOR WATER DISTRIBUTION SYSTEMS

Sections:

15.70.010 UDACS adopted by reference.

15.70.010 UDACS adopted by reference.

The city adopts as its standards for the design and construction of water distribution systems the Uniform Design and Construction Standards for Potable Water Distribution Systems, 4th Edition, 2025, which standards, as amended, are referred to in the code as "UDACS" or "Uniform Design and Construction Standards for Potable Water Systems" or "Uniform Design and Construction Standards (UDACS) for Water Distribution Systems" or "Uniform Design and Construction Standards for Potable Water Systems (UDACS)" or "Uniform Design and Construction Standards" or "Uniform Design and Construction Standards (UDACS)" or "Uniform Design and Construction Standards for Water Distribution Systems, Clark County." The UDACS is available online and one copy is on file in the office of the city clerk. The city may periodically amend the UDACS through an addendum approved in writing by the city's director of utility services. Each addendum in effect shall be available online and a copy shall be on file in the office of the city clerk.
(Ord. No. 4058, § 1, 2-4-2025; Ord. No. 3159, § 1, 5-6-2014; Ord. 2843, § 1, 1-19-2010)

Chapter 15.75 DESIGN AND CONSTRUCTION STANDARDS FOR WASTEWATER COLLECTION SYSTEMS

Sections:

15.75.010 Adopted.

15.75.010 Adopted.

The city adopts and conforms to the Design and Construction Standards for Wastewater Collection Systems, Southern Nevada, 2019, Fourth Edition, as amended, (referred to in the code as "DCSWCS" or "Design and Construction Standards for Waste Water Collection Systems" or "Design and Construction Standards for Wastewater Collection Systems, Clark County" or "Design and Construction Standards for Wastewater Collection Systems"), copies of which are on file in the office of the Henderson city clerk. Any amendment shall be effective on the date the director of utility services approves the amendment in writing.

(Ord. No. 3571, § 1, 5-7-2019; Ord. No. 3143, § 1, 4-1-2014;Ord. 2843, § 2, 1-19-2010)

Chapter 15.80 BABY CHANGING TABLES IN BUILDINGS ACCESSIBLE TO THE PUBLIC

Sections:

15.80.010 Baby changing tables in buildings accessible to the public.

15.80.010 Baby changing tables in buildings accessible to the public.

All permanent buildings or facilities that are constructed on or after October 1, 2017, that are used by the public and contain a public restroom must contain at least one baby changing table. If a baby changing table in such a building or facility is not accessible to both men and women, the building or facility must be equipped with at least one baby changing table accessible to men and one baby changing table accessible to women. This provision does not apply to any building or facility that does not have a public restroom or has been issued a permit or license that restricts the admission of children to the building or facility on the basis of age. For the purposes of this provision: 1) baby changing table means a safe and sanitary baby diaper-changing station, deck table or other similar amenity whose installation complies with all local, state and federal laws regarding access to persons with disabilities; and 2) permanent building means any building or facility not classified as a temporary building or structure pursuant to HMC 15.01.050.
(Ord. No. 3428, § 1, 8-15-2017)

Title 16

RESERVED*

*__Editor's note—__Ord. No. 3066, § 1, adopted September 17, 2013, repealed the former title 16, chapters 16.04—16.24, in its entirety, which pertained to trailer parks, and derived from Ord. No. 401, §§ 1—7, adopted in 1969; Ord. No. 428, §§ 1—8, adopted in 1971, and Ord. No. 453, § 1, adopted 1972.

Title 17

RIGHT-OF-WAY MANAGEMENT—COMMUNICATIONS FACILITIES*

Chapters:

17.01 Definitions
17.02 General Provisions
17.03 Fees

***Editor's note—**Prior to the reenactment of title 17 by Ord. No. 3581, § 1, adopted June 4, 2019, Ord. No. 3019, § 1, adopted June 11, 2013, repealed the former title 17, chapters 17.01—17.08 in its entirety, which pertained to travel trailer park, and derived from Ord. No. 420, adopted in 1971; Ord. No. 826, § 1, adopted in 1982; Ord. No. 840, § 4, adopted May 3, 1982; Ord. No. 1989, § 2, adopted in 2000, and Ord. No. 2016, §§ 1, 3—8, adopted in 2000.

Subsequently, Ord. No. 3928, § 1, adopted December 6, 2022, changed the title of title 17 from "Right-of-way management—Telecommunications facilities" to "Right-of-way management—Communications facilities."

Chapter 17.01 DEFINITIONS

Sections:

17.01.010 Definitions.

17.01.010 Definitions.

For the purpose of administering this title, the words and terms set forth in this title shall be defined as follows:

Applicant means the person who submits a completed application and required supporting materials as set forth in this title for a license authorization to install and operate communications facilities. For convenience, the term "applicant" will also refer to a person submitting a request for a use agreement.

Application means all written documentation, including written statements, representations and warranties, provided to the city, in accordance with this title, by a prospective licensee, which may be relied upon by the city in making its determination of whether to grant or deny a license authorization to install and operate communications facilities.

Authorization fee means a licensed location authorization fee or a licensed wireline authorization fee.

Business license means the written authorization required by the city for any person who commences, carries on, engages in, or conducts a business, occupation, trade, or employment, as delineated in title 4 of the Code, within the city.

City manager means the city manager of the city and the city manager's designee(s).

Commercial mobile radio services or *CMRS* has the meaning given to the term "commercial mobile radio service" as defined in 47 CFR § 20.3.

Commercial mobile service has the meaning given to the term "commercial mobile service" as defined in 47 U.S.C § 332(d).

Communications facilities or *facilities* means wireless communications facilities and wireline communications facilities.

Communications service or *services* means information service and telecommunications service.

Construction completion or *installation completion* means that time and date when all facilities have been installed and all public right-of-way and properties have been restored to their former appearance and condition in a manner acceptable to the city.

Decorative streetlight pole means any streetlight pole that: (a) is made from a material other than metal; or (b) incorporates artistic design elements not typically found in standard metal streetlight poles. The term "decorative streetlight pole" includes any historically or architecturally significant or designated streetlight poles.

Director means the city departmental director of the department specifically named, or his/her designee.

Encumbrances means any public easement for streets and any and all other deeds, easements, dedications, conditions, covenants, restrictions, encumbrances and claims of title.

The Federal Communications Commission or *FCC* means the independent agency of the United States government created by federal statute to regulate interstate communications by radio, television, wire, satellite, and cable, and its predecessors and successors.

Information service has the meaning in 47 U.S.C § 153(24).

Laws mean any and all federal, state and local statutes, constitutions, ordinances, charters, resolutions, regulations, judicial decisions, rules, tariffs, administrative orders, certificates, or orders of the city or other governmental agency having joint or several jurisdiction over the parties to a master use agreement, or license authorization, including the Code of Federal Regulations (CFR), the Code, Nevada Revised Statutes (NRS) and United States Code (U.S.C.), as such laws may be amended from time to time.

License authorization means a licensed location authorization or a licensed wireline authorization.

Licensed location means a location in the right-of-way or on municipal facilities in which licensee is authorized pursuant to a fully executed use agreement and license authorization to place its communications facilities.

Licensed location authorization or *LLA* means an authorization granted by the city with respect to a licensee's construction, installation, and operation of wireless communications facilities for each specific site in the city's right-of-way or on municipal facilities. All of the terms and conditions of this title and the corresponding use agreement for a licensee shall be incorporated by reference into each LLA.

Licensed wireline authorization or *LWA* means an authorization granted by the city with respect to a licensee's construction, installation, and operation of wireline communications facilities for each specific location in the city's right-of-way or on municipal facilities. All of the terms and conditions of this title and the corresponding use agreement for a licensee shall be incorporated by reference into each LWA.

Licensee means a person who has entered into a fully executed use agreement with the city.

Licensee pole means pole(s) or similar vertical structure(s) approved by city to be installed and used by licensee in the right-of-way in accordance with this title and owned and installed by licensee for the primary purpose of physically supporting communications facilities. A licensee pole does not include a replacement municipal facility.

Master use agreement means an agreement between a person and the city that generally defines the terms and conditions which govern their relationship with respect to a licensee's wireless communications facilities and wireline communications facilities in the city's right-of-way or on municipal facilities.

Marker means a device that physically designates the location of a subsurface facility at intermittent locations along, within, or immediately above the subsurface facility and includes, without limitation, a device containing a passive antenna that can be identified with detection equipment and does not require an internal power source.

Municipal facilities means city-owned streetlight poles, decorative streetlight poles, lighting fixtures, or electroliers, including replacement poles installed by a licensee, owned by the city that are located within or immediately adjacent to the right-of-way and may refer to such facilities in the singular or plural, as appropriate to the context in which used. Municipal facilities do not include traffic signal poles, school zone flashers or any related appurtenances.

Network means all facilities and equipment, and all features, functions and capabilities provided by means of such facilities or equipment, used in the transmission, routing, or other provision of, or in connection with, a communications service in or through the city.

Person means a natural person, any form of business or social organization and any other nongovernmental legal entity, including, but not limited to, the estate of a natural person, a corporation, partnership, association, trust, or unincorporated organization. The term "person" does not include a government, governmental agency, or political subdivision of a government.

Public Utilities Commission of Nevada or *PUCN* means the Public Utilities Commission of the State of Nevada, and its predecessors and successors.

Right-of-way or *ROW* means the surface of, and the space above and below, any and all public highways, streets, roads, alleys, and avenues, as the same now or may hereafter exist within the city, excluding (as now or hereafter established within the city) (a) state highways; (b) public streets, roads, alleys, and avenues predominantly used for public freeway or expressway purposes or a city park; (c) public streets, roads, alleys, and avenues where a licensee's use is not expressly permitted by the granting instrument; and (d) city streets, roads, alleys, and avenues that are not typically open to the general public.

Standards manual or *standards* means any requirements for the design, construction, installation, operation, maintenance, condition, modification, repair, relocation or removal

of communications facilities and supplements to the provisions of this title that are prepared and made public by the department of public works as revised from time to time at the discretion of the director of public works.

Street means the surface, the air space above the surface and the area below the surface of the full width of the right-of-way, including sidewalks.

Streetlight pole shall mean any standard-design metal pole that has a mast arm for the support of a light fixture, is owned by the city, and is used for street lighting purposes. "Standard design" is defined as a pole in conformance with streetlights approved for use in the City of Henderson as shown in the Uniform Standard Drawings, Clark County Area, latest edition, or as authorized by city in a written agreement. Streetlight pole does not include traffic signal poles, school zone flashers, or any related appurtenances, nor any pole supporting a streetlight that is made from any material other than metal or any pole located in the parking lot of any city facility, park or other non-roadway facility.

Telecommunications service has the meaning given to the term "telecommunications service" in 47 U.S.C. § 153(53).

Telecommunications use agreement means an agreement between a person and the city that generally defines the terms and conditions which govern their relationship with respect to a licensee's wireline communications facilities in the city's right-of-way or on municipal facilities.

Third-party structures means poles or other structures in the ROW lawfully owned and operated by a third party(ies) and lawfully located in the ROW.

Tracer wire means a locating wire that is installed inside or immediately adjacent to a subsurface facility and is connected to a transmitter that carries a signal that can be read by a receiver above the surface of the ground for the detection of the location of the subsurface facility.

Traffic signal pole means any standard-design pole that is owned by City and is used for traffic signal or traffic control purposes, including the controller cabinet and all appurtenances related to the operation of the traffic signal system.

Use agreement means a master use agreement, telecommunications use agreement or wireless use agreement.

Wireless communications facilities means optical repeaters, wave division multiplexers, antennas, ancillary coaxial or fiber-optic cables, regular and backup power supplies, wires, radios, modems, and comparable equipment, including any appurtenant or supporting poles, structures or devices, that may be used for transmitting, processing, and receiving

wireless voice and data by means of an antenna array through which a person provides commercial mobile service, commercial mobile radio service and/or other wireless communications service.

Wireline communications facilities means (a) fiber-optic cables, connectors, amplifiers, transmitters, wires, instruments, and associated equipment, each of which is compliant with all applicable FCC regulations and is used to transmit, route, or provide a wireline communications service; (b) markers; (c) tracer wires; and (d) conduit, handholes, manholes, pedestals, cabinets, poles and similar structures commonly associated with the construction of wireline fiber-optic communications networks.

Wireless use agreement means an agreement between a person and the city that generally defines the terms and conditions which govern their relationship with respect to a licensee's wireless communications facilities in the city's right-of-way or on municipal facilities.

(Ord. No. 3928, § 2, 12-6-2022; Ord. No. 3581, § 1, 6-4-2019)

Chapter 17.02 GENERAL PROVISIONS

Sections:

17.02.010 Purpose.
17.02.020 Business license required.
17.02.030 Use agreement required.
17.02.040 Request for a use agreement.
17.02.050 License authorization required.
17.02.060 Application for a license authorization.
17.02.070 Use agreement conditions.
17.02.080 License authorization conditions.
17.02.090 Annual inspection.
17.02.100 Unauthorized communications facilities.
17.02.110 Default and cure period.

17.02.010 Purpose.

The purpose of this title of the Code is to:

A. Establish a local policy concerning right-of-way and municipal facility management for communications facilities.

B. Permit and manage reasonable access, in a nondiscriminatory manner, to right-of-way in the City of Henderson for communications facilities.

C. Manage physical capacity of the right-of-way held in public trust by the city and municipal facilities.

D. Recover public costs of permitting private use of city right-of-way and municipal facilities.

E. Ensure all providers of communications facilities within the city comply with all ordinances, standards, rules and regulations of the city.

(Ord. No. 3581, § 1, 6-4-2019)

17.02.020 Business license required.

No use agreement will be approved until an applicant obtains a business license issued by the city. The business license fee, if any, shall be due and payable in accordance with applicable provisions of title 4 of the Code.

(Ord. No. 3581, § 1, 6-4-2019)

17.02.030 Use agreement required.

No person shall be issued a license authorization to construct, install, operate, or maintain communications facilities in, over, or under any right-of-way or on a municipal facility without entering into a use agreement with the city.
(Ord. No. 3581, § 1, 6-4-2019)

17.02.040 Request for a use agreement.

The following procedures will apply to all requests for new use agreement or renewals thereof:

A. An applicant shall make a written request to the city manager for a use agreement on a form, which may be updated from time to time, that is available at the city department of public works.

B. An applicant shall pay to the city the applicable use agreement fee listed in chapter 17.03. Failure to pay the fee will cause the request to be deemed incomplete.

C. In addition to other information required by the request for a use agreement, an applicant will provide:

1. A copy of all certificates or letters of registration issued by the PUCN pertaining to applicant's activity in the right-of-way.

2. A copy of all city business licenses pertaining to applicant's activity in the city.

3. A statement that applicant will have sole ownership and control of the facilities and, if not, a list of persons other than applicant known at the time of the request that will own or control any portion of the facilities.

D. When a request is certified as complete by the department of public works, and a use agreement has been executed and delivered by applicant, the use agreement will be presented to the city manager for approval or denial. If the request is approved, the department of public works will issue a use agreement. If the request is denied, the department of public works will notify a licensee in writing.

E. The city council authorizes the city manager to approve and deny requests under this title and to execute use agreements, and amendments to the same to the extent required by law, on behalf of the city.
(Ord. No. 3928, § 3, 12-6-2022; Ord. No. 3581, § 1, 6-4-2019)

17.02.050 License authorization required.

No person shall construct, install, operate, or maintain communications facilities in, over, or under any right-of-way or on municipal facilities without obtaining a license authorization

executed by the city. A license authorization is required for each location of communications facilities. License authorizations authorize a licensee's installation of a communications facilities and are non-exclusive.
(Ord. No. 3581, § 1, 6-4-2019)

17.02.060 Application for a license authorization.

The following procedures will apply to all applications for new license authorization or renewals thereof:

A. *Application.* The department of public works shall prepare and make publicly available an application form requesting information necessary for the city to consider an application for installation of a communications facilities on municipal facilities or in right-of-way. The application form may be revised at the discretion of the director of public works.

B. *License authorization application fee.* Licensee shall pay to the city the license authorization application fee listed in chapter 17.03.

C. *License authorization application requirements.* In addition to other information required by the application for a use agreement, an applicant shall:

1. Have obtained or applied for a business license with the city.

2. Have obtained or applied for a use agreement with the city.

3. If the application is for wireless communications facilities, identify in decibels the minimum and maximum intensity of noise generated by the communications facilities.

4. Include the proposed design showing the proposed communications facilities or third-party pole, including the configuration of any proposed installation of communications facilities, the proposed location of the communications facilities or licensee pole, the structure licensee proposes to install the communications facilities on (specifically, a municipal facility, third-party structure, or licensee pole), and any other documents necessary for city to review the application or requested by city, such as a noise study for wireless communication facilities.

5. Clearly depict power, backhaul, and cable routes and connections, any proposed pavement trenching or cuts in all application materials and the method of detecting underground communication facilities.

6. If any licensee pole or communications facilities is or is proposed to be located in, on, above, or under real property not owned by city in fee, licensee (a) shall obtain and maintain all consents, permits, licenses, easements or grants that are necessary for the lawful exercise of the authorization(s) granted by city to

licensee per the Code and an executed use agreement; and (b) by using such real property for the installation, operation, maintenance, management, and removal of communications facilities or a licensee pole, represents to city that licensee has obtained and shall maintain all consents, permits, licenses, easements or grants that are necessary for the lawful exercise of the authorization(s) granted by city to licensee per the Code and an executed use agreement. If licensee believes such other consents, permits, licenses, easements or grants are not necessary, licensee shall represent to city in connection with licensee's application for a licensed location(s) that licensee's use of such real property not owned by city in fee for a licensee pole and/or communications facilities is allowed by, is consistent with, does not violate, and does not overburden city's easement for, prescriptive right for, or other right to use such real property.

7. Except as otherwise provided under this title or the Code, to the fullest extent permitted by law, requests for the installation of licensee poles or the installation of communications facilities on licensee poles will be granted only if the denial of such request would prohibit or have the effect of prohibiting telecommunications service. In the event that no municipal facilities or third-party structure is technically feasible for use, installation on licensee-owned suspension cable is not technically feasible for use, or city does not approve such an installation(s), licensee may request the installation of a licensee pole at its sole cost and expense by following the applicable procedures set forth under the Code, this title, the use agreement and the standards manual. If licensee proposes to install a licensee pole in the right-of-way and/or proposes to install any communications facilities in or on a licensee pole, licensee (a) shall obtain and maintain all consents, permits, licenses, easements or grants that are necessary for the lawful exercise of the authorization(s) granted by city to licensee per the Code, this title, the use agreement and the standards manual; and (b) represents to city in writing and demonstrates to city that the failure to approve the licensee pole in the right-of-way would prohibit or have the effect of prohibiting the provision of commercial mobile service, commercial mobile radio service, and/or communications service. Written approval of the director of public works is required for installation of any licensee poles.

D. *Minimize pavement cuts.* Licensee is hereby notified of city's desire to minimize any pavement cuts that, as determined by city in its sole discretion, significantly reduce the longevity of the public's investment in the roadway network. Any communications facilities, pole design, or installation configuration not contained within the use agreement must receive additional written approval by the city manager before it may be placed within the right-of-way. This process is separate and apart from any application licensee must submit to city in accordance with title 11 or 19 of the Code.

E. *City decision.* If the application is approved, the department of public works shall issue a license authorization. If the application is denied, the department of public works shall notify a licensee in writing.

F. *Execution by the city.* The city council authorizes the director of public works, and the director of community development and services, to sign and execute license authorizations on behalf of the city.

(Ord. No. 3928, § 4, 12-6-2022; Ord. No. 3581, § 1, 6-4-2019)

17.02.070 Use agreement conditions.

A use agreement shall incorporate all provisions of the Code, this title, the standards and the following conditions:

A. Any use agreement granted pursuant to this title shall be nonexclusive.

B. All provisions of the Code, this title, the standards manual, and a use agreement shall be binding upon the licensee, its successors, or permitted assignees.

C. A use agreement shall be construed in favor of the city and no privilege or exemption shall be inferred from the granting of any master use agreement unless it is specifically mentioned in this title or in the use agreement.

D. The granting of any use agreement pursuant to this title shall be a privilege and shall not impart to a licensee any right of property in any right-of-way or municipal facilities. Use agreements shall be construed to have granted the nonexclusive permission and authority to use specific right-of-way and municipal facilities as identified in a license authorization. In no event shall this title or any use agreement or any license authorization be construed to have granted permission or authority to use any facilities outside of the specified right-of-way and municipal facilities.

E. A licensee shall at all times during the term of the use agreement be subject to all lawful exercise of the police power by the city. This includes any and all ordinances, rules or regulations which the city has adopted or may adopt. Any conflict between the provisions of this title and any other present or future lawful exercise of city police powers shall be resolved in favor of the city police powers.

F. Any privilege claimed under this title or any use agreement shall be equal to the privilege claimed under any other wireline license or wireless license under this title or NRS Chapters 709 and 711 and shall be subordinate to any other prior lawful occupancy of the right-of-way and municipal facilities.

G. Any right or power in, or duty assigned to any officer or employee of the city by virtue of this title shall be subject to transfer by the city council to any other officer or employee of the city.

H. A use agreement shall be subject to all requirements of city ordinances, rules, regulations, standards and specifications heretofore or hereafter enacted or established to the maximum extent allowed by law.

I. A licensee shall not construct, install, operate, or maintain any communications facilities in, over, or under any city right-of-way or on municipal facilities without obtaining any and all required federal, state, and city licenses or permits.

J. A Licensee shall maintain records and allow for audits as provided in title 4 of the Code.

K. Licensee shall be solely responsible for obtaining all additional necessary right-of-way and easements, leases, licenses or approvals, either public or private, which may be necessary prior to the beginning of construction of a communications facility.

L. In the city's sole discretion, specific units of the city's municipal facilities and right-of-way may be determined by the city to be necessary for the city's exclusive existing or future use and will be unavailable for use by others.

M. Such other conditions as may be required by the city to the fullest extent permitted by law.

(Ord. No. 3581, § 1, 6-4-2019)

17.02.080 License authorization conditions.

Any license authorization executed pursuant to a valid use agreement shall incorporate all provisions of the Code, this title, all provisions and conditions of the use agreement and the standards, and the following conditions:

A. Any license authorization executed pursuant to a valid use agreement shall be nonexclusive.

B. All provisions of any license authorization executed pursuant to a valid use agreement shall be binding upon the licensee, its successors, or permitted assignees.

C. Any license authorization executed pursuant to a valid se agreement shall be construed in favor of the city and no privilege or exemption shall be inferred from the granting of any license authorization unless it is specifically mentioned in this title or in the license authorization.

D. The granting of any license authorization executed pursuant to a valid use agreement shall be a privilege and shall not impart to a licensee any right of property in any right-of-way or municipal facilities. License authorizations shall be construed to have granted the nonexclusive permission and authority to use specific right-of-way

and municipal facilities as identified in a license authorization. In no event shall any license authorization be construed to have granted permission or authority to use any facilities outside of the specified right-of-way and municipal facilities.

E. A licensee shall at all times during the term of any license authorization executed pursuant to a valid use agreement be subject to all lawful exercise of the police power by the city. This includes any and all ordinances, rules or regulations which the city has adopted or may adopt. Any conflict between the provisions of this title and any other present or future lawful exercise of city police powers shall be resolved in favor of the city police powers.

F. Any privilege claimed under a license authorization executed pursuant to a valid use agreement shall be equal to the privilege claimed under any other license authorization under this title or NRS Chapters 709 and 711 and shall be subordinate to any other prior lawful occupancy of the right-of-way and municipal facilities.

G. Any license authorization executed pursuant to a valid use agreement shall be subject to all requirements of city ordinances, rules, regulations, standards and specifications heretofore or hereafter enacted or established to the maximum extent allowed by law.

H. Any and all rights granted to licensee under the license authorization, a use agreement, the standards manual and the Code are exercisable at licensee's sole cost and expense.

I. Any and all rights expressly or impliedly granted to licensee under a license authorization shall be subject and subordinate to (1) the continuing right of city to use, and to allow any other person or persons to use, any and all parts of the right-of-way or municipal facilities, exclusively or concurrently with any other person or persons, and (2) the encumbrances which may affect the right-of-way or municipal facilities now or at any time, including, without limitation, any encumbrances granted, created or allowed by city at any time.

J. Such other conditions as may be required by the city acting through the department of public works to the fullest extent permitted by law.

(Ord. No. 3581, § 1, 6-4-2019)

17.02.090 Annual inspection.

The city will at intervals of not more often than once every year, unless there is a reasonable basis for additional inspections, perform inspections of any of licensee's communications facilities licensed under a license authorization for the purpose of verifying that licensee's installation that is installed is the installation approved in the license

authorization. If communications facilities are found to be in noncompliance, licensee shall be in material breach and such noncompliance shall constitute an event of default subject to section 17.02.110.
(Ord. No. 3581, § 1, 6-4-2019)

17.02.100 Unauthorized communications facilities.

If, during the term of a licensee's use agreement, the city discovers unauthorized communications facilities or equipment placed on municipal facilities or within right-of-way which are attributable to a person, the fee listed in chapter 17.03 may be assessed on a per unit basis and the procedures listed below will be followed.

A. *Notice.* The city shall provide specific written notice of each violation discovered.

B. *Back license authorization fee and penalties.* Licensee shall pay back license authorization fees for all unauthorized communications facilities for a period of one year, or since the date of the last inventory of a licensee's communications facilities (whichever period is shortest), at the license authorization fees in effect during such periods. If licensee is found to have: (1) repeated instances of unauthorized communications facilities or equipment demonstrating a deliberate or consistent pattern of unauthorized communications facilities; or (2) a significant number of poles or amount of cable or conduit (comprising five percent or more of licensee's total license authorizations in accordance with this title) with unauthorized facilities and equipment, licensee shall be in material breach and such unauthorized facilities and equipment shall constitute an event of default subject to section 17.02.110.

C. *Application required.* Licensee shall submit, as applicable, a use agreement application and a new license authorization application in accordance with this title within 30 days of receipt of notice from the city of any unauthorized communications facilities or equipment, or such longer time as mutually agreed to by the parties after an inventory. If an application is denied, licensee shall have 30 days to remove the unauthorized communications facilities and equipment. In the event licensee fails to submit an application within 30 days, or such longer time as mutually agreed to by the parties after an inspection, or fails to remove the unauthorized facilities and equipment within 30 days, licensee shall be considered to be in material breach and such unauthorized facilities and equipment shall constitute an event of default subject to section 17.02.110.

D. *Existing communications facilities.* No later than six months after the effective date of this title, a licensee with communications facilities or equipment which were placed on municipal facilities or within right-of-way prior to the effectiveness of this title, shall provide the city with a list of all such known facilities. A licensee shall notify the city of any additional existing facilities within a reasonable time as licensee

becomes aware of such facilities during the course of licensee's normal operations, but no less than semiannually. Licensee shall comply with the foregoing application procedures in this section 17.02.100. The amount of any back license authorization fees for existing facilities will be the fees for all such facilities for a period of one year, or since the effective date of this title (whichever period is shortest), at the license authorization fees in effect during such periods.

E. *No ratification of unauthorized use.* No act or failure to act by the city with regard to any unauthorized communications facilities or equipment shall be deemed as ratification of the unauthorized use. Unless the parties agree otherwise, a license for previously unauthorized communications facilities or equipment shall not constitute a waiver by the city of any of its right or privileges under the Code or of an agreement or license authorization or otherwise, and licensee shall remain subject to all obligations and liabilities arising out of or relating to its unauthorized use.

(Ord. No. 3581, § 1, 6-4-2019)

17.02.110 Default and cure period.

A. *Default and notification.* Except for causes beyond the reasonable control of a licensee, if licensee fails to comply with any of the material conditions and obligations imposed hereunder, and if such failure continues for more than 30 days after written demand from the city to commence the correction of such noncompliance, the city shall have the right to revoke and terminate a licensee's use agreement in addition to any other right or remedies set forth in a licensee's use agreement or provided by law.

B. *Cure period.* If the nature of the violation is such that it cannot be fully cured within 30 days due to circumstances not under a licensee's control, the period of time in which a licensee must cure the violation may be extended by the city manager in writing for such additional time reasonably necessary to complete the cure, provided that: (1) a licensee has promptly begun to cure; and (2) a licensee is diligently pursuing its efforts to cure in the city manager's reasonable judgment.

C. *Denial of subsequent permits.* Whenever a licensee is in default in any of its obligations under its use agreement, the standards manual, a license authorization or this title, the city may deny further barricade, encroachment, excavation or similar permits until such time as a licensee cures all of its defaults.

(Ord. No. 3581, § 1, 6-4-2019)

Chapter 17.03 FEES

Sections:

17.03.010 Compensation.
17.03.020 Payment.
17.03.030 Delinquent payment.
17.03.040 Indemnification.
17.03.050 Incentive agreements.

17.03.010 Compensation.

A licensee shall be solely responsible for the payment to the city of all lawful fees in connection with a licensee's performance under its use agreement and license authorizations, including those set forth below, except where prohibited by law. To the fullest extent permitted by law, the city manager may adjust the fees specified under this title from time to time provided that the adjusted amount(s) must be made publicly available and may not exceed the amounts specified hereunder.

A. *Business license fees.* All business licenses shall be maintained and fees paid in accordance with title 4 of the Code at all times during the use of the right-of-way or municipal facilities for communications facilities.

B. *Licensed location authorization fees.* A fee shall be paid for each wireless communications facility contained in a licensed location authorization. The annual amount due for each wireless communications facility shall be (1) the amount established and made publicly available by the city manager, which amount may not exceed $2,400.00 per location; and (2) for each licensed location authorization that authorizes installation of a licensee pole, the amount established and made publicly available by the city manager, which amount may not exceed $2,400.00 for each licensee pole.

C. *Licensed wireline authorization fee.* A fee shall be paid for the communications facilities contained in a licensed wireline authorization. The annual amount due for wireline communications facilities shall be as follows:

1. For each licensed wireline authorization that authorizes use of a municipal facility, the amount established and made publicly available by the city manager, which amount may not exceed $2.50 per linear foot for use of a municipal facility that is city-owned cable.

2. For each licensed wireline authorization that authorizes use of a municipal facility, the amount established and made publicly available by the city manager, which amount may not exceed $1.50 per linear foot for use of a municipal facility that is city-owned conduit.

3. For each licensed wireline authorization that authorizes use of a municipal facility, the amount established and made publicly available by the city manager, which amount may not exceed $1.50 per linear foot for use of a municipal facility that is not city-owned conduit or cable.

4. For each licensed wireline authorization that authorizes installation of a licensee pole, the amount established and made publicly available by the city manager, which amount may not exceed $2,400.00 for each licensee pole.

D. *Commencement of authorization fees.* The authorization fee commencement date shall be the execution date of each license authorization.

E. *Initial fee.* The first annual authorization fee is due the first day of the month following the commencement date as determined in section 17.03.010(D). Subsequent annual fees shall be due the first day of July. If city issues a new license authorization during a payment period, city will prorate the amount for that authorization for the applicable period by taking the total number of days between the effective date of that authorization and the end of the period, multiplying that total number of days by the amount of the fee and dividing by 365 in the case of payments due on an annual basis.

F. *Annual fee adjustment.* Effective on July 1, 2020, and continuing annually thereafter, the authorization fee shall be increased by two and one-half percent of the amount of the authorization fee for the immediately preceding year, rounded to the nearest whole dollar.

G. *Use agreement fee.* The use agreement fee for and due at the time of each application for a use agreement shall be $1,300.00.

H. *License authorization application fee.* The application fee for and due at the time of each application for an LLA or LWA shall be $600.00.

I. *Work performed by city on behalf of a licensee.* All work performed by the city when a licensee fails to perform said work in a timely manner, as required by the Code, the standards, a use agreement or license authorization, may be subject to an additional 25 percent administrative fee of the actual costs of the work performed by the city.

J. *Unauthorized facilities fee.* Up to $500.00 may be assessed per unauthorized unit of communications facilities or equipment that was not authorized by a license authorization. The placement of any such unauthorized unit is a violation of this title. With respect to violations that are continuous with respect to time, each day that the violation continues is a separate violation. With respect to violations that are not continuous with respect to time, each act is a separate violation.

(Ord. No. 3928, § 5, 12-6-2022; Ord. No. 3581, § 1, 6-4-2019)

17.03.020 Payment.

All fees and amounts due under the provisions of this title, a use agreement, or license authorization shall be paid electronically or by check made payable to the City of Henderson and mailed or delivered to the finance department, accounts receivable. Each payment, either electronically or manually tendered, shall include a description of the reason for the payment. Any payment made for a specific site shall include the city's Energov (as modified or replaced from time to time) identification number for that site. The place and time of payment may be changed at any time by city upon 30 days' written notice to a licensee. Mailed payments shall be deemed paid upon the date such payment is officially postmarked by the United States Postal Service. If postmarks are illegible to read, the payment shall be deemed paid upon actual receipt by the city's finance department. A licensee assumes all risk of loss and responsibility for late payment charges if payments are made by mail.
(Ord. No. 3581, § 1, 6-4-2019)

17.03.030 Delinquent payment.

If a licensee fails to pay any amounts due pursuant to the provisions of this title, the standards, a use agreement, or license authorization, within 45 days from the due date, a licensee will pay, in addition to the unpaid fees, a sum of money equal to two percent of the amount due for each month and/or fraction thereof during which the payment is due and unpaid. The remedy provisions set forth in this section are not exclusive, and do not preclude the city manager from pursuing any other or additional remedy if payments become overdue by more than 60 days.
(Ord. No. 3581, § 1, 6-4-2019)

17.03.040 Indemnification.

A licensee shall indemnify, defend and hold harmless the city, its officers, agents, volunteers, and employees, against and from any and all liability, loss, damage, claims, fines, demands, causes of action, costs, expenses, and judgments of whatsoever nature, including but not limited to reasonable costs of investigation, reasonable attorneys' fees and expenses, all reasonable expert witness fees and expenses, and all court or arbitration or other alternative dispute resolution costs which result from injury to or death of any persons whomsoever, and/or against and from damage to or loss or destruction of property whatsoever when such injury, death, loss, destruction or damage is due to or arises in connection with or as a result of any work done by licensee, its contractors, agents and subcontractors in connection with the design, construction installation, operation, maintenance and condition of the network and communications facilities and/or arises out of or in

connection with licensee's, or its contractors' and subcontractors' performance or failure to comply with the requirements of this title, the standards manual, and licensee's use agreement and any license authorization executed pursuant thereto.
(Ord. No. 3581, § 1, 6-4-2019)

17.03.050 Incentive agreements.

The city manager is authorized to negotiate agreements with prospective applicants and licensees to incentivize the development of communications facilities in a manner which is in the city's interest or in locations determined by the city, in the city's sole discretion, to be an area that is underserved or lacking reliable telecommunications or information services for use by public, commercial or residential customers. The agreements negotiated and executed pursuant to this section may alter the compensation and fees contained in this chapter.
(Ord. No. 3581, § 1, 6-4-2019)

Title 18

COMMUNITY DEVELOPMENT FEES

Chapters:

18.01 Community Development Fee Schedules

Chapter 18.01 COMMUNITY DEVELOPMENT FEE SCHEDULES

Sections:

18.01.010 Annual increase in fees.
18.01.020 Supersession of old fees.
18.01.030 Fees for applications and services.

18.01.010 Annual increase in fees.

These fees shall be adjusted annually based upon the Consumer Price Index for the period ending the preceding March 31, with said adjusted fees to be effective the following June 30, the first such annual adjustment to be effective July 1, 2001.
(Ord. 1966, § 1, 1999)

18.01.020 Supersession of old fees.

Whenever any such list or fee schedule is promulgated or updated pursuant to section 18.01.010, such list or schedule shall by implication supersede any previous permit or inspection fee whether set forth in a previous fee list or schedule or specific ordinance in title 18 of this Code.
(Ord. 1966, § 2, 1999)

18.01.030 Fees for applications and services.

A. *Schedule of mapping application fees.* The fees for all mapping applications filed with the community development department pursuant to title 19 shall be computed as indicated below.

1. *Boundary line adjustment.* See chapter 15.02, Development Services Schedule of Fees.

2. *Reversionary map.* See chapter 15.02, Development Services Schedule of Fees.

3. *Parcel map.* See chapter 15.02, Development Services Schedule of Fees.

4. *Tentative map.* The application fee for a tentative map shall be $661.00 plus the notification fee required pursuant to 18.01.030(C)(1).

5. *Final map.* See chapter 15.02, Development Services Schedule of Fees.

B. *Fee schedule for other community development applications.*

1. *Administrative adjustment.* The application fee for an administrative adjustment shall be $150.00.

2. *Conditional use permit.* The permit for a conditional use permit shall be $500.00, plus the notification fee required pursuant to 18.01.030(C)(1).

3. *Conditional use permit, marijuana establishment.* The non-refundable fee for a conditional use permit shall be $10,000.00, plus the notification fee required pursuant to subsection 18.01.030(C)(1).

4. *Conditional use permit, medical marijuana dispensary establishment.* The non-refundable fee for a conditional use permit shall be $10,000.00, plus the notification fee required pursuant to 18.01.030(C)(1).

5. *Conditional use permit, retail marijuana establishment.* The non-refundable fee for a conditional use permit shall be $10,000.00, plus the notification fee required pursuant to subsection 18.01.030(C)(1).

6. *Comprehensive plan amendment.* The application fee for a comprehensive plan amendment shall be $675.00, plus the notification fee required pursuant to 18.01.030(C)(1).

7. *Design review.* The application fee for a design review shall be $250.00.

8. *Extension of time.* The application fee for an extension of time for any community development application shall be $250.00, plus the notification fee required pursuant to 18.01.030(C)(1), if applicable.

9. *Extension of time, marijuana establishment.* The non-refundable fee for an extension of time for a marijuana establishment application shall be $5,000.00, plus the notification fee required pursuant to 18.01.030(C)(1), if applicable.

10. *Home occupation.* The application fee for a home occupation shall be $30.00.

11. *Master sign plan.* The application fee for a master sign plan shall be $250.00.

12. *Master streets and highway amendment.* The application fee for a master streets and highway amendment shall be $550.00, plus the notification fee required pursuant to 18.01.030(C)(1), if applicable.

13. *Temporary use permit.* The application fee for a temporary use permit shall be $100.00.

14. *Vacation.* The application fee for a vacation shall be $529.00.

15. *Variance.* The application fee for a variance shall be $375.00, plus the notification fee required pursuant to 18.01.030(C)(1).

16. *Waiver of standards.* The application fee for a waiver of standards shall be $260.00 plus the notification fee required pursuant to subsection 18.01.030(C)(1).

17. *Zone change.* The application fee for a zone change shall be $675.00, plus the notification fee required pursuant to 18.01.030(C)(1).

18. *Development agreements.* The application fee for a development agreement shall be $2,000.00, plus $57.00 per acre 0—100 acres; $45.00 per acre 101—600 acres; $38.00 per acre 601—1,000 acres; $26.00 per acre 1,001—2,000 acres; $15.00 per acre 2,001+ acres), plus the notification fee required pursuant to 18.01.030(C)(1). In addition to the above referenced fees, the city may, through adoption of the development agreement, require the applicant to pay additional costs incurred by city in the review and preparation of the development agreement. Major modifications to a development agreement shall be the same as the original fee; minor modifications to the development agreement shall be set in the approved development agreement.

C. *Other community development fees.*

1. *Notification fee.* Any application filed with the community development and services department that is required to have public notification shall be assessed a $300.00 notification fee, and any required notification over 1,000 notices shall be assessed an additional $1.00 fee for each notification over 1,000.

The community development and services director may increase the notification fee without city council approval to match any increases of costs in postal service mailing, sign posting fee and/or newspaper publications.

2. *Zoning plan check.* See chapter 15.02, Development Services Schedule of Fees.

3. *Slope analysis.* The fee for each slope analysis performed by community development and services staff shall be $60.00.

4. *Distance separation analysis map.* The fee for each distance separation analysis map shall be $60.00.

5. *Marijuana establishment separation analysis map.* The non-refundable fee for each marijuana establishment separation analysis map shall be $180.00.

6. *Zoning verification letter.* The fee for each zoning verification letter completed by community development and services staff shall be $100.00.

7. *Technology fee.* All permit, plan review, and application fees identified in section 18.01.030 shall be subject to an additional two percent technology fee, minimum fee $2.00.

8. *Records management fee.* All permit, plan review, and application fees identified in section 18.01.030 shall be subject to an additional two percent records management fee, minimum fee $2.00.

9. *Street name change.* See chapter 15.02, Development Services Schedule of Fees.

10. *Address number change.* See chapter 15.02, Development Services Schedule of Fees.

11. *Military recognition banner.* The application fee for the Military Recognition Banner Program shall be $150.00.

12. *Hillside restoration bond fee.* The bond fee for hillside restoration is for those properties with the hillside overlay designation. The fee shall be a maximum of $2.25 per square foot or as approved by the director of community development and services through a cost analysis as part of the hillside restoration plan. The amount is calculated based on the area disturbed within the development. This fee is assessed at the civil improvement plan process.

13. *Landscape bond fee.* The bond fee is for common open space areas within project development boundaries. The fees are $5.00 per square foot for areas with no active amenities; and $6.00 per square foot for areas with active amenities. This fee is assessed at the civil improvement plan process.

14. *Short-term vacation rental registration.* The registration fee for a short-term vacation rental shall be $820.00. This fee shall be paid on an annual basis from the date the registration is approved by the City of Henderson.

(Ord. No. 3590, § 1, 7-16-2019; Ord. No. 3436, § 1, 9-5-2017; Ord. No. 3337, § 1, 4-19-2016; Ord. No. 3227, § 1, 10-21-2014; Ord. No. 3187, § 1, 7-1-2014; Ord. No. 3001, § 1, 4-9-2013; Ord. No. 2917, § 1, 5-3-2011; Ord. No. 2856, § 1, 6-1-2010; Ord. 2731, § 1, 2008; Ord. 2295, § 2, 2004; Ord. 1966, § 3, 1999)

HENDERSON, NEVADA

MUNICIPAL CODE

VOLUME II

A Codification of the General Ordinances of Henderson, Nevada

---

**Beginning with Supp. No. 67,
Supplemented by Municipal Code Corporation**

Republished 2010

---

municode
POWERED BY CIVICPLUS

info@municode.com | 800.262.2633 | www.municode.com

P.O. Box 2235 Tallahassee, FL 32316

PREFACE

The Henderson, Nevada Municipal Code, originally published by Book Publishing Company, has been kept current by regular supplementation by Municipal Code Corporation, its successor in interest.

During original codification, the ordinances were compiled, edited and indexed by the editorial staff of Book Publishing Company under the direction of Monte V. Morris, City Attorney.

This 2010 republication includes all amendatory legislation through Ord. No. 2881, adopted November 2, 2010, and was accomplished under the supervision of Beth Tattershall, Editor.

The code is organized by subject matter under an expandable three-factor decimal numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the title, chapter, and section. Thus, Section 2.12.040 is Section .040, located in Chapter 2.12 of Title 2. In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

In parentheses following each section is a legislative history identifying the specific sources for the provisions of that section. This legislative history is complemented by an ordinance disposition table, following the text of the code, listing by number all ordinances, their subjects, and where they appear in the codification.

A subject-matter index, with complete cross-referencing, locates specific code provisions by individual section numbers.

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310
800-262-2633

HOW TO USE YOUR CODE

This code is organized to make the laws of the city as accessible as possible to city officials, city employees and private citizens. Please take a moment to familiarize yourself with some of the important elements of this code.

Numbering System

The numbering system is the backbone of a Code of Ordinances; Municipal Code Corporation uses a unique and versatile numbering structure that allows for easy expansion and amendment of this Code. It is based on three tiers, beginning with title, then chapter, and ending with section. Each part is represented in the code section number. For example, Section 2.04.010 is Section .010, in Chapter 2.04 of Title 2.

Title.

A title is a broad category under which ordinances on a related subject are compiled. This code contains about 15 to 20 titles. For example, the first title is Title 1, General Provisions, which may contain ordinances about the general penalty, code adoption and definitions. The titles in this code are separated by tabbed divider pages for quick reference. Some titles are **Reserved** for later use.

Chapter.

Chapters deal with more specific subjects, and are often derived from one ordinance. All of the chapters on a related subject are grouped in one title. The chapters are numbered so that new chapters which should logically be placed near certain existing chapters can be added at a later time without renumbering existing material. For example, Chapter 2.06, City Manager, can be added between 2.04, City Council, and Chapter 2.08, City Attorney.

Section.

Each section of the code contains substantive ordinance material. The sections are numbered by "tens" to allow for expansion of the code without renumbering.

Tables of Contents

There are many tables of contents in this code to assist in locating specific information. At the beginning of the code is the main table of contents listing each title. In addition, each title and chapter has its own table of contents listing the chapters and sections, respectively.

Ordinance History Note

At the end of each code section, you will find an "ordinance history note," which lists the underlying ordinances for that section. The ordinances are listed by number, section (if applicable) and year. (Example: (Ord. 272, § 1, 1992).)

Statutory References

The statutory references direct the code user to those portions of the state statutes that are applicable to the laws of the municipality. As the statutes are revised, these references will be updated.

Cross-Reference Table

When a code is based on an earlier codification, the cross-reference table will help users find older or "prior" code references in the new code. The cross-reference table is located near the end of the code, under the tabbed divider "Tables." This table lists the prior code section in the column labeled "Prior Code Section" and the new code section in the column labeled "Herein."

Ordinance List and Disposition Table

To find a specific ordinance in the code, turn to the section called "Tables" for the Ordinance List and Disposition Table. This very useful table tells you the status of every ordinance reviewed for inclusion in the code. The table is organized by ordinance number and provides a brief description and the disposition of the ordinance. If the ordinance is codified, the chapter (or chapters) will be indicated. (Example: (2.04, 6.12, 9.04).) If the ordinance is of a temporary nature or deals with subjects not normally codified, such as budgets, taxes, annexations or rezones, the disposition will be "(Special)." If the ordinance is for some reason omitted from the code, usually at the direction of the municipality, the disposition will be "(Not codified)." Other dispositions sometimes used are "(Tabled)," "(Pending)," "(Number Not Used)" or "(Missing)."

Index

If you are not certain where to look for a particular subject in this code, start with the index. This is an alphabetical multi-tier subject index which

uses section numbers as the reference, and cross-references where necessary. Look for the main heading of the subject you need, then the appropriate subheadings:

BUSINESS LICENSE

See also BUSINESS TAX
Fee 5.04.030
Required when 5.04.010

The index will be updated as necessary when the code text is amended.

Insertion Guide

Each supplement to the new code will be accompanied by an Insertion Guide. This guide will tell the code user the date of the most recent supplement and the last ordinance contained in that supplement. It will then list the pages that must be pulled from the code and the new pages that must be inserted. Following these instructions carefully will assure that the code is kept accurate and current. Removed pages should be kept for future reference.

Page Numbers

When originally published, this code was numbered with consecutive page numbers. As it is amended, new material may require the insertion of new pages that are numbered with hyphens. (Example: 31, 32, 32-1.) Backs of pages that are blank (in codes that are printed double-sided) are left unnumbered but the number is "reserved" for later use.

Electronic Submission

In the interests of accuracy and speed, we encourage you to submit your ordinances electronically if at all possible. We can accept most any file format, including Word, WordPerfect or text files. If you have a choice, we prefer Word, any version. You can send files to us as an e-mail attachment, by FTP, on a diskette or CD-ROM. Electronic files enable us not only to get you your code more quickly but also ensure that it is error-free. Our e-mail address is: **ords@municode.com**.

For hard copy, send two copies of all ordinances passed to:

Municipal Code Corporation
P.O. Box 2235
Tallahassee, FL 32316

Customer Service

If you have any questions about this code or our services, please contact Municipal Code Corporation at 1-800-262-2633 or:

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310

TABLE OF CONTENTS

Page

Preface v

How to Use Your Code vii

Supplement History Table ..... (SH) 1

VOLUME I

HENDERSON CITY CHARTER

CHAPTER 266, STATUTES OF NEVADA 1971

Charter ..... (C) 1

Art. I. Incorporation of City; General Powers; Boundaries; Wards and Annexations; City Offices ... (C) 5
Art. II. Legislative Department ..... (C) 11
Art. III. Executive Department ..... (C) 24
Art. IV. Judicial Department ..... (C) 26
Art. V. Elections ..... (C) 28
Art. VI. Local Improvements ..... (C) 32
Art. VII. Local Bonds and Franchises ..... (C) 33
Art. VIIA. Trusts for Furtherance of Public Functions (C) 34
Art. VIII. Revenue ..... (C) 39
Art. IX. Civil Service ..... (C) 39
Art. X. Miscellaneous Provisions ..... (C) 40

HENDERSON MUNICIPAL CODE

Title

1. General Provisions ..... (1) 1
1.01 Reserved ..... (1.01) 3
1.02 Establishment and Effect of Code ..... (1.02) 5
1.03 Definitions and Rules of Construction ..... (1.03) 7
1.04 Citations for Violations ..... (1.04) 13
1.05 Penalties and Remedies for Code Violations ... (1.05) 15

2. Administration and Personnel ..... (2) 1
2.01. Council Salaries ..... (2.01) 3
2.04. Council Meetings ..... (2.04) 5
2.05. Municipal Court Judge Salary ..... (2.05) 9
2.06. Municipal Court ..... (2.06) 11
2.08. Elections ..... (2.08) 13

Title Page

2.10. City Manager . . . . . (2.10) 16.1
2.16. Reserved . . . . . (2.16) 17
2.18. Reserved . . . . . (2.18) 19
2.20. Reserved . . . . . (2.20) 21
2.21. Reserved . . . . . (2.21) 23
2.22. Reserved . . . . . (2.22) 25
2.24. Emergency Management . . . . . (2.24) 27
2.27. Parks and Recreation . . . . . (2.27) 36.1
2.29. Ambulance Transportation Fees . . . . . (2.29) 37
2.34. Administrative Policies . . . . . (2.34) 39
2.40. Ethical Standards for Public Servants . . . . . (2.40) 41
2.42. Reserved . . . . . (2.42) 49
2.43. City Audit Function . . . . . (2.43) 50.1
2.44. City Clerk: Additional Duties and Authorizations (2.44) 51
2.47. Records Management . . . . . (2.47) 53
2.48. Reserved . . . . . (2.48) 57
2.50. City Boards and Commissions . . . . . (2.50) 59
2.52. Classification and Salary Schedule . . . . . (2.52) 63
2.56. Reserved . . . . . (2.56) 65
2.58. Reserved . . . . . (2.58) 67
2.60. Reserved . . . . . (2.60) 69
2.65. Insurance . . . . . (2.65) 71
2.70. Reserved . . . . . (2.70) 73
2.75. Reserved . . . . . (2.75) 75
2.80. Reserved . . . . . (2.80) 77
2.85. Reserved . . . . . (2.85) 81
2.90. Reserved . . . . . (2.90) 83
2.95. Reserved . . . . . (2.95) 85
2.100. Registration and Regulation of Lobbyists . . . . . (2.100) 86.3
2.110. Reserved . . . . . (2.110) 87

3. (Reserved) . . . . . (3) 1

4. Business Regulations and Licenses . . . . . (4) 1
4.03. Background Investigation and Fees . . . . . (4.03) 3
4.04. General Business License Provisions . . . . . (4.04) 7
4.05. Business License Fee Schedules . . . . . (4.05) 33
4.06. Policy and Procedure Show Cause, License Suspension, Limitation, Revocation . . . . . (4.06) 56.17
4.07. Alternative to Criminal Prosecution . . . . . (4.07) 56.31
4.08. Auctions and Auctioneers . . . . . (4.08) 57
4.12. Door-to-Door Solicitors, Peddlers and Canvassers . . . . . (4.12) 67
4.18. Alarm Systems . . . . . (4.18) 75
4.26. Reserved . . . . . (4.26) 89
4.30. Reserved . . . . . (4.30) 141

Title Page

4.32. Gambling—Regulations and Licenses ..... (4.32) 147
4.36. Liquor—Regulations and Licenses ..... (4.36) 163
4.48. Transient Lodging and Gaming Taxes ..... (4.48) 189
4.60. Teenage Dancehalls—Nightclubs ..... (4.60) 197
4.64. Pawnbrokers ..... (4.64) 205
4.68. Secondhand Dealers ..... (4.68) 213
4.72. Mobile Food Vendors ..... (4.72) 225
4.74. Reserved ..... (4.74) 231
4.75. Sidewalk and Open-Air Vendors.....(4.75) 232.1
4.80. Emergency Medical Services ..... (4.80) 237
4.84. Massage Establishments and Independent Massage Therapists .....(4.84) 266.1
4.85. Reflexology .....(4.85) 266.19
4.98. Sale and Display of Narcotic and Other Paraphernalia ..... (4.98) 267
4.100. Reserved ..... (4.100) 269
4.101. Reserved ..... (4.101) 279
4.102. Video Rental Stores ..... (4.102) 297
4.110. Sexually Oriented Businesses ..... (4.110) 299
4.115 Reserved ..... (4.115) 319
4.116 Medical Marijuana Regulations and Licenses.. (4.116) 321
4.118 Retail Marijuana Regulations and Licenses.... (4.118) 347

5. Health and Sanitation ..... (5) 1
5.04. Litter ..... (5.04) 3
5.17. Solid Waste Management..... (5.17) 7
5.20. Reserved ..... (5.20) 37
5.24. Reserved ..... (5.24) 39
5.28. Trees and Plants ..... (5.28) 53

6. Civil Service Rules..... (6) 1
6.01. General Provisions ..... (6.01) 3
6.02. Civil Service Board ..... (6.02) 9
6.03. Job Descriptions and Compensation ..... (6.03) 13
6.04. Recruitment, Assessment and Appointment.... (6.04) 15
6.05. Employment Actions ..... (6.05) 23
6.06. Performance Expectations ..... (6.06) 27
6.07. Disciplinary Actions ..... (6.07) 31
6.08. Appeals to the Civil Service Board..... (6.08) 39
6.09. Glossary ..... (6.09) 45

7. Animals ..... (7) 1
7.01. Definitions ..... (7.01) 3
7.02. Generally; Powers of Animal Protection Services ..... (7.02) 17
7.04. Pet Licensing and Permits; Fees; Appeal Process ..... (7.04) 21

Title Page

7.06. Pets General Welfare; Neglect . . . . . (7.06) 35
7.08. Nuisance. . . . . (7.08) 45
7.10. Mandatory Spaying and Neutering of Animals. . (7.10) 49
7.15. Managed Care of Community Cats . . . . . (7.15) 53
7.20. Dangerous Animals. . . . . (7.20) 59
7.25 Vicious Animals . . . . . (7.25) 67
7.30. Impoundment . . . . . (7.30) 71
7.40. Wild and Exotic Animals; Reptiles; Non-Domesticated Companion Animals; Animal Exhibitors . (7.40) 77
7.50. Rabies . . . . . (7.50) 83
7.60. Animal Handler. . . . . (7.60) 87
7.65 Mobile Animal Business . . . . . (7.65) 91
7.70. Animal Establishment. . . . . (7.70) 95
7.75. Commercial Animal Establishment . . . . . (7.75) 107
7.80. Retailers and Dealers. . . . . (7.80) 113
7.90. Enforcement Provisions. . . . . (7.90) 117

8. Public Peace and Safety . . . . . (8) 1
8.01. Police Services Fees . . . . . (8.01) 3
8.02. Crimes Against Public Peace. . . . . (8.02) 5
8.03. Reserved . . . . . (8.03) 7
8.04. Laser Pointers. . . . . (8.04) 9
8.07. Reserved . . . . . (8.07) 11
8.08. Restrictions and Curfew for Minors . . . . . (8.08) 13
8.09. Skating Where Prohibited . . . . . (8.09) 19
8.10. Special Events . . . . . (8.10) 21
8.11. Parade and Public Assembly . . . . . (8.11) 33
8.12. Contributing to Delinquency of Minors . . . . . (8.12) 47
8.28. Hotel Registers. . . . . (8.28) 49
8.32. Dangerous Fireworks . . . . . (8.32) 51
8.36. Fires . . . . . (8.36) 53
8.37. Camping and Similar Activities . . . . . (8.37) 55
8.38. Reserved . . . . . (8.38) 59
8.40. Liquor Violations. . . . . (8.40) 61
8.49. Reserved . . . . . (8.49) 63
8.60. Prostitution and Indecent Conduct. . . . . (8.60) 65
8.64. Reserved . . . . . (8.64) 71
8.68. Reserved . . . . . (8.68) 73
8.72. Reserved . . . . . (8.72) 75
8.76. Reserved . . . . . (8.76) 77
8.84. Noise Control . . . . . (8.84) 79
8.85. Graffiti . . . . . (8.85) 83
8.90. Stink Bombs . . . . . (8.90) 87
8.94. Aggressive Solicitation. . . . . (8.94) 89
8.98. Weapons and Missiles . . . . . (8.98) 93

Title Page

8.99. Reserved ..... (8.99) 97

9. (Reserved) ..... (9) 1

10. Vehicles and Traffic ..... (10) 1
10.02. Nevada Traffic Manual Adopted ..... (10.02) 3
10.04. Reserved ..... (10.04) 5
10.06. Parking Regulations Adopted ..... (10.06) 7
10.08. Definitions ..... (10.08) 9
10.12. Reserved ..... (10.12) 11
10.16. Enforcement, Obedience and Effect ..... (10.16) 13
10.18. Reserved ..... (10.18) 19
10.20. Traffic Control Devices ..... (10.20) 31
10.23. Reserved ..... (10.23) 33
10.24. Speed Regulations ..... (10.24) 35
10.28. Reckless and Negligent Driving ..... (10.28) 45
10.32. Reserved ..... (10.32) 47
10.34. Charitable Solicitations While Standing on Median Strip or Sidewalk ..... (10.34) 49
10.36. Intersections ..... (10.36) 53
10.40. Turning, Starting and Stopping—Signals ..... (10.40) 55
10.44. Miscellaneous Driving Rules ..... (10.44) 57
10.48. Pedestrians' Rights and Duties ..... (10.48) 59
10.54. Reserved ..... (10.54) 75
10.58. Off-Road Use of Motor Vehicles ..... (10.58) 77
10.59. Excessive Vehicle Noises ..... (10.59) 79
10.60. Truck Routes ..... (10.60) 81
10.62. Operation of Golf Carts on Streets ..... (10.62) 87
10.64. Penalties and Procedure on Arrest ..... (10.64) 89

11. Streets and Sidewalks ..... (11) 1
11.01. Standard Specifications for Public Improvements ..... (11.01) 3
11.02. Construction and Excavation Within Right-of-Way ..... (11.02) 5
11.03. Obstructions ..... (11.03) 9
11.04. Barricades ..... (11.04) 13
11.05. Sidewalks and Right-of-Way ..... (11.05) 15
11.06. Construction, Maintenance and Repair of Sidewalks, Transition Strips, and Medians ..... (11.06) 19
11.07. Fees—Authorization and Payment ..... (11.07) 25
11.08. Fees for Closure of Right-of-Way ..... (11.08) 27
11.09. Penalty for Violation of Title ..... (11.09) 29
11.10. Bonding ..... (11.10) 35

12. (Reserved) ..... (12) 1

Title Page

13. Stormwater Regulations ..... (13) 1
13.04. Stormwater Regulations ..... (13.04) 3

14. Utility Services ..... (14) 1
14.01. Definitions ..... (14.01) 3
14.02. Water Commitment and Allocation Regulations (14.02) 11
14.03. Water Regulations..... (14.03) 19
14.04. Wastewater Regulations..... (14.04) 29
14.05. Reclaimed Water Regulations..... (14.05) 39
14.06. Raw Water Regulations..... (14.06) 47
14.08. Cross-Connection Control Regulations ..... (14.08) 51
14.09. Pretreatment Regulations..... (14.09) 57
14.12. Electricity and Natural Gas Utilities..... (14.12) 75
14.14. Conservation..... (14.14) 77
14.16. Refunding Regulations ..... (14.16) 87
14.17. Billing Regulations ..... (14.17) 93
14.18. Fees, Rates and Charges ..... (14.18) 99
14.21. Compliance..... (14.21) 115

15. Buildings and Construction ..... (15) 1
15.01. Building and Fire Safety Administrative Code of Henderson, Nevada..... (15.01) 3
15.02. Development Services Schedule of Fees..... (15.02) 73
15.08. Building Code..... (15.08) 75
15.09. Residential Building Code ..... (15.09) 79
15.10. Uniform Code for Dangerous Buildings Abatement..... (15.10) 81
15.11. Existing Building Code..... (15.11) 83
15.12. Property Maintenance Code ..... (15.12) 103
15.13. Abandoned Residential Real Property Registry .....(15.13) 154.1
15.16. Electrical Code..... (15.16) 155
15.18. Undergrounding Utility Facilities..... (15.18) 159
15.20. Plumbing Code ..... (15.20) 165
15.24. Mechanical Code..... (15.24) 167
15.30. Wildland-Urban Interface Code ..... (15.30) 171
15.32. Fire Code..... (15.32) 173
15.33. Blasting Regulations ..... (15.33) 195
15.40. Fireplaces ..... (15.40) 219
15.44. Swimming Pool Code..... (15.44) 221
15.45. Energy Conservation Code ..... (15.45) 225
15.50. Flood Control and Control of Drainage ..... (15.50) 227
15.52. Uniform Standard Specifications for Public Works Construction ..... (15.52) 229
15.56. Noise Level Reduction Standards..... (15.56) 231
15.60. Temporary Dwelling Units..... (15.60) 243

Title Page

15.70. Uniform Design and Construction Standards (UDACS) for Water Distribution Systems ..... (15.70) 247
15.75. Design and Construction Standards for Wastewater Collection Systems ..... (15.75) 249
15.80 Baby Changing Tables in Buildings Accessible to the Public ..... (15.80) 251

16. Trailer Parks ..... (16) 1
16.04. Title—Penalty ..... (16.04) 3
16.08. Definitions ..... (16.08) 5
16.12. Permits ..... (16.12) 9
16.16. Operation and Maintenance ..... (16.16) 11
16.20. Trailer Parks and Sites—Cabanas and Ramadas ..... (16.20) 19
16.24. Trailer Estate On-Site Improvements ..... (16.24) 23

17. Right-of-Way Management—Communications Facilities. (17) 1
17.01 Definitions ..... (17.01) 3
17.02 General Provisions. ..... (17.02) 9
17.03 Fees ..... (17.03) 19

18. Community Development Fees ..... (18) 1
18.01. Community Development Fee Schedules. ..... (18.01) 3

VOLUME II

19. Development Code ..... (19) 1
19.01. Development Code (Zoning) ..... (19.01) 3

Statutory References ..... (SR) 1

Ordinance List ..... (O) 1

Resolution List ..... (R) 1

Code Comparative Table and Disposition List—Ordinances... (CCTO) 1

Charter Index ..... (CHTi) 1

Code Index ..... (CDi) 1

Title 19

DEVELOPMENT CODE*

Chapters:

19.01 Development Code (Zoning)

***Editor's note—**Ord. No. 2939, §§ 1, 4, adopted November 2, 2011, repealed and reenacted title 19 in its entirety to read as herein set out. Formerly, title 19 pertained to similar subject matter. See the Ordinance List and the Code Comparative Table and Disposition List for a complete derivation.

Chapter 19.01 DEVELOPMENT CODE (ZONING)

The City of Henderson adopts by reference the City of Henderson Development Code as a specialized code. Copies of this code are on file in the office of the city clerk.
(Ord. No. 2939, § 4, 11-2-2011)

STATUTORY REFERENCES FOR NEVADA CITIES

The statutory references listed below refer the code user to state statutes applicable to Nevada cities. They are up to date through the 28th Special Session (2014).

General Provisions

Organization and classification

NRS 266.016 et seq.

City charters

Const. Art. 8 § 8 and NRS 268.010

Home rule

NRS 266.010

General powers

NRS 266.260 et seq., 267.120, 268.008

Elections

NRS chs. 293—306

Municipal initiative and referendum

NRS 295.195 et seq.

Ordinances

NRS 266.105 et seq.

Code of ordinances

NRS 268.014

Powers of city council

NRS 266.260 et seq.

Powers of city with commission form of government

NRS 267.110 et seq.

Penalties

NRS 268.018 et seq.

State misdemeanors deemed city misdemeanors

NRS 266.321

Wards

NRS 266.095

Eminent domain

NRS ch. 37

Administration and Personnel

Commission form of government

NRS ch. 267

Mayor

NRS 266.165 et seq.

City council

NRS 266.215 et seq.

Meetings of state and local agencies

NRS ch. 241

Officers

NRS 266.390 et seq. and 268.310 et seq.

City attorney

NRS 266.465 et seq.

City clerk

NRS 266.480

City auditor

NRS 266.490

City treasurer

NRS 266.500 et seq.

Chief of police

NRS 266.530

Municipal court

NRS ch. 5 and 266.550 et seq.

Planning commissions

NRS 268.110 et seq., 278.030 et seq.

Public records

NRS ch. 239

Fire department

NRS 266.310

Housing authorities

NRS § 315.140 et seq.

Joint municipal organizations

NRS ch. 270A

Cooperative agreements between political subdivisions

NRS ch. 277

Interlocal Cooperation Act

NRS 277.080 et seq.

Meetings of state and local agencies

NRS ch. 241

General provisions as to officers and employees

NRS ch. 281

Public employees retirement

NRS ch. 286

Programs for public employees

NRS ch. 287

Local Government Employee-Management Relations Act

NRS ch. 288

Legal notices

NRS ch. 238

Revenue and Finance

Generally

NRS 266.600 et seq., 268.020 et seq.

Financing public works and improvements

NRS 266.660, 268.450

Commission city land improvement fund

NRS 267.125

Capital improvement funds

NRS 266.660

City property

NRS 268.048 et seq.

City Economic Development Revenue Bond Law

NRS 268.512 et seq.

City Bond Law

NRS 268.672 et seq.

Nevada Community Development Program Law

NRS 268.745 et seq.

Consolidated Local Improvements Law

NRS ch. 271

Local Government Purchasing Act

NRS ch. 332

Public works and planning

NRS title 28

Tax on transient lodging

NRS 268.096 et seq.

Business Licenses, Taxes and Regulations

Power of city council to license, tax and regulate trades and businesses

NRS 266.355, 268.095, 268.0955

Power to license and regulate sale of liquor

NRS 268.090

Charitable solicitations

NRS 268.423

Farmers' markets

NRS 268.091 et seq.

Pawnbrokers

NRS 268.0973 and ch. 646

Taxicabs

NRS 268.097

Tent shows, circuses, theme parks and permanent exhibitions

NRS 268.0975

State gaming laws

NRS title 41

Professions, occupations and businesses: state regulation

NRS title 54

Franchises for public purposes

NRS 266.300

Animals

City council powers

NRS 266.325

Rabies control

NRS 268.427

Cruelty to animals

NRS ch. 574

Health and Safety

Generally

NRS 266.330, title 40

Fire protection

NRS 266.310, title 42

Nuisances

NRS 266.335

Smoke and air pollution

NRS 268.410

Noise regulations

NRS 268.412

Graffiti

NRS 268.4075 et seq.

Health districts

NRS 268.420

Wasting water

NRS 268.411

Meat, fish, produce, poultry and eggs

NRS ch. 583

Dairy products

NRS ch. 584

Public Peace, Morals and Welfare

City council powers

NRS 266.321

Adoption of state misdemeanors

NRS 268.018

Outdoor assemblies

NRS 268.429 et seq.

State penal code

NRS title 15

Loitering and prowling ordinances

NRS 268.409

Firearms

NRS 268.418

Vehicles and Traffic

Power of city council to regulate traffic and parking

NRS 266.277, 266.280, 484A.400 et seq.

State traffic code

NRS ch. 484A

Motorcycles

NRS ch. 486

Speed limits

NRS 268.425

Parking meters

NRS 266.280

Railroads and railways

NRS 266.295

Streets, Sidewalks and Public Places

Local improvements

NRS ch. 271

Condemnation of property for public uses

NRS 266.270

Power of city council over street, sidewalks, parks and public grounds

NRS 266.275

Pedestrian malls

NRS 268.810 et seq.

City council powers over public works

NRS 266.261 et seq.

Public works in commission form cities

NRS 267.123

Public works and planning generally

NRS title 28

Outdoor assemblies

NRS 268.429 et seq.

Public Services

Utilities

NRS 266.285, 266.290

Sale or lease of city-owned electric light and power systems

NRS 266.386 et seq.

Franchises

NRS 266.300, 268.081 et seq.

Cemeteries

NRS 266.316

Contracts by commission form cities with federal government relating to water drainage, sanitary sewer and water supply facilities

NRS 267.450 et seq.

City libraries

NRS 379.070 et seq.

Municipal Airports Act

NRS ch. 496

Water systems

NRS 268.4102

Buildings and Construction

Adoption of specialized uniform codes

NRS 268.012

City building codes

NRS 268.413

Impact fees for new development

NRS ch. 278B

Subdivisions

Subdivisions

NRS 278.320 et seq.

Zoning

Zoning boards of adjustment

NRS 278.270 et seq.

Zoning

NRS ch. 278

Subordinate land use powers

NRS 268.098 et seq.

TABLE
ORDINANCE LIST

Ordinance Number	
1	Water rates and regulations (Impliedly repealed by 161)
2	Sewer rates and regulations (Repealed by 475)
3	Uniform Building Code adopted (Repealed by 526)
4	Business licenses (Repealed by 800)
5	Zoning (19.64, 19.68)
6	Plumbing (Repealed by 459)
7	Fire department (8.36)
8	Trailers and trailer parks (Repealed by 259)
9	Electrical wiring (Repealed by 167)
10	Gambling (Repealed by 803)
11	Adds §25 to Ord. 12 (Repealed by 110)
11	Hotel, rooming house, lodging house register (8.28)
12	Health regulations (Repealed by 286)
13	Reckless driving (Not codified)
14	Driving while intoxicated (Not codified)
15	Drinking liquor in public (8.40) (Amended by Ord. 867) (8.40)
16	Disorderly conduct and fighting (Repealed by 2001)
17	Gross intoxication (8.40)
18	Vagrancy (Repealed by 2391)
19	Interfering with or resisting officer (Repealed by 2465)
20	Assisting escape from jail (Repealed by 2520)
21	Counterfeit coins in coin-operated machines (Repealed by 2395)
22	Injuring trees, etc. (8.68)
23	Escaping from jail (Repealed by 2520)
24	Registration of convicted persons (Repealed by 2318)
25	Prostitution (8.60)
26	Illicit intercourse (8.60)
27	Outdoor advertising (Repealed by 417)
28	Impersonating police officer (Repealed by 2503)
29	Indecent behavior (8.60)
30	Indecent exposure (8.60)
31	Loud noises (8.84). Amended by Ord. 982 (HMC 8.84.020(h))
32	Speeding (Not codified)

Ordinance Number	
33	Garbage collection and removal (Amended by Ord. 855) (Repealed by 2545)
34	Sale of intoxicating liquor (Repealed by 532)
35	Bicycles (Not codified)
36	Rent control (Repealed by 39)
37	Wasting water (Repealed by 158)
38	Parking meters (Repealed by 158)
39	Repeals Ord. 36 (Repealer)
40	City planning commission (Repealed by 213)
41	Gas piping and appliances (Repealed by 306)
42	Liquefied petroleum gases (Repealed by 83)
43	Registration of certain employees (Repealed by 648)
44	Obtaining food or lodging by false pretense (Repealed by 2393)
45	Disorderly conduct in public (Repealed by Ord. 2129)
46	Assault and battery (Repealed by 2001)
47	Curfew for minors (8.08)
48	Defacing buildings and structures (8.68)
49	Defacing public property (8.68)
50	Disorderly persons (Repealed by 2001)
51	False reports of fire or crime (Repealed by 2547)
52	Animals and fowl (Repealed by 264)
53	Secondhand and junk dealers (Repealed by 693)
54	Solicitors and canvassers (Repealed by 807)
55	Radio equipment interference (8.72). Amended by Ord. 970.
56	Shortwave radio equipment on motor vehicles (8.76)
57	Milk regulations (Repealed by 63)
58	Transient or itinerant photographers (Repealed by 811)
59	Moving building (15.36) (Repealed by Ord. 976)
60	Photographic studios (Repealed by 811)
61	Pest extermination (Repealed by 811)
62	Taxicabs (Repealed by 1650)
63	Repeals Ord. 57 (Repealer)
64	Meat regulations (5.08)
65	Auctions and auctioneers (4.08 (Repealed by Ord. 838))
66	Milk and milk products (Repealed by 1634)
67	Weapons and firearms (8.98)
68	Working prisoners (Repealed by 1253)

Ordinance Number	
69	Adds §2 to Ord. 1 (Impliedly repealed by 161)
70	Amends Ord. 2 (Repealed by 475)
71	Amends §§5, 9 of Ord. 35 (Not codified)
72	Amends §12 of Ord. 4 (4.04)
73	Contributing to delinquency of minors (8.12)
74	Amends §1 of Ord. 56 (8.76)
75	Adopts model traffic ordinance (Not codified)
76	Amends §§6, 7, 8 of Ord. 47 (Repealed by 1812)
77	Amends §12c of Ord. 9 (Repealed by 167)
78	Amends §5A of Ord. 5 (Repealed by 290)
79	Recreation board (2.16)
80	Amends §5Fa of Ord. 5 (Repealed by 290)
81	Franchise to Merril C. Henderson for taxicab for ten years (Special; Expired July, 1964)
82	Amends Ord. 1 (Impliedly repealed by 161)
83	Fire prevention and fire safety (Repealed by Ord. 981)
84	Regulating water and sewer franchises (Obsolete)
85	Authorizing condemnation of waterworks (Special)
86	Condemnation for sewage disposal plant (Special)
87	Air pollution (Repealed by 330)
88	Franchise to California Pacific Utilities Company for electricity; Expires 1974 Amended by Ord. 93 (4.28)
89	Franchise to California Pacific Utilities Company for gas (Special; Expires 1974)
90	Franchise to Henderson Telephone Company for telephone and telegraph; (Special: Expires 1974) (4.28)
91	Planning commission (Repealed by 213)
92	Franchise to Southern Nevada Power Company for electricity; (Special; Expires 1974) (4.28)
93	Amends §5 of Ord. 88 (4.28)
94	Amends 212 or Ord. 4 (Repealed by 800)
95	Amends Ord. 4 (Repealed by 800)
96	Repeals Ord. 12 and puts health regulations under County (Vetoed)
97	Powers and duties of city beautiful commission (Repealed by 203)
98	False reports of fire or crime (Repealed by 2547)
99	Pawnshops (Amended by Ord. 685) (4.64). Amended by Ord. 958.
100	Amends §1 of Ord. 14 (Not codified)

Ordinance Number	
101	Amends §13 of Ord. 12 (Repealed by 286)
102	Amends §34 of Ord. 34 (Superseded by 128)
103	Petit Larceny (Repealed by 2394)
104	Adds 219-A to Ord. 4 (Repealed by 800)
105	Adds §29-A to Ord. 5 (Repealed by 290)
106	Amends Ord. 7 (8.36)
107	Amends §30 of Ord. 8 (Repealed by 259)
108	Adds §18-A to Ord. 10 (Repealed by 803)
109	Amends §2 of Ord. 11 (8.28)
110	Adds §22-A to Ord. 12 (Repealed by 286)
111	Amends §2 of Ord. 15 (8.40)
112	Amends §2 of Ord. 16 (Repealed by 2001)
113	Amends §2 of Ord. 17 (8.40)
114	Amends §2 of Ord. 18 (Repealed by 2391)
115	Amends §2 of Ord. 19 (Repealed by 2465)
116	Amends §2 of Ord. 20 (Repealed by 2520)
117	Amends §2 of Ord. 21 (Repealed by 2395)
118	Amends §2 of Ord. 22 (8.68)
119	Amends §6 of Ord. 24 (Repealed by 2318)
120	Amends §7 of Ord. 25 (8.60)
121	Amends §4 of Ord. 26 (8.60)
122	Adds §28-A to Ord. 27 (Repealed by 377)
123	Amends §2 of Ord. 28 (8.48)
124	Amends §2 of Ord. 29 (8.60)
125	Amends §2 of Ord. 30 (8.60)
126	Adds §1-A to Ord. 31 (8.84)
127	Adds §26-A to Ord. 33 (Repealed by 2545)
128	Adds §34 of Ord. 34 (Repealed by 532)
129	Amends §23 of Ord. 35 (Not codified)
130	Amends §8 of Ord. 43 (Repealed by 648)
131	Amends §2 of Ord. 44 (Repealed by 2393)
132	Amends §2 of Ord. 45 (Repealed by 2001)
133	Amends §2 of Ord. 46 (Repealed by 2001)
134	Adds §8-A to Ord. 47 (Repealed by 1812)
135	Amends §2 of Ord. 48 (8.68)
136	Amends §2 of Ord. 49 (8.68)
137	Amends §2 of Ord. 50 (Repealed by 2001)

Ordinance Number	
138	Amends §2 of Ord. 51 (Repealed by 2547)
139	Adds §36-A to Ord. 52 (Repealed by 264)
140	Adds §10-A to Ord. 53 (Repealed by 693)
141	Amends §4 of Ord. 55 (8.72). Amended by Ord. 970.
142	Adds §10-A to Ord. 56 (8.76)
143	Adds §5-A to Ord. 58 (Repealed by 811)
144	Adds §7-A to Ord. 59 (15.36)
145	Adds §16-A to Ord. 61 (Repealed by 811)
146	Amends Ord. 62 (Repealed by 1650)
147	Adds §29-A to Ord. 64 (5.08)
148	Amends §17 of Ord. 65 (4.08)
149	Amends §6 of Ord. 67 (8.98)
150	Amends §2 of Ord. 73 (8.12)
151	Amends §4 of Ord. 83 (Not codified)
152	Providing for special municipal bond election (Special)
153	Repeals Ord. 37 (Repealer)
154	Amends §15 of Ord. 8 (Repealed by 259)
155	Adds to Uniform Plumbing Code (Repealed by 1804)
156	Annexation of contiguous territory (Special)
157	Dogs running at large (Repealed by 264)
158	Repeals Ord. 38 (Repealer)
159	Railroad franchise (Repealed by 811)
160	Platting and subdividing (Title 18)
161	Water rates and regulations (Repealed by 475)
162	Adds §§1-a, 1-b to Ord. 13 (Not codified)
163	Adds §2-a to Ord. 23 (Repealed by 2520)
164	Adds §§1-b, 1-c to Ord. 32 (Not codified)
165	Issuance of $90,000 water improvement bonds (Special)
166	Amends Ord. 4 (Repealed by 169)
167	Electrical wiring (Repealed by 248)
168	Issuance of $108,000 water bonds (Special)
169	Amends §12 of Ord. 4 (Repealed by 800)
170	Accident reports (Not codified)
171	Investigation fee, liquor and gaming licenses (Repealed by 811)
172	Amends §5 of Ord. 10 (Repealed by 803)
173	Amends Ord. 2 (Repealed by 475)
174	Acceptance of $108,000 water improvement bonds (Special)

Ordinance Number	
175	Adds §11-C to Ord. 167 (Repealed by 248)
176	Common carrier franchises (Repealed by 1521)
177	Amends §1 of Ord. 3 (Repealed by 284)
178	Amends §4 of Ord. 43 (Repealed by 190)
179	Permit for concrete work (15.12). Repealed by Ord. 973.
180	Amends §18 of Ord. 5 (Repealed by 208 and 290)
181	Fireworks (Repealed by 267)
182	Water bonds (Repealed by 188)
183	Building bonds (Not approved)
184	Repeals §7 of Ord. 33 (Repealer)
185	Adds §1-E to Ord. 83 (15.32). Repealed by Ord. 981.
186	Amends Ord. 34 (Repealed by 532)
187	Amends §§1, 2 of Ord. 161 (Repealed by 475)
188	Repeals Ord. 182 (Repealer)
189	Amends Ord. 62 (Repealed by 1650)
190	Repeals Ord. 178 (Repealer)
191	Amends §§3, 5(b) of Ord. 43 (Repealed by 648)
192	Confirms sale of $347,000 water bonds (Special)
193	Boundary lines of wards (Obsolete)
194	Declaring determination of assessment district AD-100 (Special)
195	Declaring determination of assessment district AD-200 (Special)
196	Municipal elections (Repealed by 2513)
197	Appointment and salaries of officers (Repealed by 269)
198	Issuance of $76,000 building bonds (Special)
199	Creates assessment district AD-100 (Special)
200	Creates assessment district AD-200 (Special)
201	Adds §§18B, C, D, E to Ord. 5 (Repealed by 290)
202	City real estate board (Repealed by 255)
203	City beautiful commission (2.20)
204	Hotel and motel license tax (Repealed by 2734)
205	Providing assessments for AD-100 (Special)
206	Providing assessments for AD-200 (Special)
207	Reserve call fire department (Repealed by Ord. 1016)
208	Repeals Ord. 180 (Repealed by 290)
209	Adds §18F to Ord. 5 (Repealed by 290)
210	Ratifying improvement AD-100 and issuance of bonds (Special)
211	Ratifying improvement AD-200 and issuance of bonds (Special)

Ordinance Number	
212	Assigning hotel tax to county for bond payments (Superseded by 324)
213	Planning commission (19.80)
214	Amends §12 of Ord. 4 (Repealed by 602)
215	Amends §2 of Ord. 79 (Repealed by 327)
216	Amends §13(b) of Ord. 5 (Repealed by 290)
217	Amends §8(5); adds 5E, 5F, 5G to Ord. 5 (Repealed by 275 and 290)
218	Excavations and surfacing (Repealed by 2295)
219	Switchblade knives (8.98)
220	Throwing stones (8.98)
221	Stink bombs (9.98)
222	Amends Ord. 34 (Repealed by 532)
223	Amends §25 of Ord. 52 (Repealed by 264)
224	Sidewalk construction (Repealed by 2295)
225	Amends title; adds §8-a to Ord. 196 (2.08)
226	Fire zones (Repealed by 241)
227	Amends Ord. 204 (Repealed by 2734)
228	Amends §1 of Ord. 3 (Repealed by 284)
229	Formation of assessment district AD-300 (Special)
230	Amends Ord. 4 (Repealed by 800)
231	Sewer improvement bonds (Special)
232	Amends Ord. 4 (Repealed by 800)
233	Adds sections to Ord. 2 (Repealed by 475)
234	Adds §31 to Ord. 161 (Repealed by 475)
235	Establishing assessment district AD-400, Slurry Seal, Annex 4, Parcel "E" (Special)
236	Citations for violation of ordinances (1.04)
237	Amends §17 of Ord. 4 (Repealed by 800)
238	Adds to §11 of Ord. 52 (Repealed by 264)
239	Plumbing code; amends Ord. 6 (Repealed by 459)
240	Amends Ord. 169 (Repealed by 800)
241	Repeals Ord. 226 (Repealer)
242	Fire zones (Repealed by 788)
243	Amends §§16, 17, 18 of Ord. 33 (Repealed by 2545)
244	Adds sections to building code (Repealed by 266)
245	Amends §§14(B), 24, 26 of Ord. 167 (Repealed by 248)
246	Amends §7 of Ord. 186 (Superseded by 271)
247	Amends §5 of Ord. 81 (Expired franchise)

Ordinance Number	
248	Electrical wiring (Repealed by 354)
249	Nuisances (Repealed by 363)
250	Creates assessment district AD-300 (Special)
251	Adds paragraph (d) to §12 of Ord. 160 (18.20)
252	Annexation of contiguous territory (Special)
253	Providing assessment district AD-300 roll (Special)
254	Amends Ord. 197 (Repealed by 269)
255	Repeals Ord. 202 (Repealer)
256	Amends §2 of Ord. 213 (19.80)
257	Amends §4(4) of Ord. 233 (Repealed by 475)
258	Amends Ord. 168 (Special)
259	Trailers and trailer parks (Repealed by 332)
260	Approving assessment district AD-300 (Special)
261	Repeals portion of §2 of Ord. 239 (Repealer)
262	Amends paragraph E, F of §26 of Ord. 5 (Repealed by 290)
263	Civil defense organization (2.24). Amended by Ord. 995, create Emergency Management; Repealed by Ord. 1016.
264	Poundmaster and animal keeping (Repealed by 341)
265	Annexation of contiguous territory (Special)
266	Repeals Ord. 244; Amends Uniform Building Code (Repealed by 526)
267	Fireworks (8.86)
268	Council meetings (2.04). Repealed by Ord. 985.
269	Appointment of officers (Repealed by 541)
270	Amends title; adds to §IX of Ord. 264 (Repealed by 341)
271	Amends §23 of Ord. 34; §7 of Ord. 186 (Not codified)
272	Amends §4 of Ord. 34 (Repealed by 532)
273	Amends §1 of Ord. 172; §5 of Ord. 10 (Repealed by 803)
274	Adds Section 1506 to Uniform Building Code (Repealed by 526)
275	Repeals Ord. 217, amends §5(c) of §8 of Ord. 5, adds §§5(E), (F), (G) to Ord. 5 (Repealed by 290)
276	Repeals paragraph 13(A), repeals §22, amends paragraph A-2 of §13 of Ord. 5 (Repealed by 290)
277	Amends §§2, 4 of Ord. 218 (Repealed by 2295)
278	Amends Ord. 100 (Not codified)
279	Amends §§2D, 2E, 5, 7; adds paragraph E to §9, adds section to Ord. 264 (Repealed by 341)
280	Liquor to minors (8.40)

Ordinance Number	
281	Wage and salary schedule for police and firemen (Obsolete)
282	Declaring determination to make sewer improvement (Special)
283	Amends §§4(e), 9(a); adds §9(f) to Ord. 160 (Title 18)
284	Amends §1 of Ord. 3 (Repealed by 357)
285	City building bond (Special)
286	Repeals Ords. 12, 101, 110 (Repealed by 343) 287. Adds §2A to Ord. 68 (1.08)
287	Adds §2A to Ord. 68 (Repealed by 1253)
288	Adds subsection (d) to §3, amends §§4, 5 of Ord. 264 (Repealed by 341)
289	Amends §9 of Ord. 35; §1 of Ord. 71 (Not codified)
290	Amends Ord. 5, zoning (Not codified)
291	Annexation of contiguous territory (Special)
292	Determination to make water improvement (Special)
293	Amends §9(e) of Ord. 160 as amended by Ord. 283 (18.20)
294	Amends §§10, 11 of Ord. 290 (Not codified)
295	Specifications and standards for public improvements (11.04)
296	Swimming pools (Repealed by 712)
297	Adds §31 to Ord. 27 (15.40)
298	Water and sewer connections by developers and subdividers (Repealed by 475)
299	Adds §1-A to Ord. 3 (Repealed by 397 and 526)
300	Annexation of contiguous territory (Special)
301	Amends §19 of Ord. 5 (Not codified)
302	Adds §11 to Ord. 298 (Repealed by 475)
303	Amends §12 of Ord. 290 (Not codified)
304	Adds paragraphs to §12, amends §16 of Ord. 33 (Repealed by 2545)
305	Amends §§2, 7B of Ord. 5 (Not codified)
306	Amends §§1, 2 of Ord. 239, §1 of Ord. 6 (Repealed by 459)
307	Repeals §6; adds section to Ord. 259 (Repealed by 332)
308	Amends §6 of Ord. 5 (19.20)
309	Adds language to §2, adds sections to Ord. 5 (Not codified)
310	(No ordinance)
311	Amends Ord. 248, adopts 1962 electrical code (Repealed by 354)
312	Annexation of contiguous territory (Special)
313	Salaries and pay scales (Special)
314	Adds sections to Ord. 7 (Repealed by 1889)
315	Amends Ord. 3 (Repealed by 526)

Ordinance Number	
316	Amends §3 of Ord. 196 (Repealed by 2513)
317	Amends §§2, 3, adds sections to Ord. 5 (Not codified)
318	Adds sections to Ord. 160 (Title 18)
319	Solicitations (Repealed by 2382)
320	Amends Ord. 4 (Repealed by 800)
321	Obscene literature (8.64)
322	Special police officers and private patrols (Repealed by 806)
323	Amends Ord. 319 (Repealed by 358)
324	Hotel and motel tax (Repealed by 2734)
325	Amends §3 of Ord. 321 (Repealed by 2456)
326	Heating and comfort cooling (Repealed by 399)
327	Amends §§2, 4, 6, 7 of Ord. 79 (2.16)
328	City Council meeting time, date and place; Amends §2 of Ord. 268 (Repealed by Ord. 1015)
329	Amends §3, adds §36 to Ord. 5 (Not codified)
330	Air pollution control (5.20)
331	(Not enacted at time of codification)
332	Trailer parks (Repealed by 410)
333	Amends §§3, 4 of Ord. 330 (5.20)
334	Amends §3 of Ord. 54 (Repealed by 807)
335	Annexation of contiguous territory (Special)
336	Annexation of contiguous territory (Special)
337	Amends §8-G of Ord. 248 (Repealed by 354)
338	Amends Section 303 of uniform building code (Repealed by 1801)
339	Amends schedule of fees of uniform plumbing code adopted by Ord. 6 as amended (Repealed by 381)
340	Ambulance service regulations (Repealed by 1750)
341	Animals and fowl (7.04), Amended by Ord. 927
342	Amends §1 of Ord. 224 (11.12)
343	Health regulations (5.04)
344	Licenses and regulations for massage parlors (Repealed by 364)
345	Closed circuit, community TV antenna (Repealed by 781)
346	Amends Ords. 6, 239, 306, adds parts F, G, H of appendix E to uniform plumbing code (Repealed by 381, 428)
347	Adds definitions to §2 of Ord. 5 (Not codified)
348	Zoning (Special)
349	Taxicab franchise (Special)

Ordinance Number	
350	Annexation (Special)
351	Annexation (Special)
352	Adds §§32, 33 to Ord. 161 (Repealed by 475)
353	Adds §§10, 11 to Ord. 233 (Repealed by 475)
354	Adopts 1965 National Electric Code; repeals Ords. 248, 311, 337 (Repealed by 643)
355	Amends Ords. 12, 101, 110, health officer (5.04)
356	Annexation (Special)
357	Repeals Ord. 284; amends Ord. 3, building code (Repealed by 415 and 526)
358	Amends Ord. 319; repeals Ord. 323, solicitors (Repealed by 2382)
359	Amends Ord. 313, salaries (Repealed by 418)
360	Traffic. Amended by Ord. 959. (10.04, 10.08, 10.12, 10.16, 10.20, 10.24, 10.28, 10.32, 10.36, 10.40, 10.44, 10.48, 10.64)
361	Amends Ord. 332; repeals Ord. 259, trailer parks (Title 16)
362	Civil service (Repealed by 541)
363	Repeals 249, nuisance abatement (Repealed by 2481)
364	Repeals Chapter 4.84, massage parlors, chiropractors (Repealed by 380)
365	Amends Ord. 362 (Repealer)
366	Establishes salary for city manager (Special)
367	Amends §4.36.220 (Not codified)
368	Amends Ord. 161 (Repealed by 448)
369	Creates wards for primary and general elections (Repealed by 514)
370	Amends §§4.44.020 and 4.44.030 (Repealed by 648)
371	Moved buildings; Amends Ord. 3 and 59 (15.36). Repealed by Ord. 976.
372	Amends Ord. 5, zoning (19.40)
373	Amends Ord. 5, zoning (19.40)
374	Defined vagrancy and gives punishment therefore; repeals §§8.32.030 and 8.94.010 (Repealed by 2391)
375	Adds §4.36.315, grounds for revocation, cancellation or suspension of license (Repealed by 532)
376	Amends §4.12.010, solicitation review board membership and duration of term (Repealed by 2382)
377	Sign code, repeals Ord. 122 (15.40) (Repealed by Ord. 846)
378	Amends §4.32.010, license required, restrictions (Repealed by 803)
379	Adds Chapter 4.14, budget service companies (Repealed by 2058)

Ordinance Number	
380	Repeals and enacts new Chapter 4.84, massage parlors and masseurs (Repealed by 1331)
381	Repeals and enacts new plumbing code (Repealed by 459)
382	Adds Chapter 19.37, residence grouping districts (Not codified)
383	Adds Chapter 4.20, child care facilities (Repealed by 607)
384	Amends Ord. 160, adds §18.20.135, subdivisions (Superseded by 392)
385	Transfers business license duties to city license clerk, repeals and replaces §4.04.010 (Repealed by 800)
386	Adds Chapter 4.30, public utilities license, repeals §4.04.080 (Repealed by 811)
387	Franchise to Jaycees for advertising benches (Repealed by 470)
388	Repeals and enacts new §4.04.243, trailer camps (Repealed by 800)
389	Repeals and enacts new Chapter 2.16, recreation board (Repealed by 502)
390	Adds §10.56.080, flammable liquids (Repealed by 1663)
391	Amends §2.04.010, council meetings (2.04). Repealed by Ord. 985.
392	Repeals and enacts new Title 18, platting and subdivisions (18.04, 18.08, 18.16, 18.20 and 18.24). Amended by Ord. 994. Repeals HMC 18.20.110.
393	Adds Chapter 8.02, offenses against state law (Repealed by 490)
394	Amends Ord. 369, ward boundaries (Repealed by 514)
395	Repeals and enacts new §15.32.030, fire prevention codes (Repealed by 466 and 534)
396	Improvement District No. 600 (Special)
397	Adopts Uniform Housing Code, repeals §15.08.020 and Ord. 299 (Repealed by 526)
398	Amends §18.16.010, subdivision final map (Repealed by Ord. 994)
399	Repeals and replaces Chapter 15.24, repeals Ord. 326, heating and comfort cooling code (Repealed by 484)
400	Amends §4.44.030, registration of certain employees (Repealed by 648)
401	Trailer Parks, repeals Ord. 332, §§1—5 and Chapters 16.04—16.16 (16.04, 16.08, 16.12, 16.16 and 16.20)
402	(Not adopted)
403	Amends Ord. 213 §§1 and 6 and 19.80.010, 19.80.060, Planning Commission (19.80)

Ordinance Number	
404	Repeals and replaces Title 19, zoning, repeals Ord. 5, §§25, 26(A)—(H), and 19.72.010, 19.76.010—19.76.080, and 19.80.090—19.80.150, reenacts Chapter 19.64, 19.68 and §19.80.01—19.80.080 (19.04, 19.08, 19.12, 19.16, 19.18, 19.20, 19.22, 19.24, 19.26, 19.28, 19.32, 19.34, 19.36, 19.38, 19.40, 19.44, 19.46, 19.48, 19.52, 19.56, 19.60, 19.64, 19.68, 19.72, 19.76, 19.78 and 19.80) Amended by Ord. Nos. 414, 417, 875, 876, 881, 884, 885, 888, 892, 893, 898, 899, 906 (delete HMC 19.16.110), 912, 915, 920, 921, 922, 925, 933 (HMC 19.62.020), 935, 936, 938, 939 (HMC 19.16.030), 940 (HMC 19.82), 945, 946 (HMC 19.24.050), 956, 965, HMC 19.24.050), 987, 989, 991, 992, 999, 1004, 1006, 1010, 1011, 1012, 1017, 1026, 1032, 1035, 1037, 1038, 1040, 1048, 1049, 1051, 1052, 1053, 1057, 1061, 1062, 1063, 1066, 1071, 1072, 1074, 1075, 1080, 1083, 1084, 1090, 1091, 1104, 1108, 1117, 1118. Repealed by Ord. 1120.
405	Amends §4.44.030(5), repeals Ord. 400 §1(5), registration of certain employees (Repealed by 648)
406	Repeals §6 of Ord. 332 and Chapter 16.24, trailer parks (Repealer)
407	Adds §§10.16.111—10.16.115, traffic (10.16)
408	Adds Chapter 10.54, safety equipment for motorcyclists (10.54)
409	Annexation (Special)
410	Repeals Ord. 332 (Repealer)
411	Amends §18.16.020(b), subdivisions (Repealed by Ord. 994)
412	Assessment (Special)
413	Repeals and Reenacts §6.20.030, legal holidays (Repealed by 541)
414	Repeals and reenacts §19.16.100, Zoning (19.16)
415	Repeals and reenacts §15.08.010, Uniform Building Code, 1970 Edition (Repealed by 482)
416	Annexation (Special)
417	Amends Title 19, Zoning (19.18), Amended by Ord. 870
418	Repeals Ord. 359, salaries (Special)
419	Adds Chapter 16.22; repeals §§16.16.220, 16.16.230, trailer parks (Repealed by Ord. 978 and 979)
420	Establishes Title 17, travel trailer park (Title 17)
421	Adds §19.08.755, Chapter 19.35, §19.40.030(i), (j); repeals and reenacts §§19.08.480, 19.08.740, travel trailers (19.08, 19.35, 19.40)
422	Repeals and reenacts §§6.18.060, 6.20.150; repeals §6.28.090, civil service (Repealed by 541)

Ordinance Number	
423	Annexation (Special)
424	Adds §4.76.160; renumbers §§4.76.150 through 4.76.210 to §§4.76.130 through 4.76.190; repeals §§4.76.130, 4.76.140, 4.76.180, taxi rates (Repealed by 1650)
425	Adds §8.60.095; repeals and reenacts §8.60.100, molestation of minors (8.60)
426	Amends Ord. 423, annexation (special)
427	(Not adopted)
428	Adds Chapter 16.24; repeals Ord. 346, trailer estate improvements (16.24)
429	Water project (Special)
430	Zoning reclassification (Special)
431	Amends Ord. 10 §6, gambling license (4.32)
432	Amends Ord. 267, firework sales (Repealed by 1389)
433	Zoning reclassification (Special)
434	Zoning reclassification (Special)
435	Zoning reclassification (Special)
436	Zoning reclassification (Special)
437	Zoning reclassification (Special)
438	LID No. 710 (Special)
439	Amends Ord. 424, Chapter 4.76, taxicab rates (Repealed by 1650)
440	Annexation (Special)
441	Repeals and reenacts §§6.04.040, 6.04.050, 6.04.060, 6.08.010, 6.08.020, 6.12.030(a), 6.12.040(a), 6.12.070, 6.14.220, 6.14.030(b), 6.14.040, 6.14.060, 6.14.110, 6.14.220, 6.14.280, 6.18.020(g), 6.20.020, 6.20.030(c), 6.20.150(b) (d), 6.24.020, 6.26.010, 6.30.030; adds 6.12.100, civil service rules (Repealed by 541)
442	Zoning reclassification (Special)
443	Zoning reclassification (Special)
444	Amends Ord. 271 §1, intoxicating liquors (Not codified)
445	Zoning reclassification (Special)
446	Repeals and re-enacts §15.32.030, fire prevention code (Not codified)
447	LID No. 710, bonds (Special)
448	Amends §§13.04.310 through 13.04.340, 13.04.210; repeals Ord. 368, water rates (Repealed by 475).
449	Amends §§19.18.030(c), 19.18.050(b) (1); repeals §19.18.030(f), setbacks (19.18)

Ordinance Number	
450	Zoning reclassification (Special)
451	Zoning reclassification (Special)
452	Amends §4.32.060, gambling licenses; repeals Ord. 431 (Repealed by 803)
453	Amends Ch. 16.16; Repeals §16.16.080 (16.16)
454	Amends §§19.12.020, 19.76.040(a) and 19.48.060(b); adds §§19.76.040(b)(8), 19.34.030, zoning (19.12, 19.34, 19.48, 19.76)
455	Annexation (Special)
456	Supermarket, department store rest facilities (5.24)
457	Amends Ch. 19.42, planned community district (Repealed by 505)
458	Amends Ch. 15.16, electrical code (Not codified)
459	Adopts 1970 Uniform Plumbing Code; repeals Ords. 6, 239, 306 and 381 (Repealed by Ord. 510)
460	Adds §§4.36.225 and 4.36.085, liquor sale (Repealed by Ord. 532)
461	Improvement District No. 731 (Special)
462	Improvement District No. 733 (Special)
463	Park bonds (Special)
464	Rezone (Special)
465	Annexation (Special)
466	Annexation (Special)
467	Adds T-E (H) district (19.37)
468	Amends §§19.20.020(c), 19.20.050(a) and (b)(1), 19.22.020(e) and 19.22.050(a) and (b), zoning (19.20, 19.22)
469	Public Improvement Trust approval (Special)
470	Advertising franchise to Jaycees, (repeals Ord. 387) (Special, expires 1978)
471	Improvement District No. 732 (Special)
472	Repeals and recreates §5.16.150, garbage rates (Repealed by 533)
473	Amends §2.20.010, Beautification Commission (Repealed by Ord. No. 874)
474	Citizen's traffic advisory board (Repealed by 611)
475	Repeals Ords. 2, 70, 161, 173, 187, 233, 234, 257, 298, 302, 352, 353 and 448; adds Chapters 13.04, 13.08 and 13.12 (13.04, 13.08, 13.12); Section 4 repealed by Ord. No. 1016, Section 2 repealed by Ord. 1029, Section 3 repealed by Ord. 1030
476	Adds Ch. 18.26, subdivisions (Repealed by 530)
477	Amends (b) of §4.76.130, Taxi rates (Repealed by 1650)

Ordinance Number	
478	Adds Ch. 18.28, subdivisions (Repealed by 531)
479	Amends Ord. 471, Improvement District No. 732 (Special)
480	Adds Ch. 15.18, Underground Utilities (15.18); AMENDED BY ORD. 905
481	Annexation (Special)
482	Repeals and reenacts §15.08.010, Building Code (Repealed by 586 and 608)
483	Dangerous building code (Repealed by 584)
484	Repeals and reenacts Ch. 15.24, repeals Ord. 399 (Repealed by 587)
485	Rezone (Special)
486	Annexation (Special) (Amended by Ord. 864)
487	Amends Ch. 19.40, zoning (19.40)
488	Amends §§19.64.070, 19.64.090 and 19.64,110 and deletes §19.64.100, Zoning (19.64)
489	Amends §19.08.030, Zoning (19.08)
490	Adds Ch. 8.02 and repeals Ord. 393 (8.02)
491	Rezone (Special)
492	Rezone (Special)
493	Public improvement trust application approval (Special)
494	Franchise (Special)
495	Amends Ord. 469 Exhibit A, public improvement trust (Special)
496	Amends §2(a) of Ord. 468 and §19.20.050(a), R-E zone lot area (19.20)
497	Amends §12-8 of Ord. 360 and §10.52.080, parking over forty-eight hours (Repealed by 1663)
498	Approves project and bond issue for public improvement trust (Special)
499	Approves project and bond issue for public improvement trust (Special)
500	Amends §1 of Ord. 403, planning commission (19.80)
501	Memorial commission (Repealed by Ord. 501)
502	Adds Chapter 2.16; repeals Ord. 389, recreation board (Repealed by 1917)
503	Amends part of Ch. IV of Ord. 404 and §19.16.120, rights-of-way and improvements (19.16)
504	Creates Improvement District No. 744 (Special)
505	Planned unit developments, repeals Ord. 457 (19.42), Amended by Ord. 879
506	Franchise (Repealed by 1521)
507	Franchise (Repealed by 1521)
508	Franchise (Repealed by 1521)

Ordinance Number	
509	Franchise (Repealed by 1521)
510	Plumbing code, repeals Ord. 459 (Repealed by 572)
511	Amends §4 of Ord. 475 and §§13.12.040, 13.12.050 and 13.12.100, sewer and water fees (13.12)
512	Franchise (Repealed by 1650)
513	Adds Chapter 15.48, excavation, grading and filling (15.48)
514	Wards, repeals Ords. 369 and 394 (Repealed by 559)
515	Adds Chapter 8.96, employment of illegal aliens (8.96)
516	Creates LID No. 741 (Special)
517	Salaries (Special)
518	Creates LID No. 742 (Special)
519	Assessment for improvements in Local Improvement District No. 742 (Special)
520	Assessment for improvements in Local Improvement District No. 741 (Special)
521	Amends §12 of Ord. 33 and §1 of Ord. 304, garbage collection in alleyways (Repealed by 2545)
522	Amends §3 of Ord. 519, Local Improvement District No. 742 (Special)
523	Approves project and bond issue (Special)
524	Authorizes issuance of bonds for Local Improvement District No. 741 (Special)
525	Authorizes issuance of bonds for Local Improvement District No. 742 (Special)
526	Adds to Ch. 15.08; repeals Ords. 3, 266, 274, 299, 315, 357 and 397, insulation requirements (Repealed by 1801)
527	Amends Ord. 404, zoning map (Not codified)
528	Assessments for Local Improvement District No. 744 (Special)
529	Assessments for Local Improvement District No. 731 (Special)
530	Adds Ch. 18.26 to Title 18; repeals Ord. 476, minor subdivision (Repealed by 667)
531	Adds Ch. 18.28 to Title 18; repeals Ord. 478, parcel map ordinance (18.28)
532	Regulates sale and distribution of intoxicating liquors; repeals Ords. 34, 128, 186, 222, 272, 375 and 460 (Repealed by 802)
533	Replaces §2 of Ord. 304; repeals Ord. 472, charges for garbage collection and disposal (Repealed by 641)
534	Amends §3 of Ord. 441, competitive service (Repealed by 541)

Ordinance Number	
535	Adopts 1975 National Electrical Code (Repealed by 643)
536	Adopts National Fire Codes, 1975 Edition, Fire Protection Handbook, 1969 Edition, Uniform Fire Code, 1973 Edition, Life Safety Code, 1970 Edition and Grading Schedule for Municipal Fire Protection, 1973 Edition; repeals Ord. 395, codes adopted by reference (Repealed by 610)
537	Local Improvement District No. 731, bond issue (Special)
538	Local Improvement District No. 744, bond issue (Special)
539	Amends §4 of Ord. 488, zoning building permits (15.45)
540	Amends §12 of Ord. 4, §§9(a) and 24(i) of Ord. 532, licensing of places of entertainment where alcoholic beverages are on sale (Repealed by 800, 802)
541	Civil service, repeals Ords. 269, 362, 413, 422, 441 and 534; repeals resolutions 172 and 247 (Repealed by 2147)
542	Rezone (Special)
543	Adds Ch. 4.74, swap meet business license (Repealed by Ord. 997; creates Multiple Vendor Arena Sales)
544	Amends §8 of Ord. 530 and §8 of Ord. 531, subdivisions (18.28)
545	Adopts Nevada Traffic Control Manual (10.02)
546	Bond issuance (Special)
547	Amends §§1 and 8 of Ord. 512, taxi franchise (Repealed by 1650)
548	Adds subsection (f) to §19.16.100, zoning (19.16)
549	Adopts Uniform Standard Specifications for Public Works Construction (15.52)
550	Adds subsection (d) to §19.20.050 and subsection (d) to §19.22.050, zoning (19.20, 19.22)
551	Establishes senior citizens advisory commission. Amended by Ord. 964. (Repealed by 1915)
552	Adds to §§19.24.020 and 19.36.020; amends §§19.08.320, 19.18.020(c), 19.20.020(c), 19.22.020(e) and 19.37.020 (b); zoning (19.08, 19.18, 19.20, 19.22, 19.24, 19.36, 19.37)
553	Adds subsection (d) to §19.48.030, zoning (19.48)
554	Amends §2(b) of Ord. 227, business license tax (Repealed by 2734)
555	Code adoption (1.01)

Ordinance Number	
556	Adds subsection (e) to §19.18.030, subsection (d) to §19.20.030, subsection (g) to §19.22.030, subsection (e) to §19.24.030, subsection (c) to §19.36.030 and subsection (b) to §19.37.030, raising and keeping wild game birds (19.18, 19.20, 19.22, 19.24, 19.36, 19.37)
557	Handbill distribution control (8.82)
558	Amends §§13.12.100 and 13.12.110, water and sewer service charges (13.12); Section 1 repealed by Ord. No. 1026
559	Wards, repeals Ord. 514 (Repealed by 631)
560	Building numbering (15.56)
561	Adds business licensing provisions to Ch. 4.04 (Repealed by 800)
562	Rezone (Special) (Repealed by 699)
563	Adds Ch. 19.62 and amends §19.08.450, home occupations (19.08, 19.62); Amended by Ord. 923
564	Rezone (Special)
565	Rezone (Special)
566	Rezone (Special)
567	Rezone (Special)
568	Excessive vehicle noise (10.59)
569	Adds Ch. 10.58, off-road use of motor vehicles (10.58)
570	Amends §§13.12.020, 13.12.030, 13.12.060, 13.12.080, and 13.12.100, water and sewer charges (13.12); Sections 1, 2, 3, 4, and 5 repealed by Ord. No. 1026
571	Amends §19.13.010, zoning districts (19.12)
572	Plumbing code, repeals Ord. 510, Repealed by Ord. 1013 (Repealed by 1804)
573	Rezone (Special)
574	Rezone (Special)
575	Rezone (Special)
576	Rezone (Special)
577	Rezone (Special)
578	Rezone (Special)
579	Rezone (Special)
580	Rezone (Special)
581	Rezone (Special)
582	Amends §§12-5 and 12-22 of Ord. 360, traffic (10.52). Amended by Ord. 959. (Repealed by 1663)

Ordinance Number	
583	Rezone (Repealed by 699)
584	Uniform Code for Abatement of Dangerous Buildings, repeals Ord. 483 (Repealed by 741)
585	Rezone (Special)
586	Repeals and reenacts §15.08.010; repeals Ord. 482 and §15.08.020, Uniform Building Code (Repealed by 672)
587	Repeals and reenacts Ch. 15.24; repeals Ord. 484, Uniform Mechanical Code (Repealed by 673)
588	Amends §§19.24.020 and 19.24.050, zoning (19.24)
589	Adopts Uniform Solar Energy Code (15.28) (Amended by Ord. 858). Repealed by Ord. 975.
590	Rezone (Special)
591	Adds Ch. 10.60; repeals §14-1 of Ord. 360, Traffic (10.60)
592	Amends §13.12.050, water lateral construction fee (13.12); Section 1 repealed by Ord. No. 1016
593	Amends §§7.04.060, 7.04.180, and 7.04.210, animals (7.04); Amended by Ord. 927
594	Amends §18.16.025(c), subdivision (18.16)
595	Amends §6.28.070(c)(4); repeals and reenacts §6.28.010(d), personnel (Repealed by 2147)
596	Rezone (Special)
597	Rezone (Special)
598	Rezone (Special)
599	Rezone (Special)
600	Amends §19.44.030, zoning (19.44)
601	Office of director of public safety (Repealed by 1725)
602	Amends §4.04.150; repeals and replaces §4.04.114; repeals Ord. 214, business licenses (Repealed by 800)
603	Amends §§13.04.240 and 13.12.100, water service fees (Not codified)
604	Rezone (Special)
605	Rezone (Special)
606	Annexation (Special)
607	Repeals and reenacts Ch. 4.20, child care facilities (Repealed by 786)
608	Repeals and reenacts §15.08.010; repeals §15.08.020, building code (Repealed by 672)
609	Amends §4.04.146, contractors' license (Repealed by 800)
610	Adopts Uniform Fire Code; repeals Ord. 536 (Repealed by Ord. 872)

Ordinance Number	
611	Amends Article II of Ord. 360; repeals Ord. 474, traffic (Repealed by 1918)
612	Amends §§13.04.240 and 13.12.100, water service fees (13.04, 13.12); Section 2 repealed by Ord. No. 1026; Section 1 repealed by Ord. 1029
613	Rezone (Special)
614	Annexation (Special)
615	Amends §§2-2(3), 2-4(1), 2-8, 2-69 and 2-4 of Ord. 607, child care facilities (Repealed by 786)
616	Outdoor assemblies (Repealed by 2387)
617	Rezone (Special)
618	Rezone (Special)
619	Adds §19.08.040 and subsection (o) to §19.40.030, zoning (19.08, 19.40)
620	Disposition of lost or abandoned property (2.40)
621	Amends §§13.04.100 and 13.08.080, water and sewer mains (13.04, 13.08); Section 1 repealed by Ord. 1029; Section 2 repealed by Ord. 1030
622	Rezone (Special)
623	Rezone (Repealed by 822)
624	Amends §15.16.430, master electricians (Repealed by 643)
625	Rezone (Special)
626	Amends §8.08.070, curfew for minors (Repealed by 1812)
627	Prohibits bludgeoning devices (8.98)
628	Rezone (Special)
629	Amends §§13.04.010, 13.04.030, 13.08.010, 13.08.030; repeals and replaces §13.12.020, water and sewers (13.04, 13.08, 13.12); Section 6 repealed by Ord. No. 1026; Sections 2 and 3 repealed by Ord. 629; Section 4 repealed by Ord. 1030
630	Rezone (Special)
631	Realigns election wards; repeals Ord. 559 (Special)
632	Amends §19.48.020, zoning (19.48), Amended by Ord. 882
633	Amends §6.28.010, civil service attendance and leave provisions (Repealed by 2147)
634	Amends §§13.04.040 and 13.08.040, water and sewer main extensions (13.04, 13.08); Section 1 repealed by Ord. 1029
635	Approves project and bond issue (Special)
636	Creates Water Improvement District No. 752 (Special)
637	Bond issuance (Special)

Ordinance Number	
638	Amends Uniform Building Code §§3802(b) (6), 3802(b) (8) and 3802(b)(9) and Uniform Fire Code §13.301; regulates decisions by fire chief (2.28, 15.32). Repealed by Ord. 981.
639	Adds §4.04.2375, temporary merchants (Repealed by 800)
640	Rezone (Special)
641	Repeals Ord. 533 and adds §5.16.150, garbage collection charges (Repealed by 691)
642	Rezone (Special)
643	Repeals and replaces Ch. 15.16, electrical code (Repealed by 764)
644	Rezone (Special)
645	Rezone (Special)
646	Amends §§19.18.020(c)(1), 19.20.020(c)(1) and 19.22.020(e)(1), zoning (19.18, 19.20, 19.22)
647	Parking for physically handicapped (10.52)
648	Amends §§4.32.180 and 4.40.030; repeals and replaces Ch. 4.44, business regulations (Repealed by 803, 804, 811)
649	Amends §10.52.010, angle parking (10.52). Amended by Ord. 959.
650	Amends Ord. 636 §5, Water Improvement District No. 752 (Special)
651	Adds §19.52.080; zoning reclassification (19.52)
652	Municipal judge salary (Repealed by ord. 907)
653	Amends §§19.20.030 and 19.22.030, zoning (19.20, 19.22)
654	Grants franchise for advertising on benches; repeals Ord. 470 (Repealed by Ords. 948 and 1521)
655	Approves improvement project and bond issuance (Special)
656	Adds §16.22.030, prohibited trailer parking (Repealed by Ord. 978 and 979)
657	Amends subsection (c) of §4.08.160, conditions for jewelry sales (4.08) (Repealed by 838)
658	Annexation (Special)
659	Annexation (Special)
660	Annexation (Special)
661	Issuance of industrial development revenue bonds (Special)
662	Amends §18.20.020, design plans and standards for subdivisions (18.20)
663	Sanitary sewer bonds (Special)
664	Water bonds (Special)
665	Amends §§16.22.010 and 16.22.020, trailer coach (Repealed by Ord. 978 and 979)

Ordinance Number	
666	District No. 752 assessment (Special)
667	Repeals Ord. 530 (Repealer)
668	Rezone (Special)
669	Rezone (Special)
670	Issuance of industrial indemnity bonds (Special)
671	Rezone (Special)
672	Repeals and reenacts §§15.08.010 to 15.08.040, Uniform Building Code, Amended by Ord. 861. (15.08). Amended by Ord. 972. Amended by Ord. 990. Amended by Ord. 1005. Amended by Ord. 1110. (Repealed by 1353)
673	Repeals and reenacts Ch. 15.24, Uniform Mechanical Code. Amended by Ord. 859. Repealed by Ord. 974. (Repealed by 1804)
674	Repeals and reenacts §15.20.010, Uniform Plumbing Code. Amended by Ord. 859 and 869, Modified by Ord. 880. (Repealed by 1804)
675	Rezone (Special)
676	Annexation (Special)
677	Annexation (Special)
678	Annexation (Special)
679	Amends §13.12.040, sewer lateral construction fee (13.12); Section 1 repealed by Ord. No. 2016
680	Adds Ch. 4.98, sale and display of narcotic and other paraphernalia (4.98)
681	Rezone (Special)
682	Rezone (Special)
683	Rezone (Special)
684	Adds Ch. 4.100, vacation certificate business (Repealed by 800)
685	Amends §4.64.120; repeals §4.64.240, pawnbrokers (4.64). Amended by Ord. 958.
686	Rezone (Special)
687	Amends Ch. 4.52, private patrols and special police (Repealed by 806)
688	Rezone (Special)
689	Adds §4.04.360, licensing enforcement authorities (Repealed by 800)
690	Rezone (Special)
691	Repeals and replaces §5.16.150, garbage (Repealed by 1471)
692	Bond issuance (Special)
693	Adds §4.04.1105; repeals and replaces §4.04.222, Ch. 4.68; repeals §4.04.223, secondhand dealers (Repealed by 1303)

Ordinance Number	
694	Adds §19.72.080, zoning (19.72)
695	Adds Ch. 2.29, ambulance fees (Repealed by Ord. 1009)
696	Rezone (Special)
697	Amends §13.12.020, water and sewer connection privilege fees (13.12); Section 1 repealed by Ord. No. 1026
698	Amends §§19.24.020, 19.36.030, 19.42.010, 19.42.070, 19.42.120, 19.42.210, 19.42.280, 19.42.370, 19.52.020, 19.56.020, 19.60.020, 19.72.040, zoning (19.24, 19.36, 19.42, 19.52, 19.56, 19.60, 19.72)
699	Rezone; repeals Ords. 562, 583 (Special)
700	Rezone (Special)
701	Amends §18.16.025, subdivisions (18.16)
702	Amends §§18.28.020, 18.28.030, 18.28.040, 18.28.050, 18.28.060, 18.28.070, subdivision parcel maps (18.28)
703	Rezone (Special)
704	Rezone (Special)
705	Rezone (Special)
706	Rezone (Special)
707	Rezone (Special)
708	Adds §§19.08.850, 19.08.860, 19.08.870; amends §19.40.030, zoning (19.08, 19.40)
709	Adds Ch. 4.18, alarm system regulations. Amended by Ord. 1101. (Repealed by 1343)
710	Adds Ch. 8.99, park use regulations. Amended by Ord. 1042. (Repealed by 1977)
711	Amends Ord. 678, annexation (Special)
712	Repeals and replaces Ch. 15.44, swimming pool regulations (Repealed by 862)
713	Adds Ch. 15.02, building permit and inspection fee schedules (15.02)
714	Annexation (Special)
715	Annexation (Special)
716	Rezone (Special)
717	Rezone (Special)
718	Amends §13.12.090, 13.12.100, water service charges (13.12); Sections 1 and 2 repealed by Ord. No. 1026
719	Annexation (Special)
720	Rezone (Special)
721	Rezone (Special)

Ordinance Number	
722	Bond issuance (Special)
723	Annexation (Special)
724	Rezone (Special)
725	Rezone (Special)
726	Amends §§4.12.010, 4.12.040(k), 4.12.040(n), 4.12.050 and 4.12.060, charity solicitations (Repealed by 2382)
727	Adds §4.98.050, paraphernalia (4.98)
728	Adds §§13.04.095, 13.08.075, sewer rates (13.04, 13.08); Section 2 repealed by Ord. Nos. 1029 and 1030
729	Amends §13.04.550, water rates (Repealed by Ord. 1029)
730	Amends §§4.68.010, 4.68.050, 4.68.060, 4.68.160, 4.68.200, 4.68.230, antique dealers; repeals §§4.68.115, 4.68.190, 4.68.220 (Repealed by 1303)
731	Water bond ordinance (Special)
732	Rezone (Special)
733	Amends §15.24.050, Uniform Mechanical Code, Repealed by Ord. 974. (Repealed by 1802)
734	Amends §15.20.100, Plumbing Code, Repealed by Ord. 1013 (Repealed by 1804)
735	Repeals and replaces §15.16.010(B), Electrical Code (15.16)
736	Amends §18.16.020, final map (18.16)
737	Amends §§4.32.030, 4.32.110, gambling (Repealed by 744)
738	Amends §4.04.164, business licenses (Repealed by 800)
739	Improvement District (Special)
740	Extends City Limits (Special)
741	Uniform Code for the Abatement of Dangerous Buildings, 1979 Edition, adopted by reference; repeals Ord. 584 (15.10) (Repealed by Ord. 860)
742	Amends §§15.08.050, 15.08.060 and 15.08.070, Uniform Building Code (Repealed by 1801)
743	Amends §15.36.020, moving buildings (15.36)
744	Amends §§4.32.030 and 4.32.110, gaming licenses; repeals Ord. 737 (Repealed by 803)
745	Adds §4.04.1965, betting establishments (Repealed by 800)
746	Adds §19.16.140, Zoning (19.16)

Ordinance Number	
747	Adds §§15.20.012 and 15.20.015, Uniform Plumbing Code, Amended by Ord. 880 (Repealed by 1804) 748[*] [*] Editor's Note: Ord. 748, adding industrial waste control provisions as Ch. 13.12, conflicts with existing Ch. 13.12; therefore, new material was added as new Ch. 13.16. Adds Chs. 13.10 and 13.12, public services; repeals §§13.08.290 and 13.12.110 (13.10, 13.16) Amended by Ord. 963; Section 2 repealed by Ord. No. 1025
749	Annexation (Special)
750	Improvement District No. 792 (Special)
751	Adds §§19.42.045, 19.42.047, 19.42.051, 19.42.054, 19.42.055, 19.42.057, 19.42.085, 19.42.105, 19.42.115, 19.42.530, 19.42.540, 19.42.550 and 19.42.560, townhouse and condominium conversion (19.42)
752	Amends §§13.04.240, 13.08.250 and 13.12.100, water and sewer service charges (13.04, 13.08, 13.12); Section 3 repealed by Ord. No. 1026; Section 1 repealed by Ord. 1029; Section 2 repealed by Ord. 1030
753	Realignment of wards; repeals Ord. 559 (Special), Repealed by Ord. 886
754	Annexation (Special)
755	Annexation (Special)
756	Adds §15.08.035, Uniform Building Code (Repealed by 1801)
757	Improvement District No. 754, interim warrants (Special)
758	Rezone (Special)
759	Adds Ch. 7.08; amends §§7.04.410, 7.04.420, 7.04.440, 19.16.130 and 19.48.020, animal establishments (7.04, 7.08, 19.16, 19.48)
760	Approves bond purchase agreement (Special)
761	Adds Ch. 4.22, dating and escort bureaus (Repealed by 1435)
762	Adds §§4.64.270 and 4.64.280; amends §4.68.020, business licenses (4.64)
763	Improvement District No. 792, interim warrants (Special)
764	Repeals and replaces Ch. 15.16, electrical code (15.16), Amended by Ord. 873. Repealed by Ord. 1019.
765	Rezone (Special)
766	Rezone (Special)
767	Annexation
768	Annexation (Special)
769	Rezone (Special)
770	Rezone (Special)

Ordinance Number	
771	Industrial development revenue bonds (Special)
772	Amends §4.64.230, pawnshops (4.64)
773	Construction loan revenue bonds (Special)
774	Annexation (Special)
775	Improvement District No. 803 (Repealed by 824)
776	Amends §13.04.290, water bills (Repealed by Ord. 1029)
777	Industrial development revenue bonds (Special)
778	Community cable TV franchise (Repealed by 1859)
779	Improvement district (Special)
780	Amends §§13.12.090 and 13.12.100, water service (13.12); Sections 1 and 2 repealed by Ord. No. 1026
781	Repeals Ch. 4.88 (Repealer)
782	Amends §8.02.020, violation of state law (8.02)
783	Adds Ch. 10.23, driving under influence (10.23)
784	Rezone (Special); Section 3 repealed by Ord. No. 1031
785	Amends §§13.16.030 (e) and 13.16.050 (d), industrial wastewater discharge (13.16); Repealed by Ord. No. 1031
786	Repeals and reenacts Ch. 4.20, child care facilities (Repealed by 841)
787	Rezone (Special)
788	Repeals Ch. 15.04 (Repealer)
789	Annexation (Special)
790	Adds §13.10.035, wastewater treatment plant debt service rates and charges (13.10). Amended by Ord. 962; Section 1 repealed by Ord. No. 1025
791	Amends §13.10.030, sewer rates (13.10). Amended by Ord. 963.
792	Adds Ch. 2.44, attestation of agreements (Repealed by Ord. 984)
793	Improvement district (Special)
794	Improvement district (Special)
795	Improvement district interim warrants (Repealed by 824)
796	Amends electrical code (15.16)
797	Adds §15.20.185 and amends §15.20.170, plumbing, Repealed by Ord. 1013 (Repealed by 1804)
798	Adds §15.08.080, building code (Repealed by 1801)
799	Adds §15.24.060, mechanical code. Repealed by Ord. 974. (Repealed by 1802)

Ordinance Number	
799A	Adds §15.20.030 and 15.08.037; amends Ch. 15.16 and §§15.20.100, 15.24.050 and 15.28.030; buildings and construction (Repealed by 819)
800	Adds Chs. 4.04 and 4.05, business license (4.04, 4.05); Amended by Ord 890; Amended by Ord. 908. Repealed by Ord. Nos. 1112 and 1113.
801	Adds Ch. 4.15, handbills (4.15)
802	Repeals and reenacts Ch. 4.36, liquor (Repealed by Ord. 1116)
803	Repeals and reenacts Ch. 4.32, gambling (Repealed by Ord. 1115)
804	Repeals and reenacts Ch. 4.44, employee registration (4.44)
805	Adds Ch. 4.46, health clubs, spas, weight reduction salons and clubs (Repealed by 2023)
806	Repeals and reenacts Ch. 4.52, private patrols and investigators (4.52)
807	Repeals and reenacts Ch. 4.72, solicitors and peddlers (Repealed by 1302)
808	Adds §4.74.025 and amends §4.74.110, swap meets (4.74). Repealed by Ord. 997; creates Multiple Vendor Arena Sales.
809	Amends §§4.80.040 and 4.80.050, ambulance service (Repealed by 1750)
810	Improvement district (Special)
811	Repeals Chs. 4.16, 4.24, 4.30, 4.40, 4.56 and 4.60 (Repealer)
812	Improvement district (Special)
813	Improvement district (Special)
814	Rezone (Special)
815	Rezone (Special)
816	Rezone (Special)
817	Industrial development revenue bonds (Special)
818	Improvement district (Special)
819	Adds §§15.02.030 and 15.08.037; amends Ch. 15.16 and §§15.20.100, 15.24.050 and 15.28.030; buildings and construction (15.02, 15.16, 15.28); Amended by Ord. 895; Amended by Ord. 902 (15.02.030, Section 7 §a. Amended by Ord. 974. Amended by Ord. 975. Repealed by Ord. 1013 (§15.08.037 repealed by Ord. 1801)
820	Adds Ch. 838, imitation controlled substances (8.38)
821	Rezone (Special)
822	Rezone; repeals Ord. 623 (Special)
823	Amends §§3, 4 and 5 of Ord. 793, improvement district (Special)
824	Repeals Ords. 775 and 795 (Repealer)

Ordinance Number	
825	Rezone (Special)
826	Adds §17.05.175, travel trailer parks (17.05)
827	Adds §§15.20.125 and amends §§15.20.020, 15.20.050, 15.20.080, 15.20.420, 15.20.430 and 15.20.440, plumbing (Repealed by 1804)
828	Amends §§19.32.050, 19.04.060 and 19.48.060, zoning (19.32, 19.40, 19.48)
829	Improvement district (Special)
830	Amends Ord. 818 Creating Henderson, Nevada Local Improvement District No. 801 (Mission Hills Estates) (Special)
831	Amends 5.16.150 of Ordinance 691 New Charges for collection, hauling and disposing of garbage, refuse and rubbish, Amended by Ord. 883 (Repealed by 1471)
832	Improvement District No. 752 Bond Ordinance (Section 4)
833	Improvement District No. 754 Bond Ordinance (New Horizons) (Special)
834	Improvement District No. 792 Bond Ordinance (Moser Drive) (Special)
835	Amends Ord. 665 16.22.020 Mobile Home Permits Prior to Parking (Repealed by Ord. 978 and 979)
836	Amends Ord. 780 13.12.100 Providing increases in monthly water service charges and fees; Section 1 repealed by Ord. 1026
837	Amends 13.10.030 Ord. 748 and 791 Providing increases in monthly sewer service charges and fees. Amended by Ord. 963; Section 1 repealed by Ord. 1025
838	Repeals Ords. 64 and 657 4.08 Auctions and Auctioneers
839	Amends 10.52.230 Ord. 647 Parking for Physical Handicapped
840	Amends 19.35 Ords. 420, 421 and 404 by adding 19.40.030(p) Section 4 Ord. 421 deleted 17.020.010 subsection (b) deleted Travel Trailer Parks
841	Repeals Ord. 786 Amends Title 4 by repealing 4.20 Ord. 786 Child Care
842	Rezone (Special)
843	Amends 4.04 and 4.05 Ord. 800 Business License defines Bookkeeper and Broker (Repealed by Ord Nos. 1112 and 1113)
844	Amends 13.12.100 Ord. 836 Water Service; Sections 1 and 5 repealed by Ord. No. 1026
845	Improvement District No. 803 (Green Valley) Collection and Payment (Special)
846	Repeals Ord. 377; Adds Signs 15.41; Amended by Ord. 1028
847	Amends Ord. 695 Ambulance Fees (Repealed by 1009)
848	Adds Chapter 15.50 Flood Damage Prevention

Ordinance Number	
849	July 1982 Bond Ordinance (Special)
850	Amends Ord. 99 Pawnshops (4.64 §18)
851	Amends Ord. 693 Secondhand dealers (Repealed by 1303)
852	Amends Ord. 99 Pawn Records (4.64.140)
853	Amends Ord. 487 Zoning (Repealed by 864)
854	Amends Ord. 709 Alarm Systems. Amended by Ord. 1101 (Repealed by 1343)
854-A	Amends Ord. 404 Construction Tax—Park Fee (Repealed by 910)
855	Amending HMC 5.16.070 Garbage Collection Service requirement, Penalty for Non-Payment 5.16.160; Charges are dept to Contractor 5.16.170. Provides termination of service and enforcement of liens. Amended by Ord. 1224 (Repealed by 2545)
856	Amending Ord. 15 Section 1 Exempting Convention Center from prohibition against serving intoxicating Liquor (Repealed by 867)
857	Amending Ord. No. 404 Rezoning portion of Section 12, T22S, R62E from C-2 to R-3 (U.S. Homes) (Special)
858	Amending HMC 15.28.010 & 15.28.020 Uniform Solar Energy Code. (Repealed by 975)
859	Amending HMC 15.20.010 adopting 1982 Uniform Mechanical Code deleting Sections 15.24.030 and 15.24.040. Amended by Ord. 974. Amended or repealed by Ord. 1110. (Repealed by 1804)
860	Amending HMC 15.10 adopting 1982 Uniform Code for Abatement of Dangerous Buildings. (15.10) Amended by Ord. 966. Amended or repealed by Ord. 1110.
861	Amending HMC 15.08 adopting 1982 Uniform Building Code and Nevada Energy Code. Amended by Ord. 972. Amended by Ord. 990. Amended or repealed by Ord. 1110 (Repealed by 1353)
862	Deleting HMC 15.44 established by Ord. 712 and creating new Chapter 15.44 Administration of Swimming Pool Construction. Amended by Ord. 944 (Repealed by 977)
863	Amending Ord. 404 Rezoning portion of Block 15, Henderson Townsite Subdivision from R-2 to C-2 (Donald Coplin)
864	Repealing Ord. 853 and Amending Ord. 487 deleting subsection (b) 19.40.030 and adding (b) 19.40.050 Amending (a)(1) & (.40)
865	New Chapter HMC 8.03 "Police Canine Units" (8.03)
866	Extending City Limits 45 acres Section 32, T21S, R62E (S-1/2) (Whitney Mesa)

Ordinance Number	
867	Repealing Ord. 856 and Amending Ord. 15 Convention Center exempted from Prohibition against serving liquor. (8.40) Amended by Ord. 1102
868	Amending Ord. 404 Rezoning E-1/2 Section 1, T22S, R62E from R-R, M, R-4 & R-1 to R-2 and R-3 and C-1
869	Amending 15.20.010 Plumbing Master and Journeymen Examination Fees. Repealed by Ord. 1013 (Repealed by 1804)
870	Amending Ord. 417, Subsection (d) Chapter 19.18.020; Amending Ord. 404, Chapter 19.08.260; Defining "Child Care Facility" in Chapter 19.20.020; Subsection (b), Chapter 19.20.030; Subsection (d), Chapter 19.24.020; Subsection (c), Chapter 19.24.030; Subsection (d), Chapter 19.26.020; Subsection (b), Chapter 19.32.030; Subsection (b)(3)(C), Chapter 19.38.020; Subsection (b)(7), Chapter 19.40.020; Adding Subsection (f), Chapter 19.22.020; Subsection (h), Chapter 19.22.030; Subsection (c), Chapter 19.36.020; Subsection (e), Chapter 19.37.020
871	LID 803, Bond Ordinance (Special)
872	The National Fire Codes, 1982 Edition, The Uniform Fire Code, 1982 Edition, the Life Safety Code, 1981 Edition, Repealing Ord. No. 610. (Repealed by Ord. 981)
873	Amending Title 15, Chapter 16, Adopting Amended Supplemental Document, Electrical Codes, 1981 Edition; Amended by Ord. 887. Amended by 981. (Repealed by Ord. 1019)
874	Repeal Ord. 473 and 501; create Commemorative Beautification Commission. Amended by Ord. 1008. (Repealed by 1916)
875	Amend Ord. 404; reclassify pt. NW-1/4, SE-1/4, S.32, T.21S., R.62E. from C-2 to MP; Wheeler, Wray
876	Amend Ord. 404; reclassify pt. NE-1/4, S.24, T.22S., R.62E. from R-R to R-1; Leydecker, Robert
877	LID 801, Assessment Ordinance (Special)
878	L.V.C.V.A. Refunding Bonds, Series December 1, 1982, Bond Resolution (Special)
879	Amend Ord. 505, Chapter 19.42.010, 19.42.200, 19.42.210, 19.42.280, 19.42.290, 19.42.300, 19.42.350; remove requirements for City Council to conduct public hearings on PUD applications and requiring Planning Commission to conduct public hearings on PUD applications
880	Modify Ord. 747 as amended by Ord. 747 by adopting 1982 Uniform Plumbing Code, (Repealed by Ord. 1013)

Ordinance Number	
881	Amend Ord. 404; reclassify pt. SW-1/4, S.12, T.22S., R.61E. from R-R to R-2; Fleck, Julius
882	Amend Ord. 632 by amending Chapter 19.48.020 and amend Ord. 404 by amending Chapter 19.48.030; requiring use permit in an M zone for any use permitted in a C-2 zone
883	Amend Ord. 831, establishing new charges for collection of garbage. Amended by Ord. 1085. (Repealed by 1471)
884	Amend Ord. 404; reclassify pt. SE-1/4, SW-1/4, S.19, T.22S., R.63E., from R-E to C-1; Sepede, Elmer and Linde, William
885	Amend Ord. 404; reclassify pt. S.8, T.22S., R.63E., from R-1 to C-1, Cox, Mary Burns
886	Repeal Ord. 753; Realign election wards according to population, 1980 Census. Amended by Ord. 954 (Repealed by Ord. 1041)
887	Amend Ord. 873; Amend Supplemental Document Sections 3, 5, and 8. (Repealed by Ord. 1019)
888	Amend Ord. 404; reclassify pt. S.33, T.21S., R.63E., from R-R to R- (Melvin Bagley)
889	House Conversions, prohibiting conversion to commercial (Repealed by Ord. 904);
890	Amend Ord. 800; Video Rental Stores, definitions and licensing requirements; providing that adult movie titles must be stored so only titles show; prohibit sale or lease to minors; Amended by Ord. 909
891	LID 813 (Sunset Road III); Assessment Ordinance
892	Amend HMC 19.72 extending deadline for consideration of architectural reviews by Planning Commission
893	Amend HMC Title 19.08.790, Use, Semi-public; 19.16.150, Airports and Landing Strips; 19.48.020, Uses Permitted.
894	LID 801 (Mission Hills Estates); Bond Ordinance; authorizing issuance of Series 1983A and Series 1983B
895	Amend Ord. 819; Combined Permits for residential buildings and structures (Repealed by Ord. 902)
896	Amend HMC Title 15.02.030(e); After-hour Inspections, Special Inspections and Reinspection Fees
897	Amend HMC Title 6.52.020(c)(1); Civil Service investigation/inquiry to be completed within 45 calendar days
898	Amend HMC Title 19.08 Adding clarification and definitions

Ordinance Number	
899	Amend Ord. 404; reclassify pt. S.7, T.22S., R.63E. from R-R to R-3; D & R Investments
900	Public Improvement Trust Revenue Bonds for Maury Abrams; $4,300,000
901	Misco, Inc. CATV franchise (Repealed by 1521)
902	Amend HMC Title 15.02.03, Section 7 §a, (Ord. 819); Repeal Ord. 895; Combined Permit Fees Revised
903	Amend HMC Title 19.60.020, Use Permit Co-application and expiration/termination of use permit; non-conforming uses
904	Amend HMC 15.75, House Conversions; Repeal Ord. 889.
905	Amend HMC 15.18.220, Requests for Waiver of Requirements; Amend Ord. 48
906	Amend HMC 19.16.110, delete Section 19.16.110; Amend Ord. 404; Clearing of lands.
907	Municipal Judge salary, setting of; Repeal Ord. 652. (Repealed by Ord. 1023)
908	Amend HMC 4.05.020; Sewer services; semiannual license fee required; Amend Ord. 800. Repealed by Ord. 1113.
909	Amend HMC 4.102; Video Rental Stores, definitions and licensing requirements; providing for adult movie storage; Amends Ord. 890
910	Repeals Ord. 854-A; park construction tax
911	LID 824; ordinance creating district
912	Amend Ord. 404; reclassify to R-1 and C-V; pt. S.5, T.22S., R.62 E. (American Nevada Corp.)
913	Southwest Gas Corporation franchise (Repealed by 1521)
914	10-1-83 Bond ordinance; $5,100,0000 Various purpose bonds
915	Amend Ord. 404; reclassify to R-3; pt. S.17, T.22S., R.63E. (Cabrillo Terrace)
916	Annexation pt. S.6, T.22S., R.62E.; 1.85 acres (Demetlin). Repealed by Ord. 950.
917	Annexation pt. S.6, T.22S., R.62 E.; 1.2668 acres (Ross). Repealed by Ord. 950.
918	LID 812; assessment ordinance
919	LID 815; assessment ordinance
920	Amend Ord. 404; reclassify to R-2 and R-3; pt. S.1, T.22S., R.62E. (U.S. Home Corp.)
921	Amend Ord. 404; reclassify to R-3; pt. S.6, T.22S., R.62E. (West Coast Holdings)

Ordinance Number	
922	Amend Ord. 404; reclassify to C-1; pt. Lot 2, S.6, T.22S., R.62E. (Jack Riley)
923	Amend HMC 19.64 Building permits and HMC 19.72 Architectural reviews and control;
924	Annexation pt. S.6, T.22S., R.62E.; 5.00 acres (Laporere). Repealed by Ord. 950.
925	Amend Ord. 404; reclassify to C-2; pt. S.4, T.22S., R.63E. (Donald M. Marker)
926	Records management program, established; HMC 2.47
927	Animal licensing requirements and fees; Amend Ord. 593 and 341
928	LID 812 (Sunset Road) Bond ordinance.
929	LID 813 (Sunset Road III) Bond ordinance.
930	LID 815 (Sunset Road II) Bond ordinance.
931	Amends Ord. 404; reclassify pt. S.25, T.22 S., R. 62 E. from R-R to CV; Broadcast Sites and City of Henderson.
932	Amends Ord. 404; reclassify pt. S. 36, T. 21 S., R. 62 E., from R-R to CV; City of Henderson.
933	Home Occupation permits re: construction trades contractors, service truck operators and similar businesses; Amends 19.62.020 (Amends Ord. 404).
934	Annexation; pt. S. 9, T. 22 S., R. 62 E., 80 acres. (Repealed by Ord. 942)
935	Amends Ord. 404; reclassify pt. S. 18, T. 22 S., R. 63 E. and pt. S. 13, T. 22 S., R. 62 E. from R-4 to R-1; Townsite Area Neighborhood Group.
936	Amends Ord. 404; reclassify pt. S. 18, T. 22 S., R. 63 E. from R-1 to C-2; Annual Argier.
937	LID 821; Creation ordinance.
938	Amends Ord. 404; reclassify pt. S. 13, T. 22 S., R. 61 E. from R-R to R-2; W & S Limited Partnership.
939	Amends Ord. 404; expands prohibition of certain uses in residential zoning districts by applying such prohibition to districts with a "T" prefix; Amends HMC 19.16.030.
940	Property Addressing; creates HMC Cp. 19.82; Repeals HMC Chapter 15.56; Ord. 560.
941	LID 824; Assessment Ordinance.
942	Annexation; pt. S. 9, T. 22 S., R. 62 E, 80 acres; Repeals Ord. 934.
943	One cent per gallon tax on motor fuel to be used for street maintenance.

Ordinance Number	
944	Swimming pool; re: permanent barrier required; Amends HMC 15.44.05; Amends Ord. 862. Repealed by Ord. 977.
945	Amends Ord. 404; reclassify pt. S. 19, T. 22 S., R. 63 E. from R-E to C-1; Paul and Charlotte Yakubik.
946	Property development standards; Amends HMC 19.24.050; Amends Ord. 404.
947	Lincoln Green Apartment Project; Public Improvement Trust; $12,750,000.
948	Franchise to place advertising on benches; Henderson Jaycees; Repeal Ord. 654 (Repealed by Ords. 1155 and 1521)
949	Annexation; pt. S. 9, T. 22 S., R. 62 E.; 39.564 acres.
950	Annexation; pt. S. 6, T. 22 S., R. 62 E.; 1.85 acres; Repeal Ord. 916; pt. S. 6, T. 22 S., R. 62 E.; 1.2668 acres; Repeal Ord. 917; pt. S. 6. T. 22 S., R. 62 E.; 5 acres; Repeal Ord. 924.
951	Annexation; pt. S. 10, T. 22 S., R. 62 E.; 80 acres.
952	Annexation; pt. S. 9, T. 22 S., R. 62 E.; 79.4705 acres.
953	Bonds; General Obligation Flood Control Bonds; $1,200,000.
954	Elections; add Precinct 20 to Ward II; Amends Ord. 886; (Repealed by Ord. 1041)
955	LID 821; Assessment ordinance.
956	Amend Ord. 404; reclassify pt. S. 18, T. 22 S., R. 63 E. from R-1 to C-1; J. Eduardo Lopez.
957	Franchise; Henderson Taxi (Repealed by 1650)
958	Licensing; Pawnbrokers; Amend HMC 4.64.120, 4.64.210, 4.64.290; Amends Ord. 685 §1 and Ord. 99 §21.
959	Parking-Civil; Amends Ords. 649 §1, 360 §12-1, §12-3, §12-5, §12-8, §12-7, §12-18, §12-21, §13-3, §13-4, §13-6, Ord. 582 §1. (Repealed by 1663)
960	Mayor and Councilmembers salaries. (Repealed by Ord. 1023)
961	Not adopted.
962	Waste water treatment plant debt service rates and charges; Amends HMC 13.10.035; Amends Ord. 790.
963	Sewer service charges and rates; Amends HMC 13.10.030; Amends Ord. 748 §2, 791, and 837.
964	Senior Citizens Advisory Commission membership requirements; Amends HMC 2.22.040; Amends Ord. 551. (Repealed by 1915)
965	Rear yard setback requirements in any R-1 District; Amends HMC 19.24.050; Amends Ord. 404.

Ordinance Number	
966	Uniform Code for Dangerous Buildings Abatement; Amends HMC 15.10.010 and 15.10.015; Amends Ord. 860. Amended or repealed by Ord. 1110.
967	Annexation; pt. S. 9, T. 22 S., R. 62 E.; 39.9121 acres.
968	Convention Center sign; accepting funds from Henderson Public Improvement Trust.
969	Fire Protection Bonds; $925,000.
970	Radio Reception interference; Amends HMC 8.72; Amends Ords. 55 and 141.
971	Public nuisance abatement; Repeals Ord. 363 §1 and 2 and Ord. 363 (Repealed by 2481)
972	Uniform building code; Amends HMC Chapter 15.08; Amends Ords. 861 and 672. Amended by Ord. 1005. Amended or repealed by Ord. 1110. (Repealed by 1353)
973	Pouring of concrete without building permit; Repeal Ord. 179.
974	Mechanical Code; Amends HMC 15.24.010, Repeals HMC. 15.24.020, 15.24.050, and 15.24.060; Amends Ords. 859, 819, 673, 733, and 799. Amended or repealed by Ord. 1110. (Repealed by 1802)
975	Uniform solar energy code; Repeals HMC Chapter 15.18; Amends Ord. 858, 589, 819.
976	Moved buildings; HMC Chapter 15.36; Amends Ords. 317, 59 and 3. (Repealed by 2736)
977	Swimming Pools; HMC Chapter 15.44; Amends Ords. 944, 862, and 712. Amended by Ord. 993. (Repealed by 1805)
978	Temporary Dwelling Units; HMC Chapter 15.60; Amends Ords. 419, 656, 665, and 835. Amended by Ord. 986; adds penalty.
979	Trailer Coach Parking, Repeals HMC 16.22.010—16.22.030; amends Ords. 665 and 419.
980	LID 803 Equivalency fees.
981	Fire Prevention; HMC Chapter 15.32; Amends Ords. 83, 872, 873. (Repealed by 1389)
982	Building operations, temporary waiver of hours; Amends HMC 8.84.020(h); Amends Ord. 31.
983	Bonds; General Obligation Municipal Utility (Sanitary Sewer) Refunding bonds, $2,980,000; Bond Ordinance.
984	City Clerk: Additional Duties and Authorizations; Repeals Ord. 792.

Ordinance Number	
985	City Council meeting time, date, and place of meeting; Repeals Ords. 268 and 391. (Repealed by 1305)
986	Temporary Dwelling Units; penalty for violation; Amends Ord. 978.
987	Amends Ord. 404; reclassify pt. S. 29, T. 22 S., R. 63 E. from R-1 to CV; City of Henderson.
988	Annexation; pt. S. 2, T. 23 S., R. 63 E.; 51.266 acres; Railroad Pass.
989	Amends Ord. 404; pt. S. 4, T. 22 S., R. 62 E.; pt. S. 33, T. 21 S., R. 62 E. from M, R-R and TE to R-E, R-1 and R-2; Whitney Ranch and City of Henderson.
990	Uniform building code; exemptions; Amends Ord. 861 and 672. Amended or repealed by Ord. 1110. (Repealed by 1353)
991	Amends Ord. 404; pt. S. 9, T. 22 S., R. 62 E. from R-R to R-1; Metropolitan Development Corp.
992	Amends Ord. 404; pt. S. 2, T. 23 S., R. 63 E. from R-R to C-2; Robert J. Verchota and Gold Strike Inn & Casino (Railroad Pass).
993	Swimming Pools; Definitions; Amends Ord. 977 (Repealed by 1805)
994	Final Maps; HMC Chapter 18.16; Repeals Ords. 411, 398 and portions of 392.
995	Emergency Management; HMC Chapter 2.24. (Repealed by Ord. 1144)
996	Special Events; HMC Chapter 8.10. (Repealed by 2020)
997	Multiple Vendor Arena Sales; HMC Chapter 4.74; Repeals Ords. 543 and 808.
998	LID 834 (Sunset Road IV); Creation ordinance.
999	Amends Ord. 404; pt. S. 33, T. 21 S., R. 63 E. from R-R to MP; Michael H. and Shelia M. Dwyer and Melvin J. and Barbara G. Bagley.
1000	Gold Bond Ice Cream and Water Novelties Manufacturing; Henderson Public Improvement Trust; $8,000,000.
1001	Syndico-ICG Nevada Fund IV Ltd. Project; Henderson Public Improvement Trust; $7,200,000.
1002	Pueblo Verde II Apartments Project; Henderson Public Improvement Trust; $11,500,000.
1003	E. A. Collins (Hoyne Mirror); Henderson Public Improvement Trust; $3,000,000.
1004	Amend Ord. 404; pt. S. 13, T. 22 S., R. 61 E.; from R-A to R-2; Collins Brothers Corp.
1005	Uniform Building Code; Define "structure"; Amends Ord. 972 and 672. Amended or repealed by Ord. 1110. (Repealed by 1353)

Ordinance Number	
1006	Amend Ord. 404; pt. S. 22, T. 22 S., R. 62 E., and pt. S. 36, T. 22 S., R. 61 E.; from C-V to R-E; Horizon Investment Groups I through IV/Mattco Develop. Corp.; (Repealed by Ord. No. 1010)
1007	LID 834; Ordinance Against Creating District.
1008	Commemorative Beautification Commission; increase membership to seven; Amend Ord. 874. (Repealed by 1916)
1009	Ambulance Services; set fees; Repeals Ords. 695 and 847. (Repealed by 1751)
1010	Amend Ord. 404; pt. S. 22, T. 22 S., R. 62 E., and pt. S. 36, T. 22 S., R. 61 E.; from C-V to R-E; Horizon Investment Groups I through IV/Mattco Develop. Corp.; Repeals Ord. 1006.
1011	Amend Ord. 404, S. 18, T. 22 S., R. 63 E., R-1 to R-4.
1012	Amend Ord. 404; S. 5, T. 22 S., R. 62 E.; R-1 to R-1.
1013	Plumbing Code, Uniform; HMC 15.20; Repeals Ords. 572, 734, 797, 819, 827, 869, 880. Amended or repealed by Ord. 1110. (Repealed by 1566)
1014	Commercial building shell defined, Amends HMC 15.02.030.
1015	City Council meeting time, date, and place. Repeals Ord. 328.
1016	Reserve Call Fire Department and Civil Defense; Repeal Ords. 207 & 263.
1017	Amend Ord. 404; S. 2, T. 22 S., R. 62 E. from TR to M.
1018	Electronic stun device, unlawful use of. Amend HMC 8.98.
1019	Electrical Code. Repeals Ord. 764 and 873. Amended by Ord. 1059. (Repealed by Ord. 1179)
1020	Survey monumentation. Repeals Ord. 392, Section J, Section 18.20.110.
1021	Telephone Solicitations and Advertising Specialties (Telemarketing), HMC. 4.99. (Repealed by 1081)
1022	Mayor and Councilmen salaries. Repeals Ord. 960. Amended by Ord. Nos. 1109, 1121. (Repealed by 1831)
1023	Municipal Judge salaries. Repeals Ord. 907.
1024	LID 834, Assessment Ordinance.
1025	Sewer/User Charges; Repeals Ord Nos. 748 §2, 790 §1, 791 §1, 837 §1. (Repealed by 2536)
1026	Water and Sewer Fee, Rates and Charges; (HMC 13.12); Repeals Ord. Nos. 475 §4, 511 §1, 558 §1, 570 §1-5, 592 §1, 612 §2, 629 §6, 679 §1, 697 §1, 718 §1 & 2, 752 §3, 780 §1 & 2, 836 §1, 844 §1 & 5. Amended by Ord. 1056.

Ordinance Number	
1027	Amend HMC 19.16.030, 19.16.130; delete 19.24.050; Amend Ord Nos. 404 (part), 939 §1. (Repealed by Ord. 1120)
1028	Sign/political campaigns, amends HMC 15.41.020(1); Amend Ord. No. 846 §2 (part). (Repealed by Ord. 1120)
1029	Water/Rates and Regulations; Repeals Ord. Nos. 475 §2, 612 §1, 621 §1, 629 §2 & 3, 634 §1, 728 §2, 729, 752 §1, 776 (Repealed by 2536)
1030	Sewer/Rates and Regulations; Repeals Ord. Nos. 475 §3, 621 §2, 629 §4, 728 §2, 752 §2 (Repealed by 2536)
1031	Industrial Waste Control and Pretreatment Program; 784 §3, 785. Amended by Ord. 1043. (Repealed by Ord. 1164) (Repealed by 2536)
1032	Collins Bros./Z-9-84/pt. S. 13, T. 22 S., R. 61 E.; Amend Ord. 404.
1033	Sewer/October 1986 Sewer Bonds Ordinance.
1034	Water/October 1986 Water Bonds Ordinance.
1035	Coleman Company/Z-14/86/pt. S.8, T.22S., R.62E.; from R-2 to R-1; Amend Ord. 404.
1036	GOB/11-1-86 Bond ord./Various Purpose Bonds.
1037	Industrial Medical Group of LV/pt. S18, T.22S., R.63/R-4 to C-1; Amend Ord. 404.
1038	ANC/Z-10-86/Sec 7 & 8, T22S, R62E/Chg M, CV, R1, R2 & R4 to R1, R2 & R4; Amend Ord. 404.
1039	PIT/Berry Plastics, Inc./$9,500,000.
1040	City of Henderson/Z-17-86/S.4. T.22S., R.62E.; Amend Ord. 404.
1041	Elections/Establish Wards/Repeal Ord. Nos. 886 and 954. (Repealed by Ord. 1111)
1042	Parks/Glass beverage containers and posted closing times; Amend HMC 8.99.030. Amends Ord. 710. (Repealed by 1977)
1043	Industrial Waste Control and Pretreatment Program/Amends Ord. 1031. (Repealed by 1164)
1044	LID 821/Issuance of Bonds/as if an Emergency Exists
1045	LID 834/Issuance of Bonds/as if an Emergency Exists
1046	Park Dev./Group Use Fees (Repealed by 1977)
1047	Fees charged for zone changes, vacations and comp. plan amendments. (Repealed by Ord. 1120)
1048	Aswegan, Joe and Alam/Z-1-87/S.18, T. 22S., R.63E./R-1, C-2 to C-1. Amends Ord. 404.
1049	Ranch Mall Ltd./Z-6-87/S.3, T.22S., R.62E./M to C-2. Amends Ord. 404.

Ordinance Number	
1050	Flood Control/Uniform Regulations; CC Flood Control Dist/Repeal Ord. 513 & 848. Amended by Ord. 1100.
1051	Change sideyard setback to 10 feet adjacent to a street. (Repealed by Ord. 1120)
1052	Community Church of Henderson/Z-4-83/R-E to CV/S.19, T.22S., R.63E. Amends Ord. 404.
1053	Kennedy, Ken/Z-4-82/S.4, T.22S, R.63E, f/ RR to C-2. Amends Ord. 404.
1054	Animal Control, inspection, licensing & regs/Amend HMC 7.04. Amended by Ord. 1167.
1055	Re-use Water Rates & Regulations; Add Chapter 13.06 H.M.C./Amended by Ord. 1099. Amended by Ord. 1056 (Repealed by 2536)
1056	Water, Sewer and Re-Use Water Fees, Rates and Charges; HMC 13.12 to add provision on re-use water utilization. Amends Ord. 1026, 1055.
1057	Young American Homes/S.13, T.22S, R.61E from R-2 to R-1. Amends Ord. 404.
1058	Billboard Signs (Repealed by Ord. 1120)
1059	Codes/Electrical Code, amend HMC 15.16. Amends Ord. 1019. (Repealed by 1565)
1060	Annexation/J.H.R. Corp./ANX-1-87/S. 31, T. 21 S., R. 62 E./5 acres
1061	A. L. Enterprises/ANC/Z-21-87/MP to R-1
1062	Green Valley Invest. & Nelson Develop./Z-22-87/S.8, T.22S, R.62E - MP to R-1
1063	Mack, Jerome & American Nv. Corp./Z-18-80/S.6, T.22S, R.62E/R-1 & CV to R-2. Amends Ord. 404.
1064	Flood Control/Uniform Regulations; CC Flood Control Dist/Amend Ord. 1050. Amended by Ord. 1100.
1065	Boulder Highway Imp./$3,000,000/12-1-87 Bond Ordinance
1066	Intercontinental Capital Group/Z-9-85/S.4, T.22S, R.62E to R-3
1067	Annexation/Basic Management/ANX-2-87/S.31, T.21S, R.63E
1068	Victory Village Apartment
1069	Annexation/American West/ANX-3-87/S.33, T.21S, R.62E, 80.61 acres
1070	Noise Control/Repeal HMC Chapter 8.84, Noise, & re-enact HMC 8.84, Noise Control
1071	Collins Bros. Corp./Z-3-84/S.13, T.22S, R.61E, R-R to R-1. Amends Ord. 404.
1072	Nv. Savings & Loan & Western Holding Co./S.13, T.22S, R.61E to R-1. Amends Ord. 404.

Ordinance Number	
1073	Annexation/Basic Mgt/ANX-2-87/S.31, T.21S, R.63E/Correct Legal/Amend Ord. 1067
1074	Bagley, Melvin/Calico Ridge/Z-7-88/S.33, T-21S, R.63E to R-1. Amends Ord. 404.
1075	Bagley, Melvin/Calico Ridge/Z-3-83/S.33, T.21S, R.63E to R-1. Amends Ord. 404.
1076	Annexation/City of Hend./ANK-1-88/Por. NE 1/4 of S.16, T.22S, R.62E.
1077	LID 818/Ordinance creating district
1078	Annexation/Herbst, Jerry & Maryanna/ANX-2-88/S.31, T.21S, R.62E
1079	Annexation/Clark County School Dist./ANK-3-88/S.33, T.21S, R.62E
1080	Hend. Indust. Park/Z-9-86/S. 13, T.22S, R.62E, from R-R and M to MP. Amends Ord. 404.
1081	Telephone Sales and Solicitations. HMC 4.99. Repeals Ord. 1021. (Repealed by 2386)
1082	LID 818/Interim Warrant Ordinance/$3,000,000
1083	Green Valley Invest/Z-19-88/S.7, T.22S, R.62E f/T-4 and M to R-1. Amends Ord. 404.
1084	ANC & Nv. General Develop./Z-17-88/S.8, T.22S, R.62E f/CV & MP to R-1. Amends Ord. 404.
1085	Amends Ordinance 883 regarding garbage rates. (Repealed by Ord. 1224)
1086	Annexation/Mason, Donald & Eva et. al./ANX-4-88/SE1/4 S.31, T.21S, R.62E/7.79 acr
1087	Anti-Litter ordinance; Repeal Chapters 5.04 and 5.08; Establish new Chapters
1088	Assigning City's room & gaming taxes to the County for payment of bonds
1089	Temporary Water Service for signatories to a Re-Use Water Agreement f/service; Add 13.04.035 to HMC/Amended by Ord. 1097 (Repealed by 2536)
1090	Expanded Child Care/ZOA-1-88. (Repealed by Ord. 1120)
1091	City of Henderson/Z-22-88. Amends Ord. 404.
1092	Annexation/Herbst, J. & M./Correction/ANX-2-88/S.31, T.21S, R.62E/REPEAL Ord. 1078
1093	Annexation/Mason,D.&E. et.al./Correction/ANX-4-88/SE1/4 S.31, T.21S, R.62E/REPEAL 1086
1094	Water and Sewer System Development Charges Increase/Amend HMC 13.12/Amended by Ord. 1095.

Ordinance Number	
1095	Water and Sewer System Development Charges/Eff. Date Change/Amend HMC 13.12/Amend Ord. 1094. Amended by Ord. 1134.
1096	Repeals HMC 4.52/License fees for private investigators, etc.
1097	Temporary Water Service for signatories to a Re-Use Water Agreement f/service; Water/Repeals deadline for entering into re-use water agreements with City/Amended Ord. 1089/HMC 13.04.355
1098	Park Imp Bonds/$4,050,000/12-1-88 bond ordinance
1099	Re-Use Water Refunding Agreements/Establish re-use water system development charge/Amend HMC 13.06/Amend Ord. 1055. Amended by Ord. 1200 (Repealed by 2536)
1100	Flood Control/Adopt revisions to Uniform Regulations for Control of Drainage. HMC 15.50. Amends Ord. 1050 and 1064. Amended by Ord. 1233.
1101	Increases amount of information given by applicant for alarm users permit. Alarm User Permits. Amends Ord. 709 and 854. (Repealed by 1343)
1102	Drinking in Public/Amends HMC 8.40.010 and 8.40.015. Amends Ord. 867. (Repealed by 2385)
1103	LID 862/Ordinance creating District
1104	Green Valley Invest. Co./Z-37-88/S. 17, T.22S, R.62E/R-2 to R-1. Amends Ord. 404.
1105	Parking/Repeals H.M.C. Title 10, Chapter 52, Section 230 in entirety
1106	Sewer Bond Ordinance/$4,050,000/Series February 1989
1107	Water Bond Ordinance/$2,025,000/Series February 1989
1108	City of Henderson/Z-39-88. Amends Ord. 404.
1109	Salaries of Elected Officials. (Repealed by 1831)
1110	Codes/Uniform Bldg. Code/Abatement of Dangerous Bldgs/Plumbing/Mechanical/Energy. Amends or repeals Ord. Nos. 972, 861, 672, 1005, 990, 972, 966, 860, 1013, 974, 859, 819, 673. Amended by Ord. 1217.
1111	Elections/Wards; establishing. Repeals Ord. 1041.
1112	General Business License Provisions/Chapter 4.04. Repeal Chapter and establish new chapter.
1113	Fee Schedule/Chapter 4.05. Repeal Chapter and establish new chapter.
1114	Policy and Procedure/Chapter 4.06. Add new chapter.
1115	Gaming/Chapter 4.32. Repeal Chapter and establish new chapter. Amended by Ord. 1137.

Ordinance Number	
1116	Liquor/Chapter 4.36. Repeals Chapter and establish a new chapter. Amended by Ord. 1136.
1117	American Nevada Corp./Z-3-89/S.17, T.22S, R.62E/R-2 to R-1. Amends Ord. 404.
1118	United Realty/Z-5-89/S.9, T.22S, R.62E/R-R to R-1. Amends Ord. 404.
1119	Bonds/Water & Sewer/$7,000,000/Bond ordinance/As an emergency
1120	Repeals Title 15.41, 18 and 19 of HMC and re-establishes Title 18 and 19/Development Code. Repeals Ord. 404 and subsequent zoning ordinances. Amended by Ord. Nos. 1122, 1123, 1124, 1125, 1126, 1127, 1128, 1129, 1130, 1131, 1132, 1140, 1145, 1146, 1147, 1148, 1149, 1150, 1151, 1152, 1153, 1154, 1156, 1157, 1158, 1159, 1161, 1162, 1163, 1165, 1166, 1168, 1170, 1170, 1171, 1174, 1175, 1176, 1177, 1178, 1181, 1182, 1183, 1184, 1185, 1186, 1188, 1189, 1190, 1194, 1196, 1202, 1207, 1208, 1210, 1211, 1212, 1213, 1214, 1218, 1223, 1225, 1226, 1228, 1230, 1231. (Repealed by 1864)
1121	Fixes salaries of Mayor and Councilmembers. Amends Ord. 1022. (Repealed by 1831)
1122	Zoning/Riley, Jack & Patricia & Allen, Steve/Z-4-87/S.6, T.22S, R.62E. Amends Ord. 1120.
1123	Zoning/Marker Family Trust/Z-7-87/S.4, T.22S, R.63E/R-R to CH. Amends Ord. 1120.
1124	Zoning/Sousources, Wm., Eastern Investments/Z-11-87/S.13, T.22S, R.61E/R-R to RS-6. Amends Ord. 1120.
1125	Zoning/Barnum, Dennis & Jolynn/Z-16-87/S.19, T.22S, R.63E/R-E to CN. Amends Ord. 1120.
1126	Zoning/Green Valley Homes Associates/Z-14-87/S.6, T.22S, R.62E/C-1 to RM-18. Amends Ord. 1120.
1127	Zoning/Sunset One/Z-29-87/S.5, T.22S, R.62E/C-2 to RM-20. Amends Ord. 1120.
1128	Zoning/Schaeffer/R/S Devel./Z-13-85/S.8, T.22S, R.62E/R-R to RS-6. Amends Ord. 1120.
1129	Zoning/Herbst/Z-16-88/S.31, T.21S, R.62E/R-R to CH. Amends Ord. 1120.
1130	Zoning/Pisciotta, John/Z-27-87/S.12, T.22S, R.61E/R-2 to RM-20. Amends Ord. 1120.

Ordinance Number	
1131	Zoning/R/S Development/Z-6-88/S.8, T.22S, R.62E/CV to RS-6. Amends Ord. 1120.
1132	Zoning/Ortiz, Carlos & Sara, John/Z-10-89/S.1, T.22S, R.62E/C-1 & R-1 to I-P & I-L. Amends Ord. 1120.
1133	Licensing/Pawnshop Ordinance. Repeals Chapter 4.64 and establishes new chapter. Amended by Ord. 1138.
1134	Water/Sewer/Revise water and sewer system development charges. Amends Ord. 1095.
1135	Water/Amends Title 13, Chapter 04, Section .550/Interfering with water meters. Adds new section 18.04.550.
1136	Licensing/Amends Title 4, Chapter 4.36, Section 4.36.300/Distance excep/liquor sales. Amends Ord. 1116. (Repealed by 1372)
1137	Licensing/Amends Title 4, Chapter 4.32, Sec 4.32.250(a)/Restricted Gaming. Amends Ord. 1115. (Repealed by 1691)
1138	Licensing/Pawnshop Ordinance/Amends Title of Ord. 1133/no other change
1139	City Hall/Smoking Pollution Control Ordinance. Add new Chapter 2.90.
1140	Zoning/Bagley, Melvin/Z-21-89/S.33, T.21S, R.63E/R-R to RS-6. Amends Ord. 1120.
1141	Bonds/Refunding Bond Ordinance/7-1-89 AS IF EMERGENCY EXISTS
1142	Annexation/Henderson, City of/S.36, T.21S., R.62E./202/39 acres/WWTP
1143	Bonds/10-1-89 bond ordinance/refunding bonds/EMERGENCY
1144	Emergency Management/Creates new Chapter 2.24/Repeals Ord. Nos. 263 & 995
1145	Desert Tortoise/Establishes new section 18./Habitat conservation/Title 18. Amends Ord. 1120. Amended by Ord. 1163. (Repealed by 1864)
1146	Dev. Res./Amend Chapter 19.20/Delete RS-8 restrictions/Amends Chapter 19.62. Amends Ord. 1120. (Repealed by 1864)
1147	Zoning/Ventura Enterprises/Z-26-89/S.2, T.22S, R.62E/M to IP. Amends Ord. 1120.
1148	Zoning/Amends Title 19 by adopting gaming enterprise overlay district. Amends Ord. 1120. (Repealed by 1864)
1149	Zoning/Clark County School District/Z-27-89. Amends Ord. 1120.
1150	Zoning/City of Henderson/ZOA-5-89/Mini-Storage Facilities. Amends Ord. 1120. (Repealed by 1864)
1151	Zoning/Bagley, Melvin/Z-32-89/S.33, T21S, R.63E/MP to RS-6. Amends Ord. 1120.

Ordinance Number	
1152	Zoning/Catholic Community Services/Z-34-89/S.17, T.22S, R.63E/R-1 To PS. Amends Ord. 1120.
1153	Zoning/Adopt official zoning map for Henderson Development Code/ZOA-6-8. Amends Ord. 1120. (Repealed by 1864)
1154	Horticulture/ZOA-7-89/Amend Title 19/Expands horticulture uses. Amends Ord. 1120. (Repealed by 1864)
1155	Licensing/Franchise/Bus Bench/Jaycees. Repeals Ord. 948. (Repealed by 1521)
1156	Zoning/Diloreto Construction/Z-36-89/S.4, T.22S, R.62E/RR to RM-8. Amends Ord. 1120.
1157	Zoning/Charles Englert Properties/Z-37-89/S.2, T.22S, R.62E/IG to CH. Amends Ord. 1120.
1158	Zoning/Realvest Properties/Z-1-90/S.13, T.22S, R.61E, UR to RS-6/WMA Ltd. Amends Ord. 1120.
1159	Zoning/Food and Beverage Sales/Amend Title 19. Amends Ord. 1120. (Repealed by 1864)
1160	Licensing/Sexually Oriented Businesses/Amend Title 4/Add new Chapter 4.110
1161	Zoning/United Pension Fund/Z-23-87/Portion S.9, T.22S, R.63E/RR to RS-2. Amends Ord. 1120.
1162	Zoning/Amend Title 19/Add CA - Auto Mall Commercial Classification/Amend Zoning Map. Amends Ord. 1120. Amended by Ord. 1196. (Repealed by 1864)
1163	Desert Tortoise/Title 18/Clarify application of fee for certain projects/Amends 1145. Amends Ord. 1120. (Repealed by 1864)
1164	Industrial Waste Control and Pretreatment Program/Repeal Ord. 1031, 1043. Repeals Chapter 13.16 and establishes new chapter (Repealed by 2536)
1165	Zoning/Starr, V./ Starr, D./Corporate Lodging Corp./Z-4-88/R-R to RS-2. Amends Ord. 1120.
1166	Desert Tortoise/Amend Chapter 18.36/Make provisions for mobile homes & modular bldg. Amends Ord. 1120. Amends Ord. 1145. (Repealed by 1864)
1167	Animal Control/Vaccinate impounded animals/Amends Title 7, Chap 7.04, Sec 7.04.050(A). Amends Ord. 1054.

Ordinance Number	
1168	Zoning/City of Henderson/Z-4-90/Portion S.33, T.21S., R.63E/RR to IP. Amends Ord. 1120.
1169	Eng./A.D./862/Assessment ordinance
1170	Zoning/City of Henderson/ZOA-4-90/Amend Title 19/Expand Warehousing & Manufacturing Uses. Amends Ord. 1120. (Repealed by 1864)
1171	Zoning/City of Henderson/ZOA-5-90/Amend Title 18/Require parks be separate from residences. Amends Ord. 1120. (Repealed by 1864)
1172	Salary Schedules/Fixes salary to be received by Mayor and Councilmembers. Amends Ord. 1022. Amends Ord. 1109. (Repealed by 1831)
1173	Licensing/Adds new chapter/Title 4/Outcall Promoter & Outcall Entertainer.
1174	Zoning/Water Loo Nevada, Ltd./Z-6-90. Amends Ord. 1120.
1175	Streets/Imp./Rolled Curb and Gutter/Amend HMC 18.32.020 G. Amends Ord. 1120. (Repealed by 1864)
1176	Method of collecting residential construction tax/Amends Title 18/Amends Ord. 1120. (Repealed by 1864)
1177	Streets/Imp./Defines controlled access arterials/Amends definitions of arterials/Amend Title 19/Amends Ord. 1120. (Repealed by 1864)
1178	Dev./Res./Minimum size of dwelling units in RM Districts/Amend Title 19/Amends Ord. 1120. (Repealed by 1864)
1179	Electrical/Amend Chapter 15.16 "Electrical Code" (Repealed by 1565)
1180	Zoning/Corrects Sections incorrectly cited in Ordinances 1159 & 1162/Amends Ord. 1120. (Repealed by 1864)
1181	Zoning/ZOA-8-90/Amends Title 19/Permits animal hospitals & grooming/Use Permit/CC/Amends Ord. 1120. (Repealed by 1864)
1182	Zoning/ZOA-10-90/Allows reduced front yard setback in Commercial Zones/Amends Ord. 1120. (Repealed by 1864)
1183	Zoning/ZOA-11-90/Requires property corners be ID'd at time of foundation inspection/Amends Ord. 1120.
1184	Zoning/Z-11-90/Snap Towing/S.12, T.22S, R.62E/IG-G to CH-G/Amends Ord. 1120.
1185	Zoning/Z-5-90/Silver Springs/S.17, T.22S, R.62E/RM-24 to RS-6/Amends Ord. 1120.
1186	Zoning/Z-9-90/COH/S.12, T.22S, R.62E/RX-8 to CH-G/Amends Ord. 1120.
1187	Open containers of alcohol in Motor Vehicles

Ordinance Number	
1188	Zoning/Z-20-87/MacDonald, Rich/Hanover/S.32, T.21S, R.62E/R-R & C-C to RM-24/Amends Ord. 1120.
1189	Zoning/Z-13-90/Walch & Herbst/S.3, T.22S, R.62E/IG-G to CH-G/Amends Ord. 1120.
1190	Use Permits/Amortization Period/Use Permits for casino use/Amends Ord. 1120. (Repealed by 1281)
1191	Bonds/LID 862/Bond Sale Ordinance/$4,200,000
1192	Bonds/Public Improvement Trust/Pueblo Verde I Apts/Revenue Refunding Bonds
1193	Bonds/Public Improvement Trust/Pueblo Verde II Apts/Revenue Refunding Bonds
1194	Zoning/Allow used vehicle sales in IG & IL zoning districts/Amends Ord. 1120. (Repealed by 1864)
1195	Bonds/Utilize certain provision of NRS in connection with Public Improvement Bonds
1196	Zoning/Food and Beverage Sales/Permitted uses in Commercial Zones/Amends Ord. 1120. Amended Ord. 1162. (Repealed by Ord. 1202)
1197	Sewer/Sewer User Charges/Amends Sections 13.10.030, 13.10.040 and 13.10.050/Chap 13 (Repealed by 2536)
1198	Annexation/Cole, Max L./The Quarry/ANK-1-90/S.35, T.21S., R.62E.
1199	Park Dev./Fees/Revises Minimum No. Group to Reserve/Security Require/Alcohol Waive. Amends Ord. 1046.
1200	Water/Sewer/Adds rate reclaimed water system develop charges, redefines reuse water. Amends Ord. 1099.
1201	Salary Schedules/Salary for Municipal Court Judge/Makes position full-time. Repeals Ord. 1023. (Repealed by 1835)
1202	Zoning/Food and Beverage Sales/Permitted uses in Commercial Zones/Repeal Ord. 1196. (Repealed by 1864)
1203	Assessment District/LID T1 (Lake at Las Vegas)/Creates LID T1/Emergency adoption. Amended by Ord. 1216.
1204	Assessment District/LID T1 (Lake at Las Vegas)/Payment & Costs of LID T1/Emer. Ord. Amended by Ord. 1216.
1205	Assessment District/LID T1 (Lake at Las Vegas)/Accept Bond Purchase Contract/Emer. Amended by Ord. 1216.
1206	Boards/Expressly establishes a Henderson Convention Center Board. Amends Title 2.

Ordinance Number	
1207	Zoning/Allows gaming enterprise designation to remain on lands annexed from other jurisdictions. Amends Ord. 1120. (Repealed by 1864)
1208	Dev. Res./Surety bonds on tentative maps/Proportional parts refundable less retainage. Amends Title 18 and Ord. 1120. (Repealed by 1864)
1209	Licensing/Charitable Solicitations/Repeals Chapter 4.12; Establishes new Chapter 4.12. (Repealed by 2382)
1210	Zoning/DiLoreto Const./Z-27-87/Por S.4, T.22S, R.62E/R-R to RS-6/Repeal Res. 1259. Amends Ord. 1120.
1211	Zoning/Raskow Limited/Z-27-88/Portion S.32, T.21S, R.62E/CC to IP. Amends Ord. 1120.
1212	Zoning/Silver Springs, Inc./Z-28-88/Portion S.17, T.22S, R.62E/RS-6 to RM-24. Amends Ord. 1120.
1213	Zoning/Threinen, Maurice/Z-29-88/Portion S.20, T.22S, R.63E/RS-6 to RX-5. Amends Ord. 1120.
1214	Zoning/Clark County School District/Z-21-90/S.33, T.21S, R.62E/RR to PS. Amends Ord. 1120.
1215	Police/Amend Title 8/Discharge of Firearms within City Limits
1216	Eng./A.D./LID T1/Lake Las Vegas/Amend Ord. 1203, 1204, 1205.
1217	Fire/One-hour fire resistance between tenants/single occupancy buildings. Amends Ord. 1110. (Repealed by 1353)
1218	Zoning/Riverlanding/Z-23-90/S.9, T.22S, R.63E./RR to RS-6-P
1219	Fire/Creates an Emergency Medical Services Board (Repealed by 1914)
1220	Eng./A.D./LID T2/Car Country/Creating District
1221	Eng./A.D./LID T2/Car Country/Confirming Proceedings
1222	Eng./A.D./LID T2/Car Country/Authorize execution of Bond Purchase Contract
1223	Zoning/Makes commercial recreation & entertainment permitted uses in CT & CH Dists. Amends Ord. 1120. (Repealed by 1864)
1224	Garbage/Rate Increase for Silver State Disposal Service/Amends Ord. 1085 (Repealed by 1471)
1225	Zoning/Revises size restrictions on accessory structures in R (Residential District). Amends Ord. 1120. (Repealed by 1864)
1226	Variances/Reduce required rearyard setback/allow six-foot high fences-corner sideyard. Amends Ord. 1120. (Repealed by 1864)
1227	Fire/Repeals HMC 15.32, & Ord. 83, 872 & 873/Sets forth the Fire Code of Henderson. Amends or Repeals Ord. 610, 981, 887, 1019. Title of Ord. 1227 amended by Ord. 1235. (Repealed by 1389)

Ordinance Number	
1228	Zoning/L.D.S. Church/Z-1-83/S.20, T.22S, R.63E/RS-6 to RM-24
1229	Budget/Accept donation from Public Improvement Trust for erecting sign at City Hall
1230	Variance/Requires rear yard slopes no more than 1:12; side yard slopes 1.8. Amends Ord. 1120. (Repealed by 1864)
1231	Zoning/Allow instruction services & similar uses requiring large areas in IL and IP. Amends Ord. 1120. (Repealed by 1864)
1232	Elections/Establishes Election Wards as determined by last census (Repealed by 1387)
1233	Flood Control/Adopts Uniform Regulations for Control of Drainage/Effective 11/12/90. Amends Ord. 1100.
1234	Code Enforcement/Adds new H.M.C. Chapter Trees & Plants/Encroachments or Obstruction
1235	Fire/Amends Title of Ordinance No. 1227
1236	Licensing/Amends Title 4.36/Redefines "Catering" Business (Repealed by 1541)
1237	Fire/Amends Ordinance No. 1227 by deleting section number 15.32.380 (Repealed by 1389)
1238	Bonds/Reso Nv. Public Improve Trust/Issue $8,000,000 Refunding Bonds/Berry Plastics
1239	Zoning/City of Henderson/Z-3-91/S.24, T.22, R.62/RR to RS-6
1240	Zoning/DKS Development/Z-7-89/S.33, T.21 S, R.62E/R-R to RM-20/Repeal Reso 1362
1241	Zoning/DKS Development & American West/S.33, T.21S, R.62E/RS-6 to RM-20
1242	Zoning/Silver Springs/S.8 & 17, T.22S, R.62E/RS-6 to RM-12/Repeal Res. 1348
1243	Zoning/American West Deve./Z-1-91/S.12, T.22S, R.61E/RM-12 to RS-6-P
1244	Zoning/Clarifies definition of eating & drinking establishments/Amends Title 19
1245	Park Dev./Park District Boundaries Map
1246	Park Dev./Amends Chapter 18.32/Park Tax
1247	Communications/Cable TV/Add new chapter/Title 4/Satellite Master Antenna Tele System
1248	Amends Ord. 1221, 1990 local Improvement District No. T-2 (Special)
1249	Amends §19.90.014, zoning (Repealed by 1864)
1250	Bond instrument (Special)

Ordinance Number	
1251	Amends Ord. 1222, bond purchase contract (Special)
1252	Rezone (Special)
1253	Repeals Ch. 1.08 (Repealer)
1254	Rezone (Special)
1255	Approves, ratifies and reenacts all actions taken in connection with the creation of 1990 LID No. T-2 (Special)
1256	Amends Ch. 18.36, desert tortoise habitat conservation (Repealed by 1864)
1257	Rezone (Special)
1258	Public building facilities bond issuance (Special)
1259	Allocation and monitoring of water supply (Repealed by 2536)
1260	Amends §19.24.004, zoning (Repealed by 1864)
1261	Adds Ch. 13.03, administrative guidelines to implement provisions of water allocation (Repealed by 2536)
1262	1991 sewer bond ordinance (Special)
1263	1991 public building facilities bond ordinance (Special)
1264	Public improvements agreement (Special)
1265	Rezone (Special)
1266	Amends §4.101.040, outcall entertainer license required (Repealed by 1435)
1267	Amends §19.58.004 and repeals and replaces §19.58.010, zoning (Repealed by 1477)
1268	Adds Ch. 8.01, police service fees; amends §4.18.060(A), alarm systems, and §4.44.030(b) and (c), registration of certain employees (4.44, 8.01)
1269	Repeals §15.10.040 (Repealer)
1270	Improvement district 88 assessment (Special)
1271	LID No. T-1 (Special)
1272	Amends §§13.10.030 and 13.10.050, sewer user charges, and §§13.12.020, 13.12.100 and 13.12.110, water and sewer fees, rates and charges (Repealed by 2536)
1273	Rezone (Special)
1274	Rezone (Special)
1275	Rezone (Special)
1276	Rezone (Special)
1277	Rezone (Special)
1278	Rezone (Special)
1279	Rezone (Special)

Ordinance Number	
1280	Rezone (Special)
1281	Amends §19.74.018, zoning and repeals Ord. 1190 (Repealed by 1864)
1282	Amends §18.20.060(D), subdivisions (Repealed by 1864)
1283	Rezone (Special)
1284	Amends §4.32.010(y)(2), limited gaming (Repealed by 1691)
1285	Rezone (Special)
1286	Amends §4.101.350, outcall promoter and outcall entertainer (4.101)
1287	Rezone (Special)
1288	Rezone (Special)
1289	Rezone (Special)
1290	Extends Ord. 1259 for six months (Special)
1291	Adds subsection 4.13 and amends subsection 2.3.3 of Ord. 1259, water allocation (13.02)
1292	(Number not used)
1293	4-1-92 bond ordinance (Special)
1294	Rezone (Special)
1295	Amends §§19.16.006, 19.20.006 [19.20.004], 19.32.006 and 19.82.030(A)(1), zoning (Repealed by 1864)
1296	Rezone (Special)
1297	Rezone (Special)
1298	Rezone (Special)
1299	Rezone (Special)
1300	Rezone (Special)
1301	Adds Ch. 4.03 and amends §§4.04.060(b), 4.05.112(b), 4.05.158(b), 4.05.165(d), 4.05.187(b), 4.08.040, 4.14.040, 4.18.040(A), 4.22.070(d), 4.32.110, 4.36.100, 4.46.030, 4.64.060, 4.68.050(c), 4.74.030(d), 4.84.050, 4.99.040(G), 4.100.030(d), 4.101.130(a) and (b) and 4.110.090, background investigation fees (4.03, 4.04, 4.05, 4.08, 4.64, 4.74, 4.100)
1302	Repeals and replaces Ch. 4.72, solicitors, temporary merchants and mobile food vendors (4.72)
1303	Repeals and replaces Ch. 4.68, secondhand dealers (4.68)
1304	Amends §§6.12.050, salary, and §§6.16.040, 6.16.050 and 6.16.060, recruitment (Repealed by 2147)
1305	Time, date and place of council meetings; repeals Ord. 985 (Repealed by 1415)
1306	Salary and car allowance for mayor and councilmembers (Repealed by 1831)

Ordinance Number	
1307	Rezone (Special)
1308	Amends §§19.58.006(F) and 19.58.010(B)(3), (C)(1), (2), (3) and (7), (D)(8) and (9)(b), (E)(5) and (E)(6), (F), (G)(7) and (8) and (H)(4), zoning (Repealed by 1477)
1309	Amends §19.58.004(A), zoning (Repealed by 1477)
1310	Water allocation agreement (Not codified)
1311	Rezone (Special)
1312	Rezone (Special)
1313	Adds §19.20.006(R) and amends §19.20.006 Schedule B property development regulations matrix, zoning (Repealed by 1864)
1314	Amends §§19.16.006(C) and 19.24.004, zoning (Repealed by 1864)
1315	Amends §§4.32.010(y) and (cc) and 4.36.360 and repeals §§4.32.230(d) and 4.32.360(a), gambling (Repealed by 1691)
1316	Amends §§4.36.010, 4.36.450, 4.36.460, 4.36.470 and 4.36.480 and repeals §4.36.440, liquor regulations (Repealed by 1541)
1317	Amends §§19.16.006 and 19.24.004, zoning (Repealed by 1864)
1318	Adds §18.32.020(L), subdivisions (Repealed by 1864)
1319	Rezone (Special)
1320	Rezone (Special)
1321	Amends §13.03.001, water allocation — administrative guidelines (Repealed by 2536)
1322	Rezone (Special)
1323	Amends §19.82.090, zoning (Repealed by 1864)
1324	Rezone (Special)
1325	Annexation (Special)
1326	Rezone (Special)
1327	1992 refunding and building bond ordinance (Special)
1328	Rezone (Special)
1329	Rezone (Special)
1330	Amends §§19.16.006 and 19.36.006, zoning (Repealed by 1864)
1331	Repeals and replaces Ch. 4.84, massage establishments (Repealed by 2844)
1332	Rezone (Special)
1333	Rezone (Special)
1334	Rezone (Special)
1335	Rezone (Special)
1336	Rezone (Special)

Ordinance Number	
1337	Amends Ch. 15.50, flood control and control of drainage (15.50)
1338	Rezone (Special)
1339	Rezone (Special)
1340	Rezone (Special)
1341	Rezone (Special)
1342	Amends §4.84.200, massage establishments (4.84)
1343	Repeals and replaces Ch. 4.18, alarm systems (4.18)
1344	1992 sewer bond ordinance (Special)
1345	Adds Ch. 13.05, water reservation fee (Repealed by 2536)
1346	Rezone (Special)
1347	Amends §15.20.010, 15.20.020, 15.20.050 and 15.20.100, renumbers §15.20.120 to be §15.20.130 and adds new §15.20.120, plumbing code (Repealed by 1566)
1348	Creates local improvement district T-5 (Special)
1349	Tax levy (Special)
1350	Amends §§15.10.010 and 15.10.015, abatement of dangerous buildings code (15.10)
1351	Amends §15.24.010, mechanical code (Repealed by 1567)
1352	Amends §§15.36.020, moving buildings; §15.44.030, swimming pools and §§15.60.040, 15.60.050 and 15.60.070, temporary dwelling units (15.60)
1353	Amends §§15.08.010, 15.08.020, 15.08.030, 15.08.037 and 15.08.040, building code (Repealed by 1581)
1354	Amends §8.80.050, wrecked automobile, trailers (Repealed by 2481)
1355	Repeals and replaces §13.16.020, wastewater regulations and limitations (Repealed by 2536)
1356	Amends Exh. A of Ord. 1310, water allocation (Not codified)
1357	Amends §13.03.001, water allocation administrative guidelines (Repealed by 2536)
1358	Local improvement district T-4 (Special)
1359	Bond issuance for local improvement district T-5 (Special)
1360	Amends Exh. A of Ord. 1356, water allocation (Not codified)
1361	Amends §5.16.160, garbage collection fees (Repealed by 1471)
1362	Rezone (Special)
1363	Rezone (Special)
1364	Rezone (Special)
1365	Rezone (Special)

Ordinance Number	
1366	Rezone (Special)
1367	Amends §19.58.010(D)(2), zoning (Repealed by 1477)
1368	Rezone (Special)
1369	Amends §§4.36.010, 4.36.210, 4.36.250, 4.36.270 and 4.36.370, liquor regulations (Repealed by 1541)
1370	1992 water bond ordinance (Special)
1371	Amends §§15.02.030(b) and (e), permit and inspection fee schedule (15.02)
1372	Repeals and replaces §4.36.300, liquor regulations (Repealed by 1541)
1373	Rezone (Special)
1374	Rezone (Special)
1375	Rezone (Special)
1376	Adds §19.74.013 and amends §19.24.004, zoning (Repealed by 1439)
1377	Amends §§19.16.006(BY)(6) and 19.24.004, zoning (Repealed by 1864)
1378	Rezone (Special)
1379	Rezone (Special)
1380	Amends §§7.04.010, 7.04.040, 7.04.050, 7.04.060, 7.04.061, 7.04.062, 7.04.075, 7.04.080, 7.04.085, 7.04.110 and 7.04.180 and repeals and replaces §7.04.065, animal control (7.04)
1381	Amends §5.16.060, garbage (Repealed by 2545)
1382	Rezone; repeals Resolution 1486 (Special)
1383	Rezone; repeals Resolution 1190 (Special)
1384	Rezone; repeals Resolution 1485 (Special)
1385	Amends §§19.16.006(BA), 19.24.004 and 19.28.004, zoning (Repealed by 1864)
1386	Adds §15.20.011, plumbing code (Repealed by 1566)
1387	Establishes wards; repeals Ord. 1232 (Repealed by 1537)
1388	Amends title of Ord. 1369 (Not codified)
1389	Repeals and replaces Ch. 15.32, fire code, and repeals Chs. 4.92 and 15.33 (Repealed by 1612)
1390	Rezone (Special)
1391	Rezone (Special)
1392	Rezone (Special)
1393	Rezone (Special)
1394	Amends §§19.50.024 and 19.74.013, zoning (Repealed by 1864)
1395	Annexation (Special)
1396	Amends §7.04.110, wild animals (7.04)

Ordinance Number	
1397	Boulder Highway improvement project (Special)
1398	Blue ribbon commission on educational excellence and youth opportunity (2.20)
1399	Amends §§19.74.008, 19.82.040, 19.90.008 and 19.90.014, zoning (Repealed by 1864)
1400	Rezone (Special)
1401	Amends Ords. 1348 and 1349, local improvement district T-5 (Special)
1402	Amends §19.50.052(D), zoning (Repealed by 1864)
1403	Rezone (Special)
1404	Amends §4.36.300(B)(2), liquor regulations (Repealed by 1541)
1405	Rezone (Special)
1406	Rezone (Special)
1407	Amends §4.44.050, work cards (4.44)
1408	Rezone (Special)
1409	Adds Ch. 15.56 and amends Ch. 19.40 and §§18.20.035(A), 18.20.060(C), 19.12.006, 19.74.006, 19.74.012, 19.82.040(A) and 19.90.006, land use and construction in areas impacted by aircraft overflight (15.56)
1410	Rezone (Special)
1411	Amends §§6.52.010 and 6.52.020, civil service board (Repealed by 2147)
1412	Annexation (Special)
1413	Amends §§13.02.011, 13.02.027 and 13.03.001, water allocation (Repealed by 2536)
1414	Rezone (Special)
1415	Time, date and place of council meetings; repeals Ord. 1305 (2.04)
1416	Rezone (Special)
1417	Rezone (Special)
1418	Rezone (Special)
1419	1993 park and refunding ordinance (Special)
1420	1993 water and sewer refunding bond ordinance (Special)
1421	Rezone (Special)
1422	Rezone (Special)
1423	Adds Ch. 8.85, graffiti (8.85)
1424	Adds Ch. 19.60, multifamily zoned projects (Not codified)
1425	Rezone (Special)
1426	Rezone (Special)
1427	Rezone (Special)

Ordinance Number	
1428	Amends §19.24.004, zoning (Repealed by 1864)
1429	Rezone (Special)
1430	Amends Exhibit A of Ord. 1360, water allocation (Not codified)
1431	Amends Ch. 2.24, emergency management (2.24)
1432	Amends §19.50.052(D), zoning (Repealed by 1864)
1433	Repeals and replaces §19.58.006(C), signs (Repealed by 1477)
1434	Repeals and replaces Ch. 4.110, sexually oriented businesses (4.110)
1435	Repeals and replaces Ch. 4.101, outcall promoter and outcall entertainer and repeals Ch. 4.22 (4.101)
1436	Adds §8.60.085, prostitution and indecent conduct (8.60)
1437	Creates LID No.T-6 (Special)
1438	Adds §§4.32.010(ggg) and (lll) and amends §§4.32.230(c)(6) and (7), gambling—regulations and licenses (Repealed by 1691)
1439	Amends §19.74.012; repeals Ord. 1376, zoning (Repealed by 1864)
1440	Adds Ch. 13.18, special refunding (Repealed by 2536)
1441	Creates the one city committee (Not codified)
1442	Adds §§4.36.010(nn), (oo), (pp), (qq), (rr) and (ss), amends §§4.36.010(d), (z), (dd), (ee) and (jj), repeals and replaces §4.36.300 and repeals §§4.36.010(kk) and (cc), liquor—regulations and licenses (Repealed by 1541)
1443	Amends §13.03.001(X)(4) [13.03.080(B)(4)], water allocation—administrative guidelines (13.03)
1444	Adds Chs. 19.48 and 19.60 and definitions to §19.12.006 and amends §§19.20.002, 19.20.004, 19.20.006 and 19.20.008, zoning (Repealed by 1864)
1445	Amends §5.16.050, garbage and waste (Repealed by 2545)
1446	Adds definitions to §19.12.006 and amends §§19.24.004 and 19.74.012; repeals Ord. 1376, zoning (Repealed by 1864)
1447	Multifamily housing revenue bonds (Special)
1448	Creates LID No. T-1 (Special)
1449	Creates LID No. T-9 (Special)
1450	Amends Exhibit A of Ord. 1430, water allocation (Not codified)
1451	Rezone (Special)
1452	Amends §§19.20.004, 19.24.006 [19.24.004], 19.28.004, 19.34.006 and 19.36.006, zoning (Repealed by 1864)
1453	Rezone (Special)
1454	Rezone (Special)

Ordinance Number	
1455	Rezone (Special)
1456	Rezone (Special)
1457	Rezone (Special)
1458	Rezone (Special)
1459	Rezone (Special)
1460	St. Rose Dominican Hospital project (Special)
1461	Amends §4.32.010(ii), gambling—regulations and licenses (Repealed by 1691)
1462	Amends §4.101.290, outcall promoter and outcall entertainer (4.101)
1463	Amends §4.110.220, sexually oriented businesses (4.110)
1464	Amends Ord. 1398, blue ribbon commission on educational excellence and youth opportunity (2.20)
1465	Rezone (Special)
1466	Rezone (Special)
1467	Rezone (Special)
1468	1994 short-term bonds (Special)
1469	Amends Exhibit A of Ord. 1450, water allocation (Not codified)
1470	Amends §§13.02.014 and 13.03.001(II) [13.03.020] and 13.03.001 (III)(A) [13.03.030(A)], water allocation (Repealed by 2536)
1471	Repeals and replaces §§5.16.150 and 5.16.160, garbage and waste (Repealed by 2545)
1472	Amends §§19.16.006 and 19.28.004, zoning (Repealed by 1864)
1473	Rezone (Special)
1474	Rezone (Special)
1475	Rezone (Special)
1476	Rezone (Special)
1477	Repeals and replaces Ch. 19.58, signs (Repealed by 1864)
1478	Amends §19.28.004, zoning (Repealed by 1864)
1479	Rezone (Special)
1480	Rezone (Special)
1481	Rezone (Special)
1482	Rezone (Special)
1483	Rezone (Special)
1484	Rezone (Special)
1485	Rezone (Special)
1486	Rezone (Special)
1487	Rezone (Special)

Ordinance Number	
1488	Rezone (Special)
1489	Rezone (Special)
1490	Amends §§13.10.030, 13.12.020, 13.12.100 and 13.12.110 and repeals §13.10.040, water and sewers (Repealed by 2536)
1491	Amends §19.50.012(A), zoning (Repealed by 1864)
1492	Amends §§8.04.070, 8.08.100, 8.12.020, 8.16.030, 8.20.020, 8.24.010, 8.28.020, 8.32.050, 8.36.010, 8.36.020, 8.44.020, 8.48.020, 8.52.020, 8.56.030, 8.60.100, 8.64.040, 8.68.040, 8.76.110, 8.90,020, 8.94.020, 8.98.075(b), 8.98.080 and 8.99.080, public peace and safety and §§10.02.020, 10.16.115, 10.28.020, 10.59.030, 10.60.090 and 10.64.010, vehicles and traffic and repeals §§10.28.030—10.28.080 (8.08, 8.12, 8.28, 8.36, 8.60, 8.64, 8.68, 8.76, 8.90, 8.98, 10.01, 10.16, 10.28, 10.59, 10.60, 10.64)
1493	Rezone (Special)
1494	Amends §§13.16.015(m), (s), (cc)—(ii) and 13.16.020, regulation of industrial wastewater and pretreatment program (Repealed by 2536)
1495	Adds §§13.06.010(p)—(w) and amends §13.06.070, re-use water rates and regulations (Repealed by 2536)
1496	Rezone (Special)
1497	Annexation (Special)
1498	Sanitary sewer bonds (Special)
1499	Adds §4.26.205, cable TV (Repealed by 1859)
1500	Annexation (Special)
1501	Rezone (Special)
1502	Rezone (Special)
1503	Victory Village project (Special)
1504	Creates citizens' advisory committee (2.21)
1505	Rezone (Special)
1506	Rezone (Special)
1507	Rezone (Special)
1508	Rezone (Special)
1509	Rezone (Special)
1510	Rezone (Special)
1511	Rezone (Special)
1512	Rezone (Special)
1513	Rezone (Special)

Ordinance Number	
1514	Amends §§19.16.006 and 19.24.006 [19.24.004], zoning (Repealed by 1864)
1515	Rezone (Special)
1516	Rezone (Special)
1517	Rezone (Special)
1518	Rezone (Special)
1519	Rezone (Special)
1520	Rezone (Special)
1521	Repeals and replaces §4.28.080, CATV (Repealed by 1859)
1522	Rezone (Special)
1523	Rezone (Special)
1524	Rezone (Special)
1525	Rezone (Special)
1526	Rezone (Special)
1527	Rezone (Special)
1528	Rezone (Special)
1529	Rezone (Special)
1530	Rezone (Special)
1531	Rezone (Special)
1532	Rezone (Special)
1533	Adds §8.85.055 and amends §§8.85.010, 8.85.020, 8.85.040 and 8.85.050, graffiti (8.85)
1534	Rezone (Special)
1535	Rezone (Special)
1536	Water and sanitary sewer bonds (Special)
1537	Establishes wards; repeals Ord. 1387 (Repealed by 1710)
1538	(Number not used)
1539	Adds new chapter to Title 10, operation of golf carts on public streets (10.62)
1540	Amends §7.04.185, animal control, inspection, licensing and regulation (7.04)
1541	Repeals and replaces 4.36, liquor—regulations licenses (4.36)
1542	Rezone (Special)
1543	Rezone (Special)
1544	Rezone (Special)
1545	Amends §§19.20.004, 19.24.006 [19.24.004], 19.28.004, 19.32.006, 19.34.006, 19.36.006 and 19.66.006(A), zoning (Repealed by 1864)

Ordinance Number	
1546	Amends §8.08.070, restrictions and curfew for minors (Repealed by 1812)
1547	Creates improvement district No. 931 (Special)
1548	Rezone (Special)
1549	Rezone (Special)
1550	Amends §§19.50.020(B) and (C), zoning (Repealed by 1864)
1551	Rezone (Special)
1552	Rezone (Special)
1553	Rezone (Special)
1554	Rezone (Special)
1555	Rezone (Special)
1556	Rezone (Special)
1557	Rezone (Special)
1558	Adds §19.58.006(H)(10) and amends §§19.58.008(G)(2) and 19.58.010(D)(4)(a) and (c), signs (Repealed by 1864)
1559	Rezone (Special)
1560	Approves trust resolution (Special)
1561	Issuance of small issue activity bonds (Special)
1562	Rezone (Special)
1563	Rezone (Special)
1564	Amends Ord. 1547, LID No. 931 (Repealed by 2737)
1565	Repeals and replaces Ch. 15.16, electrical code (Repealed by 1758)
1566	Repeals and replaces Ch. 15.20, plumbing code (Repealed by 1804)
1567	Repeals and replaces Ch. 15.24, mechanical code (Repealed by 1802)
1568	Amends §§15.10.010 and 15.10.015, dangerous buildings code (15.10)
1569	Amends Ord. 1437, LID No. T-6 final engineer's report (Special)
1570	Annexation (Special)
1571	Rezone (Special)
1572	Rezone (Special)
1573	(Number not used)
1574	(Number not used)
1575	(Number not used)
1576	(Number not used)
1577	Rezone (Special)
1578	Adds Ch. 8.09, skating on premises of municipal facilities (8.09)
1579	Amends §4.05.156, business license fee schedules (4.05)
1580	Rezone (Special)

Ordinance Number	
1581	Repeals and replaces Ch. 15.08, building code (Repealed by 1801)
1582	Adds §13.04.515, amends §13.04.010 and repeals and replaces §13.04.510, water rates and regulations (Repealed by 2536)
1583	Amends §4.36.200, liquor—regulations and licenses (4.36)
1584	Approves trust resolution (Special)
1585	Amends Ord. 1358, LID No. T-4 (Special)
1586	Amends §§19.20.006 and 19.54.006, zoning (Repealed by 1864)
1587	Amends §19.46.004(B), zoning (Repealed by 1864)
1588	Approves trust resolution (Special)
1589	Amends §4.04.150(a)(8) and (9), (b)(7) and (8) and (c), business regulations and licenses (4.04)
1590	Rezone (Special)
1591	Rezone (Special)
1592	Rezone (Special)
1593	Amends Ord. 1569, LID No. T-6 (Repealed by 1649)
1594	Rezone (Special)
1595	Rezone (Special)
1596	Rezone (Special)
1597	Amends Ch. 18.36, desert tortoise habitat conservation (Repealed by 1864)
1598	Rezone (Special)
1599	Rezone (Special)
1600	Rezone (Special)
1601	Bond issuance (Special)
1602	LID No. 931 street improvement assessment (Special)
1603	Adds subsection (14) to §15.02.030(b); amends §15.02.030(a)(2), building permit and inspection fees (15.02)
1604	Amends §§19.16.006(BH) and (BI), 19.20.004 and 19.36.006, zoning (Repealed by 1864)
1605	Amends §19.24.006 [19.24.004], zoning (Repealed by 1864)
1606	Rezone (Special)
1607	Rezone (Special)
1608	Amends §7.04.110(B), wild animals (7.04)
1609	Declares municipal court to be a court of record (2.06)
1610	Amends §4.32.010, gambling regulations and licenses (Repealed by 1691)
1611	Rezone (Special)

Ordinance Number	
1612	Repeals and replaces Ch. 15.32, fire code (Repealed by 1877)
1613	Amends §§19.82.010 and 19.82.030—19.82.090, architectural review (Repealed by 1864)
1614	Amends §19.28.004, zoning (Repealed by 1864)
1615	Rezone (Special)
1616	Rezone (Special)
1617	Rezone (Special)
1618	Adopts redevelopment plan (Repealed by 1864)
1619	Rezone (Special)
1620	Amends §§19.16.006(H), (I) and (J), 19.24.006 [19.24.004] and 19.28.004, zoning (Repealed by 1864)
1621	Rezone (Special)
1622	Rezone (Special)
1623	Rezone (Special)
1624	Rezone (Special)
1625	Adds Ch. 19.48. [19.49], redevelopment overlay district (Repealed by 1864)
1626	Rezone (Special)
1627	Adds subsection (S) to §4.36.240, amends §§4.36.010, 4.36.040(J), 4.36.240(R) and 4.36.290(B), liquor regulations and licenses (4.36)
1628	Rezone (Special)
1629	Rezone (Special)
1630	Amends Exh. A of Chapter 13.02, water allocation (Repealed by 2536)
1631	Rezone (Special)
1632	Rezone (Special)
1633	Amends §§4.14.090, 4.76.190, 4.98.050, 5.16.260, 5.20.340, 5.24.040 and 7.08.220, misdemeanor penalties (4.98, 5.20, 5.24, 7.08)
1634	Repeals Ch. 5.12 (Repealer)
1635	Amends §§19.16.006(BD) and 19.24.004, zoning (Repealed by 1864)
1636	Bond issuance (Special)
1637	Amends Ord. 1358, LID No. T-4 (Special)
1638	Amends §§19.16.006(L) and 19.24.006 [19.24.004] Schedule C, zoning (Repealed by 1864)
1639	Amends §19.50.052, zoning (Repealed by 1864)
1640	Rezone (Special)
1641	Rezone (Special)
1642	Rezone (Special)

Ordinance Number	
1643	Local Improvement District No. T-10 (Special)
1644	Amends. Exh. A of Ch. 13.02, water allocation (Repealed by 2536)
1645	Amends §19.24.004 Schedule C, zoning (Repealed by 1864)
1646	Rezone (Special)
1647	Rezone (Special)
1648	Rezone (Special)
1649	Local Improvement District No. T-6; repeals Ord. 1593 (Special)
1650	Adds a section to Ch. 4.05, business license fee schedules; repeals §4.28.070 and Ch. 4.76 (Repealed by 2015)
1651	Amends §8.85.090, graffiti (8.85)
1652	Rezone (Special)
1653	Rezone (Special)
1654	Amends §§19.50.046 and 19.50.050(B) and (F)(2), zoning (Repealed by 1864)
1655	Adds new section to Ch. 2.47, copying costs (Repealed by 2729)
1656	Rezone (Special)
1657	Amends §§13.04.250, 13.10.030, 13.12.020, 13.12.100 and 13.12.110, water and sewers (13.04, 13.10)
1658	Adds §§13.12.025 and 13.12.105, water and sewer fees, rates and charges (Repealed by 2536)
1659	Adds §§4.110.150(C) and (D) and 4.110.200(F)—(Q), and amends §§4.110.010 and 4.110.170(A)(3), sexually oriented businesses (4.110)
1660	Rezone (Special)
1661	Rezone (Special)
1662	Amends §§19.12.006, 19.24.004 Schedule C, 19.28.004 Schedule E, 19.34.006 Schedule H and 19.36.006 Schedule I, zoning (Repealed by 1864)
1663	Parking and curb marking regulations; repeals Chs. 10.51, 10.52 and 10.56 (10.06, 10.20)
1664	Rezone (Special)
1665	Amends §19.60.004(3)[(C)] and repeals and replaces §§19.60.010—19.60.030, zoning (Repealed by 1864)
1666	Repeals §4.05.183 (Repealer)
1667	Adds Ch. 8.07, distribution and display of materials harmful to minors (8.07)
1668	Rezone (Special)
1669	Rezone (Special)

Ordinance Number	
1670	Rezone (Special)
1671	Rezone (Special)
1672	Rezone (Special)
1673	Amends §§4.110.010 and 4.110.050—4.110.360; and renumbers §§4.110.090—4.110.240 to be 4.110.080—4.110.230, and §§4.110.260—4.110.360 to be 4.110.240—4.110.340, sexually oriented businesses (4.110)
1674	Rezone (Special)
1675	Amends Ch. 4.44, registration of certain employees (4.44)
1676	Amends §8.85.090, graffiti (8.85)
1677	Amends §15.08.037, fees (Repealed by 1801)
1678	Adopts engineer's report, supplemental indenture and adds a new §13 to Ord. 1221; amends Exh. A of Ord. 1220, Local Improvement District No. T-2 (Repealed by 1695)
1679	Adds §7.04.315, horse tripping (7.04)
1680	Rezone (Special)
1681	Rezone (Special)
1682	Rezone (Special)
1683	Amends §19.12.006, definitions (Repealed by 1864)
1684	Rezone (Special)
1685	Amends Ord. 1678, Local Improvement District No. T-2 (Special)
1686	Adds Ch. 13.01, water commitment guidelines (Repealed by 2536)
1687	Amends §8.85.060, graffiti (8.85)
1688	Rezone (Special)
1689	Rezone (Special)
1690	Rezone (Special)
1691	Repeals and replaces Ch. 4.32, gambling (4.32)
1692	Rezone (Special)
1693	Amends Ch. 4.44, registration of certain employees (Repealed by 2238)
1694	Rezone (Special)
1695	Adopts engineer's report, supplemental indenture; amends Ords. 1220 and 1221, LID No. T-2; repeals Ord. 1678 (Special)
1696	Revises engineer's report; amends Ord. 1637, LID No. T-4 (Special)
1697	Adds §15.40.010, fireplaces (15.40)
1698	Amends §4.36.380, liquor (4.36)
1699	Repeals Ch. 19.84.008A (Repealed by 1864)
1700	Rezone (Special)

Ordinance Number	
1701	Amends §§19.16.006BZ, 19.24.006[4] Schedule C and 19.24.006[4] Schedule C, additional use regulations, zoning (Repealed by 1864)
1702	Amends §§19.58.004, 19.58.006I, 19.58.008(C)(1), (C)(2) and (C)(8)(a), zoning (Repealed by 1864)
1703	Rezone (Special)
1704	Amends §§4.110.010 and 4.110.190, sexually oriented businesses (4.110)
1705	Rezone (Special)
1706	Rezone (Special)
1707	Rezone (Special)
1708	Annexation (Special)
1709	Amends §4.05.020, public utility licenses (4.05)
1710	Establishes city wards; repeals Ord. 1537 (Repealed by 1881)
1711	Provides for registration and regulation of lobbyists (2.100)
1712	Rezone (Special)
1713	Rezone (Special)
1714	Establishes management information systems department (2.110)
1715	Bond issuance (Special)
1716	Rezone (Special)
1717	Rezone (Special)
1718	Rezone (Special)
1719	Amends §§13.16.015 and 13.16.020, industrial wastewater and pretreatment program (Repealed by 2536)
1720	Annexation (Special)
1721	Adds §4.05.192.5 and Ch. 4.85; and amends §§4.84.010 and 4.84.190(d), reflexology (4.05)
1722	(Void)
1723	Adds §2.06.020, administrative fee exceptions (2.06)
1724	Amends §13.12.030, water and sewer mains extension fee (Repealed by 2112)
1725	Repeals Ord. 601 (Repealer)
1726	Amends §19.24.004 Schedule C, land use regulations (Repealed by 1864)
1727	Adds §19.62.100; and amends §19.20.006 Schedule B, single-family planned unit developments in single-family residential district (Repealed by 1864)
1728	Rezone (Special)

Ordinance Number	
1729	Adds subsection L-9 to §19.20.004; amends §§19.16.006(BZ)(4), 19.20.004 Schedule A, zoning (Repealed by 1864)
1730	Rezone (Special)
1731	Rezone (Special)
1732	Adds subsection L-15 to §19.28.004; amends §19.28.004 Schedule E, zoning (Repealed by 1864)
1733	Annexation; repeals Ord. 1708 (Special)
1734	Rezone (Special)
1735	Rezone (Special)
1736	Rezone (Special)
1737	Bond issuance (Special)
1738	Bond issuance (Special)
1739	Amends Ch. 4.28, cable television (Repealed by 1859)
1740	Rezone (Special)
1741	Adds subsection L-10 to and amends Schedule A of §19.20.004, zoning (Repealed by 1864)
1742	Rezone (Special)
1743	Rezone (Special)
1744	Rezone (Special)
1745	Rezone (Special)
1746	Rezone (Special)
1747	Amends Ord. 1649, LID No. T-6 (Special)
1748	Rezone (Special)
1749	Rezone (Special)
1750	Repeals and replaces Ch. 4.80, private ambulance service (4.80)
1751	Repeals and replaces Ch. 2.29, ambulance transportation fees (2.29)
1752	Adds Ch. 19.49 [19.47], amends §19.12.006, and repeals §19.50.054, zoning (Repealed by 1864)
1753	Adds §8.40.040 and amends §8.40.050, liquor violations (8.40)
1754	Rezone (Special)
1755	Adds Ch. 8.49, private patrolmen-security guards (8.49)
1756	Rezone (Special)
1757	Rezone (Special)
1758	Repeals and replaces Ch. 15.16, electrical code (15.16)
1759	Rezone (Special)
1760	Amends Ch. 18.30, reversion to acreage, abandonment of maps; vacation of city-owned or controlled utility easements (Repealed by 1864)

Ordinance Number	
1761	Rezone (Special)
1762	Rezone (Special)
1763	Amends §§19.58.006(F)(3)(b), 19.58.006(F)(3)(e), 19.58.008(G)(2) and 19.58.008(G)(4), zoning (Repealed by 1864)
1764	Rezone (Special)
1765	Rezone (Special)
1766	Bond issuance (Special)
1767	Bond issuance (Special)
1768	Rezone (Special)
1769	Rezone (Special)
1770	Rezone (Special)
1771	Amends §§5.04.010 and 8.80.060, neighborhood services coordinator (5.04)
1772	Amends §§19.12.006, 19.20.004 schedule A, 19.24.004 schedule C, 19.28.004 schedule E, 19.34.006 schedule H, 19.36.006 schedule I and 19.54.006 schedule K, zoning (Repealed by 1864)
1773	Adds §13.06.380, reuse water infrastructure refunding program (Repealed by 2536)
1774	Amends §3 of Ord. 1752 to correct the chapter number from Chapter 19.49 to 19.47 (Repealed by 1864)
1775	Annexation (Special)
1776	Annexation (Special)
1777	Annexation (Special)
1778	Amends §§15.10.010 and 15.10.015, uniform code for abatement of dangerous buildings (15.10)
1779	Rezone (Special)
1780	Amends §§2.01.050, 2.05.020 and 2.90.040A, salaries and tobacco provisions (2.90)
1781	Amends §7.04.325, prohibits animal research or medical use (7.04)
1782	Amends §4.72.170E, mobile food vendors (4.72)
1783	Amends §2.47.085, public documents; repeals Ch. 2.46 (Repealed by 2729)
1784	Rezone (Special)
1785	Rezone (Special)
1786	Amends §19.50.016C, zoning (Repealed by 1864)
1787	Amends Ord. 1747, LID No. T-6 (Special)

Ordinance Number	
1788	Adds §4.64.045; amends §§4.64.010, 4.64.080, 4.64.090, 4.64.180, 4.64.220 and 4.64.240, pawnbrokers (4.64)
1789	Adds §13.06.015, reuse water rates (Repealed by 2536)
1790	Rezone (Special)
1791	Rezone (Special)
1792	Rezone (Special)
1793	Rezone (Special)
1794	Rezone (Special)
1795	Rezone (Special)
1796	Rezone (Special)
1797	Rezone (Special)
1798	Adds §19.50.054; amends §§19.16.006, 19.20.004, 19.24.004, 19.28.004, 19.32.006, 19.34.006 and 19.36.006, rock crushing (Repealed by 1864)
1799	Amends §§4.44.020 and 4.44.050, employee registration cards (4.44)
1800	Adds Ch. 15.01, uniform administrative code (Repealed by 2736)
1801	Repeals and replaces Ch. 15.08, uniform building code (15.08)
1802	Repeals and replaces Ch. 15.24, uniform mechanical code (15.24)
1803	Adds Ch. 15.45, model energy code (Repealed by 2322)
1804	Repeals and replaces Ch. 15.20, uniform plumbing code (15.20)
1805	Repeals and replaces Ch. 15.44, swimming pool code (15.44)
1806	Rezone (Special)
1807	Rezone (Special)
1808	Rezone (Special)
1809	(Not available)
1810	Amends §6.52.010, civil service board (Repealed by 2147)
1811	1998 note detail ordinance, authorizing issuance of negotiable, general obligation medium-term note (Not codified)
1812	Repeals and replaces §§8.08.070, 8.08.080 and 8.08.090 [per city, also repeals §8.08.100], curfew (8.08)
1813	Rezone (Special)
1814	Adds §10.58.030, off road use of motor vehicles (10.58)
1815	Rezone (Special)
1816	Rezone (Special)
1817	Rezone (Special)
1818	Rezone (Special)
1819	Rezone (Special)

Ordinance Number	
1820	Amends §§13.04.020, 13.08.020, 13.10.030, 13.10.050, 13.12.020 and 13.12.100, water and sewers (Repealed by 2536)
1821	First supplemental trust indenture with respect to limited obligation improvement bonds (Special)
1822	Creates LID T-12 (Special)
1823	Amends Exhibit A to Ch. 13.02, water allocation agreement (Not codified)
1824	Amends §4.32.010, gambling (4.32)
1825	Creates LID No. 981 (Special)
1826	Issuance of private activity bonds (Special)
1827	Rezone (Special)
1828	Rezone (Special)
1829	Amends §15.02.030, permit and inspection fee schedules (15.02)
1830	Amends §15.01.020, uniform administrative code (Repealed by 2179)
1831	Repeals and replaces Ch. 2.01, council salaries (2.01)
1832	Rezone (Special)
1833	Rezone (Special)
1834	Rezone (Special)
1835	Repeals and replaces Ch. 2.05, municipal court judge salary (2.05)
1836	Amends §§4.32.010 and 4.32.350, gambling (4.32)
1837	Rezone (Special)
1838	Rezone (Special)
1839	Rezone (Special)
1840	Rezone (Special)
1841	Rezone (Special)
1842	Rezone (Special)
1843	Rezone (Special)
1844	Rezone (Special)
1845	Rezone (Special)
1846	Rezone (Special)
1847	Rezone (Repealed by 1860)
1848	Rezone (Special)
1849	Rezone (Special)
1850	Amends §7.04.050, animal control, inspection, licensing and regulation (7.04)
1851	Bond issuance (Special)
1852	Bond issuance (Special)
1853	Approves resolutions of the public improvement trust (Special)

Ordinance Number	
1854	Amends §19.58.008(B), (D) and (E), zoning (Repealed by 1864)
1855	Rezone (Special)
1856	Rezone (Special)
1857	Amends Ord. 1787, LID No. T-6 (Special)
1858	Rezone (Special)
1859	Repeals Chs. 4.26 and 4.28, cable television (Repealer)
1860	Rezone; repeals Ord. 1847 (Special)
1861	Rezone (Special)
1862	Rezone (Special)
1863	Repeals and replaces §13.12.110, water and sewer rates, fees and charges (13.12)
1864	Repeals and replaces T. 19; repeals T. 18 (Title 19)
1865	Rezone (Special)
1866	Rezone (Special)
1867	Adds Ch. 4.26, cable television (4.26)
1868	Amends Ch. 2.110, department of information technology (2.110)
1869	Rezone (Special)
1870	Amends Ord. 1637, LID No. T-4 (Special)
1871	Rezone (Special)
1872	Rezone (Special)
1873	Amends Ord. 1787, LID No. T-6 (Special)
1874	Amends §2.08.020, elections (Repealed by 2513)
1875	Rezone (Special)
1876	Rezone (Special)
1877	Repeals and replaces Ch. 15.32, fire code (Repealed by 2242)
1878	Rezone (Special)
1879	Rezone (Special)
1880	Rezone (Special)
1881	Establishes city wards; repeals Ord. 1710 (Repealed by 2031)
1882	Amends Ch. 2.80, convention center and visitors bureau (2.80)
1883	Rezone (Special)
1884	Rezone (Special)
1885	Adds §5.16.150(F) and (G); amends §5.16.010, garbage and waste (Repealed by 2545)
1886	Rezone (Special)
1887	Repeals Ch. 2.19, economic development commission (Repealer)
1888	Rezone (Special)

Ordinance Number	
1889	Repeals Ch. 2.28, fire department (Repealer)
1890	Rezone (Special)
1891	Rezone (Special)
1892	Amends Ord. 1881, city wards (Repealed by 1974)
1893	Amends Ord. 1358, LID T-4 bonds (Special)
1894	Amends Ord. 1358, LID T-4 bonds (Special)
1895	Adds §4.80.050(F); amends §4.80.080 (4.80)
1896	Renumbers §4.36.180 to be §4.36.230; renumbers §4.36.190 to be §4.36.180; renumbers §4.36.200 to be §4.36.190; renumbers §§4.36.230 — 4.36.440 to be §4.36.240 — 4.36.250; amends renumbered §§4.36.150(F), 4.36.170(A), 4.36.180, 4.36.200, 4.36.230(F), 4.36.260, 4.36.380, 4.36.400, 4.36.420, 4.36.430(F), liquor regulations and licenses (4.36)
1897	Rezone (Special)
1898	Rezone (Special)
1899	Amends §2.47.085, records management (Repealed by 2729)
1900	Rezone (Special)
1901	Rezone (Special)
1902	Rezone (Special)
1903	Rezone (Special)
1904	Rezone (Special)
1905	Rezone (Special)
1906	Rezone (Special)
1907	Amends Ch. 4.68, secondhand and antique dealers (4.68)
1908	Rezone (Special)
1909	Rezone (Special)
1910	Rezone (Special)
1911	Rezone (Special)
1912	Adds Ch. 11.15, sidewalks and streets to be free of landscaping, building and other materials (11.15)
1913	Rezone (Special)
1914	Repeals and replaces Ch. 2.27, Henderson emergency medical services advisory board (2.27)
1915	Repeals and replaces Ch. 2.22, senior citizens advisory commission (2.22)
1916	Repeals and replaces Ch. 2.18, commemorative beautification commission (2.18)

Ordinance Number	
1917	Repeals and replaces Ch. 2.16, Henderson parks and recreation board (2.16)
1918	Repeals and replaces Ch. 10.18, citizen's traffic advisory board (10.18)
1919	Rezone (Special)
1920	Amends §§19.1.7(B), 19.1.9, 19.2.1(E)(2), 19.2.4(E)(2), 19.2.6(B)(2), 19.2.6(B)(4), 19.2.17, 19.2.18(B), Table 19.3.3-1, §19.3.3(G), Table 19.4.3-1, §19.4.3(G), Table 19.4.6-1, Table 19.4.9-1, §§19.5.2(B), 19.5.3, 19.5.5(G)(5), 19.5.6(D), 19.5.7(C), 19.5.9(E), 19.6.1(C), 19.6.2(A)(2), 19.6.2(G)(7)(a), 19.6.2(J), 19.6.2(M), 19.6.3(A)(4), 19.6.3(A)(5), 19.7.1(I)(6), 19.7.1(L)(2), 19.8.13(B), 19.8.13(G), 19.9.1(B), 19.9.1(H), 19.9.1(N)(3)(a), 19.9.1(N)(5), 19.9.1(N)(6)(d), 19.9.2(A)(3), 19.9.8(D), 19.9.9(C), 19.10.2(F)(3)(e), 19.10.3(F)(4), 19.10.4(C)(3)(d), 19.10.4(C)(4)(a), 19.10.4(G)(2), 19.10.5(A), 19.10.5(B) and 19.13.2, development code (Repealed by 2061)
1921	Rezone (Special)
1922	Rezone (Special)
1923	Rezone (Special)
1924	Rezone (Special)
1925	Rezone (Special)
1926	Rezone (Special)
1927	Rezone (Special)
1928	Rezone (Special)
1929	Rezone (Special)
1930	Rezone (Special)
1931	Rezone (Special)
1932	Rezone (Special)
1933	Rezone (Special)
1934	Rezone (Special)
1935	Rezone (Special)
1936	Amends §4.18.190, alarm systems (Repealed by 2238)
1937	Amends Table 19.4.3-1 and §§19.4.3(G)(16) and 19.6.1(C), development code (Repealed by 2061)
1938	Rezone (Special)
1939	Rezone (Special)
1940	Rezone (Special)
1941	Annexation (Special)
1942	Annexation (Special)

Ordinance Number	
1943	Clarifies zoning map ordinance numbers incorrectly stated in prior ordinances (Special)
1944	Rezone (Special)
1945	Rezone (Special)
1946	Rezone (Special)
1947	Amends Ord. 1643, LID No. T-10 engineer's report (Special)
1948	Amends §13.08.050, sewer rates and regulations (Repealed by 2536)
1949	Rezone (Special)
1950	Rezone (Special)
1951	Rezone (Special)
1952	Rezone (Special)
1953	Adds Ch. 13.20, electricity and natural gas utilities; renames T. 13 as "utilities" (Repealed by 2536)
1954	Amends §19.9.11(A), zoning (Not codified)
1955	Rezone (Special)
1956	Amends §2.08.060, elections (Repealed by 2513)
1957	Rezone (Special)
1958	Rezone (Special)
1959	Rezone (Special)
1960	Rezone (Special)
1961	Amends Ch. 4.05, business license fee schedules, and §§4.18.130(b), alarm systems, 4.36.240 [4.36.250], liquor regulations and licenses, 4.84.010 and 4.84.160, massage establishments (4.05, 4.18, 4.36)
1962	Adds §§15.32.110 and 15.32.120; amends §§15.32.040 and 15.32.120, fire department fees (Repealed by 2295)
1963	Amends §8.01.020, police service fees (8.01)
1964	Amends §§15.02.010—15.02.030, permit and inspection fee schedules (15.02)
1965	Adds Ch. 15.03, public works fees; amends §11.08.030 and 11.08.040, excavations (11.08)
1966	Creates T. 18, community development fees (18.01)
1967	Amends §13.12.025, water and sewer fees, rates and charges (Repealed by 2112)
1968	Annexation (Special)
1969	Rezone (Special)
1970	(Not assigned)

Ordinance Number	
1971	(Not assigned)
1972	Amends zoning map; repeals and replaces zoning map as set forth in Ord. 1920 (Special)
1973	Rezone (Special)
1974	Adopts amended ward map; repeals Ord. 1892 (Repealed by 2031)
1975	Rezone (Special)
1976	Rezone (Special)
1977	Repeals and replaces Ch. 8.99, parks and recreation (8.99)
1978	Adds Ch. 4.07, business impact consideration (4.07)
1979	Annexation (Special)
1980	Rezone (Special)
1981	Rezone (Special)
1982	Rezone (Special)
1983	Bond issue (Special)
1984	Rezone (Special)
1985	Rezone (Special)
1986	Adds §2.47.035; amends §§2.47.010—2.47.030 and 2.47.040—2.47.070; repeals §§2.47.080 and 2.47.090, records management (2.47)
1987	Rezone (Special)
1988	Amends Ord. 1947, LID No. T-10 engineer's report (Special)
1989	Adds Ch. 8.37; amends §17.05.175; repeals §5.20.180, outdoor fires (8.37)
1990	Amends §2.20.010, Henderson blue ribbon commission on educational excellence and youth opportunity (2.20)
1991	Amends §19.4.3, zoning (Not codified)
1992	Rezone (Special)
1993	Rezone (Special)
1994	Rezone (Special)
1995	Amends §15.16.010, electrical code (15.16)
1996	Bond issuance (Special)
1997	Rezone (Special)
1998	Rezone (Special)
1999	Rezone (Special)
2000	Rezone (Special)
2001	Amends §§8.32.010, 8.32.040 and 8.32.050, disorderly conduct (8.32)
2002	Amends Ch. 4.04, general business license provisions (4.04)

Ordinance Number	
2003	Amends §7.04.060, animal control, inspection, licensing and regulation (7.04)
2004	Rezone (Special)
2005	Rezone (Special)
2006	Amends §§13.10.030, 13.10.050, 13.12.100, utilities; deletes and replaces §13.12.040; deletes 13.04.540, 13.08.360, 13.12.050 (Repealed by 2536)
2007	Rezone (Special)
2008	Rezone (Special)
2009	Rezone (Special)
2010	Annexation (Special)
2011	Amends §§13.01.020, 13.12.110, 13.16.010 and 13.16.015, 13.16.020, 13.16.030, utilities (Repealed by 2536)
2012	Rezone (Special)
2013	Rezone (Special)
2014	Rezone (Special)
2015	Deletes §4.05.186, business license fee schedules (4.05)
2016	Adds §§17.05.045, 17.06.040; amends §§17.01.010, 17.02.010, 17.03.010, 17.03.020, 17.04.010, 17.05.040, 17.05.060, 17.05.120, 17.05.130, 17.05.220, 17.06.010, 17.06.020, and 17.07.020, travel trailer park; repeals §§17.01.020 (17.01, 17.02, 17.03, 17.04, 17.05, 17.06, 17.07)
2017	Amends §§19.4.3-1 and 19.6.1, development code (Not codified)
2018	2000 water bond ordinance (Special)
2019	Rezone (Special)
2020	Adds Ch. 8.11, parade and public assembly; repeals and replaces Ch. 8.10, special events (8.10, 8.11)
2021	Rezone (Special)
2022	Rezone (Special)
2023	Amends §§4.05.146 and 19.6.1(C)(67); repeals Ch. 4.46, health clubs and spas (4.05)
2024	Right-of-way use applications (4.30)
2025	Rezone (Special)
2026	Amends §19.13.2; repeals and replaces Ch. 19.9.10, zoning (Not codified)
2027	Rezone (Special)
2028	Rezone (Special)
2029	Rezone (Special)
2030	Rezone (Special)

Ordinance Number	
2031	Adopts amended ward map; repeals Ords. 1974 and 1881 (Not codified)
2032	Rezone (Special)
2033	Rezone (Special)
2034	Amends §4.15.090; repeals §§4.15.050, 4.15.080 and 4.15.120 (4.15)
2035	Rezone (Special)
2036	Rezone (Special)
2037	Adopts redevelopment plan (Special)
2038	Rezone (Special)
2039	Annexation (Special)
2040	Adopts redevelopment plan (Special)
2041	Amends certain master plan (Special)
2042	Rezone (Special)
2043	Rezone (Special)
2044	Rezone (Special)
2045	Rezone (Special)
2046	Rezone (Special)
2047	Adds §8.37.020(D), camping permitted (8.37)
2048	Amends Table 19.4.3-1 and §19.4.3(G), development code (Not codified)
2049	Rezone (Special)
2050	Amends §6.04.020(B)(7) and (8), unclassified positions (6.04)
2051	Annexation (Special)
2052	Amends Ord. 1643 (Special)
2053	Rezone (Special)
2054	Amends §§2.01.010 and 2.01.030, cost of living raises (2.01)
2055	Amends §§2.05.010 and 2.05.020, municipal court judges' salaries (2.05)
2056	Rezone (Special)
2057	Adds §§4.03.030—4.03.050; amends §4.03.010; renames Ch. 4.03 to be "background investigation and fees"; repeals and replaces §4.03.020, background investigation and fees (4.03)
2058	Repeals Ch. 4.14 (Repealer)
2059	Annexation (Special)
2060	Rezone (Special)
2061	(Pending)
2062	Amends §2.80.030(B) and (C), Henderson Convention Center and Visitors Bureau board of directors membership (2.80)
2063	2001 refunding bond ordinance (Special)
2064	Annexation (Special)

Ordinance Number	
2065	Annexation (Special)
2066	Amends Ord. 1972, zoning map (Special)
2067	Amends Ord. 1972, zoning map (Special)
2068	Amends Ord. 1972, zoning map (Special)
2069	Rezone (Special)
2070	Rezone (Special)
2071	Rezone (Special)
2072	Adds §19.5.11; amends §§19.2.1.E.2,19.5.10, 19.8.3, 19.9.4; renumbers §19.5.11 to be 19.5.12, overlay districts (19.2, 19.5, 19.8, 19.9)
2073	Rezone (Special)
2074	Rezone (Special)
2075	Rezone (Special)
2076	Rezone (Special)
2077	Rezone (Special)
2078	Amends §§13.01.010, 13.01.020, 13.01.040, 13.01.050, 13.02.014, 13.02.015, 13.02.020, 13.02.021, 13.02.022, 13.02.024, 13.02.025, 13.02.026, 13.02.027, 13.02.028, 13.02.029, 13.02.041, 13.03.010, 13.03.020, 13.03.040, 13.03.060, 13.03.080, 13.03.090, 13.03.110 13.03.120, 13.04.010, 13.04.100, 13.04.130, 13.04.190, 13.04.250, 13.04.350, 13.04.480, 13.04.510, 13.06.010, 13.06.020, 13.06.070, 13.06.240, 13.06.270, 13.08.010, 13.08.050, 13.08.080, 13.08.110, 13.08.380, 13.10.010, 13.10.030, 13.12.020, 13.12.100, 13.16.015, 13.18.001 and 13.18.050, utility services division and creation (Repealed by 2536)
2079	Rezone (Special)
2080	Rezone (Special)
2081	Adds §19.2.18; amends §19.13.2, landscape maintenance districts (19.2, 19.13)
2082	Amends §19.2.1.E, 19.2.16.D, 19.2.17.D and 19.13.2, notices and definitions (19.2, 19.13)
2083	Adds §19.2.2.B; Amends §§19.2.1.P, 19.2.2.E, 19.2.2.F and 19.2.2.G, comprehensive plan (19.2)
2084	Amends §19.4.6.1, industrial parks districts (19.4)
2085	Rezone (Special)
2086	Rezone (Special)
2087	Amends §§19.3.3, 19.3.3.G, 19.3.3.I, 19.6.1 and 19.13.2, single family residence (19.3, 19.6, 19.13)

Ordinance Number	
2088	Amends §19.2.1.E, 19.10.2, 19.10.3, 19.13.2, outdoor advertising structure (19.2, 19.10, 19.13)
2089	Rezone (Special)
2090	Rezone (Special)
2091	Repeals Ord. 1914 (Special)
2092	Amends §§4.84.010, 4.84.020, 4.84.040, 4.84.060, 4.84.070, 4.84.080, 4.84.090, 4.84.100, 4.84.110, 4.84.120, 4.84.130, 4.84.140, 4.84.150, 4.84.160, 4.84.170, 4.84.180, 4.84.190, 4.84.230, 4.84.240; repeals §4.84.220, massage therapists and establishments (Repealed by 2844)
2093	Rezone (Special)
2094	Amends §§19.25.5(D)(5) and 19.8.12, grade changes (19.2, 19.8)
2095	Rezone (Special)
2096	Amends §8.84.030, noise disturbances prohibited
2097	Creates local improvement District No. T-13, assessment levy and bond issuance (Special)
2098	Amends Ord. 1972, zoning map (Special)
2099	Amends Ord. 1972, zoning map (Special)
2100	Amends §19.2.1, development review procedures (19.2)
2101	Amends §§2.29.020—2.29.040, ambulance transportation fees (2.29)
2102	Amends Ord. 1972, zoning map (Special)
2103	Amends Ord. 1972, zoning map (Special)
2104	Amends Ord. 1972, zoning map (Special)
2105	Amends Ord. 1972, zoning map (Special)
2106	Amends Ord. 1972, zoning map (Special)
2107	Amends Ord. 1972, zoning map (Special)
2108	Annexation (Special)
2109	Amends Ord. 1972, zoning map (Special)
2110	Amends Ord. 1972, zoning map (Special)
2111	Adds §19.10.3(H), off-premises sign (19.10)
2112	Adds §13.12.115; amends §13.10.030; repeals and replaces §§13.12.010, 13.12.020, 13.12.025, 13.12.030,13.12.040, 13.12.060, 13.12.070, 13.12.080, 13.12.090, 13.12.100, repeals §13.12.110 utilities (Repealed by 2536)
2113	Amends Ord. 1972, zoning map (Special)
2114	Amends Ord. 1972, zoning map (Special)
2115	Amends Ord. 1972, zoning map (Special)
2116	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2117	Amends Table 19.3.3-1, §19.3.3(G), Table 19.4.9-1, §§19.4.9(G) and 19.13.2, senior affordable housing (19.3, 19.4)
2118	Amends Ord. 1972, zoning map (Special)
2119	Amends Ord. 1972, zoning map (Special)
2120	Amends Ord. 1972, zoning map (Special)
2121	Amends Ord. 1972, zoning map (Special)
2122	Amends Ord. 1972, zoning map (Special)
2123	Amends Ord. 1972, zoning map (Special)
2124	Amends Ord. 1972, zoning map (Special)
2125	Amends §§8.01.020 and 8.10.090(B), special event fees (8.01, 8.10)
2126	Amends Ord. 1972, zoning map (Special)
2127	Amends Ord. 1972, zoning map (Special)
2128	Amends §2.05.020, salary for municipal court judge (2.05)
2129	Repeals §8.32.020 (Repealer)
2130	Amends Ord. 1972, zoning map (Special)
2131	Adds §19.9.12; amends §§19.6.1(C), 19.13.2, Tables 19.3.3-1, 19.4.3-1, 19.4.6.1, 19.4.9.1, 19.5.11.1 [19.5.12-1], wireless communication facilities (19.3, 19.4, 19.5, 19.6, 19.9, 19.13)
2132	Amends Ord. 1972, zoning map (Special)
2133	Annexation (Special)
2134	Annexation (Special)
2135	Annexation (Special)
2136	Adopts amended ward map; repeals Ord. 2031 (Not codified)
2137	Refunding bonds (Special)
2138	Amends Ord. 1972, zoning map (Special)
2139	Amends Ord. 1972, zoning map (Special)
2140	Amends Ord. 1972, zoning map (Special)
2141	Amends §15.50.010, uniform regulations (15.50)
2142	Amends §19.6.2(A)(3), animal use standards (19.6)
2143	Amends Ord. 1972, zoning map (Special)
2144	Amends Ord. 1972, zoning map (Special)
2145	Amends Ord. 1825, LID No. 981, water system improvement (Special)
2146	Annexation (Special)
2147	Repeal and replace Title 6, civil service (6.04, 6.08, 6.16, 6.24, 6.40, 6.44)
2148	(Skipped)
2149	Amends Ord. 1972, zoning map (Special)
2150	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2151	Amends Ord. 1972, zoning map (Special)
2152	Amends Ord. 1972, zoning map (Special)
2153	Annexation (Special)
2154	Adds §19.10.2(D)(3), display of the American flag (19.10)
2155	Amends Ord. 1972, zoning map (Special)
2156	Amends §§4.36.010—4.36.070, 4.36.100—4.36.160, 4.36.190, 4.36.210—4.36.330 and 4.36.350—4.36.450; repeals §§4.36.080—4.36.090, 4.36.170—4.36.180, 4.36.200 and 4.36.340, liquor regulations and licenses (4.36)
2157	Amends Ord. 1972, zoning map (Special)
2158	Amends Ord. 1972, zoning map (Special)
2159	Amends Ord. 1972, zoning map (Special)
2160	Amends Ord. 1972, zoning map (Special)
2161	Amends Ord. 1972, zoning map (Special)
2162	Amends Ord. 1972, zoning map (Special)
2163	Annexation (Special)
2164	Annexation (Special)
2165	Amends §19.4.6, industrial districts (19.4)
2166	Amends §8.60.095; repeals §§8.60.010—8.60.040 and 8.60.060—8.60.080, prostitution and indecent conduct (8.60)
2167	Amends §4.36.190(E), liquor regulations and licenses (4.36)
2168	Amends Ord. 1972, zoning map (Special)
2169	Amends Ord. 1972, zoning map (Special)
2170	Amends Ord. 1972, zoning map (Special)
2171	Amends Ord. 1972, zoning map (Special)
2172	Amends Ord. 1972, zoning map (Special)
2173	Amends Ord. 1972, zoning map (Special)
2174	Repeals Ch. 4.15 (Repealer)
2175	Amends Ord. 1972, zoning map (Special)
2176	Amends Ord. 1972, zoning map (Special)
2177	Creates local improvement district No. T-14, anthem master planned community (Special)
2178	Amends Ord. 1972, zoning map (Special)
2179	Repeals and replaces §15.01.020, code amendments (Repealed by 2736)
2180	Amends Ch. 15.08, international building code (15.08)
2181	Adds Ch. 15.09, international residential code (15.09)

Ordinance Number	
2182	Amends Ch. 15.16, national electrical code (15.16)
2183	Amends Ch. 15.20, uniform plumbing code (15.20)
2184	Amends Ch. 15.24, uniform mechanical code (15.24)
2185	Amends Ch. 15.44, southern Nevada pool code (15.44)
2186	Amends Ord. 1972, zoning map (Special)
2187	(skipped)
2188	Building refunding bonds (Special)
2189	Park refunding bonds (Special)
2190	Water and sewer refunding bonds (Special)
2191	Amends Ord. 1972, zoning map (Special)
2192	Amends Ord. 1972, zoning map (Special)
2193	Amends Ord. 1972, zoning map (Special)
2194	Amends §8.01.020, police fee schedule (8.01)
2195	Amends Ord. 1972, zoning map (Special)
2196	Amends Ord. 1972, zoning map (Special)
2197	Amends Ord. 1972, zoning map (Special)
2198	Amends Ord. 1972, zoning map (Special)
2199	Adds Ch. 13.14; amends §§13.04.010 and 13.12.100; repeals §§13.04.510 and 13.04.515 (Repealed by 2536)
2200	Annexation (Special)
2201	Annexation (Special)
2202	Amends §19.9.2, drought plan (19.9)
2203	Amends §19.9.7(E), hazardous material storage (19.9)
2204	Adds §13.14.080, golf course water budgets (Repealed by 2536)
2205	Amends §§19.4.1, 19.4.9 and 19.9.1, zoning (19.4, 19.9)
2206	Amends Ord. 1972, zoning map (Special)
2207	Annexation (Special)
2208	Amends Ord. 1972, zoning map (Special)
2209	Amends Ord. 1972, zoning map (Special)
2210	Amends Ord. 1972, zoning map (Special)
2211	Amends Ord. 1972, zoning map (Special)
2212	Establishes land development standards for parcels subject to sale (Special)
2213	Refunds local improvement district No. T-6; amends Ord. 1437 (Special)
2214	Amends Ord. 1972, zoning map (Special)
2215	Amends Ord. 1972, zoning map (Special)
2216	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2217	Amends Ord. 1972, zoning map (Special)
2218	Amends Ord. 1972, zoning map (Special)
2219	Amends Ord. 1972, zoning map (Special)
2220	Amends Ord. 1972, zoning map (Special)
2221	Amends Ord. 1972, zoning map (Special)
2222	Amends Ord. 1972, zoning map (Special)
2223	Amends Ord. 1972, zoning map (Special)
2224	Amends Ord. 1972, zoning map (Special)
2225	Amends Ord. 1972, zoning map (Special)
2226	Amends Ord. 1972, zoning map (Special)
2227	Amends Ord. 1972, zoning map (Special)
2228	Amends Ord. 1972, zoning map (Special)
2229	Amends Ord. 1972, zoning map (Special)
2230	Amends Ord. 1972, zoning map (Special)
2231	Amends Ord. 1972, zoning map (Special)
2232	Amends Ord. 1972, zoning map (Special)
2233	Amends Ord. 1972, zoning map (Special)
2234	Amends Ord. 1972, zoning map (Special)
2235	Amends Ord. 1972, zoning map (Special)
2236	Amends Ord. 1972, zoning map (Special)
2237	Amends Ord. 1972, zoning map (Special)
2238	Amends §4.03.020; repeals Ch. 4.44 and §§4.18.190, 4.32.170, 4.36.260, 4.68.190, 4.84.080, 4.99.070, 4.100.070, 4.101.080 and 4.110.150, criminal history checks (4.03)
2239	Amends Ord. 1972, zoning map (Special)
2240	Amends Ord. 1972, zoning map (Special)
2241	Amends Ord. 2153, annexation (Special)
2242	Repeals and replaces Ch. 15.32 except §15.32.110, fire code (Repealed by 2295)
2243	Adopts amendments to the redevelopment plan (Special)
2244	Amends Ord. 1972, zoning map (Special)
2245	Creates local improvement district No. T-15, paradise point/horizon heights (Special)
2246	2004 park and recreation refunding bond (Special)
2247	2004 various purpose refunding bond (Special)
2248	Amends Ord. 1972, zoning map (Special)
2249	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2250	Amends Ord. 1972, zoning map (Special)
2251	Amends §4.26.050(B)(1), cable service
2252	Amends Ord. 1972, zoning map (Special)
2253	Amends Ord. 1972, zoning map (Special)
2254	Amends Title 19, zoning (19.1, 19.2, 19.3, 19.4, 19.5, 19.6, 19.7, 19.8, 19.9, 19.10, 19.11, 19.12, 19.13, 19.14)
2255	Amends Ord. 1972, zoning map (Special)
2256	Amends Ord. 1972, zoning map (Special)
2257	Amends Ord. 1972, zoning map (Special)
2258	Amends §§7.04.060, 7.04.180 and 7.04.202, animal control (7.04)
2259	Amends §§19.6.9 and 19.14.2, zoning (19.6, 19.14)
2260	Amends §19.2.1, development review procedures (19.2)
2261	Land development agreement with Kimball Homes Nevada (Special)
2262	Annexation (Special)
2263	Amends §§19.3.4(A), 19.6.6, 19.7.2(G) and 19.9.13(I), zoning (19.3, 19.6, 19.7, 19.9)
2264	Creates local improvement district No. CO21, Horizon Ridge Parkway (Special)
2265	Amends Ord. 1972, zoning map (Special)
2266	Amends Ord. 1972, zoning map (Special)
2267	Amends Ord. 1972, zoning map (Special)
2268	Amends Ch. 4.32 and §4.36.130, gambling and liquor regulations and licenses (4.32, 4.36)
2269	Amends Ords. 1448 and 1882, bonds (Special)
2270	Amends Ord. 1972, zoning map (Special)
2271	Annexation (Special)
2272	Amends §§13.14.020, 13.14.050, 13.14.090, 13.14.100, 13.14.110 and 13.14.130, utilities (Repealed by 2536)
2273	Amends Ord. 1972, zoning map (Special)
2274	Amends §§19.3.3 and 19.10.12, wireless communications (19.3, 19.10)
2275	Adds §7.04.025, animal control (7.04)
2276	Amends Ord. 1972, zoning map (Special)
2277	Adds §19.6.12; amends §§19.4.3, 19.6.1, 19.6.9, 19.6.13, 19.14.2; renumbers old §19.6.12 to 19.6.13, zoning (19.4, 19.6, 19.14)
2278	Amends Ord. 1972, zoning map (Special)
2279	Amends Ord. 1972, zoning map (Special)
2280	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2281	Amends Ord. 1972, zoning map (Special)
2282	Amends Ord. 1972, zoning map (Special)
2283	Amends Ord. 1972, zoning map (Special)
2284	Amends Ord. 1972, zoning map (Special)
2285	Amends Ord. 1972, zoning map (Special)
2286	Amends Ord. 1972, zoning map (Special)
2287	Annexation (Special)
2288	Annexation (Special)
2289	Annexation (Special)
2290	Amends Ord. 1972, zoning map (Special)
2291	Amends §§19.4.3, 19.10.2 and 19.12.2, zoning (19.4, 19.10, 19.12)
2292	Amends Ord. 1972, zoning map (Special)
2293	Amends Ord. 1972, zoning map (Special)
2294	Amends Ord. 1972, zoning map (Special)
2295	Amends §18.01.030; repeals and replaces Ch. 15.02; repeals Ch. 15.03 and §§11.08.030, 11.12.020 and 15.32.110, fees (15.02, 18.01)
2296	2004 Sewer Bond Ordinance (Special)
2297	Amends Ord. 1972, zoning map (Special)
2298	Amends Ord. 1972, zoning map (Special)
2299	Amends §§19.2.1, 19.6.1 and 19.6.13, zoning (19.2, 19.6)
2300	Amends Ord. 1972, zoning map (Special)
2301	Amends Ord. 1972, zoning map (Special)
2302	Amends Ord. 2282, zoning map (Special)
2303	Annexation (Special)
2304	Repeals Ord. 2136 and sets forth a new ordinance establishing the wards within the city of Henderson (Special)
2305	Amends Ord. 1245, Henderson Park District boundaries map (Special)
2306	Amends Ord. 1972, zoning map (Special)
2307	Amends Ord. 1972, zoning map (Special)
2308	Amends Ord. 1972, zoning map (Special)
2309	Amends Ord. 1972, zoning map (Special)
2310	Amends Ord. 1972, zoning map (Special)
2311	Amends Ord. 2034 (Special)
2312	Amends Ord. 1972, zoning map (Special)
2313	Amends Ord. 1972, zoning map (Special)
2314	Amends Ord. 1972, zoning map (Special)
2315	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2316	Amends Ord. 1972, zoning map (Special)
2317	Amends §13.10.030, Ch. 13.12, water and sewer rates (Repealed by 2536)
2318	Repeals Ch. 8.04, registration of convicted persons (Repealer)
2319	2005 Water and Sewer Refunding Bond Ordinance (Special)
2320	Amends Ord. 1972, zoning map (Special)
2321	Amends Ord. 1972, zoning map (Special)
2322	Repeals and replaces Ch. 15.45, International Energy Conservation Code (15.45)
2323	Describes certain recitals, making certain findings, authorizing certain actions, including the creation of Local Improvement District No. T-16 (Special)
2324	Amends Ord. 1972, zoning map (Special)
2325	Amends Ord. 1972, zoning map (Special)
2326	Amends tables E, F, G, H, J, N, of the DSC Schedule of Fees as referenced in Ch. 15.02 (not codified)
2327	Amends §§13.14.020, 13.14.040, 13.14.080, 13.14.130 and 13.14.140, conservation and drought (Repealed by 2536)
2328	Amends Ord. 1972, zoning map (Special)
2329	Amends Ord. 1972, zoning map (Special)
2330	Amends Ord. 1972, zoning map (Special)
2331	Amends Ord. 1972, zoning map (Special)
2332	Adopting that certain development agreement between Henderson and South Edge, LLC for the development of land and providing other matters properly relating thereto (Special)
2333	Amends Ord. 1972, zoning map (Special)
2334	Amends Ord. 1972, zoning map (Special)
2335	Amends Ch. 4.36, liquor, regulations and licenses (4.36)
2336	Amends Ord. 1972, zoning map (Special)
2337	Amends Ord. 1972, zoning map (Special)
2338	Amends §19.6.11, development regulations (19.6)
2339	Amends Ord. 1972, zoning map (Special)
2340	Amends Ord. 1972, zoning map (Special)
2341	Amends Ord. 1972, zoning map (Special)
2342	Amends Ord. 1972, zoning map (Special)
2343	Amends Ord. 1972, zoning map (Special)
2344	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2345	Amends Ord. 1972, zoning map (Special)
2346	Amends Ord. 1972, zoning map (Special)
2347	Amends Ord. 1972, zoning map (Special)
2348	Amends Ord. 1972, zoning map (Special)
2349	Amends Ord. 1972, zoning map (Special)
2350	Amends Ord. 1972, zoning map (Special)
2351	Amends Ord. 1972, zoning map (Special)
2352	Amends Ord. 1972, zoning map (Special)
2353	Annexation (Special)
2354	Amends Ord. 1972, zoning map (Special)
2355	Amends Ord. 1972, zoning map (Special)
2356	Amends Ord. 1972, zoning map (Special)
2357	Amends Ord. 1972, zoning map (Special)
2358	Amends Ord. 1972, zoning map (Special)
2359	Amends Ord. 1972, zoning map (Special)
2360	Amends Ord. 1972, zoning map (Special)
2361	Amends Ord. 1972, zoning map (Special)
2362	Amends Ord. 1972, zoning map (Special)
2363	Amends Ord. 1972, zoning map (Special)
2364	Amends Ord. 1972, zoning map (Special)
2365	Amends Ord. 1972, zoning map (Special)
2366	2005C Water And Sewer Refunding Bond Ordinance (Special)
2367	Describing certain recitals, making certain findings, authorizing certain actions, including the creation of local improvement district No. T-17, Madeira Canyon (Special)
2368	Amends Ord. 1972, zoning map (Special)
2369	Amends Ord. 1972, zoning map (Special)
2370	Amends Chs. 4.04 and 4.05, §4.68.010, and title of Ch. 4.68, business regulations (4.04, 4.05, 4.68)
2371	Amends Ch. 8.10, special events (8.10)
2372	2005B Medium-Term Various Purpose Bond Ordinance (Special)
2373	Establishes a procedure for creating or amending a list of appraisers qualified to conduct appraisals of real property offered for sale or lease by the city (Special)
2374	Adds §19.9.18, street naming (19.9)
2375	Amends §§13.12.025 and 13.12.105, Southern Nevada Water Authority (Repealed by 2536)

Ordinance Number	
2376	Amends Ord. 1972, zoning map (Special)
2377	Amends Ord. 1972, zoning map (Special)
2378	Amends Ord. 1972, zoning map (Special)
2379	Amends Ord. 1972, zoning map (Special)
2380	Amends Ord. 1972, zoning map (Special)
2381	Amends §§19.1.4, 19.2.1, 19.2.2, 19.10.2, 19.10.12, 19.11.3, legislative updates (19.1, 19.2, 19.10, 19.11)
2382	Amends Ch. 4.72, §§4.03.040 and 8.99.030, repeals and replaces Ch. 4.12, and repeals §4.03.030, solicitors and vendors (4.03, 4.12, 4.72, 8.99)
2383	Annexation (Special)
2384	Amends Ch. 8.84 and §§8.10.190, 8.11.200 and 8.99.030, noise control (8.10, 8.11, 8.84, 8.99)
2385	Amends §8.99.030, repeals and replaces §8.40.010, and repeals §8.40.015, alcohol (8.40, 8.99)
2386	Repeals Ch. 4.99, telephone solicitations and advertising specialties (Repealer)
2387	Repeals Ch. 4.96, outdoor assemblies (Repealer)
2388	Adds Ch. 15.33, repeals Section 7705 of Attachment "A" of Section 15.32.030 to the "Fire Code Amendment, 2000 Uniform Fire Code Amendments," blasting regulations (15.33)
2389	Amends §15.02.010, development services fees (15.02)
2390	Authorizes issuance of Series 2005D various purpose bonds (Special)
2391	Repeals and replaces Ch. 8.94, aggressive solicitation (8.94)
2392	Adds Ch. 8.04, laser pointers (8.04)
2393	Repeals Ch. 8.20, food and lodging (Repealer)
2394	Repeals Ch. 8.24, petit larceny (Repealer)
2395	Repeals Ch. 8.16, unlawful coins (Repealer)
2396	Repeals Ch. 8.26, illegal aliens (Repealer)
2397	Adds §8.11.105, amends §§8.11.060, 8.11.090, 8.11.100, 8.11.130, public assembly (8.11)
2398	Adds §8.10.065, amends §§8.10.060, 8.10.080, 8.10.120, 8.10.140, 8.10.170, special events (8.10)
2399	Amends Ord. 1972, zoning map (Special)
2400	Amends Ord. 1972, zoning map (Special)
2401	Redevelopment Plan (Special)
2402	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2403	Amends Ord. 1972, zoning map (Special)
2404	Amends Ord. 1972, zoning map (Special)
2405	Amends Ord. 1972, zoning map (Special)
2406	Amends Ord. 1972, zoning map (Special)
2407	Amends Ord. 1972, zoning map (Special)
2408	Amends Ord. 1972, zoning map (Special)
2409	Amends Ord. 1972, zoning map (Special)
2410	Amends Ord. 1972, zoning map (Special)
2411	Amends Ord. 1972, zoning map (Special)
2412	Amends Ord. 1972, zoning map (Special)
2413	Amends Ord. 1972, zoning map (Special)
2414	Amends Ord. 1972, zoning map (Special)
2415	Amends Ord. 1972, zoning map (Special)
2416	Amends §§15.33.140 and 15.33.150, blasting regulations (15.33)
2417	Amends Ord. 1972, zoning map (Special)
2418	Amends §§19.4.2, 19.4.3 and 19.4.4, zoning (19.4)
2419	Amends Ord. 1972, zoning map (Special)
2420	Amends Ord. 1972, zoning map (Special)
2421	Amends Ord. 1972, zoning map (Special)
2422	Amends Ord. 1972, zoning map (Special)
2423	Amends Ord. 1972, zoning map (Special)
2424	Amends Ord. 1972, zoning map (Special)
2425	Annexation (Special)
2426	Amends Redevelopment Plan (Special)
2427	Annexation (Special)
2428	Amends Ord. 1972, zoning map (Special)
2429	Amends Ord. 1972, zoning map (Special)
2430	Amends Ord. 1972, zoning map (Special)
2431	Amends Ord. 1972, zoning map (Special)
2432	Adopts a Redevelopment Plan for the Eastside Redevelopment Area
2433	Amends §13.10.030, sewer rates (Repealed by 2536)
2434	Amends Ord. 1972, zoning map (Special)
2435	Amends Ord. 1972, zoning map (Special)
2436	Amends Ord. 1972, zoning map (Special)
2437	Amends Ord. 1972, zoning map (Special)
2438	Amends Ord. 1972, zoning map (Special)
2439	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2440	Amends §§19.13.4, 19.13.5 and 19.13.6, zoning (19.13)
2441	Amends Ord. 1972, zoning map (Special)
2442	Amends Ord. 1972, zoning map (Special)
2443	Amends Ord. 1972, zoning map (Special)
2444	Amends Ord. 1972, zoning map (Special)
2445	Amends Ord. 1972, zoning map (Special)
2446	Amends Ord. 1972, zoning map (Special)
2447	Amends Ord. 1972, zoning map (Special)
2448	Amends Ord. 1972, zoning map (Special)
2449	Amends Ord. 1972, zoning map (Special)
2450	Amends Ord. 1972, zoning map (Special)
2451	Amends §§19.4.3, 19.7.1 and 19.14.2, zoning (19.4, 19.7, 19.14)
2452	Annexation (Special)
2453	Amends Ord. 1972, zoning map (Special)
2454	Amends Ord. 1972, zoning map (Special)
2455	Amends §19.10.8, zoning (19.10)
2456	Repeals §8.64.030, obscene materials (Repealer)
2457	Creation of LID T-18, Inspirada (Special)
2458	Amends Ord. 1972, zoning map (Special)
2459	Amends Ord. 1972, zoning map (Special)
2460	Amends Ord. 1972, zoning map (Special)
2461	Amends §§19.4.3, 19.7.1 and 19.14.2. zoning (19.4, 19.7, 19.14)
2462	Annexation (Special)
2463	Amends §§4.36.010, 4.36.040, 4.36.150, 4.36.190, 4.36.300, and repeals 4.36.230, liquor regulations (4.36)
2464	Amends Ord. 1972, zoning map (Special)
2465	Repeals Ch. 8.52, interfering with or resisting officers (Repealer)
2466	Amends §§8.99.020 and 8.99.030, parks and park facilities (8.99)
2467	Amends Ord. 1972, zoning map (Special)
2468	Adds Ch. 7.06; amends §§7.04.010 and 7.04.180; repeals §7.04.210, animals (7.04, 7.06)
2469	Amends Ord. 1972, zoning map (Special)
2470	Annexation (Special)
2471	Annexation (Special)
2472	Amends Ord. 1972, zoning map (Special)
2473	Amends Ord. 1972, zoning map (Special)
2474	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2475	Amends Ord. 1972, zoning map (Special)
2476	Amends Ord. 1972, zoning map (Special)
2477	Amends Ord. 1972, zoning map (Special)
2478	Amends Ord. 1972, zoning map (Special)
2479	Amends Ord. 1972, zoning map (Special)
2480	Amends Ord. 1972, zoning map (Special)
2481	Repeals Ch. 8.80, nuisances (Repealer)
2482	Amends Ord. 1972, zoning map (Special)
2483	Adds Ch. 15.12, property maintenance (15.12)
2484	Amends §§19.2.1, 19.2.5, 19.2.8—19.2.10, 19.2.12—19.2.16, 19.3.3, 19.3.4, 19.4.2, 19.4.3, 19.4.6, 19.5.3, 19.6.4, 19.7.1—19.7.4; repeals 19.2.17, zoning updates (19.2, 19.3, 19.4, 19.5, 19.6, 19.7)
2485	Amends Ord. 1972, zoning map (Special)
2486	Amends Ord. 1972, zoning map (Special)
2487	Amends Ord. 1972, zoning map (Special)
2488	Amends Ord. 1972, zoning map (Special)
2489	Amends Ord. 1972, zoning map (Special)
2490	Amends Ord. 1972, zoning map (Special)
2491	Annexation (Special)
2492	Annexation (Special)
2493	Annexation (Special)
2494	Amends Chs. 15.08 and 15.24, International Building Code and Uniform Mechanical Code (15.08, 15.24)
2495	Amends Ord. 1972, zoning map (Special)
2496	Amends Ord. 1972, zoning map (Special)
2497	Amends Ord. 1972, zoning map (Special)
2498	2006 Medium-term bond ordinance (Special)
2499	Amends §13.12.020, water and sewer connection privilege fees (Repealed by 2536)
2500	Amends §§2.29.020 and 2.29.030, ambulance transportation fees (2.29)
2501	Amends Ord. 1972, zoning map (Special)
2502	Amends §§19.3.3, 19.4.3, 19.5.3, 19.5.4, [19.6.13], 19.7.1, 19.7.3, 19.8.1, 19.10.1, 19.10.3, 19.10.12, 19.11.3—19.11.6 and 19.14.2, zoning, (19.3, 19.4, 19.5, 19.7, 19.8, 19.10, 19.11, 19.14)
2503	Repeals Ch. 8.48, impersonating an officer (8.48)
2504	Annexation (Special)
2505	Amends §2.05.010, salary for municipal court judge (2.05)

Ordinance Number	
2506	Amends Ord. 1972, zoning map (Special)
2507	Amends Ord. 1972, zoning map (Special)
2508	Amends Ord. 1972, zoning map (Special)
2509	Amends Ord. 1972, zoning map (Special)
2510	Amends Ord. 1972, zoning map (Special)
2511	Amends §§15.12.020—15.12.050, property maintenance code (15.12)
2512	Annexation (Special)
2513	Repeals and replaces Ch. 2.08, elections (2.08)
2514	Amends Ord. 2311, establishing wards (Special)
2515	Amends Ord. 1972, zoning map (Special)
2516	Amends Ord. 1972, zoning map (Special)
2517	Amends Ord. 1972, zoning map (Special)
2518	Amends Ord. 1972, zoning map (Special)
2519	Amends Ord. 1972, zoning map (Special)
2520	Repeals Ch. 8.56, escape from jail (Repealer)
2521	Amends Ord. 1972, zoning map (Special)
2522	Amends Ord. 1972, zoning map (Special)
2523	Amends Ord. 1972, zoning map (Special)
2524	Amends Ord. 1972, zoning map (Special)
2525	Amends Ord. 1972, zoning map (Special)
2526	Amends Ord. 1972, zoning map (Special)
2527	Amends Ord. 1972, zoning map (Special)
2528	Amends Ord. 1972, zoning map (Special)
2529	Amends Ord. 1972, zoning map (Special)
2530	Amends Ord. 1972, zoning map (Special)
2531	Amends Ord. 1972, zoning map (Special)
2532	Amends Ord. 1972, zoning map (Special)
2533	Amends Ord. 1972, zoning map (Special)
2534	Amends Ord. 1972, zoning map (Special)
2535	Amends Ord. 1972, zoning map (Special)
2536	Adds Title 14; repeals Title 13, utility services (14.01, 14.02, 14.03, 14.04, 14.05, 14.06, 14.08, 14.09, 14.12, 14.14, 14.16, 14.17, 14.18, 14.21)
2537	Adopts vote center plan (Special)
2538	Amends Ch. 15.16, electrical code (15.16)
2539	Amends Ch. 15.08, building code (15.08)
2540	Amends Ch. 15.45, energy conservation code (15.45)
2541	Amends Ch. 15.09, residential code (15.09)

Ordinance Number	
2542	Amends Ch. 15.44, swimming pool code (15.44)
2543	Amends Ch. 15.24, mechanical code (15.24)
2544	Amends Ch. 15.20, plumbing code (15.20)
2545	Adds Ch. 5.17; repeals Ch. 5.16, solid waste (5.16)
2546	Annexation (Special)
2547	Repeals Ch. 8.44, false reports (Repealed)
2548	Amends §19.7.2, zoning (19.7)
2549	Amends Ord. 1972, zoning map (Special)
2550	Annexation (Special)
2551	Amends §§19.6.10 and 19.14.2, zoning (19.6, 19.14)
2552	Amends Ord. 1972, zoning map (Special)
2553	Amends Ord. 1972, zoning map (Special)
2554	Amends Ord. 1972, zoning map (Special)
2555	Amends Ord. 1972, zoning map (Special)
2556	Amends Ord. 1972, zoning map (Special)
2557	Amends Ord. 1972, zoning map (Special)
2558	Amends Ord. 1972, zoning map (Special)
2559	Amends Ord. 1972, zoning map (Special)
2560	Amends Ord. 1972, zoning map (Special)
2561	Amends Ord. 1972, zoning map (Special)
2562	Amends Ord. 1972, zoning map (Special)
2563	Amends Ord. 1972, zoning map (Special)
2564	Amends Ord. 1972, zoning map (Special)
2565	Amends Ord. 1972, zoning map (Special)
2566	Amends Ord. 1972, zoning map (Special)
2567	Adds §19.6.13; amends §§19.2.11, 19.4.3, 19.4.6, 19.4.9, 19.5.3, 19.6.6, 19.7.1, 19.7.4, 19.8.1, 19.9.3, 19.9.13, 19.10.1, 19.12.2; renumbers former §19.6.13 to 19.6.14, zoning (19.2, 19.4, 19.5, 19.6, 19.7, 19.8, 19.9, 19.10, 19.12)
2568	Adds §4.36.230; amends §§4.36.010 and 4.36.040, liquor regulations and licenses (4.36)
2569	Amends Ord. 1972, zoning map (Special)
2570	Amends Ord. 1972, zoning map (Special)
2571	Adds §8.98.076, imitation firearm (8.98)
2572	Repeals Ch. 2.38, sale of surplus property (Repealer)
2573	Amends §§19.2.1, 19.3.3, 19.4.3, 19.4.6, 19.7.1, 19.7.2, 19.7.4, 19.9.13, 19.10.1, 19.14.2, zoning (19.2, 19.3, 19.4, 19.6, 19.7, 19.9, 19.10, 19.14)

Ordinance Number	
2574	Amends Ord. 1972, zoning map (Special)
2575	Amends 8.09.010, definition (8.09)
2576	Amends Ord. 1972, zoning map (Special)
2577	Amends Ord. 1972, zoning map (Special)
2578	Amends Ord. 1972, zoning map (Special)
2579	Amends Ord. 1972, zoning map (Special)
2580	Amends Ord. 1972, zoning map (Special)
2581	Amends Ord. 1972, zoning map (Special)
2582	Amends Ord. 1972, zoning map (Special)
2583	Amends Ord. 1972, zoning map (Special)
2584	Amends Ord. 1972, zoning map (Special)
2585	Amends Ord. 1972, zoning map (Special)
2586	Amends Ord. 1972, zoning map (Special)
2587	Amends Ord. 1972, zoning map (Special)
2588	Amends Ord. 1972, zoning map (Special)
2589	Amends Ord. 1972, zoning map (Special)
2590	Amends Ord. 1972, zoning map (Special)
2591	Amends Ord. 1972, zoning map (Special)
2592	Amends §14.18.060, clean water coalition regional sewer user charge (14.18)
2593	Accepts funds from public improvement trust for the purpose of parking lot improvements (Special)
2594	Accepts funds from public improvement trust for the purpose of street signage upgrades (Special)
2595	Amends Ord. 1972, zoning map (Special)
2596	Amends Ord. 1972, zoning map (Special)
2597	Amends Ord. 1972, zoning map (Special)
2598	Adopts certain development agreement with South Edge, LLC (Special)
2599	Amends §7.06.010, dangerous and vicious animals (7.06)
2600	Amends Ord. 1972, zoning map (Special)
2601	Amends Ord. 1972, zoning map (Special)
2602	Amends Ord. 1972, zoning map (Special)
2603	Amends Ord. 1972, zoning map (Special)
2604	Amends Ord. 1972, zoning map (Special)
2605	2007 water and sewer refunding bond ordinance (Special)

Ordinance Number	
2606	Describes certain recitals, makes certain findings, authorizes certain actions, including the issuance of limited obligation refunding bonds (Special)
2607	Amends Ord. 1972, zoning map (Special)
2608	Amends Ord. 1972, zoning map (Special)
2609	Amends Ord. 1972, zoning map (Special)
2610	Amends Ord. 1972, zoning map (Special)
2611	Amends Ord. 1972, zoning map (Special)
2612	Amends Ord. 1972, zoning map (Special)
2613	Amends Ord. 1972, zoning map (Special)
2614	Amends Ord. 1972, zoning map (Special)
2615	Amends Ord. 1972, zoning map (Special)
2616	Amends Ord. 1972, zoning map (Special)
2617	Amends Ord. 1972, zoning map (Special)
2618	Amends Ord. 1972, zoning map (Special)
2619	Amends Ord. 1972, zoning map (Special)
2620	Amends Ord. 1972, zoning map (Special)
2621	Amends Ord. 1972, zoning map (Special)
2622	Amends Ord. 1972, zoning map (Special)
2623	Amends Ord. 1972, zoning map (Special)
2624	Annexation (Special)
2625	Amends Ord. 1972, zoning map (Special)
2626	Amends Ord. 1972, zoning map (Special)
2627	Amends Ord. 1972, zoning map (Special)
2628	Amends §§19.4.3, 19.4.6, 19.5.3, 19.7.1 and 19.14.2, zoning (19.4, 19.5, 19.7, 19.14)
2629	Annexation (Special)
2630	Adopts development agreement with City Crossing 1-15, LLCs (Special)
2631	Amends Ord. 1972, zoning map (Special)
2632	Amends Ord. 1972, zoning map (Special)
2633	Amends Ord. 1972, zoning map (Special)
2634	Amends Ord. 1972, zoning map (Special)
2635	Amends Ord. 1972, zoning map (Special)
2636	Amends Ord. 1972, zoning map (Special)
2637	Amends Ord. 1972, zoning map (Special)
2638	Adopts development agreement with Kimball Hill Homes Nevada, Inc. (Special)

Ordinance Number	
2639	Amends §8.85.050, spray paint, markers and paint sticks (8.85)
2640	Amends Ord. 1972, zoning map (Special)
2641	Amends Ord. 1972, zoning map (Special)
2642	Amends Ord. 1972, zoning map (Special)
2643	Amends §19.4.3, zoning (19.4)
2644	Amends §19.6.5, zoning (19.6)
2645	Amends Ord. 1972, zoning map (Special)
2646	Amends Ord. 1972, zoning map (Special)
2647	Amends Ord. 1972, zoning map (Special)
2648	Amends Ord. 1972, zoning map (Special)
2649	Amends Ch. 15.32, fire code (15.32)
2650	Adopts development agreement with Landwell Company, L.P. (Special)
2651	Amends Ord. 1972, zoning map (Special)
2652	Amends Ord. 1972, zoning map (Special)
2653	Amends Ord. 1972, zoning map (Special)
2654	Amends Ord. 1972, zoning map (Special)
2655	Amends Ord. 1972, zoning map (Special)
2656	Amends Ord. 1972, zoning map (Special)
2657	Amends Ord. 1972, zoning map (Special)
2658	Amends Ord. 1972, zoning map (Special)
2659	Amends Ord. 1972, zoning map (Special)
2660	Amends Ord. 1972, zoning map (Special)
2661	Amends Ord. 1972, zoning map (Special)
2662	Amends Ord. 1972, zoning map (Special)
2663	Amends Ord. 1972, zoning map (Special)
2664	Amends Ord. 1972, zoning map (Special)
2665	Amends Ord. 1972, zoning map (Special)
2666	Amends Ord. 1972, zoning map (Special)
2667	Amends Ord. 1972, zoning map (Special)
2668	Amends §§15.12.080 and 15.12.090, schedule of fines and fees (15.12)
2669	Amends Ord. 1972, zoning map (Special)
2670	Amends Ord. 1972, zoning map (Special)
2671	Amends Ord. 1972, zoning map (Special)
2672	Annexation (Special)
2673	Amends Ord. 1972, zoning map (Special)
2674	Amends Ord. 1972, zoning map (Special)
2675	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2676	Adds 14.14.110, amends §§14.01.010, 14.02.010, 14.03.010—14.03.040, 14.04.010, 14.04.030, 14.04.040, 14.04.090, 14.05.010, 14.05.040, 14.06.010, 14.08.010, 14.09.010, 14.12.010, 14.14.010—14.14.060, 14.14.080, 14.14.100, 14.14.120, 14.16.010, 14.16.050, 14.17.010, 14.18.010, 14.18.090, 14.21.010—14.21.030; renumbers 14.14.110 to 14.14.120, utility services (14.01, 14.02, 14.03, 14.04, 14.05, 14.06, 14.08, 14.09, 14.12, 14.14, 14.16, 14.17, 14.18, 14.21)
2677	Creates the department of utility services community advisory committee (Special)
2678	Development agreement with the M Resort LLC (Special)
2679	Amends Ord. 1972, zoning map (Special)
2680	Amends Ord. 1972, zoning map (Special)
2681	Amends §§19.2.1, and 19.3.3, zoning (19.2, 19.3)
2682	Amends Ord. 1972, zoning map (Special)
2683	Amends Ord. 1972, zoning map (Special)
2684	Amends Ord. 1972, zoning map (Special)
2685	Amends Ord. 1972, zoning map (Special)
2686	Amends Ord. 1972, zoning map (Special)
2687	Amends Ord. 1972, zoning map (Special)
2688	Amends Ord. 1972, zoning map (Special)
2689	Amends Ord. 1972, zoning map (Special)
2690	Amends Ord. 1972, zoning map (Special)
2691	Amends Ord. 1972, zoning map (Special)
2692	Amends Ord. 1972, zoning map (Special)
2693	Amends Ord. 1972, zoning map (Special)
2694	Amends Ord. 1972, zoning map (Special)
2695	Amends Ord. 1972, zoning map (Special)
2696	Amends Ord. 1972, zoning map (Special)
2697	Amends Ord. 1972, zoning map (Special)
2698	Amends Ord. 1972, zoning map (Special)
2699	Amends §8.99.030, parks and park facilities (8.99)
2700	Amends §§19.10.7 and 19.14.2, zoning (19.10, 19.14)
2701	Amends §19.10.12, zoning (19.10)
2702	Amends Ord. 1972, zoning map (Special)
2703	Amends Ord. 1972, zoning map (Special)
2704	Repeals Ords 2311 and 2514, establishes wards (Special)
2705	Amends §§19.4.3, 19.4.6 and 19.5.3, zoning (19.4, 19.5)

Ordinance Number	
2706	2008 medium term bond ordinance (Special)
2707	Annexation (Special)
2708	Annexation (Special)
2709	Amends Ord. 1972, zoning map (Special)
2710	Amends Ord. 1972, zoning map (Special)
2711	Amends Ord. 1972, zoning map (Special)
2712	Amends Ord. 1972, zoning map (Special)
2713	Amends Ord. 1972, zoning map (Special)
2714	Amends Ord. 1972, zoning map (Special)
2715	Amends Ord. 1972, zoning map (Special)
2716	Amends Ord. 1972, zoning map (Special)
2717	Amends Ord. 1972, zoning map (Special)
2718	Adds Ch. 4.60, teenage dancehalls, nightclubs (Repealed by 2800)
2719	Amends Ord. 1972, zoning map (Special)
2720	Amends Ord. 1972, zoning map (Special)
2721	Amends Ord. 1972, zoning map (Special)
2722	Amends Ord. 1972, zoning map (Special)
2723	Amends Ord. 1972, zoning map (Special)
2724	Amends §15.50.010, uniform regulations (15.50)
2725	Amends Ord. 1972, zoning map (Special)
2726	Amends Ord. 1972, zoning map (Special)
2727	Amends §§19.2.1 and 19.2.6, zoning (19.2)
2728	Describes certain recitals, making certain findings, authorizing certain actions, including the creation of Local Improvement District No. C-021 (Special)
2729	Repeals and replaces §2.47.085, records management (2.47)
2730	Amends Ord. 1972, zoning map (Special)
2731	Amends §18.01.030, annual increase in fees (18.01)
2732	Annexation (Special)
2733	Amends §§8.11.010 and 8.11.040, parade and public assembly (8.11)
2734	Amends §4.05.260; repeals and replaces Ch. 4.48, transient lodging and gaming taxes (4.05, 4.48)
2735	Amends master development plan (Special)
2736	Repeals and replaces Ch. 15.01; repeals Ch. 15.36, building and fire safety administrative code (15.01)
2737	Amends §7.04.340, noise (7.04)
2738	Amends §§15.32.050 and 15.32.090, fire code (15.32)

Ordinance Number	
2739	Amends Ord. 1972, zoning map (Special)
2740	Amends Ord. 1972, zoning map (Special)
2741	Amends Ord. 1972, zoning map (Special)
2742	Amends Ord. 1972, zoning map (Special)
2743	Amends Ch. 2.80, commission on cultural arts and tourism (2.80)
2744	Adds §4.03.060; amends §4.03.010, background investigation and fees (4.03)
2745	Amends §6.16.020, employment application process (6.16)
2746	Amends Ord. 1972, zoning map (Special)
2747	Amends Ord. 1972, zoning map (Special)
2748	Amends Ord. 1972, zoning map (Special)
2749	Amends Ord. 1972, zoning map (Special)
2750	Amends Ord. 1972, zoning map (Special)
2751	Amends Ord. 1972, zoning map (Special)
2752	Amends Ord. 1972, zoning map (Special)
2753	Amends Ord. 1972, zoning map (Special)
2754	Amends Ord. 1972, zoning map (Special)
2755	Amends Ord. 1972, zoning map (Special)
2756	Amends Ord. 1972, zoning map (Special)
2757	Amends Ord. 1972, zoning map (Special)
2758	Amends Ord. 1972, zoning map (Special)
2759	Amends Ord. 1972, zoning map (Special)
2760	Amends Ord. 1972, zoning map (Special)
2761	Amends Ord. 1972, zoning map (Special)
2762	Amends Ord. 1972, zoning map (Special)
2763	Amends Ord. 1972, zoning map (Special)
2764	Amends Ord. 1972, zoning map (Special)
2765	Amends Ord. 1972, zoning map (Special)
2766	Amends Ord. 1972, zoning map (Special)
2767	Amends Ord. 1972, zoning map (Special)
2768	Amends Ord. 1972, zoning map (Special)
2769	Amends Ord. 1972, zoning map (Special)
2770	Amends Ord. 1972, zoning map (Special)
2771	Amends Ord. 1972, zoning map (Special)
2772	Amends Ord. 1972, zoning map (Special)
2773	Amends Ord. 1972, zoning map (Special)
2774	Issuance of Private Activity Bonds (Special)

Ordinance Number	
2775	Amends Ord. 1972, zoning map (Special)
2776	Amends Ord. 1972, zoning map (Special)
2777	Amends Ord. 1972, zoning map (Special)
2778	Amends Ord. 1972, zoning map (Special)
2779	Amends §§4.80.020, 4.80.050, 4.80.080 and 4.80.110, private ambulance service (4.80)
2780	Amends §§8.11.010, 8.11.060 and 8.11.210, parade and public assembly (8.11)
2781	Extends City Limits (Special)
2782	Amends Ord. 1972, zoning map (Special)
2783	Stormwater regulations (13.04)
2784	Vote center plan (Special)
2785	Adds Ch. 19.15 and §19.11.7; amends §§ 19.14.2; zoning (19.11, 19.14, 19.15)
2786	Amends Ord. 1972, zoning map (Special)
2787	Amends Ord. 1972, zoning map (Special)
2788	Amends §8.01.020, 8.10.090 and 8.11.240, public peace and safety
2789	Amends Ord. 1972, zoning map (Special)
2790	Amends Ord. 1972, zoning map (Special)
2791	Amends Ord. 1972, zoning map (Special)
2792	Amends Ord. 1972, zoning map (Special)
2793	Amends Ord. 1972, zoning map (Special)
2794	Amends Ord. 1972, zoning map (Special)
2795	Amends Ord. 1972, zoning map (Special)
2796	Amends Ord. 1972, zoning map (Special)
2797	Amends Ord. 1972, zoning map (Special)
2798	Amends §§14.01.010, 14.03.030, 14.04.040, 14.08.040, 14.08.070, 14.08.090, 14.18.020, 14.18.040, 14.21.020 and 14.21.050; repeals §14.14.020; renumbers former 14.14.030—14.14.120 to 14.14.020—14.14.110, utility services (14.01, 14.03, 14.04, 14.08, 14.14, 14.18, 14.20, 14.21)
2799	Amends §§19.4.3, 19.14.2 and 19.7.1, zoning (19.4, 19.7, 19.14)
2800	Amends §4.03.050; repeals and replaces Ch. 4.60, teenage dancehalls and nightclubs (4.03, 4.60)
2801	Amends Ord. 1972, zoning map (Special)
2802	Authorizes installment-purchase agreement (Special)
2803	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2804	Adopts redevelopment plan (Special)
2805	Amends Ord. 1972, zoning map (Special)
2806	Amends Ord. 1972, zoning map (Special)
2807	Adds Ch. 2.85, museum/space and science center board (2.85)
2808	Amends Ord. 1972, zoning map (Special)
2809	Amends Ord. 1972, zoning map (Special)
2810	Amends Ord. 1972, zoning map (Special)
2811	Amends Ord. 1972, zoning map (Special)
2812	Amends Ord. 1972, zoning map (Special)
2813	Amends Ord. 1972, zoning map (Special)
2814	Adopting that certain development agreement between city and Nevada Hand Inc. for the development of a senior center senior apartment housing (Special)
2815	Amends §§ 15.12.020 and 15.12.030, property maintenance code (15.12)
2816	Amends Sloan Canyon National Conservation Area Gateway design guidelines (Special)
2817	Amends the Ascaya master plan (Special)
2818	Amends Ord. 1972, zoning map (Special)
2819	Amends Ord. 1972, zoning map (Special)
2820	Amends Ord. 1972, zoning map (Special)
2821	Amends §§ 19.7.1, 19.7.2, 19.7.4, 19.11.7, 19.14.2, 19.15.2 and 19.15.4, zoning (19.7, 19.11, 19.14, 19.15)
2822	Amends Ord. 1972, zoning map (Special)
2823	Amends Ord. 1972, zoning map (Special)
2824	Amends Ord. 1972, zoning map (Special)
2825	Amends Ord. 1972, zoning map (Special)
2826	Amends Ord. 1972, zoning map (Special)
2827	Adds Ch. 10.34, charitable solicitations while standing on median strip or sidewalk (10.34)
2828	Amends § 2.16.030, parks and recreation board (2.16)
2829	Amends Ord. 1972, zoning map (Special)
2830	Amends § 2.85.010, museum/space and center board (2.85)
2831	Amends §§ 4.72.090 and 8.99.020—8.99.040; repeals § 8.99.050 parks and recreation (4.72, 8.99)
2832	Amends Ord. 1972, zoning map (Special)
2833	Amends § 8.09.030, skating on premises of municipal facilities (8.09)
2834	Amends Ord. 1972, zoning map (Special)

Ordinance Number	
2835	Amends Ord. 1972, zoning map (Special)
2836	Amends Ord. 1972, zoning map (Special)
2837	Sewer revenue bond (Special)
2838	Amends §§ 15.45.010—15.45.080, International Energy Conservation Code (15.45)
2839	Amends Ord. 1972, zoning map (Special)
2840	Amends Ord. 1972, zoning map (Special)
2841	Annexation (Special)
2842	New Development Code (Title 19)
2843	Adds Chs. 15.70 and 15.75, buildings and construction (15.70, 15.75)
2844	Repeals and replaces Chs. 4.84 and 4.85, massage establishments and independent massage therapists and reflexology (4.84, 4.85)
2845	Amends § 4.03.050, background investigation and fees (4.03)
2846	Amends §§ 4.101.010, 4.110.010—4.110.030, 4.110.170 and 4.110.490 sexually oriented businesses (4.101, 4.110)
2847	Adds § 4.80.065, private ambulance service (4.80)
2848	Land development agreement with Century Properties Henderson 18 LLC (Special)
2849	Amends Ord. 1972, zoning map (Special)
2850	Corrects Ord. No. 2820 to include maps (Special)
2851	Amends Ord. 1972, zoning map (Special)
2852	Amends Ord. 1972, zoning map (Special)
2853	Amends Ord. 1972, zoning map (Special)
2854	Repeals Ch. 2.40, lost or abandoned property (Repealer)
2855	Amends § 4.12.130, door-to-door solicitors, peddlers and canvassers (4.12)
2856	Amends § 18.01.030, community development fee schedules (18.01)
2857	Amends § 14.18.060, fees, rates and charges (14.18)
2858	Amends Ord. 1972, zoning map (Special)
2859	Amends Ord. 1972, zoning map (Special)
2860	Amends Ord. 1972, zoning map (Special)
2861	Annexation (Special)
2862	Amends § 4.05.020, business license fee schedules (4.05)
2863	Amends zoning map to reclassify certain real property (Special)
2864	Amends zoning map to reclassify certain real property (Special)
2865	Amends zoning map to reclassify certain real property (Special)
2866	Amends zoning map to reclassify certain real property (Special)

Ordinance Number	
2867	Amends zoning map to reclassify certain real property (Special)
2868	Adds §§ 7.04.095 and 7.04.101—7.04.106; amends §§ 7.04.010 and 7.04.060, animal control (7.04)
2869	Amends zoning map to reclassify certain real property (Special)
2870	Adopts new zoning map (Special)
2871	Amends zoning map to reclassify certain real property (Special)
2872	Amends zoning map to reclassify certain real property (Special)
2873	Amends zoning map to reclassify certain real property (Special)
2874	Adopts amended development agreement with Kimball Hill Homes Nevada, Inc. (Special)
2875	Amends § 8.99.030, rules and regulations regarding use of parks and park facilities (8.99)
2876	Amends zoning map to reclassify certain real property (Special)
2877	Amends portions of Chs. 19.2, 19.3, 19.4, 19.5, 19.6, 19.7, 19.8, 19.9, 19.11, and 19.12, development code (Not submitted for codification)
2878	Amends zoning map to reclassify certain real property (Special)
2879	Amends zoning map to reclassify certain real property (Special)
2880	Amends zoning map to reclassify certain real property (Special)
2881	Amends zoning map to reclassify certain real property (Special)
2882	Amends zoning map to reclassify certain real property (Special)
2883	Amends § 4.04.200, general business license provisions (4.04)
2884	Adopts 2011/2012 ward and precinct map (Special)
2885	Amends §§ 15.09.010—15.09.030; adds § 15.09.050, International Residential Code (15.09)
2886	Amends §§ 15.16.010—15.16.060, Electrical Code (15.16)
2887	Amends §§ 15.20.010—15.20.060, Uniform Plumbing Code (15.20)
2888	Amends §§ 15.24.010—15.24.060, Uniform Mechanical Code (15.24)
2889	Amends §§ 15.44.010—15.44.030, Swimming Pool Code (15.44)
2890	Adds § 15.45.090, International Energy Conservation Code (15.45)
2891	Amends zoning map to reclassify certain property (Special)
2892	Amends Lake Mead North design guidelines and development standards (Special)
2893	Amends zoning map to reclassify certain property (Special)
2894	Adopts vote center plan (Special)
2895	Amends zoning map to reclassify certain property (Special)
2896	Amends zoning map to reclassify certain property (Special)
2897	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
2898	Repeals and reenacts Ch. 15.08, International Building Code (15.08)
2899	Repeals and reenacts Ch. 15.32, International Fire Code (15.32)
2900	Amends zoning map to reclassify certain property (Special)
2901	Amends zoning map to reclassify certain property (Special)
2902	Amends zoning map to reclassify certain property (Special)
2903	Amends portions of Chs. 19.4, 19.5, 19.6, 19.7, 19.8, and 19.12, development code (Not submitted for codification)
2904	Amends zoning map to reclassify certain real property (Special)
2905	Amends zoning map to reclassify certain real property (Special)
2906	Amends §§ 4.32.160 and 4.32.310, gambling—regulations and licenses (4.32)
2907	Amends §§ 4.36.010 and 4.36.250, liquor—regulations and licenses (4.36)
2908	Amends §§ 7.04.010, 7.04.060, 7.04.090, 7.04.095, 7.04.350, 7.04.351, 70.4.353—7.04.355, 7.04.358, 7.08.010—7.08.050, 7.08.090—7.08.110, 7.08.120, 7.08.140, and 7.08.090; adds §§ 7.04.352, 7.08.115, 7.08.125 and 7.08.145; repeals §§ 7.04.100, 7.04.357, 7.04.359, and 7.04.360—7.04.450, animals (7.04, 7.08)
2909	Amends §§ 14.02.030, 14.02.040, 14.08.050, 14.14.030, 14.14.040, 14.14.110, 14.17.060, and 14.18.040; repeals § 14.14.090, utility services (14.02, 14.08, 14.14, 14.17, 14.18)
2910	Amends §§ 4.68.010, 4.68.040, 4.68.080, and 4.68.260, secondhand dealers (4.68)
2911	Amends zoning map to reclassify certain property (Special)
2912	Amends zoning map to reclassify certain property (Special)
2913	Amends zoning map to reclassify certain property (Special)
2914	Amends zoning map to reclassify certain property (Special)
2915	Amends § 14.18.060, cross-connection control regulations (14.18)
2916	Amends § 4.04.020; adds § 4.04.025, general business license provisions (4.04)
2917	Amends § 18.01.030, community development fee schedules (18.01)
2918	Amends zoning map to reclassify certain property (Special)
2919	Amends zoning map to reclassify certain property (Special)
2920	Amends zoning map to reclassify certain property (Special)
2921	Amends zoning map to reclassify certain property (Special)
2922	Amends zoning map to reclassify certain property (Special)
2923	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
2924	Authorizes 2011 installment purchase agreement (Special)
2925	Issuance of 2011 medium-term bonds (Special)
2926	Amends zoning map to reclassify certain property (Special)
2927	Amends zoning map to reclassify certain property (Special)
2928	Amends zoning map to reclassify certain property (Special)
2929	Amends zoning map to reclassify certain property (Special)
2930	Amends zoning map to reclassify certain property (Special)
2931	Amends zoning map to reclassify certain property (Special)
2932	Repeals and reenacts Tit. 7, animals (7.01—7.90)
2933	Amends § 4.05.220, business license fee schedules (4.05)
2934	Amends zoning map to reclassify certain property (Special)
2935	Amends portions of Chs. 19.2, 19.4, 19.5, 19.6, 19.7, 19.8, 19.9, 19.11, and 19.12, development code (Not submitted for codification)
2936	Amends zoning map to reclassify certain property (Special)
2937	Amends Ch. 19.4, development code (Not submitted for codification)
2938	Amends zoning map to reclassify certain property (Special)
2939	Repeals and reenacts Title 19, development code (zoning) (19.01)
2940	Amends §§ 4.36.010, 4.36.250; adds § 4.36.040 L., liquor—regulations and licenses (4.36)
2941	Amends zoning map to reclassify certain property (Special)
2942	Amends § 5.17.230, solid waste management (5.17)
2943	First amendment to the Cadence Development Agreement (Special)
2944	Amends zoning map to reclassify certain property (Special)
2945	Issuance of 2011 A&B refunding bonds (Special)
2946	Issuance of 2011C refunding bonds (Special)
2947	Amends §§ 4.84.060, 4.84.150, 4.84.180, 4.85.150, and 4.85.160; adds § 4.85.145, business regulations and licenses (4.84, 4.85)
2948	Amends zoning map to reclassify certain property (Special)
2949	Amends zoning map to reclassify certain property (Special)
2950	Repeals and reenacts Ch. 4.06, policy and procedure show cause, license suspension, limitation, revocation (4.06)
2951	Amends §§ 14.01.010, 14.02.020, 14.02.040, 14.14.050, 14.18.020, and 14.18.060; repeals §§ 14.02.050 and 14.02.060; renumbers § 14.02.070 as 14.02.050, utility services (14.02, 14.14, 14.18)
2952	Amends Ch. 2.100, registration and regulation of lobbyists (2.100)
2953	Amends §§ 4.04.010 and 4.05.220; adds § 4.04.190, business regulations and licenses (4.04, 4.05)

Ordinance Number	
2954	Amends zoning map to reclassify certain property (Special)
2955	Amends §§ 2.47.040, 2.47.050, and 2.47.085, records management (2.47)
2956	Amends zoning map to reclassify certain property (Special)
2957	Amends Henderson Park District boundaries map (Special)
2958	Amends zoning map to reclassify certain property (Special)
2959	Adds § 8.32.050, disorderly conduct (8.32)
2960	Amends zoning map to reclassify certain property (Special)
2961	Amends §§ 2.04.070, 2.04.090, and 2.04.110; repeals §§ 2.04.060, 2.04.080, and 2.04.100, council meetings (2.04)
2962	Amends § 19.5.5, development code (Omitted)
2963	Amends zoning map to reclassify certain property (Special)
2964	Amends zoning map to reclassify certain property (Special)
2965	Amends zoning map to reclassify certain property (Special)
2966	Issuance of 2012 sewer refunding bonds (Special)
2967	Amends zoning map to reclassify certain property (Special)
2968	Adds Ch. 2.40, ethical standards for public servants (2.40)
2969	Amends § 4.05.200, car dealership—new (4.05)
2970	Amends zoning map to reclassify certain property (Special)
2971	Amends zoning map to reclassify certain property (Special)
2972	Amends zoning map to reclassify certain property (Special)
2973	Amends zoning map to reclassify certain property (Special)
2974	Amends zoning map to reclassify certain property (Special)
2975	Amends zoning map to reclassify certain property (Special)
2976	Adopts development agreement with Union Village, LLC (Special)
2977	Amends zoning map to reclassify certain property (Special)
2978	Amends zoning map to reclassify certain property (Special)
2979	Amends zoning map to reclassify certain property (Special)
2980	Amends Redevelopment Plan for the Eastside Redevelopment Area (Special)
2981	Amends zoning map to reclassify certain property (Special)
2982	Adds Ch. 2.75, bicycle advisory committee (2.75)
2983	Amends zoning map to reclassify certain property (Special)
2984	Adopts 2013/2014 ward and precinct map (Special)
2985	Amends zoning map to reclassify certain property (Special)
2986	Amends zoning map to reclassify certain property (Special)
2987	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
2988	Adopts vote center plan (Special)
2989	Amends zoning map to reclassify certain property (Special)
2990	Amends zoning map to reclassify certain property (Special)
2991	Amends zoning map to reclassify certain property (Special)
2992	Amends zoning map to reclassify certain property (Special)
2993	LID T-13 limited obligation refunding bonds (Special)
2994	Issuance of 2013A refunding bonds (Special)
2995	Issuance of 2013 B&C refunding bonds (Special)
2996	Amends zoning map to reclassify certain property (Special)
2997	Amends zoning map to reclassify certain property (Special)
2998	Amends zoning map to reclassify certain property (Special)
2999	Amends zoning map to reclassify certain property (Special)
3000	Amends zoning map to reclassify certain property (Special)
3001	Amends § 18.01.030, community development fee schedules (18.01)
3002	Amends zoning map to reclassify certain property (Special)
3003	Amends zoning map to reclassify certain property (Special)
3004	Amends zoning map to reclassify certain property (Special)
3005	Amends zoning map to reclassify certain property (Special)
3006	Amends zoning map to reclassify certain property (Special)
3007	Amends § 8.01.020, police service fees (8.01)
3008	Amends §§ 8.02.010 and 8.02.020, violation of state law (8.02)
3009	Repeals Ch. 8.03, police canine units (8.03)
3010	Repeals Ch. 8.07, distribution and display of material harmful to minors (8.07)
3011	Amends Ch. 8.10, special events (8.10)
3012	Amends Ch. 8.11, parade and public assembly (8.11)
3013	Amends §§ 8.12.010 and 8.12.020; adds § 8.12.030, contributing to delinquency of minors (8.12)
3014	Amends §§ 8.09.010, 8.09.040, and title of Ch. 8.09; repeals § 8.09.020; adds § 8.09.050, skating where prohibited (8.09)
3015	Amends §§ 8.28.010 and 8.28.020, hotel registers (8.28)
3016	Amends § 15.50.010, uniform regulations for flood control and control of drainage (15.50)
3017	Repeals Ch. 2.60, utilities (2.60)
3018	Amends §§ 2.110.010—2.110.050, department of information technology (2.110)
3019	Repeals Title 17, travel trailer park (17.01—17.08)

Ordinance Number	
3020	Amends § 14.14.100, pool and hot tub draining (14.14)
3021	Amends §§ 2.24.010—2.24.090 and 2.24.110, emergency management (2.24)
3022	Repeals Ch. 5.20, air pollution (5.20)
3023	Amends §§ 14.17.020 and 14.17.030, billing regulations (14.17)
3024	Repeals Ch. 5.24, public rest facilities (5.24)
3025	Repeals Ch. 2.42, delinquent land contracts (2.42)
3026	Repeals Ch. 4.26, cable television (4.26)
3027	Amends zoning map to reclassify certain property (Special)
3028	Describes certain recitals, makes certain findings, authorizes certain actions, including the modification of a portion of the project in Local Improvement District No. T-16 (Special)
3029	Amends zoning map to reclassify certain property (Special)
3030	Amends §§ 2.16.020—2.16.050; repeals §§ 2.16.010 and 2.16.070, parks and recreation board (2.16)
3031	Amends §§ 2.18.010—2.18.040; repeals § 2.18.070, commemorative beautification commission (2.18)
3032	Amends §§ 2.20.020—2.20.040, blue ribbon commission on educational excellence and youth opportunity (2.20)
3033	Amends Ch. 8.32, dangerous fireworks; amends Ch. 8.36, fires; amends §§ 8.37.020 and 8.37.040, camping—outdoor fires (8.32, 8.36, 8.37)
3034	Amends zoning map to reclassify certain property (Special)
3035	Amends zoning map to reclassify certain property (Special)
3036	Amends zoning map to reclassify certain property (Special)
3037	Amends zoning map to reclassify certain property (Special)
3038	Amends §§ 14.08.040 and 14.08.090, cross-connection control regulations (14.08)
3039	Amends zoning map to reclassify certain property (Special)
3040	Amends §§ 15.08.010 and 15.08.020; repeals § 15.08.030; renumbers §§ 15.08.040—15.08.060 as 15.08.030—15.08.050, International Building Code (15.08)
3041	Amends §§ 15.09.010—15.09.030 and 15.09.050, International Residential Code (15.09)
3042	Amends §§ 15.16.010, 15.16.020, 15.16.040 and 15.16.060, Electrical Code (15.16)
3043	Amends §§ 15.20.010, 15.20.020, 15.20.040 and 15.20.060, Uniform Plumbing Code (15.20)

Ordinance Number	
3044	Amends §§ 15.24.010, 15.24.020, 15.24.040 and 15.24.060, Uniform Mechanical Code (15.24)
3045	Amends Ch. 15.44, Swimming Pool Code (15.44)
3046	Amends zoning map to reclassify certain property (Special)
3047	Amends Ch. 15.45, International Energy Conservation Code (15.45)
3048	Repeals and reenacts Ch. 15.32, International Fire Code (15.32)
3049	Amends development services center schedule of fees (Special)
3050	Adds Ch. 2.43, city audit function (2.43)
3051	Amends zoning map to reclassify certain property (Special)
3052	Amends zoning map to reclassify certain property (Special)
3053	Amends zoning map to reclassify certain property (Special)
3054	Amends zoning map to reclassify certain property (Special)
3055	Adopts major modification to development agreement with Inspirada Builders, LLC (Special)
3056	Amends §§ 2.40.010, 2.40.020, 2.40.040—2.40.110 and 2.40.130—2.40.150, ethical standards for public servants (2.40)
3057	Amends §§ 2.100.010—2.100.030; adds § 2.100.040; renumbers § 2.100.040 as 2.100.050, registration and regulation of lobbyists (2.100)
3058	Amends Ch. 13.04, stormwater regulations (13.04)
3059	Amends zoning map to reclassify certain property (Special)
3060	Amends §§ 2.08.020—2.08.040; adds § 2.08.070, elections (2.08)
3061	Amends § 2.85.010, museum/space and science center board (2.85)
3062	Repeals Ch. 2.90, tobacco pollution control (2.90)
3063	Adds Ch. 2.95, charter review committee (2.95)
3064	Repeals Ch. 2.52, classification and salary schedule (2.52)
3065	Repeals Ch. 2.58, affirmative action plan (2.58)
3066	Repeals Title 16, trailer parks (16.04—16.24)
3067	Amends Ch. 4.12, door-to-door solicitors, peddlers and canvassers (4.12)
3068	Amends §§ 4.85.010, 4.85.040, 4.85.120, 4.85.130, 4.85.160 and 4.85.170; repeals §§ 4.85.180—4.85.200, reflexology (4.85)
3069	Repeals Ch. 4.100, vacation certificate business (4.100)
3070	Extends city limits (Special)
3071	Amends zoning map to reclassify certain property (Special)
3072	Amends zoning map to reclassify certain property (Special)
3073	Amends zoning map to reclassify certain property (Special)
3074	Amends zoning map to reclassify certain property (Special)
3075	Amends § 2.47.085, records management (2.47)

Ordinance Number	
3076	Amends zoning map to reclassify certain property (Special)
3077	Repeals Ch. 2.27, Henderson emergency medical services advisory board (2.27)
3078	Approves public improvement trust provide activity bonds (Special)
3079	Amends §§ 5.04.010, 5.04.050; repeals § 5.04.080, litter (5.04)
3080	Amends Ch. 8.08, restrictions and curfew for minors (8.08)
3081	Amends § 2.29.030; repeals § 2.29.040, ambulance transportation fees (2.29)
3082	Amends § 5.28.050, trees and plants (5.28)
3083	Amends Ch. 5.17, solid waste management (5.17)
3084	Amends §§ 4.06.050, 4.06.060, 4.06.120, 4.06.140, policy and procedure show cause, license suspension, limitation, revocation (4.06)
3085	Amends §§ 19.2—19.9 and 19.12, development code (Omitted)
3086	Amends Redevelopment Plan for the Eastside Redevelopment Area (Special)
3087	Modifies project and assessments within LID T-18 (Special)
3088	Establishes procedure for payment or credit for reduced assessments resulting from modifications within LID T-18 (Special)
3089	LID T-12 limited obligation refunding bonds (Special)
3090	Amends zoning map to reclassify certain property (Special)
3091	Amends zoning map to reclassify certain property (Special)
3092	Amends zoning map to reclassify certain property (Special)
3093	Amends zoning map to reclassify certain property (Special)
3094	Amends §§ 2.22.020—2.22.040; repeals § 2.22.070, senior citizens advisory commission (2.22)
3095	Amends zoning map to reclassify certain property (Special)
3096	Amends zoning map to reclassify certain property (Special)
3097	Amends zoning map to reclassify certain property (Special)
3098	Amends zoning map to reclassify certain property (Special)
3099	Amends zoning map to reclassify certain property (Special)
3100	Amends zoning map to reclassify certain property (Special)
3101	Amends zoning map to reclassify certain property (Special)
3102	Amends zoning map to reclassify certain property (Special)
3103	Amends zoning map to reclassify certain property (Special)
3104	Amends Ch. 4.32, gambling—regulations and licenses (4.32)
3105	Amends Ch. 4.36, liquor—regulations and licenses (4.36)
3106	Amends § 19.5.5, development code (Omitted)

Ordinance Number	
3107	Amends § 8.04.050, laser pointers (8.04)
3108	Repeals Ch. 8.38, imitation controlled substances (8.38)
3109	Amends §§ 8.40.010, 8.40.030—8.40.050; repeals § 8.40.020, liquor violations (8.40)
3110	Amends §§ 8.84.030—8.84.050, noise control (8.84)
3111	Declares moratorium on medical marijuana establishments (Special)
3112	Amends zoning map to reclassify certain property (Special)
3113	Amends § 8.90.020, stink bombs (8.90)
3114	Repeals Ch. 8.68, property damage (8.68)
3115	Repeals Ch. 8.64, obscene materials (8.64)
3116	Repeals Ch. 8.49, private patrolmen—security guards (8.49)
3117	Amends Ch. 8.60, prostitution and indecent conduct (8.60)
3118	Repeals Ch. 8.72, interference with radio reception (8.72)
3119	Repeals Ch. 8.76, short wave radio (8.76)
3120	Modifies project within LID T-16
3121	Adds Ch. 15.13, abandoned residential real property registry (15.13)
3122	Repeals Ch. 2.34, unclassified employees; adds Ch. 2.34, administrative policies (2.34)
3123	Adds Ch. 2.10, city manager (2.10)
3124	Amends zoning map to reclassify certain property (Special)
3125	Amends zoning map to reclassify certain property (Special)
3126	Amends zoning map to reclassify certain property (Special)
3127	Repeals Ch. 10.32, use of roadways (10.32)
3128	Amends zoning map to reclassify certain property (Special)
3129	Amends zoning map to reclassify certain property (Special)
3130	Amends zoning map to reclassify certain property (Special)
3131	Amends §§ 2.40.010, 2.40.020, 2.40.040—2.40.060, 2.40.080, 2.40.120, 2.40.140, 2.40.150, ethical standards for public servants (2.40)
3132	Repeals Ch. 4.07, business impact consideration (4.07)
3133	Repeals Ch. 10.04, model traffic ordinance adopted—amendments (10.04)
3134	Amends §§ 10.18.030—10.18.050; adds § 10.18.080, citizens traffic advisory board (10.18)
3135	Amends Ch. 10.20, traffic control devices (10.20)
3136	Repeals Ch. 10.23, open containers unlawful in motor vehicles (10.23)
3137	Amends §§ 10.24.020, 10.24.030, 10.24.060; repeals § 10.24.010, speed regulations (10.24)
3138	Amends Ch. 10.36, intersections (10.36)

Ordinance Number	
3139	Amends Ch. 10.40, turning, starting and stopping—signals (10.40)
3140	Repeals § 10.59.030, excessive vehicle noises (10.59)
3141	Amends §§ 15.01.040, 15.01.080—15.01.090, 15.01.115, 15.01.130, 15.01.140, 15.01.205, 15.01.255, 15.01.260, 15.01.285—15.01.295, 15.01.340, building and fire safety administrative code (15.01)
3142	Amends §§ 15.10.010, 15.10.020, uniform code for dangerous buildings abatement (15.10)
3143	Amends § 15.75.010, design and collection standards for wastewater collection systems (15.75)
3144	Amends §§ 19.6.2, 19.6.4, development code (Omitted)
3145	Adds §§ 13.04.270—13.04.290, stormwater regulations (13.04)
3146	Amends § 8.94.030, aggressive solicitation (8.94)
3147	Repeals Ch. 4.30, right-of-way use applications (4.30)
3148	Repeals Ch. 2.50, public works department—determination of flood hazards (2.50)
3149	Amends §§ 15.60.040, 15.60.050, 15.60.070, temporary dwelling units (15.60)
3150	Amends §§ 15.56.010—15.56.050; repeals § 15.56.060, noise level reduction standards (15.56)
3151	Amends §§ 10.34.060, 10.34.100, 10.34.110; repeals § 10.34.120, charitable solicitations while standing on median strip or sidewalk (10.34)
3152	Amends § 15.52.010, uniform standard specifications for public works construction (15.52)
3153	Amends zoning map to reclassify certain property (Special)
3154	Amends zoning map to reclassify certain property (Special)
3155	Adds § 8.40.010 A.3., liquor violations (8.40)
3156	Repeals § 8.98.070, weapons and missiles (8.98)
3157	Amends § 10.02.010, Nevada Traffic Manual adopted (10.02)
3158	Amends Ch. 10.48, pedestrians' rights and duties (10.48)
3159	Amends § 15.70.010, uniform design and construction standards (UDACS) for water systems (15.70)
3160	Amends development services center fees ordinance (Omitted)
3161	Amends §§ 2.05.010 and 2.05.020, municipal court judge salary (2.05)
3162	Amends § 8.85.060; repeals and reenacts § 8.85.070; adds § 8.85.100, graffiti (8.85)
3163	Amends Ch. 10.12, traffic administration (10.12)
3164	Amends Ch. 10.16, enforcement, obedience and effect (10.16)

Ordinance Number	
3165	Amends zoning map to reclassify certain property (Special)
3166	Amends zoning map to reclassify certain property (Special)
3167	Amends Ch. 2.65, insurance (2.65)
3168	Repeals Ch. 2.110, department of information and technology (2.110)
3169	Amends § 10.06.010, parking regulations (10.06)
3170	Amends Ch. 10.08, definitions (10.08)
3171	Amends Ch. 10.44, miscellaneous driving rules (10.44)
3172	Amends Ch. 10.60, truck routes (10.60)
3173	Amends Title 1, general provisions (1.01—1.05)
3174	Amends Ch. 2.04, council meetings (2.04)
3175	Repeals Ch. 4.74, multiple vendor arena sales (4.74)
3176	Amends Ch. 10.64, penalties and procedure on arrest (10.64)
3177	Amends §§ 15.12.010—15.12.060 and 105.12.090, property maintenance code (15.12)
3178	Amends Chs. 19.2, 19.5, 19.7, 19.8, 19.9, 19.10 and 19.12, development code (Omitted)
3179	Amends zoning map to reclassify certain property (Special)
3180	Amends zoning map to reclassify certain property (Special)
3181	Amends zoning map to reclassify certain property (Special)
3182	Amends zoning map to reclassify certain property (Special)
3183	Amends zoning map to reclassify certain property (Special)
3184	Extends city limits (Special)
3185	Extends city limits (Special)
3186	Amends title 19, development code (Omitted)
3187	Amends § 18.01.030 B. and C., community development fee schedules (18.01)
3188	Adds Ch. 4.116, medical marijuana—regulations and licenses (4.116)
3189	Adds Ch. 4.115, medical marijuana fees (4.115)
3190	Adds Ch. 2.27, parks and recreation; repeals Ch. 8.99, parks and recreation (2.27, 8.99)
3191	Repeals Ch. 2.70, administrative (2.70)
3192	Amends zoning map to reclassify certain property (Special)
3193	Amends zoning map to reclassify certain property (Special)
3194	Repeals Ch. 2.48, microfilming of records (2.48)
3195	Amends § 2.47.085, city-wide fee schedule for public records and document services (2.47)

Ordinance Number	
3196	Amends §§ 4.115.010, 4.115.030, 4.115.040, medical marijuana fees (4.115)
3197	Amends §§ 2.29.020, 2.29.030, ambulance transportation fees (2.29)
3198	Adopts 2015/2016 ward map (Special)
3199	General obligation (limited tax) various purpose refunding bonds (Special)
3200	Amends title 19, development code (Omitted)
3201	Amends zoning map to reclassify certain property (Special)
3202	Amends zoning map to reclassify certain property (Special)
3203	LID T-4(C) limited obligation refunding bonds (Special)
3204	Modifies project within LID T-12 (Special)
3205	Repeals Ch. 2.16, parks and recreation board (2.16)
3206	Repeals Ch. 2.18, commemorative beautification commission (2.18)
3207	Repeals Ch. 2.20, Henderson blue ribbon commission on educational excellence and youth opportunity (2.20)
3208	Repeals Ch. 2.21, citizens advisory committee (2.21)
3209	Repeals Ch. 2.22, senior citizens advisory commission (2.22)
3210	Repeals § 2.43.010, audit committee (2.43)
3211	Adds Ch. 2.50, advisory boards (2.50)
3212	Repeals Ch. 2.75, bicycle advisory committee (2.75)
3213	Repeals Ch. 2.80, commission on cultural arts and tourism (2.80)
3214	Repeals Ch. 2.95, charter review committee (2.95)
3215	Repeals Ch. 10.18, citizens traffic advisory board (10.18)
3216	Amends zoning map to reclassify certain property (Special)
3217	Amends zoning map to reclassify certain property (Special)
3218	Amends zoning map to reclassify certain property (Special)
3219	Amends zoning map to reclassify certain property (Special)
3220	Amends zoning map to reclassify certain property (Special)
3221	Amends § 7.04.020, pet licensing and permits; fees; appeal process (7.04)
3222	Amends zoning map to reclassify certain property (Special)
3223	Amends zoning map to reclassify certain property (Special)
3224	Amends zoning map to reclassify certain property (Special)
3225	Amends zoning map to reclassify certain property (Special)
3226	Adopts vote center plan (Special)
3227	Amends § 18.10.030, fees for applications and services (18.10)

Ordinance Number	
3228	Amends §§ 2.40.010, 2.40.020, 2.40.040, 2.40.060—2.40.080, 2.40.100—2.40.140, ethical standards for public servants (2.40)
3229	Amends title 7, animals (7.01—7.90)
3230	Amends zoning map to reclassify certain property (Special)
3231	Amends zoning map to reclassify certain property (Special)
3232	Amends zoning map to reclassify certain property (Special)
3233	Amends zoning map to reclassify certain property (Special)
3234	Adds Ch. 11.30, fees for closure of right-of-way (11.30)
3235	Adds Ch. 11.20, authority to impose fees for construction and use of the right-of-way (11.20)
3236	Amends § 2.44.010, city clerk: additional duties and authorizations (2.44)
3237	Amends zoning map to reclassify certain property (Special)
3238	Amends zoning map to reclassify certain property (Special)
3239	Amends zoning map to reclassify certain property (Special)
3240	Amends title 19, development code (Omitted)
3241	Approves public improvement trust private activity bonds (Special)
3242	Amends Ch. 4.08, auctions and auctioneers (4.08)
3243	Amends Ch. 4.48, transient lodging and gaming taxes (4.48)
3244	Amends Ch. 4.98, sale and display of narcotic and other paraphernalia (4.98)
3245	Repeals Ch. 4.101, outcall promoter and outcall entertainer (4.101)
3246	Amends Ch. 4.110, sexually oriented businesses (4.110)
3247	Declares 2015 municipal election (Special)
3248	Amends zoning map to reclassify certain property (Special)
3249	Amends zoning map to reclassify certain property (Special)
3250	Amends zoning map to reclassify certain property (Special)
3251	Adopts major modification to development agreement with Union Village, LLC (Special)
3252	Repeals land development agreement with Century Properties Henderson 18 LLC (Special)
3253	Repeals Ch. 2.85, Henderson museum/space and science center board (2.85)
3254	Amends § 19.5.5, development code (Omitted)
3255	Amends zoning map to reclassify certain property (Special)
3256	Amends zoning map to reclassify certain property (Special)
3257	Amends zoning map to reclassify certain property (Special)
3258	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3259	Amends zoning map to reclassify certain property (Special)
3260	Repeals development agreement with City Crossing 1—15, LLCs (Special)
3261	Amends zoning map to reclassify certain property (Special)
3262	Issuance of 2015 water and sewer refunding bond (Special)
3263	Amends zoning map to reclassify certain property (Special)
3264	Amends zoning map to reclassify certain property (Special)
3265	Amends zoning map to reclassify certain property (Special)
3266	Amends zoning map to reclassify certain property (Special)
3267	Repeals and reenacts title 6, civil service rules (6.01—6.09)
3268	Amends § 2.50.345, civil service board (2.50)
3269	Adopts major modification to Cadence development agreement (Special)
3270	Amends zoning map to reclassify certain property (Special)
3271	Amends zoning map to reclassify certain property (Special)
3272	Amends zoning map to reclassify certain property (Special)
3273	Amends zoning map to reclassify certain property (Special)
3274	Amends zoning map to reclassify certain property (Special)
3275	Amends title 19, development code (Omitted)
3276	Repeals §§ 8.98.010—8.98.050, concealed weapons (8.98)
3277	Amends zoning map to reclassify certain property (Special)
3278	Amends zoning map to reclassify certain property (Special)
3279	Adds §§ 14.18.075 and 14.18.085, fees, rates and charges (14.18)
3280	Amends zoning map to reclassify certain property (Special)
3281	Amends zoning map to reclassify certain property (Special)
3282	Extends redevelopment plan for downtown redevelopment area (Special)
3283	Amends zoning map to reclassify certain property (Special)
3284	Amends zoning map to reclassify certain property (Special)
3285	Amends zoning map to reclassify certain property (Special)
3286	Amends zoning map to reclassify certain property (Special)
3287	Amends zoning map to reclassify certain property (Special)
3288	Amends zoning map to reclassify certain property (Special)
3289	Amends Ch. 4.03, background investigation and fees (4.03)
3290	Amends Ch. 4.04, general business license provisions (4.04)
3291	Amends Ch. 4.05, business license fee schedules (4.05)
3292	Repeals and reenacts Ch. 4.80, emergency medical services (4.80)
3293	Amends title 19, development code (Omitted)
3294	Extends city limits (Special)

Ordinance Number	
3295	Extends city limits (Special)
3296	Extends city limits (Special)
3297	Extends city limits (Special)
3298	Extends city limits (Special)
3299	Extends city limits (Special)
3300	Amends zoning map to reclassify certain property (Special)
3301	Repeals and reenacts Ch. 4.84, massage establishments and independent massage therapists (4.84)
3302	Repeals and reenacts Ch. 4.06, policy and procedure show cause, license suspension, limitation, revocation (4.06)
3303	Adds Ch. 4.07, alternative to criminal prosecution (4.07)
3304	Repeals and reenacts Ch. 4.85, reflexology (4.85)
3305	Amends Ch. 4.102, video rental stores (4.102)
3306	Repeals Ch. 4.115, medical marijuana fees (4.115)
3307	Amends Ch. 4.116, medical marijuana—regulations and licenses (4.116)
3308	Amends zoning map to reclassify certain property (Special)
3309	Amends zoning map to reclassify certain property (Special)
3310	Amends zoning map to reclassify certain property (Special)
3311	Amends zoning map to reclassify certain property (Special)
3312	Amends Ch. 4.36, liquor—regulations and licenses (4.36)
3313	Amends title 19, development code (Omitted)
3314	Amends development services center schedule of fees (Special)
3315	Amends zoning map to reclassify certain property (Special)
3316	Amends zoning map to reclassify certain property (Special)
3317	Amends zoning map to reclassify certain property (Special)
3318	Amends zoning map to reclassify certain property (Special)
3319	Amends zoning map to reclassify certain property (Special)
3320	Amends Ch. 8.85, graffiti (8.85)
3321	Repeals Ch. 10.54, safety equipment for motorcyclists (10.54)
3322	Amends § 14.02.030, water commitment allocation regulations (14.02)
3323	Amends § 14.04.020, wastewater—conditions for service (14.04)
3324	Amends §§ 15.01.040 and 15.01.275, building fire and safety (15.01)
3325	Amends zoning map to reclassify certain property (Special)
3326	Amends §§ 1.04.020 and 1.04.030, citations for violations (1.04)
3327	Amends zoning map to reclassify certain property (Special)
3328	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3329	Amends zoning map to reclassify certain property (Special)
3330	Amends zoning map to reclassify certain property (Special)
3331	Amends § 8.28.010, hotel registers (8.28)
3332	Amends zoning map to reclassify certain property (Special)
3333	Amends zoning map to reclassify certain property (Special)
3334	Amends § 19.5.5, development code (Omitted)
3335	Amends § 19.5.5 and 19.12.4, development code (Omitted)
3336	Amends zoning map to reclassify certain property (Special)
3337	Amends § 18.01.030, fees for applications and services (18.01)
3338	Amends zoning map to reclassify certain property (Special)
3339	Amends title 19, development code (Omitted)
3340	Amends title 19, development code (Omitted)
3341	Repeals § 2.50.301, advisory boards; adds §§ 7.01.285, 7.04.125, 7.06.050, 7.06.060, 7.20.045; amends §§ 7.01.455, 7.04.140, 7.06.040, 7.20.020—7.20.040, 7.20.050, 7.20.060, Ch. 7.25, §§ 7.25.010—7.25.055, animals (2.50, 7.01, 7.04, 7.06, 7.20, 7.25)
3342	Amends title 19, development code (Omitted)
3343	Amends zoning map to reclassify certain property (Special)
3344	Amends zoning map to reclassify certain property (Special)
3345	Amends zoning map to reclassify certain property (Special)
3346	Amends zoning map to reclassify certain property (Special)
3347	Amends zoning map to reclassify certain property (Special)
3348	Amends zoning map to reclassify certain property (Special)
3349	Amends zoning map to reclassify certain property (Special)
3350	Amends zoning map to reclassify certain property (Special)
3351	Modifies project within LID T-16 (Special)
3352	Adds § 4.05.124; repeals § 4.05.333; amends §§ 4.05.420, business license fee schedules; amends §§ 4.80.050, 4.80.060, emergency medical services (4.05, 4.80)
3353	Amends zoning map to reclassify certain property (Special)
3354	Amends zoning map to reclassify certain property (Special)
3355	2016 medium-term bonds (Special)
3356	LID T-18 limited obligation refunding bonds (Special)
3357	LID T-16 refund procedure (Special)
3358	Amends zoning map to reclassify certain property (Special)
3359	Amends zoning map to reclassify certain property (Special)
3360	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3361	Amends zoning map to reclassify certain property (Special)
3362	Amends zoning map to reclassify certain property (Special)
3363	Amends zoning map to reclassify certain property (Special)
3364	Amends § 2.50.315, Blue Ribbon Commission on Educational Excellence and Youth Opportunity (2.50)
3365	Amends zoning map to reclassify certain property (Special)
3366	Amends zoning map to reclassify certain property (Special)
3367	Amends zoning map to reclassify certain property (Special)
3368	Amends §§ 2.04.010, 2.04.030, 2.04.060—2.04.100; repeals §§ 2.04.040, 2.04.050, council meetings (2.04)
3369	Amends § 4.36.040, conditions applying to specific license classifications (4.36)
3370	Declares 2017 municipal election (Special)
3371	Adopts vote center plan (Special)
3372	Amends zoning map to reclassify certain property (Special)
3373	Amends zoning map to reclassify certain property (Special)
3374	Amends zoning map to reclassify certain property (Special)
3375	Amends zoning map to reclassify certain property (Special)
3376	Amends zoning map to reclassify certain property (Special)
3377	Amends § 2.29.010, emergency service providers (2.29)
3378	Amends §§ 4.48.010 and 4.48.020; adds §§ 4.48.020-01 and 4.48.020-02, transient lodging and gaming taxes (4.48)
3379	Amends §§ 4.80.040—4.80.060, 4.80.140, 4.80.160—4.80.200, 4.80.230, 4.80.240, 4.80.270, 4.80.350, 4.80.490, 4.80.500; adds §§ 4.80.135, 4.80.145, 4.80.295, emergency medical services (4.80)
3380	Repeals and reenacts title 11, streets and sidewalks (11.01—11.10)
3381	Repeals development agreement with South Edge, LLC (Special)
3382	Approves West Henderson public facilities needs assessment (Special)
3383	Adds § 14.18.045, West Henderson phase 1 water backbone infrastructure rates (14.18)
3384	Amends zoning map to reclassify certain property (Special)
3385	Authorizes reduction of assessments in LID T-18 (Special)
3386	Declares moratorium on recreational marijuana and recreational marijuana establishments (Special)
3387	Amends title 19, development code (Omitted)
3388	Amends §§ 4.36.010 and 4.36.270, liquor—regulations and licenses (4.36)

Ordinance Number	
3389	Amends zoning map to reclassify certain property (Special)
3390	Amends zoning map to reclassify certain property (Special)
3391	Amends zoning map to reclassify certain property (Special)
3392	Amends zoning map to reclassify certain property (Special)
3393	Amends zoning map to reclassify certain property (Special)
3394	Adds § 2.50.357, community education advisory board (2.50)
3395	Amends § 4.48.110, late-payment penalty—interest (4.48)
3396	Amends Ch. 2.27, parks and recreation (2.27)
3397	Amends Ch. 2.50 title; amends §§ 2.50.010, 2.50.015, 2.50.020—2.50.070, 2.50.090—2.50.110, 2.50.300, 2.50.305—2.50.330, 2.50.340, 2.50.350—2.50.390; adds § 2.50.015; repeals § 2.50.335, city boards and commissions (2.50)
3398	Amends zoning map to reclassify certain property (Special)
3399	Amends zoning map to reclassify certain property (Special)
3400	Amends zoning map to reclassify certain property (Special)
3401	Amends zoning map to reclassify certain property (Special)
3402	Extends city limits (Special)
3403	Amends Ch. 2.24, emergency management (2.24)
3404	Adopts Canyons at MacDonald Ranch Park agreement (Lennar) (Special)
3405	Adopts Canyons at MacDonald Ranch Park agreement (Pulte) (Special)
3406	Adopts Canyons at MacDonald Ranch Park agreement (Pardee) (Special)
3407	Adopts Canyons at MacDonald Ranch Park agreement (AG/RW-Canyons, LLC) (Special)
3408	Amends zoning map to reclassify certain property (Special)
3409	Amends zoning map to reclassify certain property (Special)
3410	Amends zoning map to reclassify certain property (Special)
3411	Amends zoning map to reclassify certain property (Special)
3412	Amends §§ 6.02.010—6.02.030, 6.03.030, 6.04.050, 6.04.070, 6.04.080, 6.05.020—6.05.040, 6.06.020, 6.07.010, 6.07.030—6.07.050, 6.08.010, 6.09.010, civil service rules (6.02—6.09)
3413	Amends §§ 14.14.030, 14.14.060, 14.14.070, 14.14.100, 14.14.110; adds § 14.14.090, conservation (14.14)
3414	Amends zoning map to reclassify certain property (Special)
3415	Amends zoning map to reclassify certain property (Special)
3416	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3417	Amends §§ 4.06.100, 4.06.120—4.06.140, policy and procedure show cause, license suspension, limitation, revocation (4.06)
3418	Amends §§ 4.04.010 and 4.04.210, general business license provisions (4.04)
3419	LID T-17 limited obligation refunding bonds (Special)
3420	LID T-14 limited obligation refunding bonds (Special)
3421	Amends zoning map to reclassify certain property (Special)
3422	Amends zoning map to reclassify certain property (Special)
3423	Amends zoning map to reclassify certain property (Special)
3424	Amends zoning map to reclassify certain property (Special)
3425	Amends zoning map to reclassify certain property (Special)
3426	Amends title 19, development code (Omitted)
3427	Amends title 19, development code (Omitted)
3428	Adds Ch. 15.80, baby changing tables in buildings accessible to the public (15.80)
3429	Repeals and reenacts Ch. 15.18, undergrounding utility facilities (15.18)
3430	Amends zoning map to reclassify certain property (Special)
3431	Extends city limits (Special)
3432	Amends Ch. 4.116, medical marijuana regulations and licenses (4.116)
3433	Adds Ch. 4.118, retail marijuana regulations and licenses (4.118)
3434	Amends §§ 4.05.288 and 4.05.420; adds §§ 4.05.289—4.05.289.02, business license fee schedules (4.05)
3435	Amends title 19, development code (Omitted)
3436	Amends § 18.01.030, fees for applications and services (18.01)
3437	Extends city limits (Special)
3438	Amends and restates Inspirada development agreement (Special)
3439	Amends zoning map to reclassify certain property (Special)
3440	Amends zoning map to reclassify certain property (Special)
3441	Amends zoning map to reclassify certain property (Special)
3442	Amends § 14.17.060, delinquent bills (14.17)
3443	Amends § 4.05.365, social work, behavioral therapy business (4.05)
3444	Amends § 4.04.010, general business license provisions (4.04)
3445	Extends city limits (Special)
3446	Amends zoning map to reclassify certain property (Special)
3447	Amends zoning map to reclassify certain property (Special)
3448	Amends § 2.100.030, cooling off period (2.100)

Ordinance Number	
3449	Amends §§ 2.40.020, 2.40.040, 2.40.050, 2.40.060, 2.40.100—2.40.140; adds §§ 2.40.035, 2.40.045, ethical standards for public servants (2.40)
3450	Amends Ch. 2.47, records management (2.47)
3451	Amends §§ 8.02.020, 8.08.080, 8.10.220, 8.11.150, 8.11.220, 8.11.250, 8.40.010, 8.60.130, 8.98.075; adds §§ 8.02.030—8.02.140; repeals §§ 8.10.230, 8.11.260, 8.32.010, 8.60.140, 8.98.060, public peace and safety (8.02, 8.08, 8.10, 8.11, 8.32, 8.40, 8.60, 8.98)
3452	Adopts All Storage Inspirada agreement (Special)
3453	Amends zoning map to reclassify certain property (Special)
3454	Amends zoning map to reclassify certain property (Special)
3455	Approves public improvement trust private activity bonds (Special)
3456	Adopts AirParc South development agreement (Special)
3457	Adopts BLM 30 Volunteer/Gillespie development agreement (Special)
3458	Amends city public water system service area (Special)
3459	Amends zoning map to reclassify certain property (Special)
3460	Amends zoning map to reclassify certain property (Special)
3461	Amends zoning map to reclassify certain property (Special)
3462	Amends zoning map to reclassify certain property (Special)
3463	Extends city limits (Special)
3464	Amends zoning map to reclassify certain property (Special)
3465	Amends §§ 4.05.235, 4.05.420, business license fee schedules (4.05)
3466	Amends zoning map to reclassify certain property (Special)
3467	Adopts 2018/2019 ward map (Special)
3468	Amends zoning map to reclassify certain property (Special)
3469	Amends title 19, development code (Omitted)
3470	Amends zoning map to reclassify certain property (Special)
3471	Extends city limits (Special)
3472	Adopts Gilespie Multifamily development agreement (Special)
3473	Amends zoning map to reclassify certain property (Special)
3474	Amends and restates Cadence Park Agreement (Special)
3475	Amends zoning map to reclassify certain property (Special)
3476	Creates Pecos Robindale neighborhood improvement district (Special)
3477	Amends zoning map to reclassify certain property (Special)
3478	Amends zoning map to classify certain property (Special)
3479	Amends zoning map to reclassify certain property (Special)
3480	Amends zoning map to reclassify certain property (Special)
3481	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3482	Amends §§ 2.50.050, 2.50.070, 2.50.080, 2.50.325, 2.50.330, 2.50.340, 2.50.350, 2.50.357, 2.50.380, city boards and commissions (2.50)
3483	Amends § 4.05.375, business license fee schedules (4.05)
3484	Amends zoning map to reclassify certain property (Special)
3485	Amends zoning map to reclassify certain property (Special)
3486	Amends title 19, development code (Omitted)
3487	Amends title 19, development code (Omitted)
3488	Extends city limits (Special)
3489	Amends zoning map to reclassify certain property (Special)
3490	Amends zoning map to reclassify certain property (Special)
3491	Amends zoning map to reclassify certain property (Special)
3492	Amends zoning map to reclassify certain property (Special)
3493	Amends zoning map to reclassify certain property (Special)
3494	Extends city limits (Special)
3495	Adopts Shoppes at Dale development agreement (Special)
3496	Repeals and reenacts Ch. 14.09, pretreatment regulations (14.09)
3497	Amends Ch. 14.21, compliance (14.21)
3498	Amends § 2.50.305, Audit committee (2.50)
3499	Amends Ch. 2.43, city audit function (2.43)
3500	Extends city limits (Special)
3501	Amends zoning map to reclassify certain property (Special)
3502	Amends zoning map to reclassify certain property (Special)
3503	Amends §§ 15.01.010, 15.01.035, building and fire safety administrative code (15.01)
3504	Amends §§ 15.08.010, 15.08.020, 15.08.050, International Building Code (15.08)
3505	Amends §§ 15.09.010—15.09.030, 15.09.050, International Residential Code (15.09)
3506	Adds Ch. 15.11, International Existing Building Code (15.11)
3507	Amends §§ 15.16.010, 15.16.020, 15.16.060, National Electrical Code (15.16)
3508	Amends §§ 15.20.010, 15.20.020, 15.20.040, 15.20.060, Uniform Plumbing Code (15.20)
3509	Amends §§ 15.24.010, 15.24.020, 15.24.040, 15.24.060, Uniform Mechanical Code (15.24)
3510	Repeals and reenacts Ch. 15.32, International Fire Code (15.32)

Ordinance Number	
3511	Amends §§ 15.44.010—15.44.030, 15.44.050, International Swimming Pool and Spa Code (15.44)
3512	Amends §§ 15.45.010—15.45.030, 15.45.050, International Energy Conservation Code (15.45)
3513	Amends zoning map to reclassify certain property (Special)
3514	Amends zoning map to reclassify certain property (Special)
3515	Amends zoning map to reclassify certain property (Special)
3516	Amends zoning map to reclassify certain property (Special)
3517	Amends zoning map to reclassify certain property (Special)
3518	Amends zoning map to reclassify certain property (Special)
3519	Amends title 19, development code (Omitted)
3520	Terrible Herbst development agreement (Special)
3521	Amends § 4.05.130, apartment house (4.05)
3522	Amends zoning map to reclassify certain property (Special)
3523	Amends zoning map to reclassify certain property (Special)
3524	Amends zoning map to reclassify certain property (Special)
3525	Amends zoning map to reclassify certain property (Special)
3526	Amends zoning map to reclassify certain property (Special)
3527	Amends zoning map to reclassify certain property (Special)
3528	Amends zoning map to reclassify certain property (Special)
3529	Amends title 19, development code (Omitted)
3530	Amends title 19, development code (Omitted)
3531	Amends and restates Union Village development agreement (Special)
3532	Amends and modifies Inspirada park agreement (Special)
3533	Amends zoning map to reclassify certain property (Special)
3534	Amends zoning map to reclassify certain property (Special)
3535	Provides for payment of costs and expenses pertaining to Pecos Robindale neighborhood improvement district (Special)
3536	Amends title 19, development code (Omitted)
3537	Adopts Cactus-Maryland C-Store agreement (Special)
3538	Adopts West Henderson Charter School development agreement (Special)
3539	Adopts Starr (Warm Fort) Multifamily development agreement (Special)
3540	Amends zoning map to reclassify certain property (Special)
3541	Amends zoning map to reclassify certain property (Special)
3542	Amends zoning map to reclassify certain property (Special)
3543	Declares 2019 municipal election (Special)

Ordinance Number	
3544	Adopts vote center plan (Special)
3545	Creates LID T-20 (Special)
3546	Assesses cost of local improvements in LID T-20 against assessable properties benefited (Special)
3547	LID T-20 local improvement bonds (Special)
3548	Adopts Cactus Retail Center development agreement (Special)
3549	Amends § 1.04.040, failure to appear (1.04)
3550	Amends § 2.50.360, development services center advisory committee (2.50)
3551	Approved omnibus amendment to Inspirada park and development agreements (Special)
3552	Adopts Raiders Headquarters and Practice Facility development agreement (Special)
3553	Amends zoning map to reclassify certain property (Special)
3554	Amends zoning map to reclassify certain property (Special)
3555	Amends zoning map to reclassify certain property (Special)
3556	Amends zoning map to reclassify certain property (Special)
3557	Amends title 19, development code (Omitted)
3558	Amends zoning map to reclassify certain property (Special)
3559	Amends zoning map to reclassify certain property (Special)
3560	Amends zoning map to reclassify certain property (Special)
3561	Amends zoning map to reclassify certain property (Special)
3562	Amends §§ 4.116.010, 4.116.030, 4.116.035, 4.116.040, 4.116.070, 4.116.080, 4.116.090, 4.116.120, 4.116.150, 4.116.180, 4.116.240, medical marijuana regulations and licenses (4.116)
3563	Amends §§ 4.118.010—4.118.035, 4.118.070—4.118.090, 4.118.120, 4.118.150, 4.118.180, 4.118.240, 4.118.270, retail marijuana regulations and licenses (4.118)
3564	Amends §§ 15.12.040, 15.12.050, solar reflectance standards (15.12)
3565	Adopts Distill at Inspirada development agreement (Special)
3566	Amends zoning map to reclassify certain property (Special)
3567	Amends zoning map to reclassify certain property (Special)
3568	Amends Union Village Phase II park agreement (Special)
3569	Amends zoning map to reclassify certain property (Special)
3570	Amends title 19, development code (Omitted)
3571	Amends § 15.75.010, design and construction standards for wastewater collection systems (15.75)

Ordinance Number	
3572	Partial release from BLM 30 Volunteer/Gillespie development agreement (Special)
3573	Amends zoning map to reclassify certain property (Special)
3574	Amends zoning map to reclassify certain property (Special)
3575	Adopts Matter Park @ West Henderson development agreement (Special)
3576	Amends zoning map to reclassify certain property (Special)
3577	Amends zoning map to reclassify certain property (Special)
3578	Adopts Bruner Commerce Park development agreement (Special)
3579	Amends zoning map to reclassify certain property (Special)
3580	Amends §§ 2.24.040, 2.24.110, emergency management (2.24)
3581	Adds title 17, right-of-way management—telecommunications facilities (17.01—17.03)
3582	Amends §§ 4.36.010, 4.36.020, 4.36.030, 4.36.040, 4.36.045, 4.36.055, 4.36.060, 4.36.130, 4.36.215, 4.36.270, 4.36.305, 4.36.315, 4.36.340, 4.36.360, 4.36.400, 4.36.430; adds § 4.36.240, liquor—regulations and licenses (4.36)
3583	Amends §§ 4.05.175, 4.05.278, 4.05.288, 4.05.289, 4.05.300, 4.05.345, 4.05.420, business license fee schedules (4.05)
3584	Amends zoning map to reclassify certain property (Special)
3585	Amends zoning map to reclassify certain property (Special)
3586	Amends zoning map to reclassify certain property (Special)
3587	Adopts Shoppes at Las Vegas Boulevard and Dale development agreement (Special)
3588	Amends zoning map to reclassify certain property (Special)
3589	Amends zoning map to reclassify certain property (Special)
3590	Amends § 18.01.030, fees for applications and services (18.01)
3591	Amends title 19, development code (Omitted)
3592	Extends city limits (Special)
3593	Extends city limits (Special)
3594	Extends city limits (Special)
3595	Extends city limits (Special)
3596	Extends city limits (Special)
3597	Extends city limits (Special)
3598	Extends city limits (Special)
3599	Extends city limits (Special)
3600	Extends city limits (Special)

Ordinance Number	
3601	Extends city limits (Special)
3602	Extends city limits (Special)
3603	Extends city limits (Special)
3604	Extends city limits (Special)
3605	Extends city limits (Special)
3606	Extends city limits (Special)
3607	Extends city limits (Special)
3608	Adopts Green Sense Farms development agreement (Special)
3609	Amends zoning map to reclassify certain property (Special)
3610	Amends zoning map to reclassify certain property (Special)
3611	Amends zoning map to reclassify certain property (Special)
3612	Amends zoning map to reclassify certain property (Special)
3613	Amends zoning map to reclassify certain property (Special)
3614	Amends zoning map to reclassify certain property (Special)
3615	Amends zoning map to reclassify certain property (Special)
3616	Provides for payment of costs and expenses pertaining to Pecos Robindale neighborhood improvement district (Special)
3617	Amends zoning map to reclassify certain property (Special)
3618	Amends zoning map to reclassify certain property (Special)
3619	Amends zoning map to reclassify certain property (Special)
3620	Amends zoning map to reclassify certain property (Special)
3621	Amends zoning map to reclassify certain property (Special)
3622	Amends § 4.84.120, massage establishments and independent massage therapists (4.84)
3623	Amends § 4.85.050, reflexology (4.85)
3624	Adopts PEGH Nevada, LLC development agreement (Special)
3625	Adopts West Henderson standard agreement (Special)
3626	Amends zoning map to reclassify certain property (Special)
3627	Amends zoning map to reclassify certain property (Special)
3628	Amends zoning map to reclassify certain property (Special)
3629	Amends zoning map to reclassify certain property (Special)
3630	Amends zoning map to reclassify certain property (Special)
3631	Amends zoning map to reclassify certain property (Special)
3632	Amends Ch. 8.02 title; adds § 8.02.055, crimes against public peace (8.02)
3633	Amends zoning map to reclassify certain property (Special)
3634	Adopts Starr/Bermuda development agreement (Special)

Ordinance Number	
3635	Adopts Inspirada Town Center Lots 23, 24, 25 and 26B development agreement (Special)
3636	Extends city limits (Special)
3637	Amends §§ 2.47.050, 2.47.085, records management (2.47)
3638	Adds § 14.18.047, fees, rates and charges (14.18)
3639	Amends zoning map to reclassify certain property (Special)
3640	Amends zoning map to reclassify certain property (Special)
3641	Amends zoning map to reclassify certain property (Special)
3642	Amends zoning map to reclassify certain property (Special)
3643	Amends zoning map to reclassify certain property (Special)
3644	Adopts major modification to Union Village development agreement (Special)
3645	Amends zoning map to reclassify certain property (Special)
3646	Adopts South Airport 15 Building C development agreement (Special)
3647	Adopts South Airport 15 Building D development agreement (Special)
3648	Amends zoning map to reclassify certain property (Special)
3649	Amends zoning map to reclassify certain property (Special)
3650	Amends zoning map to reclassify certain property (Special)
3651	Amends zoning map to reclassify certain property (Special)
3652	Amends zoning map to reclassify certain property (Special)
3653	Amends zoning map to reclassify certain property (Special)
3654	Amends zoning map to reclassify certain property (Special)
3655	Amends zoning map to reclassify certain property (Special)
3656	Second amendment to Union Village Phase II park agreement (Special)
3657	Amends zoning map to reclassify certain property (Special)
3658	Amends zoning map to reclassify certain property (Special)
3659	Amends zoning map to reclassify certain property (Special)
3660	Extends city limits (Special)
3661	Extends city limits (Special)
3662	Extends city limits (Special)
3663	Extends city limits (Special)
3664	Amends zoning map to reclassify certain property (Special)
3665	Adopts major modification to Cadence development agreement (Special)
3666	First amendment to the Canyons at MacDonald Ranch park agreement (Special)
3667	Amends zoning map to reclassify certain property (Special)
3668	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3669	Amends § 15.08.020, International Building Code (15.08)
3670	Amends §§ 15.32.030, 15.32.060, 15.32.080, 15.32.090, International Fire Code (15.32)
3671	Amends § 15.20.020, Uniform Plumbing Code (15.20)
3672	Amends title 19, development code (Omitted)
3673	Extends city limits (Special)
3674	Extends city limits (Special)
3675	Extends city limits (Special)
3676	Amends zoning map to reclassify certain property (Special)
3677	Amends zoning map to reclassify certain property (Special)
3678	Amends zoning map to reclassify certain property (Special)
3679	Amends zoning map to reclassify certain property (Special)
3680	Amends zoning map to reclassify certain property (Special)
3681	General obligation taxable various purpose and refunding bonds (Special)
3682	General obligation tax-exempt utility system bonds (Special)
3683	Amends title 19, development code (Omitted)
3684	Amends zoning map to reclassify certain property (Special)
3685	Adopts Matter Park at West Henderson Phase II development agreement (Special)
3686	Third amendment to Inspirada park agreement (Special)
3687	Amends zoning map to reclassify certain property (Special)
3688	Amends zoning map to reclassify certain property (Special)
3689	Amends zoning map to reclassify certain property (Special)
3690	Amends zoning map to reclassify certain property (Special)
3691	Adopts Via Inspirada Marketplace development agreement (Special)
3692	Adopts Bicentennial Marketplace development agreement (Special)
3693	Amends § 8.40.010, liquor violations (8.40)
3694	West Henderson Global Business District Design Guidelines (Special)
3695	Extends city limits (Special)
3696	Amends zoning map to reclassify certain property (Special)
3697	Adopts Black Mountain Golf and Country Club development agreement (Special)
3698	Amends zoning map to reclassify certain property (Special)
3699	Amends zoning map to reclassify certain property (Special)
3700	Amends zoning map to reclassify certain property (Special)
3701	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3702	Amends zoning map to reclassify certain property (Special)
3703	Amends zoning map to reclassify certain property (Special)
3704	Issuance and sale of medium-term bond (Special)
3705	Provides for payment of maintenance and expenses pertaining to Pecos Robindale neighborhood improvement district (Special)
3706	Extends city limits (Special)
3707	Adopts Volunteer Plaza development agreement (Special)
3708	Adopts Bruner Marketplace development agreement (Special)
3709	Amends § 2.04.010, council meetings (2.04)
3710	Adopts LogistiCenter @ Volunteer development agreement (Special)
3711	Amends zoning map to reclassify certain property (Special)
3712	Adopts partial termination of development agreement and zoning moratorium between city and PEGH Nevada LLC (Special)
3713	Adopts Project Berry development agreement (Special)
3714	Amends zoning map to reclassify certain property (Special)
3715	Amends zoning map to reclassify certain property (Special)
3716	Amends zoning map to reclassify certain property (Special)
3717	Imposes moratorium on applications for short-term vacation rentals (Special)
3718	Amends zoning map to reclassify certain property (Special)
3719	Amends zoning map to reclassify certain property (Special)
3720	Amends zoning map to reclassify certain property (Special)
3721	Amends zoning map to reclassify certain property (Special)
3722	Repeals § 2.50.355, city boards and commissions (2.50)
3723	Adopts West Henderson 10 development agreement (Special)
3724	Extends city limits (Special)
3725	Amends redevelopment plan for the Eastside Redevelopment Area (Special)
3726	Amends zoning map to reclassify certain property (Special)
3727	Amends zoning map to reclassify certain property (Special)
3728	Amends zoning map to reclassify certain property (Special)
3729	Adopts Henderson West development agreement (Special)
3730	Adopts Henderson West park agreement (Special)
3731	Amends §§ 4.05.278, 4.05.420; adds § 4.05.197, business license fee schedules (4.05)

Ordinance Number	
3732	Amends §§ 4.36.010, 4.36.020, 4.36.040, 4.36.210, 4.36.230, 4.36.270, 4.36.310, 4.36.315, 4.36.340; adds § 4.36.260, liquor—regulations and licenses (4.36)
3733	Amends §§ 15.12.010—15.12.060, 15.12.090, property maintenance code (15.12)
3734	Adopts Airparc Heights development agreement (Special)
3735	Amends zoning map to reclassify certain property (Special)
3736	Amends title 19, development code (Omitted)
3737	Repeals and reenacts Ch. 14.08, cross-connection control regulations (14.08)
3738	Extends city limits (Special)
3739	Extends city limits (Special)
3740	Extends city limits (Special)
3741	Adopts LV Amigo, LLC Apartments development agreement (Special)
3742	Amends zoning map to reclassify certain property (Special)
3743	Amends zoning map to reclassify certain property (Special)
3744	Amends zoning map to reclassify certain property (Special)
3745	Extends city limits (Special)
3746	Adopts West Henderson Hospital Campus development agreement (Special)
3747	Amends zoning map to reclassify certain property (Special)
3748	Amends zoning map to reclassify certain property (Special)
3749	Amends zoning map to reclassify certain property (Special)
3750	Amends zoning map to reclassify certain property (Special)
3751	Amends zoning map to reclassify certain property (Special)
3752	Amends zoning map to reclassify certain property (Special)
3753	Amends §§ 2.27.010—2.27.030; adds 2.27.035, parks and recreation (2.27)
3754	Amends zoning map to reclassify certain property (Special)
3755	Adopts Alper Drive Apartments development agreement (Special)
3756	Adopts Diamond Bermuda development agreement (Special)
3757	Amends zoning map to reclassify certain property (Special)
3758	Amends and restates LogistiCenter @ Volunteer development agreement (Special)
3759	Adopts South 15 Airport Park development agreement (Special)
3760	Amends zoning map to reclassify certain property (Special)
3761	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3762	Amends zoning map to reclassify certain property (Special)
3763	Amends §§ 7.01.120, 7.01.455, 7.01.485, 7.04.020, 7.04.080, 7.04.090, 7.04.120, 7.04.125, 7.10.010, 7.10.020, 7.10.050, 7.20.020, 7.25.020; adds §§ 7.10.060, 7.10.070, animals (7.01, 7.04, 7.10, 7.20, 7.25)
3764	Fourth amendment to Inspirada park agreement (Special)
3765	Adopts Mera Inspirada development agreement (Special)
3766	Amends zoning map to reclassify certain property (Special)
3767	Amends zoning map to reclassify certain property (Special)
3768	Amends zoning map to reclassify certain property (Special)
3769	Extends city limits (Special)
3770	Adopts Inspirada Town Center—Parcel 1 development agreement (Special)
3771	Amends zoning map to reclassify certain property (Special)
3772	Amends zoning map to reclassify certain property (Special)
3773	Adopts modification to project within LID T-16 (The Falls at Lake Las Vegas) (Special)
3774	Extends city limits (Special)
3775	Third amendment to Union Village Phase II park agreement (Special)
3776	Adopts Alper Airport Center development agreement (Special)
3777	Release from AirParc South development agreement (Special)
3778	Amends zoning map to reclassify certain property (Special)
3779	Amends zoning map to reclassify certain property (Special)
3780	Amends zoning map to reclassify certain property (Special)
3781	Amends zoning map to reclassify certain property (Special)
3782	Amends zoning map to reclassify certain property (Special)
3783	Amends zoning map to reclassify certain property (Special)
3784	Amends zoning map to reclassify certain property (Special)
3785	Adopts Inspirada Town Center—Parcel 5—The Vera development agreement (Special)
3786	Adopts Inspirada Executive Commercial Center development agreement (Special)
3787	Adopts Silver & Black Industrial Center development agreement (Special)
3788	Release from Starr Multi-Family development agreement (Special)
3789	Provides for payment of maintenance and expenses pertaining to Pecos Robindale neighborhood improvement district (Special)
3790	Adopts Village at St Rose development agreement (Special)
3791	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3792	Amends zoning map to reclassify certain property (Special)
3793	Adopts Henderson Executive Industrial Park development agreement (Special)
3794	Amends zoning map to reclassify certain property (Special)
3795	Adopts Inspirada Town Center—Parcels 21 and 30—Tri Pointe Homes Nevada development agreement (Special)
3796	Amends zoning map to reclassify certain property (Special)
3797	Amends zoning map to reclassify certain property (Special)
3798	Adopts Odyssey Tier Industrial Center development agreement (Special)
3799	Extends city limits (Special)
3800	Amends zoning map to reclassify certain property (Special)
3801	Amends zoning map to reclassify certain property (Special)
3802	Amends zoning map to reclassify certain property (Special)
3803	Amends zoning map to reclassify certain property (Special)
3804	General obligation various purpose bonds (Special)
3805	Amends zoning map to reclassify certain property (Special)
3806	Amends zoning map to reclassify certain property (Special)
3807	First amendment to Black Mountain development agreement (Special)
3808	Adopts Speedee Mart @ Volunteer Via Inspirada development agreement (Special)
3809	Adopts St. Rose & Bruner Multi-Family development agreement (Special)
3810	Adopts 2021 ward map (Special)
3811	Amends zoning map to reclassify certain property (Special)
3812	Amends zoning map to reclassify certain property (Special)
3813	Amends zoning map to reclassify certain property (Special)
3814	Amends § 14.09.030, pretreatment regulations (14.09)
3815	Extends city limits (Special)
3816	Extends city limits (Special)
3817	Creates LID T-21 (Special)
3818	Assesses cost of local improvements in LID T-21 against assessable properties benefited (Special)
3819	LID T-21 local improvement bonds (Special)
3820	Adopts amended Inspirada Town Center—Parcel 1 development agreement (Special)
3821	Adopts Inspirada Town Center—Parcel 19 development agreement (Special)
3822	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3823	Amends zoning map to reclassify certain property (Special)
3824	Amends § 15.08.020, International Building Code (15.08)
3825	Extends city limits (Special)
3826	Extends city limits (Special)
3827	Extends city limits (Special)
3828	Amends zoning map to reclassify certain property (Special)
3829	Amends zoning map to reclassify certain property (Special)
3830	Extends city limits (Special)
3831	Amends §§ 14.18.020, 14.18.090, fees, rates and charges (14.18)
3832	Extends city limits (Special)
3833	Amends zoning map to reclassify certain property (Special)
3834	Amends zoning map to reclassify certain property (Special)
3835	Amends zoning map to reclassify certain property (Special)
3836	Amends zoning map to reclassify certain property (Special)
3837	Amends zoning map to reclassify certain property (Special)
3838	Amends zoning map to reclassify certain property (Special)
3839	Amends zoning map to reclassify certain property (Special)
3840	Amends title 19, development code (Omitted)
3841	Adopts Wat Nevada Dhammaram Monastery development agreement (Special)
3842	Adopts Rocky Mountain Aviation Hangar development agreement (Special)
3843	Adopts Amigo & Larson development agreement (Special)
3844	Extends city limits (Special)
3845	First amendment to Pacific Pines 4 development agreement (Special)
3846	Amends zoning map to reclassify certain property (Special)
3847	Amends zoning map to reclassify certain property (Special)
3848	Amends zoning map to reclassify certain property (Special)
3849	Amends zoning map to reclassify certain property (Special)
3850	Amends zoning map to reclassify certain property (Special)
3851	Amends zoning map to reclassify certain property (Special)
3852	Amends zoning map to reclassify certain property (Special)
3853	Amends zoning map to reclassify certain property (Special)
3854	Amends zoning map to reclassify certain property (Special)
3855	Amends § 4.05.420; repeals §§ 4.05.117, 4.05.313, business license fee schedules (4.05)

Ordinance Number	
3856	Amends §§ 4.80.020, 4.80.040, 4.80.135, 4.80.140, 4.80.300, 4.80.320, 4.80.340, 4.80.350; adds §§ 4.80.137, 4.80.297, 4.80.355; repeals §§ 4.80.390—4.80.480; renumbers §§ 4.80.490, 4.80.500 as §§ 4.80.390, 4.80.400, emergency medical services (4.80)
3857	Extends city limits (Special)
3858	Amends zoning map to reclassify certain property (Special)
3859	Amends zoning map to reclassify certain property (Special)
3860	Amends zoning map to reclassify certain property (Special)
3861	Amends zoning map to reclassify certain property (Special)
3862	Amends §§ 2.24.010, 2.24.030, 2.24.040—2.24.100, 2.24.110, emergency management (2.24)
3863	Extends city limits (Special)
3864	Second amendment to Cadence development agreement (Special)
3865	Amends zoning map to reclassify certain property (Special)
3866	Amends title 19, development code (Omitted)
3867	Adopts Inspirada Town Center Parcel 2A development agreement (Special)
3868	Amends zoning map to reclassify certain property (Special)
3869	Extends city limits (Special)
3870	Adopts Foothills at MacDonalds Highlands development agreement (Special)
3871	Amends zoning map to reclassify certain property (Special)
3872	Amends zoning map to reclassify certain property (Special)
3873	Amends zoning map to reclassify certain property (Special)
3874	Amends city public water system service area (Special)
3875	Extends city limits (Special)
3876	Extends city limits (Special)
3877	Amends zoning map to reclassify certain property (Special)
3878	Amends zoning map to reclassify certain property (Special)
3879	Amends zoning map to reclassify certain property (Special)
3880	Amends zoning map to reclassify certain property (Special)
3881	Amends zoning map to reclassify certain property (Special)
3882	Amends zoning map to reclassify certain property (Special)
3883	Amends zoning map to reclassify certain property (Special)
3884	Amends West Henderson Global Business District Design Guidelines (Special)
3885	Extends city limits (Special)

Ordinance Number	
3886	Amends and restates Lake Las Vegas Fire Station Equipment Rainbow Canyon development agreement (Special)
3887	Extends city limits (Special)
3888	Provides for payment of maintenance and expenses pertaining to Pecos Robindale neighborhood improvement district (Special)
3889	Amends zoning map to reclassify certain property (Special)
3890	Amends zoning map to reclassify certain property (Special)
3891	Amends zoning map to reclassify certain property (Special)
3892	Amends zoning map to reclassify certain property (Special)
3893	Extends city limits (Special)
3894	Extends city limits (Special)
3895	Extends city limits (Special)
3896	Extends city limits (Special)
3897	Adds Ch. 15.30, Wildland-Urban Interface Code (15.30)
3898	Amends §§ 15.16.010, 15.16.020, National Electric Code (15.16)
3899	Amends and restates Cadence development agreement (Special)
3900	Amends §§ 8.10.020—8.10.030, 8.10.065, 8.10.070, 8.10.080, 8.10.090, 8.10.140, 8.10.220; adds § 8.10.075, special events (8.10)
3901	Amends zoning map to reclassify certain property (Special)
3902	Amends zoning map to reclassify certain property (Special)
3903	Amends zoning map to reclassify certain property (Special)
3904	Amends §§ 2.27.030, 2.27.040, parks and recreation (2.27)
3905	Amends §§ 14.01.010, 14.02.030, 14.03.020—14.03.040, 14.03.060, 14.04.020, 14.04.040, 14.14.010, 14.14.020, 14.14.030—14.14.110, 14.18.010, 14.18.100, 14.21.010, 14.21.040, 14.21.050, 14.21.110, 14.21.120; adds §§ 14.14.015, 14.14.025, 14.14.120—14.14.140, 14.18.110, utility services (14.01, 14.02, 14.03, 14.04, 14.14, 14.18, 14.21)
3906	Amends §§ 15.01.010, 15.01.130, 15.01.205, 15.01.285, 15.01.290; adds § 15.01.286, building & fire safety administrative code (15.01)
3907	Amends §§ 15.08.010, 15.08.020, 15.08.050, building code (15.08)
3908	Adds § 15.09.025, International Residential Code (15.09)
3909	Amends §§ 15.32.010—15.32.030, 15.32.050, 15.32.120, fire code (15.32)
3910	Amends §§ 15.12.010, 15.12.020, 15.12.040—15.12.060, 15.12.090, property maintenance code (15.12)
3911	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3912	Amends § 14.18.045, West Henderson 2630/2760 PZ water backbone infrastructure rates (14.18)
3913	Amends zoning map to reclassify certain property (Special)
3914	Amends zoning map to reclassify certain property (Special)
3915	Amends zoning map to reclassify certain property (Special)
3916	Extends city limits (Special)
3917	Amends zoning map to reclassify certain property (Special)
3918	Amends zoning map to reclassify certain property (Special)
3919	Amends zoning map to reclassify certain property (Special)
3920	Amends zoning map to reclassify certain property (Special)
3921	Amends zoning map to reclassify certain property (Special)
3922	Amends zoning map to reclassify certain property (Special)
3923	Amends zoning map to reclassify certain property (Special)
3924	Issuance and sale of medium-term bond (Special)
3925	Extends city limits (Special)
3926	Amends §§ 4.05.020, 4.05.025, business license fee schedules (4.05)
3927	Amends § 15.50.010, uniform regulations (15.50)
3928	Amends Tit. 17 title, §§ 17.01.010, 17.02.040, 17.02.060, 17.03.010, right-of-way management—communications facilities (17.01, 17.02, 17.03)
3929	Adopts Airport Five Mini Storage development agreement (Special)
3930	Adopts Gilespie & Bruner development agreement (Special)
3931	Adopts Gilespie & Welpman development agreement (Special)
3932	Extends city limits (Special)
3933	Amends zoning map to reclassify certain property (Special)
3934	Amends zoning map to reclassify certain property (Special)
3935	Amends zoning map to reclassify certain property (Special)
3936	Amends § 4.07.050, Notice of violation—Response—Hearings (4.07)
3937	Amends zoning map to reclassify certain property (Special)
3938	Amends zoning map to reclassify certain property (Special)
3939	Amends Ch. 15.24 title; adds § 15.24.015, mechanical code (15.24)
3940	Repeals § 2.50.325, Community Development Block Grant (CDBG) program advisory committee (2.50)
3941	Amends zoning map to reclassify certain property (Special)
3942	Amends zoning map to reclassify certain property (Special)
3943	Amends § 2.50.357, Henderson community education advisory board (2.50)
3944	Release from Airparc Heights development agreement (Special)

Ordinance Number	
3945	Amends § 2.50.305, audit committee (2.50)
3946	Amends § 14.14.040, golf courses (14.14)
3947	Amends zoning map to reclassify certain property (Special)
3948	Amends zoning map to reclassify certain property (Special)
3949	Amends zoning map to reclassify certain property (Special)
3950	Fifth amendment to Inspirada park agreement (Special)
3951	Adopts major modification to Cadence development agreement (Special)
3952	Amends zoning map to reclassify certain property (Special)
3953	Amends zoning map to reclassify certain property (Special)
3954	Amends title 19, development code (Omitted)
3955	Amends zoning map to reclassify certain property (Special)
3956	Extends city limits (Special)
3957	Amends zoning map to reclassify certain property (Special)
3958	Amends zoning map to reclassify certain property (Special)
3959	Amends zoning map to reclassify certain property (Special)
3960	Amends zoning map to reclassify certain property (Special)
3961	Amends zoning map to reclassify certain property (Special)
3962	Amends title 19, development code (Omitted)
3963	Amends §§ 4.118.070, 4.118.200, retail marijuana regulations and licenses (4.118)
3964	Creates LID T-22 (Special)
3965	Assesses cost of local improvements in LID T-22 against assessable properties benefited (Special)
3966	LID T-22 local improvement bonds (Special)
3967	Repeals and reenacts Ch. 8.37, camping and similar activities (8.37)
3968	Amends § 10.02.020; repeals §§ 10.16.050—10.16.070, 10.24.020, 10.24.040, 10.36.070, 10.36.080, 10.48.040, 10.48.070, 10.58.030, vehicles and traffic (10.02, 10.16, 10.24, 10.36, 10.48, 10.58)
3969	Repeals and replaces West Henderson public facilities needs assessment (Special)
3970	Adopts Amigo 5-Acre Expansion development agreement (Special)
3971	Adopts Bruner & Amigo Industrial development agreement (Special)
3972	Adopts Volunteer & Chaparral Industrial development agreement (Special)
3973	First amendment to Village at St. Rose development agreement (Special)
3974	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
3975	Provides for payment of maintenance and expenses pertaining to Pecos Robindale neighborhood improvement district (Special)
3976	Amends zoning map to reclassify certain property (Special)
3977	Adopts 2023 ward map (Special)
3978	Release from Cactus Retail Center development agreement (Special)
3979	Extends city limits (Special)
3980	Amends zoning map to reclassify certain property (Special)
3981	Amends zoning map to reclassify certain property (Special)
3982	Amends city public wastewater system service area (Special)
3983	Amends city public water system service area (Special)
3984	Amends § 4.110.010, sexually oriented businesses definitions (4.110)
3985	Adopts Chicken N Pickle development agreement (Special)
3986	Repeals Ch. 10.12, traffic administration (10.12)
3987	Amends title 19, development code (Omitted)
3988	Amends title 19, development code (Omitted)
3989	Issuance and sale of general obligation various purpose bonds (Special)
3990	Amends zoning map to reclassify certain property (Special)
3991	Amends zoning map to reclassify certain property (Special)
3992	Repeals § 2.50.350, commemorative beautification committee (2.50)
3993	Adopts The Stack standard development agreement (Special)
3994	Amends zoning map to reclassify certain property (Special)
3995	Adopts Lakemoor development agreement (Special)
3996	Adopts Lakemoor Park agreement (Special)
3997	Adopts Boulevard South standard development agreement (Special)
3998	Amends Inspirada Town Center/Inspirada Station Design Guidelines (Special)
3999	Adopts Inspirada Station development agreement (Special)
4000	Adopts Inspirada Station standard development agreement (Special)
4001	Amends zoning map to reclassify certain property (Special)
4002	Amends zoning map to reclassify certain property (Special)
4003	Amends zoning map to reclassify certain property (Special)
4004	Amends zoning map to reclassify certain property (Special)
4005	Amends zoning map to reclassify certain property (Special)
4006	Amends title 19, development code (Omitted)
4007	Amends title 19, development code (Omitted)
4008	Amends zoning map to reclassify certain property (Special)
4009	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
4010	Amends title 19, development code (Omitted)
4011	Amends §§ 7.01.090, 7.01.540; adds §§ 7.01.140, 7.01.145; repeals §§ 7.01.170, 7.01.180, 7.01.330, definitions; adds Ch. 7.75, commercial animal establishment (7.01, 7.75)
4012	Adopts major modification to Haas Automation development agreement (Special)
4013	Amends zoning map to reclassify certain property (Special)
4014	Amends zoning map to reclassify certain property (Special)
4015	Amends zoning map to reclassify certain property (Special)
4016	Amends zoning map to reclassify certain property (Special)
4017	Amends zoning map to reclassify certain property (Special)
4018	Amends §§ 6.01.040, 6.01.060, 6.02.010, 6.02.030, 6.04.010—6.04.080, 6.05.010—6.05.060, 6.06.010—6.06.040, 6.07.010—6.07.030, 6.07.050, 6.08.010—6.08.040, 6.09.010, civic service rules (6.01, 6.02, 6.04, 6.05, 6.06, 6.07, 6.08, 6.09)
4019	Amends §§ 15.13.010—15.13.040, 15.13.060, 15.13.070; repeals § 15.13.110, abandoned residential real property registry (15.13)
4020	Amends zoning map to reclassify certain property (Special)
4021	Amends §§ 2.47.020, 2.47.085, records management (2.47)
4022	Amends §§ 4.05.278, 4.05.420, business license fee schedules (4.05)
4023	Amends §§ 4.36.010, 4.36.040, 4.36.240, liquor—regulations and licenses (4.36)
4024	Amends zoning map to reclassify certain property (Special)
4025	Extends city limits (Special)
4026	Extends city limits (Special)
4027	Extends city limits (Special)
4028	Establishes Henderson Arts Advisory Commission (2.50)
4029	Amends zoning map to reclassify certain property (Special)
4030	Amends zoning map to reclassify certain property (Special)
4031	Amends zoning map to reclassify certain property (Special)
4032	Amends zoning map to reclassify certain property (Special)
4033	Adds Ch. 4.75, sidewalk and open-air vendors (4.75)
4034	Amends zoning map to reclassify certain property (Special)
4035	Adopts Mosaic development agreement (Special)
4036	Amends zoning map to reclassify certain property (Special)
4037	Amends zoning map to reclassify certain property (Special)
4038	Amends § 7.04.020, pet licensing and permits—fees (7.04)

Ordinance Number	
4039	Fourth amendment to Inspirada development agreement (Special)
4040	Amends § 2.50.395, arts advisory commission (2.50)
4041	Amends Ch. 4.68, secondhand dealers (4.68)
4042	Amends § 11.03.010, obstructions or encroachments within city rights-of-way (11.03)
4043	Adds §§ 10.06.020, 10.06.040—10.06.060, parking regulations adopted; amends § 10.16.0200, enforcement authority of police and fire department officials and other enforcement officers; repeals § 10.60.080, parking of overweight vehicles in residence district prohibited (10.06, 10.16, 10.60)
4044	Amends §§ 5.17.010, 5.17.030—5.17.080, 5.17.100—5.17.130, 5.17.150—5.17.180, 5.17.210, 5.17.213, 5.17.215, 5.17.250, 5.17.260, 5.17.265, 5.17.290, 5.17.320; adds §§ 5.17.245, 5.17.275, ch. 5.17, appendix 1, solid waste management (5.17)
4045	Amends zoning map to reclassify certain property (Special)
4046	Amends § 2.50.340; repeals §§ 2.50.310, 2.50.375, advisory boards (2.50)
4047	Issuance of municipal utility revenue bond (Special)
4048	Issuance of municipal utility revenue bond (Special)
4049	Amends §§ 2.27.020, 2.27.030, 2.27.035, 2.27.040, 2.27.060, parks and recreation (2.27)
4050	Amends title 19, development code (Omitted)
4051	Adopts Inspirada Town Center standard development agreement (Special)
4052	Extends city limits (Special)
4053	Adds § 10.06.030, unlawful parking of recreational vehicles (10.06)
4054	Amends zoning map to reclassify certain property (Special)
4055	Amends zoning map to reclassify certain property (Special)
4056	Adopts major modification to Cadence development agreement (Special)
4057	Amends §§ 2.05.010, 2.05.020; adds § 2.05.031, municipal court judge salary (2.50)
4058	Amends § 15.70.010, UDACS adopted by reference (15.70)
4059	Amends zoning map to reclassify certain property (Special)
4060	Amends zoning map to reclassify certain property (Special)
4061	Amends zoning map to reclassify certain property (Special)
4062	Amends § 14.14.070, restrictions on surface, building, equipment, and vehicle washing; splash pads (14.14)

Ordinance Number	
4063	Extends city limits (Special)
4064	Amends zoning map to reclassify certain property (Special)
4065	Amends zoning map to reclassify certain property (Special)
4066	Amends zoning map to reclassify certain property (Special)
4067	Amends zoning map to reclassify certain property (Special)
4068	Amends zoning map to reclassify certain property (Special)
4069	Amends zoning map to reclassify certain property (Special)
4070	Amends zoning map to reclassify certain property (Special)
4071	Amends zoning map to reclassify certain property (Special)
4072	Amends zoning map to reclassify certain property (Special)
4073	Adopts major modification to Mosaic development agreement (Special)
4074	Amends §§ 4.32.020, 4.32.040, gambling—regulations and licenses (4.32)
4075	Amends §§ 15.02.010, 15.02.030, development services schedule of fees (15.02)
4076	Amends zoning map to reclassify certain property (Special)
4077	Amends zoning map to reclassify certain property (Special)
4078	Amends zoning map to reclassify certain property (Special)
4079	Amends zoning map to reclassify certain property (Special)
4080	Amends §§ 7.01.040—7.01.620, ch. 7.02 title, 7.02.020, 7.02.050, 7.04.040, 7.04.060, 7.04.080—7.04.100, 7.04.120—7.04.135, 7.06.020, 7.06.030, 7.06.100, 7.08.020, 7.60.010, 7.60.020, 7.60.045, 7.70.030; adds §§ 7.04.140, 7.04.160, ch. 7.65, §§ 7.65.010—7.65.070, animals (7.01, 7.02, 7.04, 7.06, 7.08, 7.60, 7.65, 7.70)
4081	Amends title 19, development code (Omitted)
4082	Amends § 2.05.010, salary for municipal court judge (2.05)
4083	Amends ch. 15.08 title, §§ 15.08.010, 15.08.020, 15.08.050, building code (15.08)
4084	Amends ch. 15.09 title, §§ 15.09.010—15.09.025, 15.09.050, residential building code (15.09)
4085	Amends ch. 15.11 title, §§ 15.11.010—15.11.030, 15.11.060, existing building code (15.11)
4086	Amends §§ 15.16.010, 15.16.020, 15.16.060, electrical code (15.16)
4087	Amends ch. 15.20 title, §§ 15.20.010, 15.20.020, 15.20.060, plumbing code (15.20)
4088	Amends §§ 15.24.010, 15.24.020, 15.24.060, mechanical code (15.24)
4089	Amends §§ 15.30.010—15.30.030, 15.30.060, wildland-urban interface code (15.30)

Ordinance Number	
4090	Amends ch. 15.32 title, §§ 15.32.020, 15.32.030, 15.32.050, 15.32.120, fire code (15.32)
4091	Amends §§ 15.44.010, 15.44.020, 15.44.050, swimming pool code (15.44)
4092	Amends ch. 15.45 title, §§ 15.45.010, 15.45.020, 15.45.050, energy conservation code (15.45)
4093	Adopts 2025 ward map (Special)
4094	Amends zoning map to reclassify certain property (Special)
4095	Amends zoning map to reclassify certain property (Special)
4096	Amends zoning map to reclassify certain property (Special)
4097	Amends zoning map to reclassify certain property (Special)
4098	Amends zoning map to reclassify certain property (Special)
4099	Amends zoning map to reclassify certain property (Special)
4100	Amends zoning map to reclassify certain property (Special)
4101	Amends §§ 8.84.020—8.84.040, noise control; amends § 15.33.130, blasting regulations—performance standards (8.84, 15.33)
4102	Adopts Inspirada Town Center - Via Inspirada Collection standard development agreement (Special)
4103	Amends zoning map to reclassify certain property (Special)
4104	Amends zoning map to reclassify certain property (Special)
4105	Amends zoning map to reclassify certain property (Special)
4106	Amends zoning map to reclassify certain property (Special)
4107	Amends zoning map to reclassify certain property (Special)
4108	Amends zoning map to reclassify certain property (Special)
4109	Adopts GSN Sunridge standard development agreement (Special)
4110	Adopts major modification to Black Mountain Park agreement (Special)
4111	Amends zoning map to reclassify certain property (Special)
4112	Amends zoning map to reclassify certain property (Special)
4113	Adds § 10.24.020, limits (10.24)
4114	Issuance of municipal utility revenue bond (Special)
4115	Repeals and adds title 7, chs. 7.01—7.90, animals (7.01, 7.02, 7.04, 7.06, 7.08, 7.10, 7.15, 7.20, 7.25, 7.30, 7.40, 7.50, 7.60, 7.65, 7.70, 7.75, 7.80, 7.90)
4116	Amends title 19, development code (Omitted)
4121	Amends zoning map to reclassify certain property (Special)
4122	Adopts Pueblo Pines Senior Housing Development agreement (Special)
4123	Amends zoning map to reclassify certain property (Special)
4124	Amends zoning map to reclassify certain property (Special)

Ordinance Number	
4125	Amends zoning map to reclassify certain property (Special)
4126	Amends zoning map to reclassify certain property (Special)
4127	Amends zoning map to reclassify certain property (Special)
4128	Amends zoning map to reclassify certain property (Special)
4129	Amends zoning map to reclassify certain property (Special)
4130	Amends zoning map to reclassify certain property (Special)
4131	Amends zoning map to reclassify certain property (Special)
4132	Amends § 14.08.050, department-authorized backflow prevention assembly test companies and testers (14.08)
4133	Adopts Community Ambulance Corporate Headquarters standard development agreement (Special)
4134	Amends zoning map to reclassify certain property (Special)
4135	Amends zoning map to reclassify certain property (Special)
4136	Imposes moratorium on electric vehicle parking requirements for nonresidential and industrial EV-capable parking spaces (Special)
4137	Amends § 15.08.020, building code amended (15.08)
4138	Amends § 15.32.050, City of Henderson fire code amendments (15.32)
4139	Amends § 15.44.020, swimming pool code amended (15.44)
4140	Adopts Larson & Bermuda standard development agreement (Special)
4141	Fourth amendment to Union Village Phase II park agreement (Special)
4142	Amends §§ 6.03.030, 6.04.010—6.04.070, 6.05.030—6.05.060, 6.06.020, 6.07.010, 6.09.010, civil service rules (6.03, 6.04, 6.05, 6.06, 6.07, 6.09)
4143	Amends zoning map to reclassify certain property (Special)
4144	Amends zoning map to reclassify certain property (Special)
4145	Amends zoning map to reclassify certain property (Special)
4146	Extends city limits (Special)
4150	Amends zoning map to reclassify certain property (Special)
4151	Amends zoning map to reclassify certain property (Special)
4152	Amends § 1.05.020, authorized punishment; penalties (1.05)
4153	Amends zoning map to reclassify certain property (Special)
4154	Amends § 2.50.020, board member eligibility requirements; amends § 2.50.360, development services center advisory committee (2.50)
4155	Amends zoning map to reclassify certain property (Special)
4156	Adopts major modification to Cadence development agreement (Special)
4157	Amends § 4.05.020, public utility and related services licenses (4.05)
4158	Creates LID T-23-1 (Special)
4159	LID T-23-1 local improvement bonds (Special)

Ordinance Number	
4160	Assesses cost of local improvements in LID T-23-1 against assessable properties benefited (Special)
4161	Adopts PAM Rehabilitation Hospital of West Henderson standard development agreement (Special)
4162	Amends zoning map to reclassify certain property (Special)
4163	Amends §§ 4.05.297, 4.05.313, 4.03.333, 4.05.313, business license fee schedules (4.05)

TABLE
RESOLUTION LIST

Resolution Number	
000	Policy for calling Council Meetings
000	Authorizing filing of application for extension of facilities
000	Opposing permissive sales tax legislation
000	Support of merger of Union Pacific & Rock Island Railroads
000	Henderson Chamber of Commerce for service to community
000	G.O. public bldg. & recreation refunding bonds, $4,790,000
000	Refinancing & repaying outstanding G.O. bonds, $4,790,000
000	Public housing units in Henderson
000	Las Vegas Conv. Ctr., $18,000,000 G.O. bond sale
000	Colorado River Commission emergency water supply
000	Hostetler, Rubye, Bldg. Dept., Secretary, resignation
000	Vanda, Charles, public spirited offer to construct t.v. channel
000	Gragson, Oran, Mayor, National League of Cities convention host
000	Bossi, Alfred A., Traffic study for City
000	Appointment of delegates to the meeting
000	Amend A.B. 474 (1957)
001	Supporting Bonanza Airline
002	Pts. T. 22 S., R. 63 E., T. 22 S., R. 62 E., T. 21 S., R. 63 E.
003	Designing streets and alleys
004	Accepting 25 year lease from Bureau of Outdoor Recreation
005	McCarran, Pat, Senator, thanks
006	Accepting deed, Youth Center, BMI
007	Appointment to enforce health ordinance
008	Haynes Drive name after W.O. Haynes
009	McCarran, Pat, Senator, sympathy
010	Request to maintain $1.50 tax rate
011	Fee set for surveying private property
012	Adopting Master Plan, 1955, 701 Workable Plan
013	VanWagenen, N. D., Councilman
014	Recreation Board
015	Emergency loan, $75,000
016	Water, providing for sale, $90,000
017	Setbacks to facilities (U.S. 93)
018	Water, offering G.O. water bonds for sale, $108,000

Resolution Number	
019	Establishing district
020	Amending assessment valuation
021	Meagher, Edward F., expression of sorrow
022	Agreement, 12″ water main & wastewater ditch
023	Agreement, Lauren W. Gibbs, to pay for bonds
024	City Building, notice of bond sale, building & water
025	Meeting procedure
026	Tri-City Transit
027	Dickover, Paul, Councilman
028	Water improvement
029	Park Village Elementary Morrell Park, 15 acres
030	Establish utility bond interest & redemption fund
031	City Building, notice of sale $76,000
032	A.D. 100, construction
033	A.D. 100, notice to be given, Sec. 6, Ord. 194
034	A.D. 200, construction of paving
035	A.D. 200, notice to be given, Sec. 6, Ord. 195
036	Application, PL 345, Government loan, $550,000
037	A.D. 200, adopting Ord. 199
038	A.D. 100, adopting Ord. 200
039	Litigation, State of Arizona v. California
040	A.D. 100, ratification of proceedings
041	A.D. 200, ratification of proceedings
042	A.D. 100, directing preparation of roll
043	A.D. 200, directing preparation of roll
044	Establishing pay periods
045	Sewer, acceptance of project PFL-VI-26-19
046	A.D. 300, establishing district
047	Muehleisen, Harmon, sorrow
048	Emergency loan application, $50,000
049	A.D. 300, providing for notice of intent
050	Sewer, authorizing issuance
051	Application, State Bd. of Finance, emergency loan, $25,000
052	Decreasing amount of payment BMI, amending contract
053	Juvenile conference committee
054	Invocation by ministers
055	Amendment, appraisal instructions & appraisers appointment

Resolution Number	
056	Sewer, providing for sale, $100,000
057	Amendment, appraisal instructions & appraisers appointment
058	Authorizing sale of $205,000 of $750,000 issue
059	Sewer, authorizing issuance, $100,000
060	Award of bid, $205,000
061	Request to BLM, relocation of small tract applicants
062	Approval, general flood control project
063	A.D. 300, notice to bidders
064	A.D. 300, authorizing notice of bond sale
065	Emergency loan application, $100,000
065-A	Amending Resolution No. 65
066	Claiborne, Harry E., City Attorney
067	Application, State Bd. of Finance, emergency loan, $100,000
067-A	Amending Resolution No. 67
068	Sunset Road route to Boulder Highway
069	Established land sale fund
070	A.D. 300, certifying assessment roll
071	Accepting Pittman sewer project
072	Intent to borrow $20,000
073	Request to add 6,200 acres to PL-522
074	Application, State Bd. of Finance, $20,000 Emergency
075	Idle funds, investment of
076	Agenda items
077	Report on Survey for Flood Control-L.V. Wash tributaries
078	Creating municipal defense organization
079	Mayor, Treasurer, City Clerk - Warrants
080	Emergency loan, $85,000
081	Requesting water distribution study by BLM
082	Hiring of attorney who lives outside City limits
083	Over-ride veto, MacDonald property
084	Voting at large, Councilman
085	Application, emergency, $50,000
086	Supporting legislation, leasing cabin sites
087	Intent to borrow $37,000
088	Prohibiting give-away practices
089	Emergency loan request, $37,000
090	City Hall, issuance, 1961, $200,000

Resolution Number	
091	Intent to borrow, $47,700
091-A	Nevada Power, S. 3, T. 22 S., R. 62 E.
092	Greater Las Vegas Disaster Board
093	Joint planning organization, Greater Las Vegas Area
094	Implementation of Civil Defense plan
095	Emergency loan, expenditures, $47,700
096	Request approval, area dialing
097	Henderson Telephone
098	Supporting flood control bonds
099	Protesting identification change, Channel 2
100	Thunderbird Speedway
101	Fairview Estates, reversion clause rescinded
102	Prepare Form H-1082
103	Bench
104	Community improvement, urban renewal
105	Necessity to exercise urban renewal power
106	Survey and plans, application urban renewal project
107	Unit price materials
108	Freezing zoning map, urban renewal
109	Clark County
110	Study effects and degree of air pollution
111	Emergency loan, $200,000
112	Amend Public Law 522, 15,000 acres
113	Frontier Boulevard, Lake Mead
114	Deputy Civil Defense Director
115	Cooperative agreement
116	Intent to sell pt. S. 16, T. 22 S., R. 62 E. (Billy)
117	Traditional tax immunity for bonds
118	Intent to borrow, $200,000
119	Bi-weekly paydays established; Supersedes Res. 44. (2.34)
120	Proclaiming "Cleaner Air Week"
121	Challenging 1963/64 budget
122	City owned water wells
123	Las Vegas Valley Area, major street & highway plan
124	Room tax distribution
125	Reapportionment, cigarette tax
126	Intent to borrow, $85,000

Resolution Number	
127	Petition to FCC
128	This resolution not found
129	Reimbursement by State Board of Health
130	Budget act, local government
131	Good Shepherd Home, support by State
132	Supporting AB 389, 492, 494, and 508, Sources
133	Funds to meet obligations imposed
134	Supporting initiation of program
135	Supporting legislature, Great Basin National Park
136	Supporting fuel tax
137	Ball, Mrs. Ruth
138	Wrecking yard, Boulder Highway at Gibson Road, opposing
139	Insurance rating
140	Accounting method established
141	General fund loan, $75,000
142	L.V. Bldg. Materials, S. 34, T. 21S., R.62E.
143	Off/site improvements, adoption of specifications
144	Bond redemption fund, transfer of funds
145	Air pollution control function of Health District
146	Land applications
147	Corbin, Harold, City Administrator
148	Intent to sell, S. 32, T. 21 S., R. 63 E.
149	Planning assistance
150	G.O. bonds, $8,000,000
151	Sale of land to So. Cal. Edison
152	Urban planning coordinating committee
153	Appropriation, 1966-67
154	Support increase in fuel tax
155	Salary exhibits, Superseded by Resolution 183. (2.52)
156	Requesting service - air routes
157	Request for public housing
158	Transfer of property
159	Endorsement, Cooperative Agreement
160	Planning assistance request
161	Petition to correct condition of houses
162	Auditing department
162-A	deValcourt, Williams

Resolution Number	
162-B	Employees
163	Land sales agreement
164	Charchalis, George and Hyman, Alfred H.
165	Land sale—Charles Vanda
165-A	Vanda, Charles, commendation and thanks
166	Procedures set
167	Las Vegas Bldg. Mtls., S. 34, T. 21 S., R. 63 E.
168	Reapportionment
169	Lake Adair
170	Charter change, revenue from land sales or lease
171	Unclassified personnel benefits, Repealed by Resolution 345. (2.52)
172	Travel expense reimbursement, Superseded by Resolution 247. (2.34)
173	Equipment rental, Allred, approved
174	Establishing reasonable costs for administration of land fund.
175	Opinion, C-2 suitable zoning
176	Planning assistance, general master plan payment
177	Reid, Harry M., City Attorney
178	Equipment rental, Allred, 1200 N. Boulder Highway, approved
179	Equipment rental, Coroneos, George, 1520 N. Boulder Highway
180	Conroy, J. W., S. 18, T. 22 S., R. 63 E.
181	Participation by local house owners
182	Henderson Home News "Community Service Award"
183	Salary exhibits, Repealed by Resolution 360; Supersedes Resolution 155. (2.52)
184	Davis, Earl, Judge
185	Hotel Desert Pier, Inc., S. 17, T. 22 S., R. 63E.
186	Hotel Desert Pier, Inc.
187	Sell, lease or exchange conditions, S. 29, T. 22 S., R. 63 E.
188	Sell, lease or exchange conditions, S. 21 & pt. S28, T.22S., R 63E.
189	Sell, lease or exchange conditions, S. 1, 2, & 3, T. 23 S., R. 61 E.
190	Alfred Hyman and Genevieve Harper
191	Pet shop, C-2
192	Authorizing application, Fleishmann (ambulance)
193	Capital improvements fund
194	Sewer and water project
195	Sec. 29, T. 22 S., R. 63 E.
196	S. 19, T. 22 S., R. 63 E., Boulder Const. Co.

Resolution Number	
197	Citizens advisory commission, defining rules
198	Cooperative agreement for housing project
199	City Manager, commendation & salary increase for City Manager
200	Bank of Nevada, Drive-in-window, parking lot
201	Indemnification of Henderson Dodge
202	Road from Boulder through to Russell Road
203	Policy guidelines sale of land within PL 88-73
204	Crisler, George E., Chief of Police
205	Establishing redevelopment agency
206	Land Use, Sec. 19, T. 22 S., R. 63 E.
207	Land Use, Sec. 19, T. 22 S., R. 63 E.
208	Sec. 1, 2, & 3, T. 23 S., R. 61 E.
209	Establishing intervals between shows
210	701 planning assistance, neighborhood analysis
211	All land, SW-1/4 of SE-1/4, S. 21, T. 22 S., R. 63 E.
212	Portion S. 30, T. 21 S., R. 63 E.
213	E-1/2, Sec. 21, T. 22 S., R. 63 E., except SW-1/4 of SW-1/4
214	Land described in PL-88-73
215	Carson City and Ormsby County Governments
216	Greenway Drive, Black Mountain, construct & maintain fence
217	Public facilities, emergency loan, $300,000
218	Bonds $22,000,000; recommends passage
219	Acquisition agreement
220	Local government services, public service report
221	Amending Res. 203, deleting classification B
222	Land under PL/522
223	No plans for redevelopment or urban renewal
224	Opposing federal tax on local government bonds
225	Adopting General Comprehensive Master Plan, 1969
226	Sec. 27, T. 22 S., R. 63 E. (Woolridge)
227	Sec. 33, T. 22 S., R. 62 E. (Alper)
228	Sale of surplus property (Repealed by Ord. 2572)
229	A.D. 600, prepare preliminary assessment roll
230	A.D. 600, provisional order
231	Hampton, William R., Mayor
232	Giles, Franklin L., Councilman
233	A.D. 600, file estimate of costs

Resolution Number	
234	Can-Do Resource
235	Prices, refunding agreement for on site construction
236	Rescinds Resolution 181
237	Purchase of land, emergency loan, $280,000
238	Accepting report General Master Plan EBS Mgt. Co.
239	Amending 166 from $1500 to $2500
240	Fire department bargaining agent (Repealed by Ord. 1889)
241	Approving low rent housing (Housing Assistance Adm.)
242	Sec. 2, T. 22 S., R. 62 E.
243	Delinquent land contracts (2.42)
244	Declaring no urban renewal projects planned
245	Sec. 24, T. 22 S., R. 61 E., S/l/2
246	Intent to sell, N-1/2, S. 30, T. 22 S., R. 63 E.
247	Travel expense reimbursement, Superseded by Resolution 334. (2.34).
248	Established land bank, PL-88-73
249	A.D. 600, prepare preliminary assessment roll
250	A.D. 600, giving notice of public hearing
251	Renaming Pittman Park to Wells Park
252	Henderson Chamber of Commerce, 1970 Industrial Days
253	Temporary loan, $80,000, interfund
254	Salary for City Manager established, Superseded by Res. 390. (2.70)
255	Suspending bidding provisions, emergency, police cars
256	Sec. 20, T. 22 S., R. 63 E.
257	Intent to sell, lease or exchange, S. 33, T. 22 S., R. 63 E.
258	Dietrich, Robert W., Planning Commission
259	A.D. 600, overruling protests, revise & correct roll
260	Sec. 7 & 8, T. 22 S., R. 63 E.
261	Authorization to file application under PL-89-117
262	Petition for legislature to permit purchase from Govt.
263	Authorization to acquire tax delinquent land from County
264	Sec. 14, 23, 26, 3, 10, 15, 22, 35, T. 22 S., R. 63 E.
265	Emergency loan to finance So. Nev. Water Project, $500,000
266	G.O., water bonds, question for ballot, $700,000
267	Setting aside land for Community College
268	Requesting support V.A. Hospital
269	Palm Mortuary, Resolution of Intent, expired 4/5/76
270	Rezone R-R to C-2, S. 18, T. 22 S., R. 63 E. (expired 4/5/76)

Resolution Number	
271	Request to change land use, Reservoir Site
272	Setting date for bond election, $2,100,000
273	Authorizing application WS-Nev-32, 3 mil. gal. reservoir
274	Requesting emergency loan to purchase 4800 acres, $310,000
274-A	Adopted Resolution No. 274 which was a notice
275	Policy to use surplus land sale money to amortize G.O. bonds
276	Continental Telephone
277	Kohn, Joseph & Zappa, A. J., S. 17, T. 22 S., R. 63 E.
278	Land Use, Smith, Robert H., Sec. 33, T. 21 S., R. 63 E.
278-A	G.O. bond election
279	Cannon, Barney, Councilman
280	Prince, Pratt P., Councilman
281	Marshall, Dr. Paul T., Councilman
282	Urging formation of Youth Advisory Board, Parks & Rec. Comm.
283	PL-89-117, Public Works projects, water & sewer
284	PL-89-117, Public Works projects, water & sewer
285	Authorizing condemnation proceedings, Reservoir Site
286	Morris, Monte J., City Attorney
287	deValcourt, Wm. T., Public Works Director
288	Cal/Neva Corp., S. 30 T. 22 S., R. 63 E.
289	Sec. 30, T. 22 S., R. 63 E.
290	Sec. 31, T. 22 S., R. 63 E.
291	Sec. 31, T. 22 S., R, 63 E.
292	Travel expense reimbursement; Repeals Resolution 570; Repealed by Resolution 972. (2.34).
293	Sec. 31 & 32, T. 22 S., R. 63 E.
294	Sec. 32, T. 22 S., R. 63 E.
295	Paradise Hills, Resolution of Intent, expired 5/3/76
296	Sec. 31 & 32, T. 22 S., R. 63 E.
297	Sec. 32, T. 22 S., R. 63 E.
298	Coroneos, Alex, S. 2, T. 22 S., R. 62 E.
298-A	***NOTE: PUT COPY IN RESOLUTION BOOK
299	Desert Pier Hotel, S. 17, T. 22 S., R. 63 E.
300	Mission Hills sale of parcels
301	Mission Hills, Committing City to put in certain offsites
302	Magelby, Porter, S. 20, T. 22 S., R. 63 E.
303	A.D. 710, preparing & filing of prel. plans & plat

Resolution Number	
304	Land Use, Foothills Investment Co., S. 27, T. 22 S., R. 63 E.
305	PL-91-646 uniform relocation assistance & real property acquisition
306	Authorization to execute grant agreement WS-Nev-32
307	Mission Hills, Keeping animals by special use permit
308	Mission Hills, Variance, yard development standards
309	**NOT ADOPTED***Employees and elected representatives
310	Sunrise Subdivision, Bulloch, Boyd C.
311	A.D. 710, provisional order
312	Authorizing transfer from contingency to general (Microfilm Tech.)
313	Stewart Brothers, Sec. 32, T. 21 S., R. 63 E.
314	Setting aside land for Veterans Hospital
315	Blue Collar Bargaining Unit recognized.
316	Urging St. Rose de Lima facilities be used for vet treatment ctr.
317	Reclassification of city-owned land
318	A.D. 710, provisional order setting public hearing
319	Smith, Hal, Assemblyman
320	Swackhamer, Wm. D., Assemblyman
321	A.D. 710, disposing of protests
322	PL-91-646 uniform relocation assistance & real property acquisition
323	Authorizing call for bids water project WS-Nev-32
324	Recommending Route F-4
325	Authorization to prepare & sign open space grant application
326	Application land & water conservation fund
327	Land Use, Leff, Mark D., S. 8, T. 22 S., R. 63 E.
328	Land Use, Crossley, Tropicana Square, S. 18, T. 22 S., R. 63 E.
329	Greenspun, H. M., pts. T22S, R61E, T22S, R62E, T21S R62E.
330	Greenspun, H. M., pts. T22S, R61E, T22S, R62E, T21S R62E.
331	Emergency loan, finance public improvement projects, $500,000
332	A.D. 710, ordering preparation of prel. assessment roll
333	A.D. 710, filing roll, opportunity to file complaints
334	Travel expense reimbursement, Superseded by Resolution 469. (2.34).
335	Gibson, Fred D. Sr., expression of sorrow
336	A.D. 710, overruling protests, confirming roll
337	Participation in Master Water Quality Mgt. Plan
338	Mulroy, Thomas, Registrar of Voters
339	Stage Construction Co., Sec. 20, T. 22 S., R. 63 E.
340	use permit for development of mobile home park

Resolution Number	
341	Sec. 5, T. 22 S., R. 63 E.
342	Use permit allowing construction, travel trailer park
343	Sec. 8, T. 22 S., R. 63 E., Dwayne J. Parker
344	Supporting and encouraging Winnebago Corp. to locate in Henderson
345	Unclassified personnel benefits, Repeals Resolution 171; Repealed by Resolution 520. (2.52).
346	Shirley, Ellen, Mgr., Chamber of Commerce
347	Authorizing transfer $35,000 from contingency fund
348	Emergency loan, flood control, $125,000
349	Armstrong Gaid D., S. 4, T. 22 S., R. 63 E.,
350	Opposing Question 4 to retain Mun. Ct. in Henderson
351	Dating of retail foods
352	Arby Alper, pts. T. 23 S., R. 61 E.
353	Lake Adair, pts. T. 21S., R. 63E.
354	A.D. 710, authorizing private sale of bonds
355	Urging proposed Fairground be located in Henderson
356	A.D. 710, approving private sale of bonds
357	Establishing guidelines regarding subsidized housing
358	Lewis Homes, Inc., S. 30, T. 22 S., R. 63 E.
359	Opposing legislation to create
360	Salary exhibits; Repeals Resolution 183; Repealed by Resolution 520. (2.52).
361	A.D. 731, directing preparation & filing of plat
362	A.D. 733, directing filing of plat, Electric Project
363	Polk, H. W., S. 5, T. 22 S., R. 63 E.
364	A.D. 731, provisional order for sewer and water project
365	Urging legislature to enact legislation to permit
366	A.D. 733, provisional order
367	Augmentation, 1972-73 Budget, Revenue Sharing Funds
368	Clark, Thelma, S. 27. T. 22 S., R. 63 E.
369	A.D. 731, disposing of protests, filing revised cost est.
370	A.D. 733, disposing of protests, filing revised cost est.
371	Opposing creation of new city governments
371-A	Urging 1973 legislature to adopt A.B.305, prison in Clark County
372	Approval of relocation, Federal Aid Primary Hwy.
373	Authorizing public sale by city of G.O. park & storm sewer, $675,000
374	A.D. 732, directing preparation & filing of plat

Resolution Number	
375	Guidelines re: subsidized housing
376	Sec. 33, T. 21 S., R. 62 E.
377	Johnson, Chipper Dee, S. 18, T. 22 S., R. 63 E.
378	Establishing highway access, Rt. 41
379	Approving formation, ratifying app't of Board
380	McDoniel, Estes
381	Authorizing transfer $10,000, contingency to recreation
382	A.D. 732, provisional order, water & sewer project
383	Intent to grant exclusive bench franchise (advertising)
384	Recommending Institute be named Paul McDermott Institute
385	Approving execution of contract for grant to acquire open space
386	Request access opening to Rt. 41 (Alper)
387	A.D. 732, disposing of protests, filing revised plat
388	Emergency replacement parts, signals at major intersections
389	Salary Exhibits; Repeals Resolution 360; Repealed by Res. 407. (2.52).
390	Salary for City Manager, City Attorney, City Clerk; Superseded by Resolution 506. (2.70).
391	Luzier, G. C., S. 33, T. 21 S., R. 62 E.
392	Luzier, G. C., S. 33, T. 21 S., R. 62 E.
393	Augmentation, 1973-74 Budget, Revenue Sharing Funds
394	Approving application for funds
395	Protesting insinuation regarding city govt. operation
396	Sec. 7, T. 22 S., R. 63 E. (portion)
397	Semi-rural areas, offsite improvement requirements
398	Pt. S. 36, T. 21 S., R. 62 E.
399	Intent to sell land acquired under PL-522, S. 17, T. 22S., R. 63E.
400	Laubach, Duane, Realtor of Year
401	Totality Musical Group
402	Naming Lorin L. Williams Municipal Pool
403	Lake Mead Mobile Home Park, S. 5, T. 22 S., R. 63 E.
404	Urging appointment, Metro Transportation Plan Org.
405	S. 21, T. 22 S., R. 63 E., Leff, Mark D.
406	Land and water conservation fund application
407	Salary Exhibits; Repeals Resolution 389; Superseded by Resolution 420. (2.52).
408	Intent to grant exclusive franchise
409	Employee Annuity Contract. (2.34)

Resolution Number	
410	A.D. 742, directing filing of preliminary plans
411	A.D. 741, directing preparation & filing of prel. plans
412	Request for planning assistance, 701
413	Franklin, Jerry E., Councilman
414	Transfer contingency to general, '73-74 budget augmentation
415	Budge augmentation, 1973-74, $60,000
416	A.D. 744, directing preparing & filing of prel. plans
417	A.D. 744, making provisional order, setting public hearing
418	Sec. 34, T. 22 S., R. 63 E.
419	Declaring emergency in water & sewer system, $264, 308.04 temp. loan
420	Salary Exhibits;Resolution 389; Supersedes 407; Repealed by Resolution 456. (2.52).
421	A.D. 744, dispose of protests, direct filing of revised costs
422	Approving joinder, purchase fire hose
423	Bank of Nevada
424	Certification of official documents (Repealed by Ord. 1783)
425	Expressing interest and support of development
426	Green Valley, Ralph W. Hornbeck, S.7, T.22S., R. 62E.
427	Preliminary plans and estimates for Assessment District, Lake Adair
428	Intent to grant 25 year franchise, Continental Telephone Co.
429	Intent to grant 25 year franchise, Nevada Power Company
430	Intent to grant 25 year franchise, California Pacific Utl. Co.(gas)
431	Intent to grant 25 year franchise, California Pacific Utl. Co.(elc)
432	A.D. 742, directing preparing & filing of prel. plans
432-A	Approval of transfer of funds to I-15 Hwy as a spur
433	A.D. 731, prepare prel. assessment roll
434	Intent to grant taxi cab franchise
435	A.D. 744, prepare preliminary assessment roll
436	Urging 94th Congress to re-enact Revenue Sharing Program
437	Authorizing application for federal subsidized flood insurance
438	Review of building permits and subdivision proposals for flood hazard protection by public works department (2.50).
439	Approving execution of contract for bond counsel, Urban Schreiner
440	A.D. 741, setting public hearing
441	A.D. 742, setting public hearing
442	Jeffrey, John E., Councilman
443	Transfer, contingency to general, '75-76 budget, $70,000

Resolution Number	
444	Authorizing enactment of SB407 financial relief
445	Authorizing City Manager to sign application, open space grant
446	Petition State Hwy. Dept. to install signal at Coogan & Sunset
447	Williams, Lorin L., Service on Civil Service Board
448	Stewart, Richard A. (Dick), Civil Service Board
449	Nevada Health Dept. regulations, objection
450	A.D. 741, waiving protests, ratifying previous action
451	A.D. 741, approving & authorizing execution of contract
452	A.D. 741, filing roll, setting public hearing, amended by 464
453	A.D. 742, disposing of protests, ratifying previous action
454	A.D. 742, authorizing execution of contract
455	A.D. 742, public hearing for assessments
456	A.D. 731, public hearing set for protests
457	Salary exhibits; Repeals Resolution 420; Repealed by Resolution 483. (2.52).
458	Urging legislature to create State office as Advocate before PSC
459	Appealing established flood elevations, land use, flood ins. map
460	Opposing State traffic violations being delegated to Justice Ct.
461	Opposing passage of SB/225 decreasing size of board
462	A.D. 742, ordering contribution of unencumbered funds
463	A.D. 742, overruling protests
464	A.D. 741, setting public hearing, amended Res. 452
465	Urging Governor to designate County Health Service Agency
466	Henderson Boys' Club
467	General Fund Budget, 1974/75, $70,000 Augmentation, Contingency fund
468	A.D. 741, overruling protests, ratifying previous action
469	Travel expense reimbursement; Repealed by Resolution 570. (2.34).
470	Urging enactment of legislation regarding merger of govts
471	208 Waste Water Treatment Plan, County Regional Planning
472	Recommending local post service continues as is
473	A.D. 741, 742, providing for sale of imp. bonds
474	A.D. 741, awarding bonds to be issued
475	A.D. 742, awarding bonds to be issued
476	Emergency loan, street repair, $860,000
477	A.D. 744, setting assessment public hearing
478	Glassburn, Robert J., S. 4, T. 22 S., R. 63 E.

Resolution Number	
479	Sec. 33, T. 21 S., R. 62 E., Stead, David L.
480	Michael McDonnell, etc.
481	A.D. 744, overrule protests, correct assessment
482	A.D. 731, overruling protests
483	Salary exhibits; Repeals Resolution 457. (2.52).
484	Creates CV-OS classification, open space district (19.45).
485	(Not adopted)
486	Requesting assistance 701, $18,000
487	Protesting application of Nevada Power for rate increase
488	A.D. 744, notice of sale of bonds
489	Land Use, Extending time on Res. 403
490	Augmentation, 1975-76, $358,500
491	Revenue sharing augmentation, $43,292.18, '75-76
492	Opposing abolishment of Regional Planning Council
493	Approving application for land & water conservation funds
494	Ratifying fee schedule
495	Approval of amendatory contract, open space
496	Land Use, Sec. 28, 29, 31 & 32, T. 22 S., R. 62 E.
497	Encouraging installations of solar energy in residential property
498	Protesting application of wholesale rate increase
499	Authorizing application for PL92-500, 201 Planning Grant
500	Utility fund augmentation, $77,798, '75-76
501	Transfer, '75-76 $70,000
502	Health Systems agency under Nat'l Plan. & Res. Dev. Act 1974
503	Sec. 6, T. 22 S., R. 62E.
504	Repealing No. 483, establishing schedule, 1976, Jan., cost of living
505	Requesting assistance 701, $44,400
504	Salary exhibits, Repeals Resolution 483; Repealed by Resolution 519. (2.52).
506	Salary for City Manager, City Attorney, City Clerk; Repeals Resolution 390. (2.70).
507	Authorizing administration of Housing Assist. Payment Program
508	Financial assistance, urban street system
509	Approving issuance of $700,000 in G.O. bonds to reimburse City
510	D. Dawson, A. Hyman, C. Harper, D. Vondenbrink, B. Wigglesworth
511	Sec. 17, T. 22 S., R. 63 E.
512	Meadowview Development Co., S. 30, T. 22 S, R. 63 E.

Resolution Number	
513	Authorizing public sale of G.O. bonds, $3,500,000
514	Approved as financial institution, Bank of Nevada & Valley Bank
515	Establishing So. Nev. Committee on Employment of Handicapped
516	Establishing fund for payment of bond principal
517	Luzier, G. C., extending time on Res. NO. 391
518	Approving application for preliminary loan, low/rent housing
519	Salary exhibits; Repeals Resolution 504. (2.52).
520	Unclassified employee benefits; Repeals Resolution 345; Repealed by Resolution 577 and 655. (2.52).
521	Gov't. & Organizations
522	Reuse of tapes after six months and destruction of old tapes (2.04.060 and 2.04.070).
523	Groundwater system, amending No. 496
524	Budge augmentation, $45,000, '76-77, salaries
525	General fund budget, '76-77, revenue sharing
526	Transfer, '76-77 $56,000
527	General fund budget, augmentation '76-77, $111,000
528	Opposing Bill Draft 1-61 and AB-35, consolidation of Mun, & Jus. Ct.
529	Intent to exchange property for Race Track Road r/w
530	Salary exhibits; Repeals Resolution 519; Repealed by Resolution 549. (2.52).
531	Urge construction of F-4 alignment
532	DeSure, Inc., S. 13, T. 22 S., R. 61 E.
533	Intent to transfer, S.29, T.22S., R.63E., Community College
534	Refrain from lowering water level
535	Requesting assistance, $16,310
536	Set aside land sale proceeds from community college for offsite impts.
537	Right of way re: reconstructing Water Street
538	Block 30, Townsite, Boyd, William S.
539	Opposing abandonment of rail line
540	Application for land for O'Callagham Park Development
541	Intent to sell pt. S. 27, T. 22S., R.63 E.
542	State Park funds-Morrell & Robert Taylor School parks
543	Levi-Strauss, setting public hearing
544	Levi-Strauss, issuance of bonds
545	Intent to annex, Richard MacDonald, et al, S.31, T.21S., R.62E
546	Authorizing facsimile signatures

Resolution Number	
547	Microfilming and destruction of records (2.47).
548	Intent to exchange land in Mission Hills and notice
549	Salary exhibits; Repeals Resolution 530. (2.52).
550	Salary exhibits; Repeals Resolution 530; Repealed by Resolution 565. (2.52).
551	Osborn, S. 4, T. 22 S., R. 63 E.
552	Sprouse & Leavitt, S. 33, T. 21 S., R. 62 E.
553	Acquire property for Burkholder Blvd. right of way
554	Allow City to purchase Federal Surplus
555	Intent to annex, Tauri Invest., S. 32, T.21S., R.62E
556	Lorne M. Phillips, 92 & 96 Victor Road
557	A.D. 752, preparation & filing of assessment plat & roll
558	Qualification for Farmer's Home Adm. Grant/New Horizons Ind. Park
559	Osborn, Floyd, Police Chief
560	Richards, Wilbur Don, Fire Chief
561	Doherty, Patrick, Building Superintendent
562	Intent to sell pt. S.32, T.22 S., R. 63 E.
563	Clean air agency (5.20).
564	Sprouse & Leavitt, S. 33, T. 21 S., R. 62 E.
565	Salary exhibits; Repeals Resolution 550; Repealed by Resolution 578. (2.52)
566	Payment card destruction (2.47).
567	Intent to sell pt. S.35, T. 22S., R. 61E.
568	Buster Brown Textiles, Inc., setting public hearing
569	Buster Brown Textiles, Inc., proceed with bond issue
570	Travel expense reimbursement; Repeals Resolution 469; Repealed by Resolution 792. (2.34).
571	Clemons F. Walker, S. 17, T. 22 S., R. 63 E.
572	Glassburn & Corn, S. 4, T. 22 S., R. 63 E.
573	Phillips, S. 18, T. 22 S., R. 63 E.
574	Richard MacDonald, S. 31, T. 21 S., R. 62 E.
575	Tauri Investments, S. 32, T. 21 S., R. 62 E.
576	Scheduling destruction of Parks and Recreation records (2.47).
577	Unclassified personnel; repeals Res. 520 (2.52).
578	Personnel classification and salary schedule; repeals Res. 565; Repealed by Res. 633. (2.52)
579	Hollinger property, S. 20, T. 22 S., R. 63 E.

Resolution Number	
580	Alexander, pt. S. 24, T. 22 S., R. 62 E.
581	Young American Homes, S. 24, T. 22 S., R. 62 E.
582	Establishes salary for City Mgr., City Atty., City Clerk
583	Authorization to file preapplication for Community Block Deve.
584	Authorizing R.E Campbell to sign agreements for r/w-U.S. Gov't.
585	701 application of comprehensive planning assistance
586	Budget augmentation, 1977-78, General fund (Approved 6-5-78)
587	Budget augmentation, 1977-78, Sp. Recreation funds (Approve 6-5-78)
588	Kath Wend, Vera Love, Sec. 33, T. 21 S., R. 62 E.
589	Request Clark County to apportion money for street repair
590	Approve application for funds, Wells & Pittman
591	Land Use, ANC, N-1/2, S. 8, T. 22 S., R. 62 E.
592	Land Use, Richard L. Gross, S. 5, T. 22 S., R. 62 E.
593	Intent to annex, J-Fleck Realty, S.12, T. 22S., R61E.
594	Amend Cooperative Agreement to include CC, LV, NLV, Hend., BC
595	G.O. bonds, sewer & water, $5.5 million, set procedures & election
596	Donald Jim Jensen, S. 30, T. 22 S., R. 63 E.
597	NE-1/4, S. 24, T. 22 S., R. 62 E.
598	U.S. Home, S.8, T-22S., R. 63E.
599	Sanchez, Jr., Manuel, service on Civil Service Board
600	Application for HUD Block Grant
601	Land Use, M.C.L. Ind. Ltd, CAMARLO PARK, S.4, T.22S., R.62E.
602	A.D. 752, setting public hearing
603	Bond canvas-11-7-78-declaring results
604	Darel Phillisp, S. 7, T.22S., R. 63 E.
605	Trueworhty C, S. 18, T. 22 S., R. 63 E.
606	Mile High Assoc., S. 7, T. 22 S., R. 63 E.
607	Intent to exchange 20 acres in S.30&32, T.22S., R.63E. for school
608	Supporting change in Charter Public Trust Law
609	Authorizing application for Second Phase funding
610	Ennis Business Forms, approving application
611	Hesse Corporation, approval of project
612	Public sale of G.O. water bonds, Series 4/1/79, $1,520,000
613	A.D. 752, dispensing with protests
614	Rescinded 4-2-79 duplicated of Res. 596
615	U.S. Homes, S. 1, T. 22 S., R. 62 E.
616	Sprouse & Leavitt, pt- S. 33, T. 21 S., R. 62 E.

Resolution Number	
617	Tri/State Development, S. 33, T. 21S., R. 62 E.
618	Intent to sell 120 acres in S. 29, T.22S., R.63E (Chism request)
619	Equity Corporation, S. 13, T. 22 S., R. 61 E., 122.805 acres
620	Rile, S. 12, T. 22 S., R. 61 E., 81.2 acres
621	McMackin, S. 9, T. 22 S., R. 62 E., 159.82 acres
622	Urging approval of SB 333 Fish & Game Dept. funded from Gen. Fund
623	Establishing service fees for curb loading zones
623	Establishing service fees for curb loading zones. (Repealed by Ord. 1663)
624	Establishing system development capital project fund
624	Establishing system development capital project fund. (2.70)
625	Approving application for II phase HUD Small Cities grant
626	A.D. 752, award contract to Dennett Bros.
627	Camarlo, S. 5, T. 22 S., R. 62 E.
628	Applications for funds to improvement Wells & Pittman School Parks
629	Application for funds for impvts. to Morrel & Robert Taylor Parks
630	Black Mountain Realty, S. 1, T. 22S., R. 62 E.
631	Augmentation 1978-79 general fund and utility fund budgets
632	Intent to sell pt. S.20, T.22S., R.63E., Old Timer's Steelworkers Union
633	Salary exhibits; Repeals Resolution 578; Repealed by Resolution 649 and 698. (2.52).
634	Application for comprehensive planning assistance
635	Burkholder, Lyal, service on Public Trust
636	Royal Crest, Inc., S. 13, T. 22 S., R. 61 E., 50 acres
637	A.D. 752, amend Res. 602, Sec. 5 to adjust boundaries
638	Bench advertising franchise for Jaycees, 5 years
639	Richardson-Leydecker, S. 24, T. 22 S., R. 62 E.
640	Obsolete records, 1953 - 1969, destruction (2.47).
641	A.D. 752, direct engineer to prepare roll
642	Tripoli & Hildreth, S. 5,, T. 22 S., R. 62 E.
643	Establishing an inter-governmental service fund. (2.70)
644	Buster Brown Textiles, Inc., proceed with bond issue, $2,500,000
645	Salary for City Manager, City Attorney, City Clerk; a portion repealed by Resolution 690. (2.70).
646	Halco Co., 160 acres, S. 9, T. 22 S., R. 63 E.
647	Hildreth & Tripoli, (Ridge View PURD), S. 5, T. 22S, R. 62 E.
648	Scheduling destruction of Ambulance records (2.47).

Resolution Number	
649	Salary exhibits; Repeals Resolution 633. (2.52).
650	Amend Res. 239 changing aggregate amount of contract to $5,000
651	Equity Corp., S. 13, T. 22 S., R. 61 E., from R/R to R/1 and R/3
652	Exchange of sites, BLM. 20 acres, Horizon & Greenway, schools
653	Public sale resolution 10/7-79, water & sewer, 10/1/79 series
654	A.D. 752, file assessment roll & set public hearing
655	Employment benefits for unclassified personnel; Repeals Res. 520; Amended by Res. 671; Repealed by Resolutions 729 and 813. (2.52)
656	A.D. 752, dispensing with protests
657	Henderson Mental Health Center, support for grant
658	Authorize City Mgr. & City Clerk to sign land purchase contract
659	Exchange pt. of S. 27, T. 22 S., R. 63 E. for Appaloosa
660	Dawson, Kent, City Attorney
661	Supporting Clark County District Health Board as Health Systems Agency
662	A.D. 754, direct filing prel. plans
663	Clinton Mills, Inc., setting public hearing
664	Polk, Harry, S. 8, T. 22 S., R. 63 E.
665	Authorize City Mgr. to sign application for add'l. 701 funding
666	Riley, Kenneth, pt. S. 12, T. 22 S., R. 61 E.
667	DeMarco, pt. S. 33, T. 21 S., R. 63 E.
668	Support of Horse and dog racing in Henderson
669	Authorization to submit preapplication, Phase II
670	Ina Sullivan, et al., S. 18, T. 22 S., R. 63 E.
671	Salary for Building Superintendent; Amends Resolution 655. (2.52).
672	Nevada Catholic Welfare, S. 17, T.22S., R.63 E., 3 acres
673	Supporting emergency medical services system
674	Broadbent, Robert N. & Williams, Lorin L., Conv. Ctr. funds
675	Intent to sell .67 acres for Mesa lateral, $18,700
676	Consolidated, S.32, T.22S., R.62E
677	Levy Realty Co., 145 acres, S. Lake Mead Drive,
678	Participating as an enTitlement in funding, Justice System Impvt. Act
679	Griswold Castings of Nevada, prel. approval to issue ind. bonds
680	Green Valley Associates, prel. approval to issue ind. bonds
680-A	Municipal Court, scheduling storage & destruction of records (2.47).
681	Sunset Mesa, S. 6, T. 22 S., R. 62 E.
682	J & K Pharmacy (Elliott) S. 19, T. 22 S., R. 63 E.
683	Facsimile signatures repealing Res. 546

Resolution Number	
684	Requesting assignment of 701 funds for Professional Planner pay
685	Funding for comprehensive planning assistance
686	Vista Mobile Home Park, S. 20, T. 22 S., R. 63 E.
687	Warehouse Distribution Service (Nevada)
688	Klinger Family, S. 2 & 3, T. 23 S., R. 63 E., 560 acres
689	Final application Rount III, HUD Small Cities Community Develop.
690	Salary for City Manager, City Attorney, City Clerk; Repeals Resolution 645 and a portion repealed by Resolution 790. (2.70).
691	Terminate Cooperative agreement re: Clark County Reg. Plan. Council
692	Affirmative Action plan adopted. (Repealed by Res. 1650)
693	Supporting motor vehicle emission inspection program
694	Endorsing capital improvements plan for Southern Nevada
695	A.D. 752, authorizing temporary inter-fund loan
696	Supporting jail bond questions, May 27, 1980
697	Illingworth, Morris & Co., Ltd., setting public hearing
698	Salary exhibits; Repealed by Resolution 633; Repealed by Resolutions 727, 728 and 751. (2.52).
699	Illingworth, Morris & Co., Ltd., proceed with issuance of bonds
700	Authorize Mayor & City Clerk to sign agreement w/UP Railroad
701	A.D. 754, directing filing of prel. plans, G.T.E. (New Horizons)
702	Eldorado, Inc., prel. approval
703	Hesse Corp., prel. approval, $500,000
704	Augmentation of 1979-80 general fund, etc.
705	U.S. Home, Summerfield, S. 12, T. 22S., R. 62 E.
706	Committing to upgrade current sewage facilities
707	A.D. 754, provisional order setting public hearing
708	A.D. 792, directing filing of prel. plans
709	Camarlo, Inc., S. 4, T. 22 S., R. 62E., and S.33, T.21S., R.62E.
710	Village Terrace, S. 7&8, T.22S., R.63E, from R/3 to C-1
711	A.D. 754, repealing Res. 707, provisional order setting public hear.
712	Maury Abrams, prel. approval
713	A.D. 754, repealing Res. 707 & 711, provisional order
714	Supporting L.V. Valley Air Quality Implementation plan
715	Authorizing agreement for distribution of EMS training
716	A.D. 792, provisional order setting public hearing
717	Public sale resolution 10-1-80, water, $1,520,000
718	A.D. 801, directing filling of prel. plans

Resolution Number	
719	Greentree at the Bluffs, S.4, T.22S., R.62E
720	Klinger Property, S.2, T.23S., R.63E.
721	Nevada Catholic Welfare, Marian Hall, S.17, T. 22S., R. 63E.
722	Lewis Manor Apartments, S. 17, T. 22 S., R. 63 E.
723	Durable-Midby, S. 30 T. 22 S., R. 63 E.
724	Elliott & Wesson, 5 acres at Pacific & Horizon
725	Mack, Jerome, S.6&7, T.22S., R.62E., from R-1,C-V&M to R-2 and R-3
726	Fleck Realty, S.12, T.22S., R.61E, 60 acres
727	Administrative salaries; Repeals a portion of Resolution 698; Repealed by 791. (2.52).
728	Non-union salaries; Repeals a portion of Resolution 698; a portion repealed by Resolution 751. (2.52).
729	Employment benefits for unclassified personnel; Repeals Resolution 655; Amended by Resolution 882. (2.34).
730	A.D. 754, dispensing with protests
731	Oppose legislation for the abolition of Library Districts
732	Intent to exchange pt. S.21, T.22S., R.63E., R/W Race Track Road
733	A.D. 792, dispensing with protests
734	Reuse of records tapes (2.04).
735	Metropolitan Development Corp., 87.121 acres
736	A.D. 754, dispensing with protests
737	Supporting design and construction of Sunset Road
738	A.D. 803, provisional order resolution, Repealed by Res. 747
739	Repeal Res. 737, support design & construction of Sunset Road
740	Close of Beatty Dump Site & controls on nuclear waste
741	Intent to exchange pt. S.9, T.22S., R.62E., 2.938 acres, Reservoir site
742	A.D. 754, award contract 80-81*06, New Horizons Ind. Park
743	Riley, Jac, preschool, Gov. Lot 2, S.6, T.22S., R.62E.
744	A.D. 792, deleting Unit No. 2 water improvement
745	Revised application for 1981 HUD preapplication
746	A.D. 803, deleting areas outside Henderson City Limits
747	A.D. 803, repealing Res. 738, making provisional order
748	Fleck, S.12, T.22S., R.61E., Repealing Res. 726
749	Sepede, Child Care Facility & offices, S.19, T.22S., R.63E.
750	Augmentation of 1980-81 general fund, etc.
751	Salary exhibits; Repeals a portion of Resolution 698; Repeals Resolution 728. (2.52).

Resolution Number	
752	Charter Change, Sec 1.040, realignment of Wards by population
753	Manual and facsimile signatures for bank purposes
754	Camarlo, S. 4., T.22S., R.62E., from R-1 to R-3
755	Zenoff, Murray, for his roll in development & growth of Henderson
756	A.D. 792, awarding contract
757	Coplin, Donald S., CPA-Medical Bldg, Ocean Ave. & Haynes Dr.
758	Continental Minerals Corp., setting public hearing
759	Provisions on bond issuance for project assistance (2.56).
760	Continental Minerals Corp., proceed with issuance of bonds, $3,000,000
761	Highfill, S. 4, T.22S., R.63E., 90 acres, Z-2-81
762	Lewis Manor Apts., prel. approval
763	Scheduling utility billing ledgers for destruction after microfilming (2.47).
764	Receipts, scheduling destruction of office copy issued by CDD (2.47).
765	V. T. Development, S. 13, T. 22 S., R. 62 E., 16.6375 acres
766	Graham, Leila G., retirement
767	Lewis, Claude L., retirement
768	Petitioning State of Nev. Trans. Dept., signals at Horizon & Bldr.
769	A.D. 803, modification of plans and specs, public works to file
770	A.D. 803, repealing Res. 764 & 747, setting public hearing
771	Providing for augmentation of budget
772	August Investments, prel. approval
773	Real and facsimile signatures, Repeals Res. 683 and 753
774	Authorize City Mgr. to execute documents for Mesa Reservoir project
775	Cabrillo Terrace, S. 17, T.22S, R.63E., from R/1 to R-3
776	Radec Group, S.25, T.22S., R.62E., Crestway Drive
777	Lounsbury HD, S.13, T.22S., R.61E., from R-R to R-2
778	Williams, Evan, Taylor Apts, D&H Invest.,
779	Lewis Homes, S.32, T.22S., R.63E., 111.5 acres, R-R to R-1
780	Authorize City Mgr. to sign and file Step III, EPA grant
781	Approving submission of application for Small Cities Grant
782	Authorizing Housing Rehab Coord. to sign loan agreement
783	Joint request for RTC designated as Metro Planning Organization
784	De Marco, pt. S. 28, T.22S., R.63E., R-1 to C-2, 301 W. Lake Mead
785	A.D. 803, disposing of protests
786	A.D. 801, directing filing of prel. documents
787	Intent to sell, pt. S.33, T.22S., R.63E. to Nev. Power for sub-station
788	Augmentation of 1980-81 budget

Resolution Number	
789	Cable TV, non-exclusive franchise, term not to exceed 20 yrs.
790	Salary for City Manager, City Attorney, City Clerk; Repeals a portion of Resolution 698; Repealed by a portion of Resolution 793. (2.70).
791	Personnel Classification and Salary Schedule; Repeals Res. 727; Amended by Res. 883 and 847; Repealed by Resolution 964. (2.52).
792	Travel expense while on city business
793	Salary for City Manager, City Attorney, City Clerk; Repeals a portion of Resolution 790. (2.70).
794	A.D. 801, provisional order resolution
795	Lewis homes, pt. S.31, T.22S., R.63E.
796	August Development, setting date for public hearing
797	A.D. 812, directing public works director to file prel. plans
798	A.D. 812, provisional order setting public hearing
799	August Development, proceed with issuance of bonds
800	American Business Supply, Inc., set public hearing
801	Equity Corporation, prel. approval of application
802	Bedich & Schroeder, Z-13-81, pt. S.6, T.22S., R.62E.
803	A.D. 801, dispensing with protests
804	Scott, Betty for efforts in bring Community College campus to City
805	A.D. 815, filing prel. plans and cost estimates
806	A.D. 815, provisional order resolution
807	Facsimile signatures, repealing Res. 773
808	Authorize City Mgr. to execute documents for R/W from U.S. Gov't. (2.70)
809	American Business Supply, Inc., proceed with bond issue
810	Henderson Health Care Center, setting public hearing
811	Henderson Health Care Center, $4,500,000
812	Petition Board of Co. Com. to impose 2cts/gal. tax on gas, 12/6/82
813	Establishes benefits to certain appointed personnel, re: vacation
813	Annual leave for City Manager, City Attorney, City Clerk; Repeals a portion of Resolution 655. (2.70)
814	A.D. 815, dispensing with protests
815	Network, Int'l. Dev., Inc., pt. S.32, T.21S., R.62E.
816	Henderson Health Care Center, proceed with issuance of bonds
817	Best Products Co., Inc. setting public hearing
818	Americare Health & Care Facility, public hearing, $2,800,000
819	St. Rose de Lima Hospital, public hearing
820	A.D. 813, public works director to file plans & assessment roll

Resolution Number	
821	A.D. 813, provisional order resolution
822	Equity Corp., Paradise Golf & Country Club, S.5, T.22S., R.62E.
823	A.D. 812, dispensing with protests
824	Augmentation of 1981-82 Utility fund budget
825	Best Products, Inc., proceed with issuance of bonds
826	Americare Health & Care Facility, proceed with issuance of bonds
827	St. Rose de Lima Hospital, proceed with issuance of bonds
828	A.D. 754, determining cost to be assessment
829	A.D. 754, filing assessment roll & setting public hearing
830	A.D. 792, determining cost to be assessment
831	Publication of notice to issue bonds
832	A.D. 792, filing assessment roll & setting public hearing
833	Facsimile signatures adding John F. Marchiano
834	McHaffie, 40 acres, Denning & Patrick, S.33, T.21S., R.62E.
835	McHaffie, Charles, 40 acres, S.33, T-21 S., R.63 E.
836	Asten, Neal and Lorraine for toys
837	Smith Food King for advertising City of Henderson
838	Petition County Commissioners to improve Duck Creek
839	A.D. 792, overruling protests
840	A.D. 754, overruling protests
841	Authorize issuing of G.O. sewer bonds, $2,500,000
842	A.D. 803, direct preparation of prel. assessment roll
843	A.D. 803, cause assessment roll to be filed & set public hearing
844	A.D. 801, provisional order
845	A.D. 813, dispensing with protests
846	Knudsen, Industrial Laundry, prel. approval
847	Salary exhibits; Amends Resolution 791. (2.52).
848	A.D. 801, dispensing with protests
849	Authorization to submit grant application
850	G.O. sanitary sewer bonds, requesting State Treasurer to make loan
851	A.D. 803, Repealing Res. 769, 770, 785, 842, 843
852	A.D. 803, direct public works director to file plans, specs & plat
853	A.D. 803, approving plans and setting public hearing
854	Augmentation of 1981/82 budget
855	Promotions to attract high technology industries to Henderson
856	A.D. 801, set public hearing
857	Apportionment of share of County General fund for streets

Resolution Number	
858	A.D. 792, bond sale resolution
859	Polk, Harry, Z-23-81, S. 8, T. 22 S., R. 63 E.
860	Bagley, Melvin, Z-1-82, 45 acres in S.33, T. 21 S., R. 63E.
861	A.D. 803, direct filing of assessment roll
862	A.D. 803, dispensing with protests
863	Scheduling destruction of obsolete room tax and business license records (2.47).
864	A.D. 801, Notice of intent to authorize short-term financing
865	A.D. 803, Notice of intent to authorize short-term financing
866	A.D. 812, Notice of intent to authorize short-term financing
867	A.D. 813, Notice of intent to authorize short-term financing
868	A.D. 815, Notice of intent to authorize short-term financing
869	Twitchell, Neil for serving on Planning Commission
870	Building Safety Week, April 18 - 24
871	A.D. 801, Authorizing short-term financing
872	A.D. 803, Authorizing short-term financing
873	A.D. 812, Authorizing short-term financing
874	A.D. 813, Authorizing short-term financing
875	A.D. 815, Authorizing short-term financing
876	Henderson Community Health Center, authorize to executed documents
877	A.D. 803, causing assessment roll to be filed, set public hearing
878	A.D. 801, dispensing with protests
879	All districts, establishing surplus & deficiency fund. (2.70)
880	A.D. 745, installment rate resolution
881	A.D. 792, installment rate resolution
882	Lists Convention Facilities Manager; amends Res. 729 (2.34).
883	Amends Exhibit G Res. 791 (2.52).
884	A.D. 803, dispense with protests
885	A.D. 801, direct preparation of assessment roll
886	A.D. 801, provide for short/term bonds, $1,500,000
887	A.D. 813, award contracts to responsible bidder
888	Jensen/Kennedy, S. 4, T. 22 S., R. 63 E., 5.17 acres, Z/4-82
889	A.D. 815, award bid to Frehner Construction Co. of Las Vegas
890	A.D. 812, award bid to Nevada Rock and Sand of Las Vegas
891	A.D. 803, awarding contracts
892	Convention Center; establish enterprise fund. (2.80).
893	A.D. 812, short term financing

Resolution Number	
894	A.D. 813, short term financing
895	A.D. 815, short term financing
896	A.D. 803, short term financing, $4,930,000
897	Municipal utility bonds interest rate resolution
898	Nordeen, Ronald
899	McNeal, Stanford
900	Augmentation 1981-82 Engineering & Utility funds
901	Request for "Dry Lake" area in Eldorado Valley for future open space
902	G.O., direct City Clerk to notify Clark County G.O. Commission
903	Z-6-82, S.9, T.22S., R.62E., Nuevo extended & Merida, 24.37 acres
904	N.H.1, Ltd., prel. approval of application
905	G.O., bond election resolution, submission of questions
906	Smith, Robert (Hal) on retirement from Burrows, Smith & Co.
907	Gray, Dr. Guild on retirement from Burrows, Smith & Co.
908	Convention Center; establish petty cash fund. (2.80).
909	Land fund; use of monies; Superseded by Resolution No. 962. (2.70)
910	Intent to award garbage contract
911	Solidyne Project, to assume Buster Brown responsibility
912	Las Vegas Transit, supporting their proposed route
913	Petitioning U.S. Army Corps of Engineers to conduct studies
914	A.D. 801, direct filing of assessment roll
915	A.D. 801, changing time of public hearing
916	A.D. 803, public bond sale
917	Sunset Marine & Tackle, S.4, T.22S., R.63E.
918	Equity Corp., Z-10-82 from R-1 to C-V and R-2
919	G.O., canvass of votes 11/2/82 election
920	West Coast Holdings, Z-12-82, 10 acres, R-R to R-3, 4-plex condos
921	U.S. Home, Z-8-82, 23.26 acres from R-R & R-2 to R-3
922	Americare Health & Care Facility, revenue bonds, $2,500,000
923	A.D. 801, dispensing with protests
924	A.D. 803, assessment installment rate resolution
925	Cox, Mary Burns, Z-5-82, pt. S.8, T.22S., R.63E, R-1 to C-1
926	Valley View Moratorium on zoning
927	Convey 8.5519 acres to Green Valley Investment, S.18, T.22S., R62E.
928	Exchange 46.387 acres with 83.61 acres owned by BMI for RIB Site
929	Supporting the tourism industry in Southern Nevada
930	A.D. 813, assessment roll resolution

Resolution Number	
931	A.D. 813, assessment hearing resolution
932	Marker, Donald M., pt. S. 4, T.22S., R.63E., R-R to C-2
933	Authorize agreement w/Nev. League of Cities for computer services
934	Logos Scientific, Inc., fixing date of public hearing, $1,500,000
935	Logos Scientific, Inc., determination to proceed;
936	Opposing repeal of Construction Tax, A.B. 151 (1983)
937	Urge Co. Commissioners to enforce regulations for BMI
938	Fingerprint cards; establish fees for issuance of each card by Henderson Police Department. (Repealed by Ord. 1268)
939	A.D. 813, overruling protests, validating assessment roll
940	A resolution for real and facsimile signatures, repeal Res. 833 (Repealed by Res. 1564)
941	A.D. 801, 4-1-83A Public Sale Resolution, $1,324,975
942	Intent to grant non-exclusive franchise, CATV (Misco, Inc.)
943	St. Rose de Lima Hospital, authorize issue & sale, $3,800,000
944	Endorse a one-quarter percent tax for transit
945	Support Foundation for Resource Gains through Eng. for UNLV
946	Support reopening of Las Vegas Downs Racetrack
947	Declare National Building Safety Week, April 18 - 24
948	Authorize City Mgr. and Planning Director to sign escrow checks; Superseded by Resolution No. 990. (2.70)
949	A.D. 801, post sale interest rate
950	Support highway over Colorado River & more power from Hoover Dam
951	A.D. 801, assessment installment rate
952	A.D. 801, 4-1-83B Public Sale Resolution, $30,000
953	A.D. 801, post sale interest rate
954	Urging Federal Government to re-authorize
955	Authorize application for funds for Morrell Park Imp.
956	Paint-up, Fix-up & Clean-up Month; Mayor authorized to proclaim
957	Kushner, pt. S. 9, T. 22 S., R. 62 E., 80 acres
958	Ross, Anthony, pt. S.6, T. 22 S., R. 62 E., ROI to annex
959	Support Henderson Assoc. for Senior Citizens Housing
960	Support to retain FSS at McCarran International Airport
961	U. S. Home Corporation/pt. S9, T.22S., R.63E./R-R to R-1, R-2
962	Land fund; use of monies; supersedes Resolution 909. (2.70)
963	1982-83 Budget Augmentation

Resolution Number	
964	Personnel Classification & Salary Schedule; Repeal Resolution 791; Repealed by Resolutions 1027, 1034, 1035 and 1112. (2.52).
965	Business License records; scheduling and destruction (2.47).
966	A. D. 824, declaring necessity of water project; two units
967	A. D. 824, provisional order resolution
968	Request Co. Commissioners to apportion share of County General Fund
969	Bagley, Melvin D./Z-3-83/pt. S.33, T.21S., R.63E./R-R&R-A to R-1
970	Pacific Malibu Dev. Co./Z-6-83/pts. S14,15,22,23, T.21S., R.63E.
971	Community Church/Z-4-83/pt. S.19, T.22S., R.63E./R-E to CV
972	Travel expense reimbursement; establish rates of payment for City employees and City Council; Repeal Res. 792. Repled by Res. 1504 (2.34).
973	A.D. 824, dispensing with protests; direct DPW to file cost, maps,
974	Support 1983 Property Tax Question
975	Pacific Malibu Corp./"The Lake"; approval of master plan
976	Pacific Malibu/"The Lake"/approval of PIT Res. No. 33
977	A.D. 824/Short-term financing; Notice of Intent to authorize
978	10-1-83 Public Sale Resolution/$5,100,000 GO Various Purpose
979	Urge Dept. of Tax to deny request of Clark County not to pay
980	A.D. 812/Assessment roll resolution
981	A.D. 812/Assessment hearing resolution
982	A.D. 815/Assessment roll resolution
983	A.D. 815/Assessment hearing resolution
984	A.D. 824/Short-term financing; authorized
985	Townsite Area Neighborhood Group, S.18, T.22S., R.62 E.
986	City Manager authorized to sign federal grant applications & grants. (2.70)
987	A.D. 812/Overruling protests; confirm assessment roll
988	A.D 812/Assessment ordinance
989	Whitney Mesa 40 Ltd./Z-10-83/R-R to T-E/S.32, T.21S., R.62E.
990	Authorize Fiscal Project Adm. and/or City Mgr. to sign checks; Supersedes Resolution No. 948. (2.70)
991	A.D. 824/Contract award resolution/K. W. Pipeline, Inc.
992	Racetrack Properties/pt. S.21, T.22S., R.63E. to R-3
993	Hulsey, Tony/pt. S.6, T.22S., R.62E. to C-2
994	Riley, Jack and Western Holding Co./pt. S.6, T.22S., R.62E. to C-2
995	Henderson, John/Planning Commission service - 24-1/2 years

Resolution Number	
996	Henderson Assoc. for Sr. Citizen Housing/pt. S.17&20, T.22S., R.63E.
997	MacDonald, Richard/Z-17-83/pt. S.32, T.21S., R.62E.;
998	A.D.812, 813 & 815/Temporary interfund loan; authorization of
999	Collins Brothers/Z-16-83/pt. S.13, T.22S., R.62E.; R-A to R-2
1000	A.D. 812, 813, & 815/Public Bond Sale/$876,000
1001	Pittman Water Main/City Atty. authorized to condemn
1002	Kushner, pt. S. 9, T. 22 S., R. 62 E., 80 acres
1003	A.D. 824/Temporary interfund loan authorized
1004	Collins Brothers/Z-16-83/pt. S.13, T.22S., R.62E.;R-A to R-2
1005	A.D. 812/Assessment installment rate, establish
1006	A.D. 813/Assessment installment rate, establish
1007	A.D. 813/Assessment installment rate, establish
1008	Assessor's Office/reopen Henderson Branch
1009	Senior Citizen's Ombudsman, Henderson to cooperate with
1010	A.D. 821, directing preparation of plans, specs, plats, etc.
1011	A.D. 821, provision order resolution; set public hearing 3/19/84
1012	In lieu of taxes payment from Federal Gov't; request from County
1013	Collins Brothers/Z-3-84/pt. S.13, T.22S., R.61E.; R-R to R-1
1014	Lincoln Property Co./$15,250,000/preliminary approval
1015	A.D. 821/Temporary interfund loan authorized
1016	Citcorp; urged to move to Nevada
1017	Real and Facsimile signatures; repeal Res. No. 940 (Repealed by Res. 1564)
1018	A.D. 821, disposing of protests
1019	A.D. 824, determining costs to be assessed; prepare assess. roll
1020	Lopez, J. Eduardo/Z-4-84/pt. S.18, T.22S., R.63E./R-1 to C-1
1021	A.D. 824, assessment hearing
1022	Annex Int/C.P. Estates/SE 1/4 of NE 1/4 of Sec 9, T22S, R62E MDB&M
1023	1983-84/Augmentation
1024	A.D. 821, Award of Contract
1025	A.D. 821, Assessment Roll
1026	A.D. 824, Dispensing with Assessment Protest
1027	Personnel Classification & Salary Schedule; Exhibits A, B, C, D., F, and G dated 7/1/84; Repealed by Resolution 1095, 1034, 1112. (2.52).
1028	Clark County/A-95 Clearinghouse Council
1029	Richardson & Maestas, NE 1/4 of Sec 24, T22S, R62E, MDB&M, Z-5-84
1030	Black Mtn. Enterprises/Sec 7 & 8, T22S, R63E, MDM, Z-6-84

Resolution Number	
1031	Prisoner Housing for Boulder City
1032	Temporary Interfund Loan - HUD
1033	Fuel Tax Ballot Question
1034	Personnel Classification & Salary Schedule; Exhibit Fa dated 7/1/84 and 7/1/85; Police personnel; Repeals Res. 964; Repealed by Resolution 1095. (2.52).
1035	Personnel Classification & Salary Schedule; Exhibit E dated 7/1/84 and Exhibit E-a dated 7/1/85; Fire personnel; Repeals portion of Res. 964; Repealed by Resolution 1095. (2.52).
1036	City Manager/Selection Committee
1037	The Lake Project
1038	Eng. & Computer Science School at UNLV, Support of
1039	Bilbray, NW 1/4 of NE 1/4 of Sec 33, T21S, R62E, MDB&M, Z-8-84
1040	Mayor Zike, Prudential-Bache award for Outstanding Elected Official
1041	Department of Taxation/Intergovernmental Agreement w/State
1042	Advertising Benches
1043	Collins Bros./NW 1/4 of Sec 13, T22S, R61E, MDM, Z-9-84
1044	County Road Tax
1045	Flood Relief
1046	Request assist. from Cong. Delegation for severe flood control
1047	S 1/2 Sec 29, T22S, R63E, MDB&M; NW 1/4 Sec 30, T22S, R63E MDB&M
1048	Industrial Revenue Bonds
1049	City of Henderson, Sec 33, T21 S, R63E, MDM from R-R to C-2,
1050	Opposing widening of Pacific Street, City Council
1051	Townsite Zoning Guidelines
1052	The Lake Project
1053	NHP assumes primary respon. for accident invest. on US93 and S146
1054	City of Henderson, Sec 18, T22S, R63E, MDM, from R-2 to C-2
1055	Flood Control Bonds in the amount of $1,200,000
1056	Master Plan Guidelines, Townsite areas & future zone changes
1057	Hoover Dam Power, allocation Post 1987 Hoover Dam Elect. Pwr & Enrgy
1058	Clark County RTC for bond issue Clark County Sts & Hwy Impvts
1059	Pursuit of key economic dev. projects to build City's image
1060	Sky Harbor Airport Fuel Tax, exempt from fuel tax increase
1061	Cooperative Agreement to provide sewer service to 3981 Sunset Road
1062	Cooperative Agreement to provide sewer service to 3931 Sunset Road

Resolution Number	
1063	Cooperative Agreement to provide sewer service to 3981 Sunset Road
1064	Cooperative Agreement to provide sewer service to 3931 Sunset Road
1065	A.D. 821, Assessment Roll
1066	A.D. 821, Assessment Roll Hearing
1067	Non-exclusive franchise for Oper. & Maint. of a Taxi Service
1068	Sec. 34, T22s, R63E MDM; Sec 34, T22S, R63E, MDM for Fed. Hwy
1069	Set aside req. typical offsite impvts in certain rural neighbrhds
1070	Keep America Beautiful Program, autho. pmt of Cty's share of cost
1071	A.D. 821, Overrule complaints, protests & objections at ass. roll
1072	A.D. 824, Short Term Loan from L.I.D. revolving fund
1073	Interfund Loan; Utility fund to Wste Wtr Trmnt Cap. Projects Fund
1074	Support of Clark County School District's Pay As You Go Plan
1075	Consolidated, provide revisions in the cond. of approval, Z-20-79
1076	Petition UPRR to reconsider abandoning spur from BMI to Bldr Cty
1077	Green Vlly Ptnrshp, prelim. approval issuance of Ind. Rev. bonds
1078	A.D. 821, Bond Sale; 5-15-85 Public Sale Resolution
1079	Utility Storage & Distribution Facilities, Cty-owned facilities
1080	Support of June 14 as National Flag Day
1081	A.D. 824, Short Term Financing, Notice of Intent to authorize
1082	Support Clrk Cnty School District placement of bond quest. on ballot
1083	Western Capital, Sec 32, T21S, R62E, MDM from C-2 to R-3, Z-1-85
1084	Collins Brothers, Sec. 13, T22S, R61E, MDM R-R to R-4, Z-2-85
1085	Collins Brothers, Sec. 13, T22S, R61E, MDM from R-R to C-1, Z-3-85
1086	A.D. 821, Authorization of Temporary Interfund Loan
1087	Public Sale of Fire Protection Bonds in amount of $925,000
1088	City of Henderson, W 1/2 Sec 18, T22S, R62E, MDB&M, Z-4-85
1089	A.D. 824, Short Term Loan from LID Revolving Fund
1090	Gold Bond Ice Cream, Transfer portion of Bond Allocation
1091	Budget Augmentation 1984-85,
1092	Bond Refunding, City's Gen. Oblig. Sanitary Sewer Refunding Bonds
1093	A.D. 834, Autho. Int.-free Int'fund Loan from LID Revolving Fund
1094	Self insurance account; establish. (2.65)
1095	Personnel Classification & Salary Schedule; Exhibits A, B, C, D, E, F, F-A dated 7/1/85; Amend Resolution 1027; Repeals Resolutions 1034 and 1035. (2.52).
1096	Desert Gardens Adult Community, approve issuance of Ind. Rev. Bonds
1097	Gold Bond Ice Cream, approve issuance of Ind. Rev. Bonds

Resolution Number	
1098	J.J. Ltd., Sec. 12, T22S, R61E, MDB&M from R-2 to R-3, Z-5-85
1099	Naming Henderson Freeway Nevada, Joint reso. with Las Vegas
1100	Whitney Ranch, Inc., S.4, T22S, R62E; S.33, T21S, R62E, MDB&M, Z-7-85
1101	French Village, Inc., prelim. approval issuance of Ind. Rev. Bonds
1102	ICG, W 1/2 of Sec. 6, T22S, R62E, MDB&M from R-R to R-3, Z-9-85
1103	Maximum Security Prison in White Pine County Nevada
1104	Reuse of magnetic tapes, cassettes and other recording material (2.04).
1105	French Village, Inc., prelim. approval issuance of Ind. Rev. Bonds
1106	NV, Am. Resident Prop.; prelim. approval issuance of Ind. Rev. Bonds
1107	Vacation Opposition Duck Creek Estates, City of Henderson's request
1108	A.D. 834, Prepare and file with Cty Clk prelim plans, costs, etc.
1109	A.D. 834, Provisional Order for Sunset Road IV, impvts to street
1110	Gold Bond Ice Cream, extend transfer certificate for 45 days
1111	Lincoln Pueblo Verde Limited Partnership, issue Ind. Rev. Bonds
1112	Personnel Classification & Salary Schedule; Exhibits A, B, C, D, dated 7/1/85 and Exhibits A, B, C, and D dated 1/1/86; Repeals Resolution 964 and Resolution 1027 (2.52).
1113	Gold Bond Ice Cream, 2nd Ext. of Cert. & partial transfer of bonds
1114	Collins, Edward A.; Issu. Ind. Rev. Bonds thru NV Pub. Impt. Trust
1115	School Bond Election; Pay-as-you-go supported by City of Henderson
1116	LID 834/Dispensing with Protests; Sunset Road IV
1117	Collins-Vance/Z-12-85/Sec. 16, T22S, R62E, MDB&M; R-R to T-E
1118	DMV Service; expanding DMV licensing services in Henderson
1119	A.D. 818, Authorize temporary interfund loan for LID 818
1120	Clark County/208 Water Quality Management; water mgt in Henderson
1121	R.S. Development/Z-13-85/Pt. Sec. 8, T22S, R62E MDM; R-R to R-1
1122	Kern River Gas Transmission Line/FERC meeting
1123	LID 834/2nd Provisional Order Hearing Resolution; set public hearing
1124	Kingdom Hall Land Exchange; NE 1/4 of Sec. 29, T22S, R63E, M.D.M.
1125	Zone Change Z-1-86/Sec 25, TwwS, R62E, M.D.M.; R-R to R-1
1126	Library Lease/S 1/2 of SE 1/4 of Sec. 18, T22S, R63E, M.D.M.
1127	Public Imp. Trust Funds/Melvin Bagley; form Pub. Fac. Impvt. Dist.
1128	Preferred Equities, notice of Intent to finance purchase; short term
1129	Bonds/The "Tax Bill"/opposing of certain provisions of H.R. 3838
1130	Bonds/A.D. 834/Dispense with protests on LID 834
1131	Mission Hills/Substandard Lot 82/Sell to abutting owner; lot 83

Resolution Number	
1132	Legislation/City's position re: annexation & de-annexation
1133	A.D. 821/Interim assessment installment rate resolution
1134	Windham Hill/Western Holding Co./pt. S. 13, T.22, S., R. 61 E.
1135	Streets/Imp./Sunset Road IV/LID 834
1136	Approve ballot question autho. 0.25% tax-retail Sales; Clark County
1137	Clark County/208 Water Quality Management; Repeal Res. 1120
1138	A.D. 834/Assessment Roll resolution
1139	A.D. 834 Assessment Hearing resolution
1140	A.D. 834/Interfund loan authorization
1141	Water and Sewer Funds separated
1142	Clark County/Las Vegas Conve. & Visitors authority; GOP Nat'l Conv.
1143	Fire Station #4/Intent to sell
1144	A.D. 821/Short term loan from LID Revolving fund
1145	Sanitary Sewer Bonds
1146	Water Impvt. Bonds
1147	Street Impvt. Bonds
1148	Boulder Highway Improvement Bonds
1149	Fire Protection Bonds
1150	LID 851 Short term financing
1151.	LID 834 (Sunset Road IV)/Dispensing with protests on assessment roll
1152	Union Pacific Railroad/Coop Agrmt bet. Hend., Bldr Cty & State of NV
1153	Zoning/Henderson Industrial Park/Z-9-86
1154	Zoning/American Nevada Corporation & Mack/Z-10-86
1155	Augment 1985-86 Fiscal year budget
1156	A.D. 834/Interfund Loan
1157	Interlocal Agreement re: Museum Rd. & Sausalito Drive
1158	Yucca Mtn. Pre-Site Studies for Nuclear Waste Repository
1159	Interlocal Agreement re: Reg. Flood Control Dist. interim financing
1160	Sewer Bonds; $4,000,000; Resolution of Intent to issue bonds
1161	Water Bonds; $5,000,000; Resolution of Intent to issue bonds
1162	General Obligation Various Purpose Bonds; 9-2-86 Bond Election Res.
1163	Agreement pertaining to the railroad tracks
1164	Memorandum of Understanding for Rental Rehab Program w/Clark County
1165	Permanent & Temporary Right-of-Way for street & roadway; U.S. 95
1166	Flood control element; Hend. Comp. Plan; Plan. Comm. Res. 1-86
1167	Master Plan/Amendment Procedures

Resolution Number	
1168	Master Plan/Adopt all existing parts of Comp. Master Plan
1169	Support a Clark County Commission as voting member of NDA Board
1170	Sanitary Sewer Improvement Bonds
1171	Water Improvement Bonds
1172	Interlocal agreement with City and Library re: bidding & construct.
1173	Intent to lease premises at 1608 Moser to Henderson Boys' Club
1174	LID 818
1175	Opposing shifting of authority to make basic spending decisions
1176	Certify Bond Questions from 9-2-86 primary election
1177	11-1-86 Public Sale for GOB Bonds; $3,500,000
1178	LID 818/Repeal Res 1174 and Re-initiate Resolution
1179	Black Mountain transmitter site; Sec 25, T22S, R62E, M.D.M.
1180	Intent to exchange land in S.1, T.22S., R.62E., CC School District
1181	Burkholder Lighted Baseball Field Project; $100,000 State Grant app.
1182	Berry Plastics; Prelim. approval for issuance of Ind. Rev. Bonds
1183	Berry Plastics; Transfer portion of Bond Allocation—State to project
1184	Intent to lease Premises at 1640 Price Street to Henderson Library
1185	LID 861/Initial resolution
1186	Mattern/Z-15-86/CV to R-1 & R-E/Sec 25 & 36 T22S, R61E
1187	LID 862/Green Valley Parkway
1188	Radio Communications Trunking System
1189	Comp. Plan/Amendment/CPA-3-86/Amer. Nev. Corp.
1190	Mommer, et al/Z-11-86/Sec 24, T22S, R62E/R-R to R-1 (Repealed by Ord. 1383)
1191	Glover, C. Neil/Z-18-86/pt. S.13, T.22S., R.61E./RR to C-1, R-3
1192	Support Railroad Feasibility study by Short Line Enterprises
1193	Support Las Vegas' bid for 1992 IIMC Convention
1194	American Nev./Z-3-86/CV to R-E/pt. S.21&22, T.22S., R.62E.
1195	American Nev./Z-29-86/S.3,8,17, T.22S., R.62E.
1196	Support Las Vegas hosting 1987 National League of Cities Conv.
1197	LID 862/Supplemental initial resolution adding Athens
1198	Zaidenberg, Harry/Z-20-86/pt. S9, T.22S., R.62 E.; from R-R to R-1
1199	Railroad and Airport power; own, control and operate
1200	Support continuance of 474th Fighter Wing at Nellis Air Force Base
1201	Reso. adopting Interlocal Contract for const. of Cty Hall & Library
1202	LID 862/Amend & supplement Reso. 1187 adding part of Green Vlly Pky
1203	Comp. Plan/Amendment/CPA-4-86/MacDonald, Richard C.

Resolution Number	
1204	Elections/Municipal elections; authorize City Clerk to conduct
1205	Fire Station #4/3101 Highview/intent to sell
1206	Preferred Equities property/S. 4, T. 22 S., R. 63 E./intent to sell
1207	LID 834 and 821; 8-1-86 Public Sale Resolution
1208	LID 821/Assessment Installment Rate resolution
1209	LID 834/Assessment Installment Rate resolution
1210	Intent to sell 227 Water Street
1211	Comp. Plan/Fees for processing comp. plan amendments
1212	Question to be placed on the 5/5/87 ballot for Bldr. Hwy. Beaut. Proj.
1213	Street and Highway Construction $85 Million Bond Issue, support of
1214	Refinancing bonds
1215	Grants Equal to Taxes provisions of the Nuclear Waste Policy Act '82
1216	U. S. Home/Z-3-87/resolution of intent/S.12, T.22S., R.61E./R-R to R-1
1217	Riley, Jack/Z-4-87/resolution of intent/S.6, T.22S., R.62E./R-R to R-3
1218	Comp. Plan/Amendment/CPA-1-87/Central Real Estate, Inc.
1219	A.D. 862/Temporary interfund loan
1220	Fire Station #4/3101 Highview/intent to sell
1221	CREC/Sharp, et al/Z-5-87/S.32, T.21S., R.62E./R-R to MP
1222	CCSD/Burkholder Jr. High Ball Field/Exchange
1223	Self Insurance Fund/establish internal service fund
1224	Support Henderson Assoc. for Senior Citizens Housing, Phase II
1225	NDOT construction improvements for W. Lake Mead Drive
1226	Pacific, east side and north of Middleton Dr./applic. for r/w
1227	Preferred Equities property/S. 4, T. 22 S., R. 62 E./intent to sell
1228	Budget Augmentation, 1986-87 & self-insurance internal serv. fund
1229	Accepting ownership rights to a portion of the Railroad
1230	Comp. Plan/Amendment/CPA-4-86/MacDonald, Richard C./Amend Res. 1203
1231	Comp. Plan/Amendment/CPA-4-87/American West
1232	Zone Change/Marker Family Trust/Z-7-87/S.4, T.22S, R.63E to C-2
1233	Zone Change/Del Rich Development, Inc./Z-8-87/S.9, T.22S, R.63E
1234	Intent to sell 227 Water Street
1235	Zone Change/American West/Z-9-87/S.12, T.22S, R61E
1236	Zone Change/American West/Z-12-87/S.4, S.23, S.33, T.22S, R.63E
1237	Zone Change/Sousoures, William/Z-11-87/S.13, T.22S, R.61E
1238	Zone Change/U. S. Home/Z-15-87/S.9, T. 22 S., R. 63 E./R-R to R-1
1239	Zone Change/Benson, et al/Z-13-87/S.13, T. 22 S., R. 61 E. R-R to R-3

Resolution Number	
1240	Zone Change/Barnum/Z-16-87/S. 19, T. 22 S., R. 63 E./R-E to C-1
1241	Comp. Plan/Amendment/CPA-2-87/Esposito, Leonard T.
1242	Legislative/Citizens Committee to assist in selecting Architect
1243	Comp. Plan/Zone Change/American West/Correct technical errors
1244	Exchange/Henderson Temple Assoc./Exchange 0.4777 acres for 0.340 ac.
1245	Petitioning County to increase number of rep. on S.N.Co.E. of HC
1246	Affirmative Action Plan/Equal Opportunity Policy/Adoption of (Repealed by Res. 1650)
1247	Lake Mead Corridor/support Citizens Committee recommendations
1248	Green Valley Homes Assoc./Z-14-87/S.6, T.22S., R.62E./C-1 to R-3
1249	Arroyo Grande Dev./Z-18-87/S.16, T.22S., R.62E./R-R to R-3, R-4 & C-1
1250	Plaster Dev./Z-19-87/S.12, T22S., R.61 E./R-r to R-1 and C-1
1251	Comp. Plan/Amendment/CPA-5-87/MacDonald, Richard/S.32, T.21S, R.62E
1252	Sale of 3101 Highview/Lot 1, Block 1 of Mission Valley, Phase 1
1253	Nuclear Waste Transportation Research Center/Support location at UNLV
1254	MacDonald, Richard/Z-20-87/S.32, T.21S, R.62E/R-R & C-2 to R-3
1255	United Pens. Mort., Ruliffson, D. & Day, L. & P./Z-23-87 to R-E
1256	Opposition to granting of Use Permit UC-243-87 in Sections 4 & 5
1257	Hazardous waste/Eldorado Valley/Tungsten Carbide Facility/Oppose
1258	Bldr. Hwy. Imp./Public Sale Resolution/$3,000,000 (Referred 11/3/87)
1259	Zone Change/DiLoreto, Thomas A./Z-25-87/S.4, T.22S, R.62E/R-1 & C-1
1260	Agreement/Lease 1640 Price Street to Henderson Dist. Public Library
1261	LID 818/Provisional Hearing order/set public hearing for 1/5/88
1262	Bonds/Transfer bond allocation for Victory Village Partnership
1263	Bonds/Issue Industrial Revenue Bonds for Victory Village
1264	Comp. Plan/Amendment/CPA-7-87/Dawson, Kent/S.5, T.22S, R.62E
1265	Zone Change/Pisciotta, John S./Z-27-87/S.12, T.22S, R.61E to R-3
1266	Zone Change/Warm Springs Investment Fund I/Z-28-87/S.9, T.22S, R.62E
1267	Sales/89.843 acres S-1/2 of S.4, T.22S, R.62E
1268	Comp. Plan/Ranch Property Dev., Inc./CPA-8-87/S.4T.22S., R.62E.
1269	Sunset One/Dawson, Kent/Z-29-87/S.5, T.22S., R.62E./C-2 to R-3
1270	Bldr. Hwy. Imp. Proj. Citizen's Committee/Creation/Duties
1271	Benefits/Establish rates of travel pymt/Repeal Res. No. 972
1272	Zone Change/Basic Management/Z-2-88/S.31, T.22S, R.63E to M
1273	Direct City Clerk to notify Bond Commission to issue Bonds

Resolution Number	
1274	Zoning/Warm Springs Invest. Fund I/Z-28-87/Repeal Res. 1266
1275	LID 818/Prov. Hearing order/set public hearing for 3/29/88
1276	Zoning/Basic Management & Nv. Rock/S.31S, T.21S, R.63E to M
1277	Zoning/Starr, Dale & Verle/Holmes, Larry/S.4, T.22S, R.63E to R-E
1278	Comp. Plan Amend./CPA-9-88/Grn. Vly. Invest./ANC/S.17&18, T.22, R.62E
1279	Zoning/R/S Dev. & Silver Springs/Z-6-88/S.8, T.22S, R.62E to R-1
1280	Zoning/Threinen, M. et. al./Z-3-88/S.20, T.22S, R.63E, to TR
1281	Bonds/Sewer Bonds $4,050,000/Water Bonds $2,025,000
1282	Comp. Plan Amend./CPA-1-88/Adoption of Fire Services Plan
1283	Zoning/Grn. Vly. Invest & ANC/Z-9-88/S. 17 * 18, T.22S, R.62E to C-1
1284	Sales/8.5 acres/Parcel No. 180-550-040/SE 1/4 S.4, T.22s, R.62E
1285	Zoning/Gibbs, William et. al./Z-12-88/S.24, T.22S, R.62 to R-1 & R-3
1286	Zoning/Green Vly. Invest./Z-13-88/S.13, T.22S, R.61E, to R-2 & C-1
1287	Funds/Assessment/Interfund Loan/LID 818
1288	Funds/Assessment/Interfund Loan/LID 862
1289	Bonds/Water Bonds $2,025,000/autho issuance
1290	Bonds/Sewer Bonds $4,050,000/autho issuance
1291	Streets/R-O-W-/50' of Foothill Dr. between Palomino Dr. & Sundown Dr.
1292	LID 818/Dispensing with protests
1293	Agreement/Cooperative Agreement w/LVVWD/Temp. Water Services
1294	Zoning/Pico Associates/Z-14-88/S.31, T.21S, R.62E from RR to C-2
1295	Bonds/Sewer Bonds/$4,050,000/Pur of bonds by State Treas for loan
1296	Bonds/Water Bonds/$2,025,000/Pur of bonds b/State Treas for loan
1297	Personnel/Salary Schedules
1298	Bonds/Enclave, Ltd. Project/Transfer Bonds
1299	Bonds/Enclave, Ltd. Project/Issue Bonds
1300	Clark County/Support School District bond question on 5/24/88
1301	Support for bridge over Colorado River at Black Canyon Ridge
1302	Comp. Plan/Green Valley Invest. & ANC/CPA-2-88/172.9 acres
1303	Zoning/Herbst, Jerry & Maryanna/Z-16-88/S.31, T.21S, R.62E to C-2
1304	Zoning/Diloreto Constr./Z-15-88/S.4, T.22S, R.62E to R-3
1305	Bonds/Victory Village/Amend financing agre to provide f/remarketing
1306	Sales/Sale of 1821 Bearden
1307	Bonds/Park Bonds/Notify General Obligation Bond Commission
1308	Emergency Management/Pepcon/Emergency Declaration
1309	Repeals Resolution No. 650 pertaining to bidding limits
1310	Emergency Management/Pepcon/Petition for relief funds - Eco Dev

Resolution Number	
1311	Zoning/Bagley, Melvin & Barbara/Z-20-88/S.33, T.21S, R.63E
1312	Bonds/G.O./Park Improvement
1313	Loans/Temporary interfund loan for LID 818 and 862
1314	Budget/1987—88 budget augmentation
1315	Zoning/Silver Springs, Inc./Z-21-88/f CV & R-3 to R-1, R-2, C-1, CV
1316	Zoning/American Nevada Corp./Z-18-80/Amend Reso 725 (Condition 1)
1317	Police/Tax question be placed on general election ballot in November
1318	Bonds/Public improvement Trust/Collins Home Manufact./Revenue Bonds
1319	City Mgr./Severance Pay/Commendation/Bloomquist, Gary
1320	R-O-W/Streets/Greenway Road/NDOT to relinquish row
1321	Zoning/Public Storage, Inc./Z-25-88/S.31, T.21S, R.63E from R-R to C-2
1322	Bonds/Victory Village Apts/Amendments & Remktg.
1323	Zoning/Raskow Limited/Z-27-88/Rezone por S.32, T.21S, R.62E, C-2/MP
1324	Zoning/Silver Springs, Inc./Z-28-88/por of S.17, T.22S, R.62E, R-2 to R-3
1325	Zoning/Threinen, Maurice/Z-29-88/por of S.20, T.22S, R-63E/R-R to T-E
1326	Zoning/Silver Springs/Repeals Resolution No. 1315/Z-21-88
1327	Bonds/G.O./9-6-88 Bond Canvass/Park Improvement Bonds
1328	State/Commend Governors Blue Ribbon Committee
1329	Sales/Sell 1.1 acres of land to DiLoreto Construction Devel. Corp.
1330	Zoning/Public Storage, Inc./Z-25-88/S.31, T.21S, R.63E/Repeal Res. 1321
1331	Flood Control/Erosion Mitigation Plan/Las Vegas Wash Study Coop. Agre
1332	Rehab Program/Repeal Reso 990/Deferred Payment Loan Escrow Acct.
1333	Rental Rehab Program/Adopts amendment to Interlocal Coop Agre/HUD
1334	LID 862/Provisional Order Resolution
1335	Zoning/Frey, Herbert/Z-30-88/S.17, T.22S, R.62E/R-R to R-1, R-2 & R-3
1336	Zoning/R.S. Investment Group/Z-32-88/S.9, T.22S, R.63E/R-R to R-1
1337	Zoning/Phillips Family Trust/Z-33-88/S-18, T.22S, R.63E/R-1 to C-2
1338	Zoning/Gibson Warm Springs Assoc./Z-35-88/S.10, T.22S, R.62E/R-R to MP
1339	Public Safety Issue/11-8-88 Tax Increase Canvass Resolution
1340	Comp. Plan/CPA-6-88/MSH-4-88/City of Hend/120 acres/S.34 T.22S R.63E
1341	Bonds/G.O./Park Improvement Bonds/Public Sale/
1342	Eng./A.D./LID 851/Initial Resolution
1343	Deferred Compensation Plan/ICMA
1344	Comp. Plan/CPA-7-88/Minnesota Title Holding Company
1345	Comp. Plan/CPA-12-88/Navillus Invest. Co.

Resolution Number	
1346	Eng./A.D./LID 862/Dispense with Protests
1347	Zoning/Nevada Eight Eight, Inc./Z-36-88/MP to C-2
1348	Zoning/American Nevada Corp./Green Valley Assoc./Z-19-86/Repeal Reso
1349	Zoning/Sunkist Service Co./Z-30-87
1350	Emergency Management/Revenue Distribution/Nuclear Waste Policy Act
1351	Comp. Plan/CPA-11-88/Ranch Mall Limited Partnership
1352	Agreement/Cooperative Agreement w/Clark County/Senior Citizens Center
1353	Charter/Appraisals
1354	Bonds/Utility/Short Term Financing Water & Sewer Bonds
1355	Water/Certification Board/Water and Wastewater Operations
1356	Comp. Plan/Silver Springs, Inc./CPA-3-89/9.81 acres/S.32, T.21S, R-62
1357	Bonds/G.O./Short-term Financing/Water & Sewer Bonds/$7,000,000
1358	Bonds/G.O./Public Sale/Water & Sewer Bonds/$7,000,000
1359	Acquisition/Right-of-Way Parcels from Clark County
1360	Sales/568 Chelsea Drive/Lot 47, Block 7/Carmarlo Park/Unit I
1361	Zoning/Dunn, Leslie/Z-6-89/S.4, T.22S, R.62E/R-1 to C-1 and C-2
1362	Zoning/DKS Development/Z-7-89/S.33, T.21S, R.62E/R-R to R-3
1363	Sales/115 acres/Lake Mead Drive
1364	Comp. Plan/Cosmo World Corp./CPA-1-89/1,279 ac/S.35 & 36, T.22S, R61E
1365	Agreements/Amends Resolution 1352/Sr. Citizens Center/Typo error
1366	Zoning/Pardee Construction/Z-8-89(A)
1367	Railroad/Support of So. Nevada Historic Railroad Project
1368	Zoning/Green Valley Investment/Z-13-88/Repeals Resolution 1286
1369	Zoning/Sunkist Service Co./Z-30-87/Repeals Resolution No. 1349
1370	Zoning/AKKA International/S.16, T.22S, R.63E/R-R to RS-6
1371	Zoning/Collins Bros./Z-3-85/Repeals Res 1085/S.13, T.22S, R.61E/C-1
1372	Comp. Plan/Palm Canyon Partners/CPA-3-89/300 acres
1373	Sales/48 acres/Heather and College Drive
1374	Sales/Property along College Drive/Highland Hills Baptist Church
1375	Zoning/Horn Company/Z-14-89/Sec 9, T. 22S, R.62E/R-R to RM-24
1376	Zoning/Gibbs, William et. al./S.24, T.22S., R.62E/R-R to R-1, R-A, R-3
1377	Budget/1988/89 Budget Augmentation
1378	Engineering/A.D./Interfund Loans for LID 818 & 862
1379	Bonds/Refunding Bonds Sale Resolution/General Obligation

Resolution Number	
1380	Engineering/A.D./LID 818 Engineering Resolution
1381	Comp. Plan/American Nevada Corp./CPA-4-89/57.42 acres/S.17, T.22S, R62
1382	Zoning/R & S Development/Z-16-89/S.9, T.22S, R.63E/R-R to RS-8
1383	Zoning/Pardee Construction/Z-17-89/S.7, T.22S, R.62E/R-R to RS-6 & RS-8
1384	Bonds/Refunding 1985 Bonds
1385	Zoning/American West/Z-13-89/S.4, T.22S, R.62 E. & S.33, T.21S, R62E
1386	Zoning/Pacific Properties/Z-19-89/S.18, T.22S, R.62E/R-1 to RM-16
1387	Citizens Concerns/Protests Supreme Court Decision on The American Flag
1388	Revenue/Tax/Ad Valorem Tax Increase
1389	Sales/Property at corner of Heather & College/78 acres
1390	Loans/Temporary interfund loan for LID 851
1391	Loans/Temporary interfund loan for LID 818
1392	Zoning/Sara, John & Magdenko, Ingrid/Z-15-89/RR to RM-18
1393	Zoning/Collins, Inc./Z-23-89/S 8&9, T.22S, R.62E/RR to RS-8
1394	Zoning/Clark County School District/Z-22-89/RR to PS
1372	Comp. Plan/Palm Canyon Partners/CPA-3-89/300 acres
1373	Sales/48 acres/Heather and College Drive
1374	Sales/Property along College Drive/Highland Hills Baptist Church
1375	Zoning/Horn Company/Z-14-89/Sec 9, T. 22S, R-62E/R-R to RM-24
1376	Zoning/Gibbs, William et. al./S.24, T.22S., R.62E/R-R to R-1, R-A, R-3
1377	Budget/1988/89 Budget Augmentation
1378	Engineering/A.D./Interfund Loans for LID 818 & 862
1379	Bonds/Refunding Bonds Sale Resolution/General Obligation
1380	Engineering/A.D./LID 818 Engineering Resolution
1381	Comp. Plan/American Nevada Corp./CPA-4-89/57.42 acres/S.17, T.22S, R62
1382	Zoning/R & S Development/Z-16-89/S.9, T.22S, R.63E/R-R to RS-8
1383	Zoning/Pardee Construction/Z-17-89/S.7, T.22S, R.62E/R-R to RS-6 & RS-8
1384	Bonds/Refunding 1985 Bonds
1385	Zoning/American West/Z-13-89/S.4, T.22S, R.62 E. & S.33, T.21S, R62E
1386	Zoning/Pacific Properties/Z-19-89/S.18, T.22S, R.62E/R-1 to RM-16
1387	Citizens Concerns/Protests Supreme Court Decision on The American Flag

Resolution Number	
1388	Revenue/Tax/Ad Valorem Tax Increase
1389	Sales/Property at corner of Heather & College/78 acres
1390	Loans/Temporary interfund loan for LID 851
1391	Loans/Temporary interfund loan for LID 818
1392	Zoning/Sara, John & Magdenko, Ingrid/Z-15-89/RR to RM-18
1393	Zoning/Collins, Inc./Z-23-89/S 8&9, T.22S, R.62E/RR to RS-8
1394	Zoning/Clark County School District/Z-22-89/RR to PS
1395	Zoning/MacDonald, Richard/Z-24-89/S.28, T.22S, R.62E/RR to RS-2/RS-4
1396	Zoning/American West Dev./Z-13-89/S.33, T.21S, R.62E/RR & RE to OS
1397	Comp. Plan/Lake at Las Vegas Joint Venture/CPA-5-88/S.14,15,22,23
1398	Bonds/St. Rose Dominican Hospital/Hospital Tax-Exempt Revenue Bonds
1399	Comp. Plan/Las Vegas Building Materials, Inc./CPA-6-89/283.4 acres
1400	Zoning/American Nevada Corp./Z-12-89/to RS-6, RM-24, CN and PS
1401	Zoning/Lewis Homes Properties/Z-28-89/S.31, T.22S, R.63E/RR to RS-6
1402	HUD/Cooperative Agreement/Clark County/Housing Authority
1402	Agreements/Cooperative Agre./Clark County/Housing Authority
1403	Zoning/Warm Springs Investment Fund/Z-31-89/S.9, T.22S, R62E/RR to RM14
1404	Zoning/MarCor Resorts/Z-29-89/S.31, T.22S, R.62E/C-2 to CT
1405	Zoning/Country Club Partners/Z-30-89/S.24, T.22S, R.62E/RR TO RS-6
1406	Sales/31 acres/Palomino and Appaloosa/S.27, T.22S, R.63E
1407	Bonds/St. Rose Dominican Hospital/Healthcare Facility Revenue Bonds
1408	Zoning/Pardee Construction/Z-17-89/S.7, T.22S, R.62E/R-R to RS-6 & 8
1409	Sales/9.133 acres/Industrial Real Property/W-1/2 S.34, T.22S, R.63E
1410	Water/Sewer/Public Education Program on Water & Wastewater/4th Graders
1411	Wastewater/1990 201 Facilities Plan Update
1412	Lease/Portion of 820 Major Street to Henderson Boys & Girls Club
1413	Lease/2.2 acres to the Black Mountain Golf & Country Club
1414	Zoning/Z/12/89/American Nevada Corp./Repeals Resolution 1400
1415	Comp. Plan/Foothills Corp./CPA-1-90/Rich MacDonald
1416	Not adopted
1417	Eng./A.D./862/Assessment roll resolution
1418	Eng./A.D./862/Assessment hearing resolution
1420	Petition American Public Works Assn./Convene 1998/99 Convention
1421	Zoning/Warm Springs Invest./Z-31-89/S.9, T.22S, R.62E/RR to RM-14
1419	Park Dev./Parks and Recreation Plan Element/Comp. Plan

Resolution Number	
1422	Zoning/Quarry Partnership/Z-23-89/S.34, T.21S, R.62E
1423	State/Population/1990 Census/Encourages all citizens to participate
1424	Eng./A.D./862/Overruling complaints, protests & objections/Pub Hrg.
1425	Com. Plan/Cosmo World/CPA-4-90/Silver Canyon Development
1426	Economic Development/National Community Development Week/4/7 - 4/14
1427	Zoning/Clark County School Dist/Z-2-90/S.17, T.22S, R.62E/RS-6 to PS
1428	Zoning/Henderson Industrial Park/Z-7-90/S.13, T.22S, R.62E/IP to IL
1429	Expenditures/Award Contract 88-89*37/LID 862/lowest responsive bidder
1430	Zoning/Cosmo World/Z-8-90/S.35 & 36, To.22S, R.61E/S.1/2, T.23S, R.61E
1431	County/RTC/Interlocal Agreement W/County f/Transportation Tax
1432	Water/Joint Reso W/NLV, Big Bend Water, Las Vegas Valley Water Dist.
1433	Zoning/Clark County School Dist/Z-2-90/S.16&17, T.22S, R.62E/RS-6 - PS
1434	Water/Recommendations for implementing water conservation practices
1435	Local Organizations/Support Henderson Asso. Sr. Citizens/60 addi units
1436	Lease/0.18 acres on R16 Reservoir site to Centel Cellular
1437	Lease/900 sq. ft. at R17 Reservoir site to Cosmo World
1438	Budget/Temporary Interfund Loans for LID No. 818 & 851
1439	Budget/Temporary Interfund Loans for LID 818 & 862
1440	Budget/Temporary Interfund Loans for LID 817
1441	Budget/Temporary Interfund Loans for Fund 54, Fund 71 & Fund 72
1442	Budget/Augmentation of 1989-90 Budget
1443	Lease/135 W. Basic for temporary dwelling purposes
1444	Bonds/A.D./8-1-90 Public Sale Resolution/LID 862/$4,200,000
1445	Water/Opposition to Orion Land Dev. & John H. Midby applications
1446	Zoning/Amazon Mgmt./Z-10-90/S.18, T.22S, R.63E/RS-6, RM-12,CD to CH
1447	Zoning/Lake @ Las Vegas Joint Venture/Z-12-90/UR-G to CC-G-M-2, etc.
1448	Water/Support Water District in obtaining additional water
1449	Zoning/Repeal Resolution 1433/S.15 & 17, T.22S, R.62E/RS-6 to PS
1450	Zoning/Repeal Resolution 1276/S.31, T.21S, R.63E/R-R to M
1451	Assessment District/LID 862 Assessment Installment Rate Resolution
1452	Air/Develop bill draft for Diesel Motor Vehicle Smoke Inspection Progr
1453	Jail/Authorize study of need for renovation and/or new jail construct

Resolution Number	
1454	Support Clark County Master Transportation Plan/Fair Share Funding
1455	Zoning/First Interstate Bank/Z-15-90/S.2, T.22S, R.62E/CH-G to CC-G
1456	Water/Adopting Cooperative Agreement re: dev. of regional water plans
1457	Comp. Plan/Walter Development Corp./CPA-7-90/2.2 acres/S.12/T.22S/R.62
1458	Eng./A.D./LID T1 (Lake at Las Vegas)/Administrative Agreement
1459	Eng./A.D./LID T1 (Lake at Las Vegas)/Cost Estimate & Prelim Plans
1460	Eng./A.D./LID T1 (Lake at Las Vegas)/Necessity of LID T1
1461	Eng./A.D./LID T1 (Lake at Las Vegas/Prepare Prelimin Assessment Roll
1462	Eng./A.D./LID T1 (Lake at Las Vegas/Validate & Confirm Assess Roll
1463	Eng./A.D./LID T1 (Lake at Las Vegas/Draft Prelim Official Statement
1464	Comp. Plan/MacDonald Ranch Village II Partnership/CPA-9-90
1465	Zoning/Foothills Corp./Z-17-90/1180 acres/S.26, 27 & 28/T.22S/R.62E
1466	Flood Control/Adopt Hydrologic Criteria & Drainage Manual/
1467	Zoning/The Quarry Partnership/Repeals Resolution 1422
1468	Zoning/Mills, Richard/Z-14-90/S.12 T.22S, R62E/CH to CC
1469	Airport/Sky Harbor/Requests cooperation Board of Commissioners
1470	Comp. Plan/City of Henderson/CPA-3-90/"Central Area Plan"
1471	Acquisition/Exchange 3 parcels in Mission Hills Subdivision f/l parcel
1472	Zoning/Walter Deve. Corp./Z-24-90/Por S.12, T.22S, R.62E/CH to IP
1473	Eng./A.D./Car Country/T-2/Adm. Agreement
1474	Eng./A.D./Car Country T-2/Engineer directed to file documents
1475	Eng./A.D./Car Country T-2/Determine necessity
1476	Eng./A.D./Car Country T-2/Prepare preliminary assessment roll
1477	Eng./A.D./Car Country T-2/Validate assessments
1481	Eng./A.D./Car Country T-2/Approve draft preliminary official stint
1478	Desert Tortoise/Short-term Habitat Conservation Plan
1479	Zoning/Green Valley Investment Co./Z-28-90/S.19, T.22S, R.62E/OS-RM-12
1480	Sales/Exchange 8.265 acres for 5.78 ac in S.34, T.22S, R.63E
1482	Clark County Master Transportation Plan and Fair Share Funding Program
1483	Comp. Plan/MacDonald Ranch Village II/CPA-11-90/
1484	Zoning/Rebel Rents/Z-29-90/Portion S.13, T.22S, R.62E/IP to IL
1485	Zoning/City of Henderson/Z-30-90/S.29, T.22S, R.63E/PS to CN (Repealed by Ord. 1384)
1486	Zoning/City of Henderson/Z-31-90/S.28, T.22S, R.63E/PS to RS-6 (Repealed by Ord. 1382)

Resolution Number	
1487	Zoning/Rowe, James & Sharon/Z-32-90/S.2, T.22S, R.62E/IG-G to IL-G
1488	Council/Prohibits Mayor/Council f/holding dual offices or City employ
1489	Judicial/Provides authority to appoint additional municipal judges
1490	Exchange/S.34 & 27, T.22S, R.63E/3.81 ac f/0.98 ac/S.34/27, T.22S, R63E
1491	Traffic/Signing/Creates Subcommittee f/sign regs/declare moratorium
1492	Eng./A.D./LID 911/College Drive/File preliminary plans, estimate costs
1493	R-O-W/Grants necessary permanent & temp. row/U.S. 95 freeway
1494	Sewer/Adopt sewer access & Maintenance Agre for Cosmo World
1495	Sales/Sell property/ S1/2 of S.4, T.22S, R.62E/.5 acres
1496	Gas/Rate structures/Washington Water & Power/Attend PSC Hearings
1497	Bonds/G.O./Public Building Facility Bonds/$16 million
1498	Bonds/G.O./Sanitary Sewer Facility Bonds/$8 million
1499	Bonds/G.O./Public Building Facility Bonds/$16 million
1500	Bonds/G.O./Sanitary Sewer Facility Bonds/$8 million
1501	Comp. Plan/Turpin-Whitebook Corp./CPA-10-90/16.4 ac/S.4, T.22S, R.62E
1502	Zoning/Mac-Mar, Inc./Z-6-91/S.2, T.22S, R.62E/IG-G to CC-G
1503	Flood Control/Transfer portion Pacific Ave to NDOT for flood control
1504	Benefits/Travel/Establishes rates of travel pymt f/Employees & Council/Repeals Res. No. 972. (2.34)
1505	Zoning/Ranpac Development/Z-26-90/S.31&32, T.22S, R.62E
1506	Land/Opposes National Energy Policy/Yucca Mtn./Nuclear Waste Repositry
1507	Zoning/Growth development
1508	Zoning/Rapone, Gus/Z-4-91/S.13, T.22S, R.62E/IP-G to IL-G
1509	Zoning/Black Mtn. Golf & Country Clb/Z-5-91/S.20, T.22, R.63E/OS to RS-6
1510	Loans/Temporary Interfund Loans for LID 851, 818 & 817/RTC Imp./etc.
1511	Elections/Bond Canvass for General Election of June 4, 1991
1512	Benefits/Deferred Comp Plan for Salaried Employees through ICMA
1513	Augmentation of certain funds
1514	Sale of real property
1515	Sale of city-owned parcel
1516	Commits council to rezone certain property
1517	Adopts Southern Nevada Water Authority Cooperative Agreement
1518	Approves amendment of "Administration Agreement—1990 Local Improvement District No. T-2"

Resolution Number	
1519	Amends Res. 1477, assessment roll
1520	Adopts Interlocal Agreement No. 91-A169
1521	Agreement with Union Pacific Railroad Company for a water line crossing
1522	Approves preliminary official statement for LID No. T-2
1523	Extends effective time of Res. 1491
1524	Moratorium on issuance of certain on-premises sign permits
1525	Authorizes sale of general obligation public building facilities bonds
1526	Approves agreements with Car Country International Limited Partnership
1527	Cooperative agreement for mutual aid with Boulder City
1528	Cooperative agreement for fire fighter training with Boulder City
1529	Cooperative agreement with U.S. Department of the Air Force
1530	Participation in State Fire Mutual Aid Plan
1531	Amends Res. 1507, extension of time for adopting interim development ordinance
1532	Opposes euthanization of healthy desert tortoises
1533	Exchange of real property
1534	Assessment roll for Improvement District No. 818
1535	Extends agreement with Nevada Development Authority
1536	Interlocal agreement for preservation of utility corridors
1537	Commits council to rezone certain property
1538	Assessment roll for Improvement District No. 818
1539	Intent to dispose of certain city-owned property
1540	Torrey Group, Ltd., multifamily rental housing project
1541	Support of certain traffic signalization
1542	Commits council to rezone certain property
1543	Amends land use policy plan of comprehensive plan
1544	Issuance of limited improvement bonds
1545	Assessment roll for Improvement District No. 818
1546	Agreement for community development block grant funds
1547	Amends land use policy plan of comprehensive plan
1548	Amends land use policy plan of comprehensive plan
1549	Amends and restates Resos. 1458—1463, LID No. T-1
1550	Amends land use policy plan of comprehensive plan
1551	Commitment to road and public works' projects
1552	Improvements in Improvement District No. 818
1553	Commits council to rezone certain property
1554	Amends land use policy plan of comprehensive plan

Resolution Number	
1555	Intent to sell certain industrial real property
1556	Commits council to rezone certain property
1557	Commits council to rezone certain property
1558	Commits council to rezone certain property
1559	Use of regional flood control district funds
1560	Commits council to rezone certain property
1561	Financing of sewer and water facilities
1562	Authorizes sale of Improvement District No. 818 bonds
1563	Intent to sell certain commercial real property
1564	Officers for real and facsimile signatures; repeals Resos. 940 and 1017
1565	Amends land use policy plan of comprehensive plan
1566	Commits council to rezone certain property
1567	Commits council to rezone certain property
1568	Approves petition regarding Henderson LID
1569	Authorizes publication of notice relating to general obligation sewer bonds
1570	Authorizes sale of general obligation sewer bonds
1571	Improvement District No. 818 assessment installment rate
1572	Amends land use policy plan of comprehensive plan
1573	Commits council to rezone certain property
1574	Commits council to rezone certain property
1575	Amends land use policy plan of comprehensive plan
1576	Commits council to rezone certain property
1577	Amends land use policy plan of comprehensive plan
1578	Amends land use policy plan of comprehensive plan
1579	Consolidated local improvement law and LID No. T-4
1580	Proposes issuance of general obligation public facilities bonds
1581	Cooperative agreement with housing authority of Clark County
1582	Commits council to rezone certain property
1583	Endorses alternative "E" for adopted alignment, southern segment of Las Vegas beltway
1584	Temporary interfund loan
1585	Augmentation of certain funds
1586	Commits council to rezone certain property
1587	Commits council to rezone certain property
1588	Commits council to rezone certain property
1589	Commits council to rezone certain property

Resolution Number	
1590	Commits council to rezone certain property
1591	Commits council to rezone certain property
1592	Commits council to rezone certain property
1593	Intent to issue general obligation municipal facilities bonds
1594	Amends land use policy plan of comprehensive plan
1595	Commits council to rezone certain property
1596	Commits council to rezone certain property
1597	Commits council to rezone certain property
1598	Amends land use policy plan of comprehensive plan
1599	Amends land use policy plan of comprehensive plan
1600	Commits council to rezone certain property
1601	Intent to sell certain real property
1602	Issuance of refunding and building bonds
1603	Commits council to rezone certain property
1604	Commits council to rezone certain property
1605	Need to obtain land adjacent to wastewater treatment and disposal facilities
1606	Intent to reimburse expenditures related to certain water and sewer projects
1607	Amends land use policy plan of comprehensive plan
1608	Amends land use policy plan of comprehensive plan
1609	Commits council to rezone certain property
1610	Reserves 1992 private activity bond allocation for Torrey Group, Ltd. multifamily rental housing project
1611	Commits council to rezone certain property
1612	Moratorium on issuance of certain on-premises sign permits
1613	(Number not used)
1614	Approves execution of administration agreement, LID No. T-6
1615	Need to obtain certain premises to construct criminal justice center
1616	Intent to lease certain real property for construction of school
1617	Approves petition regarding LID T-5
1618	Commits council to rezone certain property
1619	Commits council to rezone certain property
1620	Amends land use policy plan of comprehensive plan
1621	Commits council to rezone certain property
1622	Adopts updated police services fee schedule
1623	Public necessity requires creations of LID T-5

Resolution Number	
1624	Assessment of cost for LID T-5
1625	Amends land use policy plan of comprehensive plan
1626	LID No. T-4
1627	Adopts amended cooperative agreement pertaining to railroad line
1628	Commits council to rezone certain property
1629	Amends land use policy plan of comprehensive plan
1630	Amends land use policy plan of comprehensive plan
1631	Agreement between county, city and pro-bono project
1632	Intent to lease space in convention center/temporary court facility
1633	Financing of park improvements
1634	Intent to exchange certain real property
1635	Adopts cooperative agreement for banking of water
1636	Approves petition regarding LID T-7
1637	Authorizes establishment of workmen's compensation self-insurance fund
1638	Authorizes establishment of employee health insurance fund
1639	Request to amend charter
1640	Rate of interest payable on unpaid installments of assessments for LID T-5
1641	Authorizes establishment of LID revolving loan fund
1642	1993 park bond election
1643	Authorizes arrangement of sale of refunding bonds
1644	Adopts cooperative agreement respecting Colorado River water banked in Arizona
1645	Intent to annex certain real property
1646	Assignment of senior citizen housing
1647	Supports continuation of Clark County adult eduction programs
1648	Intent to sell certain real property
1649	1993 park bond canvass resolution
1650	Affirmative action plan/equal opportunity policy; repeals Resos. 692 and 1246 (2.58)
1651	Economic development commission (Repealed by Ord. 1887)
1652	Augmentation of certain funds
1653	Amends land use policy plan of comprehensive plan
1654	Approves form of alternative procedures for local improvements agreement pertaining to LID T-7
1655	Supports new mission for Nevada test site

Resolution Number	
1656	Amends land use policy plan of comprehensive plan
1657	Authorizes sale of general obligation park improvement and purpose refunding bonds
1658	Extends moratorium on issuance of certain on-premises sign permits
1659	Commits council to rezone certain property
1660	Commits council to rezone certain property
1661	Confirms reservation of 1993 private activity bond allocation for the Torrey Group, Ltd. multifamily rental housing project
1662	Commits council to rezone certain property
1663	Amends land use policy plan of comprehensive plan
1664	Commits council to rezone certain property
1665	Amends land use policy plan of comprehensive plan
1666	Commits council to rezone certain property
1667	Amends land use policy plan of comprehensive plan
1668	Commits council to rezone certain property (Repealed by 1674)
1669	Commits council to rezone certain property
1670	Urges expedition and full funding of extension of "southern" beltway
1671	Intent to sell certain real property
1672	Commits council to rezone certain property
1673	LID No. T-6
1674	Commits council to rezone certain property; repeals Res. 1668
1675	Short-term financing
1676	Adopts interlocal cooperative agreement for snacks for safekey program
1677	Adopts interlocal cooperative agreement to receive real property as reimbursement for cost of constructing certain sidewalks
1678	Issuance of hospital revenue bonds
1679	Commits council to rezone certain property
1680	Directs postponement of notification of proposal to issue general obligation short-term bonds
1681	Supports efforts regarding looking for alternative methods of financing and construction of school facilities
1682	Amends land use policy plan of comprehensive plan
1683	Intent to lease certain property
1684	Authorizes execution of amended administration agreement, LID No. T-1
1685	Authorizes execution of amended administration agreement, LID No. T-9
1686	Amends land use policy plan of comprehensive plan

Resolution Number	
1687	Authorizes filing application for matching funds for development of certain park
1688	Authorizes issuance of insured health facility refunding revenue bonds
1689	Commits council to rezone certain property
1690	LID No. T-1
1691	LID No. T-9
1692	Amends land use policy plan of comprehensive plan
1693	Authorizes short-term financing for building projects
1694	Authorizes arrangement for sale of general obligation short-term building bonds
1695	Approves cooperative agreement for mutual aid with U.S. Air Force
1696	Authorizes issuance, sale and delivery of insured health facility refunding revenue bonds
1697	Commits council to rezone certain property
1698	Amends land use policy plan of comprehensive plan
1699	Amends land use policy plan of comprehensive plan
1700	Commits council to rezone certain property
1701	Preliminary plans for street project in LID No. 931
1702	Need to obtain certain real property
1703	(Number not used)
1704	Amends land use policy plan of comprehensive plan
1705	Commits council to rezone certain property
1706	Commits council to rezone certain property
1707	Confirms reservation of 1994 private activity bond allocation for Keeney Industries manufacturing project
1708	Amends land use policy plan of comprehensive plan (Repealed by Ord. 1733)
1709	Intent to sell portion of a certain assessor's parcel
1710	Commits council to rezone certain property
1711	Intent to annex certain real property
1712	Supports immediate anti-crime legislation
1713	Adopts cooperative agreement with Las Vegas Valley Water District
1714	Intent to sell certain property
1715	Commits council to rezone certain property
1716	Intent to sell certain real property
1717	Request for certain no parking zone
1718	Amends land use policy plan of comprehensive plan

Resolution Number	
1719	Amends land use policy plan of comprehensive plan
1720	Amends land use policy plan of comprehensive plan
1721	Commits council to rezone certain property
1722	Augmentation of certain funds
1723	Amends land use policy plan of comprehensive plan
1724	Amends land use policy plan of comprehensive plan
1725	Improvements in LID No. 931
1726	Proposal for bonds to finance water and sanitary sewer projects
1727	Commits council to rezone certain property
1728	Amends land use policy plan of comprehensive plan
1729	Amends land use policy plan of comprehensive plan
1730	Amends land use policy plan of comprehensive plan
1731	Amends land use policy plan of comprehensive plan
1732	Amends land use policy plan of comprehensive plan
1733	Commits council to rezone certain property
1734	Amends land use policy plan of comprehensive plan
1735	Adopts Amendment No. 1 to cooperative agreement with Las Vegas Valley Water District
1736	Dissolves various interlocal and cooperative agreements
1737	Intent to sell certain real property
1738	Amends land use policy plan of comprehensive plan
1739	Commits council to rezone certain property
1740	Amends land use policy plan of comprehensive plan
1741	Encourages acquisition proceedings of Sky Harbor Airport
1742	Amends land use policy plan of comprehensive plan
1743	Amends land use policy plan of comprehensive plan
1744	Amends land use policy plan of comprehensive plan
1745	Requests investigation of impact of I-515 extension on abutting residential development
1746	Intent to issue general obligations to finance water and sewer projects
1747	Amends land use policy plan of comprehensive plan
1748	Amends land use policy plan of comprehensive plan
1749	Adopts cooperative agreement for regional solids management plan
1750	Dissolves various interlocal and cooperative agreements
1751	Amends land use policy plan of comprehensive plan
1752	Commits council to rezone certain property
1753	Amends land use policy plan of comprehensive plan

Resolution Number	
1754	Amends land use policy plan of comprehensive plan
1755	Amends land use policy plan of comprehensive plan
1756	Amends land use policy plan of comprehensive plan
1757	Commits council to rezone certain property
1758	Amends land use policy plan of comprehensive plan
1759	Commits council to rezone certain property
1760	Amends land use policy plan of comprehensive plan
1761	Adopts interlocal cooperative agreement for snacks for safekey program
1762	Authorizes execution of administrative agreement, LID No. T-10
1763	Amends land use policy plan of comprehensive plan
1764	Commits council to rezone certain property
1765	Amends land use policy plan of comprehensive plan
1766	Commits council to rezone certain property
1767	Authorizes execution of administrative agreement, LID No. T-11
1768	Commits council to rezone certain property
1769	Commits council to rezone certain property
1770	Amends land use policy plan of comprehensive plan
1771	Commits council to rezone certain property
1772	Dispenses with protests made regarding provisions order for LID No. 931
1773	Intent to lease certain space
1774	Commits council to rezone certain property
1775	(Not adopted)
1776	Amends land use policy plan of comprehensive plan
1777	Commits council to rezone certain property
1778	Intent to establish redevelopment agency
1779	(Not adopted)
1780	Commits council to rezone certain property
1781	Amends land use policy plan of comprehensive plan
1782	Amends land use policy plan of comprehensive plan
1783	Approves form of interlocal cooperation agreement regarding payment of bonds for SNWA capital improvements (Repealed by 1784)
1784	Approves form of interlocal cooperation agreement regarding payment of bonds for SNWA capital improvements; repeals Res. 1783
1785	Intent to lease certain space
1786	Amends land use policy plan of comprehensive plan
1787	Amends land use policy plan of comprehensive plan
1788	(Not adopted)

Resolution Number	
1789	Amends land use policy plan of comprehensive plan
1790	Commits council to rezone certain property
1791	Amends land use policy plan of comprehensive plan
1792	Amends land use policy plan of comprehensive plan
1793	Commits council to rezone certain property
1794	Amends land use policy plan of comprehensive plan
1795	Commits council to rezone certain property
1796	Amends land use policy plan of comprehensive plan
1797	Amends land use policy plan of comprehensive plan
1798	Intent to sell portion of certain assessor's parcel
1799	Interlocal agreement for automatic aid for emergency services
1800	Amends land use policy plan of comprehensive plan
1801	Amends land use policy plan of comprehensive plan
1802	Interlocal agreement to lease certain space
1803	Creates advisory committee for redevelopment agency
1804	Amends land use policy plan of comprehensive plan
1805	Approves apportionment of surplus funds refund from LID No. 754
1806	Approves apportionment of surplus funds refund from LID No. 792
1807	Approves apportionment of surplus funds refund from LID No. 801
1808	Approves apportionment of surplus funds refund from LID No. 813
1809	Approves apportionment of surplus funds refund from LID No. 815
1810	Approves apportionment of surplus funds refund from LID No. 824
1811	Need to obtain municipal utility and flood control easement and temporary construction easements
1812	Amends land use policy plan of comprehensive plan
1813	LID No. 931 final assessment roll
1814	LID No. 931 final assessment roll
1815	Approves form of interlocal cooperation agreement regarding repayment of bonds for SNWA capital improvements
1816	Adopts joint resolution supporting formation of regional jail commission
1817	Amends land use policy plan of comprehensive plan
1818	Amends land use policy plan of comprehensive plan
1819	LID No. 931
1820	Amends Res. 1814, LID No. 931
1821	Amends land use policy plan of comprehensive plan
1822	Amends land use policy plan of comprehensive plan
1823	Amends land use policy plan of comprehensive plan

Resolution Number	
1824	Proposal, LID 931 LID revolving loan fund
1825	Authorizes execution of administration agreement, LID No. T-4
1826	Encourages CPR training for physical education teachers
1827	Augmentation of certain funds
1828	Approves designation of hearing officer
1829	(Not adopted)
1830	(Not adopted)
1831	(Not adopted)
1832	Amends land use policy plan of comprehensive plan
1833	Amends land use policy plan of comprehensive plan
1834	Designates area for evaluation for redevelopment
1835	Amends land use policy plan of comprehensive plan
1836	Commits council to rezone certain property
1837	Adopts cooperative agreement for water service
1838	Approves a mutual aid agreement for water supply emergencies
1839	Amends land use policy plan of comprehensive plan
1840	LID No. 931 assessment roll
1841	Interlocal agreement for community access to schools and recreational facilities
1842	Amends land use policy plan of comprehensive plan
1843	Commits council to rezone certain property
1844	Commits council to rezone certain property
1845	Short-term financing of loan for LID revolving loan fund
1846	Intent to sell a portion of certain assessor's parcel
1847	Reserves 1995 private activity bond allocation and transfers for certain projects
1848	Amends land use policy plan of comprehensive plan
1849	Amends land use policy plan of comprehensive plan
1850	Amends land use policy plan of comprehensive plan
1851	Amends land use policy plan of comprehensive plan
1852	Amends land use policy plan of comprehensive plan
1853	Commits council to rezone certain property
1854	Intent to sell a portion of certain assessor's parcel
1855	Adopts cooperative agreement to provide water service
1856	Adopts interlocal contract for sewer service
1857	Adopts cooperative agreement to provide water service
1858	Adopts interlocal contract to provide sewer service

Resolution Number	
1859	Amends land use policy plan of comprehensive plan
1860	Amends land use policy plan of comprehensive plan
1861	Commits council to rezone certain property
1862	Adopts cooperative agreement for emergency water service
1863	Amends comprehensive plan by adopting a redevelopment plan and associated development standards
1864	Amends land use policy plan of comprehensive plan
1865	Amends land use policy plan of comprehensive plan
1866	Amends land use policy plan of comprehensive plan
1867	Amends land use policy plan of comprehensive plan
1868	Authorizes Amendment No. 1 to acquisition agreement
1869	Cooperative agreement for snacks
1870	Commits council to rezone certain property
1871	Commits council to rezone certain property
1872	Interlocal cooperative agreement for bus shelters and benches
1873	Need to obtain permanent easements for sewer projects
1874	Commits council to rezone certain property (Repealed by Res. 2386)
1875	Commits council to rezone certain property
1876	Adopts creation of financial stabilization special revenue fund
1877	Amends land use policy plan of comprehensive plan
1878	Commits council to rezone certain property
1879	Amends land use policy plan of comprehensive plan
1880	Commits council to rezone certain property
1881	Commits council to rezone certain property
1882	Approves form of interlocal cooperation agreement regarding Southern Nevada Water System facilities and operations
1883	Approves amended cooperative agreement for transfer of Southern Nevada Water System from the Colorado River Commission to the Southern Nevada Water Authority
1884	Adopts cooperative agreement to provide water service
1885	Amends land use policy plan of comprehensive plan
1886	Creates LID No. T-10 and levies assessments
1887	Cancels agreement with Las Vegas Valley Water District
1888	Commits council to rezone of certain property
1889	Commits council to rezone of certain property
1890	Amends land use policy plan of comprehensive plan
1891	Commits council to rezone of certain property

Resolution Number	
1892	Commits council to rezone of certain property
1893	Commits council to rezone of certain property
1894	Agreement for traffic signal maintenance
1895	Commits council to rezone of certain property
1896	Amends land use policy plan of comprehensive plan
1897	Commits council to rezone of certain property
1898	Agreement regarding repayment to SNWA for certain capital improvements
1899	Agreement regarding planning and needs assessment for wastewater issues
1900	Commits council to rezone of certain property
1901	Requests repeal of Charter Section 2.330
1902	Contract with North Las Vegas to send firefighters to academy
1903	Bond issuance to finance refunding project
1904	Commits council to rezone of certain property
1905	Contract with Clark County Sanitation District for sewer service
1906	Amends land use policy of comprehensive plan
1907	Amends land use policy of comprehensive plan
1908	Commits council to rezone of certain property
1909	Easements for Mission Hills Western Interceptor Channel
1910	Authorizes amendment to certain LID No. 2 agreements
1911	Bond issuance for municipal facilities project
1912	Publication of notice of intent to issue medium-term obligation bonds
1913	Amends land use policy of comprehensive plan
1914	Amends land use policy of comprehensive plan
1915	Agreement with Las Vegas Valley Water District to provide water service
1916	Agreement with Henderson District Public Library for various services
1917	Intent to issue general obligation bonds
1918	Intent to sell certain property
1919	Commits council to rezone of certain property
1920	Commits council to rezone of certain property
1921	Authorizes issuance of general obligation medium-term bonds
1922	1995/96 budget augmentation
1923	Amends land use policy of comprehensive plan
1924	Commits council to rezone of certain property
1925	Intent to sell certain property
1926	Amends land use policy of comprehensive plan

Resolution Number	
1927	Commits council to rezone of certain property
1928	Commits council to rezone of certain property
1929	Bond issuance for municipal facilities project
1930	Transfers city's 1996 private activity bond cap to Nevada Power Company
1931	Amends land use policy of comprehensive plan
1932	Amends land use policy of comprehensive plan
1933	Commits council to rezone of certain property
1934	Amends land use policy of comprehensive plan
1935	Intent to sell certain property
1936	Commits council to rezone of certain property
1937	Commits council to approve certain master development plan and adopt certain development design standards
1938	Right-of-way and temporary construction easement
1939	Amends land use policy of comprehensive plan
1940	Commits council to rezone of certain property
1941	Amends land use policy of comprehensive plan
1942	Amends land use policy of comprehensive plan
1943	Commits council to rezone of certain property
1944	Amends land use policy of comprehensive plan
1945	Commits council to rezone of certain property
1946	Amends land use policy of comprehensive plan
1947	Amends land use policy of comprehensive plan
1948	Commits council to rezone of certain property
1949	Commits council to rezone of certain property
1950	Amends land use policy of comprehensive plan
1951	Commits council to rezone of certain property
1952	Amends land use policy of comprehensive plan
1953	Commits council to rezone of certain property
1954	Commits council to rezone of certain property
1955	Acquisition of right-of-way for Cape Horn Drive
1956	Agreement for snacks
1957	Amends land use policy of comprehensive plan
1958	Commits council to rezone of certain property
1959	Plans for LID No. T-11
1960	Victim Advocate Program
1961	Amends land use policy of comprehensive plan
1962	Commits council to rezone of certain property

Resolution Number	
1963	Amends land use policy of comprehensive plan
1964	Amends land use policy of comprehensive plan
1965	Amends land use policy of comprehensive plan
1966	Commits council to rezone of certain property
1967	Commits council to rezone of certain property
1968	Amends land use policy of comprehensive plan
1969	Commits council to rezone of certain property
1970	Amends land use policy of comprehensive plan
1971	Commits council to rezone of certain property
1972	Adopts vision, goals and principles for regional telecommunications plan
1973	Commits council to rezone of certain property
1974	(Not adopted)
1975	Proposes to issue certain bonds and levy a special elective tax
1976	Proposes to issue certain bonds and levy a special elective tax
1977	Commits council to rezone of certain property
1978	Amends land use policy of comprehensive plan
1979	Commits council to rezone of certain property
1980	Amends land use policy of comprehensive plan
1981	Commits council to rezone of certain property
1982	Amends land use policy of comprehensive plan
1983	Commits council to rezone of certain property
1984	Issuance of certain general obligation bonds
1985	Amends land use policy of comprehensive plan
1986	Commits council to rezone of certain property
1987	Adopts interlocal agreement for the housing of inmates
1988	Supports certain state legislation
1989	Amends land use policy of comprehensive plan
1990	Commits council to rezone of certain property
1991	Adopts interlocal contract to provide sewer service
1992	Adopts interlocal contract to provide sewer service
1993	Amends deferred compensation plan
1994	Regards sale of certain property
1995	Amends land use policy of comprehensive plan
1996	Commits council to rezone of certain property
1997	Commits council to rezone of certain property
1998	Commits council to rezone of certain property
1999	Commits council to rezone of certain property

Resolution Number	
2000	Adopts cooperative agreement to provide water service
2001	Amends land use policy of comprehensive plan
2002	Amends land use policy of comprehensive plan
2003	Commits council to rezone of certain property
2004	Commits council to rezone of certain property (Repealed by Res. 2386)
2005	Amends land use policy of comprehensive plan
2006	Commits council to rezone of certain property
2007	Commits council to rezone of certain property (Repealed by Res. 2386)
2008	Commits council to rezone of certain property
2009	Proposes to issue certain bonds and levy a special elective tax
2010	Proposes to issue certain bonds and levy a special elective tax
2011	Supports Southern Nevada Water Authority in providing improvements
2012	Amends land use policy of comprehensive plan
2013	Commits council to rezone of certain property
2014	Commits council to rezone of certain property
2015	Adopts cooperative agreement to provide wastewater treatment facilities
2016	Supports I-15/I-40 tri-state compact for lane improvements
2017	Amends land use policy of comprehensive plan
2018	Amends land use policy of comprehensive plan
2019	Commits council to rezone of certain property
2020	Commits council to rezone of certain property
2021	Amends deferred compensation plan
2022	Approves memorandum of understanding for the allocation of sales tax revenues
2023	Amends land use policy of comprehensive plan
2024	Commits council to rezone of certain property
2025	Amends land use policy of comprehensive plan
2026	Commits council to rezone of certain property
2027	Expresses concern and general opposition to assembly bill 207
2028	Supports construction of Whitney Ranch recreation center
2029	Amends land use policy of comprehensive plan
2030	Commits council to rezone of certain property
2031	1997 park and recreation bond and special elective tax canvass
2032	Supports certain state legislation
2033	Makes appropriations and authorizes a loan for the Henderson redevelopment agency
2034	Intent to sell/lease certain property

Resolution Number	
2035	Commits council to support a community planning collaboration process
2036	Intent to lease a portion of the Wells Park community center
2037	Intent to lease a portion of the Wells Park community center
2038	Authorizes execution of administrative agreement, LID No. T-1
2039	Amends land use policy of comprehensive plan
2040	Commits council to rezone of certain property
2041	Amends land use policy of comprehensive plan
2042	Commits council to rezone of certain property
2043	Endorses Las Vegas urban resources partnership program
2044	Commits council to rezone of certain property
2045	Intent to sell certain property
2046	1997 performing arts theater bond and special elective tax canvass
2047	Intent to exchange certain property for another property
2048	1996/97 budget augmentation
2049	Amends Res. No. 2033
2050	Adopts cooperative agreement with Las Vegas Valley water district
2051	Commits council to rezone of certain property
2052	Amends land use policy of comprehensive plan
2053	Authorizes financing for acquisition of fire protection equipment
2054	Authorizes reimbursement of the costs of various projects
2055	Supports development of River Mountain Loop Trail
2056	Transfers city's share of 1997 state ceiling to the county for financing of electric energy facilities
2057	Commits council to amend Res. No. 1889
2058	Authorizes financing for various projects
2059	Amends land use policy of comprehensive plan
2060	Commits council to rezone of certain property
2061	Authorizes financing for acquisition of fire protection equipment
2062	Authorizes sale of park and recreation bonds
2063	Cooperative agreement for delivery of snacks to school cafeteria
2064	Declares state of emergency and achieves and activates emergency management plan
2065	Amends land use policy of comprehensive plan
2066	Commits council to rezone of certain property
2067	Confirms state of emergency, requests governor's proclamation and government assistance
2068	Approves apportionment of surplus monies available for refund, LID 821

Resolution Number	
2069	Approves apportionment of surplus monies available for refund, LID 834
2070	Considers annexation of certain real property
2071	Amends land use policy of comprehensive plan
2072	Commits council to rezone of certain property
2073	Commits council to rezone of certain property
2074	Commits council to rezone of certain property
2075	Commits council to rezone of certain property
2076	Amends land use policy of comprehensive plan
2077	Commits council to rezone of certain property (Repealed by Res. 2386)
2078	Amends land use policy of comprehensive plan
2079	Commits council to rezone of certain property
2080	Amends land use policy of comprehensive plan
2081	Commits council to rezone of certain property
2082	Amends land use policy of comprehensive plan
2083	Commits council to rezone of certain property
2084	Amends land use policy of comprehensive plan
2085	Commits council to rezone of certain property
2086	Commits council to rezone of certain property
2087	Commits council to rezone of certain property
2088	Adopts cooperative agreement with Las Vegas Valley water district
2089	Adopts interlocal contract with Clark County sanitation district
2090	Amends land use policy of comprehensive plan
2091	Commits council to rezone of certain property
2092	Amends land use policy of comprehensive plan
2093	Commits council to rezone of certain property
2094	Amends comprehensive plan by adopting bike lanes and trails element
2095	Establishes deferred compensation plan for regular employees through the ICMA retirement corporation
2096	Expresses intent to sell certain real property
2097	Amends land use policy of comprehensive plan
2098	Commits council to rezone of certain property
2099	Amends land use policy of comprehensive plan
2100	Commits council to rezone of certain property
2101	Commits council to rezone of certain property
2102	Amends land use policy of comprehensive plan
2103	Commits council to rezone of certain property (Repealed by Res. 2386)
2104	Amends land use policy of comprehensive plan

Resolution Number	
2105	Commits council to rezone of certain property
2106	Amends land use policy of comprehensive plan
2107	Adopts cooperative water service agreement
2108	Amends land use policy of comprehensive plan
2109	Amends land use policy of comprehensive plan
2110	Amends land use policy of comprehensive plan
2111	Commits council to rezone of certain property
2112	Commits council to rezone of certain property
2113	Amends land use policy of comprehensive plan
2114	Commits council to rezone of certain property
2115	Amends land use policy of comprehensive plan
2116	Commits council to rezone of certain property
2117	Authorizes medium-term financing for purpose of acquiring computer software licensing
2118	Express support for proposed name change at Community College of Southern Nevada
2119	Adopts interlocal contract with county for sewer service
2120	Adopts cooperative water service agreement
2121	Amends land use policy of comprehensive plan
2122	Commits council to rezone of certain property
2123	Petition to U.S. congress and administration to preserve and continue funding of community development block grant
2124	Local improvement district 981 water project preliminary plans preparation
2125	Local improvement district 981 water project public hearing
2126	Amends land use policy of comprehensive plan
2127	Commits council to rezone of certain property
2128	Establishment of internal service fund
2129	Amends land use policy of comprehensive plan
2130	Commits council to rezone of certain property
2131	Commits council to rezone of certain property
2132	Approves interlocal agreement for water system facilities, operation
2133	Local improvement district No. T-12 formation petition acceptance
2134	Amends land use policy plan
2135	Commits council to rezone of certain property
2136	Six million dollar loan to redevelopment agency
2137	Cancels, revokes and repeals cooperative agreements with Las Vegas Valley Water District

Resolution Number	
2138	Cooperative agreement with Las Vegas Valley Water District
2139	Considers advisability and economic feasibility of the formation of LID No. 981
2140	Authorizes creation of LID T-12
2141	Reapportions assessments for LID T-1
2142	Amends land use policy plan
2143	Commits council to rezone of certain property
2144	Amends land use policy plan
2145	Commits council to rezone of certain property
2146	Amends land use policy plan
2147	Commits council to rezone of certain property
2148	Issuance of water and sewer bonds
2149	Authorizes mayor to enter into a Rebuild America Partnership with U.S. Department of Energy
2150	Intent to sell property
2151	Amends land use policy plan
2152	Amends land use policy plan
2153	Commits council to rezone of certain property
2154	Authorizes publication of notices relating to the issuance of water and sewer bonds
2155	1997/98 budget augmentation
2156	Amends land use policy plan
2157	Commits council to rezone of certain property
2158	Amends land use policy plan
2159	Amends land use policy plan
2160	Commits council to rezone of certain property
2161	Commits council to rezone of certain property
2162	Amends land use policy plan
2163	Amends land use policy plan
2164	Commits council to rezone of certain property
2165	Amends land use policy plan
2166	Commits council to rezone of certain property
2167	Intent to sell property
2168	Approves Resolutions 113, 114 and 115 of the Henderson Public Improvement Trust
2169	Amends land use policy plan
2170	Adopts interlocal contract with county for sewer service

Resolution Number	
2171	Adopts cooperative water service agreement
2172	Commits council to rezone of certain property
2173	Commits council to rezone of certain property
2174	Commits council to rezone of certain property
2175	Amends land use policy plan
2176	Commits council to rezone of certain property
2177	Amends land use policy plan
2178	Commits council to rezone of certain property
2179	Amends land use policy plan
2180	Commits council to rezone of certain property
2181	Amends land use policy plan
2182	Commits council to rezone of certain property
2183	Intent to exchange property
2184	Commits council to rezone of certain property
2185	Amends land use policy plan
2186	Commits council to rezone of certain property
2187	Amends land use policy plan
2188	Commits council to rezone of certain property
2189	Approves interlocal agreement for snacks
2190	Proposes to issue health facility revenue bonds
2191	Amends land use policy plan
2192	Commits council to rezone of certain property
2193	Amends land use policy plan
2194	Commits council to rezone of certain property
2195	Issuance of health facility revenue bonds
2196	Adds certain streets to schedule referenced at HMC 10.62.010, golf carts
2197	Amends land use policy plan
2198	Amends land use policy plan
2199	Commits council to rezone of certain property
2200	Intent to exchange property
2201	Amends land use policy plan
2202	Amends land use policy plan
2203	Commits council to rezone of certain property (Repealed by Res. 2386)
2204	Adopts interlocal contract with county for sewer service
2205	Amends land use policy plan
2206	Amends land use policy plan
2207	Amends land use policy plan

Resolution Number	
2208	Amends land use policy plan
2209	Intent to sell property
2210	Commits council to rezone of certain property
2211	Adopts interlocal agreement with county
2212	Amends land use policy plan
2213	Commits council to rezone of certain property
2214	Amends land use policy plan
2215	Commits council to rezone of certain property
2216	Amends land use policy plan
2217	Commits council to rezone of certain property
2218	Commits council to rezone of certain property
2219	Amends land use policy plan
2220	Commits council to rezone of certain property
2221	Amends land use policy plan
2222	Commits council to rezone of certain property
2223	Commits council to rezone of certain property
2224	Adopts Southern Nevada water authority capital improvements plan
2225	Adopts cooperative agreement with water and sanitation districts
2226	Adopts memorandum of understanding regarding Southern Nevada water authority's water conservation/efficiency programs for 1999 to 2004
2227	Approves amended interlocal cooperative agreement for the Southern Nevada water system
2228	Amends land use policy plan
2229	Amends land use policy plan
2230	Commits council to rezone of certain property
2231	Reduces rate of interest on uncollected installments of assessments levied in LID T-4
2232	Reduces rate of interest on uncollected installments of assessments levied in LID T-4
2233	Allows control of tobacco products and tobacco-smoke contamination
2234	Adopts interlocal agreement with Clark County sanitation district
2235	Adopts cooperative agreement with Las Vegas Valley water district
2236	Adopts cooperative agreement with Las Vegas Valley water district
2237	Amends land use policy plan
2238	Commits council to rezone of certain property
2239	Amends land use policy plan
2240	Commits council to rezone of certain property

Resolution Number	
2241	Amends land use policy plan
2242	Intent to exchange real property
2243	Obtaining fee title to a portion of right-of-way
2244	Obtaining fee title to a portion of right-of-way
2245	Obtaining fee title to a portion of right-of-way
2246	Amends land use policy plan
2247	Commits council to rezone of certain property
2248	Commits council to rezone of certain property
2249	Adopts interlocal contract with Clark County sanitation district
2250	Adopts amendment No. 2 to a cooperative agreement with Las Vegas Valley water district
2251	Authorizes temporary interfund loan
2252	Appropriations
2253	Amends land use policy plan
2254	Commits council to rezone of certain property
2255	Amends land use policy plan
2256	Commits council to rezone of certain property
2257	Requesting the Department of Energy to avoid transporting radioactive and/or hazardous waste through Clark County using certain roads
2258	Proposes to issue capital improvement bonds
2259	Adopts amendment No. 2 to a cooperative agreement with Las Vegas Valley water district
2260	Terminates cooperative agreement for the Clark County clearinghouse council
2261	Adopts new interlocal agreement for inmate housing services for Clark County
2262	Amends land use policy plan
2263	Commits council to rezone of certain property
2264	Amends land use policy plan
2265	Commits council to rezone of certain property
2266	Amends land use policy plan
2267	Commits council to rezone of certain property
2268	Adopts agreement with the Nevada Division of Forestry
2269	1998/1999 budget augmentation
2270	Intent to issue various purpose bonds
2271	Amends land use policy plan
2272	Commits council to rezone of certain property

Resolution Number	
2273	Amends land use policy plan
2274	Commits council to rezone of certain property
2275	Adopts interlocal agreement to establish regional coordination of franchise-related activities
2276	Authorizes sale of general obligation bonds to finance various city improvements
2277	Relinquishment by NDOT to the city of certain highway right-of-way
2278	Amends land use policy plan
2279	Commits council to rezone of certain property
2280	Amends land use policy plan
2281	Commits council to rezone of certain property
2282	Amends land use policy plan
2283	Amends land use policy plan
2284	Commits council to rezone of certain property
2285	Grants lease of city property
2286	Amends land use policy plan
2287	Commits council to rezone of certain property
2288	Amends land use policy plan
2289	Supports decision of Las Vegas Convention and Visitors Authority's desire to expand their convention facilities
2290	Amends land use policy plan
2291	Commits council to rezone of certain property
2292	Amends land use policy plan
2293	Commits council to rezone of certain property
2294	Intent to sell certain real property
2295	Amends land use policy plan
2296	Commits council to rezone of certain property
2297	Amends land use policy plan
2298	Commits council to rezone of certain property
2300	Adopts cooperative agreement with city of Las Vegas and Clark County sanitation district
2301	Amends land use policy plan
2302	Intent to rezone certain property
2303	Issuance of health facility revenue bonds
2304	Intent to exchange property
2305	Intent to sell property
2306	Intent to sell property

Resolution Number	
2307	Obtains fee title to a portion of right-of-way
2308	Adopts interlocal agreement with Clark County board of school trustees for city safekey program milk purchase
2309	Authorizes financing for acquisition of fire protection equipment
2310	Adopts cooperative agreement with Las Vegas Valley water district
2311	Amends land use policy plan
2312	Intent to rezone certain property
2313	Amends land use policy plan
2314	Intent to rezone certain property
2315	Issuance of health facility revenue bonds
2316	Considers annexation of certain real property
2317	Intent to rezone certain property
2318	Intent to rezone certain property
2319	Adopts cooperative agreement
2320	Authorizes financing for acquisition of fire protection equipment
2321	Amends land use policy plan
2322	Intent to rezone certain property
2323	Amends land use policy plan
2324	Intent to rezone certain property
2325	Amends land use policy plan
2326	Amends land use policy plan
2327	Intent to rezone certain property
2328	Adopts cooperative agreement with Las Vegas Valley water district
2329	Intent to sell property
2330	Intent to rezone certain property
2331	Intent to rezone certain property
2332	Intent to rezone certain property
2333	Intent to rezone certain property
2334	Intent to rezone certain property
2335	Intent to rezone certain property
2336	Intent to rezone certain property
2337	Intent to rezone certain property
2338	Intent to rezone certain property
2339	Intent to rezone certain property
2340	Intent to rezone certain property
2341	(Number not used)
2342	Intent to rezone certain property

Resolution Number	
2343	Intent to rezone certain property
2344	Intent to rezone certain property
2345	Establishes development services enterprise fund
2346	Management of private activity bond cap
2347	Reallocation of private activity bond cap
2348	Amends land use policy plan
2349	Intent to rezone certain property
2350	Amends land use policy plan
2351	Intent to rezone certain property
2352	Amends land use policy plan
2353	Amends land use policy plan
2354	Intent to rezone certain property
2355	Adopts cooperative agreement with U.S. Air Force
2356	Amends land use policy plan
2357	Intent to rezone certain property
2358	Intent to rezone certain property
2359	Extends time to rezone certain property
2360	Extends time to rezone certain property
2361	Intent to exchange certain real property
2362	Intent to solicit proposals for a public golf course
2363	Adopts cooperative agreement with Clark County health district
2364	Amends land use policy plan
2365	Intent to rezone certain property
2366	Amends land use policy plan
2367	Intent to rezone certain property
2368	Intent to rezone certain property
2369	Alternate line of credit for Pueblo Verde Apartments bond issues
2370	Extends time to rezone certain property
2371	Amends land use policy plan
2372	Amends land use policy plan
2373	Amends land use policy plan
2374	Intent to rezone certain property
2375	Extends time to rezone certain property
2376	Support of magnetic levitation train project
2377	Support of production website
2378	Support of locating a state college in Henderson
2379	Intent to rezone certain property

Resolution Number	
2380	Amends land use policy plan
2381	Intent to rezone certain property
2382	Amends land use policy plan
2383	Amends land use policy plan
2384	Intent to rezone certain property
2385	Support of United Parcel Service's pursuit of express air landing rights in China
2386	Repeals Resos. 1874, 2004, 2077, 2103 and 2203
2387	Intent to exchange certain real property
2388	Intent to obtain fee title to certain real property
2389	Public safety tax override
2390	Extends time to rezone certain property
2391	Intent to rezone certain property
2392	Intent to lease certain property
2393	Study expansion of the Henderson redevelopment area
2394	Amends land use policy plan
2395	Intent to rezone certain property
2396	Extends time to rezone certain property
2397	Intent to rezone certain property
2398	Supports passage of SJR ballot question
2399	Intent to sell certain subdivision lot
2400	Amends land use policy plan
2401	Amends land use policy plan
2402	Intent to rezone certain property
2403	Intent to rezone certain property
2404	Extends time to rezone certain property
2405	Intent to rezone certain property
2406	Intent to rezone certain property
2407	Intent to rezone certain property
2408	Intent to exchange certain real property
2409	Amends land use policy plan
2410	Intent to rezone certain property
2411	Amends land use policy plan
2412	Intent to rezone certain property
2413	Extends time to rezone certain property
2414	Cooperative agreement for water service outside city limits
2415	Internet tax and Congressional moratorium

Resolution Number	
2416	Intent to sell certain property
2417	Amends land use policy
2418	Intent to rezone certain property
2419	Amends land use policy plan
2420	Intent to rezone certain property
2421	2000 public safety special elective tax election
2422	Supports efforts to promote racial justice
2423	Cooperative agreement creating chief local elected official consortium
2424	Considers annexation of real property
2425	Adds certain streets to schedule referenced at HMC 10.62.010, golf carts
2426	Amends land use policy plan
2427	Intent to rezone certain property
2428	Extends time to rezone certain property
2429	Intent to rezone certain property
2430	Intent to rezone certain property
2431	1999/2000 budget augmentation
2432	Intent to lease certain property
2433	Amends land use policy plan
2434	Intent to rezone certain property
2435	Amends land use policy plan
2436	Intent to rezone certain property
2437	Amends land use policy plan
2438	Amends land use policy plan
2439	Intent to rezone certain property
2440	Authorizes organization of independent regional air quality agency
2441	Amends land use policy plan
2442	Intent to rezone certain property
2443	Amends land use policy plan
2444	Intent to rezone certain property
2445	Amends land use policy plan
2446	Intent to rezone certain property
2447	Amends land use policy plan
2448	Intent to rezone certain property
2449	Intent to rezone certain property
2450	Intent to rezone certain property
2451	Cooperative agreement for transportation services
2452	Cooperative agreement to allocate sales tax revenues

Resolution Number	
2453	Cooperative agreement for water services outside city limits
2454	Cooperative agreement for safekey milk purchase
2455	Cooperative agreement for wetlands demonstration project
2456	Amends land use policy plan
2457	Amends land use policy plan
2458	Temporary interfund loan
2459	Intent to rezone certain property
2460	Intent to rezone certain property
2461	Extends time to rezone certain property
2462	Extends time to rezone certain property
2463	Intent to sell certain property
2464	Intent to sell certain property
2465	Amends land use policy plan
2466	Intent to rezone certain property
2467	Amends Southwest Henderson Special Study Area Plan
2468	Amends land use policy plan
2469	Intent to rezone certain property
2470	Intent to rezone certain property
2471	Intent to rezone certain property
2472	Amends land use policy plan
2473	Intent to rezone certain property
2474	Amends land use policy plan
2475	Intent to rezone certain property
2476	Amends land use policy plan
2477	Intent to rezone certain property
2478	Amends land use policy plan
2479	Intent to rezone certain property
2480	Amends land use policy plan
2481	Intent to rezone certain property
2482	Amends land use policy plan
2483	Intent to rezone certain property
2484	Intent to rezone certain property
2485	Extends time to rezone certain property
2486	Intent to rezone certain property
2487	Intent to rezone certain property
2488	Intent to rezone certain property
2489	Intent to rezone certain property

Resolution Number	
2490	Amends land use policy plan
2491	Intent to rezone certain property
2492	Amends land use policy plan
2493	Intent to rezone certain property
2494	Amends bike lanes and trails element of comprehensive plan map
2495	Amends land use policy plan
2496	Extends time to rezone certain property
2497	Intent to rezone certain property
2498	Intent to rezone certain property
2499	Amends land use policy plan
2500	Intent to rezone certain property
2501	Amends land use policy plan
2502	Intent to rezone certain property
2503	Intent to sell certain property
2504	Designates area for evaluation for proposed redevelopment project
2505	Extends time to rezone certain property
2506	Cooperative agreement for utilization of firefighter training facility
2507	Amends land use policy plan
2508	Intent to rezone certain property
2509	Intent to rezone certain property
2510	Intent to rezone certain property
2511	Establishes petty cash account to assist in administration of city attorney's office
2512	Cooperative agreement with Clark County sanitation district for sewer service
2513	Authorizes medium-term obligation for loan for sewer enterprise fund
2514	Amends land use policy plan
2515	Intent to rezone certain property
2516	Amends land use policy plan
2517	Intent to rezone certain property
2518	Consents to payment for costs of constructing and installing certain improvements
2519	Intent to rezone certain property
2520	Intent to rezone certain property
2521	Intent to rezone certain property
2522	Consideration for annexation of certain property
2523	Intent to designate certain property for possible public library branch

Resolution Number	
2524	Redesignates and amends boundaries for area of evaluation for proposed redevelopment area
2525	Amends land use policy plan
2526	Intent to rezone certain property
2527	Amends bike element of comprehensive plan to reroute Amargosa Trail
2528	Amends land use policy plan
2529	Intent to rezone certain property
2530	Amends land use policy plan
2531	Intent to rezone certain property
2532	Intent to rezone certain property
2533	Intent to rezone certain property
2534	Intent to rezone certain property
2535	Intent to rezone certain property
2536	Intent to sell certain property
2537	Receipt of redevelopment plan and directs public hearing
2538	Amends land use policy plan
2539	Intent to rezone certain property
2540	Amends land use policy plan
2541	Intent to rezone certain property
2542	Intent to rezone certain property
2543	Intent to rezone certain property
2544	Designating certain property as area for evaluation for redevelopment project
2545	Amends land use policy plan
2546	Intent to rezone certain property
2547	Extends time to rezone certain property
2548	Supports creation of regional shooting range
2549	Amends land use policy plan
2550	Intent to rezone certain property
2551	Intent to rezone certain property
2552	Public safety special elective tax proposal
2553	Amends land use policy plan
2554	Intent to rezone certain property
2555	Amends land use policy plan
2556	Intent to rezone certain property
2557	Intent to rezone certain property
2558	Intent to exchange certain real property

Resolution Number	
2559	Extends time to rezone certain property
2560	Intent to rezone certain property
2561	Creates multipurpose special revenue fund
2562	Intent to sell certain real property
2563	Intent to sell certain real property
2564	Amends land use policy plan
2565	Intent to rezone certain property
2566	Intent to rezone certain property
2567	Extends time to rezone certain property
2568	Intent to sell certain real property
2569	Consent to payment per ownership participation agreement
2570	Intent to rezone certain property
2571	Intent to amend zone change/planned unit development for certain property
2572	Calls election on public safety special elective tax
2573	Intent to exchange certain real property
2574	Intent to sell certain real property
2575	Intent to sell certain real property
2576	Supports an annual diesel vehicle emission check
2577	Establishment of position regarding electric deregulation
2578	Amends land use policy plan
2579	Intent to rezone certain property
2580	Amends land use policy plan
2581	Extends time to rezone certain property
2582	Intent to rezone certain property
2583	Extends time to rezone certain property
2584	Approves application for federal Land and Water Conservation Fund grant for certain purpose
2585	Approves application for federal Land and Water Conservation Fund grant for certain purpose
2586	Regional coordination of strategies for Yucca Mountain
2587	Supports additional state funding for air quality programs
2588	Supports PM10 state implementation plan
2589	Supports extension of looped railroad/tourist train operation
2590	Amends land use policy plan
2591	Intent to lease certain property
2592	Intent to sell certain property

Resolution Number	
2593	Extends time to rezone certain property
2594	Extends time to rezone certain property
2595	Intent to rezone certain property
2596	Intent to rezone certain property
2597	Intent to sell certain property
2598	Intent to rezone certain property
2599	Intent to rezone certain property
2600	Amends land use policy plan
2601	Cooperative agreement with Clark County sanitation district and Southern Nevada Water Authority for ADS
2602	Interlocal agreement for Las Vegas wash
2603	Extends time to rezone certain property
2604	Intent to rezone certain property
2605	Intent to rezone certain property
2606	Intent to rezone certain property
2607	Intent to rezone certain property
2608	Intent to rezone certain property
2609	Intent to rezone certain property
2610	Authorizes execution of administrative agreement, LID No. T-13
2611	Reduces rate on interest on uncollected installments of T-10 assessments
2612	Intent to rezone certain property
2613	Ratifies policies for projects of regional significance approved by SNRPC
2614	Interlocal agreement with county school district for lunch and/or breakfast program
2615	Authorizes acquisition of property for certain construction projects
2616	Intent to rezone certain property
2617	Amends land use policy plan
2618	Intent to rezone certain property
2619	Interlocal agreement with board of regents to lease space for NSC at Henderson
2620	Intent to rezone certain property
2621	Intent to rezone certain property
2622	Amends condition of sale No. 9 of Reso. 2592
2623	Interlocal agreement with Henderson District Public Library
2624	Interlocal agreement with Clark County School District regarding transportation fees
2625	Intent to sell certain property

Resolution Number	
2626	Exchange of property with Pageantry Development
2627	Establishes petty cash accounts to assist in administration
2628	Authorizes condemnation action to acquire property for WRF expansion
2629	Augments various 2000/2001 funds
2630	Amends land use policy plan
2631	Intent to incorporate additional acreage within city limits
2632	Extends time to rezone certain property
2633	Intent to rezone certain property
2634	Establishes city capitalization threshold
2635	Amends land use policy plan
2636	Intent to rezone certain property
2637	Amends land use policy plan
2638	Extends time to rezone certain property
2639	Intent to rezone certain property
2640	Intent to lease certain property
2641	Intent to lease certain property
2642	Intent to lease certain property
2643	Amends land use policy plan
2644	Intent to rezone certain property
2645	Amends land use policy plan
2646	Intent to rezone certain property
2647	Intent to rezone certain property
2648	Intent to rezone certain property
2649	Intent to rezone certain property
2650	Intent to sell certain property
2651	Amends land use policy plan
2652	Intent to rezone certain property
2653	Amends land use policy plan
2654	Agreement for mutual aid with the United States Air Force
2655	Intent to exchange certain property
2656	Amends land use policy plan
2657	Intent to rezone certain property
2658	Intent to rezone certain property
2659	Intent to rezone certain property
2660	Interlocal agreement with Clark County and Clark County Sanitation District
2661	Amends land use policy plan

Resolution Number	
2662	Intent to rezone certain property
2663	Intent to rezone certain property
2664	Amends comprehensive plan
2665	Intent to rezone certain property
2666	Intent to rezone certain property
2667	Intent to rezone certain property
2668	Amends land use policy plan
2669	Intent to rezone certain property
2670	Intent to rezone certain property
2671	Intent to rezone certain property
2672	Intent to rezone certain property
2673	Intent to rezone certain property
2674	Intent to rezone certain property
2675	Intent to rezone certain property
2676	Intent to rezone certain property
2677	Establishes discharge conveyance program
2678	Provides agreement which establishes water service to Las Vegas Paiute Tribe Reservation.
2679	Amends land use policy plan
2680	Intent to rezone certain property
2681	Amends land use policy plan
2682	Intent to rezone certain property
2683	Authorizes an installment purchase agreement
2684	Adopts cooperative agreement to provide election services
2685	Intent to lease certain property
2686	Intent to sell property to Henderson Redevelopment Agency
2687	Amends land use policy plan
2688	Intent to rezone certain property
2689	Amends land use policy plan
2690	Intent to rezone certain property
2691	Amends land use policy plan
2692	Intent to rezone certain property and repeals Resolution 2582
2693	Intent to rezone certain property
2694	Intent to rezone certain property
2695	Authorizes installment purchase agreement
2696	Grants time extension for certain property rezoning
2697	Intent to rezone certain property

Resolution Number	
2698	Intent to rezone certain property
2699	Amends dates in Resolution 2685 to receive bid proposals
2700	Authorized amendment to deferred compensation plan
2701	Authorizes amendment to deferred compensation plan
2702	Intent to lease certain real property
2703	Intent to lease certain real property
2704	Increases compensation for planning commissioners
2705	Amends land use policy plan
2706	Intent to rezone certain property
2707	Amends Horizon Center Plan
2708	Intent to rezone certain property
2709	Extends time to rezone certain property
2710	Amends dates to receive bid proposals
2711	Amends land use policy plan
2712	Amends land use policy plan
2713	Authorizes revenue fund
2714	Approves funding agreement for Power Capital Improvement Plan
2715	Establishes property exchange
2716	Amends land use policy plan
2717	Intent to rezone certain property
2718	Amends land use policy plan
2719	Intent to rezone certain property
2720	Intent to rezone certain property
2721	Intent to rezone certain property
2722	Intent to rezone certain property
2723	Amends land use policy plan
2724	Intent to rezone certain property
2725	Amends land use policy plan
2726	Intent to rezone certain property
2727	Extends time to rezone certain property
2728	Intent to rezone certain property
2729	Intent to rezone certain property
2730	Amends land use policy plan
2731	Amends land use policy
2732	Intent to rezone certain property
2733	Intent to rezone certain property
2734	Adopts cooperative agreement to establish traffic management structure

Resolution Number	
2735	Approves apportionment of surplus monies
2736	Extends time to rezone certain property
2737	Intent to rezone certain property
2738	Adds positions for real and facsimile signatures and repeals Resolution 1564
2739	Amends land use policy plan
2740	Intent to rezone certain property
2741	Amends land use policy plan
2742	Amends master streets and highway plan
2743	Creates local improvement District No. T-13
2744	Amends land use policy plan
2745	Approves payment for land and improvements pursuant to an owner participation agreement between Henderson redevelopment agency and Commerce Associates, LLC
2746	Amends land use policy plan
2747	Intent to rezone certain property
2748	Amends land use policy plan
2749	Amends land use policy plan
2750	Intent to rezone certain property
2751	Intent to rezone certain property
2752	Amends land use policy plan
2753	Extends time to rezone certain property
2754	Authorizes application for federal land and water conservation fund grant
2755	Reaffirms opposition to transportation and storage of nuclear waste in Nevada
2756	Extends time to rezone certan property
2757	Amends land use policy plan
2758	Intent to rezone certain property
2759	Amends land use policy plan
2760	Intent to rezone certain property
2761	Need to obtain municipal utility and flood control easement and temporary construction easements
2762	Extends time to rezone certan property
2763	Amends cooperative agreement for water service
2764	Intent to rezone certain property
2765	Extends time to rezone certain property
2766	Intent to rezone certain property

Resolution Number	
2767	Intent to rezone certain property
2768	Cooperative agreement with the Clark County school district
2769	2001/2002 budget augmentation
2770	Interlocal agreement with regional flood control district
2771	Amends cooperative agreement for water service
2772	Extends time to rezone certain property
2773	Extends time to rezone certain property
2774	Intent to rezone certain property
2775	Intent to rezone certain property
2776	Intent to rezone certain property
2777	Intent to sell certain property
2778	Intent to sell certain property
2779	Establishes constructions and capital plan
2780	Intent to sell certain property
2781	Intent to sell certain property
2782	Amends land use policy plan
2783	Intent to rezone certain property
2784	Amends land use policy plan
2785	Amends land use policy plan
2786	Amends land use policy plan
2787	Amends land use policy plan
2788	Amends land use policy plan
2789	Intent to rezone certain property
2790	Amends land use policy plan
2791	Intent to rezone certain property
2792	Amends land use policy plan
2793	Intent to rezone certain property
2794	Amends land use policy plan
2795	Amends land use policy plan
2796	Intent to rezone certain property
2797	Intent to rezone certain property
2798	Extends time to rezone certain property
2799	Extends time to rezone certain property
2800	Intent to rezone certain property
2801	Intent to rezone certain property
2802	Interlocal contract with the Clark County Sanitation District
2803	Intent to sell certain property

Resolution Number	
2804	Intent to sell certain property
2805	Extends time to rezone certain property
2806	Extends time to rezone certain property
2807	Intent to rezone certain property
2808	Intent to sell certain property
2809	Intent to sell certain property
2810	Interlocal cooperative agreement with the Clark County School District
2811	Extends time to rezone certain property
2812	Extends time to rezone certain property
2813	Amends land use policy plan
2814	Intent to rezone certain property
2815	Obtaining fee title to a portion of right-of-way
2816	Extends time to rezone certain property
2817	Extends time to rezone certain property
2818	Extends time to rezone certain property
2819	Intent to rezone certain property
2820	Intent to rezone certain property
2821	Intent to rezone certain property
2822	Intent to rezone certain property
2823	Intent to rezone certain property
2824	Amends land use policy plan
2825	Extends time to rezone certain property
2826	Intent to rezone certain property
2827	Intent to rezone certain property
2828	Endorsement of environmental assessment for St. Rose Parkway widening and interchange reconstruction
2829	Adopts cooperative agreement for St. Rose Parkway widening
2830	Extends time to rezone certain property
2831	Intent to rezone certain property
2832	Local improvement district LID No. 981 total cost
2833	Local improvement district LID No. 981 interest rate resolution
2834	Local improvement district LID No. 981 public hearing for assessments
2835	Amends cooperative agreement for Las Vegas FAST
2836	Intent to sell certain property
2837	Intent to sell certain property
2838	Approves interlocal agreement between the city of Henderson and Cox Communications Cable System

Resolution Number	
2839	Extends time to rezone certain property
2840	Submission of State Transportation Enhancement Application to the Nevada Department of Transportation for the Lake Mead Drive Corridor
2841	Submission of State Transportation Enhancement Application to the Nevada Department of Transportation for the St. Rose Parkway Corridor
2842	Interlocal cooperative agreement with the city of Las Vegas and the Clark County Sanitation District
2843	Intent to lease real property
2844	Nominates an area for sale at auction by the United States Department of the Interior Bureau of Land Management
2845	Amends land use policy plan
2846	Intent to rezone certain property
2847	Amends land use policy
2848	Amends land use policy
2849	Intent to rezone certain property
2850	Regards Title XVI funding allocation
2851	Intent to rezone certain property
2852	Extends time to rezone certain property
2853	Extends time to rezone certain property
2854	Extends time to rezone certain property
2855	Interlocal agreement with the Clark County Board of School Trustees
2856	Amends land use policy
2857	Amends land use policy
2858	Intent to rezone certain property
2859	Intent to rezone certain property
2860	Intent to rezone certain property
2861	Amends land use policy
2862	Intent to rezone certain property
2863	Amends land use policy
2864	Intent to rezone certain property
2865	Intent to rezone certain property
2866	Intent to rezone certain property
2867	Intent to rezone certain property
2868	Local improvement district LID. No. 981 final assessment roll
2869	Intent to sell certain property
2870	Intent to sell certain property
2871	Intent to sell certain property

Resolution Number	
2872	Interlocal agreement with the Clean Water Coalition
2873	Amends master street and highway plan
2874	Extends time to rezone certain property
2875	Extends time to rezone certain property
2876	Intent to rezone certain property
2877	Intent to rezone certain property
2878	Regards Amendment No. 1 to the cooperative agreement for banking of water
2879	Intent to rezone certain property
2880	Declares primary municipal election
2881	Amends land use policy plan
2882	Amends land use policy plan
2883	Amends master streets and highway plan
2884	Amends master streets and highway plan
2885	Intent to rezone certain property
2886	Amends land use policy plan
2887	Intent to rezone certain property
2888	Amends land use policy plan
2889	Intent to rezone certain property
2890	Amends master streets and highway plan
2891	Amends land use policy plan
2892	Amends land use policy plan
2893	Amends land use policy plan
2894	Intent to rezone certain property
2895	Amends master streets and highway plan
2896	Amends master streets and highway plan
2897	Authorizes installment purchase agreement
2898	Intent to rezone certain property
2899	Intent to rezone certain property
2900	Intent to rezone certain property
2901	Intent to rezone certain property
2902	Intent to sell certain property
2903	Intent to sell certain property
2904	Intent to sell certain property
2905	Intent to sell certain property
2906	Intent to lease certain property
2907	Intent to lease certain property

Resolution Number	
2908	Amends master streets and highway plan
2909	Amends land use policy plan
2910	Amends land use policy plan
2911	Intent to rezone certain property
2912	Extends time to rezone certain property
2913	Intent to rezone certain property
2914	Intent to rezone certain property
2915	Authorizes purchase agreement for acquiring and improving telecommunications equipment
2916	Amends master streets and highway plan
2917	Authorizes revision and reassignment of specific city council policies
2918	Intent to rezone certain property
2919	Endorses environmental assessment for the construction of the I-215/I-515 Interchange
2920	Amends master streets and highway plan
2921	Extends time to rezone certain property
2922	Adds positions for real and facsimile signatures and repeals Resolution 2738
2923	Approves loan of tax increment funds
2924	Approves loan of tax increment funds
2925	Intent to lease certain property
2926	Intent to lease certain property
2927	Accepts a petition approving and authorizing the execution of an administration agreement
2928	Acquires a right-of-way and temporary easement for construction
2929	Adopts cooperative agreement for the construction of the I-215/I-515 interchange
2930	Amends land use policy plan
2931	Amends land use policy plan
2932	Intent to rezone certain property
2933	Approves termination of cooperative agreement
2934	Approves termination of cooperative agreement
2935	Intent to rezone certain property
2936	Intent to rezone certain property
2937	(skipped)
2938	Amends land use policy plan
2939	Intent to rezone certain property

Resolution Number	
2940	Amends land use policy plan
2941	Amends land use policy plan
2942	Amends master streets and highway plan
2943	Amends land use policy plan
2944	Concerns acceptance of guiding principles
2945	Local improvement district LID. No. T-14 anthem master planned community
2946	Amends land use policy plan
2947	Intent to rezone certain property
2948	Amends land use policy plan
2949	Intent to rezone certain property
2950	Amends land use policy plan
2951	Intent to rezone certain property
2952	Amends land use policy plan
2953	Intent to rezone certain property
2954	Extends time to rezone certain property
2955	Interlocal agreement with the Clean Water Coalition
2956	Amends land use policy plan
2957	Interlocal agreement with the university and community college system
2958	Extends time to rezone certain property
2959	Intent to rezone certain property
2960	2002/2003 budget augmentation
2961	Amends land use policy plan
2962	Intent to rezone certain property
2963	Intent to rezone certain property
2964	Intent to rezone certain property
2965	Regards cooperative agreement with the Las Vegas Valley Water District
2966	Interlocal contract with the Clark County Water Reclamation District
2967	Amends land use policy plan
2968	Intent to rezone certain property
2969	Amends land use policy plan
2970	Intent to rezone certain property
2971	Amends land use policy plan
2972	Intent to rezone certain property
2973	Amends land use policy plan
2974	Intent to rezone certain property
2975	Amends land use policy plan

Resolution Number	
2976	Intent to rezone certain property
2977	Amends land use policy plan
2978	Intent to rezone certain property
2979	Amends land use policy plan
2980	Intent to rezone certain property
2981	Interlocal agreement with the Clark County Water Reclamation District
2982	Intent to rezone certain property
2983	Intent to rezone certain property
2984	Authorizes filing application for a federal land and water conservation fund grant
2985	Intent to rezone certain property
2986	Intent to rezone certain property
2987	Amends land use policy plan
2988	Intent to rezone certain property
2989	Intent to rezone certain property
2990	Intent to rezone certain property
2991	Intent to rezone certain property
2992	Intent to rezone certain property
2993	Local improvement district LID. No. T-15
2994	Interlocal agreement with St. Rose Parkway Flood Control
2995	Cooperative agreement for mutual aid with the United States Air Force
2996	Intent to rezone certain property
2997	Reducing rate of interest on uncollected installments
2998	Amends land use policy plan
2999	Intent to rezone certain property
3000	Amends master streets and highway plan
3001	Intent to rezone certain property
3002	Intent to rezone certain property
3003	Interlocal cooperative agreement with Clark County School District
3004	Updates master bicycle plan map
3005	Amends master streets and highway plan
3006	Intent to rezone certain property
3007	Intent to rezone certain property
3008	Adopts Vantagecare retirement health savings plan
3009	Intent to exchange property
3010	Amends land use policy plan
3011	Amends land use policy plan

Resolution Number	
3012	Amends land use policy plan
3013	Amends land use policy plan
3014	Intent to rezone certain property
3015	Amends land use policy plan
3016	Amends land use policy plan
3017	Intent to rezone certain property
3018	Amends land use policy plan
3019	Intent to rezone certain property
3020	Intent to rezone certain property
3021	Intent to rezone certain property
3022	Intent to sell certain property
3023	Intent to sell certain property
3024	Amends land use policy plan
3025	Intent to rezone certain property
3026	Amends land use policy plan
3027	Intent to rezone certain property
3028	Intent to rezone certain property
3029	Intent to rezone certain property
3030	Interlocal cooperative agreement with the Department of Transportation (NDOT)
3031	Interlocal cooperative agreement with the Department of Education
3032	Interlocal cooperative agreement with the Clark County School District
3033	Creates internal service fund
3034	Intent to lease certain property
3035	Amends land use policy plan
3036	Intent to rezone certain property
3037	Intent to rezone certain property
3038	Intent to rezone certain property
3039	Supports Auto Show Drive Interchange aesthetic treatment
3040	Executes documents to request a grant
3041	Extends time to rezone certain property
3042	Intent to rezone certain property
3043	Amends land use policy plan
3044	Intent to rezone certain property
3045	Amends land use policy plan
3046	Intent to rezone certain property
3047	Amends land use policy plan

Resolution Number	
3048	Amends land use policy plan
3049	Intent to rezone certain property
3050	Acceptance of principles for guiding the open space plan
3051	Intent to rezone certain property
3052	Intent to rezone certain property
3053	Intent to rezone certain property
3054	Local improvement district LID. No. T-15 paradise point/horizon heights
3055	Intent to rezone certain property
3056	Intent to rezone certain property
3057	Intent to rezone certain property
3058	Intent to rezone certain property
3059	Intent to rezone certain property
3060	Intent to rezone certain property
3061	Data access agreement with Nevada State Contractors Board
3062	Health facility revenue bonds
3063	Amends land use policy plan
3064	Intent to rezone certain property
3065	Extends time to rezone certain property
3066	Intent to rezone certain property
3067	Intent to rezone certain property
3068	Intent to rezone certain property
3069	(Skipped)
3070	(Skipped)
3071	Amends land use policy plan
3072	Authorizes issuance, sale and delivery of health facility revenue bonds
3073	Ratifies preliminary plans for a street, sanitary sewer and water project
3074	Orders that a street, sanitary sewer and water project be improved
3075	Extends time to rezone certain property
3076	Intent to rezone certain property
3077	Intent to rezone certain property
3078	Intent to rezone certain property
3079	Amends land use policy plan
3080	Intent to rezone certain property
3081	Intent to rezone certain property
3082	Amends land use policy plan
3083	Intent to rezone certain property
3084	Amends land use policy plan

Resolution Number	
3085	Intent to rezone certain property
3086	Intent to rezone certain property
3087	Intent to rezone certain property
3088	Intent to rezone certain property
3089	General obligation sewer bonds
3090	Regional support of Lincoln County Land Act
3091	Local improvement district LID. No. T-15 paradise point/horizon heights
3092	Intent to rezone certain property
3093	Intent to rezone certain property
3094	Intent to rezone certain property
3095	Intent to rezone certain property
3096	Intent to rezone certain property
3097	Interlocal cooperative agreement I-515/Auto Show Drive Interchange
3098	(Skipped)
3099	Local improvement district LID. No. CO21 Horizon Ridge Parkway, Gibson Road to Seven Hills Drive
3100	Amends land use policy plan
3101	Intent to rezone certain property
3102	Amends land use policy plan
3103	Intent to rezone certain property
3104	Amends land use policy plan
3105	Intent to rezone certain property
3106	Amends land use policy plan
3107	Intent to rezone certain property
3108	Amends land use policy plan
3109	Intent to rezone certain property
3110	Amends land use policy plan
3111	Intent to rezone certain property
3112	Amends land use policy plan
3113	Intent to rezone certain property
3114	Amends land use policy plan
3115	Intent to rezone certain property
3116	Amends land use policy plan
3117	Interlocal agreement with the city of Las Vegas, Clark County water reclamation district
3118	Intent to rezone certain property
3119	Intent to rezone certain property

Resolution Number	
3120	Intent to rezone certain property
3121	Intent to lease certain property
3122	Intent to lease certain property
3123	Amends land use policy plan
3124	Intent to rezone certain property
3125	Intent to rezone certain property
3126	Extends time to rezone certain property
3127	Intent to rezone certain property
3128	Intent to rezone certain property
3129	Intent to rezone certain property
3130	Intent to rezone certain property
3131	Intent to rezone certain property
3132	Intent to rezone certain property
3133	Approves lease agreement with General Electric Capital, Inc.
3134	Interlocal agreement with Las Vegas valley water district
3135	Interlocal contract with Clark County water reclamation district
3136	Interlocal agreement with the city of Las Vegas, Clark County regional flood control district, water reclamation district and southern Nevada water authority
3137	Refunding the senior 2004 bonds
3138	Amends land use policy plan
3139	Intent to rezone certain property
3140	Intent to rezone certain property
3141	Intent to rezone certain property
3142	Intent to rezone certain property
3143	Intent to rezone certain property
3144	2003/2004 budget augmentation
3145	West Henderson limited transition area
3146	Adopts cooperative agreement
3147	Extends time to rezone certain property
3148	Intent to rezone certain property
3149	Intent to rezone certain property
3150	Intent to rezone certain property
3151	Intent to rezone certain property
3152	Expresses interest in supporting the public safety advisory question placed by the board of county commissioners of Clark County
3153	General obligation sewer bonds

Resolution Number	
3154	Amends land use policy plan
3155	Intent to rezone certain property
3156	Amends land use policy plan
3157	Intent to rezone certain property
3158	Amends land use policy plan
3159	Intent to rezone certain property
3160	Amends land use policy plan
3161	Intent to rezone certain property
3162	Amends land use policy plan
3163	Intent to rezone certain property
3164	Amends land use policy plan
3165	Intent to rezone certain property
3166	Amends land use policy plan
3167	Intent to rezone certain property
3168	Amends land use policy plan
3169	Intent to rezone certain property
3170	Intent to rezone certain property
3171	Intent to rezone certain property
3172	Intent to rezone certain property
3173	Intent to convey real property to the redevelopment agency
3174	Title XVI funding allocation agreement
3175	Amends land use policy plan
3176	Intent to rezone certain property
3177	Amends land use policy plan
3178	Intent to rezone certain property
3179	(Skipped)
3180	(Skipped)
3181	Expresses support of the Nevada League of Cities and Municipalities legislative package
3182	Intent to rezone certain property
3183	Intent to rezone certain property
3184	Intent to rezone certain property
3185	Authorizes installment purchase agreement
3186	Authorizes administrative agreement
3187	Authorizes cooperative monitoring plan for constructed wetlands demonstration project
3188	Amends land use policy plan

Resolution Number	
3189	Amends comprehensive plan
3190	Intent to rezone certain property
3191	Intent to rezone certain property
3192	Amends land use policy plan
3193	Intent to rezone certain property
3194	Intent to rezone certain property
3195	Intent to rezone certain property
3196	Intent to rezone certain property
3197	Intent to rezone certain property
3198	Intent to rezone certain property
3199	Extension of time to rezone certain property
3200	Intent to rezone certain property
3201	Intent to rezone certain property
3202	Intent to rezone certain property
3203	Authorizing donation of surplus property to the city of Carlin, Nevada
3204	Intent to sell certain property
3205	Extends time to rezone certain property within city limits
3206	Intent to lease certain real property
3207	Intent to exchange certain real property
3208	Amends comprehensive plan and West Henderson land use and transportation plan
3209	Intent to rezone certain property
3210	Intent to rezone certain property
3211	Approves transfer of investment management authority from Paragon Asset Management Company to Mellon Private Trust Company
3212	Establishes a municipal golf course enterprise fund and adopts the budget therefor
3213	Adopts the ING governmental employee profit sharing plan
3214	Amends land use policy plan
3215	Intent to rezone certain property
3216	Intent to rezone certain property
3217	Intent to rezone certain property
3218	Intent to rezone certain property
3219	Extends time to rezone certain property within city limits
3220	Amends the master streets and highway plan of the city of Henderson comprehensive plan

Resolution Number	
3221	Amends the master streets and highway plan of the city of Henderson comprehensive plan
3222	Intent to exchange real property
3223	Interlocal contract with the Clark County Water Reclamation District
3224	Interlocal contract with the Clark County Water Reclamation District
3225	Amends an existing cooperative agreement with the Las Vegas Valley Water District
3226	(Skipped)
3227	Amends land use policy plan
3228	Intent to rezone certain property
3229	Amends land use policy plan
3230	Amends land use policy plan
3231	Intent to rezone certain property
3232	Amends land use policy plan
3233	Amends land use policy plan
3234	Intent to rezone certain property
3235	Amends land use policy plan
3236	Intent to rezone certain property
3237	Amends land use policy plan
3238	Intent to rezone certain property
3239	Intent of the council to reimburse certain expenditures from bond proceeds
3240	Extension of time to rezone certain property
3241	Intent to rezone certain property
3242	Adopts an interlocal cooperative agreement with the Clark County School District for snacks at safekey sites for the 2004—2005 school year
3243	Amends land use policy plan
3244	Intent to rezone certain property
3245	Intent to rezone certain property
3246	Intent to rezone certain property
3247	Intent to lease real property
3248	Amends and restates Resolution No. 3034 concerning its intent to lease a portion of the Wagon Wheel Industrial Park
3249	Intent to rezone certain property
3250	Amends land use policy plan
3251	Intent to rezone certain property
3252	Approves the findings of the director of the state of Nevada Department of Business and Industry relating to the SME Industries project

Resolution Number	
3253	Approves and authorizes the execution of an administration agreement
3254	Amends land use policy plan
3255	Intent to rezone certain property
3256	Amends land use policy plan
3257	Intent to rezone certain property
3258	Amends land use policy plan
3259	Intent to rezone certain property
3260	Intent to rezone certain property
3261	Intent to rezone certain property
3262	Intent to rezone certain property
3263	Intent to rezone certain property
3264	Intent to rezone certain property
3265	Intent to rezone certain property
3266	Authorizes filing an application for a Federal Land And Water Conservation Fund grant for the BMX Trick Pad at Morrell Park
3267	Intent to enter into an interlocal lease agreement with the Clark County Department of Air Quality and Environmental Management
3268	Intent to lease certain real property
3269	Amends land use policy plan
3270	Intent to rezone certain property
3271	Intent to rezone certain property
3272	Intent to rezone certain property
3273	Declares primary municipal election
3274	Amends land use policy plan
3275	Intent to rezone certain property
3276	Amends land use policy plan
3277	Intent to rezone certain property
3278	Amends land use policy plan
3279	Intent to rezone certain property
3280	Amends land use policy plan
3281	Intent to rezone certain property
3282	Amends land use policy plan
3283	Intent to rezone certain property
3284	Annexation of certain property
3285	Intent to rezone certain property
3286	Intent to rezone certain property
3287	Intent to rezone certain property

Resolution Number	
3288	Intent to rezone certain property
3289	Intent to rezone certain property
3290	Intent to rezone certain property
3291	Intent to rezone certain property
3292	Amends the Master Streets And Highway Plan of the City of Henderson Comprehensive Plan
3293	Intent to rezone certain property
3294	Approving an interlocal agreement with Clark County
3295	Intent to designate certain real property for the Clark County Heritage Museum
3296	Amends land use policy plan
3297	Intent to rezone certain property
3298	Distribution and use of the proposed Sales And Use Tax
3299	Intent to rezone certain property
3300	Intent to rezone certain property
3301	Intent to rezone certain property
3302	Intent to rezone certain property
3303	Intent to rezone certain property
3304	Intent to rezone certain property
3305	Intent to lease space for a communications facility at city hall
3306	Interlocal agreement with the city of Las Vegas, Clark County, Clark County Regional Flood Control District, Clark County Water Reclamation District, and the Southern Nevada Water Authority
3307	Intent to rezone certain property
3308	Intent to rezone certain property
3309	Interlocal agreement with Clark County
3310	Interlocal agreement with Clark County
3311	Amends land use policy plan
3312	Intent to rezone certain property
3313	Intent to rezone certain property
3314	Intent to rezone certain property
3315	Stating the public need and necessity to obtain fee title to certain real property for the construction of the Pittman Pecos Conveyance System
3316	Stating the public need and necessity to obtain certain temporary construction easement and fee title to certain real property for the construction of the Pittman Pecos Conveyance System

Resolution Number	
3317	Stating the public need and necessity to obtain certain temporary construction easement and fee title to certain real property for the construction of the Pittman Pecos Conveyance System
3318	Stating the public need and necessity to obtain certain temporary construction easement and fee title to certain real property for the construction of the Pittman Pecos Conveyance System
3319	Stating the public need and necessity to obtain certain temporary construction easement and fee title to certain real property for the construction of the Pittman Pecos Conveyance System
3320	Intent to sell certain real property
3321	Intent to exchange certain real property
3322	Regarding a cooperative agreement with the state of Nevada on behalf of its Department of Transportation for the median improvements on Stephanie Street north of Sunset Road
3323	Describing certain recitals, making certain findings, authorizing certain actions, including the creation of Local Improvement District No. T-16
3324	Intent to rezone certain property
3325	Interlocal cooperative agreement with the Clark County School District acting through its Food Service Department for a Summer Food Service Program from the Food Service Department during the 2004-2005 school year
3326	Approving a first amendment to interlocal agreement for inmate housing with Clark County
3327	Approving a second amendment to interlocal agreement for inmate housing with Boulder City
3328	Intent to rezone certain property
3329	Intent to rezone certain property
3330	Describing certain recitals, making certain findings and authorizing certain actions relating to city of Henderson, Nevada, Local Improvement District No. T-16
3331	Supporting an adjustment to the boundaries of the Henderson District Public Libraries (HDPL) and the Las Vegas Clark County Library District (LVCCLD)
3332	Amends land use policy plan
3333	Intent to rezone certain property
3334	Amends land use policy plan
3335	Intent to rezone certain property

Resolution Number	
3336	Amends land use policy plan
3337	Intent to rezone certain property
3338	Intent to rezone certain property
3339	Intent to rezone certain property
3340	Intent to rezone certain property
3341	Intent to sell certain real property
3342	Approving an interlocal cooperative agreement with Clark County, Nevada for traffic participation fees for Henderson Executive Airport Terminal Building Expansion
3343	Approving and authorizing the execution of an administration agreement - South Edge Local Improvement Districts and authorizing related actions
3344	Approving and authorizing the execution of Amendment No. 1 to Administration Agreement - Local Improvement District No. T-17 (Provence)
3345	Stating the public need and necessity to revoke the business license of the following massage parlor owner and massage therapist doing business in the city of Henderson, county of Clark, state of Nevada: Julia Liu, owner of Henderson Oriental Massage
3346	Stating the public need and necessity to revoke the business license of the following massage parlor owner and massage therapist doing business in the city of Henderson, county of Clark, state of Nevada: John K. Lo, owner of Relax Spa & Massage
3347	Stating the public need and necessity to revoke the business license of the following massage parlor owner and massage therapist doing business in the city of Henderson, county of Clark, state of Nevada: Hong-Cheng Aaron Yan, owner of Sunset Spa & Foot Massage
3348	Intent to rezone certain property
3349	Intent to rezone certain property
3350	Amending and restating Resolution No. 3248 concerning its intent to lease a portion of the Wagon Wheel Industrial Park
3351	Amends land use policy plan
3352	Amend the Master Streets and Highway Plan of the City of Henderson Comprehensive Plan for the purpose of reconfiguring and renaming certain roadway alignments west of Maryland Parkway and south of St. Rose Parkway

Resolution Number	
3353	Intent to enter into an interlocal lease agreement with the Nevada State College (NSC) to lease 2,733 square feet of office space located at 219a Water Street, Henderson, Nevada 89015
3354	Intent to rezone certain property
3355	Intent to rezone certain property
3356	Intent to rezone certain property
3357	Intent to rezone certain property
3358	2004/2005 budget augmentation
3358b	2004/2005 budget augmentation
3359	Intent to sell certain real property
3360	Intent to sell certain real property
3361	Intent to exchange certain real property
3362	Intent to lease certain real property
3363	Intent to rezone certain property
3364	Intent to rezone certain property
3365	Intent to rezone certain property
3366	Intent to rezone certain property
3367	Intent to rezone certain property
3368	Intent to rezone certain property
3369	Intent to rezone certain property
3370	Concerns the financing of various capital improvement projects; ratifying the notification of the Clark County Debt Management Commission of a proposal to incur general obligations (additionally secured by pledged revenues); and providing certain details in connection therewith
3371	Amends land use policy plan
3372	Intent to rezone certain property
3373	Amends land use policy plan
3374	Amends land use policy plan
3375	Proposes the issuance of, and authorizing the publication of notices relating to general obligation (limited tax) various purpose bonds (additionally secured by pledged revenues) for the purpose of financing various improvements for the city
3376	Designating the Eastside Area as an area for evaluation for inclusion in a redevelopment project area
3377	Intent to rezone certain property

Resolution Number	
3378	Authorizes medium-term obligations for the purpose of acquiring and installing fitness equipment for fire stations and various recreational facilities and refinancing certain existing lease purchase agreements previously entered into by the city
3379	Amends land use policy plan
3380	Intent to rezone certain property
3381	Intent to rezone certain property
3382	Intent to rezone certain property
3383	Intent to rezone certain property
3384	Intent to sell certain property
3385	Intent to sell certain property
3386	Intent to sell certain property
3387	Intent to sell certain property
3388	Establishing a special revenue fund for the purpose of accounting for transactions relating to the requirements as specified in AB418, the Clark County Sales and Use Tax Act of 2005
3389	Extension of time to rezone certain property
3390	Intent to rezone certain property
3391	Intent to rezone certain property
3392	Adopting an interlocal cooperative agreement with the Clark County School District
3393	Creating the Southern Nevada Recycling Advisory Committee
3394	Describing certain recitals, making certain findings, authorizing certain actions, including the creation of local improvement district No. T-17 (Madeira Canyon)
3395	Regarding a cooperative agreement with the Las Vegas Valley Water District whereby the city of Henderson agrees to allow water service by the Las Vegas Valley Water District to an area within the city limits
3396	Authorizing proceeding with the issuance of city of Henderson, Nevada, health facility revenue bonds (Catholic Healthcare West)
3397	Proposing the issuance of, and authorizing the publication of notices relating to general obligation (limited tax) various purpose bonds (additionally secured by pledged revenues) for the purpose of financing various improvements for the city

Resolution Number	
3398	Authorizing medium-term obligations for the purpose of acquiring and installing fitness equipment for fire stations and various recreational facilities and refinancing certain existing lease purchase agreements previously entered into by the city
3399	Intent to rezone certain property
3400	Amends land use policy plan
3401	Intent to rezone certain property
3402	Intent to rezone certain property
3403	Amends the master streets and highway plan of the city of Henderson Comprehensive Plan
3404	Authorizing the issuance, sale and delivery of city of Henderson, Nevada health facility revenue bonds (Catholic Healthcare West)
3405	Adding certain streets to the schedule referenced at HMC 10.62.010
3406	Creating the Development Services Center Advisory Committee of the city of Henderson (Rescinded by Ord. No. 3550)
3407	Intent to rezone certain property
3408	Intent to rezone certain property
3409	Intent to rezone certain property
3410	Intent to rezone certain property
3411	Intent to rezone certain property
3412	Intent to rezone certain property
3413	Intent to rezone certain property
3414	Intent to rezone certain property
3415	Obtain Various Easements for Construction of St. Rose Sanitation Sewer System and Trail Construction
3416	In support for the Southern Nevada Water Authority's development of in-state, non-Colorado river water resources
3417	Amends land use policy plan
3418	Amends comprehensive plan
3419	Amends land use policy plan
3420	Intent to rezone certain property
3421	Amends land use policy plan
3422	Amends land use policy plan
3423	Intent to rezone certain property
3424	Intent to rezone certain property
3425	Intent to rezone certain property
3426	Intent to rezone certain property

Resolution Number	
3427	Authorizes the execution and delivery of a first amendment to acquisition agreement in connection with city of Henderson, Nevada, Local Improvement District No. T-14 (Anthem Master Planned Community)
3428	Intent to rezone certain property
3429	Intent to rezone certain property
3430	Intent to rezone certain property
3431	Approving an interlocal lease agreement
3432	Authorizes city attorney's office to initiate eminent domain action to acquire various utility construction easements for construction of a portion of the St. Rose Sanitation Sewer System and Trail Connection
3433	To record description of land and commencement of redevelopment proceedings
3434	Amends land use policy plan
3435	Amends land use policy plan
3436	Intent to rezone certain property
3437	Amends land use policy plan
3438	Intent to rezone certain property
3439	Allow use of eminent domain of St. Rose Sanitation Sewer System and Trail Connection
3440	Intent to rezone certain property
3441	Intent to rezone certain property
3442	Intent to rezone certain property
3443	Intent to rezone certain property
3444	Acknowledging the receipt of the Redevelopment Plan and consenting to a public hearing and recordation of land description
3445	Amends land use policy plan
3446	Intent to rezone certain property
3447	Amends land use policy plan
3448	Intent to rezone certain property
3449	Intent to rezone certain property
3450	Extension of time to rezone certain property
3451	Intent to rezone certain property
3452	Intent to rezone certain property
3453	Cooperative agreement for mutual aid with the United States Air Force in the event of a fire fighting emergency
3454	Amends land use policy plan
3455	Intent to rezone certain property

Resolution Number	
3456	Amends land use policy plan
3457	Intent to rezone certain property
3458	Amends land use policy plan
3459	Intent to rezone certain property
3460	Amends land use policy plan
3461	Amends comprehensive plan
3462	Extension of time to rezone certain property
3463	Extension of time to rezone certain property
3464	Intent to rezone certain property
3465	Intent to rezone certain property
3466	Intent to rezone certain property
3467	Intent to rezone certain property
3468	Amends the master streets and highways plan
3469	Intent to rezone certain property
3470	Cooperative agreement with the Las Vegas Valley Water District
3471	Interlocal contract with the Clark County Water Reclamation District
3472	Amends land use policy plan
3473	Intent to rezone certain property
3474	Intent to rezone certain property
3475	Intent to rezone certain property
3476	Intent to rezone certain property
3477	Intent to rezone certain property
3478	Extension of time to rezone certain property
3479	Intent to rezone certain property
3480	Intent to sell real property
3481	Regarding an interlocal agreement with the city of Las Vegas, Clark County, Clark County Regional Flood Control District, Clark County Water Reclamation District, and the Southern Nevada Water Authority
3482	Amends land use policy plan
3483	Intent to rezone certain property
3484	Intent to rezone certain property
3485	Intent to rezone certain property
3486	Approves interlocal agreement with the county of Clark to utilize development services for projects located in both jurisdictions
3487	Intent to rezone certain property
3488	Intent to rezone certain property

Resolution Number	
3489	Describes certain recitals including the creation of Local Improvement District No. T-18
3490	Redevelopment agency loan
3491	Intent to rezone certain property
3492	Intent to rezone certain property
3493	Intent to rezone certain property
3494	Authorizes donation of surplus property to the city of Carlin, Nevada
3495	Amends land use policy plan
3496	Intent to rezone certain property
3497	Amends land use policy plan
3498	Intent to rezone certain property
3499	Amends land use policy plan
3500	Amends land use policy plan
3501	Amends land use policy plan
3502	Extension of time to rezone certain property
3503	Intent to rezone certain property
3504	Intent to sell real property
3505	Intent to sell real property
3506	Intent to sell real property
3507	Intent to sell real property
3508	Intent to rezone certain property
3509	Intent to rezone certain property
3510	Amends land use policy plan
3511	Intent to rezone certain property
3512	Intent to rezone certain property
3513	Intent to rezone certain property
3514	Intent to rezone certain property
3515	Extension of time to rezone certain property
3516	Amends the master streets and highways plan
3517	Budget augmentation
3518	Amendment to the interlocal cooperative agreement establishing the clean water coalition
3519	Supporting a comprehensive approach to water conversation in southern Nevada
3520	Amends land use policy plan
3521	Intent to rezone certain property
3522	Intent to rezone certain property

Resolution Number	
3523	Amends the master streets and highways plan
3524	Intent to accept a bid for land sale - lot 2
3525	Supports finds of fact for direct sale of 53.26 acres
3526	Intent to sell 53.26 acres to Cashman Equipment Company
3527	Extension of time to rezone certain property
3528	Extension of time to rezone certain property
3529	Extension of time to rezone certain property
3530	Intent to sell approximately 18.97 acres
3531	Amends land use policy plan
3532	Amends land use policy plan
3533	Amends land use policy plan
3534	Intent to rezone certain property
3535	Amends land use policy plan
3536	Intent to rezone certain property
3537	Amends land use policy plan
3538	Intent to rezone certain property
3539	Intent of the council to reimburse certain expenditures from bond proceeds
3540	Amends land use policy plan
3541	Intent to rezone certain property
3542	Authorizes medium-term obligations for the purpose of purchasing and installing operating cost savings measures and building projects
3543	Intent to rezone certain property
3544	Adopts interlocal cooperative agreement with the Clark County school district for snacks at safekey sites
3545	Intent to rezone certain property
3546	Intent to rezone certain property
3547	Intent to rezone certain property
3548	Consideration for annexation of certain property
3549	Amends land use policy plan
3550	Intent to rezone certain property
3551	Promotes climate protection efforts
3552	Amendment to regional sewer connection charges
3553	Extends time to rezone certain property
3554	Extends time to rezone certain property
3555	Consent to relinquish of a portion of Las Vegas Boulevard
3556	Authorizes participation in an interlocal cooperatve agreement with the Houston-Galveston Area Council

Resolution Number	
3557	Amends land use policy plan
3558	Intent to rezone certain property
3559	Amends comprehensive plan
3560	Amends land use policy plan
3561	Intent to rezone certain property
3562	Intent to sell certain property
3563	Intent to lease certain real property
3564	Approves and authorizes the execution of an administration agreement
3565	Intent to rezone certain property
3566	Amending and restating Resolution No. 3248 concerning its intent to lease a portion of the Wagon Wheel Industrial Park
3567	Amends land use policy plan
3568	Intent to rezone certain property
3569	Amends land use policy plan
3570	Amends land use policy plan
3571	Intent to rezone certain property
3572	Extends time to rezone certain property
3573	Extends time to rezone certain property
3574	Extends time to rezone certain property
3575	Sets forth policy regarding the use of eminent domain in redevelopment areas or for redevelopment purposes concerning the taking of private property for the transfer to another for private development
3576	Intent to sell real property
3577	Extends time to rezone certain property
3578	Intent to rezone certain property
3579	Ratifies memorandum of understanding between the United States Marshall Service and the Henderson Police Department authorizing participation in the Nevada Fugitive Investigative Strike Team Fugitive Task Force (NV - FIST)
3581	Intent to rezone certain property
3582	Intent to lease certain real property
3583	Amends land use policy plan
3584	Intent to rezone certain property
3585	Extends time to rezone certain property
3586	Extends time to rezone certain property
3587	Intent to rezone certain property
3588	Intent to lease certain real property

Resolution Number	
3589	States public need and necessity to impose an environmental surcharge to be added to all billings for solid waste collection services
3590	Amends master streets and highway plan
3591	Amends land use policy plan
3592	Amends master streets and highway plan
3593	Intent to rezone certain property
3594	Intent to rezone certain property
3595	Intent to rezone certain property
3596	Intent to rezone certain property
3597	Repeals Res. 3582, concerning its intent to lease certain real property
3598	Declares primary municipal election
3599	Intent to accept bid to lease certain real property
3600	Intent to rezone certain property
3601	Adopts Clark County hazard mitigation plan as an annex of the city's emergency operations plan
3602	Amends land use policy plan of comprehensive plan
3603	Amends land use policy plan of comprehensive plan
3604	Amends land use policy plan of comprehensive plan
3605	Intent to rezone certain property
3606	Amends land use policy plan of comprehensive plan
3607	Intent to rezone certain property
3608	Amends land use policy plan of comprehensive plan
3609	Intent to rezone certain property
3610	Intent to rezone certain property
3611	Approves authorization of city manager to accept donations without council approval
3612	Intent to lease certain real property
3613	Intent to sell to monument at Calico Ridge
3614	Authorizes the issuance health facility revenue bonds
3615	Intent to accept bid to sell certain real property
3616	Extends time to rezone certain property
3617	Indicating the city's support for the issuance by Clark County, Nevada, of economic development revenue bonds
3618	Amends land use policy plan of comprehensive plan
3619	Intent to rezone certain property
3620	Intent to rezone certain property
3621	Intent to rezone certain property

Resolution Number	
3622	Intent to accept bid to lease certain real property
3623	Authorizes the issuance health facility revenue bonds
3624	approves interlocal contract with Clark County to join the Southern Nevada Public Safety Alliance
3625	Endorses the Southern US 95 And US 93 Landscape and Aesthetics Corridor Plan
3626	Cooperative agreement with the Las Vegas Valley Water District
3627	Cooperative agreement with the Clark County Water Reclamation District
3628	Intent to rezone certain property
3629	Intent to rezone certain property
3630	Extends time to rezone certain property
3631	Clarifies and reaffirms city council of Henderson, Nevada Resolution Nos. 3495 and 3496
3632	Amends land use policy plan of comprehensive plan
3633	Intent to rezone certain property
3634	Amends land use policy plan of comprehensive plan
3635	Intent to rezone certain property
3636	Extends time to rezone certain property
3637	Extends time to rezone certain property
3638	Amends land use policy plan of comprehensive plan
3639	Intent to rezone certain property
3640	Intent to rezone certain property
3641	Intent to rezone certain property
3642	Amends land use policy plan of comprehensive plan
3643	Intent to rezone certain property
3644	Amends land use policy plan of comprehensive plan
3645	Intent to rezone certain property
3646	Authorizes the execution and delivery of a first amendment to acquisition agreement
3647	Intent to rezone certain property
3648	Intent to rezone certain property
3649	Amends land use policy plan of comprehensive plan
3650	Extends time to rezone certain property
3651	Amends master streets and highway plan
3652	Intent to rezone certain property
3653	Intent to lease certain property
3654	Opposition to the Clean Water Authority Restoration Act

Resolution Number	
3655	Approves the amended and restated chief local elected official consortium agreement
3656	Interlocal agreement with the Henderson District Public Libraries
3657	2006/2007 budget augmentation
3658	Reduces rate of interest on the uncollected installments of assessments levied
3659	Extends time to rezone certain property
3660	Intent to rezone certain property
3661	Interlocal agreement with the Southern Nevada Water Authority
3662	Cooperative agreement with the Las Vegas Valley Water District
3663	Approves the amended and restated chief local elected official consortium agreement
3664	Cooperation agreement with the Henderson Redevelopment Agency
3665	Amends land use policy plan
3666	Amends land use policy plan
3667	Intent to rezone certain property
3668	Amends land use policy plan
3669	Amends land use policy plan
3670	Intent to except bid to lease real property
3671	Intent to rezone certain property
3672	(Skipped)
3673	Intent to rezone certain property
3674	Intent to rezone certain property
3675	Approves and authorizes the execution of an administration agreement
3676	Cooperative agreement with the state for the final design and construction of the Interstate 515 interchange
3677	Adopts an interlocal cooperative agreement with the Clark County school district
3678	Intent to rezone certain property
3679	Intent to rezone certain property
3680	Cooperative agreement with the Las Vegas valley water district
3681	Amends and restates its deferred compensation plan with ICMA Retirement Corporation
3682	Increases the city's capitalization threshold for capital assets and other personal property
3683	States the public need and necessity to obtain property and temporary construction easements for public road improvements

Resolution Number	
3684	Interlocal agreement with the city of North Las Vegas
3685	Amends land use policy plan of comprehensive plan
3686	Amends master streets and highway plan
3687	Amends land use policy plan of comprehensive plan
3688	Intent to rezone certain property
3689	Amends master streets and highway plan
3690	Intent to rezone certain property
3691	Authorizes the clean water coalition to borrow money
3692	Intent to rezone certain property
3693	States the public need and necessity to obtain various utility construction easements
3694	Authorizes financial assistance to Landwell Company, L.P.
3695	Intent to rezone certain property
3696	Intent to rezone certain property
3697	Interlocal agreement with Clark County
3698	Amends land use policy plan of comprehensive plan
3699	Intent to rezone certain property
3700	Amends land use policy plan of comprehensive plan
3701	Intent to rezone certain property
3702	Extends time to rezone certain property
3703	States the public need and necessity to obtain property and temporary construction easements for the construction of the St. Rose sanitation sewer system and trail connection
3704	Intent to rezone certain property
3705	Intent to rezone certain property
3706	Amends land use policy plan of comprehensive plan
3707	Not used
3708	Intent to rezone certain property
3709	Accepts petition approving amendment of administration agreement, local improvement district No. T-21
3710	Authorizes redevelopment agency to borrow from the city to fulfill agency's obligations
3711	Intent to lease certain real property
3712	Intent to sell certain real property
3713	Automatic aid agreement with Clark County concerning emergency services

Resolution Number	
3714	Mutual aid agreement with Clark County concerning fire protection and rescue services
3715	Mutual aid agreement with the National Park Service concerning firefighting/search and rescue
3716	Amends land use policy plan of comprehensive plan
3717	Amends comprehensive plan
3718	Intent to rezone certain property
3719	Memorandum of understanding with the United States Marshall's Service and the Henderson Police Department
3720	Memorandum of understanding with the Federal Bureau of Investigation and the Henderson Police Department
3721	Accepts bid to lease certain real property
3722	Amends land use policy plan of comprehensive plan
3723	Grants time extension for certain property rezoning
3724	Interlocal agreement for inmate housing
3725	Interlocal agreement with Henderson district public libraries
3726	Intent to enter into an interlocal lease agreement with the Clark County clerk's office
3727	Authorizes medium term bonds for the purpose acquiring police communication equipment
3728	Amends land use policy plan of comprehensive plan
3729	Amends land use policy plan of comprehensive plan
3730	Amends land use policy plan of comprehensive plan
3731	Amends land use policy plan of comprehensive plan
3732	Intent to rezone certain property
3733	Intent to rezone certain property
3734	Intent to lease certain real property
3735	Not used
3736	Intent to rezone certain property
3737	Interlocal agreement with the Clark County Water Reclamation District, city of Las Vegas and the city of North Las Vegas
3738	Not used
3739	Intent to sell certain real property
3740	Intent to sell certain real property
3741	Interlocal agreement with the Las Vegas Valley Water District
3742	Intent to rezone certain property
3743	Amends land use policy plan of comprehensive plan

Resolution Number	
3744	Intent to rezone certain property
3745	Intent to rezone certain property
3746	Memorandum of understanding with the United States Justice Department, Bureau of Alcohol, Tobacco, Firearms and Explosives and the Henderson Police Department
3747	Clean Water Coalition budget
3748	Cooperative agreement with the state of Nevada
3749	Determines cost of project to be paid by the assessable property Local Improvement District No. C021
3750	Intent to rezone certain property
3751	Intent to sell certain real property
3752	Intent to sell certain commercial real property
3753	Intent to rezone certain property
3754	Amends land use policy plan of comprehensive plan
3755	Intent to rezone certain property
3756	Amends land use policy plan of comprehensive plan
3757	Intent to rezone certain property
3758	Grants time extension for certain property rezoning
3759	Grants time extension for certain property rezoning
3760	Confirming assessments, Local Improvement District No. C-021
3761	Intent to reimburse certain expenditures from bond proceeds
3762	Intent to rezone certain property
3763	Amends master streets and highway plan
3764	Rescinds resolution 3476 and ratifies a revised MOU with United States Department of Justice, Bureau of Alcohol, Tobacco, Firearms and Explosives and the Henderson Police Department
3765	Intent to rezone certain property
3766	Interlocal contract for sewer service
3767	2007/2008 budget augmentation
3768	Extends time to rezone certain property
3769	Interlocal agreement with Las Vegas, Clark County and Clark County Water Reclamation District
3770	Intent to sell certain real property
3771	Interlocal agreement for inmate housing
3772	Amends land use policy plan of comprehensive plan
3773	Intent to rezone certain property
3774	Amends land use policy plan of comprehensive plan

Resolution Number	
3775	Memorandum of understanding regarding participation in The Criminal Apprehension Task Team Force (CATS)
3776	Memorandum of understanding regarding participation in the South Western Identity Theft And Fraud Task Force (SWIFT)
3777	Memorandum of understanding regarding participation in the DEA Special Investigations Unit High Intensity Drug Trafficking Area Task Force (DEA SIU HIDTA)
3778	Memorandum of understanding regarding participation in the DEA Southern Nevada Drug Task Force (DEA SND HIDTA)
3779	Extends time to rezone certain property
3780	Approves loan agreement
3781	Interlocal agreement with Clark County School District
3782	Extension of time to rezone certain property
3783	Amends land use policy plan
3784	Extension of time to rezone certain property
3785	Extension of time to rezone certain property
3786	Amends master streets and highway plan
3787	Intent to rezone certain property
3788	Intent to sell certain real property
3789	Memorandum of understanding regarding BMX and skatepark at Robert Taylor Elementary School
3790	Interlocal agreement for joint selection of federal lands for disposal
3791	Intent to rezone certain property
3792	Annexation
3793	Amends land use policy plan of comprehensive plan
3794	Intent to rezone certain property
3795	Amends land use policy plan of comprehensive plan
3796	Intent to rezone certain property
3797	Amends land use policy plan of comprehensive plan
3798	Amends land use policy plan of comprehensive plan
3799	Intent to rezone certain property
3800	Amends land use policy plan of comprehensive plan
3801	Amends master streets and highway plan
3802	Interlocal agreement with the Clark County Water Reclamation District
3803	Intent to rezone certain property
3804	Amends master streets and highway plan
3805	Designates area for evaluation for redevelopment

Resolution Number	
3806	Extension of time to rezone certain property
3807	Intent to rezone certain property
3808	Mutual aid agreement with the Secretary of the U.S. Air Force concerning mutual aid for fire prevention, hazardous material incident response and fire protection activities
3809	Expresses acceptance of guidance principles for sustainability
3810	Intent to rezone certain property
3811	Intent to rezone certain property
3812	Purchase agreement for energy conservation projects
3813	Intent to rezone certain property
3814	Intent to sell certain real property
3815	Amends land use policy plan of comprehensive plan
3816	Amends land use policy plan of comprehensive plan
3817	Extension of time to rezone certain property
3818	Extension of time to rezone certain property
3819	Cooperative agreement
3821	Amends land use policy plan of comprehensive plan
3822	Financing energy conservation projects
3823	Intent to rezone certain property
3824	Primary municipal election
3825	Approves the owner participation rules for the proposed Lakemoor Canyon Redevelopment Agency
3826	Amends land use policy plan of comprehensive plan
3827	Amends master streets and highway plan
3828	Amends master streets and highway plan
3829	Amends master streets and highway plan
3830	Amends master streets and highway plan
3831	Intent to rezone certain property
3832	Expresses commitment to future science and technology themed museum and museum district
3833	Extends time to rezone certain property
3834	Officers for real and facsimile signatures; amends Resos. 2922
3835	Amends land use policy plan of comprehensive plan
3836	Intent to rezone certain property
3837	Amends land use policy plan of comprehensive plan
3838	Ratifies the Southern Nevada Water Authority and Cleanwater Coalition's policy regarding recycled water

Resolution Number	
3839	Amends land use policy plan of comprehensive plan
3840	Intent to rezone certain property
3841	Intent to rezone certain property
3842	Expresses its support of the consolidation of the three housing authorities in southern Nevada
3843	Amends land use policy plan of comprehensive plan
3844	Intent to rezone certain property
3845	Amends comprehensive plan
3846	Distribution and use of the proposed sales and use tax use increased to fund the hiring of additional police officers
3847	Memorandum of understanding with Clark County, city of Las Vegas, city of North Las Vegas, city of Mesquite and the Henderson police department authorizing participation in a grant application to the U.S. Department of Justice
3848	Expresses intent to provide a direct land sale
3849	Intent to lease real property
3850	Extends time to rezone certain property
3851	Extends time to rezone certain property
3852	Extends time to rezone certain property
3853	Extends time to rezone certain property
3854	Nevada's census 2010 campaign
3855	Extends time to rezone certain property
3856	Interlocal agreement with the Clark County Water Reclamation District, the city of Las Vegas and the city of North Las Vegas
3857	Amends land use policy plan of comprehensive plan
3858	Amends comprehensive plan
3859	Extends time to rezone certain property
3860	Amends master streets and highway plan
3861	Amends master streets and highway plan
3862	Amends master streets and highway plan
3863	Approves donation from city's land fund
3864	Annexation
3865	Intent to sell certain real property
3866	Intent to provide a direct land sale
3867	Intent to rezone certain property
3868	Intent to rezone certain property
3869	Extends time to rezone certain property

Resolution Number	
3870	Extends time to rezone certain property
3871	Intent to rezone certain property
3872	Augmentation of 2008/2009 general fund
3873	Authorizes medium-term obligations for the purpose of acquiring desktop computers
3874	Adopts resolution of the clean water coalition (CWC)
3875	Interlocal agreement with the city of Las Vegas, Clark County, Clark County Regional Flood District, Clark County and Clark County Water Reclamation District and the Southern Nevada Water Authority
3876	Intent to rezone certain property
3877	Intent to rezone certain property
3878	Extends time to rezone certain property
3879	Memorandum of understanding with Clark County, city of Las Vegas, city of North Las Vegas and the Henderson police department
3880	Cooperative agreement
3881	Intent to convey certain real property and approval of the accompanying interlocal joint use agreement
3882	Adopts Social Security alternative plan and trust for eligible employees
3883	Extends time to rezone certain property
3884	Extends time to rezone certain property
3885	Interlocal agreement with the the city of Las Vegas, Clark County Water Reclamation District and the Clean Water Coalition
3886	Southern Nevada Regional Housing Authority
3887	Amends comprehensive plan
3888	Amends land use policy plan of comprehensive plan
3889	Amends land use policy plan of comprehensive plan
3890	Intent to rezone certain property
3891	Authorizes medium-term obligations for the purpose of acquiring desktop computers
3892	Extends time to rezone certain property
3893	Intent to rezone certain property
3894	Ratifies interlocal agreement
3895	Memobrandum of understanding with the Drug Enforcement Administration and the Henderson police department

Resolution Number	
3896	Memobrandum of understanding with the Las Vegas police department, the Nevada Department of Public Safety, Washoe County sheriff's office, Reno police department, University of Nevada-Reno police department, the Drug Enforcement Administration and the Henderson police department
3897	Joint resolution and agreement with the Las Vegas Valley Water District
3898	Extends time to rezone certain property
3899	Extends time to rezone certain property
3900	Amends land use policy plan of comprehensive plan
3901	Amends comprehensive plan
3902	Amends land use policy plan of comprehensive plan
3903	Extends time to rezone certain property
3904	Extends time to rezone certain property
3905	Expresses intent to jointly pursue competitive block grant program funding
3906	Amends land use policy plan of comprehensive plan
3907	Amends land use policy of comprehensive plan
3908	Grants the chief of police the authority to request reimbursement from the United States Environmental Protection Agency
3909	Intent to rezone certain property
3910	Extends time to rezone certain property
3911	Extends time to rezone certain property
3912	Approves and adopts the citizen participation plan
3913	Extends time to rezone certain property
3914	Extends time to rezone certain property
3915	Intent to rezone certain property
3916	Extends time to rezone certain property
3917	Intent to rezone certain property
3918	Amends land use policy plan of comprehensive plan
3919	Amends land use policy plan of comprehensive plan
3920	Intent to rezone certain property
3921	Updates the text and tables of comprehensive plan
3922	Intent to rezone certain property
3923	Joint resolution and agreement the Las Vegas Valley Water District
3924	Clarifies the interpretation and application of Chapter 4.07 of the Henderson Municipal Code
3925	Extends time to rezone certain property
3926	Intent to rezone certain property

Resolution Number	
3927	Establishes a capital projects fund
3928	Establishes a capital projects fund
3929	Establishes a special revenue fund
3930	Establishes a special revenue fund
3931	Establishes a special revenue fund
3932	Corrects Res. No. 3857 to include maps
3933	Amends land use policy plan of comprehensive plan
3934	Southern Nevada Water System Amended Facilities and Operations agreement
3935	Intent to lease certain property
3936	Annexation
3937	Intent to rezone certain property
3938	Updates the text and tables of comprehensive plan
3939	Amends land use policy plan of comprehensive plan
3940	Amends land use policy plan of comprehensive plan
3941	Interlocal agreement for inmate housing with Clark County, state of Nevada
3942	Supports comprehensive clear energy and climate change legislation
3943	(Skipped)
3944	Interlocal agreement with the city of Las Vegas, Clark County, Clark County Water Reclamation District and the Southern Nevada Water Authority
3945	Augments 2009/2010 funds
3946	Amends land use policy plan of comprehensive plan
3947	Supports a Clark County advisory ballot
3948	Cooperative agreement for design and construction of the I-515 Sunset Road Interchange Landscaping Agreement
3949	Amends land use policy plan of comprehensive plan
3950	Extends time to rezone certain property
3951	Extends time to rezone certain property
3952	Extends time to rezone certain property
3953	Intent to rezone certain property
3954	Intent to lease certain property
3955	Amends land use policy plan of comprehensive plan
3956	Amends land use policy plan of comprehensive plan
3957	Extends time to rezone certain property
3958	Amends land use policy plan of comprehensive plan

Resolution Number	
3959	Amends land use policy plan of comprehensive plan
3960	Intent to accept bid to lease certain real property
3961	Extends time to rezone certain property
3962	Approves interlocal agreement with Clark County for inmate housing
3963	Amends land use policy plan of comprehensive plan
3964	Amends land use policy plan of comprehensive plan
3965	Extends time to rezone certain property
3966	Extends time to rezone certain property
3967	Interlocal agreement with the Clark County Water Reclamation District, City of Henderson and City of Las Vegas
3968	Amends land use policy plan of comprehensive plan
3969	Supporting community advisory committee recommendations for Clark County Multiple Species Habitat Conservation Plan
3970	Extends time to rezone certain property
3971	Extends time to rezone certain property
3972	Declares primary municipal election
3973	Extends time to rezone certain property
3974	Extends time to rezone certain property
3975	Authorizes amended loan agreement and promissory note
3976	Extends due date on loan
3977	Supports local hiring preference for contracts awarded in southern Nevada
3978	Amends land use policy plan of comprehensive plan
3979	Extends time to rezone certain property
3980	Intent to sell certain property
3981	Approves third amendment to the prison health services agreement
3982	Extends time to rezone certain property
3983	Allows donation of lost and found articles from parks and recreation department to local non-profit organizations
3984	Amends land use policy plan of comprehensive plan
3985	Authorizes medium-term bond and purchase agreement to acquire, improve and equip building projects
3986	Interlocal agreement establishing funding and budget for Las Vegas Wash
3987	Extends time to rezone certain property
3988	Interlocal agreement for reallocation of quarter cent sales tax
3989	Augments 2010/2011 funds

Resolution Number	
3990	Amends land use policy plan of comprehensive plan
3991	Amends land use policy plan of comprehensive plan
3992	Extends time to rezone certain property
3993	Ratifies agreement authorizing participation in the Las Vegas Financial Crimes Investigative Task Force
3994	Adopts rules of procedure for city council meetings
3995	Establishes charitable assistance guidelines
3996	Amends land use policy plan of comprehensive plan
3997	Extends time to rezone certain property
3998	Amends master transportation plan of comprehensive plan
3999	Extends time to rezone certain property
4000	Intent to sell certain property
4001	Amends land use plan of comprehensive plan
4002	Supports federal strategic plan to prevent and end homelessness ("Opening Doors")
4003	Amends land use plan of comprehensive plan
4004	Amends master streets and highway plan
4005	Intent to sell certain property
4006	Intent to sell certain property
4007	Extends time to rezone certain property
4008	Extends time to rezone certain property
4009	Amends master streets and highway plan
4010	Supports annual allocation of land and water conservation funds
4011	Refunding bond sale
4012	Amends land use plan of comprehensive plan
4013	Amends land use plan of comprehensive plan
4014	Extends time to rezone certain property
4015	Supports governor in opposition to changing routing agreement for the shipment of radioactive waste
4016	Amends land use plan of comprehensive plan
4017	Memorandum of understanding regarding participation in the DEA Southern Nevada Drug Task Force (DEA SND HIDTA)
4018	Supports the Vegas Valley Rim Trail
4019	Amends rules of procedure for city council meetings
4020	Intent to sell certain property
4021	Extends time to rezone certain property
4022	Extends time to rezone certain property

Resolution Number	
4023	Intent to convey certain property
4024	Intent to sell certain property
4025	Designates area for evaluation for redevelopment
4026	Ratifies agreement authorizing participation in the Southern Nevada Cannabis Operations and Regional Enforcement Task Force
4027	Memorandum of understanding regarding participation in the ICE Homeland Security Investigations project
4028	Memorandum of understanding regarding participation in the DEA Nevada Interdiction Task Force
4029	Intent to lease certain property
4030	Charitable assistance for certain events and organizations
4031	Rescinds memorandum of understanding regarding participation in the DEA Southern Nevada Drug Task Force (DEA SND HIDTA)
4032	Intent to remove designation of funds for Henderson Space and Science Center; approval of separate governance for Henderson Space and Science Center
4033	Intent to sell certain property
4034	Charitable assistance for certain events and organizations
4035	Rescinds memorandum of understanding regarding participation in the DEA Nevada Interdiction Task Force
4036	Support for a New Southern Nevada Regional Development Authority
4037	Establishes time and place of public hearing for issuance of bonds
4038	Amends land use policy plan of comprehensive plan
4039	Intent to rezone certain property
4040	Donation of surplus property
4041	Ratifies agreement to participate in the Nevada Statewide Automated Victim Information and Notification Service
4042	Supports development of Nevada's clean energy economy
4043	Issuance of bonds for Coral Academy of Science
4044	Augments 2011/2012 funds
4045	Amends land use policy plan of comprehensive plan
4046	Amends land use policy plan of comprehensive plan
4047	Interlocal agreement establishing funding and budget for Las Vegas Wash
4048	Extends time to rezone certain property
4049	Extends time to rezone certain property

Resolution Number	
4050	Southern Nevada Water System Amended Facilities and Operations agreement
4051	Support to become a bicycle-friendly community
4052	Creation of an audit committee
4053	Intent to sell certain property
4054	Amends land use policy plan of comprehensive plan
4055	Amends land use policy plan of comprehensive plan
4056	Memorandum of understanding regarding the ICE Southern Nevada Heroin and Money Laundering Initiative
4057	Intent to lease certain property
4058	Charitable assistance to Las Vegas youth orchestras
4059	Amends land use policy plan of comprehensive plan
4060	Amends land use policy plan of comprehensive plan
4061	Amends land use policy plan of comprehensive plan
4062	Accepts new funding under the cost reimbursement agreement (HIDTA Southern Nevada Heroin and Money Laundering Initiative)
4063	Intent to accept bid to lease certain property
4064	Intent to lease certain property
4065	Amends land use policy plan of comprehensive plan
4066	Amends land use policy plan of comprehensive plan
4067	Amends land use policy plan of comprehensive plan
4068	Adopts Clark County multi-jurisdictional hazard mitigation plan
4069	Declares primary municipal election
4070	Extends time to rezone certain property
4071	Extends time to rezone certain property
4072	Reduces rate of interest on the uncollected installments of assessments levied
4073	Memorandum of understanding regarding participation in the Child Exploitation Task Force
4074	Authorizes amended promissory note
4075	Amends land use policy plan of comprehensive plan
4076	Amends land use policy plan of comprehensive plan
4077	Proposes sale of property and authorizes write off of promissory note
4078	Extends time to rezone certain property
4079	Amends land use policy plan of comprehensive plan
4080	Cooperative agreement regarding sales tax allocation

Resolution Number	
4081	Authorizes city manager to execute rights of entry and accept certain permits
4082	Amends land use policy plan of comprehensive plan
4083	Amends land use policy plan of comprehensive plan
4084	Establishes special budget ad hoc committee
4085	Augments 2012/2013 funds
4086	Extends time to rezone certain property
4088	Support for the implementation of fuel tax indexing
4090	Amends land use policy plan of comprehensive plan
4091	Amends land use policy plan of comprehensive plan
4092	Extends time to rezone certain property
4093	Intent to rezone certain property
4094	Intent to rezone certain property
4095	Assignment of acquisition agreement
4096	Amends land use policy plan of comprehensive plan
4097	Amends land use policy plan of comprehensive plan
4098	Amends land use policy plan of comprehensive plan
4099	Intent to rezone certain property
4100	Modifies Local Improvement District No. T-18 (Inspirada) provisional order
4101	Supports local hiring on fuel tax indexing projects
4102	Donation of surplus property
4103	Intent to sell certain property
4104	Local Improvement District No. T-18 (Inspirada) protest
4105	Extends time to rezone certain property
4106	Intent to sell certain property
4107	Donation of surplus property
4108	Modifies Local Improvement District No. T-12 (Lake Las Vegas NorthShore) provisional order
4109	Amends land use policy plan of comprehensive plan
4110	Amends land use policy plan of comprehensive plan
4111	Amends land use policy plan of comprehensive plan
4112	Amends land use policy plan of comprehensive plan
4113	Amends land use policy plan of comprehensive plan
4114	Amends land use policy plan of comprehensive plan
4115	Local Improvement District LID-12 (Lake Las Vegas NorthShore) protest
4116	Provides for moratorium on medical marijuana establishments

Resolution Number	
4117	Skipped
4118	Declares modifications to Local Improvement District No. T-18 (Inspirada) complete
4119	Extends time to rezone certain property
4120	Donation of surplus property
4121	Updates master trails and bicycle plan map of comprehensive plan
4122	Intent to sell certain property
4123	Intent to sell certain property
4124	Intent to sell certain property
4125	Amends land use policy plan of comprehensive plan
4126	Intent to rezone certain property
4127	Intent to lease certain property
4128	Amends land use policy plan of comprehensive plan
4129	Amends land use policy plan of comprehensive plan
4130	Intent to sell certain property
4131	Extends time to rezone certain property
4132	Extends time to rezone certain property
4133	Establishes a special revenue fund
4134	Acceptance of bid to lease certain real property
4135	Authorizes expansion of block wall repair loan program
4136	Amends land use plan and summary of land use categories table of comprehensive plan
4137	Amends land use policy plan of comprehensive plan
4138	Adds historic preservation plan to comprehensive plan
4139	Donation of surplus equipment and grant of money
4140	Augments 2013/2014 funds
4141	Intent to exchange certain real property
4142	Amends land use policy plan of comprehensive plan
4143	Amends land use policy plan of comprehensive plan
4144	Supports bi-partisan long-term federal transportation funding program
4145	Extends closing date of exchange of certain real property
4146	Approves cooperative agreement for Henderson Wireless ITS and GPS Signal pre-emption upgrades
4147	Approves cooperative agreement for street and trail sweepers
4148	Amends land use policy plan of comprehensive plan
4149	Amends land use policy plan of comprehensive plan
4150	Amends land use policy plan of comprehensive plan

Resolution Number	
4151	Intent to rezone certain property
4152	Skipped
4153	Amends land use policy plan of comprehensive plan
4154	Amends land use policy plan of comprehensive plan
4155	Amends land use policy plan of comprehensive plan
4156	Intent to sell certain property
4157	Adopts Boulder Highway/Gibson Neighborhood Center Plan as policy and planning guide
4158	Amends land use policy plan of comprehensive plan
4159	Amends land use policy plan of comprehensive plan
4160	Terminates Res. No. 3295 pertaining to the Clark County Heritage Museum
4161	Intent to exchange certain real property
4162	Amends land use policy plan of comprehensive plan
4163	Intent to rezone certain property
4164	Amends comprehensive plan chapter 7, subarea plans
4165	Amends West Henderson land use plan of comprehensive plan
4166	Amends comprehensive plan chapter 3, quality development, and adopts aboveground utility corridor map
4167	Amends land use policy plan of comprehensive plan
4168	Amends land use policy plan of comprehensive plan
4169	Intent to rezone certain property
4170	Memorandum of understanding regarding Homeland Security investigations
4171	Memorandum of understanding regarding the Las Vegas Financial Crimes Task Force
4172	Amends land use policy plan of comprehensive plan
4173	Intent to rezone certain property
4174	Amends land use policy plan of comprehensive plan
4175	Amends land use policy plan of comprehensive plan
4176	Donation of grant funds
4177	Supporting a portion of governor's education plan
4178	Amends land use policy plan of comprehensive plan
4179	Intent to sell certain property
4180	Ratifies adoption of Southern Nevada Strong Regional Plan
4181	Amends land use policy plan of comprehensive plan
4182	Amends land use policy plan of comprehensive plan

Resolution Number	
4183	Amends land use policy plan of comprehensive plan
4184	Amends land use policy plan of comprehensive plan
4185	Amends land use policy plan of comprehensive plan
4186	Approves cooperative agreement for Amargosa Trail pedestrian bridge
4187	Amends land use policy plan of comprehensive plan
4188	Provides for moratorium massage establishments and independent massage therapists
4189	Provides for moratorium on reflexology establishments and reflexologists
4190	Amends land use policy plan of comprehensive plan
4191	Augments 2014/2015 funds
4192	Amends land use policy plan of comprehensive plan
4193	Directs destruction of records of firearm ownership by private persons
4194	Authorizes submission of grant application for the Water Treatment Plant System Reliability Project
4195	Establishes comprehensive plan advisory committee
4196	Amends land use policy plan of comprehensive plan
4197	Intent to rezone certain property
4198	Amends land use policy plan of comprehensive plan
4199	Amends land use policy plan of comprehensive plan
4200	Amends West Henderson land use plan of comprehensive plan
4201	Amends land use policy plan of comprehensive plan
4202	Approves amendment to loan agreement and promissory note
4203	Amends West Henderson land use plan of comprehensive plan
4204	Amends land use policy plan of comprehensive plan
4205	Intent to rezone certain property
4206	Extends time to rezone certain property
4207	Amends land use policy plan of comprehensive plan
4208	Amends land use policy plan of comprehensive plan
4209	Extends time to rezone certain property
4210	Extends time to rezone certain property
4211	Reaffirms commitment to Las Vegas Valley Stormwater Quality Management Program
4212	Intent to enter into an interlocal lease agreement with Clark County
4213	Donation of surplus equipment
4214	Amends land use policy plan of comprehensive plan
4215	Intent to sell certain property
4216	Intent to sell certain property

Resolution Number	
4217	Amends land use policy plan of comprehensive plan
4218	Intent to rezone certain property
4219	Declares the need for a new ambulance service franchise
4220	Date change for direct land sale to Fontanesi, LLC
4221	Amends land use policy plan of comprehensive plan
4222	Amends master streets and highway plan
4223	Supports closing the online sales tax loophole
4224	Urges Congress to support the continuation of tax exemptions for municipal bonds
4225	Commends the Nevada Congressional Delegation for supporting enactment of the FAST Act
4226	Amends permitted streets schedule for golf carts
4227	Modifies Local Improvement District No. T-16 (The Falls at Lake Las Vegas) project and assessments
4228	Considers protests regarding Local Improvement District No. T-16 (The Falls at Lake Las Vegas)
4229	Authorizes medium-term obligations to purchase, upgrade and replace equipment
4230	Augments 2015/2016 funds
4231	Intent to sell certain property
4232	Amends charitable assistance guidelines
4233	Supports America's National Park System
4234	Skipped
4235	Amends land use policy plan of comprehensive plan
4236	Intent to enter into an interlocal agreement with Southern Nevada Health District
4237	Intent to lease certain property
4238	Amends land use policy plan of comprehensive plan
4239	Intent to sell certain property
4240	Amends land use policy plan of comprehensive plan
4241	Amends city council rules of procedure
4242	Designates certifying officer for environmental reviews
4243	Amends land use policy plan of comprehensive plan
4244	Supports increase in state funding for home-delivered meals programs
4245	Intent to sell certain property
4246	Amends land use policy plan of comprehensive plan
4247	Amends land use policy plan of comprehensive plan

Resolution Number	
4248	Creates a city crime prevention special revenue fund
4249	Consolidates alternative sentencing department with city police department corrections division and provides authority to appoint chief of alternative sentencing department
4250	Authorizes donation of repurposed bicycles to Taylor Elementary School
4251	Amends land use policy plan of comprehensive plan
4252	Adopts finding and determinations of regarding utilization of revenue generated by the Clark County Crime Prevention Act of 2016
4253	Adopts findings regarding utilization of revenue generated by the Clark County sales and use tax act of 2005
4254	Amends land use policy plan of comprehensive plan
4255	Amends land use policy plan of comprehensive plan
4256	Amends land use policy plan of comprehensive plan
4257	2016/2017 budget augmentation
4258	Adopts Henderson Strong comprehensive plan
4259	Intent to sell certain property
4260	Intent to sell certain property
4261	Designation of sites for the exchange of person property initiated on the Internet
4262	Supports preservation of SNPLMA special account fund
4263	Amends land use policy plan of comprehensive plan
4264	Amends land use policy plan of comprehensive plan
4265	Amends land use policy plan of comprehensive plan
4266	Amends and restates resolution establishing authority to create certain accounts
4267	Accepts bid to purchase certain real property
4268	Amends land use policy plan of comprehensive plan
4269	Utilizes certain retail marijuana business license fees for public schools
4270	Intent to sell certain property
4271	Amends land use policy plan of comprehensive plan
4272	Intent to rezone certain property
4273	Amends land use policy plan of comprehensive plan
4274	Amends land use policy plan of comprehensive plan
4275	Amends land use policy plan of comprehensive plan
4276	Creates Neighborhood Improvement District (Pecos Robindale) provisional order

Resolution Number	
4277	Authorizes installment-purchase agreement for conducted electrical devices
4278	Amends land use policy plan of comprehensive plan
4279	Intent to sell certain property
4280	Extends time to rezone certain property
4281	Intent to sell certain property
4282	Intent to lease certain property
4283	Extends time to rezone certain property
4284	Accepts bid to lease certain real property
4285	Establishes comprehensive plan implementation advisory committee
4286	Authorizes mayor to perform marriage ceremonies
4287	Amends land use policy plan of comprehensive plan
4288	Amends land use policy plan of comprehensive plan
4289	Amends land use policy plan of comprehensive plan
4290	Amends land use policy plan of comprehensive plan
4291	Amends land use policy plan of comprehensive plan
4292	Local Improvement District Lake Las Vegas Recovery Acquisition, LLC
4293	Adopts findings regarding utilization of revenue generated by Clark County Crime Prevention Act of 2016
4294	Adopts findings regarding utilization of revenue generated by Clark County Sales and Use Tax Act of 2005
4295	Consents to relinquishment and land transfer of a portion of US-95 (Stephanie Street and Russell Road)
4296	Authorizes donation to Henderson Public Schools from the Henderson Public Schools Education Account
4297	Amends Res. No. 3589 to remove termination date of environmental surcharge
4298	Amends West Henderson Land Use Plan of comprehensive plan
4299	Amends land use policy plan of comprehensive plan
4300	Amends land use policy plan of comprehensive plan
4301	Amends land use policy plan of comprehensive plan
4302	Authorizes local approval for the Wisconsin Public Finance Authority Student Housing Project
4303	Amends and restates cooperative agreement with the Las Vegas Valley Water District
4304	2017/2018 budget augmentation
4305	Intent to sell certain property

Resolution Number	
4306	Amends land use policy plan of comprehensive plan
4307	Accepts bid to purchase certain real property
4308	Intent to sell certain property
4309	Amends land use policy plan of comprehensive plan
4310	Amends land use policy plan of comprehensive plan
4311	Amends land use policy plan of comprehensive plan
4312	Intent to rezone certain property
4313	Amends land use policy plan of comprehensive plan
4314	Intent to rezone certain property
4315	Amends land use policy plan of comprehensive plan
4316	Amends land use policy plan of comprehensive plan
4317	Ratifies proposed assessment roll for Neighborhood Improvement District (Pecos Robindale)
4318	Adopts multi-jurisdictional hazard mitigation plan
4319	Approves funding agreement for Site D — Rule 9 Line Extension Agreement
4320	Approves funding agreement for Water Street District sign at existing canopy
4321	Amends land use policy plan of comprehensive plan
4322	Amends land use policy plan of comprehensive plan
4323	Overrules all complaints, protests and objections to assessment roll for Neighborhood Improvement District (Pecos Robindale)
4324	Accepts petition for formation of Local Improvement District LID T-20 and approving form of district of district financial agreement (Rainbow Canyon)
4325	Amends land use policy plan of comprehensive plan
4326	Intent to sell certain property
4327	Creates special revenue fund for neighborhood improvement district assessments
4328	Intent to sell certain property
4329	Supports initiatives of Fund Our Future Nevada
4330	Supports reauthorization of and full funding for the Land and Water Conservation Fund
4331	Charitable donation to Boys and Girls Club of Southern Nevada—John C. Kish Club
4332	Amends land use policy plan of comprehensive plan

Resolution Number	
4333	Pledge to donate to the Nevada State College Foundation for the School of Education building
4334	Accepts offer to purchase certain real property
4335	Intent to sell certain property
4336	Pledge to donate to the College of Southern Nevada Foundation for the Health & Sciences building
4337	Approves funding agreement for Henderson Fire Station 83 expansion
4338	Opposes transfer of radioactive plutonium to the State of Nevada
4339	Supports United States Census Bureau Census 2020 Campaign
4340	Creates special revenue fund for recreation, cultural events, and tourism
4341	Amends land use policy plan of comprehensive plan
4342	Amends land use policy plan of comprehensive plan
4343	Amends land use policy plan of comprehensive plan
4344	Approves lease of certain real property
4345	Charitable donation to Henderson public schools
4346	Adopts findings regarding utilization of revenue generated by Clark County Sales and Use Tax Act of 2005
4347	Adopts findings regarding utilization of revenue generated by Clark County Crime Prevention Act of 2016
4348	Amends land use policy plan of comprehensive plan
4349	Amends land use policy plan of comprehensive plan
4350	Ratifies proposed assessment roll for Neighborhood Improvement District (Pecos Robindale)
4351	2018/2019 budget augmentation
4352	Amends land use policy plan of comprehensive plan
4353	Intent to sell certain property
4354	Confirms and sets in final form assessments for Neighborhood Improvement District (Pecos Robindale)
4355	Adopts open data policy
4356	Amends land use policy plan of comprehensive plan
4357	Amends land use policy plan of comprehensive plan
4358	Supports community education advisory board's charitable assistance to Premier School's Partnership
4359	Intent to sell certain property
4360	Amends land use policy plan of comprehensive plan
4361	Amends land use policy plan of comprehensive plan

Resolution Number	
4362	Authorizes city manager/CEO, director of public works or city surveyor to approve dedications of parcels of land for public use
4363	Amends land use policy plan of comprehensive plan
4364	Amends land use policy plan of comprehensive plan
4365	Amends land use policy plan of comprehensive plan
4366	Amends land use policy plan of comprehensive plan
4367	Amends charitable assistance guidelines
4368	Directs the notification of the debt management commission of the proposal to issue general obligation various purpose bonds
4369	Intent to issue tax-exempt obligations to reimburse city for various projects
4370	Directs the notification of the debt management commission of the proposal to issue general obligation utility systems bonds
4371	Intent to issue tax-exempt obligations to reimburse city for water system improvements
4372	Supports UNLV Metropolitan Planning Program
4373	Amends land use policy plan of comprehensive plan
4374	Amends land use policy plan of comprehensive plan
4375	Intent to issue general obligation utility system bonds
4376	Intent to issue general obligation various purpose bonds
4377	Establishing a potential process and policy for appointments to vacant judicial offices
4378	Amends land use policy plan of comprehensive plan
4379	Amends land use policy plan of comprehensive plan
4380	Amends land use policy plan of comprehensive plan
4381	Adopts CDBG and HOME Program Citizen Participation Plan
4382	Amends land use policy plan of comprehensive plan
4383	Updates appendices of Henderson Strong comprehensive plan
4384	Ratifies proposed assessment roll for Neighborhood Improvement District (Pecos Robindale)
4385	Amends land use policy plan of comprehensive plan
4386	Amends land use policy plan of comprehensive plan
4387	Amends land use policy plan of comprehensive plan
4388	Approves lease of certain property
4389	Voluntarily waives salary increase
4390	Authorizes medium-term obligations

Resolution Number	
4391	Adopts findings regarding utilization of revenue generated by Clark County Sales and Use Tax Act of 2005
4392	Adopts findings regarding utilization of revenue generated by Clark County Crime and Prevention Act of 2016
4393	Confirms assessment roll and assessments for Neighborhood Improvement District (Pecos Robindale)
4394	Amends land use policy plan of comprehensive plan
4395	2019/2020 budget augmentation
4396	Amends land use policy plan of comprehensive plan
4397	Amends city council rules of procedure
4398	Amends land use policy plan of comprehensive plan
4399	Temporarily stays or amends business license provisions to assist businesses affected by the COVID-19 pandemic
4400	Amends land use policy plan of comprehensive plan
4401	Amends land use policy plan of comprehensive plan
4402	Amends land use policy plan of comprehensive plan
4403	Intent to rezone certain property
4404	Creates the Henderson Commercial Property Assessed Clean Energy (C-PACE) Program and provides means of financing energy efficient improvement projects or renewable energy projects
4405	Deposit agreement concerning modification to Local Improvement District No. T-16 (The Falls at Lake Las Vegas)
4406	Waiver of requirement for city council approval of contracts with a value greater than $100,000.00 and interlocal agreements for the expenditure of coronavirus relief funds under the CARES Act
4407	Amends land use policy plan of comprehensive plan
4408	Amends land use policy plan of comprehensive plan
4409	Donation of surplus equipment
4410	Authorizes city clerk to sell certificates of sale, and approving the transfer of certificates of sale
4411	Charitable donation to Henderson public schools
4412	Amends CDBG and HOME Program Citizen Participation Plan
4413	Amends land use policy plan of comprehensive plan
4414	Intent to rezone certain property
4415	Amends land use policy plan of comprehensive plan
4416	Intent to sell certain property
4417	Charitable donation to Henderson public schools

Resolution Number	
4418	Amends land use policy plan of comprehensive plan
4419	Provisional order concerning modification to Local Improvement District No. T-16 (The Falls at Lake Las Vegas)
4420	Allocates funds and adopts recreation center tutoring agreement
4421	Amends land use policy plan of comprehensive plan
4422	Approves funding agreement for Cornerstone Park bridge
4423	Repeals and replaces resolution concerning certain retail marijuana business license fees for public schools
4424	Provisional order concerning modification to Local Improvement District No. T-16 (The Falls at Lake Las Vegas)
4425	Intent to sell certain property
4426	Intent to sell certain property
4427	Authorizes submission of CDBG-CV2 application to the state
4428	Authorizes commitment to obligations associated with WaterSMART grant
4429	Considers protests regarding Local Improvement District No. T-16 (The Falls at Lake Las Vegas)
4430	Amends land use policy plan of comprehensive plan
4431	Amends land use policy plan of comprehensive plan
4432	Amends land use policy plan of comprehensive plan
4433	Ratifies proposed assessment roll for Neighborhood Improvement District (Pecos Robindale)
4434	Directs the notification of the debt management commission of the proposal to issue general obligation bonds
4435	Intent to issue tax-exempt obligations to reimburse city for city building project
4436	Adopts findings regarding utilization of revenue generated by Clark County Crime and Prevention Act of 2016
4437	Adopts findings regarding utilization of revenue generated by Clark County Sales and Use Tax Act of 2005
4438	Creates energy improvement district pursuant to Henderson C-PACE program
4439	Delegates budget augmentation authority for grants and philanthropic funds to city manager or designee
4440	Confirms assessment roll and assessments for Neighborhood Improvement District (Pecos Robindale)
4441	2020/2021 budget augmentation

Resolution Number	
4442	Notice of intent to issue general obligation bonds and authorizing publication of notice relating thereto
4443	Deposit agreement concerning proposed local improvement district
4444	Intent to lease certain property
4445	Amends land use policy plan of comprehensive plan
4446	Amends land use policy plan of comprehensive plan
4447	Amends land use policy plan of comprehensive plan
4448	Charitable donation to the Public Education Foundation for the Youth Program Quality Intervention Pilot Program
4449	Amends interlocal contract for water service
4450	Amends land use policy plan of comprehensive plan
4451	Supports regional application for the Build Back Better Regional Challenge
4452	Amends land use policy plan of comprehensive plan
4453	Annexation
4454	Accepts petition for formation of Local Improvement District LID T-21 and approving forms of district financing agreement and side agreement (Black Mountain Ranch)
4455	Intent to sell certain property
4456	Intent to lease certain property
4457	Amends land use policy plan of comprehensive plan
4458	Intent to sell certain property
4459	Intent to sell certain property
4460	Amends land use policy plan of comprehensive plan
4461	Amends land use policy plan of comprehensive plan
4462	Adopts cooperative agreement for the chief local elected official consortium
4463	Amends land use policy plan of comprehensive plan
4464	Amends land use policy plan of comprehensive plan
4465	Intent to sell certain property
4466	Supports designation of Avi Kwa Ame as a national monument
4467	Amends land use policy plan of comprehensive plan
4468	Amends Henderson Strong Comprehensive Plan
4469	Intent to sell certain property
4470	Creates the Henderson Commercial Property Assessed Clean Energy Program
4471	Agreement for new local improvement district

Resolution Number	
4472	Consents to relinquishment and land transfer for Boulder City Bypass Frontage Road
4473	Intent to introduce ballot question to require ward-specific voting for council members
4474	Delegates budget augmentation authority for grants and philanthropic funds to city manager or designee
4475	Amends land use policy plan of comprehensive plan
4476	Amends land use policy plan of comprehensive plan
4477	Annexation
4478	Adopts findings regarding utilization of revenue generated by Clark County Sales and Use Tax Act of 2005
4479	Adopts findings regarding utilization of revenue generated by Clark County Crime Prevention Act of 2016
4480	Amends land use policy plan of comprehensive plan
4481	Ratifies proposed assessment roll and sets public hearing for Neighborhood Improvement District (Pecos Robindale)
4482	Intent to sell certain property
4483	Ballot question to require ward-specific voting for council members
4484	2021/2022 budget augmentation
4485	Confirms assessment roll and assessments for Neighborhood Improvement District (Pecos Robindale)
4486	Intent to sell certain property
4487	Amends land use policy plan of comprehensive plan
4488	Intent to sell certain property
4489	Supports effort to change the name of Nevada State College to Nevada State University
4490	Intent to sell certain property
4491	Intent to sell certain property
4492	Approves Complete Streets policy
4493	Amends land use policy plan of comprehensive plan
4494	Rescinds and replaces Res. No. 4486 pertaining to direct land sale to CNP 10 Real Estate, LLC
4495	Authorizes installment-purchase agreement for conducted electrical devices
4496	Intent to issue tax-exempt obligations to reimburse city for public safety equipment
4497	Authorizes medium-term obligations to finance public safety equipment

Resolution Number	
4498	Accepts offer to purchase certain real property
4499	Intent to sell certain property
4500	Amends Henderson Strong Comprehensive Plan
4501	Amends land use policy plan of comprehensive plan
4502	Amends land use policy plan of comprehensive plan
4503	Amends land use policy plan of comprehensive plan
4504	Amends land use policy plan of comprehensive plan
4505	Amends land use policy plan of comprehensive plan
4506	Amends land use policy plan of comprehensive plan
4507	Amends land use policy plan of comprehensive plan
4508	Consents to relinquishment and land transfer for Railroad Pass Frontage Road
4509	Amends land use policy plan of comprehensive plan
4510	Consents to relinquishment and land transfer for Boulder Highway
4511	Provides for communications facilities used for broadband internet access services
4512	Intent to sell certain property
4513	Directs the notification of the debt management commission of the proposal to issue general obligation bonds
4514	Approves funding agreement for the acquisition of the former Fiesta Hotel and Casino site
4515	Amends land use policy plan of comprehensive plan
4516	Establishes the housing advisory committee
4517	Declares special election for city council ward 1
4518	Intent to sell certain property
4519	Intent to issue tax-exempt obligations to reimburse city for fire protection projects and a city building project
4520	Notice of intent to issue general obligation bonds and authorizing publication of notice relating thereto
4521	Annexation
4522	Changes the number of members of the housing advisory committee
4523	Requests termination of the Henderson Public Improvement Trust
4524	Amends land use policy plan of comprehensive plan
4525	Intent to lease certain property
4526	Amends land use policy plan of comprehensive plan
4527	Amends land use policy plan of comprehensive plan
4528	Amends land use policy plan of comprehensive plan

Resolution Number	
4529	Moratorium on application, licensing, and approval of animal establishments without current city animal establishment permit that plan to be involved in retail sale of dogs, cats, and rabbits
4530	Accepts petition for formation of Local Improvement District LID T-22 and approving forms of district financing agreement and owner agreements (Rainbow Canyon Phase II)
4531	Adopts findings regarding utilization of revenue generated by Clark County Sales and Use Tax Act of 2005
4532	Adopts findings regarding utilization of revenue generated by Clark County Crime Prevention Act of 2016
4533	Delegates budget augmentation authority and execute award agreements for grants and philanthropic funds to city manager or designee
4534	Utilizes a portion of retail marijuana business license fees for social impact programming
4535	Ratifies proposed assessment roll and sets public hearing for Neighborhood Improvement District (Pecos Robindale)
4536	2022/2023 budget augmentation
4537	Amends land use policy plan of comprehensive plan
4538	Confirms assessment roll and assessments for Neighborhood Improvement District (Pecos Robindale)
4539	Intent to sell certain property
4540	Amends land use policy plan of comprehensive plan
4541	Repeals resolution concerning management of private activity bond cap
4542	Intent to sell certain property
4543	Transfers private activity bond cap to West Henderson Affordable Family, LLC
4544	Supports U.S. Surgeon General's call to action to promote walking and walkable communities
4545	Amends land use policy plan of comprehensive plan
4546	Accepts offer to purchase certain real property
4547	Accepts distribution of final assets from the Henderson Public Improvement Trust
4548	Intent to sell certain property
4549	Nomination of conveyance of BLM land for affordable housing and direct land sale
4550	Authorizes city staff to prepare and submit application for approval to sponsor charter schools

Resolution Number	
4551	Amends Henderson Strong Comprehensive Plan
4552	Amends land use policy plan of comprehensive plan
4553	Accepts offer to purchase certain real property
4554	Utilizes final assets from the Public Improvement Trust for affordable housing
4555	Intent to lease certain property
4556	Intent to lease certain property
4557	Intent to lease certain property
4558	Intent to lease certain property
4559	Intent to lease certain property
4560	Amends land use policy plan of comprehensive plan
4561	Intent to sell certain property
4562	Authorizes submission of proposal to incur general obligation debt and levy additional taxes for fire department
4563	Accepts bid for Anthem Hills cell site lease
4564	Accepts bid for Esselmont Park cell site lease
4565	Accepts bid for Mission Hills Park cell site lease
4566	Accepts bid for Sonata Park cell site lease
4567	Accepts bid for Weston Hills cell site lease
4568	Amends land use policy plan of comprehensive plan
4569	Amends land use policy plan of comprehensive plan
4570	Process to purchase annuities for benefits to workers' compensation claimants
4571	Ballot question to incur general obligation debt and levy taxes for fire department
158 (Redev.)	Approved funding agreement for Galleria streetscape improvements
4572	Amends the city's capitalization threshold for capital assets and other personal property
4573	Amends land use policy plan of comprehensive plan
4574	Delegates budget augmentation authority and execute award agreements for grants and philanthropic funds to city manager or designee
4575	Adopts findings regarding utilization of revenue generated by Clark County Sales and Use Tax Act of 2005
4576	Adopts findings regarding utilization of revenue generated by Clark County Crime Prevention Act of 2016
4577	Intent to lease certain property
4578	Amends land use policy plan of comprehensive plan

Resolution Number	
4579	Amends land use policy plan of comprehensive plan
4580	Amends land use policy plan of comprehensive plan
4581	Ballot question to incur general obligation debt and levy taxes for fire department
4582	Adopts multi-jurisdictional hazard mitigation plan
159	2023/2024 budget augmentation
4583	Amends land use policy plan of comprehensive plan
4584	2023/2024 budget augmentation
4585	Amends assessment roll and assessments for Neighborhood Improvement District (Pecos Robindale)
4586	Approves cooperative agreement—Via Nobila Trail Phase I bridge project
4587	Approves cooperative agreement for Henderson Interchange
4588	Amends land use policy plan of comprehensive plan
4589	Intent to issue sewer bonds
4590	Intent to issue water bonds
4591	Transfers private activity bond cap to West Henderson Affordable Family, LLC
4593	Amends the city's capitalization threshold for capital assets and bulk purchased assets
4594	Creates special assessment revolving special revenue fund
4595	Supports effort to levy surcharge on telecommunications/telephone service enhancement of telephone system used for reporting emergencies
4596	Grants signature authority to approve certain standard form city permits and permit agreements
4597	Intent to sell certain property
4598	Intent to sell certain property
4599	Pledge to donate to the Legal Aid Center of Southern Nevada
4600	Amends Henderson Strong Comprehensive Plan
4601	Moratorium on sections of title 7 as they relate to community cats
4602	Intent to sell certain property
4603	Accepts offer to purchase certain real property
4604	Annexation
4605	Supports extending fuel revenue indexing
4606	Amends land use policy plan of comprehensive plan
4607	Intent to sell certain property
4608	Intent to sell certain property

Resolution Number	
4609	Rescinds and replaces Res. No. 4552 and rescinds Res. No. 4546 pertaining to land sale
4610	Amends land use policy plan of comprehensive plan
4611	Amends land use policy plan of comprehensive plan
4612	Amends land use policy plan of comprehensive plan
4613	Rescinds and replaces Res. No. 4592 pertaining to direct sale to Richard and Paula Salerno
4614	Amends land use policy plan of comprehensive plan
4615	Amends land use policy plan of comprehensive plan
4616	Creates Charter School Sponsorship special revenue fund
4617	Accepts offer to purchase certain real property
4618	Amends land use policy plan of comprehensive plan
4619	Creates the Homeowner Repair Pilot Program
4620	Intent to acquire certain property
4621	Amends land use policy plan of comprehensive plan
4622	Amends land use policy plan of comprehensive plan
4623	Intent to enter into ground lease agreement for Green Valley High School parking lot
4624	Intent to sell certain property
4628	Intent to issue flood control bonds
4629	Adopts findings regarding utilization of revenue generated by Clark County Crime Prevention Act of 2016
4630	Adopts findings regarding utilization of revenue generated by Clark County Sales and Use Tax Act of 2005
4631	Amends land use policy plan of comprehensive plan
4632	Intent to sell certain property
4633	Amends assessment roll and assessments for Neighborhood Improvement District (Pecos Robindale)
4634	2024/2025 budget augmentation
4635	Amends land use policy plan of comprehensive plan
4636	Amends land use policy plan of comprehensive plan
4637	Intent to sell certain property
4638	Submission of proposal to debt management commission to maintain taxes rate for operating and maintaining city parks and recreational facilities
4639	Amends land use policy plan of comprehensive plan
4640	Amends land use policy plan of comprehensive plan

Resolution Number	
4641	Ballot question to maintain taxes rate for operating/maintaining city parks and recreation facilities
4642	Intent to sell certain property
4643	Transfers private activity bond cap to director of the department of business and industry
4644	Amends land use policy plan of comprehensive plan
4645	Amends land use policy plan of comprehensive plan
4646	Amends land use policy plan of comprehensive plan
4647	Amends land use policy plan of comprehensive plan
4648	Approving the form of a deposit agreement for a proposed local improvement district
4650	Intent to sell certain property
4652	Ballot question to maintain tax rate for operating and maintaining city parks and recreational facilities
4653	Accepts offer to purchase certain real property
4654	Authorizes capital improvements grant application for Horizon Lateral project
4666	Censure resolution for Carrie Cox
4667	Annexation
4668	Intent to sell certain property
161	Intent to sell certain property
4669	Amends land use policy plan of comprehensive plan
4670	Amends land use policy plan of comprehensive plan
4671	Direct land sale to Mugshot Ventures, LLC
4672	Amends land use policy plan of comprehensive plan
4673	Intent to sell certain property
4674	Intent to enter into lease with Boys & Girls Clubs of Southern Nevada
4676	Rescinds and replaces Res. No. 4602 pertaining to direct sale to Johifs Family Revocable Living Trust
4677	Amends and restates cell tower lease agreement
4678	Approves special programs and services fee schedule
4679	Delegates budget augmentation authority and execute award agreements for grants and philanthropic funds to city manager/CEO or designee
4680	Approves the form of an improvements reimbursement agreement between city and PN II, Inc.

Resolution Number	
4681	Accepts petition for formation of Local Improvement District LID T-23-1 and approving forms of district financing agreement and owner agreements
4682	Amends land use policy plan of comprehensive plan
4683	Rescinds and replaces Res. No. 4674 pertaining to lease with Boys & Girls Clubs of Southern Nevada
4684	Adopts findings and determinations required by Clark County Sales and Use Tax Act of 2005
4685	Sets forth findings and determinations required by Clark County Crimes Prevention Act of 2016
4687	2025/2026 budget augmentation
4688	Amends assessment roll for Neighborhood Improvement District (Pecos Robindale)
162	2025/2026 budget augmentation

CODE COMPARATIVE TABLE AND DISPOSITION LIST—ORDINANCES

This is a chronological listing of the ordinances of Henderson, NV beginning with Supplement No. 67, included in this Code.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
2784	1- 6-2009	Vote center plan			Omit
2785	1- 6-2009	Zoning	1	Added	19.11.7
			2		19.14.2
			3	Added	19.15.1—19.15.4
2786	1- 6-2009	Amends Ord. 1972, zoning map			Omit
2787	1- 6-2009	Amends Ord. 1972, zoning map			Omit
2788	1- 6-2009	Public peace and safety	1		8.01.020
			2		8.10.090
			3		8.11.240
2789	1-20-2009	Amends Ord. 1972, zoning map			Omit
2790	1-20-2009	Amends Ord. 1972, zoning map			Omit
2791	1-20-2009	Amends Ord. 1972, zoning map			Omit
2792	1-20-2009	Amends Ord. 1972, zoning map			Omit
2793	1-20-2009	Amends Ord. 1972, zoning map			Omit
2794	1-20-2009	Amends Ord. 1972, zoning map			Omit
2795	1-20-2009	Amends Ord. 1972, zoning map			Omit
2796	1-20-2009	Amends Ord. 1972, zoning map			Omit
2797	1-20-2009	Amends Ord. 1972, zoning map			Omit
2798	1-20-2009	Utility services	1		14.01.010
			2		14.03.030
			3		14.04.040
			4		14.08.040, 14.08.070
					14.08.090
			5	Rpld	14.14.020
				Rnbd	14.04.030—14.04.120
				as	14.02.020—14.04.110
			6		14.18.020, 14.18.040
			7		14.21.050, 1421.050
2799	1-20-2009	Zoning	1		19.4.3.F
			2	Added	19.4.3.G
			3		19.7.1.C
			4		19.4.2
2800	1-20-2009	Teenage dancehalls and nightclubs	1	Rpld	4.60.010—4.60.050
			2	Added	4.60.010—4.60.170
			3		4.03.050
2842	1-19-2010	Development Code		Added	Title 19
2854	4-20-2010	Lost/abandoned property	1	Rpld	Ch. 2.40

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
2855	6- 1-2010				4.12.130
2856	6- 1-2010				18.01.030
2857	6- 1-2010				14.18.060
2862	7- 8-2010				4.05.020
2868	8- 3-2010				7.04.010
					7.04.060
				Added	7.04.095
				Added	7.04.101—7.04.106
2875	10- 5-2010				8.99.030
2877	10-19-2010	Amends development code			Not sent
2883	11-16-2010				4.04.200
2884	12- 7-2010	2011/2012 Ward and precinct map			Omit
2885	12- 7-2010	International Residential Code	1		15.09.010—15.09.030
				Added	15.09.050
2886	12- 7-2010	Electrical Code	1		Ch. 15.16, §§ 15.16.010—15.16.060
2887	12- 7-2010	Uniform Plumbing Code	1		Ch. 15.20, §§ 15.20.010—15.20.060
2888	12- 7-2010	Uniform Mechanical Code	1		Ch. 15.24, §§ 15.24.010—15.24.060
2889	12- 7-2010	Swimming Pool Code	1		Ch. 15.44, §§ 15.44.010—15.44.030
2890	12- 7-2010	International Energy Conservation Code	1	Added	15.45.090
2891	1- 4-2011	Amends Ord. 2869, zoning map			Omit
2892	1- 4-2011	Lake Mead North design guidelines and development standards			Omit
2893	1- 4-2011	Amends Ord. 2869, zoning map			Omit
2894	1- 4-2011	Vote center plan			Omit
2895	1- 4-2011	Amends Ord. 2869, zoning map			Omit
2896	1- 4-2011	Amends Ord. 2869, zoning map			Omit
2897	1- 4-2011	Amends Ord. 2869, zoning map			Omit
2898	1-18-2011	International Building Code	1	Rpld	Ch. 15.08, §§ 15.08.010—15.08.050
			2	Added	Ch. 15.08, §§ 15.08.010—15.08.060
2899	1-18-2011	City of Henderson Fire Code	1	Rpld	Ch. 15.32, §§ 15.32.010—15.32.100
		International Fire Code	2	Added	Ch. 15.32, §§ 15.32.010—15.32.110
2900	1-18-2011	Amends Ord. 2869, zoning map			Omit
2901	1-18-2011	Amends Ord. 2869, zoning map			Omit
2902	1-18-2011	Amends Ord. 2869, zoning map			Omit
2903	1-18-2011	Amends development code			Not sent
2904	3- 1-2011	Amends Ord. 2869, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
2905	3- 1-2011	Amends Ord. 2869, zoning map			Omit
2906	3- 1-2011	Gambling—Regulations and licensing	1		4.32.160
			2	Added	4.32.310 H.
2907	3- 1-2011	Liquor—Regulations and licensing	1 2		4.36.010 4.36.250
2908	3- 1-2011	Animal control, inspection, licensing and regulation	1 2		7.04.010 7.04.060
			3, 4		7.04.090, 7.04.095
			5	Rpld	7.04.100
			6, 7		7.04.350, 7.04.351
			8	Added	7.04.352
			9—11		7.04.353—7.04.355
			12	Rpld	7.04.357
			13		7.04.358
			14	Rpld	7.04.359
		Animal establishments	15—19		7.08.010—7.08.050
			20—22		7.08.090—7.08.110
			23	Added	7.08.115
			24		7.08.120
			25	Added	7.08.125
			26		7.08.140
			27	Added	7.08.145
			28		7.08.190
		Animal control, inspection, licensing and regulation	29	Rpld	7.04.360—7.04.450
2909	3-15-2011	Conservation	1		14.14.030 D.1., E.3.f.
				Added	14.14.030 E.3.f.13.
					14.14.040 E.2.
				Rpld	14.14.090
				Rpld	14.14.110 H.
		Billing regulations	2		14.17.060 C.
		Fees, rates and charges	3		14.18.040
				Added	14.18.050 C.
		Cross-connection control regulations	4		14.08.050 A.2.
		Water commitment and allocation regulations	5	Added	14.02.030 I.—O. 14.02.040
2910	3-15-2011	Secondhand dealers	1		4.68.010
			2		4.68.040
			3	Added	4.68.080 D., E.
			4		4.68.260 I.
				Added	4.68.260 J.
2911	4-12-2011	Amends Ord. 2869, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
2912	5- 3-2011	Amends Ord. 2869, zoning map			Omit
2913	5- 3-2011	Amends Ord. 2842, zoning map			Omit
2914	5- 3-2011	Amends Ord. 2842, zoning map			Omit
2915	5- 3-2011	Cross-connection control regulations	1		14.18.060
2916	5- 3-2011	General business license regulations	1		4.04.020
			2	Added	4.04.025
2917	5- 3-2011	Community development fee schedules	1	Added	18.01.030 B.12.
				Rpld	18.01.030 C.3.
				Rnbd	18.01.030 C.4.—10.
				as	18.01.030 C.3.—9.
2918	5-17-2011	Amends Ord. 2869, zoning map			Omit
2919	7- 5-2011	Amends Ord. 2869, zoning map			Omit
2920	7- 5-2011	Amends Ord. 2869, zoning map			Omit
2921	7- 5-2011	Amends Ord. 2869, zoning map			Omit
2922	7-19-2011	Amends Ord. 2869, zoning map			Omit
2923	7-19-2011	Amends Ord. 2869, zoning map			Omit
2924	8- 2-2011	Authorizes 2011 installment purchase agreement			Omit
2925	8- 2-2011	Issuance of medium-term bond			Omit
2926	8-16-2011	Amends Ord. No. 2869, zoning map			Omit
2927	8-16-2011	Amends Ord. No. 2869, zoning map			Omit
2928	8-16-2011	Amends Ord. No. 2869, zoning map			Omit
2929	8-16-2011	Amends Ord. No. 2869, zoning map			Omit
2930	9-20-2011	Amends Ord. No. 2869, zoning map			Omit
2931	9-20-2011	Amends Ord. No. 2869, zoning map			Omit
2932	9-20-2011	Animals	1	Rpld	Tit. 7, Chs. 7.04—7.08
			2	Added	Tit. 7, Chs. 7.01—7.90
2933	10- 4-2011	Business license fee schedules	1		4.05.220
2934	10-18-2011	Amends Ord. 2869, zoning map			Omit
2935	10-18-2011	Amends development code			Not sent
2936	10-18-2011	Amends Ord. 2869, zoning map			Omit
2937	10-18-2011	Amends development code			Not sent
2938	10-18-2011	Amends Ord. 2869, zoning map			Omit
2939	11- 2-2011	Amends development code	1	Rpld	Tit. 19, Chs. 9.1—9.12
			4	Added	Tit. 19, Ch. 19.01
2940	11- 2-2011	Liquor—Regulations and licenses	1		4.36.010

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
			2	Added	4.36.040 L.
			3		4.36.250
2941	11- 2-2011	Amends Ord. 2869, zoning map			Omit
2942	11-15-2011	Solid waste management	1		5.17.230
2943	11-15-2011	First amendment to Cadence Development Agreement			Omit
2944	11-15-2011	Amends Ord. 2869, zoning map			Omit
2945	12- 6-2011	2011 A&B refunding bond ordinance			Omit
2946	12- 6-2011	2011C refunding bond ordinance			Omit
2947	12- 6-2011	Massage establishments	1		4.84.060 B.
			2	Added	4.84.150 E.
				Rnbd	4.84.150 E.—G.
				as	4.84.150 F.—H.
			3	Added	4.84.180 G., H.
				Rnbd	4.84.180 G.—J.
				as	4.84.180 I.—L.
		Reflexology	4	Added	4.85.145
			5		4.85.150
			6	Added	4.85.160 E., F.
2948	12-20-2011	Amends Ord. 2869, zoning map			Omit
2949	12-20-2011	Amends Ord. 2869, zoning map			Omit
2950	12-20-2011	Policy and procedure show cause, license suspension, limitation, revocation	1	Rpld	Ch. 4.06, §§ 4.06.010—4.06.160
			2	Added	Ch. 4.06, §§ 4.06.010—4.06.300
2951	12-20-2011	Utility services	1		14.01.010
		Water commitment and allocation regulations	2		14.02.020 A.
					14.02.040
				Rpld	14.02.050, 14.02.060
				Rnbd	14.02.070
				as	14.02.050
		Conservation	3		14.14.050 F.3.b.1.
		Fees, rates and charges	4		14.18.020 F.5.
					14.18.060
2952	1- 3-2012	Registration and regulation of lobbyists	1		Ch. 2.100, §§ 2.100.010—2.100.040
2953	1- 3-2012	General business license provisions	1		4.04.010
			2	Added	4.04.190
		Business license fee schedules	3		4.05.220
2954	1-17-2012	Amends Ord. 2869, zoning map			Omit
2955	1-17-2012	Records management	1		2.47.040 B.5.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
			2		2.47.050 A.
			3		2.47.085
2956	1-17-2012	Amends Ord. 2869, zoning map			Omit
2957	2- 7-2012	Amends Henderson Park District boundaries map			Omit
2958	2-21-2012	Amends Ord. 2869, zoning map			Omit
2959	3- 6-2012	Dangerous fireworks prohibited	1	Added	8.32.050
2960	3-20-2012	Amends Ord. 2869, zoning map			Omit
2961	4- 3-2012	Council meetings	1	Rpld	2.04.060
					2.04.070
				Rpld	2.04.080
					2.04.090
				Rpld	2.04.100
					2.04.110
2962	4-17-2012	Amends development code			Omit
2963	4-17-2012	Amends Ord. 2869, zoning map			Omit
2964	4-17-2012	Amends Ord. 2869, zoning map			Omit
2965	5-15-2012	Amends Ord. 2869, zoning map			Omit
2966	6- 5-2012	2012 sewer refunding bond ordinance			Omit
2967	6-19-2012	Amends Ord. 2869, zoning map			Omit
2968	6-19-2012	Ethical standards for public servants	1	Added	Ch. 2.40, §§ 2.40.010—2.40.160
2969	6-19-2012	Car dealership—New	1	Added	4.05.200
2970	7-17-2012	Amends Ord. 2869, zoning map			Omit
2971	7-17-2012	Amends Ord. 2869, zoning map			Omit
2972	7-17-2012	Amends Ord. 2869, zoning map			Omit
2973	8-21-2012	Amends Ord. 2869, zoning map			Omit
2974	9-18-2012	Amends Ord. 2869, zoning map			Omit
2975	9-18-2012	Amends Ord. 2869, zoning map			Omit
2976	9-18-2012	Union Village Development Agreement			Omit
2977	10-16-2012	Amends Ord. 2869, zoning map			Omit
2978	10-16-2012	Amends Ord. 2869, zoning map			Omit
2979	10-16-2012	Amends Ord. 2869, zoning map			Omit
2980	11- 6-2012	Eastside Redevelopment Plan amendment			Omit
2981	11-20-2012	Amends Ord. 2869, zoning map			Omit
2982	12- 4-2012	Bicycle advisory committee	1—5	Added	Ch. 2.75, §§ 2.75.010—2.75.050
2983	12- 4-2012	Amends Ord. 2842, zoning map			Omit
2984	12- 4-2012	2013/2014 Ward and precinct map			Omit
2985	12-18-2012	Amends Ord. 2869, zoning map			Omit
2986	12-18-2012	Amends Ord. 2869, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
2987	12-18-2012	Amends Ord. 2869, zoning map			Omit
2988	1- 8-2013	Vote center plan			Omit
2989	2- 5-2013	Amends Ord. 2869, zoning map			Omit
2990	2- 5-2013	Amends Ord. 2869, zoning map			Omit
2991	2- 5-2013	Amends Ord. 2869, zoning map			Omit
2992	2- 5-2013	Amends Ord. 2869, zoning map			Omit
2993	2- 5-2013	LID T-13 limited obligation refunding bonds			Omit
2994	2-19-2013	2013A refunding bond ordinance			Omit
2995	2-19-2013	2013 B&C refunding bond ordinance			Omit
2996	2-19-2013	Amends Ord. 2869, zoning map			Omit
2997	2-19-2013	Amends Ord. 2869, zoning map			Omit
2998	3-19-2013	Amends Ord. 2869, zoning map			Omit
2999	3-19-2013	Amends Ord. 2869, zoning map			Omit
3000	4- 9-2013	Amends Ord. 2869, zoning map			Omit
3001	4- 9-2013	Community development fee schedules	1	Added	18.01.030 C.10.
3002	5- 7-2013	Amends Ord. 2869, zoning map			Omit
3003	5- 7-2013	Amends Ord. 2869, zoning map			Omit
3004	5-21-2013	Amends Ord. 2869, zoning map			Omit
3005	5-21-2013	Amends Ord. 2869, zoning map			Omit
3006	5-21-2013	Amends Ord. 2869, zoning map			Omit
3007	5-21-2013	Police service fees	1		8.01.020
3008	5-21-2013	Violation of state law	1		8.02.010, 8.02.020
3009	5-21-2013	Police canine units	1	Rpld	Ch. 8.03, §§ 8.03.010, 8.03.020
3010	5-21-2013	Distribution and display of material harmful to minors	1	Rpld	Ch. 8.07, §§ 8.07.010—8.07.040
3011	5-21-2013	Special events	1	Added	8.10.020 C.
				Added	8.10.025 B.
					8.10.040 A.
				Added	8.10.065 D.
				Added	8.10.070 D.
					8.10.080 B.
					8.10.090 B.
				Added	8.10.100 B.
				Added	8.10.120 B.
					8.10.150 B.
				Added	8.10.150 D.
				Rpld	8.10.180
				Added	8.10.210 D.
					8.10.220—8.10.240
				Rpld	8.10.250

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3012	5-21-2013	Parade and public assembly	1	Added	8.11.020 B.
					8.11.080 B.
				Added	8.11.080 D.
					8.11.090 B.
				Added	8.11.105 C.
				Added	8.11.110 B.
				Rpld	8.11.140
				Added	8.11.190 C.
				Added	8.11.200 H.
				Added	8.11.210 D.
					8.11.220
					8.11.250, 8.11.260
				Rpld	8.11.270
3013	5-21-2013	Contributing to delinquency of minors	1		8.12.010, 8.12.020
				Added	8.12.030
3014	5-21-2013	Skating where prohibited	1		Ch. 8.09 (title)
					8.09.010
				Rpld	8.09.020
					8.09.040
				Added	8.09.050
3015	5-21-2013	Hotel registers	1		8.28.010, 8.28.020
3016	6-11-2013	Uniform regulations for flood control and control of drainage	1		15.50.010
3017	6-11-2013	Utilities	1	Rpld	Ch. 2.60, §§ 2.60.010—2.60.030
3018	6-11-2013	Department of information technology	1		2.110.010—2.110.050
3019	6-11-2013	Travel trailer park	1	Rpld	Tit. 17, Chs. 17.01—17.08
3020	6-11-2013	Pool and hot tub draining	1		14.14.100
3021	6-11-2013	Emergency management	1		2.24.010—2.24.090
					2.24.110
3022	6-11-2013	Air pollution	1	Rpld	Ch. 5.20, §§ 5.20.010—5.20.360
3023	6-11-2013	Billing regulations	1	Added	14.17.020 A.4.
				Added	14.17.030 C.
3024	6-11-2013	Public rest facilities	1	Rpld	Ch. 5.24, §§ 5.24.010—5.24.040
3025	6-11-2013	Delinquent land contracts	1	Rpld	Ch. 2.42, §§ 2.42.010—2.42.050
3026	6-11-2013	Cable television	1	Rpld	Ch. 4.26, §§ 4.26.010—4.26.170
3027	6-11-2013	Amends Ord. 2869, zoning map			Omit
3028	6-18-2013	Local Improvement District No. T-16			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3029	7- 2-2013	Amends Ord. 2869, zoning map			Omit
3030	7- 2-2013	Parks and recreation board	1	Rpld	2.16.010
					2.16.020—2.16.050
				Rpld	2.16.070
3031	7- 2-2013	Commemorative beautification commission	1		2.18.010—2.18.040
				Rpld	2.18.070
3032	7- 2-2013	Blue ribbon commission on educational excellence and youth opportunity	1		2.20.020—2.20.040
3033	7- 2-2013	Dangerous fireworks	1		Ch. 8.32, §§ 8.32.010, 8.32.020
		Fires			Ch. 8.36, § 8.36.010
		Camping—Outdoor fires			8.37.020 B.
					8.37.040
3034	7- 2-2013	Amends Ord. 2869, zoning map			Omit
3035	7- 2-2013	Amends Ord. 2869, zoning map			Omit
3036	7- 2-2013	Amends Ord. 2869, zoning map			Omit
3037	7- 2-2013	Amends Ord. 2869, zoning map			Omit
3038	7- 2-2013	Cross-connection control regulations	1		14.08.040 E.
				Added	14.08.040 F.
					14.08.090 K.
3039	7-16-2013	Amends Ord. 2869, zoning map			Omit
3040	8- 6-2013	International Building Code	1		15.08.010, 15.08.020
				Rpld	15.08.030
				Rnbd	15.08.040—15.08.060
				as	15.08.030—15.08.050
3041	8- 6-2013	International Residential Code	1		15.09.010—15.09.030
					15.09.050
3042	8- 6-2013	Electrical Code	1		15.16.010, 15.16.020
					15.16.040
					15.16.060
3043	8- 6-2013	Uniform Plumbing Code	1		15.20.010, 15.20.020
					15.20.040
					15.20.060
3044	8- 6-2013	Uniform Mechanical Code	1		15.24.010, 15.24.020
					15.24.040
					15.24.060
3045	8- 6-2013	Swimming Pool Code	1		Ch. 15.44, §§ 15.44.010—15.44.050
3046	8- 6-2013	Amends Ord. 2869, zoning map			Omit
3047	8- 6-2013	International Energy Conservation Code	1		Ch. 15.45, §§ 15.45.010—15.45.050

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3048	8- 6-2013	International Fire Code	1	Rpld	Ch. 15.32, §§ 15.32.010—15.32.120
			2	Added	Ch. 15.32, §§ 15.32.010—15.32.120
3049	8- 6-2013	Development services schedule of fees			Omit
3050	8-20-2013	City audit function	1	Added	Ch. 2.43, §§ 2.43.010, 2.43.020
3051	8-20-2013	Amends Ord. 2869, zoning map			Omit
3052	8-20-2013	Amends Ord. 2869, zoning map			Omit
3053	8-20-2013	Amends Ord. 2869, zoning map			Omit
3054	8-20-2013	Amends Ord. 2869, zoning map			Omit
3055	8-20-2013	Major modification to Inspirada Development Agreement			Omit
3056	9- 3-2013	Ethical standards for public servants	1	Added	2.40.010 A.1.
				Rnbd	2.40.010 A.1.—3.
				as	2.40.010 A.2.—4.
				Rpld	2.40.020 A.4.
					2.40.040 C., E., G.1.
					2.40.050 D.
					2.40.060 B.4., C.—G.
					2.40.070 B.
					2.40.080
					2.40.090 B.
				Added	2.40.090 C.
				Rnbd	2.40.090 C.
				as	2.40.090 D.
					2.40.100 A., B.
					2.40.110 A., B.
					2.40.130 D., H.
					2.40.140 A.—C.
					2.40.150
3057	9- 3-2013	Registration and regulation of lobbyists	1		2.100.010 A.3., B.4.
				Added	2.100.010 B.7.
					2.100.020 A., B.3., E.2.
					2.100.030
				Added	2.100.040
				Rnbd	2.100.040
				as	2.100.050
3058	9- 3-2013	Stormwater regulations	1		Ch. 13.04, §§ 13.04.010—13.04.260
3059	9-17-2013	Amends Ord. 2869, zoning map			Omit
3060	9-17-2013	Elections	1		2.08.020—2.08.040

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
				Added	2.08.070
3061	9-17-2013	Museum/space and science center board	1		2.85.010
3062	9-17-2013	Tobacco pollution control	1	Rpld	Ch. 2.90, §§ 2.90.010—2.90.040
3063	9-17-2013	Charter review committee	1	Added	Ch. 2.95, §§ 2.95.010—2.95.120
3064	9-17-2013	Classification and salary schedule	1	Rpld	Ch. 2.52, § 2.52.010
3065	9-17-2013	Affirmative action plan	1	Rpld	Ch. 2.58, § 2.58.010
3066	9-17-2013	Trailer parks	1	Rpld	Tit. 16, Chs. 16.04—16.24
3067	9-17-2013	Door-to-door solicitors, peddlers and canvassers	1		Ch. 4.12, §§ 4.12.010—4.12.150
3068	10- 1-2013	Reflexology	1		4.85.010
					4.85.040
					4.85.120, 4.85.130
					4.85.160, 4.85.170
				Rpld	4.85.180—4.85.200
3069	10- 1-2013	Vacation certificate business	1	Rpld	Ch. 4.100, §§ 4.100.010—4.100.150
3070	10-15-2013	Annexation			Omit
3071	10-15-2013	Amends Ord. 2869, zoning map			Omit
3072	10-15-2013	Amends Ord. 2869, zoning map			Omit
3073	10-15-2013	Amends Ord. 2869, zoning map			Omit
3074	10-15-2013	Amends Ord. 2869, zoning map			Omit
3075	10-15-2013	City-wide fee schedule for public records and document services	1		2.47.085
3076	11- 5-2013	Amends Ord. 2869, zoning map			Omit
3077	11- 5-2013	Henderson emergency medical services advisory board	1	Rpld	Ch. 2.27, §§ 2.27.010—2.27.070
3078	11- 5-2013	Public improvement trust provide activity bonds			Omit
3079	11- 5-2013	Litter	1		5.04.010
					5.04.050 B., D.1., E.
				Rpld	5.04.080
3080	11- 5-2013	Restrictions and curfew for minors	1		Ch. 8.08, §§ 8.08.010—8.08.090
3081	11- 5-2013	Ambulance transportation fees	1		2.29.030
				Rpld	2.29.040
3082	11- 5-2013	Trees and plants	1		5.28.050
3083	11- 5-2013	Solid waste management	1		Ch. 5.17, §§ 5.17.005—5.17.360
3084	11- 5-2013	Policy and procedure show cause, license suspension, limitation, revocation	1		4.06.050(b)
					4.06.060(a)

Ordinance Number	Date	Description	Section		Section this Code
					4.06.120
					4.06.140
3085	11-19-2013	Amends development code			Omit
3086	11-19-2013	Redevelopment Plan for the Eastside Redevelopment Area			Omit
3087	11-19-2013	Project and assessments within LID T-18			Omit
3088	11-19-2013	Procedure for payment or credit for reduced assessments resulting from modifications within LID T-18			Omit
3089	11-22-2013	LID T-12 limited obligation refunding bonds			Omit
3090	11-19-2013	Amends Ord. 2869, zoning map			Omit
3091	11-19-2013	Amends Ord. 2869, zoning map			Omit
3092	11-19-2013	Amends Ord. 2869, zoning map			Omit
3093	11-19-2013	Amends Ord. 2869, zoning map			Omit
3094	12- 3-2013	Senior citizens advisory commission	1		2.22.020—2.22.040
				Rpld	2.22.070
3095	12-17-2013	Amends Ord. 2869, zoning map			Omit
3096	12-17-2013	Amends Ord. 2869, zoning map			Omit
3097	12-17-2013	Amends Ord. 2869, zoning map			Omit
3098	12-17-2013	Amends Ord. 2869, zoning map			Omit
3099	12-17-2013	Amends Ord. 2869, zoning map			Omit
3100	12-17-2013	Amends Ord. 2869, zoning map			Omit
3101	12-17-2013	Amends Ord. 2869, zoning map			Omit
3102	12-17-2013	Amends Ord. 2869, zoning map			Omit
3103	12-17-2013	Amends Ord. 2869, zoning map			Omit
3104	12-17-2013	Gambling—regulations and licenses	1		Ch. 4.32, §§ 4.32.010—4.32.380
3105	12-17-2013	Liquor—regulations and licenses	1		Ch. 4.36, §§ 4.36.010—4.36.460
3106	12-17-2013	Amends development code			Omit
3107	1- 7-2014	Laser pointers	1		8.04.050
3108	1- 7-2014	Imitation controlled substances	1	Rpld	Ch. 8.38, §§ 8.38.010—8.38.060
3109	1- 7-2014	Liquor violations	1		8.40.010
				Rpld	8.40.020
					8.40.030—8.40.050
3110	1- 7-2014	Noise control	1		8.84.030
					8.84.040 A.
					8.84.050
3111	1- 7-2014	Moratorium on medical marijuana establishments			Omit
3112	1-21-2014	Amends Ord. 2869, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3113	1-21-2014	Stink bombs	1		8.90.020
3114	1-21-2014	Property damage	1	Rpld	Ch. 8.68, §§ 8.68.010—8.68.040
3115	1-21-2014	Obscene materials	1	Rpld	Ch. 8.64, §§ 8.64.010—8.64.040
3116	1-21-2014	Private patrolmen—Security guards	1	Rpld	Ch. 8.49, §§ 8.49.010—8.49.060
3117	1-21-2014	Prostitution and indecent conduct	1		Ch. 8.60, §§ 8.60.010—8.60.160
3118	1-21-2014	Interference with radio reception	1	Rpld	Ch. 8.72, §§ 8.72.010—8.72.050
3119	1-21-2014	Short wave radio	1	Rpld	Ch. 8.76, §§ 8.76.010—8.76.110
3120	1-21-2014	Modification of LID T-16 project			Omit
3121	2- 4-2014	Abandoned residential real property registry	1	Added	Ch. 15.13, §§ 15.13.010—15.13.110
3122	2-18-2014	Unclassified employees	1	Rpld	Ch. 2.34, §§ 2.34.010—2.34.140
		Administrative policies		Added	Ch. 2.34, § 2.34.010
3123	2-18-2014	City manager	1	Added	Ch. 2.10, §§ 2.10.010—2.10.040
3124	2-18-2014	Amends Ord. 2869, zoning map			Omit
3125	2-18-2014	Amends Ord. 2869, zoning map			Omit
3126	2-18-2014	Amends Ord. 2869, zoning map			Omit
3127	3- 4-2014	Use of roadway	1	Rpld	Ch. 10.32, §§ 10.32.010—10.32.130
3128	3-18-2014	Amends Ord. 2869, zoning map			Omit
3129	3-18-2014	Amends Ord. 2869, zoning map			Omit
3130	4- 1-2014	Amends Ord. 2869, zoning map			Omit
3131	4- 1-2014	Ethical standards for public servants	1		2.40.010 A.1.
					2.40.020 A.2.
					2.40.040 C., D.
					2.40.050 B.1., D.
					2.40.060 G.
					2.40.080 B.
					2.40.120 A., C.
				Added	2.40.140 A.1.
					2.40.150
3132	4- 1-2014	Business impact consideration	1	Rpld	Ch. 4.07, §§ 4.07.010—4.07.030
3133	4- 1-2014	Model traffic ordinance adopted—Amendments	1	Rpld	Ch. 10.04, §§ 10.04.010, 10.04.020
3134	4- 1-2014	Citizens traffic advisory board	1		10.18.030—10.18.050
				Added	10.18.080
3135	4- 1-2014	Traffic control devices	1		Ch. 10.20, §§ 10.20.010—10.20.180

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3136	4- 1-2014	Open containers unlawful in motor vehicles	1	Rpld	Ch. 10.23, § 10.23.010
3137	4- 1-2014	Speed regulations	1	Rpld	10.24.010
					10.24.020, 10.24.030
					10.24.060
3138	4- 1-2014	Intersections	1		Ch. 10.36, §§ 10.36.010—10.36.080
3139	4- 1-2014	Turning, starting and stopping—Signals	1		Ch. 10.40, §§ 10.40.020, 10.40.030
3140	4- 1-2014	Excessive vehicle noises	1	Rpld	10.59.030
3141	4- 1-2014	Building and fire safety administrative code	1		15.01.040
					15.01.080
					15.01.085 B.
					15.01.090
					15.01.115
					15.01.130 U.
					15.01.140 P.
				Rpld	15.01.140 R.
					15.01.205
					15.01.255, 15.01.260
					15.01.285 B.—E.
					15.01.290, 15.01.295
					15.01.340
				Added	15.01.340 E.
				Rnbd	15.01.340 E.
				as	15.01.340 F.
3142	4- 1-2014	Uniform code for dangerous buildings abatement	1		15.10.010
					15.10.020
3143	4- 1-2014	Design construction standards for wastewater collection systems	1		15.75.010
3144	4- 1-2014	Amends development code			Omit
3145	4-15-2014	Stormwater regulations	1	Added	13.04.270—13.04.290
3146	4-15-2014	Aggressive solicitation	1		8.94.030
3147	4-15-2014	Right-of-way use applications	1	Rpld	Ch. 4.30, §§ 4.30.010—4.30.060
3148	4-15-2014	Public works department—Determination of flood hazards	1	Rpld	Ch. 2.50, §§ 2.50.010—2.50.030
3149	4-15-2014	Temporary dwelling units	1		15.60.040, 15.60.050
					15.60.070
3150	4-15-2014	Noise level reduction standards	1		15.56.010, 15.56.020
					15.56.030 H.3.
					15.56.040 H.3.
					15.56.050 H.3.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
				Rpld	15.56.060
3151	4-15-2014	Charitable solicitations while standing on median strip or sidewalk	1		10.34.060
					10.34.100 B.3.
					10.34.110
				Rpld	10.34.120
3152	4-15-2014	Uniform standard specifications for public works construction	1		15.52.010
3153	4-15-2014	Amends Ord. 2869, zoning map			Omit
3154	4-15-2014	Amends Ord. 2869, zoning map			Omit
3155	5- 6-2014	Liquor violations	1	Added	8.40.010 A.3.
3156	5- 6-2014	Weapons and missiles	1	Rpld	8.98.070
3157	5- 6-2014	Nevada Traffic Manual adopted	1		10.02.010
3158	5- 6-2014	Pedestrians' rights and duties	1		Ch. 10.48, §§ 10.48.040—10.48.090
3159	5- 6-2014	Uniform Design and Construction Standards (UDACS) for Water Distribution Systems	1		15.70.010
3161	5-20-2014	Municipal court judge salary	1		2.05.010, 2.05.020
3160	5-20-2014	Amends development services center fees ordinance			Omit
3162	5-20-2014	Graffiti	1		8.85.060
				Rpld	8.85.070
				Added	8.85.070
				Added	8.85.100
3163	5-20-2014	Traffic administration	1		Ch. 10.12, § 10.20.030
3164	5-20-2014	Enforcement, obedience and effect	1		Ch. 10.16, §§ 10.16.010—10.16.114
3165	5-20-2014	Amends Ord. 2869, zoning map			Omit
3166	5-20-2014	Amends Ord. 2869, zoning map			Omit
3167	6- 3-2014	Insurance	1		Ch. 2.65, §§ 2.65.010, 2.65.020
3168	6- 3-2014	Department of information and technology	1	Rpld	Ch. 2.110, §§ 2.110.010—2.110.050
3169	6- 3-2014	Parking regulations	1		10.06.010
3170	6- 3-2014	Definitions	1		Ch. 10.08, §§ 10.08.010—10.08.390
3171	6- 3-2014	Miscellaneous driving rules	1		Ch. 10.44, §§ 10.44.140—10.44.210
3172	6- 3-2014	Truck routes	1		Ch. 10.60, §§ 10.60.020—10.60.100
3173	6-17-2014	General provisions	1	Rpld	Ch. 1.01, §§ 1.01.010—1.01.030
				Added	Ch. 1.02, §§ 1.02.010—1.02.060
				Added	Ch. 1.03, §§ 1.03.010—1.03.060

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
					1.04.010, 1.04.020
					1.04.040
				Added	Ch. 1.05, §§ 1.05.010—1.05.050
3174	6-17-2014	Council meetings	1		Ch. 2.04, §§ 2.04.010—2.04.100
3175	6-17-2014	Multiple vendor arena sales	1	Rpld	Ch. 4.74, §§ 4.74.010—4.74.160
3176	6-17-2014	Penalties and procedure on arrest	1		Ch. 10.64, §§ 10.64.010—10.64.030
3177	6-17-2014	Property maintenance code	1		15.12.010—15.12.060
					15.12.090
3178	6-17-2014	Amends development code			Omit
3179	6-17-2014	Amends Ord. 2869, zoning map			Omit
3180	6-17-2014	Amends Ord. 2869, zoning map			Omit
3181	6-17-2014	Amends Ord. 2869, zoning map			Omit
3182	6-17-2014	Amends Ord. 2869, zoning map			Omit
3183	6-17-2014	Amends Ord. 2869, zoning map			Omit
3184	7- 1-2014	Annexation			Omit
3185	7- 1-2014	Annexation			Omit
3186	7- 1-2014	Amends development code			Omit
3187	7- 1-2014	Fees for applications and services	1		18.01.030 B., C.
3188	7- 1-2014	Medical marijuana—Regulations and licenses	1	Added	Ch. 4.116, §§ 4.116.010—4.116.270
3189	7- 1-2014	Medical marijuana fees	1	Added	Ch. 4.115, §§ 4.115.010—4.115.050
3190	7- 1-2014	Parks and recreation	1	Rpld	Ch. 8.99, §§ 8.99.010—8.99.060
			2	Added	Ch. 2.27, §§ 2.27.010—2.27.060
3191	7- 1-2014	Administrative	1	Rpld	Ch. 2.70, §§ 2.70.010—2.70.100
3192	7-15-2014	Amends Ord. 2869, zoning map			Omit
3193	7-15-2014	Amends Ord. 2869, zoning map			Omit
3194	8- 5-2014	Microfilming of records	1	Rpld	Ch. 2.48, §§ 2.48.010—2.48.040
3195	8-19-2014	City-wide fee schedule for public records and document services	1		2.47.085
3196	8-19-2014	Medical marijuana fees	1		4.115.010
					4.115.030, 4.115.040
3197	8-19-2014	Ambulance transportation fees	1		2.29.020, 2.29.030
3198	8-19-2014	2015/2016 ward map			Omit
3199	8-19-2014	2014 refunding bond ordinance			Omit
3200	8-19-2014	Amends development code			Omit
3201	8-19-2014	Amends Ord. 2869, zoning map			Omit
3202	8-19-2014	Amends Ord. 2869, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3203	9- 2-2014	LID T-4(C) limited obligation refunding bonds			Omit
3204	9- 2-2014	Modification of LID T-12 project			Omit
3205	9- 2-2014	Parks and recreation board	1	Rpld	Ch. 2.16, §§ 2.16.010—2.16.070
3206	9- 2-2014	Commemorative beautification commission	1	Rpld	Ch. 2.18, §§ 2.18.010—2.18.070
3207	9- 2-2014	Henderson blue ribbon commission on educational excellence and youth opportunity	1	Rpld	Ch. 2.20, §§ 2.20.010—2.20.040
3208	9- 2-2014	Citizens advisory committee	1	Rpld	Ch. 2.21, §§ 2.21.010—2.21.080
3209	9- 2-2014	Senior citizens advisory commission	1	Rpld	Ch. 2.22, §§ 2.22.010—2.22.070
3210	9- 2-2014	Audit committee	1	Rpld	2.43.010
3211	9- 2-2014	Advisory boards	1	Added	Ch. 2.50, §§ 2.50.010—2.50.390
3212	9- 2-2014	Bicycle advisory committee	1	Rpld	Ch. 2.75, §§ 2.75.010—2.75.050
3213	9- 2-2014	Commission on cultural arts and tourism	1	Rpld	Ch. 2.80, §§ 2.80.010—2.80.030
3214	9- 2-2014	Charter review committee	1	Rpld	Ch. 2.95, §§ 2.95.010—2.95.120
3215	9- 2-2014	Citizens traffic advisory board	1	Rpld	Ch. 10.18, §§ 10.18.010—10.18.080
3216	10- 7-2014	Amends Ord. 2869, zoning map			Omit
3217	10- 7-2014	Amends Ord. 2869, zoning map			Omit
3218	10- 7-2014	Amends Ord. 2869, zoning map			Omit
3219	10- 7-2014	Amends Ord. 2869, zoning map			Omit
3220	10- 7-2014	Amends Ord. 2869, zoning map			Omit
3221	10- 7-2014	Pet licensing and permits; fees; appeal process	1		7.04.020
3222	10-21-2014	Amends Ord. 2869, zoning map			Omit
3223	10-21-2014	Amends Ord. 2869, zoning map			Omit
3224	10-21-2014	Amends Ord. 2869, zoning map			Omit
3225	10-21-2014	Amends Ord. 2869, zoning map			Omit
3226	10-21-2014	Vote center plan			Omit
3227	10-21-2014	Fees for applications and services	1		18.10.030
3228	10-21-2014	Ethical standards for public servants	1		2.40.010, 2.40.020 2.40.040
					2.40.060—2.40.080
					2.40.100—2.40.140
3229	11- 4-2014	Animals	1		7.01.070
					7.01.090
					7.01.140
				Added	7.01.150
				Rnbd	7.01.150

Ordinance Number	*Date*	*Description*	*Section*	*Section this Code*
			as	7.01.160
			Rpld	7.01.160
				7.01.240
				7.01.270, 7.01.280
				7.01.300—7.01.340
				7.01.360—7.01.380
				7.01.400
				7.01.420
			Added	7.01.435
			Added	7.01.455
				7.01.460
			Added	7.01.485
				Ch. 7.02, §§ 7.02.010—7.02.070
				7.04.020—7.04.060
				7.04.080—7.04.120
			Added	7.04.130, 7.04.140
			Rnbd	7.04.130
			as	7.04.150
				7.06.010—7.06.040
			Rpld	7.06.050, 7.06.060
				7.06.070—7.06.110
			Rpld	7.06.170
				7.06.190
				7.08.010, 7.08.020
				7.08.040
				7.10.010—7.10.050
			Rpld	7.10.060
				7.30.010
			Rpld	7.30.020
				7.30.030—7.30.060
				7.40.010—7.40.060
				7.40.080
				7.50.010—7.50.080
				7.60.010, 7.60.020
				7.60.040
			Added	7.60.045
				7.60.050, 7.60.060
				7.70.020, 7.70.030
			Rpld	7.70.040
				7.70.050
				7.90.010

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
			2	Rpld	Ch. 7.20, §§ 7.20.010—7.20.060
				Added	Ch. 7.20, §§ 7.20.010—7.20.070
			3	Added	Ch. 7.25, §§ 7.25.010—7.25.050
3230	11-18-2014	Amends Ord. 2869, zoning map			Omit
3231	11-18-2014	Amends Ord. 2869, zoning map			Omit
3232	11-18-2014	Amends Ord. 2869, zoning map			Omit
3233	11-18-2014	Amends Ord. 2869, zoning map			Omit
3234	11-18-2014	Fees for closure of right-of-way	1	Added	Ch. 11.30, § 11.30.010
3235	11-18-2014	Authority to impose fees for construction and use of the right-of-way	1	Added	Ch. 11.20, §§ 11.20.010—11.20.060
3236	12- 2-2014	City clerk: Additional duties and authorizations	1		2.44.010
3237	12-16-2014	Amends Ord. 2869, zoning map			Omit
3238	12-16-2014	Amends Ord. 2869, zoning map			Omit
3239	12-16-2014	Amends Ord. 2869, zoning map			Omit
3240	12-16-2014	Amends development code			Omit
3241	1- 6-2015	Public improvement trust private activity bonds			Omit
3242	1- 6-2015	Auctions and auctioneers	1		Ch. 4.08, §§ 4.08.010—4.08.170
3243	1- 6-2015	Transient lodging and gaming taxes	1		4.48.010—4.48.030
					4.48.040 B.
					4.48.060
				Added	4.48.062
				Added	4.48.065
					4.48.070 A., D.
					4.48.080, 4.48.090
					4.48.110 A., C.
					4.48.120
				Added	4.48.125
				Rpld	4.48.130
3244	1- 6-2015	Sale and display of narcotic and other paraphernalia	1		Ch. 4.98, §§ 4.98.010—4.98.040
3245	1- 6-2015	Outcall promoter and outcall entertainer	1	Rpld	Ch. 4.101, §§ 4.101.010—4.101.370
3246	1- 6-2015	Sexually oriented businesses	1		Ch. 4.110, §§ 4.110.010—4.110.330
3247	1-20-2015	Declares 2015 municipal election			Omit
3248	1-20-2015	Amends Ord. 2869, zoning map			Omit
3249	1-20-2015	Amends Ord. 2869, zoning map			Omit
3250	1-20-2015	Amends Ord. 2869, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3251	1-20-2015	Amends and restates Union Village Development Agreement			Omit
3252	2- 3-2015	Repeals development agreement			Omit
3253	2- 3-2015	Henderson museum/space and science center board	1	Rpld	Ch. 2.85, § 2.85.010
3254	2-17-2015	Amends development code			Omit
3255	2-17-2015	Amends Ord. 2869, zoning map			Omit
3256	2-17-2015	Amends Ord. 2869, zoning map			Omit
3257	2-17-2015	Amends Ord. 2869, zoning map			Omit
3258	2-17-2015	Amends Ord. 2869, zoning map			Omit
3259	2-17-2015	Amends Ord. 2869, zoning map			Omit
3260	3- 3-2015	Repeals development agreement			Omit
3261	5- 5-2015	Amends Ord. 2869, zoning map			Omit
3262	5- 5-2015	2015 water and sewer refunding bond ordinance			Omit
3263	5-19-2015	Amends Ord. 2869, zoning map			Omit
3264	5-19-2015	Amends Ord. 2869, zoning map			Omit
3265	5-19-2015	Amends Ord. 2869, zoning map			Omit
3266	5-19-2015	Amends Ord. 2869, zoning map			Omit
3267	5-19-2015	Civil service rules	1	Rpld	Tit. 6, Chs. 6.04—6.44
			2	Added	Tit. 6, Chs. 6.01—6.09
3268	5-19-2015	Civil service board	1		2.50.345
3269	6- 2-2015	Major modification to Cadence Development Agreement			Omit
3270	6- 2-2015	Amends Ord. 2869, zoning map			Omit
3271	6- 2-2015	Amends Ord. 2869, zoning map			Omit
3272	6-16-2015	Amends Ord. 2869, zoning map			Omit
3273	6-16-2015	Amends Ord. 2869, zoning map			Omit
3274	6-16-2015	Amends Ord. 2869, zoning map			Omit
3275	7- 7-2015	Amends development code			Omit
3276	7-21-2015	Concealed weapons	1	Rpld	8.98.010—8.98.050
3277	7-21-2015	Amends Ord. 2869, zoning map			Omit
3278	7-21-2015	Amends Ord. 2869, zoning map			Omit
3279	8- 4-2015	Fees, rates and charges	1	Added	14.18.075
				Added	14.18.085
3280	8-18-2015	Amends Ord. 2869, zoning map			Omit
3281	8-18-2015	Amends Ord. 2869, zoning map			Omit
3282	9- 1-2015	Extension of redevelopment plan			Omit
3283	9-15-2015	Amends Ord. 2869, zoning map			Omit
3284	9-15-2015	Amends Ord. 2869, zoning map			Omit
3285	9-15-2015	Amends Ord. 2869, zoning map			Omit
3286	9-15-2015	Amends Ord. 2869, zoning map			Omit
3287	9-15-2015	Amends Ord. 2869, zoning map			Omit
3288	9-15-2015	Amends Ord. 2869, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3289	10- 6-2015	Background investigation and fees	1		Ch. 4.03, §§ 4.03.010—4.03.060
3290	10- 6-2015	General business license provisions	1		Ch. 4.04, §§ 4.04.010—4.04.235
3291	10- 6-2015	Business license fee schedules	1		Ch. 4.05, §§ 4.05.010—4.05.420
3292	10- 6-2015	Private ambulance service	1	Rpld	Ch. 4.80, §§ 4.80.010—4.80.120
		Emergency medical services	2	Added	Ch. 4.80, §§ 4.80.010—4.80.500
3293	10-20-2015	Amends development code			Omit
3294	10-20-2015	Annexation			Omit
3295	10-20-2015	Annexation			Omit
3296	10-20-2015	Annexation			Omit
3297	10-20-2015	Annexation			Omit
3298	10-20-2015	Annexation			Omit
3299	10-20-2015	Annexation			Omit
3300	10-20-2015	Amends Ord. 2869, zoning map			Omit
3301	10-20-2015	Massage establishments and independent massage	2	Rpld	Ch. 4.84, §§ 4.84.010—4.84.210
			3	Added	Ch. 4.84, §§ 4.84.010—4.84.200
3302	10-20-2015	Policy procedure and show cause, license suspension, limitation, revocation	1	Rpld	Ch. 4.06, §§ 4.06.010—4.06.300
			2	Added	Ch. 4.06, §§ 4.06.010—4.06.280
3303	10-20-2015	Alternative to criminal prosecution	1	Added	Ch. 4.07, §§ 4.07.010—4.07.080
3304	10-20-2015	Reflexology	2	Rpld	Ch. 4.85, §§ 4.85.010—4.85.200
				Added	Ch. 4.85, §§ 4.85.010—4.85.200
3305	11- 3-2015	Video rental stores	1		4.102.010, 4.102.020
				Added	4.102.030
3306	11- 3-2015	Medical marijuana fees	1	Rpld	Ch. 4.115, §§ 4.115.010—4.115.050
3307	11- 3-2015	Medical marijuana—Regulations and licenses	1		4.116.010—4.116.040
					4.116.060—4.116.100
				Rpld	4.116.110
					4.116.120—4.116.140
					4.116.160
					4.116.180—4.116.200
					4.116.240
					4.116.260
				Rpld	4.116.270

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3308	11-17-2015	Amends Ord. 2869, zoning map			Omit
3309	11-17-2015	Amends Ord. 2869, zoning map			Omit
3310	12- 1-2015	Amends Ord. 2869, zoning map			Omit
3311	12- 1-2015	Amends Ord. 2870, zoning map			Omit
3312	12- 1-2015	Liquor—Regulations and licenses	1		Ch. 4.36, §§ 4.36.010—4.36.460
3313	12- 1-2015	Amends development code			Omit
3314	12-15-2015	Development services schedule of fees			Omit
3315	12-15-2015	Amends Ord. 2870, zoning map			Omit
3316	12-15-2015	Amends Ord. 2870, zoning map			Omit
3317	12-15-2015	Amends Ord. 2870, zoning map			Omit
3318	12-15-2015	Amends Ord. 2870, zoning map			Omit
3319	12-15-2015	Amends Ord. 2870, zoning map			Omit
3320	12-15-2015	Graffiti	1		8.85.010—8.85.030
					8.85.050
					8.85.060—8.85.090
3321	12-15-2015	Safety equipment for motorcyclists	1	Rpld	Ch. 10.54, §§ 10.54.010—10.54.030
3322	12-15-2015	Water commitment allocation regulations	1	Added	14.02.030 P.
3323	12-15-2015	Wastewater—conditions for service	1	Added	14.04.020 O.
3324	12-15-2015	Building fire and safety	1		15.01.040
			2	Added	15.01.275 B.
3325	1- 5-2016	Amends Ord. 2870, zoning map			Omit
3326	1-19-2016	Citations for violations	1		1.04.020, 1.04.030
3327	1-19-2016	Amends Ord. 2870, zoning map			Omit
3328	1-19-2016	Amends Ord. 2870, zoning map			Omit
3329	1-19-2016	Amends Ord. 2870, zoning map			Omit
3330	1-19-2016	Amends Ord. 2870, zoning map			Omit
3331	2- 2-2016	Hotel registers	1		8.28.010
3332	2-16-2016	Amends Ord. 2870, zoning map			Omit
3333	2-16-2016	Amends Ord. 2870, zoning map			Omit
3334	2-16-2016	Amends development code			Omit
3335	3- 1-2016	Amends development code			Omit
3336	4-19-2016	Amends Ord. 2870, zoning map			Omit
3337	4-19-2016	Fees for applications and services	1		18.01.030 B.8.
				Added	18.01.030 B.14.
				Rnbd as	18.01.030 B.14., 15.
					18.01.030 B.15., 16.
3338	5- 3-2016	Amends Ord. 2870, zoning map			Omit
3339	5- 3-2016	Amends development code			Omit
3340	5-17-2016	Amends development code			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3341	6- 7-2016	Animal advisory committee	1	Rpld	2.50.301
		Animals	2	Added	7.01.285
					7.01.455
				Added	7.04.125
					7.04.140
					7.06.040
				Added	7.06.050, 7.05.060
					7.20.020—7.20.040
				Added	7.20.045
					7.20.050, 7.20.060
					Ch. 7.25, §§ 7.25.010—7.25.055
3342	6- 7-2016	Amends development code			Omit
3343	6-21-2016	Amends Ord. 2870, zoning map			Omit
3344	6-21-2016	Amends Ord. 2870, zoning map			Omit
3345	6-21-2016	Amends Ord. 2870, zoning map			Omit
3346	6-21-2016	Amends Ord. 2870, zoning map			Omit
3347	6-21-2016	Amends Ord. 2870, zoning map			Omit
3348	6-21-2016	Amends Ord. 2870, zoning map			Omit
3349	6-21-2016	Amends Ord. 2870, zoning map			Omit
3350	6-21-2016	Amends Ord. 2870, zoning map			Omit
3351	6-21-2016	Modification of LID T-16 project			Omit
3352	7- 5-2016	Business license fee schedules	1	Added	4.05.124
				Rpld	4.05.333
					4.05.420
		Emergency medical services	2		4.80.050, 4.80.060
3353	7-19-2016	Amends Ord. 2870, zoning map			Omit
3354	7-19-2016	Amends Ord. 2870, zoning map			Omit
3355	8- 2-2016	Issuance of medium-term bonds			Omit
3356	8- 2-2016	Issuance of LID T-18 bonds			Omit
3357	8-16-2016	LID T-16 refund procedure			Omit
3358	9- 6-2016	Amends Ord. 2870, zoning map			Omit
3359	9- 6-2016	Amends Ord. 2870, zoning map			Omit
3360	9- 6-2016	Amends Ord. 2870, zoning map			Omit
3361	9-20-2016	Amends Ord. 2870, zoning map			Omit
3362	9-20-2016	Amends Ord. 2870, zoning map			Omit
3363	9-20-2016	Amends Ord. 2870, zoning map			Omit
3364	10- 4-2016	Blue Ribbon Commission on Educational Excellence and Youth Opportunity	1		2.50.315 C.
3365	10-18-2016	Amends Ord. 2870, zoning map			Omit
3366	10-18-2016	Amends Ord. 2870, zoning map			Omit
3367	10-18-2016	Amends Ord. 2870, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3368	11- 1-2016	Council meetings	1		2.04.010
					2.04.030
				Rpld	2.04.040, 2.04.050
					2.04.060—2.04.100
3369	11-14-2016	Conditions applying to specific license classifications	1		4.36.040 J.—L.
				Rpld	4.36.040 Q.
				Rnbd	4.36.040 R.
				as	4.36.040 Q.
					4.36.040 Q.1.f., g.
3370	1- 3-2017	Declares 2017 municipal election			Omit
3371	1- 3-2017	Vote center plan			Omit
3372	1- 3-2017	Amends Ord. 2870, zoning map			Omit
3373	1- 3-2017	Amends Ord. 2870, zoning map			Omit
3374	1- 3-2017	Amends Ord. 2870, zoning map			Omit
3375	1- 3-2017	Amends Ord. 2870, zoning map			Omit
3376	1- 3-2017	Amends Ord. 2870, zoning map			Omit
3377	1- 3-2017	Emergency services providers	1		2.29.010
3378	1- 3-2017	Transient lodging and gaming taxes	1		4.148.010, 4.48.020
				Added	4.48020-01, 4.48.020-02
3379	1- 3-2017	Emergency medical services	1		4.80.040—4.80.060
					4.80.140
					4.80.160—4.80.200
					4.80.230, 4.80.240
					4.80.270
					4.80.350 A.
					4.80.490
					4.80.500
			2	Added	4.80.135
			3	Added	4.80.145
			4	Added	4.80.295
3380	1- 3-2017	Streets and sidewalks	1	Rpld	Tit. 11, Chs. 11.04, 11.08, 11.12, 11.15, 11.20, 11.30
			2	Added	Tit. 11, Chs. 11.01—11.10
3381	1- 3-2017	Cancels development agreement			Omit
3382	1-17-2017	West Henderson public facilities needs assessment			Omit
3383	1-17-2017	West Henderson phase 1 water backbone infrastructure rates	2	Added	14.18.045
3384	2- 7-2017	Amends Ord. 2870, zoning map			Omit
3385	2- 7-2017	LID T-18 reduction of assessments			Omit
3386	2- 7-2017	Recreational marijuana moratorium			Omit
3387	2-21-2017	Amends development code			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3388	2-21-2017	Liquor—Regulations and licenses	1		4.36.010
			2		4.36.270
3389	2-21-2017	Amends Ord. 2870, zoning map			Omit
3390	2-21-2017	Amends Ord. 2870, zoning map			Omit
3391	3- 7-2017	Amends Ord. 2870, zoning map			Omit
3392	3- 7-2017	Amends Ord. 2870, zoning map			Omit
3393	3-21-2017	Amends Ord. 2870, zoning map			Omit
3394	4-11-2017	Community education advisory board	1	Added	2.50.357
3395	4-11-2017	Late-payment penalty—Interest	1		4.48.110 C.
3396	4-11-2017	Parks and recreation	1		2.27.010—2.27.060
3397	5- 2-2017	City boards and commissions	1		Ch. 2.50 (title)
					2.50.010
				Added	2.50.015
					2.50.020—2.50.070
					2.50.090—2.50.110
					2.50.300
					2.50.305—2.50.330
				Rpld	2.50.335
					2.50.340
					2.50.350—2.50.390
3398	5- 2-2017	Amends Ord. 2870, zoning map			Omit
3399	5- 2-2017	Amends Ord. 2870, zoning map			Omit
3400	5- 2-2017	Amends Ord. 2870, zoning map			Omit
3401	5- 2-2017	Amends Ord. 2870, zoning map			Omit
3402	5- 2-2017	Annexation			Omit
3403	5- 2-2017	Emergency management	1		2.24.010—2.24.110
3404	5- 2-2017	Adopts Canyons at MacDonald Ranch Park agreement (Lennar)			Omit
3405	5- 2-2017	Adopts Canyons at MacDonald Ranch Park agreement (Pulte)			Omit
3406	5- 2-2017	Adopts Canyons at MacDonald Ranch Park agreement (Pardee)			Omit
3407	5- 2-2017	Adopts Canyons at MacDonald Ranch Park agreement (AG/RW-Canyons, LLC)			Omit
3408	5-16-2017	Amends Ord. 2870, zoning map			Omit
3409	5-16-2017	Amends Ord. 2870, zoning map			Omit
3410	5-16-2017	Amends Ord. 2870, zoning map			Omit
3411	5-16-2017	Amends Ord. 2870, zoning map			Omit
3412	5-16-2017	Civil service rules	1		6.02.010 B., G.
					6.02.020 A.
					6.02.030 C.
					6.03.030 A.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
					6.04.010—6.04.030
					6.04.050 B., C.
					6.04.070 G.
					6.04.080 A.
					6.05.020 B.
					6.05.030 D.2.
					6.05.040
					6.06.020
					6.07.010 Z.
					6.07.030 A., C.
					6.07.040 B., C.
					6.07.050 A., B., D.
					6.08.010 A.
					6.09.010
3413	6- 6-2017	Conservation	1		14.14.030
			2		14.14.060 A.
			3	Added	14.14.070 B.4.
			4	Added	14.14.090
			5, 6		14.14.100, 14.14.110
3414	6-20-2017	Amends Ord. 2870, zoning map			Omit
3415	6-20-2017	Amends Ord. 2870, zoning map			Omit
3416	6-20-2017	Amends Ord. 2870, zoning map			Omit
3417	7-11-2017	Policy and procedure show cause, license suspension, limitation, revocation	1		4.06.100 C.
					4.06.120 A.—C.
					4.06.130 A.
					4.06.140
3418	7-11-2017	General business license provisions	1		4.04.010
					4.04.210
3419	7-11-2017	Issuance of LID T-17 bonds			Omit
3420	7-11-2017	Issuance of LID T-14 bonds			Omit
3421	8- 1-2017	Amends Ord. 2870, zoning map			Omit
3422	8- 1-2017	Amends Ord. 2870, zoning map			Omit
3423	8- 1-2017	Amends Ord. 2870, zoning map			Omit
3424	8- 1-2017	Amends Ord. 2870, zoning map			Omit
3425	8- 1-2017	Amends Ord. 2870, zoning map			Omit
3426	8- 1-2017	Amends development code			Omit
3427	8-15-2017	Amends development code			Omit
3428	8-15-2017	Baby changing tables in buildings accessible to the public	1	Added	Ch. 15.80, § 15.80.010
3429	8-15-2017	Undergrounding utility facilities	1	Rpld	Ch. 15.18, §§ 15.18.010—15.18.230

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
			2	Added	Ch. 15.18, §§ 15.18.010—15.18.050
3430	8-15-2017	Amends Ord. 2870, zoning map			Omit
3431	9- 5-2017	Annexation			Omit
3432	9- 5-2017	Medical marijuana regulations and licenses	1		Ch. 4.116, §§ 4.116.010—4.116.270
3433	9- 5-2017	Retail marijuana regulations and licenses	1	Added	Ch. 4.118, §§ 4.118.010—4.118.270
3434	9- 5-2017	Business license fee schedules	1		4.05.288
			2—4	Added	4.05.289—4.05.289.02
			5		4.05.420
3435	9- 5-2017	Amends development code			Omit
3436	9- 5-2017	Fees for applications and services	1		18.01.030 B., C.5.
3437	9-19-2017	Annexation			Omit
3438	9-19-2017	Inspirada development agreement			Omit
3439	9-19-2017	Amends Ord. 2870, zoning map			Omit
3440	9-19-2017	Amends Ord. 2870, zoning map			Omit
3441	9-19-2017	Amends Ord. 2870, zoning map			Omit
3442	9-19-2017	Delinquent bills	1		14.17.060 C.
3443	9-19-2017	Social work, behavioral therapy business	1		4.05.365
3444	9-19-2017	General business license provisions	1		4.04.010
3445	10- 3-2017	Annexation			Omit
3446	10-17-2017	Amends Ord. 2870, zoning map			Omit
3447	10-17-2017	Amends Ord. 2870, zoning map			Omit
3448	10-17-2017	Cooling off period	1		2.100.030 A.
				Added	2.100.030 B.
3449	10-17-2017	Ethical standards for public servants	1		2.40.020
				Added	2.40.035
					2.40.040
				Added	2.40.045
					2.40.050, 2.40.060
					2.40.100—2.40.140
3450	10-17-2017	Records management	1		Ch. 2.47, §§ 2.47.010—2.47.085
3451	11- 7-2017	Public peace and safety	1		8.02.020
				Added	8.02.030—8.02.140
			2		8.08.080(d)
			3		8.10.220
				Rpld	8.10.230
			4		8.11.150 C.
					8.11.220
					8.11.250

Ordinance Number	Date	Description	Section		Section this Code
				Rpld	8.11.260
			5	Rpld	8.32.010 5.
			6		8.40.010
			7		8.60.130 B.
				Rpld	8.60.140
			8	Rpld	8.98.060
					8.98.075 A.
3452	11-21-2017	All Storage Inspirada development agreement			Omit
3453	11-21-2017	Amends Ord. 2870, zoning map			Omit
3454	11-21-2017	Amends Ord. 2870, zoning map			Omit
3455	11-21-2017	Public improvement trust private activity bonds			Omit
3456	12- 5-2017	AirParc South development agreement			Omit
3457	12- 5-2017	BLM 30 Volunteer/Gillespie development agreement			Omit
3458	12- 5-2017	City public water system service area			Omit
3459	12-19-2017	Amends Ord. 2870, zoning map			Omit
3460	12-19-2017	Amends Ord. 2870, zoning map			Omit
3461	12-19-2017	Amends Ord. 2870, zoning map			Omit
3462	12-19-2017	Amends Ord. 2870, zoning map			Omit
3463	12-19-2017	Annexation			Omit
3464	1-16-2018	Amends Ord. 2870, zoning map			Omit
3465	1-16-2018	Business license fee schedules	1		4.05.235
			2		4.05.420
3466	2- 6-2018	Amends Ord. 2870, zoning map			Omit
3467	2- 6-2018	2018/2019 ward map			Omit
3468	2-20-2018	Amends Ord. 2870, zoning map			Omit
3469	2-20-2018	Amends development code			Omit
3470	3- 6-2018	Amends Ord. 2870, zoning map			Omit
3471	3- 6-2018	Annexation			Omit
3472	3- 6-2018	Gilespie Multifamily development agreement			Omit
3473	3- 6-2018	Amends Ord. 2870, zoning map			Omit
3474	3-20-2018	Amends and restates Cadence Park agreement			Omit
3475	3-20-2018	Amends Ord. 2870, zoning map			Omit
3476	3-20-2018	Pecos Robindale Neighborhood Improvement District			Omit
3477	4-17-2018	Amends Ord. 2870, zoning map			Omit
3478	4-17-2018	Amends Ord. 2870, zoning map			Omit
3479	4-17-2018	Amends Ord. 2870, zoning map			Omit
3480	4-17-2018	Amends Ord. 2870, zoning map			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3481	5- 1-2018	Amends Ord. 2870, zoning map			Omit
3482	5- 1-2018	City boards and commissions	1		2.50.050 B.
					2.50.070 B.
					2.50.080 B.
					2.50.325, 2.50.330
					2.50.340 B.
					2.50.350
					2.50.357 B.
					2.50.380 C.
3483	5-15-2018	Temporary sales permit	1		4.05.375
3484	5-15-2018	Amends Ord. 2870, zoning map			Omit
3485	5-15-2018	Amends Ord. 2870, zoning map			Omit
3486	5-15-2018	Amends development code			Omit
3487	6- 5-2018	Amends development code			Omit
3488	6-19-2018	Annexation			Omit
3489	6-19-2018	Amends Ord. 2870, zoning map			Omit
3490	6-19-2018	Amends Ord. 2870, zoning map			Omit
3491	6-19-2018	Amends Ord. 2870, zoning map			Omit
3492	6-19-2018	Amends Ord. 2870, zoning map			Omit
3493	6-19-2018	Amends Ord. 2870, zoning map			Omit
3494	7-10-2018	Annexation			Omit
3495	7-10-2018	Shoppes at Dale development agreement			Omit
3496	7-10-2018	Pretreatment regulations	1		Ch. 14.09, §§ 14.09.010—14.09.100
				Added	Ch. 14.09, §§ 14.09.010—14.09.210
3497	7-10-2018	Compliance	1		Ch. 14.21, §§ 14.21.010—14.21.140
3498	7-10-2018	Audit committee	1		2.50.305 B.3., 4.
3499	7-10-2018	City audit function	1		Ch. 2.43, §§ 2.43.010—2.43.030
3500	7-24-2018	Annexation			Omit
3501	7-24-2018	Amends Ord. 2870, zoning map			Omit
3502	7-24-2018	Amends Ord. 2870, zoning map			Omit
3503	8- 7-2018	Building and fire safety administrative code	1		15.01.010
					15.01.035 A.
3504	8- 7-2018	International Building Code	1		15.08.010, 15.08.020
					15.08.050
3505	8- 7-2018	International Residential Code	1		15.09.010—15.09.030
					15.09.050
3506	8- 7-2018	Existing Building Code	1	Added	Ch. 15.11, §§ 15.11.010—15.11.060
3507	8- 7-2018	Electrical Code	1		15.16.010, 15.16.020

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
					15.16.060
3508	8- 7-2018	Uniform Plumbing Code	1		15.20.010, 15.20.020
					15.20.040
					15.20.060
3509	8- 7-2018	Uniform Mechanical Code	1		15.24.010, 15.24.020
					15.24.040
					15.24.060
3510	8- 7-2018	International Fire Code	1	Rpld	Ch. 15.32, §§ 15.32.010—15.32.120
			2	Added	Ch. 15.32, §§ 15.32.010—15.32.120
3511	8- 7-2018	Swimming Pool Code	1		15.44.010—15.44.030
					15.44.050
3512	8- 7-2018	International Energy Conservation Code	1		15.45.010—15.45.030
					15.45.050
3513	8-21-2018	Amends Ord. 2870, zoning map			Omit
3514	8-21-2018	Amends Ord. 2870, zoning map			Omit
3515	8-21-2018	Amends Ord. 2870, zoning map			Omit
3516	8-21-2018	Amends Ord. 2870, zoning map			Omit
3517	8-21-2018	Amends Ord. 2870, zoning map			Omit
3518	8-21-2018	Amends Ord. 2870, zoning map			Omit
3519	8-21-2018	Amends development code			Omit
3520	9- 4-2018	Terrible Herbst development agreement			Omit
3521	9-18-2018	Apartment house	1		4.05.130
3522	9-18-2018	Amends Ord. 2870, zoning map			Omit
3523	9-18-2018	Amends Ord. 2870, zoning map			Omit
3524	9-18-2018	Amends Ord. 2870, zoning map			Omit
3525	9-18-2018	Amends Ord. 2870, zoning map			Omit
3526	9-18-2018	Amends Ord. 2870, zoning map			Omit
3527	9-18-2018	Amends Ord. 2870, zoning map			Omit
3528	10- 2-2018	Amends Ord. 2870, zoning map			Omit
3529	10- 2-2018	Amends development code			Omit
3530	10-16-2018	Amends development code			Omit
3531	10-16-2018	Union Village development agreement			Omit
3532	10-16-2018	Inspirada park agreement			Omit
3533	10-16-2018	Amends Ord. 2870, zoning map			Omit
3534	10-16-2018	Amends Ord. 2870, zoning map			Omit
3535	10-16-2018	Pecos Robindale Neighborhood Improvement District			Omit
3536	11- 6-2018	Amends development code			Omit
3537	11- 6-2018	Cactus-Maryland C-Store development agreement			Omit

Ordinance Number	*Date*	*Description*	*Section*	*Section this Code*
3538	11- 6-2018	West Henderson Charter School development agreement		Omit
3539	12- 4-2018	Starr (Warm Fort) Multifamily development agreement		Omit
3540	12- 4-2018	Amends Ord. 2870, zoning map		Omit
3541	12- 4-2018	Amends Ord. 2870, zoning map		Omit
3542	12- 4-2018	Amends Ord. 2870, zoning map		Omit
3543	12- 4-2018	Declares 2019 municipal election		Omit
3544	12- 4-2018	Vote center plan		Omit
3545	12- 4-2018	LID T-20 creation		Omit
3546	12- 4-2018	LID T-20 cost assessment		Omit
3547	12- 4-2018	Issuance of LID T-20 bonds		Omit
3548	12-18-2018	Cactus Retail Center development agreement		Omit
3549	12-18-2018	Failure to appear	1	1.04.040
3550	12-18-2018	Development services center advisory committee	1	2.50.360
3551	12-18-2018	Omnibus amendment to Inspirada park agreement		Omit
3552	12-18-2018	Raiders Headquarters and Practice Facility development agreement		Omit
3553	12-18-2018	Amends Ord. 2870, zoning map		Omit
3554	12-18-2018	Amends Ord. 2870, zoning map		Omit
3555	12-18-2018	Amends Ord. 2870, zoning map		Omit
3556	12-18-2018	Amends Ord. 2870, zoning map		Omit
3557	1- 8-2019	Amends development code		Omit
3558	2- 5-2019	Amends Ord. 2870, zoning map		Omit
3559	2- 5-2019	Amends Ord. 2870, zoning map		Omit
3560	2- 5-2019	Amends Ord. 2870, zoning map		Omit
3561	2- 5-2019	Amends Ord. 2870, zoning map		Omit
3562	2- 5-2019	Medical marijuana regulations and licenses	1	4.116.010
				4.116.030 B.—E.
				4.116.035, 4.116.040
				4.116.070 A.3., 7., 12., F.1.
				4.116.080 C., D.
				4.116.090 C.—E.
				4.116.120
				4.116.150
				4.116.180 E.
				4.116.240 A., C., D., G.
3563	2- 5-2019	Retail marijuana regulations and licenses	1	4.118.010
				4.118.020 B.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
					4.118.030 B.—E.
					4.118.035
					4.118.070 A.7., 9., 10., 12., B.1., 10., C.1., D.1., E., F.1.a.
					4.118.080 C., D.
					4.118.090 A., C.—E.
					4.118.120
					4.118.150
					4.118.180 E.
					4.118.240 A., C., D., G.
					4.118.270
3564	2- 5-2019	Solar reflectance standards	1		15.12.040 C.7.
			2	Added	15.12.050 B.8.
3565	2-19-2019	Distill at Inspirada development agreement			Omit
3566	2-19-2019	Amends Ord. 2870, zoning map			Omit
3567	2-19-2019	Amends Ord. 2870, zoning map			Omit
3568	3- 5-2019	Amendment to Union Village Phase II park agreement			Omit
3569	5- 7-2019	Amends Ord. 2870, zoning map			Omit
3570	5- 7-2019	Amends development code			Omit
3571	5- 7-2019	Design and construction standards for wastewater collection systems	1		15.75.010
3572	5- 7-2019	BLM 30 Volunteer/Gillespie development agreement			Omit
3573	5- 7-2019	Amends Ord. 2870, zoning map			Omit
3574	5- 7-2019	Amends Ord. 2870, zoning map			Omit
3575	5- 7-2019	Matter Park @ West Henderson development agreement			Omit
3576	5- 7-2019	Amends Ord. 2870, zoning map			Omit
3577	5-21-2019	Amends Ord. 2870, zoning map			Omit
3578	5-21-2019	Bruner Commerce Park development agreement			Omit
3579	5-21-2019	Amends Ord. 2870, zoning map			Omit
3580	5-21-2019	Emergency management	1		2.24.040
			2		2.24.110 B.
3581	; 6- 4-2019	Right of way management—Telecommunications facilities	1	Added	Tit. 17, Chs. 17.01—17.03
3582	6- 4-2019	Liquor—Regulations and licenses	1		4.36.010
					4.36.020 C.10., D.5.
					4.36.030—4.36.045
					4.36.055 A.
					4.36.060
				Added	4.36.130 B.
				Rnbd	4.36.130 B.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
				as	4.36.130 C.
					4.36.215
				Added	4.36.240
					4.36.270
					4.36.305 C., D.
					4.36.315 A.2.
				Added	4.36.340 D.
					4.36.360
					4.36.400
					4.36.430
3583	6- 4-2019	Business license fee schedules	1		4.05.175
			2		4.05.278
			3, 4		4.05.288, 4.05.289
			5		4.05.300
			6		4.05.345
			7		4.05.420
3584	6-18-2019	Amends Ord. 2870, zoning map			Omit
3585	6-18-2019	Amends Ord. 2870, zoning map			Omit
3586	6-18-2019	Amends Ord. 2870, zoning map			Omit
3587	6-18-2019	Shoppes at Las Vegas Boulevard and Dale development agreement			Omit
3588	7-16-2019	Amends Ord. 2870, zoning map			Omit
3589	7-16-2019	Amends Ord. 2870, zoning map			Omit
3590	7-16-2019	Fees for applications and services	1	Added	18.01.030 C.14.
3591	7-16-2019	Amends development code			Omit
3592	8- 6-2019	Annexation			Omit
3593	8- 6-2019	Annexation			Omit
3594	8- 6-2019	Annexation			Omit
3595	8-20-2019	Annexation			Omit
3596	8-20-2019	Annexation			Omit
3597	8-20-2019	Annexation			Omit
3598	8-20-2019	Annexation			Omit
3599	8-20-2019	Annexation			Omit
3600	8-20-2019	Annexation			Omit
3601	8-20-2019	Annexation			Omit
3602	8-20-2019	Annexation			Omit
3603	8-20-2019	Annexation			Omit
3604	8-20-2019	Annexation			Omit
3605	8-20-2019	Annexation			Omit
3606	8-20-2019	Annexation			Omit
3607	8-20-2019	Annexation			Omit
3608	8-20-2019	Green Sense Farms development agreement			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3609	8-20-2019	Amends Ord. 2870, zoning map			Omit
3610	8-20-2019	Amends Ord. 2870, zoning map			Omit
3611	8-20-2019	Amends Ord. 2870, zoning map			Omit
3612	8-20-2019	Amends Ord. 2870, zoning map			Omit
3613	8-20-2019	Amends Ord. 2870, zoning map			Omit
3614	8-20-2019	Amends Ord. 2870, zoning map			Omit
3615	8-20-2019	Amends Ord. 2870, zoning map			Omit
3616	8-20-2019	Pecos Robindale Neighborhood Improvement District			Omit
3617	9- 3-2019	Amends Ord. 2870, zoning map			Omit
3618	9-18-2019	Amends Ord. 2870, zoning map			Omit
3619	9-18-2019	Amends Ord. 2870, zoning map			Omit
3620	9-18-2019	Amends Ord. 2870, zoning map			Omit
3621	9-18-2019	Amends Ord. 2870, zoning map			Omit
3622	9-18-2019	License issuance	1		4.84.120 A.
3623	9-18-2019	License issuance	1		4.85.050
3624	9-18-2019	PEGH Nevada, LLC development agreement			Omit
3625	9-18-2019	West Henderson standard agreement			Omit
3626	10- 1-2019	Amends Ord. 2870, zoning map			Omit
3627	10-15-2019	Amends Ord. 2870, zoning map			Omit
3628	10-15-2019	Amends Ord. 2870, zoning map			Omit
3629	10-15-2019	Amends Ord. 2870, zoning map			Omit
3630	10-15-2019	Amends Ord. 2870, zoning map			Omit
3631	10-15-2019	Amends Ord. 2870, zoning map			Omit
3632	10-15-2019	Crimes against public peace	1		Ch. 8.02 (title)
			2	Added	8.02.055
3633	11- 5-2019	Amends Ord. 2870, zoning map			Omit
3634	11- 5-2019	Starr/Bermuda development agreement			Omit
3635	11- 5-2019	Inspirada Town Center development agreement			Omit
3636	11- 5-2019	Annexation			Omit
3637	11-19-2019	Records management	1		2.47.040 B.4., C.4.
					2.47.085
3638	11-19-2019	West Henderson-Bermuda wastewater backbone infrastructure rates	2	Added	14.18.047
3639	11-19-2019	Amends Ord. 2870, zoning map			Omit
3640	11-19-2019	Amends Ord. 2870, zoning map			Omit
3641	11-19-2019	Amends Ord. 2870, zoning map			Omit
3642	11-19-2019	Amends Ord. 2870, zoning map			Omit
3643	12- 3-2019	Amends Ord. 2870, zoning map			Omit
3644	12- 3-2019	Union Village development agreement			Omit

Ordinance Number	*Date*	*Description*	*Section*	*Section this Code*
3645	12- 3-2019	Amends Ord. 2870, zoning map		Omit
3646	12- 3-2019	South Airport 15 Building C development agreement		Omit
3647	12- 3-2019	South Airport 15 Building D development agreement		Omit
3648	12-17-2019	Amends Ord. 2870, zoning map		Omit
3649	12-17-2019	Amends Ord. 2870, zoning map		Omit
3650	12-17-2019	Amends Ord. 2870, zoning map		Omit
3651	12-17-2019	Amends Ord. 2870, zoning map		Omit
3652	12-17-2019	Amends Ord. 2870, zoning map		Omit
3653	12-17-2019	Amends Ord. 2870, zoning map		Omit
3654	12-17-2019	Amends Ord. 2870, zoning map		Omit
3655	12-17-2019	Amends Ord. 2870, zoning map		Omit
3656	1- 7-2020	Union Village Phase II park agreement		Omit
3657	1-21-2020	Amends Ord. 2870, zoning map		Omit
3658	1-21-2020	Amends Ord. 2870, zoning map		Omit
3659	1-21-2020	Amends Ord. 2870, zoning map		Omit
3660	2- 4-2020	Annexation		Omit
3661	2- 4-2020	Annexation		Omit
3662	2- 4-2020	Annexation		Omit
3663	2-18-2020	Annexation		Omit
3664	2-18-2020	Amends Ord. 2870, zoning map		Omit
3665	2-18-2020	Cadence development agreement		Omit
3666	2-18-2020	Canyons at MacDonald Ranch Park agreement		Omit
3667	2-18-2020	Amends Ord. 2870, zoning map		Omit
3668	3- 3-2020	Amends Ord. 2870, zoning map		Omit
3669	3- 3-2020	International Building Code	2	15.08.020
3670	3- 3-2020	International Fire Code	2	15.32.040
			3	15.32.060
				15.32.080, 15.32.090
3671	3- 3-2020	Uniform Plumbing Code	2	15.20.020
3672	3- 3-2020	Amends development code		Omit
3673	4- 7-2020	Annexation		Omit
3674	4- 7-2020	Annexation		Omit
3675	4- 7-2020	Annexation		Omit
3676	4- 7-2020	Amends Ord. 2870, zoning map		Omit
3677	4- 7-2020	Amends Ord. 2870, zoning map		Omit
3678	4- 7-2020	Amends Ord. 2870, zoning map		Omit
3679	4- 7-2020	Amends Ord. 2870, zoning map		Omit
3680	4-21-2020	Amends Ord. 2870, zoning map		Omit
3681	4-21-2020	General obligation taxable various purposes and refunding bonds		Omit

Ordinance Number	*Date*	*Description*	*Section*	*Section this Code*
3682	4-21-2020	General obligation tax-exempt utility system bonds		Omit
3683	5- 5-2020	Amends development code		Omit
3684	5- 5-2020	Amends Ord. 2870, zoning map		Omit
3685	5-19-2020	Matter Park at West Henderson Phase II development agreement		Omit
3686	5-19-2020	Inspirada park agreement		Omit
3687	5-19-2020	Amends Ord. 2870, zoning map		Omit
3688	6- 2-2020	Amends Ord. 2870, zoning map		Omit
3689	6- 2-2020	Amends Ord. 2870, zoning map		Omit
3690	6- 2-2020	Amends Ord. 2870, zoning map		Omit
3691	6- 2-2020	Via Inspirada Marketplace development agreement		Omit
3692	6- 2-2020	Bicentennial Marketplace development agreement		Omit
3693	6- 2-2020	Liquor violations	1 Added	8.40.010 A.4. 8.40.010 B.
3694	6-16-2020	West Henderson Global Business District Design Guidelines		Omit
3695	6-16-2020	Annexation		Omit
3696	6-16-2020	Amends Ord. 2870, zoning map		Omit
3697	6-16-2020	Black Mountain Golf and Country Club development agreement		Omit
3698	6-16-2020	Amends Ord. 2870, zoning map		Omit
3699	6-16-2020	Amends Ord. 2870, zoning map		Omit
3700	6-16-2020	Amends Ord. 2870, zoning map		Omit
3701	6-16-2020	Amends Ord. 2870, zoning map		Omit
3702	6-16-2020	Amends Ord. 2870, zoning map		Omit
3703	6-16-2020	Amends Ord. 2870, zoning map		Omit
3704	6-16-2020	Medium-term bond		Omit
3705	6-16-2020	Pecos Robindale Neighborhood Improvement District		Omit
3706	7- 7-2020	Annexation		Omit
3707	7- 7-2020	Volunteer Plaza development agreement		Omit
3708	7- 7-2020	Bruner Marketplace development agreement		Omit
3709	7- 7-2020	Council meetings	1	2.04.010
3710	7-21-2020	LogistiCenter @ Volunteer development agreement		Omit
3711	7-21-2020	Amends Ord. 2870, zoning map		Omit
3712	7-21-2020	PEGH Nevada LLC development agreement		Omit
3713	8-18-2020	Project Berry development agreement		Omit
3714	8-18-2020	Amends Ord. 2870, zoning map		Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3715	8-18-2020	Amends Ord. 2870, zoning map			Omit
3716	8-18-2020	Amends Ord. 2870, zoning map			Omit
3717	9- 1-2020	Short-term vacation rental moratorium			Omit
3718	9-15-2020	Amends Ord. 2870, zoning map			Omit
3719	9-15-2020	Amends Ord. 2870, zoning map			Omit
3720	9-15-2020	Amends Ord. 2870, zoning map			Omit
3721	9-15-2020	Amends Ord. 2870, zoning map			Omit
3722	9-15-2020	Commission on tourism	2	Rpld	2.50.355
3723	10- 6-2020	West Henderson 10 development agreement			Omit
3724	10-20-2020	Annexation			Omit
3725	10-20-2020	Eastside redevelopment plan			Omit
3726	10-20-2020	Amends Ord. 2870, zoning map			Omit
3727	10-20-2020	Amends Ord. 2870, zoning map			Omit
3728	10-20-2020	Amends Ord. 2870, zoning map			Omit
3729	10-20-2020	Henderson West development agreement			Omit
3730	10-20-2020	Henderson West park agreement			Omit
3731	10-20-2020	Business license fee schedules	1	Added	4.05.197
					4.05.278
			2		4.05.420
3732	10-20-2020	Liquor—Regulations and licenses	1		4.36.010
					4.36.020 A., B.7.
					4.36.040
					4.36.210
					4.36.230 A.
				Added	4.36.260
					4.36.270 C.
					4.36.310 C.
					4.36.315 A.2.
					4.36.340 B., C.
3733	10-20-2020	Property maintenance code	1		15.12.010—15.12.060
					15.12.090
3734	11-17-2020	Airparc Heights development agreement			Omit
3735	11-17-2020	Amends Ord. 2870, zoning map			Omit
3736	11-17-2020	Amends development code			Omit
3737	12-15-2020	Cross-connection control regulations	1	Rpld	Ch. 14.08, §§ 14.08.010—14.08.090
				Added	Ch. 14.08, §§ 14.08.010—14.08.090
3738	12-15-2020	Annexation			Omit
3739	12-15-2020	Annexation			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3740	12-15-2020	Annexation			Omit
3741	12-15-2020	LV Amigo, LLC Apartments development agreement			Omit
3742	12-15-2020	Amends Ord. 2870, zoning map			Omit
3743	12-15-2020	Amends Ord. 2870, zoning map			Omit
3744	1- 5-2021	Amends Ord. 2870, zoning map			Omit
3745	1-19-2021	Annexation			Omit
3746	1-19-2021	West Henderson Hospital development agreement			Omit
3747	1-19-2021	Amends Ord. 2870, zoning map			Omit
3748	1-19-2021	Amends Ord. 2870, zoning map			Omit
3749	1-19-2021	Amends Ord. 2870, zoning map			Omit
3750	1-19-2021	Amends Ord. 2870, zoning map			Omit
3751	1-19-2021	Amends Ord. 2870, zoning map			Omit
3752	1-19-2021	Amends Ord. 2870, zoning map			Omit
3753	1-19-2021	Parks and recreation	1		2.27.020, 2.27.020
			2		2.27.030 A., B., O., Q., V.1., Z.1.
			3	Added	2.27.035
3754	2- 2-2021	Amends Ord. 2870, zoning map			Omit
3755	2- 2-2021	Alper Drive Apartments development agreement			Omit
3756	2- 2-2021	Diamond Bermuda development agreement			Omit
3757	2-16-2021	Amends Ord. 2870, zoning map			Omit
3758	2-16-2021	LogistiCenter @ Volunteer development agreement			Omit
3759	2-16-2021	South 15 Airport Park development agreement			Omit
3760	2-16-2021	Amends Ord. 2870, zoning map			Omit
3761	2-16-2021	Amends Ord. 2870, zoning map			Omit
3762	2-16-2021	Amends Ord. 2870, zoning map			Omit
3763	3- 2-2021	Animals	1		7.01.120
					7.01.455
					7.01.485
			2		7.04.020
					7.04.080, 7.04.090
			3		7.04.120
					7.04.125 C., D.
			4		7.10.010
					7.10.020 A.—D.
					7.10.050
				Added	7.10.060, 7.10.070
			5		7.20.020 A.2.e.
			6	Added	7.25.020 B.4.

Ordinance Number	*Date*	*Description*	*Section*	*Section this Code*
			Rnbd	7.25.020 B.4., 5.
			as	7.25.020 B.5., 6.
3764	3-16-2021	Inspirada park agreement		Omit
3765	3-16-2021	Mera Inspirada development agreement		Omit
3766	3-16-2021	Amends Ord. 2870, zoning map		Omit
3767	3-16-2021	Amends Ord. 2870, zoning map		Omit
3768	4- 6-2021	Amends Ord. 2870, zoning map		Omit
3769	4- 6-2021	Annexation		Omit
3770	4- 6-2021	Inspirada Town Center development agreement		Omit
3771	4-20-2021	Amends Ord. 2870, zoning map		Omit
3772	4-20-2021	Amends Ord. 2870, zoning map		Omit
3773	5- 4-2021	Modification of LID T-16 project		Omit
3774	5- 4-2021	Annexation		Omit
3775	5- 4-2021	Union Village Phase II park agreement		Omit
3776	5-18-2021	Alper Airport Center development agreement		Omit
3777	5-18-2021	AirParc South development agreement		Omit
3778	5-18-2021	Amends Ord. 2870, zoning map		Omit
3779	5-18-2021	Amends Ord. 2870, zoning map		Omit
3780	5-18-2021	Amends Ord. 2870, zoning map		Omit
3781	5-18-2021	Amends Ord. 2870, zoning map		Omit
3782	5-18-2021	Amends Ord. 2870, zoning map		Omit
3783	5-18-2021	Amends Ord. 2870, zoning map		Omit
3784	5-18-2021	Amends Ord. 2870, zoning map		Omit
3785	6- 1-2021	Inspirada Town Center—The Vera development agreement		Omit
3786	6- 1-2021	Inspirada Executive Commercial Center development agreement		Omit
3787	6-15-2021	Silver & Black Industrial Center development agreement		Omit
3788	6-15-2021	Starr Multi-Family development agreement		Omit
3789	7- 6-2021	Pecos Robindale Neighborhood Improvement District		Omit
3790	7-20-2021	Village at St Rose development agreement		Omit
3791	7-20-2021	Amends Ord. 2870, zoning map		Omit
3792	7-20-2021	Amends Ord. 2870, zoning map		Omit
3793	8- 3-2021	Henderson Executive Industrial Park development agreement		Omit
3794	8-17-2021	Amends Ord. 2870, zoning map		Omit

Ordinance Number	*Date*	*Description*	*Section*	*Section this Code*
3795	8-17-2021	Inspirada Town Center—Tri Pointe Homes Nevada development agreement		Omit
3796	8-17-2021	Amends Ord. 2870, zoning map		Omit
3797	8-17-2021	Amends Ord. 2870, zoning map		Omit
3798	8-17-2021	Odyssey Tier Industrial Center development agreement		Omit
3799	9- 7-2021	Annexation		Omit
3800	9- 7-2021	Amends Ord. 2870, zoning map		Omit
3801	9- 7-2021	Amends Ord. 2870, zoning map		Omit
3802	9- 7-2021	Amends Ord. 2870, zoning map		Omit
3803	9- 7-2021	Amends Ord. 2870, zoning map		Omit
3804	9- 7-2021	General obligation various purpose bonds		Omit
3805	9- 7-2021	Amends Ord. 2870, zoning map		Omit
3806	9-21-2021	Amends Ord. 2870, zoning map		Omit
3807	9-21-2021	Amends Black Mountain development agreement		Omit
3808	9-21-2021	Speedee Mart @ Volunteer Via Inspirada development agreement		Omit
3809	10- 5-2021	St. Rose & Bruner Multi-Family development agreement		Omit
3810	10-19-2021	2021 ward map		Omit
3811	10-19-2021	Amends Ord. 2870, zoning map		Omit
3812	10-19-2021	Amends Ord. 2870, zoning map		Omit
3813	10-19-2021	Amends Ord. 2870, zoning map		Omit
3814	11- 2-2021	Wastewater discharge prohibitions and limitations	1	14.09.030 C.1.
3815	11- 2-2021	Annexation		Omit
3816	11-16-2021	Annexation		Omit
3817	11-16-2021	LID T-21 creation		Omit
3818	11-16-2021	LID T-21 cost assessment		Omit
3819	11-16-2021	LID T-21 bonds		Omit
3820	11-16-2021	Inspirada Town Center—Parcel 1 development agreement		Omit
3821	11-16-2021	Inspirada Town Center—Parcel 19 development agreement		Omit
3822	11-16-2021	Amends Ord. 2870, zoning map		Omit
3823	11-16-2021	Amends Ord. 2870, zoning map		Omit
3824	12- 7-2021	International Building Code	2	15.08.020
3825	12-21-2021	Annexation		Omit
3826	12-21-2021	Annexation		Omit
3827	12-21-2021	Annexation		Omit
3828	12-21-2021	Amends Ord. 2870, zoning map		Omit
3829	12-21-2021	Amends Ord. 2870, zoning map		Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3830	1- 4-2022	Annexation			Omit
3831	1- 4-2022	Fees, rates and charges	1		14.18.020 F.5.
		Main frontage fees	2		14.18.090
3832	1-25-2022	Annexation			Omit
3833	1-25-2022	Amends Ord. 2870, zoning map			Omit
3834	1-25-2022	Amends Ord. 2870, zoning map			Omit
3835	1-25-2022	Amends Ord. 2870, zoning map			Omit
3836	1-25-2022	Amends Ord. 2870, zoning map			Omit
3837	1-25-2022	Amends Ord. 2870, zoning map			Omit
3838	1-25-2022	Amends Ord. 2870, zoning map			Omit
3839	2-15-2022	Amends Ord. 2870, zoning map			Omit
3840	2-15-2022	Amends development code			Omit
3841	2-15-2022	Wat Nevada Dhammaram Monastery development agreement			Omit
3842	2-15-2022	Rocky Mountain Aviation Hangar development agreement			Omit
3843	2-15-2022	Amigo & Larson development agreement			Omit
3844	2-15-2022	Annexation			Omit
3845	2-15-2022	Amendment to Pacific Pines 4 development agreement			Omit
3846	2-15-2022	Amends Ord. 2870, zoning map			Omit
3847	2-15-2022	Amends Ord. 2870, zoning map			Omit
3848	2-15-2022	Amends Ord. 2870, zoning map			Omit
3849	2-15-2022	Amends Ord. 2870, zoning map			Omit
3850	2-15-2022	Amends Ord. 2870, zoning map			Omit
3851	2-15-2022	Amends Ord. 2870, zoning map			Omit
3852	2-15-2022	Amends Ord. 2870, zoning map			Omit
3853	2-15-2022	Amends Ord. 2870, zoning map			Omit
3854	2-15-2022	Amends Ord. 2870, zoning map			Omit
3855	3- 1-2022	Business license fee schedules	1	Rpld	4.05.117
			2	Rpld	4.05.313
			3		4.05.420
3856	3- 1-2022	Emergency medical services	1		4.80.020
			2		4.80.040
			3		4.80.135
			4	Added	4.80.137
			5		4.80.140
			6	Added	4.80.297
			7		4.80.300 B.
			8		4.80.320
			9		4.80.340
			10		4.80.355
			11	Added	4.80.355

Ordinance Number	*Date*	*Description*	*Section*	*Section this Code*
			12—21 Rpld	4.80.390—4.80.480
			22, 23 Rnbd as	4.80.490, 4.80.500 4.80.390, 4.80.400
3857	3-15-2022	Annexation		Omit
3858	3-15-2022	Amends Ord. 2870, zoning map		Omit
3859	3-15-2022	Amends Ord. 2870, zoning map		Omit
3860	3-15-2022	Amends Ord. 2870, zoning map		Omit
3861	3-15-2022	Amends Ord. 2870, zoning map		Omit
3862	4- 5-2022	Emergency management	1	2.24.010
			2	2.24.030 A., C.—E.
			3—9	2.24.040—2.24.100
			10	2.24.110 B.2., 3., 7., 8., 11.—13., 15.—17.
3863	4- 5-2022	Annexation		Omit
3864	4-19-2022	Amendment to Cadence development agreement		Omit
3865	4-19-2022	Amends Ord. 2870, zoning map		Omit
3866	4-19-2022	Amends development code		Omit
3867	5- 3-2022	Inspirada Town Center Parcel 2A development agreement		Omit
3868	5-24-2022	Amends Ord. 2870, zoning map		Omit
3869	5-24-2022	Annexation		Omit
3870	5-24-2022	Foothills at MacDonald Highlands development agreement		Omit
3871	5-24-2022	Amends Ord. 2870, zoning map		Omit
3872	5-24-2022	Amends Ord. 2870, zoning map		Omit
3873	5-24-2022	Amends Ord. 2870, zoning map		Omit
3874	5-24-2022	City public water system service area		Omit
3875	6- 7-2022	Annexation		Omit
3876	6- 7-2022	Annexation		Omit
3877	6- 7-2022	Amends Ord. 2870, zoning map		Omit
3878	6- 7-2022	Amends Ord. 2870, zoning map		Omit
3879	6-24-2022	Amends Ord. 2870, zoning map		Omit
3880	6-24-2022	Amends Ord. 2870, zoning map		Omit
3881	6-24-2022	Amends Ord. 2870, zoning map		Omit
3882	6-24-2022	Amends Ord. 2870, zoning map		Omit
3883	6-24-2022	Amends Ord. 2870, zoning map		Omit
3884	6-24-2022	West Henderson Global Business District Design Guidelines		Omit
3885	7-12-2022	Annexation		Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3886	7-12-2022	Las Vegas Fire Station Equipment Rainbow Canyon development agreement			Omit
3887	7-12-2022	Annexation			Omit
3888	8- 2-2022	Pecos Robindale Neighborhood Improvement District			Omit
3889	8- 2-2022	Amends Ord. 2870, zoning map			Omit
3890	8- 2-2022	Amends Ord. 2870, zoning map			Omit
3891	8- 2-2022	Amends Ord. 2870, zoning map			Omit
3892	8- 2-2022	Amends Ord. 2870, zoning map			Omit
3893	8- 2-2022	Annexation			Omit
3894	8- 2-2022	Annexation			Omit
3895	8- 2-2022	Annexation			Omit
3896	8- 2-2022	Annexation			Omit
3897	8- 2-2022	Wildland-Urban Interface Code	1	Added	Ch. 15.30, §§ 15.30.010—15.30.060
3898	8- 2-2022	National Electrical Code	2, 3		15.16.010, 15.16.020
3899	8-23-2022	Amendment to Cadence development agreement			Omit
3900	8-23-2022	Special events	1		8.10.010 B.
			2		8.10.020
			3	Added	8.10.030 C.
				Rnbd	8.10.030 C.
				as	8.10.030 D.
			4		8.10.065 B.
				Added	8.10.065 B.8.
			5	Rpld	8.10.070 A.
			6	Added	8.10.075
			7		8.10.080 B.
				Added	8.10.080 C.
				Added	8.10.080 C.
			8		8.10.090
			9		8.10.140 A.
			10		8.10.220 A.
3901	8-23-2022	Amends Ord. 2870, zoning map			Omit
3902	8-23-2022	Amends Ord. 2870, zoning map			Omit
3903	8-23-2022	Amends Ord. 2870, zoning map			Omit
3904	9-13-2022	Parks and recreation	1		2.27.030 A., B., D., G., J., L., Q., R.
				Added	2.27.030 AA.—FF.
					2.27.040 1., 2.
3905	9-13-2022	Utility services	1		14.01.010
			2		14.02.030 D., O., P.1.a.
				Added	14.02.030 Q., R.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
			3		14.03.020 A.
				Added	14.03.020
			4		14.03.030 A.2., C.
			5		14.03.040 B., D.—F.
			6		14.03.060
			7	Added	14.04.020 P.
			8		14.04.040 B., D., F.
			9		14.14.010
			10	Added	14.14.015
			11		14.14.020
			12	Added	14.14.025
			13—21		14.14.030—14.14.110
			22—24	Added	14.14.120—14.14.140
			25		14.18.010 B., C.
			26		14.18.100
			27	Added	14.18.110
			28		14.21.010 B., C.
			29, 30		14.21.040, 14.21.050
			31		14.21.110 B., G., L.—Q.
			32		14.21.120
3906	9-13-2022	Building & fire safety administrative code	1		15.01.010
			2		15.01.120 C., M.
			3		15.01.205 F.
			4		15.01.285
				Added	15.01.286
					15.01.290
3907	9-13-2022	Building code	1, 2		15.08.010, 15.08.020
			3		15.08.050
3908	9-13-2022	International Residential Code	1	Added	15.09.025
3909	9-13-2022	Fire code	3—5		15.32.010—15.32.030
			6		15.32.050
			7		15.32.120
3910	10- 4-2022	Property maintenance code	1		15.12.010 A.
			2		15.12.020
			3	Added	15.12.040 H.
			4		15.12.050 E.1.
				Added	15.12.050 E.6.
			5	Added	15.12.050 I.3.
			6		15.12.050 M.
			7		15.12.060 B.5.f.
			8	Added	15.12.060 E.4.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3911	10- 4-2022	Amends Ord. 2870, zoning map			Omit
3912	10-18-2022	West Henderson 2630/2760 PZ water backbone infrastructure rates	3		14.18.045
3913	10-18-2022	Amends Ord. 2870, zoning map			Omit
3914	10-18-2022	Amends Ord. 2870, zoning map			Omit
3915	10-18-2022	Amends Ord. 2870, zoning map			Omit
3916	11-15-2022	Annexation			Omit
3917	11-15-2022	Amends Ord. 2870, zoning map			Omit
3918	11-15-2022	Amends Ord. 2870, zoning map			Omit
3919	11-15-2022	Amends Ord. 2870, zoning map			Omit
3920	11-15-2022	Amends Ord. 2870, zoning map			Omit
3921	11-15-2022	Amends Ord. 2870, zoning map			Omit
3922	11-15-2022	Amends Ord. 2870, zoning map			Omit
3923	11-15-2022	Amends Ord. 2870, zoning map			Omit
3924	11-15-2022	Medium-term bond			Omit
3925	12- 6-2022	Annexation			Omit
3926	12- 6-2022	Business license fee schedules	1		4.05.020 A.
			2		4.05.025
3927	12- 6-2022	Uniform regulations	1		15.50.010
3928	12- 6-2022	Right-of-way management—Communications facilities	1		Tit. 17 (title)
			2		17.01.010
			3		17.02.040
			4		17.02.060 C.7.
			5		17.03.010 C.
3929	1- 3-2023	Airport Five Mini Storage development agreement			Omit
3930	1- 3-2023	Gilespie & Bruner development agreement			Omit
3931	1- 3-2023	Gilespie & Welpman development agreement			Omit
3932	1- 3-2023	Annexation			Omit
3933	1- 3-2023	Amends Ord. 2870, zoning map			Omit
3934	1- 3-2023	Amends Ord. 2870, zoning map			Omit
3935	1- 3-2023	Amends Ord. 2870, zoning map			Omit
3936	1- 3-2023	Notice of violation—Response—Hearings	1		4.07.050
3937	1-17-2023	Amends Ord. 2870, zoning map			Omit
3938	1-17-2023	Amends Ord. 2870, zoning map			Omit
3939	2- 7-2023	Mechanical code	1		Ch. 15.24 (title)
		Evaporative cooling	2	Added	15.24.015
3940	2- 7-2023	Community Development Block Grant (CDBG) program advisory committee	2	Rpld	2.50.325
3941	2-21-2023	Amends Ord. 2870, zoning map			Omit

Ordinance Number	Date	Description	Section		Section this Code
3942	2-21-2023	Amends Ord. 2870, zoning map			Omit
3943	2-21-2023	Henderson community education advisory board	1		2.50.357 B., C.
3944	3- 7-2023	Release from Airparc Heights development agreement			Omit
3945	3- 7-2023	Audit committee	1		2.50.305 C.
3946	3- 7-2023	Golf courses	1		14.14.040 B.
3947	3-21-2023	Amends Ord. 2870, zoning map			Omit
3948	3-21-2023	Amends Ord. 2870, zoning map			Omit
3949	3-21-2023	Amends Ord. 2870, zoning map			Omit
3950	4-18-2023	Amendment to Inspirada park agreement			Omit
3951	4-18-2023	Modification to Cadence development agreement			Omit
3952	4-18-2023	Amends Ord. 2870, zoning map			Omit
3953	4-18-2023	Amends Ord. 2870, zoning map			Omit
3954	4-18-2023	Amends development code			Omit
3955	5- 2-2023	Amends Ord. 2870, zoning map			Omit
3956	5- 2-2023	Annexation			Omit
3957	5-16-2023	Amends Ord. 2870, zoning map			Omit
3958	5-16-2023	Amends Ord. 2870, zoning map			Omit
3959	5-16-2023	Amends Ord. 2870, zoning map			Omit
3960	5-16-2023	Amends Ord. 2870, zoning map			Omit
3961	5-16-2023	Amends Ord. 2870, zoning map			Omit
3962	5-16-2023	Amends development code			Omit
3963	5-16-2023	Retail marijuana regulations and licenses	1		4.118.070 A.7., 10., 12., B.1., 6., 7., C.1., D.1., 6., E.
			2		4.118.200
3964	5-16-2023	LID T-22 creation			Omit
3965	5-16-2023	LID T-22 cost assessment			Omit
3966	5-16-2023	LID T-22 bonds			Omit
3967	6- 6-2023	Camping—Outdoor fires	1	Rpld	Ch. 8.37, §§ 8.37.010—8.37.070
		Camping and similar activities		Added	Ch. 8.37, §§ 8.37.010—8.37.100
3968	6- 6-2023	Vehicles and traffic	1		10.02.020
			2	Rpld	10.16.050—10.16.070
			3	Rpld	10.24.020, 10.24.040
			4	Rpld	10.36.070, 10.36.080
			5	Rpld	10.48.040, 10.48.070
			6	Rpld	10.58.030
3969	6-20-2023	West Henderson public facilities needs assessment			Omit
3970	7-11-2023	Amigo 5-Acre Expansion development agreement			Omit

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
3971	7-11-2023	Bruner & Amigo Industrial development agreement			Omit
3972	7-11-2023	Volunteer & Chapparal Industrial development agreement			Omit
3973	7-11-2023	Amendment to Village at St. Rose development agreement			Omit
3974	8- 1-2023	Amends Ord. 2870, zoning map			Omit
3975	8- 1-2023	Pecos Robindale Neighborhood Improvement District			Omit
3976	8- 1-2023	Amends Ord. 2870, zoning map			Omit
3977	8- 1-2023	2023 ward map			Omit
3978	8- 1-2023	Release from Cactus Retail Center development agreement			Omit
3979	8- 1-2023	Annexation			Omit
3980	8-15-2023	Amends Ord. 2870, zoning map			Omit
3981	8-15-2023	Amends Ord. 2870, zoning map			Omit
3982	8-15-2023	City public wastewater system service area			Omit
3983	8-15-2023	City public water system service area			Omit
3984	8-15-2023	Sexually oriented businesses definitions	1		4.110.010
3985	9- 5-2023	Chicken N Pickle development agreement			Omit
3986	9- 5-2023	Traffic administration	1	Rpld	Ch. 10.12, § 10.12.030
3987	9- 5-2023	Amends development code			Omit
3988	9- 5-2023	Amends development code			Omit
3989	10- 3-2023	General obligation various purpose bonds			Omit
3990	10-17-2023	Amends Ord. 2870, zoning map			Omit
3991	10-17-2023	Amends Ord. 2870, zoning map			Omit
3992	10-17-2023	Commemorative beautification commission	2	Rpld	2.50.350
3993	11-21-2023	The Stack development agreement			Omit
3994	12- 5-2023	Amends Ord. 2870, zoning map			Omit
3995	12- 5-2023	Lakemoor development agreement			Omit
3996	12- 5-2023	Lakemoor park agreement			Omit
3997	12- 5-2023	Boulevard South development agreement			Omit
3998	12-19-2023	Inspirada Town Center Design Guidelines			Omit
3999	12-19-2023	Inspirada Station development agreement			Omit
4000	12-19-2023	Inspirada Station development agreement			Omit
4001	12-19-2023	Amends Ord. 2870, zoning map			Omit
4002	12-19-2023	Amends Ord. 2870, zoning map			Omit

Ordinance Number	Date	Description	Section		Section this Code
4003	12-19-2023	Amends Ord. 2870, zoning map			Omit
4004	12-19-2023	Amends Ord. 2870, zoning map			Omit
4005	12-19-2023	Amends Ord. 2870, zoning map			Omit
4006	12-19-2023	Amends development code			Omit
4007	2- 6-2024	Amends development code			Omit
4008	2- 6-2024	Amends Ord. 2870, zoning map			Omit
4009	2-20-2024	Amends Ord. 2870, zoning map			Omit
4010	3- 5-2024	Amends development code			Omit
4011	3- 5-2024	Commercial animal establishment	1	Added	Ch. 7.75, §§ 7.75.010—7.75.080
		Definitions	2		7.01.060—7.01.540
4012	3-19-2024	Major modification to Haas Automation development agreement			Omit
4013	3-19-2024	Amends Ord. 2870, zoning map			Omit
4014	3-19-2024	Amends Ord. 2870, zoning map			Omit
4015	3-19-2024	Amends Ord. 2870, zoning map			Omit
4016	3-19-2024	Amends Ord. 2870, zoning map			Omit
4017	3-19-2024	Amends Ord. 2870, zoning map			Omit
4018	4- 2-2024	Civil service rules	1		6.01.040 A.
					6.01.060
					6.02.010 B., C., E., F.
					6.02.030 C.
					6.04.010 A.—C., E.
					6.04.020 B.6.
					6.04.030 B.—D., E.4.
				Rpld	6.04.030 F.
					6.04.040
					6.04.050 B., C.
				Added	6.04.050 D.
					6.04.060 A., C.
					6.04.070
					6.04.080 A.
					6.05.010 A., B.
					6.05.020 A.
					6.05.030 D.2.
					6.05.040 B.
					6.05.050 B.
					6.05.060
					6.06.010 B., C.1., 2.
					6.06.020
					6.06.030 A.
					6.06.040
					6.07.010 D., W.

Ordinance Number	*Date*	*Description*	*Section*	*Section this Code*
				6.07.020
				6.07.030 B., C.
				6.07.050 C.
				6.08.010 A.1.a., e., B.3.—5.
				6.08.020
				6.08.030 C., G., I.
				6.08.040 A., B.1.a., b., C.
				6.09.010
4019	4- 2-2024	Abandoned residential real property registry	1—4	15.13.010—15.13.040
			5, 6	15.13.060, 15.13.070
			7 Rpld	15.13.110
4020	4-16-2024	Amends Ord. 2870, zoning map		Omit
4021	4-16-2024	Records management	1 Added	2.47.020 B.11.
				2.47.085
4022	5-21-2024	Business license fee schedules	1	4.05.278
			2	4.05.420
4023	5-21-2024	Liquor—regulations and licenses	1	4.36.010
			2	4.36.040 B.—H., N.
			3	4.36.240
4024	5-21-2024	Amends Ord. 2870, zoning map		Omit
4025	6- 4-2024	Annexation		Omit
4026	6- 4-2024	Annexation		Omit
4027	6- 4-2024	Annexation		Omit
4028	6- 4-2024	Arts advisory commission	1—4Added	2.50.395
4029	6-18-2024	Amends Ord. 2870, zoning map		Omit
4030	6-18-2024	Amends Ord. 2870, zoning map		Omit
4031	6-18-2024	Amends Ord. 2870, zoning map		Omit
4032	6-18-2024	Amends Ord. 2870, zoning map		Omit
4033	6-18-2024	Sidewalk and open-air vendors	1 Added	Ch. 4.75, §§ 4.75.010—4.75.150
4034	7- 2-2024	Amends Ord. 2870, zoning map		Omit
4035	7- 2-2024	Mosaic development agreement		Omit
4036	7-16-2024	Amends Ord. 2870, zoning map		Omit
4037	7-16-2024	Amends Ord. 2870, zoning map		Omit
4038	9- 3-2024	Pet licensing and permits—Fees	1	7.04.020
4039	9- 3-2024	Inspirada development agreement		Omit
4028	6- 4-2024	Arts advisory commission	1—4Added	2.50.395
4040	10- 1-2024	Arts advisory commission members	1	2.50.395 C.
4041	10-15-2024	Secondhand dealers	1	Ch. 4.68, §§ 4.68.010—4.68.290
4042	11- 6-2024	Obstructions or encroachments within city rights-of-way	1	11.03.010 A.2., B.2., D., E.1., G., H., J.2.

Ordinance Number	Date	Description	Section		Section this Code
4043	11- 6-2024	Parking regulations	1	Added	10.06.020
			3—5		10.06.040—10.06.060
		Enforcement authority of police & fire dept. officials and other enforcement officers	6		10.16.0200
		Parking of overweight vehicles in residence district prohibited	7	Rpld	10.60.080
4044	11- 6-2024	Solid waste management	1		5.17.010
			2		5.17.030
			3		5.17.040 A., D.
				Added	5.17.040 F.
			4		5.17.050
			5		5.17.060 C., D.
				Added	5.17.060 G.
			6		5.17.070 C.2., 3.
			7		5.17.080 B.
			8		5.17.100
			9		5.17.110
			10		5.17.120 A.
			11		5.17.130 A.
			12, 13		5.17.150, 5.17.160
			14		5.17.170 A., B., D.
			15—19		5.17.180—5.17.210
			20		5.17.213 A., B., D.—F.
			21—24		5.17.215—5.17.240
			25	Added	5.17.245
			26		5.17.250 A., B.
				Added	5.17.250 E.
			27		5.17.260 D.3., E.
			28		5.17.265 D., E.
			29	Added	5.17.275
			30		5.17.290 B., C.
			31		5.17.320
			33	Added	Ch. 5.17, App. 1
4045	11-19-2024	Amends Ord. 2870, zoning map			Omit
4046	11-19-2024	Bicycle advisory committee	1	Rpld	2.50.310
		Citizens transportation advisory board			2.50.340
		Public improvement trust		Rpld	2.50.375
4047	12- 3-2024	Municipal utility revenue bond			Omit
4048	12- 3-2024	Municipal utility revenue bond			Omit
4049	12-17-2024	Parks and recreation	1		2.27.020
					2.27.030 A.—D., G., K., W., AA.—FF.

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
				Added	2.27.030 GG., HH.
					2.27.035 A.
				Added	2.27.035 D.
					2.27.040 1., 2.
					2.27.060
4050	12-17-2024	Amends development code			Omit
4051	12-17-2024	Inspirada Town Center development agreement			Omit
4052	12-17-2024	Annexation			Omit
4053	1- 7-2025	Unlawful parking of recreational vehicles	1	Added	10.06.030
4054	1-21-2025	Amends Ord. 2870, zoning map			Omit
4055	1-21-2025	Amends Ord. 2870, zoning map			Omit
4056	2- 4-2025	Major modification to Cadence development agreement			Omit
4057	2- 4-2025	Municipal court judge salary	1		2.05.010, 2.05.020
				Added	2.05.031
4058	2- 4-2025	UDACS adopted by reference	1		15.70.010
4059	2-18-2025	Amends Ord. 2870, zoning map			Omit
4060	2-18-2025	Amends Ord. 2870, zoning map			Omit
4061	2-18-2025	Amends Ord. 2870, zoning map			Omit
4062	3- 4-2025	restrictions on surface, building, equipment, and vehicle washing; splash pads	1		14.14.070 C.
4063	3- 4-2025	Annexation			Omit
4064	3-18-2025	Amends Ord. 2870, zoning map			Omit
4065	3-18-2025	Amends Ord. 2870, zoning map			Omit
4066	3-18-2025	Amends Ord. 2870, zoning map			Omit
4067	4- 1-2025	Amends Ord. 2870, zoning map			Omit
4068	4-15-2025	Amends Ord. 2870, zoning map			Omit
4069	4-15-2025	Amends Ord. 2870, zoning map			Omit
4070	4-15-2025	Amends Ord. 2870, zoning map			Omit
4071	4-15-2025	Amends Ord. 2870, zoning map			Omit
4072	4-15-2025	Amends Ord. 2870, zoning map			Omit
4073	4-15-2025	Major modification to Mosaic development agreement			Omit
4074	4-15-2025	Gambling—Regulations and licenses	1		4.32.020 A.
			2		4.32.040 H.
4075	5-20-2025	Development services schedule of fees	1		15.02.010
					15.02.030
4076	6-17-2025	Amends Ord. 2870, zoning map			Omit
4077	6-17-2025	Amends Ord. 2870, zoning map			Omit
4078	6-17-2025	Amends Ord. 2870, zoning map			Omit

Ordinance Number	Date	Description	Section		Section this Code
4079	6-17-2025	Amends Ord. 2870, zoning map			Omit
4080	6-17-2025	Animals	2		7.01.040—7.01.620
			3		Ch. 7.02 (title)
					7.02.020
					7.02.050 D.
			4		7.04.040
					7.04.060
					7.04.080—7.04.100
					7.04.120
					7.04.125 C., D.
					7.04.130
				Rnbd	7.04.140
				as	7.04.135
				Added	7.04.140
				Added	7.04.160
			5		7.06.020, 7.06.030
					7.06.100 B.4., C., D.
				Added	7.06.100 B.7.
			6		7.08.020
			8		7.60.010, 7.60.020
					7.60.045
			9	Added	Ch. 7.65, §§ 7.65.010—7.65.070
			10	Added	7.70.030 C.5.
4081	6-17-2025	Amends development code			Omit
4082	6-17-2025	Municipal court judge salary	1		2.05.010
4083	7-15-2025	Building code	1		Ch. 15.08 (title)
			2, 3		15.08.010, 15.08.020
			4		15.08.050
4084	7-15-2025	Residential building code	1		Ch. 15.09 (title)
			2		15.09.010—15.09.025
					15.09.050
4085	7-15-2025	Existing building code	1		Ch. 15.11 (title)
			2		15.11.010—15.11.030
					15.11.060
4086	7-15-2025	Electrical code	2, 3		15.16.010, 15.16.020
			4		15.16.060
4087	7-15-2025	Plumbing code	1		Ch. 15.20 (title)
			2, 3		15.20.010, 15.20.020
			4		15.20.060
4088	7-15-2025	Mechanical code	1		15.24.010
			2		15.24.020
			3		15.24.060

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
4089	7-15-2025	Wildland-urban interface code	1		15.30.010—15.30.030
					15.30.060
4090	7-15-2025	Fire code	4		Ch. 15.32 (title)
			5, 6		15.32.020, 15.32.030
			7		15.32.050
			8		15.32.120
4091	7-15-2025	Swimming pool code	1		15.44.010, 15.44.020
					15.44.050
4092	7-15-2025	Energy conservation code	1		Ch. 15.45 (title)
			2		15.45.010, 15.45.020
					15.45.050
4093	8- 5-2025	2025 ward map			Omit
4094	8- 5-2025	Amends Ord. 2870, zoning map			Omit
4095	8- 5-2025	Amends Ord. 2870, zoning map			Omit
4096	8- 5-2025	Amends Ord. 2870, zoning map			Omit
4097	8- 5-2025	Amends Ord. 2870, zoning map			Omit
4098	8-19-2025	Amends Ord. 2870, zoning map			Omit
4099	8-19-2025	Amends Ord. 2870, zoning map			Omit
4100	9- 2-2025	Amends Ord. 2870, zoning map			Omit
4101	9- 2-2025	Noise control	1	Added	8.84.020 B.6.
			2		8.84.030 E.
			3		8.84.040 C.
		Blasting regulations—Performance standards	4		15.33.130 A.
4102	9-16-2025	Inspirada Town Center - Via Inspirada Collection standard development agreement			Omit
4103	9-16-2025	Amends Ord. 2870, zoning map			Omit
4104	9-16-2025	Amends Ord. 2870, zoning map			Omit
4105	9-16-2025	Amends Ord. 2870, zoning map			Omit
4106	9-16-2025	Amends Ord. 2870, zoning map			Omit
4107	9-16-2025	Amends Ord. 2870, zoning map			Omit
4108	10- 7-2025	Amends Ord. 2870, zoning map			Omit
4109	10- 7-2025	GSN Sunridge standard development agreement			Omit
4110	10-21-2025	Major modification to Black Mountain Park agreement			Omit
4111	10-21-2025	Amends Ord. 2870, zoning map			Omit
4112	10-21-2025	Amends Ord. 2870, zoning map			Omit
4113	10-21-2025	Speed limits	1	Added	10.24.020
4114	10-21-2025	Municipal utility revenue bond			Omit
4115	10-21-2025	Animals	1	Rpld	Tit. 7, Chs. 7.01—7.90
			2	Added	Tit. 7, Chs. 7.01—7.90
4116	10-21-2025	Amends development code			Omit

Ordinance Number	Date	Description	Section	Section this Code
4121	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4122	12- 2-2025	Pueblo Pines Senior Housing Development agreement		Omit
4123	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4124	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4125	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4126	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4127	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4128	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4129	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4130	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4131	12- 2-2025	Amends Ord. 2870, zoning map		Omit
4132	12- 2-2025	Department-authorized backflow prevention assembly test companies and testers	1	14.08.050 A., B.2., C.4.
4133	12-16-2025	Community Ambulance Corporate Headquarters agreement		Omit
4134	12-16-2025	Amends Ord. 2870, zoning map		Omit
4135	12-16-2025	Amends Ord. 2870, zoning map		Omit
4136	12-16-2025	Electrical vehicle parking requirements moratorium		Omit
4137	12-16-2025	Building code amended	2	15.08.020
4138	12-16-2025	City fire code amendments	5	15.32.050
4139	12-16-2025	Swimming pool code amended	2	15.44.020
4140	1- 6-2026	Larson & Bermuda development agreement		Omit
4141	1- 6-2026	Union Village Phase II park agreement		Omit
4142	1- 6-2026	Civil service—Job rules and compensation	1	6.03.030
		Same—Recruitment, assessment and appointment		6.04.010 B., E.
			Added	6.04.010 F.
				6.04.020—6.04.050
				6.04.060 A., B.
				6.04.070
		Same—Employment actions		6.05.030 D.
				6.05.040 B.
				6.05.050 A.
				6.05.060
		Same—Performance expectations		6.06.020 A.4.
			Rpld	6.06.020 A.5.
		Same—Disciplinary actions		6.07.010 B.
			Added	6.07.010 AA.
		Same—Glossary		6.09.010

Ordinance Number	*Date*	*Description*	*Section*		*Section this Code*
4143	1-20-2026	Amends Ord. 2870, zoning map			Omit
4144	1-20-2026	Amends Ord. 2870, zoning map			Omit
4145	2-17-2026	Amends Ord. 2870, zoning map			Omit
4146	2-17-2026	Annexation			Omit
4150	3-17-2026	Amends Ord. 2870, zoning map			Omit
4151	3-17-2026	Amends Ord. 2870, zoning map			Omit
4152	3-17-2026	Authorized punishment; penalties	1	Added	1.05.020(e), (f)
4153	4- 7-2026	Amends Ord. 2870, zoning map			Omit
4154	4- 7-2026	City boards and commissions eligibility requirements	1		2.50.020 A.
		Development services center advisory commission	2		2.50.360 D.
4155	4-21-2026	Amends Ord. 2870, zoning map			Omit
4156	5- 5-2026	Major modification to Cadence development agreement			Omit
4157	5- 5-2026	Public utility and related services licenses			4.05.020
4158	5- 5-2026	LID T-23-1 creation			Omit
4159	5- 5-2026	LID T-23-1 bonds			Omit
4160	5- 5-2026	LID T-23-1 cost assessment			Omit
4161	5-19-2026	PAM Rehabilitation Hospital agreement			Omit
4162	5-19-2026	Amends Ord. 2870, zoning map			Omit
4163	6-16-2026	Mobile food vendor	1		4.05.297
		Novelty food vendor	2	Added	4.05.313
		Photography and videography sales/services	3	Added	4.05.333
		Business license summary of fees	4		4.05.420

CHARTER INDEX

Section

A

ABATEMENT
Legislative department
City Council, powers of the
Abatement of noxious insects, rats and disease-bearing organisms..... 2.260

AGREEMENTS. See: CONTRACTS AND AGREEMENTS

AIRPORTS
Legislative department
City Council, powers of the..... 2.225

ANIMALS
Legislative department
City Council, powers of the..... 2.250

ANNEX, DEANNEX
Incorporation of city; general powers; boundaries; wards and annexations; city offices..... 1.010 et seq.
See: INCORPORATION OF CITY; GENERAL POWERS; BOUNDARIES; WARDS AND ANNEXATIONS; CITY OFFICES

APPOINTMENTS
Charter Committee
Appointment; qualifications; compensation; terms; vacancies 1.120
Trusts for furtherance of public functions
Trustees
Appointment; succession, powers; duties, terms, compensation controlled by trust instrument... 7A.030

AUDITS
Trusts for furtherance of public functions
Annual audit of trust funds, accounts, fiscal affairs: Requirements; distribution of copies; expenses.. 7A.050

B

BALLOTS. See: ELECTIONS

BENEFITS, COMPENSATION AND SALARIES
Judicial department
Municipal Judge
Salary 4.020
Legislative department
City Council
Qualifications; election; term of office; salary..... 2.010

Section

BIDS
Trusts for furtherance of public functions

BOARDS, COMMISSIONS AND COMMITTEES
Civil Service ..... 9.010 et seq.
Legislative department
City Council, powers of the
Public health; Board of Health; regulations..... 2.170
Trusts for furtherance of public functions
Approval of financing method, underwriters by state board of finance..... 7A.080

BONDS
Local bonds and franchises..... 7.010 et seq.

BOUNDARIES. See: INCORPORATION OF CITY; GENERAL POWERS; BOUNDARIES; WARDS AND ANNEXATIONS; CITY OFFICES

BUILDINGS
Legislative department
City Council, powers of the
Buildings; construction and maintenance regulations; building and safety codes..... 2.180
Public property, buildings..... 2.110

BUSINESSES AND BUSINESS REGULATIONS
Legislative department
City Council, powers of the
Licensing, regulation and prohibition of businesses, trades and professions 2.130

C

CERTIFICATES, CERTIFICATION
Elections
Election returns; canvass; certificates of election; entry of officers upon duties; tie vote procedure 5.100

CITY
Incorporation of City 1.020

CITY ATTORNEY
Executive department
Qualifications; duties 3.060

CITY CLERK
Executive department
Duties..... 3.040

	Section
CITY COUNCIL	
Executive department	
Interference by	3.140
Legislative department	2.010 et seq.
Mayor and Council Members not to hold other office	1.080
CITY MANAGER	
Executive department	
Duties	3.020
Removal	3.030
CIVIL SERVICE	
System of Civil Service	9.010
CODES	
Legislative department	
City Council, powers of the	
Buildings; construction and maintenance regulations; building and safety codes	2.180
Fire protection; regulation of explosives, inflammable materials; fire codes and regulations	2.160
CONSTRUCTION	
Legislative department	
City Council, powers of the	
Buildings; construction and maintenance regulations; building and safety codes	2.180
CONTRACTS AND AGREEMENTS	
Trusts for furtherance of public functions	
Approval of certain contracts and resolutions required	7A.070
Creation by written instrument; execution, recording of trust instrument; acceptance by beneficiary creates contract between State, grantor; duration of trust	7A.020
COUNTY ASSESSOR	
Executive department	
To be ex officio City Assessor; duties	3.070

D

DISEASE CONTROL	
Legislative department	
City Council, powers of the	
Abatement of noxious insects, rats and disease-bearing organisms	2.260

Section

E

ELECTIONS
Applicability of state election laws; elections under City Council control 5.030
Availability of lists of registered voters 5.070
Ballots for ordinances and charter amendments 5.060
Contest of election 5.110
Continuation of certain officers 5.120
Election returns; canvass; certificates of election; entry of officers upon duties; tie vote procedure 5.100
General municipal election 5.020
Names on ballots 5.050
Primary municipal election 5.010
Qualifications, registration of voters 5.040
Voting machines 5.090

EMINENT DOMAIN
Legislative department
City Council, powers of the 2.120

EXECUTIVE DEPARTMENT
City Attorney 3.060
City Clerk 3.040
City Manager ..... 3.020 et seq.
Collection and disposition of money 3.130
County assessor 3.070
Executive Officers
Removal of certain Executive Officers 3.150
Residence 3.110
Interference by City Council 3.140
Mayor: Duties; mayor pro tempore 3.010

EXPLOSIVES
Legislative department
City Council, powers of the
Fire protection; regulation of explosives, inflammable materials; fire codes and regulations 2.160

F

FINES, FORFEITURES AND OTHER PENALTIES
Judicial department
Disposition of fines 4.030

FIRE PROTECTION
Legislative department

Section

FIRE PROTECTION (Cont'd.)
City Council, powers of the
Fire protection; regulation of explosives, inflammable materials; fire codes and regulations 2.160

	Section
FRANCHISE	
Legislative department	
Franchises for the provision of telecommunication service	2.285
Local bonds and franchises	7.010 et seq.

G

GRANTORS. See: TRUSTS

H

HEALTH AND SAFETY	
Legislative department	
City Council, powers of the	
Public health; Board of Health; regulations	2.170

I

INCORPORATION OF CITY; GENERAL POWERS; BOUNDARIES; WARDS AND ANNEXATIONS; CITY OFFICES	
Annexations	1.050
Charter Committee	
Appointment; qualifications; compensation; terms; vacancies	1.120
Officers; meetings; duties	1.130
Removal of member	1.140
Description of territory	1.030
Elective offices	
Provisions, re	1.060
Vacancies	1.070
Executive Officers	
Duties; salary	1.100
Oath of office	1.110
Provision, re	1.090
Incorporation of City	1.020
Mayor and Council Members not to hold other office	1.080
Preamble: Legislative intent	1.010
Wards: Creation; boundaries	1.040

J

JUDICIAL DEPARTMENT. See: MUNICIPAL COURT

Section

L

LEGISLATIVE DEPARTMENT
- Apportionment of County General Road Fund; use of money by City Council 2.310
- City Council
  - Contracts 2.020
  - Discipline of members, other persons, subpoena power 2.030
  - Powers of
    - Abatement of noxious insects, rats and disease-bearing organisms 2.260
    - Airports 2.225
    - Animals 2.250
    - Buildings; construction and maintenance regulations; building and safety codes 2.180
    - Eminent domain 2.120
    - Fire protection; regulation of explosives, inflammable materials; fire codes and regulations 2.160
    - Licensing, regulation and prohibition of businesses, trades and professions 2.130
    - Nuisances 2.240
    - Ordinances, resolutions and orders 2.080
    - Parking meters; off-street public parking facilities .. 2.220
    - Police ordinances 2.140
    - Provision of utilities 2.280
    - Public health; Board of Health; regulations 2.170
    - Public property, buildings 2.110
    - Railroads 2.230
    - Rights-of-way, parks, public buildings and grounds and other public places 2.200
    - Sanitary sewer facilities 2.270
    - Traffic control 2.210
    - Zoning and planning 2.190
  - Qualifications; election; term of office; salary 2.010
- Franchises for the provision of telecommunication service 2.285
- Meetings
  - Quorum 2.040
  - Special 2.050
  - Time and place; rules 2.060
- Oaths and affirmations 2.070
- Sale or lease of real property owned by the City: Procedure; disposition of proceeds 2.320

LIABILITY
- Trusts for furtherance of public functions

	Section
LIABILITY (Cont'd.)	
Trustees	
Eligibility and status; standard of care; exemption from personal liability	7A.040
LICENSES AND PERMITS	
Legislative department	
City Council, powers of the	
Licensing, regulation and prohibition of businesses, trades and professions	2.130
LOCAL BONDS AND FRANCHISES	
Acquisition, operation of municipal utilities	7.020
Borrowing money	7.040
Debt limit	7.010
LOCAL IMPROVEMENTS	
Local improvement law: Collateral powers	6.020
Provisions, re	6.010
M	
MAINTENANCE	
Legislative department	
City Council, powers of the	
Buildings; construction and maintenance regulations; building and safety codes	2.180
MAYOR	
Executive department	
Duties; mayor pro tempore	3.010
Mayor and Council Members not to hold other office	1.080
MEETINGS	
Charter Committee	
Officers; meetings; duties	1.130
Legislative department	
City Council	
Meetings	
Quorum	2.040
Special	2.050
Time and place; rules	2.060
METERS	
Legislative department	
City Council, powers of the	
Parking meters; off-street public parking facilities	2.220
MISCELLANEOUS PROVISIONS	
Effect of enactment of charter	10.020

Section

MISCELLANEOUS PROVISIONS (Cont'd.)
Severability of provisions..... 10.010

MUNICIPAL COURT
Judicial department
Disposition of fines 4.030
Municipal Judge
Qualifications of..... 4.020
Salary 4.020
Provisions, re 4.015

N

NUISANCES
Legislative department
City Council, powers of the..... 2.240

O

OFFICERS AND EMPLOYEES
Executive Officers
Duties; salary..... 1.100
Oath of office..... 1.110
Provision, re..... 1.090
Incorporation of city; general powers; boundaries; wards and annexations; city offices..... 1.010 et seq.
See: INCORPORATION OF CITY; GENERAL POWERS; BOUNDARIES; WARDS AND ANNEXATIONS; CITY OFFICES
Mayor and Council Members not to hold other office ... 1.080

ORDINANCES, RESOLUTIONS, ETC.
Elections
Ballots for ordinances and charter amendments..... 5.060
Legislative department
Ordinances: Enactment procedure; emergency ordinances..... 2.100
Ordinances: Passage by bill; amendments; subject matter; title requirements 2.090

P

PARKING
Legislative department
City Council, powers of the
Parking meters; off-street public parking facilities .. 2.220

PARKS
Legislative department

	Section
PARKS (Cont'd.)	
City Council, powers of the	
Rights-of-way, parks, public buildings and grounds and other public places	2.200
PLANNING AND ZONING	
Legislative department	
City Council, powers of the	
Zoning and planning	2.190
POLICE DEPARTMENT	
Legislative department	
City Council, powers of the	
Police ordinances	2.140
POWERS, DUTIES AND RESPONSIBILITIES	
Incorporation of city; general powers; boundaries; wards and annexations; city offices	1.010 et seq.
See: INCORPORATION OF CITY; GENERAL POWERS; BOUNDARIES; WARDS AND ANNEXATIONS; CITY OFFICES	
Legislative department	
City Council, powers of the	
Abatement of noxious insects, rats and disease-bearing organisms	2.260
Airports	2.225
Animals	2.250
Buildings; construction and maintenance regulations; building and safety codes	2.180
Discipline of members, other persons, subpoena power	2.030
Eminent domain	2.120
Fire protection; regulation of explosives, inflammable materials; fire codes and regulations	2.160
Licensing, regulation and prohibition of businesses, trades and professions	2.130
Nuisances	2.240
Ordinances, resolutions and orders	2.080
Parking meters; off-street public parking facilities	2.220
Police ordinances	2.140
Provision of utilities	2.280
Public health; Board of Health; regulations	2.170
Public property, buildings	2.110
Railroads	2.230
Rights-of-way, parks, public buildings and grounds and other public places	2.200
Sanitary sewer facilities	2.270
Traffic control	2.210

Section

POWERS, DUTIES AND RESPONSIBILITIES (Cont'd.)
Zoning and planning 2.190
Local improvement
Law: Collateral powers 6.020
Trusts for furtherance of public functions
Authorization to create; purposes; eligible beneficiaries; power of beneficiary to lease trust property 7A.010
Trustees
Appointment; succession, powers; duties, terms, compensation controlled by trust instrument ... 7A.030

PROPERTY
Legislative department
City Council, powers of the
Public property, buildings 2.110

PUBLIC PLACES
Legislative department
City Council, powers of the
Rights-of-way, parks, public buildings and grounds and other public places 2.200

R

RAILROADS
Legislative department
City Council, powers of the 2.230

RECORDS AND REPORTS
Trusts for furtherance of public functions
Creation by written instrument; execution, recording of trust instrument; acceptance by beneficiary creates contract between State, grantor; duration of trust 7A.020

REGISTRATION
Elections
Qualifications, registration of voters 5.040

RIGHT-OF-WAY
Legislative department
City Council, powers of the
Rights-of-way, parks, public buildings and grounds and other public places 2.200

S

SANITARY SEWERS
Legislative department

	Section
SANITARY SEWERS (Cont'd.)	
City Council, powers of the	
Sanitary sewer facilities	2.270
STATE	
Elections	
Applicability of state election laws; elections under City Council control	5.030
Incorporation of city; general powers; boundaries; wards and annexations; city offices	
Incorporation of city	1.020
Trusts for furtherance of public functions	
Approval of financing method, underwriters by state board of finance	7A.080
T	
TAXATION	
Revenue	
Municipal taxes	8.010
Revenue ordinances	8.020
TELECOMMUNICATIONS	
Legislative department	
Franchises for the provision of telecommunication service	2.285
TRAFFIC	
Legislative department	
City Council, powers of the	
Traffic control	2.210
TRUSTS	
For furtherance of public functions	
Annual audit of trust funds, accounts, fiscal affairs: Requirements; distribution of copies; expenses	7A.050
Approval of certain contracts and resolutions required	7A.070
Approval of financing method, underwriters by state board of finance	7A.080
Authorization to create; purposes; eligible beneficiaries; power of beneficiary to lease trust property	7A.010
Competitive bidding not required	7A.100
Creation by written instrument; execution, recording of trust instrument; acceptance by beneficiary creates contract between State, grantor; duration of trust	7A.020
Exemption from securities laws	7A.090
Franchise not required for acquisition, ownership or operation of trust property	7A.060

Section

TRUSTS (Cont'd.)
Termination of trust 7A.110
Trustees
Appointment; succession, powers; duties, terms, compensation controlled by trust instrument ... 7A.030
Eligibility and status; standard of care; exemption from personal liability 7A.040

U

UTILITIES
Legislative department
City Council, powers of the
Provision of utilities 2.280
Local bonds and franchises
Acquisition, operation of municipal utilities..... 7.020

V

VOTING. See: ELECTIONS

W

WARDS. See: INCORPORATION OF CITY; GENERAL POWERS; BOUNDARIES; WARDS AND ANNEXATIONS; CITY OFFICES

Z

ZONING
Legislative department
City Council, powers of the
Zoning and planning 2.190

CODE INDEX

Section

A

ABANDONED RESIDENTIAL REAL PROPERTY REGISTRY
- Appeal process 15.13.090
- Continued inspection requirements 15.13.070
- Creation 15.13.030
- Definitions 15.13.020
- Enforcement 15.13.080
- Fees 15.13.050
- Inspection 15.13.060
- Limitations 15.13.100
- Purpose and scope 15.13.010
- Registration 15.13.040

ABANDONMENT
- Abandoned residential real property registry ..... 15.13.010 et seq.
  - See: ABANDONED RESIDENTIAL REAL PROPERTY REGISTRY
- Animals
  - Pets general welfare; neglect; cruelty
    - Abandonment 7.06.040
- Gambling
  - Regulations and licenses
    - License
      - Issuance
        - Discontinuance of use 4.32.360
- Property maintenance code
  - Enforcement provisions
    - Abandoned nuisance 15.12.060.P
- Vehicles and traffic
  - Enforcement, obedience and effect
    - Unattended vehicles, accidents involving—duty to remain at scene 10.16.100

ABATEMENT
- Building and fire safety administrative code
  - Enforcement
    - Authority to disconnect building service equipment
      - Removing, or defacing a posted notice or interfering with the posting of a notice 15.01.085.D.3
- Graffiti reward and abatement account created; administrative assessment to be imposed for certain violations; use of money in account 8.85.070

Section

ABATEMENT (Cont'd.)
Health and sanitation
Trees and plants
Authority to order the treatment, trimming or removal of trees, plants and shrubs 5.28.020
Procedure upon order to treat, trim or remove 5.28.030
Litter
Clearing of litter from open property by city 5.04.050
Pawnbrokers
License plates to be removed at time of motor vehicle pawn 4.64.270
Property maintenance code ..... 15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE
Solid waste management
Removal of contents of containers prohibited 5.17.120
Stormwater regulations
Cost of abatement of the violation 13.04.210
Uniform code for dangerous buildings abatement ..... 15.10.010 et seq.
See: UNIFORM CODE FOR DANGEROUS BUILDINGS ABATEMENT

ABUSE OR NEGLECT
Animals ..... 7.06.010 et seq.
See: ANIMALS
Vehicles and traffic ..... 10.24.050 et seq.
See: VEHICLES AND TRAFFIC

ACCESS
Alcoholic beverages
Liquor—regulations and licenses
Minor—employment in licensed establishments 4.36.360
Animals
Powers of animal protection services, generally
Right of entry 7.02.050
Blasting regulations
Non-proximate blasting permit requirements
Traffic and access control plan 15.33.140.F
Building and fire safety administrative code ..... 15.01.085 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
Business regulations and licenses
Sale and display of narcotic and other paraphernalia
Sale and display rooms 4.98.040

	Section
ACCESS (Cont'd.)	
Elections; vote centers	2.08.060
Emergency management	
Peace and order, measures to maintain	2.24.090
Records management	
City archives and records division	2.47.020
Stormwater regulations	
Monitoring of discharges	
Access to facilities	13.04.140.B
Suspension of MS4 access	13.04.110
Teenage dancehalls—nightclubs	
Fees—further regulations	
Access to governmental agents	4.60.090.E
Utility services	14.03.060 et seq.
See: UTILITY SERVICES	
ACCIDENTS	
Stormwater regulations	
Notification of spills	13.04.170
ADMINISTRATION AND PERSONNEL	
Administrative policies	
Adoption by Reference of Administrative Policy Manual	2.34.010
Ambulance transportation fees	
Ambulance service rates	2.29.020
Emergency services providers	2.29.010
Rate increases	2.29.030
Bond issuance for project assistance	
Application approval—requirements	2.56.020
Declaration of purpose	2.56.010
Rights reserved to the city council	2.56.030
City clerk: additional duties and authorizations	2.44.010
Council meetings	
City council rules of procedure	2.04.080
Date and time of meetings	2.04.010
Executive sessions and closed meetings	2.04.060
Legal record of meeting	2.04.070
Place of meetings	2.04.020
Recordings or transcripts of meetings	2.04.100
Recordings or transcripts of meetings held by order of city attorney	2.04.090
Special meetings	2.04.030
Council salaries	
Benefits	2.01.050
Councilmembers from wards I, II, III AND IV, salary for	2.01.010

	Section
ADMINISTRATION AND PERSONNEL (Cont'd.)	
Mayor, salary for	2.01.020
Salary for councilmen and mayor—automatic increase	2.01.030
Vehicle allowance	2.01.040
Elections	2.08.010 et seq.
See: ELECTIONS	
Emergency management	2.24.010 et seq.
See: EMERGENCY MANAGEMENT	
Ethical standards for public servants	2.40.010 et seq.
See: ETHICAL STANDARDS FOR PUBLIC SERVANTS	
Insurance	2.65.010 et seq.
See: INSURANCE	
Municipal court	2.06.010 et seq.
See: MUNICIPAL COURT	
Municipal court judge salary	
Benefits	2.05.030
Professional allowance	2.05.031
Salary for municipal court judge	
Automatic increase	
Salary increase	2.05.020
Generally	2.05.010
Records management	
City archives and records division created	2.47.020
Citywide fee schedule for public records and document services	2.47.085
Disposition, records	2.47.070
Records committee	2.47.040
Registration and regulation of lobbyists	
Cooling off period	2.100.030
Definitions	2.100.010
Licensed attorneys	2.100.040
Lobbying	
Disclosure form for	
City council or planning commission communication—Time for filing	2.100.020.D
City staff communication—Time for filing	2.100.020.E
Identification	2.100.020.C
Form for filing	2.100.020.B
Time for filing	2.100.020.A
Violations and penalties	2.100.050
ADULT BUSINESSES	
Sexually oriented businesses	4.110.020 et seq.
See: SEXUALLY ORIENTED BUSINESSES	

Section

ADVERTISING
Business regulations and licenses
Fee schedules, business license
Advertising business 4.05.110
Advertising space—leasing or selling 4.05.115
Massage establishments and independent massage therapists 4.84.080
Reflexology 4.85.055
Sexually oriented businesses
False, deceptive or misleading advertising prohibited 4.110.200

AFFIRMATION. See: OATH, AFFIRMATION, SWEAR OR SWORN

AGENCIES. See: DEPARTMENTS AND OTHER AGENCIES OF CITY

AGENT OR OPERATOR
Alarm systems
Alarm systems business located out of local area—requirement of a resident agent..... 4.18.180
Mobile food vendors
Investigation fees—employees or agents to qualify the same as the applicant 4.72.050
Solid waste management
Subject to rules and regulations, collection agent..... 5.17.030
Teenage dancehalls—nightclubs
Fees—further regulations
Access to governmental agents 4.60.090.E
Investigation fees—employees or agents to qualify the same as the applicant 4.60.050
Transient lodging and gaming taxes
Records to be kept by operator of transient lodging .. 4.48.070

AGGRESSIVE SOLICITATION
Definitions 8.94.010
Penalty 8.94.030
Prohibited acts 8.94.020

AGREEMENTS. See: CONTRACTS AND AGREEMENTS

AIR CONDITIONING. See: HEATING, VENTILATION AND AIR CONDITIONING

AIRBORNE PARTICLES. See: DUST, ODORS, SMOKE AND OTHER AIRBORNE PARTICLES

AIRCRAFT. See: AVIATION

AIRPORTS. See: AVIATION

Section

ALARM SYSTEMS
Alarm systems business located out of local area—requirement of a resident agent 4.18.180
Application fee required 4.18.080
Application for electrical permit required—permit not assignable or transferable..... 4.18.200
Audible alarm system cutoff — automatic dialing systems 4.18.250
Bond required, new business—alternative of certificate of deposit, requirements based on actual false alarms of business—exemptions..... 4.18.140
Charges, fees and rates
Application fee required..... 4.18.080
Fee for false alarms—accounting, method of billing and collection..... 4.18.270
Investigation fees—required fees charged..... 4.18.090
License
Issuance—fee—renewal 4.18.130
No refund on investigation fee 4.18.100
Definitions 4.18.010
Excessive false alarms 4.18.290
False alarms
Bond required, new business—alternative of certificate of deposit, requirements based on actual false alarms of business—exemptions 4.18.140
Excessive false alarms..... 4.18.290
Fee for false alarms—accounting, method of billing and collection..... 4.18.270
Response alarms condition — false alarms — exceptions..... 4.18.240
Fee for false alarms—accounting, method of billing and collection..... 4.18.270
Inspections 4.18.210
Instructions as to the operation of the system—user responsibility for maintenance..... 4.18.230
Investigation fees—required fees charged 4.18.090
Legislative intent..... 4.18.020
License
Applicant—personal information required..... 4.18.070
Application—contents
Additional 4.18.060
General 4.18.050
Corporation—partnerships—associations—changes in membership..... 4.18.120
Issuance—fee—renewal..... 4.18.130
Suspension—revocation—limitation 4.18.170

	Section
ALARM SYSTEMS (Cont'd.)	
Licensee responsible for the acts of employees	4.18.150
Licenses and permits	
Application for electrical permit required—permit not assignable or transferable	4.18.200
License. See herein that subject	
Licensee responsible for the acts of employees	4.18.150
Unlawful to operate without license	4.18.040
No refund on investigation fee	4.18.100
Notices	4.18.280
Operational defects to be remedied	4.18.260
Provisions for compliance—time	4.18.160
Regulation	4.18.030
Response alarms condition — false alarms — exceptions	4.18.240
Sirens not to be audible outside premises	4.18.220
Unlawful to operate without license	4.18.040
Violation—penalty	
Alarm system user	4.18.300
Alarm systems businesses—licensed security and/or private patrol businesses	4.18.310
Withdrawal of application—refund	4.18.110
ALCOHOLIC BEVERAGES	
Amusements and entertainment	
Liquor—regulations and licenses. See herein that subject	
Animals	
Pets general welfare; neglect; cruelty	
Intoxicated riding or driving	7.06.200
Conduct	
Liquor—regulations and licenses. See herein that subject	
Emergency management	
Peace and order, measures to maintain	2.24.090
Investigations	
Liquor—regulations and licenses. See herein that subject	
Licenses and permits	
Liquor—regulations and licenses. See herein that subject	
Liquor violations	8.40.010 et seq.
See: PUBLIC PEACE AND SAFETY	
Liquor—regulations and licenses	
Amusements and entertainment	
Licensed premises. See within this subheading that subject	

Section

ALCOHOLIC BEVERAGES (Cont'd.)
Background investigation waived, when 4.36.130
Certain license classifications must submit State of Nevada Department of Taxation application to city 4.36.055
City hall special event district 4.36.260
Closure or non-operational status—responsibility of licensee to maintain use 4.36.230
Conditions applying to specific license classifications 4.36.040
Conduct
Intoxication on premises of licensee or employees 4.36.320
Licensee responsible for the acts of employees 4.36.440
Providing to intoxicated person—prohibited 4.36.330
Definitions 4.36.010
Delivery regulations 4.36.240
Distributing off premises prohibited 4.36.310
Exception for Water Street District 4.36.315
Distributing to minor—establishment of policy—copy on premises—requirement to show 4.36.340
Establishments—interconnectivity permitted, when .. 4.36.305
Intoxication on premises of licensee or employees ... 4.36.320
Investigation fees—required—fees charged 4.36.100
Investigations
Background investigation waived, when 4.36.130
Investigation fees—required—fees charged 4.36.100
Land use and location requirements—compliance with Title 19 ..... 4.36.300
License
Applicant
Business premises required 4.36.060
Application—contents—general 4.36.050
Change of location—restrictions—origination fee .. 4.36.215
Conversion of license type—restrictions—origination fee 4.36.210
Issuance
Moratorium 4.36.280
Restrictions—proximity of taverns specified 4.36.190
Permit—transfer or assignment—council approval required 4.36.220
Suspension—revocation—limitation 4.36.430
Licensed premises
Amusements and entertainment
Entertainment 4.36.390
Entertainment restrictions
Application 4.36.420
Pictures featuring nudity 4.36.410
Costumes of male and female employees 4.36.400

	Section
ALCOHOLIC BEVERAGES (Cont'd.)	
Entertainment	4.36.390
Entertainment restrictions	
Application	4.36.420
Pictures featuring nudity	4.36.410
Licensee responsible for the acts of employees	4.36.440
Locations	
Distance limitations for alcoholic liquor licenses	4.36.300
Distributing off premises prohibited	4.36.310
License	
Applicant	
Business premises required	4.36.060
Change of location—restrictions—origination fee	4.36.215
Licensed premises. See within this subheading that subject	
Minors	
Distributing to—establishment of policy—copy on premises—requirement to show	4.36.340
Employment in licensed establishments	4.36.360
Nevada system of higher education—alcoholic beverage permit	4.36.380
Nonprofit—license Requirements	4.36.045
Providing to intoxicated person—prohibited	4.36.330
Purpose and intent—license required—issuance prohibited to designated persons	4.36.020
Special events permits; Water Street District special events	4.36.270
Unlawful to operate without license	4.36.030
Locations	
Liquor—regulations and licenses. See herein that subject	
Minors	
Liquor—regulations and licenses. See herein that subject	
Restrictions and curfew	
Frequenting or loitering about certain places prohibited	8.08.010
Parades and public assemblies	
Alcoholic beverages disallowed unless specific permission is granted	8.11.105
Reflexology	
Alcoholic liquors and gaming prohibited	4.85.140
Rules and regulations	
Liquor—regulations and licenses. See herein that subject	

	Section
ALCOHOLIC BEVERAGES (Cont'd.)	
Sexually oriented businesses	
Adult clubs—regulations	4.110.190
Alcoholic liquor not permitted	4.110.260
Special events	
Alcoholic beverages disallowed unless specific permission granted	8.10.065
Teenage dancehalls—nightclubs	
Fees—further regulations	
Prohibition on alcohol and tobacco	4.60.090.F
ALLEYS	
Vehicles and traffic	
Intersections	
Authority to designate through streets and "stop" and "yield" intersections	10.36.010
ALTER OR TAMPER	
Animals	7.06.180 et seq.
See: ANIMALS	
Building and fire safety administrative code	
Existing buildings, structures, and building service equipment	
Additions, alterations or repairs	15.01.035.A
AMBULANCES	
Ambulance transportation fees	
Ambulance service rates	2.29.020
Emergency services providers	2.29.010
Rate increases	2.29.030
Emergency medical services	4.80.010 et seq.
See: EMERGENCY MEDICAL SERVICES	
AMENDMENTS	
Building code	
Code amended	15.08.020
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Fee schedule for other community development applications	
Comprehensive plan amendment	18.01.030.B.6
Master streets and highway amendment	18.01.030.B.12
Electrical code	
Code amended	15.16.020
Energy conservation code	
Code amended	15.45.020

	Section
AMENDMENTS (Cont'd.)	
Fire code	
City of Henderson amendments	15.32.050
Code amended	15.32.030
Mechanical code	
Code amended	15.24.020
Plumbing code	
Code amended	15.20.020
Residential building code	
Code amended	15.09.020
Swimming pool code	
Code amended	15.44.020
AMUSEMENTS AND ENTERTAINMENT	
Alcoholic beverages	4.36.390 et seq.
See: ALCOHOLIC BEVERAGES	
Animals	
Pets general welfare; neglect; cruelty	
Use as a target for amusement	7.06.160
Building and fire safety administrative code	15.01.110 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Sexually oriented businesses	4.110.020 et seq.
See: SEXUALLY ORIENTED BUSINESSES	
ANCHORS, TIEDOWNS AND SUPPORTS	
Building and fire safety administrative code	
Required pool and spa inspections	
Concrete construction	
Steel and bonding	15.01.350.A.1
Manufactured pools and spas	
Underground utility and bonding inspection	15.01.350.B.1
Property maintenance code	
Nonresidential buildings and structures maintenance standards	
Interior of structures	
Structural members	15.12.040.E.2
ANIMAL CONTROL OFFICERS	
Animals	7.02.020 et seq.
See: ANIMALS	
ANIMAL ESTABLISHMENTS	
Animal housing enclosures—Cage construction and size	7.70.080
Capacity of cage or run	7.70.160
Cages	7.70.160.A

	Section
ANIMAL ESTABLISHMENTS (Cont'd.)	
Runs	7.7.160.B
Classification, separation and identification	7.70.150
Conditions relating to animal facilities	7.70.030
Care of animals	7.70.030.C
Compliance	7.70,030.D
Housing	7.70.030.A
Sanitation	7.70.030.B
Fee—Inspection—Issuance of	7.70.020
Fences, hedges, walls and other enclosures	
Animal housing enclosures	
Cage construction and size	7.70.080
Capacity of cage or run	7.70.160
Minimum requirements for	
Dogs, runs, run-out pens for greyhounds	7.70.110
Sanitation procedures	
Cage construction	7.70.100.A
Health and sanitation	
Conditions relating to animal facilities	
Care of animals	7.70.030.C
Sanitation	7.70.030.B
Sanitation procedures	
Cleaning schedules	7.70.100.B
Standards for animal facilities—Generally. See within this subheading that subject	
Immunization and medical history	7.70.190
Licenses and permits	
Permits. See herein that subject	
Minimum requirements for	
Cats	7.70.120
Dogs, runs, run-out pens for greyhounds	7.70.110
Rabbits and rodents of similar size	7.70.140
Small rodents	7.70.130
No new permit after denial or revocation	7.70.050
Non-transferability—Posting	7.70.060
Outdoor shelter—Sun and elements	7.70.170
Penalty for violation	7.70.200
Permit required	7.70.010
Permits	
No new permit after denial or revocation	7.70.050
Non-transferability—Posting	7.70.060
Required	7.70.010
Revocation of animal establishment permit	7.70.210
Sales of dogs and cats	7.70.180
Sanitation procedures	7.70.100
Cage construction	7.70.100.A

	Section
ANIMAL ESTABLISHMENTS (Cont'd.)	
Cleaning schedules	7.70.100.B
Standards and specifications	
Standards for animal facilities—Generally. See herein that subject	
Standards for animal facilities—Generally	7.70.070
Drainage	7.70.070.J
Heating	7.70.070.G
Housing	7.70.070.A
Interior surfaces	7.70.070.I
Isolation	7.70.070.C
Lighting	7.70.070.K
Storage	7.70.070.D
Ventilation	7.70.070.H
Washrooms and sinks	7.70.070.F
Waste disposal	7.70.070.E
Water and electrical power	7.70.070.B
Veterinary care	7.70.090
ANIMAL SHELTER	
Animal establishments	
Outdoor shelter—Sun and elements	7.70.170
Animals	
Pets general welfare; neglect; cruelty	
Adequate shelter	7.06.020
Powers of animal control; generally	
Animal shelter operation	7.04.020
ANIMALS	
Abuse or neglect	
Pets general welfare; neglect. See within this subheading that subject	
Alter or tamper	
Mandatory spaying and neutering of animals. See herein that subject	
Pets general welfare; neglect; cruelty	
Dyeing or coloring	7.06.180
Retailers and dealers	
Sale of dogs and cats—Microchipping	7.80.030
Animal control officers	
Powers of animal control; generally. See herein that subject	
Animal establishments	7.70.010 et seq.
See: ANIMAL ESTABLISHMENTS	
Animal handler	
Animal handler permit	7.60.010
Change notice to city	7.60.050

	Section
ANIMALS (Cont'd.)	
Compliance responsibility	7.60.060
Fee—Inspection—Issuance of animal handler permit	7.60.020
No new permit after denial or revocation	7.60.045
Nontransferability	7.60.030
Renewal	7.60.040
Revocation of animal handler permit	7.60.080
Violation—Generally	7.60.070
Assault or attack	
Rabies. See herein that subject	
Business regulations and licenses	
Animal handler permit	7.06.010
Fee schedules, business license	
Veterinary office	4.05.400
Pet licensing and permits; fees; appeal process	
Breeder's permit	7.04.090
Pet fancier permit	7.04.100
Powers of animal protection services, generally	
Animal protection facility operation	7.02.010
Retailers and dealers. See herein that subject	
Charges, fees and rates	
Animal handler	
Fee—Inspection—Issuance of animal handler permit	7.60.020
Pet licensing and permits; fees; appeal process	
Fees	7.04.020
License fee—Exemptions for service animals	7.04.030
Commercial animal establishment	7.75.010 et seq.
See: COMMERCIAL ANIMAL ESTABLISHMENT	
Confine or restrain	
Pets general welfare; neglect; cruelty	
Transportation of animals	7.06.080
Vehicle confinement	7.06.070
Rabies	
Biting animal—Confinement	7.50.030
Rabies suspect—Confinement and release	7.50.040
Damage, defacement, destruction or injury	
Pets general welfare; neglect; cruelty	
Injury by vehicles—Motorist responsibility	7.06.190
Injury, cruelty and overwork	7.06.090
Rabies	
Rabies suspect—Impoundment—Destruction	7.50.050
Dangerous animals	7.20.010 et seq.
See: DANGEROUS ANIMALS	
Definitions	7.01

	Section
ANIMALS (Cont′d.)	
Enforcement provisions	
Administrative fine	7.90.070
Animal protection services revolving account	7.90.050
Appeal of administrative enforcement actions	7.90.020
Appeal of revocation of breeder, animal hander, animal establishment, commercial animal establishment, pet fancier, and mobile animal business permit procedure	7.90.030
Criminal proceedings and contents of criminal citation	7.90.040
General provisions	7.90.010
Purpose of administrative fines	7.90.060
Fines, forfeitures and other penalties	
Animal handler	
Violation—Generally	7.60.070
Enforcement provisions	
Administrative fine	7.90.070
Purpose of administrative fines	7.90.060
Impoundment	
Animals running at large	7.30.010
Found animal reporting	7.30.030
Hearing regarding animal impounded for cruelty	7.30.045
Impoundment of animals not running at large	7.30.020
Lost animal reporting	7.30.035
Rabies	
Rabies suspect—Impoundment—Destruction	7.50.050
Release of household pet or livestock—Basic conditions	7.30.040
Release of pet—Rabies suspicion	7.30.050
Licenses and permits	
Animal handler. See herein that subject	
Pet licensing and permits; fees; appeal process. See herein that subject	
Managed care of community cats	
Community cat colonies	7.15.020
Community cat colony caregiver duties	7.15.030
Definitions	7.15.010
Disposition of community cats	7.15.040
Enforcement of provisions by animal protection services	7.15.060
TNVR organization registration required	7.15.050
Mandatory spaying and neutering of animals	
Effective date for amendments concerning rabbits and potbellied pigs	7.10.070
Exceptions to spay/neuter requirements	7.10.020
Forfeiture	7.10.030

	Section
ANIMALS (Cont′d.)	
Mandatory spay/neuter of dogs, cats, rabbits, potbellied pigs and ferrets	7.10.010
Pet shop reporting	7.10.060
Release—Neutering or spaying	7.10.050
Unspayed/unneutered animals running at large	7.10.040
Mobile animal business	
Change notice to city	7.65.050
Compliance responsibility	7.65.060
Fee; inspection; issuance of mobile animal business permit	7.65.020
Mobile animal business permit	7.65.010
Mobile animal exhibitor requirements	7.65.065
No new permit after revocation or denial	7.65.045
Nontransferability	7.65.030
Renewal	7.65.040
Revocation of mobile animal business permit	7.65.080
Violation; generally	7.65.070
Nuisance	
Animals at large	7.08.020
Caring for animals; sanitation; nuisance	7.08.010
Disposal of dead animals	7.08.050
Noise	7.08.030
Pigeon control	7.08.040
Pet licensing and permits; fees; appeal process	
Appeal of breeder or pet fancier permit revocation	7.04.125
Appeal of permit denial	7.04.135
Breeder's permit	7.04.090
Denial of animal permit applications	7.04.130
Fees	7.04.020
Inspection—Right of entry	7.04.150
License fee—Exemptions for service animals	7.04.030
License register	7.04.070
Licensing and renewal	7.04.040
Licensing of pets—Required	7.04.010
Microchipping dogs and cats	7.04.170
No new permit after revocation or denial	7.04.160
Number of animals permitted on residential property	7.04.080
Permit application	7.04.140
Pet fancier permit	7.04.100
Receipt and tag issuance; replacement	7.04.050
Responsibility of licensing	7.04.060
Revocation of breeder or pet fancier permit	7.04.120
Vaccinations	7.04.110
Veteran, law enforcement officer and first responder adoption fee waiver program	7.04.025

	Section
ANIMALS (Cont′d.)	
Pets general welfare; neglect; cruelty	
Abandonment	7.06.040
Adequate shelter	7.06.020
Animal crushing	7.06.210
Cages, fences, tethering, pickets	7.06.100
Crating or boxing	7.06.130
Dyeing or coloring	7.06.180
Failure to respond to posted notice for violation of Chapter 7.06	7.06.050
Generally	7.06.010
Harmful substance on ground	7.06.060
Injury by vehicles—Motorist responsibility	7.06.190
Injury, cruelty and overwork	7.06.090
Intoxicated riding or driving	7.06.200
Poisoning	7.06.065
Promotional sale or gift	7.06.140
Research or medical use	7.06.150
Sale	
Age requirements	7.06.220
Breeder permit required	7.06.230
Shading	7.06.030
Transportation of animals	7.06.080
Trapping	
Disposal	7.06.120
Manner—Care while trapped	7.06.110
Use as a target for amusement	7.06.160
Vehicle confinement	7.06.070
Vehicles and traffic	
Injury by vehicles—Motorist responsibility	7.06.190
Intoxicated riding or driving	7.06.200
Vehicle confinement	7.06.070
Vehicle confinement—Generally—Open trucks	7.06.080
Powers, duties and responsibilities	
Animal handler	
Compliance responsibility	7.60.060
Pet licensing and permits; fees; appeal process	
Responsibility of licensing	7.04.060
Powers of animal control; generally. See herein that subject	
Powers of animal protection services, generally	
Animal protection facility operation	7.02.010
Authority of animal protection services	7.02.020
Euthanasia—Certification	7.02.070
Less than lethal means of capture	7.02.060
Right of entry	7.02.050

	Section
ANIMALS (Cont'd.)	
Unlawful to resist or obstruct animal protection officer	7.02.040
Violation of state law is a city misdemeanor	7.02.030
Rabies	
Animal bite record	7.50.080
Assault or attack	
Animal bite record	7.50.080
Biting animal	
Confinement	7.50.030
Report	7.50.020
Bitten animals	7.50.070
Biting animal	
Confinement	7.50.030
Home confinement	7.50.035
Report	7.50.020
Bitten animals	7.50.070
Owner to report suspicion of rabies	7.50.060
Quarantine authority generally	7.50.010
Rabies suspect—Confinement and release	7.50.040
Rabies suspect—Impoundment—Destruction	7.50.050
Records and reports	
Animal bite record	7.50.080
Biting animal—Report	7.50.020
Owner to report suspicion of rabies	7.50.060
Records and reports	
Impoundment	
Found animal reporting	7.30.030
Pet licensing and permits; fees; appeal process	
Receipt and tag issuance; replacement	7.04.050
Rabies. See herein that subject	
Retailers and dealers	
Notice of availability of information concerning an animal	7.80.010
Provision of written statement for dog or cat; content	7.80.020
Refund and warranty	7.80.040
Sale of dogs and cats—Microchipping	7.80.030
Safety and welfare	
Pets general welfare; neglect. See within this subheading that subject	
Powers of animal protection services, generally	
Less than lethal means of capture	7.02.060
Streets, sidewalks and other public places	
Impoundment	
Animals running at large	7.30.010
Mandatory spaying and neutering of animals	
Unspayed/unneutered animals running at large	7.10.040

	Section
ANIMALS (Cont'd.)	
Nuisance	
Animals at large	7.08.020
Vehicles and traffic	
Pets general welfare; neglect. See herein that subject	
Vicious animals	7.25.010 et seq.
See: VICIOUS ANIMALS	
Wild and exotic animals; reptiles; non-domesticated companion animals; animal exhibitors	7.40.010 et seq.
See: WILDLIFE	
ANTENNAS. See: TOWERS AND ANTENNAS	
APPEALS	
Animals	
Enforcement provisions	
Appeal of administrative enforcement actions	7.90.020
Appeal of revocation of breeder, animal hander, animal establishment, commercial animal establishment, pet fancier, and mobile animal business permit procedure	7.90.030
Pet licensing and permits; fees; appeal process	7.04.140
Building and fire safety administrative code	15.01.085 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Door-to-door solicitors, peddlers and canvassers	
Appeals; judicial review	4.12.150
Fire code	
Appeals and relief from regulations	15.32.090
Mobile food vendors	
Right of appeal	4.72.160
Parades and public assemblies	
Right of appeal	8.11.250
Property maintenance code	15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE	
Reflexology	
Appeals—Judicial review	4.85.170
Sexually oriented businesses	
Right of appeal	4.110.310
Sidewalk and open-air vendors	
Enforcement	
Appeal rights	4.75.150
Special events	
Right of appeal	8.10.220

	Section
APPEALS (Cont'd.)	
Stormwater regulations	
Appeal of notice of violation	13.04.190
Enforcement measures after appeal	13.04.200
Streets, sidewalks and other public places	
Construction, maintenance and repair of sidewalk, transition strips, and medians	
Appeal hearing—Determination by council	11.06.100
Appeal procedure	11.06.080
Necessity for remedial action	11.06.090
Teenage dancehalls—nightclubs	
Right of appeal	4.60.140
Vehicles and traffic	
Charitable solicitations while standing on median strip or sidewalk	
Right of appeal and judicial review	10.34.110
APPOINTMENTS AND REMOVALS	
Emergency management	
Emergency management coordinator	
Appointment and authority	2.24.020
Emergency management council	
Created—members	2.24.040
ARCHITECTURE	
Business regulations and licenses	
Fee schedules, business license	
Architectural firm	4.05.135
Property maintenance code	
General property maintenance standards	
Maintenance of swimming and architectural pools and ponds	15.12.030.G
AREA	
Property maintenance code	
Residential buildings and structures maintenance standards	
Room dimensions	
Floor area	15.12.050.C.3
ARRESTS	
Graffiti	
Reward for information leading to identification, apprehension or conviction	8.85.060
Vehicles and traffic	10.64.010 et seq.
See: VEHICLES AND TRAFFIC	

	Section
ASSAULT OR ATTACK	
Animals	7.50.020 et seq.
See: ANIMALS	
Dangerous animals	7.20.010 et seq.
See: DANGEROUS ANIMALS	
ASSIGN OR TRANSFER	
Alarm systems	
Application for electrical permit required—permit not assignable or transferable	4.18.200
License	
Corporation—partnerships—associations—changes in membership	4.18.120
Animal establishments	
Permits	
Nontransferability, posting	7.70.060
Animals	
Animal handler	
Nontransferability	7.60.030
Blasting regulations	
Permits	
Non-transferable	15.33.120.E
Door-to-door solicitors, peddlers and canvassers	
Transfer prohibited	4.12.080
Gambling	
Regulations and licenses	
License	
Corporation—limited liability corporation—partnership—association—changes in membership	4.32.140
Permit—transfer or lease—council approval required	4.32.160
Massage establishments and independent massage therapists	
License	
Ownership—changes in membership	4.84.110
Sale or transfer or change of location	4.84.160
Medical marijuana regulations and licenses	
Transfer of license, ownership interest and changes in business control—council approval required	4.116.150
Mobile food vendors	
Transfer prohibited	4.72.120
Pawnbrokers	
License	
Transfer or assignment—council approval required	4.64.080
Property maintenance code	
Enforcement provisions	
Transfer of ownership	15.12.060.K

Section

ASSIGN OR TRANSFER (Cont'd.)
Reflexology
License
Corporation—partnerships—associations—changes in membership 4.85.050
Not transferable 4.85.090
Retail marijuana regulations and licenses
Transfer of license, ownership interest and changes in business control—council approval required 4.118.150
Secondhand dealers
License
Issuance; assignment; city council approval required; nontransferable 4.68.170
Sexually oriented businesses
License
Corporation—partnerships—limited liability companies—associations—changes in membership . 4.110.130
Teenage dancehalls—nightclubs
Transfer prohibited 4.60.100

ASTROLOGERS. See: PSYCHIC ARTS AND PRACTITIONERS

ATTACK. See: ASSAULT OR ATTACK

AUCTIONEERS. See: AUCTIONS AND AUCTIONEERS

AUCTIONS AND AUCTIONEERS
Bond required 4.08.090
Business regulations and licenses
Fee schedules, business license 4.05.145
Conditions for auction sale 4.08.130
Consignment and auction records 4.08.110
Definitions 4.08.010
Exempted sales—conditions 4.08.160
Investigation fees
Required—fees charged 4.08.040
Jewelry—special conditions 4.08.150
License
Application 4.08.050
Required—exceptions 4.08.020
Licensee and permittee responsible for the acts of employees 4.08.140
Licenses and permits
License. See herein that subject
Permit. See herein that subject
No private sale during auction 4.08.120

	Section
AUCTIONS AND AUCTIONEERS (Cont'd.)	
Permit	
Application—conditions	4.08.060
Exception	4.08.070
Fee	4.08.080
Required	4.08.030
Restriction to private places	4.08.100
AUDIO OR VIDEO RECORDINGS	
Council meetings	
Recordings or transcripts of meetings	2.04.100
Recordings or transcripts of meetings held by order of city attorney	2.04.090
Sexually oriented businesses	
Adult bookstores, adult novelty businesses, adult video stores, adult motion picture theaters, adult video arcades and commercial adult establishments—building specifications—regulations—security required	4.110.170
Video rental stores	4.102.010 et seq.
See: VIDEO RENTAL STORES	
AUDIT COMMITTEE	
City boards and commissions	2.50.305 et seq.
See: CITY BOARDS AND COMMISSIONS	
AUDITS	
Business regulations and licenses	
General business license provisions	
Businesses paying license fee on the basis of semi-annual gross revenues—penalty for underreporting—violation of provisions of this title to underreport—audits	4.04.090
City audit function	2.43.010 et seq.
See: CITY AUDIT FUNCTION	
Medical marijuana regulations and licenses	
Establishments subject to local government audit	4.116.260
Retail marijuana regulations and licenses	
Establishments subject to local government audit	4.118.260
Sexually oriented businesses	
Audit and inspection	4.110.300
AVIATION	
Business regulations and licenses	
Fee schedules, business license	
Airlines	4.05.120

Section

B

BACKGROUND CHECKS
Alcoholic beverages
Liquor—regulations and licenses
Background investigation waived, when 4.36.130
Business regulations and licenses ..... 4.03.010 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Gambling
Regulations and licenses
Background investigation
Required when 4.32.080
Waived when—burden of proof 4.32.070
Pawnbrokers
Background investigation fees 4.64.060
Records management
Citywide fee schedule for public records and document services 2.47.085
Reflexology
License
Application—background investigation 4.85.030

BALCONIES. See: AWNINGS, BALCONIES AND CANOPIES

BANKS. See: FINANCIAL INSTITUTIONS

BARBERSHOPS AND BEAUTY PARLORS
Business regulations and licenses
Fee schedules, business license
Barbershops and cosmetology establishments 4.05.175

BEAUTY PARLORS. See: BARBERSHOPS AND BEAUTY PARLORS

BEER. See: ALCOHOLIC BEVERAGES

BENEFITS, COMPENSATION AND SALARIES
Business regulations and licenses
Policy and procedure show cause, license suspension, limitation, revocation
Subpoena and compensation of witnesses 4.06.150
Civil service rules
Job descriptions and compensation
Annual pay adjustment and general increase compensation 6.03.030
Council salaries
Benefits 2.01.050
Councilmembers from wards I, II, III AND IV, salary for 2.01.010
Mayor, salary for 2.01.020

	Section
BENEFITS, COMPENSATION AND SALARIES (Cont'd.)	
Salary for councilmen and mayor—automatic increase	2.01.030
Vehicle allowance	2.01.040
Municipal court judge salary	
Benefits	2.05.030
Professional allowance	2.05.031
Salary for municipal court judge	
Automatic increase	
Salary increase	2.05.020
Generally	2.05.010
BINS, CONTAINERS AND OTHER RECEPTACLES	
Property maintenance code	
General property maintenance standards	
Garbage receptacles requirements	15.12.030.F
Solid waste management	5.17.080 et seq.
See: SOLID WASTE MANAGEMENT	
BLASTING REGULATIONS	
Administrative review	15.33.090
Adoption	15.33.020
Citations	15.33.080
Definitions	15.33.110
Enforcement authority	15.33.070
Inspections	15.33.060
Licenses and permits	
Non-proximate blasting permit requirements	15.33.140
Permits	15.33.120
Proximate blasting permit requirements	15.33.150
Non-proximate blasting permit requirements	15.33.140
Additional insurance	15.33.140.I
Application form	15.33.140.B
Blasting permit	15.33.140.A
Indemnification	15.33.140.J
Notification plan	15.33.140.G
Plan, blasting	15.33.140.D
Planning and development	
Notification plan	15.33.140.G
Plan, blasting	15.33.140.D
Seismograph monitoring plan	15.33.140.E
Traffic and access control plan	15.33.140.F
Proof of insurance	15.33.140.H
Certificate information required	15.33.140.H.2
General	15.33.140.H.1
Seismograph monitoring plan	15.33.140.E
Site maps and drawings	15.33.140.C

	Section
BLASTING REGULATIONS (Cont'd.)	
Traffic and access control plan	15.33.140.F
Utility notification	15.33.140.K
Notice, notification	
Non-proximate blasting permit requirements	
Notification plan	15.33.140.G
Utility notification	15.33.140.K
Proximate blasting permit requirements	
Notification plan	15.33.150.B
Penalties and other enforcement actions	15.33.100
Performance standards	15.33.130
Airblast	15.33.130.E
Blast scheduling	15.33.130.A
Fly rock	15.33.130.F
Ground vibration	15.33.130.D
Reports	15.33.130.G
Blasting report	15.33.130.G.2
Noncompliant incident report	15.33.130.G.3
Seismograph reports	15.33.130.G.1
Seismograph monitoring location(s)	15.33.130.B
Permits	15.33.120
Blasting permit required	15.33.120.B
Expiration	15.33.120.D
Fees	15.33.120.H
General	15.33.120.A
Non-transferable	15.33.120.E
Refusal to issue permit	15.33.120.C
Revocation or suspension	15.33.120.F
Suspension or revocation hearing	15.33.120.G
Planning and development	
Non-proximate blasting permit requirements. See herein that subject	
Proximate blasting permit requirements	
Notification plan	15.33.150.B
Proximate blasting permit requirements	15.33.150
Exceptions	15.33.150.E
Notification plan	15.33.150.B
Pre-blast and post-blast surveys	15.33.150.C
Post-blast survey	15.33.150.C.2
Pre-blast surveys	15.33.150.C.1
Safety precautions	15.33.150.A
Special inspections	15.33.150.D
Scope	15.33.030
Short title	15.33.010
Substantial compliance standard	15.33.040
Technical opinions and reports	15.33.050

Section

BLOCKS, LOTS AND PARCELS
Community development fees
Fee schedules, community development
Applications and services, fees for
Schedule of mapping application fees
Parcel map 18.01.030.A.3
Litter
Vacant lots, litter on 5.04.040

BLUE RIBBON COMMISSION ON EDUCATIONAL EXCELLENCE AND YOUTH OPPORTUNITY
City boards and commissions ..... 2.50.315 et seq.
See: CITY BOARDS AND COMMISSIONS

BOARD OF APPEALS
Building and fire safety administrative code
Provisions re 15.01.115
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures
Board of appeals, appeal to the 15.01.425.E
City boards and commissions ..... 2.50.320 et seq.
See: CITY BOARDS AND COMMISSIONS
Property maintenance code
Enforcement provisions
Board of appeals hearing procedures 15.12.060.O

BOARDS, COMMISSIONS AND COMMITTEES
Building and fire safety administrative code
Board of appeals 15.01.115
City audit function ..... 2.43.010 et seq.
See: CITY AUDIT FUNCTION
City boards and commissions ..... 2.50.010 et seq.
See: CITY BOARDS AND COMMISSIONS
Civil service board ..... 6.02.010 et seq.
See: CIVIL SERVICE BOARD
Emergency management
Emergency management council
Created—members 2.24.040
Powers and duties 2.24.050
Records management
Records committee 2.47.040

BOATS AND OTHER VESSELS
Noise control
Specific prohibitions
Vehicle or motorboat repairs and testing 8.84.030.H

Section

BONDS, SURETY OR PERFORMANCE
- Alarm systems
  - Bond required, new business—alternative of certificate of deposit, requirements based on actual false alarms of business—exemptions 4.18.140
- Auctions and auctioneers
  - Bond required 4.08.090
- Bonding ..... 11.10.01 et seq.
  - See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
- Building and fire safety administrative code
  - Guarantee or warranty 15.01.025
- Business regulations and licenses
  - Fee schedules, business license
    - Bail bond agency, bail enforcement agency..... 4.05.165
- City clerk: additional duties and authorizations 2.44.010
- Community development fees
  - Fee schedules, community development
    - Applications and services, fees for
      - Other community development fees
        - Hillside restoration bond fee 18.01.030.C.12
        - Landscape bond fee 18.01.030.C.13
- Pawnbrokers
  - Bond for pawnbroker 4.64.070

BOUNDARIES
- Alarm systems
  - Alarm systems business located out of local area—requirement of a resident agent..... 4.18.180
- Community development fees
  - Fee schedules, community development
    - Applications and services, fees for
      - Schedule of mapping application fees
        - Boundary line adjustment 18.01.030.A.1
- Elections
  - Ward boundaries..... 2.08.070
- Firearms, weapons and missiles
  - Unlawful discharge of firearms within city limits, exceptions 8.98.061
- Massage establishments and independent massage therapists
  - Unlawful to operate without license—outside jurisdiction—separate license required..... 4.84.030

BOWLING ALLEYS
- Business regulations and licenses
  - Fee schedules, business license 4.05.185

Section

BROKERS OR DEALERS
Business regulations and licenses ..... 4.05.125 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Pawnbrokers ..... 4.64.010 et seq.
See: PAWNBROKERS
Secondhand dealers ..... 4.68.010 et seq.
See: SECONDHAND DEALERS

BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
Access
Enforcement
Right of entry 15.01.085.A
Inspection and survey
Access, inspection 15.01.335.A
Access to inspection record, permit and approved plans 15.01.335.C
Alternate materials and methods of construction 15.01.060
Amusement and transportation system (ATS)
Certificate of operation 15.01.380
Application for renewal 15.01.380.C
Certificate posting and display 15.01.380.E
Expiration 15.01.380.B
Initial amusement and transportation system certificate of operation 15.01.380.A
Revocation 15.01.380.D
Permit and certificate of operation exemptions 15.01.160
Required, permit 15.01.180
Amusements and entertainment
Amusement and transportation system (ATS). See herein that subject
Application for amusement and transportation system (ATS) permit 15.01.195
Required amusement and transportation system inspections 15.01.375
Unsafe buildings, structures, building service equipment and ATS structures and equipment 15.01.110
Appeals
Board of appeals 15.01.115
Enforcement
Authority to disconnect building service equipment
Non-emergency disconnection
Appeals 15.01.085.D.2.b
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures 15.01.425
Application for amusement and transportation system (ats) permit 15.01.195

	Section
BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont′d.)	
Approved fabricators/manufacturers	15.01.415
Approval required	15.01.415.A
Conditional approval	15.01.415.C
One-time permit-specific approval, requirements for a	15.01.415.D
Requirements for approval	15.01.415.B
Atypical or unusual work, inspection of	15.01.395
Board of appeals	15.01.115
Liability	15.01.115.E
Limitation and scope of authority	15.01.115.C
Members	15.01.115.A
Procedures	15.01.115.B
Tests	15.01.115.D
Building official	
Quality assurance agency	
Approval by the building official required	15.01.410.A
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures	
Appeal to the building official	15.01.425.D
Building official review of hearing officer report and recommendations	15.01.425.C
Building permit	
Exemptions	15.01.130
Issuance	15.01.260
Business license required	15.01.175
Certificates, certification	
Amusement and transportation system (ATS)	
Certificate of operation	15.01.380
Permit and certificate of operation exemptions	15.01.160
Occupancy authorization. See herein that subject	
Charges, fees and rates	
Condition, suspension or revocation of approval for special inspectors, quality assurance agencies and fabricators/manufacturers	
Fees	15.01.420.D
Fee refunds	15.01.310
Fees	15.01.305
Manufactured housing submittal requirements, fees and occupancy	15.01.240
Modular commercial and residential permits, submittal requirements and fees	15.01.250
Occupancy authorization	
Fee for temporary certificate of use of occupancy	15.01.370.E
Reinspection fees	15.01.385

	Section
BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont'd.)	
Witness fees	15.01.330
Work without permits—Investigative fee	15.01.320
Combination permit	15.01.270
Condition, suspension or revocation of approval for special inspectors, quality assurance agencies and fabricators/manufacturers	15.01.420
Conditional approval	15.01.420.C
Fees	15.01.420.D
Procedures	15.01.420.A
Sanctions	15.01.420.B
Automatic revocation	15.01.420.B.2
Suspension of approval	15.01.420.B.1
Conflicting provisions	15.01.075
Contract services	15.01.100
Contractor licensing	15.01.225
Contractors	
Contractor licensing	15.01.225
Special inspections	
Subcontracted special inspection	15.01.405.E
Subcontractor registration	15.01.170
Cooperation of other officials and officers	15.01.095
Creation of enforcement agency	15.01.080
Dedicated inspection services	15.01.390
Deferred submittals	15.01.210
Definitions	15.01.040
Delegation of authority	15.01.105
Departments and other agencies of city	
Creation of enforcement agency	15.01.080
Inspection agencies	15.01.400
Quality assurance agency	15.01.410
Special inspections. See herein that subject	
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures	15.01.425
Design provisions for use with the building code	15.01.215
Electrical permit exemptions	15.01.140
Emergencies	
Emergency provisions	15.01.030
Enforcement	
Authority to disconnect building service equipment	
Emergency disconnection	15.01.085.D.1
Non-emergency disconnection	15.01.085.D.2
Emergency provisions	15.01.030

	Section
BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont'd.)	
Enforcement	15.01.085
Authority to disconnect building service equipment	15.01.085.D
Connection after order to disconnect	15.01.085.D.4
Emergency disconnection	15.01.085.D.1
Non-emergency disconnection	15.01.085.D.2
Appeals	15.01.085.D.2.b
Enforcement	15.01.085.D.2.c
Notice to serving utility	15.01.085.D.2.d
Notification	15.01.085.D.2.a
Notice, notification	
Non-emergency disconnection	
Notice to serving utility	15.01.085.D.2.d
Notification	15.01.085.D.2.a
Removing, or defacing a posted notice or interfering with the posting of a notice	15.01.085.D.3
Removing, or defacing a posted notice or interfering with the posting of a notice	15.01.085.D.3
Notice, notification	
Authority to disconnect building service equipment. See within this subheading that subject	
Occupancy violations	15.01.085.C
Right of entry	15.01.085.A
Stop work orders	15.01.085.B
Equipment and machinery	
Enforcement	
Authority to disconnect building service equipment	15.01.085.D
Existing buildings, structures, and building service equipment	15.01.035
Required building service equipment inspections	15.01.345
Required mechanical inspections	
Mechanical equipment testing	15.01.365.B
Unsafe buildings, structures, building service equipment and ATS structures and equipment	15.01.110
Examinations and tests	
Board of appeals	
Tests	15.01.115.D
Required mechanical inspections	
Mechanical equipment testing	15.01.365.B
Tests	15.01.070
Existing buildings, structures, and building service equipment	15.01.035
Additions, alterations or repairs	15.01.035.A
Building service equipment installations, existing	15.01.035.B
Maintenance	15.01.035.D

	Section
BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont'd.)	
Occupancy, existing	15.01.035.C
Expiration of plan review	15.01.315
Explosive demolitions	15.01.185
Fee refunds	15.01.310
Inspection fee refunds	15.01.310.B
Plan check fee refunds	15.01.310.A
Fees	15.01.305
Goods or services	
Contract services	15.01.100
Dedicated inspection services	15.01.390
Enforcement	
Authority to disconnect building service equipment	15.01.085.D
Existing buildings, structures, and building service equipment	15.01.035
Required building service equipment inspections	15.01.345
Unsafe buildings, structures, building service equipment and ATS structures and equipment	15.01.110
Grading permit exemptions	15.01.150
Guarantee or warranty	15.01.025
Historic buildings	15.01.055
Homeowner permittees	15.01.230
Information on plans and specifications	15.01.205
Inspection agencies	15.01.400
Inspection and survey	15.01.335
Access, inspection	15.01.335.A
Access to inspection record, permit and approved plans	15.01.335.C
Inspection approval required to proceed	15.01.335.D
Requests, inspection	15.01.335.B
Inspection of existing buildings	15.01.325
Inspections	
Atypical or unusual work, inspection of	15.01.395
Condition, suspension or revocation of approval for special inspectors, quality assurance agencies and fabricators/manufacturers	15.01.420
Dedicated inspection services	15.01.390
Fee refunds	
Inspection fee refunds	15.01.310.B
Inspection agencies	15.01.400
Inspection and survey	15.01.335
Inspection of existing buildings	15.01.325
Permit	
Expiration	
Inspections required	15.01.285.B

Section

BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont'd.)
Quality assurance agency
Employment of special inspectors 15.01.410.B
Reinspection fees 15.01.385
Required amusement and transportation system inspections 15.01.375
Required building inspections 15.01.340
Required building service equipment inspections 15.01.345
Required electrical inspections 15.01.355
Required mechanical inspections 15.01.365
Required plumbing inspections 15.01.360
Required pool and spa inspections 15.01.350
Special inspections 15.01.405
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures 15.01.425
Liability 15.01.090
Licenses and permits
Amusement and transportation system (ATS)
Permit and certificate of operation exemptions 15.01.160
Required, permit 15.01.180
Application for amusement and transportation system (ats) permit 15.01.195
Approved fabricators/manufacturers
One-time permit-specific approval, requirements for a 15.01.415.D
Building permit
Exemptions 15.01.130
Issuance 15.01.260
Business license required 15.01.175
Combination permit 15.01.270
Contractor licensing 15.01.225
Electrical permit exemptions 15.01.140
Grading permit exemptions 15.01.150
Homeowner permittees 15.01.230
Inspection and survey
Access to inspection record, permit and approved plans 15.01.335.C
Manufactured housing permits 15.01.235
Manufactured housing submittal requirements, fees and occupancy
Installation and permit requirements 15.01.240.B
Mechanical permit exemptions 15.01.145
Modular commercial and residential permits, submittal requirements and fees 15.01.250

	Section
BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont'd.)	
Moved buildings	
New site, permit requirements for	15.01.045.C
Permit requirements for moved or relocated building	15.01.045.B
Permit. See herein that subject	
Plumbing permit exemptions	15.01.135
Sign construction permit exemptions	15.01.155
Suspension or revocation of permits	15.01.300
Validity of permit	15.01.280
Work without permits—Investigative fee	15.01.320
Manufacture, manufacturing	
Approved fabricators/manufacturers	15.01.415
Condition, suspension or revocation of approval for special inspectors, quality assurance agencies and fabricators/manufacturers	15.01.420
Required pool and spa inspections	
Manufactured pools and spas	15.01.350.B
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures	15.01.425
Manufactured housing as a conditional or temporary use	15.01.245
Caretaker/security uses	15.01.245.A
Temporary residence	15.01.245.B
Manufactured housing permits	15.01.235
Manufactured housing submittal requirements, fees and occupancy	15.01.240
Fees	15.01.240.C
Installation and permit requirements	15.01.240.B
Occupancy	15.01.240.D
Submittal requirements	15.01.240.A
Mechanical permit exemptions	15.01.145
Mobile home and manufactured housing parks	15.01.255
Mobile homes and mobile home parks	
Manufactured housing as a conditional or temporary use	15.01.245
Manufactured housing permits	15.01.235
Manufactured housing submittal requirements, fees and occupancy	15.01.240
Mobile home and manufactured housing parks	15.01.255
Modular commercial and residential permits, submittal requirements and fees	15.01.250
Modifications	15.01.065

Section

BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont′d.)

Modular commercial and residential permits, submittal requirements and fees 15.01.250
Fees 15.01.250.B
Submittal requirements 15.01.250.A
Moved buildings 15.01.045
New site, permit requirements for 15.01.045.C
Permit requirements for moved or relocated building 15.01.045.B
Requirements for site demolition 15.01.045.A
Notice, notification
Enforcement. See herein that subject
Occupancy authorization 15.01.370
Certificate of occupancy (CO) 15.01.370.A
Certificates, certification
Certificate of occupancy (CO) 15.01.370.A
Content, certificate 15.01.370.H
Fee for temporary certificate of use of occupancy .. 15.01.370.E
Issuance of certificate 15.01.370.C
Posting, certificate 15.01.370.F
Revocation, certificate 15.01.370.G
Temporary certificate of occupancy 15.01.370.D
Change in use 15.01.370.B
Content, certificate 15.01.370.H
Fee for temporary certificate of use of occupancy 15.01.370.E
Issuance of certificate 15.01.370.C
Posting, certificate 15.01.370.F
Revocation, certificate 15.01.370.G
Temporary certificate of occupancy 15.01.370.D
Permit
Application 15.01.190
Denial 15.01.165
Expiration 15.01.285
Generally 15.01.285.A
Inspections required 15.01.285.B
Renewal permit
Three years from date of original permit issuance 15.01.285.E
Work commenced 15.01.285.D
Work not commenced 15.01.285.C
Extension 15.01.290
Required 15.01.125
Phased design and construction 15.01.265
Pipes, cables and conduits
Required electrical inspections
Concrete-encased electrode ground inspection 15.01.355.A
Underground electrical inspection 15.01.355.B

	Section
BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont'd.)	
Required plumbing inspections	
Underground plumbing inspection	15.01.360.B
Planning and development	
Expiration of plan review	15.01.315
Fee refunds	
Plan check fee refunds	15.01.310.A
Information on plans and specifications	15.01.205
Inspection and survey	
Access to inspection record, permit and approved plans	15.01.335.C
Retention of plans	15.01.275
Plumbing permit exemptions	15.01.135
Policies and procedures	
Board of appeals	
Procedures	15.01.115.B
Condition, suspension or revocation of approval for special inspectors, quality assurance agencies and fabricators/manufacturers	
Procedures	15.01.420.A
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures	15.01.425
Posted, posting	
Amusement and transportation system (ATS)	
Certificate of operation	
Certificate posting and display	15.01.380.E
Enforcement	
Authority to disconnect building service equipment	
Removing, or defacing a posted notice or interfering with the posting of a notice	15.01.085.D.3
Occupancy authorization	
Posting, certificate	15.01.370.F
Purpose	15.01.010
Quality assurance agency	15.01.410
Approval by the building official required	15.01.410.A
Conflict of interest	15.01.410.E
Employment of special inspectors	15.01.410.B
Engineering management	15.01.410.D
Quality management	15.01.410.C
Referenced standards	15.01.220
Reinspection fees	15.01.385
Required amusement and transportation system inspections	15.01.375

	Section
BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont'd.)	
Required building inspections	15.01.340
Final inspection	15.01.340.E
Foundation inspection	15.01.340.A
Framing inspection	15.01.340.B
Concrete, steel and masonry construction	15.01.340.B.2
Wood and light gauge metal construction	15.01.340.B.1
Insulation inspection	15.01.340.C
Lath and/or wallboard inspection	15.01.340.D
Required building service equipment inspections	15.01.345
Fire and life-safety systems performance verification	15.01.345.C
Replacement of building service equipment	15.01.345.B
Temporary connections	15.01.345.A
Required electrical inspections	15.01.355
Concrete-encased electrode ground inspection	15.01.355.A
Final electrical inspection	15.01.355.E
Other electrical inspections	15.01.355.D
Rough electrical inspection	15.01.355.C
Underground electrical inspection	15.01.355.B
Required mechanical inspections	15.01.365
Final mechanical inspection	15.01.365.C
Mechanical equipment testing	15.01.365.B
Rough mechanical inspection	15.01.365.A
Required plumbing inspections	15.01.360
Final plumbing inspection	15.01.360.D
On-site sewer inspection	15.01.360.A
Rough plumbing inspection	15.01.360.C
Underground plumbing inspection	15.01.360.B
Required pool and spa inspections	15.01.350
Concrete construction	15.01.350.A
Final inspection	15.01.350.A.4
Pre-gunite inspection	15.01.350.A.2
Pre-plaster inspection	15.01.350.A.3
Steel and bonding	15.01.350.A.1
Manufactured pools and spas	15.01.350.B
Final inspection	15.01.350.B.3
Pre-deck inspection	15.01.350.B.2
Underground utility and bonding inspection	15.01.350.B.1
Retention of plans	15.01.275
Scope	15.01.015
Sign construction permit exemptions	15.01.155
Special inspections	15.01.405
Approved special inspection personnel	15.01.405.I

	Section
BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont′d.)	
Departments and other agencies of city	
Duties and responsibilities of the quality assurance agency and special inspector	15.01.405.J
Other than a prime agency, special inspection by	15.01.405.C
Special inspection by an approved quality assurance agency	15.01.405.B
Duties and responsibilities of the quality assurance agency and special inspector	15.01.405.J
General	15.01.405.A
Other than a prime agency, special inspection by	15.01.405.C
Requests, special inspection	15.01.405.G
Special inspection by an approved quality assurance agency	15.01.405.B
Stop work orders	15.01.405.D
Subcontracted special inspection	15.01.405.E
Types of work requiring special inspection	15.01.405.H
Waiver of special inspection	15.01.405.F
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures	15.01.425
Appeal to the building official	15.01.425.D
Board of appeals, appeal to the	15.01.425.E
Building official review of hearing officer report and recommendations	15.01.425.C
Complaints	15.01.425.A
Designation of hearing officer	15.01.425.B
Standards and specifications	
Information on plans and specifications	15.01.205
Referenced standards	15.01.220
Substantial compliance standard	15.01.020
Subcontractor registration	15.01.170
Submittal of construction documents	15.01.200
Substantial compliance standard	15.01.020
Suspension or revocation of permits	15.01.300
Swimming pool, spa, or hot tub permit expiration	15.01.286
Expiration	15.01.286.A
Inspections required	15.01.286.B
Permit renewal	15.01.286.C
Temporary buildings or structures	15.01.050
Temporary buildings, structures or uses	
Manufactured housing as a conditional or temporary use	15.01.245
Occupancy authorization	
Fee for temporary certificate of use of occupancy	15.01.370.E

Section

BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE (Cont'd.)
- Temporary certificate of occupancy 15.01.370.D
- Required building service equipment inspections
  - Temporary connections 15.01.345.A
- Temporary buildings or structures 15.01.050
- Tenant or occupant
  - Enforcement
    - Occupancy violations 15.01.085.C
  - Existing buildings, structures, and building service equipment
    - Occupancy, existing 15.01.035.C
  - Manufactured housing submittal requirements, fees and occupancy 15.01.240
  - Occupancy authorization 15.01.370
- Tests 15.01.070
- Timely completion of work 15.01.295
- Title 15.01.005
- Transport, transportation
  - Amusement and transportation system (ATS). See herein that subject
  - Application for amusement and transportation system (ats) permit 15.01.195
  - Required amusement and transportation system inspections 15.01.375
  - Unsafe buildings, structures, building service equipment and ATS structures and equipment 15.01.110
- Unsafe buildings, structures, building service equipment and ATS structures and equipment 15.01.110
- Validity of permit 15.01.280
- Violations 15.01.120
- Witness fees 15.01.330
- Work without permits—Investigative fee 15.01.320
  - Fee 15.01.320.B
  - Investigation 15.01.320.A
  - Voluntary disclosure 15.01.320.C
- Writs, warrants and other legal processes
  - Enforcement
    - Authority to disconnect building service equipment
      - Connection after order to disconnect 15.01.085.D.4
    - Stop work orders 15.01.085.B
  - Special inspections
    - Stop work orders 15.01.405.D

BUILDING CODE
- Adoption by reference 15.08.010
- Code amended 15.08.020

	Section
BUILDING CODE (Cont'd.)	
Compliance required—penalty for violations	15.08.040
Effective date	15.08.050
Substantial compliance standard	15.08.030
BUILDING OFFICIAL	
Building and fire safety administrative code	15.01.410 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
BUILDINGS AND CONSTRUCTION	
Abandoned residential real property registry	15.13.010 et seq.
See: ABANDONED RESIDENTIAL REAL PROPERTY REGISTRY	
Animal establishments	
Animal housing enclosures	
Cage construction and size	7.70.080
Standards for animal facilities—generally	7.70.070
Baby changing tables in buildings accessible to the public	15.80.010
Blasting regulations	15.33.010 et seq.
See: BLASTING REGULATIONS	
Building and Fire Safety Administrative Code of Henderson, Nevada	15.01.010 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Building code	15.08.010 et seq.
See: BUILDING CODE	
Business regulations and licenses	
Fee schedules, business license	
Apartment house or apartment complex	4.05.130
Property maintenance	4.05.340
Ceilings and roofs	
Noise level reduction standards. See herein that subject	
Charges, fees and rates	
Development services schedule of fees. See herein that subject	
Communications	
Underground electric and communications utilities. See herein that subject	

	Section
BUILDINGS AND CONSTRUCTION (Cont'd.)	
Construction and excavation within right-of-way	11.02 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES	
Design and construction standards for wastewater collection systems	
Adopted	15.75.010
Development services schedule of fees	
Adoption of development services schedule of fees	15.02.010
Annual report	15.02.020
Evaluation and recommendations	15.02.030
Doors and windows	
Noise level reduction standards. See herein that subject	
Electric, electricity	
Underground electric and communications utilities. See herein that subject	
Electrical code	15.16.010 et seq.
See: ELECTRICAL CODE	
Energy conservation code	15.45.010 et seq.
See: ENERGY CONSERVATION CODE	
Fences, hedges, walls and other enclosures	
Noise level reduction standards. See herein that subject	
Fines, forfeitures and other penalties	
Temporary dwelling units	
Penalty	15.60.080
Uniform standard specifications for public works construction	
Violation—Penalty	15.52.020
Fireplaces in new construction and new fireplaces in existing construction	15.40.010
Flood control and control of drainage	
Federal emergency management flood plain maps	15.50.020
Uniform regulations	15.50.010
Floors and foundations	
Noise level reduction standards. See herein that subject	
Goods or services	
Development services schedule of fees. See herein that subject	
Heating, ventilation and air conditioning	
Noise level reduction standards. See herein that subject	

	Section
BUILDINGS AND CONSTRUCTION (Cont'd.)	
Mechanical code	15.24.010 et seq.
See: MECHANICAL CODE	
Noise control	
Noise level reduction standards. See herein that subject	
Specific prohibitions	
Building operations	8.84.030.E
Noise level reduction standards	
25 decibel noise level reduction standard	15.56.030
Ceilings	15.56.030.F
Doors	15.56.030.D
Exterior walls	15.56.030.B
Floors	15.56.030.G
General	15.56.030.A
Roofs	15.56.030.E
Ventilation	15.56.030.H
Windows	15.56.030.C
30 decibel noise level reduction standard	15.56.040
Ceilings	15.56.040.F
Doors	15.56.040.D
Exterior walls	15.56.040.B
Floors	15.56.040.G
General	15.56.040.A
Roofs	15.56.040.E
Ventilation	15.56.040.H
Windows	15.56.040.C
35 decibel noise level reduction standard	15.56.050
Ceilings	15.56.050.F
Doors	15.56.050.D
Exterior walls	15.56.050.B
Floors	15.56.050.G
General	15.56.050.A
Roofs	15.56.050.E
Ventilation	15.56.050.H
Windows	15.56.050.C
Ceilings and roofs	
25 decibel noise level reduction standard	
Ceilings	15.56.030.F
Roofs	15.56.030.E
30 decibel noise level reduction standard	
Ceilings	15.56.040.F
Roofs	15.56.040.E
35 decibel noise level reduction standard	
Ceilings	15.56.050.F

	Section
BUILDINGS AND CONSTRUCTION (Cont'd.)	
Roofs	15.56.050.E
Certification of plans	15.56.020
Doors and windows	
25 decibel noise level reduction standard	
Doors	15.56.030.D
Windows	15.56.030.C
30 decibel noise level reduction standard	
Doors	15.56.040.D
Windows	15.56.040.C
35 decibel noise level reduction standard	
Doors	15.56.050.D
Windows	15.56.050.C
Fences, hedges, walls and other enclosures	
25 decibel noise level reduction standard	
Exterior walls	15.56.030.B
30 decibel noise level reduction standard	
Exterior walls	15.56.040.B
35 decibel noise level reduction standard	
Exterior walls	15.56.050.B
Floors and foundations	
25 decibel noise level reduction standard	
Floors	15.56.030.G
30 decibel noise level reduction standard	
Floors	15.56.040.G
35 decibel noise level reduction standard	
Floors	15.56.050.G
Heating, ventilation and air conditioning	
25 decibel noise level reduction standard	
Ventilation	15.56.030.H
30 decibel noise level reduction standard	
Ventilation	15.56.040.H
35 decibel noise level reduction standard	
Ventilation	15.56.050.H
Statement of purpose	15.56.010
Planning and development	
Development services schedule of fees. See herein that subject	
Noise level reduction standards	
Certification of plans	15.56.020
Underground electric and communications utilities. See herein that subject	
Plumbing code	15.20.010 et seq.
See: PLUMBING CODE	

	Section
BUILDINGS AND CONSTRUCTION (Cont'd.)	
Property maintenance code	15.12.010 et seq.
See: PROPERTY MAINTENANCE CODE	
Public works and improvements	
Uniform standard specifications for public works construction	
Adoption	15.52.010
Violation—Penalty	15.52.020
Residential building code	15.09.010 et seq.
See: RESIDENTIAL BUILDING CODE	
Schedules, tables and graphs	
Development services schedule of fees. See herein that subject	
Sexually oriented businesses	
Adult bookstores, adult novelty businesses, adult video stores, adult motion picture theaters, adult video arcades and commercial adult establishments—building specifications—regulations—security required	4.110.170
License	
Application	
Business premises required	4.110.040
Solid waste management	
Charges	
Places of business and public buildings	5.17.180
Standards and specifications	
Design and construction standards for wastewater collection systems	
Adopted	15.75.010
Noise level reduction standards. See herein that subject	
Uniform design and construction standards (UDACS) for water distribution systems	
Adopted	15.70.010
Uniform standard specifications for public works construction	
Adoption	15.52.010
Violation—Penalty	15.52.020
Stormwater regulations	
Construction activity discharges	13.04.120
Construction site inspection program fees	13.04.260
Swimming pool code	15.44.010 et seq.
See: SWIMMING POOL CODE	

	Section
BUILDINGS AND CONSTRUCTION (Cont'd.)	
Temporary buildings, structures or uses	
Temporary dwelling units. See herein that subject	
Temporary dwelling units	
Construction trailer, temporary	15.60.050
Definitions	15.60.010—15.60.030
Generally	15.60.040
Penalty	15.60.080
Required inspection and permit	15.60.070
Security trailer, temporary	15.60.060
The City of Henderson Fire Code	15.32.010 et seq.
See: FIRE CODE	
Undergrounding utility facilities	
Definitions	15.18.020
Plans and approval	15.18.050
Purpose	15.18.010
Required; exceptions	15.18.030
Waivers	15.18.040
Uniform code for dangerous buildings abatement	15.10.010 et seq.
See: UNIFORM CODE FOR DANGEROUS BUILDINGS ABATEMENT	
Uniform design and construction standards (UDACS) for water distribution systems	
Adopted	15.70.010
Uniform standard specifications for public works construction	
Adoption	15.52.010
Violation—Penalty	15.52.020
Utility services	
Refunding regulations	
Construction specifications	14.16.030
Underground electric and communications utilities. See herein that subject	
Vehicles and traffic	
Truck routes	
Issuance of special permits for movement of buildings and other structures—conditions—applications therefor	10.60.040
Weights and measures	
Noise level reduction standards. See herein that subject	
BURNING. See: OPEN BURNING	

Section

BUSINESS REGULATIONS AND LICENSES
Alarm systems ..... 4.18.010 et seq.
See: ALARM SYSTEMS
Alternative to criminal prosecution ..... 4.07.010 et seq.
See: CRIMINAL PROSECUTION
Ambulance transportation fees
Emergency services providers 2.29.010
Animal establishments ..... 7.70.010 et seq.
See: ANIMAL ESTABLISHMENTS
Animals ..... 7.02.010 et seq.
See: ANIMALS
Auctions and auctioneers ..... 4.08.010 et seq.
See: AUCTIONS AND AUCTIONEERS
Background investigation and fees
Background investigation waived—when 4.03.027
Finding of suitability—final determination by director. 4.03.025
Investigation fee schedule 4.03.040
Investigation, suitability conditioned on—authorization for fingerprinting 4.03.010
Levels of background investigations 4.03.020
No refund of investigation fee 4.03.045
Providing false or misleading information—misdemeanor violation 4.03.047
Bond issuance for project assistance
Declaration of purpose 2.56.010
Brokers or dealers
Fee schedules, business license. See herein that subject
Building and fire safety administrative code
Modular commercial and residential permits, submittal requirements and fees 15.01.250
Charges, fees and rates
Background investigation and fees. See herein that subject
Fee schedules, business license. See herein that subject
General business license provisions. See herein that subject
City council
General business license provisions
Denial, nonrenewal, suspension, limitation and revocation of licenses 4.04.150
Commercial animal establishment ..... 7.75.010 et seq.
See: COMMERCIAL ANIMAL ESTABLISHMENT
Community development fees
Fee schedules, community development

	Section
BUSINESS REGULATIONS AND LICENSES (Cont'd.)	
Applications and services, fees for	
Fee schedule for other community development applications	
Home occupation permit	18.01.030.B.10
Complaints and grievances	
Policy and procedure show cause, license suspension, limitation, revocation. See herein that subject	
Contracts and agreements	
Fee schedules, business license	
Contract labor service	4.05.215
Contractors	4.05.220
Controlled substances	
Sale and display of narcotic and other paraphernalia. See herein that subject	
Courts	
Policy and procedure show cause, license suspension, limitation, revocation. See herein that subject	
Door-to-door solicitors, peddlers and canvassers	4.12.010 et seq.
See: DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS	
Emergency medical services	4.80.010 et seq.
See: EMERGENCY MEDICAL SERVICES	
Evidence, testimony and witnesses	
Policy and procedure show cause, license suspension, limitation, revocation. See herein that subject	
Fee schedules, business license	
Accounting firm	4.05.105
Advertising business	4.05.110
Advertising space—leasing or selling	4.05.115
Airlines	4.05.120
Alarm systems	4.05.123
Ambulance service	4.05.124
Antique dealers	4.05.125
Apartment house	4.05.130
Architectural firm	4.05.135
Astrologer	4.05.140
Auctioneer	4.05.145
Automobile leasing	4.05.150
Automobile pawnbroker	4.05.153
Automobile rental agency	4.05.155
Automobile towing service	4.05.160
Bail bond agency, bail enforcement agency	4.05.165

	Section
BUSINESS REGULATIONS AND LICENSES (Cont'd.)	
Banks, savings and loan, thrifts, trust companies	4.05.170
Barbershops and cosmetology establishments	4.05.175
Bookkeeping business	4.05.180
Bowling alley	4.05.185
Broadcasting facilities	4.05.190
Broker	4.05.195
Brokers or dealers	
Antique dealers	4.05.125
Broker	4.05.195
Car dealership—new	4.05.200
Business license summary of fees	4.05.420
Businesses not enumerated in schedule	4.05.410
Car dealership—new	4.05.200
Check cashing and financial services	4.05.203
Collection agency	4.05.205
Commodities, securities, or mutual fund business	4.05.210
Contract labor service	4.05.215
Contractors	4.05.220
Dental office	4.05.225
Designer or decorator	4.05.230
Distribution center	4.05.235
Door-to-door solicitor and peddler	4.05.237
Employment agency	4.05.240
Engineering firm	4.05.245
Finance company	4.05.250
Financial institutions	
Banks, savings and loan, thrifts, trust companies	4.05.170
Finance company	4.05.250
Mortgage lending	4.05.310
Fixed fee licenses	4.05.100
Gaming	4.05.253
Gasoline, diesel, motor vehicle fuel sales	4.05.255
Goods or services	
Accounting firm	4.05.105
Antique dealers	4.05.125
Architectural firm	4.05.135
Astrologer	4.05.140
Automobile towing service	4.05.160
Bail bond agency, bail enforcement agency	4.05.165
Bookkeeping business	4.05.180
Collection agency	4.05.205
Commodities, securities, or mutual fund business	4.05.210
Contract labor service	4.05.215
Employment agency	4.05.240
Law firm or law office	4.05.275

	Section
BUSINESS REGULATIONS AND LICENSES (Cont'd.)	
Management, marketing, or consulting service	4.05.285
Professional businesses—fees	4.05.070
Social work, behavioral therapy business	4.05.365
Gross revenues licenses	4.05.010
Group care facility	4.05.257
Hotels—motels	4.05.260
Hypnotist	4.05.265
Insurance agency or company, insurance adjusting firm	4.05.270
Inter-jurisdictional business	4.05.273
Law firm or law office	4.05.275
Lease or rent	
Advertising space—leasing or selling	4.05.115
Automobile leasing	4.05.150
Automobile rental agency	4.05.155
Liquor license origination fees and license fees	4.05.278
Locksmith and safe mechanics	4.05.280
Management, marketing, or consulting service	4.05.285
Manufactured housing setup and repair	4.05.305
Marijuana	
Distributor	4.05.289.01
Management company	4.05.289.02
Medical marijuana fees	4.05.288
Retail marijuana fees	4.05.289
Massage establishment and independent massage therapist	4.05.287
Medical office	4.05.290
Mobile food vendor	4.05.297
Mobile Home Park and/or recreational vehicle park	4.05.300
Mortgage lending	4.05.310
Motion picture or television productions	4.05.295
Novelty food vendor	4.05.313
Nurse	4.05.315
Office only	4.05.325
Pawnbroker	4.05.330
Photography and videography sales/service	4.05.333
Private investigators and related occupations	4.05.335
Professional businesses—fees	4.05.070
Property maintenance	4.05.340
Psychic arts and practitioners	
Astrologer	4.05.140
Hypnotist	4.05.265
Provisions re	4.05.345
Public utility and related services licenses	4.05.020
Publisher	4.05.350

	Section
BUSINESS REGULATIONS AND LICENSES (Cont'd.)	
Real estate business	4.05.355
Reflexology	4.05.357
Sales	
Advertising space—leasing or selling	4.05.115
Car dealership—new	4.05.200
Gasoline, diesel, motor vehicle fuel sales	4.05.255
Temporary sales or service permit	4.05.375
Schools	4.05.360
Secondhand dealer	4.05.363
Sexually oriented business	4.05.364
Social work, behavioral therapy business	4.05.365
Special event medical service	4.05.367
Surveying firm	4.05.370
Teenage dancehall—nightclub	4.05.373
Temporary sales or service permit	4.05.375
Title insurance company	4.05.380
Travel and ticket agencies	4.05.385
Utility fee—exemption—non-compliance	4.05.025
Vehicles and traffic	
Automobile leasing	4.05.150
Automobile rental agency	4.05.155
Automobile towing service	4.05.160
Car dealership—new	4.05.200
Gasoline, diesel, motor vehicle fuel sales	4.05.255
Veterinary office	4.05.400
Warehouse, storage, or self-storage business	4.05.405
Financial institutions	
Fee schedules, business license. See herein that subject	
Fines, forfeitures and other penalties	
General business license provisions	
Businesses paying license fee on the basis of semi-annual gross revenues—penalty for underreporting—violation of provisions of this title to underreport—audits	4.04.090
Penalty for violation of title	4.04.230
Policy and procedure show cause, license suspension, limitation, revocation	
Investigation and reporting of violations	4.06.020
Gambling—regulations and licenses	4.32.010 et seq.
See: GAMBLING	
General business license provisions	
Adoption of additional regulations	4.04.062
Advertising to be considered prima facie evidence of engaging in business	4.04.022

Section

BUSINESS REGULATIONS AND LICENSES (Cont'd.)

Application of other ordinances 4.04.017
Change of location—change of business name..... 4.04.120
Changes in officers or membership of licensees—corporations—limited partnerships—limited liability companies 4.04.125
Definitions 4.04.010
Director of business license— register—investigations 4.04.040
Emergency actions 4.04.205
Enforcement authority 4.04.200
False, deceptive or misleading advertising prohibited 4.04.023
Federal, state, or county regulation compliance..... 4.04.050
License
Appeal of license denial 4.04.210
Application fee 4.04.065
Contents of application forms..... 4.04.060
Delinquent; expired license 4.04.110
Denial, nonrenewal, suspension, limitation and revocation of 4.04.150
Display 4.04.130
Permit—transfer or assignment unlawful 4.04.021
Renewal..... 4.04.100
Required 4.04.020
Semiannual license 4.04.080
License fees—when refundable 4.04.085
Businesses paying license fee on the basis of semiannual gross revenues—penalty for underreporting—violation of provisions of this title to underreport—audits 4.04.090
License fee as debt 4.04.140
Origination fee—waiver..... 4.04.086
Penalties—revocation—reinstatement 4.04.115
Withdrawal of application—refund 4.04.087
License, key employees 4.04.180
Licensee's or permittee's agreement to conform to law..... 4.04.013
Penalty for violation of title..... 4.04.230
Persons exempt..... 4.04.030
Provisions related to multi-jurisdictional licenses..... 4.04.190
Remittance of fees and taxes 4.04.075
Separate license required for each place of business 4.04.070
Temporary license—privileged business 4.04.025
Hearings
Policy and procedure show cause, license suspension, limitation, revocation. See herein that subject

	Section
BUSINESS REGULATIONS AND LICENSES (Cont'd.)	
Investigations	
Background investigation and fees. See herein that subject	
Fee schedules, business license	
Private investigators and related occupations	4.05.335
General business license provisions	
Director of business license— register—investigations	4.04.040
Policy and procedure show cause, license suspension, limitation, revocation	
Investigation and reporting of violations	4.06.020
Lease or rent	
Fee schedules, business license. See herein that subject	
Liquor—regulations and licenses	4.36.010 et seq.
See: ALCOHOLIC BEVERAGES	
Massage establishments and independent massage therapists	4.84.010 et seq.
See: MASSAGE ESTABLISHMENTS AND INDEPENDENT MASSAGE THERAPISTS	
Medical marijuana regulations and licenses	4.116.010 et seq.
See: MEDICAL MARIJUANA	
Minors	
Restrictions and curfew	
Frequenting or loitering about certain places prohibited	8.08.010
Mobile food vendors	4.72.010 et seq.
See: MOBILE FOOD VENDORS	
Pawnbrokers	4.64.010 et seq.
See: PAWNBROKERS	
Policy and procedure show cause, license suspension, limitation, revocation	
Aggrieved party—petition for reconsideration	4.06.280
Attorney's fees and costs incurred by city	4.06.270
Complaint against license—determination by city attorney	4.06.040
Administrative action	4.06.041
Complaint	4.06.050
Failure of respondent to answer charges deemed admission of guilt	4.06.080
Form of answer—filing deadline	4.06.060
Hearing notice	4.06.042
Representation	4.06.070
Definitions	4.06.010

	Section
BUSINESS REGULATIONS AND LICENSES (Cont'd.)	
Division to cooperate with other regulatory agencies	4.06.030
Hearing officers	4.06.090
Appointment, qualifications, conflict of interest, disqualification	4.06.100
Appointment to list and compensation	4.06.110
Assignment to matter	4.06.120
Powers and duties	4.06.130
Hearing—time, date and place	4.06.140
Admission of evidence	4.06.200
Amendment—filing of amended pleadings	4.06.240
Burden of proof	4.06.220
Discovery	4.06.160
Failure of respondent to appear	4.06.230
Order of hearing	4.06.210
Procedure	4.06.190
Record of hearing	4.06.211
Restriction on communications	4.06.180
Security	4.06.250
Subpoena and compensation of witnesses	4.06.150
Witness—affidavit or declaration—service	4.06.170
Written decision of hearing officer	4.06.260
Investigation and reporting of violations	4.06.020
Property maintenance code	
Nonresidential buildings and structures maintenance standards	15.12.040
Psychic arts and practitioners	
Fee schedules, business license. See herein that subject	
Records and reports	
General business license provisions	
Businesses paying license fee on the basis of semi-annual gross revenues—penalty for underreporting—violation of provisions of this title to underreport—audits	4.04.090
Policy and procedure show cause, license suspension, limitation, revocation	
Investigation and reporting of violations	4.06.020
Reflexology	4.85.010 et seq.
See: REFLEXOLOGY	
Retail marijuana regulations and licenses	4.118.010 et seq.
See: RETAIL MARIJUANA	
Sale and display of narcotic and other paraphernalia	
Medical use of marijuana	
Exemption for	4.98.020

	Section
BUSINESS REGULATIONS AND LICENSES (Cont'd.)	
Minors	
Excluded	4.98.030
Public nuisance	4.98.010
Sale and display rooms	4.98.040
Sales	
Fee schedules, business license. See herein that subject	
Sale and display of narcotic and other paraphernalia. See herein that subject	
Secondhand dealers	4.68.010 et seq.
See: SECONDHAND DEALERS	
Sexually oriented businesses	4.110.020 et seq.
See: SEXUALLY ORIENTED BUSINESSES	
Sidewalk and open-air vendors	4.75.010 et seq.
See: SIDEWALK AND OPEN-AIR VENDORS	
Solid waste management	
Charges	
Places of business and public buildings	5.17.180
Storage of containers in commercial areas	5.17.150
Teenage dancehalls—nightclubs	4.60.010 et seq.
See: TEENAGE DANCEHALLS—NIGHTCLUBS	
Transient lodging and gaming taxes	4.48.010 et seq.
See: TRANSIENT LODGING AND GAMING TAXES	
Utility services	
Conservation	
Landscape material restrictions	
Additional landscape restrictions	
Nonresidential landscape restrictions	14.14.050.3.b
Nonresidential landscape restrictions	14.14.050.2
Vehicles and traffic	
Fee schedules, business license. See herein that subject	
Pedestrians' rights and duties	
Soliciting rides or business, pedestrians	10.48.090
Video rental stores	4.102.010 et seq.
See: VIDEO RENTAL STORES	

C

CABLES. See: PIPES, CABLES AND CONDUITS	
CAMPS, CAMPING	
Public peace and safety	8.37.010 et seq.
See: PUBLIC PEACE AND SAFETY	

Section

CANOPIES. See: AWNINGS, BALCONIES AND CANOPIES

CANVASSERS. See: DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS

CARNIVALS. See: CIRCUSES AND CARNIVALS

CATS. See: ANIMALS

CEILINGS AND ROOFS
Buildings and construction ..... 15.56.030 et seq.
See: BUILDINGS AND CONSTRUCTION
Property maintenance code..... 15.12.040 et seq.
See: PROPERTY MAINTENANCE CODE

CERTIFICATES, CERTIFICATION
Alarm systems
Bond required, new business—alternative of certificate of deposit, requirements based on actual false alarms of business—exemptions 4.18.140
Animals
Powers of animal protection services, generally
Euthanasia—certification..... 7.02.070
Blasting regulations
Non-proximate blasting permit requirements
Proof of insurance
Certificate information required 15.33.140.H.2
Building and fire safety administrative code ..... 15.01.160 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
Buildings and construction
Noise level reduction standards
Certification of plans 15.56.020
Elections
Vote centers 2.08.060
Records management
Citywide fee schedule for public records and document services..... 2.47.085
Reflexology
Minimum educational and certification requirements . 4.85.040
Utility services
Pretreatment regulations
Wastewater discharge authorization
Certification 14.09.030.D

Section

CESSPOOLS. See: PRIVATE SEWER SYSTEMS

CHARGES, FEES AND RATES
Alarm systems ..... 4.18.080 et seq.
See: ALARM SYSTEMS
Alcoholic beverages..... 4.36.100 et seq.
See: ALCOHOLIC BEVERAGES
Ambulance transportation fees
Ambulance service rates..... 2.29.020
Emergency services providers..... 2.29.010
Rate increases 2.29.030
Animals ..... 7.04.020 et seq.
See: ANIMALS
Auctions and auctioneers
Investigation fee; required; fees charged..... 4.08.040
Permit
Fee 4.08.080
Blasting regulations
Permits
Fees 15.33.120.H
Building and fire safety administrative code..... 15.01.240 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
Buildings and construction ..... 15.02.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Business regulations and licenses..... 4.03.010 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Community development fees..... 18.01.010 et seq.
See: COMMUNITY DEVELOPMENT FEES
Door-to-door solicitors, peddlers and canvassers
License fee..... 4.12.030
Elections
Qualifications for elective offices—filing and fees..... 2.08.050
Health and sanitation
Trees and plants
Collection of delinquent charge 5.28.050
Medical marijuana regulations and licenses..... 4.116.010 et seq.
See: MEDICAL MARIJUANA
Mobile food vendors ..... 4.72.050 et seq.
See: MOBILE FOOD VENDORS
Municipal court
Administrative fee exceptions..... 2.06.020

	Section
CHARGES, FEES AND RATES (Cont'd.)	
Parades and public assemblies	
Fees	8.11.050
Safety protection—Barricades—Costs of police protection	8.11.240
Pawnbrokers	
Background investigation fees	4.64.060
Property maintenance code	15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE	
Public peace and safety	8.01.010 et seq.
See: PUBLIC PEACE AND SAFETY	
Records management	
Citywide fee schedule for public records and document services	2.47.085
Reflexology	
License	
Fees	4.85.070
Retail marijuana regulations and licenses	4.118.010 et seq.
See: RETAIL MARIJUANA	
Secondhand dealers	4.68.130 et seq.
See: SECONDHAND DEALERS	
Sexually oriented businesses	4.110.090 et seq.
See: SEXUALLY ORIENTED BUSINESSES	
Solid waste management	5.17.160 et seq.
See: SOLID WASTE MANAGEMENT	
Special events	
Fees	8.10.050
Safety protection—barricades—cost of police protection	8.10.090
Stormwater regulations	
Construction site inspection program fees	13.04.260
Cost of abatement of the violation	13.04.210
Teenage dancehalls—nightclubs	4.60.050 et seq.
See: TEENAGE DANCEHALLS—NIGHTCLUBS	
CHARITABLE ORGANIZATIONS	
Business regulations and licenses	
General business license provisions	
Persons exempt	
Nonprofit organizations	4.04.030.C
Vehicles and traffic	10.34.010 et seq.
See: VEHICLES AND TRAFFIC	

Section

CHARTER COMMITTEE
City boards and commissions ..... 2.50.330 et seq.
See: CITY BOARDS AND COMMISSIONS

CHIEF OF POLICE
Pawnbrokers
Daily report to police chief 4.64.110

CHILDREN. See: MINORS

CHURCHES. See: RELIGIOUS ORGANIZATIONS

CITATIONS. See: WRITS, WARRANTS AND OTHER LEGAL PROCESSES

CITIZENS TRANSPORTATION ADVISORY BOARD
City boards and commissions ..... 2.50.340 et seq.
See: CITY BOARDS AND COMMISSIONS

CITY ARCHIVES AND RECORD DIVISION
Records management
City archives and records division..... 2.47.020
Disposition, records..... 2.47.070

CITY ATTORNEY
Business regulations and licenses
Policy and procedure show cause, license suspension, limitation, revocation
Complaint against license—determination by city attorney 4.06.040
Council meetings
Recordings or transcripts of meetings held by order of city attorney..... 2.04.090
Records management
Records committee 2.47.040
Registration and regulation of lobbyists
Licensed attorneys..... 2.100.040

CITY AUDIT FUNCTION
Internal Audit Department—independence. 2.43.020
Internal Audit Department—powers and Duties; Scope of Audits..... 2.43.030
Internal Audit Function—standards. 2.43.010

CITY BOARDS AND COMMISSIONS
Boards
Board of appeals..... 2.50.320
Citizens transportation advisory board..... 2.50.340
Civil service board 2.50.345
Henderson community education advisory board..... 2.50.357
Parks and recreation board..... 2.50.365

Section

CITY BOARDS AND COMMISSIONS (Cont'd.)
- Commissions
  - Arts advisory commission 2.50.395
  - Blue ribbon commission on educational excellence and youth opportunity 2.50.315
  - Planning commission 2.50.370
  - Redevelopment agency advisory commission 2.50.380
  - Senior citizens advisory commission 2.50.390
- Committees
  - Audit committee 2.50.305
  - Charter committee 2.50.330
  - Development services center advisory committee 2.50.360
- Generally
  - Applicability of general provisions 2.50.015
  - Appointments of board members 2.50.030
  - Attendance 2.50.060
  - Boards 2.50.300
  - Business cards 2.50.130
  - Bylaws and amendments 2.50.070
  - Compensation 2.50.120
  - Definition; establishment of boards; interpretation 2.50.010
  - Eligibility requirements 2.50.020
  - Meetings 2.50.100
  - Officers 2.50.080
  - Parliamentary procedures 2.50.110
  - Powers and duties 2.50.090
  - Standards of conduct 2.50.050
  - Terms of office and expirations 2.50.040

CITY CLERK. See: CLERK

CITY COUNCIL
- Alcoholic beverages
  - Liquor—regulations and licenses
    - License
      - Permit—transfer or assignment—council approval required 4.36.220
- Bond issuance for project assistance
  - Application approval—requirements 2.56.020
  - Rights reserved to the city council 2.56.030
- Business regulations and licenses ..... 4.04.150 et seq.
  - See: BUSINESS REGULATIONS AND LICENSES
- Council meetings
  - City council rules of procedure 2.04.080
  - Date and time of meetings 2.04.010
  - Executive sessions and closed meetings 2.04.060
  - Legal record of meeting 2.04.070

	Section
CITY COUNCIL (Cont'd.)	
Minutes legal record of meeting	2.04.070
Place of meetings	2.04.020
Recordings or transcripts of meetings	2.04.100
Recordings or transcripts of meetings held by order of city attorney	2.04.090
Special meetings	2.04.030
Council salaries	
Benefits	2.01.050
Councilmembers from wards I, II, III AND IV, salary for	2.01.010
Mayor, salary for	2.01.020
Salary for councilmen and mayor—automatic increase	2.01.030
Vehicle allowance	2.01.040
Elections	2.08.010 et seq.
See: ELECTIONS	
Emergency management	
Peace and order, measures to maintain	2.24.090
Gambling	
Regulations and licenses	
License	
Permit—transfer or lease—council approval required	4.32.160
License denial authority	4.32.180
Pawnbrokers	
License	
Transfer or assignment—council approval required	4.64.080
Secondhand dealers	
License	
Issuance—assignment—city council approval required—license nontransferable	4.68.170
Uniform code for dangerous buildings abatement	
City council approval required for demolition	15.10.015
CITY HALL	
Council meetings	
Place of meetings	2.04.020
CITY MANAGER. See: MANAGER	
CITY SECRETARY. See: SECRETARY	
CIVIL SERVICE BOARD	
City boards and commissions	2.50.345 et seq.
See: CITY BOARDS AND COMMISSIONS	
Meetings	6.02.020
Recusal of a board member	6.02.030
Selection and composition	6.02.010

	Section
CIVIL SERVICE RULES	
Appeals to the Civil service board	
Appeal rights to the Civil service board	6.08.010
Final decision making authority	6.08.040
Hearing—prerequisites	6.08.020
Procedures for hearing appeals	6.08.030
Disciplinary actions	
Active discipline	6.07.050
Pre-disciplinary procedures (suspensions without pay, demotions, and terminations)	6.07.040
Prohibited conduct	6.07.010
Suspension pending investigation	6.07.020
Types of disciplinary actions	6.07.030
Employment actions	
Displacement rights	6.05.040
Job abandonment	6.05.010
Lay-offs	6.05.050
Reduction-in-force procedures	6.05.030
Reinstatement list	6.05.060
Resignation or retirement	6.05.020
General provisions	
Accommodation requests	6.01.060
Amendments to the	6.01.030
Equal opportunity policy	6.01.050
Other City policies and procedures	6.01.040
Persons covered under the	6.01.020
Prohibited harassment	6.01.070
Prohibited retaliation	6.01.080
Purpose	6.01.010
Glossary	6.09.010
Job descriptions and compensation	
Annual pay adjustment and general increase compensation	6.03.030
Compensation plan	6.03.020
Job descriptions	6.03.010
Performance expectations	
Coaching and feedback	6.06.040
Employee obligations	6.06.010
Performance evaluations	6.06.020
Recognition of exceptional performance	6.06.030
Recruitment, assessment and appointment	
Application materials review and assessment process	6.04.030
Eligibility lists	6.04.040
Employment application process	6.04.020
External candidates subject to a probationary period	6.04.060

	Section
CIVIL SERVICE RULES (Cont'd.)	
Internal classification changes, promotions and the qualifying period	6.04.070
Job postings	6.04.010
Recruitment concerns/complaints regarding violations of this chapter	6.04.080
Selection, offers, and appointment of employment	6.04.050
CLAIRVOYANTS. See: PSYCHIC ARTS AND PRACTITIONERS	
CLASSES, CLASSIFICATION	
Alcoholic beverages	
Liquor—regulations and licenses	
Conditions applying to specific license classifications	4.36.040
Animal establishments	
Classification, separation and identification	7.70.150
Gambling	
Regulations and licenses	
License	
Classification—requirements and restrictions	4.32.220
CLERK	
City clerk: additional duties and authorizations	2.44.010
Elections	
Vote centers	2.08.060
Records management	
Citywide fee schedule for public records and document services	2.47.085
Records committee	2.47.040
Registration and regulation of lobbyists	
Lobbying	
Disclosure form for	
City council or planning commission communication—Time for filing	2.100.020.D
City staff communication—Time for filing	2.100.020.E
Identification	2.100.020.C
Registration	
Form for filing	2.100.020.B
Time for filing	2.100.020.A
CLOTHING, COSTUMES AND UNIFORMS	
Alcoholic beverages	
Liquor—regulations and licenses	
Licensed premises	
Costumes of male and female employees	4.36.400

	Section
CLOTHING, COSTUMES AND UNIFORMS (Cont'd.)	
Massage establishments and independent massage therapists	
Clothing requirements	4.84.140
Reflexology	
Facilities and clothing requirements	4.85.065
COASTER WHEELED DEVICES (Roller skates, skateboards, scooters, etc.)	
Public peace and safety	8.09.010 et seq.
See: PUBLIC PEACE AND SAFETY	
CODE OF ORDINANCES*	
Citations for violations	
Authorized—service	1.04.010
Failure to appear	1.04.040
Form	1.04.020
Time for appearance	1.04.030
Definitions and rules of construction	
Effect of repeal of ordinances	1.03.050
General definitions and rules of construction	1.03.010
History notes, state law references and other footnote material	1.03.030
References to Code	1.03.040
Severability	1.03.060
Title, chapter and section headings	1.03.020
Establishment and effect of code	
Certain ordinances not affected by Code	1.02.050
Code does not affect prior offenses or rights	1.02.030
Provisions deemed as continuations of existing ordinances	1.02.020
Repealed ordinances not revived	1.02.040
Supplementation of Code	1.02.060
Title	1.02.010
Penalties and remedies for code violations	
Authorized punishment; penalties	1.05.020
Definition	1.05.010
Injunctive relief	1.05.040
Other remedies	1.05.050
Separate offenses	1.05.030
CODES	
Building and fire safety administrative code	15.01.010 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	

*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

	Section
CODES (Cont'd.)	
Building code	15.08.010 et seq.
See: BUILDING CODE	
Electrical code	15.16.010 et seq.
See: ELECTRICAL CODE	
Energy conservation code	15.45.010 et seq.
See: ENERGY CONSERVATION CODE	
Establishment and effect of code	1.02.010 et seq.
See: CODE OF ORDINANCES	
Fire code	15.32.010 et seq.
See: FIRE CODE	
Mechanical code	15.24.010 et seq.
See: MECHANICAL CODE	
Plumbing code	15.20.010 et seq.
See: PLUMBING CODE	
Property maintenance code	15.12.010 et seq.
See: PROPERTY MAINTENANCE CODE	
Records management	
Citywide fee schedule for public records and document services	2.47.085
Residential building code	15.09.010 et seq.
See: RESIDENTIAL BUILDING CODE	
Swimming pool code	15.44.010 et seq.
See: SWIMMING POOL CODE	
Uniform code for dangerous buildings abatement	15.10.010 et seq.
See: UNIFORM CODE FOR DANGEROUS BUILDINGS ABATEMENT	
COLLEGES AND UNIVERSITIES	
Alcoholic beverages	
Liquor—regulations and licenses	
Clark County Community College—Henderson Campus—Nevada State College—alcoholic liquor permit	4.36.380

Section

COLLEGES AND UNIVERSITIES (Cont'd.)
Property maintenance code
Residential buildings and structures maintenance standards
Sanitation
Dwelling units, lodging houses and congregate residences, dormitories and fraternity houses 15.12.050.E.1

COMBUSTIBLES AND FLAMMABLES
Emergency management
Peace and order, measures to maintain..... 2.24.090

COMMERCIAL ANIMAL ESTABLISHMENT
Conditions relating to commercial animal establishment facilities 7.75.040
Fair consumer information 7.75.050
Generally 7.75.010
No new commercial animal establishment permits to be issued after effective date..... 7.75.020
No new permit after denial or revocation 7.75.060
Non-transferability—Posting..... 7.75.070
Penalty for violation 7.75.080
Permit required; fee—inspection—issuance of 7.75.030
Revocation of commercial animal establishment permit 7.75.085

COMMISSIONS. See: BOARDS, COMMISSIONS AND COMMITTEES

COMMITTEES. See: BOARDS, COMMISSIONS AND COMMITTEES

COMMUNICATIONS
Business regulations and licenses
Fee schedules, business license
Broadcasting facilities..... 4.05.190
Emergency management
Emergency management coordinator
Duties and responsibilities 2.24.030
Solid waste management
Telephone answering standards..... 5.17.260

COMMUNITY DEVELOPMENT
Community development fees..... 18.01.010 et seq.
See: COMMUNITY DEVELOPMENT FEES
Records management
Citywide fee schedule for public records and document services..... 2.47.085

	Section
COMMUNITY DEVELOPMENT FEES	
Fee schedules, community development	
Annual increase in fees	18.01.010
Applications and services, fees for	18.01.030
Fee schedule for other community development applications	18.01.030.B
Administrative adjustment	18.01.030.B.1
Comprehensive plan amendment	18.01.030.B.6
Conditional use permit	18.01.030.B.2
Conditional use permit, marijuana establishment	18.01.030.B.3
Conditional use permit, medical marijuana dispensary establishment	18.01.030.B.4
Conditional use permit, retail marijuana establishment	18.01.030.B.5
Design review	18.01.030.B.7
Development agreements	18.01.030.B.18
Extension of time	18.01.030.B.8
Extension of time, medical marijuana establishment	18.01.030.B.9
Home occupation permit	18.01.030.B.10
Master sign plan	18.01.030.B.11
Master streets and highway amendment	18.01.030.B.12
Temporary use permit	18.01.030.B.13
Vacation	18.01.030.B.14
Variance	18.01.030.B.15
Waiver of standards	18.01.030.B.16
Zone change	18.01.030.B.17
Other community development fees	18.01.030.C
Address number change	18.01.030.C.10
Check, zoning plan	18.01.030.C.2
Distance separation analysis map	18.01.030.C.4
Hillside restoration bond fee	18.01.030.C.12
Landscape bond fee	18.01.030.C.13
Marijuana establishment separation analysis map	18.01.030.C.5
Military recognition banner	18.01.030.C.11
Notification fee	18.01.030.C.1
Records management fee	18.01.030.C.8
Slope analysis	18.01.030.C.3
Street name change	18.01.030.C.9
Technology fee	18.01.030.C.7
Zoning verification letter	18.01.030.C.6
Schedule of mapping application fees	18.01.030.A
Boundary line adjustment	18.01.030.A.1
Final map	18.01.030.A.5
Parcel map	18.01.030.A.3
Reversionary map	18.01.030.A.2

Section

COMMUNITY DEVELOPMENT FEES (Cont'd.)
Tentative map 18.01.030.A.4
Zoning
Fee schedule for other community development applications
Zone change 18.01.030.B.17
Other community development fees
Check, zoning plan 18.01.030.C.2
Zoning verification letter 18.01.030.C.6
Supersession of old fees 18.01.020
Zoning
Applications and services, fees for. See within this subheading that subject
Schedules, tables and graphs
Fee schedules, community development. See herein that subject
Zoning
Fee schedules, community development. See herein that subject

COMPENSATION. See: BENEFITS, COMPENSATION AND SALARIES

COMPLAINTS AND GRIEVANCES
Building and fire safety administrative code
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures 15.01.425
Vehicles and traffic
Penalties and procedure on arrest
Defacing of traffic citations, warrants and complaints 10.64.010

COMPREHENSIVE PLAN
Community development fees
Fee schedules, community development
Applications and services, fees for
Fee schedule for other community development applications
Comprehensive plan amendment 18.01.030.B.6

COMPUTATION OF TIME
Stormwater regulations
Word usage and construction of language 13.04.050.D

COMPUTER SYSTEMS
Elections
Vote centers 2.08.060

Section

CONCEALMENT
Firearms, weapons and missiles ..... 8.98.060 et seq.
See: FIREARMS, WEAPONS AND MISSILES

CONDITIONAL USES
Building and fire safety administrative code
Manufactured housing as a conditional or temporary use 15.01.245
Community development fees
Fee schedules, community development
Applications and services, fees for
Fee schedule for other community development applications
Conditional use permit 18.01.030.B.2
Conditional use permit, marijuana establishment 18.01.030.B.3
Conditional use permit, medical marijuana dispensary establishment 18.01.030.B.4
Conditional use permit, retail marijuana establishment 18.01.030.B.5

CONDOMINIUMS. See: APARTMENTS AND CONDOMINIUMS

CONDUCT
Alarm systems
Licensee responsible for the acts of employees 4.18.150
Alcoholic beverages ..... 4.36.320 et seq.
See: ALCOHOLIC BEVERAGES
Ethical standards for public servants
Prohibited conduct 2.40.040
Gambling
Regulations and licenses
Grounds for disciplinary action 4.32.330
Indecent conduct ..... 8.60.050 et seq.
See: PROSTITUTION AND INDECENT CONDUCT
Mobile food vendors
Licensee responsible for the acts of employees 4.72.140
Parades and public assemblies
Public conduct during parades or public assemblies . 8.11.210
Reflexology
Licensee responsible for the acts of employees 4.85.150
Secondhand dealers
Licensee responsible for the acts of employees 4.68.240
Sexually oriented businesses
Licensee responsible for the acts of employees 4.110.240
Sidewalk and open-air vendors
Licensee responsible for acts of employees and agents 4.75.090

Section

CONDUCT (Cont'd.)
Special events
Public conduct during special events 8.10.210
Teenage dancehalls—nightclubs
Licensee responsible for the acts of employees 4.60.120

CONDUITS. See: PIPES, CABLES AND CONDUITS

CONFIDENTIALITY AND PRIVACY
Ethical standards for public servants
Disclosure of confidential information..... 2.40.070
Gambling
Regulations and licenses
Requirements of confidentiality..... 4.32.340
Transient lodging and gaming taxes
Confidential, records to be kept by director 4.48.080
Utility services
Pretreatment regulations
Wastewater discharge authorization
Confidentiality 14.09.030.C

CONFINE OR RESTRAIN
Animal establishments
Standards for animal facilities—generally
Isolation..... 7.70.070(C)
Animals ..... 7.06.070 et seq.
See: ANIMALS
Secondhand dealers
Time period merchandise to be retained 4.68.220

CONFLICTS
Building and fire safety administrative code
Conflicting provisions..... 15.01.075
Quality assurance agency
Conflict of interest 15.01.410.E
Ethical standards for public servants
Conflicts of interest 2.40.060
Property maintenance code
Enforcement provisions
Conflict of ordinances..... 15.12.060.A
Solid waste management
No conflict..... 5.17.360
Stormwater regulations
Conflicting provisions..... 13.04.060

CONJUNCTIONS
Stormwater regulations
Word usage and construction of language..... 13.04.050.J

	Section
CONSERVATION AND PRESERVATION	
Energy conservation code	15.45.010 et seq.
See: ENERGY CONSERVATION CODE	
Records management	
City archives and records division	2.47.020
Utility services	14.14.010 et seq.
See: UTILITY SERVICES	
CONSTRUCTION. See: BUILDINGS AND CONSTRUCTION	
CONSUME, HARBOR OR POSSESS	
Animals	
Pet licensing and permits; fees; appeal process	
Number of animals permitted on residential property	7.04.080
Rabies	
Owner to report suspicion of rabies	7.50.060
Dangerous animals	
Dangerous dog declaration	7.20.020
Ownership permitted when	7.20.060
Graffiti	
Spray paint, markers and paint sticks	
Possession by minors prohibited—rebuttable presumption of no parental permission	8.85.055
Public peace and safety	
Liquor violations	
Liquor in possession of minors prohibited	8.40.030
Registration and regulation of lobbyists	
Lobbying	
Identification	2.100.020.C
Wildlife	
Wild and exotic animals; reptiles; non-domesticated companion animals; animal exhibitors	
Restrictions on keeping roosters	7.40.050
CONTAINERS. See: BINS, CONTAINERS AND OTHER RECEPTACLES	
CONTAMINANTS AND POLLUTANTS	
Stormwater regulations	
Requirements to prevent, control, and reduce storm water pollutants by the use of best management practices	13.04.150

Section

CONTAMINANTS AND POLLUTANTS (Cont'd.)
Utility services..... 14.08.010 et seq.
See: UTILITY SERVICES

CONTRACTORS
Building and fire safety administrative code..... 15.01.170 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
Business regulations and licenses
Fee schedules, business license..... 4.05.220

CONTRACTS AND AGREEMENTS
Building and fire safety administrative code
Contract services..... 15.01.100
Contractor licensing..... 15.01.225
Business regulations and licenses..... 4.05.215 et seq.
See: BUSINESS REGULATIONS AND LICENSES
City clerk: additional duties and authorizations..... 2.44.010
Emergency management..... 2.24.030 et seq.
See: EMERGENCY MANAGEMENT
Ethical standards for public servants
City contracts..... 2.40.050
Gambling
Regulations and licenses
Licensee's agreement to conform to law..... 4.32.280
Mobile food vendors
Licensee's agreement to conform to law..... 4.72.150
Stormwater regulations
Conflicting provisions
Private agreements, conflict with..... 13.04.060.C
Teenage dancehalls—nightclubs
Licensee's agreement to conform to law..... 4.60.130
Utility services..... 14.02.040 et seq.
See: UTILITY SERVICES

CONTROLLED SUBSTANCES
Business regulations and licenses..... 4.98.010 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Medical marijuana regulations and licenses..... 4.116.010 et seq.
See: MEDICAL MARIJUANA
Retail marijuana regulations and licenses..... 4.118.010 et seq.
See: RETAIL MARIJUANA

	Section
CONVENTION AND VISITORS AUTHORITY	
Transient lodging and gaming taxes	
Discount for prompt payment of convention and visitors authority transient lodging tax	4.48.050
COPY OR DUPLICATE	
Alcoholic beverages	
Liquor—regulations and licenses	
Distributing to minor—establishment of policy—copy on premises—requirement to show	4.36.340
Records management	
Citywide fee schedule for public records and document services	2.47.085
COSTUMES. See: CLOTHING, COSTUMES AND UNIFORMS	
COUNCIL. See: CITY COUNCIL	
COURTS	
Citations for violations	
Failure to appear	1.04.040
Door-to-door solicitors, peddlers and canvassers	
Appeals; judicial review	4.12.150
Mobile food vendors	
Judicial review	4.72.170
Municipal court	2.06.010 et seq.
See: MUNICIPAL COURT	
Municipal court judge salary	
Benefits	2.05.030
Professional allowance	2.05.031
Salary for municipal court judge	
Automatic increase	
Salary increase	2.05.020
Generally	2.05.010
Property maintenance code	
Enforcement provisions	
Board of appeals hearing procedures	15.12.060.O
Reflexology	
Appeals—Judicial review	4.85.170
Stormwater regulations	
Enforcement	
Civil judicial compliance	13.04.180.C
Criminal judicial compliance	13.04.180.D
Teenage dancehalls—nightclubs	
Judicial review	4.60.150

Section

COURTS (Cont'd.)
Vehicles and traffic
Charitable solicitations while standing on median strip or sidewalk
Right of appeal and judicial review..... 10.34.110

CREDITS, REBATES AND REFUNDS
Alarm systems
No refund on investigation fee 4.18.100
Withdrawal of application—refund..... 4.18.110
Animals
Retailers and dealers
Refund and warranty..... 7.80.040
Building and fire safety administrative code
Fee refunds 15.01.310
Mobile food vendors
No refund on investigation fee 4.72.060
Withdrawal of application—refund..... 4.72.070
Sexually oriented businesses
No refund on investigation fee 4.110.110
Withdrawal of application—refund..... 4.110.120
Teenage dancehalls—nightclubs
No refund on investigation fee 4.60.060
Withdrawal of application—refund..... 4.60.070
Transient lodging and gaming taxes
Discount for prompt payment of convention and visitors authority transient lodging tax 4.48.050
Utility services..... 14.16.010 et seq.
See: UTILITY SERVICES

CRIMINAL PROSECUTION
Alternative to
Collection fees..... 4.07.070
Generally 4.07.010
Notice of violation
Filing..... 4.07.040
Issuance 4.07.030
Required information..... 4.07.020
Response period 4.07.060
Response—hearings..... 4.07.050
Public nuisance abatement..... 4.07.080
Stormwater regulations 13.04.240

CULTURAL ARTS
Business regulations and licenses
General business license provisions

Section

CULTURAL ARTS (Cont'd.)
Persons exempt
Community theaters 4.04.030.B

CURBS AND GUTTERS
Vehicles and traffic
Traffic control devices
Curb markings 10.20.175

CURFEW
Emergency management
Peace and order, measures to maintain..... 2.24.090
Restrictions and curfew for minors..... 8.08.010 et seq.
See: MINORS

D

DAMAGE, DEFACEMENT, DESTRUCTION OR INJURY
Alarm systems
Operational defects to be remedied..... 4.18.260
Animals ..... 7.06.090 et seq.
See: ANIMALS
Door-to-door solicitors, peddlers and canvassers
Handbills and flyers must be securely fastened without causing damage 4.12.130
Graffiti ..... 8.85.010 et seq.
See: GRAFFITI
Parades and public assemblies
Claims for damages 8.11.120
Special events
Claims for damages 8.10.110
Vehicles and traffic
Penalties and procedure on arrest
Defacing of traffic citations, warrants and complaints 10.64.010

DANCES, DANCEHALLS
Teenage dancehalls—nightclubs..... 4.60.010 et seq.
See: TEENAGE DANCEHALLS—NIGHTCLUBS

DANGEROUS ANIMALS
Appeal of dangerous declaration..... 7.20.040
Dangerous dog
Declaration..... 7.20.020
Notice of declaration; standing; impoundment..... 7.20.030
Ownership permitted when 7.20.060
Unlawful acts 7.20.050
Discovery 7.20.045
Permit revocation conditions..... 7.20.070

	Section
DANGEROUS ANIMALS (Cont'd.)	
Purpose and findings	7.20.010
DEALERS. See: BROKERS OR DEALERS	
DECISIONS, FINDINGS AND REVIEWS	
Blasting regulations	
Administrative review	15.33.090
Building and fire safety administrative code	
Expiration of plan review	15.01.315
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures	
Building official review of hearing officer report and recommendations	15.01.425.C
Civil service rules	
Recruitment, assessment and appointment	
Application materials review and assessment process	6.04.030
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Fee schedule for other community development applications	
Design review	18.01.030.B.7
Door-to-door solicitors, peddlers and canvassers	
Application review and license issuance	4.12.050
Emergency medical services	
Ambulance services	
Business license	
Review of and granting application; authorized services	4.80.137
Graffiti	
Legislative findings	8.85.010
Massage establishments and independent massage therapists	
License	
Location subject to use permit application review	4.84.040
Mobile food vendors	
Judicial review	4.72.170
Parades and public assemblies	
Consideration of application and decision	8.11.100
Reflexology	
License	
Location subject to use permit application review	4.85.060

	Section
DECISIONS, FINDINGS AND REVIEWS (Cont'd.)	
Secondhand dealers	
License	
Land use, compliance with title 19	4.68.050
Sexually oriented businesses	
License	
Required—locational requirements—use permit application review	4.110.030
Special events	
Consideration of application and decision	8.10.060
Teenage dancehalls—nightclubs	
Judicial review	4.60.150
Vehicles and traffic	
Charitable solicitations while standing on median strip or sidewalk	
Right of appeal and judicial review	10.34.110
DECKS. See: PATIOS, PORCHES AND DECKS	
DEDICATE, DEDICATION	
Building and fire safety administrative code	
Dedicated inspection services	15.01.390
DEEDS. See: TITLES AND DEEDS	
DEFACEMENT. See: DAMAGE, DEFACEMENT, DESTRUCTION OR INJURY	
DELEGATION OF AUTHORITY	
Stormwater regulations	
Word usage and construction of language	13.04.050.F
DEMOLITIONS	
Building and fire safety administrative code	
Explosive demolitions	15.01.185
Moved buildings	
Requirements for site demolition	15.01.045.A
Uniform code for dangerous buildings abatement	
City council approval required for demolition	15.10.015
DEPARTMENTS AND OTHER AGENCIES OF CITY	
Alcoholic beverages	
Liquor—regulations and licenses	
Certain license classifications must submit State of Nevada Department of Taxation application to city	4.36.055
Building and fire safety administrative code	15.01.080 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	

Section

DEPARTMENTS AND OTHER AGENCIES OF CITY (Cont'd.)
Emergency management..... 2.24.040 et seq.
See: EMERGENCY MANAGEMENT
Municipal court..... 2.06.010 et seq.
See: MUNICIPAL COURT
Records management
City archives and records division..... 2.47.020
Sexually oriented businesses
Required department inspections 4.110.160
Stormwater regulations
Word usage and construction of language
Public officials and agencies..... 13.04.050.H
Teenage dancehalls—nightclubs
Fees—further regulations
Access to governmental agents..... 4.60.090.E

DESIGN, DESIGN STANDARDS
Building and fire safety administrative code
Design provisions for use with the building code..... 15.01.215
Phased design and construction..... 15.01.265
Buildings and construction
Design and construction standards for wastewater collection systems
Adopted 15.75.010
Uniform design and construction standards (UDACS) for water distribution systems
Adopted 15.70.010
Business regulations and licenses
Fee schedules, business license
Designer or decorator..... 4.05.230
Community development fees
Fee schedules, community development
Applications and services, fees for
Fee schedule for other community development applications
Design review 18.01.030.B.7

DESIGNATE, DESIGNATION
Alcoholic beverages
Liquor—regulations and licenses
Purpose and intent—license required—issuance prohibited to designated persons 4.36.020
Building and fire safety administrative code
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures
Designation of hearing officer..... 15.01.425.B

	Section
DESIGNATE, DESIGNATION (Cont'd.)	
Public peace and safety	
Police services fees	
Designated	8.01.010
DESTRUCTION. See: DAMAGE, DEFACEMENT, DESTRUCTION OR INJURY	
DEVELOPMENT CODE	
Development code (zoning)	Ch. 19.01
DEVELOPMENT. See: PLANNING AND DEVELOPMENT	
DEVELOPMENT SERVICES CENTER	
Records management	
Citywide fee schedule for public records and document services	2.47.085
DEVELOPMENT SERVICES CENTER ADVISORY COMMITTEE	2.50.360
City boards and commissions	2.50.360 et seq.
See: CITY BOARDS AND COMMISSIONS	
DIRECTOR OF BUILDING AND FIRE SAFETY	
Health and sanitation	
Trees and plants	
Authority to order the treatment, trimming or removal of trees, plants and shrubs	5.28.020
Property maintenance code	
Enforcement provisions	
Director, authority of	15.12.060.B
DIRECTOR OF BUSINESS LICENSE	
Business regulations and licenses	
General business license provisions	
Director of business license— register—investigations	4.04.040
Enforcement authority	4.04.200
DIRECTOR OF FINANCE	
Records management	
Records committee	2.47.040
DIRECTOR OF PUBLIC WORKS	
Emergency management	
Public works director—Duties and responsibilities	2.24.100
DISABLED OR HANDICAPPED PERSONS	
Animals	
Pet licensing and permits; fees; appeal process	
License fee—Exemptions for service animals	7.04.030

Section

DISCLOSURE
Building and fire safety administrative code
Work without permits—Investigative fee
Voluntary disclosure..... 15.01.320.C
Ethical standards for public servants
Disclosure of confidential information..... 2.40.070

DISEASE. See: ILLNESS OR DISEASE

DISPLAYS, DISPLAYED
Building and fire safety administrative code
Amusement and transportation system (ATS)
Certificate of operation
Certificate posting and display..... 15.01.380.E
Business regulations and licenses..... 4.04.130 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Graffiti
Spray paint, markers and paint sticks
Display restrictions..... 8.85.050
Mobile food vendors
Exhibition of license..... 4.72.100
Secondhand dealers
Display of sign..... 4.68.200
Vehicles and traffic
Traffic control devices
Display of unauthorized signs, signals or markings 10.20.130

DISTRICTS
Alcoholic beverages
Liquor—regulations and licenses
Distributing off premises prohibited; exception for Water Street District..... 4.36.315

DOGS. See: ANIMALS

DOORS AND WINDOWS
Buildings and construction..... 15.56.030 et seq.
See: BUILDINGS AND CONSTRUCTION
Property maintenance code
Nonresidential buildings and structures maintenance standards
Interior of structures
Interior windows and doors..... 15.12.040.E.6

DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS
Appeals—Judicial review..... 4.12.150
Application review and license issuance..... 4.12.050

	Section
DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS (Cont'd.)	
Definitions	4.12.010
Denial of license	4.12.060
Entry upon posted premises unlawful	4.12.100
Handbills and flyers must be securely fastened without causing damage	4.12.130
Hours of solicitation	4.12.110
License	
Application	4.12.040
Denial or revocation	4.12.140
Exhibition	4.12.070
Fee	4.12.030
Requirements	4.12.020
Licensee responsible for acts of employees and agents	4.12.090
Licenses and permits	
Application review and license issuance	4.12.050
Denial of license	4.12.060
License. See herein that subject	
Posting on public ways, structures, vehicles, vacant premises	4.12.120
Transfer prohibited	4.12.080
DRAINAGE, DRAINS	
Animal establishments	
Standards for animal facilities	
Generally	7.70.070(J)
Buildings and construction	
Flood control and control of drainage	
Federal emergency management flood plain maps	15.50.020
Uniform regulations	15.50.010
Property maintenance code	
General property maintenance standards	
Drainage	15.12.030.D
Utility services	
Conservation	
Swimming pool, spa, and hot tub draining	14.14.090
DRILLING OR MINING	
Blasting regulations	15.33.010 et seq.
See: BLASTING REGULATIONS	
DRUGS. See: CONTROLLED SUBSTANCES	
DUPLICATE. See: COPY OR DUPLICATE	

Section

DUST, ODORS, SMOKE AND OTHER AIRBORNE PARTICLES
Blasting regulations
Performance standards
Fly rock..... 15.33.130.F
Stink bombs ..... 8.90.010 et seq.
See: STINK BOMBS
Vehicles and traffic
Miscellaneous driving rules
Gases and fumes..... 10.44.210

DUTIES. See: POWERS, DUTIES AND RESPONSIBILITIES

E

EDUCATION AND TRAINING
Animals
Pets general welfare; neglect; cruelty
Research or medical use..... 7.06.150
Business regulations and licenses
Fee schedules, business license
Schools 4.05.360
Reflexology
Minimum educational and certification requirements. 4.85.040

EGRESS. See: INGRESS, EGRESS

ELDERLY PERSONS. See: SENIOR CITIZENS

ELECTIONS
City clerk: additional duties and authorizations 2.44.010
City council
Date of entry upon duties 2.08.040
Elective officers..... 2.08.010
Qualifications for elective offices—filing and fees..... 2.08.050
Terms of office of mayor, councilmen and municipal judges elected by voters 2.08.020
Vacancies in elective offices..... 2.08.030
Ward boundaries 2.08.070
Date of entry upon duties..... 2.08.040
Elective officers 2.08.010
Mayor
Date of entry upon duties 2.08.040
Elective officers..... 2.08.010
Qualifications for elective offices—filing and fees..... 2.08.050
Terms of office of mayor, councilmen and municipal judges elected by voters 2.08.020
Vacancies in elective offices..... 2.08.030

	Section
ELECTIONS (Cont'd.)	
Municipal court judges	
Elective officers	2.08.010
Qualifications for elective offices—filing and fees	2.08.050
Terms of office of mayor, councilmen and municipal judges elected by voters	2.08.020
Vacancies in elective offices	2.08.030
Qualifications for elective offices—filing and fees	2.08.050
Terms of office of mayor, councilmen and municipal judges elected by voters	2.08.020
Vacancies in elective offices	2.08.030
Vote centers	2.08.060
Ward boundaries	2.08.070
ELECTRIC, ELECTRICITY	
Alarm systems	
Application for electrical permit required—permit not assignable or transferable	4.18.200
Animal establishments	
Standards for animal facilities—generally	
Water and electrical power	7.70.070(B)
Building and fire safety administrative code	
Electrical permit exemptions	15.01.140
Required electrical inspections	15.01.355
Buildings and construction	15.18.010 et seq.
See: BUILDINGS AND CONSTRUCTION	
Electrical code	15.16.010 et seq.
See: ELECTRICAL CODE	
Property maintenance code	15.12.040 et seq.
See: PROPERTY MAINTENANCE CODE	
Sidewalk and open-air vendors	
Electrical cords, chains, wires, or hoses	4.75.100
Utility services	14.12.010 et seq.
See: UTILITY SERVICES	
ELECTRICAL CODE	
Adoption by reference	15.16.010
Code amended	15.16.020
Compliance required—Penalty for violations	15.16.050
Effective date	15.16.060
Substantial compliance standard	15.16.040
Supervision of work	15.16.030

	Section
EMERGENCIES	
Ambulance transportation fees	
Emergency services providers	2.29.010
Building and fire safety administrative code	15.01.030 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Buildings and construction	
Flood control and control of drainage	
Federal emergency management flood plain maps	15.50.020
Cable television	2.26.070 et seq.
See: CABLE TELEVISION	
Emergency management	2.24.010 et seq.
See: EMERGENCY MANAGEMENT	
Noise control	
Specific prohibitions	
Emergency signaling devices	8.84.030.I
Property maintenance code	15.12.050 et seq.
See: PROPERTY MAINTENANCE CODE	
Solid waste management	
Emergency collections	5.17.070
Teenage dancehalls—nightclubs	
Emergency police order	4.60.160
Utility services	
Conservation	
Drought emergency	14.14.120
EMERGENCY MANAGEMENT	
City manager and emergency management coordinator, emergency powers of	2.24.080
Continuity of government	2.24.110
Contracts and agreements	
City manager and emergency management coordinator, emergency powers of	2.24.080
Emergency management coordinator	
Duties and responsibilities	2.24.030
Emergency management council	
Powers and duties	2.24.050
Peace and order, measures to maintain	2.24.090
Declaration of state of emergency	2.24.060
Definitions	2.24.010
Departments and other agencies of city	
Emergency management council	
Created—members	2.24.040
Operational emergency management organization	2.24.070

	Section
EMERGENCY MANAGEMENT (Cont'd.)	
Emergency management coordinator	
Appointment and authority	2.24.020
Duties and responsibilities	2.24.030
Emergency management council	
Created—members	2.24.040
Emergency management council	
Created—members	2.24.040
Powers and duties	2.24.050
Equipment and machinery	
City manager and emergency management coordinator, emergency powers of	2.24.080
Emergency management coordinator	
Duties and responsibilities	2.24.030
Peace and order, measures to maintain	2.24.090
Finance	
Emergency management coordinator	
Duties and responsibilities	2.24.030
Peace and order, measures to maintain	2.24.090
Manager	
City manager and emergency management coordinator, emergency powers of	2.24.080
Emergency management council	
Created—members	2.24.040
Operational emergency management organization	2.24.070
Peace and order, measures to maintain	2.24.090
Officers and employees	
City manager and emergency management coordinator, emergency powers of	2.24.080
Continuity of government	2.24.110
Operational emergency management organization	2.24.070
Operational emergency management organization	2.24.070
Peace and order, measures to maintain	2.24.090
Planning and development	
City manager and emergency management coordinator, emergency powers of	2.24.080
Emergency management coordinator	
Duties and responsibilities	2.24.030
Emergency management council	
Powers and duties	2.24.050
Powers, duties and responsibilities	
City manager and emergency management coordinator, emergency powers of	2.24.080
Emergency management coordinator	
Duties and responsibilities	2.24.030

	Section
EMERGENCY MANAGEMENT (Cont'd.)	
Emergency management council	
Powers and duties	2.24.050
Public peace and safety	
Emergency management coordinator	
Duties and responsibilities	2.24.030
Peace and order, measures to maintain	2.24.090
Public works director	
Duties and responsibilities	2.24.100
Safety and welfare	
Emergency management coordinator	
Duties and responsibilities	2.24.030
EMERGENCY MANAGEMENT COORDINATOR	
Emergency management	2.24.020 et seq.
See: EMERGENCY MANAGEMENT	
EMERGENCY MANAGEMENT COUNCIL	
Emergency management	
Emergency management council	
Created—members	2.24.040
Powers and duties	2.24.050
EMERGENCY MEDICAL SERVICES	
Air ambulance services	
Ambulance services	
Business license	
Application for; ongoing obligation	4.80.135
Failure to comply	4.80.145
Provisional	4.80.140
Required	4.80.050
Review of and granting application; authorized services	4.80.137
Financial statements	4.80.220
Inspection of financial records	4.80.230
Franchise	
Agreement content	4.80.150
Application for	4.80.120
Fee determination	4.80.070
Grant of	4.80.100
Limitation of number	4.80.090
Non-transferrable	4.80.250
Request for extension	4.80.280
Review of application	4.80.130
Revocation of	4.80.290
Franchise requirements	4.80.060
IEMS participation	4.80.295
Maximum service rates	4.80.170

	Section
EMERGENCY MEDICAL SERVICES (Cont'd.)	
Monthly reports	4.80.210
Release of records to city	4.80.200
Release of records to patient	4.80.190
Right of property not granted by franchise	4.80.110
Security deposit required	4.80.260
Service response protocol	4.80.160
Solicitation of bids	4.80.080
Submittal of reports	4.80.180
Ambulances	
Air ambulance services. See herein that subject	
Ambulance services. See herein that subject	
Animals	
Pet licensing and permits; fees; appeal process	
Veteran, law enforcement officer and first responder adoption fee waiver program	7.04.025
Chief of department	4.80.030
Confidentiality of records	4.80.240
Declaration of policy	4.80.010
Definitions	4.80.040
Franchisee and licensees bound by regulations	4.80.270
Liability insurance required	4.80.390
Licenses and permits	
Business license required	
Ambulance services	4.80.050
Special event medical services	4.80.320
Purpose of provisions	4.80.020
Special event medical services	
Penalty	4.80.297
Pre-notification of special event	4.80.355
Prior private ambulance licensure	4.80.400
Business license	
Application	4.80.340
Fee	4.80.330
Required	4.80.320
Color scheme—design	4.80.380
Cooperation during emergency	4.80.360
Failure to comply—penalty	4.80.370
Franchise not required when	4.80.300
IEMS participation	4.80.310
Transport from special events	4.80.350
EMERGENCY VEHICLES	
Vehicles and traffic	10.16.080 et seq.
See: VEHICLES AND TRAFFIC	

Section

EMPLOYEES. See: OFFICERS AND EMPLOYEES

ENCLOSURES. See: FENCES, HEDGES, WALLS AND OTHER ENCLOSURES

ENERGY CONSERVATION CODE
- Adoption by reference 15.45.010
- Code amended 15.45.020
- Compliance required—penalty for violations 15.45.040
- Effective date 15.45.050
- Substantial compliance standard 15.45.030

ENGINEERING
- Building and fire safety administrative code
  - Quality assurance agency
    - Engineering management 15.01.410.D
- Business regulations and licenses
  - Fee schedules, business license
    - Engineering firm 4.05.245

ENTERTAINMENT. See: AMUSEMENTS AND ENTERTAINMENT

ENVIRONMENT
- Solid waste management
  - Environmental surcharge 5.17.213

EQUIPMENT AND MACHINERY
- Building and fire safety administrative code ..... 15.01.035 et seq.
  - See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
- Emergency management ..... 2.24.030 et seq.
  - See: EMERGENCY MANAGEMENT
- Noise control
  - Specific prohibitions
    - Exhaust discharge 8.84.030.D
- Property maintenance code ..... 15.12.040 et seq.
  - See: PROPERTY MAINTENANCE CODE
- Utility services
  - Pretreatment regulations
    - Monitoring, wastewater discharge
      - Equipment for flow control and monitoring 14.09.050.B
- Vehicles and traffic ..... 10.44.180 et seq.
  - See: VEHICLES AND TRAFFIC

ETHICAL STANDARDS FOR PUBLIC SERVANTS
- Advisory opinions 2.40.100

	Section
ETHICAL STANDARDS FOR PUBLIC SERVANTS (Cont'd.)	
City contracts	2.40.050
Commitments in a private capacity	2.40.035
Conflicts of interest	2.40.060
Cooling-off period, lobbying and former attorneys	2.40.140
Coverage	2.40.020
Disclosure of confidential information	2.40.070
Enforcement	2.40.110
Ethics orientation	2.40.150
Gifts	2.40.045
Outside employment of city employees	2.40.080
Policy of the city	2.40.030
Political activity of city employees	2.40.090
Prohibited conduct	2.40.040
Purpose	2.40.010
Retaliation prohibited	2.40.130
Severability	2.40.160
Violations	2.40.120
EUTHANASIA	
Animals	
Powers of animal protection services, generally	
Euthanasia—certification	7.02.070
EVIDENCE, TESTIMONY AND WITNESSES	
Building and fire safety administrative code	
Witness fees	15.01.330
Gambling	
Regulations and licenses	
Background investigation	
Waived when—burden of proof	4.32.070
Property maintenance code	
Enforcement provisions	
Board of appeals hearing procedures	15.12.060.O
EXAMINATIONS AND TESTS	
Building and fire safety administrative code	15.01.070 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Noise control	
Specific prohibitions	
Vehicle or motorboat repairs and testing	8.84.030.H
Utility services	
Cross-connection control regulations	
Authorization, testing	14.08.050
Testing and maintenance	14.08.040

Section

EXCAVATIONS
Property maintenance code
General property maintenance standards
Excavations, septic tanks, and cesspools 15.12.030.I
Streets, sidewalks and other public places ..... 11.02.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

EXISTING BUILDING CODE
Adoption by Reference..... 15.11.010
Amendment to the International Existing Building Code 15.11.030
Code Amended..... 15.11.020
Compliance Required—penalty for Violations..... 15.11.050
Effective Date. 15.11.060
Substantial Compliance Standard..... 15.11.040

EXPLOSIVES
Building and fire safety administrative code
Explosive demolitions 15.01.185
Emergency management
Peace and order, measures to maintain..... 2.24.090

F

FALSE ALARMS
Alarm systems ..... 4.18.140 et seq.
See: ALARM SYSTEMS

FALSE STATEMENTS
Sexually oriented businesses
False, deceptive or misleading advertising prohibited 4.110.200

FEES. See: CHARGES, FEES AND RATES

FENCES, HEDGES, WALLS AND OTHER ENCLOSURES
Animal establishments..... 7.70.080 et seq.
See: ANIMAL ESTABLISHMENTS
Animals
Pets general welfare; neglect; cruelty
Cages, fences, tethering, pickets 7.06.100
Crating or boxing 7.06.130
Building and fire safety administrative code
Required building inspections
Framing inspection 15.01.340.B
Lath and/or wallboard inspection..... 15.01.340.D
Buildings and construction ..... 15.56.030 et seq.
See: BUILDINGS AND CONSTRUCTION

Section

FENCES, HEDGES, WALLS AND OTHER ENCLOSURES (Cont'd.)
Property maintenance code..... 15.12.030 et seq.
See: PROPERTY MAINTENANCE CODE

FINANCE
Alarm systems
Fee for false alarms—accounting, method of billing and collection..... 4.18.270
Ambulance transportation fees
Ambulance service rates..... 2.29.020
Emergency services providers..... 2.29.010
Rate increases..... 2.29.030
Bond issuance for project assistance
Application approval—requirements..... 2.56.020
Declaration of purpose..... 2.56.010
Rights reserved to the city council..... 2.56.030
Emergency management..... 2.24.030 et seq.
See: EMERGENCY MANAGEMENT
Graffiti reward and abatement account created; administrative assessment to be imposed for certain violations; use of money in account..... 8.85.070
Insurance..... 2.65.010 et seq.
See: INSURANCE
Property maintenance code
Code enforcement abatement revolving fund..... 15.12.070
Utility services..... 14.17.010 et seq.
See: UTILITY SERVICES

FINANCIAL INSTITUTIONS
Business regulations and licenses..... 4.05.170 et seq.
See: BUSINESS REGULATIONS AND LICENSES

FINDINGS. See: DECISIONS, FINDINGS AND REVIEWS

FINES, FORFEITURES AND OTHER PENALTIES
Aggressive solicitation
Penalty..... 8.94.030
Alarm systems
Violation—penalty
Alarm system user..... 4.18.300
Alarm systems businesses—licensed security and/or private patrol businesses..... 4.18.310
Animal establishments
Penalty for violation..... 7.70.200

	Section
FINES, FORFEITURES AND OTHER PENALTIES (Cont'd.)	
Blasting regulations	
Penalties and other enforcement actions	15.33.100
Building and fire safety administrative code	
Enforcement	
Occupancy violations	15.01.085.C
Violations	15.01.120
Buildings and construction	15.52.020 et seq.
See: BUILDINGS AND CONSTRUCTION	
Building code	
Compliance required—penalty for violations	15.08.040
Business regulations and licenses	4.04.090 et seq.
See: BUSINESS REGULATIONS AND LICENSES	
Citations for violations	
Authorized—service	1.04.010
Failure to appear	1.04.040
Form	1.04.020
Time for appearance	1.04.030
Electrical code	
Compliance required—Penalty for violations	15.16.050
Energy conservation code	
Compliance required—penalty for violations	15.45.040
Fire code	
Penalties	15.32.100
Firearms, weapons and missiles	
Penalty for violation	8.98.080
Gambling	
Regulations and licenses	
Violation—penalty	4.32.370
Health and sanitation	
Trees and plants	
Penalty	5.28.060
Litter	
Penalties	5.04.070
Mechanical code	15.24.010 et seq.
See: MECHANICAL CODE	
Mobile food vendors	
Penalty for violation of chapter	4.72.180
Municipal court	
Administrative fee exceptions	2.06.020
Noise control	
Penalty for violation	8.84.050

	Section
FINES, FORFEITURES AND OTHER PENALTIES (Cont'd.)	
Pawnbrokers	
Penalty for violation covering chapter 4.64 Inclusive	4.64.300
Penalties and remedies for code violations	1.05.010 et seq.
See: CODE OF ORDINANCES	
Plumbing code	
Compliance required—Penalty for violations	15.20.050
Property maintenance code	
Enforcement provisions	
General violations	15.12.060.G
Violations and remedies	15.12.060.N
Public peace and safety	8.02.010 et seq.
See: PUBLIC PEACE AND SAFETY	
Registration and regulation of lobbyists	
Violations and penalties	2.100.050
Residential building code	
Compliance required—Penalty for violations	15.09.040
Secondhand dealers	
Violation—penalty	4.68.290
Solid waste management	5.17.220 et seq.
See: SOLID WASTE MANAGEMENT	
Stink bombs	
Penalty for violation	8.90.020
Stormwater regulations	13.04.180 et seq.
See: STORMWATER REGULATIONS	
Streets, sidewalks and other public places	11.09.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES	
Swimming pool code	
Compliance required—penalty for violations	15.44.040
Teenage dancehalls—nightclubs	
Penalty for violation of chapter	4.60.170
Transient lodging and gaming taxes	
Late-payment penalty—interest	4.48.110
Uniform code for dangerous buildings abatement	
Violation—Penalty	15.10.020
Utility services	14.02.050 et seq.
See: UTILITY SERVICES	
Vehicles and traffic	10.02.020 et seq.
See: VEHICLES AND TRAFFIC	

	Section
FINGERPRINTS AND PHOTOGRAPHS	
Business regulations and licenses	
Fee schedules, business license	
Photography and videography sales/service	4.05.333
Records management	
Citywide fee schedule for public records and document services	2.47.085
FIRE CHIEF	
Citations for violations	
Authorized—service	1.04.010
FIRE CODE	
Adoption	
By reference	15.32.020
Generally	15.32.020
Appeals and relief from regulations	15.32.090
Citations	15.32.080
City of Henderson amendments	15.32.050
Code amended	15.32.030
Effective date	15.32.120
Enforcement authority	15.32.060
Penalties	15.32.100
Permit and service fee schedule	15.32.110
Short title	15.32.010
State fire marshal's regulations	15.32.070
FIRE DEPARTMENT	
Ambulance transportation fees	
Emergency services providers	2.29.010
Vehicles and traffic	
Enforcement, obedience and effect	
Authority of	
Fire department officials to direct traffic	10.16.0202
Police and fire department officials to direct traffic	10.16.0201
Enforcement authority of police and fire department officials, and other enforcement officers	10.16.0200
Obedience to police and fire department	10.16.040
FIRE MARSHAL	
Fire code	
Enforcement authority	15.32.060
FIRE PREVENTION AND PROTECTION	
Building and fire safety administrative code	15.01.010 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	

	Section
FIRE PREVENTION AND PROTECTION (Cont'd.)	
Fire code	15.32.010 et seq.
See: FIRE CODE	
Property maintenance code	15.12.040 et seq.
See: PROPERTY MAINTENANCE CODE	
Public peace and safety	8.36.010 et seq.
See: PUBLIC PEACE AND SAFETY	
Stormwater regulations	
Industrial activity discharges	
Renewable fire permit required	13.04.130.B
Utility services	
Water regulations	
Service line requirements	
Fire service connections	14.03.010.C
FIRE SAFETY ADMINISTRATIVE CODE. See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
FIRE SAFETY DIVISION	
Blasting regulations	
Enforcement authority	15.33.070
Fire code	
Enforcement authority	15.32.060
FIREARMS, WEAPONS AND MISSILES	
Bludgeoning devices	8.98.075
Emergency management	
Peace and order, measures to maintain	2.24.090
Imitation firearm	8.98.076
Pawnbrokers	
Restriction on knives and razors	4.64.200
Penalty for violation	8.98.080
Throwing stones and missiles prohibited	8.98.060
Unlawful discharge of firearms within city limits, exceptions	8.98.061
FIREPLACES	
Buildings and construction	
Fireplaces in new construction and new fireplaces in existing construction	15.40.010
FIREWORKS	
Public peace and safety	
Dangerous fireworks prohibited	8.32.010
Penalty for violation	8.32.020

Section

FISHING, HUNTING OR TRAPPING
Animals
Pets general welfare; neglect; cruelty
Trapping
Disposal 7.06.120
Manner—care while trapped 7.06.110

FLAMMABLES. See: COMBUSTIBLES AND FLAMMABLES

FLOODS, FLOODING
Buildings and construction
Flood control and control of drainage
Federal emergency management flood plain maps 15.50.020
Uniform regulations 15.50.010

FLOORS AND FOUNDATIONS
Building and fire safety administrative code
Required building inspections
Foundation inspection 15.01.340.A
Buildings and construction ..... 15.56.030 et seq.
See: BUILDINGS AND CONSTRUCTION
Property maintenance code..... 15.12.040 et seq.
See: PROPERTY MAINTENANCE CODE

FOOD AND FOOD SERVICES
Business regulations and licenses
Fee schedules, business license
Novelty food vendor..... 4.05.313
Mobile food vendors ..... 4.72.010 et seq.
See: MOBILE FOOD VENDORS
Utility services
Pretreatment regulations
Grease interceptors 14.09.080

FORFEITURES. See: FINES, FORFEITURES AND OTHER PENALTIES

FOUNDATIONS. See: FLOORS AND FOUNDATIONS

FOWL. See: ANIMALS

FRANCHISES
Ambulance services..... 4.80.060 et seq.
See: EMERGENCY MEDICAL SERVICES

FRONTAGE
Utility services

Section

FRONTAGE (Cont'd.)
Fees, rates and charges
Main frontage fees 14.18.090

G

GAMBLING
Charges, fees and rates
Regulations and licenses. See within this subheading that subject
Credits, rebates and refunds
Regulations and licenses. See herein that subject
Investigations
Regulations and licenses. See herein that subject
Licenses and permits
Regulations and licenses. See herein that subject
Reflexology
Alcoholic liquors and gaming prohibited 4.85.140
Regulations and licenses
Appeals; judicial review 4.32.380
Background investigation
Required when 4.32.080
Waived when—burden of proof 4.32.070
Charges, fees and rates
City license fees—no proration 4.32.310
Fees—in addition to state and county fees 4.32.290
Previously investigated—no fee 4.32.130
City license fees—no proration 4.32.310
Conditions applying to certain types of gaming 4.32.040
Credits, rebates and refunds
Withdrawal of application—refund 4.32.120
Declaration of policy 4.32.020
Definitions 4.32.010
Fees—in addition to state and county fees 4.32.290
Grounds for disciplinary action 4.32.330
Investigations
Background investigation
Required when 4.32.080
Waived when—burden of proof 4.32.070
Previously investigated—no fee 4.32.130
License
Classification—requirements and restrictions 4.32.220
Corporation—limited liability corporation—partnership—association—changes in membership ... 4.32.140
Fees; non-refundable 4.32.300
Issuance
Discontinuance of use 4.32.360

Section

GAMBLING (Cont'd.)
Nonconforming uses..... 4.32.350
Non-operational status; responsibility of licensee to maintain use 4.32.360
Prohibited to certain persons..... 4.32.050
Penalties; revocation; reinstatement..... 4.32.315
Permit—transfer or lease—council approval required..... 4.32.160
Required 4.32.030
Subject to limit 4.32.060
License denial authority..... 4.32.180
Licensee's agreement to conform to law 4.32.280
Previously investigated—no fee 4.32.130
Private games excluded 4.32.230
Requirements of confidentiality 4.32.340
Withdrawal of application—refund..... 4.32.120
Rules and regulations
Regulations and licenses. See herein that subject
Sexually oriented businesses
Gambling not permitted 4.110.270
Transient lodging and gaming taxes..... 4.48.010 et seq.
See: TRANSIENT LODGING AND GAMING TAXES

GAMING TAXES. See: TRANSIENT LODGING AND GAMING TAXES

GARAGES. See: CARPORTS AND GARAGES

GARBAGE. See: SOLID WASTE MANAGEMENT

GIFTS AND GRATUITIES
Animals
Pets general welfare; neglect; cruelty
Promotional sale or gift 7.06.140

GOLF, GOLF COURSES
Utility services
Conservation
Golf courses..... 14.14.040
Vehicles and traffic
Operation of golf carts on streets
Where permitted..... 10.62.010

GOODS OR SERVICES
Ambulance transportation fees
Ambulance service rates..... 2.29.020
Emergency services providers..... 2.29.010
Rate increases 2.29.030

	Section
GOODS OR SERVICES (Cont'd.)	
Building and fire safety administrative code	15.01.035 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Buildings and construction	15.02.010 et seq.
See: BUILDINGS AND CONSTRUCTION	
Emergency medical services	4.80.010 et seq.
See: EMERGENCY MEDICAL SERVICES	
Business regulations and licenses	4.05.070 et seq.
See: BUSINESS REGULATIONS AND LICENSES	
Citations for violations	
Authorized—service	1.04.010
Community development fees	
Fee schedules, community development	
Applications and services, fees for	18.01.030
Emergency management	
City manager and emergency management coordinator, emergency powers of	2.24.080
Peace and order, measures to maintain	2.24.090
Emergency medical services	4.80.010 et seq.
See: EMERGENCY MEDICAL SERVICES	
Massage establishments and independent massage therapists	4.84.010 et seq.
See: MASSAGE ESTABLISHMENTS AND INDEPENDENT MASSAGE THERAPISTS	
Pawnbrokers	4.64.010 et seq.
See: PAWNBROKERS	
Public peace and safety	8.01.010 et seq.
See: PUBLIC PEACE AND SAFETY	
Records management	
Citywide fee schedule for public records and document services	2.47.085
Reflexology	4.85.010 et seq.
See: REFLEXOLOGY	
Secondhand dealers	4.68.010 et seq.
See: SECONDHAND DEALERS	
Solid waste management	
Customer service standards	5.17.250
Utility services	14.01.010 et seq.
See: UTILITY SERVICES	
Video rental stores	4.102.010 et seq.
See: VIDEO RENTAL STORES	

	Section
GRADES, GRADING	
Building and fire safety administrative code	
Grading permit exemptions	15.01.150
GRAFFITI	
City victim	8.85.080
Definitions	8.85.020
Graffiti reward and abatement account created; administrative assessment to be imposed for certain violations; use of money in account	8.85.070
Imposition of civil liability on parent(s) or guardian having custody and control of minor child who violates HMC section 8.85.030	8.85.090
Legislative findings	8.85.010
Minors	
Imposition of civil liability on parent(s) or guardian having custody and control of minor child who violates HMC section 8.85.030	8.85.090
Spray paint, markers and paint sticks	
Possession by minors prohibited—rebuttable presumption of no parental permission	8.85.055
Sale to minors prohibited	8.85.040
Penalty for violation	8.85.100
Prohibited	8.85.030
Reward for information leading to identification, apprehension or conviction	8.85.060
Spray paint, markers and paint sticks	
Display restrictions	8.85.050
Possession by minors prohibited—rebuttable presumption of no parental permission	8.85.055
Sale to minors prohibited	8.85.040
GRANTS	
Emergency management	
Emergency management coordinator	
Duties and responsibilities	2.24.030
GRAPHS. See: SCHEDULES, TABLES AND GRAPHS	
GRATUITIES. See: GIFTS AND GRATUITIES	
GRIEVANCES. See: COMPLAINTS AND GRIEVANCES	
GUTTERS. See: CURBS AND GUTTERS	
H	
HANDICAPPED PERSONS. See: DISABLED OR HANDICAPPED PERSONS	

	Section
HARASSMENT	
Aggressive solicitation	
Prohibited acts	8.94.020
HARBOR. See: CONSUME, HARBOR OR POSSESS	
HARDSHIP	
Parades and public assemblies	
Indigency	8.11.150
HAZARDS, HAZARDOUS	
Property maintenance code	15.12.030 et seq.
See: PROPERTY MAINTENANCE CODE	
Solid waste management	
Solid and hazardous waste a nuisance	5.17.270
Uniform code for dangerous buildings abatement	15.10.010 et seq.
See: UNIFORM CODE FOR DANGEROUS BUILDINGS ABATEMENT	
Vehicles and traffic	
Truck routes	
Parking of vehicles laden with hazardous materials	10.60.060
HEALTH AND SANITATION	
Animal establishments	7.70.030 et seq.
See: ANIMAL ESTABLISHMENTS	
Animals	
Managed care of community cats	7.15.010 et seq.
Nuisance	
Caring for animals; sanitation; nuisance	7.08.010
Litter	5.04.010 et seq.
See: LITTER	
Parades and public assemblies	
Sanitation facilities required	8.11.080
Property maintenance code	15.12.030 et seq.
See: PROPERTY MAINTENANCE CODE	
Solid waste management	5.17.005 et seq.
See: SOLID WASTE MANAGEMENT	
Special events	
Sanitation facilities required	8.10.150
Teenage dancehalls—nightclubs	
Fees—further regulations	
Sanitary requirements	4.60.090.H
Trees and plants	
Action upon noncompliance	5.28.040

Section

HEALTH AND SANITATION (Cont'd.)
Authority to order the treatment, trimming or removal of trees, plants and shrubs 5.28.020
Collection of delinquent charge 5.28.050
Duties of abutting landowners..... 5.28.010
Penalty..... 5.28.060
Procedure upon order to treat, trim or remove 5.28.030

HEARING OFFICER
Building and fire safety administrative code
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures
Building official review of hearing officer report and recommendations 15.01.425.C
Designation of hearing officer..... 15.01.425.B
Property maintenance code..... 15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE

HEARINGS
Blasting regulations
Permits
Suspension or revocation hearing 15.33.120.G
Building and fire safety administrative code
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures 15.01.425
Business regulations and licenses..... 4.06.140 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Citations for violations
Time for appearance 1.04.030
Property maintenance code
Enforcement provisions
Board of appeals hearing procedures 15.12.060.O
Violations and remedies
Abatement remedy
Hearing, abatement report 15.12.060.N.3.d
Streets, sidewalks and other public places
Construction, maintenance and repair of sidewalk, transition strips, and medians
Appeal hearing—Determination by council..... 11.06.100
Penalty for violation of title
Notice of violation—Response—Hearings..... 11.09.060

HEATING, VENTILATION AND AIR CONDITIONING
Animal establishments

	Section
HEATING, VENTILATION AND AIR CONDITIONING (Cont'd.)	
Standards for animal facilities—generally	
Heating	7.70.070(G)
Ventilation	7.70.070(H)
Building and fire safety administrative code	
Required mechanical inspections	15.01.365
Buildings and construction	15.56.030 et seq.
See: BUILDINGS AND CONSTRUCTION	
Mechanical code	15.24.010 et seq.
See: MECHANICAL CODE	
Property maintenance code	15.12.040 et seq.
See: PROPERTY MAINTENANCE CODE	
HEDGES. See: FENCES, HEDGES, WALLS AND OTHER ENCLOSURES	
HEIGHT	
Property maintenance code	
Residential buildings and structures maintenance standards	
Room dimensions	
Ceiling heights	15.12.050.C.2
HENDERSON COMMUNITY EDUCATION ADVISORY BOARD	
City boards and commissions	2.50.357 et seq.
See: CITY BOARDS AND COMMISSIONS	
HIGHWAYS	
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Fee schedule for other community development applications	
Master streets and highway amendment	18.01.030.B.12
HISTORIC, HISTORICAL	
Building and fire safety administrative code	
Historic buildings	15.01.055
Property maintenance code	
General provisions	
Application—Conformity required	
Historic buildings	15.12.010.C.3

Section

HOME OCCUPATIONS
Community development fees
Fee schedules, community development
Applications and services, fees for
Fee schedule for other community development applications
Home occupation permit 18.01.030.B.10

HOOTING. See: YELLING, SHOUTING AND HOOTING

HOSPITALS
Noise control
Specific prohibitions
Noises near schools, hospitals, churches, etc. 8.84.030.F

HOTELS AND MOTELS
Business regulations and licenses
Fee schedules, business license 4.05.260
Public peace and safety
Hotel registers
Penalty for violation 8.28.020
Public register required—inspection 8.28.010
Solid waste management
Charges
Motels and mobile home parks 5.17.170
Transient lodging and gaming taxes ..... 4.48.010 et seq.
See: TRANSIENT LODGING AND GAMING TAXES

HOURS
Council meetings
Date and time of meetings 2.04.010
Door-to-door solicitors, peddlers and canvassers
Hours of solicitation 4.12.110
Parades and public assemblies
Restrictions on streets and times for event 8.11.070
Special events
Restriction on streets and times for event 8.10.070
Waiver of time limitations 8.10.170
Teenage dancehalls—nightclubs
Fees—further regulations
Hours of operation 4.60.090.B
Vehicles and traffic
Charitable solicitations while standing on median strip or sidewalk
Permit
Hours of use 10.34.080

Section

HOUSING
Animal establishments
Conditions relating to animal facilities..... 7.70.030(A)
Standards for animal facilities—generally..... 7.70.070(A)

HUNTING. See: FISHING, HUNTING OR TRAPPING

I

ICE. See: SNOW AND ICE

IDENTIFICATION
Alarm systems
License
Applicant—personal information required 4.18.070
Animal establishments
Classification, separation and identification..... 7.70.150
Animals
Pet licensing and permits; fees; appeal process
Receipt and tag issuance; replacement..... 7.04.050
Graffiti
Reward for information leading to identification, apprehension or conviction..... 8.85.060
Pawnbrokers
Identification of business required..... 4.64.190
Registration and regulation of lobbyists
Lobbying
Provisions re 2.100.020.C
Registration
Form for filing..... 2.100.020.B

IMPOUNDMENT
Animals ..... 7.30.010 et seq.
See: ANIMALS
Vehicles and traffic
Enforcement, obedience and effect
Vehicles involved in accident may be impounded .. 10.16.114

IMPROVEMENTS. See: PUBLIC WORKS AND IMPROVEMENTS

INDECENT CONDUCT. See: PROSTITUTION AND INDECENT CONDUCT

INDEMNIFICATION
Blasting regulations
Non-proximate blasting permit requirements
Indemnification..... 15.33.140.J
Bond issuance for project assistance
Application approval—requirements 2.56.020

Section

INDEMNIFICATION (Cont'd.)
Property maintenance code
Enforcement provisions
Indemnification 15.12.060.E

INDEPENDENT MASSAGE THERAPISTS. See: MASSAGE ESTABLISHMENTS AND INDEPENDENT MASSAGE THERAPISTS

INDUSTRY, INDUSTRIAL
Bond issuance for project assistance
Declaration of purpose 2.56.010
Stormwater regulations
Industrial activity discharges 13.04.130

INGRESS, EGRESS
Property maintenance code ..... 15.12.040 et seq.

See: PROPERTY MAINTENANCE CODE

INJURY. See: DAMAGE, DEFACEMENT, DESTRUCTION OR INJURY

INSECTS. See: PEST CONTROL

INSPECTIONS
Alarm systems 4.18.210
Animals
Animal handler
Fee—Inspection—Issuance of an animal handler permit 7.60.020
Commercial animal establishment
Permit required; fee—inspection—issuance of 7.75.030
Establishments
Fee—Inspection—Issuance of 7.70.020
Mobile animal business
Fee; inspection; issuance of mobile animal business permit 7.65.020
Pet licensing and permits; fees; appeal process
Inspection—Right of entry 7.04.150
Blasting regulations
Inspections 15.33.060
Proximate blasting permit requirements
Special inspections 15.33.150.D
Building and fire safety administrative code ..... 15.01.285 et seq.

See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE

	Section
INSPECTIONS (Cont'd.)	
Buildings and construction	
Temporary dwelling units	
Required inspection and permit	15.60.070
Property maintenance code	
Enforcement provisions	
Authority to inspect	15.12.060.D
Re-inspections	15.12.060.H
Public peace and safety	
Hotel registers	
Public register required—inspection	8.28.010
Sexually oriented businesses	
Audit and inspection	4.110.300
Required department inspections	4.110.160
Stormwater regulations	
Construction site inspection program fees	13.04.260
INSULATION	
Building and fire safety administrative code	
Required building inspections	
Insulation inspection	15.01.340.C
INSURANCE	
Blasting regulations	
Non-proximate blasting permit requirements	
Additional insurance	15.33.140.I
Proof of insurance	15.33.140.H
Business regulations and licenses	
Fee schedules, business license	
Insurance agency or company, insurance adjusting firm	4.05.270
Title insurance company	4.05.380
Council salaries	
Vehicle allowance	2.01.040
Emergency medical services	
Ambulance services	
Liability insurance required	4.80.390
Internal service fund	2.65.010
Parades and public assemblies	
Insurance requirements	8.11.090
Pawnbrokers	
Liability insurance when motor vehicles are pawned	4.64.250
Purpose of account	2.65.020
Sidewalk and open-air vendors	
General liability insurance required	4.75.055
Special events	
Insurance requirements	8.10.080

	Section
INTEREST	
Insurance	
Interest earned	2.65.050
Transient lodging and gaming taxes	
Late-payment penalty—interest	4.48.110
INTERFERENCE	
Building and fire safety administrative code	
Enforcement	
Authority to disconnect building service equipment	
Removing, or defacing a posted notice or interfering with the posting of a notice	15.01.085.D.3
Public peace and safety	8.3.010 et seq.
See: PUBLIC PEACE AND SAFETY	
Solid waste management	
Interference with containers prohibited	5.17.080
INVESTIGATIONS	
Alarm systems	
Investigation fees—required fees charged	4.18.090
No refund on investigation fee	4.18.100
Alcoholic beverages	4.36.100 et seq.
See: ALCOHOLIC BEVERAGES	
Auctions and auctioneers	
Investigation fees; required; fees charged	4.08.040
Building and fire safety administrative code	
Work without permits—Investigative fee	15.01.320
Business regulations and licenses	4.03.010 et seq.
See: BUSINESS REGULATIONS AND LICENSES	
Gambling	4.32.070 et seq.
See: GAMBLING	
Medical marijuana regulations and licenses	
Investigation fees; fees charged, required	4.116.120
Mobile food vendors	4.72.040 et seq.
See: MOBILE FOOD VENDORS	
Pawnbrokers	
Background investigation fees	4.64.060
Reflexology	
License	
Application—background investigation	4.85.030
Retail marijuana regulations and licenses	
Investigation fees; required; fees charged	4.118.120
Secondhand dealers	
Investigation fees—required—fees charged	4.68.130
Sexually oriented businesses	
Investigation fees—required—fees charged	4.110.100
No refund on investigation fee	4.110.110

Section

INVESTIGATIONS (Cont'd.)
Teenage dancehalls—nightclubs..... 4.60.040 et seq.
See: TEENAGE DANCEHALLS—NIGHTCLUBS

INVESTMENTS
Business regulations and licenses
Fee schedules, business license
Commodities, securities, or mutual fund business . 4.05.210

IRRIGATION
Utility services
Conservation
Landscape watering restrictions; water budget; possible exemption from landscape watering restrictions for active/programmed recreation turf areas and athletic field turf areas..... 14.14.030
Mist systems 14.14.060

ISSUANCE OF BONDS
Bond issuance for project assistance
Application approval—requirements 2.56.020
Declaration of purpose 2.56.010
Rights reserved to the city council..... 2.56.030

J

JEWELRY. See: PRECIOUS GEMS AND METALS

JUDGES. See: MUNICIPAL COURT JUDGES

JUVENILES. See: MINORS

K

KENNELS
Animal establishments..... 7.70.010 et seq.
See: ANIMAL ESTABLISHMENTS

L

LANDS, LAND USE
Public peace and safety
Camping and similar activities
Public land without permit, outdoor fires prohibited on 8.37.080
Records management
Citywide fee schedule for public records and document services..... 2.47.085

LANDSCAPING
Community development fees

Section

LANDSCAPING (Cont'd.)
Fee schedules, community development
Applications and services, fees for
Other community development fees
Landscape bond fee 18.01.030.C.13
Streets, sidewalks and other public places
Obstructions
Sidewalks and streets to be free of landscaping, building, and other materials-Abutting owner's duties-Civil liability—Indemnity 11.03.030
Utility services
Conservation
Landscape material restrictions 14.14.050
Landscape watering restrictions; water budget; possible exemption from landscape watering restrictions for active/programmed recreation turf areas and athletic field turf areas 14.14.030

LASER POINTERS
Definitions 8.04.010
Possession by minors unlawful 8.04.020
Prohibited uses 8.04.030
Use on law enforcement and other city personnel unlawful 8.04.040

LEASE OR RENT
Bond issuance for project assistance
Rights reserved to the city council 2.56.030
Business regulations and licenses ..... 4.05.115 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Solid waste management
Charges
Container rentals — one-time on-call collections ... 5.17.190
Video rental stores ..... 4.102.010 et seq.
See: VIDEO RENTAL STORES

LEGAL PROCEEDINGS. See: SUITS, ACTIONS AND OTHER LEGAL PROCEEDINGS

LEGAL PROCESSES. See: WRITS, WARRANTS AND OTHER LEGAL PROCESSES

LIABILITY
Building and fire safety administrative code
Board of appeals
Liability 15.01.115.E
Liability 15.01.090

	Section
LIABILITY (Cont'd.)	
Council salaries	
Vehicle allowance	2.01.040
Emergency medical services	
Ambulance services	
Liability insurance required	4.80.390
Graffiti	
Imposition of civil liability on parent(s) or guardian having custody and control of minor child who violates HMC section 8.85.030	8.85.090
Pawnbrokers	
Employees, pawnbroker liable for	4.64.170
Liability insurance when motor vehicles are pawned	4.64.250
Property maintenance code	
Enforcement provisions	15.12.060
Board of appeals hearing procedures	15.12.060.O
Liability of board members	15.12.060.O.7
Sexually oriented businesses	
Actual deception unnecessary to create liability	4.110.210
Sidewalk and open-air vendors	
General liability insurance required	4.75.055
Streets, sidewalks and other public places	
Obstructions	
Sidewalks and streets to be free of landscaping, building, and other materials-Abutting owner's duties-Civil liability—Indemnity	11.03.030
Utility services	
Pretreatment regulations	
Monitoring, wastewater discharge	
User liability	14.09.050.E
Vehicles and traffic	
Charitable solicitations while standing on median strip or sidewalk	10.34.040
LICENSES AND PERMITS	
Alarm systems	4.18.040 et seq.
See: ALARM SYSTEMS	
Alcoholic beverages	4.36.010 et seq.
See: ALCOHOLIC BEVERAGES	
Animal establishments	7.70.010 et seq.
See: ANIMAL ESTABLISHMENTS	
Animal handler	7.60.020 et seq.
See: ANIMALS	
Animals	7.04.010 et seq.
See: ANIMALS	
Auctions and auctioneers	4.08.020 et seq.
See: AUCTIONS AND AUCTIONEERS	

	Section
LICENSES AND PERMITS (Cont'd.)	
Blasting regulations	15.33.120 et seq.
See: BLASTING REGULATIONS	
Building and fire safety administrative code	15.01.045 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Buildings and construction	
Temporary dwelling units	
Required inspection and permit	15.60.070
Business regulations and licenses	14.01.010 et seq.
See: BUSINESS REGULATIONS AND LICENSES	
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Fee schedule for other community development applications	
Conditional use permit	18.01.030.B.2
Home occupation permit	18.01.030.B.10
Temporary use permit	18.01.030.B.13
Dangerous animals	
Permit revocation conditions	7.20.070
Door-to-door solicitors, peddlers and canvassers	4.12.020 et seq.
See: DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS	
Emergency management	
City manager and emergency management coordinator, emergency powers of	2.24.080
Emergency medical services	4.80.050 et seq.
See: EMERGENCY MEDICAL SERVICES	
Gambling	4.32.010 et seq.
See: GAMBLING	
Massage establishments and independent massage therapists	4.84.030 et seq.
See: MASSAGE ESTABLISHMENTS AND INDEPENDENT MASSAGE THERAPISTS	
Medical marijuana regulations and licenses	4.116.010 et seq.
See: MEDICAL MARIJUANA	
Mobile animal business	7.65.010 et seq.
See: ANIMALS	
Mobile food vendors	4.72.030 et seq.
See: MOBILE FOOD VENDORS	

Section

LICENSES AND PERMITS (Cont'd.)
Parades and public assemblies ..... 8.11.020 et seq.
See: PARADES AND PUBLIC ASSEMBLIES
Pawnbrokers ..... 4.64.020 et seq.
See: PAWNBROKERS
Reflexology ..... 4.85.030 et seq.
See: REFLEXOLOGY
Registration and regulation of lobbyists
Licensed attorneys 2.100.040
Retail marijuana regulations and licenses ..... 4.118.010 et seq.
See: RETAIL MARIJUANA
Secondhand dealers ..... 4.68.030 et seq.
See: SECONDHAND DEALERS
Sexually oriented businesses ..... 4.110.030 et seq.
See: SEXUALLY ORIENTED BUSINESSES
Sidewalk and open-air vendors ..... 4.75.030 et seq.
See: SIDEWALK AND OPEN-AIR VENDORS
Special events ..... 8.10.020 et seq.
See: SPECIAL EVENTS
Stormwater regulations ..... 13.04.120 et seq.
See: STORMWATER REGULATIONS
Streets, sidewalks and other public places ..... 11.02.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
Teenage dancehalls—nightclubs ..... 4.60.020 et seq.
See: TEENAGE DANCEHALLS—NIGHTCLUBS
Vehicles and traffic ..... 10.34.030 et seq.
See: VEHICLES AND TRAFFIC
Video rental stores
Unlawful to operate without license 4.102.020
Wildlife ..... 7.40.030 et seq.
See: WILDLIFE

LIENS
Property maintenance code ..... 15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE
Solid waste management
Charges
Rates, fees, and charges; liens 5.17.230

Section

LIGHTING, LIGHTS
- Animal establishments
  - Standards for animal facilities—generally ..... 7.70.070(K)
- Property maintenance code
  - Residential buildings and structures maintenance standards
    - Light and ventilation 15.12.050.D
- Teenage dancehalls—nightclubs
  - Fees—further regulations 4.60.090.G

LIQUOR. See: ALCOHOLIC BEVERAGES

LITTER
- Clearing of litter from open property by city 5.04.050
- Definitions 5.04.010
- Litter on occupied private property 5.04.020
- Owner to maintain premises free of litter 5.04.030
- Parades and public assemblies
  - Litter collection 8.11.110
- Penalties 5.04.070
- Property maintenance code
  - General property maintenance standards
    - Dumping 15.12.030.H
- Special events
  - Litter collection 8.10.100
- Transport of unhealthy vegetable matter prohibited 5.04.060
- Vacant lots, litter on 5.04.040

LOADING, UNLOADING
- Noise control
  - Specific prohibitions
    - Loading and unloading 8.84.030.G

LOBBYING, LOBBYISTS
- Registration and regulation of lobbyists
  - Cooling off period 2.100.030
  - Definitions 2.100.010
  - Licensed attorneys 2.100.040
  - Lobbying
    - Disclosure form for
      - City council or planning commission communication—Time for filing 2.100.020.D
      - City staff communication—Time for filing 2.100.020.E
    - Identification 2.100.020.C
    - Registration
      - Form for filing 2.100.020.B
      - Time for filing 2.100.020.A
  - Violations and penalties 2.100.050

	Section
LOCATIONS	
Alarm systems	
Alarm systems business located out of local area—requirement of a resident agent	4.18.180
Alcoholic beverages	4.36.060 et seq.
See: ALCOHOLIC BEVERAGES	
Auctions and auctioneers	
Restriction to private places	4.08.100
Blasting regulations	
Performance standards	
Seismograph monitoring location(s)	15.33.130.B
Business regulations and licenses	
General business license provisions	
Change of location—change of business name	4.04.120
Separate license required	4.04.070
Elections	
Vote centers	2.08.060
Massage establishments and independent massage therapists	
License	
Location subject to use permit application review	4.84.040
Sale or transfer or change of location	4.84.160
Medical marijuana regulations and licenses	4.116.010 et seq.
See: MEDICAL MARIJUANA	
Reflexology	
License	
Location subject to use permit application review	4.85.060
Retail marijuana regulations and licenses	4.118.010 et seq.
See: RETAIL MARIJUANA	
Secondhand dealers	
License	
Change of location	4.68.175
Sexually oriented businesses	
License	
Application	
Business premises required	4.110.040
Required—locational requirements—use permit application review	4.110.030
Utility services	
Cross-connection control regulations	
Location	14.08.030
LOITERING	
Minors	

Section

LOITERING (Cont'd.)
Restrictions and curfew
Frequenting or loitering about certain places prohibited 8.08.010
Prostitution and indecent conduct
Loitering for the purpose of soliciting unlawful 8.60.090
Teenage dancehalls—nightclubs
Fees—further regulations
Loitering/readmission 4.60.090.J

LOTS. See: BLOCKS, LOTS AND PARCELS

M

MACHINERY. See: EQUIPMENT AND MACHINERY

MAINTENANCE
Alarm systems
Instructions as to the operation of the system—user responsibility for maintenance 4.18.230
Building and fire safety administrative code
Existing buildings, structures, and building service equipment
Maintenance 15.01.035.D
Business regulations and licenses
Fee schedules, business license
Property maintenance 4.05.340
Construction, maintenance and repair of sidewalk, transition strips, and medians ..... 11.06.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
Council salaries
Vehicle allowance 2.01.040
Health and sanitation
Trees and plants
Procedure upon order to treat, trim or remove 5.28.030
Litter
Owner to maintain premises free of litter 5.04.030
Property maintenance code ..... 15.12.010 et seq.
See: PROPERTY MAINTENANCE CODE
Utility services ..... 14.03.070 et seq.
See: UTILITY SERVICES

	Section
MANAGER	
Ambulance transportation fees	
Rate increases	2.29.030
Citations for violations	
Authorized—service	1.04.010
City Manager	
Authority	2.10.010
Financial duties	2.10.030
Human resources and benefits duties	2.10.040
Organizational duties	2.10.020
Emergency management	2.24.020 et seq.
See: EMERGENCY MANAGEMENT	
Insurance	
Program implementation—city manager	2.65.080
Records management	
Records committee	2.47.040
MANUFACTURE, MANUFACTURING	
Building and fire safety administrative code	15.01.350 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
MANUFACTURED HOMES AND MANUFACTURED HOME PARKS. See: MOBILE HOMES AND MOBILE HOME PARKS	
MAPS. See: SURVEYS, MAPS AND PLATS	
MARIJUANA. See: CONTROLLED SUBSTANCES	
MASSAGE ESTABLISHMENTS AND INDEPENDENT MASSAGE THERAPISTS	
Advertising	4.84.080
Clothing requirements	4.84.140
Definitions	4.84.010
Disciplinary action—license suspension, revocation or limitation	4.84.180
Enforcement authority	4.84.200
Exemptions—specified	4.84.050
Independent massage therapist—authorizations and requirements	4.84.100
License	
Application	4.84.070
Changes in ownership	4.84.110
Disciplinary action—license suspension, revocation or limitation	4.84.180
Obtaining a license after revocation—prohibition	4.84.190
Investigation fees—required fees	4.84.075

Section

MASSAGE ESTABLISHMENTS AND INDEPENDENT MASSAGE THERAPISTS (Cont'd.)
Issuance 4.84.120
Location subject to use permit application review 4.84.040
Massage establishment
Sale or transfer or change of location 4.84.160
Where operated—operating requirements 4.84.090
Massage establishment licensee—employees 4.84.060
Reflexology ..... 4.85.010 et seq.
See: REFLEXOLOGY
Statement of legislative intent—regulation 4.84.020
Unlawful acts 4.84.150
Unlawful to operate without—outside jurisdiction—separate license required 4.84.030

MATERIALS. See: SUPPLIES AND MATERIALS

MAYOR
Council meetings
Special meetings 2.04.030
Council salaries
Benefits 2.01.050
Mayor, salary for 2.01.020
Salary for councilmen and mayor—automatic increase 2.01.030
Vehicle allowance 2.01.040
Elections ..... 2.08.010 et seq.
See: ELECTIONS
Emergency management
Declaration of state of emergency 2.24.060

MEASURES. See: WEIGHTS AND MEASURES

MECHANICAL CODE
Adoption by reference 15.24.010
Code amended 15.24.020
Compliance required—Penalty for violations 15.24.050
Effective date 15.24.060
Evaporative cooling 15.24.015
Substantial compliance standard 15.24.040
Supervision of work 15.24.030

MEDICAL MARIJUANA
Regulations and licenses
Application process 4.116.090
Closure or non-operational status
Responsibility to maintain use 4.116.160
Conditions applying to specific location/business types 4.116.070
Definitions 4.116.010

	Section
MEDICAL MARIJUANA (Cont'd.)	
Delivering off premises	4.116.200
Distributing to non-registered persons	
Copy on premises	4.116.220
Establishment of policy	4.116.220
Requirement to show	4.116.220
Intoxication on premises	4.116.210
Investigation fees	
Fees charged	4.116.120
Required	4.116.120
Land use and location requirements—compliance with title 19	4.116.180
License	
Applicant	4.116.100
Application	4.116.080
Business premises required	4.116.100
Change of location	4.116.140
Contents	4.116.080
Finding of suitability	4.116.035
General	4.116.080
Issuance	
Moratorium	4.116.170
Prohibited to designated persons	4.116.030
Restrictions	4.116.130
Limitation	4.116.240
Medical marijuana establishment origination fee	4.116.140
Penalty	4.116.240
Proximity of medical marijuana establishments specified	4.116.130
Required; privileged license	4.116.030
Restrictions	4.116.140
Revocation	4.116.240
Suspension	4.116.240
Transfer of license, ownership interest and changes in business control—council approval required	4.116.150
Unlawful to operate without medical marijuana establishment license	4.116.040
Medical marijuana establishments	
Interconnectivity allowed	4.116.190
License	
Change of location; restrictions, origination fee	4.116.140
Issuance restrictions, proximity of, specified	4.116.130
Responsible for the acts of employees	4.116.250
Subject to local government audit	4.116.260
Types	4.116.050

Section

MEDICAL MARIJUANA (Cont'd.)
Minor
Employment 4.116.230
Multiple locations
Operating names 4.116.060
Purpose and intent 4.116.020

MEDICAL SERVICES
Ambulance transportation fees
Ambulance service rates 2.29.020
Emergency services providers 2.29.010
Rate increases 2.29.030
Animal establishments
Veterinary care 7.70.090
Business regulations and licenses ..... 4.05.225 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Emergency medical services ..... 4.80.010 et seq.
See: EMERGENCY MEDICAL SERVICES
Medical marijuana regulations and licenses ..... 4.116.010 et seq.
See: MEDICAL MARIJUANA
Reflexology ..... 4.85.010 et seq.
See: REFLEXOLOGY

MEETINGS
City clerk: additional duties and authorizations 2.44.010
Civil service board 6.02.020
Council meetings
City council rules of procedure 2.04.080
Date and time of meetings 2.04.010
Executive sessions and closed meetings 2.04.060
Legal record of meeting 2.04.070
Minutes legal record of meeting 2.04.070
Place of meetings 2.04.020
Recordings or transcripts of meetings 2.04.100
Recordings or transcripts of meetings held by order of city attorney 2.04.090
Special meetings 2.04.030
Elections
Date of entry upon duties 2.08.040
Registration and regulation of lobbyists
Lobbying
Registration
Time for filing 2.100.020.A

MEMBERS, MEMBERSHIP
Alarm systems

Section

MEMBERS, MEMBERSHIP (Cont'd.)
License
Corporation—partnerships—associations—changes in membership 4.18.120
Building and fire safety administrative code
Board of appeals
Members 15.01.115.A
Civil service board 6.02.030
Council salaries
Councilmembers from wards I, II, III AND IV, salary for 2.01.010
Emergency management
Emergency management council
Created—members 2.24.040
Operational emergency management organization ... 2.24.070
Gambling
Regulations and licenses
License
Corporation—limited liability corporation—partnership—association—changes in membership 4.32.140
Reflexology
License
Corporation—partnerships—associations—changes in membership 4.85.050
Sexually oriented businesses
License
Corporation—partnerships—limited liability companies—associations—changes in membership . 4.110.130

MERCHANTS. See: VENDORS AND MERCHANTS

METERS
Utility services ..... 14.03.010 et seq.
See: UTILITY SERVICES

MINING. See: DRILLING OR MINING

MINORS (Children, juveniles, etc.)
Alcoholic beverages ..... 4.36.340 et seq.
See: ALCOHOLIC BEVERAGES
Business regulations and licenses
Sale and display of narcotic and other paraphernalia
Minors
Excluded 4.98.030
Graffiti ..... 8.85.040 et seq.
See: GRAFFITI
Laser pointers
Possession by minors unlawful 8.04.020

	Section
MINORS (Children, juveniles, etc.) (Cont'd.)	
Medical marijuana regulations and licenses	
Minor; employment	4.116.230
Pawnbrokers	
Persons over 18 years, pawnshop employment restricted to	4.64.160
Prostitution and indecent conduct	
Indecent conduct	
Annoyance, molestation of or indecency toward a minor under 18 years of age	8.60.150
Restrictions and curfew	
Curfew restrictions	8.08.080
Definitions for curfew provisions	8.08.070
Frequenting or loitering about certain places prohibited	8.08.010
Penalty for violation	8.08.090
Retail marijuana regulations and licenses	
Minor; employment	4.118.230
Secondhand dealers	
Purchase from minors and juveniles—prohibitions—exceptions—conditions	4.68.210
Teenage dancehalls—nightclubs	4.60.010 et seq.
See: TEENAGE DANCEHALLS—NIGHTCLUBS	
MISREPRESENTATION	
Sexually oriented businesses	
Actual deception unnecessary to create liability	4.110.210
False, deceptive or misleading advertising prohibited	4.110.200
MISSILES. See: FIREARMS, WEAPONS AND MISSILES	
MOBILE FOOD VENDORS	
Charges, fees and rates	
Fees—further regulations	4.72.090
Investigation fees—employees or agents to qualify the same as the applicant	4.72.050
No refund on investigation fee	4.72.060
Definitions	4.72.010
Exhibition of license	4.72.100
Fees—further regulations	4.72.090
Investigation and issuance	4.72.080
Investigation fees—employees or agents to qualify the same as the applicant	4.72.050
Investigations	
Investigation and issuance	4.72.080
Investigation fees—employees or agents to qualify the same as the applicant	4.72.050

	Section
MOBILE FOOD VENDORS (Cont'd.)	
License	
Application—consent to investigation	4.72.040
No refund on investigation fee	4.72.060
Judicial review	4.72.170
License	
Application—consent to investigation	4.72.040
Suspension—revocation—limitation	4.72.130
Licensee responsible for the acts of employees	4.72.140
Licensee's agreement to conform to law	4.72.150
Licenses and permits	
Exhibition of license	4.72.100
License	
Application—consent to investigation	4.72.040
Suspension—revocation—limitation	4.72.130
Licensee responsible for the acts of employees	4.72.140
Licensee's agreement to conform to law	4.72.150
Unlawful to operate without license	4.72.030
No refund on investigation fee	4.72.060
Penalty for violation of chapter	4.72.180
Right of appeal	4.72.160
Signs denying approach	4.72.110
Statement of purpose and intent—regulation	4.72.020
Transfer prohibited	4.72.120
Unlawful to operate without license	4.72.030
Withdrawal of application—refund	4.72.070
MOBILE HOMES AND MOBILE HOME PARKS	
Building and fire safety administrative code	15.01.235 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Business regulations and licenses	
Fee schedules, business license	
Manufactured housing setup and repair	4.05.305
Mobile Home Park and/or recreational vehicle park	4.05.300
Solid waste management	
Charges	
Motels and mobile home parks	5.17.170
MOTELS. See: HOTELS AND MOTELS	
MOTION PICTURES	
Business regulations and licenses	
Fee schedules, business license	
Motion picture or television productions	4.05.295

Section

MOTION PICTURES (Cont'd.)
Sexually oriented businesses
Adult bookstores, adult novelty businesses, adult video stores, adult motion picture theaters, adult video arcades and commercial adult establishments—building specifications—regulations—security required 4.110.170
Special events
Commercial filming 8.10.025

MOTOR VEHICLES. See: VEHICLES AND TRAFFIC

MOVING OR RELOCATING
Building and fire safety administrative code
Moved buildings 15.01.045
Business regulations and licenses
General business license provisions
Change of location—change of business name 4.04.120
Massage establishments and independent massage therapists
Sale or transfer or change of location 4.84.160
Mobile food vendors ..... 4.72.010 et seq.
See: MOBILE FOOD VENDORS
Property maintenance code
General provisions
Application—Conformity required
Relocation 15.12.010.C.5
Reflexology
Outcall treatment 4.85.110
Vehicles and traffic
Truck routes
Issuance of special permits for movement of buildings and other structures—conditions—applications therefor 10.60.040

MUNICIPAL COURT
Administrative fee exceptions 2.06.020
Business regulations and licenses
Policy and procedure show cause, license suspension, limitation, revocation
Discovery 4.06.160
Subpoena and compensation of witnesses 4.06.150
Citations for violations
Failure to appear 1.04.040
Time for appearance 1.04.030
Court of record 2.06.010
Mobile food vendors
Judicial review 4.72.170

	Section
MUNICIPAL COURT (Cont'd.)	
Municipal court judge salary	
Benefits	2.05.030
Professional allowance	2.05.031
Salary for municipal court judge	
Automatic increase	
Salary increase	2.05.020
Generally	2.05.010
Property maintenance code	
Enforcement provisions	
Board of appeals hearing procedures	15.12.060.O
Records management	
Citywide fee schedule for public records and document services	2.47.085
Stormwater regulations	
Enforcement	
Civil judicial compliance	13.04.180.C
Criminal judicial compliance	13.04.180.D
Teenage dancehalls—nightclubs	
Judicial review	4.60.150
Vehicles and traffic	
Charitable solicitations while standing on median strip or sidewalk	
Right of appeal and judicial review	10.34.110
MUNICIPAL COURT JUDGES	
Elections	2.08.010 et seq.
See: ELECTIONS	
Municipal court judge salary	
Benefits	2.05.030
Professional allowance	2.05.031
Salary for municipal court judge	
Automatic increase	
Salary increase	2.05.020
Generally	2.05.010

N

NAMING, NAMES	
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Other community development fees	
Street name change	18.01.030.C.9
Medical marijuana regulations and licenses	
Multiple locations; operating names	4.116.060
NARCOTICS. See: CONTROLLED SUBSTANCES	

Section

NATURAL GAS
Utility services..... 14.12.010 et seq.
See: UTILITY SERVICES

NEGLECT. See: ABUSE OR NEGLECT

NIGHTCLUBS
Sexually oriented businesses
Adult clubs — regulations..... 4.110.190
Teenage dancehalls—nightclubs..... 4.60.010 et seq.
See: TEENAGE DANCEHALLS—NIGHTCLUBS

NOISE CONTROL
Alarm systems
Audible alarm system cutoff — automatic dialing systems..... 4.18.250
Sirens not to be audible outside premises 4.18.220
Animals
Nuisance
Noise 7.08.030
Buildings and construction ..... 15.56.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Exemptions..... 8.84.040
General prohibition 8.84.020
Legislative purpose..... 8.84.010
Penalty for violation 8.84.050
Specific prohibitions..... 8.84.030
Vehicles and traffic ..... 10.59.010 et seq.
See: VEHICLES AND TRAFFIC

NONCONFORMITIES
Gambling
Regulations and licenses
License
Issuance
Nonconforming uses 4.32.350

NONTECHNICAL WORDS. See: TECHNICAL AND NONTECHNICAL WORDS

NOTICE, NOTIFICATION
Alarm systems
Notices..... 4.18.280
Animals
Animal handler
Change notice to city..... 7.60.050

	Section
NOTICE, NOTIFICATION (Cont'd.)	
Mobile animal business	
Change notice to city	7.65.050
Blasting regulations	15.33.140 et seq.
See: BLASTING REGULATIONS	
Building and fire safety administrative code	15.01.085 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Other community development fees	
Notification fee	18.01.030.C.1
Emergency medical services	
Ambulance services	
Pre-notification of special event	4.80.355
Parades and public assemblies	
Notice of denial or acceptance	8.11.230
Notice to city and other officials	8.11.170
Pawnbrokers	
Property redemption notice form	4.64.090
Property maintenance code	15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE	
Special events	
Notice of denial or acceptance	8.10.160
Stormwater regulations	13.04.170 et seq.
See: STORMWATER REGULATIONS	
NUDITY	
Alcoholic beverages	
Liquor—regulations and licenses	
Licensed premises	
Entertainment restrictions	
Pictures featuring nudity	4.36.410
Sexually oriented businesses	
Nude modeling studio—regulations	4.110.180
NUISANCES	
Animals	7.08.010 et seq.
See: ANIMALS	
Business regulations and licenses	
Sale and display of narcotic and other paraphernalia	4.98.010

Section

NUISANCES (Cont'd.)
Property maintenance code
Enforcement provisions
Abandoned nuisance 15.12.060.P
Chronic nuisance 15.12.060.Q
Solid waste management
Solid and hazardous waste a nuisance..... 5.17.270
Stormwater regulations
Violations deemed a public nuisance 13.04.230

NUMBER, NUMBERING
Alarm systems
Excessive false alarms..... 4.18.290
Animals
Pet licensing and permits; fees; appeal process
Number of animals permitted on residential property..... 7.04.080
Business regulations and licenses
Fee schedules, business license
Businesses not enumerated in schedule 4.05.410
Community development fees
Fee schedules, community development
Applications and services, fees for
Other community development fees
Address number change 18.01.030.C.10
Gambling
Regulations and licenses
License
Subject to limit..... 4.32.060
Pawnbrokers
Limit on number of licenses 4.64.220
Secondhand dealers
Limit on number of secondhand dealer licenses 4.68.040
Teenage dancehalls—nightclubs
Fees—further regulations
Occupancy load/seating..... 4.60.090.K

O

OATH, AFFIRMATION, SWEAR OR SWORN
City clerk: additional duties and authorizations 2.44.010

OBSTRUCTIONS
Animals
Powers of animal protection services, generally
Unlawful to resist or obstruct animal protection officer 7.02.040

	Section
OBSTRUCTIONS (Cont'd.)	
Streets, sidewalks and other public places	11.03.010 et seq.
See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES	
OCCUPANT. See: TENANT OR OCCUPANT	
ODORS. See: DUST, ODORS, SMOKE AND OTHER AIRBORNE PARTICLES	
OFFICERS AND EMPLOYEES	
Administrative policies	
Adoption by Reference of Administrative Policy Manual	2.34.010
Animals	
Pet licensing and permits; fees; appeal process	
Veteran, law enforcement officer and first responder adoption fee waiver program	7.04.025
Building and fire safety administrative code	
Cooperation of other officials and officers	15.01.095
Special inspections	
Approved special inspection personnel	15.01.405.I
Business regulations and licenses	
General business license provisions	
Persons exempt; employees	4.04.030.A
Citations for violations	
Authorized—service	1.04.010
City boards and commissions	2.50.010 et seq.
See: CITY BOARDS AND COMMISSIONS	
Civil service rules	6.01.010 et seq.
See: CIVIL SERVICE RULES	
Elections; elective officers	2.08.010
Emergency management	2.24.030 et seq.
See: EMERGENCY MANAGEMENT	
Enforcement, obedience and effect	10.16.010 et seq.
See: VEHICLES AND TRAFFIC	
Ethical standards for public servants	2.40.010 et seq.
See: ETHICAL STANDARDS FOR PUBLIC SERVANTS	
Laser pointers	
Use on law enforcement and other city personnel unlawful	8.04.040
Municipal court judge salary	
Benefits	2.05.030
Professional allowance	2.05.031

Section

OFFICERS AND EMPLOYEES (Cont'd.)
Salary for municipal court judge
Automatic increase
Salary increase 2.05.020
Generally 2.05.010
Parades and public assemblies
Notice to city and other officials 8.11.170
Stormwater regulations
Word usage and construction of language
Public officials and agencies 13.04.050.H

OPEN BURNING
Public peace and safety ..... 8.37.010 et seq.
See: PUBLIC PEACE AND SAFETY
Solid waste management
Burning of solid waste or recyclables 5.17.050

OPEN SPACES. See: YARDS AND OPEN SPACES

OPERATIONAL EMERGENCY MANAGEMENT ORGANIZATION
Emergency management 2.24.070

OPERATOR. See: AGENT OR OPERATOR

ORDINANCES, RESOLUTIONS, ETC.
Establishment and effect of code ..... 1.02.010 et seq.
See: CODE OF ORDINANCES
Property maintenance code
Enforcement provisions
Conflict of ordinances 15.12.060.A
Secondhand dealers
Application of Nevada Revised Statutes 4.68.270

P

PARADES AND PUBLIC ASSEMBLIES
Alcoholic beverages disallowed unless specific permission is granted 8.11.105
Alternative permit 8.11.160
Application 8.11.040
Claims for damages 8.11.120
Compliance with law prior to issuance of permit 8.11.130
Consideration of application and decision 8.11.100
Contents of permit 8.11.180
Definitions 8.11.010
Duties of permittee 8.11.190
Emergency management
Peace and order, measures to maintain 2.24.090

	Section
PARADES AND PUBLIC ASSEMBLIES (Cont'd.)	
Exceptions	8.11.030
Fees	8.11.050
Indigency	8.11.150
Insurance requirements	8.11.090
Licenses and permits	
Alternative permit	8.11.160
Application	8.11.040
Compliance with law prior to issuance of permit	8.11.130
Consideration of application and decision	8.11.100
Contents of permit	8.11.180
Duties of permittee	8.11.190
Permit required	8.11.020
Revocation of permit	8.11.220
Litter collection	8.11.110
Notice of denial or acceptance	8.11.230
Notice to city and other officials	8.11.170
Permit required	8.11.020
Prohibitions	8.11.200
Public conduct during parades or public assemblies	8.11.210
Restrictions on streets and times for event	8.11.070
Revocation of permit	8.11.220
Right of appeal	8.11.250
Safety protection—Barricades—Costs of police protection	8.11.240
Sanitation facilities required	8.11.080
Standards for issuance	8.11.060
PARCELS. See: BLOCKS, LOTS AND PARCELS	
PARKING, PARKING LOTS	
Municipal court	
Administrative fee exceptions	2.06.020
Vehicles and traffic	10.06.010 et seq.
See: VEHICLES AND TRAFFIC	
PARKS AND RECREATION	
Definitions and interpretation	2.27.020
Penalty for violation; appeal	2.27.060
Purpose	2.27.010
Rules and regulations	
Establishment and modification of	2.27.050
For the use of public plazas	2.27.035
Regarding use of parks, recreation facilities and trails	2.27.030
Suspension from parks, recreation facilities and trails	2.27.040

Section

PARKS AND RECREATION (Cont'd.)
Utility services
Conservation
Recreational water park 14.14.100

PARKS AND RECREATION BOARD
City boards and commissions ..... 2.50.365 et seq.
See: CITY BOARDS AND COMMISSIONS

PATIOS, PORCHES AND DECKS
Building and fire safety administrative code
Required pool and spa inspections
Manufactured pools and spas
Pre-deck inspection..... 15.01.350.B.2
Property maintenance code
Nonresidential buildings and structures maintenance standards
Outdoor stairs, porches, guardrails, handrails, and similar railings..... 15.12.040.D
Residential buildings and structures maintenance standards
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing
Outdoor stairs, porches, guardrails, handrails, and similar railings 15.12.050.B.7

PAWNBROKERS
Applicability of Nevada Revised Statutes Chapter 646 . 4.64.045
Application for license 4.64.030
Background investigation fees..... 4.64.060
Bond for pawnbroker..... 4.64.070
Clear title required for pawning motor vehicle..... 4.64.260
Daily report to police chief..... 4.64.110
Definitions 4.64.010
Employees, pawnbroker liable for..... 4.64.170
Forms for daily report 4.64.120
Identification of business required 4.64.190
Inactivity of license 4.64.240
Liability insurance when motor vehicles are pawned ... 4.64.250
License
Required..... 4.64.020
Transfer or assignment—council approval required .. 4.64.080
License plates to be removed at time of motor vehicle pawn..... 4.64.270
Licenses and permits
Application for license 4.64.030
Inactivity of license..... 4.64.240

	Section
PAWNBROKERS (Cont'd.)	
License	
Required	4.64.020
Transfer or assignment—council approval required	4.64.080
License plates to be removed at time of motor vehicle pawn	4.64.270
Limit on number of licenses	4.64.220
Pawnbroker to obtain dealer's license from State of Nevada when motor vehicles are pawned	4.64.280
Proprietor only eligible for license	4.64.050
Use permit from City of Henderson, pawnbroker to obtain	4.64.290
Limit on number of licenses	4.64.220
Memorandum of record book entry to pledger	4.64.210
Nature of pawnbroker	4.64.040
Pawn ticket	4.64.100
Pawnbroker to obtain dealer's license from State of Nevada when motor vehicles are pawned	4.64.280
Pawnshop record ledger	4.64.130
Penalty for violation covering chapter 4.64 Inclusive	4.64.300
Persons over 18 years, pawnshop employment restricted to	4.64.160
Police to provide forms and file reports	4.64.140
Property redemption notice form	4.64.090
Proprietor only eligible for license	4.64.050
Records and reports	
Daily report to police chief	4.64.110
Forms for daily report	4.64.120
Memorandum of record book entry to pledger	4.64.210
Pawn ticket	4.64.100
Pawnshop record ledger	4.64.130
Police to provide forms and file reports	4.64.140
Property redemption notice form	4.64.090
Time lapse after daily report	4.64.180
Restriction on knives and razors	4.64.200
Storage compound when motor vehicles are pawned	4.64.230
Time lapse after daily report	4.64.180
Unlawful to accept articles from certain persons	4.64.150
Use permit from City of Henderson, pawnbroker to obtain	4.64.290
Vehicles and traffic	
Clear title required for pawning motor vehicle	4.64.260
Liability insurance when motor vehicles are pawned	4.64.250
License plates to be removed at time of motor vehicle pawn	4.64.270

Section

PAWNBROKERS (Cont'd.)
Pawnbroker to obtain dealer's license from State of Nevada when motor vehicles are pawned 4.64.280
Storage compound when motor vehicles are pawned 4.64.230

PEDDLERS. See: DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS

PENALTIES. See: FINES, FORFEITURES AND OTHER PENALTIES

PERFORMANCE BONDS. See: BONDS, SURETY OR PERFORMANCE

PERMITS. See: LICENSES AND PERMITS

PERSONNEL. See: ADMINISTRATION AND PERSONNEL

PEST CONTROL
Property maintenance code
General property maintenance standards
Insect and rodent control, exterior 15.12.030.C

PET SHOPS
Animal establishments..... 7.70.010 et seq.
See: ANIMAL ESTABLISHMENTS

PETITIONS
Business regulations and licenses
Policy and procedure show cause, license suspension, limitation, revocation
Aggrieved party—petition for reconsideration..... 4.06.280
Emergency management
Emergency management coordinator
Duties and responsibilities 2.24.030

PETROLEUM PRODUCTS
Business regulations and licenses
Fee schedules, business license
Gasoline, diesel, motor vehicle fuel sales 4.05.255
Council salaries
Vehicle allowance..... 2.01.040
Emergency management
Peace and order, measures to maintain..... 2.24.090

PHOTOGRAPHS. See: FINGERPRINTS AND PHOTOGRAPHS

	Section
PIPES, CABLES AND CONDUITS	
Building and fire safety administrative code	15.01.355 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Utility services	14.03.010 et seq.
See: UTILITY SERVICES	
Vehicles and traffic	
Miscellaneous driving rules	
Exhaust pipes	10.44.190
PLANNING AND DEVELOPMENT	
Blasting regulations	15.33.140 et seq.
See: BLASTING REGULATIONS	
Bond issuance for project assistance	
Declaration of purpose	2.56.010
Building and fire safety administrative code	15.01.205 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Buildings and construction	15.02.010 et seq.
See: BUILDINGS AND CONSTRUCTION	
Community development fees	18.01.010 et seq.
See: COMMUNITY DEVELOPMENT FEES	
Development code (zoning)	Ch. 19.01
Emergency management	2.24.030 et seq.
See: EMERGENCY MANAGEMENT	
Records management	
Citywide fee schedule for public records and document services	2.47.085
Utility services	
Fees, rates and charges	
System development charges	14.18.040
PLANNING COMMISSION	
City boards and commissions	2.50.370 et seq.
See: CITY BOARDS AND COMMISSIONS	
PLANTS. See: TREES, SHRUBS AND PLANTS	
PLATS. See: SURVEYS, MAPS AND PLATS	
PLUMBING	
Building and fire safety administrative code	
Plumbing permit exemptions	15.01.135

	Section
PLUMBING (Cont'd.)	
Required plumbing inspections	15.01.360
Plumbing code	15.20.010 et seq.
See: PLUMBING CODE	
Property maintenance code	15.12.040 et seq.
See: PROPERTY MAINTENANCE CODE	
PLUMBING CODE	
Adoption by reference	15.20.010
Code amended	15.20.020
Compliance required—Penalty for violations	15.20.050
Effective date	15.20.060
Substantial compliance standard	15.20.040
Supervision of work	15.20.030
POLES AND WIRES	
Property maintenance code	
Nonresidential buildings and structures maintenance standards	
Electrical wiring, hazardous	15.12.040.J
Residential buildings and structures maintenance standards	
Hazardous electrical wiring	15.12.050.O
POLICE DEPARTMENT	
Animals	
Pet licensing and permits; fees; appeal process	
Veteran, law enforcement officer and first responder adoption fee waiver program	7.04.025
Business regulations and licenses	
Background investigation and fees	
Levels of background investigations	4.03.020
Parades and public assemblies	
Safety protection—barricades—cost of police protection	8.11.240
Pawnbrokers	
Police to provide forms and file reports	4.64.140
Public peace and safety	8.01.010 et seq.
See: PUBLIC PEACE AND SAFETY	
Records management	
Citywide fee schedule for public records and document services	2.47.085
Special events	
Safety protection—barricades—cost of police protection	8.10.090

	Section
POLICE DEPARTMENT (Cont'd.)	
Teenage dancehalls—nightclubs	
Emergency police order	4.60.160
POLICIES AND PROCEDURES	
Administrative policies	
Adoption by Reference of Administrative Policy Manual	2.34.010
Alcoholic beverages	
Liquor—regulations and licenses	
Distributing to minor—establishment of policy—copy on premises—requirement to show	4.36.340
Animal establishments	
Sanitation procedures	7.70.100
Building and fire safety administrative code	15.01.115 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Business regulations and licenses	4.06.010 et seq.
See: BUSINESS REGULATIONS AND LICENSES	
Civil service rules	
Equal opportunity policy	6.01.050
Other City policies and procedures	6.01.040
Ethical standards for public servants	
Policy of the city	2.40.030
Gambling	
Regulations and licenses	
Declaration of policy	4.32.020
Health and sanitation	
Trees and plants	
Procedure upon order to treat, trim or remove	5.28.030
Insurance	
Payment policy	2.65.030
Property maintenance code	15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE	
Records management	
Disposition, records	2.47.070
Solid waste management	
Declaration of city policy	5.17.005
Stormwater regulations	
General provisions	
Policy	13.04.020.B
Utility services	14.02.010 et seq.
See: UTILITY SERVICES	

Section

POLICIES AND PROCEDURES (Cont'd.)
Vehicles and traffic ..... 10.64.010 et seq.
See: VEHICLES AND TRAFFIC

POLITICAL ACTIVITIES
Ethical standards for public servants
Political activity of city employees 2.40.090
Registration and regulation of lobbyists
Cooling off period 2.100.030
Definitions 2.100.010
Licensed attorneys 2.100.040
Lobbying
Disclosure form for
City council or planning commission communication—Time for filing 2.100.020.D
City staff communication—Time for filing 2.100.020.E
Identification 2.100.020.C
Registration
Form for filing 2.100.020.B
Time for filing 2.100.020.A
Violations and penalties 2.100.050

POLLUTANTS. See: CONTAMINANTS AND POLLUTANTS

POOLS. See: SWIMMING POOLS

PORCHES. See: PATIOS, PORCHES AND DECKS

POSSESS. See: CONSUME, HARBOR OR POSSESS

POSTED, POSTING
Animal establishment
Permits non-transferable—Posting 7.70.060
Building and fire safety administrative code ..... 15.01.085 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
Door-to-door solicitors, peddlers and canvassers
Entry upon posted premises unlawful 4.12.100
Posting on public ways, structures, vehicles, vacant premises 4.12.120

POWERS, DUTIES AND RESPONSIBILITIES
Alarm systems
Instructions as to the operation of the system—user responsibility for maintenance 4.18.230
Licensee responsible for the acts of employees 4.18.150

	Section
POWERS, DUTIES AND RESPONSIBILITIES (Cont'd.)	
Alcoholic beverages	
Liquor—regulations and licenses	
Licensee responsible for the acts of employees	4.36.440
Animals	7.02.010 et seq.
See: ANIMALS	
Building and fire safety administrative code	
Enforcement	
Authority to disconnect building service equipment	15.01.085.D
Special inspections	
Duties and responsibilities of the quality assurance agency and special inspector	15.01.405.J
City clerk: additional duties and authorizations	2.44.010
Door-to-door solicitors, peddlers and canvassers	
Licensee responsible for acts of employees and agents	4.12.090
Elections	
Date of entry upon duties	2.08.040
Emergency management	2.24.030 et seq.
See: EMERGENCY MANAGEMENT	
Health and sanitation	
Trees and plants	
Duties of abutting landowners	5.28.010
Mobile food vendors	
Licensee responsible for the acts of employees	4.72.140
Parades and public assemblies	
Duties of permittee	8.11.190
Property maintenance code	15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE	
Public peace and safety	
Liquor violations	
Parental responsibility	8.40.040
Reflexology	
Licensee responsible for the acts of employees	4.85.150
Secondhand dealers	
Licensee responsible for the acts of employees	4.68.240
Sexually oriented businesses	
Licensee responsible for the acts of employees	4.110.240
Special events	
Duties of permittee	8.10.200
Stormwater regulations	
Responsibility for enforcement	13.04.070
Ultimate responsibility	13.04.090
Streets, sidewalks and other public places	
Obstructions	
Sidewalks and streets to be free of landscaping, building, and other materials-Abutting owner's duties-Civil liability—Indemnity	11.03.030

Section

POWERS, DUTIES AND RESPONSIBILITIES (Cont'd.)
Teenage dancehalls—nightclubs
Licensee responsible for the acts of employees 4.60.120
Utility services
Wastewater regulations
Service line requirements
Customer's responsibility 14.04.030.A

PRECIOUS GEMS AND METALS
Auctions and auctioneers
Jewelry—special conditions 4.08.150

PRESERVATION. See: CONSERVATION AND PRESERVATION

PRETREATMENT REGULATIONS
Pretreatment regulations ..... 14.09.010 et seq
See: UTILITY SERVICES

PRIVACY. See: CONFIDENTIALITY AND PRIVACY

PRIVATE AMBULANCE SERVICE
Ambulance services..... 4.80.050 et seq.
See: EMERGENCY MEDICAL SERVICES

PRIVATE PROPERTY
Litter
Litter on occupied private property 5.04.020
Sidewalk and open-air vendors
Operating regulations
Open-air vendors; private property 4.75.065

PRIVATE SEWER SYSTEMS
Property maintenance code
General property maintenance standards
Excavations, septic tanks, and cesspools 15.12.030.I

PROCEDURES. See: POLICIES AND PROCEDURES

PROPERTY
Animals
Pet licensing and permits; fees; appeal process
Number of animals permitted on residential property..... 7.04.080
Business regulations and licenses
Fee schedules, business license
Property maintenance 4.05.340
Pawnbrokers
Property redemption notice form 4.64.090

	Section
PROPERTY (Cont'd.)	
Property maintenance code	15.12.010 et seq.
See: PROPERTY MAINTENANCE CODE	
PROPERTY MAINTENANCE CODE	
Abatement	
Code enforcement abatement revolving fund	15.12.070
Enforcement provisions. See herein that subject	
Appeals	
Enforcement provisions. See herein that subject	
Ceilings and roofs	
Nonresidential buildings and structures maintenance standards	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.040.C
Residential buildings and structures maintenance standards	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.050.B
Room dimensions	
Ceiling heights	15.12.050.C.2
Charges, fees and rates	
Enforcement provisions. See herein that subject	
Fee schedule	15.12.090
Code enforcement abatement revolving fund	15.12.070
Definitions	15.12.020
Electric, electricity	
Nonresidential buildings and structures maintenance standards	
Electrical wiring, hazardous	15.12.040.J
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.040.C
Residential buildings and structures maintenance standards. See herein that subject	
Emergencies	
Enforcement provisions	
Emergency measures	15.12.060.M
Residential buildings and structures maintenance standards	
Emergency egress, inadequate	15.12.050.X
Exits and emergency egress	15.12.050.K
Enforcement provisions	15.12.060
Abandoned nuisance	15.12.060.P
Abandoned nuisance notices	15.12.060.P.1
Abandoned nuisance remedy	15.12.060.P.2

Section

PROPERTY MAINTENANCE CODE (Cont'd.)
- Abatement
  - Time limit for abatement 15.12.060.I
  - Violations and remedies
    - Abatement remedy 15.12.060.N.3
- Appeals
  - Board of appeals hearing procedures 15.12.060.O
- Authority to inspect 15.12.060.D
- Board of appeals hearing procedures 15.12.060.O
  - Appeal decision from the board of appeals 15.12.060.O.6
  - Disqualification of board member 15.12.060.O.3
  - Failure to attend the board of appeals hearing 15.12.060.O.4
  - Liability of board members 15.12.060.O.7
  - Procedure at the board of appeals hearing 15.12.060.O.5
  - Procedures for notification of a board of appeals hearing 15.12.060.O.2
  - Procedures for requesting an appeal and associated fees 15.12.060.O.1
- Building or structure unfit for human occupancy 15.12.060.L
- Charges, fees and rates
  - Board of appeals hearing procedures
    - Procedures for requesting an appeal and associated fees 15.12.060.O.1
  - Emergency measures
    - Cost of emergency repairs 15.12.060.M.5
  - Violations and remedies
    - Administrative remedy
      - Fee, administrative—Purpose 15.12.060.N.1.d
- Chronic nuisance 15.12.060.Q
  - Notice, chronic nuisance 15.12.060.Q.1
  - Remedy, chronic nuisance 15.12.060.Q.2
- Conflict of ordinances 15.12.060.A
- Director, authority of 15.12.060.B
- Emergency measures 15.12.060.M
  - Condition posing imminent threat 15.12.060.M.1
  - Cost of emergency repairs 15.12.060.M.5
  - Imminent danger 15.12.060.M.2
  - Repairs, emergency 15.12.060.M.4
  - Temporary safeguards 15.12.060.M.3
- Extensions 15.12.060.J
- General violations 15.12.060.G
  - General violation notices 15.12.060.G.1
  - Method of service 15.12.060.G.2
- Hearing officer
  - Administrative hearing procedures. See within this subheading that subject

	Section
PROPERTY MAINTENANCE CODE (Cont'd.)	
Indemnification	15.12.060.E
Liens	
Violations and remedies. See within this subheading that subject	
Notice, notification	
Abandoned nuisance	15.12.060.P
Board of appeals hearing procedures	15.12.060.O
Procedures for notification of a board of appeals hearing	15.12.060.O.2
Chronic nuisance	
Notice, chronic nuisance	15.12.060.Q.1
General violations	
General violation notices	15.12.060.G.1
Violations and remedies. See within this subheading that subject	
Policies and procedures	
Board of appeals hearing procedures	15.12.060.O
Violations and remedies	
Abatement remedy	
Notice to abate—General procedures	15.12.060.N.3.a
Procedures for recording code enforcement lien	15.12.060.N.3.e
Powers, duties and responsibilities	
Responsibilities of owner and responsible party	15.12.060.F
Records and reports	
Violations and remedies. See within this subheading that subject	
Re-inspections	15.12.060.H
Renovations, repairs or restorations	
Emergency measures	
Cost of emergency repairs	15.12.060.M.5
Repairs, emergency	15.12.060.M.4
Responsibilities of owner and responsible party	15.12.060.F
Substantial compliance standard	15.12.060.C
Time limit for abatement	15.12.060.I
Transfer of ownership	15.12.060.K
Violations and remedies	15.12.060.N
Abatement remedy	15.12.060.N.3
Abatement by the city	15.12.060.N.3.b
Cancellation of code enforcement lien	15.12.060.N.3.g
Hearing, abatement report	15.12.060.N.3.d
Liens	
Cancellation of code enforcement lien	15.12.060.N.3.g
Procedures for recording code enforcement lien	15.12.060.N.3.e
Service of code enforcement lien	15.12.060.N.3.f
Notice to abate—General procedures	15.12.060.N.3.a

Section

PROPERTY MAINTENANCE CODE (Cont'd.)
Procedures for recording code enforcement lien. 15.12.060.N.3.e
Records and reports
Hearing, abatement report 15.12.060.N.3.d
Procedures for recording code enforcement lien 15.12.060.N.3.e
Report, abatement 15.12.060.N.3.c
Report, abatement 15.12.060.N.3.c
Service of code enforcement lien..... 15.12.060.N.3.f
Administrative remedy 15.12.060.N.1
Citations and fines, administrative..... 15.12.060.N.1.c
Fee, administrative—Purpose..... 15.12.060.N.1.d
Notification of violation 15.12.060.N.1.a
Recordation of notification of violation 15.12.060.N.1.b
Criminal remedy 15.12.060.N.2
Contents of criminal citation 15.12.060.N.2.a
Penalty..... 15.12.060.N.2.b
Subsequent violations..... 15.12.060.N.2.c
Liens
Abatement remedy. See within this subheading that subject
Notice, notification
Abatement remedy
Notice to abate—General procedures..... 15.12.060.N.3.a
Administrative remedy
Notification of violation..... 15.12.060.N.1.a
Recordation of notification of violation..... 15.12.060.N.1.b
Records and reports
Abatement remedy. See within this subheading that subject
Administrative remedy
Recordation of notification of violation..... 15.12.060.N.1.b
Writs, warrants and other legal processes
Administrative hearing procedures. See within this subheading that subject
Violations and remedies
Administrative remedy
Citations and fines, administrative 15.12.060.N.1.c
Criminal remedy
Contents of criminal citation 15.12.060.N.2.a
Equipment and machinery
Nonresidential buildings and structures maintenance standards. See herein that subject
Residential buildings and structures maintenance standards. See herein that subject
Fee schedule..... 15.12.090

	Section
PROPERTY MAINTENANCE CODE (Cont'd.)	
Fences, hedges, walls and other enclosures	
General property maintenance standards	
Fences, screen walls, perimeter walls and retaining walls	15.12.030.E
Nonresidential buildings and structures maintenance standards	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.040.C
Residential buildings and structures maintenance standards	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.050.B
Fire prevention and protection	
Nonresidential buildings and structures maintenance standards. See herein that subject	
Residential buildings and structures maintenance standards. See herein that subject	
Floors and foundations	
Nonresidential buildings and structures maintenance standards	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.040.C
Residential buildings and structures maintenance standards	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.050.B
Room dimensions	
Floor area	15.12.050.C.3
General property maintenance standards	15.12.030
Application	15.12.030.A
Dangerous buildings and structures	15.12.030.J
Drainage	15.12.030.D
Dumping	15.12.030.H
Excavations, septic tanks, and cesspools	15.12.030.I
Exterior property maintenance standards	15.12.030.B
Fences, screen walls, perimeter walls and retaining walls	15.12.030.E
Garbage receptacles requirements	15.12.030.F
Insect and rodent control, exterior	15.12.030.C
Maintenance of swimming and architectural pools and ponds	15.12.030.G
Vacant and unsecured buildings, structures, and premises	15.12.030.K

	Section
PROPERTY MAINTENANCE CODE (Cont'd.)	
General provisions	15.12.010
Application—Conformity required	15.12.010.C
Application	15.12.010.C.1
Existing buildings	15.12.010.C.2
Historic buildings	15.12.010.C.3
Maintenance	15.12.010.C.4
Relocation	15.12.010.C.5
Unsafe buildings and structures	15.12.010.C.6
Purpose	15.12.010.B
Short title	15.12.010.A
Hazards, hazardous	
Enforcement provisions	
Building or structure unfit for human occupancy	15.12.060.L
General property maintenance standards	
Dangerous buildings and structures	15.12.030.J
Nonresidential buildings and structures maintenance standards. See herein that subject	
Residential buildings and structures maintenance standards. See herein that subject	
Health and sanitation	
Enforcement provisions	
Building or structure unfit for human occupancy	15.12.060.L
General property maintenance standards	
Dangerous buildings and structures	15.12.030.J
Nonresidential buildings and structures maintenance standards	
Dangerous buildings and structures	15.12.040.B
Hazardous or unsanitary premises	15.12.040.O
Residential buildings and structures maintenance standards	
Premises, hazardous or unsanitary	15.12.050.T
Sanitation	15.12.050.E
Hearing officer	
Enforcement provisions. See herein that subject	
Heating, ventilation and air conditioning	
Nonresidential buildings and structures maintenance standards	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.040.C
Mechanical equipment, hazardous	15.12.040.L
Residential buildings and structures maintenance standards. See herein that subject	
Ingress, egress	
Nonresidential buildings and structures maintenance standards	
Exits	15.12.040.F

	Section
PROPERTY MAINTENANCE CODE (Cont'd.)	
Inadequate exits	15.12.040.P
Residential buildings and structures maintenance standards. See herein that subject	
Liens	
Enforcement provisions. See herein that subject	
Nonresidential buildings and structures maintenance standards	15.12.040
Application	15.12.040.A
Dangerous buildings and structures	15.12.040.B
Electrical wiring, hazardous	15.12.040.J
Equipment and machinery	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.040.C
Inadequate fire-protection or fire-fighting equipment	15.12.040.Q
Mechanical equipment, hazardous	15.12.040.L
Exits	15.12.040.F
Faulty materials of construction	15.12.040.N
Fire hazard	15.12.040.M
Fire prevention and protection	
Fire hazard	15.12.040.M
Fire protection	15.12.040.G
Inadequate fire-protection or fire-fighting equipment	15.12.040.Q
Fire protection	15.12.040.G
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.040.C
Electrical equipment	15.12.040.C.5
Exterior walls	15.12.040.C.2
Foundation	15.12.040.C.1
Mechanical equipment	15.12.040.C.4
Plumbing equipment	15.12.040.C.6
Roofs	15.12.040.C.3
Hazardous or unsanitary premises	15.12.040.O
Hazards, hazardous	
Dangerous buildings and structures	15.12.040.B
Electrical wiring, hazardous	15.12.040.J
Fire hazard	15.12.040.M
Hazardous or unsanitary premises	15.12.040.O
Mechanical equipment, hazardous	15.12.040.L
Plumbing, hazardous	15.12.040.K
Structural hazards	15.12.040.I
Improper occupancy	15.12.040.R
Inadequate exits	15.12.040.P
Inadequate fire-protection or fire-fighting equipment	15.12.040.Q
Interior of structures	15.12.040.E
General	15.12.040.E.1

Section

PROPERTY MAINTENANCE CODE (Cont'd.)
Handrails and guardrails 15.12.040.E.5
Interior windows and doors 15.12.040.E.6
Stairs and walking surfaces 15.12.040.E.4
Structural members 15.12.040.E.2
Surfaces, interior 15.12.040.E.3
Mechanical equipment, hazardous 15.12.040.L
Outdoor stairs, porches, guardrails, handrails, and similar railings 15.12.040.D
Plumbing, hazardous 15.12.040.K
Stairs and rails
Interior of structures
Handrails and guardrails 15.12.040.E.5
Stairs and walking surfaces 15.12.040.E.4
Outdoor stairs, porches, guardrails, handrails, and similar railings 15.12.040.D
Structural hazards 15.12.040.I
Substandard commercial buildings 15.12.040.H
Notice, notification
Enforcement provisions. See herein that subject
Plumbing
Nonresidential buildings and structures maintenance standards
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing 15.12.040.C
Plumbing, hazardous 15.12.040.K
Residential buildings and structures maintenance standards
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing 15.12.050.B
Plumbing, hazardous 15.12.050.P
Policies and procedures
Enforcement provisions. See herein that subject
Powers, duties and responsibilities
Enforcement provisions. See herein that subject
Purpose 15.12.080
Records and reports
Enforcement provisions. See herein that subject
Renovations, repairs or restorations
Enforcement provisions. See herein that subject
Residential buildings and structures maintenance standards 15.12.050
Conditions, structural 15.12.050.F
Electric, electricity
Electrical equipment 15.12.050.J

	Section
PROPERTY MAINTENANCE CODE (Cont'd.)	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.050.B
Hazardous electrical wiring	15.12.050.O
Electrical equipment	15.12.050.J
Emergency egress, inadequate	15.12.050.X
Equipment and machinery	
Electrical equipment	15.12.050.J
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.050.B
Hazardous mechanical equipment	15.12.050.Q
Inadequate fire-protection or fire-fighting equipment	15.12.050.V
Mechanical equipment	15.12.050.I
Exits and emergency egress	15.12.050.K
Emergency egress	15.12.050.K.2
Exits	15.12.050.K.1
Faulty materials of construction	15.12.050.S
Fire hazard	15.12.050.R
Fire prevention and protection	
Fire hazard	15.12.050.R
Fire protection	15.12.050.L
Inadequate fire-protection or fire-fighting equipment	15.12.050.V
Fire protection	15.12.050.L
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.050.B
Electrical equipment	15.12.050.B.5
Exterior walls	15.12.050.B.2
Foundation	15.12.050.B.1
Mechanical equipment	15.12.050.B.4
Outdoor stairs, porches, guardrails, handrails, and similar railings	15.12.050.B.7
Plumbing equipment	15.12.050.B.6
Roofs	15.12.050.B.3
General	15.12.050.A
Hazardous electrical wiring	15.12.050.O
Hazardous mechanical equipment	15.12.050.Q
Hazards, hazardous	
Fire hazard	15.12.050.R
Hazardous electrical wiring	15.12.050.O
Hazardous mechanical equipment	15.12.050.Q
Plumbing, hazardous	15.12.050.P
Premises, hazardous or unsanitary	15.12.050.T
Structural hazards	15.12.050.N
Heating, ventilation and air conditioning	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	15.12.050.B

	Section
PROPERTY MAINTENANCE CODE (Cont'd.)	
Hazardous mechanical equipment	15.12.050.Q
Light and ventilation	15.12.050.D
Mechanical equipment	15.12.050.I
Improper occupancy	15.12.050.W
Inadequate exits	15.12.050.U
Inadequate fire-protection or fire-fighting equipment	15.12.050.V
Ingress, egress	
Emergency egress, inadequate	15.12.050.X
Exits and emergency egress	15.12.050.K
Inadequate exits	15.12.050.U
Light and ventilation	15.12.050.D
General	15.12.050.D.1
Hallways	15.12.050.D.4
Light	15.12.050.D.2
Ventilation	15.12.050.D.3
Mechanical equipment	15.12.050.I
Combustion air	15.12.050.I.2
Heating	15.12.050.I.1
Plumbing, hazardous	15.12.050.P
Premises, hazardous or unsanitary	15.12.050.T
Room dimensions	15.12.050.C
Ceiling heights	15.12.050.C.2
Existing buildings	15.12.050.C.1
Floor area	15.12.050.C.3
Width	15.12.050.C.4
Sanitation	15.12.050.E
Dwelling units, lodging houses and congregate residences, dormitories and fraternity houses	15.12.050.E.1
Fixtures	15.12.050.E.3
Installation and maintenance	15.12.050.E.5
Kitchen	15.12.050.E.2
Water closet compartments	15.12.050.E.4
Structural hazards	15.12.050.N
Substandard residential buildings	15.12.050.M
Weather protection	15.12.050.G
Safety and welfare	
Enforcement provisions	
Building or structure unfit for human occupancy	15.12.060.L
General property maintenance standards	
Dangerous buildings and structures	15.12.030.J
General provisions	
Application—Conformity required	
Unsafe buildings and structures	15.12.010.C.6

	Section
PROPERTY MAINTENANCE CODE (Cont'd.)	
Nonresidential buildings and structures maintenance standards	
Dangerous buildings and structures	15.12.040.B
Stairs and rails	
Nonresidential buildings and structures maintenance standards. See herein that subject	
Residential buildings and structures maintenance standards	
Foundations, exterior walls, roofs, mechanical equipment, electrical, and plumbing	
Outdoor stairs, porches, guardrails, handrails, and similar railings	15.12.050.B.7
Standards and specifications	
Enforcement provisions	
Substantial compliance standard	15.12.060.C
General property maintenance standards	15.12.030
Nonresidential buildings and structures maintenance standards	15.12.040
Residential buildings and structures maintenance standards	15.12.050
Writs, warrants and other legal processes	
Enforcement provisions. See herein that subject	
PROSECUTION	
Stormwater regulations	
Criminal prosecution	13.04.240
PROSTITUTION AND INDECENT CONDUCT	
Indecent conduct	
Annoyance, molestation of or indecency toward a minor under 18 years of age	8.60.150
Public urination or defecation prohibited	8.60.130
Penalty for violation	8.60.160
Prostitution unlawful	8.60.050
Accosting and soliciting unlawful	8.60.070
Aiding and abetting unlawful	8.60.100
Allowing premises to be used for prostitution unlawful	8.60.110
Definitions	8.60.060
Loitering for the purpose of soliciting unlawful	8.60.090
Maintaining a place of prostitution unlawful	8.60.080
Resorting unlawful	8.60.120
PSYCHIC ARTS AND PRACTITIONERS (Astrologers, clairvoyants, etc.)	
Business regulations and licenses	4.05.140 et seq.
See: BUSINESS REGULATIONS AND LICENSES	

Section

PUBLIC ASSEMBLIES. See: PARADES AND PUBLIC ASSEMBLIES

PUBLIC PEACE AND SAFETY
Aggressive solicitation ..... 8.94.010 et seq.
See: AGGRESSIVE SOLICITATION
Alarm systems
Sirens not to be audible outside premises 4.18.220
Alcoholic beverages
Liquor violations. See herein that subject
Blasting regulations
Proximate blasting permit requirements
Safety precautions 15.33.150.A
Building and fire safety administrative code ..... 15.01.010 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
Camping and similar activities
Camping—Prohibitions 8.37.030
Definitions 8.37.020
Enforcement 8.37.050
Laying down, sleeping, or storing, maintaining, or placing personal property in public places, public building, the public right-of-way, or other paths... 8.37.040
Notice; storage and disposal 8.37.070
Outdoor fires prohibited on private land without permit 8.37.090
Outdoor fires prohibited on public land without permit 8.37.080
Penalty 8.37.100
Purpose/findings; definitions 8.37.010
Stored property—Impoundment 8.37.060
Coaster wheeled devices
Skating on premises of municipal facilities. See herein that subject
Contributing to delinquency of minors. See herein: Minors
Crimes against public peace
Assault 8.02.040
Battery 8.02.050
Battery constituting domestic violence 8.02.055
Coercion 8.02.110
Disorderly conduct 8.02.070
Harassment 8.02.060
Injury to property 8.02.100
Obstructing a public officer 8.02.020
Penalty for violation 8.02.140
Resisting a public officer 8.02.030
Smoking or consuming marijuana in a public place .. 8.02.130

	Section
PUBLIC PEACE AND SAFETY (Cont'd.)	
Theft	8.02.080
Trespass	8.02.090
Unlawful use or possession of drug paraphernalia	8.02.120
Violation of state law is a city misdemeanor	8.02.010
Dangerous animals	7.20.010 et seq.
See: DANGEROUS ANIMALS	
Emergency management	2.24.030 et seq.
See: EMERGENCY MANAGEMENT	
Fire prevention and protection	
Camping and similar activities. See herein that subject	
Fires. See herein that subject	
Fires	
Water supply, interference with	8.36.010
Fireworks, dangerous	
Dangerous fireworks prohibited	8.32.010
Penalty for violation	8.32.020
Goods or services	
Police services fees. See herein that subject	
Graffiti	8.85.010 et seq.
See: GRAFFITI	
Hotel registers	
Penalty for violation	8.28.020
Public register required—inspection	8.28.010
Laser pointers	8.04.010 et seq.
See: LASER POINTERS	
Liquor violations	
Gross intoxication prohibited	8.40.020
Liquor in possession of minors prohibited	8.40.030
Open container of alcohol prohibited	8.40.010
Parental responsibility	8.40.040
Penalty for violation	8.40.050
Minors	
Contributing to delinquency of minors	
Minor defined	8.12.030
Penalty for violation	8.12.020
Unlawful	8.12.010
Liquor violations	
Liquor in possession of minors prohibited	8.40.030
Parental responsibility	8.40.040
Noise control	8.84.010 et seq.
See: NOISE CONTROL	
Open burning	
Camping and similar activities. See herein that subject	

Section

PUBLIC PEACE AND SAFETY (Cont'd.)
Parade and public assembly..... 8.11.010 et seq.
See: PARADES AND PUBLIC ASSEMBLIES
Skating where prohibited
Definitions..... 8.09.010
Penalty for violation..... 8.09.050
Seizure of wheeled device until disposition of charge 8.09.040
Skating prohibited in posted areas 8.09.030
Special events ..... 8.10.010 et seq.
See: SPECIAL EVENTS
Stink bombs ..... 8.90.010 et seq.
See: STINK BOMBS
Streets, sidewalks and other public places
Camping—outdoor fires
Public land without permit, outdoor fires prohibited on 8.37.080
Liquor violations
Open container of alcohol prohibited 8.40.010
Skating on premises of municipal facilities. See herein that subject
Weapons and missiles..... 8.98.060 et seq.
See: FIREARMS, WEAPONS AND MISSILES

PUBLIC PLACES. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

PUBLIC WORKS AND IMPROVEMENTS
Buildings and construction ..... 15.52.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Emergency management
Public works director—Duties and responsibilities.... 2.24.100
Streets, sidewalks and other public places
Public improvements, standard specifications
Integration and title of standard specifications 11.01.010

PUBLICATIONS
Business regulations and licenses
Fee schedules, business license
Publisher..... 4.05.350
Emergency management
Emergency management coordinator
Duties and responsibilities 2.24.030
Stormwater regulations
Word usage and construction of language
References to other regulations, publications and documents..... 13.04.050.E

Section

PUBLICATIONS (Cont'd.)
Vehicles and traffic ..... 10.02.010 et seq.
See: VEHICLES AND TRAFFIC

PURCHASES, PURCHASING
Emergency management
City manager and emergency management coordinator, emergency powers of 2.24.080
Secondhand dealers
Purchase from minors and juveniles—prohibitions—exceptions—conditions 4.68.210

PURCHASING AGENT
Records management
Records committee 2.47.040

R

RABIES CONTROL
Animal establishments
Immunization and medical history 7.70.190
Animals ..... 7.50.010 et seq.
See: ANIMALS

RAILS. See: STAIRS AND RAILS

RAMADAS. See: CABANAS AND RAMADAS

RATES. See: CHARGES, FEES AND RATES

REAL ESTATE, REAL PROPERTY
Abandoned residential real property registry ..... 15.13.010 et seq.
See: ABANDONED RESIDENTIAL REAL PROPERTY REGISTRY
Business regulations and licenses
Fee schedules, business license
Real estate business 4.05.355
Title insurance company 4.05.380

REBATES. See: CREDITS, REBATES AND REFUNDS

RECEPTACLES. See: BINS, CONTAINERS AND OTHER RECEPTACLES

RECORDS AND REPORTS
Animal establishments
Immunization and medical history 7.70.190
Animals ..... 7.04.050 et seq.
See: ANIMALS

	Section
RECORDS AND REPORTS (Cont'd.)	
Auctions and auctioneers	
Consignment and auction records	4.08.110
Blasting regulations	
Performance standards	
Reports	15.33.130.G
Technical opinions and reports	15.33.050
Building and fire safety administrative code	
Inspection and survey	
Access to inspection record, permit and approved plans	15.01.335.C
Special inspector, quality assurance agency and fabricator/manufacturer complaints, hearing and appeal procedures	
Building official review of hearing officer report and recommendations	15.01.425.C
Buildings and construction	
Development services schedule of fees	
Annual report	15.02.020
Business regulations and licenses	4.04.090 et seq.
See: BUSINESS REGULATIONS AND LICENSES	
City clerk: additional duties and authorizations	2.44.010
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Other community development fees	
Records management fee	18.01.030.C.8
Council meetings	
Legal record of meeting	2.04.070
Minutes legal record of meeting	2.04.070
Recordings or transcripts of meetings	2.04.100
Recordings or transcripts of meetings held by order of city attorney	2.04.090
Municipal court	
Court of record	2.06.010
Pawnbrokers	4.64.090 et seq.
See: PAWNBROKERS	
Property maintenance code	15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE	
Records management	
City archives and records division	2.47.020
Citywide fee schedule for public records and document services	2.47.085
Disposition, records	2.47.070
Policy of the city	2.47.015

	Section
RECORDS AND REPORTS (Cont'd.)	
Records committee	2.47.040
Secondhand dealers	
Record of scrap metal purchases	
Photographic or video documentation required; inspection of records	4.68.233
Record of transactions	
Inspection of records and goods; record retention	4.68.230
Transient lodging and gaming taxes	
Confidential, records to be kept by director	4.48.080
Records to be kept by operator of transient lodging	4.48.070
Utility services	
Pretreatment regulations	
Monitoring, wastewater discharge	
Reporting requirements	14.09.050.D
RECORDS COMMITTEE	
Records management	
Disposition, records	2.47.070
Provisions re	2.47.040
RECREATION. See: PARKS AND RECREATION	
RECREATIONAL VEHICLES	
Vehicles and traffic	
Operation of golf carts on streets	
Where permitted	10.62.010
RECYCLING	
Solid waste management	5.17.050 et seq.
See: SOLID WASTE MANAGEMENT	
REDEVELOPMENT AGENCY ADVISORY COMMISSION	
City boards and commissions	2.50.380 et seq.
See: CITY BOARDS AND COMMISSIONS	
REFLEXOLOGY	
Advertising	4.85.055
Definitions	4.85.010
Disciplinary action—license suspension, revocation or limitation	4.85.100
Enforcement authority	4.85.200
Exemptions	4.85.020
Facilities and clothing requirements	4.85.065
License	
Changes in ownership	4.85.045
Disciplinary action—license suspension, revocation or limitation	4.85.100
Obtaining a license after revocation—prohibition	4.85.110

	Section
REFLEXOLOGY (Cont'd.)	
Investigation fees—required—fees charged	4.85.033
Issuance	4.85.050
Location subject to conditional use permit and massage establishment license if massage performed at location	4.85.035
Minimum educational and certification requirements	4.85.040
Not transferable—change of location	4.85.075
Operating requirements	4.85.060
Outcall treatment	4.85.080
Owner-employees	4.85.025
Statement of legislative intent—regulation	4.85.015
Unlawful acts	4.85.070
Unlawful to operate without a license— application requirements	4.85.030
REFUNDS. See: CREDITS, REBATES AND REFUNDS	
REFUSE. See: SOLID WASTE MANAGEMENT	
REGISTER, REGISTRATION	
Abandoned residential real property registry	15.13.010 et seq.
See: ABANDONED RESIDENTIAL REAL PROPERTY REGISTRY	
Animals	
Managed care of community cats	
TNVR organization registration required	7.15.050
Pet licensing and permits; fees; appeal process	
License register	7.04.070
Building and fire safety administrative code	
Subcontractor registration	15.01.170
Business regulations and licenses	
General business license provisions	
Director of business license—license register—investigations	4.04.040
Public peace and safety	
Hotel registers	
Penalty for violation	8.28.020
Public register required—inspection	8.28.010
Registration and regulation of lobbyists	
Cooling off period	2.100.030
Definitions	2.100.010
Licensed attorneys	2.100.040
Lobbying	
Disclosure form for	
City council or planning commission communication—Time for filing	2.100.020.D

	Section
REGISTER, REGISTRATION (Cont'd.)	
City staff communication—Time for filing	2.100.020.E
Identification	2.100.020.C
Registration	
Form for filing	2.100.020.B
Time for filing	2.100.020.A
Violations and penalties	2.100.050
Utility services	
Billing regulations	
Meter readings and registration	14.17.040
REGULATIONS. See: RULES AND REGULATIONS	
RELIGIOUS ORGANIZATIONS	
Noise control	
Specific prohibitions	
Noises near schools, hospitals, churches, etc.	8.84.030.F
RELOCATING. See: MOVING OR RELOCATING	
REMOVALS. See: APPOINTMENTS AND REMOVALS	
RENOVATIONS, REPAIRS OR RESTORATIONS	
Building and fire safety administrative code	
Existing buildings, structures, and building service equipment	
Additions, alterations or repairs	15.01.035.A
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Other community development fees	
Hillside restoration bond fee	18.01.030.C.12
Council salaries	
Vehicle allowance	2.01.040
Noise control	
Specific prohibitions	
Vehicle or motorboat repairs and testing	8.84.030.H
Property maintenance code	15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE	
Solid waste management	
Repair and replacement standards, container	5.17.265
Utility services	14.03.070 et seq.
See: UTILITY SERVICES	
Vehicles and traffic	
Enforcement, obedience and effect	
Repairman, duty of	10.16.113

Section

RENT. See: LEASE OR RENT

REPAIRS. See: RENOVATIONS, REPAIRS OR RESTORATIONS

REPORTS. See: RECORDS AND REPORTS

RESEARCH AND STUDIES
Animals
Pets general welfare; neglect; cruelty
Research or medical use 7.06.150
Bond issuance for project assistance
Declaration of purpose 2.56.010
Emergency management
Emergency management council
Powers and duties 2.24.050
Records management
Citywide fee schedule for public records and document services 2.47.085

RESIDENCE, RESIDENTIAL
Alarm systems
Alarm systems business located out of local area—requirement of a resident agent 4.18.180
Animals
Pet licensing and permits; fees; appeal process
Number of animals permitted on residential property 7.04.080
Building and fire safety administrative code
Manufactured housing as a conditional or temporary use
Temporary residence 15.01.245.B
Modular commercial and residential permits, submittal requirements and fees 15.01.250
Business regulations and licenses
Fee schedules, business license
Apartment house 4.05.130
Elections
Qualifications for elective offices—filing and fees 2.08.050
Gambling
Regulations and licenses
Private games excluded 4.32.230
Property maintenance code
Residential buildings and structures maintenance standards 15.12.050
Residential building code ..... 15.09.010 et seq.
See: RESIDENTIAL BUILDING CODE

	Section
RESIDENCE, RESIDENTIAL (Cont'd.)	
Sidewalk and open-air vendors	
Operating regulations	
Nonstationary sidewalk vendors; residential	4.75.060
Solid waste management	5.17.140 et seq.
See: SOLID WASTE MANAGEMENT	
Utility services	
Conservation	
Landscape material restrictions	
Additional landscape restrictions	
Residential landscape restrictions	14.14.050.3.a
Residential landscape restrictions	14.14.050.1
RESIDENTIAL BUILDING CODE	
Adoption by reference	15.09.010
Code amended	15.09.020
Compliance required—Penalty for violations	15.09.040
Effective date	15.09.050
Reference standard	15.09.025
Substantial compliance standard	15.09.030
RESOLUTIONS. See: ORDINANCES, RESOLUTIONS, ETC.	
RESPONSIBILITIES. See: POWERS, DUTIES AND RESPONSIBILITIES	
RESTORATIONS. See: RENOVATIONS, REPAIRS OR RESTORATIONS	
RESTRAIN. See: CONFINE OR RESTRAIN	
RETAIL MARIJUANA	
Regulations and licenses	
Application process	4.118.090
Closure or non-operational status	
Responsibility to maintain use	4.118.160
Conditions applying to specific location/business types	4.118.070
Definitions	4.118.010
Delivering off premises and preordered onsite pickup	4.118.200
Distributing to minors	
Copy on premises	4.118.220
Establishment of policy	4.118.220
Requirement to show	4.118.220
Intoxication on premises	4.118.210
Investigation fees	
Fees charged	4.118.120
Required	4.118.120

Section

RETAIL MARIJUANA (Cont'd.)
- Land use and location requirements—compliance with title 19 ..... 4.118.180
- License
  - Applicant 4.118.100
  - Application 4.118.080
  - Business premises required 4.118.100
  - Change of location 4.118.140
  - Contents 4.118.080
  - Finding of suitability 4.118.035
  - General 4.118.080
  - Issuance
    - Moratorium 4.118.170
    - Prohibited to designated persons 4.118.030
    - Restrictions 4.118.130
  - Limitation 4.118.240
  - Marijuana establishment origination fee 4.118.140
  - Penalty 4.118.240
  - Privilege 4.118.030
  - Proximity of marijuana establishments specified ... 4.118.130
  - Required 4.118.030
  - Restrictions 4.118.140
  - Revocation 4.118.240
  - Suspension 4.118.240
  - Transfer of license, ownership interest and changes in business control—council approval required 4.118.150
  - Unlawful to operate without marijuana establishment license 4.118.040
- Marijuana establishments
  - Interconnectivity allowed 4.118.190
  - License
    - Change of location; restrictions, origination fee .. 4.118.140
    - Issuance restrictions, proximity of, specified 4.118.130
  - Responsible for the acts of employees 4.118.250
  - Subject to local government audit 4.118.260
- Minor
  - Employment 4.118.230
- Public consumption of marijuana
  - Prohibition 4.118.270
- Purpose and intent 4.118.020

RETIREMENT. See: PENSIONS AND RETIREMENT

REVIEWS. See: DECISIONS, FINDINGS AND REVIEWS

RIGHT-OF-WAY
- Streets, sidewalks and other public places ..... 11.02.010 et seq.
- See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES

	Section
RIGHT-OF-WAY MANAGEMENT—COMMUNICATIONS FACILITIES	
Definitions	17.01.010
Fees	
Compensation	17.03.010
Delinquent Payment	17.03.030
Incentive Agreements	17.03.050
Indemnification	17.03.040
Payment	17.03.020
General provisions	
Annual Inspection	17.02.090
Application for A License Authorization	17.02.060
Business License Required	17.02.020
License Authorization Conditions	17.02.080
License Authorization Required	17.02.050
Purpose	17.02.010
Request for A Use Agreement	17.02.040
Unauthorized Communications Facilities	17.02.100
Use Agreement Conditions	17.02.070
Use Agreement Required	17.02.030
RIGHTS	
Bond issuance for project assistance	
Rights reserved to the city council	2.56.030
Code of ordinances	
Establishment and effect of code	
Code does not affect prior offenses or rights	1.02.030
Solid waste management	
Rights of city to dispose of solid waste	5.17.330
Rights of owners to dispose of recyclable materials	5.17.320
RODENTS. See: PEST CONTROL	
ROOFS. See: CEILINGS AND ROOFS	
RUBBISH. See: SOLID WASTE MANAGEMENT	
RULES AND REGULATIONS	
Alarm systems	
Regulation	4.18.030
Alcoholic beverages	4.36.010 et seq.
See: ALCOHOLIC BEVERAGES	
Blasting regulations	15.33.010 et seq.
See: BLASTING REGULATIONS	
Buildings and construction	
Flood control and control of drainage	
Uniform regulations	15.50.010

	Section
RULES AND REGULATIONS (Cont'd.)	
Business regulations and licenses	14.01.010 et seq.
See: BUSINESS REGULATIONS AND LICENSES	
Fire code	
Appeals and relief from regulations	15.32.090
State fire marshal's regulations	15.32.070
Gambling	4.32.010 et seq.
See: GAMBLING	
Massage establishments and independent massage therapists	
Statement of legislative intent—regulation	4.84.020
Medical marijuana regulations and licenses	4.116.010 et seq.
See: MEDICAL MARIJUANA	
Mobile food vendors	
Fees—further regulations	4.72.090
Statement of purpose and intent—regulation	4.72.020
Parks and recreation	
Rules and regulations	
Establishment and modification of	2.27.050
Regarding use of parks, recreation facilities and trails	2.27.030
Registration and regulation of lobbyists	
Cooling off period	2.100.030
Definitions	2.100.010
Licensed attorneys	2.100.040
Lobbying	
Disclosure form for	
City council or planning commission communication—Time for filing	2.100.020.D
City staff communication—Time for filing	2.100.020.E
Identification	2.100.020.C
Registration	
Form for filing	2.100.020.B
Time for filing	2.100.020.A
Violations and penalties	2.100.050
Retail marijuana regulations and licenses	4.118.010 et seq.
See: RETAIL MARIJUANA	
Secondhand dealers	
Statement of legislative intent—regulation	4.68.020
Sexually oriented businesses	4.110.170 et seq.
See: SEXUALLY ORIENTED BUSINESSES	

	Section
RULES AND REGULATIONS (Cont'd.)	
Solid waste management	
Subject to rules and regulations, collection agent	5.17.030
Stormwater regulations	13.04.010 et seq.
See: STORMWATER REGULATIONS	
Teenage dancehalls—nightclubs	
Fees—further regulations	4.60.090
Utility services	14.02.010 et seq.
See: UTILITY SERVICES	
Vehicles and traffic	10.06.010 et seq.
See: VEHICLES AND TRAFFIC	

S

SAFETY AND WELFARE	
Animal establishments	
Conditions relating to animal facilities	
Care of animals	7.70.030(C)
Animals	7.02.060 et seq.
See: ANIMALS	
Blasting regulations	
Proximate blasting permit requirements	
Safety precautions	15.33.150.A
Building and fire safety administrative code	15.01.010 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Dangerous animals	7.20.010 et seq.
See: DANGEROUS ANIMALS	
Emergency management	2.24.030 et seq.
See: EMERGENCY MANAGEMENT	
Parades and public assemblies	
Safety protection—barricades—cost of police protection	8.11.240
Property maintenance code	15.12.010 et seq.
See: PROPERTY MAINTENANCE CODE	
Special events	
Safety protection—barricades—cost of police protection	8.10.090
SALARIES. See: BENEFITS, COMPENSATION AND SALARIES	

	Section
SALES	
Animal establishments	
Sales of dogs and cats	7.70.180
Animals	
Pets general welfare; neglect; cruelty	
Promotional sale or gift	7.06.140
Sale	
Age requirements	7.06.220
Breeder permit required	7.06.230
Retailers and dealers	
Sale of dogs and cats—Microchipping	7.80.030
Auctions and auctioneers	
Conditions for auction sale	4.08.130
No private sale during auction	4.08.120
Business regulations and licenses	4.05.115 et seq.
See: BUSINESS REGULATIONS AND LICENSES	
Door-to-door solicitors, peddlers and canvassers	4.12.010 et seq.
See: DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS	
Emergency management	
Peace and order, measures to maintain	2.24.090
Graffiti	
Spray paint, markers and paint sticks	
Sale to minors prohibited	8.85.040
Massage establishments and independent massage therapists	
Sale or transfer or change of location	4.84.160
SALVAGE. See: JUNK, SALVAGE OR SCRAP	
SANITATION. See: HEALTH AND SANITATION	
SCHEDULES, TABLES AND GRAPHS	
Animal establishments	
Sanitation procedures	
Cleaning schedules	7.70.100(B)
Blasting regulations	
Performance standards	
Blast scheduling	15.33.130.A
Buildings and construction	15.02.010 et seq.
See: BUILDINGS AND CONSTRUCTION	
Community development fees	18.01.010 et seq.
See: COMMUNITY DEVELOPMENT FEES	
Property maintenance code	
Fee schedule	15.12.090

	Section
SCHEDULES, TABLES AND GRAPHS (Cont'd.)	
Public peace and safety	
Police services fees	
Fee schedule	8.01.020
SCHOOLS	
Alcoholic beverages	
Liquor—regulations and licenses	
Clark County Community College—Henderson Campus—Nevada State College—alcoholic liquor permit	4.36.380
Business regulations and licenses	
Fee schedules, business license	4.05.360
Noise control	
Specific prohibitions	
Noises near schools, hospitals, churches, etc.	8.84.030.F
SCRAP. See: JUNK, SALVAGE OR SCRAP	
SCREENING	
Property maintenance code	
General property maintenance standards	
Fences, screen walls, perimeter walls and retaining walls	15.12.030.E
SECONDHAND DEALERS	
Application of Nevada Revised Statutes	4.68.270
Classifications	4.68.025
Closure or non-operational status	
Responsibility of licensee to maintain use	4.68.190
Daily reports	4.68.235
Definitions	4.68.010
Display of sign	4.68.200
Investigation fees	
Required; fees charged	4.68.130
Land use	
Compliance with title 19	4.68.050
Licensee responsible for the acts of employees	4.68.240
License	
Application; general	4.68.070
Change of location	4.68.175
Exemptions	4.68.035
Issuance; assignment; city council approval required; nontransferable	4.68.170
Limit on number of	4.68.040
Required	4.68.030
Special provisions of	4.68.080
Suspension; revocation; limitation	4.68.260

Section

SECONDHAND DEALERS (Cont'd.)
Purchase from minors and juveniles
Prohibitions; exceptions; conditions 4.68.210
Record of scrap metal purchases
Photographic or video documentation required; inspection of records 4.68.233
Record of transactions
Inspection of records and goods; record retention 4.68.230
Statement of legislative intent
Regulation 4.68.020
Time period merchandise to be retained 4.68.220
Violation; penalty 4.68.290

SECONDHAND GOODS
Pawnbrokers ..... 4.64.010 et seq.
See: PAWNBROKERS
Secondhand dealers ..... 4.68.010 et seq.
See: SECONDHAND DEALERS

SECURITY
Alarm systems ..... 4.18.010 et seq.
See: ALARM SYSTEMS
Building and fire safety administrative code
Manufactured housing as a conditional or temporary use
Caretaker/security uses 15.01.245.A
Buildings and construction
Temporary dwelling units
Security trailer, temporary 15.60.060
Business regulations and licenses
Fee schedules, business license
Locksmith and safe mechanics 4.05.280
Door-to-door solicitors, peddlers and canvassers
Handbills and flyers must be securely fastened without causing damage 4.12.130
Parades and public assemblies
Safety protection—barricades—cost of police protection 8.11.240
Property maintenance code
General property maintenance standards
Vacant and unsecured buildings, structures, and premises 15.12.030.K
Sexually oriented businesses
Adult bookstores, adult novelty businesses, adult video stores, adult motion picture theaters, adult video arcades and commercial adult establishments—building specifications—regulations—security re-

	Section
quired	4.110.170
Special events	
Safety protection—barricades—cost of police protection	8.10.090
Teenage dancehalls—nightclubs	
Fees—further regulations	
Security	4.60.090.L
Supervision of restrooms	4.60.090.I

SEIZURE. See: SEARCH, SEIZURE OR SURRENDER

SENIOR CITIZENS ADVISORY COMMISSION
- City boards and commissions ..... 2.50.390 et seq.
- See: CITY BOARDS AND COMMISSIONS

SEPTIC TANKS. See: PRIVATE SEWER SYSTEMS

SERVICES. See: GOODS OR SERVICES

SEWERS AND SEWAGE DISPOSAL
- Building and fire safety administrative code
  - Required plumbing inspections
    - On-site sewer inspection 15.01.360.A
- Buildings and construction
  - Design and construction standards for wastewater collection systems
    - Adopted 15.75.010
- Solid waste management
  - Charges
    - Sewage waste 5.17.210
- Utility services ..... 14.04.010 et seq.
- See: UTILITY SERVICES

SEXUAL CONDUCT
- Reflexology
  - Sexual activity prohibited, solicitation of 4.85.145
- Sexually oriented businesses ..... 4.110.020 et seq.
- See: SEXUALLY ORIENTED BUSINESSES

SEXUALLY ORIENTED BUSINESSES
- Actual deception unnecessary to create liability 4.110.210
- Adult bookstores, adult novelty businesses, adult video stores, adult motion picture theaters, adult video arcades and commercial adult establishments—building specifications—regulations—security required 4.110.170
- Adult clubs—regulations 4.110.190
- Alcoholic liquor not permitted 4.110.260

Section

SEXUALLY ORIENTED BUSINESSES (Cont'd.)
Application fee required 4.110.090
Audit and inspection 4.110.300
Classification 4.110.015
Conformity by businesses already in operation 4.110.290
Definitions 4.110.010
Enforcement guidelines 4.110.330
Escort and escort service—outcall entertainer and outcall promoter regulations 4.110.195
Escort service and outcall promoter
Records required 4.110.197
Exemptions 4.110.080
False, deceptive or misleading advertising prohibited .. 4.110.200
Gambling not permitted 4.110.270
Investigation fees—required—fees charged 4.110.100
Key employee required 4.110.165
License
Application
Business premises required 4.110.040
Contents
Additional 4.110.070
General 4.110.050
Corporation—partnerships—limited liability companies—associations—changes in membership 4.110.130
Fee 4.110.220
Issuance or denial 4.110.140
Required—locational requirements—use permit application review 4.110.030
Licensee responsible for the acts of employees 4.110.240
Licensee subject to discipline: denial—nonrenewal—suspension—revocation—limitation 4.110.250
No refund on investigation fee 4.110.110
Nude modeling studio—regulations 4.110.180
Purpose and intent 4.110.020
Required department inspections 4.110.160
Right of appeal 4.110.310
Term of licenses 4.110.230
Withdrawal of application—refund 4.110.120

SHOUTING. See: YELLING, SHOUTING AND HOOTING

SHRUBS. See: TREES, SHRUBS AND PLANTS

SIDEWALK AND OPEN-AIR VENDORS
Definitions 4.75.010
Electrical cords, chains, wires, or hoses 4.75.100
Enforcement
Appeal rights 4.75.150

	Section
SIDEWALK AND OPEN-AIR VENDORS (Cont'd.)	
Authority and disciplinary action	4.75.140
General liability insurance required	4.75.055
License	
Application	4.75.040
Display of and equipment requirements	4.75.050
Does not provide defense for noncompliance with other laws	4.75.110
Licensee responsible for acts of employees and agents	4.75.090
Licensee's agreement to conform to law	4.75.045
Requirement and fee	4.75.030
Operating regulations	
Nonstationary sidewalk vendors; residential	4.75.060
Open-air vendors; private property	4.75.065
Purpose of provisions	4.75.020
Transfer prohibited	4.75.070
SIDEWALKS. See: STREETS, SIDEWALKS AND OTHER PUBLIC PLACES	
SIGNALING DEVICES	
Alarm systems	4.18.010 et seq.
See: ALARM SYSTEMS	
Noise control	
Specific prohibitions	
Emergency signaling devices	8.84.030.I
Vehicles and traffic	10.20.010 et seq.
See: VEHICLES AND TRAFFIC	
SIGNS	
Building and fire safety administrative code	
Sign construction permit exemptions	15.01.155
Business regulations and licenses	
Fee schedules, business license	
Advertising space—leasing or selling	4.05.115
Sale and display of narcotic and other paraphernalia	
Sale and display rooms	4.98.040
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Fee schedule for other community development applications	
Master sign plan	18.01.030.B.11
Mobile food vendors	
Signs denying approach	4.72.110
Secondhand dealers	
Display of sign	4.68.200

Section

SIGNS (Cont'd.)
Vehicles and traffic
Traffic control devices
Display of unauthorized signs, signals or markings 10.20.130

SITES, SITE PLANS
Blasting regulations
Non-proximate blasting permit requirements
Site maps and drawings 15.33.140.C
Building and fire safety administrative code
Moved buildings
New site, permit requirements for 15.01.045.C
Requirements for site demolition 15.01.045.A
Stormwater regulations
Construction site inspection program fees 13.04.260

SMOKE. See: DUST, ODORS, SMOKE AND OTHER AIRBORNE PARTICLES

SMOKING. See: TOBACCO AND TOBACCO PRODUCTS

SNOW AND ICE
Streets, sidewalks and other public places
Obstructions
Sidewalks and streets to be free of landscaping, building, and other materials-Abutting owner's duties-Civil liability—Indemnity
Ice removal..... 11.03.030.D

SOLICITATION
Aggressive solicitation ..... 8.94.010 et seq.
See: AGGRESSIVE SOLICITATION
Door-to-door solicitors, peddlers and canvassers ..... 4.12.010 et seq.
See: DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS
Reflexology
Sexual activity prohibited, solicitation of 4.85.145
Vehicles and traffic ..... 10.34.010 et seq.
See: VEHICLES AND TRAFFIC

SOLICITORS. See: DOOR-TO-DOOR SOLICITORS, PEDDLERS AND CANVASSERS

SOLID WASTE MANAGEMENT
Animal establishments
Standards for animal facilities—generally
Waste disposal..... 7.70.070(E)

	Section
SOLID WASTE MANAGEMENT (Cont'd.)	
Bins, containers and other receptacles	
Charges	
Container rentals — one-time on-call collections	5.17.190
Container requirements	5.17.110
Containers required	5.17.100
Containers required—franchisee to provide wheeled carts	5.17.100
Interference with containers prohibited	5.17.080
Removal of contents of containers prohibited	5.17.120
Repair and replacement standards, container	5.17.265
Requirements as to carts and vehicles	5.17.090
Residential areas removed from public view—placement for collection, containers in	5.17.140
Solid waste to be placed in containers—exceptions	5.17.130
Storage of containers in commercial areas	5.17.150
Burning of solid waste or recyclables	5.17.050
Charges	
Adjustments to rates, fees, and charges; rate changes	5.17.240
Collection of delinquent charges, fees, and rates	5.17.220
Container rentals — one-time on-call collections	5.17.190
Medical waste	5.17.200
Motels and mobile home parks	5.17.170
Overflowing solid waste	5.17.195
Pass through of taxes, fees, or other charges	5.17.245
Places of business and public buildings	5.17.180
Rates, fees, and charges; liens	5.17.230
Rates, fees, and charges not applicable to certain types of waste	5.17.215
Sewage waste	5.17.210
Single-family residences, duplexes, and multiple dwellings	5.17.160
Charges, fees and rates	
Charges. See herein that subject	
Environmental surcharge	5.17.213
No charge for disposal by residents at authorized disposal sites	5.17.290
Collecting or transporting of solid waste or recyclables.	5.17.060
Container requirements.	5.17.110
Containers required	5.17.100
Customer service standards	5.17.250
Declaration of city policy	5.17.005
Definitions	5.17.010
Effective February 1, 2025	Appendix 1
Emergency collections	5.17.070
Environmental surcharge	5.17.213

	Section
SOLID WASTE MANAGEMENT (Cont'd.)	
Fines, forfeitures and other penalties	
Penalty for violation	5.17.300
Injunctive relief	5.17.310
Interference with containers prohibited	5.17.080
Litter	5.04.010 et seq.
See: LITTER	
No charge for disposal by residents at authorized disposal sites	5.17.290
No conflict	5.17.360
Parades and public assemblies	
Litter collection	8.11.110
Penalty for violation	5.17.300
Prohibited methods of disposal	5.17.040
Property maintenance code	
General property maintenance standards	
Dumping	15.12.030.H
Garbage receptacles requirements	15.12.030.F
Provisions for collection and disposal	5.17.020
Recycling	
Burning of solid waste or recyclables	5.17.050
Collecting or transporting of solid waste or recyclables	5.17.060
Rights of owners to dispose of recyclable materials	5.17.320
Single-stream recycling and solid waste collection, implementation of	5.17.105
Removal of contents of containers prohibited	5.17.120
Repair and replacement standards, container	5.17.265
Requirements as to carts and vehicles	5.17.090
Residence, residential	
Charges	
Single-family residences, duplexes, and multiple dwellings	5.17.160
No charge for disposal by residents at authorized disposal sites	5.17.290
Residential areas removed from public view—placement for collection, containers in	5.17.140 5.17.290
Rights of city to dispose of solid waste	5.17.330
Rights of owners to dispose of recyclable materials	5.17.320
Severability	5.17.350
Solid and hazardous waste a nuisance	5.17.270
Solid waste to be placed in containers—exceptions	5.17.130
Special events	
Litter collection	8.10.100
Standards and specifications	
Customer service standards	5.17.250

	Section
SOLID WASTE MANAGEMENT (Cont'd.)	
Repair and replacement standards, container	5.17.265
Telephone answering standards	5.17.260
Storage of containers in commercial areas	5.17.150
Subject to rules and regulations, collection agent	5.17.030
Suspension of collection services	5.17.275
Telephone answering standards	5.17.260
Unauthorized disposal prohibited	5.17.280
SOUND AMPLIFYING DEVICES	
Noise control	
Specific prohibitions	
Loudspeakers, amplifiers, public address systems, and similar devices	8.84.030.B
Radios, television sets, boomboxes, musical instruments and similar devices	8.84.030.A
SPECIAL EVENTS	
Alcoholic beverages	
Liquor—regulations and licenses	
City hall special event district	4.36.260
Special events permits	4.36.270
Water Street District special events	4.36.270
Alcoholic beverages disallowed unless specific permission granted	8.10.065
Claims for damages	8.10.110
Commercial filming	8.10.025
Compliance with law prior to issuance of permit	8.10.120
Conditions for issuance of permit	8.10.130
Consideration of application and decision	8.10.060
Definitions	8.10.010
Duties of permittee	8.10.200
Emergency medical services	
Ambulance services	
Pre-notification of special event	4.80.355
Exceptions	8.10.030
Fees	8.10.050
Insurance requirements	8.10.080
Licenses and permits	
Compliance with law prior to issuance of permit	8.10.120
Conditions for issuance of permit	8.10.130
Duties of permittee	8.10.200
Permit	
Application	8.10.040
Required	8.10.020
Revocation of permit	8.10.240
Litter collection	8.10.100

	Section
SPECIAL EVENTS (Cont'd.)	
Notice of denial or acceptance	8.10.160
Permit	
Application	8.10.040
Required	8.10.020
Prohibitions	8.10.190
Public conduct during special events	8.10.210
Restriction on streets and times for event	8.10.070
Revocation of permit	8.10.240
Right of appeal	8.10.220
Safety protection—barricades—cost of police protection	8.10.090
Sanitation facilities required	8.10.150
Security plans	8.10.075
Special event medical services	4.80.300 et seq.
See: EMERGENCY MEDICAL SERVICES	
Standards for issuance	8.10.140
Waiver of time limitations	8.10.170
SPECIFICATIONS. See: STANDARDS AND SPECIFICATIONS	
SPEED, SPEED LIMITS	
Vehicles and traffic	10.24.030 et seq.
See: VEHICLES AND TRAFFIC	
STAIRS AND RAILS	
Property maintenance code	15.12.040 et seq.
See: PROPERTY MAINTENANCE CODE	
STANDARDS AND SPECIFICATIONS	
Animal establishments	7.70.070 et seq.
See: ANIMAL ESTABLISHMENTS	
Blasting regulations	
Performance standards	15.33.130
Substantial compliance standard	15.33.040
Building and fire safety administrative code	15.01.020 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Building code	
Substantial compliance standard	15.08.030
Buildings and construction	15.52.010 et seq.
See: BUILDINGS AND CONSTRUCTION	

	Section
STANDARDS AND SPECIFICATIONS (Cont'd.)	
Electrical code	
Substantial compliance standard	15.16.040
Energy conservation code	
Substantial compliance standard	15.45.030
Ethical standards for public servants	2.40.010 et seq.
See: ETHICAL STANDARDS FOR PUBLIC SERVANTS	
Mechanical code	
Substantial compliance standard	15.24.040
Parades and public assemblies	
Standards for issuance	8.11.060
Plumbing code	
Substantial compliance standard	15.20.040
Property maintenance code	15.12.030 et seq.
See: PROPERTY MAINTENANCE CODE	
Residential building code	
Substantial compliance standard	15.09.030
Sexually oriented businesses	
Adult bookstores, adult motion picture theaters, adult video centers, sexual encounter businesses, sexual encounter centers, adult novelty businesses—building specifications—regulations—security required	4.110.170
Solid waste management	5.17.250 et seq.
See: SOLID WASTE MANAGEMENT	
Special events	
Standards for issuance	8.10.140
Streets, sidewalks and other public places	
Public improvements, standard specifications	
Integration and title of standard specifications	11.01.010
Swimming pool code	
Substantial compliance standard	15.44.030
Utility services	
Refunding regulations	
Construction specifications	14.16.030
Standard refunding	14.16.040
STINK BOMBS	
Penalty for violation	8.90.020
Prohibited, stink bombs and similar preparations	8.90.010
STORAGE	
Animal establishments	
Standards for animal facilities—generally	7.70.070(D)

	Section
STORAGE (Cont'd.)	
Business regulations and licenses	
Fee schedules, business license	
Warehouse, storage, or self-storage business	4.05.405
Pawnbrokers	
Storage compound when motor vehicles are pawned	4.64.230
Solid waste management	
Storage of containers in commercial areas	5.17.150
STORMWATER REGULATIONS	
Appeal of notice of violation	13.04.190
Authority	13.04.030
Commentary	13.04.040
Conflicting provisions	13.04.060
Other city regulations, conflict with	13.04.060.B
Private agreements, conflict with	13.04.060.C
State or federal regulations, conflict with	13.04.060.A
Construction activity discharges	13.04.120
Compliance required	13.04.120.B
Stormwater General Permit NVR100000 coverage required	13.04.120.A
Construction site inspection program fees	13.04.260
Cost of abatement of the violation	13.04.210
Criminal prosecution	13.04.240
Definitions	13.04.010
Design requirements of new or replacement water supply and/or sewage systems	13.04.290
Discharge prohibitions	13.04.100
Illicit discharges, prohibition of	13.04.100.A
Prohibition of illicit connections	13.04.100.B
Enforcement	13.04.180
Civil judicial compliance	13.04.180.C
Criminal judicial compliance	13.04.180.D
Notice of discharge violation	13.04.180.B
Potential discharge violation, notice of	13.04.180.A
Enforcement actions and penalties not exclusive	13.04.250
Enforcement measures after appeal	13.04.200
Fines, forfeitures and other penalties	
Appeal of notice of violation	13.04.190
Cost of abatement of the violation	13.04.210
Enforcement	
Notice of discharge violation	13.04.180.B
Potential discharge violation, notice of	13.04.180.A
Enforcement actions and penalties not exclusive	13.04.250
Violations deemed a public nuisance	13.04.230
General provisions	13.04.020
Administration	13.04.020.E

	Section
STORMWATER REGULATIONS (Cont'd.)	
Applicability	13.04.020.D
Compliance	13.04.020.F
Policy	13.04.020.B
Purpose	13.04.020.A
Scope	13.04.020.C
Industrial activity discharges	13.04.130
Renewable fire permit required	13.04.130.B
Stormwater General Permit NVR050000 coverage required	13.04.130.A
Licenses and permits	
Construction activity discharges	
Stormwater General Permit NVR100000 coverage required	13.04.120.A
Industrial activity discharges	
Renewable fire permit required	13.04.130.B
Stormwater General Permit NVR050000 coverage required	13.04.130.A
Monitoring of discharges	13.04.140
Access to facilities	13.04.140.B
Applicability	13.04.140.A
Notice, notification	
Appeal of notice of violation	13.04.190
Enforcement	
Notice of discharge violation	13.04.180.B
Potential discharge violation, notice of	13.04.180.A
Notification of spills	13.04.170
Notification of spills	13.04.170
Requirements to prevent, control, and reduce storm water pollutants by the use of best management practices	13.04.150
Inadequate BMPs	13.04.150.B
Required BMPs	13.04.150.A
Responsibility for enforcement	13.04.070
Review of	
Building permit applications	13.04.270
Subdivision proposals	13.04.280
Severability	13.04.080
Suspension of MS4 access	13.04.110
Illicit discharges, suspension due to	13.04.110.A
Suspension due to the detection of illicit discharge	13.04.110.B
Ultimate responsibility	13.04.090
Violations deemed a public nuisance	13.04.230
Watercourse protection	13.04.160
Word usage and construction of language	13.04.050
Computation of time	13.04.050.D

Section

STORMWATER REGULATIONS (Cont'd.)
Conjunctions 13.04.050.J
Delegation of authority 13.04.050.F
Headings, illustrations, and text 13.04.050.B
Lists and examples 13.04.050.C
Mandatory and discretionary terms 13.04.050.I
Meanings and intent 13.04.050.A
Public officials and agencies 13.04.050.H
References to other regulations, publications and documents 13.04.050.E
Technical and non-technical terms 13.04.050.G
Tenses and plurals 13.04.050.K

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES
Alcoholic beverages
Liquor—regulations and licenses
Distributing off premises prohibited; exception for Water Street District 4.36.315
Animals ..... 7.08.020 et seq.
See: ANIMALS
Barricades
Permit required 11.04.010
Bonding
Bond required 11.10.010
Deposit lieu of bond 11.10.020
Waiver 11.10.030
Community development fees
Fee schedules, community development
Applications and services, fees for
Fee schedule for other community development applications
Master streets and highway amendment 18.01.030.B.12
Other community development fees
Street name change 18.01.030.C.9
Construction and excavation within right-of-way
Denial of excavation permit 11.02.040
Drains connected with public sewer 11.02.050
Inspection 11.02.060
Permit
Issuance 11.02.020
Required 11.02.010
Standards and specifications 11.02.030
Time restrictions on work in streets 11.02.070
Construction, maintenance and repair of sidewalks, transition strips, and medians
Appeal hearing
Determination by council 11.06.100

	Section
STREETS, SIDEWALKS AND OTHER PUBLIC PLACES (Cont'd.)	
Appeal procedure	11.06.080
Compliance	11.06.150
Definitions	11.06.020
Installation of new sidewalk	11.06.030
Maintenance and repair of existing sidewalks	11.06.040
Maintenance of the median	11.06.060
Maintenance of transition strip	11.06.050
Necessity for remedial action	11.06.090
Noncompliance	
Notice or approval	11.06.070
Purpose	11.06.010
Remedial action	
Cost; time limit	11.06.110
Nonpayment; statement	11.06.120
Standards and inspection	11.06.130
Emergency management	
Peace and order, measures to maintain	2.24.090
Fees	
Authorization and payment	11.07.010
Closure of right-of-way	
Definitions	11.08.012
Right-of-way fees and occupancy charges	11.08.010
Obstructions	
Obstructions or encroachments within city rights-of-way	11.03.010
Removal	
Dangerous or unsafe obstruction	11.03.020
Sidewalks and streets to be free of landscaping, building, and other materials	
Abutting owner's duties; civil liability; indemnity	
Applicability	11.03.030.H
Ice removal	11.03.030.D
Indemnity	11.03.030.F
Liability	11.03.030.E
Maintenance of sidewalks	11.03.030.C
Off-premises delivery of materials prohibited	11.03.030.B
Owner and/or occupant of property shall not allow off-premises delivery of materials	11.03.030.A
Penalties	11.03.030.G
Penalty for violation of title	
Alternative to criminal prosecution	11.09.020
Collection fees	11.09.070
Misdemeanors	11.09.010

Section

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES (Cont'd.)
Notice of violation
Filing 11.09.050
Issuance 11.09.040
Required information 11.09.030
Response; hearings 11.09.060
Response period 11.09.065
Public nuisance abatement 11.09.080
Public improvements, standard specifications for
Integration and title of standard specifications 11.01.010
Sidewalk and open-air vendors ..... 4.75.010 et seq.
See: SIDEWALK AND OPEN-AIR VENDORS
Sidewalks and right-of-way
Display, parking and sale of motor vehicles or merchandise on or within any unimproved public right-of-way 11.05.050
Force removal of unauthorized sidewalks 11.05.020
Removal of unauthorized sidewalks 11.05.010
Running water
Broken pipes 11.05.040
Sweeping onto sidewalk, street or gutter 11.05.030
Special events
Restriction on streets and times for event 8.10.070

STUDIES. See: RESEARCH AND STUDIES

SUITS, ACTIONS AND OTHER LEGAL PROCEEDINGS
Insurance
Purpose of account 2.65.020
Solid waste management
Injunctive relief 5.17.310

SUPPLIES AND MATERIALS
Building and fire safety administrative code
Alternate materials and methods of construction 15.01.060
Civil service rules
Recruitment, assessment and appointment
Application materials review and assessment process 6.04.030
Emergency management
City manager and emergency management coordinator, emergency powers of 2.24.080
Property maintenance code
Nonresidential buildings and structures maintenance standards
Faulty materials of construction 15.12.040.N

Section

SUPPLIES AND MATERIALS (Cont'd.)
Residential buildings and structures maintenance standards
Faulty materials of construction 15.12.050.S
Streets, sidewalks and other public places
Obstructions
Sidewalks and streets to be free of landscaping, building, and other materials-Abutting owner's duties-Civil liability—Indemnity 11.03.030
Utility services
Conservation
Landscape material restrictions 14.14.050
Vehicles and traffic
Truck routes
Parking of vehicles laden with hazardous materials 10.60.060

SUPPORTS. See: ANCHORS, TIEDOWNS AND SUPPORTS

SURETY BONDS. See: BONDS, SURETY OR PERFORMANCE

SURFACING. See: PAVING OR SURFACING

SURRENDER. See: SEARCH, SEIZURE OR SURRENDER

SURVEYS, MAPS AND PLATS
Blasting regulations
Non-proximate blasting permit requirements
Site maps and drawings 15.33.140.C
Proximate blasting permit requirements
Pre-blast and post-blast surveys 15.33.150.C
Building and fire safety administrative code
Inspection and survey 15.01.335
Buildings and construction
Flood control and control of drainage
Federal emergency management flood plain maps 15.50.020
Business regulations and licenses
Fee schedules, business license
Surveying firm..... 4.05.370
Community development fees
Fee schedules, community development
Applications and services, fees for
Schedule of mapping application fees 18.01.030.A

SWEAR. See: OATH, AFFIRMATION, SWEAR OR SWORN

	Section
SWIMMING POOL CODE	
Adoption by reference	15.44.010
Code amended	15.44.020
Compliance required—penalty for violations	15.44.040
Effective date	15.44.050
Substantial compliance standard	15.44.030
SWIMMING POOLS	
Building and fire safety administrative code	
Required pool and spa inspections	15.01.350
Property maintenance code	
General property maintenance standards	
Maintenance of swimming and architectural pools and ponds	15.12.030.G
Swimming pool code	15.44.010 et seq.
See: SWIMMING POOL CODE	
Utility services	
Conservation	
Swimming pool, spa, and hot tub draining	14.14.090
SWIMMING. See: BATHING OR SWIMMING	
SWORN. See: OATH, AFFIRMATION, SWEAR OR SWORN	

T

TABLES. See: SCHEDULES, TABLES AND GRAPHS	
TAMPER. See: ALTER OR TAMPER	
TAXATION	
Alcoholic beverages	
Liquor—regulations and licenses	
Certain license classifications must submit State of Nevada Department of Taxation application to city	4.36.055
Transient lodging and gaming taxes	4.48.010 et seq.
See: TRANSIENT LODGING AND GAMING TAXES	
TECHNICAL AND NONTECHNICAL WORDS	
Stormwater regulations	
Word usage and construction of language	13.04.050.G
TEENAGE DANCEHALLS—NIGHTCLUBS	
Charges, fees and rates	
Fees—further regulations	4.60.090
Investigation fees—employees or agents to qualify the same as the applicant	4.60.050

	Section
TEENAGE DANCEHALLS—NIGHTCLUBS (Cont'd.)	
No refund on investigation fee	4.60.060
Definitions	4.60.010
Emergency police order	4.60.160
Fees—further regulations	4.60.090
Access to governmental agents	4.60.090.E
Age restrictions	4.60.090.D
Applicability of fees	4.60.090.A
Compliance	4.60.090.M
Hours of operation	4.60.090.B
Lighting	4.60.090.G
Loitering/readmission	4.60.090.J
Occupancy load/seating	4.60.090.K
Prohibition on alcohol and tobacco	4.60.090.F
Sanitary requirements	4.60.090.H
Security	4.60.090.L
Supervision of restrooms	4.60.090.I
Written consent of parent/guardian	4.60.090.C
Investigation and issuance	4.60.080
Investigation fees—employees or agents to qualify the same as the applicant	4.60.050
Investigations	
Investigation and issuance	4.60.080
Investigation fees—employees or agents to qualify the same as the applicant	4.60.050
License	
Application—consent to investigation	4.60.040
No refund on investigation fee	4.60.060
Judicial review	4.60.150
License	
Application—consent to investigation	4.60.040
Suspension—revocation—limitation	4.60.110
Licensee responsible for the acts of employees	4.60.120
Licensee's agreement to conform to law	4.60.130
Licenses and permits	
License	
Application—consent to investigation	4.60.040
Suspension—revocation—limitation	4.60.110
Licensee responsible for the acts of employees	4.60.120
Licensee's agreement to conform to law	4.60.130
Statement of purpose and intent—lack of qualifications to hold license	4.60.020
Unlawful to operate without license	4.60.030
No refund on investigation fee	4.60.060
Penalty for violation of chapter	4.60.170
Right of appeal	4.60.140

	Section
TEENAGE DANCEHALLS—NIGHTCLUBS (Cont'd.)	
Statement of purpose and intent—lack of qualifications to hold license	4.60.020
Transfer prohibited	4.60.100
Unlawful to operate without license	4.60.030
Withdrawal of application—refund	4.60.070
TELECOMMUNICATIONS	
Alarm systems	
Audible alarm system cutoff — automatic dialing systems	4.18.250
Solid waste management	
Telephone answering standards	5.17.260
TEMPORARY BUILDINGS, STRUCTURES OR USES	
Building and fire safety administrative code	15.01.050 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Buildings and construction	15.60.010 et seq.
See: BUILDINGS AND CONSTRUCTION	
Business regulations and licenses	
Fee schedules, business license	
Temporary sales or service permit	4.05.375
Property maintenance code	
Enforcement provisions	
Emergency measures	
Temporary safeguards	15.12.060.M.3
TENANT OR OCCUPANT	
Building and fire safety administrative code	15.01.035 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Property maintenance code	
Nonresidential buildings and structures maintenance standards	
Improper occupancy	15.12.040.R
Residential buildings and structures maintenance standards	
Improper occupancy	15.12.050.W
Streets, sidewalks and other public places	
Obstructions	
Sidewalks and streets to be free of landscaping, building, and other materials-Abutting owner's duties-Civil liability—Indemnity	
Owner and/or occupant of property shall not allow off-premises delivery of materials	11.03.030.A

Section

TENANT OR OCCUPANT (Cont'd.)
Teenage dancehalls—nightclubs
Fees—further regulations
Occupancy load/seating 4.60.090.K

TESTIMONY. See: EVIDENCE, TESTIMONY AND WITNESSES

TESTS. See: EXAMINATIONS AND TESTS

THEATERS
Business regulations and licenses
General business license provisions
Persons exempt
Community theaters 4.04.030.B

TIEDOWNS. See: ANCHORS, TIEDOWNS AND SUPPORTS

TIME-SHARES
Transient lodging and gaming taxes
Time-share tax calculation 4.48.030

TITLES AND DEEDS
Bond issuance for project assistance
Rights reserved to the city council 2.56.030
Business regulations and licenses
Fee schedules, business license
Title insurance company 4.05.380
Pawnbrokers
Clear title required for pawning motor vehicle 4.64.260

TOBACCO AND TOBACCO PRODUCTS
Teenage dancehalls—nightclubs
Fees—further regulations
Prohibition on alcohol and tobacco 4.60.090.F

TOURISM. See: TRAVEL AND TOURISM

TOWING AND WRECKERS
Business regulations and licenses
Fee schedules, business license
Automobile towing service 4.05.160

TRACTOR TRAILERS. See: TRUCKS AND TRACTOR TRAILERS

TRAFFIC. See: VEHICLES AND TRAFFIC

TRAINING. See: EDUCATION AND TRAINING

TRAINS. See: RAILROADS AND TRAINS

TRANSFER. See: ASSIGN OR TRANSFER

	Section
TRANSIENT LODGING AND GAMING TAXES	
Confidential, records to be kept by director	4.48.080
Definitions	4.48.010
Delinquency collection	4.48.125
Deposit required for significantly delinquent accounts	4.48.062
Discount for prompt payment of convention and visitors authority transient lodging tax	4.48.050
Enforcement	4.48.120
Exemptions, transient lodging tax	4.48.040
Gaming tax	4.48.090
Late-payment penalty—interest	4.48.110
Payment, gaming tax—initial activation period	4.48.100
Payments—transient lodging tax	4.48.060
Records to be kept by operator of transient lodging	4.48.070
Tax collection on sale of business	4.48.065
Time-share tax calculation	4.48.030
Transient lodging taxes to be collected	4.48.020
(Effective beginning January 15, 2017 through February 28, 2017)	4.48.020-01
(Effective beginning March 1, 2017)	4.48.020-02
(Effective through January 14, 2017)	4.48.020
TRANSPORT, TRANSPORTATION	
Ambulance transportation fees	
Ambulance service rates	2.29.020
Emergency services providers	2.29.010
Rate increases	2.29.030
Building and fire safety administrative code	15.01.110 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE	
Litter	
Transport of unhealthy vegetable matter prohibited	5.04.060
Solid waste management	
Collecting or transporting of solid waste or recyclables	5.17.060
Streets, sidewalks and other public places	
Obstructions	
Sidewalks and streets to be free of landscaping, building, and other materials-Abutting owner's duties-Civil liability—Indemnity	
Off-premises delivery of materials prohibited	11.03.030.B
Owner and/or occupant of property shall not allow off-premises delivery of materials	11.03.030.A
TRAPPING. See: FISHING, HUNTING OR TRAPPING	
TRASH. See: SOLID WASTE MANAGEMENT	

Section

TRAVEL AND TOURISM
Business regulations and licenses
Fee schedules, business license
Travel and ticket agencies 4.05.385
Council salaries
Vehicle allowance 2.01.040
Transient lodging and gaming taxes ..... 4.48.010 et seq.
See: TRANSIENT LODGING AND GAMING TAXES

TREES, SHRUBS AND PLANTS
Health and sanitation ..... 5.28.020 et seq.
See: HEALTH AND SANITATION

TRESPASSING
Aggressive solicitation
Prohibited acts 8.94.020

TRUCKS AND TRACTOR TRAILERS
Vehicles and traffic ..... 10.60.020 et seq.
See: VEHICLES AND TRAFFIC

U

UNIFORM CODE FOR DANGEROUS BUILDINGS ABATEMENT
Adopted 15.10.010
City council approval required for demolition 15.10.015
Violation—Penalty 15.10.020

UNIFORMS. See: CLOTHING, COSTUMES AND UNIFORMS

UNIVERSITIES. See: COLLEGES AND UNIVERSITIES

UNLOADING. See: LOADING, UNLOADING

UTILITY SERVICES
Access
Cross-connection control regulations
Property access 14.08.060
Pretreatment regulations
Property access 14.09.090
Raw water regulations
Property access 14.06.040
Reclaimed water regulations
Property access 14.05.060
Wastewater regulations
Property access 14.04.060

	Section
UTILITY SERVICES (Cont'd.)	
Water regulations	
Property access	14.03.060
Billing regulations	
Adjustments, billing	14.17.070
Billing periods	14.17.050
Delinquent bills	14.17.060
Discontinuance of service	14.17.030
Establishment of service	14.17.020
General provisions	14.17.010
Administration	14.17.010.C
Compliance	14.17.010.D
Purpose and policy	14.17.010.A
Scope	14.17.010.B
Meter readings and registration	14.17.040
Violations	14.17.080
Blasting regulations	
Non-proximate blasting permit requirements	
Utility notification	15.33.140.K
Building and fire safety administrative code	
Enforcement	
Authority to disconnect building service equipment	
Non-emergency disconnection	
Notice to serving utility	15.01.085.D.2.d
Required pool and spa inspections	
Manufactured pools and spas	
Underground utility and bonding inspection	15.01.350.B.1
Buildings and construction	15.18.010 et seq.
See: BUILDINGS AND CONSTRUCTION	
Business regulations and licenses	
Fee schedules, business license	
Public utility and related services licenses	4.05.020
Charges, fees and rates	
Fees, rates and charges. See herein that subject	
Pretreatment regulations	
Wastewater discharge authorization	
Fees and charges	14.09.030.E
Refunding regulations	
Cost for infrastructure	14.16.020
Conservation	
Artificial lakes	14.14.110
Condition of service	14.14.015
Drought emergency	14.14.120
General provisions	14.14.010
Administration	14.14.010.C

	Section
UTILITY SERVICES (Cont'd.)	
Compliance	14.14.010.D
Definitions	14.14.010.E
Purpose, policy, and objectives	14.14.010.A
Scope	14.14.010.B
Golf courses	14.14.040
Landscape material restrictions	14.14.050
Additional landscape restrictions	14.14.050.3
Nonresidential landscape restrictions	14.14.050.3.b
Residential landscape restrictions	14.14.050.3.a
Nonresidential landscape restrictions	14.14.050.2
Residential landscape restrictions	14.14.050.1
Landscape watering restrictions; water budget; possible exemption from landscape watering restrictions for active/programmed recreation turf areas and athletic field turf areas	14.14.030
Malfunctioning water distribution facilities or other water loss issues	14.14.025
Mist systems	14.14.060
Recreational water park	14.14.100
Restrictions on surface, building, equipment, and vehicle washing; splash pads	14.14.070
Splash pads	14.14.070.C
Surface, building, and equipment washing	14.14.070.A
Vehicle washing	14.14.070.B
Swimming pool, spa, and hot tub draining	14.14.090
Violations	14.14.140
Water features	14.14.080
Water use restriction in deed or other written instrument recorded against real property	14.14.130
Water waste	14.14.020
Corrective action	14.14.020.F
Marker	14.14.020.E
Rebuttable presumption	14.14.020.C
Temporary termination of water service	14.14.020.D
Water waste defined	14.14.020.A
Water waste prohibited	14.14.020.B
Conservation and preservation	
Compliance	
Administrative Enforcement.	14.21.040
Administrative Fine Tables.	14.21.050
Administrative Hearings.	14.21.110
Civil Litigation.	14.21.070
Criminal Prosecution.	14.21.020
Fine Pass Through.	14.21.060
General Provisions.	14.21.010

	Section
UTILITY SERVICES (Cont'd.)	
Inapplicability to Chapter 14.09—Pretreatment Regulations.	14.21.140
Injunctive Relief.	14.21.030
No Waiver.	14.21.090
Public Nuisance.	14.21.130
Referral for State And/Or Federal Enforcement.	14.21.080
Remedies Cumulative.	14.21.100
Request for Reconsideration; Appeals.	14.21.120
Contaminants and pollutants	
Cross-connection control regulations. See herein that subject	
Contracts and agreements	
Refunding regulations	
Special refunding	
Agreements, special refunding	14.16.050.A
Standard refunding	
Agreements, standard refunding	14.16.040.A
Water commitment and allocation regulations. See herein that subject	
Credits, rebates and refunds	
Refunding regulations. See herein that subject	
Cross-connection control regulations	
Authorization, testing	14.08.050
Conditions of service	14.08.020
Corrective actions	14.08.080
Exceptions	14.08.070
General provisions	14.08.010
Administration	14.08.010.C
Compliance	14.08.010.D
Purpose and policy	14.08.010.A
Scope	14.08.010.B
Location and installation	14.08.030
Property access and modification	14.08.060
Testing and maintenance	14.08.040
Violations	14.08.090
Definitions	14.01.010
Electric, electricity	
Electricity and natural gas utilities. See herein that subject	
Electricity and natural gas utilities	
Authorization	14.12.020
General provisions	14.12.010
Administration	14.12.010.C
Compliance	14.12.010.D
Purpose and policy	14.12.010.A

	Section
UTILITY SERVICES (Cont'd.)	
Scope	14.12.010.B
Fees, rates and charges	
Chapter 14.14 water budget surcharge	14.18.100
Charge for taking water without authorization	14.18.110
Clean water coalition regional sewer connection charge and regional sewer user charge	14.18.060
Deposits	14.18.030
Fees, rates and charges	14.18.020
General provisions	14.18.010
Administration	14.18.010.C
Compliance	14.18.010.D
Purpose and policy	14.18.010.A
Scope	14.18.010.B
Main frontage fees	14.18.090
Southern Nevada Water Authority	
Drought protection charge, approval and application	14.18.075
Infrastructure surcharge, approval and application	14.18.085
Regional commodity charge	14.18.070
Regional connection charge	14.18.050
Reliability surcharge, approval and application	14.18.080
System development charges	14.18.040
West Henderson 2630/2760 PZ water backbone infrastructure rates	14.18.045
West Henderson-Bermuda wastewater backbone infrastructure rates	14.18.047
Finance	
Billing regulations. See herein that subject	
Fines, forfeitures and other penalties	
Billing regulations	
Violations	14.17.080
Conservation	
Violations	14.14.140
Cross-connection control regulations	
Violations	14.08.090
Pretreatment regulations	
Violations	14.09.100
Raw water regulations	
Violations	14.06.070
Reclaimed water regulations	
Violations	14.05.090
Refunding regulations	
Violations	14.16.060
Wastewater regulations	
Violations	14.04.090

	Section
UTILITY SERVICES (Cont'd.)	
Water commitment and allocation regulations	
Violations	14.02.050
Water regulations	
Violations	14.03.090
Maintenance	
Cross-connection control regulations	
Testing and maintenance	14.08.040
Raw water regulations	
System maintenance and repair	14.06.050
Reclaimed water regulations	
System maintenance and repair	14.05.070
Wastewater regulations	
System maintenance and repair	14.04.070
Water regulations	
System maintenance and repair	14.03.070
Meters	
Billing regulations	
Meter readings and registration	14.17.040
Reclaimed water regulations	
Service line requirements	
Meters	14.05.030.A
Water regulations	
Service line requirements	
Meters	14.03.010.A
Natural gas	
Electricity and natural gas utilities. See herein that subject	
Pipes, cables and conduits	
Raw water regulations	
Service line requirements	14.06.030
Reclaimed water regulations. See herein that subject	
Wastewater regulations. See herein that subject	
Water regulations. See herein that subject	
Policies and procedures	
Billing regulations	
General provisions	
Purpose and policy	14.17.010.A
Compliance	
General provisions	
Purpose and policy	14.21.010.A
Conservation	
General provisions	
Purpose, policy, and objectives	14.14.010.A

	Section
UTILITY SERVICES (Cont'd.)	
Cross-connection control regulations	
General provisions	
Purpose and policy	14.08.010.A
Electricity and natural gas utilities	
General provisions	
Purpose and policy	14.12.010.A
Fees, rates and charges	
General provisions	
Purpose and policy	14.18.010.A
Raw water regulations	
General provisions	
Purpose and policy	14.06.010.A
Reclaimed water regulations	
General provisions	
Purpose and policy	14.05.010.A
Refunding regulations	
General provisions	
Purpose and policy	14.16.010.A
Wastewater regulations	
General provisions	
Purpose and policy	14.04.010.A
Water commitment and allocation regulations	
General provisions	
Purpose and policy	14.02.010.A
Water regulations	
General provisions	
Purpose and policy	14.03.010.A
Pretreatment regulations	
Affirmative Defenses to Discharge Violations	14.09.210
Applicability, Objectives and Responsibility of the City	14.09.020
Compliance and Enforcement	14.09.170
Confidentiality of Information	14.09.120
Definitions and Rules of Construction; Abbreviations	14.09.010
Industrial Wastewater Discharge Permit Conditions	14.09.070
Industrial Wastewater Discharge Permit Modification	14.09.080
Industrial Wastewater Discharge Permit Revocation	14.09.090
Industrial Wastewater Discharge Permits	14.09.060
National Categorical Pretreatment Standards	14.09.040
No Waiver	14.09.190
Pretreatment and Monitoring Facilities	14.09.050
Recordkeeping	14.09.110
Regulation of Industrial Users from Outside Jurisdictions	14.09.200
Remedies Nonexclusive	14.09.180
Reporting and Notification Requirements	14.09.150

	Section
UTILITY SERVICES (Cont'd.)	
Right of Entry	14.09.140
Sample Collection and Analytical Methods	14.09.130
Sector Control Programs	14.09.160
Special Agreements and Contracts	14.09.100
Wastewater Discharge Prohibitions and Limitations	14.09.030
Raw water regulations	
Conditions of service	14.06.020
General provisions	14.06.010
Administration	14.06.010.C
Compliance	14.06.010.D
Purpose and policy	14.06.010.A
Scope	14.06.010.B
Interruption of service	14.06.060
Property access	14.06.040
Service line requirements	14.06.030
Corrective actions	14.06.030.B
Mains and main extensions	14.06.030.A
System maintenance and repair	14.06.050
Violations	14.06.070
Reclaimed water regulations	
Backbone infrastructure	14.05.050
Extensions of backbone infrastructure	14.05.050.A
Sizing of backbone infrastructure	14.05.050.B
Conditions of service	14.05.020
General provisions	14.05.010
Administration	14.05.010.C
Compliance	14.05.010.D
Purpose and policy	14.05.010.A
Scope	14.05.010.B
Interruption of service	14.05.080
Mains and main extensions	14.05.040
Pipes, cables and conduits	
Backbone infrastructure	
Extensions of backbone infrastructure	14.05.050.A
Mains and main extensions	14.05.040
Service line requirements	14.05.030
Property access	14.05.060
Service line requirements	14.05.030
Corrective actions	14.05.030.C
Meters	14.05.030.A
Valves	14.05.030.B
System maintenance and repair	14.05.070
Violations	14.05.090

	Section
UTILITY SERVICES (Cont'd.)	
Records management	
Citywide fee schedule for public records and document services	2.47.085
Refunding regulations	
Construction specifications	14.16.030
Cost for infrastructure	14.16.020
General provisions	14.16.010
Administration	14.16.010.C
Compliance	14.16.010.D
Purpose and policy	14.16.010.A
Scope	14.16.010.B
Special refunding	14.16.050
Agreements, special refunding	14.16.050.A
Conditions, special refunding	14.16.050.B
Standard refunding	14.16.040
Agreements, standard refunding	14.16.040.A
Conditions, standard refunding	14.16.040.B
Violations	14.16.060
Renovations, repairs or restorations	
Raw water regulations	
System maintenance and repair	14.06.050
Reclaimed water regulations	
System maintenance and repair	14.05.070
Wastewater regulations	
System maintenance and repair	14.04.070
Water regulations	
System maintenance and repair	14.03.070
Rules and regulations	
Billing regulations. See herein that subject	
Cross-connection control regulations. See herein that subject	
Pretreatment regulations. See herein that subject	
Raw water regulations. See herein that subject	
Reclaimed water regulations. See herein that subject	
Refunding regulations. See herein that subject	
Water commitment and allocation regulations. See herein that subject	
Water regulations. See herein that subject	
Sewers and sewage disposal	
Fees, rates and charges	
Clean water coalition regional sewer connection charge and regional sewer user charge	14.18.060
Wastewater regulations. See herein that subject	

	Section
UTILITY SERVICES (Cont'd.)	
Wastewater regulations	
Backbone infrastructure	14.04.050
Extensions of backbone infrastructure	14.04.050.A
Sizing of backbone infrastructure	14.04.050.B
Conditions of service	14.04.020
General provisions	14.04.010
Administration	14.04.010.C
Compliance	14.04.010.D
Purpose and policy	14.04.010.A
Scope	14.04.010.B
Interruption of service	14.04.080
Mains and main extensions	14.04.040
Pipes, cables and conduits	
Backbone infrastructure	
Extensions of backbone infrastructure	14.04.050.A
Mains and main extensions	14.04.040
Service line requirements	14.04.030
Property access	14.04.060
Service line requirements	14.04.030
Corrective actions	14.04.030.B
Customer's responsibility	14.04.030.A
System maintenance and repair	14.04.070
Violations	14.04.090
Water commitment and allocation regulations	
Applicability	14.02.020
Existing water contracts and allocations	14.02.040
General provisions	14.02.010
Administration	14.02.010.C
Compliance	14.02.010.D
Purpose and policy	14.02.010.A
Scope	14.02.010.B
Violations	14.02.050
Water commitment	14.02.030
Water regulations	
Backbone infrastructure	14.03.050
Extensions of backbone infrastructure	14.03.010.A
Sizing of backbone infrastructure	14.03.010.B
Conditions of service	14.03.020
General provisions	14.03.010
Administration	14.03.010.C
Compliance	14.03.010.D
Purpose and policy	14.03.010.A
Scope	14.03.010.B
Interruption of service	14.03.080
Mains and main extensions	14.03.040

	Section
UTILITY SERVICES (Cont'd.)	
Pipes, cables and conduits	
Backbone infrastructure	
Extensions of backbone infrastructure	14.03.010.A
Mains and main extensions	14.03.040
Service line requirements	14.03.030
Property access	14.03.060
Service line requirements	14.03.030
Corrective actions	14.03.010.D
Fire service connections	14.03.010.C
Meters	14.03.010.A
Valves	14.03.010.B
System maintenance and repair	14.03.070
Violations	14.03.090
Water supply and distribution. See herein specific subjects	
Weights and measures	
Reclaimed water regulations	
Backbone infrastructure	
Sizing of backbone infrastructure	14.05.050.B
Wastewater regulations	
Backbone infrastructure	
Sizing of backbone infrastructure	14.04.050.B
Water regulations	
Backbone infrastructure	
Sizing of backbone infrastructure	14.03.010.B

V

VACCINES, VACCINATIONS	
Animal establishments	
Immunization and medical history	7.70.190
Animals	
Pet licensing and permits; fees; appeal process	
Vaccinations	7.04.110
VARIANCES	
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Fee schedule for other community development applications	
Variance	18.01.030.B.15
VEGETATION	
Litter	
Transport of unhealthy vegetable matter prohibited	5.04.060

Section

VEHICLES AND TRAFFIC
Abuse or neglect
Reckless and negligent driving
Full time and attention 10.28.010
Reckless driving 10.28.020
Speed regulations
Drag race or drag racing 10.24.050
Accidents
Enforcement, obedience and effect. See herein that subject
Traffic administration. See herein that subject
Animals ..... 7.06.070 et seq.
See: ANIMALS
Arrests
Penalties and procedure on arrest. See herein that subject
Blasting regulations
Non-proximate blasting permit requirements
Traffic and access control plan 15.33.140.F
Business regulations and licenses ..... 4.05.150 et seq.
See: BUSINESS REGULATIONS AND LICENSES
Charitable organizations
Charitable solicitations while standing on median strip or sidewalk. See herein that subject
Charitable solicitations while standing on median strip or sidewalk
Application contents 10.34.050
Approval requirements, application 10.34.060
Definitions 10.34.020
Liability 10.34.040
Licenses and permits
Permit. See within this subheading that subject
Permit
Age requirement 10.34.090
Hours of use 10.34.080
Required 10.34.030
Time limit 10.34.070
Purpose 10.34.010
Right of appeal and judicial review 10.34.110
Solicitation—unlawful when 10.34.100
Council salaries
Vehicle allowance 2.01.040
Definitions ..... 10.08.010—10.08.390

	Section
VEHICLES AND TRAFFIC (Cont'd.)	
Designate, designation	
Intersections	
Authority to designate through streets and "stop" and "yield" intersections	10.36.010
Traffic control devices	
Designation and establishment of crosswalks and safety zones	10.20.170
Door-to-door solicitors, peddlers and canvassers	
Posting on public ways, structures, vehicles, vacant premises	4.12.120
Emergencies	
Enforcement, obedience and effect	
Authorized emergency vehicles	10.16.080
Emergency management	
Peace and order, measures to maintain	2.24.090
Emergency vehicles	
Enforcement, obedience and effect	
Authorized emergency vehicles	10.16.080
Enforcement, obedience and effect	
Applicability of the provisions of this title	10.16.010
Authority of	
Fire department officials to direct traffic	10.16.0202
Police and fire department officials to direct traffic	10.16.0201
Authorized emergency vehicles	10.16.080
Duty of repairman	10.16.113
Duty to report accident	10.16.111
Enforcement authority of police and fire department officials, and other enforcement officers	10.16.0200
Obedience to police and fire department	10.16.040
Penalty for violation of chapter	10.16.030
Vehicles involved in accident may be impounded	10.16.114
Equipment and machinery	
Miscellaneous driving rules	
Exhaust system	10.44.180
Safety equipment for motorcyclists. See herein that subject	
Excessive vehicle noises	
Exception	10.59.020
Prohibited acts	10.59.010
Fines, forfeitures and other penalties	
Nevada Traffic Manual adopted	
Violation—penalty	10.02.020
Penalties and procedure on arrest. See herein that subject	

	Section
VEHICLES AND TRAFFIC (Cont'd.)	
Identification	
Traffic control devices	
Curb markings	10.20.175
Intersections	
Authority to designate through streets and "stop" and "yield" intersections	10.36.010
Licenses and permits	
Charitable solicitations while standing on median strip or sidewalk. See herein that subject	
Truck routes	
Issuance of special permits for movement of buildings and other structures—conditions—applications therefor	10.60.040
Miscellaneous driving rules	
Exhaust pipes	10.44.190
Exhaust system	10.44.180
Gases and fumes	10.44.210
Unlawful riding	10.44.140
Motorcycles	
Safety equipment for motorcyclists. See herein that subject	
Nevada Traffic Manual adopted	
Adopted	10.02.010
Violation—penalty	10.02.020
Noise control	
Excessive vehicle noises. See herein that subject	
Specific prohibitions	
Exhaust discharge	8.84.030.D
Vehicle or motorboat repairs and testing	8.84.030.H
Off-road use of motor vehicles	
Exemptions	10.58.020
Prohibited	10.58.010
Operation of golf carts on streets	
Where permitted	10.62.010
Parking, parking lots	
Parking regulations adopted	
Adopted	10.06.010
Penalties and procedure on arrest. See herein that subject	
Truck routes	
Parking of vehicles laden with hazardous materials	10.60.060
Parking regulations adopted	
Abandoned vehicles on public roads or property	10.06.040
Adopted	10.06.010
Public nuisance	10.06.050

	Section
VEHICLES AND TRAFFIC (Cont'd.)	
Unlawful parking of	
Commercial vehicles	10.06.020
Recreational vehicles	10.06.030
Violation notice; when towing allowed; other penalties	10.06.060
Pawnbrokers	4.64.230 et seq.
See: PAWNBROKERS	
Pedestrians' rights and duties	
Soliciting rides or business, pedestrians	10.48.090
Penalties and procedure on arrest	
Defacing of traffic citations, warrants and complaints	10.64.010
Disposition of traffic fines and forfeitures	10.64.030
Record of traffic cases—Report of convictions to state	10.64.020
Police department	
Enforcement, obedience and effect	
Obedience to police and fire department	10.16.040
Policies and procedures	
Penalties and procedure on arrest. See herein that subject	
Powers, duties and responsibilities	
Enforcement, obedience and effect. See herein that subject	
Pedestrians' rights and duties. See herein that subject	
Turning, starting and stopping—signals	
Authority to place and obedience to turning markers	10.40.020
Public peace and safety	
Safety equipment for motorcyclists. See herein that subject	
Traffic control devices	
Designation and establishment of crosswalks and safety zones	10.20.170
Publications	
Nevada Traffic Manual adopted	
Adopted	10.02.010
Violation—penalty	10.02.020
Railroads and trains	
Right-of-way—intersections—railroad crossings. See herein that subject	
Reckless and negligent driving	
Full time and attention	10.28.010
Reckless driving	10.28.020
Records and reports	
Enforcement, obedience and effect. See herein that subject	
Penalties and procedure on arrest. See herein that subject	

Section

VEHICLES AND TRAFFIC (Cont'd.)
Traffic administration. See herein that subject
Rights
Pedestrians' rights and duties. See herein that subject
Rights-of-way
Right-of-way—intersections—railroad crossings. See herein that subject
Rules and regulations
Miscellaneous driving rules. See herein that subject
Parking regulations adopted
Adopted 10.06.010
Speed regulations. See herein that subject
Safety and welfare
Safety equipment for motorcyclists. See herein that subject
Traffic control devices
Designation and establishment of crosswalks and safety zones 10.20.170
Signaling devices
Traffic control devices. See herein that subject
Turning, starting and stopping—signals. See herein that subject
Solicitations
Charitable solicitations while standing on median strip or sidewalk. See herein that subject
Pedestrians' rights and duties
Soliciting rides or business, pedestrians 10.48.090
Solid waste management
Requirements as to carts and vehicles 5.17.090
Speed regulations
Determination of speed 10.24.070
Determination of speed limits 10.24.030
Drag race or drag racing 10.24.050
Limits 10.24.020
Speed limit, maximum 10.24.060
Speed, speed limits
Speed regulations. See herein that subject
Streets, sidewalks and other public places
Charitable solicitations while standing on median strip or sidewalk. See herein that subject
Operation of golf carts on streets
Where permitted 10.62.010
Traffic control devices
Authority to install 10.20.010
Curb markings 10.20.175

Section

VEHICLES AND TRAFFIC (Cont'd.)
Designation and establishment of crosswalks and safety zones 10.20.170
Display of unauthorized signs, signals or markings... 10.20.130
Traffic lanes 10.20.180
Traffic division
Traffic administration. See herein that subject
Truck routes
Designated 10.60.100
Generally 10.60.070
Issuance of special permits for movement of buildings and other structures—conditions—applications therefor 10.60.040
Maximum width and length of vehicles—exception... 10.60.030
Parking of vehicles laden with hazardous materials .. 10.60.060
Traction engines..... 10.60.020
Trucks and tractor trailers
Truck routes. See herein that subject
Turning, starting and stopping—signals
Authority to place and obedience to turning markers. 10.40.020
Authority to place restricted turn signals..... 10.40.030
Writs, warrants and other legal processes
Penalties and procedure on arrest. See herein that subject
Zones
Speed regulations
Determination of speed limits..... 10.24.030
Traffic control devices
Designation and establishment of crosswalks and safety zones..... 10.20.170

VENDORS AND MERCHANTS
Business regulations and licenses
Fee schedules, business license
Novelty food vendor..... 4.05.313
Mobile food vendors ..... 4.72.010 et seq.
See: MOBILE FOOD VENDORS
Sidewalk and open-air vendors ..... 4.75.010 et seq.
See: SIDEWALK AND OPEN-AIR VENDORS

VENTILATION. See: HEATING, VENTILATION AND AIR CONDITIONING

VESSELS. See: BOATS AND OTHER VESSELS

VETERINARIANS
Animal establishments
Veterinary care 7.70.090

Section

VETERINARIANS (Cont'd.)
Business regulations and licenses
Fee schedules, business license
Veterinary office 4.05.400

VIBRATION
Blasting regulations
Performance standards
Ground vibration 15.33.130.D

VICIOUS ANIMALS
Appeal of vicious declaration 7.25.050
Declaration 7.25.020
Discovery 7.25.055
Purpose and findings 7.25.010
Vicious dog
Determination 7.25.030
Notice of declaration; standing 7.25.040

VIDEO RECORDINGS. See: AUDIO OR VIDEO RECORDINGS

VIDEO RENTAL STORES
Business regulations and licenses
Fee schedules, business license
Photography and videography sales/service 4.05.333
Definitions 4.102.010
Unlawful to operate without license 4.102.020
Video rental store and video rental kiosk regulations ... 4.102.030

VIOLATIONS. See: FINES, FORFEITURES AND OTHER PENALTIES

VISIBILITY
Solid waste management
Residential areas removed from public view—placement for collection, containers in 5.17.140

VOLUNTEERS
Emergency management
Operational emergency management organization ... 2.24.070

VOTES, VOTING
Elections ..... 2.08.010 et seq.
See: ELECTIONS

W

WAIVERS
Alcoholic beverages

	Section
WAIVERS (Cont'd.)	
Liquor—regulations and licenses	
Background investigation waived, when	4.36.130
Animals	
Pet licensing and permits; fees; appeal process	
Veteran, law enforcement officer and first responder adoption fee waiver program	7.04.025
Building and fire safety administrative code	
Special inspections	
Waiver of special inspection	15.01.405.F
Buildings and construction	
Undergrounding utility facilities	
Waivers	15.18.040
Community development fees	
Fee schedules, community development	
Applications and services, fees for	
Fee schedule for other community development applications	
Waiver of standards	18.01.030.B.16
Gambling	
Regulations and licenses	
Background investigation	
Waived when—burden of proof	4.32.070
Special events	
Waiver of time limitations	8.10.170
WALLS. See: FENCES, HEDGES, WALLS AND OTHER ENCLOSURES	
WARDS	
Council salaries	
Councilmembers from wards I, II, III AND IV, salary for	2.01.010
Elections	
Qualifications for elective offices—filing and fees	2.08.050
Vote centers	2.08.060
Ward boundaries	2.08.070
WAREHOUSES	
Bond issuance for project assistance	
Declaration of purpose	2.56.010
Business regulations and licenses	
Fee schedules, business license	
Distribution center	4.05.235
Warehouse, storage, or self-storage business	4.05.405
WARRANTS. See: WRITS, WARRANTS AND OTHER LEGAL PROCESSES	

Section

WATER SUPPLY AND DISTRIBUTION
Animal establishments
Standards for animal facilities—generally
Water and electrical power ..... 7.70.070(B)
Buildings and construction
Uniform design and construction standards (UDACS) for water distribution systems
Adopted 15.70.010
Property maintenance code
Residential buildings and structures maintenance standards
Sanitation
Water closet compartments 15.12.050.E.4
Public peace and safety
Fires
Water supply, interference with 8.36.010
Utility services ..... 14.01.010 et seq.
See: UTILITY SERVICES

WATERCOURSES AND WATERWAYS
Stormwater regulations
Watercourse protection 13.04.160
Utility services
Conservation
Artificial lakes 14.14.110
Water features 14.14.080

WATERWAYS. See: WATERCOURSES AND WATERWAYS

WEAPONS. See: FIREARMS, WEAPONS AND MISSILES

WEIGHTS AND MEASURES
Alcoholic beverages
Liquor—regulations and licenses
Distance limitations for alcoholic liquor licenses 4.36.300
License
Issuance
Restrictions—proximity of taverns specified 4.36.190
Buildings and construction ..... 15.56.010 et seq.
See: BUILDINGS AND CONSTRUCTION
Property maintenance code
Residential buildings and structures maintenance standards
Room dimensions 15.12.050.C

	Section
WEIGHTS AND MEASURES (Cont'd.)	
Solid waste management	
Charges	
Overflowing solid waste	5.17.195
Teenage dancehalls—nightclubs	
Fees—further regulations	
Occupancy load/seating	4.60.090.K
Utility services	14.03.010 et seq.
See: UTILITY SERVICES	
Vehicles and traffic	
Truck routes	
Maximum width and length of vehicles—exception	10.60.030
WELFARE. See: SAFETY AND WELFARE	
WILDLAND-URBAN INTERFACE CODE	
Adoption by reference	15.30.010
Amendments	15.30.030
Code amended	15.30.020
Compliance required	
Penalty for violations	15.30.050
Effective date	15.30.060
Substantial compliance standard	15.30.040
WILDLIFE	
Licenses and permits	
Wild and exotic animals; non-domesticated animals; animal exhibitors. See herein that subject	
Wild and exotic animals; reptiles; non-domesticated companion animals; animal exhibitors	
Animal exhibitor permit—Required	7.40.060
Feeding urban wildlife and feral animals	7.40.070
Licenses and permits	
Animal exhibitor permit—Required	7.40.060
Wild and exotic animals—Permit	7.40.030
Reptiles and amphibians	7.40.040
Requirements for wild and exotic animal	7.40.020
Restrictions on keeping roosters	7.40.050
Wild and exotic animals—Permit	7.40.030
Wild animals and/or urban wildlife—Generally	7.40.010
WINDOWS. See: DOORS AND WINDOWS	
WINE. See: ALCOHOLIC BEVERAGES	
WIRES. See: POLES AND WIRES	
WITNESSES. See: EVIDENCE, TESTIMONY AND WITNESSES	

Section

WRECKERS. See: TOWING AND WRECKERS

WRITS, WARRANTS AND OTHER LEGAL PROCESSES
Animals
Retailers and dealers
Refund and warranty 7.80.040
Blasting regulations
Citations 15.33.080
Building and fire safety administrative code ..... 15.01.085 et seq.
See: BUILDING AND FIRE SAFETY ADMINISTRATIVE CODE
Citations for violations
Authorized—service 1.04.010
Failure to appear 1.04.040
Form 1.04.020
Time for appearance 1.04.030
Fire code
Citations 15.32.080
Health and sanitation
Trees and plants
Authority to order the treatment, trimming or removal of trees, plants and shrubs 5.28.020
Procedure upon order to treat, trim or remove 5.28.030
Property maintenance code ..... 15.12.060 et seq.
See: PROPERTY MAINTENANCE CODE
Teenage dancehalls—nightclubs
Emergency police order 4.60.160
Vehicles and traffic
Penalties and procedure on arrest
Defacing of traffic citations, warrants and complaints 10.64.010

Y

YELLING, SHOUTING AND HOOTING
Noise control
Specific prohibitions 8.84.030.C

Z

ZONES
Vehicles and traffic ..... 10.20.170 et seq.
See: VEHICLES AND TRAFFIC

Section

ZONING
Community development fees..... 18.01.030 et seq.
See: COMMUNITY DEVELOPMENT FEES
Development code (zoning)..... Ch. 19.01